OFFICIAL

2026

CONNECTICUT PRACTICE BOOK

(Revision of 1998)

CONTAINING

THE ATTORNEY'S OATH

LAWYERS' PRINCIPLES OF PROFESSIONALISM

RULES OF PROFESSIONAL CONDUCT

CODE OF JUDICIAL CONDUCT

RULES FOR THE SUPERIOR COURT

RULES OF APPELLATE PROCEDURE

APPENDIX OF FORMS

NOTICE REGARDING OFFICIAL JUDICIAL BRANCH FORMS

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EXPLANATORY NOTES

The Superior Court Rules as organized herein were first published in the Connecticut Law Journal dated July 29, 1997. This 2026 edition of the Practice Book contains amendments to the Rules of Professional Conduct, the Superior Court Rules and the Rules of Appellate Procedure. The amendments were published in the Connecticut Law Journals dated June 24, 2025, and August 12, 2025. In the 2026 edition, technical changes were made in order to conform the rules to the style adopted by the courts. Additionally, in this 2026 edition, the Lawyers' Principles of Professionalism was added to serve as aspirational guidelines for civility and decorum. The Principles have been adapted here, with the permission of the Connecticut Bar Association. They were published in the Connecticut Law Journal dated June 24, 2025.

The system used to number each section is based on the chapter in which the section is located. Each section has a two part number. The first part of the number designates the chapter, and the second part designates the number of the section within that chapter (Chapter 1 begins with 1-1, Chapter 2 with 2-1, etc.). The internal breakdown of individual rules follows the style of the General Statutes. Subsections are designated by lower case letters in parentheses, (a), (b), subdivisions are designated by numbers in parentheses, (1), (2), and subparagraphs are designated by upper case letters in parentheses, (A), (B).

Origin of the rules. A parenthetical notation about the origin of each rule is found at the end of every section in this volume. The notation (P.B. 1978-1997, Sec. ___) indicates the number of the section in the 1978-1997 Practice Book corresponding to the current section. Current numbers of any sections corresponding to the sections in the 1978-1997 Practice Book appear in the Reference Tables following the text of the rules. The notation (1998) indicates that the section was new in the 1998 Practice Book, taking effect October 1, 1997. The notation (See P.B. 1978-1997, Sec. ___) (1998) indicates that the section was modeled on a rule in the 1978-1997 Practice Book but was actually adopted for the first time to take effect October 1, 1997. There may be significant differences between the rules in this volume and those in the 1978-1997 Practice Book on which they were modeled. The temporary numbers assigned to those rules in the July 29, 1997 Connecticut Law Journal, where they were originally published, appear in the Reference Tables following the text of the rules.

When a section was adopted or amended after 1997, a parenthetical notation to that effect appears either immediately following the text of the section or following the parenthetical notation concerning the derivation of the section. When the title to a section has been amended, a parenthetical notation appears immediately following the title.

Histories and commentaries. Histories describing the nature of amendments and Commentaries indicating the intended purpose of new rules or amendments to existing rules are printed following the text of new or amended rules. Histories and Commentaries are included for only those rules that were adopted or amended to take effect in the year corresponding to the current edition of the Practice Book, with the following exceptions: (1) the Histories and Commentaries to the rules on sealing of files and closure of the courtroom will be retained on a cumulative basis; (2) the 2010 Commentary following the list of section titles for Chapter 25a, the 2014 and 2021 Commentaries to Section 1-10B, the 2021 Commentary to Section 1-11C, the 2017 Commentary to Section 2-27A, the 2026 Commentary to Section 10-35, the 2022 Commentary to Section 25-6A and the 2022 Commentary to Section 37-1 have been retained; and (3) Commentaries to certain sections of the Rules of Appellate Procedure have been retained. Users wanting to access the Histories documenting rule changes and Commentaries to new or amended rules, in a given year, should not discard the corresponding edition of the Practice Book. For example, Histories and Commentaries corresponding to rule

changes to take effect January 1, 2026, will appear only in the 2026 edition of the Practice Book and not in subsequent editions, unless the rule falls into one of the exceptions, listed previously.

The Commentaries to the rules of practice are included in this volume for informational purposes only. *Commentaries to those rules are not adopted by the judges and justices when they vote to adopt proposed rule changes. Commentaries to the Rules of Professional Conduct and Code of Judicial Conduct are adopted by the judges and justices and are printed in every edition of the Practice Book.*

Beginning in 2000, Amendment Notes were incorporated into the Rules of Professional Conduct and the Code of Judicial Conduct. Those notes, approved by the Rules Committee of the Superior Court to explain the revisions to the Rules of Professional Conduct and Code of Judicial Conduct, appear only in the edition of the Practice Book corresponding to the year of the revision and not in subsequent editions.

Every year, certain nonsubstantive, technical editorial changes are made to a number of the rules. Some, but not all, of these changes are explained in Technical Change notes.

The Rules of Appellate Procedure. The reorganization of the Rules of Appellate Procedure in 1998 was completed subsequent to the publication of the July 29, 1997 Connecticut Law Journal and was published in this volume for the first time in 1998. The goal in reorganizing the Rules of Appellate Procedure was to present them in the order in which an appellant might approach the appeal process, i.e., rules on whether to appeal, how to file, what to do next, when argument will take place, opinions and reargument. Rules on various special proceedings were organized into separate chapters. No substantive changes were made in the course of reorganization, but there were editorial changes.

Juvenile matters. Effective January 1, 2003, the rules pertaining to procedure in juvenile matters were amended and reorganized. The amendments initially were published in the Connecticut Law Journal of July 23, 2002. The July 23, 2002 Connecticut Law Journal gave notice that the rules on juvenile matters, which, since 1998, had been found in Chapters 26 through 35, had been moved to Chapters 26a through 35a. In the Practice Book itself, however, the original numbers of the juvenile rules were retained whenever possible.

Appendices and notices. In 2002, an Appendix was added following the Index. The Appendix contains certain forms that previously had been in Volume 2 of the 1978-1997 Practice Book. The Appendix of Superior Court Standing Orders, which was added in 2010, was removed in 2012. A notice referring the reader to the Judicial Branch website for access to the Superior Court Standing Orders was substituted in its place. The Index of Official Judicial Branch Forms Used in Civil, Family and Juvenile Matters, which was added in 2010, was removed in 2018. A notice referring the reader to the Judicial Branch website for access to official Judicial Branch forms was substituted in its place.

TABLE OF CONTENTS

Attorney's Oath 1
Lawyers' Principles of Professionalism 1

Rules of Professional Conduct

Preamble 4
Scope 5
Rules and Commentaries 7

Code of Judicial Conduct

Preamble 69
Scope 69
Terminology 70
Application 71
Canons, Rules and Comments 72

Superior Court Rules and Rules of Appellate Procedure

Chapter and Section Headings of the Rules 86

Superior Court—General Provisions

Chapter 1 Scope of Rules 107
Chapter 2 Attorneys. 117
Chapter 3 Appearances. 170
Chapter 4 Pleadings 177
Chapter 5 Trials 180
Chapter 6 Judgments 183
Chapter 7 Clerks; Files and Records. 185

Superior Court—Procedure in Civil Matters

Chapter 8 Commencement of Action 191
Chapter 9 Parties. 193
Chapter 10 Pleadings 199
Chapter 11 Motions, Requests, Orders of Notice and Short Calendar 212
Chapter 12 Transfer of Actions 221
Chapter 13 Discovery and Depositions 222
Chapter 14 Dockets, Trial Lists, Pretrials and Assignment Lists 243
Chapter 15 Trials in General; Argument by Counsel 250
Chapter 16 Jury Trials 252
Chapter 17 Judgments 258
Chapter 18 Fees and Costs. 270
Chapter 19 References 273
Chapter 20 Hearings in Chambers 276
Chapter 21 Receivers 277
Chapter 22 Unemployment Compensation 281
Chapter 23 Miscellaneous Remedies and Procedures 283
Chapter 24 Small Claims. 293

Superior Court—Procedure in Family Matters

Chapter 25 General Provisions 300

Superior Court—Procedure in Family Support Magistrate Matters

Chapter 25a Family Support Magistrate Matters. 323

Superior Court—Procedure in Juvenile Matters
Chapter 26 General Provisions 332
Chapter 27 Reception and Processing of Delinquency Complaints or Petitions 335
Chapter 28 Delinquency and Family with Service Needs Nonjudicial Supervision [Repealed]. . . 338
Chapter 29 Reception and Processing of Delinquency Petitions and Delinquency Informations 339
Chapter 30 Detention 340
Chapter 30a Delinquency Hearings. 343
Chapter 31 Delinquency and Family with Service Needs Hearing [Repealed] 346
Chapter 31a Delinquency Motions and Applications 347
Chapter 32 Neglected, Uncared for and Dependent Children and Termination of Parental Rights [Repealed] 352
Chapter 32a Rights of Parties, Neglected, Abused and Uncared for Children and Termination of Parental Rights 353
Chapter 33 Hearings concerning Neglected, Uncared for and Dependent Children and Termination of Parental Rights [Repealed] 356
Chapter 33a Petitions for Neglect, Uncared for, Dependency and Termination of Parental Rights: Initiation of Proceedings, Orders of Temporary Custody and Preliminary Hearings 357
Chapter 34 Rights of Parties [Repealed] 362
Chapter 34a Pleadings, Motions and Discovery Neglected, Abused and Uncared for Children and Termination of Parental Rights 363
Chapter 35 General Provisions [Repealed] 368
Chapter 35a Hearings concerning Neglected, Abused and Uncared for Children and Termination of Parental Rights 369

Superior Court—Procedure in Criminal Matters

Chapter 36 Procedure Prior to Appearance 380
Chapter 37 Arraignment 384
Chapter 38 Pretrial Release 388
Chapter 39 Disposition without Trial 396
Chapter 40 Discovery and Depositions 401
Chapter 41 Pretrial Motions. 412
Chapter 42 Trial Procedure 416
Chapter 43 Sentencing, Judgment, and Appeal 428
Chapter 44 General Provisions 437

Rules of Appellate Procedure

Chapter 60 General Provisions Relating to Appellate Rules and Appellate Review 445
Chapter 61 Remedy by Appeal 449
Chapter 62 Chief Judge, Appellate Clerk and Docket: General Administrative Matters 458
Chapter 63 Filing the Appeal; Withdrawals 463
Chapter 64 Procedure concerning Memorandum of Decision. 470
Chapter 65 Transfer of Matters 471
Chapter 66 Motions and Other Procedures. 473
Chapter 67 Briefs 478
Chapter 68 Case File and Clerk Appendix 489
Chapter 69 Assignment of Cases for Argument 492
Chapter 70 Arguments and Media Coverage of Court Proceedings 493
Chapter 71 Appellate Judgments and Opinions 496
Chapter 72 Writs of Error. 498
Chapter 73 Reservations. 501
Chapter 74 Decisions of Judicial Review Council 503
Chapter 75 Appeals from Council on Probate Judicial Conduct 505
Chapter 76 Appeals in Workers' Compensation Cases. 506

Chapter 77 Procedures concerning Court Closure and Sealing Orders or Orders Limiting the Disclosure of Files, Affidavits, Documents or Other Material. 508
Chapter 78 Review of Grand Jury Record or Finding Order 511
Chapter 78a Review of Orders concerning Release on Bail 512
Chapter 78b Review of Orders Denying Application for waiver of Fees to Commence a Civil Action or a Writ of Habeas Corpus 513
Chapter 79 Appeals in Juvenile Matters [Repealed] 514
Chapter 79a Appeals in Child Protection Matters 515
Chapter 80 Appeals in Habeas Corpus Proceedings Following Conviction 521
Chapter 81 Appeals to Appellate Court by Certification for Review in Accordance with General Statutes Chapters 124 and 440. 522
Chapter 82 Certified Questions to or from Courts of Other Jurisdictions 525
Chapter 83 Certification Pursuant to General Statutes § 52-265a in Cases of Substantial Public Interest. 527
Chapter 84 Appeals to Supreme Court by Certification for Review. 529
Chapter 84a Matters within Supreme Court's Original Jurisdiction in which Facts May Be Found 534
Chapter 85 Sanctions 535
Chapter 86 Rule Changes; Effective Date; Applicability 536

Tables and Index

Reference Table 1978-1997 to 1998 537
Reference Table 1998 to 1978-1997 550
Table of Statutes Noted 561
Index 565
Appendix: Forms 601
Official Judicial Branch Forms 689
Superior Court Standing Orders 690

THE ATTORNEY'S OATH

You solemnly swear or solemnly and sincerely affirm, as the case may be, that you will do nothing dishonest, and will not knowingly allow anything dishonest to be done in court, and that you will inform the court of any dishonesty of which you have knowledge; that you will not knowingly maintain or assist in maintaining any cause of action that is false or unlawful; that you will not obstruct any cause of action for personal gain or malice; but that you will exercise the office of attorney, in any court in which you may practice, according to the best of your learning and judgment, faithfully, to both your client and the court; so help you God or upon penalty of perjury. (General Statutes § 1-25 and annotations.)

(Amended pursuant to Public Act 02-71 to take effect Oct. 1, 2002.)

LAWYERS' PRINCIPLES OF PROFESSIONALISM

The following Lawyers' Principles of Professionalism emphasize the obligation of lawyers to model respect and civility in their interactions with each other and with the public.[1]

Such Principles have been recognized by various other jurisdictions, including the Federal District of Connecticut. It is fitting that the Principles appear in the beginning of the Connecticut Practice Book as a reminder that courtesy, respect, and cooperation in the legal profession are the foundation for serving the interests of justice in a fair, timely, efficient, and open manner. We cannot work effectively to serve our clients and the public if we do not treat opposing counsel, colleagues, and others with civility and respect. Professional courtesy should be uniformly extended to all individuals that we interact with, whether self-represented parties, seasoned professionals, or the newest members of the bar.

The Principles set forth aspirational conduct and serve as guidelines for civility and decorum. The Principles are not intended to supersede, supplement or in any way amend the Rules of Professional Conduct, Code of Judicial Conduct, or any other rule or requirement applicable to professional conduct. Likewise, the Principles are not intended to be the basis for the imposition of any civil, criminal, or professional liability, professional discipline or sanctions.

A lawyer must be dedicated to making our system of justice work fairly and efficiently for all. As an officer of the Court, a lawyer must recognize the obligation they have to advance the rule of law and preserve and foster the integrity of the legal system. To this end, a lawyer must be committed not only to observe the Connecticut Rules of Professional Conduct, but also to conduct themself in accordance with the following Principles of Professionalism when dealing with their clients, opposing parties, fellow counsel, self-represented parties, the Courts, and the general public.

Civility

Civility and courtesy are the hallmarks of professionalism. As such:

A lawyer will be courteous, polite, respectful, and civil, both in oral and in written communications;

A lawyer will refrain from using litigation or any other legal procedure to harass an opposing party;

A lawyer will not impute improper motives to their adversary unless clearly justified by the facts and essential to resolution of the issue;

A lawyer will treat the representation of a client as the client's transaction or dispute and not as a dispute with their adversary;

A lawyer will respond to all communications timely and respectfully and allow their adversary a reasonable time to respond;

A lawyer will avoid making groundless objections in the discovery process and work cooperatively to resolve those that are asserted with merit;

A lawyer will agree to reasonable requests for extensions of time and for waiver of procedural

[1]On October 19, 2020, the Connecticut Bar Association (CBA) House of Delegates adopted Lawyers' Principles of Professionalism. They have been adapted here, with the permission of the CBA, to form the basis of these Principles.

formalities when the legitimate interests of their client will not be adversely affected;

A lawyer will try to consult with their adversary before scheduling depositions, meetings, or hearings, and will cooperate with their adversary when schedule changes are requested;

When scheduled meetings, hearings, or depositions have to be cancelled, a lawyer will notify their adversary and, if appropriate, the Court (or other tribunal) as early as possible and enlist their involvement in rescheduling; and

A lawyer will not serve motions and pleadings at such time or in such manner as will unfairly limit the other party's opportunity to respond.

Honesty

Honesty and truthfulness are critical to the integrity of the legal profession—they are core values that must be observed at all times, and they go hand in hand with a lawyer's fiduciary duty. As such:

A lawyer will not knowingly make untrue statements of fact or of law to their client, adversary or the Court;

A lawyer will honor their word;

A lawyer will not maintain or assist in maintaining any cause of action or advancing any position that is false or unlawful;

A lawyer will withdraw voluntarily claims, defenses, or arguments when it becomes apparent that they do not have merit or are superfluous; and

A lawyer will not file frivolous motions or advance frivolous positions;

When engaged in a transaction, a lawyer will make sure all involved are aware of changes they make to documents and not conceal changes.

Competency

Having the necessary ability, knowledge, and skill to effectively advise and advocate for a client's interests is critical to the lawyer's function in their community. As such:

A lawyer will keep themself current in the areas in which the lawyer practices and will associate with, or refer their client to, counsel knowledgeable in another field of practice when necessary;

A lawyer will maintain proficiency in those technological advances that are necessary for the lawyer to competently represent their clients; and

A lawyer will seek mentoring and guidance throughout their career in order to ensure that the lawyer acts with diligence and competency.

Responsibility

A lawyer must recognize that their client's interests and the administration of justice in general are best served when they work responsibly, effectively, and cooperatively with those with whom they interact. As such:

Before dates for hearings or trials are set, or if that is not feasible, immediately after such dates have been set, a lawyer will attempt to verify the availability of key participants and witnesses so that they can promptly notify the Court (or other tribunal) and their adversary of any likely problem;

A lawyer will make every effort to agree with their adversary, as early as possible, on a voluntary exchange of information and on a plan for discovery;

A lawyer will attempt to resolve, by agreement, their objections to matters contained in their opponent's pleadings and discovery requests;

A lawyer will be punctual in attending Court hearings, conferences, meetings, and depositions;

A lawyer will refrain from excessive and abusive discovery, and will comply with all reasonable discovery requests;

In civil matters, a lawyer will stipulate to facts as to which there is no genuine dispute;

A lawyer will refrain from causing unreasonable delays;

Where consistent with their client's interests, a lawyer will communicate with their adversary in an effort to avoid needless controversial litigation and to resolve litigation that has actually commenced; and

While a lawyer must consider their client's decision concerning the objectives of the representation, they nevertheless will counsel their client that a willingness to initiate or engage in settlement discussions is consistent with zealous and effective representation.

Mentoring

A lawyer owes a duty to the legal profession to counsel less experienced lawyers on the practice of the law and these Principles, and to seek mentoring for themselves. As such:

A lawyer will exemplify through their behavior and teach through their words the importance of collegiality and ethical and civil behavior;

A lawyer will emphasize the importance of providing clients with a high standard of representation through competency and the exercise of sound judgment;

A lawyer will stress the role of our profession as a public service, to build and foster the rule of law; and

A lawyer will welcome requests for guidance and advice.

Honor

A lawyer recognizes the honor of the legal profession and will always act in a manner consistent with the respect, courtesy, and weight that it deserves. As such:

A lawyer will be guided by what is best for their client and the interests of justice, not what advances their own financial interests;

A lawyer will be a vigorous and zealous advocate on behalf of their client but will recognize that, as an officer of the Court, excessive zeal may be detrimental to the interests of a properly functioning system of justice;

A lawyer will remember that, in addition to commitment to their client's cause, their responsibilities as a lawyer include a devotion to the public good;

A lawyer will, as a member of a self-regulating profession, report violations of the Rules of Professional Conduct as required by those rules;

A lawyer will protect the image of the legal profession in their daily activities and in the ways they communicate with the public;

A lawyer will be mindful that the law is a learned profession and that among its desirable goals are devotion to public service, improvement of administration of justice, and the contribution of uncompensated time and civic influence on behalf of those persons who cannot afford adequate legal assistance; and

A lawyer will support and advocate for fair and equal treatment under the law for all persons, regardless of race, color, ancestry, sex, pregnancy, religion, national origin, ethnicity, disability, status as a veteran or status as a victim of domestic violence, age, gender identity, gender expression or marital status, sexual orientation, or creed and will always conduct themself in such a way as to promote equality and justice for all.

Nothing in these Principles shall supersede, supplement, or in any way amend the Rules of Professional Conduct, alter existing standards of conduct against which a lawyer's conduct might be judged, or become a basis for the imposition of any civil, criminal or professional liability.

(Adopted June 12, 2025, to take effect Jan. 1, 2026.)

COMMENTARY—2026: These principles of professionalism emphasize the obligation of lawyers to model respect and civility in their interactions with each other and with the public. They set forth aspirational conduct and serve as guidelines for civility and decorum and are not intended to supersede, supplement or in any way amend the Rules of Professional Conduct, Code of Judicial Conduct, or any other rule or requirement applicable to professional conduct. Likewise, these principles are not intended to be the basis for the imposition of any civil, criminal, or professional liability, professional discipline or sanctions. It is intended that these principles will be placed in the Practice Book immediately after The Attorney's Oath and immediately before the Rules of Professional Conduct.

RULES OF PROFESSIONAL CONDUCT

Preamble

Scope

Rules

Commentaries

Preamble: A Lawyer's Responsibilities

A lawyer, as a member of the legal profession, is a representative of clients, an officer of the legal system and a public citizen having special responsibility for the quality of justice.

As a representative of clients, a lawyer performs various functions. As advisor, a lawyer provides a client with an informed understanding of the client's legal rights and obligations and explains their practical implications. As advocate, a lawyer zealously asserts the client's position under the rules of the adversary system. As negotiator, a lawyer seeks a result advantageous to the client but consistent with requirements of honest dealing with others. As evaluator, a lawyer examines a client's legal affairs and reports about them to the client or to others on the client's behalf.

In addition to these representational functions, a lawyer may serve as a third-party neutral, a nonrepresentational role helping the parties to resolve a dispute or other matter. Some of these Rules apply directly to lawyers who are or have served as third-party neutrals. See, e.g., Rules 1.12 and 2.4. In addition, there are Rules that apply to lawyers who are not active in the practice of law or to practicing lawyers even when they are acting in a nonprofessional capacity. For example, a lawyer who commits fraud in the conduct of a business is subject to discipline for engaging in conduct involving dishonesty, fraud, deceit or misrepresentation. See Rule 8.4.

In all professional functions a lawyer should be competent, prompt and diligent. A lawyer should maintain communication with a client concerning the representation. A lawyer should keep in confidence information relating to representation of a client except so far as disclosure is required or permitted by the Rules of Professional Conduct or other law.

A lawyer's conduct should conform to the requirements of the law, both in professional service to clients and in the lawyer's business and personal affairs. A lawyer should use the law's procedures only for legitimate purposes and not to harass or intimidate others. A lawyer should demonstrate respect for the legal system and for those who serve it, including judges, other lawyers and public officials. While it is a lawyer's duty, when necessary, to challenge the rectitude of official action, it is also a lawyer's duty to uphold legal process.

As a public citizen, a lawyer should seek improvement of the law, access to the legal system, the administration of justice and the quality of service rendered by the legal profession. As a member of a learned profession, a lawyer should cultivate knowledge of the law beyond its use for clients, employ that knowledge in reform of the law and work to strengthen legal education. All lawyers should work to ensure equal access to our system of justice for all those who, because of economic or social barriers, cannot afford or secure adequate legal counsel. A lawyer should aid the legal profession in pursuing these objectives and should help the bar regulate itself in the public interest.

Many of a lawyer's professional responsibilities are prescribed in the Rules of Professional Conduct, as well as substantive and procedural law. However, a lawyer is also guided by personal conscience and the approbation of professional peers. A lawyer should strive to attain the highest level of skill, to improve the law and the legal profession and to exemplify the legal profession's ideals of public service.

A lawyer's responsibilities as a representative of clients, an officer of the legal system and a public citizen are usually harmonious. Thus, when an opposing party is well represented, a lawyer can be a zealous advocate on behalf of a client and at the same time assume that justice is being done. So also, a lawyer can be sure that preserving client confidences ordinarily serves the public interest because people are more likely to seek legal advice, and thereby heed their legal obligations, when they know their communications will be private.

In the nature of law practice, however, conflicting responsibilities are encountered. Virtually all difficult ethical problems arise from conflict between a lawyer's responsibilities to clients, to the legal system and to the lawyer's own interest in remaining an ethical person while earning a satisfactory living. The Rules of Professional Conduct often prescribe terms for resolving such conflicts. Within

the framework of these Rules, however, many difficult issues of professional discretion can arise. Such issues must be resolved through the exercise of sensitive professional and moral judgment guided by the basic principles underlying the Rules. These principles include the lawyer's obligation zealously to protect and pursue a client's legitimate interests, within the bounds of the law, while maintaining a professional, courteous and civil attitude toward all persons involved in the legal system.

The legal profession is largely self-governing. Although other professions also have been granted powers of self-government, the legal profession is unique in this respect because of the close relationship between the profession and the processes of government and law enforcement. This connection is manifested in the fact that ultimate authority over the legal profession is vested largely in the courts.

To the extent that lawyers meet the obligations of their professional calling, the occasion for government regulation is obviated. Self-regulation also helps maintain the legal profession's independence from government domination. An independent legal profession is an important force in preserving government under law, for abuse of legal authority is more readily challenged by a profession whose members are not dependent on government for the right to practice.

The legal profession's relative autonomy carries with it special responsibilities of self-government. The profession has a responsibility to assure that its regulations are conceived in the public interest and not in furtherance of parochial or self-interested concerns of the bar. Every lawyer is responsible for observance of the Rules of Professional Conduct. A lawyer should also aid in securing their observance by other lawyers. Neglect of these responsibilities compromises the independence of the profession and the public interest which it serves.

Lawyers play a vital role in the preservation of society. The fulfillment of this role requires an understanding by lawyers of their relationship to our legal system. The Rules of Professional Conduct, when properly applied, serve to define that relationship.

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

Scope

The Rules of Professional Conduct are rules of reason. They should be interpreted with reference to the purposes of legal representation and of the law itself. Some of the Rules are imperatives, cast in the terms "shall" or "shall not." These define proper conduct for purposes of professional discipline. Others, generally cast in the term "may," are permissive and define areas under the Rules in which the lawyer has discretion to exercise professional judgment. No disciplinary action should be taken when the lawyer chooses not to act or acts within the bounds of such discretion. Other Rules define the nature of relationships between the lawyer and others. The Rules are thus partly obligatory and disciplinary and partly constitutive and descriptive in that they define a lawyer's professional role.

The Rules presuppose a larger legal context shaping the lawyer's role. That context includes court rules and statutes relating to matters of licensure, laws defining specific obligations of lawyers and substantive and procedural law in general. Compliance with the Rules, as with all law in an open society, depends primarily upon understanding and voluntary compliance, secondarily upon reinforcement by peer and public opinion and finally, when necessary, upon enforcement through disciplinary proceedings. The Rules do not, however, exhaust the moral and ethical considerations that should inform a lawyer, for no worthwhile human activity can be completely defined by legal rules. The Rules simply provide a framework for the ethical practice of law.

Furthermore, for purposes of determining the lawyer's authority and responsibility, principles of substantive law external to these Rules determine whether a client-lawyer relationship exists. Most of the duties flowing from the client-lawyer relationship attach only after the client has requested the lawyer to render legal services and the lawyer has agreed to do so. But there are some duties, such as that of confidentiality under Rule 1.6, that attach when the lawyer agrees to consider whether a client-lawyer relationship shall be established. See Rule 1.18. Whether a client-lawyer relationship exists for any specific purpose can depend on the circumstances and may be a question of fact.

Under various legal provisions, including constitutional, statutory and common law, the responsibilities of government lawyers may include authority concerning legal matters that ordinarily reposes in the client in private client-lawyer relationships. For example, a lawyer for a government agency may have authority on behalf of the government to decide upon settlement or whether to appeal from an adverse judgment. Such authority in various respects is generally vested in the attorney general and the state's attorney in state government, and their federal counterparts, and the same may be true of other government law officers. Also, lawyers under the supervision of these officers may be authorized to represent several government agencies in intragovernmental legal

controversies in circumstances where a private lawyer could not represent multiple private clients. They also may have authority to represent the "public interest" in circumstances where a private lawyer would not be authorized to do so. These Rules do not abrogate any such authority.

Failure to comply with an obligation or prohibition imposed by a Rule is a basis for invoking the disciplinary process. The Rules presuppose that disciplinary assessment of a lawyer's conduct will be made on the basis of the facts and circumstances as they existed at the time of the conduct in question and in recognition of the fact that a lawyer often has to act upon uncertain or incomplete evidence of the situation. Moreover, the Rules presuppose that whether or not discipline should be imposed for a violation, and the severity of a sanction, depend on all the circumstances, such as the wilfulness and seriousness of the violation, extenuating factors and whether there have been previous violations.

Violation of a Rule should not itself give rise to a cause of action against a lawyer nor should it create any presumption that a legal duty has been breached. In addition, violation of a Rule does not necessarily warrant any other nondisciplinary remedy, such as disqualification of a lawyer in pending litigation. The Rules are designed to provide guidance to lawyers and to provide a structure for regulating conduct through disciplinary agencies. They are not designed to be a basis for civil liability. Furthermore, the purpose of the Rules can be subverted when they are invoked by opposing parties as procedural weapons. The fact that a Rule is a just basis for a lawyer's self-assessment, or for sanctioning a lawyer under the administration of a disciplinary authority, does not imply that an antagonist in a collateral proceeding or transaction has standing to seek enforcement of the Rule. Nevertheless, since the Rules do establish standards of conduct by lawyers, a lawyer's violation of a Rule may be evidence of breach of the applicable standard of conduct.

Moreover, these Rules are not intended to govern or affect judicial application of either the attorney-client or work product privilege. Those privileges were developed to promote compliance with law and fairness in litigation. In reliance on the attorney-client privilege, clients are entitled to expect that communications within the scope of the privilege will be protected against compelled disclosure. The attorney-client privilege is that of the client and not of the lawyer. The fact that in exceptional situations the lawyer under the Rules has a limited discretion to disclose a client confidence does not vitiate the proposition that, as a general matter, the client has a reasonable expectation that information relating to the client will not be voluntarily disclosed and that disclosure of such information may be judicially compelled only in accordance with recognized exceptions to the attorney-client and work product privileges.

The lawyer's exercise of discretion not to disclose information under Rule 1.6 should not be subject to reexamination. Permitting such reexamination would be incompatible with the general policy of promoting compliance with law through assurances that communications will be protected against disclosure.

The Commentary accompanying each Rule explains and illustrates the meaning and purpose of the Rule. The Preamble and this note on Scope provide general orientation. The Commentaries are intended as guides to interpretation, but the text of each Rule is authoritative. Commentaries do not add obligations to the Rules but provide guidance for practicing in compliance with the Rules. The Commentaries are sometimes used to alert lawyers to their responsibilities under other law, such as court rules and statutes relating to matters of licensure, laws defining specific obligations of lawyers and substantive and procedural law in general.

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

RULES OF PROFESSIONAL CONDUCT

Rule

1.0. Terminology

CLIENT-LAWYER RELATIONSHIPS

1.1. Competence
1.2. Scope of Representation and Allocation of Authority between Client and Lawyer
1.3. Diligence
1.4. Communication
1.5. Fees
1.6. Confidentiality of Information
1.7. Conflict of Interest: Current Clients
1.8. Conflict of Interest: Prohibited Transactions
1.9. Duties to Former Clients
1.10. Imputation of Conflicts of Interest: General Rule
1.11. Special Conflicts of Interest for Former and Current Government Officers and Employees
1.12. Former Judge, Arbitrator, Mediator or Other Third-Party Neutral
1.13. Organization as Client
1.14. Client with Impaired Capacity
1.15. Safekeeping Property
1.16. Declining or Terminating Representation
1.17. Sale of Law Practice
1.18. Duties to Prospective Client

COUNSELOR

2.1. Advisor
2.2. Intermediary [Repealed]
2.3. Evaluation for Use by Third Persons
2.4. Lawyer Serving as Third-Party Neutral

ADVOCATE

3.1. Meritorious Claims and Contentions
3.2. Expediting Litigation
3.3. Candor toward the Tribunal
3.4. Fairness to Opposing Party and Counsel
3.5. Impartiality and Decorum
3.6. Trial Publicity
3.7. Lawyer as Witness
3.8. Special Responsibilities of a Prosecutor

Rule

3.9. Advocate in Nonadjudicative Proceedings

TRANSACTIONS WITH PERSONS OTHER THAN CLIENTS

4.1. Truthfulness in Statements to Others
4.2. Communication with Person Represented by Counsel
4.3. Dealing with Unrepresented Person
4.4. Respect for Rights of Third Persons

LAW FIRMS AND ASSOCIATIONS

5.1. Responsibilities of Partners, Managers, and Supervisory Lawyers
5.2. Responsibilities of a Subordinate Lawyer
5.3. Responsibilities regarding Nonlawyer Assistance
5.4. Professional Independence of a Lawyer
5.5. Unauthorized Practice of Law
5.6. Restrictions on Right To Practice

PUBLIC SERVICE

6.1. Pro Bono Publico Service
6.2. Accepting Appointments
6.3. Membership in Legal Services Organization
6.4. Law Reform Activities Affecting Client Interests
6.5. Nonprofit and Court-Annexed Limited Legal Services Programs

INFORMATION ABOUT LEGAL SERVICES

7.1. Communications concerning a Lawyer's Services
7.2. Communications concerning a Lawyer's Services: Specific Rules
7.3. Solicitation of Clients
7.4. Communication of Fields of Practice [Repealed]
7.4A. Certification as Specialist
7.4B. Legal Specialization Screening Committee
7.4C. Application by Board or Entity To Certify Lawyers as Specialists
7.5. Firm Names and Letterheads [Repealed]

MAINTAINING THE INTEGRITY OF THE PROFESSION

8.1. Bar Admission and Disciplinary Matters
8.2. Judicial and Legal Officials
8.3. Reporting Professional Misconduct
8.4. Misconduct
8.5. Disciplinary Authority; Choice of Law

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Rule 1.0. Terminology

(a) "Belief" or "believes" denotes that the person involved actually supposed the fact in question to be true. A person's belief may be inferred from circumstances.

(b) "Client" or "person" as used in these Rules includes an authorized representative unless otherwise stated.

(c) "Confirmed in writing," when used in reference to the informed consent of a person, denotes informed consent that is given in writing by the person or a writing that a lawyer promptly transmits to the person confirming an oral informed consent. See sub-section (f) for the definition of "informed consent." If it is not feasible to obtain or transmit the writing at the time the person gives informed consent, then the lawyer must obtain or transmit it within a reasonable time thereafter.

(d) "Firm" or "law firm" denotes a lawyer or lawyers in a law partnership, professional corporation, sole proprietorship or other association authorized to practice law; or lawyers employed in a legal services organization or the legal department of a corporation or other organization.

(e) "Fraud" or "fraudulent" denotes conduct that is fraudulent under the substantive or procedural law of the applicable jurisdiction and has a purpose to deceive.

(f) "Informed consent" denotes the agreement by a person to a proposed course of conduct after the lawyer has communicated adequate informtion and explanation about the material risks of and reasonably available alternatives to the proposed course of conduct.

(g) "Knowingly," "known," or "knows" denotes actual knowledge of the fact in question. A person's knowledge may be inferred from circumstances.

(h) "Partner" denotes a member of a partnership, a shareholder in a law firm organized as a professional corporation, or a member of an association authorized to practice law.

(i) "Reasonable" or "reasonably," when used in relation to conduct by a lawyer, denotes the conduct of a reasonably prudent and competent lawyer.

(j) "Reasonable belief" or "reasonably believes," when used in reference to a lawyer, denotes that the lawyer believes the matter in question and that the circumstances are such that the belief is reasonable.

(k) "Reasonably should know," when used in reference to a lawyer, denotes that a lawyer of reasonable prudence and competence would ascertain the matter in question.

(*l*) "Screened" denotes the isolation of a lawyer from any participation in a matter through the timely imposition of procedures within a firm that are reasonably adequate under the circumstances to protect information that the isolated lawyer is obligated to protect under these Rules or other law.

(m) "Substantial," when used in reference to degree or extent denotes a material matter of clear and weighty importance.

(n) "Tribunal" denotes a court, an arbitrator in a binding arbitration proceeding or a legislative body, administrative agency or other body acting in an adjudicative capacity. A legislative body, administrative agency or other body acts in an adjudicative capacity when a neutral official, after the presentation of evidence or legal argument by a party or parties, will render a binding legal judgment directly affecting a party's interests in a particular matter.

(o) "Writing" or "written" denotes a tangible or electronic record of a communication or representation, including handwriting, typewriting, printing, photostatting, photography, audio or video-recording and electronic communications. A "signed" writing includes an electronic sound, symbol or process attached to or logically associated with a writing and executed or adopted by a person with the intent to sign the writing.

(Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2013, to take effect Jan. 1, 2014.)

COMMENTARY: **Confirmed in Writing.** If it is not feasible to obtain or transmit a written confirmation at the time the client gives informed consent, then the lawyer must obtain or transmit it within a reasonable time thereafter. If a lawyer has obtained a client's informed consent, the lawyer may act in reliance on that consent so long as it is confirmed in writing within a reasonable time thereafter.

Firm. Whether two or more lawyers constitute a firm within subsection (d) can depend on the specific facts. For example, two practitioners who share office space and occasionally consult or assist each other ordinarily would not be regarded as constituting a firm. However, if they present themselves to the public in a way that suggests that they are a firm or conduct themselves as a firm, they should be regarded as a firm for purposes of the Rules. The terms of any formal agreement between associated lawyers are relevant in determining whether they are a firm, as is the fact that they have mutual access to information concerning the clients they serve. Furthermore, it is relevant in doubtful cases to consider the underlying purpose of the Rule that is involved. A group of lawyers could be regarded as a firm for purposes of the Rule that the same lawyer should not represent opposing parties in litigation, while it might not be so regarded for purposes of the Rule that information acquired by one lawyer is attributed to another.

With respect to the law department of an organization, including the government, there is ordinarily no question that the members of the department constitute a firm within the meaning of the Rules of Professional Conduct. There can be uncertainty, however, as to the identity of the client. For example, it may not be clear whether the law department of a corporation represents a subsidiary or an affiliated corporation, as well as the corporation by which the members of the department are directly employed. A similar question can arise concerning an unincorporated association and its local affiliates.

Similar questions can also arise with respect to lawyers in legal aid and legal services organizations. Depending upon the structure of the organization, the entire organization or different components of it may constitute a firm or firms for purposes of these Rules.

Fraud. When used in these Rules, the terms "fraud" or "fraudulent" refer to conduct that is characterized as such under the substantive or procedural law of the applicable jurisdiction and has a purpose to deceive. This does not include merely negligent misrepresentation or negligent failure to apprise another of relevant information. For purposes of these Rules, it is not necessary that anyone has suffered damages or relied on the misrepresentation or failure to inform.

Informed Consent. Many of the Rules of Professional Conduct require the lawyer to obtain the informed consent of a client or other person (e.g., a former client or, under certain circumstances, a prospective client) before accepting or continuing representation or pursuing a course of conduct. See, e.g., Rules 1.2 (c), 1.6 (a) and 1.7 (b). The communication necessary to obtain such consent will vary according to the Rule involved and the circumstances giving rise to the need to obtain informed consent. The lawyer must make reasonable efforts to ensure that the client or other person possesses information reasonably adequate to make an informed decision. Ordinarily, this will require communication that includes a disclosure of the facts and circumstances giving rise to the situation, any explanation reasonably necessary to inform the

client or other person of the material advantages and disadvantages of the proposed course of conduct and a discussion of the client's or other person's options and alternatives. In some circumstances it may be appropriate for a lawyer to advise a client or other person to seek the advice of other counsel. A lawyer need not inform a client or other person of facts or implications already known to the client or other person; nevertheless, a lawyer who does not personally inform the client or other person assumes the risk that the client or other person is inadequately informed and the consent is invalid. In determining whether the information and explanation provided are reasonably adequate, relevant factors include whether the client or other person is experienced in legal matters generally and in making decisions of the type involved, and whether the client or other person is independently represented by other counsel in giving the consent. Normally, such persons need less information and explanation than others, and generally a client or other person who is independently represented by other counsel in giving the consent should be assumed to have given informed consent.

Obtaining informed consent will usually require an affirmative response by the client or other person. In general, a lawyer may not assume consent from a client's or other person's silence. Consent may be inferred, however, from the conduct of a client or other person who has reasonably adequate information about the matter. A number of Rules require that a person's consent be confirmed in writing. See Rules 1.7 (b) and 1.9 (a). For a definition of "writing" and "confirmed in writing," see subsections (o) and (c). Other Rules require that a client's consent be obtained in a writing signed by the client. See, e.g., Rules 1.8 (a) and (g). For a definition of "signed," see subsection (o).

Screened. The definition of "screened" applies to situations where screening of a personally disqualified lawyer is permitted to remove imputation of a conflict of interest under Rules 1.10, 1.11, 1.12 or 1.18.

The purpose of screening is to assure the affected parties that confidential information known by the personally disqualified lawyer remains protected. The personally disqualified lawyer shall acknowledge in writing to the client the obligation not to communicate with any of the other lawyers in the firm with respect to the matter. Similarly, other lawyers in the firm who are working on the matter should be informed that the screening is in place and that they may not communicate with the personally disqualified lawyer with respect to the matter. Additional screening measures that are appropriate for the particular matter will depend on the circumstances. To implement, reinforce and remind all affected lawyers of the presence of the screening, it may be appropriate for the firm to undertake such procedures as a written undertaking by the screened lawyer to avoid any communication with other firm personnel and any contact with any firm files or other information, including information in electronic form, relating to the matter, written notice and instructions to all other firm personnel forbidding any communication with the screened lawyer relating to the matter, denial of access by the screened lawyer to firm files or other information, including information in electronic form, relating to the matter and periodic reminders of the screen to the screened lawyer and all other firm personnel.

In order to be effective, screening measures must be implemented as soon as practical after a lawyer or law firm knows or reasonably should know that there is a need for screening.

CLIENT-LAWYER RELATIONSHIPS

Rule 1.1. Competence

A lawyer shall provide competent representation to a client. Competent representation requires the legal knowledge, skill, thoroughness and preparation reasonably necessary for the representation.

(P.B. 1978-1997, Rule 1.1.)

COMMENTARY: **Legal Knowledge and Skill.** In determining whether a lawyer employs the requisite knowledge and skill in a particular matter, relevant factors include the relative complexity and specialized nature of the matter, the lawyer's general experience, the lawyer's training and experience in the field in question, the preparation and study the lawyer is able to give the matter and whether it is feasible to refer the matter to, or associate or consult with, a lawyer of established competence in the field in question. In many instances, the required proficiency is that of a general practitioner. Expertise in a particular field of law may be required in some circumstances.

A lawyer need not necessarily have special training or prior experience to handle legal problems of a type with which the lawyer is unfamiliar. A newly admitted lawyer can be as competent as a practitioner with long experience. Some important legal skills, such as the analysis of precedent, the evaluation of evidence and legal drafting, are required in all legal problems. Perhaps the most fundamental legal skill consists of determining what kind of legal problems a situation may involve, a skill that necessarily transcends any particular specialized knowledge. A lawyer can provide adequate representation in a wholly novel field through necessary study. Competent representation can also be provided through the association of a lawyer of established competence in the field in question.

In an emergency, a lawyer may give advice or assistance in a matter in which the lawyer does not have the skill ordinarily required where referral to or consultation or association with another lawyer would be impractical. Even in an emergency, however, assistance should be limited to that reasonably necessary in the circumstances, for ill-considered action under emergency conditions can jeopardize the client's interest. A lawyer may accept representation where the requisite level of competence can be achieved by reasonable preparation. This applies as well to a lawyer who is appointed as counsel for an unrepresented person. See also Rule 6.2.

Thoroughness and Preparation. Competent handling of a particular matter includes inquiry into and analysis of the factual and legal elements of the problem, and use of methods and procedures meeting the standards of competent practitioners. It also includes adequate preparation. The required attention and preparation are determined in part by what is at stake; major litigation and complex transactions ordinarily require more extensive treatment than matters of lesser complexity and consequence. An agreement between the lawyer and the client regarding the scope of the representation may limit the matters for which the lawyer is responsible. See Rule 1.2 (c).

Retaining or Contracting with Other Lawyers. Before a lawyer retains or contracts with other lawyers outside the lawyer's own firm to provide or assist in the provision of legal services to a client, the lawyer should ordinarily obtain informed consent from the client and must reasonably believe that the other lawyers' services will contribute to the competent and ethical representation of the client. See also Rules 1.2 (allocation of authority), 1.4 (communication with client), 1.5 (b) (scope of representation, basis or rate of fee and expenses), 1.5 (e) (fee sharing), 1.6 (confidentiality), and 5.5 (a) (unauthorized practice of law). Client consent may not be necessary when a nonfirm lawyer is hired to perform a discrete and limited task and the task does not require the disclosure of information protected by Rule 1.6. The reasonableness of

the decision to retain or contract with other lawyers outside the lawyer's own firm will depend upon the circumstances, including the education, experience and reputation of the nonfirm lawyers; the nature of the services assigned to the nonfirm lawyers; and the legal protections, professional conduct rules, and ethical environments of the jurisdictions in which the services will be performed, particularly relating to confidential information.

When lawyers from more than one law firm are providing legal services to the client on a particular matter, the lawyers should consult with each other and the client about the scope of their respective representations and the allocation of responsibility among them. See Rule 1.2. When making allocations of responsibility in a matter pending before a tribunal, lawyers and parties may have additional obligations that are a matter of law beyond the scope of these Rules.

Maintaining Competence. To maintain the requisite knowledge and skill, a lawyer should keep abreast of changes in the law and its practice, including the benefits and risks associated with relevant technology, engage in continuing study and education and comply with all continuing legal education requirements to which the lawyer is subject.

Rule 1.2. Scope of Representation and Allocation of Authority between Client and Lawyer

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) Subject to subsections (c) and (d), a lawyer shall abide by a client's decisions concerning the objectives of representation and, as required by Rule 1.4, shall consult with the client as to the means by which they are to be pursued. A lawyer may take such action on behalf of the client as is impliedly authorized to carry out the representation. A lawyer shall abide by a client's decision whether to settle a matter. In a criminal case, the lawyer shall abide by the client's decision, after consultation with the lawyer, as to a plea to be entered, whether to waive jury trial and whether the client will testify. Subject to revocation by the client and to the terms of the contract, a client's decision to settle a matter shall be implied where the lawyer is retained to represent the client by a third party obligated under the terms of a contract to provide the client with a defense and indemnity for the loss, and the third party elects to settle a matter without contribution by the client.

(b) A lawyer's representation of a client, including representation by appointment, does not constitute an endorsement of the client's political, economic, social or moral views or activities.

(c) A lawyer may limit the scope of the representation if the limitation is reasonable under the circumstances and the client gives informed consent. Such informed consent shall not be required when a client cannot be located despite reasonable efforts where the lawyer is retained to represent a client by a third party that is obligated by contract to provide the client with a defense.

(d) A lawyer shall not counsel a client to engage, or assist a client, in conduct that the lawyer knows is criminal or fraudulent, but a lawyer may (1) discuss the legal consequences of any proposed course of conduct with a client; (2) counsel or assist a client to make a good faith effort to determine the validity, scope, meaning or application of the law; or (3) counsel or assist a client regarding conduct expressly permitted by Connecticut law, provided that the lawyer counsels the client about the legal consequences, under other applicable law, of the client's proposed course of conduct.

(P.B. 1978-1997, Rule 1.2.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 13, 2014, to take effect Jan. 1, 2015.)

COMMENTARY: **Allocation of Authority between Client and Lawyer**. Subsection (a) confers upon the client the ultimate authority to determine the purposes to be served by legal representation, within the limits imposed by law and the lawyer's professional obligations. The decisions specified in subsection (a), such as whether to settle a civil matter, must also be made by the client. See Rule 1.4 (a) (1) for the lawyer's duty to communicate with the client about such decisions. With respect to the means by which the client's objectives are to be pursued, the lawyer shall consult with the client as required by Rule 1.4 (a) (2) and may take such action as is impliedly authorized to carry out the representation.

On occasion, however, a lawyer and a client may disagree about the means to be used to accomplish the client's objectives. Clients normally defer to the special knowledge and skill of their lawyer with respect to the means to be used to accomplish their objectives, particularly with respect to technical, legal and tactical matters. Conversely, lawyers usually defer to the client regarding such questions as the expense to be incurred and concern for third persons who might be adversely affected. Because of the varied nature of the matters about which a lawyer and client might disagree and because the actions in question may implicate the interests of a tribunal or other persons, this Rule does not prescribe how such disagreements are to be resolved. Other law, however, may be applicable and should be consulted by the lawyer. The lawyer should also consult with the client and seek a mutually acceptable resolution of the disagreement. If such efforts are unavailing and the lawyer has a fundamental disagreement with the client, the lawyer may withdraw from the representation. See Rule 1.16 (b) (4). Conversely, the client may resolve the disagreement by discharging the lawyer. See Rule 1.16 (a) (3).

At the outset of a representation, the client may authorize the lawyer to take specific action on the client's behalf without further consultation. Absent a material change in circumstances and subject to Rule 1.4, a lawyer may rely on such an advance authorization. The client may, however, revoke such authority at any time.

In a case in which the client appears to be suffering diminished capacity, the lawyer's duty to abide by the client's decisions is to be guided by reference to Rule 1.14.

Independence from Client's Views or Activities. Legal representation should not be denied to people who are unable to afford legal services or whose cause is controversial or the subject of popular disapproval. By the same token, representing a client does not constitute approval of the client's views or activities.

Agreements Limiting Scope of Representation. The scope of services to be provided by a lawyer may be limited by agreement with the client or by the terms under which the lawyer's services are made available to the client. For example, when a lawyer has been retained by an insurer to represent

an insured, the representation may be limited to matters related to the insurance coverage. A limited representation may be appropriate because the client has limited objectives for the representation. In addition, the terms upon which representation is undertaken may exclude specific means that might otherwise be used to accomplish the client's objectives. Such limitations may exclude actions that the client thinks are too costly or that the lawyer regards as repugnant or imprudent. Nothing in Rule 1.2 shall be construed to authorize limited appearances before any tribunal unless otherwise authorized by law or rule.

Although this Rule affords the lawyer and client substantial latitude to limit the scope of representation, the limitation must be reasonable under the circumstances. If, for example, a client's objective is limited to securing general information about the law the client needs in order to handle a common and typically uncomplicated legal problem, the lawyer and client may agree that the lawyer's services will be limited to a brief telephone consultation. Such a limitation, however, would not be reasonable if the time allotted was not sufficient to yield advice upon which the client could rely. Although an agreement for a limited representation does not exempt a lawyer from the duty to provide competent representation, the limitation is a factor to be considered when determining the legal knowledge, skill, thoroughness and preparation reasonably necessary for the representation. See Rule 1.1.

All agreements concerning a lawyer's representation of a client must accord with the Rules of Professional Conduct and other law. See, e.g., Rules 1.1, 1.8 and 5.6.

Criminal, Fraudulent and Prohibited Transactions. Subsection (d) prohibits a lawyer from knowingly counseling or assisting a client to commit a crime or fraud. This prohibition, however, does not preclude the lawyer from giving an honest opinion about the actual consequences that appear likely to result from a client's conduct. Nor does the fact that a client uses advice in a course of action that is criminal or fraudulent of itself make a lawyer a party to the course of action. There is a critical distinction between presenting an analysis of legal aspects of questionable conduct and recommending the means by which a crime or fraud might be committed.

When the client's course of action has already begun and is continuing, the lawyer's responsibility is especially delicate. The lawyer is required to avoid assisting the client, for example, by drafting or delivering documents that the lawyer knows are fraudulent or by suggesting how the wrongdoing might be concealed. A lawyer may not continue assisting a client in conduct that the lawyer originally believed legally proper but then discovers is criminal or fraudulent. The lawyer must, therefore, withdraw from the representation of the client in the matter. See Rule 1.16 (a). In some cases, withdrawal alone might be insufficient. It may be necessary for the lawyer to give notice of the fact of withdrawal and to disaffirm any opinion, document, affirmation or the like. See Rule 4.1.

Where the client is a fiduciary, the lawyer may be charged with special obligations in dealings with a beneficiary.

Subsection (d) applies whether or not the defrauded party is a party to the transaction. Hence, a lawyer must not participate in a transaction to effectuate criminal or fraudulent avoidance of tax liability. Subsection (d) does not preclude undertaking a criminal defense incident to a general retainer for legal services to a lawful enterprise. Subsection (d) (2) recognizes that determining the validity or interpretation of a statute or regulation may require a course of action involving disobedience of the statute or regulation or of the interpretation placed upon it by governmental authorities. Subsection (d) (3) is intended to permit counsel to provide legal services to clients without being subject to discipline under these Rules notwithstanding that the services concern conduct prohibited under federal or other law but expressly permitted under Connecticut law, e.g., conduct under An Act Concerning the Palliative Use of Marijuana, Public Act 12-55, effective Oct. 1, 2012. Subsection (d) (3) shall not provide a defense to a presentment filed pursuant to Practice Book Section 2-41 against an attorney found guilty of a serious crime in another jurisdiction.

If a lawyer comes to know or reasonably should know that a client expects assistance not permitted by the Rules of Professional Conduct or other law or if the lawyer intends to act contrary to the client's instructions, the lawyer must consult with the client regarding the limitations on the lawyer's conduct. See Rule 1.4 (a) (5).

Rule 1.3. Diligence

A lawyer shall act with reasonable diligence and promptness in representing a client.

(P.B. 1978-1997, Rule 1.3.)

COMMENTARY: A lawyer must pursue a matter on behalf of a client despite opposition, obstruction or personal inconvenience to the lawyer, and take whatever lawful and ethical measures are required to vindicate a client's cause or endeavor. A lawyer must also act with commitment and dedication to the interests of the client and with zeal in advocacy upon the client's behalf. A lawyer is not bound, however, to press for every advantage that might be realized for a client. For example, a lawyer may have authority to exercise professional discretion in determining the means by which a matter should be pursued. See Rule 1.2. The lawyer's duty to act with reasonable diligence does not require the use of offensive tactics or preclude the treating of all persons involved in the legal process with courtesy and respect.

A lawyer's work load must be controlled so that each matter can be handled competently.

Perhaps no professional shortcoming is more widely resented than procrastination. A client's interests often can be adversely affected by the passage of time or the change of conditions; in extreme instances, as when a lawyer overlooks a statute of limitations, the client's legal position may be destroyed. Even when the client's interests are not affected in substance, however, unreasonable delay can cause a client needless anxiety and undermine confidence in the lawyer's trustworthiness. A lawyer's duty to act with reasonable promptness, however, does not preclude the lawyer from agreeing to a reasonable request for a postponement that will not prejudice the lawyer's client.

Unless the relationship is terminated as provided in Rule 1.16, a lawyer should carry through to conclusion all matters undertaken for a client. If a lawyer's employment is limited to a specific matter, the relationship terminates when the matter has been resolved. If a lawyer has served a client over a substantial period in a variety of matters, the client sometimes may assume that the lawyer will continue to serve on a continuing basis unless the lawyer gives notice of withdrawal. Doubt about whether a client-lawyer relationship still exists should be clarified by the lawyer, preferably in writing, so that the client will not mistakenly suppose the lawyer is looking after the client's affairs when the lawyer has ceased to do so. For example, if a lawyer has handled a judicial or administrative proceeding that produced a result adverse to the client and the lawyer and the client have not agreed that the lawyer will handle the matter on appeal, the lawyer must consult with the client about the possibility of appeal before relinquishing responsibility for the matter. See Rule 1.4 (a) (2). Whether the lawyer is obligated to prosecute the appeal for the client

depends on the scope of the representation the lawyer has agreed to provide to the client. See Rule 1.2.

To prevent neglect of client matters in the event of a sole practitioner's death or disability, the duty of diligence may require that each sole practitioner prepare a plan, in conformity with applicable rules, that designates another competent lawyer to review client files, notify each client of the lawyer's death or disability, and determine whether there is a need for immediate protective action. Cf. Rule 28 of the American Bar Association Model Rules for Lawyer Disciplinary Enforcement (providing for court appointment of a lawyer to inventory files and take other protective action in absence of a plan providing for another lawyer to protect the interests of the clients of a deceased lawyer or a lawyer with disabilities).

Rule 1.4. Communication

(a) A lawyer shall:

(1) promptly inform the client of any decision or circumstance with respect to which the client's informed consent, as defined in Rule 1.0 (f), is required by these Rules;

(2) reasonably consult with the client about the means by which the client's objectives are to be accomplished;

(3) keep the client reasonably informed about the status of the matter;

(4) promptly comply with reasonable requests for information; and

(5) consult with the client about any relevant limitation on the lawyer's conduct when the lawyer knows that the client expects assistance not permitted by the Rules of Professional Conduct or other law.

(b) A lawyer shall explain a matter to the extent reasonably necessary to permit the client to make informed decisions regarding the representation.

(P.B. 1978-1997, Rule 1.4.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: Reasonable communication between the lawyer and the client is necessary for the client effectively to participate in the representation.

Communicating with Client. If these Rules or other law require that a particular decision about the representation be made by the client, subsection (a) (1) requires that the lawyer promptly consult with and secure the client's consent prior to taking action. See Rule 1.2 (a).

Subsection (a) (2) requires the lawyer to reasonably consult with the client about the means to be used to accomplish the client's objectives. In some situations—depending on both the importance of the action under consideration and the feasibility of consulting with the client—this duty will require consultation prior to taking action. In other circumstances, such as during a trial when an immediate decision must be made, the exigency of the situation may require the lawyer to act without prior consultation. In such cases the lawyer must nonetheless act reasonably to inform the client of actions the lawyer has taken on the client's behalf. Additionally, subsection (a) (3) requires that the lawyer keep the client reasonably informed about the status of the matter, such as significant developments affecting the timing or the substance of the representation.

A lawyer's regular communication with clients will minimize the occasions on which a client will need to request information concerning the representation. When a client makes a reasonable request for information, however, subsection (a) (4) requires prompt compliance with the request, or if a prompt response is not feasible, that the lawyer, or a member of the lawyer's staff, acknowledge receipt of the request and advise the client when a response may be expected. A lawyer should promptly respond to or acknowledge client communications.

Explaining Matters. The client should have sufficient information to participate intelligently in decisions concerning the objectives of the representation and the means by which they are to be pursued, to the extent the client is willing and able to do so. Adequacy of communication depends in part on the kind of advice or assistance that is involved. For example, when there is time to explain a proposal made in a negotiation, the lawyer should review all important provisions with the client before proceeding to an agreement. In litigation, a lawyer should explain the general strategy and prospects of success and ordinarily should consult the client on tactics that are likely to result in significant expense or to injure or coerce others. On the other hand, a lawyer ordinarily will not be expected to describe trial or negotiation strategy in detail. The guiding principle is that the lawyer should fulfill reasonable client expectations for information consistent with the duty to act in the client's best interests, and the client's overall requirements as to the character of representation. In certain circumstances, such as when a lawyer asks a client to consent to a representation affected by a conflict of interest, the client must give informed consent, as defined in Rule 1.0 (f).

Ordinarily, the information to be provided is that appropriate for a client who is a comprehending and responsible adult. However, fully informing the client according to this standard may be impracticable, for example, when the client is a child or suffers from diminished capacity. See Rule 1.14. When the client is an organization or group, it is often impossible or inappropriate to inform every one of its members about its legal affairs; ordinarily, the lawyer should address communications to the appropriate officials of the organization. See Rule 1.13. Where many routine matters are involved, a system of limited or occasional reporting may be arranged with the client.

Withholding Information. In some circumstances, a lawyer may be justified in delaying transmission of information when the client would be likely to react imprudently to an immediate communication. Thus, a lawyer might withhold a psychiatric diagnosis of a client when the examining psychiatrist indicates that disclosure would harm the client. A lawyer may not withhold information to serve the lawyer's own interest or convenience or the interests or convenience of another person. Rules or court orders governing litigation may provide that information supplied to a lawyer may not be disclosed to the client. Rule 3.4 (3) directs compliance with such rules or orders.

Rule 1.5. Fees

(a) A lawyer shall not make an agreement for, charge, or collect an unreasonable fee or an unreasonable amount for expenses. The factors to be considered in determining the reasonableness of a fee include the following:

(1) The time and labor required, the novelty and difficulty of the questions involved, and the skill requisite to perform the legal service properly;

(2) The likelihood, if made known to the client, that the acceptance of the particular employment will preclude other employment by the lawyer;

(3) The fee customarily charged in the locality for similar legal services;

(4) The amount involved and the results obtained;

(5) The time limitations imposed by the client or by the circumstances;

(6) The nature and length of the professional relationship with the client;

(7) The experience, reputation, and ability of the lawyer or lawyers performing the services; and

(8) Whether the fee is fixed or contingent.

(b) The scope of the representation, the basis or rate of the fee and expenses for which the client will be responsible, shall be communicated to the client, in writing, before or within a reasonable time after commencing the representation, except when the lawyer will charge a regularly represented client on the same basis or rate. Any changes in the basis or rate of the fee or expenses shall also be communicated to the client in writing before the fees or expenses to be billed at higher rates are actually incurred. In any representation in which the lawyer and the client agree that the lawyer will file a limited appearance, the limited appearance engagement agreement shall also include the following: identification of the proceeding in which the lawyer will file the limited appearance; identification of the court events for which the lawyer will appear on behalf of the client; and notification to the client that after the limited appearance services have been completed, the lawyer will file a certificate of completion of limited appearance with the court, which will serve to terminate the lawyer's obligation to the client in the matter, and as to which the client will have no right to object. Any change in the scope of the representation requires the client's informed consent, shall be confirmed to the client in writing, and shall require the lawyer to file a new limited appearance with the court reflecting the change(s) in the scope of representation. This subsection shall not apply to public defenders or in situations where the lawyer will be paid by the court or a state agency.

(c) A fee may be contingent on the outcome of the matter for which the service is rendered, except in a matter in which a contingent fee is prohibited by subsection (d) or other law. A contingent fee agreement shall be in a writing signed by the client and shall state the method by which the fee is to be determined, including the percentage or percentages of the recovery that shall accrue to the lawyer as a fee in the event of settlement, trial or appeal, whether and to what extent the client will be responsible for any court costs and expenses of litigation, and whether such expenses are to be deducted before or after the contingent fee is calculated. The agreement must clearly notifythe client of any expenses for which the client will be liable whether or not the client is the prevailing party. Upon conclusion of a contingent fee matter, the lawyer shall provide the client with a written statement stating the outcome of the matter and, if there is a recovery, showing the remittance to the client and the method of its determination.

(d) A lawyer shall not enter into an arrangement for, charge, or collect:

(1) Any fee in a domestic relations matter, the payment or amount of which is contingent upon the securing of a dissolution of marriage or civil union or upon the amount of alimony or support, or property settlement in lieu thereof; or

(2) A contingent fee for representing a defendant in a criminal case.

(e) A division of fee between lawyers who are not in the same firm may be made only if:

(1) The client is advised in writing of the compensation sharing agreement and of the participation of all the lawyers involved, and does not object; and

(2) The total fee is reasonable.

(P.B. 1978-1997. Rule 1.5.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2013, to take effect Oct. 1, 2013.)

COMMENTARY: **Basis or Rate of Fee.** Subsection (a) requires that lawyers charge fees that are reasonable under the circumstances. The factors specified in (1) through (8) are not exclusive. Nor will each factor be relevant in each instance. Subsection (a) also requires that expenses for which the client will be charged must be reasonable. A lawyer may seek reimbursement for the cost of services performed in-house, such as copying, or for other expenses incurred in-house, such as telephone charges, either by charging a reasonable amount to which the client has agreed in advance or by charging an amount that reasonably reflects the cost incurred by the lawyer.

When the lawyer has regularly represented a client, the lawyer and the client ordinarily will have evolved an understanding concerning the basis or rate of the fee and the expenses for which the client will be responsible. In a new client-lawyer relationship, however, an understanding as to fees and expenses must be promptly established. Generally, it is desirable to furnish the client with at least a simple memorandum or copy of the lawyer's customary fee arrangements that states the general nature of the legal services to be provided, the basis, rate or total amount of the fee and whether and to what extent the client will be responsible for any costs, expenses or disbursements in the course of the representation. A written statement concerning the terms of the engagement reduces the possibility of misunderstanding. Absent extraordinary circumstances, the lawyer should send the written fee statement to the client before any substantial services are rendered, but in any event, not later than ten days after commencing the representation.

Contingent fees, like any other fees, are subject to the reasonableness standard of subsection (a) of this Rule. In determining whether a particular contingent fee is reasonable, or whether it is reasonable to charge any form of contingent fee, a lawyer must consider the factors that are relevant under the circumstances. Applicable law may impose limitations on contingent fees, such as a ceiling on the percentage allowable,

or may require a lawyer to offer clients an alternative basis for the fee. Applicable law also may apply to situations other than a contingent fee, for example, government regulations regarding fees in certain tax matters. In matters where a contingent fee agreement has been signed by the client and is in accordance with General Statutes § 52-251c, the fee is presumed to be reasonable.

Terms of Payment. A lawyer may require advance payment of a fee, but is obliged to return any unearned portion. See Rule 1.16 (d). A lawyer may accept property in payment for services, such as an ownership interest in an enterprise, providing this does not involve acquisition of a proprietary interest in the cause of action or subject matter of the litigation contrary to Rule 1.8 (i). However, a fee paid in property instead of money may be subject to the requirements of Rule 1.8 (a) because such fees often have the essential qualities of a business transaction with the client.

An agreement may not be made whose terms might induce the lawyer improperly to curtail services for the client or perform them in a way contrary to the client's interest. For example, a lawyer should not enter into an agreement whereby services are to be provided only up to a stated amount when it is foreseeable that more extensive services probably will be required, unless the situation is adequately explained to the client. Otherwise, the client might have to bargain for further assistance in the midst of a proceeding or transaction. However, it is proper to define the extent of services in light of the client's ability to pay. A lawyer should not exploit a fee arrangement based primarily on hourly charges by using wasteful procedures.

Prohibited Contingent Fees. Subsection (d) prohibits a lawyer from charging a contingent fee in a domestic relations matter when payment is contingent upon the securing of a divorce or upon the amount of alimony or support or property settlement to be obtained. This provision does not preclude a contract for a contingent fee for legal representation in connection with the recovery of postjudgment balances due under support, alimony or other financial orders because such contracts do not implicate the same policy concerns.

Division of Fee. A division of fee is a single billing to a client covering the fee of two or more lawyers who are not in the same firm. A division of fee facilitates association of more than one lawyer in a matter in which neither alone could serve the client as well and most often is used when the fee is contingent and the division is between a referring lawyer and a trial specialist. Contingent fee agreements must be in writing signed by the client and must otherwise comply with subsection (c) of this Rule. A lawyer should only refer a matter to a lawyer whom the referring lawyer reasonably believes is competent to handle the matter. See Rule 1.1.

Subsection (e) does not prohibit or regulate divisions of fees to be received in the future for work done when lawyers were previously associated in a law firm.

Disputes over Fees. If an arbitration or mediation procedure such as that in Practice Book Section 2-32 (a) (3) has been established for resolution of fee disputes, the lawyer must comply with the procedure when it is mandatory, and, even when it is voluntary, the lawyer should conscientiously consider submitting to it. Law may prescribe a procedure for determining a lawyer's fee, for example, in representation of an executor or administrator, a class or a person entitled to a reasonable fee as part of the measure of damages. The lawyer entitled to such a fee and a lawyer representing another party concerned with the fee should comply with the prescribed procedure.

Rule 1.6. Confidentiality of Information

(a) A lawyer shall not reveal information relating to representation of a client unless the client gives informed consent, the disclosure is impliedly authorized in order to carry out the representation, or the disclosure is permitted by subsection (b), (c), or (d).

(b) A lawyer shall reveal such information to the extent the lawyer reasonably believes necessary to prevent the client from committing a criminal or fraudulent act that the lawyer believes is likely to result in death or substantial bodily harm.

(c) A lawyer may reveal such information to the extent the lawyer reasonably believes necessary to:

(1) Prevent the client from committing a criminal or fraudulent act that the lawyer believes is likely to result in substantial injury to the financial interest or property of another;

(2) Prevent, mitigate or rectify the consequence of a client's criminal or fraudulent act in the commission of which the lawyer's services had been used;

(3) Secure legal advice about the lawyer's compliance with these Rules;

(4) Comply with other law or a court order.

(5) Detect and resolve conflicts of interest arising from the lawyer's change of employment or from changes in the composition or ownership of a firm, but only if the revealed information would not compromise the attorney-client privilege or otherwise prejudice the client.

(d) A lawyer may reveal such information to establish a claim or defense on behalf of the lawyer in a controversy between the lawyer and the client, to establish a defense to a criminal charge or civil claim against the lawyer based upon conduct in which the client was involved, or to respond to allegations in any proceeding concerning the lawyer's representation of the client.

(e) A lawyer shall make reasonable efforts to prevent the inadvertent or unauthorized disclosure of, or unauthorized access to, information relating to the representation of a client.

(P.B. 1978-1997, Rule 1.6.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2013, to take effect Jan. 1, 2014.)

COMMENTARY: This Rule governs the disclosure by a lawyer of information relating to the representation of a client during the lawyer's representation of the client. See Rule 1.18 for the lawyer's duties with respect to information provided to the lawyer by a prospective client, Rule 1.9 (c) (2) for the lawyer's duty not to reveal information relating to the lawyer's prior representation of a former client and Rules 1.8 (b) and 1.9 (c) (1) for the lawyer's duties with respect to the use of such information to the disadvantage of clients and former clients.

A fundamental principle in the client-lawyer relationship is that, in the absence of the client's informed consent, the lawyer must not reveal information relating to the representation. See Rule 1.0 (f) for the definition of informed consent. This contributes to the trust that is the hallmark of the client-lawyer relationship. The client is thereby encouraged to seek legal assistance and to communicate fully and frankly with the lawyer even as to embarrassing or legally damaging subject matter. The lawyer needs this information to represent the client

effectively and, if necessary, to advise the client to refrain from wrongful conduct. Almost without exception, clients come to lawyers in order to determine their rights and what is, in the complex of laws and regulations, deemed to be legal and correct. Based upon experience, lawyers know that almost all clients follow the advice given, and the law is upheld.

The principle of client-lawyer confidentiality is given effect by related bodies of law, the attorney-client privilege, the work product doctrine and the Rule of confidentiality established in professional ethics. The attorney-client privilege and work product doctrine apply in judicial and other proceedings in which a lawyer may be called as a witness or otherwise required to produce evidence concerning a client. The Rule of client-lawyer confidentiality applies in situations other than those where evidence is sought from the lawyer through compulsion of law. The confidentiality Rule, for example, applies not only to matters communicated in confidence by the client but also to all information relating to the representation, whatever its source. A lawyer may not disclose such information except as authorized or required by the Rules of Professional Conduct or other law. See also Scope.

Subsection (a) prohibits a lawyer from revealing information relating to the representation of a client. This prohibition also applies to disclosures by a lawyer that do not in themselves reveal protected information but could reasonably lead to the discovery of such information by a third person. A lawyer's use of a hypothetical to discuss issues relating to the representation is permissible so long as there is no reasonable likelihood that the listener will be able to ascertain the identity of the client or the situation involved.

Authorized Disclosure. Except to the extent that the client's instructions or special circumstances limit that authority, a lawyer is impliedly authorized to make disclosures about a client when appropriate in carrying out the representation. In some situations, for example, a lawyer may be impliedly authorized to admit a fact that cannot properly be disputed to make a disclosure that facilitates a satisfactory conclusion to a matter. Lawyers in a firm may, in the course of the firm's practice, disclose to each other information relating to a client of the firm, unless the client has instructed that particular information be confined to specific lawyers.

Disclosure Adverse to Client. Although the public interest is usually best served by a strict rule requiring lawyers to preserve the confidentiality of information relating to the representation of their clients, the confidentiality Rule is subject to limited exceptions. Subsection (b) recognizes the overriding value of life and physical integrity and requires disclosure in certain circumstances.

Subsection (c) (1) is a limited exception to the Rule of confidentiality that permits the lawyer to reveal information to the extent necessary to enable affected persons or appropriate authorities to prevent the client from committing a crime or fraud, as defined in Rule 1.0 (e), that is likely to result in substantial injury to the financial or property interests of another. Such a serious abuse of the client-lawyer relationship by the client forfeits the protection of this Rule. The client can, of course, prevent such disclosure by refraining from the wrongful conduct. Although subsection (c) (1) does not require the lawyer to reveal the client's misconduct, the lawyer may not counsel or assist the client in conduct the lawyer knows is criminal or fraudulent. See Rule 1.2 (d). See also Rule 1.16 with respect to the lawyer's obligation or right to withdraw from the representation of the client in such circumstances, and Rule 1.13 (c), which permits the lawyer, where the client is an organization, to reveal information relating to the representation in limited circumstances.

Subsection (c) (2) addresses the situation in which the lawyer does not learn of the client's crime or fraud until after it has been consummated. Although the client no longer has the option of preventing disclosure by refraining from the wrongful conduct, there will be situations in which the loss suffered by the affected person can be prevented, rectified or mitigated. In such situations, the lawyer may disclose information relating to the representation to the extent necessary to enable the affected persons to prevent or mitigate reasonably certain losses or to attempt to recoup their losses. Subsection (c) (2) does not apply when a person who has committed a crime or fraud thereafter employs a lawyer for representation concerning that offense.

A lawyer's confidentiality obligations do not preclude a lawyer from securing confidential legal advice about the lawyer's personal responsibility to comply with these Rules. In most situations, disclosing information to secure such advice will be impliedly authorized for the lawyer to carry out the representation. Even when the disclosure is not impliedly authorized, subsection (c) (3) permits such disclosure because of the importance of a lawyer's compliance with the Rules of Professional Conduct. The lawyer's right to disclose such information to a second lawyer pursuant to subsection (c) (3) does not give the second lawyer the duty or right to disclose such information under subsections (b), (c) and (d). The first lawyer's client does not become the client of the second lawyer just because the first lawyer seeks the second lawyer's advice under (c) (3).

Subsection (c) (5) recognizes that lawyers in different firms may need to disclose limited information to each other to detect and resolve conflicts of interest, such as when a lawyer is considering an association with another firm, two or more firms are considering a merger, or a lawyer is considering the purchase of a law practice. See Rule 1.17, commentary. Under these circumstances, lawyers and law firms are permitted to disclose limited information, but only once substantive discussions regarding the new relationship have occurred. Any such disclosure should ordinarily include no more than the identity of the persons and entities involved in a matter, a brief summary of the general issues involved, and information about whether the matter has terminated. Even this limited information, however, should be disclosed only to the extent reasonably necessary to detect and resolve conflicts of interest that might arise from the possible new relationship. Moreover, the disclosure of any information is prohibited if it would compromise the attorney-client privilege or otherwise prejudice the client (e.g., the fact that a corporate client is seeking advice on a corporate takeover that has not been publicly announced, that a person consulted a lawyer about the possibility of divorce before the person's intentions are known to the person's spouse, or that a person has consulted a lawyer about a criminal investigation that has not led to a public charge). Under those circumstances, subsection (a) prohibits disclosure unless the client or former client gives informed consent. A lawyer's fiduciary duty to the lawyer's firm may also govern a lawyer's conduct when exploring an association with another firm and is beyond the scope of these Rules. Any information disclosed pursuant to subsection (c) (5) may be used or further disclosed only to the extent necessary to detect and resolve conflicts of interest. Subsection (c) (5) does not restrict the use of information acquired by means independent of any disclosure pursuant to subsection (c) (5). Subsection (c) (5) also does not affect the disclosure of information within a law firm when the disclosure is otherwise authorized, such as when a lawyer in a firm discloses information to another lawyer in the same firm to detect and resolve conflicts of interest that could arise in connection with undertaking a new representation.

Where a legal claim or disciplinary charge alleges complicity of the lawyer in a client's conduct or other misconduct of the

lawyer involving representation of the client, the lawyer may respond to the extent the lawyer reasonably believes necessary to establish a defense. The same is true with respect to a claim involving the conduct or representation of a former client. Such a charge can arise in a civil, criminal, disciplinary or other proceeding and can be based on a wrong allegedly committed by the lawyer against the client or on a wrong alleged by a third person, for example, a person claiming to have been defrauded by the lawyer and client acting together. The lawyer's right to respond arises when an assertion of such complicity has been made. Subsection (d) does not require the lawyer to await the commencement of an action or proceeding that charges such complicity, so that the defense may be established by responding directly to a third party who has made such an assertion. The right to defend also applies, of course, where a proceeding has been commenced.

A lawyer entitled to a fee is permitted by subsection (d) to prove the services rendered in an action to collect it. This aspect of the rule expresses the principle that the beneficiary of a fiduciary relationship may not exploit it to the detriment of the fiduciary.

Other law may require that a lawyer disclose information about a client. Whether such a law supersedes Rule 1.6 is a question of law beyond the scope of these Rules. When disclosure of information relating to the representation appears to be required by other law, the lawyer must discuss the matter with the client to the extent required by Rule 1.4. If, however, the other law supersedes this Rule and requires disclosure, subsection (c) (4) permits the lawyer to make such disclosures as are necessary to comply with the law.

A lawyer may be ordered to reveal information relating to the representation of a client by a court or by another tribunal or governmental entity claiming authority pursuant to other law to compel the disclosure. Absent informed consent of the client to do otherwise, the lawyer should assert on behalf of the client all nonfrivolous claims that the order is not authorized by other law or that the information sought is protected against disclosure by the attorney-client privilege or other applicable law. In the event of an adverse ruling, the lawyer must consult with the client about the possibility of appeal to the extent required by Rule 1.4. Unless review is sought, however, subsection (c) (4) permits the lawyer to comply with the court's order.

Subsection (b) requires and subsection (c) permits disclosure only to the extent the lawyer reasonably believes the disclosure is necessary to accomplish one of the purposes specified. Where practicable, the lawyer should first seek to persuade the client to take suitable action to obviate the need for disclosure. In any case, a disclosure adverse to the client's interest should be no greater than the lawyer reasonably believes necessary to accomplish the purpose. If the disclosure will be made in connection with a judicial proceeding, the disclosure should be made in a manner that limits access to the information to the tribunal or other persons having a need to know it and appropriate protective orders or other arrangements should be sought by the lawyer to the fullest extent practicable.

Subsection (c) permits but does not require the disclosure of information relating to a client's representation to accomplish the purposes specified in subsections (c) (1) through (c) (4). In exercising the discretion conferred by this Rule, the lawyer may consider such factors as the nature of the lawyer's relationship with the client and with those who might be injured by the client, the lawyer's own involvement in the transaction and factors that may extenuate the conduct in question. A lawyer's decision not to disclose as permitted by subsection (c) does not violate this Rule. Disclosure may be required, however, by other Rules. Some Rules require disclosure only if such disclosure would be permitted by subsection (b). See Rules 1.2 (d), 4.1 (b), 8.1 and 8.3. Rule 3.3, on the other hand, requires disclosure in some circumstances regardless of whether such disclosure is permitted by this Rule. See Rule 3.3 (c).

Acting Competently To Preserve Confidentiality. Subsection (e) requires a lawyer to act competently to safeguard information relating to the representation of a client against inadvertent or unauthorized disclosure by the lawyer or other persons who are participating in the representation of the client or who are subject to the lawyer's supervision. See Rules 1.1, 5.1 and 5.3. The unauthorized access to, or the inadvertent or unauthorized disclosure of, information relating to the representation of a client does not constitute a violation of subsection (e) if the lawyer has made reasonable efforts to prevent the access or disclosure. Factors to be considered in determining the reasonableness of the lawyer's efforts include, but are not limited to, the sensitivity of the information, the likelihood of disclosure if additional safeguards are not employed, the cost of employing additional safeguards, the difficulty of implementing the safeguards, and the extent to which the safeguards adversely affect the lawyer's ability to represent clients (e.g., by making a device or important piece of software excessively difficult to use). A client may require the lawyer to implement special security measures not required by this Rule or may give informed consent to forgo security measures that would otherwise be required by this Rule. Whether a lawyer may be required to take additional steps to safeguard a client's information in order to comply with other law, such as state and federal laws that govern data privacy or that impose notification requirements upon the loss of, or unauthorized access to, electronic information, is beyond the scope of these Rules. For a lawyer's duties when sharing information with nonlawyers outside the lawyer's own firm, see Rule 5.3, commentary.

When transmitting a communication that includes information relating to the representation of a client, the lawyer must take reasonable precautions to prevent the information from coming into the hands of unintended recipients. This duty, however, does not require that the lawyer use special security measures if the method of communication affords a reasonable expectation of privacy. Special circumstances, however, may warrant special precautions. Factors to be considered in determining the reasonableness of the lawyer's expectation of confidentiality include the sensitivity of the information and the extent to which the privacy of the communication is protected by law or by a confidentiality agreement. A client may require the lawyer to implement special security measures not required by this Rule or may give informed consent to the use of a means of communication that would otherwise be prohibited by this Rule. Whether a lawyer may be required to take additional steps in order to comply with other law, such as state and federal laws that govern data privacy, is beyond the scope of these Rules.

Former Client. The duty of confidentiality continues after the client-lawyer relationship has terminated. See Rule 1.9 (c) (2). See Rule 1.9 (c) (1) for the prohibition against using such information to the disadvantage of the former client.

Rule 1.7. Conflict of Interest: Current Clients

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) Except as provided in subsection (b), a lawyer shall not represent a client if the representation involves a concurrent conflict of interest. A concurrent conflict of interest exists if:

(1) the representation of one client will be directly adverse to another client; or

(2) there is a significant risk that the representation of one or more clients will be materially limited by the lawyer's responsibilities to another client, a former client or a third person or by a personal interest of the lawyer.

(b) Notwithstanding the existence of a concurrent conflict of interest under subsection (a), a lawyer may represent a client if:

(1) the lawyer reasonably believes that the lawyer will be able to provide competent and diligent representation to each affected client;

(2) the representation is not prohibited by law;

(3) the representation does not involve the assertion of a claim by one client against another client represented by the lawyer in the same litigation or the same proceeding before any tribunal; and

(4) each affected client gives informed consent, confirmed in writing.

(P.B. 1978-1997, Rule 1.7.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: **General Principles.** Loyalty and independent judgment are essential elements in the lawyer's relationship to a client. Concurrent conflicts of interest can arise from the lawyer's responsibilities to another client, a former client or a third person or from the lawyer's own interests. For specific Rules regarding certain concurrent conflicts of interest, see Rule 1.8. For former client conflicts of interest, see Rule 1.9. For conflicts of interest involving prospective clients, see Rule 1.18. For definitions of "informed consent" and "confirmed in writing," see Rule 1.0 (f) and (c).

Resolution of a conflict of interest problem under this Rule requires the lawyer to 1) clearly identify the client or clients; 2) determine whether a conflict of interest exists; 3) decide whether the representation may be undertaken despite the existence of a conflict, i.e., whether the conflict is consentable; and 4) if so, consult with the clients affected under subsection (a) and obtain their informed consent, confirmed in writing. The clients affected under subsection (a) include both of the clients referred to in subsection (a) (1) and the one or more clients whose representation might be materially limited under subsection (a) (2).

A conflict of interest may exist before representation is undertaken, in which event the representation must be declined, unless the lawyer obtains the informed consent of each client under the conditions of subsection (b). To determine whether a conflict of interest exists, a lawyer should adopt reasonable procedures, appropriate for the size and type of firm and practice, to determine in both litigation and nonlitigation matters the persons and issues involved. See also Commentary to Rule 5.1. Ignorance caused by a failure to institute such procedures will not excuse a lawyer's violation of this Rule. As to whether a client-lawyer relationship exists or, having once been established, is continuing, see Commentary to Rule 1.3 and Scope.

If a conflict arises after representation has been undertaken, the lawyer ordinarily must withdraw from the representation, unless the lawyer has obtained the informed consent of the client under the conditions of subsection (b). See Rule 1.16. Where more than one client is involved, whether the lawyer may continue to represent any of the clients is determined both by the lawyer's ability to comply with duties owed to the former client and by the lawyer's ability to represent adequately the remaining client or clients, given the lawyer's duties to the former client. See Rule 1.9; see also the next paragraph in this Commentary and the first paragraph under the "Special Considerations in Common Representation" heading, below.

Unforeseeable developments, such as changes in corporate and other organizational affiliations or the addition or realignment of parties in litigation, might create conflicts in the midst of a representation, as when a company sued by the lawyer on behalf of one client is bought by another client represented by the lawyer in an unrelated matter. Depending on the circumstances, the lawyer may have the option to withdraw from one of the representations in order to avoid the conflict. The lawyer must seek court approval where necessary and take steps to minimize harm to the clients. See Rule 1.16. The lawyer must continue to protect the confidences of the client from whose representation the lawyer has withdrawn. See Rule 1.9 (c).

Identifying Conflicts of Interest: Directly Adverse. Loyalty to a current client prohibits undertaking representation directly adverse to that client without that client's informed consent. Thus, absent consent, a lawyer may not act as advocate in one matter against a person the lawyer represents in some other matter, even when the matters are wholly unrelated. The client as to whom the representation is directly adverse is likely to feel betrayed, and the resulting damage to the client-lawyer relationship is likely to impair the lawyer's ability to represent the client effectively. In addition, the client on whose behalf the adverse representation is undertaken reasonably may fear that the lawyer will pursue that client's case less effectively out of deference to the other client, i.e., that the representation may be materially limited by the lawyer's interest in retaining the current client. Similarly, a directly adverse conflict may arise when a lawyer is required to cross-examine a client who appears as a witness in a lawsuit involving another client, as when the testimony will be damaging to the client who is represented in the lawsuit. On the other hand, simultaneous representation in unrelated matters of clients whose interests are only economically adverse, such as representation of competing economic enterprises in unrelated litigation, does not ordinarily constitute a conflict of interest and thus may not require consent of the respective clients.

Directly adverse conflicts can also arise in transactional matters. For example, if a lawyer is asked to represent the seller of a business in negotiations with a buyer represented by the lawyer, not in the same transaction but in another, unrelated matter, the lawyer could not undertake the representation without the informed consent of each client.

Identifying Conflicts of Interest: Material Limitation. Even where there is no direct adverseness, a conflict of interest exists if there is a significant risk that a lawyer's ability to consider, recommend or carry out an appropriate course of action for the client will be materially limited as a result of the lawyer's other responsibilities or interests. For example, a lawyer asked to represent several individuals seeking to form a joint venture is likely to be materially limited in the lawyer's ability to recommend or advocate all possible positions that each might take because of the lawyer's duty of loyalty to the others. The conflict in effect forecloses alternatives that would otherwise be available to the client. The mere possibility of subsequent harm does not itself require disclosure and consent. The critical questions are the likelihood that a difference in interests will eventuate and, if it does, whether it will materially interfere with the lawyer's independent professional judgment in considering alternatives or foreclose courses of action that reasonably should be pursued on behalf of the client.

Lawyer's Responsibilities to Former Clients and Other Third Persons. In addition to conflicts with other current clients, a lawyer's duties of loyalty and independence may be materially limited by responsibilities to former clients under

Rule 1.9 or by the lawyer's responsibilities to other persons, such as fiduciary duties arising from a lawyer's service as a trustee, executor or corporate director.

Personal Interest Conflicts. The lawyer's own interests must not be permitted to have an adverse effect on representation of a client. For example, if the probity of a lawyer's own conduct in a transaction is in serious question, it may be difficult or impossible for the lawyer to give a client detached advice. Similarly, when a lawyer has discussions concerning possible employment with an opponent of the lawyer's client, or with a law firm representing the opponent, such discussions could materially limit the lawyer's representation of the client. In addition, a lawyer may not allow related business interests to affect representation, for example, by referring clients to an enterprise in which the lawyer has an undisclosed financial interest. See Rule 1.8 for specific Rules pertaining to a number of personal interest conflicts, including business transactions with clients; see also Rule 1.10 (personal interest conflicts under Rule 1.7 ordinarily are not imputed to other lawyers in a law firm).

When lawyers representing different clients in the same matter or in substantially related matters are closely related by blood or marriage, there may be a significant risk that client confidences will be revealed and that the lawyer's family relationship will interfere with both loyalty and independent professional judgment. As a result, each client is entitled to know of the existence and implications of the relationship between the lawyers before the lawyer agrees to undertake the representation. Thus, a lawyer related to another lawyer, e.g., as parent, child, sibling or spouse, ordinarily may not represent a client in a matter where that lawyer is representing another party, unless each client gives informed consent. The disqualification arising from a close family relationship is personal and ordinarily is not imputed to members of firms with whom the lawyers are associated. See Rule 1.10.

A lawyer is prohibited from engaging in a sexual relationship with a client unless the sexual relationship predates the formation of the client-lawyer relationship. See Rule 1.8 (j).

Interest of Person Paying for a Lawyer's Service. A lawyer may be paid from a source other than the client, including a co-client, if the client is informed of that fact and consents and the arrangement does not compromise the lawyer's duty of loyalty or independent judgment to the client. See Rule 1.8 (f). If acceptance of the payment from any other source presents a significant risk that the lawyer's representation of the client will be materially limited by the lawyer's own interest in accommodating the person paying the lawyer's fee or by the lawyer's responsibilities to a payer who is also a co-client, then the lawyer must comply with the requirements of subsection (b) before accepting the representation, including determining whether the conflict is consentable and, if so, that the client has adequate information about the material risks of the representation.

Prohibited Representations. Ordinarily, clients may consent to representation notwithstanding a conflict. However, as indicated in subsection (b), some conflicts are nonconsentable, meaning that the lawyer involved cannot properly ask for such agreement or provide representation on the basis of the client's consent. When the lawyer is representing more than one client, the question of consentability must be resolved as to each client.

Consentability is typically determined by considering whether the interests of the clients will be adequately protected if the clients are permitted to give their informed consent to representation burdened by a conflict of interest. Thus, under subsection (b) (1), representation is prohibited if in the circumstances the lawyer cannot reasonably conclude that the lawyer will be able to provide competent and diligent representation. See Rule 1.1 (competence) and Rule 1.3 (diligence).

Subsection (b) (2) describes conflicts that are nonconsentable because the representation is prohibited by applicable law.

Subsection (b) (3) describes conflicts that are nonconsentable because of the institutional interest in vigorous development of each client's position when the clients are aligned directly against each other in the same litigation or the same proceeding before any tribunal. Whether clients are aligned directly against each other within the meaning of this paragraph requires examination of the context of the proceeding. Although this paragraph does not preclude a lawyer's multiple representation of adverse parties to a mediation (because mediation is not a proceeding before a "tribunal" under Rule 1.0 (n)), such representation may be precluded by subsection (b) (1).

Informed Consent. Informed consent requires that each affected client be aware of the relevant circumstances and of the material and reasonably foreseeable ways that the conflict could have adverse effects on the interests of that client. See Rule 1.0 (f) (informed consent). The information required depends on the nature of the conflict and the nature of the risks involved. When representation of multiple clients in a single matter is undertaken, the information must include the implications of the common representation, including possible effects on loyalty, confidentiality and the attorney-client privilege and the advantages and risks involved. See second and third paragraphs under the "Special Considerations in Common Representation" heading in this Commentary, below (effect of common representation on confidentiality).

Under some circumstances it may be impossible to make the disclosure necessary to obtain consent. For example, when the lawyer represents different clients in related matters and one of the clients refuses to consent to the disclosure necessary to permit the other client to make an informed decision, the lawyer cannot properly ask the latter to consent. In some cases the alternative to common representation can be that each party may have to obtain separate representation with the possibility of incurring additional costs. These costs, along with the benefits of securing separate representation, are factors that may be considered by the affected client in determining whether common representation is in the client's interests.

Consent Confirmed in Writing. Subsection (b) requires the lawyer to obtain the informed consent of the client, confirmed in writing. Such a writing may consist of a document executed by the client or one that the lawyer promptly records and transmits to the client following an oral consent. See Rule 1.0 (c); see also Rule 1.0 (o) (writing includes electronic transmission). If it is not feasible to obtain or transmit the writing at the time the client gives informed consent, then the lawyer must obtain or transmit it within a reasonable time thereafter. See Rule 1.0 (c). The requirement of a writing does not supplant the need in most cases for the lawyer to talk with the client, to explain the risks and advantages, if any, of representation burdened with a conflict of interest, as well as reasonably available alternatives, and to afford the client a reasonable opportunity to consider the risks and alternatives and to raise questions and concerns. Rather, the writing is required in order to impress upon clients the seriousness of the decision the client is being asked to make and to avoid disputes or ambiguities that might later occur in the absence of a writing.

Revoking Consent. A client who has given consent to a conflict may revoke the consent and, like any other client, may terminate the lawyer's representation at any time. Whether revoking consent to the client's own representation precludes the lawyer from continuing to represent other clients depends on the circumstances, including the nature of the conflict,

whether the client revoked consent because of a material change in circumstances, the reasonable expectations of the other clients and whether material detriment to the other clients or the lawyer would result.

Consent to Future Conflict. Whether a lawyer may properly request a client to waive conflicts that might arise in the future is subject to the test of subsection (b). The effectiveness of such waivers is generally determined by the extent to which the client reasonably understands the material risks that the waiver entails. The more comprehensive the explanation of the types of future conflicts that might arise and the actual and reasonably foreseeable adverse consequences of those conflicts, the greater the likelihood that the client will have the requisite understanding. Thus, if the client agrees to consent to a particular type of conflict with which the client is already familiar, then the consent ordinarily will be effective with regard to that type of conflict. If the consent is general and open-ended, then the consent ordinarily will be ineffective, because it is not reasonably likely that the client will have understood the material risks involved. On the other hand, if the client is an experienced user of the legal services involved and is reasonably informed regarding the risk that a conflict may arise, such consent is more likely to be effective, particularly if, e.g., the client is independently represented by other counsel in giving consent and the consent is limited to future conflicts unrelated to the subject of the representation. In any case, advance consent cannot be effective if the circumstances that materialize in the future are such as would make the conflict nonconsentable under subsection (b).

Conflicts in Litigation. Subsection (b) (3) prohibits representation of opposing parties in the same litigation, regardless of the clients' consent. On the other hand, simultaneous representation of parties whose interests in litigation may conflict, such as coplaintiffs or codefendants, is governed by subsection (a) (2). A conflict may exist by reason of substantial discrepancy in the parties' testimony, incompatibility in positions in relation to an opposing party or the fact that there are substantially different possibilities of settlement of the claims or liabilities in question. Such conflicts can arise in criminal cases as well as civil. The potential for conflict of interest in representing multiple defendants in a criminal case is so grave that ordinarily a lawyer should decline to represent more than one codefendant. On the other hand, common representation of persons having similar interests in civil litigation is proper if the requirements of subsection (b) are met.

Ordinarily, a lawyer may take inconsistent legal positions in different tribunals at different times on behalf of different clients. The mere fact that advocating a legal position on behalf of one client might create precedent adverse to the interests of a client represented by the lawyer in an unrelated matter does not create a conflict of interest. A conflict of interest exists, however, if there is a significant risk that a lawyer's action on behalf of one client will materially limit the lawyer's effectiveness in representing another client in a different case; for example, when a decision favoring one client will create a precedent likely to seriously weaken the position taken on behalf of the other client. Factors relevant in determining whether the clients need to be advised of the risk include: where the cases are pending, whether the issue is substantive or procedural, the temporal relationship between the matters, the significance of the issue to the immediate and long-term interests of the clients involved and the clients' reasonable expectations in retaining the lawyer. If there is significant risk of material limitation, then absent informed consent of the affected clients, the lawyer must refuse one of the representations or withdraw from one or both matters.

When a lawyer represents or seeks to represent a class of plaintiffs or defendants in a class action lawsuit, unnamed members of the class are ordinarily not considered to be clients of the lawyer for purposes of applying subsection (a) (1) of this Rule. Thus, the lawyer does not typically need to get the consent of such a person before representing a client suing the person in an unrelated matter. Similarly, a lawyer seeking to represent an opponent in a class action does not typically need the consent of an unnamed member of the class whom the lawyer represents in an unrelated matter.

Nonlitigation Conflicts. Conflicts of interest under subsections (a) (1) and (a) (2) arise in contexts other than litigation. For a discussion of directly adverse conflicts in transactional matters, see second paragraph under "Identifying Conflicts of Interest: Directly Adverse" heading in this Commentary, above. Relevant factors in determining whether there is significant risk of material limitation include the duration and intimacy of the lawyer's relationship with the client or clients involved, the functions being performed by the lawyer, the likelihood that disagreements will arise and the likely prejudice to the client from the conflict. The question is often one of proximity and degree. See first paragraph under "Identifying Conflicts of Interest: Material Limitation" heading in this Commentary, above.

For example, conflict questions may also arise in estate planning and estate administration. A lawyer may be called upon to prepare wills for several family members, such as husband and wife, and, depending upon the circumstances, a conflict of interest may be present. In estate administration, the identity of the client may be unclear under the law of a particular jurisdiction. Under one view, the client is the fiduciary; under another view the client is the estate or trust, including its beneficiaries. In order to comply with conflict of interest rules, the lawyer should make clear the lawyer's relationship to the parties involved.

Whether a conflict is consentable depends on the circumstances. For example, a lawyer may not represent multiple parties to a negotiation whose interests are fundamentally antagonistic to each other, but common representation is permissible where the clients are generally aligned in interest even though there is some difference in interest among them. Thus, a lawyer may seek to establish or adjust a relationship between clients on an amicable and mutually advantageous basis; for example, in helping to organize a business in which two or more clients are entrepreneurs, working out the financial reorganization of an enterprise in which two or more clients have an interest or arranging a property distribution in settlement of an estate. The lawyer seeks to resolve potentially adverse interests by developing the parties' mutual interests. Otherwise, each party might have to obtain separate representation, with the possibility of incurring additional cost, complication or even litigation. Given these and other relevant factors, the clients may prefer that the lawyer act for all of them.

Special Considerations in Common Representation. In considering whether to represent multiple clients in the same matter, a lawyer should be mindful that if the common representation fails because the potentially adverse interests cannot be reconciled, the result can be additional cost, embarrassment and recrimination. Ordinarily, the lawyer will be forced to withdraw from representing all of the clients if the common representation fails. In some situations, the risk of failure is so great that multiple representation is plainly impossible. For example, a lawyer cannot undertake common representation of clients where contentious litigation or negotiations between them are imminent or contemplated. Moreover, because the lawyer is required to be impartial between commonly represented clients, representation of multiple clients is improper when it is unlikely that impartiality can be maintained. Generally, if the relationship between the parties has already assumed antagonism, the possibility that the clients' interests

can be adequately served by common representation is not very good. Other relevant factors are whether the lawyer subsequently will represent both parties on a continuing basis and whether the situation involves creating or terminating a relationship between the parties.

A particularly important factor in determining the appropriateness of common representation is the effect on client-lawyer confidentiality and the attorney-client privilege.

As to the duty of confidentiality, continued common representation will almost certainly be inappropriate if one client asks the lawyer not to disclose to the other client information relevant to the common representation. This is so because the lawyer has an equal duty of loyalty to each client, and the lawyer should inform each client that each client has the right to be informed of anything bearing on the representation that might affect that client's interests and the right to expect that the lawyer will use that information to that client's benefit. See Rule 1.4. To that end, the lawyer must, at the outset of the common representation and as part of the process of obtaining each client's informed consent, advise each client that information will be shared and that the lawyer will have to withdraw if one client decides prior to disclosure that some matter material to the representation should be disclosed to the lawyer but be kept from the other. In limited circumstances, it may be appropriate for the lawyer to proceed with the representation when the clients have agreed, after being properly informed, that the lawyer will keep certain information confidential. For example, the lawyer may reasonably conclude that failure to disclose one client's trade secrets to another client will not adversely affect representation involving a joint venture between the clients and agree to keep that information confidential with the informed consent of both clients.

When seeking to establish or adjust a relationship between clients, the lawyer should make clear that the lawyer's role is not that of partisanship normally expected in other circumstances and, thus, that the clients may be required to assume greater responsibility for decisions than when each client is separately represented. Any limitations on the scope of the representation made necessary as a result of the common representation should be fully explained to the clients at the outset of the representation. See Rule 1.2 (c).

Subject to the above limitations, each client in the common representation has the right to loyal and diligent representation and the protection of Rule 1.9 concerning the obligations to a former client. The client also has the right to discharge the lawyer as stated in Rule 1.16.

Organizational Clients. A lawyer who represents a corporation or other organization does not, by virtue of that representation, necessarily represent any constituent or affiliated organization, such as a parent or subsidiary. See Rule 1.13 (a). Thus, the lawyer for an organization is not barred from accepting representation adverse to an affiliate in an unrelated matter, unless the circumstances are such that the affiliate should also be considered a client of the lawyer, there is an understanding between the lawyer and the organizational client that the lawyer will avoid representation adverse to the client's affiliates, or the lawyer's obligations to either the organizational client or the new client are likely to limit materially the lawyer's representation of the other client.

A lawyer for a corporation or other organization who is also a member of its board of directors should determine whether the responsibilities of the two roles may conflict. The lawyer may be called on to advise the corporation in matters involving actions of the directors. Consideration should be given to the frequency with which such situations may arise, the potential intensity of the conflict, the effect of the lawyer's resignation from the board and the possibility of the corporation's obtaining legal advice from another lawyer in such situations. If there is material risk that the dual role will compromise the lawyer's independence of professional judgment, the lawyer should not serve as a director or should cease to act as the corporation's lawyer when conflicts of interest arise. The lawyer should advise the other members of the board that in some circumstances matters discussed at board meetings while the lawyer is present in the capacity of director might not be protected by the attorney-client privilege and that conflict of interest considerations might require the lawyer's recusal as a director or might require the lawyer and the lawyer's firm to decline representation of the corporation in a matter.

Conflict Charged by an Opposing Party. Resolving questions of conflict of interest is primarily the responsibility of the lawyer undertaking the representation. In litigation, a court may raise the question when there is reason to infer that the lawyer has neglected the responsibility. In a criminal case, inquiry by the court is generally required when a lawyer represents multiple defendants. Where the conflict is such as clearly to call in question the fair or efficient administration of justice, opposing counsel may properly raise the question. Such an objection should be viewed with caution, however, for it can be misused as a technique of harassment.

Rule 1.8. Conflict of Interest: Prohibited Transactions

(a) A lawyer shall not enter into a business transaction, including investment services, with a client or former client or knowingly acquire an ownership, possessory, security or other pecuniary interest adverse to a client or former client unless:

(1) The transaction and terms on which the lawyer acquires the interest are fair and reasonable to the client or former client and are fully disclosed and transmitted in writing to the client or former client in a manner that can be reasonably understood by the client or former client;

(2) The client or former client is advised in writing that the client or former client should consider the desirability of seeking and is given a reasonable opportunity to seek the advice of independent legal counsel in the transaction;

(3) The client or former client gives informed consent in writing signed by the client or former client, to the essential terms of the transaction and the lawyer's role in the transaction, including whether the lawyer is representing the client in the transaction;

(4) With regard to a business transaction, the lawyer advises the client or former client in writing either (A) that the lawyer will provide legal services to the client or former client concerning the transaction, or (B) that the lawyer will not provide legal services to the client or former client and that the lawyer is involved as a business person only and not as a lawyer representing the client or former client and that the lawyer is not one to whom the client or former client can turn for legal advice concerning the transaction; and

(5) With regard to the providing of investment services, the lawyer advises the client or former

client in writing (A) whether such services are covered by legal liability insurance or other insurance, and either (B) that the lawyer will provide legal services to the client or former client concerning the transaction, or (C) that the lawyer will not provide legal services to the client or former client and that the lawyer is involved as a business person only and not as a lawyer representing the client or former client and that the lawyer is not one to whom the client or former client can turn to for legal services concerning the transaction. Investment services shall apply only where the lawyer has either a direct or indirect control over the invested funds and a direct or indirect interest in the underlying investment.

For purposes of subsection (a) (1) through (a) (5), the phrase "former client" shall mean a client for whom the two-year period starting from the conclusion of representation has not expired.

(b) A lawyer shall not use information relating to representation of a client to the disadvantage of the client unless the client gives informed consent, except as permitted or required by these Rules.

(c) A lawyer shall not solicit any substantial gift from a client, including a testamentary gift, or prepare on behalf of a client an instrument giving the lawyer or a person related to the lawyer any substantial gift, unless the lawyer or other recipient of the gift is related to the client. For purposes of this paragraph, related persons include a spouse, child, grandchild, parent, grandparent or other relative or individual with whom the lawyer or the client maintains a close, familial relationship.

(d) Prior to the conclusion of representation of a client, a lawyer shall not make or negotiate an agreement giving the lawyer literary or media rights to a portrayal or account based in substantial part on information relating to the representation.

(e) A lawyer shall not provide financial assistance to a client in connection with pending or contemplated litigation, except that:

(1) A lawyer may pay court costs and expenses of litigation on behalf of a client, the repayment of which may be contingent on the outcome of the matter;

(2) A lawyer representing an indigent client may pay court costs and expenses of litigation on behalf of the client; and

(3) A lawyer representing an indigent client pro bono; a lawyer representing an indigent client pro bono through a nonprofit legal services or public interest organization, a law school clinical or pro bono program, or a state or local bar association program; and a lawyer representing an indigent client through a public defender's office may provide modest gifts to the client to pay for food, shelter, transportation, medicine and other basic living expenses. A lawyer may not:

(i) promise, assure or imply the availability of such gifts prior to retention, or as an inducement to continue the client-lawyer relationship after retention, or as an inducement to take, or forgo taking, any action in the matter;

(ii) seek or accept reimbursement from the client, a relative of the client, or anyone affiliated with the client; or

(iii) publicize or advertise a willingness to provide such gifts to prospective clients.

A lawyer may provide financial assistance permitted by this Rule even if the representation is eligible for fees under a fee-shifting statute.

(f) A lawyer shall not accept compensation for representing a client from one other than the client unless:

(1) The client gives informed consent; subject to revocation by the client, such informed consent shall be implied where the lawyer is retained to represent a client by a third party obligated under the terms of a contract to provide the client with a defense;

(2) There is no interference with the lawyer's independence of professional judgment or with the client-lawyer relationship; and

(3) Information relating to representation of a client is protected as required by Rule 16.

(g) A lawyer who represents two or more clients shall not participate in making an aggregate settlement of the claims of or against the clients, or in a criminal case an aggregated agreement as to guilty or nolo contendere pleas, unless each client gives informed consent, in a writing signed by the client. The lawyer's disclosure shall include the existence and nature of all the claims or pleas involved and of the participation of each person in the settlement. Subject to revocation by the client and to the terms of the contract, such informed consent shall be implied and need not be in writing where the lawyer is retained to represent a client by a third party obligated under the terms of a contract to provide the client with a defense and indemnity for the loss and the third party elects to settle a matter without contribution by the client.

(h) A lawyer shall not:

(1) Make an agreement prospectively limiting the lawyer's liability to a client for malpractice unless the client is independently represented in making the agreement; or

(2) Settle a claim or potential claim for such liability with an unrepresented client or former client unless that person is advised in writing of the desirability of seeking and is given a reasonable opportunity to seek the advice of independent legal counsel in connection therewith.

(i) A lawyer shall not acquire a proprietary interest in the cause of action or subject matter of litigation the lawyer is conducting for a client, except that the lawyer may:

(1) Acquire a lien granted by law to secure the lawyer's fee or expenses; and

(2) Contract with a client for a reasonable contingent fee in a civil case.

(j) A lawyer shall not have sexual relations with a client unless a consensual sexual relationship existed between them when the client-lawyer relationship commenced.

(k) While lawyers are associated in a firm, a prohibition in the foregoing subsection (a) through (i) that applies to any one of them shall apply to all of them.

(P.B. 1978-1997, Rule 1.8.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 11, 2021, to take effect Jan. 1, 2022.)

COMMENTARY: **Business Transactions between Client and Lawyer.** Subsection (a) expressly applies to former clients as well as existing clients. A lawyer's legal skill and training, together with the relationship of trust and confidence between lawyer and client, create the possibility of overreaching when the lawyer participates in a business, property or financial transaction with a client, for example, a loan or sales transaction or a lawyer investment on behalf of a client. The requirements of subsection (a) must be met even when the transaction is not closely related to the subject matter of the representation, as when a lawyer drafting a will for a client learns that the client needs money for unrelated expenses and offers to make a loan to the client. It also applies to lawyers purchasing property from estates they represent. It does not apply to ordinary fee arrangements between client and lawyer, which are governed by Rule 1.5, although its requirements must be met when the lawyer accepts an interest in the client's business or other nonmonetary property as payment of all or part of a fee. In addition, the Rule does not apply to standard commercial transactions between the lawyer and the client for products or services that the client generally markets to others, for example, banking or brokerage services, products manufactured or distributed by the client, and utilities' services. In such transactions, the lawyer has no advantage in dealing with the client, and the restrictions in subsection (a) are unnecessary and impracticable.

Subsection (a) (1) requires that the transaction itself be fair to the client and that its essential terms be communicated to the client, in writing, in a manner that can be reasonably understood. Subsection (a) (2) requires that the client also be advised, in writing, of the desirability of seeking the advice of independent legal counsel. It also requires that the client be given a reasonable opportunity to obtain such advice. Subsection (a) (3) requires that the lawyer obtain the client's informed consent, in a writing signed by the client, both to the essential terms of the transaction and to the lawyer's role. When necessary, the lawyer should discuss both the material risks of the proposed transaction, including any risk presented by the lawyer's involvement, and the existence of reasonably available alternatives and should explain why the advice of independent legal counsel is desirable. See Rule 1.0 (f) (definition of informed consent).

The risk to a client is greatest when the client expects the lawyer to represent the client in the transaction itself or when the lawyer's financial interest otherwise poses a significant risk that the lawyer's representation of the client will be materially limited by the lawyer's financial interest in the transaction. Here, the lawyer's role requires that the lawyer must comply, not only with the requirements of subsection (a), but also with the requirements of Rule 1.7. Under that Rule, the lawyer must disclose the risks associated with the lawyer's dual role as both legal adviser and participant in the transaction, such as the risk that the lawyer will structure the transaction or give legal advice in a way that favors the lawyer's interests at the expense of the client. Moreover, the lawyer must obtain the client's informed consent. In some cases, the lawyer's interest may be such that Rule 1.7 will preclude the lawyer from seeking the client's consent to the transaction.

If the client is independently represented in the transaction, subsection (a) (2) of this Rule is inapplicable, and the subsection (a) (1) requirement for full disclosure is satisfied either by a written disclosure by the lawyer involved in the transaction or by the client's independent counsel. The fact that the client was independently represented in the transaction is relevant in determining whether the agreement was fair and reasonable to the client as subsection (a) (1) further requires.

Use of Information Related to Representation. Use of information relating to the representation to the disadvantage of the client violates the lawyer's duty of loyalty. Subsection (b) applies when the information is used to benefit either the lawyer or a third person, such as another client or business associate of the lawyer. For example, if a lawyer learns that a client intends to purchase and develop several parcels of land, the lawyer may not use that information to purchase one of the parcels in competition with the client or to recommend that another client make such a purchase. The Rule does not prohibit uses that do not disadvantage the client. For example, a lawyer who learns a government agency's interpretation of trade legislation during the representation of one client may properly use that information to benefit other clients. Subsection (b) prohibits disadvantageous use of client information unless the client gives informed consent, except as permitted or required by these Rules. See Rules 1.2 (d), 1.6, 1.9 (c), 3.3, 4.1 (b), 8.1 and 8.3.

Gifts to Lawyers. A lawyer may accept a gift from a client, if the transaction meets general standards of fairness. For example, a simple gift such as a present given at a holiday or as a token of appreciation is permitted. If a client offers the lawyer a more substantial gift, subsection (c) does not prohibit the lawyer from accepting it, although such a gift may be voidable by the client under the doctrine of undue influence, which treats client gifts as presumptively fraudulent. In any event, due to concerns about overreaching and imposition on clients, a lawyer may not suggest that a substantial gift be made to the lawyer or for the lawyer's benefit, except where the lawyer is related to the client as set forth in paragraph (c).

If effectuation of a substantial gift requires preparing a legal instrument such as a will or conveyance, the client should have the detached advice that another lawyer can provide. The sole exception to this Rule is where the client is a relative of the donee.

This Rule does not prohibit a lawyer from seeking to have the lawyer or a partner or associate of the lawyer named as executor of the client's estate or to another potentially lucrative fiduciary position. Nevertheless, such appointments will be subject to the general conflict of interest provision in Rule 1.7 when there is a significant risk that the lawyer's interest in obtaining the appointment will materially limit the lawyer's independent professional judgment in advising the client concerning the choice of an executor or other fiduciary. In obtaining the client's informed consent to the conflict, the lawyer should advise the client concerning the nature and extent of the lawyer's financial interest in the appointment, as well as the availability of alternative candidates for the position.

Literary Rights. An agreement by which a lawyer acquires literary or media rights concerning the conduct of the representation creates a conflict between the interests of the client and

the personal interests of the lawyer. Measures suitable in the representation of the client may detract from the publication value of an account of the representation. Subsection (d) does not prohibit a lawyer representing a client in a transaction concerning literary property from agreeing that the lawyer's fee shall consist of a share in ownership in the property, if the arrangement conforms to Rule 1.5 and subsections (a) and (i).

Financial Assistance. Lawyers may not subsidize lawsuits or administrative proceedings brought on behalf of their clients, including making or guaranteeing loans to their clients for living expenses, because to do so would encourage clients to pursue lawsuits that might not otherwise be brought and because such assistance gives lawyers too great a financial stake in the litigation. These dangers do not warrant a prohibition on a lawyer lending a client court costs and litigation expenses, including the expenses of medical examination and the costs of obtaining and presenting evidence, because these advances are virtually indistinguishable from contingent fees and help ensure access to the courts. Similarly, an exception allowing lawyers representing indigent clients to pay court costs and litigation expenses regardless of whether these funds will be repaid is warranted.

Subsection (e) (3) provides another exception. A lawyer representing an indigent client who does not pay a fee may give the client gifts in the form of modest contributions toward basic necessities of life such as food, shelter, transportation, clothing, and medicine. If the gift may have consequences for the client, including, e.g., for receipt of government benefits, social services, or tax liability, the lawyer should consult with the client about such consequences. See Rule 1.4.

The subsection (e) (3) exception is narrow. Modest contributions towards basic necessities are allowed only in circumstances where it is unlikely to create conflicts of interest or invite abuse.

Financial assistance, including modest gifts pursuant to subsection (e) (3), may be provided even if the representation is eligible for fees under a fee-shifting statute. However, subsection (e) (3) does not permit lawyers to provide assistance in other contemplated or pending litigation in which the lawyer may eventually recover a fee, such as contingent-fee personal injury cases or cases in which fees may be available under a contractual fee-shifting provision, even if the lawyer does not eventually receive a fee.

Person Paying for a Lawyer's Services. Subsection (f) requires disclosure of the fact that the lawyer's services are being paid for by a third party. Such an arrangement must also conform to the requirements of Rule 1.6 concerning confidentiality and Rule 1.7 concerning conflict of interest. Where the client is a class, consent may be obtained on behalf of the class by court-supervised procedure.

Lawyers are frequently asked to represent a client under circumstances in which a third person will compensate the lawyer, in whole or in part. The third person might be a relative or friend, an indemnitor (such as a liability insurance company) or a co-client (such as a corporation sued along with one or more of its employees). Because third-party payers frequently have interests that differ from those of the client, including interests in minimizing the amount spent on the representation and in learning how the representation is progressing, lawyers are prohibited from accepting or continuing such representations unless the lawyer determines that there will be no interference with the lawyer's independent professional judgment and there is informed consent from the client. See also Rule 5.4 (c) (prohibiting interference with a lawyer's professional judgment by one who recommends, employs or pays the lawyer to render legal services for another).

Sometimes, it will be sufficient for the lawyer to obtain the client's informed consent regarding the fact of the payment and the identity of the third-party payer. If, however, the fee arrangement creates a conflict of interest for the lawyer, then the lawyer must comply with Rule 1.7. The lawyer must also conform to the requirements of Rule 1.6 concerning confidentiality. Under Rule 1.7 (a), a conflict of interest exists if there is significant risk that the lawyer's representation of the client will be materially limited by the lawyer's own interest in the fee arrangement or by the lawyer's responsibilities to the third-party payer (for example, when the third-party payer is a co-client). Under Rule 1.7 (b), the lawyer may accept or continue the representation with the informed consent of each affected client, unless the conflict is nonconsentable under that subsection. Under Rule 1.7 (b), the informed consent must be confirmed in writing.

Aggregate Settlements. Differences in willingness to make or accept an offer of settlement are among the risks of common representation of multiple clients by a single lawyer. Under Rule 1.7, this is one of the risks that should be discussed before undertaking the representation, as part of the process of obtaining the clients' informed consent. In addition, Rule 1.2 (a) protects each client's right to have the final say in deciding whether to accept or reject an offer of settlement and in deciding whether to enter a guilty or nolo contendere plea in a criminal case. The rule stated in this paragraph is a corollary of both these Rules and provides that, before any settlement offer or plea bargain is made or accepted on behalf of multiple clients, the lawyer must inform each of them about all the material terms of the settlement, including what the other clients will receive or pay if the settlement or plea offer is accepted. See also Rule 1.0 (f) (definition of informed consent). Lawyers representing a class of plaintiffs or defendants, or those proceeding derivatively, may not have a full client-lawyer relationship with each member of the class; nevertheless, such lawyers must comply with applicable rules regulating notification of class members and other procedural requirements designed to ensure adequate protection of the entire class.

Limiting Liability and Settling Malpractice Claims. Agreements prospectively limiting a lawyer's liability for malpractice are prohibited unless the client is independently represented in making the agreement because they are likely to undermine competent and diligent representation. Also, many clients are unable to evaluate the desirability of making such an agreement before a dispute has arisen, particularly if they are then represented by the lawyer seeking the agreement. This subsection does not, however, prohibit a lawyer from entering into an agreement with the client to arbitrate legal malpractice claims, provided such agreements are enforceable and the client is fully informed of the scope and effect of the agreement. Nor does this subsection limit the ability of lawyers to practice in the form of a limited-liability entity, where permitted by law, provided that each lawyer remains personally liable to the client for his or her own conduct and the firm complies with any conditions required by law, such as provisions requiring client notification or maintenance of adequate liability insurance. Nor does it prohibit an agreement in accordance with Rule 1.2 that defines the scope of the representation, although a definition of scope that makes the obligations of representation illusory will amount to an attempt to limit liability.

Agreements settling a claim or a potential claim for malpractice are not prohibited by this Rule. Nevertheless, in view of the danger that a lawyer will take unfair advantage of an unrepresented client or former client, the lawyer must first advise such a person in writing of the appropriateness of independent representation in connection with such a settlement. In addition, the lawyer must give the client or former client a reasonable opportunity to find and consult independent counsel.

Acquiring Proprietary Interest in Litigation. Subsection (i) states the traditional general rule that lawyers are prohibited

from acquiring a proprietary interest in litigation. Like subsection (e), the general rule, which has its basis in common-law champerty and maintenance, is designed to avoid giving the lawyer too great an interest in the representation. In addition, when the lawyer acquires an ownership interest in the subject of the representation, it will be more difficult for a client to discharge the lawyer if the client so desires. The Rule is subject to specific exceptions developed in decisional law and continued in these Rules. The exception for certain advances of the costs of litigation is set forth in subsection (e). In addition, subsection (i) sets forth exceptions for liens authorized by law to secure the lawyer's fees or expenses and contracts for reasonable contingent fees. The law of each jurisdiction determines which liens are authorized by law. These may include liens granted by statute, liens originating in common law and liens acquired by contract with the client. When a lawyer acquires by contract a security interest in property other than that recovered through the lawyer's efforts in the litigation, such an acquisition is a business or financial transaction with a client and is governed by the requirements of subsection (a). Contracts for contingent fees in civil cases are governed by Rule 1.5.

Client-Lawyer Sexual Relationships. The relationship between lawyer and client is a fiduciary one in which the lawyer occupies the highest position of trust and confidence. The relationship is almost always unequal; thus, a sexual relationship between lawyer and client can involve unfair exploitation of the lawyer's fiduciary role, in violation of the lawyer's basic ethical obligation not to use the trust of the client to the client's disadvantage. In addition, such a relationship presents a significant danger that, because of the lawyer's emotional involvement, the lawyer will be unable to represent the client without impairment of the exercise of independent professional judgment. Moreover, a blurred line between the professional and personal relationships may make it difficult to predict to what extent client confidences will be protected by the attorney-client evidentiary privilege, since client confidences are protected by privilege only when they are imparted in the context of the client-lawyer relationship. Because of the significant danger of harm to client interest and because the client's own emotional involvement renders it unlikely that the client could give adequate informed consent, this Rule prohibits the lawyer from having sexual relations with a client regardless of whether the relationship is consensual and regardless of the absence of prejudice to the client.

Sexual relationships that predate the client-lawyer relationship are not prohibited. Issues relating to the exploitation of the fiduciary relationship and client dependency are diminished when the sexual relationship existed prior to the commencement of the client-lawyer relationship. However, before proceeding with the representation in these circumstances, the lawyer should consider whether the lawyer's ability to represent the client will be materially limited by the relationship. See Rule 1.7 (a) (2).

Imputation of Prohibitions. Under subsection (k), a prohibition on conduct by an individual lawyer in subsections (a) through (i) also applies to all lawyers associated in a firm with the personally prohibited lawyer. The prohibition set forth in subsection (j) is personal and is not applied to associated lawyers.

Rule 1.9. Duties to Former Clients

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) A lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's interests are materially adverse to the interests of the former client unless the former client gives informed consent, confirmed in writing.

(b) A lawyer shall not knowingly represent a person in the same or a substantially related matter in which a firm with which the lawyer formerly was associated had previously represented a client:

(1) whose interests are materially adverse to that person; and

(2) about whom the lawyer had acquired information protected by Rules 1.6 and 1.9 (c) that is material to the matter; unless the former client gives informed consent, confirmed in writing.

(c) A lawyer who has formerly represented a client in a matter or whose present or former firm has formerly represented a client in a matter shall not thereafter:

(1) use information relating to the representation to the disadvantage of the former client except as these Rules would permit or require with respect to a client, or when the information has become generally known; or

(2) reveal information relating to the representation except as these Rules would permit or require with respect to a client.

(P.B. 1978-1997, Rule 1.9.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: After termination of a client-lawyer relationship, a lawyer has certain continuing duties with respect to confidentiality and conflicts of interest and thus may not represent another client except in conformity with this Rule. Under this Rule, for example, a lawyer could not properly seek to rescind on behalf of a new client a contract drafted on behalf of the former client. So also a lawyer who has prosecuted an accused person could not properly represent the accused in a subsequent civil action against the government concerning the same transaction. Nor could a lawyer who has represented multiple clients in a matter represent one of the clients against the interest of the others in the same or a substantially related matter after a dispute arose among the clients in that matter, unless all affected clients give informed consent. See last paragraph of this Commentary, below. Current and former government lawyers must comply with this Rule to the extent required by Rule 1.11.

The scope of a "matter" for purposes of this Rule depends on the facts of a particular situation or transaction. The lawyer's involvement in a matter can also be a question of degree. When a lawyer has been directly involved in a specific transaction, subsequent representation of other clients with materially adverse interests in that transaction clearly is prohibited. On the other hand, a lawyer who recurrently handled a type of problem for a former client is not precluded from later representing another client in a factually distinct problem of that type even though the subsequent representation involves a position adverse to the prior client. Similar considerations can apply to the reassignment of military lawyers between defense and prosecution functions within the same military jurisdictions. The underlying question is whether the lawyer was so involved in the matter that the subsequent representation can be justly regarded as a changing of sides in the matter in question.

Matters are "substantially related" for purposes of this Rule if they involve the same transaction or legal dispute or if there otherwise is a substantial risk that confidential factual information as would normally have been obtained in the prior representation would materially advance the client's position in the subsequent

matter. For example, a lawyer who has represented a businessperson and learned extensive private financial information about that person may not then represent that person's spouse in seeking a divorce. Similarly, a lawyer who has previously represented a client in securing environmental permits to build a shopping center would be precluded from representing neighbors seeking to oppose rezoning of the property on the basis of environmental considerations; however, the lawyer would not be precluded, on the grounds of substantial relationship, from defending a tenant of the completed shopping center in resisting eviction for nonpayment of rent. Information that has been disclosed to the public or to other parties adverse to the former client ordinarily will not be disqualifying. Information acquired in a prior representation may have been rendered obsolete by the passage of time, a circumstance that may be relevant in determining whether two representations are substantially related. In the case of an organizational client, general knowledge of the client's policies and practices ordinarily will not preclude a subsequent representation; on the other hand, knowledge of specific facts gained in a prior representation that are relevant to the matter in question ordinarily will preclude such a representation. A former client is not required to reveal the confidential information learned by the lawyer in order to establish a substantial risk that the lawyer has confidential information to use in the subsequent matter. A conclusion about the possession of such information may be based on the nature of the services the lawyer provided the former client and information that would in ordinary practice be learned by a lawyer providing such services.

Lawyers Moving between Firms. When lawyers have been associated within a firm but then end their association, the question of whether a lawyer should undertake representation is more complicated. There are several competing considerations. First, the client previously represented by the former firm must be reasonably assured that the principle of loyalty to the client is not compromised. Second, the rule should not be so broadly cast as to preclude other persons from having reasonable choice of legal counsel. Third, the rule should not unreasonably hamper lawyers from forming new associations and taking on new clients after having left a previous association. In this connection, it should be recognized that today many lawyers practice in firms, that many lawyers to some degree limit their practice to one field or another, and that many move from one association to another several times in their careers. If the concept of imputation were applied with unqualified rigor, the result would be radical curtailment of the opportunity of lawyers to move from one practice setting to another and of the opportunity of clients to change counsel.

Subsection (b) operates to disqualify the lawyer only when the lawyer involved has actual knowledge of information protected by Rules 1.6 and 1.9 (c). Thus, if a lawyer, while with one firm acquired no knowledge or information relating to a particular client of the firm, and that lawyer later joined another firm, neither the lawyer individually nor the second firm is disqualified from representing another client in the same or a related matter even though the interests of the two clients conflict. See Rule 1.10 (b) for the restrictions on a firm once a lawyer has terminated association with the firm.

Application of subsection (b) depends on a situation's particular facts, aided by inferences, deductions or working presumptions that reasonably may be made about the way in which lawyers work together. A lawyer may have general access to files of all clients of a law firm and may regularly participate in discussions of their affairs; it should be inferred that such a lawyer in fact is privy to all information about all the firm's clients. In contrast, another lawyer may have access to the files of only a limited number of clients and participate in discussions of the affairs of no other clients; in the absence of information to the contrary, it should be inferred that such a lawyer in fact is privy to information about the clients actually served but not those of other clients. In such an inquiry, the burden of proof rests upon the firm whose disqualification is sought.

Independent of the question of disqualification of a firm, a lawyer changing professional association has a continuing duty to preserve confidentiality of information about a client formerly represented. See Rules 1.6 and 1.9 (c).

Subsection (c) provides that information acquired by the lawyer in the course of representing a client may not subsequently be used or revealed by the lawyer to the disadvantage of the client. However, the fact that a lawyer has once served a client does not preclude the lawyer from using generally known information about that client when later representing another client.

The provisions of this Rule are for the protection of former clients and can be waived if the client gives informed consent, which consent must be confirmed in writing under subsections (a) and (b). See Rule 1.0 (f). With regard to the effectiveness of an advance waiver, see Commentary to Rule 1.7. With regard to disqualification of a firm with which a lawyer is or was formerly associated, see Rule 1.10.

Rule 1.10. Imputation of Conflicts of Interest: General Rule

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) While lawyers are associated in a firm, none of them shall knowingly represent a client when any one of them practicing alone would be prohibited from doing so by Rules 1.7 or 1.9, unless:

(1) the prohibition is based on a personal interest of the disqualified lawyer and does not present a significant risk of materially limiting the representation of the client by the remaining lawyers in the firm; or

(2) the prohibition is based upon Rule 1.9 (a) or 1.9 (b) and arises out of the disqualified lawyer's association with a prior firm, and

(A) the disqualified lawyer is timely screened from any participation in the matter and is apportioned no part of the fee therefrom;

(B) written notice is promptly given to any affected former client to enable the former client to ascertain compliance with the provisions of this Rule, which shall include a description of the screening procedures employed; a statement of the firm's and of the screened lawyer's compliance with these Rules; a statement that review may be available before a tribunal; and an agreement by the firm to respond promptly to any written inquiries or objections by the former client about the screening procedures; and

(C) certifications of compliance with these Rules and with the screening procedures are provided to the former client by the screened lawyer and by a partner of the firm, at reasonable intervals upon the former client's written request and upon termination of the screening procedures.

(b) When a lawyer has terminated an association with a firm, the firm is not prohibited from thereafter representing a person with interests materially adverse to those of a client represented by the

formerly associated lawyer and not currently represented by the firm, unless:

(1) The matter is the same or substantially related to that in which the formerly associated lawyer represented the client; and

(2) Any lawyer remaining in the firm has information protected by Rules 1.6 and 1.9 (c) that is material to the matter.

(c) A disqualification prescribed by this Rule may be waived by the affected client under the conditions stated in Rule 1.7.

(d) The disqualification of lawyers associated in a firm with former or current government lawyers is governed by Rule 1.11.

(P.B. 1978-1997, Rule 1.10.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 15, 2012, to take effect Jan. 1, 2013.)

COMMENTARY: **Definition of "Firm."** For purposes of the Rules of Professional Conduct, the term "firm" denotes lawyers in a law partnership, professional corporation, sole proprietorship or other association authorized to practice law; or lawyers employed in a legal services organization or the legal department of a corporation or other organization. See Rule 1.0 (d). Whether two or more lawyers constitute a firm within this definition can depend on the specific facts. See Rule 1.0 and its Commentary.

Principles of Imputed Disqualification. The rule of imputed disqualification stated in subsection (a) gives effect to the principle of loyalty to the client as it applies to lawyers who practice in a law firm. Such situations can be considered from the premise that a firm of lawyers is essentially one lawyer for purposes of the rules governing loyalty to the client, or from the premise that each lawyer is vicariously bound by the obligation of loyalty owed by each lawyer with whom the lawyer is associated. Subsection (a) operates only among the lawyers currently associated in a firm. When a lawyer moves from one firm to another, the situation is governed by Rules 1.9 (b) and 1.10 (b).

The Rule in subsection (a) does not prohibit representation where neither questions of client loyalty nor protection of confidential information are presented. Where one lawyer in a firm could not effectively represent a given client because of strong political beliefs, for example, but that lawyer will do no work on the case and the personal beliefs of the lawyer will not materially limit the representation by others in the firm, the firm should not be disqualified. On the other hand, if an opposing party in a case were owned by a lawyer in the law firm, and others in the firm would be materially limited in pursuing the matter because of loyalty to that lawyer, the personal disqualification of the lawyer would be imputed to all others in the firm.

The Rule in subsection (a) also does not prohibit representation by others in the law firm where the person prohibited from involvement in a matter is a nonlawyer, such as a paralegal or legal secretary. Nor does subsection (a) prohibit representation if the lawyer is prohibited from acting because of events before the person became a lawyer, for example, work that the person did while a law student. Such persons, however, must be screened from any personal participation in the matter to avoid communication to others in the firm of confidential information that both the nonlawyers and the firm have a legal duty to protect. See Rules 1.0 (k) and 5.3.

Rule 1.10 (b) operates to permit a law firm, under certain circumstances, to represent a person with interests directly adverse to those of a client represented by a lawyer who formerly was associated with the firm. The Rule applies regardless of when the formerly associated lawyer represented the client. However, the law firm may not represent a person with interests adverse to those of a present client of the firm, which would violate Rule 1.7. Moreover, the firm may not represent the person where the matter is the same or substantially related to that in which the formerly associated lawyer represented the client and any other lawyer currently in the firm has material information protected by Rules 1.6 and 1.9 (c).

Rule 1.10 (c) removes imputation with the informed consent of the affected client or former client under the conditions stated in Rule 1.7. The conditions stated in Rule 1.7 require the lawyer to determine that the representation is not prohibited by Rule 1.7 (b) and that each affected client or former client has given informed consent to the representation, confirmed in writing. In some cases, the risk may be so severe that the conflict may not be cured by client consent. For a discussion of the effectiveness of client waivers of conflicts that might arise in the future, see Rule 1.7 and its commentary. For a definition of informed consent, see Rule 1.0 (f).

Rule 1.10 (a) (2) similarly removes the imputation otherwise required by Rule 1.10 (a), but unlike subsection (c), it does so without requiring that there be informed consent by the former client. Instead, it requires that the procedures laid out in subparagraphs (A) through (C) of subsection (a) (2) be followed. A description of effective screening mechanisms appears in Rule 1.0 (*l*) and commentary thereto. Lawyers should be aware, however, that, even where screening mechanisms have been adopted, tribunals may consider additional factors in ruling upon motions to disqualify a lawyer from pending litigation.

Subparagraph (A) of subsection (a) (2) does not prohibit the screened lawyer from receiving a salary or partnership share established by prior independent agreement, but that lawyer may not receive compensation directly related to the matter in which the lawyer is disqualified.

The notice required by subparagraph (B) of subsection (a) (2) generally should include a description of the screened lawyer's prior representation and be given as soon as practicable after the need for screening becomes apparent. It also should include a statement by the screened lawyer and the firm that the client's material confidential information has not been disclosed or used in violation of the Rules. The notice is intended to enable the former client to evaluate and comment upon the effectiveness of the screening procedures.

The certifications required by subparagraph (C) of subsection (a) (2) give the former client assurance that the client's material confidential information has not been disclosed or used inappropriately, either prior to timely implementation of a screen or thereafter. If compliance cannot be certified, the certificate must describe the failure to comply.

Where a lawyer has joined a private firm after having represented the government, imputation is governed by Rule 1.11 (b) and (c), not this Rule. Under Rule 1.11 (d), where a lawyer represents the government after having served clients in private practice, nongovernmental employment or in another government agency, former-client conflicts are not imputed to government lawyers associated with the individually disqualified lawyer.

Where a lawyer is prohibited from engaging in certain transactions under Rule 1.8, subsection (k) of that Rule, and not this Rule, determines whether that prohibition also applies to other lawyers associated in a firm with the personally prohibited lawyer.

Rule 1.11. Special Conflicts of Interest for Former and Current Government Officers and Employees

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) Except as law may otherwise expressly permit, a lawyer who has formerly served as a public officer or employee of the government:

(1) is subject to Rule 1.9 (c); and

(2) shall not otherwise represent a client in connection with a matter in which the lawyer participated personally and substantially as a public officer or employee, unless the appropriate government agency gives its informed consent, confirmed in writing, to the representation.

(b) When a lawyer is disqualified from representation under subsection (a), no lawyer in a firm with which that lawyer is associated may knowingly undertake or continue representation in such a matter unless:

(1) The disqualified lawyer is timely screened from any participation in the matter and is apportioned no part of the fee therefrom; and

(2) Written notice is promptly given to the appropriate government agency to enable it to ascertain compliance with the provisions of this Rule.

(c) Except as law may otherwise expressly permit, a lawyer having information that the lawyer knows is confidential government information about a person acquired when the lawyer was a public officer or employee, may not represent a private client whose interests are adverse to that person in a matter in which the information could be used to the material disadvantage of that person. As used in this Rule, the term "confidential government information" means information that has been obtained under governmental authority and which, at the time this Rule is applied, the government is prohibited by law from disclosing to the public or has a legal privilege not to disclose and which is not otherwise available to the public. A firm with which that lawyer is associated may undertake or continue representation in the matter only if the disqualified lawyer is timely screened from any participation in the matter and is apportioned no part of the fee therefrom.

(d) Except as law may otherwise expressly permit, a lawyer currently serving as a public officer or employee:

(1) Is subject to Rules 1.7 and 1.9; and

(2) Shall not:

(A) Participate in a matter in which the lawyer participated personally and substantially while in private practice or nongovernmental employment, unless the appropriate government agency gives its informed consent, confirmed in writing; or

(B) Negotiate for private employment with any person who is involved as a party or as lawyer for a party in a matter in which the lawyer is participating personally and substantially; except that a lawyer serving as a law clerk to a judge, other adjudicative officer or arbitrator may negotiate for private employment as permitted by Rule 1.12 (b) and subject to the conditions stated in Rule 1.12 (b).

(e) Grievance counsel, disciplinary counsel and bar counsel as well as members of the Statewide Grievance Committee and grievance panels shall not represent any party other than the state with respect to an unauthorized practice of law complaint or attorney grievance matter, while serving as such. In addition, such counsel and members shall not represent an individual or entity investigated or prosecuted for the unauthorized practice of law or an attorney investigated or prosecuted with respect to an attorney grievance matter if that specific unauthorized practice of law complaint or attorney grievance matter was pending in their office or with their committee or panel at the time of such counsel's or member's termination of employment or service as such grievance counsel, disciplinary counsel, bar counsel or member of the Statewide Grievance Committee or a grievance panel.

(f) As used in this Rule, the term "matter" includes:

(1) Any judicial or other proceeding, application, request for a ruling or other determination, contract, claim, controversy, investigation, charge, accusation, arrest or other particular matter involving a specific party or parties, and

(2) Any other matter covered by the conflict of interest rules of the appropriate government agency.

(P.B. 1978-1997, Rule 1.11.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 15, 2018, to take effect Jan. 1, 2019.)

COMMENTARY: A lawyer who has served or is currently serving as a public officer or employee is personally subject to the Rules of Professional Conduct, including the prohibition against concurrent conflicts of interest stated in Rule 1.7. In addition, such a lawyer may be subject to statutes and government regulations regarding conflicts of interest. Such statutes and regulations may circumscribe the extent to which the government agency may give consent under this Rule. See Rule 1.0 (f) for the definition of informed consent.

Subsections (a) (1), (a) (2) and (d) (1) restate the obligations of an individual lawyer who has served or is currently serving as an officer or employee of the government toward a former government or private client. Rule 1.10 is not applicable to the conflicts of interest addressed by this Rule. Rather, subsection (b) sets forth a special imputation rule for former government lawyers that provides for screening and notice. Because of the special problems raised by imputation within a government agency, subsection (d) does not impute the conflicts of a lawyer currently serving as an officer or employee of the government to other associated government officers or employees, although ordinarily it will be prudent to screen such lawyers.

Subsections (a) (2) and (d) (2) apply regardless of whether a lawyer is adverse to a former client and are thus designed not only to protect the former client, but also to prevent a lawyer from exploiting public office for the advantage of another client. For example, a lawyer who has pursued a claim on behalf of the government may not pursue the same claim on behalf of a later private client after the lawyer has left government service, except when authorized to do so by the government agency

under subsection (a). Similarly, a lawyer who has pursued a claim on behalf of a private client may not pursue the claim on behalf of the government, except when authorized to do so by subsection (d). As with subsections (a) (1) and (d) (1), Rule 1.10 is not applicable to the conflicts of interest addressed by these subsections.

This Rule represents a balancing of interests. On the one hand, where the successive clients are a government agency and another client, public or private, the risk exists that power or discretion vested in that agency might be used for the special benefit of the other client. A lawyer should not be in a position where benefit to the other client might affect performance of the lawyer's professional functions on behalf of the government. Also, unfair advantage could accrue to the other client by reason of access to confidential government information about the client's adversary, obtainable only through the lawyer's government service. On the other hand, the rules governing lawyers presently or formerly employed by a government agency should not be so restrictive as to inhibit transfer of employment to and from the government. The government has a legitimate need to attract qualified lawyers as well as to maintain high ethical standards. Thus, a former government lawyer is disqualified only from particular matters in which the lawyer participated personally and substantially. The provisions for screening and waiver in subsection (b) are necessary to prevent the disqualification rule from imposing too severe a deterrent against entering public service. The limitation of disqualification in subsections (a) (2) and (d) (2) to matters involving a specific party or parties, rather than extending disqualification to all substantive issues on which the lawyer worked, serves a similar function.

When a lawyer has been employed by one government agency and then moves to a second government agency, it may be appropriate to treat that second agency as another client for purposes of this Rule, as when a lawyer is employed by a city and subsequently is employed by a federal agency. However, because the conflict of interest is governed by subsection (d), the latter agency is not required to screen the lawyer as subsection (b) requires a law firm to do. The question of whether two government agencies should be regarded as the same or different clients for conflict of interest purposes is beyond the scope of these Rules. See Commentary to Rule 1.13.

Subsections (b) and (c) contemplate a screening arrangement. See Rule 1.0 (*l*) (requirements for screening procedures). These subsections do not prohibit a lawyer from receiving a salary or partnership share established by prior independent agreement, but that lawyer may not receive compensation directly relating the lawyer's compensation to the fee in the matter in which the lawyer is disqualified.

Notice, including a description of the screened lawyer's prior representation and of the screening procedures employed, generally should be given as soon as practicable after the need for screening becomes apparent.

Subsection (c) operates only when the lawyer in question has knowledge of the information, which means actual knowledge; it does not operate with respect to information that merely could be imputed to the lawyer.

Subsections (a) and (d) do not prohibit a lawyer from jointly representing a private party and a government agency when doing so is permitted by Rule 1.7 and is not otherwise prohibited by law.

For purposes of subsection (e), an "unauthorized practice of law complaint" means a complaint alleging conduct covered by General Statutes § 51-88. "Attorney grievance matter" means any grievance complaint, investigation, presentment, interim suspension, disability, resignation, reinstatement, reciprocal discipline, discipline following a finding of guilt of a serious crime or inactive status matter.

For purposes of subsection (f) of this Rule, a "matter" may continue in another form. In determining whether two particular matters are the same, the lawyer should consider the extent to which the matters involve the same basic facts, the same or related parties, and the time elapsed.

Rule 1.12. Former Judge, Arbitrator, Mediator or Other Third-Party Neutral

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) Except as stated in subsection (d), a lawyer shall not represent anyone in connection with a matter in which the lawyer participated personally and substantially as a judge or other adjudicative officer or law clerk to such a person or as an arbitrator, mediator or other third-party neutral, unless all parties to the proceeding give informed consent, confirmed in writing.

(b) A lawyer shall not negotiate for employment with any person who is involved as a party or as lawyer for a party in a matter in which the lawyer is participating personally as a judge or other adjudicative officer, or as an arbitrator, mediator or other third-party neutral. A lawyer serving as a law clerk to a judge or other adjudicative officer may negotiate for employment with a party or lawyer involved in a matter in which the clerk is participating personally, but only after the lawyer has notified the judge or other adjudicative officer.

(c) If a lawyer is disqualified by subsection (a), no lawyer in a firm with which that lawyer is associated may knowingly undertake or continue representation in the matter unless:

(1) The disqualified lawyer is timely screened from any participation in the matter and is apportioned no part of the fee therefrom; and

(2) Written notice is promptly given to the parties and any appropriate tribunal to enable them to ascertain compliance with the provisions of this Rule.

(d) An arbitrator selected as a partisan of a party in a multi-member arbitration panel is not prohibited from subsequently representing that party.

(P.B. 1978-1997, Rule 1.12.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 13, 2014, to take effect Jan. 1, 2015.)

COMMENTARY: This Rule generally parallels Rule 1.11. The term "personally and substantially" signifies that a judge who was a member of a multi-member court, and thereafter left judicial office to practice law, is not prohibited from representing a client in a matter pending in the court, but in which the former judge did not participate. So also the fact that a former judge exercised administrative responsibility in a court does not prevent the former judge from acting as a lawyer in a matter where the judge had previously exercised remote or incidental administrative responsibility that did not affect the merits. Compare the Commentary to Rule 1.11. Participation

on the merits or in settlement discussions is considered personal and substantial. Nominal or ministerial responsibility is not considered personal and substantial.

Like former judges, lawyers who have served as arbitrators, mediators or other third-party neutrals may be asked to represent a client in a matter in which the lawyer participated personally. This Rule forbids such representation unless all of the parties to the proceedings give their informed consent, confirmed in writing. See Rule 1.0 (c) and (f). Other law or codes of ethics governing third-party neutrals may impose more stringent standards of personal or imputed disqualification. See Rule 2.4.

Although lawyers who serve as third-party neutrals do not have information concerning the parties that is protected under Rule 1.6, they typically owe the parties an obligation of confidentiality under law or codes of ethics governing third-party neutrals. Thus, subsection (c) provides that conflicts of the personally disqualified lawyer will be imputed to other lawyers in a law firm unless the conditions of this subsection are met.

Requirements for screening procedures are stated in Rule 1.0 (*l*). Subsection (c) (1) does not prohibit the screened lawyer from receiving a salary or partnership share established by prior independent agreement, but that lawyer may not receive compensation directly related to the matter in which the lawyer is disqualified.

Notice, including a description of the screened lawyer's prior representation and of the screening procedures employed, generally should be given as soon as practicable after the need for screening becomes apparent.

Rule 1.13. Organization as Client

(a) A lawyer employed or retained by an organization represents the organization acting through its duly authorized constituents.

(b) If a lawyer for an organization knows that an officer, employee or other person associated with the organization is engaged in action, intends to act or refuses to act in a matter related to the representation that is a violation of a legal obligation to the organization, or a violation of law that reasonably might be imputed to the organization, and that is likely to result in substantial injury to the organization, then the lawyer shall proceed as is reasonably necessary in the best interest of the organization.

Unless the lawyer reasonably believes that it is not in the best interest of the organization to do so, the lawyer shall refer the matter to higher authority in the organization, including, if warranted by the circumstances, to the highest authority that can act in behalf of the organization as determined by applicable law.

(c) Except as provided in subsection (d), if

(1) Despite the lawyer's efforts in accordance with subsection (b), the highest authority that can act on behalf of the organization insists upon or fails to address in a timely and appropriate manner an action, or a refusal to act, that is clearly a violation of law and

(2) The lawyer reasonably believes that the violation is reasonably certain to result in substantial injury to the organization, then the lawyer may reveal information relating to the representation whether or not Rule 1.6 permits such disclosure, but only if and to the extent the lawyer reasonably believes necessary to prevent substantial injury to the organization.

(d) Subsection (c) shall not apply with respect to information relating to a lawyer's representation of an organization to investigate an alleged violation of law, or to defend the organization or an officer, employee or other constituent associated with the organization against a claim arising out of an alleged violation of law.

(e) A lawyer who reasonably believes that he or she has been discharged because of the lawyer's actions taken pursuant to subsection (b) or (c), or who withdraws under circumstances that require or permit the lawyer to take action under either of those subsections, shall proceed as the lawyer reasonably believes necessary to assure that the organization's highest authority is informed of the lawyer's discharge or withdrawal.

(f) In dealing with an organization's directors, officers, employees, members, shareholders or other constituents, a lawyer shall explain the identity of the client when the lawyer knows or reasonably should know that the organization's interests are adverse to those of the constituents with whom the lawyer is dealing.

(g) A lawyer representing an organization may also represent any of its directors, officers, employees, members, shareholders or other constituents, subject to the provisions of Rule 1.7. If the organization's consent to the dual representation is required by Rule 1.7, the consent shall be given by an appropriate official of the organization other than the individual who is to be represented, or by the shareholders.

(P.B. 1978-1997, Rule 1.13.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: **The Entity as the Client.** An organizational client is a legal entity, but it cannot act except through its officers, directors, employees, shareholders and other constituents. Officers, directors, employees and shareholders are the constituents of the corporate organizational client. The duties defined in this Commentary apply equally to unincorporated associations. "Other constituents" as used in this Commentary means the positions equivalent to officers, directors, employees and shareholders held by persons acting for organizational clients that are not corporations.

When one of the constituents of an organizational client communicates with the organization's lawyer in that person's organizational capacity, the communication is protected by Rule 1.6. Thus, by way of example, if an organizational client requests its lawyer to investigate allegations of wrongdoing, interviews made in the course of that investigation between the lawyer and the client's employees or other constituents are covered by Rule 1.6. This does not mean, however, that constituents of an organizational client are the clients of the

lawyer. The lawyer may not disclose to such constituents information relating to the representation except for disclosures explicitly or impliedly authorized by the organizational client in order to carry out the representation or as otherwise permitted by Rule 1.6.

When constituents of the organization make decisions for it, the decisions ordinarily must be accepted by the lawyer even if their utility or prudence is doubtful. Decisions concerning policy and operations, including ones entailing serious risk, are not as such in the lawyer's province. Subsection (b) makes clear, however, that when the lawyer knows that the organization is likely to be substantially injured by action of an officer or other constituent that violates a legal obligation to the organization or is in violation of law that might be imputed to the organization, the lawyer must proceed as is reasonably necessary in the best interest of the organization. As defined in Rule 1.0 (g), knowledge can be inferred from circumstances, and a lawyer cannot ignore the obvious.

In determining how to proceed under subsection (b), the lawyer should give due consideration to the seriousness of the violation and its consequences, the responsibility in the organization and the apparent motivation of the persons involved, the policies of the organization concerning such matters, and any other relevant considerations. Ordinarily, referral to a higher authority would be necessary. In some circumstances, however, it may be appropriate for the lawyer to ask the constituent to reconsider the matter; for example, if the circumstances involve a constituent's innocent misunderstanding of law and subsequent acceptance of the lawyer's advice, the lawyer may reasonably believe conclude that the best interest of the organization does not require that the matter be referred to higher authority. If a constituent persists in conduct contrary to the lawyer's advice, it will be necessary for the lawyer to take steps to have the matter reviewed by a higher authority in the organization. If the matter is of sufficient seriousness and importance or urgency to the organization, referral to higher authority in the organization may be necessary even if the lawyer has not communicated with the constituent. Any measures taken should, to the extent practicable, minimize the risk of revealing information relating to the representation to persons outside the organization. Even in circumstances where a lawyer is not obligated by Rule 1.13 to proceed, a lawyer may bring to the attention of an organizational client, including its highest authority, matters that the lawyer reasonably believes to be of sufficient importance to warrant doing so in the best interest of the organization.

Subsection (b) also makes clear that when it is reasonably necessary to enable the organization to address the matter in a timely and appropriate manner, the lawyer must refer the matter to higher authority, including, if warranted by the circumstances, the highest authority that can act on behalf of the organization under applicable law. The organization's highest authority to whom a matter may be referred ordinarily will be the board of directors or similar governing body. However, applicable law may prescribe that under certain conditions the highest authority reposes elsewhere; for example, in the independent directors of a corporation.

Relation to Other Rules. The authority and responsibility provided in this Rule are concurrent with the authority and responsibility provided in other Rules. In particular, this Rule does not limit or expand the lawyer's responsibility under Rules 1.8, 1.16, 3.3 and 4.1. Subsection (c) of this Rule supplements Rule 1.6 (b) by providing an additional basis upon which the lawyer may reveal information relating to the representation, but does not modify, restrict, or limit the provisions of Rule 1.6 (b) (1) through (6). Under subsection (c) the lawyer may reveal such information only when the organization's highest authority insists upon or fails to address threatened or ongoing action that is clearly a violation of law, and then only to the extent the lawyer reasonably believes necessary to prevent reasonably certain substantial injury to the organization. It is not necessary that the lawyer's services be used in furtherance of the violation, but it is required that the matter be related to the lawyer's representation of the organization. If the lawyer's services are being used by an organization to further a crime or fraud by the organization, Rules 1.6 (b) (2) and 1.6 (b) (3) may permit the lawyer to disclose confidential information. In such circumstances, Rule 1.2 (d) may also be applicable, in which event, withdrawal from the representation under Rule 1.6 (a) (1) may be required.

Subsection (d) makes clear that the authority of a lawyer to disclose information relating to a representation in circumstances described in subsection (c) does not apply with respect to information relating to a lawyer's engagement by an organization to investigate an alleged violation of law or to defend the organization or an officer, employee or other person associated with the organization against a claim arising out of an alleged violation of law. This is necessary in order to enable organizational clients to enjoy the full benefits of legal counsel in conducting an investigation or defending against a claim.

A lawyer who reasonably believes that he or she has been discharged because of the lawyer's actions taken pursuant to subsection (b) or (c), or who withdraws in circumstances that require or permit the lawyer to take action under either of these subsections, must proceed as the lawyer reasonably believes necessary to assure that the organization's highest authority is informed of the lawyer's discharge or withdrawal.

Government Agency. The duty defined in this Rule applies to governmental organizations. Defining precisely the identity of the client and prescribing the resulting obligations of such lawyers may be more difficult in the government context and is a matter beyond the scope of these Rules. See Scope. Although in some circumstances the client may be a specific agency, it may also be a branch of government, such as the executive branch, or the government as a whole. For example, if the action or failure to act involves the head of a bureau, either the department of which the bureau is a part or the relevant branch of government may be the client for purposes of this Rule. Moreover, in a matter involving the conduct of government officials, a government lawyer may have authority under applicable law to question such conduct more extensively than that of a lawyer for a private organization in similar circumstances. Thus, when the client is a governmental organization, a different balance may be appropriate between maintaining confidentiality and assuring that the wrongful act is prevented or rectified, for public business is involved. In addition, duties of lawyers employed by the government or lawyers in military service may be defined by statutes and regulations. This Rule does not limit that authority. See Scope.

Clarifying the Lawyer's Role. There are times when the organization's interest may be or become adverse to those of one or more of its constituents. In such circumstances the lawyer should advise any constituent, whose interest the lawyer finds adverse to that of the organization of the conflict or potential conflict of interest, that the lawyer cannot represent such constituent, and that such person may wish to obtain independent representation. Care must be taken to assure that the individual understands that, when there is such adversity of interest, the lawyer for the organization cannot provide legal representation for that constituent individual, and that discussions between the lawyer for the organization and the individual may not be privileged.

Whether such a warning should be given by the lawyer for the organization to any constituent individual may turn on the facts of each case.

Dual Representation. Subsection (e) recognizes that a lawyer for an organization may also represent a principal officer or major shareholder.

Derivative Actions. Under generally prevailing law, the shareholders or members of a corporation may bring suit to compel the directors to perform their legal obligations in the supervision of the organization. Members of unincorporated associations have essentially the same right. Such an action may be brought nominally by the organization, but usually is, in fact, a legal controversy over management of the organization.

The question can arise whether counsel for the organization may defend such an action. The proposition that the organization is the lawyer's client does not alone resolve the issue. Most derivative actions are a normal incident of an organization's affairs, to be defended by the organization's lawyer like any other suit. However, if the claim involves serious charges of wrongdoing by those in control of the organization, a conflict may arise between the lawyer's duty to the organization and the lawyer's relationship with the board. In those circumstances, Rule 1.7 governs who should represent the directors and the organization.

Rule 1.14. Client with Impaired Capacity

(Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) When a client's capacity to make or communicate adequately considered decisions in connection with a representation is impaired, whether because of minority, mental impairment or for some other reason, the lawyer shall, as far as reasonably possible, maintain a normal client-lawyer relationship with the client.

(b) When the lawyer reasonably believes that the client is unable to make or communicate adequately considered decisions, is likely to suffer substantial physical, financial or other harm unless action is taken and cannot adequately act in the client's own interest, the lawyer may take reasonably necessary protective action, including consulting with individuals or entities that have the ability to take action to protect the client and, in appropriate cases, seeking the appointment of a legal representative.

(c) Information relating to the representation of a client with impaired capacity is protected by Rule 1.6. When taking protective action pursuant to subsection (b), the lawyer is impliedly authorized under Rule 1.6 (a) to reveal information about the client, but only to the extent reasonably necessary to protect the client's interests.

(P.B. 1978-1997, Rule 1.14.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 30, 2008, to take effect Jan. 1, 2009.)

COMMENTARY: The normal client-lawyer relationship is based on the assumption that the client, when properly advised and assisted, is capable of making decisions about important matters. When the client is a minor or is unable to make or communicate adequately considered decisions, however, maintaining the ordinary client-lawyer relationship may not be possible in all respects. In particular, a severely incapacitated person may have no power to make legally binding decisions. Nevertheless, a client with impaired capacity often has the ability to understand, deliberate upon, and reach conclusions about matters affecting the client's own well-being. For example, children as young as five or six years of age, and certainly those of ten or twelve, are regarded as having opinions that are entitled to weight in legal proceedings concerning their custody. So also, it is recognized that some persons of advanced age can be quite capable of handling routine financial matters while needing special legal protection concerning major transactions.

The fact that a client suffers a disability does not diminish the lawyer's obligation under these rules. Even if the person has a legal representative, the lawyer should as far as possible accord the represented person the status of client, particularly in maintaining communication.

The client may wish to have family members or other persons participate in discussions with the lawyer. When necessary to assist in the representation, the presence of such persons generally does not constitute a waiver of the attorney-client evidentiary privilege. Nevertheless, the lawyer must keep the client's interests foremost and, except for protective action authorized under subsection (b), must look to the client, and not family members, to make decisions on the client's behalf.

If a legal representative has already been appointed for the client, the lawyer should look to the representative for decisions on behalf of the client only when such decisions are within the scope of the authority of the legal representative. In matters involving a minor, whether the lawyer should look to the parents as natural guardians may depend on the type of proceeding or matter in which the lawyer is representing the minor. If the lawyer represents the guardian as distinct from the ward, and is aware that the guardian is acting adversely to the ward's interest, the lawyer may have an obligation to prevent or rectify the guardian's misconduct. See Rule 1.2 (d).

Taking Protective Action. If a lawyer reasonably believes that a client is likely to suffer substantial physical, financial or other harm unless action is taken, and that a normal client-lawyer relationship cannot be maintained as provided in subsection (a) because the client lacks sufficient capacity to communicate or to make adequately considered decisions in connection with the representation, then subsection (b) permits the lawyer to take protective measures deemed necessary. Such measures could include: consulting with family members, using a reconsideration period to permit clarification or improvement of circumstances, using voluntary surrogate decision-making tools such as durable powers of attorney or consulting with support groups, professional services, adult-protective agencies or other individuals or entities that have the ability to protect the client. In taking any protective action, the lawyer should be guided by such factors as the wishes and values of the client to the extent known, the client's best interests and the goals of intruding into the client's decision-making autonomy to the least extent feasible, maximizing client capacities and respecting the client's family and social connections.

In determining the extent of the client's impaired capacity, the lawyer should consider and balance such factors as: the client's ability to articulate reasoning leading to a decision, variability of state of mind and ability to appreciate consequences of a decision; the substantive fairness of a decision; and the consistency of a decision with the known long-term commitments and values of the client. In appropriate circumstances, the lawyer may seek guidance from an appropriate diagnostician.

If a legal representative has not been appointed, the lawyer should consider whether appointment of a legal representative is necessary to protect the client's interests. In addition, rules of procedure in litigation sometimes provide that minors or persons with impaired capacity must be represented by a guardian or next friend if they do not have a general guardian. In many circumstances, however, appointment of a legal representative may be more expensive or traumatic for the client than circumstances in fact require. Evaluation of such circumstances is a matter entrusted to the professional judgment of the lawyer. In considering alternatives, however, the lawyer should be aware of any law that requires the lawyer to advocate the least restrictive action on behalf of the client.

Disclosure of the Client's Condition. Disclosure of the client's impaired capacity could adversely affect the client's interests. For example, raising the question of impaired capacity could, in some circumstances, lead to proceedings for involuntary conservatorship and/or commitment. Information relating to the representation is protected by Rule 1.6. Therefore, unless authorized to do so by these rules or other law, the lawyer may not disclose such information. When taking protective action pursuant to subsection (b), the lawyer is impliedly authorized to make the necessary disclosures, even when the client directs the lawyer to the contrary. Nevertheless, given the risks of disclosure, subsection (c) limits what the lawyer may disclose in consulting with other individuals or entities or seeking the appointment of a legal representative. At the very least, the lawyer should determine whether it is likely that the person or entity consulted with will act adversely to the client's interests before discussing matters related to the client. The lawyer's position in such cases is an unavoidably difficult one.

Emergency Legal Assistance. In an emergency where the health, safety or a financial interest of a person with impaired capacity is threatened with imminent and irreparable harm, a lawyer may take legal action on behalf of such a person even though the person is unable to establish a client-lawyer relationship or to make or express considered judgments about the matter, when the person or another acting in good faith on that person's behalf has consulted with the lawyer. Even in such an emergency, however, the lawyer should not act unless the lawyer reasonably believes that the person has no other lawyer, agent or other representative available. The lawyer should take legal action on behalf of the person only to the extent reasonably necessary to maintain the status quo or otherwise avoid imminent and irreparable harm. A lawyer who undertakes to represent a person in such an exigent situation has the same duties under these Rules as the lawyer would with respect to a client.

A lawyer who acts on behalf of a person with impaired capacity in an emergency should keep the confidences of the person as if dealing with a client, disclosing them only to the extent necessary to accomplish the intended protective action. The lawyer should disclose to any tribunal involved and to any other counsel involved the nature of his or her relationship with the person. The lawyer should take steps to regularize the relationship or implement other protective solutions as soon as possible. Normally, a lawyer would not seek compensation for such emergency actions taken.

Rule 1.15. Safekeeping Property

(a) As used in this Rule, the terms below shall have the following meanings:

(1) "Allowable reasonable fees" for IOLTA accounts are per check charges, per deposit charges, a fee in lieu of a minimum balance, federal deposit insurance fees, sweep fees, and a reasonable IOLTA account administrative or maintenance fee.

(2) An "eligible institution" means (i) a bank or savings and loan association authorized by federal or state law to do business in Connecticut, the deposits of which are insured by an agency of the United States government, or (ii) an open-end investment company registered with the United States Securities and Exchange Commission and authorized by federal or state law to do business in Connecticut. In addition, an eligible institution shall meet the requirements set forth in subsection (i) (3) below. The determination of whether or not an institution is an eligible institution shall be made by the organization designated by the judges of the Superior Court to administer the program pursuant to subsection (i) (4) below, subject to the dispute resolution process provided in subsection (i) (4) (E) below.

(3) "Federal Funds Target Rate" means the target level for the federal funds rate set by the Federal Open Market Committee of the Board of Governors of the Federal Reserve System from time to time or, if such rate is no longer available, any comparable successor rate. If such rate or successor rate is set as a range, the term "Federal Funds Target Rate" means the upper limit of such range.

(4) "Interest- or dividend-bearing account" means (i) an interest-bearing checking account, or (ii) an investment product which is a daily (overnight) financial institution repurchase agreement or an open-end money market fund. A daily financial institution repurchase agreement must be fully collateralized by U.S. Government Securities and may be established only with an eligible institution that is "well-capitalized" or "adequately capitalized" as those terms are defined by applicable federal statutes and regulations. An open-end money market fund must be invested solely in U.S. Government Securities or repurchase agreements fully collateralized by U.S. Government Securities, must hold itself out as a "money market fund" as that term is defined by federal statutes and regulations under the Investment Company Act of 1940 and, at the time of the investment, must have total assets of at least $250,000,000.

(5) "IOLTA account" means an interest- or dividend-bearing account established by a lawyer or law firm for clients' funds at an eligible institution from which funds may be withdrawn upon request by the depositor without delay. An IOLTA account shall include only client or third person funds, except as permitted by subsection (i) (6) below. The determination of whether or not an interest- or

dividend-bearing account meets the requirements of an IOLTA account shall be made by the organization designated by the judges of the Superior Court to administer the program pursuant to subsection (i) (4) below.

(6) "Non-IOLTA account" means an interest- or dividend-bearing account, other than an IOLTA account, from which funds may be withdrawn upon request by the depositor without delay.

(7) "U.S. Government Securities" means direct obligations of the United States government, or obligations issued or guaranteed as to principal and interest by the United States or any agency or instrumentality thereof, including United States government-sponsored enterprises, as such term is defined by applicable federal statutes and regulations.

(b) A lawyer shall hold property of clients or third persons that is in a lawyer's possession in connection with a representation separate from the lawyer's own property. Funds shall be kept in a separate account maintained in the state where the lawyer's office is situated or elsewhere with the consent of the client or third person. Other property shall be identified as such and appropriately safeguarded. Complete records of such account funds and other property shall be kept by the lawyer and shall be preserved for a period of seven years after termination of the representation.

(c) A lawyer may deposit the lawyer's own funds in a client trust account for the sole purposes of paying bank service charges on that account or obtaining a waiver of fees and service charges on the account, but only in an amount necessary for those purposes.

(d) Absent a written agreement with the client otherwise, a lawyer shall deposit into a client trust account legal fees and expenses that have been paid in advance, to be withdrawn by the lawyer only as fees are earned or expenses incurred.

(e) Upon receiving funds or other property in which a client or third person has an interest, a lawyer shall promptly notify the client or third person. Except as stated in this Rule or otherwise permitted by law or by agreement with the client or third person, a lawyer shall promptly deliver to the client or third person any funds or other property that the client or third person is entitled to receive and, upon request by the client or third person, shall promptly render a full accounting regarding such property.

(f) When in the course of representation a lawyer is in possession of property in which two or more persons (one of whom may be the lawyer) have interests, the property shall be kept separate by the lawyer until any competing interests are resolved. The lawyer shall promptly distribute all portions of the property as to which the lawyer is able to identify the parties that have interests and as to which there are no competing interests. Where there are competing interests in the property or a portion of the property, the lawyer shall segregate and safeguard the property subject to the competing interests.

(g) The word "interest(s)" as used in this subsection and subsections (e) and (f) means more than the mere assertion of a claim by a third party. In the event a lawyer is notified by a third party or a third party's agent of a claim to funds held by the lawyer on behalf of a client, but it is unclear to the lawyer whether the third party has a valid interest within the meaning of this Rule, the lawyer may make a written request that the third party or third party's agent provide the lawyer such reasonable information and/or documentation as needed to assist the lawyer in determining whether substantial grounds exist for the third party's claim to the funds. If the third party or third party's agent fails to comply with such a request within sixty days, the lawyer may distribute the funds in question to the client.

(h) Notwithstanding subsections (b), (c), (d), (e) and (f), lawyers and law firms shall participate in the statutory program for the use of interest earned on lawyers' clients' funds accounts to provide funding for the delivery of legal services to the poor by nonprofit corporations whose principal purpose is providing legal services to the poor and for law school scholarships based on financial need. Lawyers and law firms shall place a client's or third person's funds in an IOLTA account if the lawyer or law firm determines, in good faith, that the funds cannot earn income for the client in excess of the costs incurred to secure such income. For the purpose of making this good faith determination of whether a client's funds cannot earn income for the client in excess of the costs incurred to secure such income, the lawyer or law firm shall consider the following factors: (1) The amount of the funds to be deposited; (2) the expected duration of the deposit, including the likelihood of delay in resolving the relevant transaction, proceeding or matter for which the funds are held; (3) the rates of interest, dividends or yield at eligible institutions where the funds are to be deposited; (4) the costs associated with establishing and administering interest-bearing accounts or other appropriate investments for the benefit of the client, including service charges, minimum balance requirements or fees imposed by the eligible institutions; (5) the costs of the services of the lawyer or law firm in connection with establishing and maintaining the account or

other appropriate investments; (6) the costs of preparing any tax reports required for income earned on the funds in the account or other appropriate investments; and (7) any other circumstances that affect the capability of the funds to earn income for the client in excess of the costs incurred to secure such income. No lawyer shall be subject to discipline for determining in good faith to deposit funds in the interest earned on lawyers' clients' funds account in accordance with this subsection.

(i) An IOLTA account may only be established at an eligible institution that meets the following requirements:

(1) No earnings from the IOLTA account shall be made available to a lawyer or law firm.

(2) Lawyers or law firms depositing a client's or third person's funds in an IOLTA account shall direct the depository institution:

(A) To remit interest or dividends, net of allowable reasonable fees, if any, on the average monthly balance in the account, or as otherwise computed in accordance with the institution's standard accounting practices, at least quarterly, to the organization designated by the judges of the Superior Court to administer this statutory program;

(B) To transmit to the organization administering the program with each remittance a report that identifies the name of the lawyer or law firm for whom the remittance is sent, the amount of remittance attributable to each IOLTA account, the rate and type of interest or dividends applied, the amount of interest or dividends earned, the amount and type of fees and service charges deducted, if any, and the average account balance for the period for which the report is made and such other information as is reasonably required by such organization; and

(C) To transmit to the depositing lawyer or law firm at the same time a report in accordance with the institution's normal procedures for reporting to its depositors.

(3) Participation by banks, savings and loan associations, and investment companies in the IOLTA program is voluntary. An eligible institution that elects to offer and maintain IOLTA accounts shall meet the following requirements:

(A) The eligible institution shall pay no less on its IOLTA accounts than the highest interest rate or dividend generally available from the institution to its non-IOLTA customers when the IOLTA account meets or exceeds the same minimum balance or other eligibility qualifications on its non-IOLTA accounts, if any. In determining the highest interest rate or dividend generally available from the institution to its non-IOLTA customers, an eligible institution may consider, in addition to the balance in the IOLTA account, factors customarily considered by the institution when setting interest rates or dividends for its non-IOLTA customers, provided that such factors do not discriminate between IOLTA accounts and non-IOLTA accounts and that these factors do not include the fact that the account is an IOLTA account. In lieu of the rate set forth in the first sentence of this subparagraph, an eligible institution may pay a rate equal to the higher of either (i) 1 percent per annum, or (ii) 60 percent of the Federal Funds Target Rate. Such alternate rate shall be determined for each calendar quarter as of the first business day of such quarter and shall be deemed net of allowable reasonable fees and service charges. The eligible institution may offer, and the lawyer or law firm may request, a sweep account that provides a mechanism for the overnight investment of balances in the IOLTA account in an interest- or dividend-bearing account that is a daily financial institution repurchase agreement or a money market fund. Nothing in this Rule shall preclude an eligible institution from paying a higher interest rate or dividend than described above or electing to waive any fees and service charges on an IOLTA account. An eligible institution may choose to pay the higher interest or dividend rate on an IOLTA account in lieu of establishing it as a higher rate product.

(B) Interest and dividends shall be calculated in accordance with the eligible institution's standard practices for non-IOLTA customers.

(C) Allowable reasonable fees are the only fees and service charges that may be deducted by an eligible institution from interest earned on an IOLTA account. Allowable reasonable fees may be deducted from interest or dividends on an IOLTA account only at the rates and in accordance with the customary practices of the eligible institution for non-IOLTA customers. No fees or service charges other than allowable reasonable fees may be assessed against the accrued interest or dividends on an IOLTA account. Any fees and service charges other than allowable reasonable fees shall be the sole responsibility of, and may only be charged to, the lawyer or law firm maintaining the IOLTA account. Fees and service charges in excess of the interest or dividends earned on one IOLTA account for any period shall not be taken from interest or dividends earned on any other IOLTA account or accounts or from the principal of any IOLTA account.

(4) The judges of the Superior Court, upon recommendation of the chief court administrator, shall designate an organization qualified under

Sec. 501 (c) (3) of the Internal Revenue Code, or any subsequent corresponding Internal Revenue Code of the United States, as from time to time amended, to administer the program. The chief court administrator shall cause to be published in the Connecticut Law Journal an appropriate announcement identifying the designated organization. The organization administering the program shall comply with the following:

(A) Each June shall publish on the designated organization's website a detailed annual report of all funds disbursed under the program, including the amount disbursed to each recipient of funds, and shall cause to be published in the Connecticut Law Journal a notice that the detailed annual report is available on the designated organization's website, along with a link to the report that can be accessed by members of the public as well as each judge of the Superior Court, and mail to each lawyer or law firm participating in the program a copy of that detailed annual report;

(B) Each June submit the following in detail to the chief court administrator for approval and comment by the Executive Committee of the Superior Court: (i) its proposed goals and objectives for the program; (ii) the procedures it has established to avoid discrimination in the awarding of grants; (iii) information regarding the insurance and fidelity bond it has procured; (iv) a description of the recommendations and advice it has received from the Advisory Panel established by General Statutes § 51-81c and the action it has taken to implement such recommendations and advice; (v) the method it utilizes to allocate between the two uses of funds provided for in § 51-81c and the frequency with which it disburses funds for such purposes; (vi) the procedures it has established to monitor grantees to ensure that any limitations or restrictions on the use of the granted funds have been observed by the grantees, such procedures to include the receipt of annual audits of each grantee showing compliance with grant awards and setting forth quantifiable levels of services that each grantee has provided with grant funds; (vii) the procedures it has established to ensure that no funds that have been awarded to grantees are used for lobbying purposes; and (viii) the procedures it has established to segregate funds to be disbursed under the program from other funds of the organization;

(C) Allow the Judicial Branch access to its books and records upon reasonable notice;

(D) Submit to audits by the Judicial Branch; and

(E) Provide for a dispute resolution process for resolving disputes as to whether a bank, savings and loan association, or open-end investment company is an eligible institution within the meaning of this Rule.

(5) Before an organization may be designated to administer this program, it shall file with the chief court administrator, and the judges of the Superior Court shall have approved, a resolution of the board of directors of such an organization which includes provisions:

(A) Establishing that all funds the organization might receive pursuant to subsection (i) (2) (A) above will be exclusively devoted to providing funding for the delivery of legal services to the poor by nonprofit corporations whose principal purpose is providing legal services to the poor and for law school scholarships based on financial need and to the collection, management and distribution of such funds;

(B) Establishing that all interest and dividends earned on such funds, less allowable reasonable fees, if any, shall be used exclusively for such purposes;

(C) Establishing and describing the methods the organization will utilize to implement and administer the program and to allocate funds to be disbursed under the program, the frequency with which the funds will be disbursed by the organization for such purposes, and the segregation of such funds from other funds of the organization;

(D) Establishing that the organization shall consult with and receive recommendations from the Advisory Panel established by General Statutes § 51-81c regarding the implementation and administration of the program, including the method of allocation and the allocation of funds to be disbursed under such program;

(E) Establishing that the organization shall comply with the requirements of this Rule; and

(F) Establishing that said resolution will not be amended, and the facts and undertakings set forth in it will not be altered, until the same shall have been approved by the judges of the Superior Court and ninety days have elapsed after publication by the chief court administrator of the notice of such approval in the Connecticut Law Journal.

(6) Nothing in this subsection (i) shall prevent a lawyer or law firm from depositing a client's or third person's funds, regardless of the amount of such funds or the period for which such funds are expected to be held, in a separate non-IOLTA account established on behalf of and for the benefit of the client or third person. Such an account shall be established as:

(A) A separate clients' funds account for the particular client or third person on which the interest or dividends will be paid to the client or third person; or

(B) A pooled clients' funds account with subaccounting by the bank, savings and loan association or investment company or by the lawyer or law firm, which provides for the computation of interest or dividends earned by each client's or third person's funds and the payment thereof to the client or third person.

(j) A lawyer who practices in this jurisdiction shall maintain current financial records as provided in this Rule and shall retain the following records for a period of seven years after termination of the representation:

(1) receipt and disbursement journals containing a record of deposits to and withdrawals from client trust accounts, specifically identifying the date, source, and description of each item deposited, as well as the date, payee and purpose of each disbursement;

(2) ledger records for all client trust accounts showing, for each separate trust client or beneficiary, the source of all funds deposited, the names of all persons for whom the funds are or were held, the amount of such funds, the descriptions and amounts of charges or withdrawals, and the names of all persons or entities to whom such funds were disbursed;

(3) copies of retainer and compensation agreements with clients as required by Rule 1.5 of the Rules of Professional Conduct;

(4) copies of accountings to clients or third persons showing the disbursement of funds to them or on their behalf;

(5) copies of bills for legal fees and expenses rendered to clients;

(6) copies of records showing disbursements on behalf of clients;

(7) the physical or electronic equivalents of all checkbook registers, bank statements, records of deposit, prenumbered canceled checks, and substitute checks provided by a financial institution;

(8) records of all electronic transfers from client trust accounts, including the name of the person authorizing transfer, the date of transfer, the name of the recipient and confirmation from the financial institution of the trust account number from which money was withdrawn and the date and the time the transfer was completed;

(9) copies of monthly trial balances and at least quarterly reconciliations of the client trust accounts maintained by the lawyer; and

(10) copies of those portions of client files that are reasonably related to client trust account transactions.

(k) With respect to client trust accounts required by this Rule:

(1) only a lawyer admitted to practice law in this jurisdiction or a person under the direct supervision of the lawyer shall be an authorized signatory or authorize transfers from a client trust account;

(2) receipts shall be deposited intact and records of deposit should be sufficiently detailed to identify each item; and

(3) withdrawals shall be made only by check payable to a named payee or by authorized electronic transfer and not to cash.

(*l*) The records required by this Rule may be maintained by electronic, photographic, or other media provided that they otherwise comply with these Rules and that printed copies can be produced. These records shall be readily accessible to the lawyer.

(m) Upon dissolution of a law firm or of any legal professional corporation, the partners shall make reasonable arrangements for the maintenance of client trust account records specified in this Rule.

(n) Upon the sale of a law practice, the seller shall make reasonable arrangements for the maintenance of records specified in this Rule.

(P.B. 1978-1997, Rule 1.15.) (Amended June 26, 2006, to take effect Sept. 1, 2006; amended June 29, 2007, to take effect Sept. 1, 2007; amended June 30, 2008, to take effect Aug. 1, 2008; amended June 21, 2010, to take effect Aug. 1, 2010; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 12, 2015, to take effect Jan. 1, 2016; amended June 10, 2022, to take effect Jan. 1, 2023.)

COMMENTARY: A lawyer should hold property of others with the care required of a professional fiduciary. Securities should be kept in a safe deposit box, except when some other form of safekeeping is warranted by special circumstances. All property that is the property of clients or third persons, including prospective clients, must be kept separate from the lawyer's business and personal property and, if moneys, in one or more trust accounts. Separate trust accounts may be warranted when administering estate moneys or acting in similar fiduciary capacities. A lawyer should maintain on a current basis books and records in accordance with generally accepted accounting practices.

While normally it is impermissible to commingle the lawyer's own funds with client funds, subsection (c) provides that it is permissible when necessary to pay bank service charges on that account. Accurate records must be kept regarding which part of the funds is the lawyer's.

Lawyers often receive funds from which the lawyer's fee will be paid. The lawyer is not required to remit to the clients' funds account funds that the lawyer reasonably believes represent fees owed. However, a lawyer may not hold funds to coerce a client into accepting the lawyer's contention. The disputed portion of the funds must be kept in a trust account and the lawyer should suggest means for prompt resolution of the dispute, such as arbitration. The undisputed portion of the funds shall be promptly distributed.

Subsection (f) also recognizes that third parties, such as a client's creditor who has a lien on funds recovered in a personal injury action, may have lawful interests in specific funds or other property in a lawyer's custody. A lawyer may have a duty under applicable law to protect such third-party interests against wrongful interference by the client. In such cases the

lawyer must refuse to surrender the property to the client until the competing interests are resolved. A lawyer should not unilaterally assume to arbitrate a dispute between the client and the third party, but, when there are substantial grounds for dispute as to the person entitled to the funds, the lawyer may file an action to have a court resolve the dispute.

The word "interest(s)" as used in subsections (e), (f) and (g) includes, but is not limited to, the following: a valid judgment concerning disposition of the property; a valid statutory or judgment lien, or other lien recognized by law, against the property; a letter of protection or similar obligation that is both (a) directly related to the property held by the lawyer, and (b) an obligation specifically entered into to aid the lawyer in obtaining the property; or a written assignment, signed by the client, conveying an interest in the funds or other property to another person or entity.

The obligations of a lawyer under this Rule are independent of those arising from activity other than rendering legal services. For example, a lawyer who serves only as an escrow agent is governed by the applicable law relating to fiduciaries even though the lawyer does not render legal services in the transaction and is not governed by this Rule. A "lawyers' fund" for client protection provides a means through the collective efforts of the bar to reimburse persons who have lost money or property as a result of dishonest conduct of a lawyer. Where such a fund has been established, a lawyer must participate where it is mandatory, and, even when it is voluntary, the lawyer should participate.

Subsection (i) requires lawyers and law firms to participate in the statutory IOLTA program. The lawyer or law firm should review its IOLTA account at reasonable intervals to determine whether changed circumstances require further action with respect to the funds of any client or third person.

Subsection (j) lists the basic financial records that a lawyer must maintain with regard to all trust accounts of a law firm. These include the standard books of account, and the supporting records that are necessary to safeguard and account for the receipt and disbursement of client or third person funds as required by Rule 1.15 of the Rules of Professional Conduct.

Subsection (j) requires that lawyers maintain client trust account records, including the physical or electronic equivalents of all checkbook registers, bank statements, records of deposit, prenumbered canceled checks, and substitute checks for a period of at least seven years after termination of each particular legal engagement or representation. The "Check Clearing for the 21st Century Act" or "Check 21 Act," codified at 12 U.S.C. § 5001 et seq., recognizes "substitute checks" as the legal equivalent of an original check. A "substitute check" is defined at 12 U.S.C. § 5002 (16) as paper reproduction of the original check that contains an image of the front and back of the original check; bears a magnetic ink character recognition (MICR) line containing all the information appearing on the MICR line of the original check; conforms with generally applicable industry standards for substitute checks; and is suitable for automated processing in the same manner as the original check. Banks, as defined in 12 U.S.C. § 5002 (2), are not required to return to customers the original canceled checks. Most banks now provide electronic images of checks to customers who have access to their accounts on internet based websites. It is the lawyer's responsibility to download electronic images. Electronic images shall be maintained for the requisite number of years and shall be readily available for printing upon request or shall be printed and maintained for the requisite number years.

The ACH (Automated Clearing House) Network is an electronic funds transfer or payment system that primarily provides for the interbank clearing of electronic payments between originating and receiving participating financial institutions. ACH transactions are payment instructions to either debit or credit a deposit account. ACH payments are used in a variety of payment environments including bill payments, business-to-business payments, and government payments (e.g., tax refunds). In addition to the primary use of ACH transactions, retailers and third parties use the ACH system for other types of transactions including electronic check conversion (ECC). ECC is the process of transmitting MICR information from the bottom of a check, converting check payments to ACH transactions depending upon the authorization given by the account holder at the point-of-purchase. In this type of transaction, the lawyer should be careful to comply with the requirements of subsection (j) (8).

There are five types of check conversions where a lawyer should be careful to comply with the requirements of subsection (j) (8). First, in a "point-of-purchase conversion," a paper check is converted into a debit at the point of purchase, and the paper check is returned to the issuer. Second, in a "back-office conversion," a paper check is presented at the point-of-purchase and is later converted into a debit, and the paper check is destroyed. Third, in a "account-receivable conversion," a paper check is converted into a debit, and the paper check is destroyed. Fourth, in a "telephone-initiated debit" or "check-by-phone" conversion, bank account information is provided via the telephone, and the information is converted to a debit. Fifth, in a "web-initiated debit," an electronic payment is initiated through a secure web environment. Subsection (j) (8) applies to each of the types of electronic funds transfers described. All electronic funds transfers shall be recorded, and a lawyer should not reuse a check number which has been previously used in an electronic transfer transaction.

The potential of these records to serve as safeguards is realized only if the procedures set forth in subsection (j) (9) are regularly performed. The trial balance is the sum of balances of each client's ledger card (or the electronic equivalent). Its value lies in comparing it on a monthly basis to a control balance. The control balance starts with the previous month's balance, then adds receipts from the Trust Receipts Journal and subtracts disbursements from the Trust Disbursements Journal. Once the total matches the trial balance, the reconciliation readily follows by adding amounts of any outstanding checks and subtracting any deposits not credited by the bank at month's end. This balance should agree with the bank statement. Quarterly reconciliation is recommended only as a minimum requirement; monthly reconciliation is the preferred practice given the difficulty of identifying an error (whether by the lawyer or the bank) among three months' transactions.

In some situations, documentation in addition to that listed in subdivisions (1) through (9) of subsection (j) is necessary for a complete understanding of a trust account transaction. The type of document that a lawyer must retain under subdivision (10) of subsection (j) because it is "reasonably related" to a client trust transaction will vary depending on the nature of the transaction and the significance of the document in shedding light on the transaction. Examples of documents that typically must be retained under this subdivision include correspondence between the client and lawyer relating to a disagreement over fees or costs or the distribution of proceeds, settlement agreements contemplating payment of funds, settlement statements issued to the client, documentation relating to sharing litigation costs and attorney's fees for subrogated claims, agreements for division of fees between lawyers, guarantees of payment to third parties out of proceeds recovered on behalf of a client, and copies of bills, receipts or correspondence related to any payments to third parties on behalf of a

client (whether made from the client's funds or from the lawyer's funds advanced for the benefit of the client).

Subsection (k) lists minimal accounting controls for client trust accounts. It also enunciates the requirement that only a lawyer admitted to the practice of law in this jurisdiction or a person who is under the direct supervision of the lawyer shall be the authorized signatory or authorized to make electronic transfers from a client trust account. While it is permissible to grant limited nonlawyer access to a client trust account, such access should be limited and closely monitored by the lawyer. The lawyer has a nondelegable duty to protect and preserve the funds in a client trust account and can be disciplined for failure to supervise subordinates who misappropriate client funds. See Rules 5.1 and 5.3 of the Rules of Professional Conduct.

Authorized electronic transfers shall be limited to (1) money required for payment to a client or third person on behalf of a client; (2) expenses properly incurred on behalf of a client, such as filing fees or payment to third persons for services rendered in connection with the representation; or (3) money transferred to the lawyer for fees that are earned in connection with the representation and are not in dispute; or (4) money transferred from one client trust account to another client trust account.

The requirements in subdivision (2) of subsection (k) that receipts shall be deposited intact mean that a lawyer cannot deposit one check or negotiable instrument into two or more accounts at the same time, a practice commonly known as a split deposit.

Subsection (*l*) allows the use of alternative media for the maintenance of client trust account records if printed copies of necessary reports can be produced. If trust records are computerized, a system of regular and frequent (preferably daily) backup procedures is essential. If a lawyer uses third-party electronic or internet based file storage, the lawyer must make reasonable efforts to ensure that the company has in place, or will establish reasonable procedures to protect the confidentiality of client information. See ABA Formal Ethics Opinion 398 (1995). Records required by subsection (j) shall be readily accessible and shall be readily available to be produced upon request by the client or third person who has an interest as provided in Rule 1.15 of the Rules of Professional Conduct, or by the official request of a disciplinary authority, including but not limited to, a subpoena duces tecum. Personal identifying information in records produced upon request by the client or third person or by disciplinary authority shall remain confidential and shall be disclosed only in a manner to ensure client confidentiality as otherwise required by law or court rule.

Subsections (m) and (n) provide for the preservation of a lawyer's client trust account records in the event of dissolution or sale of a law practice. Regardless of the arrangements the partners or shareholders make among themselves for maintenance of the client trust records, each partner may be held responsible for ensuring the availability of these records. For the purposes of these Rules, the terms "law firm," "partner," and "reasonable" are defined in accordance with Rules 1.0 (d), (h), and (i) of the Rules of Professional Conduct.

TECHNICAL CHANGE: In the thirteenth paragraph of the commentary, the two internal references to subsection (j) were fixed.

Rule 1.16. Declining or Terminating Representation

(a) Except as stated in subsection (c), a lawyer shall not represent a client or, where representation has commenced, shall withdraw from the representation of a client if:

(1) The representation will result in violation of the Rules of Professional Conduct or other law;

(2) The lawyer's physical or mental condition materially impairs the lawyer's ability to represent the client; or

(3) The lawyer is discharged.

(b) Except as stated in subsection (c), a lawyer may withdraw from representing a client if:

(1) withdrawal can be accomplished without material adverse effect on the interests of the client;

(2) the client persists in a course of action involving the lawyer's services that the lawyer reasonably believes is criminal or fraudulent;

(3) the client has used the lawyer's services to perpetrate a crime or fraud;

(4) the client insists upon taking action that the lawyer considers repugnant or with which the lawyer has a fundamental disagreement;

(5) the client fails substantially to fulfill an obligation to the lawyer regarding the lawyer's services and has been given reasonable warning that the lawyer will withdraw unless the obligation is fulfilled;

(6) the representation will result in an unreasonable financial burden on the lawyer or has been rendered unreasonably difficult by the client; or

(7) other good cause for withdrawal exists.

(c) A lawyer must comply with applicable law requiring notice to or permission of a tribunal when terminating a representation. When ordered to do so by a tribunal, a lawyer shall continue representation notwithstanding good cause for terminating the representation.

(d) Upon termination of representation, a lawyer shall take steps to the extent reasonably practicable to protect a client's interest, such as giving reasonable notice to the client, allowing time for employment of other counsel, surrendering papers and properly to which the client is entitled and refunding any advance payment of the fee that has not been earned. The lawyer may retain papers relating to the client to the extent permitted by other law. If the representation of the client is terminated either by the lawyer withdrawing from representation or by the client discharging the lawyer, the lawyer shall confirm the termination in writing to the client before or within a reasonable time after the termination of the representation.

(P.B. 1978-1997, Rule 1.16.) (Amended June 25, 2001, to take effect Jan. 1, 2002; amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: A lawyer should not accept representation in a matter unless it can be performed competently, promptly, without improper conflict of interest and to completion. Ordinarily, a representation in a matter is completed when the agreed upon assistance has been concluded. See Rules 1.2 (c) and 6.5; see also Rule 1.3, Commentary.

Mandatory Withdrawal. A lawyer ordinarily must decline or withdraw from representation if the client demands that the lawyer engage in conduct that is illegal or violates the Rules of Professional Conduct or other law. The lawyer is not obliged to decline or withdraw simply because the client suggests such a course of conduct; a client may make such a suggestion in the hope that a lawyer will not be constrained by a professional obligation.

When a lawyer has been appointed to represent a client, withdraws ordinarily requires approval of the appointing authority. See also Rule 6.2. Similarly, court approval or notice to the court is often required by applicable law before a lawyer withdraws from pending litigation. Difficulty may be encountered if withdrawal is based on the client's demand that the lawyer engage in unprofessional conduct. The court may request an explanation for the withdrawal, while the lawyer may be bound to keep confidential the facts that would constitute such an explanation. Lawyers should be mindful of their obligations to both clients and the court under Rules 1.6 and 3.3.

Withdrawal of Limited Appearance. When the lawyer has filed a limited appearance under Practice Book Section 3-8 (b) and the lawyer has completed the representation described in the limited appearance, the lawyer is not required to obtain permission of the tribunal to terminate the representation before filing the certificate of completion.

Discharge. A client has a right to discharge a lawyer at any time, with or without cause, subject to liability for payment for the lawyer's services. Where future dispute about the withdrawal may be anticipated, it may be advisable to prepare a written statement reciting the circumstances.

Whether a client can discharge appointed counsel may depend on applicable law. A client seeking to do so should be given a full explanation of the consequences. These consequences may include a decision by the appointing authority that appointment of successor counsel is unjustified, thus requiring the client to represent himself or herself.

If the client has diminished capacity, the client may lack the legal capacity to discharge the lawyer and, in any event, the discharge may be seriously adverse to the client's interests. The lawyer should make special effort to help the client consider the consequences and may take reasonably necessary action as provided in Rule 1.14.

Assisting the Client upon Withdrawal. Even if the lawyer has been unfairly discharged by the client, a lawyer must take all reasonable steps to mitigate the consequences to the client. The lawyer may retain papers as security for a fee only to the extent permitted by law. See Rule 1.5.

Confirmation in Writing. A written statement to the client confirming the termination of the relationship and the basis of the termination reduces the possibility of misunderstanding the status of the relationship. The written statement should be sent to the client before or within a reasonable time after the termination of the relationship.

Rule 1.17. Sale of Law Practice

A lawyer or a law firm may sell or purchase a law practice, or an area of practice, including good will, if the following conditions are satisfied:

(a) The seller ceases to engage in the private practice of law, or in the area of practice that has been sold, in Connecticut;

(b) The entire practice, or the entire area of practice, is sold to one or more lawyers or law firms;

(c) The seller gives written notice to each of the seller's clients regarding:

(1) the proposed sale;

(2) the client's right to retain other counsel or to take possession of the file; and

(3) the fact that the client's consent to the transfer of the client's files will be presumed if the client does not take any action or does not otherwise object within ninety days of receipt of the notice. If a client cannot be given notice, the representation of that client may be transferred to the purchaser only upon entry of an order so authorizing by a court having jurisdiction. The seller may disclose to the court in camera information relating to the representation only to the extent necessary to obtain an order authorizing the transfer of a file.

(d) The fees charged clients shall not be increased by reason of the sale.

(Adopted June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: The practice of law is a profession, not merely a business. Clients are not commodities that can be purchased and sold at will. Pursuant to this Rule, when a lawyer or an entire firm ceases to practice, or ceases to practice in an area of law, and other lawyers or firms take over the representation, the selling lawyer or firm may obtain compensation for the reasonable value of the practice as may withdrawing partners of law firms. See Rules 5.4 and 5.6.

Termination of Practice by the Seller. The requirement that all of the private practice, or all of an area of practice, be sold is satisfied if the seller in good faith makes the entire practice, or the area of practice, available for sale to the purchasers. The fact that a number of the seller's clients decide not to be represented by the purchasers but take their matters elsewhere, therefore, does not result in a violation.

The requirement that the seller cease to engage in the private practice of law does not prohibit employment as a lawyer on the staff of a public agency or a legal services entity that provides legal services to the poor, or as in-house counsel to a business.

The Rule permits a sale of an entire practice attendant upon retirement from the private practice of law within the jurisdiction. Its provisions, therefore, accommodate the lawyer who sells the practice upon the occasion of moving to another state. Some states are so large that a move from one locale therein to another is tantamount to leaving the jurisdiction in which the lawyer has engaged in the practice of law. To also accommodate lawyers so situated, states may permit the sale of the practice when the lawyer leaves the geographic area rather than the jurisdiction. The alternative desired should be indicated by selecting one of the two provided for in Rule 1.17 (a).

This Rule also permits a lawyer or law firm to sell an area of practice. If an area of practice is sold and the lawyer remains in the active practice of law, the lawyer must cease accepting any matters in the area of practice that has been sold, either as counsel or co-counsel or by assuming joint responsibility for a matter in connection with the division of a fee with another lawyer as would otherwise be permitted by Rule 1.5 (e). For example, a lawyer with a substantial number of estate planning matters and a substantial number of probate administration cases may sell the estate planning portion of the practice but remain in the practice of law by concentrating on probate administration; however, that practitioner may not thereafter accept any estate planning matters. Although a lawyer who

leaves a jurisdiction or geographical area typically would sell the entire practice, this Rule permits the lawyer to limit the sale to one or more areas of the practice, thereby preserving the lawyer's right to continue practice in the areas of the practice that were not sold.

Sale of Entire Practice or Entire Area of Practice. The Rule requires that the seller's entire practice, or an entire area of practice, be sold. The prohibition against sale of less than an entire practice area protects those clients whose matters are less lucrative and who might find it difficult to secure other counsel if a sale could be limited to substantial fee-generating matters. The purchasers are required to undertake all client matters in the practice or practice area, subject to client consent. This requirement is satisfied, however, even if a purchaser is unable to undertake a particular client matter because of a conflict of interest.

Client Confidences, Consent and Notice. Negotiations between a seller and a prospective purchaser prior to disclosure of information relating to a specific representation of an identifiable client no more violate the confidentiality provisions of Rule 1.6 than do preliminary discussions concerning the possible association of another lawyer or mergers between firms, with respect to which client consent is not required. See Rule 1.6 (c) (5). Providing the purchaser access to detailed information relating to the representation, such as the client's file, however, requires client consent. The Rule provides that before such information can be disclosed by the seller to the purchaser the client must be given actual written notice of the contemplated sale, including the identity of the purchaser, and must be told that the decision to consent or make other arrangements must be made within ninety days. If nothing is heard from the client within that time, consent to the sale is presumed.

A lawyer or law firm ceasing to practice cannot be required to remain in practice because some clients cannot be given actual notice of the proposed purchase. Since these clients cannot themselves consent to the purchase or direct any other disposition of their files, the Rule requires an order from a court having jurisdiction authorizing their transfer or other disposition. The court can be expected to determine whether reasonable efforts to locate the client have been exhausted, and whether the absent client's legitimate interests will be served by authorizing the transfer of the file so that the purchaser may continue the representation. Preservation of client confidences requires that the petition for a court order be considered in camera. This procedure is contemplated as an in camera review of privileged materials.

All the elements of client autonomy, including the client's absolute right to discharge a lawyer and transfer the representation to another, survive the sale of the practice or area of practice.

Fee Arrangements between Client and Purchaser. The sale may not be financed by increases in fees charged exclusively to the clients of the purchased practice. Existing agreements between the seller and the client as to fees and the scope of the work must be honored by the purchaser.

Other Applicable Ethical Standards. Lawyers participating in the sale of a law practice or a practice area are subject to the ethical standards applicable to involving another lawyer in the representation of a client. These include, for example, the seller's obligation to exercise competence in identifying a purchaser qualified to assume the practice and the purchaser's obligation to undertake the representation competently (see Rule 1.1); the obligation to avoid disqualifying conflicts, and to secure the client's informed consent for those conflicts that can be agreed to (see Rule 1.7 regarding conflicts and Rule 1.0 for the definition of informed consent); and the obligation to protect information relating to the representation (see Rules 1.6 and 1.9).

If approval of the substitution of the purchasing lawyer for the selling lawyer is required by the rules of any tribunal in which a matter is pending, such approval must be obtained before the matter can be included in the sale (see Rule 1.16).

Applicability of the Rule. This Rule applies to the sale of a law practice by representatives of a lawyer with disabilities or a lawyer who is deceased or has disappeared. Thus, the seller may be represented by a nonlawyer representative not subject to these Rules. Since, however, no lawyer may participate in a sale of a law practice which does not conform to the requirements of this Rule, the representatives of the seller as well as the purchasing lawyer can be expected to see to it that they are met.

Admission to or retirement from a law partnership or professional association, retirement plans and similar arrangements, and a sale of tangible assets of a law practice, do not constitute a sale or purchase governed by this Rule.

This Rule does not apply to the transfers of legal representation between lawyers when such transfers are unrelated to the sale of a practice or an area of practice.

Rule 1.18. Duties to Prospective Client

(a) A person who consults with a lawyer concerning the possibility of forming a client-lawyer relationship with respect to a matter is a prospective client.

(b) Even when no client-lawyer relationship ensues, a lawyer who has learned information from a prospective client shall not use or reveal that information, except as Rule 1.9 would permit with respect to information of a former client.

(c) A lawyer subject to subsection (b) shall not represent a client with interests materially adverse to those of a prospective client in the same or a substantially related matter if the lawyer received information from the prospective client that could be significantly harmful to that person in the matter, except as provided in subsection (d). If a lawyer is disqualified from representation under this paragraph, no lawyer in a firm with which that lawyer is associated may knowingly undertake or continue representation in such a matter, except as provided in subsection (d).

(d) When the lawyer has received disqualifying information as defined in subsection (c), representation is permissible if:

(1) both the affected client and the prospective client have given informed consent, confirmed in writing, or

(2) the lawyer who received the information took reasonable measures to avoid exposure to more disqualifying information than was reasonably necessary to determine whether to represent the prospective client; and

(A) the disqualified lawyer is timely screened from any participation in the matter; and

(B) written notice is promptly given to the prospective client.

(Adopted June 26, 2006, to take effect Jan. 1, 2007; amended June 13, 2014, to take effect Jan. 1, 2015.)

COMMENTARY: Prospective clients, like clients, may disclose information to a lawyer, place documents or other property in the lawyer's custody, or rely on the lawyer's advice. A lawyer's consultations with a prospective client usually are limited in time and depth and leave both the prospective client and the lawyer free (and sometimes required) to proceed no further. Hence, prospective clients should receive some but not all of the protection afforded clients.

A person becomes a prospective client by consulting with a lawyer about the possibility of forming a client-lawyer relationship with respect to a matter. Whether communications, including written, oral, or electronic communications, constitute a consultation depends on the circumstances. For example, a consultation is likely to have occurred if a lawyer, either in person or through the lawyer's advertising in any medium, specifically requests or invites the submission of information about a potential representation without clear and reasonably understandable warnings and cautionary statements that limit the lawyer's obligations, and a person provides information in response. In contrast, a consultation does not occur if a person provides information to a lawyer in response to advertising that merely describes the lawyer's education, experience, areas of practice, and contact information, or provides legal information of general interest. Such a person communicates information unilaterally to a lawyer, without any reasonable expectation that the lawyer is willing to discuss the possibility of forming a client-lawyer relationship, and is thus not a "prospective client." Moreover, a person who communicates with a lawyer for the purpose of disqualifying the lawyer is not a "prospective client."

It is often necessary for a prospective client to reveal information to the lawyer during an initial consultation prior to the decision about formation of a client-lawyer relationship. The lawyer often must learn such information to determine whether there is a conflict of interest with an existing client and whether the matter is one that the lawyer is willing to undertake. Subsection (b) prohibits the lawyer from using or revealing that information, except as permitted by Rule 1.9, even if the client or lawyer decides not to proceed with the representation. The duty exists regardless of how brief the initial consultation may be.

In order to avoid acquiring disqualifying information from a prospective client, a lawyer considering whether or not to undertake a new matter should limit the initial consultation to only such information as reasonably appears necessary for that purpose. Where the information indicates that a conflict of interest or other reason for nonrepresentation exists, the lawyer should so inform the prospective client or decline the representation. If the prospective client wishes to retain the lawyer, and if consent is possible under Rule 1.7, then consent from all affected present or former clients must be obtained before accepting the representation.

A lawyer may condition consultations with a prospective client on the person's informed consent that no information disclosed during the consultation will prohibit the lawyer from representing a different client in the matter. See Rule 1.0 (f) for the definition of informed consent. If the agreement expressly so provides, the prospective client may also consent to the lawyer's subsequent use of information received from the prospective client.

Even in the absence of an agreement, under subsection (c), the lawyer is not prohibited from representing a client with interests adverse to those of the prospective client in the same or a substantially related matter unless the lawyer has received from the prospective client information that could be significantly harmful if used in the matter.

Under subsection (c), the prohibition in this Rule is imputed to other lawyers as provided in Rule 1.10, but, under subsection (d) (1), imputation may be avoided if the lawyer obtains the informed consent, confirmed in writing, of both the prospective and affected clients. In the alternative, imputation may be avoided if the conditions of subsection (d) (2) are met and all disqualified lawyers are timely screened and written notice is promptly given to the prospective client. See Rule 1.0 (*l*) (requirements for screening procedures).

Notice, including a general description of the subject matter about which the lawyer was consulted, and of the screening procedures employed, generally should be given as soon as practicable after the need for screening becomes apparent.

For the duty of competence of a lawyer who gives assistance on the merits of a matter to a prospective client, see Rule 1.1. For a lawyer's duties when a prospective client entrusts valuables or papers to the lawyer's care, see Rule 1.15.

COUNSELOR

Rule 2.1. Advisor

In representing a client, a lawyer shall exercise independent professional judgment and render candid advice. In rendering advice, a lawyer may refer not only to law but to other consideration such as moral, economic, social and political factors, that may be relevant to the client's situation.

(P.B. 1978-1997, Rule 2.1.)

COMMENTARY: **Scope of Advice.** A client is entitled to straightforward advice expressing the lawyer's honest assessment. Legal advice often involves unpleasant facts and alternatives that a client may be disinclined to confront. In presenting advice, a lawyer endeavors to sustain the client's morale and may put advice in as acceptable a form as honesty permits. However, a lawyer should not be deterred from giving candid advice by the prospect that the advice will be unpalatable to the client.

Advice couched in narrow legal terms may be of little value to a client, especially where practical considerations, such as cost or effects on other people, are predominant. Purely technical legal advice, therefore, can sometimes be inadequate. It is proper for a lawyer to refer to relevant moral and ethical considerations in giving advice. Although a lawyer is not a moral advisor as such, moral and ethical considerations impinge upon most legal questions and may decisively influence how the law will be applied.

A client may expressly or impliedly ask the lawyer for purely technical advice. When such a request is made by a client experienced in legal matters, the lawyer may accept it at face value. When such a request is made by a client inexperienced in legal matters, however, the lawyer's responsibility as advisor may include indicating that more may be involved than strictly legal considerations.

Matters that go beyond strictly legal questions may also be in the domain of another profession. Family matters can involve problems within the professional competence of psychiatry, clinical psychology or social work; business matters can involve problems within the competence of the accounting profession or of financial specialists. Where consultation with a professional in another field is itself something a competent lawyer would recommend, the lawyer should make such a recommendation. At the same time, a lawyer's advice at its

best often consists of recommending a course of action in the face of conflicting recommendations of experts.

Offering Advice. In general, a lawyer is not expected to give advice until asked by the client. However, when a lawyer knows that a client proposes a course of action that is likely to result in substantial adverse legal consequences to the client, the lawyer's duty to the client under Rule 1.4 may require that the lawyer offer advice if the client's course of action is related to the representation. Similarly, when a matter is likely to involve litigation, it may be necessary under Rule 1.4 to inform the client of forms of dispute resolution that might constitute reasonable alternatives to litigation.

A lawyer ordinarily has no duty to initiate investigation of a client's affairs or to give advice that the client has indicated is unwanted, but a lawyer may initiate advice to a client when doing so appears to be in the client's interest.

Rule 2.2. Intermediary

[Repealed as of Jan. 1, 2007.]

Rule 2.3. Evaluation for Use by Third Persons

(a) A lawyer may provide an evaluation of a matter affecting a client for the use of someone other than the client if the lawyer reasonably believes that making the evaluation is compatible with other aspects of the lawyer's relationship with the client.

(b) When the lawyer knows or reasonably should know that the evaluation is likely to affect the client's interests materially and adversely, the lawyer shall not provide the evaluation unless the client gives informed consent.

(c) Except as disclosure is authorized in connection with a report of an evaluation, information relating to the evaluation is otherwise protected by Rule 1.6.

(P.B. 1978-1997, Rule 2.3.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: **Definition.** An evaluation may be performed at the client's direction or when impliedly authorized in order to carry out the representation. See Rule 1.2. Such an evaluation may be for the primary purpose of establishing information for the benefit of third parties; for example, an opinion concerning the title of property rendered at the behest of a vendor for the information of a prospective purchaser, or at the behest of a borrower for the information of a prospective lender. In some situations, the evaluation may be required by a government agency; for example, an opinion concerning the legality of the securities registered for sale under the securities laws. In other instances, the evaluation may be required by a third person, such as a purchaser of a business.

A legal evaluation should be distinguished from an investigation of a person with whom the lawyer does not have a client-lawyer relationship. A legal evaluation of a client should also be distinguished from a report by counsel for an insured to the insured's carrier on the status of the matter that is the subject of representation, provided the report does not contain matter that is detrimental to the client's relationship with the insurance carrier. For example, a lawyer retained by a purchaser to analyze a vendor's title to property does not have a client-lawyer relationship with the vendor. So also, an investigation into a person's affairs by a government lawyer, or by special counsel employed by the government, is not an evaluation as that term is used in this Rule. The question is whether the lawyer is retained by the person whose affairs are being examined. When the lawyer is retained by that person, the general rules concerning loyalty to client and preservation of confidences apply, which is not the case if the lawyer is retained by someone else. For this reason, it is essential to identify the person by whom the lawyer is retained. This should be made clear not only to the person under examination, but also to others to whom the results are to be made available.

Duties Owed to Third Person and Client. When the evaluation is intended for the information or use of a third person, a legal duty to that person may or may not arise. That legal question is beyond the scope of this Rule. However, since such an evaluation involves a departure from the normal client-lawyer relationship, careful analysis of the situation is required. The lawyer must be satisfied as a matter of professional judgment that making the evaluation is compatible with other functions undertaken in behalf of the client. For example, if the lawyer is acting as advocate in defending the client against charges of fraud, it would normally be incompatible with that responsibility for the lawyer to perform an evaluation for others concerning the same or a related transaction. Assuming no such impediment is apparent, however, the lawyer should advise the client of the implications of the evaluation, particularly the lawyer's responsibilities to third persons and the duty to disseminate the findings.

Access to and Disclosure of Information. The quality of an evaluation depends on the freedom and extent of the investigation upon which it is based. Ordinarily, a lawyer should have whatever latitude of investigation seems necessary as a matter of professional judgment. Under some circumstances, however, the terms of the evaluation may be limited. For example, certain issues or sources may be categorically excluded, or the scope of search may be limited by time constraints or the noncooperation of persons having relevant information. Any such limitations that are material to the evaluation should be described in the report. If after a lawyer has commenced an evaluation, the client refuses to comply with the terms upon which it was understood the evaluation was to have been made, the lawyer's obligations are determined by law, having reference to the terms of the client's agreement and the surrounding circumstances. In no circumstances is the lawyer permitted to knowingly make a false statement of material fact or law in providing an evaluation under this Rule. See Rule 4.1.

Obtaining Client's Informed Consent. Information relating to an evaluation is protected by Rule 1.6. In many situations, providing an evaluation to a third party poses no significant risk to the client; thus, the lawyer may be impliedly authorized to disclose information to carry out the representation. See Rule 1.6 (a). Where, however, it is reasonably likely that providing the evaluation will affect the client's interests materially and adversely, the lawyer must first obtain the client's consent after the client has been adequately informed concerning the important possible effects on the client's interests. See Rules 1.6 (a) and 1.0 (f).

Financial Auditors' Requests for Information. When a question concerning the legal situation of a client arises at the instance of the client's financial auditor and the question is referred to the lawyer, the lawyer's response may be made in accordance with procedures recognized in the legal profession. Such a procedure is set forth in the American Bar Association Statement of Policy Regarding Lawyers' Responses to Auditors' Requests for Information, adopted in 1975.

Rule 2.4. Lawyer Serving as Third-Party Neutral

(a) A lawyer serves as a third-party neutral when the lawyer assists two or more persons who

are not clients of the lawyer to reach a resolution of a dispute or other matter that has arisen between them. Service as a third-party neutral may include service as an arbitrator, a mediator or in such other capacity as will enable the lawyer to assist the parties to resolve the matter.

(b) A lawyer serving as a third-party neutral shall inform unrepresented parties that the lawyer is not representing them. When the lawyer knows or reasonably should know that a party does not understand the lawyer's role in the matter, the lawyer shall explain the difference between the lawyer's role as a third-party neutral and a lawyer's role as one who represents a client.

(Adopted June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: Alternative dispute resolution has become a substantial part of the civil justice system. Aside from representing clients in dispute-resolution processes, lawyers often serve as third-party neutrals. A third-party neutral is a person, such as a mediator, arbitrator, conciliator or evaluator, who assists the parties, represented or unrepresented, in the resolution of a dispute or in the arrangement of a transaction. Whether a third-party neutral serves primarily as a facilitator, evaluator or decision maker depends on the particular process that is either selected by the parties or mandated by a court.

The role of a third-party neutral is not unique to lawyers, although, in some court-connected contexts, only lawyers are allowed to serve in this role or to handle certain types of cases. In performing this role, the lawyer may be subject to court rules or other law that apply either to third-party neutrals generally or to lawyers serving as third-party neutrals. Lawyer-neutrals may also be subject to various codes of ethics, such as the Code of Ethics for Arbitration in Commercial Disputes prepared by a joint committee of the American Bar Association and the American Arbitration Association or the Model Standards of Conduct for Mediators jointly prepared by the American Bar Association, the American Arbitration Association and the Society of Professionals in Dispute Resolution.

Unlike nonlawyers who serve as third-party neutrals, lawyers serving in this role may experience unique problems as a result of differences between the role of a third-party neutral and a lawyer's service as a client representative. The potential for confusion is significant when the parties are unrepresented in the process. Thus, subsection (b) requires a lawyer-neutral to inform unrepresented parties that the lawyer is not representing them. For some parties, particularly parties who frequently use dispute-resolution processes, this information will be sufficient. For others, particularly those who are using the process for the first time, more information will be required. Where appropriate, the lawyer should inform unrepresented parties of the important differences between the lawyer's role as third-party neutral and a lawyer's role as a client representative, including the inapplicability of the attorney-client evidentiary privilege as well as the inapplicability of the duty of confidentiality. The extent of disclosure required under this subsection will depend on the particular parties involved and the subject matter of the proceeding, as well as the particular features of the dispute-resolution process selected.

A lawyer who serves as a third-party neutral subsequently may be asked to serve as a lawyer representing a client in the same matter. The conflicts of interest that arise for both the individual lawyer and the lawyer's law firm are addressed in Rule 1.12.

Lawyers who represent clients in alternative dispute-resolution processes are governed by the Rules of Professional Conduct. When the dispute-resolution process takes place before a tribunal, as in binding arbitration (see Rule 1.0 (n)), the lawyer's duty of candor is governed by Rule 3.3. Otherwise, the lawyer's duty of candor toward both the third-party neutral and other parties is governed by Rule 4.1.

ADVOCATE

Rule 3.1. Meritorious Claims and Contentions

A lawyer shall not bring or defend a proceeding, or assert or controvert an issue therein, unless there is a basis in law and fact for doing so that is not frivolous, which includes a good faith argument for an extension, modification or reversal of existing law. A lawyer for the defendant in a criminal proceeding, or the respondent in a proceeding that could result in incarceration, may nevertheless so defend the proceeding as to require that every element of the case be established.

(P.B. 1978-1997, Rule 3.1.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: The advocate has a duty to use legal procedure for the fullest benefit of the client's cause, but also a duty not to abuse legal procedure. The law, both procedural and substantive, establishes the limits within which an advocate may proceed. However, the law is not always clear and never is static. Accordingly, in determining the proper scope of advocacy, account must be taken of the law's ambiguities and potential for change.

The filing of an action or defense or similar action taken for a client is not frivolous merely because the facts have not first been fully substantiated or because the lawyer expects to develop vital evidence only by discovery. What is required of lawyers, however, is that they inform themselves about the facts of their clients' cases and the applicable law and determine that they can make good faith arguments in support of their clients' positions. Such action is not frivolous even though the lawyer believes that the client's position ultimately will not prevail. The action is frivolous, however, if the lawyer is unable either to make a good faith argument on the merits of the action taken or to support the action taken by a good faith argument for an extension, modification or reversal of existing law.

The lawyer's obligations under this Rule are subordinate to federal or state constitutional law that entitles a defendant in a criminal matter to the assistance of counsel in presenting a claim or contention that otherwise would be prohibited by this Rule.

Rule 3.2. Expediting Litigation

A lawyer shall make reasonable efforts to expedite litigation consistent with the interests of the client.

(P.B. 1978-1997, Rule 3.2.)

COMMENTARY: Dilatory practices bring the administration of justice into disrepute. Although there will be occasions when a lawyer may properly seek a postponement for personal reasons, it is not proper for a lawyer to routinely fail to expedite litigation solely for the convenience of the advocates. Nor will a failure to expedite be reasonable if done for the purpose of frustrating an opposing party's attempt to obtain rightful

redress or repose. It is not a justification that similar conduct is often tolerated by the bench and bar. The question is whether a competent lawyer acting in good faith would regard the course of action as having some substantial purpose other than delay. Realizing financial or other benefit from otherwise improper delay in litigation is not a legitimate interest of the client.

Rule 3.3. Candor toward the Tribunal

(a) A lawyer shall not knowingly:

(1) Make a false statement of fact or law to a tribunal or fail to correct a false statement of material fact or law previously made to the tribunal by the lawyer;

(2) Fail to disclose to the tribunal legal authority in the controlling jurisdiction known to the lawyer to be directly adverse to the position of the client and not disclosed by opposing counsel; or

(3) Offer evidence that the lawyer knows to be false. If a lawyer, the lawyer's client, or a witness called by the lawyer, has offered material evidence and the lawyer comes to know of its falsity, the lawyer shall take reasonable remedial measures, including, if necessary, disclosure to the tribunal.

(b) A lawyer who represents a client in an adjudicative proceeding and who knows that a person intends to engage, is engaging or has engaged in criminal or fraudulent conduct related to the proceeding shall take reasonable remedial measures, including, if necessary, disclosure to the tribunal.

(c) The duties stated in subsections (a) and (b) continue at least to the conclusion of the proceeding, and apply even if compliance requires disclosure of information otherwise protected by Rule 1.6.

(d) In an ex parte proceeding, a lawyer shall inform the tribunal of all material facts known to the lawyer that will enable the tribunal to make an informed decision, whether or not the facts are adverse.

(e) When, prior to judgment, a lawyer becomes aware of discussion or conduct by a juror which violates the trial court's instructions to the jury, the lawyer shall promptly report that discussion or conduct to the trial judge.

(P.B. 1978-1997, Rule 3.3.)

COMMENTARY: This Rule governs the conduct of a lawyer who is representing a client in the proceedings of a tribunal. See Rule 1.0 (n) for the definition of "tribunal." It also applies when the lawyer is representing a client in an ancillary proceeding conducted pursuant to the tribunal's adjudicative authority, such as a deposition. Thus, for example, subsection (a) (3) requires a lawyer to take reasonable remedial measures if the lawyer comes to know that a client who is testifying in a deposition has offered evidence that is false.

This Rule sets forth the special duties of lawyers as officers of the court to avoid conduct that undermines the integrity of the adjudicative process. A lawyer acting as an advocate in an adjudicative proceeding has an obligation to present the client's case with persuasive force. Performance of that duty while maintaining confidences of the client, however, is qualified by the advocate's duty of candor to the tribunal. Consequently, although a lawyer in an adversary proceeding is not required to present an impartial exposition of the law or to vouch for the evidence submitted in a cause, the lawyer must not allow the tribunal to be misled by false statements of law or fact or evidence that the lawyer knows to be false.

Representations by a Lawyer. An advocate is responsible for pleadings and other documents prepared for litigation, but is usually not required to have personal knowledge of matters asserted therein, for litigation documents ordinarily present assertions by the client, or by someone on the client's behalf, and not assertions by the lawyer. Compare Rule 3.1. However, an assertion purporting to be on the lawyer's own knowledge, as in an affidavit by the lawyer or in a statement in open court, may properly be made only when the lawyer knows the assertion is true or believes it to be true on the basis of a reasonably diligent inquiry. There are circumstances where failure to make a disclosure is the equivalent of an affirmative misrepresentation. The obligation prescribed in Rule 1.2 (d) not to counsel a client to commit or assist the client in committing a fraud applies in litigation. Regarding compliance with Rule 1.2 (d), see the Commentary to that Rule. See also the Commentary to Rule 8.4 (2).

Legal Argument. Legal argument based on a knowingly false representation of law constitutes dishonesty toward the tribunal. A lawyer is not required to make a disinterested exposition of the law, but must recognize the existence of pertinent legal authorities. Furthermore, as stated in subsection (a) (2), an advocate has a duty to disclose directly adverse authority in the controlling jurisdiction that has not been disclosed by the opposing party. The underlying concept is that legal argument is a discussion seeking to determine the legal premises properly applicable to the case.

Offering Evidence. Subsection (a) (3) requires that the lawyer refuse to offer evidence that the lawyer knows to be false, regardless of the client's wishes. This duty is premised on the lawyer's obligation as an officer of the court to prevent the trier of fact from being misled by false evidence. A lawyer does not violate this Rule if the lawyer offers the evidence for the purpose of establishing its falsity.

If a lawyer knows that the client intends to testify falsely or wants the lawyer to introduce false evidence, the lawyer should seek to persuade the client that the evidence should not be offered. If the persuasion is ineffective and the lawyer continues to represent the client, the lawyer must refuse to offer the false evidence. If only a portion of a witness' testimony will be false, the lawyer may call the witness to testify but may not elicit or otherwise permit the witness to present the testimony that the lawyer knows is false.

The duties stated in subsections (a) and (b) apply to all lawyers, including defense counsel in criminal cases. In some jurisdictions, however, courts have required counsel to present the accused as a witness or to give a narrative statement if the accused so desires, even if counsel knows that the testimony or statement will be false. The obligation of the advocate under the Rules of Professional Conduct is subordinate to such requirements.

The prohibition against offering false evidence only applies if the lawyer knows that the evidence is false. A lawyer's reasonable belief that evidence is false does not preclude its presentation to the trier of fact. A lawyer's knowledge that evidence is false, however, can be inferred from the circumstances. See Rule 1.0 (g). Thus, although a lawyer should

resolve doubts about the veracity of testimony or other evidence in favor of the client, the lawyer cannot ignore an obvious falsehood.

Because of the special protections historically provided criminal defendants, however, this Rule does not permit a lawyer to refuse to offer the testimony of such a client where the lawyer reasonably believes but does not know that the testimony will be false. Unless the lawyer knows the testimony will be false, the lawyer must honor the client's decision to testify.

Remedial Measures. Having offered material evidence in the belief that it was true, a lawyer may subsequently come to know that the evidence is false. Or, a lawyer may be surprised when the lawyer's client, or another witness called by the lawyer, offers testimony the lawyer knows to be false, either during the lawyer's direct examination or in response to cross-examination by the opposing lawyer. In such situations or if the lawyer knows of the falsity of testimony elicited from the client during a deposition, the lawyer must take reasonable remedial measures. In such situations, the advocate's proper course is to remonstrate with the client confidentially, advise the client of the lawyer's duty of candor to the tribunal and seek the client's cooperation with respect to the withdrawal or correction of the false statements or evidence. If that fails, the advocate must take further remedial action. If withdrawal from the representation is not permitted or will not undo the effect of the false evidence, the advocate must make such disclosure to the tribunal as is reasonably necessary to remedy the situation, even if doing so requires the lawyer to reveal information that otherwise would be protected by Rule 1.6. It is for the tribunal then to determine what should be done.

The disclosure of a client's false testimony can result in grave consequences to the client, including not only a sense of betrayal but also loss of the case and perhaps a prosecution for perjury. But the alternative is that the lawyer cooperate in deceiving the court, thereby subverting the truth-finding process which the adversary system is designed to implement. See Rule 1.2 (d). Furthermore, unless it is clearly understood that the lawyer will act upon the duty to disclose the existence of false evidence, the client can simply reject the lawyer's advice to reveal the false evidence and insist that the lawyer keep silent. Thus, the client could in effect coerce the lawyer into being a party to fraud on the court.

Preserving Integrity of Adjudicative Process. Lawyers have a special obligation to protect a tribunal against criminal or fraudulent conduct that undermines the integrity of the adjudicative process, such as bribing, intimidating or otherwise unlawfully communicating with a witness, juror, court official or other participant in the proceeding, unlawfully destroying or concealing documents or other evidence or failing to disclose information to the tribunal when required by law to do so. Thus, subsection (b) requires a lawyer to take reasonable remedial measures, including disclosure if necessary, whenever the lawyer knows that a person, including the lawyer's client, intends to engage, is engaging or has engaged in criminal or fraudulent conduct related to the proceeding. Nothing in Rule 3.3 (e) is meant to limit a lawyer's obligation to take appropriate action after judgment has entered.

Duration of Obligation. A practical time limit on the obligation to rectify false evidence or false statements of fact has to be established. The conclusion of the proceeding is a reasonably definite point for the termination of the obligation. In criminal and juvenile delinquency matters, the duty to correct a newly discovered and material falsehood continues until the defendant or delinquent is discharged from custody or released from judicial supervision, whichever occurs later. The lawyer shall notify the tribunal that false evidence or false statements of fact were made.

Ex Parte Proceedings. Ordinarily, an advocate has the limited responsibility of presenting one side of the matters that a tribunal should consider in reaching a decision; the conflicting position is expected to be presented by the opposing party. However, in any ex parte proceeding, such as an application for a temporary restraining order, there is no balance of presentation by opposing advocates. The object of an ex parte proceeding is nevertheless to yield a substantially just result. The judge has an affirmative responsibility to accord the absent party just consideration. The lawyer for the represented party has the correlative duty to make disclosures of material facts known to the lawyer and that the lawyer reasonably believes are necessary to an informed decision.

Withdrawal. Normally, a lawyer's compliance with the duty of candor imposed by this Rule does not require that the lawyer withdraw from the representation of a client whose interests will be or have been adversely affected by the lawyer's disclosure. The lawyer may, however, be required by Rule 1.16 (a) to seek permission of the tribunal to withdraw if the lawyer's compliance with this Rule's duty of candor results in such an extreme deterioration of the client-lawyer relationship that the lawyer can no longer competently represent the client. Also see Rule 1.16 (b) for the circumstances in which a lawyer will be permitted to seek a tribunal's permission to withdraw. In connection with a request for permission to withdraw that is premised on a client's misconduct, a lawyer may reveal information relating to the representation only to the extent reasonably necessary to comply with this Rule or as otherwise permitted by Rule 1.6.

Rule 3.4. Fairness to Opposing Party and Counsel

A lawyer shall not:

(1) Unlawfully obstruct another party's access to evidence or unlawfully alter, destroy or conceal a document or other material having potential evidentiary value. A lawyer shall not counsel or assist another person to do any such act;

(2) Falsify evidence, counsel or assist a witness to testify falsely, or offer an inducement to a witness that is prohibited by law;

(3) Knowingly disobey an obligation under the rules of a tribunal except for an open refusal based on an assertion that no valid obligation exists;

(4) In pretrial procedure, make a frivolous discovery request or fail to make reasonably diligent effort to comply with a legally proper discovery request by an opposing party;

(5) In trial, allude to any matter that the lawyer does not reasonably believe is relevant or that will not be supported by admissible evidence, assert personal knowledge of facts in issue except when testifying as a witness, or state a personal opinion as to the justness of a cause, the credibility of a witness, the culpability of a civil litigant or the guilt or innocence of an accused; or

(6) Request a person other than a client to refrain from voluntarily giving relevant information to another party unless:

(A) The person is a relative or an employee or other agent of a client; and

(B) The lawyer reasonably believes that the person's interests will not be adversely affected by refraining from giving such information.

(7) Present, participate in presenting, or threaten to present criminal charges solely to obtain an advantage in a civil matter.

(P.B. 1978-1997, Rule 3.4.)

COMMENTARY: The procedure of the adversary system contemplates that the evidence in a case is to be marshaled competitively by the contending parties. Fair competition in the adversary system is secured by prohibitions against destruction or concealment of evidence, improperly influencing witnesses, obstructive tactics in discovery procedure, and the like.

Documents and other items of evidence are often essential to establish a claim or defense. Subject to evidentiary privileges, the right of an opposing party, including the government, to obtain evidence through discovery or subpoena is an important procedural right. The exercise of that right can be frustrated if relevant material is altered, concealed or destroyed. Applicable law in many jurisdictions makes it an offense to destroy material for the purpose of impairing its availability in a pending proceeding or one whose commencement can be foreseen. Falsifying evidence is also generally a criminal offense. Subdivision (1) applies to evidentiary material generally, including computerized information. Applicable law may permit a lawyer to take temporary possession of physical evidence of client crimes for the purpose of conducting a limited examination that will not alter or destroy material characteristics of the evidence. In such a case, applicable law may require the lawyer to turn the evidence over to the police or other prosecuting authority, depending on the circumstances.

With regard to subdivision (2), it is not improper to pay a witness' expenses or to compensate an expert witness on terms permitted by law. The common law rule in most jurisdictions is that it is improper to pay an occurrence witness any fee for testifying and that it is improper to pay an expert witness a contingent fee.

Subdivision (6) permits a lawyer to advise employees of a client to refrain from giving information to another party, for the employees may identify their interests with those of the client. See also Rule 4.2.

Rule 3.5. Impartiality and Decorum

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

A lawyer shall not:

(1) Seek to influence a judge, juror, prospective juror or other official by means prohibited by law;

(2) Communicate ex parte with such a person during the proceeding unless authorized to do so by law or court order;

(3) Communicate with a juror or prospective juror after discharge of the jury if:

(a) the communication is prohibited by law or court order;

(b) the juror has made known to the lawyer a desire not to communicate; or

(c) the communication involves misrepresentation, coercion, duress or harassment; or

(4) Engage in conduct intended to disrupt a tribunal or ancillary proceedings such as depositions and mediations.

(P.B. 1978-1997, Rule 3.5.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 29, 2007, to take effect Jan. 1, 2008.)

COMMENTARY: Many forms of improper influence upon a tribunal are proscribed by criminal law. Others are specified in the ABA Model Code of Judicial Conduct, with which an advocate should be familiar. A lawyer is required to avoid contributing to a violation of such provisions.

During a proceeding a lawyer may not communicate ex parte with persons serving in an official capacity in the proceeding, such as judges, masters or jurors, unless authorized to do so by law or court order.

A lawyer may on occasion want to communicate with a juror or prospective juror after the jury has been discharged. The lawyer may do so unless the communication is prohibited by law or a court order but must respect the desire of the juror not to talk with the lawyer. The lawyer may not engage in improper conduct during the communication.

The advocate's function is to present evidence and argument so that the cause may be decided according to law. Refraining from abusive or obstreperous conduct is a corollary of the advocate's right to speak on behalf of litigants. A lawyer may stand firm against abuse by a judge but should avoid reciprocation; the judge's default is no justification for similar dereliction by an advocate. An advocate can present the cause, protect the record for subsequent review and preserve professional integrity by patient firmness no less effectively than by belligerence or theatrics.

Rule 3.6. Trial Publicity

(a) A lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.

(b) Notwithstanding subsection (a), a lawyer may make a statement that a reasonable lawyer would believe is required to protect a client from the substantial undue prejudicial effect of recent publicity not initiated by the lawyer or the lawyer's client. A statement made pursuant to this subsection shall be limited to such information as is necessary to mitigate the recent adverse publicity.

(c) No lawyer associated in a firm or government agency with a lawyer subject to subsection (a) shall make a statement prohibited by subsection (a).

(P.B. 1978-1997, Rule 3.6.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: (1) It is difficult to strike a balance between protecting the right to a fair trial and safeguarding the right of free expression. Preserving the right to a fair trial necessarily entails some curtailment of the information that may be disseminated about a party prior to trial, particularly where trial by jury is involved. If there were no such limits, the result would be the practical nullification of the protective effect of

the rules of forensic decorum and the exclusionary rules of evidence. On the other hand, there are vital social interests served by the free dissemination of information about events having legal consequences and about legal proceedings themselves. The public has a right to know about threats to its safety and measures aimed at assuring its security. It also has a legitimate interest in the conduct of judicial proceedings, particularly in matters of general public concern. Furthermore, the subject matter of legal proceedings is often of direct significance in debate and deliberations over questions of public policy.

(2) Special rules of confidentiality may validly govern proceedings in juvenile, domestic relations and mental disability proceedings, and perhaps other types of litigation. Rule 3.4 (3) requires compliance with such Rules.

(3) The Rule sets forth a basic general prohibition against a lawyer making statements that the lawyer knows or should know will have a substantial likelihood of materially prejudicing an adjudicative proceeding. Recognizing that the public value of informed commentary is great and the likelihood of prejudice to a proceeding by the commentary of a lawyer who is not involved in the proceeding is small, the Rule applies only to lawyers who are, or who have been involved in the investigation or litigation of a case, and their associates.

(4) Certain subjects would not ordinarily be considered to present a substantial likelihood of material prejudice, such as:

(a) the claim, offense or defense involved and, except when prohibited by law, the identity of the persons involved;

(b) information contained in a public record;

(c) that an investigation of the matter is in progress;

(d) the scheduling or result of any step in litigation;

(e) a request for assistance in obtaining evidence and information necessary thereto;

(f) a warning of danger concerning the behavior of a person involved, when there is reason to believe that there exists the likelihood of substantial harm to an individual or to the public interest; and

(g) in a criminal case: in addition to subparagraphs (a) through (f):

(i) identity, residence, occupation and family status of the accused;

(ii) if the accused has not been apprehended, information necessary to aid in apprehension of that person;

(iii) the fact, time and place of arrest; and

(iv) the identity of investigating and arresting officers or agencies and the length of the investigation.

(5) There are, on the other hand, certain subjects which are more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a civil matter triable to a jury, a criminal matter, or any other proceeding that could result in incarceration. These subjects relate to:

(a) the character, credibility, reputation or criminal record of a party, suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;

(b) in a criminal case or proceeding that could result in incarceration, the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission, or statement given by a defendant or suspect or that person's refusal or failure to make a statement;

(c) the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;

(d) any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration;

(e) information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial; or

(f) the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty.

(6) Another relevant factor in determining prejudice is the nature of the proceeding involved. Criminal jury trials will be most sensitive to extrajudicial speech. Civil trials may be less sensitive. Nonjury hearings and arbitration proceedings may be even less affected. The Rule will still place limitations on prejudicial comments in these cases, but the likelihood of prejudice may be different depending on the type of proceeding.

(7) Finally, extrajudicial statements that might otherwise raise a question under this Rule may be permissible when they are made in response to statements made publicly by another party, another party's lawyer, or third persons, where a reasonable lawyer would believe a public response is required in order to avoid prejudice to the lawyer's client. When prejudicial statements have been publicly made by others, responsive statements may have the salutary effect of lessening any resulting adverse impact on the adjudicative proceeding. Such responsive statements should be limited to contain only such information as is necessary to mitigate undue prejudice created by the statements made by others.

(8) See Rule 3.8 (5) for additional duties of prosecutors in connection with extrajudicial statements about criminal proceedings.

Rule 3.7. Lawyer as Witness

(a) A lawyer shall not act as advocate at a trial in which the lawyer is likely to be a necessary witness unless:

(1) The testimony relates to an uncontested issue;

(2) The testimony relates to the nature and value of legal services rendered in the case; or

(3) Disqualification of the lawyer would work substantial hardship on the client.

(b) A lawyer may act as advocate in a trial in which another lawyer in the lawyer's firm is likely to be called as a witness unless precluded from doing so by Rule 1.7 or Rule 1.9.

(P.B. 1978-1997, Rule 3.7.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: Combining the roles of advocate and witness can prejudice the tribunal and the opposing party and can also involve a conflict of interest between the lawyer and client.

Advocate-Witness Rule. The tribunal has proper objection when the trier of fact may be confused or misled by a lawyer serving as both advocate and witness. The opposing party has proper objection where the combination of roles may prejudice that party's rights in the litigation. A witness is required to testify on the basis of personal knowledge, while an advocate is expected to explain and comment on evidence given by others. It may not be clear whether a statement by an advocate-witness should be taken as proof or as an analysis of the proof.

To protect the tribunal, subsection (a) prohibits a lawyer from simultaneously serving as advocate and necessary witness except in those circumstances specified in subsections

(a) (1) through (a) (3). Subsection (a) (1) recognizes that if the testimony will be uncontested, the ambiguities in the dual role are purely theoretical. Subsection (a) (2) recognizes that where the testimony concerns the extent and value of legal services rendered in the action in which the testimony is offered, permitting the lawyers to testify avoids the need for a second trial with new counsel to resolve that issue. Moreover, in such a situation the judge has firsthand knowledge of the matter in issue; hence, there is less dependence on the adversary process to test the credibility of the testimony.

Apart from these two exceptions, subsection (a) (3) recognizes that a balancing is required between the interests of the client and those of the tribunal and the opposing party. Whether the tribunal is likely to be misled or the opposing party is likely to suffer prejudice depends on the nature of the case, the importance and probable tenor of the lawyer's testimony, and the probability that the lawyer's testimony will conflict with that of other witnesses. Even if there is risk of such prejudice, in determining whether the lawyer should be disqualified, due regard must be given to the effect of disqualification on the lawyer's client. It is relevant that one or both parties could reasonably foresee that the lawyer would probably be a witness. The conflict of interest principles stated in Rules 1.7, 1.9 and 1.10 have no application to this aspect of the problem.

Because the tribunal is not likely to be misled when a lawyer acts as advocate in a trial in which another lawyer in the lawyer's firm will testify as a necessary witness, subsection (b) permits the lawyer to do so except in situations involving a conflict of interest.

Conflict of Interest. In determining if it is permissible to act as advocate in a trial in which the lawyer will be a necessary witness, the lawyer must also consider that the dual role may give rise to a conflict of interest that will require compliance with Rules 1.7 or 1.9. For example, if there is likely to be substantial conflict between the testimony of the client and that of the lawyer, the representation involves a conflict of interest that requires compliance with Rule 1.7. This would be true even though the lawyer might not be prohibited by subsection (a) from simultaneously serving as advocate and witness because the lawyer's disqualification would work a substantial hardship on the client. Similarly, a lawyer who might be permitted to simultaneously serve as an advocate and a witness by subsection (a) (3) might be precluded from doing so by Rule 1.9. The problem can arise whether the lawyer is called as a witness on behalf of the client or is called by the opposing party. Determining whether or not such a conflict exists is primarily the responsibility of the lawyer involved. If there is a conflict of interest, the lawyer must secure the client's informed consent, confirmed in writing. In some cases, the lawyer will be precluded from seeking the client's consent. See Rule 1.7. See Rule 1.0 (c) for the definition of "confirmed in writing" and Rule 1.0 (f) for the definition of "informed consent."

Subsection (b) provides that a lawyer is not disqualified from serving as an advocate because a lawyer with whom the lawyer is associated in a firm is precluded from doing so by subsection (a). If, however, the testifying lawyer would also be disqualified by Rule 1.7 or Rule 1.9 from representing the client in the matter, other lawyers in the firm will be precluded from representing the client by Rule 1.10 unless the client gives informed consent under the conditions stated in Rule 1.7.

Rule 3.8. Special Responsibilities of a Prosecutor

The prosecutor in a criminal case shall:

(1) Refrain from prosecuting a charge that the prosecutor knows is not supported by probable cause;

(2) Make reasonable efforts to assure that the accused has been advised of the right to, and the procedure for obtaining, counsel and has been given reasonable opportunity to obtain counsel;

(3) Not seek to obtain from an unrepresented accused a waiver of important pretrial rights, such as the right to a preliminary hearing;

(4) Make timely disclosure to the defense of all evidence or information known to the prosecutor that tends to negate the guilt of the accused or mitigates the offense, and, in connection with sentencing, disclose to the defense and to the tribunal all unprivileged mitigating information known to the prosecutor, except when the prosecutor is relieved of this responsibility by a protective order of the tribunal; and

(5) Exercise reasonable care to prevent investigators, law enforcement personnel, employees or other persons assisting or associated with the prosecutor in a criminal case from making an extrajudicial statement that the prosecutor would be prohibited from making under Rule 3.6.

(6) When a prosecutor knows of new and credible evidence creating a reasonable probability that a convicted defendant did not commit an offense of which the defendant was convicted, the prosecutor shall, unless a court authorizes delay:

(A) if the conviction was obtained outside the prosecutor's jurisdiction, promptly disclose that evidence to a court and an appropriate authority, and

(B) if the conviction was obtained in the prosecutor's jurisdiction, promptly disclose that evidence to the defendant, and a court and an appropriate authority.

(P.B. 1978-1997, Rule 3.8.) (Amended June 13, 2014, to take effect Jan. 1, 2015.)

COMMENTARY: A prosecutor has the responsibility of a minister of justice and not simply that of an advocate. This responsibility carries with it specific obligations to see that the defendant is accorded procedural justice and that guilt is decided upon the basis of sufficient evidence. Precisely how far the prosecutor is required to go in this direction is a matter of debate and varies in different jurisdictions. Many jurisdictions have adopted the ABA Standards of Criminal Justice Relating to the Prosecution Function, which, in turn, are the product of prolonged and careful deliberation by lawyers experienced in both criminal prosecution and defense. See also Rule 3.3 (d), governing ex parte proceedings, among which grand jury proceedings are included. Applicable law may require other measures by the prosecutor and knowing disregard of those obligations or a systematic abuse of prosecutorial discretion could constitute a violation of Rule 8.4.

Subdivision (3) does not apply to an accused appearing as a self-represented party with the approval of the tribunal. Nor does it forbid the lawful questioning of a suspect who has knowingly waived the rights to counsel and silence.

The exception in subdivision (4) recognizes that a prosecutor may seek an appropriate protective order from the tribunal if disclosure of information to the defense could result in substantial harm to an individual or to the public interest.

When a prosecutor knows of new and credible evidence creating a reasonable probability that a person outside the prosecutor's jurisdiction was convicted of a crime that the person did not commit, subdivision (6) requires prompt disclosure to a court and other appropriate authority, such as the Office of the Chief Public Defender, the Office of the Federal Defender or the chief prosecutor of the jurisdiction where the conviction occurred. When disclosure is made to the chief prosecutor of the jurisdiction, that prosecutor must then independently evaluate his or her own ethical obligations under this Rule with respect to the evidence. If the conviction was obtained in the prosecutor's jurisdiction, subdivision (6) requires the prosecutor to promptly disclose the evidence to the defendant and a court and other appropriate authority, such as the Office of the Chief Public Defender or the Office of the Federal Defender. Disclosure to a court shall be by written notice to the presiding judge of the jurisdiction in which the conviction was obtained, or, where the conviction was in federal court, to the chief United States District Court Judge. Consistent with the objectives of Rules 4.2 and 4.3, disclosure to a represented defendant must be made through the defendant's counsel. If a defendant is not represented, or if the prosecutor cannot determine if a defendant is represented, disclosure to the Office of the Chief Public Defender or the Office of the Federal Defender shall satisfy the requirement of notice to the defendant. The prosecutor may seek to delay disclosure by means of a protective order or other appropriate measure to protect the safety of a witness, to secure the integrity of an ongoing investigation, or other similar purpose. Knowledge denotes the actual knowledge of the prosecutor who is determining the scope of his or her own ethical duty to act. A "reasonable probability that the defendant did not commit an offense of which the defendant was convicted" is "a probability sufficient to undermine confidence in the outcome," as articulated in *Brady* v. *Maryland*, 373 U.S. 83, 87, 83 S. Ct. 1194, 10 L. Ed. 2d 215 (1963), and *Strickland* v. *Washington*, 466 U.S. 668, 694, 104 S. Ct. 2052, 80 L. Ed. 2d 674 (1984). The decision by a prosecutor to disclose information to a defendant or an appropriate authority shall not be deemed a concession that, and shall not ethically foreclose the prosecutor from contesting before a factfinder or an appellate tribunal that, the evidence is new or credible or that it creates a reasonable probability that the defendant did not commit the offense.

A prosecutor's independent judgment, made in good faith, that the new evidence is not of such nature as to trigger the obligations of subdivision (6), though subsequently determined to have been erroneous, does not constitute a violation of this Rule.

Rule 3.9. Advocate in Nonadjudicative Proceedings

A lawyer representing a client before a legislative body or administrative agency in a nonadjudicative proceeding shall disclose that the appearance is in a representative capacity and shall conform to the provisions of Rules 3.3 (a) through (c), 3.4 (1) through (3), and 3.5.

(P.B. 1978-1997, Rule 3.9.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: In representation before bodies such as legislatures, municipal councils, and executive and administrative agencies acting in a rule-making or policy-making capacity, lawyers present facts, formulate issues and advance argument in the matters under consideration. The decision-making body, like a court, should be able to rely on the integrity of the submissions made to it. A lawyer appearing before such a body must deal with it honestly and in conformity with applicable rules of procedure. See Rules 3.3 (a) through (c), 3.4 (a) through (c) and 3.5.

Lawyers have no exclusive right to appear before nonadjudicative bodies, as they do before a court. The requirements of this Rule therefore may subject lawyers to regulations inapplicable to advocates who are not lawyers. However, legislatures and administrative agencies have a right to expect lawyers to deal with them as they deal with courts.

This Rule only applies when a lawyer represents a client in connection with an official hearing or meeting of a governmental agency or a legislative body to which the lawyer or the lawyer's client is presenting evidence or argument. It does not apply to representation of a client in a negotiation or other bilateral transaction with a governmental agency or in connection with an application for a license or other privilege or the client's compliance with generally applicable reporting requirements, such as the filing of income tax returns. Nor does it apply to the representation of a client in connection with an investigation or examination of the client's affairs conducted by government investigators or examiners. Representation in such matters is governed by Rules 4.1 through 4.4.

TRANSACTIONS WITH PERSONS OTHER THAN CLIENTS

Rule 4.1. Truthfulness in Statements to Others

In the course of representing a client a lawyer shall not knowingly:

(1) Make a false statement of material fact or law to a third person; or

(2) Fail to disclose a material fact when disclosure is necessary to avoid assisting a criminal or fraudulent act by a client, unless disclosure is prohibited by Rule 1.6.

(P.B. 1978-1997, Rule 4.1.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: **Misrepresentation.** A lawyer is required to be truthful when dealing with others on a client's behalf, but generally has no affirmative duty to inform an opposing party of relevant facts. A misrepresentation can occur if the lawyer incorporates or affirms a statement of another person that the lawyer knows is false. Misrepresentations can also occur by partially true but misleading statements or omissions that are the equivalent of affirmative false statements. For dishonest conduct that does not amount to a false statement or for misrepresentations by a lawyer other than in the course of representing a client, see Rule 8.4.

Statements of Fact. This Rule refers to statements of fact. Whether a particular statement should be regarded as one of fact can depend on the circumstances. Under generally accepted conventions in negotiation, certain types of statements ordinarily are not taken as statements of material fact. Estimates of price or value placed on the subject of a transaction and a party's intentions as to an acceptable settlement of a claim are ordinarily in this category, and so is the existence of an undisclosed principal except where nondisclosure of the principal would constitute fraud. Lawyers should be mindful of their obligations under applicable law to avoid criminal and tortious misrepresentation.

Crime or Fraud by Client. Under Rule 1.2 (d), a lawyer is prohibited from counseling or assisting a client in conduct that the lawyer knows is criminal or fraudulent. Subdivision (2) states a specific application of the principle set forth in

Rule 1.2 (d) and addresses the situation where a client's crime or fraud takes the form of a lie or misrepresentation. Ordinarily, a lawyer can avoid assisting a client's crime or fraud by withdrawing from the representation. Sometimes it may be necessary for the lawyer to give notice of the fact of withdrawal and to disaffirm an opinion, document, affirmation or the like. In extreme cases, substantive law may require a lawyer to disclose information relating to the representation to avoid being deemed to have assisted the client's crime or fraud. If the lawyer can avoid assisting a client's crime or fraud only by disclosing this information, then under subdivision (2) the lawyer is required to do so, unless the disclosure is prohibited by Rule 1.6.

Rule 4.2. Communication with Person Represented by Counsel

In representing a client, a lawyer shall not communicate about the subject of the representation with a party the lawyer knows to be represented by another lawyer in the matter, unless the lawyer has the consent of the other lawyer or is authorized by law to do so. An otherwise unrepresented party for whom a limited appearance has been filed pursuant to Practice Book Section 3-8 (b) is considered to be unrepresented for purposes of this Rule as to anything other than the subject matter of the limited appearance. When a limited appearance has been filed for the party, and served on the other lawyer, or the other lawyer is otherwise notified that a limited appearance has been filed or will be filed, that lawyer may directly communicate with the part only about matters outside the scope of the limited appearance without consulting with the party's limited appearance lawyer.

(P.B. 1978-1997, Rule 4.2.) (Amended June 14, 2013, to take effect Oct. 1, 2013.)

COMMENTARY: This Rule does not prohibit communication with a party, or an employee or agent of a party, concerning matters outside the representation. For example, the existence of a controversy between a government agency and a private party, or between two organizations, does not prohibit a lawyer for either from communicating with nonlawyer representatives of the other regarding a separate matter. Also, parties to a matter may communicate directly with each other and a lawyer having independent justification for communicating with the other party is permitted to do so. Communications authorized by law include, for example, the right of a party to a controversy with a government agency to speak with government officials about the matter.

In the case of an organization, this Rule prohibits communications by a lawyer for one party concerning the matter in representation with persons having a managerial responsibility on behalf of the organization, and with any other person whose act or omission in connection with that matter may be imputed to the organization for purposes of civil or criminal liability or whose statement may constitute an admission on the part of the organization. If an agent or employee of the organization is represented in the matter by his or her own counsel, the consent by that counsel to a communication will be sufficient for purposes of this Rule. (Compare Rule 3.4).

This Rule also covers any person, whether or not a party to a formal proceeding, who is represented by counsel concerning the matter in question.

Rule 4.3. Dealing with Unrepresented Person

In dealing on behalf of a client with a person who is not represented by counsel, in whole or in part, a lawyer shall not state or imply that the lawyer is disinterested. When the lawyer knows or reasonably should know that the unrepresented person misunderstands the lawyer's role in the matter, the lawyer shall make reasonable efforts to correct the misunderstanding. The lawyer shall not give legal advice to an unrepresented person, other than the advice to secure counsel, if the lawyer knows or reasonably should know that the interests of such a person are or have a reasonable possibility of being in conflict with the interests of the client.

(P.B. 1978-1997, Rule 4.3.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2013, to take effect Oct. 1, 2013.)

COMMENTARY: An unrepresented person, particularly one not experienced in dealing with legal matters, might assume that a lawyer is disinterested in loyalties or is a disinterested authority on the law even when the lawyer represents a client. In order to avoid a misunderstanding, a lawyer will typically need to identify the lawyer's client and, where necessary, explain that the client has interests opposed to those of the unrepresented person. For misunderstandings that sometimes arise when a lawyer for an organization deals with an unrepresented constituent, see Rule 1.13 (d).

The Rule distinguishes between situations involving unrepresented persons whose interests may be adverse to those of the lawyer's client and those in which the person's interests are not in conflict with the client's. In the former situation, the possibility that the lawyer will compromise the unrepresented person's interests is so great that the Rule prohibits the giving of any advice, apart from the advice to obtain counsel. Whether a lawyer is giving impermissible advice may depend on the experience and sophistication of the unrepresented person, as well as the setting in which the behavior and comments occur. This Rule does not prohibit a lawyer from negotiating the terms of a transaction or settling a dispute with an unrepresented person. So long as the lawyer has explained that the lawyer represents an adverse party and is not representing the person, the lawyer may inform the person of the terms on which the lawyer's client will enter into an agreement or settle a matter, prepare documents that require the person's signature and explain the lawyer's own view of the meaning of the document or the lawyer's view of the underlying legal obligations.

See Rule 3.8 for particular duties of prosecutors in dealing with unrepresented persons.

Rule 4.4. Respect for Rights of Third Persons

(a) In representing a client, a lawyer shall not use means that have no substantial purpose other than to embarrass, delay, or burden a third person, or use methods of obtaining evidence that violate the legal rights of such a person.

(b) A lawyer who receives a document or electronically stored information relating to the representation of the lawyer's client and knows or

reasonably should know that the document or electronically stored information was inadvertently sent shall promptly notify the sender.

(P.B. 1978-1997, Rule 4.4.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2013, to take effect Jan. 1, 2014.)

COMMENTARY: Responsibility to a client requires a lawyer to subordinate the interests of others to those of the client, but that responsibility does not imply that a lawyer may disregard the rights of third persons. It is impractical to catalogue all such rights, but they include legal restrictions on methods of obtaining evidence from third persons and unwarranted intrusions into privileged relationships, such as the client-lawyer relationship.

Subsection (b) recognizes that lawyers sometimes receive a document or electronically stored information that was mistakenly sent or produced by opposing parties or their lawyers. A document or electronically stored information is inadvertently sent when it is accidentally transmitted, such as when an email or letter is misaddressed or a document or electronically stored information is accidentally included with information that was intentionally transmitted. If a lawyer knows or reasonably should know that such a document or electronically stored information was sent inadvertently, then this Rule requires the lawyer to promptly notify the sender in order to permit that person to take protective measures. Whether the lawyer is required to take additional steps, such as returning the document or electronically stored information, is a matter of law beyond the scope of these Rules, as is the question of whether the privilege status of a document or electronically stored information has been waived. Similarly, this Rule does not address the legal duties of a lawyer who receives a document or electronically stored information that the lawyer knows or reasonably should know may have been inappropriately obtained by the sending person. For purposes of this Rule, "document or electronically stored information" includes, in addition to paper documents, email and other forms of electronically stored information, including embedded data (commonly referred to as "metadata"), that is subject to being read or put into readable form. Metadata in electronic documents creates an obligation under this Rule only if the receiving lawyer knows or reasonably should know that the metadata was inadvertently sent to the receiving lawyer.

Some lawyers may choose to return a document or delete electronically stored information unread, for example, when the lawyer learns before receiving it that it was inadvertently sent. Where a lawyer is not required by applicable law to do so, the decision to voluntarily return such a document or delete electronically stored information is a matter of professional judgment ordinarily reserved to the lawyer. See Rules 1.2 and 1.4.

LAW FIRMS AND ASSOCIATIONS

Rule 5.1. Responsibilities of Partners, Managers, and Supervisory Lawyers

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) A partner in a law firm, and a lawyer who individually or together with other lawyers possesses comparable managerial authority in a law firm, shall make reasonable efforts to ensure that the firm has in effect measures giving reasonable assurance that all lawyers in the firm conform to the Rules of Professional Conduct.

(b) A lawyer having direct supervisory authority over another lawyer shall make reasonable efforts to ensure that the other lawyer conforms to the Rules of Professional Conduct.

(c) A lawyer shall be responsible for another lawyer's violation of the Rules of Professional Conduct if:

(1) The lawyer orders or, with knowledge of the specific conduct, ratifies the conduct involved; or

(2) The lawyer is a partner or has comparable managerial authority in the law firm in which the other lawyer practices, or has direct supervisory authority over the other lawyer, and knows of the conduct at a time when its consequences can be avoided or mitigated but fails to take reasonable remedial action.

(P.B. 1978-1997, Rule 5.1.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: Subsection (a) applies to lawyers who have managerial authority over the professional work of a firm. See Rule 1.0 (d). This includes members of a partnership, the shareholders in a law firm organized as a professional corporation, and members of other associations authorized to practice law; lawyers having comparable managerial authority in a legal services organization or a law department of an enterprise or government agency; and lawyers who have intermediate managerial responsibilities in a firm. Subsection (b) applies to lawyers who have supervisory authority over the work of other lawyers in a firm.

Subsection (a) requires lawyers with managerial authority within a firm to make reasonable efforts to establish internal policies and procedures designed to provide reasonable assurance that all lawyers in the firm will conform to the Rules of Professional Conduct. Such policies and procedures include those designed to detect and resolve conflicts of interest, identify dates by which actions must be taken in pending matters, account for client funds and property and ensure that inexperienced lawyers are properly supervised.

Other measures that may be required to fulfill the responsibility prescribed in subsection (a) can depend on the firm's structure and the nature of its practice. In a small firm of experienced lawyers, informal supervision and periodic review of compliance with the required systems ordinarily will suffice. In a large firm, or in practice situations in which difficult ethical problems frequently arise, more elaborate measures may be necessary. Some firms, for example, have a procedure whereby junior lawyers can make confidential referral of ethical problems directly to a designated senior partner or special committee. See Rule 5.2. Firms, whether large or small, may also rely on continuing legal education in professional ethics. In any event, the ethical atmosphere of a firm can influence the conduct of all its members and the partners may not assume that all lawyers associated with the firm will inevitably conform to the Rules.

Subsection (c) expresses a general principle of personal responsibility for acts of another. See also Rule 8.4 (1).

Subsection (c) (2) defines the duty of a partner or other lawyer having comparable managerial authority in a law firm, as well as a lawyer who has direct supervisory authority over performance of specific legal work by another lawyer. Whether a lawyer has supervisory authority in particular circumstances is a question of fact. Partners and lawyers with comparable authority have at least indirect responsibility for all work being done by the firm, while a partner or manager in charge of a

particular matter ordinarily also has supervisory responsibility for the work of other firm lawyers engaged in the matter. Appropriate remedial action by a partner or managing lawyer would depend on the immediacy of that lawyer's involvement and the seriousness of the misconduct. A supervisor is required to intervene to prevent avoidable consequences of misconduct if the supervisor knows that the misconduct occurred. Thus, if a supervising lawyer knows that a subordinate misrepresented a matter to an opposing party in negotiation, the supervisor as well as the subordinate has a duty to correct the resulting misapprehension.

Professional misconduct by a lawyer under supervision could reveal a violation of subsection (b) on the part of the supervisory lawyer even though it does not entail a violation of subsection (c) because there was no direction, ratification or knowledge of the violation.

Apart from this Rule and Rule 8.4 (1), a lawyer does not have disciplinary liability for the conduct of a partner, associate or subordinate. Whether a lawyer may be liable civilly or criminally for another lawyer's conduct is a question of law beyond the scope of these Rules.

The duties imposed by this Rule on managing and supervising lawyers do not alter the personal duty of each lawyer in a firm to abide by the Rules of Professional Conduct. See Rule 5.2 (a).

Rule 5.2. Responsibilities of a Subordinate Lawyer

A lawyer is bound by the Rules of Professional Conduct notwithstanding that that lawyer acted at the direction of another person.

(P.B. 1978-1997, Rule 5.2.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: Although a lawyer is not relieved of responsibility for a violation by the fact that the lawyer acted at the direction of a supervisor, that fact may be relevant in determining whether a lawyer had the knowledge required to render conduct a violation of the Rules. For example, if a subordinate filed a frivolous pleading at the direction of a supervisor, the subordinate would not be guilty of a professional violation unless the subordinate knew of the document's frivolous character.

When lawyers in a supervisor-subordinate relationship encounter a matter involving professional judgment as to ethical duty, the supervisor may assume responsibility for making the judgment. Otherwise a consistent course of action or position could not be taken. If the question can reasonably be answered only one way, the duty of both lawyers is clear and they are equally responsible for fulfilling it. However, if the question is reasonably arguable, somone has to decide upon the course of action. That authority ordinarily reposes in the supervisor, and a subordinate may be guided accordingly. For example, if a question arises whether the interests of two clients conflict under Rule 1.7, the supervisor's reasonable resolution of the question should protect the subordinate professionally if the resolution is subsequently challenged.

Rule 5.3. Responsibilities regarding Nonlawyer Assistance

(Amended June 13, 2014, to take effect Jan. 1, 2015.)

With respect to a nonlawyer employed or retained by or associated with a lawyer:

(1) A partner, and a lawyer who individually or together with other lawyers possesses comparable managerial authority in a law firm shall make reasonable efforts to ensure that the firm has in effect measures giving reasonable assurance that the person's conduct is compatible with the professional obligations of the lawyer;

(2) A lawyer having direct supervisory authority over the nonlawyer shall make reasonable efforts to ensure that the person's conduct is compatible with the professional obligations of the lawyer; and

(3) A lawyer shall be responsible for conduct of such a person that would be a violation of the Rules of Professional Conduct if engaged in by a lawyer if:

(A) The lawyer orders or, with the knowledge of the specific conduct, ratifies the conduct involved; or

(B) The lawyer is a partner or has comparable managerial authority in the law firm in which the person is employed, or has direct supervisory authority over the person, and knows of the conduct at a time when its consequences can be avoided or mitigated but fails to take reasonable remedial action.

(P.B. 1978-1997, Rule 5.3.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: Lawyers generally employ assistants in their practice, including secretaries, investigators, law student interns, and paraprofessionals. Such assistants, whether employees or independent contractors, act for the lawyer in rendition of the lawyer's professional services. A lawyer must give such assistants appropriate instruction and supervision concerning the ethical aspects of their employment, particularly regarding the obligation not to disclose information relating to representation of the client, and should be responsible for their work product. The measures employed in supervising nonlawyers should take account of the fact that they do not have legal training and are not subject to professional discipline.

Subdivision (1) requires lawyers with managerial authority within a law firm to make reasonable efforts to ensure that the firm has in effect measures giving reasonable assurance that nonlawyers in the firm and nonlawyers outside the firm who work on firm matters act in a way compatible with the professional obligations of the lawyer. See Commentary to Rule 1.1 and first paragraph of Commentary to Rule 5.1. Subdivision (2) applies to lawyers who have supervisory authority over such nonlawyers within or outside the firm. Subdivision (3) specifies the circumstances in which a lawyer is responsible for the conduct of such nonlawyers within or outside the firm that would be a violation of the Rules of Professional Conduct if engaged in by a lawyer.

Nonlawyers Outside the Firm. A lawyer may use nonlawyers outside the firm to assist the lawyer in rendering legal services to the client. Examples include the retention of an investigative or paraprofessional service, hiring a document management company to create and maintain a database for complex litigation, sending client documents to a third party for printing or scanning, and using an internet based service to store client information. When using such services outside the firm, a lawyer must make reasonable efforts to ensure that the services are provided in a manner that is compatible with the lawyer's professional obligations. The extent of this obligation will depend upon the circumstances, including the education, experience and reputation of the nonlawyer; the nature

of the services involved; the terms of any arrangements concerning the protection of client information; and the legal and ethical environments of the jurisdictions in which the services will be performed, particularly with regard to confidentiality. See also Rules 1.1 (competence), 1.2 (allocation of authority), 1.4 (communication with client), 1.6 (confidentiality), 5.4 (a) (professional independence of the lawyer), and 5.5 (a) (unauthorized practice of law). When retaining or directing a nonlawyer outside the firm, a lawyer should communicate directions appropriate under the circumstances to give reasonable assurance that the nonlawyer's conduct is compatible with the professional obligations of the lawyer.

Where the client directs the selection of a particular nonlawyer service provider outside the firm, the lawyer may need to consult with the client to determine how the outsourcing arrangement should be structured and who will be responsible for monitoring the performance of the nonlawyer services. Unless the client expressly agrees that the client will be responsible for monitoring the nonlawyer's services, the lawyer will be responsible for monitoring the nonlawyer's services.

Rule 5.4. Professional Independence of a Lawyer

(a) A lawyer or law firm shall not share legal fees with a nonlawyer, except that:

(1) An agreement by a lawyer with the lawyer's firm, partner, or associate may provide for the payment of money, over a reasonable period of time after the lawyer's death, to the lawyer's estate or to one or more specified persons;

(2) A lawyer who purchases the practice of a lawyer with disabilities or a lawyer who is deceased or has disappeared may, pursuant to the provisions of Rule 1.17, pay to the estate or other representative of that lawyer the agreed upon purchase price; and

(3) A lawyer or law firm may include nonlawyer employees in a compensation or retirement plan, even though the plan is based in whole or in part on a profit-sharing arrangement.

(4) A lawyer may share legal fees from a court award or settlement with a nonprofit organization that employed, retained, or recommended employment of the lawyer in the matter.

(b) A lawyer shall not form a partnership with a nonlawyer if any of the activities of the partnership consist of the practice of law.

(c) A lawyer shall not permit a person who recommends, employs, or pays the lawyer to render legal services for another to direct or regulate the lawyer's professional judgment in rendering such legal services.

(d) A lawyer shall not practice with or in the form of a professional corporation or association authorized to practice law for a profit, if:

(1) A nonlawyer owns any interest therein, except that a fiduciary representative of the estate of a lawyer may hold the stock or interest of the lawyer for a reasonable time during administration;

(2) A nonlawyer is a corporate director or officer thereof or occupies the position of similar responsibility in any form of association other than a corporation; or

(3) A nonlawyer has the right to direct or control the professional judgment of a lawyer.

(P.B. 1978-1997, Rule 5.4.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 13, 2019, to take effect July 16, 2019.)

COMMENTARY: The provisions of this Rule express traditional limitations on sharing fees. These limitations are to protect the lawyer's professional independence of judgment. Where someone other than the client pays the lawyer's fee or salary, or recommends employment of the lawyer, that arrangement does not modify the lawyer's obligation to the client. As stated in subsection (c), such arrangements should not interfere with the lawyer's professional judgment.

This Rule also expresses traditional limitations on permitting a third party to direct or regulate the lawyer's professional judgment in rendering legal services to another. See also Rule 1.8 (f) (lawyer may accept compensation from a third party as long as there is no interference with the lawyer's independent professional judgment and the client gives informed consent).

Rule 5.5 Unauthorized Practice of Law

(a) A lawyer shall not practice law in a jurisdiction in violation of the regulation of the legal profession in that jurisdiction, or assist another in doing so. The practice of law in this jurisdiction is defined in Practice Book Section 2-44A. Conduct described in subsections (c), (d) and (f) in another jurisdiction shall not be deemed the unauthorized practice of law for purposes of this subsection (a).

(b) A lawyer who is not admitted to practice in this jurisdiction, shall not:

(1) except as authorized by law, establish an office or other systematic and continuous presence in this jurisdiction for the practice of law; or

(2) hold out to the public or otherwise represent that the lawyer is admitted to practice law in this jurisdiction.

(c) A lawyer admitted in another United State jurisdiction which accords similar privileges to Connecticut lawyers in its jurisdiction, and provided that the lawyer is not disbarred or suspended from practice in any jurisdiction, may provide legal services on a temporary basis in this jurisdiction, that:

(1) are undertaken in association with a lawyer who is admitted to practice in this jurisdiction and who actively participates in the matter;

(2) are in or reasonably related to a pending or potential proceeding before a tribunal in this or another jurisdiction, if the lawyer, or a person the lawyer is assisting, is authorized by law or order to appear in such proceeding or reasonably expects to be so authorized;

(3) are in or reasonably related to a pending or potential mediation or other alternative dispute

resolution proceeding in this or another jurisdiction, with respect to a matter that is substantially related to, or arises in, a jurisdiction in which the lawyer is admitted to practice and are not services for which the forum requires pro hac vice admission; or

(4) are not within subdivisions (c) (2) or (c) (3) and arise out of or are substantially related to the legal services provided to an existing client of the lawyer's practice in a jurisdiction in which the lawyer is admitted to practice.

(d) A lawyer admitted in another United States jurisdiction, who is in good standing in each jurisdiction in which he or she has been admitted, or who has taken retirement status or otherwise left the active practice of law while in good standing in another jurisdiction, may participate in the provision of uncompensated pro bono publico legal services in Connecticut where such services are offered under the supervision of an organized legal aid society or state or local bar association project.

(e) A lawyer admitted to practice in another jurisdiction, and not disbarred or suspended from practice in any jurisdiction, may provide legal services in this jurisdiction that:

(1) the lawyer is authorized to provide pursuant to Practice Book Section 2-15A and the lawyer is an authorized house counsel as provided in that section; or

(2) the lawyer is authorized by federal or other law or rule to provide in this jurisdiction.

(f) To the extent that a lawyer is physically present in this jurisdiction and remotely engages in the practice of law as authorized under the laws of another United States jurisdiction in which that lawyer is admitted, such conduct does not constitute the practice of law in this jurisdiction.

(g) A lawyer not admitted to practice in this jurisdiction and authorized by the provisions of this Rule to engage in providing legal services on a temporary basis in this jurisdiction is thereby subject to the disciplinary rules of this jurisdiction with respect to the activities in this jurisdiction.

(h) A lawyer desirous of obtaining the privileges set forth in subsection (c) (3) or (4):

(1) shall notify the statewide bar councel as to each separate matter prior to any such representation in Connecticut;

(2) shall notify the statewide bar counsel upon termination of each such representation in Connecticut; and

(3) shall pay such fees as may be prescribed by the Judicial Branch.

(P.B. 1978-1997, Rule 5.5.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 24, 2002, to take effect Jan. 1, 2003; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 10, 2022, to take effect Jan. 1, 2023.)

COMMENTARY: A lawyer may practice law only in a jurisdiction in which the lawyer is authorized to practice. A lawyer may be admitted to practice law in a jurisdiction on a regular basis or may be authorized by court rule or order or by law to practice for a limited purpose or on a restricted basis. Subsection (a) applies to unauthorized practice of law by a lawyer, whether through the lawyer's direct action or by the lawyer's assisting another person. For example, a lawyer may not assist a person in practicing law in violation of the rules governing professional conduct in that person's jurisdiction.

A lawyer may provide professional advice and instruction to nonlawyers whose employment requires knowledge of the law; for example, claims adjusters, employees of financial or commercial institutions, social workers, accountants and persons employed in government agencies. Lawyers also may assist independent nonlawyers, such as paraprofessionals, who are authorized by the law of a jurisdiction to provide particular law-related services. In addition, a lawyer may counsel nonlawyers who wish to proceed as self-represented parties.

Other than as authorized by law or this Rule, a lawyer who is not admitted to practice generally in this jurisdiction violates subsection (b) (1) if the lawyer establishes an office or other systematic and continuous presence in this jurisdiction for the practice of law. Presence may be systematic and continuous even if the lawyer is not physically present here. Such a lawyer must not hold out to the public or otherwise represent that the lawyer is admitted to practice law in this jurisdiction. See also Rules 7.1 (a) and 7.5 (b). A lawyer not admitted to practice in this jurisdiction who engages in repeated and frequent activities of a similar nature in this jurisdiction such as the preparation and/or recording of legal documents (loans and mortgages) involving residents or property in this state may be considered to have a systematic and continuous presence in this jurisdiction that would not be authorized by this Rule and could, thereby, be considered to constitute unauthorized practice of law.

There are occasions in which a lawyer admitted to practice in another United States jurisdiction, and not disbarred or suspended from practice in any jurisdiction, may provide legal services on a temporary basis in this jurisdiction under circumstances that do not create an unreasonable risk to the interests of their clients, the public or the courts. Subsection (c) identifies four such circumstances. The fact that conduct is not so identified does not imply that the conduct is or is not authorized. With the exception of subdivisions (e) (1) and (e) (2), this Rule does not authorize a lawyer to establish an office or other systematic and continuous presence in this jurisdiction without being admitted to practice generally here. There is no single test to determine whether a lawyer's services are provided on a "temporary basis" in this jurisdiction and may, therefore, be permissible under subsection (c). Services may be "temporary" even though the lawyer provides services in this jurisdiction for an extended period of time, as when the lawyer is representing a client in a single lengthy negotiation or litigation.

Subsections (c), (d) and (f) apply to lawyers who are admitted to practice law in any United States jurisdiction, which includes the District of Columbia and any state, territory or commonwealth of the United States. The word "admitted" in subsections (c), (d) and (f) contemplates that the lawyer is authorized to practice in the jurisdiction in which the lawyer

is admitted and excludes a lawyer who, while technically admitted, is not authorized to practice, because, for example, the lawyer is in an inactive status.

Subdivision (c) (1) recognizes that the interests of clients and the public are protected if a lawyer admitted only in another jurisdiction associates with a lawyer licensed to practice in this jurisdiction. For this subdivision to apply, however, the lawyer admitted to practice in this jurisdiction must actively participate in and share responsibility for the representation of the client.

Lawyers not admitted to practice generally in a jurisdiction may be authorized by law or order of a tribunal or an administrative agency to appear before the tribunal or agency. This authority may be granted pursuant to formal rules governing admission pro hac vice or pursuant to informal practice of the tribunal or agency. Under subdivision (c) (2), a lawyer does not violate this Rule when the lawyer appears before a tribunal or agency pursuant to such authority. To the extent that a court rule or other law of this jurisdiction requires a lawyer who is not admitted to practice in this jurisdiction to obtain admission pro hac vice before appearing before a tribunal or administrative agency, this Rule requires the lawyer to obtain that authority.

Subdivision (c) (2) also provides that a lawyer rendering services in this jurisdiction on a temporary basis does not violate this Rule when the lawyer engages in conduct in anticipation of a proceeding or hearing in a jurisdiction in which the lawyer is authorized to practice law or in which the lawyer reasonably expects to be admitted pro hac vice. Examples of such conduct include meetings with the client, interviews of potential witnesses, and the review of documents. Similarly, a lawyer admitted only in another jurisdiction may engage in conduct temporarily in this jurisdiction in connection with pending litigation in another jurisdiction in which the lawyer is or reasonably expects to be authorized to appear, including taking depositions in this jurisdiction.

When a lawyer has been or reasonably expects to be admitted to appear before a court or administrative agency, subdivision (c) (2) also permits conduct by lawyers who are associated with that lawyer in the matter, but who do not expect to appear before the court or administrative agency. For example, subordinate lawyers may conduct research, review documents, and attend meetings with witnesses in support of the lawyer responsible for the litigation.

Subdivision (c) (3) permits a lawyer admitted to practice law in another jurisdiction to perform services on a temporary basis in this jurisdiction if those services are in or reasonably related to a pending or potential mediation or other alternative dispute resolution proceeding in this or another jurisdiction, if the services are with respect to a matter that is substantially related to, or arises out of, a jurisdiction in which the lawyer is admitted to practice. The lawyer, however, must obtain admission pro hac vice in the case of a court-annexed arbitration or mediation or otherwise if court rules or law so require. Subdivision (c) (4) permits a lawyer admitted in another jurisdiction to provide certain legal services on a temporary basis in this jurisdiction if they arise out of or are substantially related to the lawyer's practice in a jurisdiction in which the lawyer is admitted but are not within subdivision (c) (2) or (c) (3). These services include both legal services and services that nonlawyers may perform but that are considered the practice of law when performed by lawyers.

Subdivision (c) (3) requires that the services be with respect to a matter that is substantially related to, or arises out of, a jurisdiction in which the lawyer is admitted. A variety of factors may evidence such a relationship. However, the matter, although involving other jurisdictions, must have a significant connection with the jurisdiction in which the lawyer is admitted to practice. A significant aspect of the lawyer's work might be conducted in that jurisdiction or a significant aspect of the matter may involve the law of that jurisdiction. The necessary relationship might arise when the client's activities and the resulting legal issues involve multiple jurisdictions. Subdivision (c) (4) requires that the services provided in this jurisdiction in which the lawyer is not admitted to practice be for (1) an existing client, i.e., one with whom the lawyer has a previous relationship and not arising solely out of a Connecticut based matter and (2) arise out of or be substantially related to the legal services provided to that client in a jurisdiction in which the lawyer is admitted to practice. Without both, the lawyer is prohibited from practicing law in the jurisdiction in which the lawyer is not admitted to practice.

For purposes of subsection (d), an attorney in "good standing" is one who: (1) has been admitted to practice law in any United States jurisdiction; (2) is not suspended or disbarred in any other jurisdiction; (3) has never resigned or retired from the practice of law while subject to discipline or disciplinary proceedings in any other jurisdiction; (4) has not been placed on inactive status while subject to discipline or disciplinary proceedings in any other jurisdiction; and (5) is not currently subject to disciplinary proceedings in any other jurisdiction.

Subdivision (e) (2) recognizes that a lawyer may provide legal services in a jurisdiction in which the lawyer is not licensed when authorized to do so by federal or other law, which includes statute, court rule, executive regulation or judicial precedent.

A lawyer who practices law in this jurisdiction pursuant to subsection (c), (d) or (e) or otherwise is subject to the disciplinary authority of this jurisdiction. See Rule 8.5 (a). In some circumstances, a lawyer who practices law in this jurisdiction pursuant to subsection (c), (d) or (e) may have to inform the client that the lawyer is not licensed to practice law in this jurisdiction.

Subsections (c), (d), (e) and (f) do not authorize communications advertising legal services in this jurisdiction by lawyers who are admitted to practice in other jurisdictions. Whether and how lawyers may communicate the availability of their services in this jurisdiction is governed by Rules 7.1 to 7.5.

Subsection (f) reflects the reality that with the advancement of technology, many lawyers work remotely from locations outside the jurisdiction(s) in which they are admitted to practice law. Subsection (f) allows those lawyers to practice law as authorized in the jurisdiction(s) in which they are admitted while physically present in Connecticut. This subsection coordinates with Practice Book Section 2-44A (c), which provides that a lawyer admitted in another United States jurisdiction engaged in the remote practice of law as authorized by that jurisdiction while physically present in Connecticut is not engaged in the practice of law in this jurisdiction.

Rule 5.6. Restrictions on Right To Practice

A lawyer shall not participate in offering or making:

(1) A partnership, shareholders, operating, employment, or other similar type of agreement that restricts the right of a lawyer to practice after termination of the relationship, except an agreement concerning benefits upon retirement; or

(2) An agreement in which a restriction on the lawyer's right to practice is part of the settlement of a client controversy.

(P.B. 1978-1997, Rule 5.6.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: An agreement restricting the right of lawyers to practice after leaving a firm not only limits their professional autonomy but also limits the freedom of clients to choose a lawyer. Subdivision (1) prohibits such agreements except for restrictions incident to provisions concerning retirement benefits for service with the firm.

Subdivision (2) prohibits a lawyer from agreeing not to represent other persons in connection with settling a claim on behalf of a client.

This Rule does not apply to prohibit restrictions that may be included in the terms of the sale of a law practice pursuant to Rule 1.17.

PUBLIC SERVICE

Rule 6.1. Pro Bono Publico Service

A lawyer should render public interest legal service. A lawyer may discharge this responsibility by providing professional services at no fee or a reduced fee to persons of limited means or to public service or charitable groups or organizations, by service in activities for improving the law, the legal system or the legal profession, and by financial support for organizations that provide legal services to persons of limited means.

(P.B. 1978-1997, Rule 6.1.)

COMMENTARY: The ABA House of Delegates has formally acknowledged "the basic responsibility of each lawyer engaged in the practice of law to provide public interest legal services" without fee, or at a substantially reduced fee in one or more of the following areas: poverty law, civil rights law, public rights law, charitable organization representation and the administration of justice. This Rule expresses that policy but is not intended to be enforced through disciplinary process.

The rights and responsibilities of individuals and organizations in the United States are increasingly defined in legal terms. As a consequence, legal assistance in coping with the web of statutes, rules and regulations is imperative for persons of modest and limited means, as well as for the relatively well-to-do.

The basic responsibility for providing legal services for those unable to pay ultimately rests upon the individual lawyer, and personal involvement in the problems of the disadvantaged can be one of the most rewarding experiences in the life of a lawyer. Every lawyer, regardless of professional prominence or professional workload, should find time to participate in or otherwise support the provision of legal services to the disadvantaged. The provision of free legal services to those unable to pay reasonable fees continues to be an obligation of each lawyer as well as the profession generally, but the efforts of individual lawyers are often not enough to meet the need. Thus, it has been necessary for the profession and government to institute additional programs to provide legal services. Accordingly, legal aid offices, lawyer referral services and other related programs have been developed, and others will be developed by the profession and government. Every lawyer should support all proper efforts to meet this need for legal services. Law firms should act reasonably to enable and encourage all lawyers in the firm to provide the pro bono legal services recommended by this Rule.

Rule 6.2. Accepting Appointments

A lawyer shall not seek to avoid appointment by a tribunal to represent a person except for good cause, such as:

(1) Representing the client is likely to result in violation of the Rules of Professional Conduct or other law;

(2) Representing the client is likely to result in an unreasonable financial burden on the lawyer; or

(3) The client or the cause is so repugnant to the lawyer as to be likely to impair the client-lawyer relationship or the lawyer's ability to represent the client.

(P.B. 1978-1997, Rule 6.2.)

COMMENTARY: A lawyer ordinarily is not obliged to accept a client whose character or cause the lawyer regards as repugnant. The lawyer's freedom to select clients is, however, qualified. All lawyers have a responsibility to assist in providing pro bono publico service. See Rule 6.1. An individual lawyer fulfills this responsibility by accepting a fair share of unpopular matters or indigent or unpopular clients. A lawyer may also be subject to appointment by a court to serve unpopular clients or persons unable to afford legal services.

Appointed Counsel. For good cause a lawyer may seek to decline an appointment to represent a person who cannot afford to retain counsel or whose cause is unpopular. Good cause exists if the lawyer could not handle the matter competently, see Rule 1.1, or if undertaking the representation would result in an improper conflict of interest, for example, when the client or the cause is so repugnant to the lawyer as to be likely to impair the client-lawyer relationship or the lawyer's ability to represent the client. A lawyer may also seek to decline an appointment if acceptance would be unreasonably burdensome, for example, when it would impose a financial sacrifice so great as to be unjust.

An appointed lawyer has the same obligations to the client as retained counsel, including the obligations of loyalty and confidentiality, and is subject to the same limitations on the client-lawyer relationship, such as the obligation to refrain from assisting the client in violation of the Rules.

Rule 6.3. Membership in Legal Services Organization

A lawyer may serve as a director, officer or member of a legal services organization, apart from the law firm in which the lawyer practices, notwithstanding that the organization serves persons having interests adverse to a client of the lawyer. The lawyer shall not knowingly participate in a decision or action of the organization:

(1) If participating in the decision or action would be incompatible with the lawyer's obligations to a client under Rule 1.7; or

(2) Where the decision or action could have a material adverse effect on the representation of a client of the organization whose interests are adverse to a client of the lawyer.

(P.B. 1978-1997, Rule 6.3.)

COMMENTARY: Lawyers should be encouraged to support and participate in legal services organizations. A lawyer who is an officer or a member of such an organization does not thereby have a client-lawyer relationship with persons served by the organization. However, there is potential conflict between the interests of such persons and the interests of the lawyer's clients. If the possibility of such conflict disqualified

a lawyer from serving on the board of a legal services organization, the profession's involvement in such organizations would be severely curtailed.

It may be necessary in appropriate cases to reassure a client of the organization that the representation will not be affected by conflicting loyalties of a member of the board. Established, written policies in this respect can enhance the credibility of such assurances.

Rule 6.4. Law Reform Activities Affecting Client Interests

A lawyer may serve as a director, officer or member of an organization involved in reform of the law or its administration notwithstanding that the reform may affect the interests of a client of the lawyer. When the lawyer knows that the interests of a client may be materially benefitted by a decision in which the lawyer participates, the lawyer shall disclose that fact but need not identify the client.

(P.B. 1978-1997, Rule 6.4.)

COMMENTARY: Lawyers involved in organizations seeking law reform generally do not have a client-lawyer relationship with the organization. Otherwise, it might follow that a lawyer could not be involved in a bar association law reform program that might indirectly affect a client. See also Rule 1.2 (b). For example, a lawyer specializing in antitrust litigation might be regarded as disqualified from participating in drafting revisions of rules governing that subject. In determining the nature and scope of participation in such activities, a lawyer should be mindful of obligations to clients under other Rules, particularly Rule 1.7. A lawyer is professionally obligated to protect the integrity of the program by making an appropriate disclosure within the organization when the lawyer knows a private client might be materially benefitted.

Rule 6.5. Nonprofit and Court-Annexed Limited Legal Services Programs

(a) A lawyer who, under the auspices of a program sponsored by a nonprofit organization or court, provides short-term limited legal services to a client without expectation by either the lawyer or the client that the lawyer will provide continuing representation in the matter:

(1) is subject to Rules 1.7 and 1.9 (a) only if the lawyer knows that the representation of the client involves a conflict of interest; and

(2) is subject to Rule 1.10 only if the lawyer knows that another lawyer associated with the lawyer in a law firm is disqualified by Rule 1.7 or 1.9 (a) with respect to the matter.

(b) A lawyer who provides short-term limited legal services pursuant to this Rule must secure the client's informed consent to the limited scope of the representation. See Rule 1.2 (c). If a short-term limited representation would not be reasonable under the circumstances, the lawyer may offer advice to the client but must also advise the client of the need for further assistance of counsel. Except as provided in this Rule, the Rules of Professional Conduct, including Rules 1.6 and 1.9 (c), are applicable to the limited representation.

(c) Except as provided in subsection (a) (2), Rule 1.10 is inapplicable to a representation governed by this Rule.

(Adopted June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: Legal services organizations, courts and various nonprofit organizations have established programs through which lawyers provide short-term limited legal services—such as advice or the completion of legal forms—that will assist persons to address their legal problems without further representation by a lawyer. In these programs, such as legal advice hotlines, advice only clinics or self-represented party counseling programs, a client-lawyer relationship is established, but there is no expectation that the lawyer's representation of the client will continue beyond the limited consultation. Such programs are normally operated under circumstances in which it is not feasible for a lawyer to systematically screen for conflicts of interest as is generally required before undertaking a representation. See, e.g., Rules 1.7, 1.9 and 1.10.

Because a lawyer who is representing a client in the circumstances addressed by this Rule ordinarily is not able to check systematically for conflicts of interest, subsection (a) requires compliance with Rules 1.7 or 1.9 (a) only if the lawyer knows that the representation presents a conflict of interest for the lawyer, and with Rule 1.10 only if the lawyer knows that another lawyer in the lawyer's firm is disqualified by Rules 1.7 or 1.9 (a) in the matter.

Because the limited nature of the services significantly reduces the risk of conflicts of interest with other matters being handled by the lawyer's firm, subsection (b) provides that Rule 1.10 is inapplicable to a representation governed by this Rule except as provided by subsection (a) (2). Subsection (a) (2) requires the participating lawyer to comply with Rule 1.10 when the lawyer knows that the lawyer's firm is disqualified by Rules 1.7 or 1.9 (a). By virtue of subsection (b), however, a lawyer's participation in a short-term limited legal services program will not preclude the lawyer's firm from undertaking or continuing the representation of a client with interests adverse to a client being represented under the program's auspices. Nor will the personal disqualification of a lawyer participating in the program be imputed to other lawyers participating in the program.

If, after commencing a short-term limited representation in accordance with this Rule, a lawyer undertakes to represent the client in the matter on an ongoing basis, Rules 1.7, 1.9 (a) and 1.10 become applicable.

INFORMATION ABOUT LEGAL SERVICES

Rule 7.1. Communications concerning a Lawyer's Services

A lawyer shall not make a false or misleading communication about the lawyer or the lawyer's services. A communication is false or misleading if it contains a material misrepresentation of fact or law, or omits a fact necessary to make the statement considered as a whole not materially misleading.

(P.B. 1978-1997, Rule 7.1.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: This Rule governs all communications about a lawyer's services, including advertising. Whatever means

are used to make known a lawyer's services, statements about them must be truthful. Misleading truthful statements are prohibited by this Rule. A truthful statement is misleading if it omits a fact necessary to make the lawyer's communication considered as a whole not materially misleading. A truthful statement is misleading if a substantial likelihood exists that it will lead a reasonable person to formulate a specific conclusion about the lawyer or the lawyer's services for which there is no reasonable factual foundation. A truthful statement also is misleading if presented in a way that leads a reasonable person to believe the lawyer's communication requires that person to take further action when, in fact, no action is required.

A communication that truthfully reports a lawyer's achievements on behalf of clients or former clients may be misleading if presented without a disclaimer indicating that the communicated result is based upon the particular facts of that case so as to lead a reasonable person to form an unjustified expectation that the same results could be obtained for other clients in similar matters without reference to the specific factual and legal circumstances of each client's case. Similarly, an unsubstantiated claim about a lawyer's or law firm's services or fees, or an unsubstantiated comparison of the lawyer's services or fees with those of other lawyers or law firms may be misleading if presented with such specificity as would lead a reasonable person to conclude that the comparison or claim can be substantiated. The inclusion of an appropriate disclaimer or qualifying language may preclude a finding that a statement is likely to create unjustified expectations or otherwise mislead the public.

In addition to the provisions of this Rule, see Rule 8.4 (3) defining professional misconduct to include conduct involving dishonesty, fraud, deceit, or misrepresentation. See also Rule 8.4 (5) for the prohibition against stating or implying an ability to improperly influence a government agency or official or to achieve results by means that violate the Rules of Professional Conduct or other law.

Firm names, letterhead and professional designations are communications concerning a lawyer's services. A firm may be designated by the names of all or some of its current members, by the names of deceased or retired members where there has been a succession in the firm's identity or by a trade name if it is not false or misleading. A lawyer or law firm also may be designated by a distinctive website address, social media username or comparable professional designation that is not misleading. A law firm name or designation is misleading if it implies a connection with a government agency, with a deceased lawyer who was not a former member of the firm, with a lawyer not associated with the firm or a predecessor firm, with a nonlawyer or with a public or charitable legal services organization. If a firm uses a trade name that includes a geographical name such as "Springfield Legal Clinic," an express statement explaining that it is not a public legal aid organization may be required to avoid a misleading implication.

Letterhead identification of the lawyers in the office of the firm shall indicate the jurisdictional limitations on those not licensed to practice in the jurisdiction where the office is located.

A law firm with offices in more than one jurisdiction may use the same name or other professional designation in each jurisdiction.

Lawyers may not imply or hold themselves out as practicing together in one firm when they are not a firm, as defined in Rule 1.0 (d), because to do so would be false and misleading.

It is misleading to use the name of a lawyer holding a public office in the name of a law firm, or in communications on the law firm's behalf, during any substantial period in which the lawyer is not actively and regularly practicing with the firm.

Rule 7.2. Communications concerning a Lawyer's Services: Specific Rules

(Amended June 13, 2019, to take effect Jan. 1, 2020.)

(a) A lawyer may communicate information regarding the lawyer's services through all media.

(b) (1) A copy or recording of a communication regarding the lawyer's services shall be kept for three years after its last dissemination along with a record of when and where it was used. An electronic communication regarding the lawyer's services shall be copied once every three months on a compact disc or similar technology and kept for three years after its last dissemination.

(2) A lawyer shall comply with the mandatory filing requirement of Practice Book Section 2-28A.

(c) A lawyer shall not compensate, give or promise anything of value to a person for recommending the lawyer's services, except that a lawyer may:

(1) pay the reasonable cost of advertisements or communications permitted by this Rule;

(2) pay the usual charges of a not-for-profit or qualified lawyer referral service;

(3) pay for a law practice in accordance with Rule 1.17;

(4) refer clients to another lawyer or a nonlawyer professional pursuant to an agreement not otherwise prohibited under these Rules that provides for the other person to refer clients or customers to the lawyer, if:

(A) the reciprocal referral agreement is not exclusive; and

(B) the client is informed of the existence and nature of the agreement; and

(5) give a nominal gift as an expression of appreciation, provided that such a gift is neither intended nor reasonably expected to be a form of compensation for recommending a lawyer's services, and such gifts are limited to no more than two per year to any recipient.

(d) A lawyer shall not state or imply that a lawyer is certified as a specialist in a particular field of law, unless:

(1) the lawyer is currently certified as a specialist in that field of law by a board or other entity which is approved by the Rules Committee of the Superior Court of this state or by an organization accredited by the American Bar Association; and

(2) the name of the certifying organization is clearly identified in the communication.

(e) Any communication made under this Rule must include the name and contact information of at least one lawyer admitted in Connecticut responsible for its content. In the case of television

advertisements, the name, address and telephone number of the lawyer admitted in Connecticut shall be displayed in bold print for fifteen seconds or the duration of the commercial, whichever is less, and shall be prominent enough to be readable.

(f) Every communication that contains information about the lawyer's fee, including those indicating that the charging of a fee is contingent on outcome, or that no fee will be charged in the absence of a recovery, or that the fee will be a percentage of the recovery, shall disclose whether and to what extent the client will be responsible for any court costs and expenses of litigation. The disclosure concerning court costs and expenses of litigation shall be in the same print size and type as the information regarding the lawyer's fee and, if broadcast, shall appear for the same duration as the information regarding the lawyer's fee. If the information regarding the fee is spoken, the disclosure concerning court costs and expenses of litigation shall also be spoken.

(g) A lawyer who communicates a specific fee or range of fees for a particular service shall honor the fee or range of fees described in the communication for at least ninety days unless the communication specifies a shorter period; provided that, for communications in the yellow pages of telephone directories or other media not published more frequently than annually, the fee or range of fees described in the communication shall be honored for no less than one year following publication.

(h) A lawyer and service may participate in an internet based client to lawyer matching service, provided the service otherwise complies with the Rules of Professional Conduct. If the service provides an exclusive referral to a lawyer or law firm for a particular practice area in a particular geographical region, then the service must comply with subsection (e).

(P.B. 1978-1997, Rule 7.2.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 13, 2019, to take effect Jan. 1, 2020.)

COMMENTARY: This Rule permits public dissemination of information concerning a lawyer or law firm's name, address, email address, website, and telephone number; the kinds of services the lawyer will undertake; the basis on which the lawyer's fees are determined, including prices for specific services and payment and credit arrangements; whether and to what extent the client will be responsible for any court costs and expenses of litigation; lawyer's foreign language ability; names of references and, with their consent, names of clients regularly represented; and other information that might invite the attention of those seeking legal assistance.

Record of Communications. Subsection (b) requires that a record of the content and use of advertising be kept in order to facilitate enforcement of this Rule. It does not require that advertising be subject to review prior to dissemination. Such a requirement would be burdensome and expensive relative to its possible benefits, and may be of doubtful constitutionality.

Paying Others To Recommend a Lawyer. Except as permitted under subsection (c) (1) through (c) (5), lawyers are not permitted to pay others for recommending the lawyer's services. A communication contains a recommendation if it endorses or vouches for a lawyer's credentials, abilities, competence, character, or other professional qualities. Directory listings and group advertisements that list lawyers by practice area, without more, do not constitute impermissible "recommendations."

Subsection (c) (1) allows a lawyer to pay for advertising and communications permitted by this Rule, including the costs of print directory listings, online directory listings, newspaper advertisements, television and radio airtime, domain name registrations, sponsorship fees, advertisements, internet based advertisements, and group advertising. A lawyer may compensate employees, agents and vendors who are engaged to provide marketing or client development services, such as publicists, public relations personnel, business development staff, television and radio employees or spokespersons, and website designers. See also Rule 5.3 (duties of lawyers and law firms with respect to the conduct of nonlawyers); Rule 8.4 (1) (duty to avoid violating the Rules through the acts of another).

Pursuant to subsection (c) (4), a lawyer also may agree to refer clients to another lawyer or a nonlawyer professional, in return for the undertaking of that person to refer clients or customers to the lawyer. Such reciprocal referral arrangements must not interfere with the lawyer's professional judgment as to making referrals or as to providing substantive legal services. See Rules 2.1 and 5.4 (c). Except as provided in Rule 1.5 (e), a lawyer who receives referrals from a lawyer or nonlawyer professional must not pay anything solely for the referral, but the lawyer does not violate subsection (c) of this Rule by agreeing to refer clients to the other lawyer or nonlawyer professional, so long as the reciprocal referral agreement is not exclusive and the client is informed of the referral agreement. Conflicts of interest created by such arrangements are governed by Rule 1.7. Reciprocal referral agreements should not be of indefinite duration and should be reviewed periodically to determine whether they comply with these Rules. This Rule does not restrict referrals or divisions of revenues or net income among lawyers within firms comprised of multiple entities.

Subsection (c) (5) permits lawyers to give nominal gifts as an expression of appreciation to a person for recommending the lawyer's services or referring a prospective client. The gift may not be more than a token item as might be given for holidays, or other ordinary social hospitality. A gift is prohibited if the value of the gift is more than $50, or otherwise indicates a sharing of either legal fees or the ultimate recovery in the referred case, or if the gift is offered or given in consideration of any promise, agreement or understanding that such a gift would be forthcoming or that referrals would be made or encouraged in the future.

A lawyer may pay others for generating client leads, such as internet based client leads, as long as the lead generator does not recommend the lawyer, any payment to the lead generator is consistent with Rules 1.5 (e) (division of fees) and 5.4 (professional independence of the lawyer), and the lead generator's communications are consistent with Rule 7.1 (communications concerning a lawyer's services). To comply with Rule 7.1, a lawyer must not pay a lead generator that states, implies, or creates a reasonable impression that it is recommending the lawyer, is making the referral without payment from the lawyer, or has analyzed a person's legal

problems when determining which lawyer should receive the referral. See Paying Others To Recommend a Lawyer above (definition of "recommendation"). See also Rule 5.3 (duties of lawyers and law firms with respect to the conduct of nonlawyers); Rule 8.4 (1) (duty to avoid violating the Rules through the acts of another).

A lawyer may pay the usual charges of a legal service plan or a not-for-profit or qualified lawyer referral service. A legal service plan is a prepaid or group legal service plan or a similar delivery system that assists people who seek to secure legal representation. A lawyer referral service, on the other hand, is any organization that holds itself out to the public as a lawyer referral service. Such referral services are understood by the public to be consumer oriented organizations that provide unbiased referrals to lawyers with appropriate experience in the subject matter of the representation and afford other client protections, such as complaint procedures or malpractice insurance requirements. Consequently, this Rule only permits a lawyer to pay the usual charges of a not-for-profit or qualified lawyer referral service. A qualified lawyer referral service is one that is approved by an appropriate regulatory authority as affording adequate protections for the public. See, e.g., the American Bar Association's Model Supreme Court Rules Governing Lawyer Referral Services and Model Lawyer Referral and Information Service Quality Assurance Act.

A lawyer who accepts assignments or referrals from a legal service plan or referrals from a lawyer referral service must act reasonably to assure that the activities of the plan or service are compatible with the lawyer's professional obligations. See Rule 5.3. Legal service plans and lawyer referral services may communicate with the public, but such communication must be in conformity with these Rules. Thus, advertising must not be false or misleading, as would be the case if the communications of a group advertising program or a group legal services plan would mislead the public to think that it was a lawyer referral service sponsored by a state agency or bar association.

Communications about Fields of Practice. Subsection (a) of this Rule permits a lawyer to communicate that the lawyer does or does not practice in particular areas of law. A lawyer is generally permitted to state that the lawyer "concentrates in," "focuses on," or that the practice is "limited to" particular fields of practice, but such communications are subject to the "false and misleading" standard applied in Rule 7.1 to communications concerning a lawyer's services.

The Patent and Trademark Office has a long established policy of designating lawyers practicing before the Office. The designation of Admiralty practice also has a long historical tradition associated with maritime commerce and the federal courts. A lawyer's communications about these practice areas are not prohibited by this Rule.

This Rule permits a lawyer to state that the lawyer is certified as a specialist in a field of law if such lawyer is currently certified as a specialist in that field of law by a board or other entity which is approved by the Rules Committee of the Superior Court of this state or by an organization accredited by the American Bar Association. Certification signifies that an objective entity has recognized an advanced degree of knowledge and experience in the specialty area greater than is suggested by general licensure to practice law. Certifying organizations may be expected to apply standards of experience, knowledge and proficiency to ensure that a lawyer's recognition as a specialist is meaningful and reliable. To ensure that consumers can obtain access to useful information about an organization granting certification, the name of the certifying organization must be included in any communication regarding the certification.

Required Contact Information. This Rule requires that any communication about a lawyer or law firm's services include the name of, and contact information for, the lawyer or law firm. Contact information includes a website address, a telephone number, an email address or a physical office location.

Rule 7.3. Solicitation of Clients

(Amended June 13, 2014, to take effect Jan. 1, 2015.)

(a) "Solicitation" or "solicit" denotes a communication initiated by or on behalf of a lawyer or law firm that is directed to a specific person the lawyer knows or reasonably should know needs legal services in a particular matter and that offers to provide, or reasonably can be understood as offering to provide, legal services for that matter.

(b) A lawyer shall not solicit professional employment by live person-to-person contact when a significant motive for the lawyer's doing so is the lawyer's or law firm's pecuniary gain unless the contact is:

(1) With a lawyer or a person who has a family, close personal or prior business or professional relationship with the lawyer;

(2) Under the auspices of a public or charitable legal services organization;

(3) Under the auspices of a bona fide political, social, civic, fraternal, employee or trade organization whose purposes include but are not limited to providing or recommending legal services, if the legal services are related to the principal purposes of the organization;

(4) With a person who routinely uses for business purposes the type of legal services offered by the lawyer or with a business organization, a not-for-profit organization or governmental body and the lawyer seeks to provide services related to the organization.

(c) A lawyer shall not solicit professional employment even when not otherwise prohibited by subsection (b) if:

(1) The lawyer knows or reasonably should know that the physical, emotional or mental state of the person makes it unlikely that the person would exercise reasonable judgment in employing a lawyer;

(2) The target of the solicitation has made known to the lawyer a desire not to be solicited by the lawyer;

(3) The solicitation involves coercion, duress, fraud, overreaching, harassment, intimidation or undue influence; or

(4) The solicitation concerns an action for personal injury or wrongful death or otherwise relates to an accident or disaster involving the person to whom the solicitation is addressed or a relative of that person, unless the accident or disaster occurred more than forty days prior to the mailing

of the solicitation, or the recipient is a person or entity within the scope of subsection (b) of this Rule.

(d) This Rule does not prohibit communications authorized by law or ordered by a court or other tribunal.

(e) Every written solicitation, as well as any solicitation by audio or video recording, or other electronic means, used by a lawyer for the purpose of obtaining professional employment from anyone known to be in need of legal services in a particular matter, must be clearly and prominently labeled "Advertising Material" in red ink on the first page of any written solicitation and the lower left corner of the outside envelope or container, if any, and at the beginning and ending of any solicitation by audio or video recording or other electronic means. If the written solicitation is in the form of a self-mailing brochure or pamphlet, the label "Advertising Material" in red ink shall appear on the address panel of the brochure or pamphlet. Communications solicited by clients or any other person, or if the recipient is a person or entity within the scope of subsection (b) of this Rule, need not contain such marks. No reference shall be made in the solicitation to the solicitation having any kind of approval from the Connecticut bar. Such written solicitations shall be sent only by regular United States mail, not by registered mail or other forms of restricted delivery.

(f) Notwithstanding the prohibitions in this Rule, a lawyer may participate with a prepaid or group legal service plan operated by an organization not owned or directed by the lawyer which uses live person-to-person contact to enroll members or sell subscriptions for the plan from persons who are not known to need legal services in a particular matter covered by the plan.

(P.B. 1978-1997, Rule 7.3.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 13, 2019, to take effect Jan. 1, 2020.)

COMMENTARY: Subsection (b) prohibits a lawyer from soliciting professional employment by live person-to-person contact when a significant motive for the lawyer's doing so is the lawyer's or the law firm's pecuniary gain. A lawyer's communication is not a solicitation if it is directed to the general public, such as through a billboard, an internet banner advertisement, a website or a television commercial, or if it is in response to a request for information or is automatically generated in response to electronic searches.

"Live person-to-person contact" means in-person, face-to-face, live telephone and other real-time visual or auditory person-to-person communications where the person is subject to a direct personal encounter without time for reflection. Such person-to-person contact does not include chat rooms, text messages or other written communications that recipients may easily disregard. A potential for overreaching exists when a lawyer, seeking pecuniary gain, solicits a person known to be in need of legal services. This form of contact subjects a person to the private importuning of the trained advocate in a direct interpersonal encounter. The person, who may already feel overwhelmed by the circumstances giving rise to the need for legal services, may find it difficult to fully evaluate all available alternatives with reasoned judgment and appropriate self-interest in the face of the lawyer's presence and insistence upon an immediate response. The situation is fraught with the possibility of undue influence, intimidation, and overreaching.

The potential for overreaching inherent in live person-to-person contact justifies its prohibition, since lawyers have alternative means of conveying necessary information. In particular, communications can be mailed or transmitted by email or other electronic means that do not violate other laws. These forms of communications make it possible for the public to be informed about the need for legal services, and about the qualifications of available lawyers and law firms, without subjecting the public to live person-to-person persuasion that may overwhelm a person's judgment.

The contents of live person-to-person contact can be disputed and may not be subject to a third-party scrutiny. Consequently, they are much more likely to approach (and occasionally cross) the dividing line between accurate representations and those that are false and misleading.

There is far less likelihood that a lawyer would engage in overreaching against a former client, or a person with whom the lawyer has a close personal, family, business or professional relationship, or in situations in which the lawyer is motivated by considerations other than the lawyer's pecuniary gain. Nor is there a serious potential for overreaching when the person contacted is a lawyer or is known to routinely use the type of legal services involved for business purposes. Examples include persons who routinely hire outside counsel to represent the entity; entrepreneurs who regularly engage business, employment law or intellectual property lawyers; small business proprietors who routinely hire lawyers for lease or contract issues; and other people who routinely retain lawyers for business transactions or formations. Subsection (b) is not intended to prohibit a lawyer from participating in constitutionally protected activities of public or charitable legal service organizations or bona fide political, social, civic, fraternal, employee or trade organizations whose purposes include providing or recommending legal services to their members or beneficiaries.

A solicitation that contains false or misleading information within the meaning of Rule 7.1, that involves coercion, duress or harassment within the meaning of Rule 7.3 (c) (3), or that involves contact with someone who has made known to the lawyer a desire not to be solicited by the lawyer within the meaning of Rule 7.3 (c) (2) is prohibited. Live person-to-person solicitation of individuals who may be especially vulnerable to coercion or duress, for example, the elderly, those whose first language is not English, or persons with disabilities, is ordinarily not appropriate when a significant motive for the solicitation is pecuniary gain.

This Rule does not prohibit a lawyer from contacting representatives of organizations or groups that may be interested in establishing a group or prepaid legal plan for their members, insureds, beneficiaries or other third parties for the purpose of informing such entities of the availability of and details concerning the plan or arrangement which the lawyer or lawyer's firm is willing to offer. This form of communication is not directed to people who are seeking legal services for themselves. Rather, it is usually addressed to an individual acting in a fiduciary capacity seeking a supplier of legal services for others who may, if they choose, become prospective clients of the lawyer. Under these circumstances, the activity which the lawyer undertakes in communicating with such representatives and

the type of information transmitted to the individual are functionally similar to and serve the same purpose as advertising permitted under Rule 7.2.

Communications authorized by law or ordered by a court or tribunal include a notice to potential members of a class in class action litigation.

Subsection (f) of this Rule permits a lawyer to participate with an organization that uses personal contact to solicit members for its group or prepaid legal service plan, provided that the personal contact is not undertaken by any lawyer who would be a provider of legal services through the plan. The organization must not be owned by or directed (whether as manager or otherwise) by any lawyer or law firm that participates in the plan. For example, subsection (f) would not permit a lawyer to create an organization controlled directly or indirectly by the lawyer and use the organization for the in-person or telephone solicitation of legal employment of the lawyer through memberships in the plan or otherwise. The communication permitted by these organizations also must not be directed to a person known to need legal services in a particular matter, but is to be designed to inform potential plan members generally of another means of affordable legal services. Lawyers who participate in a legal service plan must reasonably ensure that the plan sponsors are in compliance with Rules 7.1, 7.2 and 7.3 (c).

Rule 7.4. Communication of Fields of Practice

[Repealed as of Jan. 1, 2020.]

Rule 7.4A. Certification as Specialist

(a) A lawyer shall not state or imply that he or she is a specialist in a field of law unless the lawyer is currently certified as a specialist in that field of law by a board or other entity which is approved by the Rules Committee of the Superior Court of this state or by an organization accredited by the American Bar Association. Among the criteria to be considered by the Rules Committee in determining upon application whether to approve a board or entity as an agency which may certify lawyers practicing in this state as being specialists, shall be the requirement that the board or entity certify specialists on the basis of published standards and procedures which (1) do not discriminate against any lawyer properly qualified for such certification, (2) provide a reasonable basis for the representation that lawyers so certified possess special competence, and (3) require redetermination of the special qualifications of certified specialists after a period of not more than five years.

(b) Upon certifying a lawyer practicing in this state as being a specialist, the board or entity that certified the lawyer shall notify the Statewide Grievance Committee of the name and juris number of the lawyer, the specialty field in which the lawyer was certified, the date of such certification and the date such certification expires.

(c) A lawyer shall not state that he or she is a certified specialist if the lawyer's certification has terminated, or if the statement is otherwise contrary to the terms of such certification.

(d) Certification as a specialist may not be attributed to a law firm.

(e) Lawyers may be certified as specialists in the following fields of law:

(1) Administrative law: The practice of law dealing with states, their political subdivisions, regional and metropolitan authorities and other public entities including, but not limited to, their rights and duties, financing, public housing and urban development, the rights of public employees, election law, school law, sovereign immunity, and constitutional law; practice before federal and state courts and governmental agencies.

(2) Admiralty: The practice of law dealing with all matters arising under the Carriage of Goods by Sea Act (COGSA), Harter Act, Jones Act, and federal and state maritime law including, but not limited to, the carriage of goods, collision and other maritime torts, general average, salvage, limitation of liability, ship financing, ship subsidies, the rights of injured sailors and longshoremen; practice before federal and state courts and governmental agencies (including the Federal Maritime Commission).

(3) Antitrust: The practice of law dealing with all matters arising under the Sherman Act, Clayton Act, Federal Trade Commission Act, Hart-Scott-Rodino Antitrust Improvements Act and state antitrust statutes including, but not limited to, restraints of trade, unfair competition, monopolization, price discrimination, restrictive practices; practice before federal and state courts and governmental agencies.

(4) Appellate practice: The practice of law dealing with all procedural and substantive aspects of civil and criminal matters before federal and state appeals courts including, but not limited to, arguments and the submission of briefs.

(5) Business bankruptcy: The practice of law dealing with all aspects of the United States Bankruptcy Code when the debtor was engaged in business before the institution of a Chapter 7, 9, or 11 proceeding. This includes, but is not limited to, business liquidations, business reorganizations, and related adversary and contested proceedings.

(6) Child welfare law: The practice of law representing children, parents or the government in all child protection proceedings including emergency, temporary custody, adjudication, disposition, foster care, permanency planning, termination, guardianship, and adoption. Child welfare law does not include representation in private child custody and adoption disputes where the state is not a party.

(7) Consumer bankruptcy: The practice of law dealing with all aspects of the United States Bankruptcy Code when the debtor was not engaged in business before the institution of a Chapter 7, 12, or 13 proceeding. This includes, but is not limited to, liquidations, wage earner plans, family farmers and related adversary and contested proceedings.

(8) Civil rights and discrimination: The practice of law dealing with all matters arising under federal and state law relating to proper treatment in the areas of, among others, public accommodations, voting, employment, housing, administration of welfare and social security benefits; practice before federal and state courts and governmental agencies.

(9) Civil trial practice: The practice of law dealing with representation of parties before federal or state courts in all noncriminal matters.

(10) Commercial transactions: The practice of law dealing with all aspects of commercial paper, contracts, sales and financing, including, but not limited to, secured transactions.

(11) Consumer claims and protection: The practice of law dealing with all aspects of consumer transactions including, but not limited to, sales practices, credit transactions, secured transactions and warranties; all matters arising under the Equal Credit Opportunity Act, the Fair Credit Reporting Act, the Magnuson-Moss Act, the Truth in Lending Act, state statutes such as the "Little FTC" acts, and other analogous federal and state statutes.

(12) Corporate and business organizations: The practice of law dealing with all aspects of the formation, operation and dissolution of corporations, partnerships (general and limited), agency and other forms of business organizations.

(13) Corporate finance and securities: The practice of law dealing with all matters arising under the Securities Act of 1933, Securities Exchange Act of 1934, Investment Advisors Act (or the Federal Securities Code, if adopted) and other federal and state securities statutes; financing corporate activities; mergers and acquisitions; practice before the Securities and Exchange Commission and state securities commissions.

(14) Criminal: The practice of law dealing with the prosecution or representation of persons accused of crimes at all stages of criminal proceedings in federal or state courts including, but not limited to, the protection of the accused's constitutional rights.

(15) Elder law: The practice of law involving the counseling and representation of older persons and their representatives relative to the legal aspects of health and long term care planning and financing; public benefits; alternative living arrangements and attendant residents' rights under state and federal law; special needs counseling; surrogate decision making; decision making capacity; conservatorships; conservation, disposition, and administration of the estates of older persons and the implementation of decisions of older persons and their representatives relative to the foregoing with due consideration to the applicable tax consequences of an action, involving, when appropriate, consultation and collaboration with professionals in related disciplines. Lawyers certified in elder law must be capable of recognizing issues that arise during counseling and representation of older persons or their representatives with respect to the following: Abuse, neglect or exploitation of older persons; estate, trust, and tax planning; other probate matters. Elder law specialists must be capable of recognizing the professional conduct and ethical issues that arise during representation.

(16) Environmental: The practice of law dealing with all aspects of the regulation of environmental quality by both federal and state governments; control of air pollution, water pollution, noise pollution, toxic substances, pesticides, and civilian uses of nuclear energy; solid waste/resource recovery; all matters arising under the National Environmental Policy Act, Clean Air Act, Federal Water Pollution Control Act, Noise Control Act, Solid Waste Disposal Act, Toxic Substance Control Act and other federal and state environmental statutes; practice before federal and state courts and governmental agencies.

(17) Estate planning and probate: The practice of law dealing with all aspects of the analysis and planning for the conservation and disposition of estates, giving due consideration to the applicable tax consequences, both federal and state; the preparation of legal instruments in order to effectuate estate plans; administering estates, including tax related matters, both federal and state.

(18) Family and matrimonial: The practice of law dealing with all aspects of antenuptial and domestic relationships, separation and divorce, alimony and child support, distribution of assets, child custody matters and adoption, giving due consideration to the tax consequences, and court proceedings relating thereto.

(19) Government contracts and claims: The practice of law dealing with all aspects of the negotiation and administration of contracts with federal and state governmental agencies.

(20) Immigration and naturalization: The practice of law dealing with obtaining and retaining permission to enter and remain in the United States including, but not limited to, such matters

as visas, change of status, deportation and naturalization; representation of aliens before courts and governmental agencies; protection of aliens' constitutional rights.

(21) International: The practice of law dealing with all aspects of the relations among states, international business transactions, international taxation, customs and trade law and foreign and comparative law.

(22) Labor: The practice of law dealing with all aspects of employment relations (public and private) including, but not limited to, unfair labor practices, collective bargaining, contract administration, the rights of individual employees and union members, employment discrimination; all matters arising under the National Labor Relations Act (Wagner Act), Labor Management Relations Act (Taft-Hartley Act), Labor Management Reporting and Disclosure Act (Landrum-Griffin Act), Fair Labor Standards Act, Title VII of The Civil Rights Act of 1964, Occupational Safety and Health Act (OSHA), Employee Retirement Income Security Act (ERISA), other federal statutes and analogous state statutes; practice before the National Labor Relations Board, analogous state boards, federal and state courts, and arbitrators.

(23) Military: The practice of law dealing with the presentation of parties before courts-martial and other military tribunals in disputes arising under the Uniform Code of Military Justice; the representation of veterans and their dependents in seeking government benefits due to them on account of military service; handling civil law problems of the military.

(24) Natural resources: The practice of law dealing with all aspects of the regulation of natural resources such as coal, oil, gas, minerals, water and public lands; the rights and responsibilities relating to the ownership and exploitation of such natural resources.

(25) Patent, trademark and copyright: The practice of law dealing with all aspects of the registration, protection and licensing of patents, trademarks or copyrights; practice before federal and state courts in actions for infringment and other actions; the prosecution of applications before the United States Patent and Trademark Office; counseling with regard to the law of unfair competition as it relates to patents, trademarks and copyrights.

(26) (A) Residential real estate: The practice of law dealing with all aspects of real property transactions involving single one-to-four family residential dwellings when the client uses such dwelling or expresses in writing the intent to use such dwelling as the client's primary or other residence including, but not limited to, real estate conveyances, title searches and property transfers, leases, condominiums, cooperatives, and other common interest communities, planned unit developments, mortgages, condemnation and eminent domain, zoning and land use planning, property taxes, and determination of property rights.

(B) Commercial real estate: The practice of law dealing with all aspects of real property transactions except for residential real estate as defined in subparagraph (A) of this subdivision, including, but not limited to, real estate conveyances, title searches and property transfers, leases, condominiums, cooperatives and other common interest communities, planned unit developments, mortgages, condemnation and eminent domain, zoning and land use planning, property taxes, real estate development and financing (with due consideration to tax and securities consequences) and determination of property rights.

(27) Taxation: The practice of law dealing with all matters arising under the Internal Revenue Code, Employee Retirement Income Security Act (ERISA), state and local tax laws and foreign tax laws, including counseling with respect thereto; practice before federal and state courts and governmental agencies.

(28) Workers' compensation: The practice of law dealing with the representation of parties before federal and state agencies, boards and courts in actions to determine eligibility for workers' compensation, and disability.

(P.B. 1978-1997, Rule 7.4A.) (Amended June 20, 2005, to take effect Jan. 1, 2006; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 13, 2019, to take effect Jan. 1, 2020.)

Rule 7.4B. Legal Specialization Screening Committee

(a) The chief justice, upon recommendation of the Rules Committee of the Superior Court, shall appoint a committee of five members of the bar of this state which shall be known as the "Legal Specialization Screening Committee." The Rules Committee of the Superior Court shall designate one appointee as chair of the Legal Specialization Screening Committee and another as vice chair to act in the absence or disability of the chair.

(b) When the committee is first selected, two of its members shall be appointed for a term of one year, two members for a term of two years, and one member for a term of three years, and thereafter all regular terms shall be three years. Terms shall commence on July 1. In the event that a vacancy arises in this position before the end of a term, the chief justice, upon recommendation of the Rules Committee of the Superior

Court, shall appoint a member of the bar of this state to fill the vacancy for the balance of the term. The Legal Specialization Screening Committee shall act only with a concurrence of a majority of its members, provided, however, that three members shall constitute a quorum.

(c) The Legal Specialization Screening Committee shall have the power and duty to:

(1) Receive applications from boards or other entities for authority to certify lawyers practicing in this state as being specialists in a certain area or areas of law.

(2) Investigate each applicant to determine whether it meets the criteria set forth in Rule 7.4A (a).

(3) Submit to the Rules Committee of the Superior Court a written recommendation, with reasons therefor, for approval or disapproval of each application, or for the termination of any prior approval granted by the Rules Committee.

(4) Adopt regulations and develop forms necessary to carry out its duties under this section. The regulations and forms shall not become effective until first approved by the Rules Committee of the Superior Court.

(5) Consult with such persons deemed by the committee to be knowledgeable in the fields of law to assist it in carrying out its duties.

(P.B. 1978-1997, Rule 7.4B.)

Rule 7.4C. Application by Board or Entity To Certify Lawyers as Specialists

Any board or entity seeking the approval of the Rules Committee of the Superior Court for authority to certify lawyers practicing in this state as being specialists in a certain field or fields of law as set forth in Rule 7.4A (e), shall file its application with the Legal Specialization Screening Committee pursuant to Rule 7.4B on form JD-ES-63. The application materials shall be filed in a format prescribed by the Legal Specialization Screening Committee, which may require them to be filed electronically.

(P.B. 1978-1997, Rule 7.4.) (Amended June 30, 2008, to take effect Jan. 1, 2009; amended June 12, 2015, to take effect Jan. 1, 2016; amended June 13, 2019, to take effect Jan. 1, 2020.)

Rule 7.5. Firm Names and Letterheads

[Repealed as of Jan. 1, 2020.]

MAINTAINING THE INTEGRITY OF THE PROFESSION

Rule 8.1. Bar Admission and Disciplinary Matters

An applicant for admission to the bar, or a lawyer in connection with a bar admission application or in connection with a disciplinary matter, shall not:

(1) Knowingly make a false statement of material fact; or

(2) Fail to disclose a fact necessary to correct a misapprehension known by the person to have arisen in the matter, or knowingly fail to respond to a lawful demand for information from an admissions or disciplinary authority, except that this rule does not require disclosure of information otherwise protected by Rule 1.6.

(P.B. 1978-1997, Rule 8.1.)

COMMENTARY: The duty imposed by this Rule extends to persons seeking admission to the bar as well as to lawyers. Hence, if a person makes a material false statement in connection with an application for admission, it may be the basis for subsequent disciplinary action if the person is admitted, and in any event may be relevant in a subsequent admission application. The duty imposed by this Rule applies to a lawyer's own admission or discipline as well as that of others. Thus, it is a separate professional offense for a lawyer to knowingly make a misrepresentation or omission in connection with a disciplinary investigation of the lawyer's own conduct. Subdivision (2) of this Rule also requires correction of any prior misstatement in the matter that the applicant or lawyer may have made and affirmative clarification of any misunderstanding on the part of the admissions or disciplinary authority of which the person involved becomes aware.

This Rule is subject to the provisions of the fifth amendment to the United States constitution and corresponding provisions of state constitutions. A person relying on such a provision in response to a question, however, should do so openly and not use the right of nondisclosure as a justification for failure to comply with this Rule.

A lawyer representing an applicant for admission to the bar, or representing a lawyer who is the subject of a disciplinary inquiry or proceeding, is governed by the rules applicable to the client-lawyer relationship, including Rule 1.6 and, in some cases, Rule 3.3.

Rule 8.2. Judicial and Legal Officials

(a) A lawyer shall not make a statement that the lawyer knows to be false or with reckless disregard as to its truth or falsity concerning the qualifications or integrity of a judge, adjudicatory officer or public legal officer, or of a candidate for election or appointment to judicial or legal office.

(b) A lawyer who is a candidate for judicial office shall comply with the applicable provisions of the Code of Judicial Conduct.

(P.B. 1978-1997, Rule 8.2.)

COMMENTARY: Assessments by lawyers are relied on in evaluating the professional or personal fitness of persons being considered for election or appointment to judicial office and to public legal offices, such as attorney general, prosecuting attorney and public defender. Expressing honest and candid opinions on such matters contributes to improving the administration of justice. Conversely, false statements by a lawyer can unfairly undermine public confidence in the administration of justice.

When a lawyer seeks judicial office, the lawyer should be bound by applicable limitations on political activity.

To maintain the fair and independent administration of justice, lawyers are encouraged to continue traditional efforts to defend judges and courts unjustly criticized.

Rule 8.3. Reporting Professional Misconduct

(a) A lawyer who knows that another lawyer has committed a violation of the Rules of Professional Conduct that raises a substantial question as to that lawyer's honesty, trustworthiness or fitness as a lawyer in other respects, shall inform the appropriate professional authority. A lawyer may not condition settlement of a civil dispute involving allegations of improprieties on the part of a lawyer on an agreement that the subject misconduct not be reported to the appropriate disciplinary authority.

(b) A lawyer who knows that a judge has committed a violation of applicable rules of judicial conduct that raises a substantial question as to the judge's fitness for office shall inform the appropriate authority.

(c) This Rule does not require disclosure of information otherwise protected by Rule 1.6 or General Statutes § 51-81d (f) or obtained while serving as a member of a bar association ethics committee or the Judicial Branch Committee on Judicial Ethics.

(P.B. 1978-1997, Rule 8.3.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 30, 2008, to take effect Aug. 1, 2008.)

COMMENTARY: Self-regulation of the legal profession requires that members of the profession initiate a disciplinary investigation when they know of a violation of the Rules of Professional Conduct. Lawyers have a similar obligation with respect to judicial misconduct. An apparently isolated violation may indicate a pattern of misconduct that only a disciplinary investigation can uncover. Reporting a violation is especially important where the victim is unlikely to discover the offense.

A report about misconduct is not required where it would involve violation of Rule 1.6. However, a lawyer should encourage a client to consent to disclosure where prosecution would not substantially prejudice the client's interests.

If a lawyer were obliged to report every violation of the Rules, the failure to report any violation would itself be a professional offense. Such a requirement existed in many jurisdictions but proved to be unenforceable. This Rule limits the reporting obligation to those offenses that a self-regulating profession must vigorously endeavor to prevent. A measure of judgment is, therefore, required in complying with the provisions of this Rule. The term "substantial" refers to the seriousness of the possible offense and not the quantum of evidence of which the lawyer is aware. A report should be made to the bar disciplinary agency unless some other agency, such as a peer review agency, is more appropriate in the circumstances. Similar considerations apply to the reporting of judicial misconduct.

The duty to report professional misconduct does not apply to a lawyer retained to represent a lawyer whose professional conduct is in question. Such a situation is governed by the Rules applicable to the client-lawyer relationship.

Information about a lawyer's or judge's misconduct or fitness may be received by a lawyer in the course of that lawyer's participation in an approved lawyers or judges assistance program. In that circumstance, providing for an exception to the reporting requirements of subsections (a) and (b) of this Rule encourages lawyers and judges to seek treatment through such a program. Conversely, without such an exception, lawyers and judges may hesitate to seek assistance from these programs, which may then result in additional harm to their professional careers and additional injury to the welfare of clients and the public.

Rule 8.4. Misconduct

It is professional misconduct for a lawyer to:

(1) Violate or attempt to violate the Rules of Professional Conduct, knowingly assist or induce another to do so, or do so through the acts of another;

(2) Commit a criminal act that reflects adversely on the lawyer's honesty, trustworthiness or fitness as a lawyer in other respects;

(3) Engage in conduct involving dishonesty, fraud, deceit or misrepresentation;

(4) Engage in conduct that is prejudicial to the administration of justice;

(5) State or imply an ability to influence improperly a government agency or official or to achieve results by means that violate the Rules of Professional Conduct or other law;

(6) Knowingly assist a judge or judicial officer in conduct that is a violation of applicable rules of judicial conduct or other law; or

(7) Engage in conduct that the lawyer knows or reasonably should know is harassment or discrimination on the basis of race, color, ancestry, sex, pregnancy, religion, national origin, ethnicity, disability, status as a veteran, age, sexual orientation, gender identity, gender expression or marital status in conduct related to the practice of law. This paragraph does not limit the ability of a lawyer to accept, decline or withdraw from a representation, or to provide advice, assistance or advocacy consistent with these Rules.

(P.B. 1978-1997, Rule 8.4.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 11, 2021, to take effect Jan. 1, 2022.)

COMMENTARY: Lawyers are subject to discipline when they violate or attempt to violate the Rules of Professional Conduct, knowingly assist or induce another to do so or do so through the acts of another, as when they request or instruct an agent to do so on the lawyer's behalf. Subdivision (1), however, does not prohibit a lawyer from advising a client concerning action the client is legally entitled to take.

Many kinds of illegal conduct reflect adversely on fitness to practice law, such as offenses involving fraud and the offense of wilful failure to file an income tax return. However, some kinds of offenses carry no such implication. Traditionally, the distinction was drawn in terms of offenses involving "moral turpitude." That concept can be construed to include offenses concerning some matters of personal morality, such as adultery and comparable offenses, which have no specific connection to fitness for the practice of law. Although a lawyer is personally answerable to the entire criminal law, a lawyer

should be professionally answerable only for offenses that indicate lack of those characteristics relevant to law practice. Offenses involving violence, dishonesty, breach of trust, or serious interference with the administration of justice are in that category. A pattern of repeated offenses, even ones of minor significance when considered separately, can indicate indifference to legal obligation. Counseling or assisting a client with regard to conduct expressly permitted under Connecticut law is not conduct that reflects adversely on a lawyer's fitness notwithstanding any conflict with federal or other law. Nothing in this commentary shall be construed to provide a defense to a presentment filed pursuant to Practice Book Section 2-41.

Discrimination and harassment in the practice of law undermine confidence in the legal profession and the legal system. Discrimination includes harmful verbal or physical conduct directed at an individual or individuals that manifests bias or prejudice on the basis of one or more of the protected categories. Not all conduct that involves consideration of these characteristics manifests bias or prejudice: there may be a legitimate nondiscriminatory basis for the conduct.

Harassment includes severe or pervasive derogatory or demeaning verbal or physical conduct. Harassment on the basis of sex includes unwelcome sexual advances, requests for sexual favors and other unwelcome verbal or physical conduct of a sexual nature.

The substantive law of antidiscrimination and antiharassment statutes and case law should guide application of paragraph (7), where applicable. Where the conduct in question is subject to federal or state antidiscrimination or antiharassment law, a lawyer's conduct does not violate paragraph (7) when the conduct does not violate such law. Moreover, an administrative or judicial finding of a violation of state or federal antidiscrimination or antiharassment law does not alone establish a violation of paragraph (7).

A lawyer's conduct does not violate paragraph (7) when the conduct in question is protected under the first amendment to the United States constitution or article first, § 4 of the Connecticut constitution.

Conduct related to the practice of law includes representing clients; interacting with witnesses, coworkers, court personnel, lawyers and others while engaged in the practice of law; operating or managing a law firm or law practice; and participating in bar association, business or professional activities or events in connection with the practice of law. Lawyers may engage in conduct undertaken to promote diversity, equity and inclusion without violating this Rule by, for example, implementing initiatives aimed at recruiting, hiring, retaining and advancing diverse employees or sponsoring diverse law student organizations.

A trial judge's finding that peremptory challenges were exercised on a discriminatory basis does not alone establish a violation of paragraph (7). Moreover, no disciplinary violation may be found where a lawyer exercises a peremptory challenge on a basis that is permitted under substantive law. A lawyer does not violate paragraph (7) by limiting the scope or subject matter of the lawyer's practice or by limiting the lawyer's practice to members of a particular segment of the population in accordance with these rules and other law. A lawyer may charge and collect reasonable fees and expenses for a representation. Rule 1.5 (a). Lawyers also should be mindful of their professional obligations under Rule 6.1 to provide legal services to those who are unable to pay, and their obligation under Rule 6.2 not to avoid appointments from a tribunal except for good cause. See Rule 6.2 (1), (2) and (3). A lawyer's representation of a client does not constitute an endorsement by the lawyer of the client's views or activities. See Rule 1.2 (b).

The provisions of Rule 1.2 (d) concerning a good faith challenge to the validity, scope, meaning or application of the law apply to challenges of legal regulation of the practice of law.

Lawyers holding public office assume legal responsibilities going beyond those of other citizens. A lawyer's abuse of public office can suggest an inability to fulfill the professional role of a lawyer. The same is true of abuse of positions of private trust, such as trustee, executor, administrator, guardian, agent and officer, director or manager of a corporation or other organization.

Rule 8.5. Disciplinary Authority; Choice of Law

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) Disciplinary Authority. A lawyer admitted to practice in this jurisdiction is subject to the disciplinary authority of this jurisdiction, regardless of where the lawyer's conduct occurs. A lawyer not admitted in this jurisdiction is also subject to the disciplinary authority of this jurisdiction if the lawyer provides or offers to provide any legal services in this jurisdiction. A lawyer may be subject to the disciplinary authority of both this jurisdiction and another jurisdiction for the same conduct.

(b) Choice of Law. In any exercise of the disciplinary authority of this jurisdiction, the Rules of Professional Conduct to be applied shall be as follows:

(1) For conduct in connection with a matter pending before a tribunal, the rules of the jurisdiction in which the tribunal sits, unless the rules of the tribunal provide otherwise; and

(2) For any other conduct, the rules of the jurisdiction in which the lawyer's conduct occurred, or, if the predominant effect of the conduct is in a different jurisdiction, the rules of that jurisdiction shall be applied to the conduct. A lawyer shall not be subject to discipline if the lawyer's conduct conforms to the rules of a jurisdiction in which the lawyer reasonably believes the predominant effect of the lawyer's conduct will occur.

(P.B. 1978-1997, Rule 8.5.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

COMMENTARY: **Disciplinary Authority.** It is longstanding law that the conduct of a lawyer admitted to practice in this jurisdiction is subject to the disciplinary authority of this jurisdiction. Extension of the disciplinary authority of this jurisdiction to other lawyers who provide or offer to provide legal services in this jurisdiction is for the protection of the citizens of this jurisdiction. Reciprocal enforcement of a jurisdiction's disciplinary findings and sanctions will further advance the purposes of this Rule. See Rules 6 and 22, ABA Model Rules for Lawyer Disciplinary Enforcement. A lawyer who is admitted pursuant to Practice Book Section 2-16 or 2-17 et seq. is subject to the disciplinary authority of this jurisdiction under Rule 8.5 (a) and appoints an official to be designated by this court to receive service of process in this jurisdiction. The fact that the lawyer is subject to the disciplinary authority of this jurisdiction may be a factor in determining whether personal jurisdiction may be asserted over the lawyer for civil matters.

Choice of Law. A lawyer may be potentially subject to more than one set of Rules of Professional Conduct which

impose different obligations. The lawyer may be licensed to practice in more than one jurisdiction with differing rules, or may be admitted to practice before a particular court with rules that differ from those of the jurisdiction or jurisdictions in which the lawyer is licensed to practice. Additionally, the lawyer's conduct may involve significant contacts with more than one jurisdiction.

Subsection (b) seeks to resolve such potential conflicts. Its premise is that minimizing conflicts between rules, as well as uncertainty about which rules are applicable, is in the best interest of both clients and the profession (as well as the bodies having authority to regulate the profession). Accordingly, it takes the approach of (i) providing that any particular conduct of a lawyer shall be subject to only one set of Rules of Professional Conduct, and (ii) making the determination of which set of rules applies to particular conduct as straightforward as possible, consistent with recognition of appropriate regulatory interests of relevant jurisdictions.

Subsection (b) (1) provides that, as to a lawyer's conduct relating to a proceeding pending before a tribunal, the lawyer shall be subject only to the rules of the jurisdiction in which the tribunal sits unless the rules of the tribunal, including its choice of law rule, provide otherwise. As to all other conduct, including conduct in anticipation of a proceeding not yet pending before a tribunal, subsection (b) (2) provides that a lawyer shall be subject to the rules of the jurisdiction in which the lawyer's conduct occurred, or, if the predominant effect of the conduct is in another jurisdiction, the rules of that jurisdiction shall be applied to the conduct. So long as the lawyer's conduct conforms to the rules of a jurisdiction in which the lawyer reasonably believes the predominant effect will occur, the lawyer shall not be subject to discipline under this Rule.

When a lawyer's conduct involves significant contacts with more than one jurisdiction, it may not be clear whether the predominant effect of the lawyer's conduct will occur in a jurisdiction other than the one in which the conduct occurred. So long as the lawyer's conduct conforms to the rules of a jurisdiction in which the lawyer reasonably believes the predominant effect will occur, the lawyer shall not be subject to discipline under this Rule. With respect to conflicts of interest, in determining a lawyer's reasonable belief under subsection (b) (2), a written agreement between the lawyer and client that reasonably specifies a particular jurisdiction as within the scope of that paragraph may be considered if the agreement was obtained with the client's informed consent confirmed in the agreement.

If two admitting jurisdictions were to proceed against a lawyer for the same conduct, they should, applying this Rule, identify the same governing ethics rules. They should take all appropriate steps to see that they do apply the same rule to the same conduct, and in all events should avoid proceeding against a lawyer on the basis of two inconsistent rules.

The choice of law provision applies to lawyers engaged in transnational practice, unless international law, treaties or other agreements between competent regulatory authorities in the affected jurisdictions provide otherwise.

CODE OF JUDICIAL CONDUCT

Preamble
Scope
Terminology
Application
Canons
Rules
Comments

For the Code of Judicial Conduct as it read prior to 2011, see editions of the Practice Book prior to the 2011 edition.

AMENDMENT NOTE: This is a major rewrite of the Code of Judicial Conduct, adopted by the judges of the Superior Court on June 21, 2010, the judges of the Appellate Court on July 15, 2010, and the justices of the Supreme Court on July 1, 2010, to take effect January 1, 2011. It is based on the Model Code adopted by the ABA in 2007. Our prior Code, which was adopted with an effective date of October 1, 1974, was based on the Model Code adopted by the ABA in 1972. In the early 1990s, the ABA adopted a revised Model Code; however, the major changes in the Model Code were not adopted by the judges of Connecticut.

PREAMBLE

(1) An independent, fair and impartial judiciary is indispensable to our system of justice. The United States legal system is based on the principle that an independent, impartial, and competent judiciary, composed of men and women of integrity, will interpret and apply the law that governs our society. Thus, the judiciary plays a central role in preserving the principles of justice and the rule of law. Inherent in all the Rules contained in this Code are the precepts that judges, individually and collectively, must respect and honor the judicial office as a public trust and strive to maintain and enhance confidence in the legal system.

(2) Judges should maintain the dignity of judicial office at all times and avoid both impropriety and the appearance of impropriety in their professional and personal lives. They should aspire at all times to conduct that ensures the greatest possible public confidence in their independence, impartiality, integrity, and competence.

(3) The Code of Judicial Conduct establishes standards for the ethical conduct of judges in matters affecting the performance of their judicial duties and the fair and efficient operation of the courts or other tribunals on which they serve. Although it is not intended as an exhaustive guide for the conduct of judges, who must be guided in their professional and personal lives by general ethical standards as well as by the law, which includes this Code, it is intended to assist judges in maintaining the highest standards of professional and personal conduct, as it affects their judicial work.

SCOPE

(1) The Code of Judicial Conduct consists of four Canons, numbered Rules[1] under each Canon, and Comments that generally follow and explain each Rule. Scope and Terminology sections provide additional guidance in interpreting and applying the Code. An Application section establishes when the various Rules apply to a judge.

(2) The Canons state overarching principles of judicial ethics that all judges must observe. Although a judge may be disciplined hereunder only for violating a Rule, the Canons provide important guidance in interpreting the Rules. Where a Rule contains a permissive term, such as "may" or "should," the conduct being addressed is committed to the sound personal and professional discretion of the judge in question, and no disciplinary action shall be taken for action or inaction within the bounds of such discretion.

(3) The Comments that accompany the Rules serve two functions. First, they provide guidance regarding the purpose, meaning, and proper application of the Rules. They contain explanatory material and, in some instances, provide examples of permitted or prohibited conduct. Comments neither add to nor subtract from the binding obligations set forth in the Rules. Therefore, when a Comment contains the term "must," it does not mean that the Comment itself is binding or enforceable; it signifies that the Rule in question, properly understood, is obligatory as to the conduct at issue.

[1] References herein to numbered Rules are to the Rules of this Code, unless stated otherwise.

(4) Second, the Comments identify aspirational goals for judges. To implement fully the principles of this Code as articulated in the Canons, judges should strive to exceed the standards of conduct established by the Rules, holding themselves to the highest ethical standards and seeking to achieve those aspirational goals, thereby enhancing the dignity of the judicial office.

(5) The Rules of the Code of Judicial Conduct are rules of reason that should be applied consistently with constitutional requirements, statutes, other court rules, and decisional law, and with due regard for all relevant circumstances. The Rules should not be interpreted in such a way as to impinge on the essential independence of judges in making judicial decisions.

(6) Although these Rules are binding and enforceable, it is not contemplated that every transgression will necessarily result in the imposition of discipline. Whether discipline should be imposed should be determined through a reasonable and reasoned application of the Rules and should depend on factors such as the seriousness of the transgression, the facts and circumstances that existed at the time of the transgression, the extent of any pattern of improper activity, whether there have been previous violations, and the effect of the improper activity on the judicial system or other persons.

(7) The Code is not designed or intended as a basis for civil or criminal liability. Neither is it intended to be the basis for litigants to seek collateral remedies against each other or to obtain tactical advantages in proceedings before a court.

TERMINOLOGY

As used in this Code, the following definitions shall apply:

"Appropriate authority" means the authority having responsibility for taking corrective action in connection with the conduct or violation to be reported under Rules 2.14 and 2.15.

"Confidential" means information that is not available to the public. Confidential information may include, but is not limited to, information that is sealed by statute, rule or court order or lodged with the court or communicated in camera. See Rule 3.5.

"Contribution" means both financial and in-kind contributions, such as goods, professional or volunteer services, advertising, and other types of assistance, which, if obtained by the recipient otherwise, would require a financial expenditure. See Rules 2.11, 3.7, and 4.1.

"De minimis," in the context of interests pertaining to disqualification of a judge, means an insignificant interest that could not raise a reasonable question regarding the judge's impartiality. See Rule 2.11.

"Domestic partner" means a person with whom another person maintains a household and an intimate relationship, other than a spouse. See Rules 2.11, 2.13, 3.13, and 3.14.

"Economic interest" means ownership of more than a de minimis legal or equitable interest. Except for situations in which the judge participates in the management of such a legal or equitable interest, or the interest could be substantially affected by the outcome of a proceeding before a judge, it does not include:

(1) an interest in the individual holdings within a mutual or common investment fund;

(2) an interest in securities held by an educational, religious, charitable, fraternal, or civic organization in which the judge or the judge's spouse, domestic partner, parent, or child serves as a director, an officer, an advisor, or other participant;

(3) a deposit in a financial institution or deposits or proprietary interests the judge may maintain as a member of a mutual savings association or credit union, or similar proprietary interests; or

(4) an interest in the issuer of government securities held by the judge. See Rules 1.3, 2.11, and 3.2.

"Fiduciary" includes relationships such as executor, administrator, trustee, or guardian. See Rules 2.11, 3.2, and 3.8.

"Impartial," "impartiality," and "impartially" mean absence of bias or prejudice in favor of, or against, particular parties or classes of parties, as well as maintenance of an open mind in considering issues that may come before a judge. See Canons 1, 2, and 4, and Rules 1.2, 2.2, 2.10, 2.11, 2.13, 3.1, 3.12, 3.13, 4.1, and 4.2.

"Impending matter" is any matter a judge knows is imminent or reasonably expects to be commenced in the near future. See Rules 2.9, 2.10, 3.13, and 4.1.

"Impropriety" includes conduct that violates the law or provisions of this Code and conduct that undermines a judge's independence, integrity, or impartiality. See Canon 1 and Rule 1.2.

"Independence" means a judge's freedom from influence or controls other than those established by law. See Canons 1 and 4, and Rules 1.2, 3.1, 3.12, 3.13, and 4.2.

"Integrity" means probity, fairness, honesty, uprightness, and soundness of character. See Canons 1 and 4 and Rules 1.2, 3.1, 3.12, 3.13, and 4.2.

"Knowingly," "knowledge," "known," and "knows" mean actual knowledge of the fact in question. A person's knowledge may be inferred from circumstances. See Rules 2.11, 2.15, 2.16, 3.2, 3.6, and 4.1.

"Law" encompasses court rules as well as statutes, constitutional provisions, decisional law, and this Code. See Rules 1.1, 2.1, 2.2, 2.6, 2.7, 2.9, 3.1, 3.2, 3.4, 3.7, 3.9, 3.12, 3.13, 3.14, 3.15, 4.1, and 4.3.

"Member of the judge's family" means any relative of a judge related by consanguinity within the third degree as determined by the common law, a spouse or domestic partner or an individual related to a spouse or domestic partner within the third degree as so determined, including an individual in an adoptive relationship within the third degree. See Rules 3.5, 3.7, 3.8, 3.10, and 3.11.

"Member of a judge's family residing in the judge's household" means any member of the judge's family or other person treated by a judge as a member of the judge's family, who resides in the judge's household. See Rules 2.11 and 3.13.

"Pending matter" is a matter that has commenced. A matter continues to be pending through any appellate process until final disposition. See Rules 2.9, 2.10, 3.13, and 4.1.

"Personally solicit" means a direct request made by a judge for financial support or in-kind services, whether made by letter, telephone, or any other means of communication. See Rule 4.1.

"Political organization" means a political party or other group sponsored by or affiliated with a political party or candidate, the principal purpose of which is to further the election or appointment of candidates for political office. See Rules 4.1 and 4.2.

"Public election" includes primary and general elections, partisan elections and nonpartisan elections. See Rule 4.3.

"Spouse" means a person to whom one is legally married or joined in a civil union. See Rules 2.11, 3.13, and 3.14.

"Third degree of relationship" includes the following persons: great-grandparent, grandparent, parent, uncle, aunt, brother, sister, child, grandchild, great-grandchild, nephew, and niece. See Rule 2.11.

APPLICATION

The Application section establishes when and to whom the various Rules apply.

I. APPLICABILITY OF THIS CODE

(a) Except as provided in subsection (b), the provisions of the Code apply to all judges of the Superior Court, senior judges, judge trial referees, state referees, family support magistrates appointed pursuant to General Statutes § 46b-231 (f), and family support magistrate referees.

(b) State referees and family support magistrate referees are not required to comply with Rules 3.4 and 3.8.

II. TIME FOR COMPLIANCE

A person to whom this Code becomes applicable shall comply immediately with its provisions, except that those judges to whom Rules 3.8 (Appointments to Fiduciary Positions) and 3.11 (Financial, Business, or Remunerative Activities) apply shall comply with those Rules as soon as reasonably possible, but in no event later than one year after the Code becomes applicable to the judge.

COMMENT: If serving as a fiduciary when selected as judge, a new judge may, notwithstanding the prohibitions in Rule 3.8, continue to serve as fiduciary, but only for that period of time necessary to avoid serious adverse consequences to the beneficiaries of the fiduciary relationship and in no event longer than one year. Similarly, if engaged at the time of judicial selection in a business activity, a new judge may, notwithstanding the prohibitions in Rule 3.11, continue in that activity for a reasonable period but in no event longer than one year.

CODE OF JUDICIAL CONDUCT

Canon
1. A Judge Shall Uphold and Promote the Independence, Integrity, and Impartiality of the Judiciary, and Shall Avoid Impropriety and the Appearance of Impropriety.

Rule
1.1. Compliance with the Law
1.2. Promoting Confidence in the Judiciary
1.3. Avoiding Abuse of the Prestige of Judicial Office

Canon
2. A Judge Shall Perform the Duties of Judicial Office Impartially, Competently, and Diligently.

Rule
2.1. Giving Precedence to the Duties of Judicial Office
2.2. Impartiality and Fairness
2.3. Bias, Prejudice, and Harassment
2.4. External Influences on Judicial Conduct or Judgment
2.5. Competence, Diligence, and Cooperation
2.6. Ensuring the Right To Be Heard
2.7. Responsibility To Decide
2.8. Decorum, Demeanor, and Communication with Jurors
2.9. Ex Parte Communications
2.10. Judicial Statements on Pending and Impending Cases
2.11. Disqualification
2.12. Supervisory Duties
2.13. Administrative Appointments
2.14. Disability and Impairment
2.15. Responding to Judicial and Lawyer Misconduct
2.16. Cooperation with Disciplinary Authorities

Canon
3. A Judge Shall Conduct the Judge's Personal and Extrajudicial Activities To Minimize the Risk of Conflict with the Obligations of Judicial Office.

Rule
3.1. Extrajudicial Activities in General
3.2. Appearances before Governmental Bodies and Consultation with Government Officials
3.3. Testifying as a Character Witness
3.4. Appointments to Governmental Positions
3.5. Use of Confidential Information
3.6. Affiliation with Discriminatory Organizations
3.7. Participation in Educational, Religious, Charitable, Fraternal, or Civic Organizations and Activities
3.8. Appointments to Fiduciary Positions
3.9. Service as Arbitrator or Mediator
3.10. Practice of Law
3.11. Financial, Business, or Remunerative Activities
3.12. Compensation for Extrajudicial Activities
3.13. Acceptance and Reporting of Gifts, Loans, Bequests, Benefits, or Other Things of Value
3.14. Reimbursement of Expenses and Waivers of Fees or Charges
3.15. Reporting Requirements

Canon
4. A Judge Shall Not Engage in Political or Campaign Activity that Is Inconsistent with the Independence, Integrity, or Impartiality of the Judiciary

Rule
4.1. Political Activities of Judges in General
4.2. Activities of Judges as Candidates for Reappointment or Elevation to Higher Judicial Office
4.3. Activities of Judges Who Become Candidates for Public Office

Canon 1. A Judge Shall Uphold and Promote the Independence, Integrity, and Impartiality of the Judiciary, and Shall Avoid Impropriety and the Appearance of Impropriety.

Rule 1.1. Compliance with the Law

A judge shall comply with the law.

(Effective Jan. 1, 2011.)

COMMENT: This rule deals with the judge's personal conduct. A judge's professional conduct in enforcing the law is covered by Rule 2.2. When applying and interpreting the law, a judge sometimes may make good faith errors of fact or law. Errors of this kind do not violate this Rule.

Rule 1.2. Promoting Confidence in the Judiciary

A judge shall act at all times in a manner that promotes public confidence in the independence, integrity, and impartiality of the judiciary and shall avoid impropriety and the appearance of impropriety. The test for appearance of impropriety is whether the conduct would create in reasonable minds a perception that the judge violated this Code or engaged in other conduct that reflects adversely on the judge's honesty, impartiality, temperament, or fitness to serve as a judge.

(Effective Jan. 1, 2011.)

COMMENT: (1) Public confidence in the judiciary is eroded by improper conduct and conduct that creates the appearance of impropriety as defined in this Rule. This principle applies to both the professional and personal conduct of a judge.

(2) A judge should expect to be the subject of public scrutiny that might be viewed as burdensome if applied to other citizens and must accept the restrictions imposed by the Code.

(3) Conduct that compromises the independence, integrity, and impartiality of a judge undermines public confidence in the judiciary. Because it is not practicable to list all such conduct, the Rule is necessarily cast in general terms.

(4) Judges may initiate or participate in activities that promote ethical conduct among judges and lawyers, support professionalism within the judiciary and the legal profession, and promote access to justice for all.

(5) A judge may initiate or participate in community activities for the purpose of promoting public understanding of and confidence in the administration of justice. In conducting such activities, the judge must act in a manner consistent with this Code.

Rule 1.3. Avoiding Abuse of the Prestige of Judicial Office

A judge shall not use or attempt to use the prestige of judicial office to advance the personal or economic interests of the judge or others or allow others to do so.

(Effective Jan. 1, 2011.)

COMMENT: (1) It is improper for a judge to use or attempt to use his or her position to gain personal advantage or deferential treatment of any kind. For example, it would be improper for a judge to allude to his or her judicial status to gain favorable treatment in encounters with traffic officials. Similarly, a judge must not use judicial letterhead to gain an advantage in conducting his or her personal business.

(2) A judge may provide a reference or recommendation for an individual based on the judge's personal knowledge. The judge may use official letterhead if the judge indicates that the reference is personal and if the use of the letterhead would not reasonably be perceived as an attempt to exert pressure by reason of the judicial office.

(3) Judges may participate in the process of judicial selection by cooperating with appointing authorities and screening committees and by responding to inquiries from such entities concerning the professional qualifications of a person being considered for judicial office.

(4) Special considerations arise when judges write or contribute to publications of for-profit entities, whether related or unrelated to the law. A judge should not permit anyone associated with the publication of such materials to exploit the judge's office in a manner that violates this Code or other applicable law. In contracts for publication of a judge's writing, the judge should retain sufficient control over the advertising to avoid such exploitation.

Canon 2. A Judge Shall Perform the Duties of Judicial Office Impartially, Competently, and Diligently.

Rule 2.1. Giving Precedence to the Duties of Judicial Office

The duties of judicial office, as prescribed by law, shall take precedence over all of a judge's personal and extrajudicial activities.

(Effective Jan. 1, 2011.)

COMMENT: (1) To ensure that judges are available to fulfill their judicial duties, judges must conduct their personal and extrajudicial activities in such a way as to minimize the risk of conflicts that would result in disqualification. A judge's personal extrajudicial activities shall not be conducted in such a way as to interfere unduly with the duties of judicial office. See Canon 3.

(2) Although it is not a duty of judicial office, judges are encouraged to initiate or participate in activities that promote public understanding of and confidence in the justice system.

Rule 2.2. Impartiality and Fairness

A judge shall uphold and apply the law and shall perform all duties of judicial office fairly and impartially.

(Effective Jan. 1, 2011.)

COMMENT: (1) To ensure impartiality and fairness to all parties, a judge must be objective and open-minded.

(2) Although each judge comes to the bench with a unique background and personal philosophy, a judge must interpret and apply the law without regard to whether the judge approves or disapproves of the law in question.

(3) When applying and interpreting the law, a judge sometimes may make good faith errors of fact or law. Errors of this kind do not violate this Rule.

(4) It is not a violation of this Rule for a judge to make reasonable accommodations to ensure self-represented litigants the opportunity to have their matters fairly heard.

Rule 2.3. Bias, Prejudice, and Harassment

(a) A judge shall perform the duties of judicial office, including administrative duties, without bias or prejudice.

(b) A judge shall not, in the performance of judicial duties, by words or conduct, manifest bias or prejudice or engage in harassment including, but not limited to, bias, prejudice, or harassment based on race, sex, gender, religion, national origin, ethnicity, disability, age, sexual orientation, marital status, socioeconomic status, or political affiliation and shall not condone such conduct by court staff, court officials, or others subject to the judge's direction and control.

(c) A judge shall require lawyers in proceedings before the court to refrain from manifesting bias or prejudice or engaging in harassment, based on attributes including, but not limited to, race, sex, gender, religion, national origin, ethnicity, disability, age, sexual orientation, marital status, socioeconomic status, or political affiliation against parties, witnesses, lawyers, or others.

(d) The restrictions of subsections (b) and (c) do not preclude judges or lawyers from making legitimate reference to the listed factors or similar factors when they are relevant to an issue in a proceeding.

(Effective Jan. 1, 2011.)

COMMENT: (1) A judge who manifests bias or prejudice in a proceeding impairs the fairness of the proceeding and brings the judiciary into disrepute.

(2) Examples of manifestations of bias or prejudice include, but are not limited to, epithets; slurs; demeaning nicknames; negative stereotyping; attempted humor based on stereotypes; threatening, intimidating, or hostile acts; suggestions of connections between race, ethnicity, or nationality and criminality; and irrelevant references to personal characteristics. Even facial expressions and body language can convey to parties and lawyers in the proceeding, jurors, the media, and others an appearance of bias or prejudice. A judge must avoid conduct that may reasonably be perceived as prejudiced or biased.

(3) Harassment, as referred to in subsections (b) and (c), is verbal or physical conduct that denigrates or shows hostility or aversion toward a person on bases such as race, sex, gender, religion, national origin, ethnicity, disability, age, sexual orientation, marital status, socioeconomic status, or political affiliation.

(4) Sexual harassment includes, but is not limited to, sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature that is unwelcome.

Rule 2.4. External Influences on Judicial Conduct or Judgment

(a) A judge shall not be swayed in the performance of the judge's judicial duties by public clamor or fear of criticism.

(b) A judge shall not permit family, social, political, financial, or other interests or relationships to influence the judge's judicial conduct or judgment.

(c) A judge shall not convey or permit others to convey the impression that any person or organization is in a position to influence the judge's judicial conduct or judgment.

(Effective Jan. 1, 2011.)

COMMENT: An independent judiciary requires that judges decide cases according to the law and facts, without regard to whether particular laws or litigants are popular or unpopular with the public, the media, government officials, or the judge's friends or family. The integrity of judicial decision making is undermined if it is based in whole or in part on inappropriate outside influences.

Rule 2.5. Competence, Diligence, and Cooperation

(a) A judge shall perform judicial and administrative duties competently and diligently.

(b) A judge shall cooperate with other judges and court officials in the administration of court business.

(Effective Jan. 1, 2011.)

COMMENT: (1) Competence in the performance of judicial duties requires the legal knowledge, skill, thoroughness, and preparation reasonably necessary to perform a judge's responsibilities of judicial office.

(2) A judge should seek the necessary docket time, court staff, expertise, and resources to discharge all adjudicative and administrative responsibilities.

(3) Prompt disposition of the court's business requires a judge to devote adequate time to judicial duties, to be punctual in attending court and expeditious in determining matters under submission, and to take reasonable measures to ensure that court officials, litigants, and their lawyers cooperate with the judge to that end.

(4) In disposing of matters promptly and efficiently, a judge must demonstrate due regard for the rights of parties to be heard and to have issues resolved without unnecessary cost or delay. A judge should monitor and supervise cases in ways that reduce or eliminate dilatory practices, avoidable delays, and unnecessary costs.

Rule 2.6. Ensuring the Right To Be Heard

(a) A judge shall accord to every person who has a legal interest in a proceeding, or that person's lawyer, the right to be heard according to law.

(b) A judge may encourage parties to a proceeding and their lawyers to settle matters in dispute but shall not act in a manner that coerces any party into settlement.

(Effective Jan. 1, 2011.)

COMMENT: (1) The right to be heard is an essential component of a fair and impartial system of justice. Substantive rights of litigants can be protected only if procedures protecting the right to be heard are observed.

(2) The judge plays an important role in overseeing the settlement of disputes but should be careful that efforts to further settlements do not undermine any party's right to be heard according to law. The judge should keep in mind the effect that the judge's participation in settlement discussions may have, not only on the judge's own views of the case, but also on the perceptions of the lawyers and the parties if the case remains with the judge after settlement efforts are unsuccessful. Among the factors that a judge should consider when deciding on appropriate settlement practices for a case are: (a) whether the parties have requested or voluntarily consented to a certain level of participation by the judge in settlement discussions, (b) whether the parties and their counsel are relatively sophisticated in legal matters, (c) whether the case will be tried by the judge or a jury, (d) whether the parties participate with their counsel in settlement discussions, (e) whether any parties are unrepresented by counsel, and (f) whether the matter is civil or criminal.

(3) Judges must be mindful of the effect settlement discussions can have, not only on their objectivity and impartiality, but also on the appearance of their objectivity and impartiality. Despite a judge's best efforts, there may be instances when information obtained during settlement discussions could influence a judge's decision making during trial, and, in such instances, the judge should consider whether disqualification may be appropriate. See Rule 2.11 (a) (1).

Rule 2.7. Responsibility To Decide

A judge shall hear and decide matters assigned to the judge, except when disqualification is required by Rule 2.11 or other law.

(Effective Jan. 1, 2011.)

COMMENT: Judges must be available to decide the matters that come before the court. Although there are times when disqualification is necessary to protect the rights of litigants and preserve public confidence in the independence, integrity, and impartiality of the judiciary, judges must be available to decide matters that come before the courts. Unwarranted disqualification may bring public disfavor to the court and to the judge personally. The dignity of the court, the judge's respect for fulfillment of judicial duties and a proper concern for the burdens that may be imposed on the judge's colleagues require that a judge not use disqualification to avoid cases that present difficult, controversial, or unpopular issues.

Rule 2.8. Decorum, Demeanor, and Communication with Jurors

(a) A judge shall require order and decorum in proceedings before the court.

(b) A judge shall be patient, dignified, and courteous to litigants, jurors, witnesses, lawyers, court staff, court officials, and others with whom the judge deals in an official capacity and shall require similar conduct of lawyers, court staff, court officials, and others subject to the judge's direction and control.

(c) Although a judge may thank jurors for their willingness to serve, a judge shall not commend or criticize jurors with respect to their verdict in a case other than in an instruction, order or opinion in a proceeding, if appropriate.

(Effective Jan. 1, 2011.)

COMMENT: (1) The duty to hear all proceedings with patience and courtesy is not inconsistent with the duty imposed in Rule 2.5 to dispose promptly of the business of the court. Judges can be efficient and businesslike while being patient and deliberate.

(2) Commending or criticizing jurors for their verdict may imply a judicial expectation in future cases and may impair a juror's ability to be fair and impartial in a subsequent case.

(3) A judge who is not otherwise prohibited by law from doing so may meet with jurors who choose to remain after trial but shall be careful to avoid discussion of the merits of the case.

(4) This rule does not purport to prevent a judge from returning a jury for further deliberations if its verdict is insufficient in amount, inaccurate, inconsistent with the court's instructions or otherwise improper in form or substance.

Rule 2.9. Ex Parte Communications

(a) A judge shall not initiate, permit, or consider ex parte communications or consider other communications made to the judge outside the presence of the parties or their lawyers, concerning a pending or impending matter, except as follows:

(1) When circumstances require it, ex parte communication for scheduling, administrative, or emergency purposes, which does not address substantive matters, is permitted, provided:

(A) the judge reasonably believes that no party will gain a procedural, substantive, or tactical advantage as a result of the ex parte communication; and

(B) the judge makes provision promptly to notify all other parties of the substance of the ex parte communication and gives the parties an opportunity to respond.

(2) A judge may obtain the written advice of a disinterested expert on the law applicable to a proceeding before the judge, if the judge gives advance notice to the parties of the person to be consulted and the subject matter of the advice to be solicited, and affords the parties a reasonable opportunity to object and to respond to the notice and to the written advice received.

(3) A judge may consult with court staff and court officials whose functions are to aid the judge in carrying out the judge's adjudicative responsibilities, or with other judges, provided the judge makes reasonable efforts to avoid receiving factual information that is not part of the record and does not abrogate the responsibility personally to decide the matter.

(4) A judge may, with the consent of the parties, confer separately with the parties and their lawyers in an effort to settle matters pending before the judge.

(5) A judge may initiate, permit, or consider any ex parte communication when expressly authorized by law to do so.

(b) If a judge inadvertently receives an unauthorized ex parte communication bearing on the substance of a matter, the judge shall make provision promptly to notify the parties of the substance of the communication and provide the parties with an opportunity to respond.

(c) A judge serving as a fact finder shall not investigate facts in a matter independently and shall consider only the evidence presented and any facts that may properly be judicially noticed.

(d) A judge shall make reasonable efforts, including providing appropriate supervision, to ensure that this Rule is not violated by court staff, court officials, and others subject to the judge's direction and control.

(Effective Jan. 1, 2011.)

COMMENT: (1) To the extent reasonably possible, all parties or their lawyers shall be included in communications with a judge.

(2) Whenever the presence of a party or notice to a party is required by this Rule, it is the party's lawyer, or if the party is unrepresented, the party, who is to be present or to whom notice is to be given.

(3) The proscription against communications concerning a proceeding includes communications with lawyers, law teachers, and other persons who are not participants in the proceeding, except to the limited extent permitted by this Rule.

(4) A judge may initiate, permit, or consider ex parte communications expressly authorized by law.

(5) A judge may consult with other judges on pending matters but must avoid ex parte discussions of a case with judges who are disqualified from hearing the matter and with judges who have appellate jurisdiction over the matter.

(6) The prohibition against a judge investigating the facts in a matter extends to information available in all mediums, including electronic. Nothing in this Rule is intended to relieve a judge of the independent duty to investigate allegations of juror misconduct. See *State* v. *Santiago*, 245 Conn. 301, 715 A.2d 1 (1998).

(7) A judge may consult ethics advisory committees, outside counsel, or legal experts concerning the judge's compliance with this Code. Such consultations are not subject to the restrictions of subsection (a) (2).

Rule 2.10. Judicial Statements on Pending and Impending Cases

(a) A judge shall not make any public statement that might reasonably be expected to affect the outcome or to impair the fairness of a matter pending or impending in any court or make any nonpublic statement that might substantially interfere with a fair trial or hearing.

(b) A judge shall not, in connection with cases, controversies, or issues that are likely to come before the court, make pledges, promises, or commitments that are inconsistent with the impartial performance of the adjudicative duties of judicial office.

(c) A judge may consult with other judges or court staff, court officials, and others subject to the judge's direction and control whose function is to aid the judge in carrying out the judge's adjudicative responsibilities. However, a judge shall require court staff, court officials, and others subject to the judge's direction and control to refrain from making statements that the judge would be prohibited from making by subsections (a) and (b).

(d) Notwithstanding the restrictions in subsection (a), a judge may make public statements in the course of official duties, may explain court procedures, and may comment on any proceeding in which the judge is a litigant in a personal capacity.

(Effective Jan. 1, 2011.)

COMMENT: (1) This Rule's restrictions on judicial speech are essential to the maintenance of the independence, integrity, and impartiality of the judiciary.

(2) This Rule does not prohibit a judge from commenting on proceedings in which the judge is a litigant in a personal capacity. In cases in which the judge is a litigant in an official capacity, such as a writ of mandamus, the judge must not comment publicly.

Rule 2.11. Disqualification

(a) A judge shall disqualify himself or herself in any proceeding in which the judge's impartiality might reasonably be questioned including, but not limited to, the following circumstances:

(1) The judge has a personal bias or prejudice concerning a party or a party's lawyer, or personal knowledge of facts that are in dispute in the proceeding.

(2) The judge knows that the judge, the judge's spouse or domestic partner, or a person within the third degree of relationship to either of them, or the spouse or domestic partner of such a person is:

(A) a party to the proceeding, or an officer, director, general partner, managing member, or trustee of a party;

(B) acting as a lawyer in the proceeding;

(C) a person who has more than a de minimis interest that could be substantially affected by the proceeding; or

(D) likely to be a material witness in the proceeding.

(3) The judge knows that he or she, individually or as a fiduciary, or the judge's spouse, domestic partner, parent, or child, or any other member of the judge's family residing in the judge's household, has an economic interest in the subject matter in controversy or in a party to the proceeding.

(4) The judge has made a public statement, other than in a court proceeding, judicial decision, or opinion that commits or appears to commit the judge to reach a particular result or rule in a particular way in the proceeding or controversy.

(5) The judge:

(A) served as a lawyer in the matter in controversy or was associated with a lawyer who participated substantially as a lawyer in the matter during such association;

(B) served in governmental employment and in such capacity participated personally and substantially as a lawyer or public official concerning the proceeding or has publicly expressed in such capacity an opinion concerning the merits of the particular matter in controversy; or

(C) was a material witness concerning the matter.

(b) A judge shall keep informed about the judge's personal and fiduciary economic interests and make a reasonable effort to keep informed about the personal economic interests of the judge's spouse or domestic partner and minor children residing in the judge's household.

(c) A judge subject to disqualification under this Rule, other than for bias or prejudice under subsection (a) (1), may ask the parties and their lawyers to consider, outside the presence of the judge and court personnel, whether to waive disqualification, provided that the judge shall disclose on the record the basis of such disqualification. If, following the disclosure, the parties and lawyers agree, either in writing or on the record before another judge, that the judge should not be disqualified, the judge may participate in the proceeding.

(d) Notwithstanding the foregoing, a judge may contribute to a client security fund maintained under the auspices of the court, and such contribution will not require that the judge disqualify himself or herself from service on such a client security fund committee or from participation in a lawyer disciplinary proceeding or in any matter concerning restitution or subrogation relating to such a client security fund.

(e) A judge is not automatically disqualified from sitting on a proceeding merely because a lawyer or party to the proceeding has filed a lawsuit against the judge or filed a complaint against the judge with the Judicial Review Council or an administrative agency. When the judge becomes aware pursuant to Practice Book Sections 1-22 (b), 4-8, 66-9, or otherwise that such a lawsuit or complaint has been filed against him or her, the judge shall proceed in accordance with Practice Book Section 1-22 (b) or 66-9.

(f) The fact that the judge was represented or defended by the attorney general in a lawsuit that arises out of the judge's judicial duties shall not be the sole basis for recusal by the judge in lawsuits where the attorney general appears.

(Effective Jan. 1, 2011.) (Amended June 15, 2018, to take effect Jan. 1, 2019; amended June 9, 2023, to take effect Jan. 1, 2024.)

COMMENT: (1) Under this Rule, a judge is disqualified whenever the judge's impartiality might reasonably be questioned, regardless of whether any of the specific provisions of subsections (a) (1) through (5) apply. In many jurisdictions, the term "recusal" is used interchangeably with the term "disqualification."

(2) A judge's obligation not to hear or decide matters in which disqualification is required applies regardless of whether a motion to disqualify is filed.

(3) The rule of necessity may override the rule of disqualification. For example, a judge might be required to participate in judicial review of a judicial salary statute. In matters that require immediate action, the judge must disclose on the record the basis for possible disqualification and make reasonable efforts to transfer the matter to another judge as soon as practicable.

(4) The fact that a lawyer in a proceeding is affiliated with a law firm with which a relative of the judge is affiliated does not itself disqualify the judge. If, however, the judge's impartiality might reasonably be questioned under subsection (a) or the relative is known by the judge to have an interest in the law firm that could be substantially affected by the proceeding under subsection (a) (2) (C), the judge's disqualification is required.

(5) The Rule does not prevent a judge from relying on personal knowledge of historical or procedural facts acquired as a result of presiding over the proceeding itself.

(6) Subsection (d) is intended to make clear that the restrictions imposed by *Dacey* v. *Connecticut Bar Assn.*, 184 Conn. 21, 441 A.2d 49 (1981), or any implications therefrom should not be considered to apply to judges contributing to a client security fund under the auspices of the court.

AMENDMENT NOTE—2011: Comment (7) to Rule 2.11 was adopted by the judges of the Appellate Court on July 15, 2010, and the justices of the Supreme Court on July 1, 2010. It was not, however, adopted by the judges of the Superior Court.

(7) A justice of the Supreme Court or a judge of the Appellate Court is not disqualified from sitting on a proceeding merely because he or she previously practiced law with the law firm or attorney who filed an amicus brief in the matter, or the justice's or judge's spouse, domestic partner, parent, or child, or any other member of the justice's or judge's family residing in his or her household is practicing or has practiced law with such law firm or attorney.

AMENDMENT NOTE—2023: The change to this rule deletes the requirement that the judge, on the record, disclose the fact that a lawsuit or complaint has been filed against him or her, because the burden of disclosure under Section 1-22 and under Section 66-9, is on the party or attorney filing the lawsuit or complaint.

Rule 2.12. Supervisory Duties

(a) A judge shall take reasonable measures to ensure that court staff, court officials, and others subject to the judge's direction and control act in a manner consistent with the judge's obligations under this Code.

(b) A judge with supervisory authority for the performance of other judges shall take reasonable measures to ensure that those judges properly discharge their judicial responsibilities, including the prompt disposition of matters before them.

(Effective Jan. 1, 2011.)

COMMENT: (1) A judge is responsible for his or her own conduct and for the conduct of others, such as staff, when those persons are acting at the judge's direction or control. A judge may not direct court personnel to engage in conduct on the judge's behalf or as the judge's representative when such conduct would violate the Code if undertaken by the judge.

(2) Public confidence in the judicial system depends on timely justice. To promote the efficient administration of justice, a judge with supervisory authority must take the steps needed to ensure that judges under his or her supervision administer their workloads promptly.

Rule 2.13. Administrative Appointments

(a) In making or facilitating administrative appointments, a judge:

(1) shall act impartially and on the basis of merit; and

(2) shall avoid nepotism, favoritism, and unnecessary appointments.

(b) A judge shall not approve compensation of appointees beyond the fair value of services rendered.

(Effective Jan. 1, 2011.)

COMMENT: (1) Appointees of a judge include, but are not limited to, assigned counsel, officials such as referees, commissioners, special masters, receivers, and guardians, and personnel such as clerks, secretaries, and judicial marshals. Consent by the parties to an appointment or an award of compensation does not relieve the judge of the obligation prescribed by subsection (a).

(2) Unless otherwise defined by law, nepotism is the appointment or hiring of any relative within the third degree of relationship of either the judge or the judge's spouse or domestic partner, or the spouse or domestic partner of such relative.

Rule 2.14. Disability and Impairment

A judge having a reasonable belief that the performance of a lawyer or another judge is impaired by drugs or alcohol or by a mental, emotional, or physical condition, shall take appropriate action, which may include notifying appropriate judicial authorities or a confidential referral to a lawyer or judicial assistance program.

(Effective Jan. 1, 2011.)

COMMENT: (1) "Appropriate action" means action intended and reasonably likely to help the judge or lawyer in question address the problem. Depending on the circumstances, appropriate action may include, but is not limited to, speaking directly to the impaired person, notifying an individual with supervisory responsibility over the impaired person, or making a referral to an assistance program.

(2) Taking or initiating corrective action by way of notifying judicial administrators or referral to an assistance program may satisfy a judge's responsibility under this Rule. Assistance programs have many approaches for offering help to impaired judges and lawyers, such as intervention, counseling, or referral to appropriate health care professionals. Depending on the gravity of the conduct that has come to the judge's attention, however, the judge may be required to take other action, such as reporting the impaired judge or lawyer to the appropriate authority, agency, or body. See Rule 2.15.

(3) A client security fund has been established to promote public confidence in the judicial system and the integrity of the legal profession by, among other things, a lawyers assistance program providing crisis intervention and referral assistance to attorneys admitted to the practice of law in this state who suffer from alcohol or other substance abuse problems or gambling problems or who have behavioral health problems. See Practice Book Section 2-68.

Rule 2.15. Responding to Judicial and Lawyer Misconduct

(a) A judge having knowledge that another judge has committed a violation of this Code that raises a substantial question regarding the judge's honesty, trustworthiness, or fitness as a judge in other respects shall take appropriate action including informing the appropriate authority.

(b) A judge having knowledge that a lawyer has committed a violation of the Rules of Professional Conduct that raises a substantial question regarding the lawyer's honesty, trustworthiness, or fitness as a lawyer in other respects shall take appropriate action including informing the appropriate authority.

(c) A judge who receives information indicating a substantial likelihood that another judge has committed a violation of this Code shall take appropriate action.

(d) A judge who receives information indicating a substantial likelihood that a lawyer has committed a violation of the Rules of Professional Conduct shall take appropriate action.

(e) A judge is not required to disclose information gained by the judge while serving as a member of a committee that renders assistance to ill or impaired judges or lawyers or while serving as a member of a bar association professional ethics committee or the Judicial Branch Committee on Judicial Ethics.

(Effective Jan. 1, 2011.)

COMMENT: (1) Taking appropriate action under the circumstances to address known misconduct is a judge's obligation. Except as otherwise provided in subsection (e), subsections (a) and (b) impose an obligation on the judge to report to the appropriate disciplinary authority the known misconduct of another judge or a lawyer that raises a substantial question regarding the honesty, trustworthiness, or fitness of that judge or lawyer. Ignoring or denying known misconduct among one's judicial colleagues or members of the legal profession undermines a judge's responsibility to participate in efforts to ensure public respect for the justice system. This Rule limits the reporting obligation to those offenses that an independent judiciary must vigorously endeavor to prevent.

(2) A judge who does not have actual knowledge that another judge or a lawyer may have committed misconduct, but receives information indicating a substantial likelihood of such misconduct, is required to take appropriate action under subsections (c) and (d), except as otherwise provided in subsection (e). Appropriate action may include, but is not limited to, communicating directly with the judge who may have violated this Code, communicating with a supervising judge, or reporting the suspected violation to the appropriate authority or other agency or body.

(3) Similarly, actions to be taken in response to information indicating that a lawyer has committed a violation of the Rules of Professional Conduct may include, but are not limited to, communicating directly with the lawyer who may have committed the violation or reporting the suspected violation to the appropriate authority or other agency or body.

Rule 2.16. Cooperation with Disciplinary Authorities

(a) A judge shall cooperate and be candid and honest with judicial and lawyer disciplinary agencies.

(b) A judge shall not retaliate, directly or indirectly, against a person known or suspected to have assisted or cooperated with an investigation of a judge or a lawyer.

(Effective Jan. 1, 2011.)

COMMENT: Cooperation with investigations and proceedings of judicial and lawyer discipline agencies, as required in subsection (a), instills confidence in judges' commitment to the integrity of the judicial system and the protection of the public.

Canon 3. A Judge Shall Conduct the Judge's Personal and Extrajudicial Activities To Minimize the Risk of Conflict with the Obligations of Judicial Office.

Rule 3.1. Extrajudicial Activities in General

A judge may engage in extrajudicial activities, except as prohibited by law. However, when engaging in extrajudicial activities, a judge shall not:

(1) participate in activities that will interfere with the proper performance of the judge's judicial duties;

(2) participate in activities that will lead to frequent disqualification of the judge;

(3) participate in activities that would appear to a reasonable person to undermine the judge's independence, integrity, or impartiality;

(4) engage in conduct that would appear to a reasonable person to be coercive; or

(5) make use of court premises, staff, stationery, equipment, or other resources, except for incidental use or for activities that concern the law, the legal system, or the administration of justice, or unless such additional use is permitted by law.

(Effective Jan. 1, 2011.)

COMMENT: (1) To the extent that time permits, and judicial independence and impartiality are not compromised, judges are encouraged to engage in appropriate extrajudicial activities. Judges are uniquely qualified to engage in extrajudicial activities that concern the law, the legal system, and the administration of justice, such as by speaking, writing, teaching, or participating in scholarly research projects. In addition, judges are permitted and encouraged to engage in educational, religious, charitable, fraternal or civic extrajudicial activities not conducted for profit, even when the activities do not involve the law. See Rule 3.7.

(2) Participation in both law related and other extrajudicial activities helps integrate judges into their communities and furthers public understanding of and respect for courts and the judicial system.

(3) Discriminatory actions and expressions of bias or prejudice by a judge, even outside the judge's official or judicial actions, are likely to appear to a reasonable person to call into question the judge's integrity and impartiality. Examples include jokes or other remarks that demean individuals based on their race, sex, gender, religion, national origin, ethnicity, disability, age, sexual orientation, or socioeconomic status. For the same reason, a judge's extrajudicial activities must not be conducted in connection or affiliation with an organization that practices unlawful discrimination. See Rule 3.6.

(4) While engaged in permitted extrajudicial activities, judges must not coerce others or take action that would reasonably be perceived as coercive. For example, depending on the circumstances, a judge's solicitation of contributions or memberships for an organization, even as permitted by Rule 3.7 (a), might create the risk that the person solicited would feel obligated to respond favorably or would do so to curry favor with the judge.

Rule 3.2. Appearances before Governmental Bodies and Consultation with Government Officials

A judge shall not appear voluntarily at a public hearing before, or otherwise consult with, an executive or a legislative body or official, except:

(1) in connection with matters concerning the law, the legal system, or the administration of justice;

(2) in connection with matters about which the judge acquired knowledge or expertise in the course of the judge's judicial duties; or

(3) when the judge is acting in a matter involving the judge's legal or economic interests or when the judge is acting in a fiduciary capacity.

(Effective Jan. 1, 2011.)

COMMENT: (1) Judges possess special expertise in matters of law, the legal system, and the administration of justice and may properly share that expertise with governmental bodies and executive or legislative branch officials.

(2) In appearing before governmental bodies or consulting with government officials, judges must be mindful that they remain subject to other provisions of this Code, such as Rule 1.3, prohibiting judges from using the prestige of office to advance their own or others' interests; Rule 2.10, governing public comment on pending and impending matters; and Rule 3.1 (3), prohibiting judges from engaging in extrajudicial activities that would appear to a reasonable person to undermine the judge's independence, integrity, or impartiality.

(3) In general, it would be an unnecessary and unfair burden to prohibit judges from appearing before governmental bodies or consulting with government officials on matters that are likely to affect them as private citizens, such as zoning proposals affecting their real property. In engaging in such activities, however, a judge should state affirmatively that the judge is not acting in his or her official capacity and must otherwise exercise caution to avoid using the prestige of judicial office.

Rule 3.3. Testifying as a Character Witness

A judge shall not testify as a character witness in a judicial, administrative, or other adjudicatory proceeding or otherwise vouch for the character of a person in a legal proceeding, except when duly summoned.

(Effective Jan. 1, 2011.)

COMMENT: A judge who, without being duly summoned, testifies as a character witness abuses the prestige of judicial office to advance the interests of another. See Rule 1.3. Except in unusual circumstances where the demands of justice require, a judge should discourage a party from requiring the judge to testify as a character witness.

Rule 3.4. Appointments to Governmental Positions

A judge shall not accept appointment to a governmental committee, board, commission, or other governmental position, unless it is one that concerns the law, the legal system, or the administration of justice.

(Effective Jan. 1, 2011.)

COMMENT: (1) Rule 3.4 implicitly acknowledges the value of judges accepting appointments to entities that concern the law, the legal system, or the administration of justice. Even in such instances, however, a judge should assess the appropriateness of accepting an appointment, paying particular attention to the subject matter of the appointment and the availability and allocation of judicial resources, including the judge's time commitments, and giving due regard to the requirements of the independence and impartiality of the judiciary.

(2) A judge may represent his or her country, state, or locality on ceremonial occasions or in connection with historical, educational, or cultural activities. Such representation does not constitute acceptance of a government position.

(3) This rule is intended to prohibit a judge from participation in governmental committees, boards, commissions or other governmental positions that make or implement public policy unless they concern the law, the legal system or the administration of justice.

Rule 3.5. Use of Confidential Information

A judge shall not intentionally disclose or use confidential information acquired in a judicial capacity for any purpose unrelated to the judge's judicial duties unless the judge is acting on information necessary to protect the health or safety of the judge, a member of the judge's family, court personnel, a judicial officer or any other person if consistent with other provisions of this Code.

(Effective Jan. 1, 2011.)

COMMENT: In the course of performing judicial duties, a judge may acquire information of commercial or other value that is unavailable to the public. The judge must not reveal or use such information for personal gain or for any purpose unrelated to his or her judicial duties.

Rule 3.6. Affiliation with Discriminatory Organizations

(a) A judge shall not hold membership in any organization that practices unlawful discrimination on the basis of race, sex, gender, religion, national origin, ethnicity, physical or mental disability, or sexual orientation. When a judge learns that an organization to which the judge belongs engages in unlawful discrimination, the judge must resign immediately from the organization.

(b) A judge shall not use the benefits or facilities of an organization if the judge knows or should know that the organization practices unlawful discrimination on one or more of the bases identified in subsection (a). A judge's attendance at an event in a facility of an organization that the judge is not permitted to join is not a violation of this Rule when the judge's attendance is an isolated event that could not reasonably be perceived as an endorsement of the organization's practices.

(Effective Jan. 1, 2011.)

Rule 3.7. Participation in Educational, Religious, Charitable, Fraternal, or Civic Organizations and Activities

(a) Subject to the requirements of Rule 3.1, a judge may participate in activities sponsored by organizations or governmental entities concerned with the law, the legal system, or the administration of justice, and those sponsored by or on

behalf of educational, religious, charitable, fraternal, or civic organizations not conducted for profit including, but not limited to, the following activities:

(1) assisting such an organization or entity in planning related to fund-raising and participating in the management and investment of the organization's or entity's funds;

(2) soliciting contributions for such an organization or entity, but only from members of the judge's family, or from judges over whom the judge does not exercise supervisory or appellate authority;

(3) soliciting membership for such an organization or entity, even though the membership dues or fees generated may be used to support the objectives of the organization or entity but only if the organization or entity is concerned with the law, the legal system, or the administration of justice;

(4) appearing or speaking at, receiving an award or other recognition at, being featured on the program of, and permitting his or her title to be used in connection with an event of such an organization or entity, but if the event serves a fund-raising purpose, the judge may participate only if the event concerns the law, the legal system, or the administration of justice;

(5) making recommendations to such a public or private fund-granting organization or entity in connection with its programs and activities but only if the organization or entity is concerned with the law, the legal system, or the administration of justice; and

(6) serving as an officer, director, trustee, or nonlegal advisor of such an organization or entity, unless it is likely that the organization or entity:

(A) will be engaged in proceedings that would ordinarily come before the judge; or

(B) will frequently be engaged in adversary proceedings in the court of which the judge is a member or in any court subject to the appellate jurisdiction of the court of which the judge is a member.

(b) A judge may encourage lawyers to provide pro bono publico legal services.

(Effective Jan. 1, 2011.)

COMMENT: (1) The activities permitted by subsection (a) generally include those sponsored by or undertaken on behalf of public or private not-for-profit educational institutions and other not-for-profit organizations, including law related, charitable, and other organizations.

(2) Even for law related organizations, a judge should consider whether the membership and purposes of the organization, or the nature of the judge's participation in or association with the organization, would conflict with the judge's obligation to refrain from activities that reflect adversely on a judge's independence, integrity, and impartiality.

(3) Mere attendance at an event, whether or not the event serves a fund-raising purpose, does not constitute a violation of subsection (a) (4). It is also generally permissible for a judge to serve as an usher or a food server or preparer, or to perform similar functions, at fund-raising events sponsored by educational, religious, charitable, fraternal, or civic organizations. Such activities are not solicitation and do not present an element of coercion or abuse the prestige of judicial office.

(4) Identification of a judge's position in educational, religious, charitable, fraternal, or civic organizations on letterhead used for fund-raising or membership solicitation does not violate this Rule. The letterhead may list the judge's title or judicial office if comparable designations are used for other persons.

(5) In addition to appointing lawyers to serve as counsel for indigent parties in individual cases, a judge may promote broader access to justice by encouraging lawyers to participate in pro bono publico legal services if, in doing so, the judge does not employ coercion or abuse the prestige of judicial office. Such encouragement may take many forms, including providing lists of available programs, training lawyers to do pro bono publico legal work, and participating in events recognizing lawyers who have done pro bono publico work.

Rule 3.8. Appointments to Fiduciary Positions

(a) A judge shall not accept appointment to serve in a fiduciary position, such as executor, administrator, trustee, guardian, attorney in fact, or other personal representative, except for the estate, trust, or person of a member of the judge's family, and then only if such service will not interfere with the proper performance of judicial duties.

(b) A judge shall not serve in a fiduciary position if the judge as fiduciary will likely be engaged in proceedings that would ordinarily come before the judge or if the estate, trust, or ward becomes involved in adversary proceedings in the court on which the judge serves or one under its appellate jurisdiction.

(c) A judge acting in a fiduciary capacity shall be subject to the same restrictions on engaging in financial activities that apply to a judge personally.

(d) If a person who is serving in a fiduciary position becomes a judge, he or she must comply with this Rule as soon as reasonably practicable but in no event later than one year after becoming a judge.

(Effective Jan. 1, 2011.)

COMMENT: A judge should recognize that other restrictions imposed by this Code may conflict with a judge's obligations as a fiduciary; in such circumstances, a judge should resign as fiduciary. For example, serving as a fiduciary might require frequent disqualification of a judge under Rule 2.11 because a judge is deemed to have an economic interest in shares of stock held by a trust if the amount of stock held is more than de minimis.

Rule 3.9. Service as Arbitrator or Mediator

A judge shall not act as an arbitrator or a mediator or perform other judicial functions apart from the judge's official duties unless expressly authorized by law.

(Effective Jan. 1, 2011.)

COMMENT: This Rule does not prohibit a judge from participating in arbitration, mediation, or settlement conferences performed as part of official judicial duties. Rendering dispute resolution services apart from those duties, whether or not for economic gain, is prohibited unless it is expressly authorized by law.

Rule 3.10. Practice of Law

Except as provided herein, a judge shall not practice law. A judge may act as a self-represented party and may, without compensation, give legal advice to and draft or review documents for a member of the judge's family but is prohibited from serving as the family member's lawyer in any forum.

(Effective Jan. 1, 2011.)

COMMENT: A judge may act as a self-represented party in all legal matters, including matters involving litigation and matters involving appearances before or other dealings with governmental bodies. A judge must not use the prestige of office to advance the judge's personal or family interests. See Rule 1.3.

Rule 3.11. Financial, Business, or Remunerative Activities

(a) A judge may hold and manage investments of the judge and members of the judge's family.

(b) A judge shall not serve as an officer, director, manager, general partner or advisor of any business entity except for:

(1) a business closely held by the judge or members of the judge's family; or

(2) a business entity primarily engaged in investment of the financial resources of the judge or members of the judge's family.

(c) A judge shall not engage in financial activities permitted under subsections (a) and (b) if they will:

(1) interfere with the proper performance of judicial duties;

(2) lead to frequent disqualification of the judge;

(3) involve the judge in frequent transactions or continuing business relationships with lawyers or other persons likely to come before the court on which the judge serves; or

(4) result in violation of other provisions of this Code.

(Effective Jan. 1, 2011.)

COMMENT: (1) Judges are generally permitted to engage in financial activities, including managing real estate and other investments for themselves or for members of their families. Participation in these activities, like participation in other extrajudicial activities, is subject to the requirements of this Code. For example, it would be improper for a judge to spend so much time on business activities that it interferes with the performance of judicial duties. See Rule 2.1. Similarly, it would be improper for a judge to use his or her official title or to appear in judicial robes in business advertising, or to conduct his or her business or financial affairs in such a way that disqualification is frequently required. See Rules 1.3 and 2.11.

(2) As soon as practicable without serious financial detriment, the judge must divest himself or herself of investments and other financial interests that might require frequent disqualification or otherwise violate this Rule.

Rule 3.12. Compensation for Extrajudicial Activities

A judge may accept reasonable compensation for extrajudicial activities permitted by law unless such acceptance would appear to a reasonable person to undermine the judge's independence, integrity, or impartiality.

(Effective Jan. 1, 2011.)

COMMENT: (1) A judge is permitted to accept honoraria, stipends, fees, wages, salaries, royalties, or other compensation for speaking, teaching, writing, and other extrajudicial activities, provided the compensation is reasonable and commensurate with the task performed. The judge should be mindful, however, that judicial duties must take precedence over other activities. See Rule 2.1.

(2) Compensation derived from extrajudicial activities may be subject to public reporting. See Rule 3.15.

Rule 3.13. Acceptance and Reporting of Gifts, Loans, Bequests, Benefits, or Other Things of Value

(a) A judge shall not accept any gifts, loans, bequests, benefits, or other things of value, if acceptance is prohibited by law or would appear to a reasonable person to undermine the judge's independence, integrity, or impartiality.

(b) Unless otherwise prohibited by law, or by subsection (a), a judge may accept the following without publicly reporting such acceptance:

(1) items with little intrinsic value, such as plaques, certificates, trophies, and greeting cards;

(2) gifts, loans, bequests, benefits, or other things of value from friends, relatives, or other persons, including lawyers, whose appearance or interest in a proceeding pending or impending before the judge would in any event require disqualification of the judge under Rule 2.11;

(3) ordinary social hospitality;

(4) commercial or financial opportunities and benefits, including special pricing and discounts, and loans from lending institutions in their regular course of business, if the same opportunities and benefits or loans are made available on the same terms to similarly situated persons who are not judges;

(5) rewards and prizes given to competitors or participants in random drawings, contests, or other events that are open to persons who are not judges;

(6) scholarships, fellowships, and similar benefits or awards, if they are available to similarly situated persons who are not judges, based on the same terms and criteria;

(7) books, magazines, journals, audiovisual materials, and other resource materials supplied by publishers on a complimentary basis for official use; or

(8) gifts, awards, or benefits associated with the business, profession, or other separate activity of a spouse, a domestic partner, or other family member of a judge residing in the judge's household but that incidentally benefit the judge.

(c) Unless otherwise prohibited by law or by subsection (a), a judge may accept the following

items and must report such acceptance to the extent required by Rule 3.15:

(1) gifts incident to a public testimonial;

(2) invitations to the judge and the judge's spouse, domestic partner, or guest to attend without charge:

(A) an event associated with a bar related function or other activity relating to the law, the legal system, or the administration of justice; or

(B) an event associated with any of the judge's educational, religious, charitable, fraternal or civic activities permitted by this Code, if the same invitation is offered to nonjudges who are engaged in similar ways in the activity as is the judge.

(Effective Jan. 1, 2011.)

COMMENT: (1) Whenever a judge accepts a gift or other thing of value without paying fair market value, there is a risk that the benefit might be viewed as intended to influence the judge's decision in a case. Rule 3.13 imposes restrictions on the acceptance of such benefits, according to the magnitude of the risk. Subsection (b) identifies circumstances in which the risk that the acceptance would appear to undermine the judge's independence, integrity, or impartiality is low and explicitly provides that such items need not be publicly reported. As the value of the benefit or the likelihood that the source of the benefit will appear before the judge increases, the judge is either prohibited under subsection (a) from accepting the gift, or required under subsection (c) to publicly report it.

(2) Gift giving between friends and relatives is a common occurrence and ordinarily does not create an appearance of impropriety or cause reasonable persons to believe that the judge's independence, integrity, or impartiality has been compromised. In addition, when the appearance of friends or relatives in a case would require the judge's disqualification under Rule 2.11, there would be no opportunity for a gift to influence the judge's decision making. Subsection (b) (2) places no restrictions on the ability of a judge to accept gifts or other things of value from friends or relatives under these circumstances and does not require public reporting.

(3) Businesses and financial institutions frequently make available special pricing, discounts, and other benefits, either in connection with a temporary promotion or for preferred customers, based on longevity of the relationship, volume of business transacted, and other factors. A judge may freely accept such benefits if they are available to the general public or if the judge qualifies for the special price or discount according to the same criteria as are applied to persons who are not judges. As an example, loans provided at generally prevailing interest rates are not gifts, but a judge could not accept a loan from a financial institution at below-market interest rates unless the same rate was being made available to the general public for a certain period of time or only to borrowers with specified qualifications that the judge also possesses.

(4) Rule 3.13 applies only to acceptance of gifts or other things of value by a judge. Nonetheless, if a gift or other benefit is given to the judge's spouse, domestic partner, or member of the judge's family residing in the judge's household, it may be viewed as an attempt to evade Rule 3.13 and influence the judge indirectly. Where the gift or benefit is being made primarily to such other persons, and the judge is merely an incidental beneficiary, this concern is reduced. A judge should, however, remind family and household members of the restrictions imposed on judges and urge them to take these restrictions into account when making decisions about accepting such gifts or benefits.

Rule 3.14. Reimbursement of Expenses and Waivers of Fees or Charges

(a) Unless otherwise prohibited by Rules 3.1 and 3.13 (a) or other law, a judge may accept reimbursement of necessary and reasonable expenses for travel, food, lodging, or other incidental expenses, or a waiver or partial waiver of fees or charges for registration, tuition, and similar items, from sources other than the judge's employing entity, if the expenses or charges are associated with the judge's participation in extrajudicial activities permitted by this Code.

(b) Reimbursement of expenses for necessary travel, food, lodging, or other incidental expenses shall be limited to the actual costs reasonably incurred by the judge or a reasonable allowance therefor and, when appropriate to the occasion, by the judge's spouse, domestic partner, or guest.

(c) A judge who accepts reimbursement of expenses or waivers or partial waivers of fees or charges on behalf of the judge or the judge's spouse, domestic partner, or guest shall publicly report such acceptance as required by Rule 3.15.

(Effective Jan. 1, 2011.)

COMMENT: (1) Educational, civic, religious, fraternal, and charitable organizations often sponsor meetings, seminars, symposia, dinners, awards ceremonies, and similar events. Judges are encouraged to attend educational programs, as both teachers and participants, in law related and academic disciplines, in furtherance of their duty to remain competent in the law. Participation in a variety of other extrajudicial activity is also permitted and encouraged by this Code.

(2) Not infrequently, sponsoring organizations invite certain judges to attend seminars or other events on a fee-waived or partial-fee-waived basis and sometimes include reimbursement for necessary travel, food, lodging, or other incidental expenses. A judge's decision whether to accept reimbursement of expenses or a waiver or partial waiver of fees or charges in connection with these or other extrajudicial activities must be based on an assessment of all the circumstances. Per diem allowances shall be reasonably related to the actual costs incurred. The judge must undertake a reasonable inquiry to obtain the information necessary to make an informed judgment about whether acceptance would be consistent with the requirements of this Code.

(3) A judge must assure himself or herself that acceptance of reimbursement or fee waivers would not appear to a reasonable person to undermine the judge's independence, integrity, or impartiality. The factors that a judge should consider when deciding whether to accept reimbursement or a fee waiver for attendance at a particular activity include:

(a) whether the sponsor is an accredited educational institution or bar association rather than a trade association or a for-profit entity;

(b) whether the funding comes largely from numerous contributors rather than from a single entity and is earmarked for programs with specific content;

(c) whether the content is related or unrelated to the subject matter of litigation pending or impending before the judge or to matters that are likely to come before the judge;

(d) whether the activity is primarily educational rather than recreational and whether the costs of the event are reasonable and comparable to those associated with similar events sponsored by the judiciary, bar associations, or similar groups;

(e) whether information concerning the activity and its funding sources is available upon inquiry;

(f) whether the sponsor or source of funding is generally associated with particular parties or interests currently appearing or likely to appear in the judge's court, thus possibly requiring disqualification of the judge under Rule 2.11;

(g) whether differing viewpoints are presented; and

(h) whether a broad range of judicial and nonjudicial participants are invited, whether a large number of participants are invited, and whether the program is designed specifically for judges.

Rule 3.15. Reporting Requirements

(a) A judge shall publicly report the amount or value of:

(1) compensation received for extrajudicial activities as permitted by Rule 3.12;

(2) gifts and other things of value as permitted by Rule 3.13 (c), unless the value of such items, alone or in the aggregate with other items received from the same source in the same calendar year, does not exceed $250; and

(3) reimbursement of expenses and waiver of fees or charges permitted by Rule 3.14 (a), unless the amount of reimbursement or waiver, alone or in the aggregate with other reimbursements or waivers received from the same source in the same calendar year, does not exceed $250.

(b) When public reporting is required by subsection (a), a judge shall report the date, place, and nature of the activity for which the judge received any compensation; the description of any gift, loan, bequest, benefit, or other thing of value accepted; and the source of reimbursement of expenses or waiver or partial waiver of fees or charges.

(c) The public report required by subsection (a) shall be made at least annually, except that for reimbursement of expenses and waiver or partial waiver of fees or charges, the report shall be made within thirty days following the conclusion of the event or program.

(d) Reports made in compliance with this Rule shall be filed as public documents in the Office of the Chief Court Administrator or other office designated by law.

(Effective Jan. 1, 2011.)

Canon 4. A Judge Shall Not Engage in Political or Campaign Activity that Is Inconsistent with the Independence, Integrity, or Impartiality of the Judiciary.

Rule 4.1. Political Activities of Judges in General

(a) Except as permitted by law, or by Rules 4.2 and 4.3, a judge shall not:

(1) act as a leader in, or hold an office in, a political organization;

(2) make speeches on behalf of a political organization;

(3) publicly endorse or oppose a candidate for any public office;

(4) solicit funds for, pay an assessment to, or make a contribution to a political organization or a candidate for public office;

(5) attend or purchase tickets for dinners or other events sponsored by a political organization or a candidate for public office;

(6) seek, accept, or use endorsements from a political organization;

(7) knowingly, or with reckless disregard for the truth, make any false or misleading statement in connection with the appointment or reappointment process;

(8) make any statement that would reasonably be expected to affect the outcome or impair the fairness of a matter pending or impending in any court; or

(9) in connection with cases, controversies, or issues that are likely to come before the court, make pledges, promises, or commitments that are inconsistent with the impartial performance of the adjudicative duties of judicial office.

(b) A judge shall take reasonable measures to ensure that other persons do not undertake, on behalf of the judge, any activities prohibited under subsection (a).

(c) A judge should not engage in any other political activity except on behalf of measures to improve the law, the legal system, or the administration of justice.

(Effective Jan. 1, 2011.)

COMMENT:

General Considerations

(1) Even when subject to reappointment or when seeking elevation to a higher office, a judge plays a role different from that of a legislator or executive branch official. Rather than making decisions based on the expressed views or preferences of the public, a judge makes decisions based on the law and the facts of every case. Therefore, in furtherance of this interest, judges must, to the greatest extent possible, be free and appear to be free from political influence and political pressure. This Canon imposes narrowly tailored restrictions on the political activities of all judges and sitting judges seeking reappointment or appointment to a higher judicial office.

Participation in Political Activities

(2) Public confidence in the independence and impartiality of the judiciary is eroded if judges are perceived to be subject to political influence. Although judges may register to vote as members of a political party, they are prohibited by subsection (a) (1) from assuming leadership roles in political organizations.

(3) Subsections (a) (2) and (a) (3) prohibit judges from making speeches on behalf of political organizations or publicly endorsing or opposing candidates for public office, respectively, to prevent them from abusing the prestige of judicial office to advance the interests of others. See Rule 1.3.

(4) Although members of the families of judges are free to engage in their own political activity, including running for public office, there is no "family exception" to the prohibition

in subsection (a) (3) against a judge publicly endorsing candidates for public office. A judge must not become involved in, or publicly associated with, a family member's political activity or campaign for public office. To avoid public misunderstanding, judges should take, and should urge members of their families to take, reasonable steps to avoid any implication that they endorse any family member's candidacy or other political activity.

(5) Judges retain the right to participate in the political process as voters in both primary and general elections.

Statements and Comments Made By a Sitting Judge When Seeking Reappointment for Judicial Office or Elevation to a Higher Judicial Office

(6) Judges must be scrupulously fair and accurate in all statements made by them. Subsection (a) (7) obligates judges to refrain from making statements that are false or misleading or that omit facts necessary to make the communication considered as a whole not materially misleading.

(7) Judges are sometimes the subject of false, misleading, or unfair allegations made by third parties or the media. For example, false or misleading statements might be made regarding the identity, present position, experience, qualifications, or judicial rulings of a judge. In other situations, false or misleading allegations may be made that bear on a judge's integrity or fitness for judicial office. As long as the judge does not violate subsection (a) (7), (a) (8), or (a) (9), the judge may make a factually accurate public response. See Rule 2.10.

(8) Subject to subsection (a) (8), a judge is permitted to respond directly to false, misleading, or unfair allegations made against him or her, although it is preferable for someone else to respond if the allegations relate to a pending case.

(9) Subsection (a) (8) prohibits judges from making comments that might impair the fairness of pending or impending judicial proceedings. This provision does not restrict rulings, statements, or instructions by a judge that may appropriately affect the outcome of a matter.

Pledges, Promises, or Commitments Inconsistent with Impartial Performance of the Adjudicative Duties of Judicial Office

(10) The role of a judge is different from that of a legislator or executive branch official. Sitting judges seeking reappointment or elevation must conduct themselves differently from persons seeking other offices. Narrowly drafted restrictions on the activities of judges provided in Canon 4 allow judges to provide the appointing authority with sufficient information to permit it to make an informed decision.

(11) Subsection (a) (9) makes applicable to judges the prohibition that applies to judges in Rule 2.10 (b), relating to pledges, promises, or commitments that are inconsistent with the impartial performance of the adjudicative duties of judicial office.

(12) The making of a pledge, promise, or commitment is not dependent on, or limited to, the use of any specific words or phrases; instead, the totality of the statement must be examined to determine if a reasonable person would believe that the judge has specifically undertaken to reach a particular result. Pledges, promises, or commitments must be contrasted with statements or announcements of personal views on legal, political, or other issues, which are not prohibited. When making such statements, a judge should acknowledge the overarching judicial obligation to apply and uphold the law, without regard to his or her personal views.

(13) A judge may make promises related to judicial organization, administration, and court management, such as a promise to dispose of a backlog of cases, start court sessions on time, or avoid favoritism in appointments and hiring. A judge may also pledge to take action outside the courtroom, such as working toward an improved jury selection system or advocating for more funds to improve the physical plant and amenities of the courthouse.

(14) Judges may receive questionnaires or requests for interviews from the media and from issue advocacy or other community organizations that seek to learn their views on disputed or controversial legal or political issues. Subsection (a) (13) does not specifically address judicial responses to such inquiries. Depending on the wording and format of such questionnaires, judges' responses might be viewed as pledges, promises, or commitments to perform the adjudicative duties of office other than in an impartial way. To avoid violating subsection (a) (13), therefore, judges who respond to media and other inquiries should also give assurances that they will keep an open mind and will carry out their adjudicative duties faithfully and impartially. Judges who do not respond may state their reasons for not responding, such as the danger that answering might be perceived by a reasonable person as undermining a judge's independence or impartiality or that it might lead to frequent disqualification. See Rule 2.11.

Rule 4.2. Activities of Judges as Candidates for Reappointment or Elevation to Higher Judicial Office

A judge who is a candidate for reappointment or elevation to higher judicial office may:

(a) communicate with the appointing or confirming authority, including any selection, screening, or nominating commission or similar agency; and

(b) seek endorsements for the appointment from any person or organization other than a partisan political organization, provided that such endorsement or the request therefor would not appear to a reasonable person to undermine the judge's independence, integrity or impartiality.

(Effective Jan. 1, 2011.)

COMMENT: (1) When seeking support or when communicating directly with an appointing or confirming authority, a judge must not make any pledges, promises, or commitments that are inconsistent with the impartial performance of the adjudicative duties of the office. See Rule 4.1 (a) (9).

(2) It is never acceptable to seek an endorsement of an advocacy group or a group whose interests have or are likely to come before the judge.

Rule 4.3. Activities of Judges Who Become Candidates for Public Office

(a) Upon becoming a candidate for an elective public office either in a party primary or a general election, a judge shall resign from judicial office, unless permitted by law to continue to hold judicial office. A judge may continue to hold judicial office while being a candidate for election to or serving as a delegate in a state constitutional convention.

(b) Upon becoming a candidate for an appointive public office, a judge is not required to resign

from judicial office, provided that the judge complies with the other provisions of this Code.

(Effective Jan. 1, 2011.)

COMMENT: (1) In campaigns for elective public office, candidates may make pledges, promises, or commitments related to positions they would take and ways they would act if elected to office. Although appropriate in public campaigns, this manner of campaigning is inconsistent with the role of a judge, who must remain fair and impartial to all who come before him or her. The potential for misuse of the judicial office and the political promises that the judge would be compelled to make in the course of campaigning for elective public office together dictate that a judge who wishes to run for such an office must resign upon becoming a candidate.

(2) The "resign to run" rule set forth in subsection (a) ensures that a judge cannot use the judicial office to promote his or her candidacy and prevents postcampaign retaliation from the judge in the event the judge is defeated in the election. When a judge is seeking appointive public office, however, the dangers are not sufficient to warrant imposing the "resign to run" rule. However, the judge should be careful to avoid presiding over matters affecting the entity to which the judge is seeking public office.

CHAPTER AND SECTION HEADINGS OF THE RULES

SUPERIOR COURT—GENERAL PROVISIONS

CHAPTER 1
SCOPE OF RULES

Sec.
1-1. Scope of Rules; Definitions
1-2. Assignments To Take Precedence
1-3. Divisions of Superior Court
1-4. Family Division
1-5. Civil Division
1-6. Criminal Division
1-7. Housing Division (Only in Judicial Districts Specified by Statute)
1-8. Rules To Be Liberally Interpreted
1-9. Publication of Rules; Effective Date
1-9A. —Judiciary Committee; Placement of Rules Information on Judicial Branch Website
1-9B. —Emergency Powers of Rules Committee
1-10. Possession of Electronic Devices in Court Facilities
1-10A. Definition of "Media"
1-10B. Media Coverage of Court Proceedings; In General
1-11. Media Coverage of Criminal Proceedings [Repealed]
1-11A. Media Coverage of Arraignments
1-11B. Media Coverage of Civil Proceedings
1-11C. Media Coverage of Criminal Proceedings
1-11D. Pilot Program To Increase Public Access to Child Protection Proceedings [Repealed]
1-12. Court Opening
1-13. Recess and Adjournment
1-13A. Contempt
1-14. —Criminal Contempt
1-15. —Who May Be Punished [Repealed]
1-16. —Summary Criminal Contempt
1-17. —Deferral of Proceedings
1-18. —Nonsummary Contempt Proceedings
1-19. —Judicial Authority Disqualification in Nonsummary Contempt Proceedings
1-20. —Where No Right to Jury Trial in Nonsummary Proceeding
1-21. —Nonsummary Judgment
1-21A. —Civil Contempt
1-22. Disqualification of Judicial Authority
1-23. Motion for Disqualification of Judicial Authority
1-24. Record of Off-Site Judicial Proceedings
1-25. Actions Subject to Sanctions

CHAPTER 2
ATTORNEYS

Sec.
2-1. County Court Designations concerning Bar Admission Process
2-2. Admission
2-3. Bar Examining Committee
2-4. —Regulations by Bar Examining Committee
2-4A. —Records of Bar Examining Committee
2-5. —Examination of Candidates for Admission
2-5A. —Good Moral Character and Fitness To Practice Law
2-6. —Personnel of Bar Examining Committee
2-7. Number of Times an Applicant May Sit for the Examination
2-8. Qualifications for Admission
2-9. Certification of Applicants Recommended for Admission; Conditions of Admission
2-10. Admission by Superior Court; Admission in Absentia
2-11. Monitoring Compliance with Conditions of Admission; Removal or Modification of Conditions
2-11A. Appeal from Decision of Bar Examining Committee concerning Conditions of Admission
2-12. County Committees on Recommendations for Admission
2-13. Attorneys of Other Jurisdictions; Qualifications and Requirements for Admission
2-13A. Military Spouse Temporary Licensing
2-14. —Action by Bar; Temporary License [Repealed]
2-15. —Permanent License [Repealed]
2-15A. —Authorized House Counsel
2-16. —Attorney Appearing Pro Hac Vice
2-17. Foreign Legal Consultants; Licensing Requirements
2-18. —Filings To Become Foreign Legal Consultant
2-19. —Scope of Practice of Foreign Legal Consultants
2-20. —Disciplinary Provisions regarding Foreign Legal Consultants
2-21. —Affiliation of Foreign Legal Consultant with the Bar of the State of Connecticut
2-22. Disposition of Fees for Admission to the Bar
2-23. Roll of Attorneys
2-24. Notice by Attorney of Admission in Other Jurisdictions
2-25. Notice by Attorney of Disciplinary Action in Other Jurisdictions
2-26. Notice by Attorney of Change in Address
2-27. Clients' Funds; Attorney Registration
2-27A. Minimum Continuing Legal Education
2-27B. Enforcement of Attorney Registration and Minimum Continuing Legal Education; Administrative Suspension
2-28. Overdraft Notification
2-28A. Attorney Advertising; Mandatory Filing
2-28B. —Advisory Opinions
2-29. Grievance Panels
2-30. Grievance Counsel for Panels and Investigators
2-31. Powers and Duties of Grievance Counsel
2-32. Filing Complaints against Attorneys; Action; Time Limitation
2-33. Statewide Grievance Committee
2-34. Statewide Bar Counsel
2-34A. Disciplinary Counsel

2-35. Action by Statewide Grievance Committee or Reviewing Committee
2-36. Action by Statewide Grievance Committee on Request for Review
2-37. Sanctions and Conditions Which May Be Imposed by Committees
2-38. Appeal from Decision of Statewide Grievance Committee or Reviewing Committee Imposing Sanctions or Conditions
2-39. Reciprocal Discipline
2-40. Discipline of Attorneys Found Guilty of Serious Crimes in Connecticut
2-41. Discipline of Attorneys Found Guilty of Serious Crimes in Another Jurisdiction
2-42. Conduct Constituting Threat of Harm to Clients
2-43. Notice by Attorney of Alleged Misuse of Clients' Funds and Garnishments of Lawyers' Trust Accounts
2-44. Power of Superior Court To Discipline Attorneys and To Restrain Unauthorized Practice
2-44A. Definition of the Practice of Law
2-45. —Cause Occurring in Presence of Court
2-46. Suspension of Attorneys Who Violate Support Orders
2-47. Presentments and Unauthorized Practice of Law Petitions
2-47A. Disbarment of Attorney for Misappropriation of Funds
2-47B. Restrictions on the Activities of Deactivated Attorneys
2-48. Designee To Prosecute Presentments
2-49. Restitution
2-50. Records of Statewide Grievance Committee, Reviewing Committee and Grievance Panel
2-51. Costs and Expenses
2-52. Resignation and Waiver of Attorney Facing Disciplinary Investigation
2-53. Reinstatement after Suspension, Disbarment or Resignation
2-54. Publication of Notice of Reprimand, Suspension, Disbarment, Resignation, Placement on Inactive Status or Reinstatement
2-55. Retirement of Attorney—Right of Revocation
2-55A. Retirement of Attorney—Permanent
2-56. Inactive Status of Attorney
2-57. —Prior Judicial Determination of Incompetency or Involuntary Commitment
2-58. —No Prior Determination of Incompetency or Involuntary Commitment
2-59. —Disability Claimed during Course of Disciplinary Proceeding
2-60. —Reinstatement upon Termination of Disability
2-61. —Burden of Proof in Inactive Status Proceedings
2-62. —Waiver of Doctor-Patient Privilege upon Application for Reinstatement
2-63. Definition of Respondent
2-64. Appointment of Attorney To Protect Clients' and Attorney's Interests
2-65. Good Standing of Attorney
2-66. Practice by Court Officials
2-67. Payment of Attorneys by Bank and Trust Companies
2-68. Client Security Fund Established
2-68A. —Crisis Intervention and Referral Assistance
2-69. —Definition of Dishonest Conduct
2-70. —Client Security Fund Fee
2-71. —Eligible Claims
2-72. —Client Security Fund Committee
2-73. —Powers and Duties of Client Security Fund Committee
2-74. —Regulations of Client Security Fund Committee
2-75. —Processing Claims
2-76. —Confidentiality
2-77. —Review of Status of Fund
2-78. —Attorney's Fee for Prosecuting Claim
2-79. —Enforcement of Payment of Fee
2-80. —Restitution by Attorney
2-81. —Restitution and Subrogation
2-82. Admission of Misconduct; Discipline by Consent
2-83. Effective Dates

CHAPTER 3

APPEARANCES

Sec.
3-1. Appearance for Plaintiff on Writ or Complaint in Civil and Family Cases
3-2. Time To File Appearance
3-3. Form and Signing of Appearance
3-4. Filing Appearance
3-5. Service of Appearances on Other Parties
3-6. Appearances for Bail, Detention Hearing or Alternative Arraignment Proceedings Only
3-7. Consequence of Filing Appearance
3-8. Appearance for Represented Party
3-9. Withdrawal of Appearance; Duration of Appearance
3-10. Motion To Withdraw Appearance
3-11. Appearance for Several Parties
3-12. Change in Name, Composition or Membership of a Firm or Professional Corporation
3-13. When Creditor May Appear and Defend
3-14. Legal Interns
3-15. —Supervision of Legal Interns
3-16. —Requirements and Limitations
3-17. —Activities of Legal Intern
3-18. —Certification of Intern
3-19. —Legal Internship Committee [Repealed]
3-20. —Unauthorized Practice
3-21. —Out-of-State Interns [Repealed]

CHAPTER 4

PLEADINGS

Sec.
4-1. Form of Pleading
4-2. Signing of Pleading
4-3. Filing and Endorsing Pleadings
4-4. Electronic Filing
4-5. Notice Required for Ex Parte Temporary Injunctions
4-6. Page Limitations for Briefs, Memoranda of Law and Reply Memoranda
4-7. Personal Identifying Information To Be Omitted or Redacted from Court Records in Civil and Family Matters
4-8. Notice of Complaint or Action Filed against Judicial Authority

CHAPTER 5

TRIALS

Sec.
5-1. Trial Briefs
5-2. Raising Questions of Law Which May Be the Subject of an Appeal
5-3. Administering Oath
5-4. Examination of Witnesses
5-5. Objections to Evidence; Interlocutory Questions; Exceptions Not Required
5-6. Reception of Evidence Objected to
5-7. Marking Exhibits
5-8. Interlocutory Matters
5-9. Citation of Opinion Not Officially Published [Repealed]
5-10. Sanctions for Counsel's Failure To Appear
5-11. Testimony of Party or Child in Family Relations Matter When Protective Order, Restraining Order, Standing Criminal Protective Order or Standing Criminal Restraining Order Issued on Behalf of Party or Child
5-12. Objection to the Use of a Peremptory Challenge

CHAPTER 6

JUDGMENTS

Sec.
6-1. Statement of Decision; When Required
6-2. Judgment Files; Captions and Contents
6-3. —Preparation; When; By Whom; Filing
6-4. —Signing of Judgment File
6-5. —Notation of Satisfaction

CHAPTER 7

CLERKS; FILES AND RECORDS

Sec.
7-1. Dockets; Clerk's Records
7-2. General Duties of Clerk
7-3. Financial Accounts
7-4. Daybook
7-4A. Identification of Cases
7-4B. Motion To File Record under Seal
7-4C. Lodging a Record
7-5. Notice To Attorneys and Self-Represented Parties
7-6. Filing of Papers
7-7. Custody of Files
7-8. Lost File or Pleading
7-9. Completing Records
7-10. Retention and Destruction of Files and Records; Withdrawals, Dismissals, Satisfactions of Judgment
7-11. —Judgments on the Merits—Stripping and Retention
7-12. —Actions Affecting the Title to Land
7-13. —Criminal/Motor Vehicle Files and Records
7-14. —Reports from Adult Probation and Family Division
7-15. —Retention Ordered by Chief Court Administrator; Transfer to State Library
7-16. —Motion To Prevent Destruction of File
7-17. Clerks' Offices
7-18. Hospital, Psychiatric and Medical Records
7-19. Issuing Subpoenas for Witnesses on Behalf of Self-Represented Litigants
7-20. Records of Short Calendar Matters
7-21. Removing Exhibits and Other Papers

SUPERIOR COURT—PROCEDURE IN CIVIL MATTERS

CHAPTER 8

COMMENCEMENT OF ACTION

Sec.
8-1. Process
8-2. Waiver of Court Fees and Costs
8-3. Bond for Prosecution [Repealed]
8-3A. Bond for Prosecution or Recognizance
8-4. Certification of Financial Responsibility [Repealed]
8-5. Remedy for Failure To Give Bond [Repealed]
8-6. Bond Ordered by Judicial Authority [Repealed]
8-7. Request To Furnish Bond [Repealed]
8-8. Member of Community Defending To Give Bond [Repealed]
8-9. Bond by Nonresident in Realty Action [Repealed]
8-10. Surety Company Bond Acceptable
8-11. Action on Probate Bond; Endorsement of Writ [Repealed]
8-12. Renewal of Bond

CHAPTER 9

PARTIES

Sec.
9-1. Continuance for Absent or Nonresident Defendant
9-2. Defense by Garnishee; Continuance
9-3. Joinder of Parties and Actions; Interested Persons as Plaintiffs
9-4. —Joinder of Plaintiffs in One Action
9-5. —Consolidation of Actions
9-6. —Interested Persons as Defendants
9-7. Class Actions; Prerequisites to Class Actions
9-8. —Class Actions Maintainable
9-9. —Procedure for Class Certification and Management of Class
9-10. —Orders To Ensure Adequate Representation
9-11. Executor, Administrator or Trustee of Express Trust
9-12. Personal Representatives of Cocontractor
9-13. Persons Liable on Same Instrument
9-14. Defendants Alternately Liable
9-15. Assignee of Part Interest

9-16. Assignment Pending Suit
9-17. Unsatisfied Judgment against One Defendant
9-18. Addition or Substitution of Parties; Additional Parties Summoned in by Court
9-19. —Nonjoinder and Misjoinder of Parties
9-20. —Substituted Plaintiff
9-21. —Counterclaim; Third Parties
9-22. —Motion To Cite in New Parties
9-23. Suit by Real Party in Interest
9-24. Change of Name by Minor Child
9-25. Action on Bond to Municipal Officer

CHAPTER 10

PLEADINGS

Sec.
10-1. Fact Pleading
10-2. Pleading Legal Effect
10-3. Allegations Based on Statutory Grounds; Foreign Law
10-4. Implied Duty
10-5. Untrue Allegations or Denials
10-6. Pleadings Allowed and Their Order
10-7. Waiving Right To Plead
10-8. Time To Plead
10-9. Common Counts
10-10. Supplemental Pleadings; Counterclaims
10-11. Impleading of Third Party by Defendant in Civil Action
10-12. Service of the Pleading and Other Papers; Responsibility of Counsel or Self-Represented Party: Documents and Persons To Be Served
10-13. —Method of Service
10-14. —Proof of Service
10-15. —Numerous Defendants
10-16. —Several Parties Represented by One Attorney
10-17. —Service by Indifferent Person
10-18. Penalty for Failing To Plead
10-19. Implied Admissions
10-20. Contents of Complaint
10-21. Joinder of Causes of Action
10-22. —Transactions Connected with Same Subject
10-23. —Joinder of Torts
10-24. —Legal and Equitable Relief
10-25. Alternative Relief
10-26. Separate Counts
10-27. Claim for Equitable Relief
10-28. Interest and Costs Need Not Be Claimed
10-29. Exhibits as Part of Pleading
10-30. Motion To Dismiss; Grounds
10-31. —Opposition; Date for Hearing Motion To Dismiss
10-32. —Waiver Based on Certain Grounds
10-33. —Waiver and Subject Matter Jurisdiction
10-34. —Further Pleading by Defendant
10-35. Request To Revise
10-36. —Reasons in Request To Revise
10-37. —Granting of and Objection to Request To Revise
10-38. —Waiver of Pleading Revisions
10-39. Motion To Strike; Grounds
10-40. —Opposition; Date for Hearing Motion To Strike
10-41. —Reasons in Motion To Strike [Repealed]
10-42. —Memorandum of Law—Motion and Objection [Repealed]
10-43. —When Memorandum of Decision Required on Motion To Strike
10-44. —Substitute Pleading; Judgment
10-45. —Stricken Pleading Part of Another Cause or Defense
10-46. The Answer; General and Special Denial
10-47. —Evasive Denials
10-48. —Express Admissions and Denials To Be Direct and Specific
10-49. —Suit by Corporation; Admission by General Denial
10-50. —Denials; Special Defenses
10-51. —Several Special Defenses
10-52. —Admissions and Denials in Special Defense
10-53. —Pleading Contributory Negligence
10-54. —Pleading of Counterclaim and Setoff
10-55. —Withdrawal of Action after Counterclaim
10-56. Subsequent Pleadings; Plaintiff's Response to Answer
10-57. —Matter in Avoidance of Answer
10-58. —Pleadings Subsequent to Reply
10-59. Amendments; Amendment as of Right by Plaintiff
10-60. —Amendment by Consent, Order of Judicial Authority, or Failure To Object
10-61. —Pleading after Amendment
10-62. —Variance; Amendment
10-63. —Amendment; Legal or Equitable Relief
10-64. —Amendment Calling for Legal Relief; Jury Trial
10-65. —Amending Contract to Tort and Vice Versa
10-66. —Amendment of Amount in Demand
10-67. —Amendment of Claim against Insolvent Estate
10-68. Pleading Special Matters; Pleading Notice
10-69. —Foreclosure Complaint; Pleading Encumbrances
10-70. —Foreclosure of Municipal Liens
10-71. —Action on Probate Bond
10-72. —Action by Assignee of Chose in Action
10-73. —Pleading Charters
10-74. —Wrongful Sale; Wrongful Conversion
10-75. —Goods Sold; Variance
10-76. —Probate Appeals; Reasons of Appeal
10-77. —Appeals from Commissioners
10-78. —Pleading Collateral Source Payments
10-79. —Pleading Issues of Policy Limitations

CHAPTER 11

MOTIONS, REQUESTS, ORDERS OF NOTICE AND SHORT CALENDAR

Sec.
11-1. Form of Motion and Request
11-2. Definition of "Motion" and "Request"
11-3. Motion for Misjoinder of Parties
11-4. Applications for Orders of Notice
11-5. Subsequent Orders of Notice; Continuance
11-6. Notice by Publication
11-7. Attestation; Publication; Proof of Compliance
11-8. Orders of Notice Directed outside of the United States of America
11-9. Disclosure of Previous Applications
11-10. Requirement That Memorandum of Law Be Filed with Certain Motions
11-11. Motions Which Delay the Commencement of the Appeal Period or Cause the Appeal Period To Start Again
11-12. Motion To Reargue
11-13. Short Calendar; Need for List; Case Assigned for Trial; Reclaims
11-14. —Short Calendar; Frequency; Time; Lists

11-15. —Short Calendar; Assignments Automatic
11-16. —Continuances when Counsel's Presence or Oral Argument Required
11-17. —Transfers on Short Calendar
11-18. —Oral Argument of Motions in Civil Matters
11-19. —Time Limit for Deciding Short Calendar Matters
11-20. Closure of Courtroom in Civil Cases
11-20A. Sealing Files or Limiting Disclosure of Documents in Civil Cases
11-20B. —Documents Containing Personal Identifying Information
11-21. Motions for Attorney's Fees

CHAPTER 12

TRANSFER OF ACTIONS

Sec.
12-1. Procedure for Transfer
12-2. Transfer of Action Filed in Wrong Location of Correct Court
12-3. Transmission of Files and Papers

CHAPTER 13

DISCOVERY AND DEPOSITIONS

Sec.
13-1. Definitions
13-2. Scope of Discovery; In General
13-3. —Materials Prepared in Anticipation of Litigation; Statements of Parties; Privilege Log
13-4. —Experts
13-5. —Protective Order
13-6. Interrogatories; In General
13-7. —Answers to Interrogatories
13-8. —Objections to Interrogatories
13-9. Requests for Production, Inspection and Examination; In General
13-10. —Responses to Requests for Production; Objections
13-11. —Physical or Mental Examination
13-11A. —Motion for Authorization To Obtain Protected Health Information
13-12. Disclosure of Amount and Provisions of Insurance Liability Policy
13-12A. Disclosure of Medicare Enrollment, Eligibility and Payments Received
13-13. Disclosure of Assets in Cases in Which Prejudgment Remedy Sought
13-14. Order for Compliance; Failure To Answer or Comply with Order
13-15. Continuing Duty To Disclose
13-16. Orders by Judge
13-17. Disclosure before Court or Committee
13-18. Disclosures in Equity
13-19. Disclosure of Defense
13-20. Discovery Sought by Judgment Creditor
13-21. Discovery outside of the United States of America
13-22. Admission of Facts and Execution of Writings; Requests for Admission
13-23. —Answers and Objections to Requests for Admission
13-24. —Effect of Admission
13-25. —Expenses on Failure To Admit
13-26. Depositions; In General
13-27. —Notice of Deposition; General Requirements; Special Notice; Nonstenographic Recording; Production of Documents and Things; Deposition of Organization
13-28. —Persons before Whom Deposition May Be Taken for Use in Proceedings in this State
13-28A. —Deposition Subpoenas
13-29. —Place of Deposition
13-30. —Deposition Procedure
13-31. —Use of Depositions in Court Proceedings
13-32. Agreements regarding Discovery and Deposition Procedure
13-33. Claim of Privilege or Protection after Production

CHAPTER 14

DOCKETS, TRIAL LISTS, PRETRIALS AND ASSIGNMENT LISTS

Sec.
14-1. Claim for Statutory Exemption or Stay by Reason of Bankruptcy
14-2. Claim for Exemption from Docket Management Program by Reason of Bankruptcy
14-3. Dismissal for Lack of Diligence
14-4. Maintenance of Case Records
14-5. Definition of Administrative Appeals
14-6. Administrative Appeals Are Civil Actions
14-7. Administrative Appeals; Exceptions
14-7A. —Administrative Appeals Brought Pursuant to General Statutes § 4-183 et seq.; Appearances; Records, Briefs and Scheduling
14-7B. Administrative Appeals from Municipal Land Use, Historic and Resource Protection Agencies; Records, Briefs and Scheduling; Withdrawal or Settlement
14-8. Certifying That Pleadings Are Closed
14-9. Privileged Cases in Assignment for Trial
14-10. Claims for Jury
14-11. Pretrial; Assignment for Pretrial
14-12. —When Case Not Disposed of at Pretrial
14-13. —Pretrial Procedure
14-14. —Orders at Pretrial
14-15. Assignments for Trial in General
14-16. Methods of Assigning Cases for Trial
14-17. Immediate Trial
14-18. Cases Reached for Trial
14-19. Cases Marked Settled
14-20. Order of Trial
14-21. Clerk To Communicate with Counsel in Cases Assigned for Week Certain
14-22. Assignment for Trial on Motion of Garnishee
14-23. Motions To Continue or Postpone Case Assigned for Trial
14-24. Motion To Postpone; Absent Witness; Missing Evidence
14-25. Availability of Counsel for Trial

CHAPTER 15

TRIALS IN GENERAL; ARGUMENT BY COUNSEL

Sec.
15-1. Order of Trial
15-2. Separate Trials
15-3. Motion in Limine
15-4. Medical Evidence

15-5. Order of Parties Proceeding at Trial
15-6. Opening Argument
15-7. Time Limit on Argument
15-8. Dismissal in Court Cases for Failure To Make Out a Prima Facie Case

CHAPTER 16

JURY TRIALS

Sec.
16-1. Jurors Who Are Deaf or Hard of Hearing
16-2. Challenge to Array
16-3. Preliminary Proceedings in Jury Selection
16-4. Disqualification of Jurors and Selection of Panel
16-5. Peremptory Challenges
16-6. Voir Dire Examination
16-7. Juror Questions and Note-taking
16-8. Oath and Admonitions to Trial Jurors
16-9. Questions of Law and Fact
16-10. Order by Judicial Authority for Jury Trial of Factual Issues in Equitable Actions
16-11. Cases Presenting Both Legal and Equitable Issues
16-12. View by Jury of Place or Thing Involved in Case
16-13. Judgment of the Court
16-14. Communications between Parties and Jurors
16-15. Materials To Be Submitted to Jury
16-16. Jury Deliberations
16-17. Jury Returned for Reconsideration
16-18. Interrogatories to the Jury
16-19. Reading of Statement of Amount in Demand or Statement of Claim; Arguing Amount Recoverable
16-20. Requests To Charge and Exceptions; Necessity for
16-21. —Requests To Charge on Specific Claims
16-22. —Filing Requests
16-23. —Form and Contents of Requests To Charge
16-24. —Charge Conference
16-25. Modification of Instructions for Correction or Clarification
16-26. Other Instructions after Additional Instructions
16-27. Jury Request for Review of Testimony
16-28. Jury Request for Additional Instructions
16-29. Deadlocked Jury
16-30. Verdict; Return of Verdict
16-31. —Acceptance of Verdict
16-32. —Poll of Jury after Verdict
16-33. —Discharge of Jury
16-34. —Impeachment of Verdict
16-35. Motions after Verdict: Motions in Arrest of Judgment, To Set Aside Verdict, for Additur or Remittitur, for New Trial, or for Collateral Source Reduction
16-36. Motions To Reduce Verdict [Repealed] (Transferred to Section 17-2A.)
16-37. Reservation of Decision on Motion for Directed Verdict
16-38. Memorandum on Setting Verdict Aside

CHAPTER 17

JUDGMENTS

Sec.
17-1. Judgments in General
17-2. Judgment on Verdict and Otherwise
17-2A. Motions To Reduce Verdict
17-3. Remittitur where Judgment Too Large
17-4. Setting Aside or Opening Judgments
17-4A. Motions for New Trial
17-5. Record of Proceeding; Facts Supporting Judgment To Appear on Record
17-6. Form of Finding
17-7. Special Finding; Request
17-8. —Functions of Special Finding
17-9. —Form and Contents of Special Finding
17-10. Modifying Judgment after Appeal
17-11. Offer of Compromise by Defendant; How Made
17-12. —Acceptance of Defendant's Offer
17-13. —Defendant's Offer Not Accepted
17-14. Offer of Compromise by Plaintiff; How Made
17-14A. —Alleged Negligence of Health Care Provider
17-15. —Acceptance of Plaintiff's Offer
17-16. —Plaintiff's Offer Not Accepted
17-17. —Offer of Compromise and Acceptance Included in Record
17-18. —Judgment where Plaintiff Recovers an Amount Equal to or Greater than Offer
17-19. Procedure where Party Fails To Comply with Order of Judicial Authority or To Appear for Trial
17-20. Motion for Default and Nonsuit for Failure To Appear
17-21. Defaults under Servicemembers Civil Relief Act
17-22. Notice of Judgments of Nonsuit and Default for Failure To Enter an Appearance
17-23. Contract Actions To Pay a Definite Sum where There Is a Default for Failure To Appear; Limitations
17-24. —Promise To Pay Liquidated Sum
17-25. —Motion for Default and Judgment; Affidavit of Debt; Military Affidavit; Bill of Costs; Debt Instrument
17-26. —Order for Weekly Payments
17-27. —Entry of Judgment
17-28. —Enforcement of Judgment
17-29. —Default Motion Not on Short Calendar
17-30. Summary Process; Default and Judgment for Failure To Appear or Plead
17-31. Procedure where Party Is in Default
17-32. Where Defendant Is in Default for Failure To Plead
17-33. When Judgment May Be Rendered after a Default
17-33A. Motions for Judgment of Foreclosure
17-34. Hearings in Damages; Notice of Defenses
17-35. —Requirements of Notice; Time
17-36. —Notice by Clerk
17-37. —Notice of Defense To Be Specific
17-38. —Amending Notice of Defense
17-39. —No Reply Allowed
17-40. —Evidence To Reduce Damages
17-41. Relief Permissible on Default
17-42. Opening Defaults where Judgment Has Not Been Rendered
17-43. Opening Judgment upon Default or Nonsuit
17-44. Summary Judgments; Scope of Remedy
17-45. —Proceedings upon Motion for Summary Judgment
17-46. —Form of Affidavits
17-47. —When Appropriate Documents Are Unavailable
17-48. —Affidavits Made in Bad Faith
17-49. —Judgment
17-50. —Triable Issue as to Damages Only
17-51. —Judgment for Part of Claim
17-52. Executions
17-53. Summary Process Executions
17-54. Declaratory Judgment; Scope

17-55. —Conditions for Declaratory Judgment
17-56. —Procedure for Declaratory Judgment
17-57. —Costs in Declaratory Judgment
17-58. —Declaratory Judgment Appealable
17-59. —Order of Priorities in Declaratory Judgment

CHAPTER 18

FEES AND COSTS

Sec.
18-1. Vouchers for Court Expenses
18-2. Costs on Appeal from Commissioners
18-3. Costs on Creditor's Appeal
18-4. Eminent Domain; Clerk's Fees
18-5. Taxation of Costs; Appeal
18-6. Costs on Writ of Error
18-7. Costs on Interlocutory Proceedings
18-8. Jury Fee where More than One Trial
18-9. Nonresident Witnesses; Fees
18-10. Witness Fees in Several Suits
18-11. Witness Not Called; Fees
18-12. Costs where Several Issues
18-13. Several Defendants; Costs
18-14. Fees and Costs where Plaintiffs Join or Actions Are Consolidated
18-15. Costs where Both Legal and Equitable Issues
18-16. Costs on Complaint and Counterclaim
18-17. Costs on Counterclaim
18-18. Costs for Exhibits
18-19. Proceedings before Judge; No Costs

CHAPTER 19

REFERENCES

Sec.
19-1. Application of Chapter
19-2. Reference to Committee
19-2A. Reference to Attorney Trial Referee
19-3. Reference to Judge Trial Referee
19-3A. Reference to Special Assignment Probate Judge
19-4. Attorney Trial Referees and Special Assignment Probate Judges; Time To File Report
19-5. Appointment of Committee or Referee
19-6. Effect of Reference
19-7. Pleadings
19-8. Report
19-9. Request for Finding
19-10. Alternative Report
19-11. Amending Report
19-12. Motion To Correct [Repealed]
19-13. Exceptions to Report or Finding [Repealed]
19-14. Objections to Acceptance of Report
19-15. Time To File Objections
19-16. Judgment on the Report
19-17. Function of the Court
19-18. Extensions of Time
19-19. Reference to Accountant

CHAPTER 20

HEARINGS IN CHAMBERS

Sec.
20-1. Procedure in Contested Matters
20-2. Certifying Proceedings to Court
20-3. Transfer of Hearings before Judges
20-4. Trial before Judge; Lodging File and Papers
20-5. Lodging Papers in Cause Affecting Land
20-6. Clerk Designated by Judge To Take Papers

CHAPTER 21

RECEIVERS

Sec.
21-1. Appointment of Temporary Receiver in Chambers
21-2. Permanent Receiver
21-3. Appointments by Court
21-4. Receiver To Give Bond
21-5. Inventory
21-6. Insolvent Estates To Be Liquidated
21-7. Presentation and Allowance of Claims; Presentation
21-8. —Allowance; Hearing
21-9. —Extensions of Time
21-10. —Hearing before Action on Allowance
21-11. Continuance of Business
21-12. Reports where Business Continued
21-13. Semiannual Summary of Orders
21-14. Semiannual Accounts
21-15. Orders in Chambers
21-16. Duty of Clerks
21-17. Removal of Receivers
21-18. Ancillary Receivers
21-19. Receiver of Rents; Applicability of Previous Sections
21-20. —Appointment
21-21. —Bond
21-22. —Discharge
21-23. —Orders
21-24. —Reports
21-25. Applicability of Rules

CHAPTER 22

UNEMPLOYMENT COMPENSATION

Sec.
22-1. Appeal
22-2. Assignment for Hearing
22-3. Finding
22-4. Correction of Finding; Motion To Correct Finding
22-5. —Evidence To Be Filed by Appellee
22-6. —Motion To Correct by Appellee
22-7. —Duty of Board on Motion To Correct
22-8. —Claiming Error on Board's Decision on Motion To Correct
22-9. Function of the Court

CHAPTER 23

MISCELLANEOUS REMEDIES AND PROCEDURES

Sec.
23-1. Arbitration; Confirming, Correcting or Vacating Award
23-2. Expedited Process Cases [Repealed]
23-3. —Placement on the Expedited Process Track [Repealed]
23-4. —Pleadings Allowed in Expedited Process Track Cases [Repealed]
23-5. —Motions Allowed [Repealed]

23-6. —Discovery Allowed [Repealed]
23-7. —Discovery Procedure for Expedited Process Cases [Repealed]
23-8. —Certification That Pleadings Are Closed [Repealed]
23-9. —Case Management Conference for Expedited Process Track Cases [Repealed]
23-10. —Transfer to Regular Docket [Repealed]
23-11. —Offers of Judgment [Repealed]
23-12. —Trial of Cases on Expedited Process Track [Repealed]
23-13. Granting of Complex Litigation Status and Assignment
23-14. —Powers of Judge Assigned in Complex Litigation Cases
23-15. —Request for Complex Litigation Status
23-16. Foreclosure of Mortgages
23-17. —Listing of Law Days
23-18. —Proof of Debt in Foreclosures
23-19. —Motion for Deficiency Judgment
23-20. Review of Civil Contempt
23-21. Habeas Corpus
23-22. —The Petition
23-23. —Return of Noncomplying Petition
23-24. —Preliminary Consideration of Judicial Authority
23-25. —Waiver of Filing Fees and Costs of Service
23-26. —Appointment of Counsel
23-27. —Venue for Habeas Corpus
23-28. —Transfer of Habeas Corpus
23-29. —Dismissal
23-30. —The Return
23-31. —Reply to the Return
23-32. —Amendments
23-33. —Request for a More Specific Statement
23-34. —Summary Procedures for Habeas Corpus Petitions
23-35. —Schedule for Filing Pleadings
23-36. —The Expanded Record
23-37. —Summary Judgment in Habeas Corpus
23-38. —Discovery in Habeas Corpus
23-39. —Depositions in Habeas Corpus
23-40. —Court Appearance in Habeas Corpus
23-41. —Motion for Leave To Withdraw Appearance of Appointed Counsel
23-42. —Judicial Action on Motion for Permission To Withdraw Appearance
23-43. Interpleader; Pleadings
23-44. —Procedure in Interpleader
23-45. Mandamus; Parties Plaintiff; Complaint
23-46. —Mandamus Complaint [Repealed]
23-47. —Mandamus in a Pending Action
23-48. —Temporary Order of Mandamus
23-49. —Pleadings in Mandamus
23-50. Writs of Error
23-51. Petition To Open Parking or Citation Assessment
23-52. Fact-Finding; Approval of Fact Finders
23-53. —Referral of Cases to Fact Finders
23-54. —Selection of Fact Finders; Disqualification
23-55. —Hearing in Fact-Finding
23-56. —Finding of Facts
23-57. —Objections to Acceptance of Finding of Facts
23-58. —Action by Judicial Authority
23-59. —Failure To Appear at Hearing
23-60. Arbitration; Approval of Arbitrators
23-61. —Referral of Cases to Arbitrators
23-62. —Selection of Arbitrators; Disqualification
23-63. —Hearing in Arbitration
23-64. —Decision of Arbitrator
23-65. —Failure To Appear at Hearing before Arbitrator
23-66. —Claim for Trial De Novo in Arbitration; Judgment
23-67. Alternative Dispute Resolution
23-68. Where Presence of Person May Be by Means of an Interactive Audiovisual Device

CHAPTER 24

SMALL CLAIMS

Sec.
24-1. In General
24-2. Allowable Actions
24-3. Institution of Actions; Electronic Filing
24-4. Where Claims Shall Be Filed
24-5. Venue
24-6. Definition of “Plaintiff” and “Representative”
24-7. What Constitutes File
24-8. Institution of Small Claims Actions; Beginning of Action
24-9. —Preparation of Writ
24-10. —Service of Small Claims Writ and Notice of Suit
24-11. —Further Service of Claim [Repealed]
24-12. —Answer Date
24-13. —Alternative Method of Commencing Action [Repealed]
24-14. —Notice of Time and Place of Hearing
24-15. —Scheduling of Hearings; Continuances
24-16. Answers; Requests for Time To Pay
24-17. —Prohibition of Certain Filings
24-18. —Plaintiff To Inquire as to Answer Filed [Repealed]
24-19. —Claim of Setoff or Counterclaim
24-20. —Amendment of Claim or Answer, Setoff or Counterclaim; Motion To Dismiss
24-20A. —Request for Documents; Depositions
24-21. Transfer to Regular Docket
24-22. Hearings in Small Claims Actions; Subpoenas
24-23. —Procedure
24-24. Judgments in Small Claims; When Presence of the Plaintiff or Representative Is Not Required for Entry of Judgment
24-25. —Failure of the Defendant To Answer
24-26. —Failure of a Party To Appear before the Court when Required
24-27. —Dismissal for Failure To Obtain Judgment
24-28. —Finality of Judgments and Decisions
24-29. —Decision in Small Claims; Time Limit
24-30. —Satisfying Judgment
24-31. —Opening Judgment; Costs
24-32. Execution in Small Claims Actions
24-33. Costs in Small Claims

SUPERIOR COURT—PROCEDURE IN FAMILY MATTERS

CHAPTER 25
GENERAL PROVISIONS

Sec.
25-1. Definitions Applicable to Proceedings on Family Matters
25-2. Complaints for Dissolution of Marriage or Civil Union, Legal Separation, or Annulment
25-2A. Premarital and Postnuptial Agreements
25-3. Action for Custody of Minor Child
25-4. Action for Visitation of Minor Child
25-5. Automatic Orders upon Service of Complaint or Application
25-5A. Automatic Orders upon Service of Petition for Child Support
25-5B. Automatic Orders upon Filing of Joint Petition—Nonadversarial Divorce
25-6. Parties and Appearances
25-6A. Appearance by Self-Represented Party in Addition to Appearance of Attorney
25-7. Pleadings in General; Amendments to Complaint or Application
25-8. —Amendment; New Ground for Dissolution of Marriage or Civil Union
25-9. —Answer, Cross Complaint, Claims for Relief by Defendant
25-10. —Answer to Cross Complaint
25-11. —Order of Pleadings
25-12. Motion To Dismiss
25-13. —Grounds on Motion To Dismiss
25-14. —Waiver and Subject Matter Jurisdiction
25-15. —Further Pleading by Defendant
25-16. Motion To Strike; In General
25-17. —Date for Hearing
25-18. —Reasons
25-19. —Memorandum of Law
25-20. —When Memorandum of Decision Required
25-21. —Substitute Pleading; Judgment
25-22. —Stricken Pleading Part of Another Cause or Defense
25-23. Motions, Requests and Orders of Notice
25-24. Motions
25-25. Motion for Exclusive Possession
25-26. Modification of Custody, Alimony or Support
25-27. Motion for Contempt
25-28. Order of Notice
25-29. Notice of Orders for Support or Alimony
25-30. Statements To Be Filed
25-31. Discovery and Depositions
25-32. Mandatory Disclosure and Production
25-32A. Discovery Noncompliance
25-32B. Discovery—Special Master
25-33. Judicial Appointment of Expert Witnesses
25-34. Procedure for Short Calendar [Replealed]
25-34A. Scheduling of Motions
25-35. Disclosure of Conference Recommendation
25-36. Motion for Decree Finally Dissolving Marriage or Civil Union after Decree of Legal Separation
25-37. —Notice and Hearing
25-38. Judgment Files
25-39. Miscellaneous Rules
25-40. Habeas Corpus in Family Matters; the Petition
25-41. —Preliminary Consideration
25-42. —Dismissal
25-43. —The Return
25-44. —Reply to the Return
25-45. —Schedule for Filing Pleadings
25-46. —Summary Judgment as to Writ of Habeas Corpus
25-47. —Discovery
25-48. Dockets, Pretrials and Assignment for Disposition
25-49. Definitions
25-50. Case Management [Repealed]
25-50A. Case Management under Pathways
25-51. When Motion for Default for Failure To Appear Does Not Apply
25-52. Failure To Appear for Scheduled Disposition
25-53. Reference of Family Matters
25-54. Order of Trial; Argument by Counsel
25-55. Medical Evidence
25-56. Production of Documents at Hearing or Trial
25-57. Affidavit concerning Children
25-58. Reports of Dissolution of Marriage or Civil Union and Annulment
25-59. Closure of Courtroom in Family Matters
25-59A. Sealing Files or Limiting Disclosure of Documents in Family Matters
25-59B. —Documents Containing Personal Identifying Information
25-60. Evaluations, Studies, Family Services Mediation Reports and Family Services Conflict Resolution Reports
25-60A. Court-Ordered Private Evaluations
25-61. Family Division
25-61A. Standing Committee on Guardians Ad Litem and Attorneys for the Minor Child in Family Matters
25-62. Appointment of Guardian Ad Litem
25-62A. Appointment of Attorney for a Minor Child
25-63. Right to Counsel in Family Civil Contempt Proceedings
25-64. —Waiver
25-65. Family Support Magistrates; Procedure [Repealed]
25-66. Appeal from Decision of Family Support Magistrate [Repealed]
25-67. Support Enforcement Services [Repealed]
25-68. Right to Counsel in State Initiated Parentage Actions
25-69. Social Services; Additional Duties

SUPERIOR COURT—PROCEDURE IN FAMILY SUPPORT MAGISTRATE MATTERS

CHAPTER 25a

FAMILY SUPPORT MAGISTRATE MATTERS

Sec.
25a-1. Family Support Magistrate Matters; Procedure
25a-1A. Notice of Title IV-D Child Support Enforcement Services
25a-2. Prompt Filing of Appearance
25a-3. Withdrawal of Appearance; Duration of Appearance
25a-4. Telephonic Hearings
25a-5. Signing of Pleading
25a-6. Contents of Petition
25a-7. Automatic Orders upon Service of Petition
25a-8. Order of Notice
25a-9. Motions
25a-10. —Motion To Cite in New Parties
25a-11. Answer to Cross Petition
25a-12. Order of Pleadings
25a-13. Reclaims
25a-14. —Continuances when Counsel's Presence or Oral Argument Required
25a-15. Statements To Be Filed
25a-16. Opening Argument
25a-17. Motion To Open Judgment of Parentage by Acknowledgment
25a-18. Modification of Alimony or Support
25a-19. Standard Disclosure and Production
25a-20. Medical Evidence
25a-21. Experts
25a-22. Interrogatories; In General
25a-23. Answers to Interrogatories
25a-24. Requests for Production, Inspection and Examination; In General
25a-25. Order for Compliance; Failure To Answer or Comply with Order
25a-26. Continuing Duty To Disclose
25a-27. Depositions; In General
25a-28. —Place of Deposition
25a-29. Appeal from Decision of Family Support Magistrate
25a-30. Support Enforcement Services

SUPERIOR COURT—PROCEDURE IN JUVENILE MATTERS

CHAPTER 26

GENERAL PROVISIONS

Sec.
26-1. Definitions Applicable to Proceedings on Juvenile Matters
26-2. Persons in Attendance at Hearings
26-3. Case Initiation; Electronic Filing

CHAPTER 27

RECEPTION AND PROCESSING OF DELINQUENCY COMPLAINTS OR PETITIONS

Sec.
27-1. Complaints; In General [Repealed]
27-1A. Referrals for Nonjudicial Handling of Delinquency Complaints
27-2. —Insufficient Allegations in Complaints [Repealed]
27-3. —Sufficient Allegations in Complaints [Repealed]
27-4. Additional Offenses and Misconduct
27-4A. Ineligibility for Nonjudicial Handling or Diversion of Delinquency Complaint
27-5. Initial Interview for Delinquency Nonjudicial Handling Eligibility
27-6. Denial of Responsibility
27-7. —Written Statement of Responsibility
27-8. —Scheduling of Judicial Plea/Dispositional Hearing [Repealed]
27-8A. Nonjudicial Supervision—Delinquency
27-9. Family with Service Needs Referrals [Repealed]

CHAPTER 28

DELINQUENCY AND FAMILY WITH SERVICE NEEDS NONJUDICIAL SUPERVISION

[Repealed as of Jan. 1, 2003.]

Sec.
28-1. Nonjudicial Supervision [Repealed] (Transferred to Section 27-8A.)

CHAPTER 29

RECEPTION AND PROCESSING OF DELINQUENCY PETITIONS AND DELINQUENCY INFORMATIONS

Sec.
29-1. Contents of Delinquency Petitions or Informations
29-1A. Processing of Delinquency Petitions and Informations
29-1B. Processing of Family with Service Needs Petitions [Repealed]
29-2. Service of Petitions

CHAPTER 30

DETENTION

Sec.
30-1. Notice and Statement by Person Bringing Child to Detention [Repealed]

30-1A. Admission to a Juvenile Residential Center
30-2. Release [Repealed]
30-2A. Nondelinquent Juvenile Runaway from Another State and Detention
30-3. Advisement of Rights
30-4. Notice to Parents by Juvenile Residential Center Personnel
30-5. Detention Time Limitations
30-6. Basis for Detention
30-7. Place of Detention Hearings
30-8. Initial Order for Detention; Waiver of Hearing
30-9. Information Allowed at Detention Hearing
30-10. Orders of a Judicial Authority after Initial Detention Hearing
30-11. Detention after Dispositional Hearing
30-12. Where Presence of a Detained Child or Youth May Be by Means of an Interactive Audiovisual Device

CHAPTER 30a

DELINQUENCY HEARINGS

Sec.
30a-1. Initial Plea Hearing
30a-1A. Family with Service Needs Preadjudication Continuance [Repealed]
30a-2. Pretrial Conference
30a-3. —Standard of Proof; Burden of Going Forward
30a-4. Plea Canvass
30a-5. Dispositional Hearing
30a-6. —Statement on Behalf of Victim
30a-6A. —Persons in Attendance at Hearings [Repealed] (Transferred to Section 26-2.)
30a-7. Recording of Hearings
30a-8. Records
30a-9. Appeals in Delinquency Proceedings

CHAPTER 31

DELINQUENCY AND FAMILY WITH SERVICE NEEDS HEARING

[Repealed as of Jan. 1, 2003.]

Sec.
31-1. Adjudicatory Hearing; Actions by Judicial Authority [Repealed]
31-2. —Continuance for Pretrial Conference [Repealed]
31-3. —Burden of Going Forward [Repealed]
31-4. —Physical Presence of Child [Repealed]
31-5. Dispositional Hearing; Factors To Be Considered by Judicial Authority [Repealed]
31-6. —When Held; Evidence and Predispositional Study [Repealed]
31-7. —Availability of Predispositional Study to Counsel and Parties [Repealed]
31-8. —Dispositional Plan Offered by Child or Parent [Repealed]
31-9. —Statement on Behalf of Victim [Repealed]
31-10. Modification of Probation and Supervision [Repealed]
31-11. Take into Custody [Repealed]
31-12. Physical and Mental Examinations [Repealed]
31-13. Mentally Ill Children [Repealed]

CHAPTER 31a

DELINQUENCY MOTIONS AND APPLICATIONS

Sec.
31a-1. Motions and Amendments
31a-1A. Continuances and Advancements
31a-2. Motion for Bill of Particulars
31a-3. Motion To Dismiss
31a-4. Motion To Suppress
31a-5. Motion for Judgment of Acquittal
31a-6. Motion for Transfer of Venue
31a-7. Motion in Limine
31a-8. Motion for Sequestration
31a-9. Severance of Offenses
31a-10. Trial Together on Petitions or Informations
31a-11. Motion for New Trial
31a-12. Motion To Transfer to Adult Criminal Docket
31a-13. Take into Custody Order
31a-13A. Temporary Custody Order—Family with Service Needs Petition [Repealed]
31a-14. Physical and Mental Examinations
31a-15. Mentally Ill Children and Youth
31a-16. Discovery
31a-17. Disclosure of Defenses in Delinquency Proceedings
31a-18. Modification of Probation and Supervision
31a-19. Motion for Extension of Delinquency Commitment; Motion for Review of Permanency Plan [Repealed]
31a-19A. Motion for Extension or Revocation of Family with Service Needs Commitment; Motion for Review of Permanency Plan [Repealed]
31a-20. Petition for Violation of Family with Service Needs Post-Adjudicatory Orders [Repealed]
31a-21. Petition for Child from a Family with Service Needs at Imminent Risk [Repealed]

CHAPTER 32

NEGLECTED, UNCARED FOR AND DEPENDENT CHILDREN AND TERMINATION OF PARENTAL RIGHTS

[Repealed as of Jan. 1, 2003.]

Sec.
32-1. Initiation of Judicial Proceeding; Contents of Petitions and Summary of Facts [Repealed]
32-2. —Summons Accompanying Petitions [Repealed]
32-3. —Venue [Repealed]
32-4. —Identity or Location of Parent Unknown [Repealed]
32-5. —Address of Person Entitled to Personal Service Unknown [Repealed]
32-6. Order of Temporary Custody; Application and Sworn Statement [Repealed]
32-7. —Statement in Temporary Custody Order of Respondent's Rights and of Subsequent Hearing [Repealed]
32-8. —Authority of Temporary Custodian [Repealed]
32-9. —Emergency, Life-Threatening Medical Situations—Procedures [Repealed]

CHAPTER 32a

RIGHTS OF PARTIES NEGLECTED, ABUSED AND UNCARED FOR CHILDREN AND TERMINATION OF PARENTAL RIGHTS

Sec.
32a-1. Right to Counsel and To Remain Silent
32a-2. Hearing Procedure; Subpoenas
32a-3. Standards of Proof
32a-4. Child or Youth Witness
32a-5. Consultation with Child or Youth
32a-6. Interpreter
32a-7. Records
32a-8. Use of Confidential Alcohol or Drug Abuse Treatment Records as Evidence
32a-9. Competency of Parent

CHAPTER 33

HEARINGS CONCERNING NEGLECTED, UNCARED FOR AND DEPENDENT CHILDREN AND TERMINATION OF PARENTAL RIGHTS

[Repealed as of Jan. 1, 2003.]

Sec.
33-1. Adjudicatory Hearing; Actions by Judicial Authority [Repealed]
33-2. —Continuance for Case Status Conference [Repealed]
33-3. —Evidence [Repealed]
33-4. —Burden of Proceeding [Repealed]
33-5. Dispositional Hearing; Evidence and Social Study [Repealed]
33-6. —Availability of Social Study to Counsel and Parties [Repealed]
33-7. —Dispositional Plan Offered by Respondents [Repealed]
33-8. Protective Supervision—Conditions and Modification [Repealed]
33-9. Extension Petitions [Repealed]
33-10. Revocation of Commitments [Repealed]
33-11. Modifications [Repealed]
33-12. Coterminous Petitions [Repealed]
33-13. Transfer from Probate Court of Petitions for Removal of Parent as Guardian [Repealed]

CHAPTER 33a

PETITIONS FOR NEGLECT, UNCARED FOR, DEPENDENCY AND TERMINATION OF PARENTAL RIGHTS: INITIATION OF PROCEEDINGS, ORDERS OF TEMPORARY CUSTODY AND PRELIMINARY HEARINGS

Sec.
33a-1. Initiation of Judicial Proceeding; Contents of Petitions and Summary of Facts
33a-2. Service of Summons, Petitions and Ex Parte Orders
33a-3. Venue
33a-4. Identity of Alleged Genetic Parent Unknown; Location of Respondent, Person Presumed To Be the Parent Pursuant to General Statutes § 46b-488 (a) (3) or Alleged Genetic Parent Unknown
33a-5. Address of Person Entitled to Personal Service Unknown
33a-6. Order of Temporary Custody; Ex Parte Orders and Orders To Appear
33a-7. Preliminary Order of Temporary Custody or First Hearing; Actions by Judicial Authority
33a-8. Emergency, Life-Threatening Medical Situations—Procedures

CHAPTER 34

RIGHTS OF PARTIES

[Repealed as of Jan. 1, 2003.]

Sec.
34-1. Right to Counsel and To Remain Silent [Repealed]
34-2. Hearing Procedure; Subpoenas [Repealed]
34-3. Standards of Proof [Repealed]
34-4. Child Witness [Repealed]

CHAPTER 34a

PLEADINGS, MOTIONS AND DISCOVERY NEGLECTED, ABUSED AND UNCARED FOR CHILDREN AND TERMINATION OF PARENTAL RIGHTS

Sec.
34a-1. Motions, Requests and Amendments
34a-2. Short Calendar—Frequency
34a-3. Short Calendar—Assignments Automatic
34a-4. Short Calendar—Continuances When Counsel's Presence or Oral Argument Required
34a-5. Continuances and Advancements
34a-6. Pleadings Allowed and Their Order
34a-7. Waiving Right To Plead
34a-8. Time To Plead
34a-9. Motion To Dismiss
34a-10. Grounds of Motion To Dismiss
34a-11. Waiver Based on Certain Grounds
34a-12. Waiver and Subject Matter Jurisdiction
34a-13. Further Pleading by Respondent or Child or Youth
34a-14. Response to Summary of Facts
34a-15. Motion To Strike
34a-16. Reasons in Motion To Strike
34a-17. Memorandum of Law—Motion and Objection
34a-18. When Memorandum of Decision Required on Motion To Strike
34a-19. Substitute Pleading; Judgment
34a-20. Discovery
34a-21. Court-Ordered Evaluations
34a-22. Motion for Contempt
34a-23. Motion for Emergency Relief
35a-24. Motions for Posttermination Visitation

CHAPTER GENERAL PROVISIONS

[Repealed as of Jan. 1, 2003.]

Sec.
35-1. Petitions, Motions and Amendments [Repealed]
35-2. Continuances and Advancements [Repealed]
35-3. Discovery [Repealed]
35-4. Appeal [Repealed]
35-5. Recording of Testimony; Records [Repealed]

CHAPTER 35a

HEARINGS CONCERNING NEGLECTED, ABUSED AND UNCARED FOR CHILDREN AND TERMINATION OF PARENTAL RIGHTS

Sec.

35a-1. Adjudication upon Acceptance of Admission or Plea of Nolo Contendere
35a-1A. Record of the Case
35a-1B. Exclusion of Unnecessary Persons from Courtroom
35a-2. Case Status Conference or Judicial Pretrial
35a-3. Coterminous Petitions
35a-4. Motions To Intervene
35a-5. Notice and Right To Be Heard
35a-6. Postdisposition Role of Former Guardian
35a-6A. Consolidation
35a-7. Evidence
35a-7A. Adverse Inference
35a-8. Burden of Proceeding
35a-9. Dispositional Hearing; Evidence and Social Study
35a-10. Availability of Social Study to Counsel and Parties
35a-11. Dispositional Plan Offered by Respondents
35a-12. Protective Supervision—Conditions, Modification and Termination
35a-12A. Motions for Transfer of Guardianship
35a-13. Findings as to Continuation in the Home, Efforts To Prevent Removal
35a-14. Motions for Review of Permanency Plan
35a-14A. Revocation of Commitment
35a-15. Reunification Efforts—Aggravating Factors
35a-16. Modifications
35a-17. Motions To Review Plan for Child Whose Parents' Rights Have Been Terminated [Repealed]
35a-18. Opening Default
35a-19. Transfer from Probate Court of Petitions for Removal of Parent as Guardian or Termination of Parental Rights
35a-20. Motions for Reinstatement of Parent as Guardian
35a-20A. Motions for Reinstatement of Former Legal Guardian as Guardian or Modification of Guardianship Postdisposition
35a-21. Appeals in Child Protection Matters
35a-22. Where Presence of Person May Be by Means of an Interactive Audiovisual Device
35a-23. Child's or Youth's Hearsay Statement; Residual Exception
35a-24. Motions for Posttermination Visitation

SUPERIOR COURT—PROCEDURE IN CRIMINAL MATTERS

CHAPTER 36

PROCEDURE PRIOR TO APPEARANCE

Sec.

36-1. Arrest by Warrant; issuance
36-2. —Affidavit in Support of Application, Filing, Disclosure
36-3. —Contents of Warrant
36-4. —Direction by Judicial Authority for Use of Summons
36-5. —Execution and Return of Warrant
36-6. —Cancellation of Warrant
36-7. Summons; Form of Summons and Complaint
36-8. —Issuance of Summons by Prosecuting Authority in Lieu of Arrest Warrant
36-9. —Service of Summons
36-10. —Failure To Respond to Summons
36-11. Information and Complaint; Use
36-12. —Issuance of Information
36-13. —Form of Information
36-14. —Former Conviction in Information
36-15. —Filing and Availability of Information
36-16. Amendments; Minor Defects
36-17. —Substantive Amendment before Trial
36-18. —Substantive Amendment after Commencement of Trial
36-19. —Request by Defendant for Essential Facts
36-20. —Continuance Necessitated by Amendment
36-21. Joinder of Offenses in Information
36-22. Joinder of Defendants

CHAPTER 37

ARRAIGNMENT

Sec.

37-1. Arraignment; Timing, Alternative Proceedings
37-2. —Information and Materials To Be Provided to the Defendant Prior to Arraignment
37-3. —Advisement of Constitutional Rights
37-4. —Collective Statement Advising of Constitutional Rights
37-5. —Reference to Public Defender; Investigation of Indigency
37-6. —Appointment of Public Defender
37-7. Pleas; In General
37-8. —Plea of Guilty or Nolo Contendere
37-9. —Plea of Not Guilty
37-10. —Taking of Plea when Information in Two Parts
37-11. —Notice to Defendant when Information in Two Parts
37-12. Defendant in Custody; Determination of Probable Cause

CHAPTER 38

PRETRIAL RELEASE

Sec.

38-1. Release from Custody; Superior Court Arrest Warrant where Appearance before Clerk Required
38-2. Release Following Any Other Arrest; Release by Law Enforcement Officer or Probation Officer Serving Warrant
38-3. —Release by Bail Commissioner or Intake, Assessment and Referral Specialist
38-4. —Release by Judicial Authority

38-5. —Release by Correctional Officials
38-6. Appearance after Release
38-7. Cash Bail
38-8. Seven Percent Cash Bail
38-9. Real Estate Bond
38-10. Factors To Be Considered by the Judicial Authority in Release Decision [Repealed]
38-11. Request for Judicial Determination of Release
38-12. Attorneys Not Allowed To Give Bonds
38-13. Bail Modification; In General
38-14. —Motion of Parties for Bail Modification
38-15. —Application of Bail Commissioner
38-16. —Application of Surety
38-17. —Hearing on Motion or Application for Modification of Bail
38-18. —Review of Detention Prior to Arraignment, Trial or Sentencing
38-19. Violation of Conditions of Bail; Order To Appear
38-20. —Sanctions for Violation of Conditions of Release
38-21. —Forfeiture of Bail and Rearrest Warrant
38-22. Rebate of Forfeited Bonds
38-23. Discharge of Surety's Obligation

CHAPTER 39

DISPOSITION WITHOUT TRIAL

Sec.
39-1. Procedure for Plea Discussions; In General
39-2. —Discussions with Defendant
39-3. —Role of Defense Counsel
39-4. —Subject Matter of Discussion
39-5. Plea Agreements; Upon Plea of Guilty or Nolo Contendere
39-6. —Alternate Agreements
39-7. —Notice of Plea Agreement
39-8. —Sentencing after Acceptance of Plea Agreement
39-9. —Continuance for Sentencing
39-10. —Rejection of Plea Agreement
39-11. Disposition Conference; Assignment of Jury Cases
39-12. —Effect of Previous Plea Discussions on Disposition Conference
39-13. —Attendance at Disposition Conference
39-14. —Nature of Disposition Conference; In General
39-15. —Inability To Reach Agreement
39-16. —Notice of Agreement to Judicial Authority
39-17. —Effect of Disposition Conference
39-18. Plea of Guilty or Nolo Contendere; Entering
39-19. —Acceptance of Plea; Advice to Defendant
39-20. —Ensuring That the Plea Is Voluntary
39-21. —Factual Basis for Plea
39-22. Pleading to Other Offenses after Guilty Finding
39-23. Previous Offender; Plea to Second Part
39-24. Record of Proceedings regarding Guilty Pleas
39-25. Inadmissibility of Rejected Guilty Pleas
39-26. Withdrawal of Plea; When Allowed
39-27. —Grounds for Allowing Plea Withdrawal
39-28. —Effect of Plea Withdrawal
39-29. Nolle Prosequi
39-30. —Objection by Defendant to Nolle Prosequi
39-31. —Effect of Nolle Prosequi
39-32. —Dismissal
39-33. Miscellaneous Dispositions

CHAPTER 40

DISCOVERY AND DEPOSITIONS

Sec.
40-1. Discovery in General; Regulating Discovery
40-2. —Good Faith Efforts and Subpoenas
40-3. —Continuing Obligation To Disclose
40-4. —Limitations on Requests or Motions
40-5. —Failure To Comply with Disclosure
40-6. —Discovery Performance
40-7. —Procedures for Disclosure
40-8. —Objection to Disclosure
40-9. —Presence during Tests and Experiments
40-10. —Custody of Materials
40-11. Disclosure by the Prosecuting Authority
40-12. Discretionary Disclosure Directed to Prosecuting Authority
40-13. Names of Witnesses; Prior Record of Witnesses; Statements of Witnesses
40-13A. Law Enforcement Reports, Affidavits and Statements
40-13B. Notice by Prosecuting Authority of Intention To Use Prior Uncharged Sexual Misconduct Involving a Person Other Than the Victim in Sexual Assault Cases
40-14. Information Not Subject to Disclosure by Prosecuting Authority
40-15. Disclosure of Statements; Definition of Statement
40-16. Request for Recess by Defendant upon Receipt of Statement
40-17. Defense of Mental Disease or Defect or Extreme Emotional Disturbance; Notice by Defendant
40-18. —Notice by Defendant of Intention To Use Expert Testimony regarding Mental State; Filing Reports of Exam
40-19. —Prosecutorial Motion for Psychiatric Examination
40-20. —Failure of Expert To Submit Report
40-21. Defense of Alibi; Notice by Defendant
40-22. —Notice by Prosecuting Authority concerning Alibi Defense
40-23. —Continuing Duty of Parties To Disclose regarding Alibi Defense
40-24. —Exceptions
40-25. —Inadmissibility of Withdrawn Alibi
40-26. Disclosure by the Defendant; Information and Materials Discoverable by the Prosecuting Authority as of Right
40-27. Discretionary Disclosure Directed to Defendant
40-28. Derivative Evidence
40-29. Protective Orders Requested by Defendant
40-30. Admissibility at Time of Trial
40-31. Information Not Subject to Disclosure by Defendant
40-32. Obtaining Nontestimonial Evidence from Defendant
40-33. —Emergency Procedure regarding Nontestimonial Evidence
40-34. —Scope of Order for Nontestimonial Evidence
40-35. —Contents of Order
40-36. —Service of Order
40-37. —Implementation of Order
40-38. —Obtaining Nontestimonial Evidence from Defendant upon Motion of Defendant
40-39. —Comparing Nontestimonial Evidence
40-40. Protective Orders; Relief
40-41. —Grounds for Protective Order
40-42. —In Camera Proceedings
40-43. —Excision as Protective Order
40-44. Depositions; Grounds
40-45. —Failure To Appear for Deposition

40-46. —Use of Deposition
40-47. —Notice and Person Taking Deposition
40-48. —Protective Order Prior to Deposition
40-49. —Manner of Taking Deposition
40-50. —Scope of Examination at Deposition
40-51. —Objections at Depositions
40-52. —Protective Order during Deposition
40-53. —Return of Deposition
40-54. —Right of Defendant To Be Present and Represented at Deposition
40-55. —Waiver of Presence and Failure To Appear at Deposition
40-56. —Definition of Unavailable
40-57. —Taking and Use in Court of Deposition by Agreement
40-58. —Expenses of Deposition and Copies

CHAPTER 41

PRETRIAL MOTIONS

Sec.
41-1. Pretrial Motion Practice; Exclusive Procedures
41-2. —Matters To Be Raised by Motion
41-3. —Pretrial Motions and Requests
41-4. —Failure To Raise Defense, Objection or Request
41-5. —Time for Making Pretrial Motions or Requests
41-6. —Form and Manner of Making Pretrial Motions
41-7. —Hearing and Ruling on Pretrial Motions
41-8. Motion To Dismiss
41-9. —Restriction on Motion To Dismiss
41-10. —Defects Not Requiring Dismissal
41-11. —Remedies for Minor Defects Not Requiring Dismissal
41-12. Motion To Suppress
41-13. —Return and Suppression of Seized Property
41-14. —Suppression of Intercepted Communications
41-15. —Time for Filing Motion To Suppress
41-16. —Effect on Seized Property of Granting Motion
41-17. —Particular Judicial Authority May Not Hear Motion
41-18. Severance of Offenses
41-19. Trial Together of Informations
41-20. Bill of Particulars; Time for Filing
41-21. —Content of Bill
41-22. —Furnishing of Bill
41-23. Transfer of Prosecution; Grounds
41-24. —Time for Motion To Transfer
41-25. —Proceedings on Transfer

CHAPTER 42

TRIAL PROCEDURE

Sec.
42-1. Jury Trials; Right to Jury Trial and Waiver
42-2. —Two Part Information
42-3. —Size of Jury
42-4. —Challenge to Array
42-5. —Disqualification of Jurors and Selection of Panel
42-6. —View by Jury of Place or Thing Involved in Case
42-7. —Communications between Judicial Authority and Jury
42-8. —Communications between Parties and Jurors
42-9. —Juror Questions and Note-taking
42-10. Selection of Jury; Jurors Who Are Deaf or Hard of Hearing
42-11. —Preliminary Proceedings in Jury Selection
42-12. —Voir Dire Examination
42-13. —Peremptory Challenges
42-14. —Oath and Admonitions to Trial Jurors
42-15. Motion in Limine
42-16. Requests To Charge and Exceptions; Necessity for
42-17. —Filing Requests
42-18. —Form and Contents of Requests To Charge
42-19. —Charge Conference
42-20. Submission for Verdict; Role of Judicial Authority in Trial
42-21. Jury Deliberations
42-22. Sequestration of Jury
42-23. Materials To Be Submitted to Jury
42-24. Modification of Instructions for Correction or Clarification
42-25. —Other Instructions after Additional Instructions
42-26. Jury Requests for Review of Testimony
42-27. Jury Requests for Additional Instructions
42-28. Deadlocked Jury
42-29. Verdict; Return of Verdict
42-30. —Acceptance of Verdict
42-31. —Poll of Jury after Verdict
42-32. —Discharge of Jury
42-33. —Impeachment of Verdict
42-34. Trial without Jury
42-35. Order of Parties Proceeding at Trial
42-36. Sequestration of Witnesses
42-37. Time Limits in Argument
42-38. Order of Proceeding of Defendants
42-39. Judicial Appointment of Expert Witnesses
42-40. Motions for Judgment of Acquittal; In General
42-41. —At Close of Prosecution's Case
42-42. —At Close of Evidence
42-43. Motion for Mistrial; For Prejudice to Defendant
42-44. —For Prejudice to State
42-45. Jury's Inability To Reach Verdict
42-46. Control of Judicial Proceedings; Restraint of Disruptive Defendant
42-47. —Removal of Disruptive Defendant
42-48. —Cautioning Parties and Witnesses
42-49. Closure of Courtroom in Criminal Cases
42-49A. Sealing or Limiting Disclosure of Documents in Criminal Cases
42-50. Motion for Judgment of Acquittal; After Mistrial
42-51. —Upon Verdict of Guilty
42-52. —Time for Filing Motion for Judgment of Acquittal
42-53. Motion for New Trial; In General
42-54. —Time for Filing Motion for New Trial
42-55. —Time for Filing Motion for New Trial Based on Newly Discovered Evidence
42-56. Motion in Arrest of Judgment

CHAPTER 43

SENTENCING, JUDGMENT AND APPEAL

Sec.
43-1. Posttrial Release Following Appeal by Prosecuting Authority
43-2. Posttrial Release Following Conviction
43-3. Presentence Investigation and Report; Waiver; Alternative Incarceration and Plan
43-4. —Scope of Investigation or Assessment
43-5. —Participation of Defense Counsel in Report Preparation
43-6. —Period of Continuance To Complete Report

43-7. —Persons Receiving Report
43-8. —Prohibition against Making Copies
43-9. —Use and Disclosure of Reports
43-10. Sentencing Hearing; Procedures To Be Followed
43-11. —Role at Sentencing of Prosecuting Authority
43-12. —Role of Prosecuting Authority at Sentencing when There Was a Plea Agreement
43-13. —Familiarization with Report by Defense Counsel
43-14. —Correction of Report Indicated by Defense Counsel
43-15. —Undisclosed Plea Agreement
43-16. —Submission of Supplementary Documents by Defense Counsel
43-17. Payment of Fines; Inquiry concerning Ability
43-18. —Incarceration for Failure To Pay
43-19. —Payment and Satisfaction
43-20. —Mittimus
43-21. Reduction of Sentence or Discharge of Defendant by Sentencing Court
43-22. Correction of Illegal Sentence
43-23. Sentence Review; Appearance of Counsel
43-24. —Time for Filing Application for Sentence Review
43-25. —Preparation of Documents by Clerk
43-26. —Additional Material for Sentence Review
43-27. —Hearing on Sentence Review Application
43-28. —Scope of Review
43-29. Revocation of Probation
43-29A. Notice of Motions To Modify or Enlarge Conditions of Probation or Conditional Discharge or Terminate Conditions of Probation or Conditional Discharge
43-30. Notification of Right To Appeal
43-31. Stay of Imprisonment upon Appeal
43-32. Stay of Probation upon Appeal
43-33. Appointment of Initial Counsel for Appeal by Indigent Defendant
43-34. Attorney's Finding That Appeal Is Wholly Frivolous; Request by Initial Counsel To Withdraw
43-35. —Submission of Memorandum of Law
43-36. —Finding That Appeal Is Frivolous
43-37. —Finding That Appeal Is Not Frivolous
43-38. —Disqualification of Presiding Judge
43-39. Speedy Trial; Time Limitations
43-40. —Excluded Time Periods in Determining Speedy Trial
43-40A. —Included Time Period in Determining Speedy Trial; Failure To Comply with Disclosure by Prosecuting Authority
43-41. —Motion for Speedy Trial; Dismissal
43-42. —Definition of Commencement of Trial
43-43. —Waiver of Speedy Trial Provisions

CHAPTER 44

GENERAL PROVISIONS

Sec.
44-1. Right to Counsel; Appointment in Specific Instances
44-2. —Appointment in Other Instances
44-3. —Waiver of Right to Counsel
44-4. —Standby Counsel for Defendant Self-Represented
44-5. —Role of Standby Counsel
44-6. —Standby Counsel for Disruptive Defendant
44-7. Presence of Defendant; Attire of Incarcerated Defendant or Witness
44-8. —When Presence of Defendant Is and Is Not Required at Trial and Sentencing
44-9. —Obtaining Presence of Unexcused Defendant at Trial or Sentencing
44-10. —Where Presence of Defendant Not Required
44-10A. —Where Presence of Defendant May Be by Means of an Interactive Audiovisual Device
44-11. Docketing and Scheduling in General of Criminal Cases
44-12. —Control of Scheduling
44-13. —Scheduling for Proceedings before Trial; Continuances
44-14. —Assignments for Plea in Judicial District Court Location
44-15. —Scheduling at Entry of Plea
44-16. —Scheduling from Trial List
44-17. —Motion To Advance
44-18. —Continuances
44-19. Reference to Judge Trial Referee
44-20. Appointment of Guardian Ad Litem
44-21. Infractions and Violations; When Treated as an Offense
44-22. —Form of Summons and Complaint for Infractions and Violations
44-23. —When Custody Not Required
44-24. —When Custody Required
44-25. —Plea of Nolo Contendere to Infraction or Violation
44-26. —Pleas of Not Guilty to Infraction or Violation
44-27. —Hearing of Infractions, Violations to Which Not Guilty Plea Filed
44-28. —Location of Infractions Bureau and Role of Clerks
44-29. —Powers of Centralized Infractions Bureau
44-30. —Hearing by Magistrates of Infractions and Certain Motor Vehicle Violations
44-31. Motion To Quash Subpoena Pursuant to Inquiry into Commission of Crime
44-32. Fees and Expenses; Return of Subpoenas
44-33. —Indigent Witnesses
44-34. —Fees for Witnesses
44-35. —Officer's Fees on Extradition; Habeas Corpus
44-36. —Fee on Motion To Open Certain Judgments
44-37. Definition of Terms

RULES OF APPELLATE PROCEDURE

CHAPTER 60

GENERAL PROVISIONS RELATING TO APPELLATE RULES AND APPELLATE REVIEW

Sec.
60-1. Rules To Be Liberally Interpreted
60-2. Supervision of Procedure
60-3. Suspension of the Rules
60-4. Definitions
60-5. Review by the Court; Plain Error; Preservation of Claims
60-6. Appellate Jurists Sitting as Superior Court Judges
60-7. Electronic Filing; Payment of Fees
60-8. Exemption from or Inapplicability of Electronic Filing; Payment of Fees
60-9. Security for Costs

CHAPTER 61

REMEDY BY APPEAL

Sec.
61-1. Right of Appeal
61-2. Appeal of Judgment on Entire Complaint, Counterclaim or Cross Complaint
61-3. Appeal of Judgment on Part of Complaint, Counterclaim or Cross Complaint That Disposes of All Claims in that Pleading Brought by or against One or More Parties
61-4. Appeal of Judgment That Disposes of At Least One Cause of Action While Not Disposing of Either (1) An Entire Complaint, Counterclaim or Cross Complaint, or (2) All the Causes of Action in a Pleading Brought by or against a Party
61-5. Deferring Appeal until Judgment Rendered That Disposes of Case for All Purposes and as to All Parties
61-6. Appeal of Judgment or Ruling in Criminal Case
61-7. Joint and Consolidated Appeals
61-8. Cross Appeals
61-9. Decisions Subsequent to Filing of Appeal; Amended Appeals
61-10. Responsibility of Appellant To Provide Adequate Record for Review
61-11. Stay of Execution in Noncriminal Cases
61-12. Discretionary Stays
61-13. Stay of Execution in Criminal Case
61-14. Review of Order concerning Stay; When Stay May Be Requested from Court Having Appellate Jurisdiction
61-15. Stay of Execution in Death Penalty Case [Repealed]
61-16. Notice of Bankruptcy Filing, Order of Bankruptcy Court Granting Relief from Automatic Stay and Disposition of Bankruptcy Case

CHAPTER 62

CHIEF JUDGE, APPELLATE CLERK AND DOCKET: GENERAL ADMINISTRATIVE MATTERS

Sec.
62-1. Chief Judge
62-2. Clerk
62-3. Entry of Cases
62-4. Case To Remain on Docket of Trial Court
62-5. Changes in Parties
62-6. Signature on Documents
62-7. Matters of Form; Filings; Delivery and Certification to Counsel of Record
62-8. Names of Counsel; Appearance
62-8A. Attorneys of Other Jurisdictions Participating Pro Hac Vice on Appeal
62-9. Withdrawal of Appearance
62-9A. Hybrid Representation; Removal or Substitution of Counsel in Criminal and Habeas Corpus Appeals
62-10. Files To Be Available to Parties
62-11. Files and Records Not To Be Removed

CHAPTER 63

FILING THE APPEAL; WITHDRAWALS

Sec.
63-1. Time To Appeal
63-2. Expiration of Time Limitations; Counting Days; Hours of Operation
63-3. Filing of Appeal
63-3A. Appeals in E-Filed Cases [Repealed]
63-4. Additional Papers To Be Filed by Appellant and Appellee Subsequent to the Filing of the Appeal
63-5. Fees [Repealed]
63-6. Waiver of Fees, Costs and Security—Civil Cases
63-7. Waiver of Fees, Costs and Security—Criminal Cases
63-8. Ordering and Filing of Transcripts
63-8A. Electronic Copies of Transcripts
63-9. Filing Withdrawals of Appeals or Writs of Error
63-10. Preargument Conferences

CHAPTER 64

PROCEDURE CONCERNING MEMORANDUM OF DECISION

Sec.
64-1. Statement of Decision by Trial Court; When Required; How Stated; Contents
64-2. Exceptions to Section 64-1

CHAPTER 65

TRANSFER OF MATTERS

Sec.
65-1. Transfer of Matter by Supreme Court
65-1A. Transfer of Matter on Recommendation of Appellate Court
65-2. Party Motion to Transfer Appeal, Writ of Error or Reservation
65-3. Transfer of Petition for Review of Bail Order from Appellate Court to Supreme Court
65-4. Transfer of Matter Brought to Wrong Court
65-5. Proceedings after Transfer

CHAPTER 66

MOTIONS AND OTHER PROCEDURES

Sec.
66-1. Extension of Time
66-2. Motions
66-2A. Supreme Court Briefs on Compact Disc; Hyperlinking [Repealed]
66-3. Motion Procedures and Filing
66-4. Hearings on Motions
66-5. Motion for Rectification; Motion for Articulation
66-6. Motion for Review; In General
66-7. Motion for Review of Motion for Rectification of Appeal or Articulation
66-8. Motion To Dismiss
66-9. Disqualification of Appellate Jurists

CHAPTER 67

BRIEFS

Sec.
67-1. Brief and Appendix
67-2. Format of Paper Briefs and Party Appendices for Filers Excluded or Exempt from Electronic Filing Pursuant to Section 60-8; Copies
67-2A. Format of Electronic Briefs and Party Appendices; Copies
67-3. Page Limitations; Time for Filing Paper Briefs and Party Appendices for Filers Excluded or Exempt from Electronic Filing Pursuant to Section 60-8; Copies
67-3A. Word Limitations; Time for Filing Electronic Briefs and Party Appendices
67-4. The Appellant's Brief; Contents and Organization
67-5. The Appellee's Brief; Contents and Organization
67-5A. The Reply Brief
67-6. Statutory (§ 53a-46b) Review of Death Sentences
67-7. The Amicus Curiae Brief [Repealed]
67-7A. The Amicus Curiae Electronic Brief
67-8. The Party Appendix
67-8A. The Appendix in Administrative Appeals; Exceptions [Repealed]
67-9. Citation of Unreported Decisions [Repealed]
67-10. Citation of Supplemental Authorities after Brief Is Filed
67-11. Table of Authorities; Citation of Cases
67-12. Stay of Briefing Obligations upon Filing of Certain Motions after Appeal Is Filed
67-13. Briefs in Family and Juvenile Matters and Other Matters involving Minor Children
67-14. Joint Briefs; Statements Adopting Briefs

CHAPTER 68

CASE FILE AND CLERK APPENDIX

Sec.
68-1. Responsibilities of Clerk of the Trial Court regarding Copying Case File and Additions to Case File Made after Appeal Is Filed; Exhibits and Lodged Records
68-2. Record Preparation [Repealed]
68-2A. Assembly of the Clerk Appendix
68-3. Record Contents [Repealed]
68-3A. Clerk Appendix Contents
68-4. Record Format [Repealed]
68-4A. Clerk Appendix Format
68-5. Record where More than One Appeal [Repealed]
68-5A. Clerk Appendix when More than One Appeal
68-6. Record where Several Cases Present Same Question [Repealed]
68-6A. Clerk Appendix when Several Cases Present Same Question
68-7. Record Filing [Repealed]
68-8. Supplements [Repealed]
68-8A. Supplements
68-9. Evidence Not To Be Included in Record [Repealed]
68-10. Record in Administrative Appeals; Exceptions [Repealed]
68-10A. Clerk Appendix in Administrative Appeals; Exceptions
68-11. Decision To Be Part of Record [Repealed]
68-11A. Decision To Be Part of Clerk Appendix

CHAPTER 69

ASSIGNMENT OF CASES FOR ARGUMENT

Sec.
69-1. Docket
69-2. Cases Ready for Assignment
69-3. Time for Assignments; Order of Assignment

CHAPTER 70

ARGUMENTS AND MEDIA COVERAGE OF COURT PROCEEDINGS

Sec.
70-1. Oral Argument; Videoconferencing of Oral Argument in Certain Cases
70-2. Submission without Oral Argument on Request of Parties
70-3. Order of Oral Argument; Nonappearance at Oral Argument

70-4. Time Allowed for Oral Argument; Who May Argue
70-5. Points To Be Argued
70-6. Reconsideration when Court Evenly Divided
70-7. Appellate Court Consideration En Banc and Reargument En Banc
70-8. Special Sessions
70-9. Coverage of Court Proceedings by Cameras and Electronic Media
70-10. Cameras and Electronic Media; Coverage of Supreme and Appellate Court Proceedings by News Media [Repealed]

CHAPTER 71

APPELLATE JUDGMENTS AND OPINIONS

Sec.
71-1. Appellate Judgment Files
71-2. Costs Included in Judgments
71-3. Motion To Reconsider Costs
71-4. Opinions; Rescripts; Official Release Date
71-5. Motions for Reconsideration; Motions for Reconsideration En Banc
71-6. Stay of Proceedings
71-7. Stays of Execution Pending Decision by United States Supreme Court

CHAPTER 72

WRITS OF ERROR

Sec.
72-1. Writs of Error; In General
72-2. Form
72-3. Applicable Procedure
72-3A. Stays
72-4. Applicability of Rules

CHAPTER 73

RESERVATIONS

Sec.
73-1. Reservation of Questions from the Superior Court to the Supreme Court or Appellate Court; Contents of Reservation Request
73-2. Consideration of Reservation Request by Superior Court
73-3. Procedure upon Acceptance of Reservation
73-4. Briefs, Appendices and Argument

CHAPTER 74

DECISIONS OF JUDICIAL REVIEW COUNCIL

Sec.
74-1. Appeals by Respondent Judge from Decision of Judicial Review Council
74-2. Papers To Be Filed [Repealed]
74-2A. Referral to Supreme Court by Judicial Review Council Following Recommendation of Suspension or Removal (Transferred from Section 74-7.)
74-3. Costs and Security Not Required [Repealed]
74-3A. Initiation of Action by Supreme Court (Transferred from Section 74-8.)
74-4. Decision of Council; Remand by Supreme Court
74-5. Parties
74-6. Applicability of Rules
74-7. Action on Recommendation when No Appeal (Transferred to Section 74-2A.)
74-8. Initiation of Action by Supreme Court (Transferred to Section 74-3A.)

CHAPTER 75

APPEALS FROM COUNCIL ON PROBATE JUDICIAL CONDUCT

Sec.
75-1. Appeals by Respondent Judge from Decision of Council on Probate Judicial Conduct
75-2. Papers To Be Filed [Repealed]
75-3. Costs and Security Not Required [Repealed]
75-4. Decision of Council; Remand by Supreme Court
75-5. Parties
75-6. Applicability of Rules

CHAPTER 76

APPEALS IN WORKERS' COMPENSATION CASES

Sec.
76-1. Applicability of Rules
76-2. Filing Appeal
76-3. Preparation of Case File; Exhibits
76-4. Fees and Costs
76-5. Reservation of Question from Compensation Review Board
76-5A. Procedure upon Acceptance of Reservation
76-6. Definitions

CHAPTER 77

PROCEDURES CONCERNING COURT CLOSURE AND SEALING ORDERS OR ORDERS LIMITING THE DISCLOSURE OF FILES, AFFIDAVITS, DOCUMENTS OR OTHER MATERIAL

Sec.
77-1. Petition for Review Seeking Expedited Review of an Order concerning Court Closure, or an Order That Seals or Limits the Disclosure of Files, Affidavits, Documents or Other Material
77-2. Sealing Orders; Treatment of Lodged Records
77-3. Sealing Documents or Limiting Disclosure of Documents on Appeal
77-4. Motion To Seal; Lodging of Documents with Appellate Clerk

CHAPTER 78

REVIEW OF GRAND JURY RECORD OR FINDING ORDER

Sec.
78-1. Review of an Order concerning Disclosure of Grand Jury Record or Finding

CHAPTER 78a

REVIEW OF ORDERS CONCERNING RELEASE ON BAIL

Sec.
78a-1. Petition for Review of Order concerning Release on Bail

CHAPTER 78b

REVIEW OF ORDERS DENYING APPLICATION FOR WAIVER OF FEES TO COMMENCE A CIVIL ACTION OR A WRIT OF HABEAS CORPUS

Sec.
78b-1. Petition for Review of Order Denying Application for Wavier of Fees to Commence a Civil Action or a Writ of Habeas Corpus

CHAPTER 79

APPEALS IN JUVENILE MATTERS

[Repealed as of Feb. 1, 2012.]

Sec.
79-1. Time To Take; Form; Filing; Costs [Repealed]
79-2. Clerk's Duties [Repealed]
79-3. Inspection of Records [Repealed]
79-4. Hearings; Confidentiality [Repealed]
79-5. Briefs [Repealed]

CHAPTER 79a

APPEALS IN CHILD PROTECTION MATTERS

Sec.
79a-1. Child Protection Appeals Defined
79a-2. Time To Appeal
79a-3. Filing of the Appeal
79a-4. Waiver of Fees, Costs and Security
79a-5. Ordering Transcripts
79a-6. Format and Time for Filing Briefs and Appendices
79a-7. Motions for Extension of Time
79a-8. Docketing Child Protection Appeals for Assignment
79a-9. Oral Argument
79a-10. Submission without Oral Argument on Request of Parties
79a-11. Official Release Date
79a-12. Inspection of Records
79a-13. Hearings; Confidentiality
79a-14. Motions Filed with the Appellate Clerk
79a-15. Applicability of Rules

CHAPTER 80

APPEALS IN HABEAS CORPUS PROCEEDINGS FOLLOWING CONVICTION

Sec.
80-1. Certification To Appeal; Procedure on Appeal

CHAPTER 81

APPEALS TO APPELLATE COURT BY CERTIFICATION FOR REVIEW IN ACCORDANCE WITH GENERAL STATUTES CHAPTERS 124 AND 440

Sec.
81-1. Petition; Where To File; Time To File; Service; Fee
81-2. Form of Petition
81-3. Opposition to Petition
81-3A. Grant or Denial of Certification
81-4. Proceedings after Certification by Appellate Court
81-5. Extensions of Time
81-6. Filing of Regulations

CHAPTER 82

CERTIFIED QUESTIONS TO OR FROM COURTS OF OTHER JURISDICTIONS

Sec.
82-1. Certification of Questions from Other Courts
82-2. Method of Initiating [Repealed]
82-3. Contents of Certification Request
82-4. Preparation of Certification Request
82-5. Receipt; Costs of Certification
82-6. Briefs, Appendices, Assignment and Argument
82-7. Opinion
82-8. Certification of Questions to Other Courts

CHAPTER 83

CERTIFICATION PURSUANT TO GENERAL STATUTES § 52-265a IN CASES OF SUBSTANTIAL PUBLIC INTEREST

Sec.
83-1. Time To File; Where To File
83-1A. Form of Application
83-1B. Opposition to Application
83-2. Application Granted
83-3. Application Denied
83-4. Unavailability of Chief Justice

CHAPTER 84

APPEALS TO SUPREME COURT BY CERTIFICATION FOR REVIEW

Sec.
84-1. Certification by Supreme Court
84-2. Basis for Certification
84-3. Stay of Execution
84-4. Petition; Time To File; Where To File; Service; Fee
84-5. Form of Petition
84-6. Opposition to Petition
84-6A. Positions of Minor Children and Guardians ad Litem in Family and Child Protection Matters and Other Matters Involving Minor Children
84-7. Extensions of Time
84-8. Grant or Denial of Certification
84-9. Proceedings after Certification
84-10. Record [Repealed]
84-10A. Record

84-11. Papers To Be Filed by Appellant and Appellee in an Appeal After Certification
84-12. Applicability of Rules

CHAPTER 84a

MATTERS WITHIN SUPREME COURT'S ORIGINAL JURISDICTION IN WHICH FACTS MAY BE FOUND

Sec.
84a-1. Application of Rules
84a-2. Procedure for Filing Original Jurisdiction Action; Pleadings and Motions
84a-3. Discovery
84a-4. Reference of Issues of Fact
84a-5. Evidence
84a-6. Other Officers

CHAPTER 85

SANCTIONS

Sec.
85-1. Lack of Diligence in Prosecuting or Defending Appeal
85-2. Other Actions Subject to Sanctions
85-3. Procedure on Sanctions

CHAPTER 86

RULE CHANGES; EFFECTIVE DATE; APPLICABILITY

Sec.
86-1. Publication of Rules; Effective Date
86-2. Rule Changes; Applicability to Pending Appeals

APPENDIX OF FORMS

Form
101 Heading of Pleadings, Motions and Requests
201 Plaintiff's Interrogatories
202 Defendant's Interrogatories
203 Plaintiff's Interrogatories—Premises Liability Cases
204 Plaintiff's Requests for Production
205 Defendant's Requests for Production
206 Plaintiff's Requests for Production—Premises Liability
207 Interrogatories—Actions To Establish, Enforce or Modify Child Support Orders
208 Defendant's Supplemental Interrogatories—Workers' Compensation Benefits—No Intervening Plaintiff
209 Defendant's Supplemental Requests for Production—Workers' Compensation Benefits—No Intervening Plaintiff
210 Defendant's Interrogatories—Workers' Compensation Benefits—Intervening Plaintiff
211 Defendant's Requests for Production—Workers' Compensation Benefits—Intervening Plaintiff
212 Defendant's Interrogatories—Loss of Consortium
213 Plaintiff's Interrogatories—Uninsured/Underinsured Motorist Cases
214 Defendant's Interrogatories—Uninsured/Underinsured Motorist Cases
215 Plaintiff's Requests for Production—Uninsured/Underinsured Motorist Cases.
216 Defendant's Requests for Production—Uninsured/Underinsured Motorist Cases
217 Interrogatories—Civil Actions Alleging Personal Injury—Medicare Enrollment, Eligibility and Payments
218 Defendant's Interrogatories—Medical Negligence
219 Defendant's Requests for Production—Medical Negligence
220 Plaintiff's Interrogatories—Medical Negligence—Health Care Provider
221 Plaintiff's Interrogatories—Medical Negligence—Hospital and/or Medical Group
222 Plaintiff's Requests for Production—Medical Negligence—Health Care Provider
223 Plaintiff's Requests for Production—Medical Negligence—Hospital and/or Medical Group

OFFICIAL JUDICIAL BRANCH FORMS

APPENDIX: SUPERIOR COURT STANDING ORDERS

SUPERIOR COURT—GENERAL PROVISIONS

CHAPTER 1

SCOPE OF RULES

Sec.	
1-1.	Scope of Rules; Definitions
1-2.	Assignments To Take Precedence
1-3.	Divisions of Superior Court
1-4.	Family Division
1-5.	Civil Division
1-6.	Criminal Division
1-7.	Housing Division (Only in Judicial Districts Specified by Statute)
1-8.	Rules To Be Liberally Interpreted
1-9.	Publication of Rules; Effective Date
1-9A.	—Judiciary Committee; Placement of Rules Information on Judicial Branch Website
1-9B.	—Emergency Powers of Rules Committee
1-10.	Possession of Electronic Devices in Court Facilities
1-10A.	Definition of "Media"
1-10B.	Media Coverage of Court Proceedings; In General
1-11.	Media Coverage of Criminal Proceedings [Repealed]
1-11A.	Media Coverage of Arraignments
1-11B.	Media Coverage of Civil Proceedings
1-11C.	Media Coverage of Criminal Proceedings
1-11D.	Pilot Program To Increase Public Access to Child Protection Proceedings [Repealed]
1-12.	Court Opening
1-13.	Recess and Adjournment
1-13A.	Contempt
1-14.	—Criminal Contempt
1-15.	—Who May Be Punished [Repealed]
1-16.	—Summary Criminal Contempt
1-17.	—Deferral of Proceedings
1-18.	—Nonsummary Contempt Proceedings
1-19.	—Judicial Authority Disqualification in Nonsummary Contempt Proceedings
1-20.	—Where No Right to Jury Trial in Nonsummary Proceeding
1-21.	—Nonsummary Judgment
1-21A.	—Civil Contempt
1-22.	Disqualification of Judicial Authority
1-23.	Motion for Disqualification of Judicial Authority
1-24.	Record of Off-Site Judicial Proceedings
1-25.	Actions Subject to Sanctions

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 1-1. Scope of Rules; Definitions

(Amended June 20, 2011, to take effect Jan. 1, 2012.)

(a) The rules for the Superior Court govern the practice and procedure in the Superior Court in all civil and family actions whether cognizable as cases at law, in equity or otherwise, in all criminal proceedings and in all proceedings on juvenile matters. These rules also relate to the admission, qualifications, practice and removal of attorneys.

(b) Except as otherwise provided, the sections in Chapters 1 through 7 shall apply to civil, family, criminal and juvenile matters in the Superior Court.

(c) (1) The term "judicial authority," as used in the rules for the Superior Court, means the Superior Court, any judge thereof, each judge trial referee when the Superior Court has referred a case to such trial referee pursuant to General Statutes § 52-434, and for purposes of the small claims rules only, any magistrate appointed by the chief court administrator pursuant to General Statutes § 51-193*l*.

(2) Except as otherwise provided, the words "write," "written" and "writing" as used in the rules for the Superior Court shall mean typed or printed either on paper or, when electronically submitted or issued, in a digital format that complies with the procedures and technical standards established by the Office of the Chief Court Administrator pursuant to Section 4-4.

(3) Except as otherwise provided, the words "paper" and "document" as used in the rules for the Superior Court shall include an electronic submission that complies with the procedures and technical standards established by the Office of the Chief Court Administrator pursuant to Section 4-4 and a paper or document converted to a digital format by the Judicial Branch.

(P.B. 1978-1997, Sec. 1.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 1-2. Assignments To Take Precedence

Assignments for oral argument in the Supreme Court and Appellate Court shall take precedence over all other Judicial Branch assignments.

(P.B. 1998.)

Sec. 1-3. Divisions of Superior Court

The Superior Court shall be divided into four divisions: family, civil, criminal and housing.

(P.B. 1978-1997, Sec. 2.)

Sec. 1-4. Family Division

The family division of the Superior Court shall consist of the following parts:

(1) J—Juvenile matters including neglect, dependency, delinquency, families with service needs and termination of parental rights.

(2) S—Support and parentage actions.

(3) D—All other family relations matters, including dissolution of marriage or civil union cases.

(P.B. 1978-1997, Sec. 3.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 1-5. Civil Division

The civil division of the Superior Court shall consist of the following parts:

(1) H—Summary process cases and all other landlord and tenant matters returnable to the geographical areas.

(2) S—Small claims actions.

(3) A—Administrative appeals.

(4) J—Jury matters.

(5) C—Court matters.

(P.B. 1978-1997, Sec. 4.)

Sec. 1-6. Criminal Division

The criminal division of the Superior Court shall consist of the following parts:

(1) A—Capital felonies, class A felonies, and unclassified felonies punishable by sentences of more than twenty years.

(2) B—Class B felonies and unclassified felonies punishable by sentences of more than ten years but not more than twenty years.

(3) C—Class C felonies and unclassified felonies punishable by sentences of more than five years but not more than ten years.

(4) D—Class D felonies and all other crimes, violations, motor vehicle violations, and infractions.

(P.B. 1978-1997, Sec. 5.)

Sec. 1-7. Housing Division (Only in Judicial Districts Specified by Statute)

The housing division of the Superior Court shall consist of the following part:

(1) H—Housing matters as defined by General Statutes § 47a-68.

(P.B. 1978-1997, Sec. 5A.)

Sec.1-8. Rules To Be Liberally Interpreted

The design of these rules being to facilitate business and advance justice, they will be interpreted liberally in any case where it shall be manifest that a strict adherence to them will work surprise or injustice.

(P.B. 1978-1997, Sec. 6.)

Sec. 1-9. Publication of Rules; Effective Date

(a) Each rule hereinafter adopted shall be promulgated by being published once in the Connecticut Law Journal. Such rule shall become effective at such date as the judges of the Superior Court shall prescribe, but not less than sixty days after its promulgation. The judges may waive the sixty day provision if they deem that circumstances require that a rule or a change in an existing rule be adopted expeditiously.

(b) Prior to such adoption the proposed revisions to the rules or a summary thereof shall be published in the Connecticut Law Journal with a notice stating the time when, the place where and the manner in which interested persons may present their views thereon.

(c) Upon recommendation by the Rules Committee, the judges of the Superior Court may, by vote at a meeting or by mail vote as set forth in subsection (d), waive the provisions of subsection (b) if they deem that circumstances require that a rule or a change in an existing rule be adopted expeditiously, provided that the adoption of any rules or changes in existing rules in connection with such waiver shall be on an interim basis until a public hearing has been held and the judges have thereafter acted on such revisions and such action has become effective. With respect to such rules adopted on an interim basis, the judges shall prescribe the effective date thereof following publication in the Connecticut Law Journal.

(d) For a mail vote under subsection (c) to be effective, a written notice setting forth the proposed rule or change in an existing rule, together with a statement as to the effective date thereof, shall be mailed or electronically transmitted to all the judges of the Superior Court. In the event that no objection from any judge is received, by mail or electronically, by the counsel to the Rules Committee within the time specified in such notice, such rule or change shall become effective on the date specified in the notice until further action is taken at the next meeting of the judges.

(P.B. 1978-1997, Sec. 7.) (Amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 1-9A. —Judiciary Committee; Placement of Rules Information on Judicial Branch Website

(a) Each year the Rules Committee shall make itself available to meet with the members of the Judiciary Committee of the General Assembly (the Judiciary Committee) as soon as practicable after the first Rules Committee meeting in September to advise the Judiciary Committee as to

the Rules Committee's anticipated agenda for the upcoming year.

(b) As soon as practicable after the convening of each regular legislative session, the chair of the Rules Committee shall invite the Senate and House chairs and the ranking members of the Judiciary Committee, and such other members of that Committee as the chairs may designate, to attend a meeting with the Rules Committee to confer and consult with respect to the rules of practice, pleadings, forms and procedure for the Superior Court and with respect to legislation affecting the courts pending before or to be introduced in the General Assembly.

(c) The chair of the Rules Committee shall forward to the Judiciary Committee for review and comment all proposed revisions to the Practice Book which the Rules Committee has decided to submit to public hearing at least thirty-five days in advance of the public hearing thereon. If the chair of the Rules Committee shall receive any comments from the Judiciary Committee with respect to such proposed revisions, he or she shall forward such comments to the members of the Rules Committee for their consideration in connection with the public hearing.

(d) The agendas and minutes of Rules Committee meetings, any proposed revisions to the Practice Book which the Rules Committee has decided to submit to public hearing, any comments by the Judiciary Committee with respect to such proposed revisions, and any proposed revisions that are adopted by the Superior Court judges shall be placed on the Judicial Branch website.

(Adopted June 30, 2008, to take effect Jan. 1, 2009; amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 1-9B. —Emergency Powers of Rules Committee

(a) In the event that the governor declares a public health emergency pursuant to General Statutes § 19a-131a or a civil preparedness emergency pursuant to General Statutes § 28-9 or both, the chief justice, or if the chief justice is incapacitated or unavailable, the chairperson of the Rules Committee may call a meeting of the Superior Court Rules Committee.

(b) No quorum shall be required at this meeting as long as a good faith effort has been made to contact all members of the Rules Committee to advise them of the meeting. The meeting may be held in person or by electronic means. Public notice should be given of the Rules Committee meeting, but failure to give such notice shall not impair the validity of actions taken at the meeting as long as a good faith effort has been made to provide such notice.

(c) At such meeting the Rules Committee shall have the power to adopt on an interim basis any new rules and to amend or suspend in whole or in part on an interim basis any existing rules concerning practice and procedure in the Superior Court that the committee deems necessary in light of the circumstances of the declared emergency. Any new rules and any amendments to and suspensions of existing rules adopted pursuant to this section should be published in the Connecticut Law Journal and on the Judicial Branch website, but failure to so publish shall not impair the validity of such rules as long as a good faith effort has been made to so publish.

(d) Any such new rules and amendments to and suspensions of existing rules adopted pursuant to this section shall remain in effect for the duration of the declared emergency or until such time, as soon as practicable, as a meeting of the Superior Court judges can be convened, in person or electronically, to consider and vote on the changes.

(Adopted June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 1-10. Possession of Electronic Devices in Court Facilities

(Amended June 29, 2007, to take effect Jan. 1, 2008.)

(a) Personal computers may be used for note-taking in a courtroom. If the judicial authority finds that the use of computers is disruptive of the court proceeding, it may limit such use. No other electronic devices shall be used in a courtroom unless authorized by a judicial authority or permitted by these rules.

(b) The possession and use of electronic devices in court facilities are subject to policies promulgated by the chief court administrator.

(P.B. 1978-1997, Sec. 7B.) (Amended June 20, 2005, to take effect Oct. 1, 2005; June 26, 2006, subsection (b) extended for a one year period commencing Oct. 1, 2006; amended June 29, 2007, to take effect Jan. 1, 2008; June 29, 2007, subsection (b) extended for a one year period commencing Oct. 1, 2007; amended June 30, 2008, to take effect Aug. 1, 2008.)

Sec. 1-10A. Definition of "Media"

For purposes of these rules, "media" means any person or entity that is regularly engaged in the gathering and dissemination of news and that is approved by the Office of the Chief Court Administrator.

(Adopted June 29, 2007, to take effect Jan. 1, 2008.)

Sec. 1-10B. Media Coverage of Court Proceedings; In General

(a) The broadcasting, televising, recording or photographing by the media of court proceedings and trials in the Superior Court should be allowed subject to the limitations set out in this section and in Sections 1-11A through 1-11C, inclusive.

(b) No broadcasting, televising, recording or photographing of any of the following proceedings shall be permitted:

(1) Family relations matters as defined in General Statutes § 46b-1;

(2) Juvenile matters as defined in General Statutes § 46b-121;

(3) Except as provided in subsection (q) of Section 1-11C, proceedings involving sexual assault;

(4) Proceedings involving trade secrets;

(5) In jury trials, all proceedings held in the absence of the jury unless the trial court determines that such coverage does not create a risk to any party's rights or other fair trial risks under the circumstances;

(6) Proceedings which must be closed to the public to comply with the provisions of state law;

(7) Any proceeding that is not held in open court on the record.

(c) No broadcasting, televising, recording or photographic equipment permitted under these rules shall be operated during a recess in the trial.

(d) No broadcasting, televising, recording or photographing of conferences involving counsel and the trial judge at the bench or involving counsel and their clients shall be permitted.

(e) There shall be no broadcasting, televising, recording or photographing of the process of jury selection nor of any juror.

(Adopted June 29, 2007, to take effect Jan. 1, 2008; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 26, 2020, to take effect Jan. 1, 2021.)

COMMENTARY—2014: The Judicial Branch may provide, at its discretion, within a court facility, a contemporaneous closed-circuit video transmission of any court proceeding for the benefit of media or other spectators, and such a transmission shall not be considered broadcasting or televising by the media under this rule.

COMMENTARY—2021: The changes to this section and to Section 1-11C permit the judicial authority to allow media coverage of a homicide case involving sexual assault, provided that the victim's family affirmatively consents to such coverage. If any member of the victim's family objects to such coverage or if the victim's family cannot be identified or located, the judicial authority should not allow such coverage.

Sec. 1-11. Media Coverage of Criminal Proceedings

[Repealed as of Jan. 1, 2012.]

Sec. 1-11A. Media Coverage of Arraignments

(a) The broadcasting, televising, recording, or taking photographs by media in the courtroom during arraignments may be authorized by the judicial authority presiding over such arraignments in the manner set forth in this section, as implemented by the judicial authority.

(b) Any media representative desiring to broadcast, televise, record or photograph an arraignment shall send an email request for electronic coverage to a person designated by the chief court administrator to receive such requests. Said designee shall promptly transmit any such request to the administrative judge, presiding judge of criminal matters, arraignment judge, clerk and the supervising marshal. The administrative judge shall ensure that notice is provided to the state's attorney and the attorney for the defendant or, where the defendant is unrepresented, to the defendant. Electronic coverage shall not be permitted until the state's attorney and the attorney for the defendant, or the defendant if he or she has no attorney, have had an opportunity to object to the request on the record and the judicial authority has ruled on the objection. If a request for coverage is denied or is granted over the objection of any party, the judicial authority shall articulate orally or in writing the reasons for its decision on the request and such decision shall be final.

(c) Broadcasting, televising, recording or photographing of the following are prohibited:

(1) any criminal defendant who has not been made subject to an order for electronic coverage and, to the extent practicable, any person other than court personnel or other participants in the arraignment for which electronic coverage is permitted;

(2) conferences involving the attorneys and the judicial authority at the bench or communications between the defendant and his or her attorney or other legal representative;

(3) close ups of documents of counsel, the clerk or the judicial authority;

(4) the defendant while exiting or entering the lockup;

(5) to the extent practicable, any restraints on the defendant;

(6) to the extent practicable, any judicial marshals or Department of Correction employees escorting the defendant while he or she is in the courtroom; and

(7) proceedings in cases transferred from juvenile court prior to a determination by the adult court that the matter was properly transferred.

(d) Only one (1) still camera, one (1) television camera and one (1) audio recording device, which do not produce a distracting sound or light, shall be employed to cover the arraignment, unless otherwise ordered by the judicial authority.

(e) The operator of any camera, television or audio recording equipment shall not employ any artificial lighting device to supplement the existing light in the courtroom.

(f) All personnel and equipment shall be situated in an unobtrusive manner within the courtroom. The location of any such equipment and personnel shall be determined by the judicial authority. The location of the camera, to the extent possible, shall provide access to optimum coverage. Once the judicial authority designates the position for a camera, the operator of the camera must remain in that position and not move about until the arraignment is completed.

(g) Videographers, photographers and equipment operators must conduct themselves in the courtroom quietly and discreetly, with due regard for the dignity of the courtroom.

(h) If there are multiple requests to broadcast, televise, record or photograph the same arraignment, the media representatives making such requests must make pooling arrangements among themselves, unless otherwise determined by the judicial authority. The judicial authority shall not mediate any disputes among the media regarding pooling arrangements.

(i) On camera reporting and interviews shall only be conducted outside of the courthouse.

(Adopted June 29, 2007, to take effect Jan. 1, 2008; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 1-11B. Media Coverage of Civil Proceedings

(a) The broadcasting, televising, recording or photographing of civil proceedings and trials in the Superior Court by news media should be allowed, subject to the limitations set forth herein and in Section 1-10B.

(b) A judicial authority shall permit broadcasting, televising, recording or photographing of civil proceedings and trials in courtrooms of the Superior Court except as hereinafter precluded or limited. As used in this rule, the word "trial" in jury cases shall mean proceedings taking place after the jury has been sworn and in nonjury proceedings commencing with the swearing in of the first witness.

(c) Any party, attorney, witness or other interested person may object in advance of electronic coverage of a civil proceeding or trial if there exists a substantial reason to believe that such coverage will undermine the legal rights of a party or will significantly compromise the safety of a witness or other interested person or impact significant privacy concerns. To the extent practicable, notice that an objection to the electronic coverage has been filed, and the date, time and location of the hearing on such objection shall be posted on the Judicial Branch website. Any person, including the media, whose rights are at issue in considering whether to allow electronic coverage of the proceeding or trial, may participate in the hearing to determine whether to limit or preclude such coverage. When such objection is filed by any party, attorney, witness or other interested person, the burden of proving that electronic coverage of the civil proceeding or trial should be limited or precluded shall be on the person who filed the objection.

(d) The judicial authority, in deciding whether to limit or preclude electronic coverage of a civil proceeding or trial, shall consider all rights at issue and shall limit or preclude such coverage only if there exists a compelling reason to do so, there are no reasonable alternatives to such limitation or preclusion, and such limitation or preclusion is no broader than necessary to protect the compelling interest at issue.

(e) If the judicial authority has a substantial reason to believe that the electronic coverage of a civil proceeding or trial will undermine the legal rights of a party or will significantly compromise the safety or significant privacy concerns of a party, witness or other interested person, and no party, attorney, witness or other interested person has objected to such coverage, the judicial authority shall schedule a hearing to consider limiting or precluding such coverage. To the extent practicable, notice that the judicial authority is considering limiting or precluding electronic coverage of a civil proceeding or trial, and the date, time and location of the hearing thereon shall be given to the parties and others whose interests may be directly affected by a decision so that they may participate in the hearing and shall be posted on the Judicial Branch website.

(f) Objection raised during the course of a civil proceeding or trial to the photographing, video or audio recording of specific aspects of the proceeding or trial, or specific individuals or exhibits will be heard and decided by the judicial authority, based on the same standards as set out in subsection (d) of this section used to determine whether to limit or preclude coverage based on objections raised before the start of a civil proceeding or trial.

(g) The trial judge in his or her discretion, upon the judge's own motion or at the request of a participant, may prohibit the broadcasting, televising, recording or photographing of any participant at the trial. The judge shall give great weight to requests where the protection of the identity of a person is desirable in the interests of justice, such as for the victims of crime, police informants, undercover agents, relocated witnesses, juveniles and individuals in comparable situations.

"Participant" for the purpose of this section shall mean any party, lawyer or witness.

(h) The judicial authority shall articulate the reasons for its decision on whether or not to limit or preclude electronic coverage of a civil proceeding or trial and such decision shall be final.

(i) No broadcasting, televising, recording and photographic equipment shall be placed in or removed from the courtroom while the court is in session. Television film magazines or still camera film or lenses shall not be changed within the courtroom except during a recess or other appropriate time in the trial.

(j) Only still camera, television and audio equipment which does not produce distracting sound or light shall be employed to cover the trial. The operator of such equipment shall not employ any artificial lighting device to supplement the existing light in the courtroom without the approval of the trial judge and other appropriate authority.

(k) Except as provided by these rules, broadcasting, televising, recording and photographing in areas immediately adjacent to the courtroom during sessions of court or recesses between sessions shall be prohibited.

(*l*) The conduct of all attorneys with respect to trial publicity shall be governed by Rule 3.6 of the Rules of Professional Conduct.

(m) If there are multiple requests to broadcast, televise, record or photograph the same civil proceeding or trial, the media representatives making such requests must make pooling arrangements among themselves, unless otherwise determined by the judicial authority. The judicial authority shall not mediate any disputes among the media regarding pooling arrangements.

(n) Unless good cause is shown, any media or pool representative seeking to broadcast, televise, record or photograph a civil proceeding or trial shall, at least three days prior to the commencement of the proceeding or trial, send an email request for media coverage to a person designated by the chief court administrator to receive such requests. The designee shall inform the administrative judge, presiding judge of civil matters, judicial authority who will hear the proceeding or who will preside over the trial, clerk, and the supervising marshal of the request, and the judicial authority shall allow such coverage except as otherwise provided in this section.

(o) To evaluate and resolve prospective problems where broadcasting, televising, recording or photographing of a civil proceeding or trial will take place, and to ensure compliance with these rules during the proceeding or trial, the judicial authority who will hear the proceeding or preside over the trial may require the attendance of attorneys and media personnel at a pretrial conference. At such conference, the judicial authority shall set forth the conditions of coverage in accordance herewith.

(Adopted June 29, 2007, to take effect Jan. 1, 2008; amended June 10, 2022, to take effect Jan. 1, 2023.)

TECHNICAL CHANGE: A technical change was made in subsection (f) to update the terminology to align with current technology and practice.

Sec. 1-11C. Media Coverage of Criminal Proceedings

(Amended June 20, 2011, to take effect Jan. 1, 2012.)

(a) Except as authorized by Section 1-11A regarding media coverage of arraignments, the broadcasting, televising, recording or photographing by media of criminal proceedings and trials in the Superior Court shall be allowed except as hereinafter precluded or limited and subject to the limitations set forth in Section 1-10B.

(b) Except as provided in subsection (q) of this section, no broadcasting, televising, recording or photographing of trials or proceedings involving sexual offense charges shall be permitted.

(c) As used in this rule, the word "trial" in jury cases shall mean proceedings taking place after the jury has been sworn and in nonjury proceedings commencing with the swearing in of the first witness. "Criminal proceeding" shall mean any hearing or testimony, or any portion thereof, in open court and on the record except an arraignment subject to Section 1-11A.

(d) Unless good cause is shown, any media or pool representative seeking to broadcast, televise, record or photograph a criminal proceeding or trial shall, at least three days prior to the commencement of the proceeding or trial, send an email request for media coverage to a person designated by the chief court administrator to receive such requests. The designee shall inform the administrative judge, presiding judge of criminal matters, judicial authority who will hear the proceeding or who will preside over the trial, clerk, and the supervising marshal of the request, and the judicial authority shall allow such coverage except as otherwise provided.

(e) Any party, attorney, witness or other interested person may object in advance of electronic coverage of a criminal proceeding or trial if there exists a substantial reason to believe that such coverage will undermine the legal rights of a party or will significantly compromise the safety of a witness or other person or impact significant privacy concerns. In the event that the media request camera coverage and, to the extent practicable, notice that an objection to the electronic coverage has been filed, the date, time and location of the

hearing on such objection shall be posted on the Judicial Branch website. Any person, including the media, whose rights are at issue in considering whether to allow electronic coverage of the proceeding or trial, may participate in the hearing to determine whether to limit or preclude such coverage. When such objection is filed by any party, attorney, witness or other interested person, the burden of proving that electronic coverage of the criminal proceeding or trial should be limited or precluded shall be on the person who filed the objection.

(f) The judicial authority, in deciding whether to limit or preclude electronic coverage of a criminal proceeding or trial, shall consider all rights at issue and shall limit or preclude such coverage only if there exists a compelling reason to do so, there are no reasonable alternatives to such limitation or preclusion, and such limitation or preclusion is no broader than necessary to protect the compelling interest at issue.

(g) If the judicial authority has a substantial reason to believe that the electronic coverage of a criminal proceeding or trial will undermine the legal rights of a party or will significantly compromise the safety or privacy concerns of a party, witness or other interested person, and no party, attorney, witness or other interested person has objected to such coverage, the judicial authority shall schedule a hearing to consider limiting or precluding such coverage. To the extent practicable, notice that the judicial authority is considering limiting or precluding electronic coverage of a criminal proceeding or trial, and the date, time and location of the hearing thereon shall be given to the parties and others whose interests may be directly affected by a decision so that they may participate in the hearing and shall be posted on the Judicial Branch website.

(h) Objection raised during the course of a criminal proceeding or trial to the photographing, video or audio recording of specific aspects of the proceeding or trial, or specific individuals or exhibits will be heard and decided by the judicial authority, based on the same standards as set out in subsection (f) of this section used to determine whether to limit or preclude coverage based on objections raised before the start of a criminal proceeding or trial.

(i) The judge presiding over the proceeding or trial in his or her discretion, upon the judge's own motion or at the request of a participant, may prohibit the broadcasting, televising, recording or photographing of any participant at the trial. The judge shall give great weight to requests where the protection of the identity of a person is desirable in the interests of justice, such as for the victims of crime, police informants, undercover agents, relocated witnesses, juveniles and individuals in comparable situations. "Participant" for the purpose of this section shall mean any party, lawyer or witness.

(j) The judicial authority shall articulate the reasons for its decision on whether or not to limit or preclude electronic coverage of a criminal proceeding or trial, and such decision shall be final.

(k) (1) Only one television camera operator, utilizing one portable mounted television camera, shall be permitted in the courtroom. The television camera and operator shall be positioned in such location in the courtroom as shall be designated by the trial judge. Microphones, related wiring and equipment essential for the broadcasting, televising or recording shall be unobtrusive and shall be located in places designated in advance by the trial judge. While the trial is in progress, the television camera operator shall operate the television camera in this designated location only.

(2) Only one still camera photographer shall be permitted in the courtroom. The still camera photographer shall be positioned in such location in the courtroom as shall be designated by the trial judge. While the trial is in progress, the still camera photographer shall photograph court proceedings from this designated location only.

(3) Only one audio recorder shall be permitted in the courtroom for purposes of recording the proceeding or trial. Microphones, related wiring and equipment essential for the recording shall be unobtrusive and shall be located in places designated in advance by the trial judge.

(*l*) Only still camera, television and audio equipment which does not produce distracting sound or light shall be employed to cover the proceeding or trial. The operator of such equipment shall not employ any artificial lighting device to supplement the existing light in the courtroom without the approval of the judge presiding over the proceeding or trial and other appropriate authority.

(m) Except as provided by these rules, broadcasting, televising, recording and photographing in areas immediately adjacent to the courtroom during sessions of court or recesses between sessions shall be prohibited.

(n) The conduct of all attorneys with respect to trial publicity shall be governed by Rule 3.6 of the Rules of Professional Conduct.

(o) If there are multiple requests to broadcast, televise, record or photograph the same criminal proceeding or trial, the media representatives making such requests must make pooling arrangements among themselves, unless otherwise determined by the judicial authority. The judicial

authority shall not mediate any disputes among the media regarding pooling arrangements.

(p) To evaluate and resolve prospective problems where broadcasting, televising, recording or photographing by media of a criminal proceeding or trial will take place, and to ensure compliance with these rules during the proceeding or trial, the judicial authority who will hear the proceeding or preside over the trial may require the attendance of attorneys and media personnel at a pretrial conference.

(q) In a homicide case involving sexual assault, the broadcasting, televising, recording or photographing by the media of the trial may be permitted by the judicial authority, provided that the victim's family affirmatively consents to such coverage, that no member of the victim's family objects to such coverage, and that the victim's family have been notified. As used in this section, "victim's family" shall mean a person's spouse, parent, grandparent, stepparent, aunt, uncle, niece, nephew, child, including a natural born child, stepchild and adopted child, grandchild, brother, sister, half brother or half sister or parent of a person's spouse.

(Adopted June 29, 2007, to take effect Jan. 1, 2008; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 10, 2022, to take effect Jan. 1, 2023.)

COMMENTARY—2021: The changes to this section and to Section 1-10B permit the judicial authority to allow media coverage of a homicide case involving sexual assault, provided that the victim's family affirmatively consents to such coverage, that no member of the victim's family objects to such coverage and that the victim's family has been notified. If any member of the victim's family objects to such coverage or if the victim's family cannot be identified or located, the judicial authority should not allow such coverage. As used in this section, "victim's family" has the same meaning as "relative" in General Statutes § 54-201 (4).

TECHNICAL CHANGE: A technical change was made in subsection (h) to update the terminology to align with current technology and practice.

Sec. 1-11D. Pilot Program To Increase Public Access to Child Protection Proceedings

[Repealed as of Jan. 1, 2013.]

Sec. 1-12. Court Opening

The sessions of the Superior Court will be opened at 10 a.m., unless otherwise ordered.

(P.B. 1978-1997, Sec. 299.)

TECHNICAL CHANGE: The time convention was updated for consistency purposes.

Sec. 1-13. Recess and Adjournment

The court is "not in session" or "not actually in session," as those phrases are used in the statutes and rules, at all times (1) after adjournment and before opening and (2) during recess. The court is in recess or in adjournment provided it has not been adjourned without date. The order for a recess or an adjournment other than without date may be revoked and the court reconvened by direction of the presiding judge at any time.

(P.B. 1978-1997, Sec. 300.)

Sec. 1-13A. Contempt

(a) Any person or court officer misbehaving or disobeying any order of a judicial authority in the course of any judicial proceeding may be adjudicated in contempt and appropriately punished.

(b) Contempt may be either criminal or civil. When criminal, it may be summary or nonsummary criminal contempt.

(Adopted June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-14. —Criminal Contempt

Conduct that is directed against the dignity and authority of the court shall be criminal contempt, and may be adjudicated summarily or nonsummarily. The sanction for a criminal contempt is punitive to vindicate the authority of the court.

(P.B. 1978-1997, Sec. 985.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-15. —Who May Be Punished

[Repealed as of Jan. 1, 2000.]

Sec. 1-16. —Summary Criminal Contempt

(Amended June 28, 1999, to take effect Jan. 1, 2000.)

Misbehavior or misconduct in the court's presence causing an obstruction to the orderly administration of justice shall be summary criminal contempt, and may be summarily adjudicated and punished by fine or imprisonment, or both. Prior to any finding of guilt, the judicial authority shall inform the defendant of the charges against him or her and inquire as to whether the defendant has any cause to show why he or she should not be adjudged guilty of summary criminal contempt by presenting evidence of acquitting or mitigating circumstances. Upon an adjudication, the judicial authority shall immediately impose sentence of not more than $100, or six months imprisonment, or both for each contumacious act. Execution of any sentence during the pendency of a trial or hearing may be deferred to the close of proceedings.

(P.B. 1978-1997, Sec. 988.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-17. —Deferral of Proceedings

The judicial authority should defer criminal contempt proceedings when: (1) the misconduct does not rise to an obstruction to the orderly administration of justice; (2) the judicial authority has become personally embroiled; (3) the misconduct did not occur in the presence of the court; and (4) the

judicial authority does not instantly impose summary criminal contempt upon the commission of the contumacious act.

(P.B. 1978-1997, Sec. 989.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-18. —Nonsummary Contempt Proceedings

A criminal contempt deferred under Section 1-17 shall be prosecuted by means of an information. The judicial authority may, either upon its own order or upon the request of the prosecuting authority, issue a summons or an arrest warrant for the accused. The case shall proceed as any other criminal prosecution under these rules and the General Statutes. The sentence shall be pronounced in open court and shall not exceed six months imprisonment or a fine of $500, or both, for each contumacious act.

(P.B. 1978-1997, Sec. 991.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-19. —Judicial Authority Disqualification in Nonsummary Contempt Proceedings

(Amended June 28, 1999, to take effect Jan. 1, 2000.)

The trial and all related proceedings upon which nonsummary contempt proceedings are based shall be heard by a judicial authority other than the trial judge or the judicial authority who had either issued the order which was later disobeyed or deferred criminal contempt proceedings under Section 1-17.

(P.B. 1978-1997, Sec. 992.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-20. —Where No Right to Jury Trial in Nonsummary Proceeding

(Amended June 28, 1999, to take effect Jan. 1, 2000.)

In a nonsummary contempt proceeding, if the judicial authority declares in advance of trial that the total effective sentence, if the defendant is found guilty, shall not exceed thirty days imprisonment, or a fine of $99, no right to jury trial shall affix. If the total effective sentence may exceed thirty days or a fine in excess of $99, the defendant shall be accorded the right to a jury trial.

(P.B. 1978-1997, Sec. 993.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-21. —Nonsummary Judgment

(Amended June 28, 1999, to take effect Jan. 1, 2000.)

In a nonsummary contempt proceeding, the judgment file of contempt shall be prepared within a reasonable time by the clerk and shall be signed by the judicial authority and entered on the record.

(P.B. 1978-1997, Sec. 994.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-21A. —Civil Contempt

The violation of any court order qualifies for criminal contempt sanctions. Where, however, the dispute is between private litigants and the purpose for judicial intervention is remedial, then the contempt is civil, and any sanctions imposed by the judicial authority shall be coercive and nonpunitive, including fines, to ensure compliance and compensate the complainant for losses. Where the violation of a court order renders the order unenforceable, the judicial authority should consider referral for nonsummary criminal contempt proceedings.

(Adopted June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 1-22. Disqualification of Judicial Authority

(a) A judicial authority shall, upon motion of either party or upon its own motion, be disqualified from acting in a matter if such judicial authority is disqualified from acting therein pursuant to Rule 2.11 of the Code of Judicial Conduct or because the judicial authority previously tried the same matter and a new trial was granted therein or because the judgment was reversed on appeal. A judicial authority may not preside at the hearing of any motion attacking the validity or sufficiency of any warrant the judicial authority issued nor may the judicial authority sit in appellate review of a judgment or order originally rendered by such authority.

(b) A judicial authority is not automatically disqualified from sitting on a proceeding merely because an attorney or party to the proceeding has filed a lawsuit against the judicial authority or filed a complaint against the judicial authority with the Judicial Review Council or an administrative agency. When such an attorney or party appears before the judicial authority, he or she shall so advise the judicial authority and other attorneys and parties to the proceeding on the record, and, thereafter, the judicial authority shall either disqualify himself or herself from sitting on the proceeding, conduct a hearing on the disqualification issue before deciding whether to disqualify himself or herself or refer the disqualification issue to another judicial authority for a hearing and decision.

(P.B. 1978-1997, Sec. 996.) (Amended June 25, 2001, to take effect Jan. 1, 2002; amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 1-23. Motion for Disqualification of Judicial Authority

A motion to disqualify a judicial authority shall be in writing and shall be accompanied by an affidavit setting forth the facts relied upon to show the grounds for disqualification and a certificate of the counsel of record that the motion is made in good faith. The motion shall be filed no less than ten days before the time the case is called

for trial or hearing, unless good cause is shown for failure to file within such time.

(P.B. 1978-1997, Sec. 997.)

Sec. 1-24. Record of Off-Site Judicial Proceedings

Absent exceptional circumstances or except as otherwise provided by court rule, where a transcript or recording is made of an off-site judicial proceeding, such record shall be available to the public. The judicial authority will also state on the record in open court, by the next court day, a summary of what occurred at such proceeding.

(Adopted June 29, 2007, to take effect Jan. 1, 2008.)

Sec. 1-25. Actions Subject to Sanctions

(a) No party or attorney shall bring or defend an action, or assert or oppose a claim or contention, unless there is a basis in law and fact for doing so that is not frivolous. Good faith arguments for an extension, modification or reversal of existing law shall not be deemed frivolous.

(b) Except as otherwise provided in these rules, the judicial authority, solely on its own motion and after a hearing, may impose sanctions for actions that include, but are not limited to, the following:

(1) Filing of pleadings, motions, objections, requests or other documents that violate subsection (a) above;

(2) Wilful or repeated failure to comply with rules or orders of the court, including Section 4-7 on personal identifying information;

(3) After prior direction from the court, the filing of any materials or documents that: (A) are not relevant and material to the matter before the court or (B) contain personal, medical or financial information that is not relevant or material to the matter before the court.

(c) The judicial authority may impose sanctions including, but not limited to, fines pursuant to General Statutes § 51-84; orders requiring the offending party to pay costs and expenses, including attorney's fees; and orders restricting the filing of papers with the court.

(d) Offenders subject to such sanctions may include counsel, self-represented parties, and parties represented by counsel.

(Adopted June 13, 2014, to take effect Jan. 1, 2015.)

CHAPTER 2
ATTORNEYS

Sec.
2-1. County Court Designations concerning Bar Admission Process
2-2. Admission
2-3. Bar Examining Committee
2-4. —Regulations by Bar Examining Committee
2-4A. —Records of Bar Examining Committee
2-5. —Examination of Candidates for Admission
2-5A. —Good Moral Character and Fitness To Practice Law
2-6. —Personnel of Bar Examining Committee
2-7. Number of Times an Applicant May Sit for the Examination
2-8. Qualifications for Admission
2-9. Certification of Applicants Recommended for Admission; Conditions of Admission
2-10. Admission by Superior Court; Admission in Absentia
2-11. Monitoring Compliance with Conditions of Admission; Removal or Modification of Conditions
2-11A. Appeal from Decision of Bar Examining Committee concerning Conditions of Admission
2-12. County Committees on Recommendations for Admission
2-13. Attorneys of Other Jurisdictions; Qualifications and Requirements for Admission
2-13A. Military Spouse Temporary Licensing
2-14. —Action by Bar; Temporary License [Repealed]
2-15. —Permanent License [Repealed]
2-15A. —Authorized House Counsel
2-16. —Attorney Appearing Pro Hac Vice
2-17. Foreign Legal Consultants; Licensing Requirements
2-18. —Filings To Become Foreign Legal Consultant
2-19. —Scope of Practice of Foreign Legal Consultants
2-20. —Disciplinary Provisions regarding Foreign Legal Consultants
2-21. —Affiliation of Foreign Legal Consultant with the Bar of the State of Connecticut
2-22. Disposition of Fees for Admission to the Bar
2-23. Roll of Attorneys
2-24. Notice by Attorney of Admission in Other Jurisdictions
2-25. Notice by Attorney of Disciplinary Action in Other Jurisdictions
2-26. Notice by Attorney of Change in Address
2-27. Clients' Funds; Attorney Registration
2-27A. Minimum Continuing Legal Education
2-27B. Enforcement of Attorney Registration and Minimum Continuing Legal Education; Administrative Suspension
2-28. Overdraft Notification
2-28A. Attorney Advertising; Mandatory Filing
2-28B. —Advisory Opinions
2-29. Grievance Panels
2-30. Grievance Counsel for Panels and Investigators
2-31. Powers and Duties of Grievance Counsel
2-32. Filing Complaints against Attorneys; Action; Time Limitation
2-33. Statewide Grievance Committee
2-34. Statewide Bar Counsel
2-34A. Disciplinary Counsel
2-35. Action by Statewide Grievance Committee or Reviewing Committee
Sec.
2-36. Action by Statewide Grievance Committee on Request for Review
2-37. Sanctions and Conditions Which May Be Imposed by Committees
2-38. Appeal from Decision of Statewide Grievance Committee or Reviewing Committee Imposing Sanctions or Conditions
2-39. Reciprocal Discipline
2-40. Discipline of Attorneys Found Guilty of Serious Crimes in Connecticut
2-41. Discipline of Attorneys Found Guilty of Serious Crimes in Another Jurisdiction
2-42. Conduct Constituting Threat of Harm to Clients
2-43. Notice by Attorney of Alleged Misuse of Clients' Funds and Garnishments of Lawyers' Trust Accounts
2-44. Power of Superior Court To Discipline Attorneys and To Restrain Unauthorized Practice
2-44A. Definition of the Practice of Law
2-45. —Cause Occurring in Presence of Court
2-46. Suspension of Attorneys Who Violate Support Orders
2-47. Presentments and Unauthorized Practice of Law Petitions
2-47A. Disbarment of Attorney for Misappropriation of Funds
2-47B. Restrictions on the Activities of Deactivated Attorneys
2-48. Designee To Prosecute Presentments
2-49. Restitution
2-50. Records of Statewide Grievance Committee, Reviewing Committee and Grievance Panel
2-51. Costs and Expenses
2-52. Resignation and Waiver of Attorney Facing Disciplinary Investigation
2-53. Reinstatement after Suspension, Disbarment or Resignation
2-54. Publication of Notice of Reprimand, Suspension, Disbarment, Resignation, Placement on Inactive Status or Reinstatement
2-55. Retirement of Attorney—Right of Revocation
2-55A. Retirement of Attorney—Permanent
2-56. Inactive Status of Attorney
2-57. —Prior Judicial Determination of Incompetency or Involuntary Commitment
2-58. —No Prior Determination of Incompetency or Involuntary Commitment
2-59. —Disability Claimed during Course of Disciplinary Proceeding
2-60. —Reinstatement upon Termination of Disability
2-61. —Burden of Proof in Inactive Status Proceedings
2-62. —Waiver of Doctor-Patient Privilege upon Application for Reinstatement
2-63. Definition of Respondent
2-64. Appointment of Attorney To Protect Clients' and Attorney's Interests
2-65. Good Standing of Attorney
2-66. Practice by Court Officials
2-67. Payment of Attorneys by Bank and Trust Companies
2-68. Client Security Fund Established
2-68A. —Crisis Intervention and Referral Assistance
2-69. —Definition of Dishonest Conduct
2-70. —Client Security Fund Fee
2-71. —Eligible Claims

2-72. —Client Security Fund Committee
2-73. —Powers and Duties of Client Security Fund Committee
2-74. —Regulations of Client Security Fund Committee
2-75. —Processing Claims
2-76. —Confidentiality
2-77. —Review of Status of Fund
2-78. —Attorney's Fee for Prosecuting Claim
2-79. —Enforcement of Payment of Fee
2-80. —Restitution by Attorney
2-81. —Restitution and Subrogation
2-82. Admission of Misconduct; Discipline by Consent
2-83. Effective Dates

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 2-1. County Court Designations concerning Bar Admission Process

(a) For the purposes of this chapter, each Superior Court location designated below shall be the Superior Court for the county in which it is situated: the Superior Court for the judicial district of Bridgeport shall be the Superior Court for Fairfield county; the Superior Court for the judicial district of New Haven at New Haven shall be the Superior Court for New Haven county; the Superior Court for the judicial district of Litchfield at Torrington shall be the Superior Court for Litchfield county; the Superior Court for the judicial district of Hartford at Hartford shall be the Superior Court for Hartford county; the Superior Court for the judicial district of Middlesex at Middletown shall be the Superior Court for Middlesex county; the Superior Court for the judicial district of Tolland at Rockville shall be the Superior Court for Tolland county; the Superior Court for the judicial district of New London at Norwich shall be the Superior Court for New London county; and the Superior Court for the judicial district of Windham at Putnam shall be the Superior Court for Windham county.

(b) The chief clerk for each judicial district court location mentioned above shall be the clerk for the corresponding Superior Court county location.

(P.B. 1978-1997, Sec. 8.) (Amended June 29, 1998, to take effect Sept. 1, 1998; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 2-2. Admission

No person shall be admitted as an attorney except as herein provided.

(P.B. 1978-1997, Sec. 9.)

Sec. 2-3. Bar Examining Committee

(Amended June 26, 2020, to take effect Jan. 1, 2021.)

There shall be a bar examining committee appointed by the judges of the Superior Court consisting of twenty-four members, of whom at least one shall be a judge of said court, and the rest attorneys residing in this state. The term of office of each member shall be three years from the first day of September succeeding appointment, and the terms shall continue to be arranged so that those of eight members shall expire annually. The appointment of any member may be revoked or suspended by the judges or by the executive committee of the Superior Court. In connection with such revocation or suspension, the judges or the executive committee shall appoint a qualified individual to fill the vacancy for the balance of the term or for any other appropriate period. All other vacancies shall be filled by the judges for unexpired terms only, provided that the chief justice may fill such vacancies until the next annual meeting of the judges, and in the event of the foreseen absence or the illness or the disqualification of a member of the bar examining committee the chief justice may make a pro tempore appointment to the bar examining committee to serve during such absence, illness or disqualification. At any meeting of the bar examining committee the members present shall constitute a quorum.

(P.B. 1978-1997, Sec. 11.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 2-4. —Regulations by Bar Examining Committee

(Amended June 26, 2020, to take effect Jan. 1, 2021.)

The bar examining committee shall have the power and authority to implement these rules by regulations relevant thereto and not inconsistent therewith. Such regulations may be adopted at any regular meeting of the committee or at any special meeting called for that purpose. They shall be effective ninety days after publication in one issue of the Connecticut Law Journal and shall at all times be subject to amendment or revision by the committee or by the judges of the Superior Court. A copy shall be provided to the chief justice.

(P.B. 1978-1997, Sec. 12.) (Amended June 20, 2011, to take effect Jan. 1, 2012; amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 2-4A. —Records of Bar Examining Committee

(Amended June 26, 2020, to take effect Jan. 1, 2021.)

(a) All records of the bar examining committee, including transcripts, if any, of hearings conducted by the bar examining committee or the several

standing committees on recommendations for admission to the bar shall not be public.

(b) Unless otherwise ordered by the court, all records that are not public shall be available only to the bar examining committee and its counsel, the statewide grievance committee and its counsel, disciplinary counsel, the client security fund committee and its counsel, a judge of the Superior Court or, with the consent of the applicant, to any other person.

(Adopted June 26, 2006, to take effect Jan. 1, 2007; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 2-5. —Examination of Candidates for Admission

The bar examining committee shall further have the duty, power and authority to provide for the examination of candidates for admission to the bar; to determine whether such candidates are qualified as to prelaw education, legal education, good moral character and fitness to practice law; and to recommend for admission to the bar qualified candidates.

(P.B. 1978-1997, Sec. 13.) (Amended June 21, 2010, to ake effect Jan. 1, 2011; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 2-5A. —Good Moral Character and Fitness To Practice Law

(Amended June 20, 2011, to take effect Sept. 1, 2011.)

(a) Good moral character shall be construed to include, but not be limited to, the following:

(1) The qualities of honesty, fairness, candor and trustworthiness;

(2) Observance of fiduciary responsibility;

(3) Respect for and obedience to the law; and

(4) Respect for the legal rights of others and the judicial process, as evidenced by conduct other than merely initiating or pursuing litigation.

(b) Fitness to practice law shall be construed to include the following:

(1) The cognitive capacity to undertake fundamental lawyering skills such as problem solving, legal analysis and reasoning, legal research, factual investigation, organization and management of legal work, making appropriate reasoned legal judgments, and recognizing and solving ethical dilemmas;

(2) The ability to communicate legal judgments and legal information to clients, other attorneys, judicial and regulatory authorities, with or without the use of aids or devices; and

(3) The capability to perform legal tasks in a timely manner.

(Adopted June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Sept. 1, 2011.)

Sec. 2-6. —Personnel of Bar Examining Committee

(Amended June 26, 2020, to take effect Jan. 1, 2021.)

Such personnel within the legal services division of the Office of the Chief Court Administrator as may be assigned from time to time by the chief court administrator shall assist the bar examining committee in carrying out its duties.

(P.B. 1978-1997, Sec. 14.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 2-7. Number of Times an Applicant May Sit for the Examination

There is no restriction on the number of times an applicant may sit for the examination.

(P.B. 1978-1997, Sec. 15A.)

Sec. 2-8. Qualifications for Admission

To entitle an applicant to admission to the bar, except under Section 2-13 or 2-13A of these rules, the applicant must satisfy the bar examining committee that:

(1) The applicant is a citizen of the United States or an alien lawfully residing in the United States, which shall include an individual authorized to work lawfully in the United States.

(2) The applicant is not less than eighteen years of age.

(3) The applicant is a person of good moral character, is fit to practice law, and has either passed an examination in professional responsibility, which has been approved or required by the committee, or has completed a course in professional responsibility in accordance with the regulations of the committee. Any inquiries or procedures used by the bar examining committee that relate to the health diagnosis, treatment, or drug or alcohol dependence of an applicant must be narrowly tailored and necessary to a determination of the applicant's current fitness to practice law, in accordance with the Americans with Disabilities Act and amendment twenty-one of the Connecticut constitution, and conducted in a manner consistent with privacy rights afforded under the federal and state constitutions or other applicable law.

(4) The applicant has met the educational requirements as may be set, from time to time, by the bar examining committee

(5) The applicant has filed with the director of the bar examining committee an application to take the examination and for admission to the bar, all in accordance with these rules and the regulations of the committee, and has paid such application fee as the committee shall from time to time determine.

(6) The applicant has passed an examination in law in accordance with the regulations of the bar examining committee.

(7) The applicant has complied with all of the pertinent rules and regulations of the bar examining committee.

(8) As an alternative to satisfying the bar examining committee that the applicant has met the committee's educational requirements, the applicant who meets all the remaining requirements of this section may substitute proof satisfactory to the committee that: (A) the applicant has been admitted to practice before the highest court of original jurisdiction in one or more states, the District of Columbia or the Commonwealth of Puerto Rico or in one or more district courts of the United States for ten or more years and at the time of filing the application is a member in good standing of such a bar; and (B) the applicant has actually practiced law in such a jurisdiction for not less than five years during the seven year period immediately preceding the filing date of the application.

(P.B. 1978-1997, Sec. 16.) (Amended June 29, 2007, to take effect Jan. 1, 2008; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 15, 2018, to take effect July 3, 2018; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 2-9. Certification of Applicants Recommended for Admission; Conditions of Admission

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) The bar examining committee shall certify the names of applicants recommended by it for admission to the bar and shall notify the applicants of its decision.

(b) The bar examining committee may, in light of the health diagnosis, treatment, or drug or alcohol dependence of an applicant that has caused conduct or behavior that would otherwise have rendered the applicant currently unfit to practice law, determine that it will only recommend an applicant for admission to the bar conditional upon the applicant's compliance with conditions prescribed by the committee relevant to the health diagnosis, treatment, or drug or alcohol dependence or fitness of the applicant. Such determination shall be made after a hearing on the record is conducted by the committee or a panel thereof consisting of at least three members appointed by the chair, unless such hearing is waived by the applicant. Such conditions shall be tailored to detect recurrence of the conduct or behavior which could render an applicant unfit to practice law or pose a risk to clients or the public and to encourage continued treatment, abstinence, or other support. The conditional admission period shall not exceed five years, unless the conditionally admitted attorney fails to comply with the conditions of admission, and the committee or the court determines, in accordance with the procedures set forth in Section 2-11, that a further period of conditional admission is necessary. The committee shall notify the applicant by mail of its decision and that the applicant must sign an agreement with the committee under oath affirming acceptance of such conditions and that the applicant will comply with them. Upon receipt of this agreement from the applicant, duly executed, the committee shall recommend the applicant for admission to the bar as provided herein. The committee shall forward a copy of the agreement to the statewide bar counsel, who shall be considered a party for purposes of defending an appeal under Section 2-11A.

(P.B. 1978-1997, Sec. 17.) (Amended June 30, 2008, to take effect Jan. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 2-10. Admission by Superior Court; Admission in Absentia

(Amended June 10, 2022, to take effect Jan. 1, 2023.)

(a) Each applicant who shall be recommended for admission to the bar, except under subsection (c), shall present himself or herself to the Superior Court, or to either the Supreme Court or the Appellate Court sitting as the Superior Court, at such place and at such time as shall be prescribed by the bar examining committee, or shall be prescribed by the Supreme Court or the Appellate Court, and such court may then, upon motion, admit such person as an attorney. The director shall give notice to each clerk of the names of the newly admitted attorneys. At the time such applicant is admitted as an attorney, the applicant shall be sworn as a Commissioner of the Superior Court.

(b) The administrative judge of said judicial district or a designee or the chief justice of the Supreme Court or a designee or the chief judge of the Appellate Court or a designee may deliver an address to the applicants so admitted respecting their duties and responsibilities as attorneys.

(c) The bar examining committee may, upon election by a candidate, recommend the candidate for admission in absentia. Upon the administration of the oaths taken as Commissioner of the Superior Court and for admission to the bar by an official duly qualified to administer oaths, the candidate who has taken the oaths shall be admitted to the Connecticut bar in absentia. The candidate shall complete the oaths and submit the

original affidavits to the bar examining committee within 180 days from the date of certification.

(P.B. 1978-1997, Sec. 18.) (Amended June 26, 2020, to take effect Jan. 1, 2021; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 2-11. Monitoring Compliance with Conditions of Admission; Removal or Modification of Conditions

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) If an applicant is admitted to the bar after signing an agreement with the bar examining committee under oath affirming acceptance of the conditions prescribed by the bar examining committee pursuant to Section 2-9 (b) and that he or she will comply with them, the statewide bar counsel shall monitor the attorney's compliance with those conditions pursuant to regulations adopted by the Statewide Grievance Committee governing such monitoring. The attorney so admitted or the statewide bar counsel may make application to the bar examining committee to remove or modify the conditions previously agreed to by such attorney as circumstances warrant. The bar examining committee, or a panel thereof consisting of at least three members appointed by its chair, shall conduct a hearing on the application, which shall be on the record, and shall also receive and consider a report from the statewide bar counsel on the matter. Such hearing may be waived by the applicant and the statewide bar counsel. If, upon such application, the bar examining committee modifies such conditions, the attorney shall sign an agreement with the bar examining committee under oath affirming acceptance of the modified conditions and that he or she will comply with them, and the statewide bar counsel shall monitor the attorney's compliance with them. The statewide bar counsel shall be considered a party for purposes of defending an appeal under Section 2-11A. All information relating to conditional admission of an applicant or attorney shall remain confidential unless otherwise ordered by the court, except that a copy of the signed agreement and information related to compliance with the conditions may be made available upon request to disciplinary counsel or, with the consent of the applicant or attorney, to any other agency or person.

(b) Upon the failure of the attorney to comply with the conditions of admission or the monitoring requirements adopted by the Statewide Grievance Committee, the statewide bar counsel shall apply to the court in the judicial district of Hartford for an appropriate order. The court, after hearing upon such application, may take such action as it deems appropriate. Thereafter, upon application of the attorney or of the statewide bar counsel and upon good cause shown, the court may set aside or modify the order rendered pursuant hereto.

(P.B. 1978-1997, Sec. 18A.) (Amended June 29, 1998, to take effect Sept. 1, 1998; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 26, 2006, to take effect Jan. 1, 2021.)

Sec. 2-11A. Appeal from Decision of Bar Examining Committee concerning Conditions of Admission

(a) A decision by the bar examining committee prescribing conditions for admission to the bar under Section 2-9 (b) or on an application to remove or modify conditions of admission under Section 2-11 (a) may be appealed to the Superior Court by the bar applicant or attorney who is the subject of the decision. Within thirty days from the issuance of the decision of the committee, the appellant shall: (1) file the appeal with the clerk of the Superior Court for the judicial district of Hartford and (2) mail a copy of the appeal by certified mail, return receipt requested or with electronic delivery confirmation, to the Office of the Statewide Bar Counsel and to the Office of the Director of the Bar Examining Committee as agent for the committee. The statewide bar counsel shall be considered a party for purposes of defending an appeal under this section.

(b) The filing of an appeal shall not, of itself, stay enforcement of the bar examining committee's decision. An application for a stay may be made to the committee, to the court or to both. Filing of an application with the committee shall not preclude action by the court. A stay, if granted, shall be on appropriate terms.

(c) Within thirty days after the service of the appeal, or within such further time as may be allowed by the court, the director of the bar examining committee shall transmit to the reviewing court a certified copy of the entire record of the proceeding appealed from, which shall include a transcript of any testimony heard by the committee and the decision of the committee. By stipulation of all parties to such appeal proceedings, the record may be shortened. The court may require or permit subsequent corrections or additions to the record.

(d) The appellant shall file a brief within thirty days after the filing of the record by the bar examining committee. The appellee shall file its brief within thirty days of the filing of the appellant's brief. Unless permission is given by the court for good cause shown, briefs shall not exceed thirty-five pages.

(e) The appeal shall be conducted by the court without a jury and shall be confined to the record. If alleged irregularities in procedure before the bar

examining committee are not shown in the record, proof limited thereto may be taken in the court. The court, upon request, shall hear oral argument.

(f) Upon appeal, the court shall not substitute its judgment for that of the bar examining committee as to the weight of the evidence on questions of fact. The court shall affirm the decision of the committee unless the court finds that substantial rights of the appellant have been prejudiced because the committee's findings, inferences, conclusions, or decisions are: (1) in violation of constitutional provisions, rules of practice or statutory provisions; (2) in excess of the authority of the committee; (3) made upon unlawful procedure; (4) affected by other error of law; (5) clearly erroneous in view of the reliable, probative, and substantial evidence on the whole record; or (6) arbitrary or capricious or characterized by abuse of discretion or clearly unwarranted exercise of discretion. If the court finds such prejudice, it shall sustain the appeal and, if appropriate, rescind the action of the committee or take such other action as may be necessary. For purposes of further appeal, the action taken by the Superior Court hereunder is a final judgment.

(g) In all appeals taken under this section, costs may be taxed in favor of the statewide bar counsel in the same manner, and to the same extent, that costs are allowed in judgments rendered by the Superior Court. No costs shall be taxed against the bar examining committee, except that the court may, in its discretion, award to the appellant reasonable fees and expenses if the court determines that the action of the committee was undertaken without any substantial justification. "Reasonable fees and expenses" means any expenses not in excess of $7500 that the court finds were reasonably incurred in opposing the committee's action, including court costs, expenses incurred in administrative proceedings, attorney's fees, witness fees of all necessary witnesses, and such other expenses as were reasonably incurred.

(h) All information relating to the conditional admission of an applicant or attorney who is subject to the decision, including information submitted in connection with the appeal under this section, shall be confidential unless otherwise ordered by the court, except that information submitted in connection with an appeal and the court's decision on the appeal may be made available upon request to disciplinary counsel or, with the consent of the applicant or attorney who is subject to the decision, to any other person.

(Adopted June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 2-12. County Committees on Recommendations for Admission

There shall be in each county a standing committee on recommendations for admission, consisting of not less than three nor more than seven members of the bar of that county, who shall be appointed by the judges of the Superior Court to hold office for three years from the date of their appointment and until their successors are appointed. The appointment of any member may be revoked or suspended by the judges or by the executive committee of the Superior Court. In connection with such revocation or suspension, the judges or the executive committee shall appoint a qualified individual to fill the vacancy for the balance of the term or for any other appropriate period. Appointments to fill vacancies which have arisen by reasons other than revocation or suspension may be made by the chief justice until the next annual meeting of the judges of the Superior Court, and, in the event of the foreseen absence or the illness or the disqualification of a member of the committee, the chief justice may make a pro tempore appointment to the committee to serve during such absence, illness or disqualification.

(P.B. 1978-1997, Sec. 19.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 2-13. Attorneys of Other Jurisdictions; Qualifications and Requirements for Admission

(a) Any member of the bar of another state or territory of the United States or the District of Columbia, who, after satisfying the bar examining committee that his or her educational qualifications are such as would entitle him or her to take the examination in Connecticut, and that (i) at least one jurisdiction in which he or she is a member of the bar is reciprocal to Connecticut in that it would admit a member of the bar of Connecticut to its bar without examination under provisions similar to those set out in this section or (ii) he or she is a full-time faculty member or full-time clinical fellow at an accredited Connecticut law school and admitted in a reciprocal or nonreciprocal jurisdiction, shall satisfy the committee that he or she:

(1) is of good moral character, is fit to practice law, and has either passed an examination in professional responsibility or has completed a course in professional responsibility in accordance with the regulations of the committee;

(2) has been duly licensed to practice law before the highest court of a reciprocal state or territory of the United States or in the District of Columbia if reciprocal to Connecticut, or that he or she is a

full-time faculty member or full-time clinical fellow at an accredited Connecticut law school and admitted in a reciprocal or nonreciprocal jurisdiction and (A) has lawfully engaged in the practice of law as the applicant's principal means of livelihood for at least five of the ten years immediately preceding the date of the application and is in good standing, or (B) if the applicant has taken the bar examinations of Connecticut and failed to pass them, the applicant has lawfully engaged in the practice of law as his or her principal means of livelihood for at least five of the ten years immediately preceding the date of the application and is in good standing, provided that such five years of practice shall have occurred subsequent to the applicant's last failed Connecticut examination; and

(3) is a citizen of the United States or an alien lawfully residing in the United States, which shall include an individual authorized to work lawfully in the United States, may be admitted as an attorney without examination upon application and the payment of such fee as the committee shall from time to time determine, upon compliance with the following requirements. Such application shall be filed with the director of the committee and shall set forth the applicant's qualifications as hereinbefore provided, and shall certify whether such applicant has a grievance pending against him or her, has ever been reprimanded, suspended, placed on inactive status, disbarred, or has ever resigned from the practice of law and, if so, setting forth the circumstances concerning such action. The following recommendations shall be filed by the person making the recommendation:

(A) recommendations from two attorneys who personally know the applicant certifying to his or her good moral character and fitness to practice law and supporting, to the satisfaction of the committee, his or her practice of law as defined under subdivision (2) of this subsection; and

(B) recommendations from two members of the bar of Connecticut of at least five years' standing, certifying that the applicant is of good moral character and is fit to practice law.

(b) For the purpose of this rule, the "practice of law" shall include the following activities, if performed after the date of the applicant's admission to the jurisdiction in which the activities were performed, or if performed in a jurisdiction that permits such activity by a lawyer not admitted to practice:

(1) representation of one or more clients in the practice of law;

(2) service as a lawyer with a state, federal, or territorial agency, including military services;

(3) teaching law at an accredited law school, including supervision of law students within a clinical program;

(4) service as a judge in a state, federal, or territorial court of record;

(5) service as a judicial law clerk;

(6) service as authorized house counsel;

(7) service as authorized house counsel in Connecticut before July 1, 2008, or while certified pursuant to Section 2-15A; or

(8) any combination of the above.

(P.B. 1978-1997, Sec. 21.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 15, 2012, to take effect Sept. 1, 2012; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 15, 2018, to take effect July 3, 2018; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 2-13A. Military Spouse Temporary Licensing

(a) Qualifications. An applicant who meets all of the following requirements listed in subdivisions (1) through (11) of this subsection may be temporarily licensed and admitted to the practice of law in Connecticut, upon approval of the bar examining committee. The applicant:

(1) is the spouse of an active duty service member of the United States Army, Navy, Air Force, Marine Corps, Coast Guard or Space Force and that service member is or will be stationed in Connecticut due to military orders;

(2) is licensed to practice law before the highest court in at least one state or territory of the United States or in the District of Columbia;

(3) is currently an active member in good standing in every jurisdiction to which the applicant has been admitted to practice, or has resigned or become inactive or had a license administratively suspended or revoked while in good standing from every jurisdiction without any pending disciplinary actions;

(4) is not currently subject to lawyer discipline or the subject of a pending disciplinary matter in any other jurisdiction;

(5) meets the educational qualifications required to take the examination in Connecticut;

(6) possesses the good moral character and fitness to practice law required of all applicants for admission in Connecticut;

(7) has passed an examination in professional responsibility or has completed a course in professional responsibility in accordance with the regulation of the bar examining committee;

(8) is or will be physically residing in Connecticut due to the service member's military orders;

(9) has not failed the Connecticut bar examination the past five years;

(10) has not had an application for admission to the Connecticut bar or the bar of any state, the District of Columbia or United States territory denied on character and fitness grounds; and

(11) has not failed to achieve the Connecticut scaled score on the uniform bar examination administered within any jurisdiction within the past five years.

(b) **Application Requirements.** Any applicant seeking a temporary license to practice law in Connecticut under this section shall file an application and payment of such fee as the bar examining committee shall from time to time determine. Such application shall be filed with the director of the committee and shall set forth the applicant's qualifications as hereinbefore provided, and shall certify whether the applicant has a grievance pending against him or her, has ever been reprimanded, suspended, placed on inactive status, disbarred, or has ever resigned from the practice of law and, if so, setting forth the circumstances concerning such action. In addition, the applicant shall file with the committee the following:

(1) a copy of the applicant's military spouse dependent identification and documentation evidencing a spousal relationship with the service member;

(2) a copy of the service member's military orders to a military installation in Connecticut or a letter from the service member's command verifying that the requirement in subsection (a) (8) of this section is met;

(3) certificate(s) of good standing from the highest court of each state, the District of Columbia or United States territory to which the applicant has been admitted, or proof that the applicant has resigned, or become inactive or had a license administratively suspended or revoked while in good standing; and

(4) recommendations from two attorneys who personally know the applicant certifying to his or her good moral character and fitness to practice law.

(c) **Duration and Renewal.**

(1) A temporary license to practice law issued under this rule will be valid for three years provided that the temporarily licensed attorney remains a spouse of the service member and resides in Connecticut due to military orders or continues to reside in Connecticut due to the service member's immediately subsequent assignment specifying that dependents are not authorized to accompany the service member. The temporary license may be renewed for one additional two year period.

(2) A renewal application must be submitted with the appropriate fee as established by the bar examining committee and all other documentation required by the bar examining committee, including a copy of the service member's military orders. Such renewal application shall be filed not less than thirty days before the expiration of the original three year period.

(3) A temporarily licensed attorney who wishes to become a permanent member of the bar of Connecticut may apply for admission by examination or for admission without examination for the standard application fee minus the application fee paid to the committee for the application for temporary license, not including any fees for renewal.

(d) **Termination**.

(1) Termination of Temporary License. A temporary license shall terminate, and a temporarily licensed attorney shall cease the practice of law in Connecticut pursuant to that admission, unless otherwise authorized by these rules, thirty days after any of the following events:

(A) the service member's separation or retirement from military service;

(B) the service member's permanent relocation to another jurisdiction, unless the service member's immediately subsequent assignment specifies that the dependents are not authorized to accompany the service member, in which case the attorney may continue to practice law in Connecticut as provided in this rule until the service member departs Connecticut for a permanent change of station where the presence of dependents is authorized;

(C) the attorney's permanent relocation outside of the state of Connecticut for reasons other than the service member's relocation;

(D) upon the termination of the attorney's spousal relationship to the service member;

(E) the attorney's failure to meet the annual licensing requirements for an active member of the bar of Connecticut;

(F) the attorney's request;

(G) the attorney's admission to practice law in Connecticut by examination or without examination;

(H) the attorney's denial of admission to the practice of law in Connecticut; or

(I) the death of the service member.

Notice of one of the events set forth in subsection (d) (1) must be filed with the bar examining committee by the temporarily licensed attorney within thirty days of such event. Notice of the event set forth in subsection (d) (1) (I) must be filed with the committee by the temporarily licensed attorney within thirty days of the event, and the attorney shall cease the practice of law within one

year of the event. Failure to provide such notice by the temporarily licensed attorney shall be a basis for discipline pursuant to the Rules of Professional Conduct for attorneys.

(2) Notice of Termination of Temporary License. Upon receipt of the notice required by subsection (d) (1), the bar examining committee shall forward a request to the statewide bar counsel that the license under this chapter be revoked. Notice of the revocation shall be mailed by the statewide bar counsel to the temporarily licensed attorney.

(3) Notices Required. At least sixty days before termination of the temporary admission, or as soon as possible under the circumstances, the attorney shall:

(A) file in each matter pending before any court, tribunal, agency or commission a notice that the attorney will no longer be involved in the case; and

(B) provide written notice to all clients receiving representation from the attorney that the attorney will no longer represent them.

(e) **Responsibilities and Obligations.**

An attorney temporarily licensed under this section shall be subject to all responsibilities and obligations of active members of the Connecticut bar, and shall be subject to the jurisdiction of the courts and agencies of Connecticut, and shall be subject to the laws and rules of Connecticut governing the conduct and discipline of attorneys to the same extent as an active member of the Connecticut bar. The attorney shall maintain participation in a mentoring program provided by a state or local bar association in the state of Connecticut.

(Adopted June 23, 2017, to take effect Jan. 1, 2018; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 9, 2023, to take effect Jan. 1, 2024; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 2-14. —Action by Bar; Temporary License

[Repealed as of Jan. 1, 2012.]

Sec. 2-15. —Permanent License

[Repealed as of Jan. 1, 2012.]

Sec. 2-15A. —Authorized House Counsel

(a) **Purpose**

The purpose of this section is to clarify the status of house counsel as authorized house counsel as defined herein, and to confirm that such counsel are subject to regulation by the judges of the Superior Court. Notwithstanding any other section of this chapter relating to admission to the bar, this section shall authorize attorneys licensed to practice in jurisdictions other than Connecticut to be permitted to undertake these activities, as defined herein, in Connecticut without the requirement of taking the bar examination so long as they are exclusively employed by an organization.

(b) **Definitions**

(1) **Authorized House Counsel**. An "authorized house counsel" is any person who:

(A) is a member in good standing of the entity governing the practice of law of each state (other than Connecticut) or territory of the United States, or the District of Columbia or any foreign jurisdiction in which the member is licensed;

(B) has been certified on recommendation of the bar examining committee in accordance with this section;

(C) agrees to abide by the rules regulating members of the Connecticut bar and submit to the jurisdiction of the Statewide Grievance Committee and the Superior Court; and

(D) is, at the date of application for registration under this rule, employed in the state of Connecticut by an organization or relocating to the state of Connecticut in furtherance of such employment within three months prior to starting work in the state of Connecticut or three months after the applicant begins work in the state of Connecticut of such application under this section and receives or shall receive compensation for activities performed for that business organization.

(2) **Organization**. An "organization" for the purpose of this rule is a corporation, partnership, association, or employer sponsored benefit plan or other legal entity (taken together with its respective parents, subsidiaries, and affiliates) that is not itself engaged in the practice of law or the rendering of legal services outside such organization, whether for a fee or otherwise, and does not charge or collect a fee for the representation or advice other than to entities comprising such organization for the activities of the authorized house counsel.

(c) **Activities**

(1) **Authorized Activities**. An authorized house counsel, as an employee of an organization, may provide legal services in the state of Connecticut to the organization for which a registration pursuant to subsection (d) is effective, provided, however, that such activities shall be limited to:

(A) the giving of legal advice to the directors, officers, employees, trustees, and agents of the organization with respect to its business and affairs;

(B) negotiating and documenting all matters for the organization; and

(C) representation of the organization in its dealings with any administrative agency, tribunal or commission having jurisdiction; provided, however, authorized house counsel shall not be permitted to make appearances as counsel before

any state or municipal administrative tribunal, agency, or commission, and shall not be permitted to make appearances in any court of this state, unless the attorney is specially admitted to appear in a case before such tribunal, agency, commission or court.

(2) **Disclosure**. Authorized house counsel shall not represent themselves to be members of the Connecticut bar or commissioners of the Superior Court licensed to practice law in this state. Such counsel may represent themselves as Connecticut authorized house counsel.

(3) **Limitation on Representation**. In no event shall the activities permitted hereunder include the individual or personal representation of any shareholder, owner, partner, officer, employee, servant, or agent in any matter or transaction or the giving of advice therefor unless otherwise permitted or authorized by law, code, or rule or as may be permitted by subsection (c) (1). Authorized house counsel shall not be permitted to prepare legal instruments or documents on behalf of anyone other than the organization employing the authorized house counsel.

(4) **Limitation on Opinions to Third Parties.** An authorized house counsel shall not express or render a legal judgment or opinion to be relied upon by any third person or party other than legal opinions rendered in connection with commercial, financial or other business transactions to which the authorized house counsel's employer organization is a party and in which the legal opinions have been requested from the authorized house counsel by another party to the transaction. Nothing in this subsection (c) (4) shall permit authorized house counsel to render legal opinions or advice in consumer transactions to customers of the organization employing the authorized house counsel.

(5) **Pro Bono Legal Services**. Notwithstanding anything to the contrary in this section, an authorized house counsel may participate in the provision of any and all legal services pro bono publico in Connecticut offered under the supervision of an organized legal aid society or state/local bar association project, or of a member of the Connecticut bar who is also working on the pro bono representation.

(d) **Registration**

(1) **Filing with the Bar Examining Committee**. The bar examining committee shall investigate whether the applicant is at least eighteen years of age and is of good moral character, consistent with the requirement of Section 2-8 (3) regarding applicants for admission to the bar. In addition, the applicant shall file an application and payment of such fee as the committee shall from time to time determine.

(A) The application shall:

(i) certify that the applicant has read and is familiar with the Connecticut Rules of Professional Conduct for attorneys and Chapter 2 (Attorneys) of the Superior Court Rules, General Provisions, and will abide by the provisions thereof;

(ii) certify that the applicant submits to the jurisdiction of the Statewide Grievance Committee and the Superior Court for disciplinary purposes and authorizes notification to or from the entity governing the practice of law of each state or territory of the United States or the District of Columbia in which the applicant is licensed to practice law of any disciplinary action taken against the applicant;

(iii) list any jurisdiction in which the applicant is now or ever has been licensed to practice law; and

(iv) disclose any disciplinary sanction or pending proceeding pertaining or relating to the applicant's license to practice law, including but not limited to reprimand, censure, suspension or disbarment, or whether the applicant has been placed on inactive status.

(B) The applicant shall file with the bar examining committee:

(i) a certificate from each entity governing the practice of law of a state or territory of the United States or the District of Columbia or any foreign jurisdiction in which the applicant is licensed to practice law certifying that the applicant is a member in good standing;

(ii) a certificate from an organization certifying that it is qualified as set forth in subsection (b) (2); that it is aware that the applicant is not licensed to practice law in Connecticut; and that the applicant is employed or about to be employed in Connecticut by the organization as set forth in subsection (b) (1) (D); and

(iii) a recommendation from each of two members of the Connecticut bar, who have each been licensed to practice law in Connecticut for at least five years, certifying that the applicant is of good moral character and that the applicant is employed or will be employed by an organization as defined above in subsection (b) (2).

(2) **Certification**. Upon recommendation of the bar examining committee, the applicant shall be certified as authorized house counsel in absentia. Upon the administration of the oath taken as authorized house counsel by an official duly qualified to administer oaths, the applicant who has taken the oath shall be certified as authorized house counsel in absentia. The applicant shall complete the oath and submit the original affidavit to the bar examining committee within 180 days from the date of certification. The committee shall

cause notice of such certification to be published in the Connecticut Law Journal.

(3) **Annual Client Security Fund Fee**. Individuals certified pursuant to this section shall comply with the requirements of Sections 2-68 and 2-70 of this chapter, including payment of the annual fee and shall pay any other fees imposed on attorneys by court rule.

(4) **Annual Registration**. Individuals certified pursuant to this section shall register annually with the Statewide Grievance Committee in accordance with Sections 2-26 and 2-27 (d) of this chapter.

(e) **Termination or Withdrawal of Registration**

(1) **Cessation of Authorization To Perform Services**. Authorization to perform services under this rule shall cease upon the earliest of the following events:

(A) the termination or resignation of employment with the organization for which registration has been filed, provided, however, that if the authorized house counsel shall commence employment with another organization within thirty days of the termination or resignation, authorization to perform services under this rule shall continue upon the filing with the bar examining committee of a certificate as set forth in subsection (d) (1) (B) (ii);

(B) the withdrawal of registration by the authorized house counsel;

(C) the relocation of an authorized house counsel outside of Connecticut for a period greater than 180 consecutive days; or

(D) the failure of authorized house counsel to comply with any applicable provision of this rule.

Notice of one of the events set forth in subsections (e) (1) (A) through (C) or a new certificate as provided in subsection (e) (1) (A) must be filed with the bar examining committee by the authorized house counsel within thirty days after such action. Failure to provide such notice by the authorized house counsel shall be a basis for discipline pursuant to the Rules of Professional Conduct for attorneys.

(2) **Notice of Withdrawal of Authorization**. Upon receipt of the notice required by subsection (e) (1), the bar examining committee shall forward a request to the statewide bar counsel that the authorization under this chapter be revoked. Notice of the revocation shall be mailed by the statewide bar counsel to the authorized house counsel and the organization employing the authorized house counsel.

(3) **Reapplication**. Nothing herein shall prevent an individual previously authorized as house counsel to reapply for authorization as set forth in subsection (d).

(f) **Discipline**

(1) **Termination of Authorization by Court**. In addition to any appropriate proceedings and discipline that may be imposed by the Statewide Grievance Committee, the Superior Court may, at any time, with cause, terminate an authorized house counsel's registration, temporarily or permanently.

(2) **Notification to Other States**. The statewide bar counsel shall be authorized to notify each entity governing the practice of law in the state or territory of the United States, or the District of Columbia, in which the authorized house counsel is licensed to practice law, of any disciplinary action against the authorized house counsel.

(g) **Transition**

(1) **Preapplication Employment in Connecticut**. The performance of an applicant's duties as an employee of an organization in Connecticut prior to the effective date of this rule shall not be grounds for the denial of registration of such applicant if application for registration is made within six months of the effective date of this rule.

(2) **Immunity from Enforcement Action**. An authorized house counsel who has been duly registered under this rule shall not be subject to enforcement action for the unlicensed practice of law for acting as counsel to an organization prior to the effective date of this rule.

(Adopted June 29, 2007, to take effect Jan. 1, 2008; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 9, 2023, to take effect Jan. 1, 2024 ; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In subdivision (e) (1) (A), "(C)" after "(1)" was deleted and replaced with "(B) (ii)."

COMMENTARY—2026: The change to this section corrects a citation to a reference in the rule.

Sec. 2-16. —Attorney Appearing Pro Hac Vice

An attorney who is in good standing at the bar of another state, the District of Columbia, or the Commonwealth of Puerto Rico, may, upon special and infrequent occasion and for good cause shown upon written application on one of the following forms prescribed by the chief court administrator, form JD-CL-141, Application for Permission for Attorney to Appear Pro Hac Vice in a Court Case, or, form JD-CL-142, Application for Permission for Attorney to Appear Pro Hac Vice before a Municipal or State Agency, Commission, Board or Tribunal, presented by a member of the bar of this state, be permitted in the discretion of the court to participate to such extent as the court may prescribe in the presentation of a cause or appeal in any state court or a proceeding before any municipal or state agency, commission, board

or tribunal (hereinafter referred to as "proceeding") in this state; provided, however, that (1) such application shall be accompanied by the affidavit of the applicant, on form JD-CL-143, Affidavit of Attorney Seeking Permission to Appear Pro Hac Vice, (A) providing the full legal name of the applicant with contact information, including firm name, business mailing address, telephone number and email address, as applicable, (B) certifying whether such applicant has a grievance pending against him or her in any other jurisdiction, has ever been reprimanded, suspended, placed on inactive status, disbarred, or otherwise disciplined, or has ever resigned from the practice of law and, if so, setting forth the circumstances concerning such action, (C) certifying that the applicant has paid the client security fund fee due for the calendar year in which the application has been made, (D) designating the chief clerk of the Superior Court for the judicial district in which the attorney will be appearing as his or her agent upon whom process and service of notice may be served, (E) agreeing to register with the Statewide Grievance Committee in accordance with the provisions of this chapter while appearing in the matter in this state and for two years after the completion of the matter in which the attorney appeared, and to notify the Statewide Grievance Committee of the expiration of the two year period, (F) identifying the number of times the attorney has appeared pro hac vice in the Superior Court or in any other proceedings of this state since the attorney first appeared pro hac vice in this state, listing each such case or proceeding by name and docket number, as applicable, and (G) providing any previously assigned juris number, (2) the filing fee shall be paid with the court for the application submitted pursuant to General Statutes § 52-259 (i) unless Section 62-8A (a) applies and (3) unless excused by the judicial authority, a member of the bar of this state must be present at all proceedings, including depositions in a proceeding, and must sign all pleadings, briefs and other papers filed with the court, local or state administrative agency, commission, board or tribunal, and assume full responsibility for them and for the conduct of the cause or proceeding and of the attorney to whom such privilege is accorded. Where feasible, the application shall be made to the judge before whom such case is likely to be tried. If not feasible, or if no case is pending before the Superior Court, the application shall be made to the administrative judge in the judicial district where the matter is to be tried or the proceeding is to be conducted. Good cause for according such privilege shall be limited to facts or circumstances affecting the personal or financial welfare of the client and not the attorney. Such facts may include a showing that by reason of a longstanding attorney-client relationship predating the cause of action or subject matter of the litigation at bar, or proceeding, the attorney has acquired a specialized skill or knowledge with respect to the client's affairs important to the trial of the cause or presentation of the proceeding, or that the litigant is unable to secure the services of Connecticut counsel. Upon the granting of an application to appear pro hac vice, the clerk of the court in which the application is granted shall immediately notify the Superior Court Operations designee of such action. Any person granted permission to appear in a cause, appeal or proceeding pursuant to this section shall comply with the requirements of Sections 2-68 and 2-70 and General Statutes § 51-81b and shall pay such fee and tax when due as prescribed by those sections for each year such person appears in the matter. If the clerk for the judicial district or appellate court in which the matter is pending is notified that such person has failed to pay the fee as required by Sections 2-68 and 2-70, the court shall determine after a hearing the appropriate sanction, which may include termination of the privilege of appearing in the cause, appeal or proceeding.

(P.B. 1978-1997, Sec. 24.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 2-17. Foreign Legal Consultants; Licensing Requirements

Upon recommendation of the bar examining committee, an applicant may be licensed to practice as a foreign legal consultant, without examination, who:

(1) has been admitted to practice (or has obtained the equivalent of admission) in a foreign country, and has engaged in the practice of law in that country, and has been in good standing as an attorney or counselor at law (or the equivalent of either) in that country, for a period of not less than five of the seven years immediately preceding the date of application;

(2) possesses the good moral character and fitness to practice law requisite for a member of the bar of this court; and

(3) is at least twenty-six years of age.

(P.B. 1978-1997, Sec. 24B.) (Amended June 21, 2010, to take effect Jan. 1, 2011; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 2-18. —Filings To Become Foreign Legal Consultant

(a) An applicant for a license to practice as a foreign legal consultant shall file with the director of the bar examining committee:

(1) an application and payment of such fee as the bar examining committee shall from time to time determine;

(2) a certificate from the authority in the foreign country having final jurisdiction over professional discipline, certifying to the applicant's admission to practice (or the equivalent of such admission) and the date thereof and to the applicant's good standing as an attorney or counselor at law (or the equivalent of either), together with a duly authenticated English translation of such certificate if it is not in English; and

(3) two recommendations, one from a member in good standing of the Connecticut bar and another from either a member in good standing of the bar of the country in which the applicant is licensed as an attorney, or from a judge of one of the courts of original jurisdiction of said country, together with a duly authenticated English translation of each letter if it is not in English.

(b) Upon a showing that strict compliance with the provisions of Section 2-17 (1) and subdivisions (2) or (3) of subsection (a) of this section is impossible or very difficult for reasons beyond the control of the applicant, or upon a showing of exceptional professional qualifications to practice as a foreign legal consultant, the court may, in its discretion, waive or vary the application of such provisions and permit the applicant to make such other showing as may be satisfactory to the court.

(c) The bar examining committee shall investigate the qualifications, moral character, and fitness of any applicant for a license to practice as a foreign legal consultant and may in any case require the applicant to submit any additional proof or information as the committee may deem appropriate. The committee may also require the applicant to submit a report from the National Conference of Bar Examiners, and to pay the prescribed fee therefor, with respect to the applicant's character and fitness.

(P.B. 1978-1997, Sec. 24C.) (Amended June 21, 2010, to take effect Jan. 1, 2011; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 2-19. —Scope of Practice of Foreign Legal Consultants

A person licensed to practice as a foreign legal consultant under these rules is limited to advising Connecticut clients only on the law of the foreign country in which such person is admitted to practice law. Such person shall not:

(1) in any way hold himself or herself out as a member of the bar of the state of Connecticut; or

(2) use in this state any title other than "foreign legal consultant," but in conjunction therewith may indicate the foreign country in which he or she is licensed to practice law.

(P.B. 1978-1997, Sec. 24D.)

Sec. 2-20. —Disciplinary Provisions regarding Foreign Legal Consultants

(a) Every person licensed to practice as a foreign legal consultant under these rules:

(1) shall be subject to the Connecticut Rules of Professional Conduct and to the rules of practice regulating the conduct of attorneys in this state to the extent applicable to the legal services authorized under these rules, and shall be subject to reprimand, suspension, or revocation of license to practice as a foreign legal consultant by the court;

(2) shall execute and file with the clerk, in such form and manner as the court may prescribe:

(A) a written commitment to observe the Connecticut Rules of Professional Conduct and other rules regulating the conduct of attorneys as referred to in subsection (a) (1) of this section,

(B) an undertaking or appropriate evidence of professional liability insurance, in such amount as the court may prescribe, to assure the foreign legal consultant's proper professional conduct and responsibility,

(C) a duly acknowledged instrument in writing setting forth the foreign legal consultant's address in the state of Connecticut or United States, and designating the clerk of the Superior Court for the judicial district of Hartford as his or her agent upon whom process may be served. Such service shall have the same effect as if made personally upon the foreign legal consultant, in any action or proceeding thereafter brought against the foreign legal consultant and arising out of or based upon any legal services rendered or offered to be rendered by the foreign legal consultant within or to residents of the state of Connecticut, and

(3) a written commitment to notify the clerk of the foreign legal consultant's resignation from practice in the foreign country of his or her admission or in any other state or jurisdiction in which said person has been admitted to practice law, or of any censure, reprimand, suspension, revocation or other disciplinary action relating to his or her right to practice in such country, state or jurisdiction.

(b) Service of process on the clerk pursuant to the designation filed as aforesaid shall be made by personally delivering to and leaving with the clerk, or with a deputy or assistant authorized by

the clerk to receive service, at the clerk's office, duplicate copies of such process together with a fee of $20. Service of process shall be complete when the clerk has been so served. The clerk shall promptly send one of the copies to the foreign legal consultant to whom the process is directed, by certified mail, return receipt requested or with electronic delivery confirmation, addressed to the foreign legal consultant at the address given to the court by the foreign legal consultant as aforesaid.

(c) In imposing any sanction authorized by subsection (a) (1), the court may act sua sponte or on the recommendation of the Statewide Grievance Committee. To the extent feasible, the court shall proceed in a manner consistent with the rules of practice governing discipline of the bar of the state of Connecticut.

(P.B. 1978-1997, Sec. 24E.) (Amended June 29, 1998, to take effect Sept. 1, 1998; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 2-21. —Affiliation of Foreign Legal Consultant with the Bar of the State of Connecticut

(a) A foreign legal consultant licensed under these rules shall not be a member of the Connecticut bar, provided, however, that a foreign legal consultant shall be considered an affiliate of the bar subject to the same conditions and requirements as are applicable to an active or inactive member of the bar under the court's rules governing the bar of the state of Connecticut, insofar as such conditions and requirements may be consistent with the provisions of these rules.

(b) A foreign legal consultant licensed under these rules shall, upon being so licensed, take the following oath before this court, unless granted permission to take the oath in absentia:

"I, _____, do solemnly swear (or affirm) that as a foreign legal consultant with respect to the laws of _____, licensed by this court, I will conduct myself uprightly and according to the laws of the State of Connecticut and the rules of the court."

(P.B. 1978-1997, Sec. 24F.)

Sec. 2-22. Disposition of Fees for Admission to the Bar

(a) All fees paid under the preceding sections of these rules shall be transmitted to the treasurer of the bar examining committee. Such fees, together with any interest earned thereon, shall be applied to the payment of the necessary and reasonable expenses incurred by the bar examining committee, the standing committees on recommendations for admission in the several counties and the staff assigned by the chief court administrator pursuant to Section 2-6, and to the salaries and benefits of such staff. Such reasonable expenses shall not include charges for telephone and office space utilized by such staff in the performance of their duties. Expenses shall not be paid except upon authorization of the chair of the bar examining committee, or the chair's designee. The bar examining committee and the county standing committees shall follow such established Judicial Branch guidelines, directives and policies with regard to fiscal, personnel and purchasing matters as deemed by the chief court administrator to be applicable to them. Surplus moneys may, with the approval of the committee, be turned over from time to time to the executive secretary of the Judicial Branch for deposit as court revenue in the general fund of the state of Connecticut.

(b) The bar examining committee, when necessary, shall contract with individuals to serve as proctors and with attorneys to serve as bar examination graders and with law school faculty and other qualified persons to provide bar examination essay questions and shall establish an appropriate fee schedule for such services.

(P.B. 1978-1997, Sec. 25.)

Sec. 2-23. Roll of Attorneys

(a) The statewide bar counsel shall forward to the clerk for Hartford county for certification a roll of the attorneys of the state and the said clerk shall keep said roll. The clerk for any other county in which an attorney is admitted shall forthwith certify such action, with the date and the residence of the attorney, to the clerk for Hartford county, the statewide bar counsel and the administrative director of the bar examining committee.

(b) The clerk for any county in which an attorney is suspended, disbarred, resigned, placed in an inactive status, reinstated, or otherwise formally and publicly disciplined by the court shall forthwith certify such action with the date, the residence of the attorney and a certified copy of the court order to the statewide bar counsel and to the clerk for Hartford county, and shall notify them of the death of any attorney in his or her county of which such clerk knows.

(c) The clerk for Hartford county shall forthwith notify the clerks of the Superior Court and the clerk of the United States District Court for the District of Connecticut, at New Haven, of all suspensions, disbarments, resignations, placements in inactive status, retirements, revocations of retirements, or reinstatements.

(P.B. 1978-1997, Sec. 26.)

Sec. 2-24. Notice by Attorney of Admission in Other Jurisdictions

An attorney who is admitted to practice at the bar of another state, the District of Columbia, or the Commonwealth of Puerto Rico, or of any United States court, shall send to the Connecticut statewide bar counsel written notice of all such jurisdictions in which he or she is admitted to practice within thirty days of admission to practice in such jurisdiction.

(P.B. 1978-1997, Sec. 26A.)

Sec. 2-25. Notice by Attorney of Disciplinary Action in Other Jurisdictions

An attorney shall send to the statewide bar counsel written notice of all disciplinary actions imposed by the courts of another state, the District of Columbia, or the Commonwealth of Puerto Rico, or of any United States court, within thirty days of the order directing the disciplinary action.

(P.B. 1978-1997, Sec. 26B.)

Sec. 2-26. Notice by Attorney of Change in Address

An attorney shall send prompt written notice of a change in mailing and street address to the Statewide Grievance Committee on a registration form approved by the statewide bar counsel and to the clerks of the courts where the attorney has entered an appearance.

(P.B. 1978-1997, Sec. 27.)

Sec. 2-27. Clients' Funds; Attorney Registration

(Amended June 29, 2007, to take effect Jan. 1, 2008; amended June 11, 2021, to take effect Jan. 1, 2022.)

(a) Consistent with the requirement of Rule 1.15 of the Rules of Professional Conduct, each attorney or law firm shall maintain, separate from the attorney's or the firm's personal funds, one or more accounts accurately reflecting the status of funds handled by the attorney or firm as fiduciary or attorney, and shall not use such funds for any unauthorized purpose.

(b) Each attorney or law firm maintaining one or more trust accounts as defined in Rule 1.15 of the Rules of Professional Conduct and Section 2-28 (b) shall keep records of the maintenance and disposition of all funds of clients or of third persons held by the attorney or firm in a fiduciary capacity from the time of receipt to the time of final distribution. Each attorney or law firm shall retain the records required by Rule 1.15 of the Rules of Professional Conduct for a period of seven years after termination of the representation.

(c) Such books of account and statements of reconciliation, and any other records required to be maintained pursuant to Rule 1.15 of the Rules of Professional Conduct, shall be made available upon request of the Statewide Grievance Committee or its counsel, or the disciplinary counsel for review, examination or audit upon receipt of notice by the Statewide Grievance Committee of an overdraft notice as provided by Section 2-28 (f). Upon the filing of a grievance complaint or a finding of probable cause, such records shall be made available upon request of the Statewide Grievance Committee, its counsel or the disciplinary counsel for review or audit.

(d) Each attorney shall register with the Statewide Grievance Committee, on a form devised by the committee, the address of the attorney's office or offices maintained for the practice of law, the attorney's office email address and business telephone number, the name and address of every financial institution with which the attorney maintains any account in which the funds of more than one client are kept and the identification number of any such account. Such registrations will be made on an annual basis and at such time as the attorney changes his or her address or addresses or location or identification number of any such trust account in which the funds of more than one client are kept. The registration forms filed pursuant to this subsection and pursuant to Section 2-26 shall not be public; however, all information obtained by the Statewide Grievance Committee from these forms shall be public, except the following: trust account identification numbers; the attorney's home address, unless no office address is registered and then only if the home address is part of the public record of a grievance complaint as defined in Section 2-50 or the attorney uses the attorney's personal juris number to appear in a matter in this state; the attorney's office email address; and the attorney's birth date. Unless otherwise ordered by the court, all nonpublic information obtained from these forms shall be available only to the Statewide Grievance Committee and its counsel, the reviewing committees, the grievance panels and their counsel, the bar examining committee, the standing committee on recommendations for admission to the bar, disciplinary counsel, the client security fund committee and its counsel, a judge of the Superior Court, a judge of the United States District Court for the District of Connecticut, any grievance committee or other disciplinary authority of the United States District Court for the District of Connecticut or, with the consent of the attorney, to any other person. Excluding trust account identification numbers, nonpublic information obtained from these forms shall be available to the Department of Revenue Services in connection with the collection of the occupational tax on attorneys pursuant to General

Statutes § 51-81b. In addition, the trust account identification numbers on the registration forms filed pursuant to Section 2-26 and this section shall be available to the organization designated by the judges of the Superior Court to administer the IOLTA program pursuant to Rule 1.15 of the Rules of Professional Conduct. The registration requirements of this subsection shall not apply to judges of the Supreme, Appellate or Superior Courts, judge trial referees, family support magistrates, federal judges, federal magistrate judges, federal administrative law judges or federal bankruptcy judges.

(e) The Statewide Grievance Committee or its counsel may conduct random inspections and audits of accounts maintained pursuant to Rule 1.15 of the Rules of Professional Conduct to determine whether such accounts are in compliance with the rule and this section. If any random inspection or audit performed under this subsection discloses an apparent violation of this section or the Rules of Professional Conduct, the matter may be referred to a grievance panel for further investigation or to the disciplinary counsel for presentment to the Superior Court. Any attorney whose accounts are selected for inspection or audit under this section shall fully cooperate with the inspection or audit, which cooperation shall not be construed to be a violation of Rule 1.6 (a) of the Rules of Professional Conduct. Any records, documents or information obtained or produced pursuant to a random inspection or audit shall remain confidential unless and until a presentment is initiated by the disciplinary counsel alleging a violation of Rule 1.15 of the Rules of Professional Conduct or of this section, or probable cause is found by the grievance panel, the Statewide Grievance Committee or a reviewing committee. Contemporaneously with the commencement of a presentment or the filing of a grievance complaint, notice shall be given in writing by the Statewide Grievance Committee to any client or third person whose identity may be publicly disclosed through the disclosure of records obtained or produced in accordance with this subsection. Thereafter, public disclosure of such records shall be subject to the client or third person having thirty days from the issuance of the notice to seek a court order restricting publication of any such records disclosing confidential information. During the thirty day period, or the pendency of any such motion, any document filed with the court or as part of a grievance record shall refer to such clients or third persons by pseudonyms or with appropriate redactions, unless otherwise ordered by the court.

(f) Violation of subsection (a), (b) or (c) of this section shall constitute misconduct. An attorney who fails to register in accordance with subsection (d) shall be administratively suspended from the practice of law in this state pursuant to Section 2-27B.

(P.B. 1978-1997, Sec. 27A.) (Amended June 25, 2001, to take effect Jan. 1, 2002; amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007, and with respect to subsection (e), July 1, 2007; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 15, 2018, to take effect Jan. 1, 2019; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 10, 2022, to take effect Oct. 1, 2022.)

Sec. 2-27A. Minimum Continuing Legal Education

(a) On an annual basis, each attorney admitted in Connecticut shall certify, on the registration form required by Section 2-27 (d), that the attorney has completed in the last calendar year no less than twelve credit hours of appropriate continuing legal education, at least two hours of which shall be in ethics/professionalism. The ethics and professionalism components may be integrated with other courses. This rule shall apply to all attorneys except the following:

(1) Judges and senior judges of the Supreme, Appellate or Superior Courts, judge trial referees, family support magistrates, family support magistrate referees, administrative law judges, elected constitutional officers, federal judges, federal magistrate judges, federal administrative law judges or federal bankruptcy judges;

(2) Attorneys who are disbarred, resigned pursuant to Section 2-52, on inactive status pursuant to Section 2-56 et seq., or retired pursuant to Section 2-55 or 2-55A;

(3) Attorneys who are serving on active duty in the armed forces of the United States for more than six months in such year;

(4) Attorneys for the calendar year in which they are admitted;

(5) Attorneys who earn less than $1000 in compensation for the provision of legal services in such year;

(6) Attorneys who, for good cause shown, have been granted temporary or permanent exempt status by the Statewide Grievance Committee.

(b) Attorneys may satisfy the required hours of continuing legal education:

(1) By attending legal education courses provided by any local, state or special interest bar association in this state or regional or national bar associations recognized in this state or another

state or territory of the United States or the District of Columbia (hereinafter referred to as "bar association"); any private or government legal employer; any court of this or any other state or territory of the United States or the District of Columbia; any organization whose program or course has been reviewed and approved by any bar association or organization that has been established in any state or territory of the United States or the District of Columbia to certify and approve continuing legal education courses; and any other nonprofit or for-profit legal education providers, including law schools and other appropriate continuing legal education providers, and including courses remotely presented by video conference, webcasts, webinars, or the like by said providers.

(2) By self-study of appropriate programs or courses directly related to substantive or procedural law or related topics, including professional responsibility, legal ethics, or law office management and prepared by those continuing legal education providers in subsection (b) (1). Said self-study may include viewing and listening to all manner of communication, including, but not limited to, video or audio recordings or taking online legal courses. The selection of self-study courses or programs shall be consistent with the objective of this rule, which is to maintain and enhance the skill level, knowledge, ethics and competence of the attorney and shall comply with the minimum quality standards set forth in subsection (c) (6).

(3) By publishing articles in legal publications that have as their primary goal the enhancement of competence in the legal profession, including, without limitation, substantive and procedural law, ethics, law practice management and professionalism.

(4) By teaching legal seminars and courses, including the participation on panel discussions as a speaker or moderator.

(5) By serving as a full-time faculty member at a law school accredited by the American Bar Association or approved by the state bar examining committee, in which case, such attorney will be credited with meeting the minimum continuing legal education requirements set forth herein.

(6) By serving as a part-time or adjunct faculty member at a law school accredited by the American Bar Association or approved by the state bar examining committee, in which case, such attorney will be credited with meeting the minimum continuing legal education requirements set forth herein at the rate of one hour for each hour of classroom instruction and one hour for each two hours of preparation.

(7) By serving as a judge or coach for a moot court or mock trial course or competition that is part of the curriculum at or sanctioned by a law school accredited by the American Bar Association or approved by the state bar examining committee, or a high school or undergraduate mock trial or moot court competition that is sanctioned by a court, bar association or law school accredited by the American Bar Association or approved by the state bar examining committee, and requires the attorney to consider and to apply substantive legal principles, including, but not limited to, rules of evidence, and to provide a critique of the competitors' performance.

(8) By providing pro bono legal services to clients unable to afford counsel through a pro bono program administered by one or more of the following:

(A) Any Connecticut nonprofit organization, including any legal aid organization, that provides legal representation to clients without charge;

(B) Any state, local, or affinity bar association in Connecticut; and

(C) Any state or federal court in Connecticut.

(c) Credit computation:

(1) Credit for any of the above activities shall be based on the actual instruction time, which may include lecture, panel discussion, and question and answer periods. Credit for the activity listed in subsection (b) (7) shall be based upon the actual judging or coaching time, up to four hours for each activity per year, two hours of which may be earned by judging or coaching high school or undergraduate mock trial or moot court competitions. Self-study credit shall be based on the reading time or running time of the selected materials or program.

(2) Credit for attorneys preparing for and presenting legal seminars, courses or programs shall be based on one hour of credit for each two hours of preparation. A maximum of six hours of credit may be credited for preparation of a single program. Credit for presentation shall be on an hour for hour basis. Credit may not be earned more than once for the same course given during a calendar year.

(3) Credit for the writing and publication of articles shall be based on the actual time required for both researching and drafting. Each article may be counted only one time for credit.

(4) Credit for pro bono legal services provided pursuant to subsection (b) (8) shall be based on one hour of credit for each three hours of pro bono legal services. A maximum of six hours may be earned during a calendar year.

(5) Continuing legal education courses ordered pursuant to Section 2-37 (a) (5) or any court order

of discipline shall not count as credit toward an attorney's obligation under this section.

(6) Attorneys may carry forward no more than two credit hours in excess of the current annual continuing legal education requirement to be applied to the following year's continuing legal education requirement.

(7) To be eligible for continuing legal education credit, the course or activity must: (A) have significant intellectual or practical content designed to increase or maintain the attorney's professional competence and skills as an attorney; (B) constitute an organized program of learning dealing with matters directly related to legal subjects and the legal profession; and (C) be conducted by an individual or group qualified by practical or academic experience.

(d) Attorneys shall retain records to prove compliance with this rule for a period of seven years. Such records shall be made available to the Statewide Grievance Committee or its counsel, the minimum continuing legal education commission, or the disciplinary counsel upon request.

(e) Nothing in this section shall be construed to allow the Statewide Grievance Committee or its counsel, the minimum continuing legal education commission, or the disciplinary counsel to conduct random audits solely to determine whether an attorney is in compliance with this section.

(f) An attorney who fails to comply with the minimum continuing legal education requirement shall be administratively suspended from the practice of law in this state pursuant to Section 2-27B.

(g) A Minimum Continuing Legal Education Commission (commission) shall be established by the Judicial Branch and shall be composed of four Superior Court judges and four attorneys admitted to practice in this state, all of whom shall be appointed by the chief justice of the Supreme Court or his or her designee and who shall serve without compensation. The charge of the commission will be to provide advice regarding the application and interpretation of this rule and to assist with its implementation including, but not limited to, the development of a list of frequently asked questions and other documents to assist the members of the bar to meet the requirements of this rule.

(Adopted June 24, 2016, to take effect Jan. 1, 2017; amended June 15, 2018, to take effect Jan. 1, 2019; amended June 13, 2019, to take effect Oct. 1, 2019; amended June 26, 2020, to take effect Jan. 1, 2021; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 14, 2024, to take effect Jan. 1, 2025 ; amended June 12, 2025, to take effect Jan. 1, 2026.)

COMMENTARY—2017: It is the intention of this rule to provide attorneys with relevant and useful continuing legal education covering the broadest spectrum of substantive, procedural, ethical and professional subject matter at the lowest cost reasonably feasible and with the least amount of supervision, structure and reporting requirements, which will aid in the development, enhancement and maintenance of the legal knowledge and skills of practicing attorneys and will facilitate the delivery of competent legal services to the public.

The rule also permits an attorney to design his or her own course of study. The law is constantly evolving and attorneys, like all other professionals, are expected to keep abreast of changes in the profession and the law if they are to provide competent representation.

Subsection (a) provides that Connecticut attorneys must complete twelve credit hours of continuing legal education per calendar year. Subsection (a) also lists those Connecticut attorneys, who are exempt from compliance, including, among others: judges, senior judges, attorneys serving in the military, new attorneys during the year in which they are admitted to practice, attorneys who earn less than $1000 in compensation for the provision of legal services in the subject year, and those who obtain an exempt status for good cause shown. The subsection also provides an exemption for attorneys who are disbarred, resigned, on inactive status due to disability, or are retired. The exemption for attorneys who earn less than $1000 in compensation in a particular year is not intended to apply to attorneys who claim that they were not paid as a result of billed fees to a client. All compensation received for the provision of legal services, whether the result of billed fees or otherwise, must be counted. There is no exemption for attorneys who are suspended or on administrative suspension. Subsection (d) requires an attorney to maintain adequate records of compliance. For continuing legal education courses, a certificate of attendance shall be sufficient proof of compliance. For self-study, a contemporaneous log identifying and describing the course listened to or watched and listing the date and time the course was taken, as well as a copy of the syllabus or outline of the course materials, if available, and, when appropriate, a certificate from the course provider, shall be sufficient proof of compliance. For any other form of continuing legal education, a file including a log of the time spent and drafts of the prepared material shall provide sufficient proof of compliance.

HISTORY—2026: What are now subdivisions (b) (8) and (c) (4) were added and what had been subdivisions (c) (4), (5) and (6) were redesignated as subdivisions (c) (5), (6) and (7), respectively.

COMMENTARY—2026: The change to this section expands the rule to permit up to six hours per year of minimum contining legal education credit for pro bono legal services.

Sec. 2-27B. Enforcement of Attorney Registration and Minimum Continuing Legal Education; Administrative Suspension

(a) The Statewide Grievance Committee shall send a notice to each attorney who has not registered pursuant to Section 2-27 (d), or who has not completed minimum continuing legal education pursuant to Section 2-27A, that the attorney's license to practice law in this state will be referred to the Superior Court for an administrative suspension of the attorney's license to practice law in this state unless by December 31 of the year in which the notice is sent such attorney provides proof to the Statewide Grievance Committee that

for the noncomplying year the attorney has registered or completed minimum continuing legal education, or is exempt from minimum continuing legal education. The Statewide Grievance Committee shall submit to the clerk of the Superior Court for the Hartford Judicial District a list of attorneys who did not provide proof of compliance with attorney registration or minimum continuing legal education, or exemption from minimum continuing legal education. Upon order of the court, the attorneys so listed and referred to the clerk shall be deemed administratively suspended from the practice of law in this state until such time as compliance has occurred and proof of same provided to the Statewide Grievance Committee, which suspension shall be effective upon publication of the list in the Connecticut Law Journal. An administrative suspension of an attorney for failure to comply with attorney registration or minimum continuing legal education shall not be considered discipline, but an attorney who is placed on administrative suspension for such failure shall be ineligible to practice law as an attorney admitted to practice in this state, and shall not be considered in good standing pursuant to Section 2-65 of these rules until such time as proof of compliance is provided to the Statewide Grievance Committee.

(b) An attorney aggrieved by an order placing the attorney on administrative suspension for failing to comply with Section 2-27 (d) or 2-27A may make an application to the Superior Court to have the order vacated, by filing the application with the Superior Court for the Hartford Judicial District within thirty days of the date that the order is published, and mailing a copy of the same by certified mail, return receipt requested, to the Statewide Grievance Committee. The application shall set forth the reasons why the application should be granted. The court shall schedule a hearing on the application, which shall be limited to whether good cause exists to vacate the suspension order.

(c) The notice required by this section shall be sent by regular mail to the last address registered by the attorney pursuant to Section 2-26 and Section 2-27 (d) and to any email address on record with the Judicial Branch.

(Adopted June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 2-28. Overdraft Notification

(a) The terms used in this section are defined as follows:

(1) “Financial institution” includes banks, savings and loan associations, credit unions, savings banks and any other business or person which accepts for deposit funds held in trust by attorneys.

(2) “Properly payable” refers to an instrument which, if presented in the normal course of business, is in a form requiring payment under law.

(3) “Insufficient funds” refers to the status of an account that does not contain sufficient funds available to pay a properly payable instrument.

(4) “Uncollected funds” refers to funds deposited in an account and available to be drawn upon but not yet deemed by the financial institution to have been collected.

(b) Attorneys shall deposit all funds held in any fiduciary capacity in accounts clearly identified as “trust,” “client funds” or “escrow” accounts, referred to herein as “trust accounts,” and shall take all steps necessary to inform the depository institution of the purpose and identity of such accounts. Funds held in trust include funds held in any fiduciary capacity in connection with a representation in Connecticut, whether as trustee, agent, guardian, executor or otherwise. Where an attorney fiduciary has the right to draw by a properly payable instrument on such trust account in which the funds of more than one client are kept, such account shall be maintained only in financial institutions approved by the Statewide Grievance Committee. No such trust account in which the funds of more than one client are kept shall be maintained in any financial institution in Connecticut which does not file the agreement required by this section. Violation of this subsection shall constitute misconduct.

(c) Attorneys regularly maintaining funds in a fiduciary capacity shall register any account in which the funds of more than one client are kept with the Statewide Grievance Committee in accordance with Section 2-27 (d).

(d) A financial institution shall be approved as a depository for attorney trust accounts only if it files with the Statewide Grievance Committee an agreement, in a form provided by the committee, to report to the committee the fact that an instrument has been presented against an attorney trust account containing insufficient funds, irrespective of whether or not the instrument is honored. No report shall be required if funds in an amount sufficient to cover the deficiency in the trust account are deposited within one business day of the presentation of the instrument. No report shall be required in the case of an instrument presented and paid against uncollected funds.

(e) Any such agreement shall not be cancelled by a financial institution except upon thirty days written notice to the Statewide Grievance Committee. The Statewide Grievance Committee shall establish rules governing approval and termination of approved status for financial institutions, and shall publish annually a list of approved institutions. Any such agreement shall apply to all branches of the financial institution in Connecticut and shall not be cancelled except upon thirty days notice in writing to the Statewide Grievance Committee.

(f) The financial institution shall report to the Statewide Grievance Committee within seven business days from the date of such presentation, any instrument presented against insufficient funds on any trust funds account unless funds in an amount sufficient to cover the deficiency in the account are deposited within one business day of the presentation of the instrument. The report shall be accompanied by a copy of the instrument.

(g) The Statewide Grievance Committee may delegate to the statewide bar counsel the authority to investigate overdraft notifications and determine that no misconduct has occurred or that no further action is warranted. Any determination that misconduct may have occurred and a grievance complaint should be initiated, unless such complaint is premised upon the failure of an attorney to file an explanation of an overdraft, shall be made by the Statewide Grievance Committee.

(h) Upon receipt of notification of an overdraft, the Statewide Grievance Committee, its counsel or disciplinary counsel may request that the attorney produce such books of account and statements of reconciliation, and any other records required to be maintained pursuant to Section 2-27 (b) for review, examination or audit. Failure of the attorney to respond to inquiries of the Statewide Grievance Committee, its counsel, or disciplinary counsel, or to produce the requested books of account and statements of reconciliation or other records shall be grounds for disciplinary counsel to file an application for an interim suspension in accordance with the provisions of Section 2-42.

(i) Every attorney practicing or admitted to practice in Connecticut shall, as a condition thereof, be conclusively presumed to have authorized the reporting and production requirements of this section. Where an attorney qualifies as executor of a will or as trustee or successor fiduciary, the attorney fiduciary shall have a reasonable time after qualification to bring preexisting trust accounts into compliance with the provisions of this section.

(P.B. 1978-1997, Sec. 27A.1.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 2-28A. Attorney Advertising; Mandatory Filing

(a) Any attorney who advertises services to the public through any media, electronic or otherwise, or through written or recorded communication pursuant to Rule 7.2 of the Rules of Professional Conduct shall file a copy of each such advertisement or communication with the Statewide Grievance Committee either prior to or concurrently with the attorney's first dissemination of the advertisement or written or recorded communication, except as otherwise provided in subsection (b) herein. The materials shall be filed in a format prescribed by the Statewide Grievance Committee, which may require them to be filed electronically. Any such submission in a foreign language must include an accurate English language translation.

The filing shall consist of the following:

(1) A copy of the advertisement or communication in the form or forms in which it is to be disseminated (e.g., videotapes, DVDs, audio-tapes, compact discs, print media, photographs of outdoor advertising);

(2) A transcript, if the advertisement or communication is in video or audio format;

(3) A list of domain names used by the attorney primarily to offer legal services, which shall be updated quarterly;

(4) A sample envelope in which the written communication will be enclosed, if the communication is to be mailed;

(5) A statement listing all media in which the advertisement or communication will appear, the anticipated frequency of use of the advertisement or communication in each medium in which it will appear, and the anticipated time period during which the advertisement or communication will be used.

(b) The filing requirements of subsection (a) do not extend to any of the following materials:

(1) An advertisement in the public media that contains only, in whole or in part, the following information, provided the information is not false or misleading:

(A) The name of the lawyer or law firm, a listing of lawyers associated with the firm, office addresses and telephone numbers, office and telephone service hours, fax numbers, website and email addresses and domain names, and a designation such as "attorney" or "law firm";

(B) Date of admission to the Connecticut bar and any other bars and a listing of federal courts

and jurisdictions where the lawyer is licensed to practice;

(C) Technical and professional licenses granted by the state or other recognized licensing authorities;

(D) Foreign language ability;

(E) Fields of law in which the lawyer practices or is designated, subject to the requirements of Rule 7.1, or is certified pursuant to Rule 7.4A;

(F) Prepaid or group legal service plans in which the lawyer participates;

(G) Acceptance of credit cards;

(H) Fee for initial consultation and fee schedule; and

(I) A listing of the name and geographic location of a lawyer or law firm as a sponsor of a public service announcement or charitable, civic or community program or event.

(2) An advertisement in a telephone directory;

(3) A listing or entry in a regularly published law list;

(4) An announcement card stating new or changed associations, new offices, or similar changes relating to an attorney or firm, or a tombstone professional card;

(5) A communication sent only to:

(A) Existing or former clients;

(B) Other attorneys or professionals; business organizations including trade groups; not-for-profit organizations; governmental bodies; and/or

(C) Members of a not-for-profit organization that meets the following conditions: the primary purposes of the organization do not include the rendition of legal services; the recommending, furnishing, paying for or educating persons regarding legal services is incidental and reasonably related to the primary purposes of the organization; the organization does not derive a financial benefit from the rendition of legal services by an attorney; and the person for whom the legal services are rendered, and not the organization, is recognized as the client of the attorney who is recommended, furnished, or paid for by the organization.

(6) Communication that is requested by a prospective client.

(7) The contents of an attorney's Internet website that appears under any of the domain names submitted pursuant to subdivision (3) of subsection (a).

(c) If requested by the Statewide Grievance Committee, an attorney shall promptly submit information to substantiate statements or representations made or implied in any advertisement in the public media and/or written or recorded communications.

(d) The statewide bar counsel shall review advertisements and communications filed pursuant to this section that have been selected for such review on a random basis. If after such review the statewide bar counsel determines that an advertisement or communication does not comply with the Rules of Professional Conduct, the statewide bar counsel shall in writing advise the attorney responsible for the advertisement or communication of the noncompliance and shall attempt to resolve the matter with such attorney. If the matter is not resolved to the satisfaction of the statewide bar counsel, he or she shall forward the advertisement or communication and a statement describing the attempt to resolve the matter to the Statewide Grievance Committee for review. If, after reviewing the advertisement or communication, the Statewide Grievance Committee determines that it violates the Rules of Professional Conduct, it shall forward a copy of its file to the disciplinary counsel and direct the disciplinary counsel to file a presentment against the attorney in the Superior Court.

(e) The procedure set forth in subsection (d) shall apply only to advertisements and communications that are reviewed as part of the random review process. If an advertisement or communication comes to the attention of the statewide bar counsel other than through that process, it shall be handled pursuant to the grievance procedure that is set forth in Section 2-29 et seq.

(f) The materials required to be filed by this section shall be retained by the Statewide Grievance Committee for a period of one year from the date of their filing, unless, at the expiration of the one year period, there is pending before the Statewide Grievance Committee, a reviewing committee, or the court a proceeding concerning such materials, in which case the materials that are the subject of the proceeding shall be retained until the expiration of the proceeding or for such other period as may be prescribed by the Statewide Grievance Committee.

(g) Except for records filed in court in connection with a presentment brought pursuant to subsection (d), records maintained by the statewide bar counsel, the Statewide Grievance Committee and/or the Disciplinary Counsel's Office pursuant to this section shall not be public. Nothing in this rule shall prohibit the use or consideration of such records in any subsequent disciplinary or client security fund proceeding and such records shall be available in such proceedings to a judge of the Superior Court or to the standing committee on recommendations for admission to the bar, to disciplinary counsel, to the statewide bar counsel or assistant bar counsel, or, with the consent of the

respondent, to any other person, unless otherwise ordered by the court.

(h) Violation of subsection (a) or (c) shall constitute misconduct.

(Adopted June 26, 2006, to take effect July 1, 2007; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 2-28B. —Advisory Opinions

(a) An attorney who desires to secure an advance advisory opinion concerning compliance with the Rules of Professional Conduct of a contemplated advertisement or communication may submit to the Statewide Grievance Committee, not less than 30 days prior to the date of first dissemination, the material specified in Section 2-28A (a) accompanied by a fee established by the chief court administrator. It shall not be necessary to submit a video recording or DVD if the video recording or DVD has not then been prepared and the production script submitted reflects in detail and accurately the actions, events, scenes, and background sounds that will be depicted or contained on such video recordings or DVDs, when prepared, as well as the narrative transcript of the verbal and printed portions of such advertisement.

(b) An advisory opinion shall be issued, without a hearing, by the Statewide Grievance Committee or by a reviewing committee assigned by the Statewide Grievance Committee. Such reviewing committee shall consist of at least three members of the Statewide Grievance Committee, at least one third of whom are not attorneys.

(c) An advisory opinion issued by the Statewide Grievance Committee or a reviewing committee finding noncompliance with the Rules of Professional Conduct is not binding in a disciplinary proceeding, but a finding of compliance is binding in favor of the submitting attorney in a disciplinary proceeding if the representations, statements, materials, facts and written assurances received in connection therewith are not false or misleading. The finding constitutes admissible evidence if offered by a party. If a request for an advisory opinion is made within 60 days of the effective date of this section, the Statewide Grievance Committee or reviewing committee shall issue its advisory opinion within 45 days of the filing of the request. Thereafter, the Statewide Grievance Committee or reviewing committee shall issue its advisory opinion within 30 days of the filing of the request. For purposes of this section, an advisory opinion is issued on the date notice of the opinion is transmitted to the attorney who requested it pursuant to subsection (a) herein.

(d) If requested by the Statewide Grievance Committee or a reviewing committee, the attorney seeking an advisory opinion shall promptly submit information to substantiate statements or representations made or implied in such attorney's advertisement. The time period set forth in subsection (c) herein shall be tolled from the date of the committee's request to the date the requested information is filed with the committee.

(e) If an advisory opinion is not issued by the Statewide Grievance Committee or a reviewing committee within the time prescribed in this section, the advertisement or communication for which the opinion was sought shall be deemed to be in compliance with the Rules of Professional Conduct.

(f) If, after receiving an advisory opinion finding that an advertisement or communication violates the Rules of Professional Conduct, the attorney disseminates such advertisement or communication, the Statewide Grievance Committee, upon receiving notice of such dissemination, shall forward a copy of its file concerning the matter to the disciplinary counsel and direct the disciplinary counsel to file a presentment against the attorney in the Superior Court.

(g) Except for advisory opinions, all records maintained by the Statewide Grievance Committee pursuant to this section shall not be public. Advisory opinions issued pursuant to this section shall not be public for a period of 30 days from the date of their issuance. During that 30 day period the advisory opinion shall be available only to the attorney who requested it pursuant to subsection (a), to the Statewide Grievance Committee or its counsel, to reviewing committees, to grievance panels, to disciplinary counsel, to a judge of the Superior Court, and, with the consent of the attorney who requested the opinion, to any other person. Nothing in this rule shall prohibit the use or consideration of such records in any subsequent disciplinary or client security fund proceeding and such records shall be available in such proceedings to a judge of the Superior Court or to the standing committee on recommendations for admission to the bar, to disciplinary counsel, to the statewide bar counsel or assistant bar counsel, or, with the consent of the respondent, to any other person, unless otherwise ordered by the court.

(Adopted June 26, 2006, to take effect July 1, 2007.)

TECHNICAL CHANGE: Technical changes were made in subsection (a) to update the terminology to align with current technology and practice.

Sec. 2-29. Grievance Panels

(a) The judges of the Superior Court shall appoint one or more grievance panels in each judicial district, each consisting of two members of

the bar who do not maintain an office for the practice of law in such judicial district and one nonattorney who resides in such judicial district, and shall designate as an alternate member a member of the bar who does not maintain an office for the practice of law in such judicial district. Terms shall commence on July 1. Appointments shall be for terms of three years. No person may serve as a member and/or as an alternate member for more than two consecutive three year terms, but may be reappointed after a lapse of one year. The appointment of any member or alternate member may be revoked or suspended by the judges or by the executive committee of the Superior Court. In connection with such revocation or suspension, the judges or the executive committee shall appoint a qualified individual to fill the vacancy for the balance of the term or for any other appropriate period. In the event that a vacancy arises on a panel before the end of a term by reasons other than revocation or suspension, the executive committee of the Superior Court shall appoint an attorney or nonattorney, depending on the position vacated, who meets the appropriate condition set forth above to fill the vacancy for the balance of the term.

(b) Consideration for appointment to these positions shall be given to those candidates recommended to the appointing authority by the administrative judges.

(c) In the event that more than one panel has been appointed to serve a particular judicial district, the executive committee of the Superior Court shall establish the jurisdiction of each such panel.

(d) An attorney who maintains an office for the practice of law in the same judicial district as a respondent may not participate as a member of a grievance panel concerning a complaint against that respondent.

(e) In addition to any other powers and duties set forth in this chapter, each panel shall:

(1) On its own motion or on complaint of any person, inquire into and investigate offenses whether or not occurring in the actual presence of the court involving the character, integrity, professional standing and conduct of members of the bar in this state.

(2) Compel any person by subpoena to appear before it to testify in relation to any matter deemed by the panel to be relevant to any inquiry or investigation it is conducting and to produce before it for examination any books or papers which, in its judgment, may be relevant to such inquiry or investigation.

(3) Utilize an official court reporter or court recording monitor employed by the Judicial Branch to record any testimony taken before it.

(f) The grievance panel may, upon the vote of a majority of its members, require that a disciplinary counsel pursue the matter before the grievance panel on the issue of probable cause.

(P.B. 1978-1997, Sec. 27B.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 2-30. Grievance Counsel for Panels and Investigators

(a) The chief court administrator shall appoint, as set forth below, attorneys to serve either on a part-time or full-time basis as grievance counsel for grievance panels, and shall appoint one or more investigators either on a full-time or part-time basis. The investigators so appointed shall serve the Statewide Grievance Committee, the reviewing committees and the grievance panels and shall be under the supervision of the statewide bar counsel. Compensation for these positions shall be paid by the Judicial Branch.

(b) The chief court administrator shall determine the number of grievance counsel to serve one or more grievance panels.

(P.B. 1978-1997, Sec. 27D; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of subsection (a), "judges of the Superior Court" was deleted and replaced with "chief court administrator." Additionally, what had been the third, fourth, and sixth sentences of subsection (a) were deleted.

Furthermore, what had been subsection (b) was deleted and what had been subsection (c) was redesignated as subsection (b). In what had been subsection (c), "executive committee of the Superior Court" was deleted and replaced with "chief court administrator."

COMMENTARY—2026: Number 24-108 of the 2024 Public Acts, An Act Concerning Court Operations and Administrative Proceedings, among other things, consolidated under the Chief Court Administrator the responsibility for many personnel and administrative matters that historically were acted on by the Executive Committee and/or the judges of the Superior Court but which now are consistent with the current duties and responsibilities of and properly undertaken by the Chief Court Administrator. The changes to this section conform to the provisions of that public act.

Sec. 2-31. Powers and Duties of Grievance Counsel

Grievance counsel shall have the following powers and duties:

(1) Upon referral of the complaint to the grievance panel, to confer with and, if possible, meet with the complainants and assist them in understanding the grievance process set forth in these rules and to answer questions complainants may have concerning that process.

(2) To investigate all complaints received by the grievance panel from the statewide bar counsel

involving alleged misconduct of an attorney subject to the jurisdiction of the Superior Court.

(3) To assist the grievance panels in carrying out their duties under this chapter.

(4) When determined to be necessary by the Statewide Grievance Committee, to assist reviewing committees of the Statewide Grievance Committee in conducting hearings before said reviewing committees.

(5) If the grievance panel has dismissed the complaint, to assist the complainant in understanding the reasons for the dismissal.

(P.B. 1978-1997, Sec. 27E.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004.)

Sec. 2-32. Filing Complaints against Attorneys; Action; Time Limitation

(a) Any person, including disciplinary counsel, or a grievance panel on its own motion, may file a written complaint, executed under penalties of false statement, alleging attorney misconduct whether or not such alleged misconduct occurred in the actual presence of the court. Complaints against attorneys shall be filed with the statewide bar counsel. Within seven days of the receipt of a complaint, the statewide bar counsel shall review the complaint and process it in accordance with subdivision (1), (2) or (3) of this subsection as follows:

(1) forward the complaint to a grievance panel in the judicial district in which the respondent maintains his or her principal office or residence, provided that, if the respondent does not maintain such an address in this state, the statewide bar counsel shall forward the complaint to any grievance panel and notify the complainant and the respondent, by certified mail with return receipt or with electronic delivery confirmation, of the panel to which the complaint was sent. The notification to the respondent shall be accompanied by a copy of the complaint. The respondent shall respond within thirty days of the date notification is mailed to the respondent unless for good cause shown such time is extended by the grievance panel. The response shall be sent to the grievance panel to which the complaint has been referred. The failure to file a timely response shall constitute misconduct unless the respondent establishes that the failure to respond timely was for good cause shown;

(2) refer the complaint to the chair of the Statewide Grievance Committee or an attorney designee of the chair and to a nonattorney member of the committee, and the statewide bar counsel in conjunction with the chair or attorney designee and the nonattorney member shall, if deemed appropriate, dismiss the complaint on one or more of the following grounds:

(A) the complaint only alleges a fee dispute and not a clearly excessive or improper fee;

(B) the complaint does not allege facts which, if true, would constitute a violation of any provision of the applicable rules governing attorney conduct;

(C) the complaint does not contain sufficient specific allegations on which to conduct an investigation;

(D) the complaint is duplicative of a previously adjudicated complaint;

(E) the complaint alleges that the last act or omission constituting the alleged misconduct occurred more than six years prior to the date on which the complaint was filed;

(i) Notwithstanding the period of limitation set forth in this subparagraph, an allegation of misconduct that would constitute a violation of Rule 1.15, 8.1 or 8.4 (2) through (6) of the Rules of Professional Conduct may still be considered as long as a written complaint is filed within one year of the discovery of such alleged misconduct.

(ii) Each period of limitation in this subparagraph is tolled during any period in which: (1) the alleged misconduct remains undiscovered due to active concealment; (2) the alleged misconduct would constitute a violation of Rule 1.8 (c) and the conditions precedent of the instrument have not been satisfied; (3) the alleged misconduct is part of a continuing course of misconduct; or (4) the aggrieved party is under the age of majority, insane, or otherwise unable to file a complaint due to mental or physical incapacitation.

(F) the complaint alleges misconduct occurring in a Superior Court, Appellate Court or Supreme Court action and the court has been made aware of the allegations of misconduct and has rendered a decision finding misconduct or finding that either no misconduct has occurred or that the allegations should not be referred to the Statewide Grievance Committee;

(G) the complaint alleges personal behavior outside the practice of law which does not constitute a violation of the Rules of Professional Conduct;

(H) the complaint alleges the nonpayment of incurred indebtedness;

(I) the complaint names only a law firm or other entity and not any individual attorney, unless dismissal would result in gross injustice. If the complaint names a law firm or other entity as well as an individual attorney or attorneys, the complaint shall be dismissed only as against the law firm or entity;

(J) the complaint alleges misconduct occurring in another jurisdiction in which the attorney is also admitted and in which the attorney maintains an office to practice law, and it would be more practicable for the matter to be determined in the other jurisdiction. If a complaint is dismissed pursuant to this subdivision, it shall be without prejudice and the matter shall be referred by the statewide bar counsel to the jurisdiction in which the conduct is alleged to have occurred.

(3) If a complaint alleges only a fee dispute within the meaning of subsection (a) (2) (A) of this section, the statewide bar counsel in conjunction with the chairperson or attorney designee and the nonattorney member may stay further proceedings on the complaint on such terms and conditions as deemed appropriate, including referring the parties to fee arbitration. The record and result of any such fee arbitration shall be filed with the statewide bar counsel and shall be dispositive of the complaint. A party who refuses to utilize the no cost fee arbitration service provided by the Connecticut Bar Association shall pay the cost of the arbitration.

(b) The statewide bar counsel, chair or attorney designee and nonattorney member shall have fourteen days from the date the complaint was filed to determine whether to dismiss the complaint. If after review by the statewide bar counsel, chair or attorney designee and nonattorney member it is determined that the complaint should be forwarded to a grievance panel for investigation in accordance with subsections (f) through (j) of this section, the complaint shall be so forwarded in accordance with subsection (a) (1) of this section within seven days of the determination to forward the complaint.

(c) If the complaint is dismissed by the statewide bar counsel in conjunction with the chair or attorney designee and nonattorney member, the complainant and respondent shall be notified of the dismissal in writing. The respondent shall be provided with a copy of the complaint with the notice of dismissal. The notice of dismissal shall set forth the reason or reasons for the dismissal. The complainant shall have fourteen days from the date notice of the dismissal is mailed to the complainant to file an appeal of the dismissal. The appeal shall be in writing setting forth the basis of the appeal and shall be filed with the statewide bar counsel who shall forward it to a reviewing committee for decision on the appeal. The reviewing committee shall review the appeal and render a decision thereon within sixty days of the filing of the appeal. The reviewing committee shall either affirm the dismissal of the complaint or order the complaint forwarded to a grievance panel for investigation in accordance with subsections (f) through (j) of this section. The decision of the reviewing committee shall be in writing and mailed to the complainant. The decision of the reviewing committee shall be final.

(d) The statewide bar counsel shall keep a record of all complaints filed. The complainant and the respondent shall notify the statewide bar counsel of any change of address or telephone number during the pendency of the proceedings on the complaint.

(e) If for good cause a grievance panel declines, or is unable pursuant to Section 2-29 (d), to investigate a complaint, it shall forthwith return the complaint to the statewide bar counsel to be referred by him or her immediately to another panel. Notification of such referral shall be given by the statewide bar counsel to the complainant and the respondent by certified mail with return receipt or with electronic delivery confirmation.

(f) The grievance panel, with the assistance of the grievance counsel assigned to it, shall investigate each complaint to determine whether probable cause exists that the attorney is guilty of misconduct. The grievance panel may, upon the vote of a majority of its members, require that a disciplinary counsel pursue the matter before the grievance panel on the issue of probable cause.

(g) Investigations and proceedings of the grievance panel shall be confidential unless the attorney under investigation requests that such investigation and proceedings be public.

(h) On the request of the respondent and for good cause shown, or on its own motion, the grievance panel may conduct a hearing on the complaint. The complainant and respondent shall be entitled to be present at any proceedings on the complaint at which testimony is given and to have counsel present, provided, however, that they shall not be entitled to examine or cross-examine witnesses unless requested by the grievance panel.

(i) The panel shall, within 110 days from the date the complaint was referred to it, unless such time is extended pursuant to subsection (j), do one of the following: (1) If the panel determines that probable cause exists that the respondent is guilty of misconduct, it shall file the following with the Statewide Grievance Committee and with the disciplinary counsel: (A) its written determination that probable cause exists that the respondent is guilty of misconduct, (B) a copy of the complaint and response, (C) a transcript of any testimony heard by the panel, (D) a copy of any investigatory file and copies of any documents, transcripts or other written materials which were available to the panel. These materials shall constitute the panel's

record in the case. (2) If the panel determines that no probable cause exists that the respondent is guilty of misconduct, it shall dismiss the complaint unless there is an allegation in the complaint that the respondent committed a crime. Such dismissal shall be final and there shall be no review of the matter by the Statewide Grievance Committee, but the panel shall file with the Statewide Grievance Committee a copy of its decision dismissing the complaint and the materials set forth in subsection (i) (1) (B), (C) and (D). In cases in which there is an allegation in the complaint that the respondent committed a crime, the panel shall file with the Statewide Grievance Committee and with disciplinary counsel its written determination that no probable cause exists and the materials set forth in subsection (i) (1) (B), (C) and (D). These materials shall constitute the panel's record in the case.

(j) The panel may file a motion for extension of time not to exceed thirty days with the Statewide Grievance Committee which may grant the motion only upon a finding of good cause. If the panel does not complete its action on a complaint within the time provided in this section, the Statewide Grievance Committee shall inquire into the delay and shall order that the panel take action on the complaint forthwith, or order that the complaint be forwarded to and heard by another panel or a reviewing committee designated by the Statewide Grievance Committee.

(k) The panel shall notify the complainant, the respondent, and the Statewide Grievance Committee of its determination. The determination shall be a matter of public record if the panel determines that probable cause exists that the respondent is guilty of misconduct.

(P.B. 1978-1997, Sec. 27F.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 28, 1999, to take effect Jan. 1, 2000; amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; amended June 30, 2003, to take effect Oct. 1, 2003; Sept. 30, 2003, effective date of two latest amendments changed to Jan. 1, 2004; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 2-33. Statewide Grievance Committee

(a) The judges of the Superior Court shall appoint twenty-one persons to a committee to be known as the "Statewide Grievance Committee." At least seven shall not be attorneys and the remainder shall be members of the bar of this state. The judges shall designate one member as chair and another as vice-chair to act in the absence or disability of the chair.

(b) All members shall serve for a term of three years commencing on July 1. Except as otherwise provided herein, no person shall serve as a member for more than two consecutive three year terms, excluding any appointments for less than a full term; a member may be reappointed after a lapse of one year. If the term of a member who is on a reviewing committee expires while a complaint is pending before that committee, the judges or the executive committee may extend the term of such member to such time as the reviewing committee has completed its action on that complaint. In the event of such an extension the total number of Statewide Grievance Committee members may exceed twenty-one. The appointment of any member may be revoked or suspended by the judges or by the executive committee of the Superior Court. In connection with such revocation or suspension, the judges or the executive committee shall appoint a qualified individual to fill the vacancy for the remainder of the term or for any other appropriate period. In the event that a vacancy arises in this position before the end of a term by reasons other than revocation or suspension, the executive committee of the Superior Court shall fill the vacancy for the balance of the term or for any other appropriate period. Unless otherwise provided in this chapter, the committee must have at least a quorum present to act, and a quorum shall be eleven. The committee shall act by a vote of a majority of those present and voting, provided that a minimum of six votes for a particular action is necessary for the committee to act. Members present but not voting due to disqualification, abstention, silence or a refusal to vote, shall be counted for purposes of establishing a quorum, but not counted in calculating a majority of those present and voting.

(c) In addition to any other powers and duties set forth in this chapter, the Statewide Grievance Committee shall:

(1) Institute complaints involving violations of General Statutes § 51-88.

(2) Adopt rules to carry out its duties under this chapter which are not inconsistent with these rules.

(3) Adopt rules for grievance panels to carry out their duties under this chapter which are not inconsistent with these rules.

(4) In its discretion, disclose that it or the statewide bar counsel has referred a complaint to a panel for investigation when such disclosure is deemed by the committee to be in the public interest.

(P.B. 1978-1997, Sec. 27G.)

Sec. 2-34. Statewide Bar Counsel

(a) The chief court administrator shall appoint an attorney to act as statewide bar counsel, and such additional attorneys to act as assistant bar counsel as are necessary. In the event that a vacancy arises in any such position, the chief court administrator shall fill the vacancy. Compensation for these positions shall be paid by the Judicial Branch. Such individuals shall be in the legal services division of the Office of the Chief Court Administrator and shall perform such other duties as may be assigned to them in that capacity.

(b) In addition to any other powers and duties set forth in this chapter, the statewide bar counsel or an assistant bar counsel shall:

(1) Report to the national disciplinary data bank such requested information as is officially reported to the statewide bar counsel concerning attorneys who have resigned pursuant to Section 2-52, or whose unethical conduct has resulted in disciplinary action by the court or by the Statewide Grievance Committee, or who have been placed on inactive status pursuant to Sections 2-56 through 2-62.

(2) Receive and maintain information forwarded to the statewide bar counsel by the national disciplinary data bank.

(3) Receive and maintain records forwarded to the statewide bar counsel by the clerks of court pursuant to Sections 2-23 and 2-52 and by complainants pursuant to Section 2-32.

(4) For a fee established by the chief court administrator, certify the status of individuals who are or were members of the bar of this state at the request of bar admission authorities of other jurisdictions or at the request of a member of the bar of this state with respect to such member's status. In certifying the status of an individual, no information shall be provided to the requesting entity, other than public information, without a waiver from that individual.

(5) Assist the Statewide Grievance Committee and the reviewing committees in carrying out their duties under this chapter.

(P.B. 1978-1997, Sec. 27H.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2025: In the first sentence of subsection (a), "judges of the Superior Court" was deleted and replaced with "chief court administrator" and ", for a term of one year commencing July 1" after "necessary" was deleted. Prior to 2026, the second sentence of subsection (a) read: "In the event that a vacancy arises in any such position before the end of a term, the executive committee of the Superior Court shall appoint an attorney to fill the vacancy for the balance of the term."

COMMENTARY—2025: Number 24-108 of the 2024 Public Acts, An Act Concerning Court Operations and Administrative Proceedings, among other things, consolidated under the Chief Court Administrator the responsibility for many personnel and administrative matters that historically were acted on by the Executive Committee and/or the judges of the Superior Court but which now are consistent with the current duties and responsibilities of and properly undertaken by the Chief Court Administrator. The changes to this section conform to the provisions of that public act.

Sec. 2-34A. Disciplinary Counsel

(a) There shall be a chief disciplinary counsel and such disciplinary counsel and staff as are necessary. The chief disciplinary counsel and the disciplinary counsel shall be appointed by the chief court administrator. In the event that a vacancy arises in any of these positions, the chief court administrator will fill the vacancy. The chief disciplinary counsel and disciplinary counsel shall be assigned to the Office of the Chief Court Administrator for administrative purposes and shall not engage in the private practice of law. The term "disciplinary counsel" as used in the rules for the Superior Court shall mean the chief disciplinary counsel or any disciplinary counsel.

(b) In addition to any other powers and duties set forth in this chapter, disciplinary counsel shall:

(1) Investigate each complaint which has been forwarded, after a determination that probable cause exists that the respondent is guilty of misconduct, by a grievance panel to the Statewide Grievance Committee for review pursuant to Section 2-32 (i) and pursue such matter before the Statewide Grievance Committee or reviewing committee. When, after a determination of no probable cause by a grievance panel, a complaint is forwarded to the Statewide Grievance Committee because it contains an allegation that the respondent committed a crime, and the Statewide Grievance Committee or a reviewing committee determines that a hearing shall be held concerning the complaint pursuant to Section 2-35 (c), the disciplinary counsel shall present the matter to such committee.

(2) Pursuant to Section 2-82, discuss and may negotiate a disposition of the complaint with the respondent or, if represented by an attorney, the respondent's attorney, subject to the approval of the Statewide Grievance Committee or a reviewing committee or the court.

(3) Remove irrelevant information from the complaint file and thereafter permit discovery of information in the file.

(4) Pursuant to Section 2-35, add additional allegations of misconduct to the grievance panel's determination that probable cause exists that the respondent is guilty of misconduct.

(5) Have the power to subpoena witnesses for any hearing before a grievance panel, a reviewing committee or the Statewide Grievance Committee convened pursuant to these rules.

(6) In his or her discretion, recommend dispositions to the Statewide Grievance Committee or the reviewing committee after the hearing on a complaint is concluded.

(7) At the request of the Statewide Grievance Committee or a reviewing committee, prepare and file complaints initiating presentment proceedings in the Superior Court, whether or not the alleged misconduct occurred in the actual presence of the court, and prosecute same.

(8) At the request of a grievance panel made pursuant to Section 2-29, pursue the matter before the grievance panel on the issue of probable cause.

(9) Investigate and prosecute complaints involving the violation by any person of General Statutes § 51-88.

(Adopted June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003, and amended on an interim basis, pursuant to the provisions of Section 1-9 (c), to take effect Oct. 1, 2003, and amendment adopted June 30, 2003, to take effect Oct. 1, 2003; Sept. 30, 2003, effective date of adopted rule and amendment changed to Jan. 1, 2004; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, the second and third sentences of subsection (a) read: "The chief disciplinary counsel and the disciplinary counsel shall be appointed by the judges of the Superior Court for a term of one year commencing July 1, except that initial appointments shall be from such date as the judges determine through the following June 30. In the event that a vacancy arises in any of these positions before the end of a term, the executive committee of the Superior Court may appoint a qualified individual to fill the vacancy for the balance of the term."

COMMENTARY—2026: The changes to this section are consistent with the current duties and responsibilities of and properly undertaken by the Chief Court Administrator and are consistent with the provisions of No. 24-108 of the 2024 Public Acts, An Act Concerning Court Operations and Administrative Proceedings, which, among other things, consolidated under the Chief Court Administrator the responsibility for many personnel and administrative matters that historically were acted on by the Executive Committee and/or the judges of the Superior Court.

Sec. 2-35. Action by Statewide Grievance Committee or Reviewing Committee

(a) Upon receipt of the record from a grievance panel, the Statewide Grievance Committee may assign the case to a reviewing committee which shall consist of at least three members of the Statewide Grievance Committee, at least one third of whom are not attorneys. The Statewide Grievance Committee may, in its discretion, reassign the case to a different reviewing committee. The committee shall regularly rotate membership on reviewing committees and assignments of complaints from the various grievance panels. An attorney who maintains an office for the practice of law in the same judicial district as the respondent may not sit on the reviewing committee for that case.

(b) The Statewide Grievance Committee and the reviewing committee shall have the power to issue a subpoena to compel any person to appear before it to testify in relation to any matter deemed by the Statewide Grievance Committee or the reviewing committee to be relevant to the complaint and to produce before it for examination any books or papers which, in its judgment, may be relevant to such complaint. Any such testimony shall be on the record.

(c) If the grievance panel determined that probable cause exists that the respondent is guilty of misconduct, the Statewide Grievance Committee or the reviewing committee shall hold a hearing on the complaint. If the grievance panel determined that probable cause does not exist, but filed the matter with the Statewide Grievance Committee because the complaint alleges that a crime has been committed, the Statewide Grievance Committee or the reviewing committee shall review the determination of no probable cause, take evidence if it deems it appropriate and, if it determines that probable cause does exist, shall take the following action: (1) if the Statewide Grievance Committee reviewed the grievance panel's determination, it shall hold a hearing concerning the complaint or assign the matter to a reviewing committee to hold the hearing; or (2) if a reviewing committee reviewed the grievance panel's determination, it shall hold a hearing concerning the complaint or refer the matter to the Statewide Grievance Committee which shall assign it to another reviewing committee to hold the hearing.

(d) Disciplinary counsel may add additional allegations of misconduct to the grievance panel's determination that probable cause exists in the following circumstances:

(1) Prior to the hearing before the Statewide Grievance Committee or the reviewing committee, disciplinary counsel may add additional allegations of misconduct arising from the record of the grievance complaint or its investigation of the complaint.

(2) Following commencement of the hearing before the Statewide Grievance Committee or the reviewing committee, disciplinary counsel may only add additional allegations of misconduct for good cause shown and with the consent of the

respondent and the Statewide Grievance Committee or the reviewing committee. Additional allegations of misconduct may not be added after the hearing has concluded.

(e) If disciplinary counsel determines that additional allegations of misconduct exist, it shall issue a written notice to the respondent and the Statewide Grievance Committee, which shall include, but not be limited to, the following: (1) a description of the factual allegation or allegations that were considered in rendering the determination; and (2) for each such factual allegation, an identification of the specific provision or provisions of the applicable rules governing attorney conduct considered in rendering the determination.

(f) The respondent shall be entitled to a period of not less than thirty days before being required to appear at a hearing to defend against any additional charges of misconduct filed by the disciplinary counsel.

(g) At least two of the same members of a reviewing committee shall be present at all hearings held by the reviewing committee. If a member of the reviewing committee is absent for the hearing, the member's participation in the determination of the matter shall be waived unless the disciplinary counsel or the respondent object at the commencement of the hearing. If an objection is raised, then the absent member of the reviewing committee shall obtain and review the transcript of each such hearing and shall participate in the committee's determination. All hearings following a determination of probable cause shall be public and on the record.

(h) The complainant and respondent shall be entitled to be present at all hearings and other proceedings on the complaint at which testimony is given and to have counsel present. At all hearings, the respondent shall have the right to be heard in the respondent's own defense and by witnesses and counsel. The disciplinary counsel shall pursue the matter before the Statewide Grievance Committee or reviewing committee. The disciplinary counsel and the respondent shall be entitled to examine or cross-examine witnesses. At the conclusion of the evidentiary phase of a hearing, the complainant, the disciplinary counsel and the respondent shall have the opportunity to make a statement, either individually or through counsel. The Statewide Grievance Committee or reviewing committee may request oral argument.

(i) Within ninety days of the date the grievance panel filed its determination with the Statewide Grievance Committee pursuant to Section 2-32 (i), the reviewing committee shall render a final written decision dismissing the complaint, imposing sanctions and conditions as authorized by Section 2-37 or directing the disciplinary counsel to file a presentment against the respondent in the Superior Court and file it with the Statewide Grievance Committee. In a decision of the reviewing committee directing the disciplinary counsel to file a presentment against the respondent, the reviewing committee may direct that the presentment include additional findings of misconduct beyond those set forth in the probable cause finding and the additional allegations of misconduct if the findings are supported by the record. Where there is a final decision dismissing the complaint, the reviewing committee may give notice in a written summary order to be followed by a full written decision. The reviewing committee's record in the case shall consist of a copy of all evidence it received or considered, including a transcript of any testimony heard by it, and its decision. The record shall also be sent to the Statewide Grievance Committee. The reviewing committee shall forward a copy of the final decision to the complainant, the disciplinary counsel, the respondent, and the grievance panel to which the complaint was forwarded. The decision shall be a matter of public record if there was a determination by a grievance panel, a reviewing committee or the Statewide Grievance Committee that there was probable cause that the respondent was guilty of misconduct. The reviewing committee may file a motion for extension of time not to exceed thirty days with the Statewide Grievance Committee which shall grant the motion only upon a showing of good cause. If the reviewing committee does not complete its action on a complaint within the time provided in this section, the Statewide Grievance Committee shall, on motion of the complainant or the respondent or on its own motion, inquire into the delay and determine the appropriate course of action. Enforcement of the final decision, including the publication of the notice of a reprimand pursuant to Section 2-54, shall be stayed for thirty days from the date of the issuance to the parties of the final decision. In the event the respondent timely submits to the Statewide Grievance Committee a request for review of the final decision of the reviewing committee, such stay shall remain in full force and effect pursuant to Section 2-38 (b).

(j) If the reviewing committee finds probable cause to believe the respondent has violated the criminal law of this state, it shall report its findings to the chief state's attorney.

(k) Within thirty days of the issuance to the parties of the final decision by the reviewing committee, the respondent may submit to the Statewide Grievance Committee a request for review

of the decision. No request for review may be submitted following a decision approving a proposed disposition filed pursuant to Section 2-82 (b) or (g). Any request for review submitted under this section must specify the basis for the request including, but not limited to, a claim or claims that the reviewing committee's findings, inferences, conclusions or decision is or are: (1) in violation of constitutional provisions, rules of practice or statutory provisions; (2) in excess of the authority of the reviewing committee; (3) made upon unlawful procedure; (4) affected by other error of law; (5) clearly erroneous in view of the reliable, probative, and substantial evidence on the whole record; or (6) arbitrary or capricious or characterized by abuse of discretion or clearly unwarranted exercise of discretion and the specific basis for such claim or claims. For grievance complaints filed on or after January 1, 2004, the respondent shall serve a copy of the request for review on disciplinary counsel in accordance with Sections 10-12 through 10-17. Within fourteen days of the respondent's submission of a request for review, disciplinary counsel may file a response. Disciplinary counsel shall serve a copy of the response on the respondent in accordance with Sections 10-12 through 10-17. No reply to the response shall be allowed.

(*l*) If, after its review of a complaint pursuant to this section that was forwarded to the Statewide Grievance Committee pursuant to Section 2-32 (i) (2), a reviewing committee agrees with a grievance panel's determination that probable cause does not exist that the attorney is guilty of misconduct and there has been no finding of probable cause by the Statewide Grievance Committee or a reviewing committee, the reviewing committee shall have the authority to dismiss the complaint within the time period set forth in subsection (e) of this section without review by the Statewide Grievance Committee. The reviewing committee shall file its decision dismissing the complaint with the Statewide Grievance Committee along with the record of the matter and shall send a copy of the decision to the complainant, the respondent, and the grievance panel to which the complaint was assigned.

(m) If the Statewide Grievance Committee does not assign a complaint to a reviewing committee, it shall have 120 days from the date the panel's determination was filed with it to render a decision dismissing the complaint, imposing sanctions and conditions as authorized by Section 2-37 or directing the disciplinary counsel to file a presentment against the respondent. In a decision of the Statewide Grievance Committee directing the disciplinary counsel to file a presentment against the respondent, the Statewide Grievance Committee may direct that the presentment include additional findings of misconduct beyond those set forth in the probable cause finding and the additional allegations of misconduct if the findings are supported by the record. The decision shall be a matter of public record. The failure of a reviewing committee to complete its action on a complaint within the period of time provided in this section shall not be cause for dismissal of the complaint. If the Statewide Grievance Committee finds probable cause to believe that the respondent has violated the criminal law of this state, it shall report its findings to the chief state's attorney.

(P.B. 1978-1997, Sec. 27J.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 15, 2012, to take effect Jan. 1, 2013; subsection (g) amended June 11, 2021, to take effect July 13, 2021; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 2-36. Action by Statewide Grievance Committee on Request for Review

Within sixty days of the expiration of the thirty day period for the filing of a request for review under Section 2-35 (k), or, with regard to grievance complaints filed on or after January 1, 2004, within sixty days of the expiration of the fourteen day period for the filing of a response by disciplinary counsel to a request for review under that section, the Statewide Grievance Committee shall issue a written decision affirming the decision of the reviewing committee, dismissing the complaint, imposing sanctions and conditions as authorized by Section 2-37, directing the disciplinary counsel to file a presentment against the respondent in the Superior Court or referring the complaint to the same or a different reviewing committee for further investigation and a decision. Before issuing its decision, the Statewide Grievance Committee may, in its discretion, request oral argument. The Statewide Grievance Committee shall forward a copy of its decision to the complainant, the disciplinary counsel, the respondent, the reviewing committee and the grievance panel which investigated the complaint. The decision shall be a matter of public record. A decision of the Statewide Grievance Committee shall be issued only if the respondent has timely filed a request for review under Section 2-35 (k). A respondent may not appeal to the Superior Court a decision of the Statewide Grievance Committee affirming the reviewing committee's decision

directing the disciplinary counsel to file a presentment against the respondent.

(P.B. 1978-1997, Sec. 27M.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 2-37. Sanctions and Conditions Which May Be Imposed by Committees

(a) A reviewing committee or the Statewide Grievance Committee may impose one or more of the following sanctions and conditions in accordance with the provisions of Sections 2-35 and 2-36:

(1) reprimand;

(2) restitution;

(3) assessment of costs;

(4) an order that the respondent return a client's file to the client;

(5) a requirement that the respondent attend continuing legal education courses, at his or her own expense, regarding one or more areas of substantive law or law office management;

(6) an order to submit to fee arbitration;

(7) in any grievance complaint where there has been a finding of a violation of Rule 1.15 of the Rules of Professional Conduct or Practice Book Section 2-27, an order to submit to periodic audits and supervision of the attorney's trust accounts to ensure compliance with the provisions of Section 2-27 and the related Rules of Professional Conduct. Any alleged misconduct discovered as the result of such audit shall be alleged in a separate grievance complaint filed pursuant to these rules;

(8) with the respondent's consent, a requirement that the respondent undertake treatment, at his or her own expense, for medical, psychological or psychiatric conditions or for problems of alcohol or substance abuse.

(b) In connection with subsection (a) (6), a party who refuses to utilize the no cost fee arbitration service provided by the Connecticut Bar Association shall pay the cost of the arbitration.

(c) Failure of the respondent to comply with any sanction or condition imposed by the Statewide Grievance Committee or a reviewing committee may be grounds for presentment before the Superior Court.

(P.B. 1978-1997, Sec. 27M.1.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec. 2-38. Appeal from Decision of Statewide Grievance Committee or Reviewing Committee Imposing Sanctions or Conditions

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) A respondent may appeal to the Superior Court a decision by the Statewide Grievance Committee or a reviewing committee imposing sanctions or conditions against the respondent, in accordance with Section 2-37 (a). A respondent may not appeal a decision by a reviewing committee imposing sanctions or conditions against the respondent if the respondent has not timely requested a review of the decision by the Statewide Grievance Committee under Section 2-35 (k). Within thirty days from the issuance, pursuant to Section 2-36, of the decision of the Statewide Grievance Committee, the respondent shall: (1) file the appeal with the clerk of the Superior Court for the judicial district of Hartford and (2) mail a copy of the appeal by certified mail, return receipt requested or with electronic delivery confirmation, to the Office of the Statewide Bar Counsel as agent for the Statewide Grievance Committee and to the Office of the Chief Disciplinary Counsel.

(b) Enforcement of a final decision imposing sanctions or conditions against the respondent pursuant to Section 2-35 (i) or Section 2-35 (m), including the publication of the notice of a reprimand in accordance with Section 2-54, shall be stayed for thirty days from the issuance to the parties of such decision. If within that period the respondent files with the Statewide Grievance Committee a request for review of the reviewing committee's decision, the stay shall remain in effect for thirty days from the issuance by the Statewide Grievance Committee of its final decision pursuant to Section 2-36. If the respondent timely commences an appeal pursuant to subsection (a) of this section, such stay shall remain in full force and effect until the conclusion of all proceedings, including all appeals, relating to the decision imposing sanctions or conditions against the respondent. If at the conclusion of all proceedings, the decision imposing sanctions or conditions against the respondent is rescinded, the complaint shall be deemed dismissed as of the date of the decision imposing sanctions or conditions against the respondent. An application to terminate the stay may be made to the court and shall be granted if the court is of the opinion that the appeal is taken only for delay or that the due administration of justice requires that the stay be terminated.

(c) Within thirty days after the service of the appeal, or within such further time as may be allowed by the court, the statewide bar counsel shall transmit to the reviewing court a certified copy of the entire record of the proceeding appealed from, which shall include the grievance panel's record in the case, as defined in Section 2-32 (i), and a copy of the Statewide Grievance Committee's record or the reviewing committee's record in the case, which shall include a transcript

of any testimony heard by it or by a reviewing committee which is required by rule to be on the record, any decision by the reviewing committee in the case, any requests filed pursuant to Section 2-35 (k) of this section, and a copy of the Statewide Grievance Committee's decision on the request for review. By stipulation of all parties to such appeal proceedings, the record may be shortened. The court may require or permit subsequent corrections or additions to the record.

(d) The appeal shall be conducted by the court without a jury and shall be confined to the record. If alleged irregularities in procedure before the Statewide Grievance Committee or reviewing committee are not shown in the record, proof limited thereto may be taken in the court. The court, upon request, shall hear oral argument.

(e) The respondent shall file a brief within thirty days after the filing of the record by the statewide bar counsel. The disciplinary counsel shall file his or her brief within thirty days of the filing of the respondent's brief. Unless permission is given by the court for good cause shown, briefs shall not exceed thirty-five pages.

(f) Upon appeal, the court shall not substitute its judgment for that of the Statewide Grievance Committee or reviewing committee as to the weight of the evidence on questions of fact. The court shall affirm the decision of the committee unless the court finds that substantial rights of the respondent have been prejudiced because the committee's findings, inferences, conclusions, or decisions are: (1) in violation of constitutional provisions, rules of practice or statutory provisions; (2) in excess of the authority of the committee; (3) made upon unlawful procedure; (4) affected by other error of law; (5) clearly erroneous in view of the reliable, probative, and substantial evidence on the whole record; or (6) arbitrary or capricious or characterized by abuse of discretion or clearly unwarranted exercise of discretion. If the court finds such prejudice, it shall sustain the appeal and, if appropriate, rescind the action of the Statewide Grievance Committee or take such other action as may be necessary. For purposes of further appeal, the action taken by the Superior Court hereunder is a final judgment.

(g) In all appeals taken under this section, costs may be taxed in favor of the Statewide Grievance Committee in the same manner, and to the same extent, that costs are allowed in judgments rendered by the Superior Court. No costs shall be taxed against the Statewide Grievance Committee, except that the court may, in its discretion, award to the respondent reasonable fees and expenses if the court determines that the action of the committee was undertaken without any substantial justification. "Reasonable fees and expenses" means any expenses not in excess of $7500 which the court finds were reasonably incurred in opposing the committee's action, including court costs, expenses incurred in administrative proceedings, attorney's fees, witness fees of all necessary witnesses, and such other expenses as were reasonably incurred.

(P.B. 1978-1997, Sec. 27N.) (Amended June 29, 1998, to take effect Sept. 1, 1999; amended June 28, 1999, to take effect Jan. 1, 2000; amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; amended June 30, 2003, to take effect Oct. 1, 2003; Sept. 30, 2003, effective date of two prior amendments changed to Jan. 1, 2004; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 2-39. Reciprocal Discipline

(a) Upon being informed that a lawyer admitted to the Connecticut bar has resigned, been disbarred, suspended or otherwise disciplined, or placed on inactive disability status in another jurisdiction, and that said discipline or inactive disability status has not been stayed, the disciplinary counsel shall obtain a certified copy of the order and file it with the Superior Court for the judicial district wherein the lawyer maintains an office for the practice of law in this state, except that, if the lawyer has no such office, the disciplinary counsel shall file the certified copy of the order from the other jurisdiction with the Superior Court for the judicial district of Hartford. No entry fee shall be required for proceedings hereunder.

(b) Upon receipt of a certified copy of the order, the court shall forthwith cause to be served upon the lawyer a copy of the order from the other jurisdiction and an order directing the lawyer to file within thirty days of service, with proof of service upon the disciplinary counsel, an answer admitting or denying the action in the other jurisdiction and setting forth, if any, reasons why commensurate action in this state would be unwarranted. Such certified copy will constitute prima facie evidence that the order of the other jurisdiction entered and that the findings contained therein are true.

(c) Upon the expiration of the thirty day period the court shall assign the matter for a hearing. After hearing, the court shall take commensurate action unless it is found that the respondent has established by clear and convincing evidence that:

(1) The procedure in the predicate matter was so lacking in notice or opportunity to be heard as to constitute a deprivation of due process; or

(2) There was such infirmity of proof establishing the misconduct in the predicate matter as to

give rise to the clear conviction that the court could not, consistent with its duty, accept as final the conclusion on that subject; or

(3) The discipline imposed would result in grave injustice; or

(4) The misconduct established in the predicate matter warrants substantially different discipline in this state; or

(5) The reason for the original transfer to inactive disability status no longer exists.

(d) Notwithstanding the above, a reciprocal discipline action need not be filed if the conduct giving rise to discipline in another jurisdiction has already been the subject of a formal review by the court or Statewide Grievance Committee.

(P.B. 1978-1997, Sec. 28A.) (Amended June 29, 1998, to take effect Sept. 1, 1998; amended August 24, 2001, to take effect Jan. 1, 2002; amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 2-40. Discipline of Attorneys Found Guilty of Serious Crimes in Connecticut

(Amended June 13, 2014, to take effect Oct. 1, 2014.)

(a) The term "serious crime," as used herein, shall mean any felony, any larceny, any crime where the attorney was or will be sentenced to a term of incarceration, or any other crime that reflects adversely on the lawyer's honesty, trustworthiness, or fitness as a lawyer in other respects, or any crime, a necessary element of which, as determined by the statutory or common-law definition of the crime, involves interference with the administration of justice, false swearing, misrepresentation, fraud, deceit, bribery, extortion, misappropriation, theft, wilful failure to file tax returns, violations involving criminal drug offenses, or any attempt, conspiracy or solicitation of another to commit a "serious crime."

(b) The terms "found guilty" and "finding of guilt," as used herein, refer to the disposition of any charge of a serious crime as herein defined resulting from either a plea of guilty or nolo contendere, or from a verdict after trial, and regardless of the pendency of any appeal.

(c) The clerk of the Superior Court in which an attorney is found guilty of any crime shall transmit a certified copy of the finding of guilt, docket sheet, or other proof of the finding of guilt to the disciplinary counsel and to the Statewide Grievance Committee.

(d) Notwithstanding any obligation imposed upon the clerk by subsection (c) of this section, any attorney found guilty of any crime shall send written notice of the finding of guilt to the disciplinary counsel and the Statewide Grievance Committee, by certified mail, return receipt requested, or with electronic delivery confirmation, within ten days of the date of the finding of guilt. The written notice shall include the name and address of the court where the finding of guilt was made, the date of the finding of guilt, and the specific section of the applicable criminal, penal, or statutory code upon which the finding of guilt was predicated. An attorney's failure to send timely written notice of his or her finding of guilt required by this section shall constitute misconduct.

(e) Upon receipt of proof of the finding of guilt, the disciplinary counsel shall determine whether the crime for which the attorney was found guilty is a serious crime, as defined herein. If so, disciplinary counsel shall, pursuant to Section 2-47, file a presentment against the attorney predicated upon the finding of guilt. A certified copy of the finding of guilt shall be conclusive evidence of the commission of that crime in any disciplinary proceeding based upon the finding of guilt. No entry fee shall be required for proceedings hereunder.

(f) A presentment filed pursuant to this section shall be heard, where practical, by the judge who presided at the proceeding in which the attorney was found guilty. A hearing on the presentment complaint shall address the issue of the nature and extent of the final discipline to be imposed and shall be held within sixty days of the filing of the presentment.

(g) Immediately upon receipt of proof of the finding of guilt of an attorney of a serious crime, as defined herein, the disciplinary counsel may also apply to the court for an order of interim suspension. If the attorney was or will be sentenced to a term of incarceration, disciplinary counsel shall seek a suspension during the term of incarceration. The court may, in its discretion, enter an order immediately placing the attorney on interim suspension pending final disposition of a presentment filed pursuant to this section. Thereafter, for good cause shown, the court may, in the interests of justice, set aside or modify the interim suspension.

(h) At the presentment hearing, the attorney shall have the right to counsel, to be heard in his or her own defense and to present evidence and witnesses in his or her behalf. After the hearing, the court shall enter an order dismissing the presentment complaint, or imposing discipline upon such attorney in the form of suspension for a period of time, disbarment or such other discipline as the court deems appropriate. If the finding of guilt was based upon the lawyer's misappropriation of clients' funds or other property held in trust,

the court shall enter an order disbarring the attorney for a minimum of twelve years pursuant to Sections 2-47A and 2-53 (g).

(i) Whenever the court enters an order suspending or disbarring an attorney pursuant to a presentment filed under this section, the court may appoint a trustee, pursuant to Section 2-64, to protect the interests of the attorney's clients and to secure the attorney's clients' funds accounts.

(j) If an attorney disciplined solely under the provisions of this section demonstrates to the court that the underlying finding of guilt was later vacated or reversed, the court shall vacate any disciplinary order entered pursuant to the finding of guilt, and place the attorney on active status. The vacating of such disciplinary order shall not automatically terminate any other disciplinary proceeding then pending against the attorney.

(k) Immunity from prosecution granted to an attorney is not a bar to disciplinary proceedings, unless otherwise ordered by the court. The granting of a pretrial diversion program to an attorney charged with a serious crime, as defined herein, is not a bar to disciplinary proceedings, unless otherwise ordered by the court that granted the program to the attorney.

(P.B. 1978-1997, Sec. 28B.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 13, 2014, to take effect Oct. 1, 2014.)

Sec. 2-41. Discipline of Attorneys Found Guilty of Serious Crimes in Another Jurisdiction

(Amended June 13, 2014, to take effect Oct. 1, 2014.)

(a) The term "serious crime," as used herein, shall mean any felony, any larceny, or any crime where the attorney was or will be sentenced to a term of incarceration, or any other crime that reflects adversely on the lawyer's honesty, trustworthiness, or fitness as a lawyer in other respects, or any crime, a necessary element of which, as determined by the statutory or common-law definition of the crime, involves interference with the administration of justice, false swearing, misrepresentation, fraud, deceit, bribery, extortion, misappropriation, theft, wilful failure to file tax returns, violations involving criminal drug offenses, or any attempt, conspiracy or solicitation of another to commit a "serious crime."

(b) The terms "found guilty" and "finding of guilt," as used herein, refer to the disposition of any charge of a serious crime as defined herein resulting from either a plea of guilty or nolo contendere, or from a verdict after trial, and regardless of the pendency of any sentencing or appeal.

(c) The term "another jurisdiction," as used herein, shall mean any state court, other than the Connecticut Superior Court, any federal court, any District of Columbia court or any court from a commonwealth or possession of the United States.

(d) Any attorney found guilty of any crime in another jurisdiction shall send written notice of the finding of guilt to the disciplinary counsel and the Statewide Grievance Committee, by certified mail, return receipt requested, or with electronic delivery confirmation, within ten days of the date of the finding of guilt. The written notice shall include the name and address of the court where the finding of guilt was made, the date of the finding of guilt, and the specific section of the applicable criminal, penal, or statutory code upon which the finding of guilt was predicated. An attorney's failure to send timely written notice of the finding of guilt required by this section shall constitute misconduct.

(e) Upon receipt of the written notice of the finding of guilt in another jurisdiction, the disciplinary counsel shall determine whether the crime for which the attorney was found guilty is a "serious crime," as defined herein. If so, disciplinary counsel shall obtain a certified copy of the finding of guilt, which shall be conclusive evidence of the commission of that crime in any disciplinary proceeding based upon the finding of guilt. Upon receipt of the certified copy of the finding of guilt, the disciplinary counsel shall, pursuant to Section 2-47, file a presentment against the attorney predicated upon the finding of guilt. No entry fee shall be required for proceedings hereunder.

(f) A presentment filed pursuant to this section shall be filed in the judicial district where the attorney maintains an office for the practice of law in this state. If the attorney has no office for the practice of law in this state, the disciplinary counsel shall file the presentment in the Superior Court for the judicial district of Hartford. A hearing on the presentment complaint shall address the issue of the nature and extent of the final discipline to be imposed, and shall be held within sixty days of the filing of the presentment.

(g) The disciplinary counsel may also apply to the court for an order of interim suspension, which application shall contain a certified copy of the finding of guilt. If the attorney was or will be sentenced to a term of incarceration, disciplinary counsel shall seek a suspension for the term of incarceration. The court may, in its discretion, enter an order immediately placing the attorney on interim suspension pending final disposition of the presentment filed pursuant to this section. Thereafter, for good cause shown, the court may,

in the interests of justice, set aside or modify the interim suspension.

(h) At the presentment hearing, the attorney shall have the right to counsel, to be heard in his or her own defense, and to present evidence and witnesses in his or her behalf. After the hearing, the court shall enter an order dismissing the presentment complaint, or imposing discipline upon such attorney in the form of suspension for a period of time, disbarment or such other discipline as the court deems appropriate. If the finding of guilt was based on the lawyer's misappropriation of clients' funds or other property held in trust, the court shall enter an order disbarring the attorney for a minimum of twelve years pursuant to Sections 2-47A and 2-53 (g).

(i) Whenever the court enters an order suspending or disbarring an attorney pursuant to a presentment filed under this section, the court may appoint a trustee, pursuant to Section 2-64, to protect the interests of the attorney's clients and to secure the attorney's clients' funds accounts.

(j) If an attorney disciplined solely under the provisions of this section demonstrates to the court that the attorney's finding of guilt was later vacated or reversed, the court shall vacate any disciplinary order entered pursuant to this section. The vacating of such disciplinary order shall not automatically terminate any other disciplinary proceeding then pending against the attorney.

(k) Immunity from prosecution granted to an attorney is not a bar to disciplinary proceedings, unless otherwise ordered by the court. The granting of a pretrial diversion program to an attorney charged with a serious crime, as defined herein, is not a bar to disciplinary proceedings, unless otherwise ordered by the court that granted the program to the attorney.

(P.B. 1978-1997, Sec. 28B.1.) (Amended June 29, 1998, to take effect Sept. 1, 1998; amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Oct. 1, 2014.)

Sec. 2-42. Conduct Constituting Threat of Harm to Clients

(a) If a grievance panel, a reviewing committee, the Statewide Grievance Committee or the disciplinary counsel believes that a lawyer poses a substantial threat of irreparable harm to his or her clients or to prospective clients, the disciplinary counsel shall apply to the court for an order of interim suspension. The disciplinary counsel shall provide the lawyer with notice that an application for interim suspension has been filed and that a hearing will be held on such application.

(b) The court, after hearing, pending final disposition of the disciplinary proceeding, may, if it finds that the lawyer poses a substantial threat of irreparable harm to his or her clients or to prospective clients, enter an order of interim suspension, or may order such other interim action as deemed appropriate. Thereafter, upon good cause shown, the court may, in the interest of justice, set aside or modify the interim suspension or other order entered pursuant hereto. Whenever the court enters an interim suspension order pursuant hereto, the court may appoint a trustee, pursuant to Section 2-64, to protect the clients' and the suspended attorney's interests.

(c) No entry fee shall be required for proceedings hereunder. Any hearings necessitated by the proceedings may, in the discretion of the court, be held in chambers.

(P.B. 1978-1997, Sec. 28C.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 2-43. Notice by Attorney of Alleged Misuse of Clients' Funds and Garnishments of Lawyers' Trust Accounts

(a) When any complaint, counterclaim, cross complaint, special defense or other pleading in a judicial or administrative proceeding alleges a lawyer's misuse of funds handled by the lawyer in his or her capacity as a lawyer or a fiduciary, the person signing the pleading shall mail a copy thereof to the statewide bar counsel.

(b) In any case where a lawyer's trust account, as defined in Section 2-28 (b), is garnisheed, or otherwise liened, the party who sought the garnishment or lien shall mail a copy of the garnishee process or writ of attachment to the statewide bar counsel.

(P.B. 1978-1997, Sec. 28D.)

Sec. 2-44. Power of Superior Court To Discipline Attorneys and To Restrain Unauthorized Practice

The Superior Court may, for just cause, suspend or disbar attorneys and may, for just cause, punish or restrain any person engaged in the unauthorized practice of law.

(P.B. 1978-1997, Sec. 29.)

Sec. 2-44A. Definition of the Practice of Law

(a) General Definition: The practice of law is ministering to the legal needs of another person and applying legal principles and judgment to the circumstances or objectives of that person. This includes, but is not limited to:

(1) Holding oneself out in any manner as an attorney, lawyer, counselor, advisor or in any other capacity which directly or indirectly repre-

sents that such person is either (a) qualified or capable of performing or (b) is engaged in the business or activity of performing any act constituting the practice of law as herein defined.

(2) Giving advice or counsel to persons concerning or with respect to their legal rights or responsibilities or with regard to any matter involving the application of legal principles to rights, duties, obligations or liabilities.

(3) Drafting any legal document or agreement involving or affecting the legal rights of a person.

(4) Representing any person in a court, or in a formal administrative adjudicative proceeding or other formal dispute resolution process or in any administrative adjudicative proceeding in which legal pleadings are filed or a record is established as the basis for judicial review.

(5) Giving advice or counsel to any person, or representing or purporting to represent the interest of any person, in a transaction in which an interest in property is transferred where the advice or counsel, or the representation or purported representation, involves (a) the preparation, evaluation, or interpretation of documents related to such transaction or to implement such transaction or (b) the evaluation or interpretation of procedures to implement such transaction, where such transaction, documents, or procedures affect the legal rights, obligations, liabilities or interests of such person, and

(6) Engaging in any other act which may indicate an occurrence of the authorized practice of law in the state of Connecticut as established by case law, statute, ruling or other authority.

"Documents" includes, but is not limited to, contracts, deeds, easements, mortgages, notes, releases, satisfactions, leases, options, articles of incorporation and other corporate documents, articles of organization and other limited liability company documents, partnership agreements, affidavits, prenuptial agreements, wills, trusts, family settlement agreements, powers of attorney, notes and like or similar instruments; and pleadings and any other papers incident to legal actions and special proceedings.

The term "person" includes a natural person, corporation, company, partnership, firm, association, organization, society, labor union, business trust, trust, financial institution, governmental unit and any other group, organization or entity of any nature, unless the context otherwise dictates.

The term "Connecticut lawyer" means a natural person who has been duly admitted to practice law in this state and whose privilege to do so is then current and in good standing as an active member of the bar of this state.

(b) Exceptions. Whether or not it constitutes the practice of law, the following activities by any person are permitted:

(1) Selling legal document forms previously approved by a Connecticut lawyer in any format.

(2) Acting as a lay representative authorized by administrative agencies or in administrative hearings solely before such agency or hearing where:

(A) Such services are confined to representation before such forum or other conduct reasonably ancillary to such representation; and

(B) Such conduct is authorized by statute, or the special court, department or agency has adopted a rule expressly permitting and regulating such practice.

(3) Serving in a neutral capacity as a mediator, arbitrator, conciliator or facilitator.

(4) Participating in labor negotiations, arbitrations, or conciliations arising under collective bargaining rights or agreements.

(5) Providing clerical assistance to another to complete a form provided by a court for the protection from abuse, harassment and violence when no fee is charged to do so.

(6) Acting as a legislative lobbyist.

(7) Serving in a neutral capacity as a clerk or a court employee providing information to the public.

(8) Performing activities which are preempted by federal law.

(9) Performing statutorily authorized services as a real estate agent or broker licensed by the state of Connecticut.

(10) Preparing tax returns and performing any other statutorily authorized services as a certified public accountant, enrolled IRS agent, public accountant, public bookkeeper, or tax preparer.

(11) Performing such other activities as the courts of Connecticut have determined do not constitute the unlicensed or unauthorized practice of law.

(12) Undertaking self-representation, or practicing law authorized by a limited license to practice.

(c) Remote Practice: To the extent that a lawyer is physically present in this jurisdiction and remotely engages in the practice of law as authorized under the laws of another United States jurisdiction in which the lawyer is admitted, such conduct does not constitute the practice of law in this jurisdiction.

(d) Nonlawyer Assistance: Nothing in this rule shall affect the ability of nonlawyer assistants to act under the supervision of a lawyer in compliance with Rule 5.3 of the Rules of Professional Conduct.

(e) General Information: Nothing in this rule shall affect the ability of a person or entity to provide information of a general nature about the law and legal procedures to members of the public.

(f) Governmental Agencies: Nothing in this rule shall affect the ability of a governmental agency to carry out its responsibilities as provided by law.

(g) Professional Standards: Nothing in this rule shall be taken to define or affect standards for civil liability or professional responsibility.

(h) Unauthorized Practice: If a person who is not authorized to practice law is engaged in the practice of law, that person shall be subject to the civil and criminal penalties of this jurisdiction.

(Adopted June 29, 2007, to take effect Jan. 1, 2008; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 2-45. —Cause Occurring in Presence of Court

If such cause occurs in the actual presence of the court, the order may be summary, and without complaint or hearing; but a record shall be made of such order, reciting the ground thereof. Without limiting the inherent powers of the court, if attorney misconduct occurs in the actual presence of the court, the Statewide Grievance Committee and the grievance panels shall defer to the court if the court chooses to exercise its jurisdiction.

(P.B. 1978-1997, Sec. 30.)

Sec. 2-46. Suspension of Attorneys Who Violate Support Orders

(a) Except as otherwise provided in this section, the procedures of General Statutes §§ 46b-220 through 46b-223 shall be followed with regard to the suspension from the practice of law of attorneys who are found to be delinquent child support obligors.

(b) A judge, upon finding that an attorney admitted to the bar in this state is a delinquent child support obligor as defined in General Statutes § 46b-220 (a), may, pursuant to General Statutes § 46b-220 (b), issue a suspension order concerning that attorney.

(c) If the attorney obligor fails to comply with the conditions of the suspension order within thirty days of its issuance, the Department of Social Services, a support enforcement officer, the attorney for the obligee or the obligee, as provided in the suspension order, shall file with the clerk of the Superior Court which issued the suspension order an affidavit stating that the conditions of the suspension order have not been met, and shall serve the attorney obligor with a copy of such affidavit in accordance with Sections 10-12 through 10-17. The affidavit shall be filed within forty-five days of the expiration of the thirty day period.

(d) Upon receipt of the affidavit, the clerk shall forthwith bring the suspension order and the affidavit to a judge of the Superior Court for review. If the judge determines that pursuant to the provisions of General Statutes § 46b-220 the attorney obligor should be suspended, the judge shall suspend the attorney obligor from the practice of law, effective immediately.

(e) A suspended attorney who has complied with the conditions of the suspension order concerning reinstatement, shall file a motion with the court to vacate the suspension. Upon proof of such compliance, the court shall vacate the order of suspension and reinstate the attorney. The provisions of Section 2-53 shall not apply to suspensions under this section.

(f) The clerk shall notify the statewide bar counsel of any suspensions and reinstatements ordered pursuant to this section.

(P.B. 1978-1997, Sec. 30A.)

Sec. 2-47. Presentments and Unauthorized Practice of Law Petitions

(a) Presentment of attorneys for misconduct, whether or not the misconduct occurred in the actual presence of the court, shall be made by written complaint of the disciplinary counsel. Service of the complaint shall be made as in civil actions. Any interim proceedings to the contrary notwithstanding, a hearing on the merits of the complaint shall be held within sixty days of the date the complaint was filed with the court. At such hearing, the respondent shall have the right to be heard in his or her own defense and by witnesses and counsel. After such hearing the court shall render a judgment dismissing the complaint or imposing discipline as follows: reprimand, suspension for a period of time, disbarment or such other discipline as the court deems appropriate. This may include conditions to be fulfilled by the attorney before he or she may apply for readmission or reinstatement. Unless otherwise ordered by the court, such complaints shall be prosecuted by the disciplinary counsel or an attorney appointed pursuant to Section 2-48.

(b) The sole issue to be determined in a disciplinary proceeding predicated upon conviction of a felony, any larceny or crime for which the lawyer is sentenced to a term of incarceration or for which a suspended period of incarceration is imposed shall be the extent of the final discipline to be imposed.

(c) A petition to restrain any person from engaging in the unauthorized practice of law not occurring in the actual presence of the court may be made by written complaint to the Superior Court in the judicial district where such violation occurs.

When offenses have been committed by the same person in more than one judicial district, presentment for all offenses may be made in any one of such judicial districts. Such complaint may be prosecuted by the state's attorney, by the disciplinary counsel, or by any member of the bar by direction of the court. Upon the filing of such complaint, a rule to show cause shall issue to the defendant, who may make any proper answer within twenty days from the return of the rule and who shall have the right to be heard as soon as practicable, and upon such hearing the court shall make such lawful orders as it may deem just. Such complaints shall be proceeded with as civil actions.

(d) (1) If a determination is made by the Statewide Grievance Committee or a reviewing committee that a respondent is guilty of misconduct and such misconduct does not otherwise warrant a presentment to the Superior Court, but the respondent has been disciplined pursuant to these rules by the Statewide Grievance Committee, a reviewing committee or the court at least three times pursuant to complaints filed within the five year period preceding the date of the filing of the grievance complaint that gave rise to such finding of misconduct in the instant case, the Statewide Grievance Committee or the reviewing committee shall direct the disciplinary counsel to file a presentment against the respondent in the Superior Court. Service of the matter shall be made as in civil actions. The Statewide Grievance Committee or the reviewing committee shall file with the court the record in the matter and a copy of the prior discipline issued against the respondent within such five year period. The sole issue to be determined by the court upon the presentment shall be the appropriate action to take as a result of the nature of the misconduct in the instant case and the cumulative discipline issued concerning the respondent within such five year period. Such action shall be in the form of a judgment dismissing the complaint or imposing discipline as follows: reprimand, suspension for a period of time, disbarment or such other discipline as the court deems appropriate. This may include conditions to be fulfilled by the respondent before he or she may apply for readmission or reinstatement. This subsection shall apply to all findings of misconduct issued from the day of enactment forward and the determination of presentment shall consider all discipline pursuant to complaints filed within the five year period preceding the date of the filing of the grievance complaint that gave rise to the finding of misconduct even if they predate the effective date of these rules.

(2) If the respondent has appealed the issuance of a finding of misconduct made by the Statewide Grievance Committee or the reviewing committee, the court shall first adjudicate and decide that appeal in accordance with the procedures set forth in subsections (d) through (f) of Section 2-38. In the event the court denies the respondent's appeal of the finding of misconduct, the court shall then adjudicate the presentment brought under this section. In no event shall the court review the merits of the matters for which the prior reprimands were issued against the respondent.

(e) No entry fee shall be required for the filing of any complaint pursuant to this section.

(P.B. 1978-1997, Sec. 31.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 2-47A. Disbarment of Attorney for Misappropriation of Funds

In any disciplinary proceeding where there has been a finding by a judge of the Superior Court that a lawyer has knowingly misappropriated a client's funds or other property held in trust, the discipline for such conduct shall be disbarment for a minimum of twelve years.

(Adopted June 26, 2006, to take effect Jan. 1, 2007; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 2-47B. Restrictions on the Activities of Deactivated Attorneys

(a) As used in this section:

(1) A "deactivated attorney" is an attorney who is currently disbarred, suspended, resigned, or on inactive status.

(2) A "supervising attorney" is an attorney:

(A) who has been approved by the court as a supervising attorney for a deactivated attorney in accordance with subsection (e) of this section;

(B) who is in good standing with the bar of this state;

(C) who was not affiliated with the deactivated attorney as an employer, employee, partner, independent contractor or in any other employment relationship at the time of the deactivation; and

(D) who did not serve as an attorney pursuant to Section 2-64 in connection with the disbarment, suspension, resignation or placement on inactive status of the deactivated attorney.

(3) A "law-related activity" is:

(A) engaging in the practice of law as defined by Section 2-44A;

(B) representing a client in any legal matter, including discovery matters;

(C) negotiating or transacting any matter for, or on behalf of, a client with third parties, or having

any contact with third parties regarding such negotiation or transaction;

(D) receiving, disbursing or exercising any control over clients' funds or other property held in trust and related accounts;

(E) using the titles "attorney" or "lawyer," or the designations "Esq.," or "J.D." to describe oneself; or

(F) communicating with clients and third parties regarding matters that are the subject of representation by the supervising attorney or his or her firm.

(4) "Employ" means to engage the services of another, including employees, agents, independent contractors and consultants, regardless of whether any compensation is paid.

(b) (1) No deactivated attorney shall be permitted to engage in any law-related activities or to be employed as a paralegal or legal assistant unless expressly permitted by the court as provided in this section.

(2) The court may expressly permit, by written order, a deactivated attorney to perform any of the following activities, under the supervision of a supervising attorney, as provided herein:

(A) performing legal work of a preparatory nature, such as conducting legal research, assembling data and other necessary information, and drafting transactional documents, pleadings, briefs, and other similar documents; and

(B) providing clerical assistance to the supervising attorney.

(c) No attorney who knows or should have known that an attorney's license has been deactivated, shall employ the deactivated attorney to engage in any law-related activities or to act as a paralegal or legal assistant, without the permission of the court, as provided in this section.

(d) A deactivated attorney shall not engage in law-related activities or be employed as a paralegal or legal assistant on behalf of any client previously represented by the deactivated attorney or for whom the deactivated attorney had previously provided any legal services in the ten year period prior to deactivation. During the period of employment of the deactivated attorney, the supervising attorney or his or her firm shall not assume representation of any matter on behalf of any client previously represented by the deactivated attorney or for whom the deactivated attorney had previously provided any legal services in the ten year period prior to deactivation.

(e) (1) An attorney desiring to become a supervising attorney shall file a written application on a form approved by the Office of the Chief Court Administrator.

(2) The application shall be filed with the court in the docket number of the matter in which the deactivated attorney was suspended, disbarred, placed on inactive status or resigned. A copy of the application shall be served by the applicant on the Office of the Chief Disciplinary Counsel.

(3) An application filed under this section shall be assigned to the same judge who presided over the matter in which the deactivated attorney resigned or was disbarred, suspended, or placed on inactive status. If that judge is no longer available, the administrative judge in the judicial district where the deactivation proceeding was held shall assign the matter to another judge.

(f) The court shall schedule the application for a hearing to determine the following:

(1) whether the deactivated attorney should be permitted to perform the activities permitted herein;

(2) whether the attorney will be appointed to serve as the supervising attorney for the deactivated attorney; and

(3) whether any additional monitoring, conditions, or restrictions are necessary.

(g) If the relationship between the supervising attorney and the deactivated attorney terminates, the supervising attorney shall send written notice to the court within fifteen days of the termination of the relationship. A copy of the written notice shall be served on the Office of the Chief Disciplinary Counsel.

(h) Violation of this section by the deactivated attorney or the supervising attorney shall constitute a violation of Rule 8.4 (4) of the Rules of Professional Conduct.

(i) In any application for reinstatement, the supervising attorney and a deactivated attorney under the supervision of a supervising attorney pursuant to this section shall certify that he or she has complied with the requirements of this section during the period of suspension, disbarment, resignation, or inactive status.

(Adopted June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 2-48. Designee To Prosecute Presentments

The executive committee of the Superior Court may choose one or more members of the bar of this state to prosecute presentments. The chief court administrator may also contract with members of the bar of this state to prosecute presentments, actions for reciprocal discipline, actions for interim suspension and disciplinary proceedings predicated on the conviction of an attorney of a felony or other crime set out in Section 2-40.

(P.B. 1978-1997, Sec. 31A.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004.)

Sec. 2-49. Restitution

Whenever restitution has been made the panel or committee investigating the attorney's conduct shall nevertheless determine if further proceedings are necessary. If it is found that further proceedings are deemed unnecessary, such decision shall be reviewed by the Statewide Grievance Committee in accordance with the provisions of this chapter.

(P.B. 1978-1997, Sec. 31B.)

Sec. 2-50. Records of Statewide Grievance Committee, Reviewing Committee and Grievance Panel

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) The Statewide Grievance Committee shall maintain the record of each grievance proceeding. The record in a grievance proceeding shall consist of the following:

(1) The grievance panel's record as set forth in Section 2-32 (i);

(2) The reviewing committee's record as set forth in Section 2-35 (e);

(3) The Statewide Grievance Committee's record;

(4) Any probable cause determinations issued by the Statewide Grievance Committee or a reviewing committee;

(5) Transcripts of hearings held before the Statewide Grievance Committee or a reviewing committee;

(6) The reviewing committee's proposed decision;

(7) Any statement submitted to the Statewide Grievance Committee concerning a proposed decision;

(8) The Statewide Grievance Committee's final decision;

(9) The reviewing committee's final decision;

(10) Any request for review submitted to the Statewide Grievance Committee concerning a reviewing committee's decision; and

(11) The Statewide Grievance Committee's decision on the request for review.

(b) The following records of the Statewide Grievance Committee shall not be public:

(1) All records pertaining to grievance complaints that have been decided by a local grievance committee prior to July 1, 1986.

(2) All records of pending grievance complaints in which probable cause has not yet been determined.

(3) All records pertaining to grievance complaints that have been filed on or after July 1, 1986, and that have been dismissed by a grievance panel, by the Statewide Grievance Committee or by a reviewing committee without a finding of probable cause that the attorney is guilty of misconduct.

(4) All records of complaints dismissed pursuant to Section 2-32 (a) (2) and (c).

(c) All records enumerated in subsection (a) pertaining to grievance complaints that have been filed on or after July 1, 1986, in which probable cause has been found that the attorney is guilty of misconduct shall be public, whether or not the complaint is subsequently dismissed.

(d) Unless otherwise ordered by the court, all records that are not public shall be available only to the Statewide Grievance Committee and its counsel, the reviewing committees, the grievance panels and their counsel, the bar examining committee, the standing committee on recommendations for admission to the bar, disciplinary counsel, the client security fund committee and its counsel, a judge of the Superior Court, a judge of the United States District Court for the District of Connecticut, any grievance committee or other disciplinary authority of the United States District Court for the District of Connecticut or, with the consent of the respondent, to any other person. Such records may be used or considered in any subsequent disciplinary or client security fund proceeding pertaining to the respondent.

(e) Any respondent who was the subject of a complaint in which the respondent was misidentified and the complaint was dismissed shall be deemed to have never been subject to disciplinary proceedings with respect to that complaint and may so swear under oath. Records of such grievance complaints shall not be public.

(f) For purposes of this section, all grievance complaints that were pending before a grievance panel on July 1, 1986, shall be deemed to have been filed on that date.

(P.B. 1978-1997, Sec. 32.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 2-51. Costs and Expenses

Costs may be taxed against the respondent in favor of the state, if the respondent be found guilty of the offense charged in whole or in part, at the discretion of the court. The court may also, upon any such complaint by the state's attorney or by the Statewide Grievance Committee, as the case may be, audit and allow (whatever may be the result of the proceeding) reasonable expenses to be taxed as part of the expenses of the court.

(P.B. 1978-1997, Sec. 34.)

Sec. 2-52. Resignation and Waiver of Attorney Facing Disciplinary Investigation

(Amended June 15, 2012, to take effect Jan. 1, 2013.)

(a) The Superior Court may, under the procedure provided herein, permit an attorney to submit his or her resignation from the bar with or without the waiver of right to apply for readmission to the bar at any time in the future if the attorney's conduct is the subject of an investigation or proceeding by a grievance panel, a reviewing committee, the Statewide Grievance Committee, the disciplinary counsel or the court.

(b) Concurrently with the written resignation, the attorney shall submit an affidavit stating the following:

(1) that he or she desires to resign and that the resignation is knowingly and voluntarily submitted, the attorney is not being subjected to coercion or duress, and is fully aware of the consequences of submitting the resignation;

(2) the attorney is aware that there is currently pending an investigation or proceeding concerning allegations that he or she has been guilty of misconduct, the nature of which shall be specifically set forth in the affidavit;

(3) either (A) that the material facts of the allegations of misconduct are true, or (B) if the attorney denies some or all of the material facts of the allegations of misconduct, that the attorney acknowledges that there is sufficient evidence to prove such material facts of the allegations of misconduct by clear and convincing evidence;

(4) the attorney waives the right to a hearing on the merits of the allegations of misconduct, as provided by these rules, and acknowledges that the court will enter a finding that he or she has engaged in the misconduct specified in the affidavit concurrently with the acceptance of the resignation.

(c) If the written resignation is accompanied by a waiver of the right to apply for readmission to the bar, the affidavit required in (b) shall also state that the attorney desires to resign and waive his or her right to apply for readmission to the bar at any time in the future.

(d) Any resignation submitted in accordance with this section shall be in writing, signed by the attorney, and filed in sextuplicate with the clerk of the Superior Court in the judicial district in which the attorney resides, or if the attorney is not a resident of this state, with the clerk of the Superior Court in Hartford. The clerk shall forthwith send one copy to the grievance panel, one copy to the statewide bar counsel, one copy to disciplinary counsel, one copy to the state's attorney, one copy to the standing committee on recommendations for admission to the bar, and one copy to all complainants whose grievance complaints filed against the attorney in Connecticut resulted in the submission. Such resignation shall not become effective until accepted by the court after a hearing, at which the court has accepted a report by the Statewide Grievance Committee, made a finding of misconduct based upon the respondent's affidavit, and made a finding that the resignation is knowingly and voluntarily made. With the exception of the statewide bar counsel and disciplinary counsel, no person or entity who, pursuant to this subsection, receives a copy of a resignation shall have the right to participate in the hearing required by this subsection.

(e) Acceptance by the court of an attorney's resignation from the bar without the waiver of the right to apply for readmission to the bar at any time in the future shall not be a bar to any other disciplinary proceedings based on conduct occurring before or after the acceptance of the attorney's resignation.

(P.B. 1978-1997, Sec. 35.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 2-53. Reinstatement after Suspension, Disbarment or Resignation

(a) An attorney who has been suspended from the practice of law in this state for a period of one year or more or has remained under suspension pursuant to an order of interim suspension for a period of one year or more shall be required to apply for reinstatement in accordance with this section, unless the court that imposed the discipline expressly provided in its order that such application is not required. An attorney who has been suspended for less than one year need not file an application for reinstatement pursuant to this section, unless otherwise ordered by the court at the time the discipline was imposed.

(b) An attorney who was disbarred or resigned shall be required to apply for reinstatement pursuant to this section, but shall not be eligible to do so until after five years from the effective date of disbarment or acceptance by the court of the resignation, unless the court that imposed the discipline expressly provided a shorter period of disbarment or resignation in its order. No attorney who has resigned from the bar and waived the privilege of applying for readmission or reinstatement to the bar at any future time shall be eligible to apply for readmission or reinstatement to the bar under this rule.

(c) In no event shall an application for reinstatement by an attorney disbarred pursuant to the provisions of Section 2-47A be considered until after twelve years from the effective date of the disbarment. No such application may be granted unless the attorney provides satisfactory evidence that full restitution has been made of all sums found to be knowingly misappropriated, including, but not limited to, restitution to the client security fund for all claims paid resulting from the attorney's dishonest misconduct.

(d) Unless otherwise ordered by the court, an application for reinstatement shall not be filed until:

(1) The applicant is in compliance with Sections 2-27 (d), 2-70 and 2-80;

(2) The applicant is no longer the subject of any pending disciplinary proceedings or investigations;

(3) The applicant has passed the Multistate Professional Responsibility Examination (MPRE) not more than six months prior to the filing of the application;

(4) The applicant has successfully completed any criminal sentence including, but not limited to, a sentence of incarceration, probation, parole, supervised release, or period of sex offender registration and has fully complied with any orders regarding conditions, restitution, criminal penalties or fines;

(5) The applicant has fully complied with all conditions imposed pursuant to the order of discipline. If an applicant asserts that a certain disciplinary condition is impossible to fulfill, he or she must apply to the court that ordered the condition for relief from that condition prior to filing an application for reinstatement;

(6) The bar examining committee has received an application fee. The fee shall be established by the chief court administrator and shall be expended in the manner provided by Section 2-22 of these rules.

(e) An application for reinstatement shall be filed with the clerk of the Superior Court in the jurisdiction that issued the discipline. The application shall be filed under oath and on a form approved by the Office of the Chief Court Administrator. The application shall be accompanied by proof of payment of the application fee to the bar examining committee.

(f) The application shall be referred by the clerk of the Superior Court where it is filed to the chief justice or designee, who shall refer the matter to a standing committee on recommendations for admission to the bar whose members do not maintain their primary office in the same judicial district as the applicant.

(g) The clerk of the Superior Court shall give notice of the pendency of the application to the state's attorney of that court's judicial district, the grievance counsel to the grievance panel whose jurisdiction includes that judicial district court location, the Statewide Grievance Committee, the Office of the Chief Disciplinary Counsel, the client security fund committee, the attorney or attorneys appointed by the court pursuant to Section 2-64, and to all complainants whose complaints against the attorney resulted in the discipline for which the attorney was disbarred or suspended or resigned. The clerk shall also promptly publish notice on the Judicial Branch website, in the Connecticut Law Journal, and in a newspaper with substantial distribution in the judicial district where the application was filed.

(h) Within sixty days of the referral from the chief justice to a standing committee, the Statewide Grievance Committee and the Office of the Chief Disciplinary Counsel shall file a report with the standing committee, which report may include additional relevant information, commentary in the information provided in the application and recommendations on whether the applicant should be reinstated. Both the Statewide Grievance Committee and the Office of the Chief Disciplinary Counsel may file an appearance and participate in any investigation into the application and at any hearing before the standing committee, and at any court proceeding thereon. All filings by the Statewide Grievance Committee and the Office of the Chief Disciplinary Counsel and any other party shall be served and certified to all other parties pursuant to Section 10-12.

(i) The standing committee shall investigate the application, hold hearings pertaining thereto and render a report with its recommendations to the court. The standing committee shall give written notice of all hearings to the applicant, the state's attorney of the court's judicial district, the grievance counsel to the grievance panel whose jurisdiction includes that judicial district location where the application was filed, the Statewide Grievance Committee, the Office of the Chief Disciplinary Counsel, the client security fund committee, the attorney or attorneys appointed by the court pursuant to Section 2-64, and to all complainants whose complaints against the attorney resulted in the discipline for which the attorney was disbarred or suspended or resigned. The standing committee shall also publish all hearing notices on the Judicial Branch website, in the Connecticut Law Journal and in a newspaper with substantial distribution in the county where the application was filed.

(j) The standing committee shall take all testimony at its hearings under oath and shall include in its report subordinate findings of facts and conclusions as well as its recommendation. The standing committee shall have a record made of its proceedings which shall include a copy of the application for reinstatement, any reports filed by the Statewide Grievance Committee and Office of the Chief Disciplinary Counsel, a copy of the record of the applicant's disciplinary history, a transcript of its hearings thereon, any exhibits received by the standing committee, any other documents considered by the standing committee in making its recommendations, and copies of all notices provided by the standing committee in accordance with this section. Record materials containing personal identifying information or medical information may, in the discretion of the standing committee, be redacted, or open for inspection only to the applicant and other persons having a proper interest therein and upon order of the court. The standing committee shall complete work on the application within 180 days of referral from the chief justice. It is the applicant's burden to demonstrate by clear and convincing evidence that he or she possesses good moral character and fitness to practice law as defined by Section 2-5A.

(k) Upon completion of its investigation, the standing committee shall file its recommendation in writing together with a copy of the record with the clerk of the Superior Court. The report shall recommend that the application be granted, granted with conditions, or denied. The standing committee's report shall be served and certified to all other parties pursuant to Section 10-12.

(*l*) The court shall thereupon inform the chief justice of the pending application and recommendation, and the chief justice shall designate two other judges of the Superior Court to sit with the judge presiding at the session. The applicant, the Statewide Grievance Committee, the Office of the Chief Disciplinary Counsel and the standing committee shall have an opportunity to appear and be heard at any hearing. The three judge panel, or a majority of them, shall determine whether the application should be granted.

(m) If the application for reinstatement is denied, the reasons therefor shall be stated on the record or put in writing. Unless otherwise ordered by the court, the attorney may not reapply for reinstatement for a period of at least one year following the denial.

(P.B. 1978-1997, Sec. 36.) (Amended Nov. 17, 1999, on an interim basis, to take effect Jan. 1, 2000, and amendment adopted June 26, 2000, to take effect Jan. 1, 2001; amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 2-54. Publication of Notice of Reprimand, Suspension, Disbarment, Resignation, Placement on Inactive Status or Reinstatement

(a) Notice of the final action transferring an attorney to inactive status or reprimanding, suspending, or disbarring an attorney from practice in this state shall be published once in the Connecticut Law Journal by the authority accepting or approving such action. Notice of a reprimand by the Statewide Grievance Committee or by a reviewing committee shall not be published until the expiration of any stay pursuant to Sections 2-35 (e) and 2-38.

(b) Notice of the resignation or reinstatement after suspension, disbarment, resignation or placement on inactive status of an attorney shall be published once in the Connecticut Law Journal by the authority accepting or approving such action.

(P.B. 1978-1997, Sec. 36A.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 2-55. Retirement of Attorney—Right of Revocation

(Amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) An attorney who is admitted to the bar in the state of Connecticut and is not the subject of any pending disciplinary investigation may submit a written request on a form approved by the Office of the Chief Court Administrator to the statewide bar counsel for retirement under this section. Upon receipt of the request, the statewide bar counsel shall review it and, if it is found that the attorney is eligible for retirement under this section, shall grant the request and notify the attorney and the clerk for the judicial district of Hartford. Retirement shall not constitute removal from the bar or the roll of attorneys, but it shall be noted on the roll of attorneys kept by the clerk for the judicial district of Hartford. If the request is granted, the attorney shall no longer be eligible to practice law as an attorney admitted in the state of Connecticut, except as provided in subsection (e) of this section.

(b) An attorney who has retired pursuant to this section shall thereafter be exempt from payment of the client security fund fee set forth in Section 2-70 (a), but must continue to comply with the registration requirements set forth in Sections 2-26 and 2-27 (d).

(c) An attorney who has retired pursuant to this section and thereafter wishes to revoke the retirement and be eligible to practice law again in the state of Connecticut may do so at any time by sending written notice to the clerk for the judicial district of Hartford and the statewide bar counsel.

(d) Retirement pursuant to this section shall not be a bar to the initiation, investigation and pursuit of disciplinary complaints filed on or subsequent to the date of retirement.

(e) An attorney who has retired pursuant to this section may engage in uncompensated services to clients under the supervision of an organized legal aid society, a state or local bar association project, or a court-affiliated pro bono program.

(P.B. 1978-1997, Sec. 37.) (Amended Nov. 17, 1999, on an interim basis pursuant to Section 1-9 (c), to take effect Jan. 1, 2000, and amendment adopted June 26, 2000, to take effect Jan. 1, 2001; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 2-55A. Retirement of Attorney—Permanent

(a) An attorney who is admitted to the bar in the state of Connecticut and is not the subject of any pending disciplinary investigation may submit a written request on a form approved by the Office of the Chief Court Administrator to the statewide bar counsel for permanent retirement under this section. Upon receipt of the request, the statewide bar counsel shall review it and, if it is found that the attorney is eligible for retirement under this section, shall grant the request and notify the attorney and the clerk for the judicial district of Hartford. Retirement shall not constitute removal from the bar or the roll of attorneys, but it shall be noted on the roll of attorneys kept by the clerk for the judicial district of Hartford. If granted, the attorney shall no longer be eligible to practice law as an attorney admitted in the state of Connecticut.

(b) An attorney who has retired pursuant to this section shall thereafter be exempt from the registration requirements set forth in Sections 2-26 and 2-27 (d) and from payment of the client security fund fee set forth in Section 2-70 (a).

(c) An attorney who has retired pursuant to this section and thereafter wishes to be eligible to practice law again in the state of Connecticut must apply for admission to the bar pursuant to Section 2-8, 2-13 or 2-13A.

(d) Retirement pursuant to this section shall not be a bar to the initiation, investigation and pursuit of disciplinary complaints filed on or subsequent to the date of retirement.

(Adopted June 14, 2013, to take effect Jan. 1, 2014; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 2-56. Inactive Status of Attorney

During the time an order placing an attorney on inactive status is in effect, such attorney shall be precluded from practicing law. No entry fee shall be required for proceedings pursuant to this section and Sections 2-57 through 2-62. Any hearings necessitated by the proceedings may, in the discretion of the court, be held in chambers, and records and papers filed in connection therewith shall be open for inspection only to persons having a proper interest therein and upon order of the court. The court shall, in exercising discretion, weigh the public policy in favor of open proceedings, as well as the duty to protect the public, against the attorney's right to medical and mental health privacy and ability to pursue a livelihood.

(P.B. 1978-1997, Sec. 39.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004.)

Sec. 2-57. —Prior Judicial Determination of Incompetency or Involuntary Commitment

In the event an attorney is by a court of competent jurisdiction (1) declared to be incapable of managing his or her affairs or (2) committed involuntarily to a mental hospital for drug dependency, mental illness, or the addictive, intemperate, or excessive use of alcohol, the Superior Court, upon notice from a grievance panel, a reviewing committee, the Statewide Grievance Committee or a state's attorney and upon proof of the fact of incapacity to engage in the practice of law, shall enter an order placing such attorney upon inactive status, effective immediately, for an indefinite period and until further order of the court. A copy of such order shall be served, in such manner as the court shall direct, upon such attorney, the attorney's conservator if any, and the director of any mental hospital in which the attorney may reside.

(P.B. 1978-1997, Sec. 40.)

Sec. 2-58. —No Prior Determination of Incompetency or Involuntary Commitment

(a) Whenever a grievance panel, a reviewing committee, the Statewide Grievance Committee or the disciplinary counsel shall have reason to believe that an attorney is incapacitated from continuing to practice law by reason of mental infirmity or illness or because of drug dependency or addiction to alcohol, such panel, committee or counsel, shall petition the court to determine whether the attorney is so incapacitated and the court may take or direct such action as it deems necessary or proper for such determination, including examination of the attorney by such qualified medical expert or experts as the court shall designate, at the expense of the Judicial Branch. If, upon due consideration of the matter, the court is satisfied

and concludes that the attorney is incapacitated from continuing to practice law, it shall enter an order placing the attorney in an inactive status on the ground of such disability for an indefinite period and until the further order of the court, and any pending disciplinary proceedings against the attorney shall be held in abeyance.

(b) The court may provide for such notice to the respondent attorney of proceedings in the matter as is deemed proper and advisable and shall appoint an attorney, at the expense of the Judicial Branch, to represent any respondent who is without adequate representation.

(P.B. 1978-1997, Sec. 41.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004.)

Sec. 2-59. —Disability Claimed during Course of Disciplinary Proceeding

If, during the course of a disciplinary proceeding, the respondent contends that he or she is suffering, by reason of mental infirmity or illness, or because of drug dependency or addiction to alcohol, from a disability which makes it impossible for the respondent adequately to defend himself or herself, the court thereupon shall, in a proceeding instituted in substantial accordance with the provisions of Section 2-58, enter an order placing the respondent on inactive status until a determination is made of the respondent's capacity to defend himself or herself. Notice of the institution of inactive status proceedings shall be provided to the statewide bar counsel. If the court determines that the respondent is not incapacitated from practicing law, it shall take such action as it deems proper and advisable, including a direction for the resumption of the disciplinary proceeding against the respondent.

(P.B. 1978-1997, Sec. 42.) (Amended June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004.)

Sec. 2-60. —Reinstatement upon Termination of Disability

(a) Any attorney placed upon inactive status under the provisions of these rules shall be entitled to apply for reinstatement, without the payment of an entry fee, at such intervals as the court may direct in the order placing the attorney on inactive status or any modification thereof. Such application shall be granted by the court upon a showing by clear and convincing evidence that the attorney's disability has been removed and the attorney is fit to resume the practice of law. Upon such application, the court may take or direct such action as it deems necessary or proper, including the determination whether the attorney's disability has been removed, and including direction of an examination of the attorney by such qualified medical expert or experts as the court shall designate. The court shall direct that the expense of such an examination be paid either by the attorney or by the Judicial Branch.

(b) Where an attorney has been placed on inactive status by an order in accordance with the provisions of Section 2-57 and thereafter, in proceedings duly taken, has been judicially declared to be competent, the court may dispense with further evidence that his or her disability has been removed and may direct his or her return to active status upon such terms as are deemed proper and advisable.

(P.B. 1978-1997, Sec. 44.)

Sec. 2-61. —Burden of Proof in Inactive Status Proceedings

In a proceeding seeking an order to place an attorney on inactive status, the burden of proof shall rest with the petitioner. In a proceeding seeking an order terminating inactive status, the burden of proof shall rest with the inactive attorney.

(P.B. 1978-1997, Sec. 45.)

Sec. 2-62. —Waiver of Doctor-Patient Privilege upon Application for Reinstatement

The filing of an application for reinstatement by an attorney on inactive status shall be deemed to constitute a waiver of any doctor-patient privilege existing between the attorney and any psychiatrist, psychologist, physician or hospital who or which has examined or treated the attorney during the period of disability. The attorney shall be required to disclose the name of every psychiatrist, psychologist, physician and hospital by whom or at which the attorney has been examined or treated since being placed on inactive status and shall furnish to the court written consent to each to divulge such information and records as are requested by court-appointed medical experts or by the clerk of the court.

(P.B. 1978-1997, Sec. 46.)

Sec. 2-63. Definition of Respondent

When used in Sections 2-29 through 2-62 the word "respondent" shall mean the attorney against whom a grievance complaint or presentment has been filed or a person who is alleged to have been engaged in the unauthorized practice of law pursuant to General Statutes § 51-88.

(P.B. 1978-1997, Sec. 46A.)

Sec. 2-64. Appointment of Attorney To Protect Clients' and Attorney's Interests

(a) Whenever an attorney is placed upon inactive status, suspended, disbarred, or resigns, the court, upon such notice to him or her as the court may direct, shall appoint an attorney or attorneys

to inventory the files of the inactive, suspended, disbarred or resigned attorney and to take such action as seems indicated to protect the interests of the attorney's clients. The court may also appoint an attorney to protect the interests of the attorney placed on inactive status, suspended, disbarred or resigned with respect to such files, when the attorney is not otherwise represented and the court deems that such representation is necessary. If the discipline imposed is not effective immediately as a result of an appeal or stay, the court, after the hearing and consideration of the merits of the appeal or reason for the stay, may issue interim orders to protect the public during the pendency of the appeal period or stay, until the discipline order becomes effective. In case of an attorney's death, the court may appoint an attorney where no partner, executor or other responsible party capable of conducting the deceased attorney's affairs is known to exist or willing to assume the responsibility.

(b) Any attorney so appointed by the court shall not be permitted to disclose any information contained in any file so inventoried without the consent of the client to whom such file relates except as is necessary to carry out the order of the court which appointed the attorney to make such inventory.

(c) Not less frequently than once each year and at such time as the attorney may be returned to active status, reinstated or readmitted to the practice of law or when the attorney appointed to protect clients' interests has finished rendering services to those clients, the appointed attorney shall file with the court, for its examination and approval, a report showing fees earned from the clients of the attorney, necessary disbursements, and the amount requested by the appointed attorney as a fee for services rendered, to be paid out of the funds received. Any attorney so appointed by the court for the inactive, suspended, disbarred, resigned or deceased attorney may also be reimbursed for his or her services from any amount found to be due to the inactive, suspended, disbarred, resigned or deceased attorney for services rendered to such clients. All attorney's fees paid to any attorney appointed hereunder shall be subject to court approval.

(d) Unless the attorney appointed to protect clients' interests is a partner or associate of the attorney, if the attorney is returned to active status, reinstated or readmitted, the appointed attorney shall immediately cease representing the clients of the attorney and shall return to the reinstated or readmitted attorney, or to the attorney returned to active status, such files as the appointed attorney may have received, and the appointed attorney and partners and associates shall not represent any person who was a client of the reinstated or readmitted attorney, or who was a client of an attorney returned to active status, on or before the date when he or she was placed upon inactive status, suspended, disbarred or resigned, unless the court which entered the order directing reinstatement, readmission, or return to active status shall order otherwise after written request to the court by the client whose interest is involved.

(P.B. 1978-1997, Sec. 46B.) (Amended June 24, 2002, to take effect July 1, 2003; May 1, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004.)

Sec. 2-65. Good Standing of Attorney

An attorney is in good standing in this state if the attorney has been admitted to the bar of this state, has registered with the Statewide Grievance Committee in compliance with Section 2-27 (d), has complied with Sections 2-27A and 2-70, and is not under suspension, on inactive status, disbarred, or resigned from the bar.

(P.B. 1978-1997, Sec. 46C.) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 2-66. Practice by Court Officials

(a) No lawyer who is a judge of the Supreme Court, Appellate Court or Superior Court shall practice law in any state or federal court.

(b) The chief public defender, the deputy chief public defender, public defenders, assistant public defenders, deputy assistant public defenders, the chief state's attorney, the deputy chief state's attorney, state's attorneys, assistant state's attorneys and deputy assistant state's attorneys who have been appointed on a full-time basis will devote their full time to the duties of their offices, will not engage in the private practice of law, either civil or criminal, and will not be connected in any way with any attorney or law firm engaged in the private practice of law.

(c) No state's attorney or assistant state's attorney, no partner or associate of a law firm of which any of the aforementioned court officials is a partner or associate, shall appear as counsel in any criminal case in behalf of any accused in any state or federal court.

(d) No chief clerk, deputy chief clerk, clerk, deputy clerk or assistant clerk who has been appointed on a full-time basis shall appear as counsel in any civil or criminal case in any state

or federal court. Such persons may otherwise engage in the practice of law as permitted by established Judicial Branch policy.

(e) No chief public defender, deputy chief public defender, public defender, assistant public defender or deputy assistant public defender shall appear in behalf of the state in any criminal case.

(P.B. 1978-1997, Sec. 47.)

Sec. 2-67. Payment of Attorneys by Bank and Trust Companies

(a) No attorney shall directly or indirectly receive payment from any bank or trust company for legal services rendered to others in the preparation of wills, codicils or drafts of such instruments or for advising others as to legal rights under existing or proposed instruments of that character.

(b) The violation of this section by an attorney may be cause for grievance proceedings.

(P.B. 1978-1997, Sec. 48.)

Sec. 2-68. Client Security Fund Established

(a) A client security fund is hereby established to promote public confidence in the judicial system and the integrity of the legal profession by reimbursing clients, to the extent provided for by these rules, for losses resulting from the dishonest conduct of attorneys practicing law in this state in the course of the attorney-client relationship, by providing crisis intervention and referral assistance to attorneys admitted to the practice of law in this state who suffer from alcohol or other substance abuse problems or gambling problems, or who have behavioral health problems, and by making grants-in-aid to the organization administering the program for the use of interest earned on lawyers' clients' funds accounts pursuant to General Statute § 51-81c, for the purpose of funding the delivery of legal services to the poor.

(b) It is the obligation of all attorneys admitted to the practice of law in this state to participate in the collective effort to reimburse clients who have lost money or property as the result of the unethical and dishonest conduct of other attorneys, to provide crisis intervention and referral assistance to attorneys admitted to the practice of law in this state who suffer from alcohol or other substance abuse problems or gambling problems, or who have behavioral health problems, and to fund the delivery of legal services to the poor.

(c) The client security fund is provided as a public service to persons using the legal services of attorneys practicing in this state and as a means of providing crisis intervention and referral assistance to impaired attorneys, and grants-in-aid for the purpose of funding the delivery of legal services to the poor. All moneys and assets of the fund shall constitute a trust.

(d) The establishment, administration and operation of the fund shall not impose or create any obligation, expectation of recovery from or liability of the fund to any claimant, attorney or organization, and all reimbursements therefrom shall be a matter of grace and not of right.

(Adopted June 29, 1998, to take effect Jan. 1, 1999; amended May 3, 2005, to take effect May 17, 2005; amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 2-68A. —Crisis Intervention and Referral Assistance

(a) The chief court administrator may enter into any contracts and take such other action as may be reasonably necessary to provide for crisis intervention and referral assistance to attorneys admitted to the practice of law in this state who suffer from alcohol or other substance abuse problems or gambling problems, or who have behavioral health problems.

(b) The crisis intervention and referral assistance shall be provided with the assistance of an advisory committee appointed by the chief court administrator that shall include one or more behavioral health professionals.

(Adopted May 3, 2005, to take effect May 17, 2005.)

Sec. 2-69. —Definition of Dishonest Conduct

(a) As used in Sections 2-68 through 2-81, inclusive, "dishonest conduct" means wrongful acts committed by an attorney, in an attorney-client relationship or in a fiduciary capacity arising out of an attorney-client relationship, in the nature of theft or embezzlement of money or the wrongful taking or conversion of money, property, or other things of value, including, but not limited to refusal to refund unearned fees received in advance as required by Rule 1.16 (d) of the Rules of Professional Conduct.

(b) "Dishonest conduct" does not include such wrongful acts committed in connection with the provision of investment services to the claimant by the attorney.

(Adopted June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 2-70. —Client Security Fund Fee

(a) The judges of the Superior Court shall assess an annual fee in an amount adequate for the proper payment of claims, the provision of crisis intervention and referral assistance, and for making grants-in-aid for the purpose of funding the delivery of legal services to the poor under these rules and the costs of administering the client security fund. Such fee, which shall be $75, shall be paid by each attorney admitted to the practice of law in this state and each judge, judge

trial referee, state referee, family support magistrate, family support referee and administrative law judge in this state. Notwithstanding the above, an attorney who is disbarred, retired, resigned, or serving on active duty with the armed forces of the United States for more than six months in such year shall be exempt from payment of the fee, and an attorney who does not engage in the practice of law as an occupation and receives less than $1000 in legal fees or other compensation for services involving the practice of law during the calendar year shall be obligated to pay one half of such fee. No attorney who is disbarred, retired or resigned shall be reinstated pursuant to Section 2-53 or 2-55 until such time as the attorney has paid the fee due for the year in which the attorney retired, resigned or was disbarred.

(b) An attorney or family support referee who fails to pay the client security fund fee in accordance with this section shall be administratively suspended from the practice of law in this state pursuant to Section 2-79 of these rules until such payment, along with a reinstatement fee of $75, has been made. An attorney or family support referee who is under suspension for another reason at the time he or she fails to pay the fee, shall be the subject of an additional suspension which shall continue until the fee and reinstatement fee are paid.

(c) A judge, judge trial referee, state referee, family support magistrate or administrative law judge who fails to pay the client security fund fee in accordance with this section shall be referred to the Judicial Review Council.

(Adopted June 29, 1998, to take effect Jan. 1, 1999; amended June 28, 1999, to take effect Jan. 1, 2000; amended Nov. 17, 1999, on an interim basis pursuant to Section 1-9 (c), to take effect Jan. 1, 2000, and amendment adopted June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2004, to take effect July 13, 2004; amended May 3, 2005, to take effect May 17, 2005; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 2-71. —Eligible Claims

(a) A claim for reimbursement of a loss must be based upon the dishonest conduct of an attorney who, in connection with the defalcation upon which the claim is based, was a member of the Connecticut bar and engaged in the practice of law in this state.

(b) The claim shall not be eligible for reimbursement unless:

(1) the attorney was acting as an attorney or fiduciary in the matter in which the loss arose;

(2) the attorney has died, been adjudged incapable, not competent or insane, been disbarred or suspended from the practice of law in Connecticut, been placed on probation or inactive status by a Connecticut court, resigned from the Connecticut bar, or become the judgment debtor of the claimant with respect to such claim; and

(3) the claim is presented within four years of the time when the claimant discovered or first reasonably should have discovered the dishonest acts and the resulting losses or the claim was pending before the Connecticut Bar Association's client security fund committee as of the effective date of this rule.

(c) Except as provided by subsection (d) of this section, the following losses shall not be eligible for reimbursement:

(1) losses incurred by spouses, children, parents, grandparents, siblings, partners, associates and employees of the attorney causing the losses;

(2) losses covered by any bond, surety agreement, or insurance contract to the extent covered thereby, including any loss to which any bonding agent, surety or insurer is subrogated, to the extent of that subrogated interest;

(3) losses incurred by any financial institution which are recoverable under a "banker's blanket bond" or similar commonly available insurance or surety contract;

(4) losses incurred by any business entity controlled by the attorney, any person or entity described in subdivisions (c) (1), (2), or (3) herein;

(5) losses incurred by any governmental entity or agency.

(d) In cases of extreme hardship or special and unusual circumstances, the client security fund committee may, in its discretion, consider a claim eligible for reimbursement which would otherwise be excluded under these rules.

(e) In cases where it appears that there will be unjust enrichment, or the claimant unreasonably or knowingly contributed to the loss, the client security fund committee may, in its discretion, deny the claim.

(Adopted June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 2-72. —Client Security Fund Committee

(a) There is hereby established a client security fund committee which shall consist of fifteen members who shall be appointed by the chief justice. Nine of the members shall be attorneys, three shall not be attorneys and three shall be individuals who serve in one of the following capacities: Superior Court judge, judge trial referee, Appellate Court judge, Supreme Court justice, family support magistrate, family support referee or administrative law judge. Members shall be

appointed for terms of three years, provided, however, that of the members first appointed, five shall serve for one year, five for two years and five for three years. No person shall serve as a member for more than two consecutive three year terms, excluding any appointments for less than a full term, but a member may be reappointed after a lapse of one year. The appointment of any member may be revoked or suspended by the chief justice. In connection with such revocation or suspension, the chief justice shall appoint a qualified individual to fill the vacancy for the remainder of the term or for any other appropriate period. In the event that a vacancy arises in this position before the end of a term by reason other than revocation or suspension, the chief justice shall fill the vacancy for the balance of the term or for any other appropriate period.

(b) The client security fund committee shall elect from among its members a chair and a vice-chair who shall serve for a period of one year.

(c) Seven members of the client security fund committee shall constitute a quorum at its meetings. The chair may assign individual members of the committee to investigate and report on claims to the committee.

(d) Members shall serve without compensation, but shall be reimbursed for their necessary and reasonable expenses incurred in the discharge of their duties.

(e) The client security fund committee shall operate under the supervision of the Superior Court judges and report on its activities to the executive committee of the Superior Court on at least a quarterly basis.

(Adopted June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 2-73. —Powers and Duties of Client Security Fund Committee

In addition to any other powers and duties set forth in Sections 2-68 through 2-81, the client security fund committee shall:

(a) Publicize its activities to the public and bar, including filing with the chief justice and the executive committee of the Superior Court an annual report on the claims made and processed and the amounts disbursed.

(b) Receive, investigate and evaluate claims for reimbursement.

(c) Determine in its judgment whether reimbursement should be made and the amount of such reimbursement.

(d) Prosecute claims for restitution against attorneys whose conduct has resulted in disbursements.

(e) Employ such persons and contract with any public or private entity as may be reasonably necessary to provide for its efficient and effective operations, which shall include, but not be limited to, the investigation of claims and the prosecution of claims for restitution against attorneys.

(f) Pay to the chief court administrator for the provision of crisis intervention and referral assistance to attorneys admitted to the practice of law in this state who suffer from alcohol or other substance abuse problems or gambling problems, or who have behavioral health problems, any amounts required pursuant to Section 2-77.

(g) Pay to the chief court administrator for making grants-in-aid to the organization administering the program for the use of interest earned on lawyers' clients' funds accounts pursuant to General Statutes § 51-81c, for the purpose of funding the delivery of legal services to the poor, any amounts required pursuant to Section 2-77.

(h) Perform all other acts necessary or proper for the fulfillment of the purposes and effective administration of the fund.

(Adopted June 29, 1998, to take effect Jan. 1, 1999; amended May 3, 2005, to take effect May 17, 2005; amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 2-74. —Regulations of Client Security Fund Committee

The client security fund committee shall have the power and authority to implement these rules by regulations relevant to and not inconsistent with these rules. Such regulations may be adopted at any regular meeting of the client security fund committee or at any special meeting called for that purpose. The regulations shall be effective sixty days after publication in one issue of the Connecticut Law Journal and shall at all times be subject to amendment or revision by the committee. A copy shall be provided to the chief justice, the chief court administrator, and the executive committee of the Superior Court.

(Adopted June 29, 1998, to take effect Jan. 1, 1999; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 2-75. —Processing Claims

(a) Upon receipt of a claim the client security fund committee shall cause an appropriate investigation to be conducted and shall cause the attorney who is the subject of the claim or the attorney's representative to be notified by certified mail within ten days of the filing of such claim. The attorney or his or her representative shall have twenty days from the date the notice was mailed to file a response with the client security fund committee. Before processing a claim, the client security fund committee may require the

claimant to pursue other remedies he or she may have.

(b) The client security fund committee shall promptly notify the Statewide Grievance Committee of each claim and shall request the grievance committee to furnish it with a report of its investigation, if any, on the matter. The Statewide Grievance Committee shall allow the client security fund committee access to its records during an investigation of a claim. The client security fund committee shall evaluate whether the investigation is complete and determine whether it should conduct additional investigation or await the pendency of any disciplinary investigation or proceeding involving the same act or conduct as is alleged in the claim.

(c) The client security fund committee may, to the extent permitted by law, request and receive from the state's attorneys and from the Superior Court information relative to the client security fund committee's investigation, processing and determination of claims.

(d) A certified copy of an order disciplining an attorney for the same dishonest act or conduct alleged in a claim, or a final trial court judgment imposing civil or criminal liability therefor, shall be evidence that the attorney committed such dishonest act or conduct.

(e) The client security fund committee may require that a claimant, the subject attorney or any other person give testimony relative to a claim and may designate one or more members to receive the testimony and render a report thereon to the committee.

(f) The client security fund committee shall, on the basis of the record, make its determination in its sole and absolute discretion as to the validity of claims. A determination shall require an affirmative vote of at least seven members.

(g) Based upon the claims approved for reimbursement, the claims being processed and the amounts available in the client security fund, the client security fund committee shall determine in its sole and absolute discretion the amount, the order and the manner of the payment to be made on the approved claim.

(h) Reimbursements shall not include interest, expenses, or attorney's fees in processing the claim, and may be paid in a lump sum or in installments.

(i) The client security fund committee shall notify the claimant and the subject attorney of its determination, which shall be final and not be subject to review by any court.

(j) The approval or disapproval of a claim shall not be pertinent in any disciplinary proceeding.

(Adopted June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 2-76. —Confidentiality

(a) Claims, proceedings and reports involving claims for reimbursement for losses caused by the dishonest conduct of attorneys are confidential until the client security fund committee authorizes a disbursement to the claimant, at which time the committee may disclose the name of the claimant, the attorney whose conduct produced the claim and the amount of the reimbursement. However, the client security fund committee may provide access to relevant information regarding such claims to the Statewide Grievance Committee, grievance panels, to law enforcement agencies, to the Office of the Chief Disciplinary Counsel, and to a judge of the Superior Court. The client security fund committee may also disclose such information to any attorney retained or employed by the committee to protect the interests of the client security fund or the committee in any state or federal action in which the interests of the committee or the fund may be at issue, and may disclose such information as may be necessary to protect the rights of the committee in any action or proceeding in which the committee's right to receive restitution pursuant to Section 2-80 or 2-81 is at issue. The client security fund committee may also provide statistical information regarding claims which does not disclose the names of claimants and attorneys until a disbursement is authorized.

(b) All information given or received in connection with the provision of crisis intervention and referral assistance under these rules shall be subject to the provisions of General Statutes § 51-81d (f).

(Adopted June 29, 1998, to take effect Jan. 1, 1999; amended May 3, 2005, to take effect May 17, 2005; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 2-77. —Review of Status of Fund

The client security fund committee shall periodically analyze the status of the fund, the approved claims and the pending claims, the cost to the fund of providing crisis intervention and referral assistance to attorneys, and the cost to the fund of funding the delivery of legal services to the poor, to ensure the integrity of the fund for its intended purposes. Based upon the analysis and recommendation of the client security fund committee, the judges of the Superior Court may increase or decrease the amount of the client security fund fee and the Superior Court executive committee may fix a maximum amount on reimbursements payable from the fund.

The amount paid from the fund in any calendar year to the chief court administrator for the

provision of crisis intervention and referral assistance to attorneys shall not exceed 25 percent of the amount received by the fund from payments of the client security fund fee in the prior calendar year. If less than the 25 percent maximum amount is paid from the fund in any calendar year for the provision of crisis intervention and referral assistance to attorneys, the remaining amount may not be carried over and added to the amount that may be paid from the fund for that purpose in any other year.

By April 1 of each year, the client security fund committee shall recommend to the chief court administrator the amount of funds available to be paid for making grants-in-aid for the purpose of funding the delivery of legal services to the poor. The chief court administrator shall review the recommendation of the client security fund committee and any other relevant information and determine and advise the client security fund committee of the amount of funds to be used for making grants-in-aid for the purpose of funding the delivery of legal services to the poor.

(Adopted June 29, 1998, to take effect Jan. 1, 1999; amended May 3, 2005, to take effect May 17, 2005; amended June 23, 2017, to take effect Jan. 1, 2018 ; amended June 12, 2025, to take effect June 24, 2025.)

HISTORY—2026: In the first and second sentences of the second paragraph, "15.9" was deleted and replaced with "25."

COMMENTARY—2026: The change to this section increases the amount that may be paid from the client security fund in any calendar year for the provision of crisis intervention and referral assistance to attorneys from a maximum of 15.9 percent to a maximum of 25 percent of the amount received by the fund from payments of the client security fund fee in the prior calendar year.

Sec. 2-78. —Attorney's Fee for Prosecuting Claim

No attorney shall accept any fee for prosecuting a claim on behalf of a claimant, except where specifically approved by the client security fund committee for payment out of the award.

(Adopted June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 2-79. —Enforcement of Payment of Fee

(a) The client security fund committee shall send a notice to each attorney who has not paid the client security fund fee pursuant to Section 2-70 of these rules that the attorney's license to practice law in this state may be administratively suspended unless within sixty days from the date of such notice the client security fund committee receives from such attorney proof that he or she has either paid the fee or is exempt from such payment. If the client security fund committee does not receive such proof within the time required, it shall cause a second notice to be sent to the attorney advising the attorney that he or she will be referred to the Superior Court for an administrative suspension of the attorney's license to practice law in this state unless within thirty days from the date of the notice proof of the payment of the fee or exemption is received. The client security fund committee shall submit to the clerk of the Superior Court for the Hartford Judicial District a list of attorneys who did not provide proof of payment or exemption, within thirty days after the date of the second notice. Upon order of the court, the attorneys so listed and referred to the clerk shall be deemed administratively suspended from the practice of law in this state until such time as payment of the fee and the reinstatement fee assessed pursuant to Section 2-70 is made, which suspension shall be effective upon publication of the list in the Connecticut Law Journal. An administrative suspension of an attorney for failure to pay the client security fund fee shall not be considered discipline, but an attorney who is placed on administrative suspension for such failure shall be ineligible to practice law as an attorney admitted to practice in this state, and shall not be considered in good standing pursuant to Section 2-65 of these rules until such time as the fee and reinstatement fee are paid. An attorney aggrieved by an order placing the attorney on administrative suspension for failing to pay the client security fund fee may make an application to the Superior Court to have the order vacated, by filing the application with the Superior Court for the Hartford Judicial District within thirty days of the date that the order is published, and mailing a copy of the same by certified mail, return receipt requested, to the office of the client security fund committee. The application shall set forth the reasons why the application should be granted. The court shall schedule a hearing on the application, which shall be limited to whether good cause exists to vacate the suspension order.

(b) If a judge, judge trial referee, state referee, family support magistrate or administrative law judge has not paid the client security fund fee, the Office of the Chief Court Administrator shall send a notice to such person that he or she will be referred to the Judicial Review Council unless within sixty days from the date of such notice the Office of the Chief Court Administrator receives from such person proof that he or she has either paid the fee or is exempt from such payment. If the Office of the Chief Court Administrator does not receive such proof within the time required, it shall refer such person to the Judicial Review Council.

(c) Family support referees shall be subject to the provisions of subsection (a) herein until such time as they come within the jurisdiction of the

Judicial Review Council, when they will be subject to the provisions of subsection (b).

(d) The notices required by this section shall be mailed to the last address registered by the attorney and sent by email to the last email address registered by the attorney pursuant to Section 2-26 and Section 2-27 (d), and mailed to the home address of the judge, judge trial referee, state referee, family support magistrate, family support referee or administrative law judge.

(Adopted June 29, 1998, to take effect Jan. 1, 1999; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 2-80. —Restitution by Attorney

An attorney whose dishonest conduct has resulted in reimbursement to a claimant shall make restitution to the fund including interest and the expense incurred by the fund in processing the claim. An attorney's failure to make satisfactory arrangements for restitution shall be cause for suspension, disbarment, or denial of an application for reinstatement.

(Adopted June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 2-81. —Restitution and Subrogation

(a) An attorney whose dishonest conduct results in reimbursement to a claimant shall be liable to the fund for restitution; and the client security fund committee may bring such action as it deems advisable to enforce such obligation.

(b) As a condition of reimbursement, a claimant shall be required to provide the fund with a pro tanto transfer of the claimant's rights against the attorney, the attorney's legal representative, estate or assigns; and of the claimant's rights against any third party or entity who may be liable for the claimant's loss.

(c) Upon commencement of an action by the client security fund committee as subrogee or assignee of a claim, it shall advise the claimant, who may then join in such action to recover the claimant's unreimbursed losses.

(d) In the event that the claimant commences an action to recover unreimbursed losses against the attorney or another entity who may be liable for the claimant's loss, the claimant shall be required to notify the client security fund committee of such action.

(e) The claimant shall be required to agree to cooperate in all efforts that the client security fund committee undertakes to achieve restitution for the fund.

(Adopted June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 2-82. Admission of Misconduct; Discipline by Consent

(a) The disciplinary counsel to whom a complaint is forwarded after a finding that probable cause exists that the respondent is guilty of misconduct may negotiate a proposed disposition of the complaint with the respondent or, if the respondent is represented by an attorney, with the respondent's attorney. Such a proposed disposition shall be based upon the respondent's admission of misconduct, which shall consist of either (1) an admission by the respondent that the material facts alleged in the complaint, or a portion thereof describing one or more acts of misconduct to which the admission relates, are true, or (2) if the respondent denies some or all of such material facts, an acknowledgment by the respondent that there is sufficient evidence to prove such material facts by clear and convincing evidence.

(b) If disciplinary counsel and the respondent agree to a proposed disposition of the matter, they shall place their agreement in writing and submit it, together with the complaint, the record in the matter, and the respondent's underlying admission of misconduct, for approval as follows: (i) by the court, in all matters involving possible suspension or disbarment, or possible imposition of a period of probation or other sanctions beyond the authority of the Statewide Grievance Committee, as set forth in Section 2-37; or (ii) by a reviewing committee of the Statewide Grievance Committee, in all other matters. If, after a hearing, the admission of misconduct is accepted and the proposed disposition is approved by the court or the reviewing committee, the matter shall be disposed of in the manner agreed to. If any resulting admission of misconduct or proposed disposition is rejected by the court or the reviewing committee, the admission of misconduct and proposed disposition shall be withdrawn, shall not be made public, and shall not be used against the respondent in any subsequent proceedings. In that event, the matter shall be referred for further proceedings to a different judicial authority or reviewing committee, as appropriate.

(c) If disciplinary counsel and the respondent are unable to agree to a proposed disposition of the matter, the respondent may nonetheless tender an admission of misconduct, which shall be in accordance with subsection (a) of this section. If such an admission of misconduct without proposed disposition is tendered, disciplinary counsel shall cause it to be forwarded, together with the complaint and the record in the matter, for consideration, possible acceptance and disposition as follows: (i) by the court, in all matters involving possible suspension or disbarment, or

possible imposition of a period of probation or other sanctions beyond the authority of the Statewide Grievance Committee, as set forth in Section 2-37; or (ii) by a reviewing committee of the Statewide Grievance Committee, in all other matters. If, after a hearing, the admission of misconduct is accepted by the court or the reviewing committee, the matter shall be disposed of and any resulting imposition of discipline shall be made public in the manner prescribed by these rules. If the admission of misconduct is rejected by the court or the reviewing committee, it shall be withdrawn, shall not be made public, and shall not be used against the respondent in any subsequent proceedings. In that event, the matter shall be referred for further proceedings to a different judicial authority or reviewing committee, as appropriate.

(d) A respondent who tenders an admission of misconduct and, if applicable, enters with disciplinary counsel into a pro-posed disposition of the matter, shall present to the court or the reviewing committee an affidavit stating the following:

(1) That the admission of misconduct and, if applicable, the proposed disposition are freely and voluntarily submitted; that the respondent is not making the admission of misconduct and, if applicable, the proposed disposition, as a result of any threats or other coercion or duress, or any promises or other inducements not set forth in the proposed disposition; that the respondent is fully aware of the consequences of such submissions;

(2) That the respondent is aware that there is presently pending a complaint, in connection with which probable cause has been found that the respondent committed the following acts of misconduct: (list specific acts); and

(3) Either (A) that the respondent admits that the material facts alleged in the complaint, or in that portion thereof to which the respondent's admission relates, are true, or (B) if the respondent denies some or all of such material facts, that the respondent acknowledges that there is sufficient evidence to prove such material facts by clear and convincing evidence.

(e) The disciplinary counsel may recommend dismissal of acts of misconduct alleged in the complaint that are not admitted by the respondent. The respondent's admission of some acts of misconduct shall not foreclose the disciplinary counsel from pursuing discipline based upon other acts of misconduct alleged in the complaint.

(f) Prior to acceptance by the court or the reviewing committee of the admission of misconduct, the proposed disposition of the matter, if applicable, and the imposition of any discipline, the complainant will be given the right to comment thereon.

(g) In any disciplinary proceeding where the respondent already has other disciplinary matters pending before a court, either pursuant to an order of interim suspension under Section 2-42, or pursuant to a presentment filed under Section 2-35, 2-40, 2-41 or 2-47, the respondent and disciplinary counsel may agree to a presentment. The respondent and disciplinary counsel shall stipulate that the order of presentment is requested for the purpose of consolidating all pending disciplinary matters before the court.

(Adopted June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 2-83. Effective Dates

(a) The revisions to this chapter which are effective January 1, 2004, shall apply to all grievance complaints filed on or af-ter that date, unless otherwise provided in these rules.

(b) The rules in effect on December 31, 2003, shall govern all grievance complaints filed on or before that date.

(Adopted June 24, 2002, to take effect July 1, 2003; May 14, 2003, effective date changed to Oct. 1, 2003, and amended on an interim basis, pur-suant to the provisions of Section 1-9 (c), to take effect Oct. 1, 2003, and amendment adopted June 30, 2003, to take effect Oct. 1, 2003; Sept. 30, 2003, effective date changed to Jan. 1, 2004, and amended on an interim basis, pursuant to the provisions of Section 1-9 (c), to take effect Jan. 1, 2004.)

CHAPTER 3

APPEARANCES

Sec.
3-1. Appearance for Plaintiff on Writ or Complaint in Civil and Family Cases
3-2. Time To File Appearance
3-3. Form and Signing of Appearance
3-4. Filing Appearance
3-5. Service of Appearances on Other Parties
3-6. Appearances for Bail, Detention Hearing or Alternative Arraignment Proceedings Only
3-7. Consequence of Filing Appearance
3-8. Appearance for Represented Party
3-9. Withdrawal of Appearance; Duration of Appearance
3-10. Motion To Withdraw Appearance
3-11. Appearance for Several Parties
3-12. Change in Name, Composition or Membership of a Firm or Professional Corporation
3-13. When Creditor May Appear and Defend
3-14. Legal Interns
3-15. —Supervision of Legal Interns
3-16. —Requirements and Limitations
3-17. —Activities of Legal Intern
3-18. —Certification of Intern
3-19. —Legal Internship Committee [Repealed]
3-20. —Unauthorized Practice
3-21. —Out-of-State Interns [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 3-1. Appearance for Plaintiff on Writ or Complaint in Civil and Family Cases

When a writ has been signed by an attorney at law admitted to practice in the courts of this state, such writ shall contain the attorney's name, juris number, mailing address, telephone number, and email address, all of which shall be typed or printed on the writ, and the attorney's appearance shall be entered for the plaintiff, unless such attorney by endorsement on the writ shall otherwise direct, or unless such attorney shall type or print on the writ the name, address, juris number, telephone number, and email address of the professional corporation or firm, of which such attorney shall be a member, entering its appearance for the plaintiff. The signature on the complaint of any person proceeding without the assistance of counsel pursuant to Section 8-1 shall be deemed to constitute the self-represented appearance of such party, who shall be required to type or print on the writ the party's name, mailing address, telephone number, and email address.

(P.B. 1978-1997, Sec. 64 (a).) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 3-2. Time To File Appearance

(a) After the writ has been filed the attorney for any party to any action, or any party himself or herself, may enter his or her appearance in writing with the clerk of the court location to which such action is returnable. Except where otherwise prescribed herein or by statute, an appearance for a party in a civil or family case should be filed on or before the second day following the return day. Appearances filed thereafter in such cases shall be accepted but an appearance for a party after the entry against such party of a nonsuit or judgment after default for failure to appear shall not affect the entry of the nonsuit or any judgment after default.

(b) An appearance in a criminal case or in a juvenile matter should be filed promptly but may be filed at any stage of the proceeding.

(P.B. 1978-1997, Sec. 64 (b); see also Secs. 66, 630, 1056.1.)

Sec. 3-3. Form and Signing of Appearance

(a) Except as otherwise provided in subsection (b), each appearance shall: (1) be filed on Judicial Branch form JD-CL-12; (2) include the name and number of the case, the name of the court location to which it is returnable and the date; (3) be legibly signed by the individual preparing the appearance with the individual's own name; and (4) state the party or parties for whom the appearance is being entered and the official (with position or department, if desired), firm, professional corporation or individual whose appearance is being entered, together with the juris number assigned thereto, if any, the mailing address, telephone number and email address.

(b) Each limited appearance pursuant to Section 3-8 (b) shall: (1) be filed on Judicial Branch form JD-CL-121; (2) include the name and number of the case, the name of the court location to which it is returnable and the date; (3) be legibly signed by the individual preparing the appearance with the individual's own name; and (4) state the party or parties for whom the appearance is being entered and the official (with position or department, if desired), firm, professional corporation or individual whose appearance is being entered, together with the juris number assigned thereto,

if any, the mailing address, telephone number and email address; (5) define the proceeding or event for which the lawyer is appearing; and (6) state that the attorney named on the limited appearance is available for service of process only for those matters described on the limited appearance. All pleadings, motions, or other documents served on the limited appearance attorney shall also be served in the same manner on the party for whom the limited appearance was filed. For all other matters, service must be made on the party instead of the attorney who filed the limited appearance, unless otherwise ordered by court.

(c) This section does not apply to appearances entered pursuant to Section 3-1.

(P.B. 1978-1997, Sec. 64 (b).) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Oct. 1, 2013; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 3-4. Filing Appearance

(Amended June 20, 2011, to take effect Jan. 1, 2012.)

Appearances shall be filed with the clerk of the court location where the matter is pending.

(a) Whenever an appearance is filed in any civil or family action, including appearances filed in addition to or in place of another appearance, a copy shall be mailed or delivered to all counsel and self-represented parties of record.

(b) Whenever an appearance is filed in summary process actions, including appearances filed in addition to or in place of another appearance, the attorney for the defendant, or, if there is no such attorney, the defendant himself or herself, shall mail or deliver a copy of the appearance to the attorney for the plaintiff, or if there is no such attorney, to the plaintiff himself or herself.

(c) Whenever an appearance is filed in delinquency or family with service needs proceedings, including appearances filed in addition to or in place of another appearance, the attorney or guardian ad litem for the respondent, or for any other interested party, shall mail or deliver a copy of the appearance to the prosecutorial official and all other counsel and self-represented parties of record; in child protection proceedings, the attorney or guardian ad litem for the child, respondent, or any other interested party, shall mail or deliver a copy of the appearance to the attorney for the petitioner and to all other counsel and self-represented parties of record.

(d) Whenever an appearance is filed in criminal cases, including appearances filed in addition to or in place of another appearance, the attorney for the defendant shall mail or deliver a copy of the appearance to the prosecuting authority.

(P.B. 1978-1997, Sec. 64 (c); see also Secs. 630, 1056.1.) (P.B. 1998.) (Amended June 20, 2011, to take effect Jan. 1, 2012; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 3-5. Service of Appearances on Other Parties

(Amended June 20, 2011, to take effect Jan. 1, 2012.)

Service of appearances shall be made in accordance with Sections 10-12 through 10-17. Proof of service shall be endorsed on the appearance filed with the clerk. This section shall not apply to appearances entered pursuant to Section 3-1.

(See Secs. 64 (c), 630, 1056.1, P.B. 1978-1997.) (P.B. 998.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 3-6. Appearances for Bail, Detention Hearing, or Alternative Arraignment Proceedings Only

(Amended June 11, 2021, to take effect Jan. 1, 2022.)

(a) An attorney, prior to the entering of an appearance by any other attorney, may enter an appearance for the defendant in a criminal case for the sole purpose of representing the defendant at a hearing for the fixing of bail. Such appearance shall be in writing and shall be styled, "for the purpose of the bail hearing only." Upon entering such an appearance, that attorney shall be entitled to confer with the prosecuting authority in connection with the bail hearing.

(b) An attorney may enter an appearance in a delinquency proceeding for the sole purpose of representing the respondent at any detention hearing; such appearance shall be in writing and styled "for the purpose of detention hearing only."

(c) An attorney may enter an appearance for the defendant in a criminal case who is subject to a motion to arraign such defendant remotely or without his or her presence pursuant to subsection (c) of Section 37-1 for the limited purpose of representing the defendant at the hearing on such motion, any arraignment conducted pursuant to that subsection, and until the defendant's first appearance in court. Such appearance shall be in writing and shall be styled, "for the purpose of alternative arraignment proceedings only." Upon entering such an appearance, that attorney shall be entitled to confer with the prosecuting authority in connection with the hearing on such motion, the arraignment of the defendant in accordance with subsection (c) of Section 37-1, if any, and until the defendant's first appearance in court.

(See Sec. 633, P.B. 1978-1997.) (P.B. 1998.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 3-7. Consequence of Filing Appearance

(a) Except by leave of the judicial authority, no attorney shall be permitted to appear in court or to be heard on behalf of a party until the attorney's

appearance has been entered. No attorney shall be entitled to confer with the prosecuting authority as counsel for the defendant in a criminal case until the attorney's appearance has been so entered.

(b) After the filing of an appearance, the attorney or self-represented party shall receive copies of all notices required to be given to parties by statute or by these rules.

(c) The filing of an appearance by itself shall not waive the right to attack defects in jurisdiction or any claimed violation of constitutional rights.

(See also Secs. 630, 631, 1056.1, P.B. 1978-1997.) (P.B. 1998.)

Sec. 3-8. Appearance for Represented Party

(a) Whenever an attorney files an appearance for a party, or the party files an appearance for himself or herself, and there is already an appearance of an attorney or party on file for that party, the attorney or party filing the new appearance shall state thereon whether such appearance is in place of or in addition to the appearance or appearances already on file. Section 25-6A shall apply to any appearance filed in a family case by a self-represented party when filed in addition to an appearance or appearances already on file.

(b) An attorney is permitted to file an appearance limited to a specific event or proceeding in any family or civil case. If an event or proceeding in a matter in which a limited appearance has been filed has been continued to a later date, for any reason, it is not deemed completed unless otherwise ordered by the court. Except with leave of court, a limited appearance may not be filed to address a specific issue or to represent the client at or for a portion of a hearing. A limited appearance may not be limited to a particular length of time or the exhaustion of a fee. Whenever an attorney files a limited appearance for a party, the limited appearance shall be filed in addition to any self-represented appearance that the party may have already filed with the court. Upon the filing of the limited appearance, the client may not file or serve pleadings, discovery requests or otherwise represent himself or herself in connection with the proceeding or event that is the subject of the limited appearance. An attorney shall not file a limited appearance for a party when filing a new action or during the pendency of an action if there is no appearance on file for that party, unless the party for whom the limited appearance is being filed files an appearance in addition to the attorney's limited appearance at the same time. A limited appearance may not be filed on behalf of a firm or corporation. A limited appearance may not be filed in criminal or juvenile cases, except that a limited appearance may be filed pursuant to Section 79a-3 (c) (1).

(c) The provisions of this section regarding parties filing appearances for themselves do not apply to criminal cases.

(P.B. 1978-1997, Sec. 65.) (Amended June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2013, to take effect Oct. 1, 2013; amended June 12, 2015, to take effect Jan. 1, 2016; subsection (b) amended June 26, 2020, on an interim basis pursuant to Section 1-9 (c), to take effect July 14, 2020, and amendment adopted June 11, 2021, to take effect July 13, 2021; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 3-9. Withdrawal of Appearance; Duration of Appearance

(a) An attorney or party whose appearance has been filed shall be deemed to have withdrawn such appearance upon the filing of a new appearance that is stated to be in place of the appearance on file in accordance with Section 3-8. Appropriate entries shall be made in the court file. An attorney or party whose appearance is deemed to have been withdrawn may file an appearance for the limited purpose of filing an objection to the in place of appearance at any time.

(b) An attorney may withdraw his or her appearance for a party or parties in any action after the appearance of other counsel representing the same party or parties has been entered. An application for withdrawal in accordance with this subsection shall state that such an appearance has been entered and that such party or parties are being represented by such other counsel at the time of the application. Such an application may be granted by the clerk as of course, if such an appearance by other counsel has been entered.

(c) In addition to the grounds set forth in subsections (a), (b), and (d), a lawyer who represents a party or parties on a limited basis in accordance with Section 3-8 (b) and has completed his or her representation as defined in the limited appearance, shall file a certificate of completion of limited appearance on Judicial Branch form JD-CL-122. The certificate shall constitute a full withdrawal of a limited appearance. Copies of the certificate must be served in accordance with Sections 10-12 through 10-17 on the client, and all attorneys and self-represented parties of record.

(d) All appearances of counsel shall be deemed to have been withdrawn 180 days after the entry of judgment in any action seeking a dissolution of marriage or civil union, annulment, or legal separation, provided no appeal shall have been taken. In the event of an appeal or the filing of a motion to open a judgment within such 180 days, all appearances of counsel shall be deemed to

have been withdrawn after final judgment on such appeal or motion or within 180 days after the entry of the original judgment, whichever is later. Nothing herein shall preclude or prevent any attorney from filing a motion to withdraw with leave of the court during that period subsequent to the entry of judgment. In the absence of a specific withdrawal, counsel will continue of record for all postjudgment purposes until 180 days have elapsed from the entry of judgment or, in the event an appeal or a motion to open a judgment is filed within such 180 day period, until final judgment on that appeal or determination of that motion, whichever is later.

(e) Except as provided in subsections (a), (b), (c) and (d), no attorney shall withdraw his or her appearance in any civil, criminal, family, juvenile or other matter after it has been entered upon the record of the court without the leave of the court.

(f) All appearances in juvenile matters shall be deemed to continue during the period of delinquency probation supervision or probation supervision with residential placement, family with service needs supervision, any commitment to the Commissioner of the Department of Children and Families pursuant to General Statutes § 46b-129 or protective supervision. An attorney appointed by the chief public defender to represent a parent in a pending neglect or uncared for proceeding shall continue to represent the parent for any subsequent petition to terminate parental rights if the attorney remains under contract to the Office of the Chief Public Defender to represent parties in child protection matters, the parent appears at the first hearing on the termination petition and qualifies for appointed counsel, unless the attorney files a motion to withdraw pursuant to Section 3-10 that is granted by the judicial authority or the parent requests a new attorney. The attorney shall represent the client in connection with appeals, subject to Section 35a-20 or 35a-20A, and with motions for review of permanency plans, revocations or postjudgment motions and shall have access to any documents filed in court. The attorney for the child shall continue to represent the child in all proceedings relating to the child, including termination of parental rights and during the period until final adoption following termination of parental rights.

(P.B. 1978-1997, Sec. 77.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2013, to take effect Oct. 1, 2013; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 3-10. Motion To Withdraw Appearance

(a) No motion for withdrawal of appearance shall be granted unless good cause is shown and until the judicial authority is satisfied that reasonable notice has been given to other attorneys of record and that the party represented by the attorney was served with the motion and the notice required by this section or that the attorney has made reasonable efforts to serve such party. All motions to withdraw appearance shall be set down for argument and when the attorney files such motion, he or she shall obtain such argument date from the clerk.

(b) In civil and family cases, a motion to withdraw shall include the last known address of any party as to whom the attorney seeks to withdraw his or her appearance and shall have attached to it a notice to such party advising of the following: (1) the attorney is filing a motion which seeks the court's permission to no longer represent the party in the case; (2) the date and time the motion will be heard and whether such hearing will be conducted in person or remotely. If the hearing is conducted remotely, the attorney will provide the party with any information necessary to access the hearing remotely; (3) the party may appear in person on that date and address the court concerning the motion if the hearing will be conducted in person and may appear remotely on that date and address the court concerning the motion if the hearing will be conducted remotely; (4) if the motion to withdraw is granted, the party should either obtain another attorney or file an appearance on his or her own behalf with the court; and (5) if the party does neither, the party will not receive notice of court proceedings in the case and a nonsuit or default judgment may be rendered against such party. If the hearing has not been scheduled at the time that the attorney files and serves the motion and notice, the attorney shall serve the party with a revised notice that provides the information required by subdivisions (2) and (3) of this subsection.

(c) In criminal and juvenile matters, the motion to withdraw shall comply with subsections (b) (1), (2) and (3) of this section and the client shall also be advised by the attorney that if the motion to withdraw is granted the client should request court appointed counsel, obtain another attorney or file an appearance on his or her own behalf with the court and be further advised that if none is done, there may be no further notice of proceeding and the court may act.

(d) In addition to the above, each motion to withdraw appearance and each notice to the party or parties who are the subject of the motion shall

state whether the case has been assigned for pretrial or trial and, if so, the date so assigned.

(e) The attorney's appearance for the party shall be deemed to have been withdrawn upon the granting of the motion without the necessity of filing a withdrawal of appearance.

(P.B. 1978-1997, Sec. 77 (d).) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 25, 2001, to take effect Jan. 1, 2002; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 3-11. Appearance for Several Parties

Where there are several plaintiffs or defendants, the appearance shall state specifically either that it is for all or that it is for certain specified parties; otherwise the appearance shall not be entered by the clerk.

(P.B. 1978-1997, Sec. 76.)

Sec. 3-12. Change in Name, Composition or Membership of a Firm or Professional Corporation

(a) Whenever the appearance of a firm or professional corporation (hereinafter collectively referred to as "unit") has been entered upon the record of the court and there is a change in the name, composition or membership of such unit, it shall be the duty of such unit forthwith to notify, in writing, the director of court operations of the Judicial Branch, giving the name, mailing address and telephone number of the successor firm, professional corporation or individual who will continue the major portion of such unit's business. In court locations having access to the automated roll of attorneys, upon receipt of such notice the appearance of such successor will be automatically entered in lieu of the appearance of the former unit in all pending cases. In other court locations, unless such successor unit files a notice to the clerks pursuant to Section 2-26 or withdraws its appearance under the provisions of Section 3-10, the former unit's original appearance shall remain on file in each case in which it had been entered and the clerk may rely on the information contained therein for the purpose of giving notice to such unit regarding court activities involving the cases in which the unit remains active.

(b) In each case where such successor will no longer represent the party or parties for whom the original unit had entered an appearance, it is the duty of the new attorney who will represent such party or parties to enter an appearance, and it is the duty of the successor firm, professional corporation or individual to withdraw such unit's appearance under the provisions of Section 3-10.

(P.B. 1978-1997, Sec. 78.)

Sec. 3-13. When Creditor May Appear and Defend

In any action in which property has been attached, any person may appear and defend in the name of the defendant, upon filing in the court an affidavit that he or she is a creditor of the defendant and has good reason to believe, and does believe, that the amount which the plaintiff claims was not justly due at the commencement of the suit and that he or she is in danger of being defrauded by a recovery by the plaintiff, and upon giving bond with surety to the plaintiff, in such amount as the judicial authority approves, for the payment of such costs as the plaintiff may thereafter recover. If the plaintiff recovers the whole claim, costs shall be taxed against the defendant to the time of the appearance of such creditor, and for the residue of the costs such creditor shall be liable upon his or her bond; if only a part of the plaintiff's claim is recovered, the whole costs shall be taxed against the defendant, and the creditor shall not be liable for the same; if judgment is rendered in favor of the defendant, costs shall be taxed in his or her favor against the plaintiff, but the judicial authority may order that the judgment and execution therefor shall belong to such creditor. No creditor so appearing shall be permitted to file a motion to dismiss, or to plead or give in evidence the statute of limitations, or to plead that the contract was not in writing according to the requirements of the statute, or to plead any other statutory defense consistent with the justice of the plaintiff's claim. (See General Statutes § 52-86 and annotations.)

(P.B. 1978-1997, Sec. 79.)

Sec. 3-14. Legal Interns

An eligible legal intern may, under supervision by a member of the Connecticut bar as provided in Section 3-15, appear in court with the approval of the judicial authority or before an administrative tribunal, subject to its permission, on behalf of any person, if that person has indicated in writing his or her consent to the intern's appearance and the supervising attorney has also indicated in writing approval of that appearance.

(P.B. 1978-1997, Sec. 68.)

Sec. 3-15. —Supervision of Legal Interns

The member of the bar under whose supervision an eligible legal intern does any of the things permitted by these rules shall:

(1) be an attorney who has been admitted to the Connecticut bar for at least three years, or one who is employed by an attorney of five years' standing, or one who is employed by an accredited law school in Connecticut, or one who is approved as a supervising attorney by the presiding judge in the case at bar;

(2) assume personal professional responsibility for the intern's work;

(3) assist the intern in his or her preparation to the extent the supervising attorney considers necessary;

(4) be present in court with the intern.

(P.B. 1978-1997, Sec. 69.)

Sec. 3-16. —Requirements and Limitations

(a) In order to appear pursuant to these rules, the legal intern must:

(1) be certified by a law school approved by the American Bar Association or by the bar examining committee;

(2) have completed legal studies amounting to at least two semesters of credit in a three or four year course of legal studies, or the equivalent if the school is on some basis other than a semester basis except that the dean may certify a student under this section who has completed less than two semesters of credit or the equivalent to enable that student to participate in a faculty supervised law school clinical program;

(3) be certified by the dean of his or her law school as being of good character and competent legal ability; and

(4) be introduced to the court in which he or she is appearing by an attorney admitted to practice in that court;

(b) A legal intern may not be employed or compensated directly by a client for services rendered. This section shall not prevent an attorney, legal aid bureau, law school, public defender agency or the state from compensating an eligible intern.

(P.B. 1978-1997, Sec. 70.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: "And" was added to the end of subdivision (a) (3), and the semicolon at the end of subdivision (a) (4) was deleted and replaced with a period. Additionally, what had been subdivision (a) (5) was deleted.

COMMENTARY—2026: The change to this section is required by the deletion of Section 3-21 in its entirety.

Sec. 3-17. —Activities of Legal Intern

(a) In each case where a legal intern appears in court or before an administrative tribunal, the written consent and approval referred to in Section 3-14 shall be filed in the record of the case and shall be brought to the attention of the judicial authority or the presiding officer of the administrative tribunal.

(b) In addition to appearing in court or before an administrative tribunal, an intern may, under the supervision of a member of the bar:

(1) prepare pleadings and other documents to be filed in any matter;

(2) prepare briefs, abstracts and other documents.

(c) Each document or pleading must contain the name of the intern who participated in drafting it and must be signed by the supervising attorney.

(P.B. 1978-1997, Sec. 71.) (Amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 3-18. —Certification of Intern

The certification of an intern by the law school dean:

(1) shall be filed with the clerk of the Superior Court in Hartford and, unless it is sooner withdrawn, shall remain in effect until the announcement of the results of the second Connecticut bar examination following the intern's graduation. For any intern who passes that examination, the certification shall continue in effect until the date of admission to the bar.

(2) shall terminate if the intern, prior to graduation, is no longer duly enrolled in an accredited law school.

(3) may be terminated by the dean at any time by mailing a notice to that effect to the clerk of the Superior Court in Hartford and to the intern. It is not necessary that the notice to the Superior Court state the cause for termination.

(4) may be terminated by the Superior Court at any time upon notice to the intern, to the dean and to the Superior Court in Hartford.

(P.B. 1978-1997, Sec. 72.)

Sec. 3-19. —Legal Internship Committee

[Repealed as of Jan. 1, 2019.]

Sec. 3-20. —Unauthorized Practice

Nothing contained in these rules shall affect the right of any person who is not admitted to the practice of law to do anything that he or she might lawfully do prior to their adoption, nor shall they enlarge the rights of persons, not members of the bar or legal interns covered by these rules, to engage in activities customarily considered to be the practice of law.

(P.B. 1978-1997, Sec. 74.)

Sec. 3-21. —Out-of-State Interns [Repealed]

[Repealed as of Jan. 1, 2026.]

HISTORY—2026: Prior to 2026, this section read:

"A legal intern who is certified under a legal internship program or student practice rule in another state or in the District of Columbia may appear in a court or before an administrative tribunal of Connecticut under the same circumstances and on the same conditions as those applicable to certified Connecticut legal interns, if the out-of-state intern files with the clerk of the Superior Court in Hartford a certification by

the dean of his or her law school of his or her admission to internship or student practice in that state or in the District of Columbia, together with the text of that state's or the District of Columbia's applicable statute or rule governing such admissions.

"(P.B. 1978-1997, Sec. 75.) (Amended June 15, 2018, to take effect Jan. 1, 2019.)"

COMMENTARY—2026: The repeal of this section ends the special requirements applicable to students attending out-of-state law schools.

CHAPTER 4

PLEADINGS

Sec.
4-1. Form of Pleading
4-2. Signing of Pleading
4-3. Filing and Endorsing Pleadings
4-4. Electronic Filing
4-5. Notice Required for Ex Parte Temporary Injunctions
4-6. Page Limitations for Briefs, Memoranda of Law and Reply Memoranda
Sec
4-7. Personal Identifying Information To Be Omitted or Redacted from Court Records in Civil and Family Matters
4-8. Notice of Complaint or Action Filed Against Judicial Authority

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 4-1. Form of Pleading

(a) All documents filed in paper format shall be typed or printed on size 8 1/2 by 11 inch paper, shall have no back or cover sheet, and shall include a page number on each page other than the first page. Those subsequent to the complaint shall be headed with the title and number of the case, the name of the court, and the date and designation of the particular pleading, in conformity with the applicable form in the rules of practice which is set forth in the Appendix of Forms in this volume.

(b) At the bottom of the first page of each paper, a blank space of approximately two inches shall be reserved for notations of receipt or time of filing by the clerk and for statements by counsel pursuant to Section 11-18 (a) (2). Papers shall be punched with two holes, two and twelve-sixteenths inches apart, each centered seven-sixteenths of an inch from the upper edge, one being two and fourteen-sixteenths inches from the left-hand edge and the other being the same distance from the right-hand edge, and each four-sixteenths of an inch in diameter.

(c) All documents filed electronically shall be in substantially the same format as required by subsection (a) of this section.

(d) The clerk may require a party to correct any filed paper which is not in compliance with this section by substituting a paper in proper form.

(e) This section shall not apply to forms supplied by the Judicial Branch or generated by the electronic filing system.

(P.B. 1978-1997, Sec. 118.) (Amended Aug. 24, 2001, to take effect Jan. 1, 2002; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 4-2. Signing of Pleading

(a) Every pleading and other paper of a party represented by an attorney shall be signed by at least one attorney of record in the attorney's individual name. A party who is not represented by an attorney shall sign his or her pleadings and other papers. The name of the attorney or party who signs such document shall be legibly typed or printed beneath the signature.

(b) The signing of any pleading, motion, objection or request shall constitute a certificate that the signer has read such document, that to the best of the signer's knowledge, information and belief there is good ground to support it, that it is not interposed for delay, and that the signer has complied with the requirements of Section 4-7 regarding personal identifying information. Each pleading and every other court-filed document signed by an attorney or party shall set forth the signer's telephone number and mailing address.

(c) An attorney may assist a client in preparing a pleading, motion or other document to be signed and filed in court by the client. In such cases, the attorney shall insert the notation "prepared with assistance of counsel" on any pleading, motion or document prepared by the attorney. The attorney is not required to sign the pleading, motion or document and the filing of such a pleading, motion or document shall not constitute an appearance by the attorney.

(P.B. 1978-1997, Sec. 119.) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 14, 2013, to take effect Oct. 1, 2013.)

Sec. 4-3. Filing and Endorsing Pleadings

All pleadings, written motions, and papers in pending cases shall be filed with and kept by the clerk of the court, who shall endorse upon each the time when it is filed, and make a like entry upon the clerk's docket and the file.

(P.B. 1978-1997, Sec. 127.)

Sec. 4-4. Electronic Filing

Papers may be filed, signed or verified by electronic means that comply with procedures and technical standards established by the Office of the Chief Court Administrator, which may also

set forth the manner in which such papers shall be kept by the clerk. A paper filed by electronic means in compliance with such procedures and standards constitutes a written paper for the purpose of applying these rules.

(Adopted June 29, 1998, to take effect Jan. 1, 1999; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 4-5. Notice Required for Ex Parte Temporary Injunctions

(a) No temporary injunction shall be granted without notice to each opposing party unless the applicant certifies one of the following to the court in writing:

(1) facts showing that within a reasonable time prior to presenting the application the applicant gave notice to each opposing party of the time when and the place where the application would be presented and provided a copy of the application; or

(2) the applicant in good faith attempted but was unable to give notice to an opposing party or parties, specifying the efforts made to contact such party or parties; or

(3) facts establishing good cause why the applicant should not be required to give notice to each opposing party.

(b) When an application for a temporary injunction is granted without notice or without a hearing, the court shall schedule an expeditious hearing as to whether the temporary injunction should remain in effect. Any temporary injunction which was granted without a hearing shall automatically expire thirty days following its issuance, unless the court, following a hearing, determines that said injunction should remain in effect.

(c) For purposes of this rule, notice to the opposing party means notice to the opposing party's attorney if the applicant knows who the opposing party's attorney is; if the applicant does not know who the opposing party's attorney is, notice shall be given to the opposing party. If the temporary injunction is sought against the state of Connecticut, a city or town, or an officer or agency thereof, notice shall be given to the attorney general or to the city or town attorney or corporation counsel, as the case may be.

(d) This section shall not apply to applications or relief from physical abuse filed pursuant to General Statutes § 46b-15 or to motions for orders of temporary custody in juvenile matters filed pursuant to General Statutes § 46b-129.

(Adopted June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 4-6. Page Limitations for Briefs, Memoranda of Law and Reply Memoranda

(Amended June 12, 2015, to take effect Jan. 1, 2016.)

(a) The text of any trial brief or any other brief concerning a motion in any case shall not exceed thirty-five pages without permission of the judicial authority. The judicial authority may also permit the filing of a supplemental brief of a particular number of pages. The text of any brief shall be double-spaced and the type font shall be no smaller than 12 point. The judicial authority may in its discretion limit the number of pages of any brief to less than thirty-five.

(b) Any reply memorandum filed pursuant to Section 11-10 (b) shall not exceed ten pages without the permission of the judicial authority.

(Adopted June 26, 2000, to take effect Jan. 1, 2001; amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 4-7. Personal Identifying Information To Be Omitted or Redacted from Court Records in Civil and Family Matters

(a) As used in this section, "personal identifying information" means: an individual's date of birth; mother's maiden name; motor vehicle operator's license number; Social Security number; other government issued identification number except for juris, license, permit or other business related identification numbers that are otherwise made available to the public directly by any government agency or entity; health insurance identification number; or any financial account number, security code or personal identification number (PIN). For purposes of this section, a person's name is specifically excluded from this definition of personal identifying information unless the judicial authority has entered an order allowing the use of a pseudonym in place of the name of a party. If such an order has been entered, the person's name is included in this definition of "personal identifying information."

(b) Persons who file documents with the court shall not include personal identifying information, and if any such personal identifying information is present, shall redact it from any documents filed with the court, whether filed in electronic or paper format, unless otherwise required by law or ordered by the court. The party filing the redacted documents shall retain the original unredacted documents throughout the pendency of the action, any appeal period, and any applicable appellate process.

(c) The responsibility for omitting or redacting personal identifying information rests solely with the person filing the document. The court or the clerk of the court need not review any filed document for compliance with this rule.

(Adopted June 22, 2009, to take effect Jan. 1, 2010; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 4-8. Notice of Complaint or Action Filed Against Judicial Authority

An attorney or party who has filed a complaint with the Judicial Review Council or an administrative agency or has filed an action against any

judicial authority other than a small claims magistrate, shall give notice of the filing of such complaint or action to the judicial authority and to all other attorneys and parties of record in any matter pending before the judicial authority or, if the attorney or party has no matter pending before the judicial authority, shall mail such notice by certified mail, return receipt requested or with electronic delivery confirmation, to the judicial authority at the location at which such judicial authority is assigned.

(Adopted June 15, 2018, to take effect Jan. 1, 2019.)

CHAPTER 5

TRIALS

Sec.
5-1. Trial Briefs
5-2. Raising Questions of Law Which May Be the Subject of an Appeal
5-3. Administering Oath
5-4. Examination of Witnesses
5-5. Objections to Evidence; Interlocutory Questions; Exceptions Not Required
5-6. Reception of Evidence Objected to
5-7. Marking Exhibits
5-8. Interlocutory Matters
5-9. Citation of Opinion Not Officially Published [Repealed]
5-10. Sanctions for Counsel's Failure To Appear
5-11. Testimony of Party or Child in Family Relations Matter When Protective Order, Restraining Order, Standing Criminal Protective Order or Standing Criminal Restraining Order Issued on Behalf of Party or Child
5-12. Objection to the Use of a Peremptory Challenge

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 5-1. Trial Briefs

The parties shall, if the judicial authority so orders, file, at such time as the judicial authority shall determine, written trial briefs discussing the issues in the case and the factual or legal basis upon which they ought to be resolved.

(P.B. 1978-1997, Sec. 285A.) (Amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 5-2. Raising Questions of Law Which May Be the Subject of an Appeal

Any party intending to raise any question of law which may be the subject of an appeal must either state the question distinctly to the judicial authority in a written trial brief under Section 5-1 or state the question distinctly to the judicial authority on the record before such party's closing argument and within sufficient time to give the opposing counsel an opportunity to discuss the question. If the party fails to do this, the judicial authority will be under no obligation to decide the question.

(See Secs. 877, 285A, P.B.1978-1997.) (P.B. 1998.)

Sec. 5-3. Administering Oath

The oath or affirmation shall be administered deliberately and with due solemnity, as the witness takes the stand. The official court reporter or court recording monitor shall note by whom it was administered.

(P.B. 1978-1997, Sec. 286.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 5-4. Examination of Witnesses

The counsel who commences the examination of a witness, either in chief or on cross-examination, must alone conduct it; and no associate counsel will be permitted to interrogate the witness, except by permission of the judicial authority.

(P.B. 1978-1997, Secs. 287, 875.)

Sec. 5-5. Objections to Evidence; Interlocutory Questions; Exceptions Not Required

Whenever an objection to the admission of evidence is made, counsel shall state the grounds upon which it is claimed or upon which objection is made, succinctly and in such form as he or she desires it to go upon the record, before any discussion or argument is had. Argument upon such objection or upon any interlocutory question arising during the trial of a case shall not be made by either party unless the judicial authority requests it and, if made, must be brief and to the point.

(P.B. 1978-1997, Secs. 288, 850A.)

Sec. 5-6. Reception of Evidence Objected to

Whenever evidence offered upon trial is objected to as inadmissible, the judicial authority or committee trying such case shall not admit such evidence subject to the objection, unless both parties agree that it be so admitted; but, if either party requests a decision, such judicial authority or committee shall pass upon such objection and admit or reject the testimony. (See General Statutes § 52-208 and annotations.)

(P.B. 1978-1997, Sec. 289.)

Sec. 5-7. Marking Exhibits

Unless otherwise ordered by the judicial authority, the clerk shall mark all exhibits not marked in advance of trial and shall keep a list of all exhibits marked for identification or received in evidence during the course of the trial.

(P.B. 1978-1997, Sec. 291.)

Sec. 5-8. Interlocutory Matters

No more than one counsel on each side shall be heard on any question of evidence, or upon any

interlocutory motion or motion to dismiss, without permission of the judicial authority.

(P.B. 1978-1997, Sec. 293.)

Sec. 5-9. Citation of Opinion Not Officially Published

[Repealed as of Jan. 1, 2014.]

Sec. 5-10. Sanctions for Counsel's Failure To Appear

Counsel who fails to appear on a scheduled date for any hearing or trial or who requests a continuance without cause or in any other way delays a case unnecessarily will be subject to sanctions pursuant to General Statutes § 51-84.

(P.B. 1978-1997, Sec. 983.)

Sec. 5-11. Testimony of Party or Child in Family Relations Matter When Protective Order, Restraining Order, Standing Criminal Protective Order or Standing Criminal Restraining Order Issued on Behalf of Party or Child

(Amended June 20, 2011, to take effect Jan. 1, 2012.)

(a) In any court proceeding in a family relations matter, as defined in General Statutes § 46b-1, or in any proceeding pursuant to General Statutes § 46b-38c, the court may, except as otherwise required by law and within available resources, upon motion of any party, order that the testimony of a party or a child who is a subject of the proceeding be taken outside the physical presence of any other party if a protective order, restraining order, standing criminal protective order or standing criminal restraining order has been issued on behalf of the party or child, and the other party is subject to the protective order or restraining order. Such order may provide for the use of alternative means to obtain the testimony of any party or child, including, but not limited to, the use of a secure video connection for the purpose of conducting hearings by videoconference. Such testimony may be taken outside the courtroom or at another location inside or outside the state. The court shall provide for the administration of an oath to such party or child prior to the taking of such testimony as required by law.

(b) Nothing in this section shall be construed to limit any party's right to cross-examine a witness whose testimony is taken pursuant to an order under subsection (a) hereof.

(c) An order under this section may remain in effect during the pendency of the proceedings in the family relations matter.

(Adopted June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 5-12. Objection to the Use of a Peremptory Challenge

(a) **Policy and Purpose**. The purpose of this rule is to eliminate the unfair exclusion of potential jurors based upon race or ethnicity.

(b) **Objection**. A party may object to the use of a peremptory challenge to raise a claim of improper bias. The court may also raise this objection on its own. The objection shall be made by simple citation to this rule, and any further discussion shall be conducted outside the presence of the prospective juror.

(c) **Response**. Upon objection to the exercise of a peremptory challenge pursuant to this rule, the party exercising the peremptory challenge shall articulate the reason that the peremptory challenge has been exercised.

(d) **Determination**. The court shall then evaluate from the perspective of an objective observer, as defined in subsection (e) herein, the reason given to justify the peremptory challenge in light of the totality of the circumstances. If the court determines that the use of the challenge against the prospective juror, as reasonably viewed by an objective observer, legitimately raises the appearance that the prospective juror's race or ethnicity was a factor in the challenge, then the challenge shall be disallowed and the prospective juror shall be seated. If the court determines that the use of the challenge does not raise such an appearance, then the challenge shall be permitted and the prospective juror shall be excused. The court need not find purposeful discrimination to disallow the peremptory challenge. The court must explain its ruling on the record. A party whose peremptory challenge has been disallowed pursuant to this rule shall not be prohibited from attempting to challenge peremptorily the prospective juror for any other reason or from conducting further voir dire of the prospective juror.

(e) **Nature of Observer**. For the purpose of this rule, an objective observer: (1) is aware that purposeful discrimination, and implicit, institutional, and unconscious biases, have historically resulted in the unfair exclusion of potential jurors on the basis of their race, or ethnicity; and (2) is deemed to be aware of and to have given due consideration to the circumstances set forth in subsection (f) herein.

(f) **Circumstances considered**. In making its determination, the circumstances the court should consider include, but are not limited to, the following:

(1) the number and types of questions posed to the prospective juror including consideration of whether the party exercising the peremptory challenge failed to question the prospective juror

about the alleged concern or the questions asked about it;

(2) whether the party exercising the peremptory challenge asked significantly more questions or different questions of the prospective juror, unrelated to his testimony, than were asked of other prospective jurors;

(3) whether other prospective jurors provided similar answers but were not the subject of a peremptory challenge by that party;

(4) whether a reason might be disproportionately associated with a race or ethnicity;

(5) if the party has used peremptory challenges disproportionately against a given race or ethnicity in the present case, or has been found by a court to have done so in a previous case;

(6) whether issues concerning race or ethnicity play a part in the facts of the case to be tried;

(7) whether the reason given by the party exercising the peremptory challenge was contrary to or unsupported by the record.

(g) **Reasons Presumptively Invalid**. Because historically the following reasons for peremptory challenges have been associated with improper discrimination in jury selection in Connecticut or may be influenced by implicit or explicit bias, the following are presumptively invalid reasons for a peremptory challenge:

(1) having prior contact with law enforcement officers;

(2) expressing a distrust of law enforcement or a belief that law enforcement officers engage in racial profiling;

(3) having a close relationship with people who have been stopped, arrested, or convicted of a crime;

(4) living in a high crime neighborhood;

(5) having a child outside of marriage;

(6) receiving state benefits;

(7) not being a native English speaker; and

(8) having been a victim of a crime.

The presumptive invalidity of any such reason may be overcome as to the use of a peremptory challenge on a prospective juror if the party exercising the challenge demonstrates to the court's satisfaction that the reason, viewed reasonably and objectively, is unrelated to the prospective juror's race or ethnicity and, while not seen by the court as sufficient to warrant excusal for cause, legitimately bears on the prospective juror's ability to be fair and impartial in light of particular facts and circumstances at issue in the case.

(h) **Reliance on Conduct**. The following reasons for peremptory challenges also have historically been associated with improper discrimination in jury selection: allegations that the prospective juror was inattentive, failing to make eye contact or exhibited a problematic attitude, body language, or demeanor. If any party intends to offer one of these reasons or a similar reason as a justification for a peremptory challenge, that party must provide reasonable notice to the court and the other parties so the behavior can be verified and addressed in a timely manner. A party who intends to exercise a peremptory challenge for reasons relating to those listed above in this subsection shall, as soon as practicable, notify the court and the other party in order to determine whether such conduct was observed by the court or that party. If the alleged conduct is not corroborated by observations of the court or the objecting party, then a presumption of invalidity shall apply but may be overcome as set forth in subsection (g).

(i) **Review Process**. The chief justice shall appoint an individual or individuals to monitor issues relating to this rule.

(Adopted June 10, 2022, to take effect Jan. 1, 2023.)

CHAPTER 6

JUDGMENTS

Sec.
6-1. Statement of Decision; When Required
6-2. Judgment Files; Captions and Contents
6-3. —Preparation; When; By Whom; Filing
6-4. —Signing of Judgment File
6-5. —Notation of Satisfaction

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 6-1. Statement of Decision; When Required

(a) The judicial authority shall state its decision either orally or in writing, in all of the following: (1) in rendering judgments in trials to the court in civil and criminal matters, including rulings regarding motions for stay of execution, (2) in ruling on aggravating and mitigating factors in capital penalty hearings conducted to the court, (3) in ruling on motions to dismiss under Sections 41-8 through 41-11, (4) in ruling on motions to suppress under Sections 41-12 through 41-17, (5) in granting a motion to set aside a verdict under Sections 16-35 through 16-38, and (6) in making any other rulings that constitute a final judgment for purposes of appeal under General Statutes § 52-263, including those that do not terminate the proceedings. The judicial authority's decision shall encompass its conclusion as to each claim of law raised by the parties and the factual basis therefor. If oral, the decision shall be recorded by an official court reporter or court recording monitor and, if there is an appeal, the trial judge shall create a memorandum of decision for use in the appeal by ordering a transcript of the portion of the proceedings in which it stated its oral decision. The transcript of the decision shall be signed by the trial judge and filed in the trial court clerk's office.

This section does not apply in small claims actions and to matters listed in subsection (b).

(b) In any uncontested matter where no aspect of the matter is in dispute, in a pendente lite family relations matter whether contested or uncontested, or in any dismissal under Section 14-3, the oral or written decision as provided in subsection (a) is not required, except as provided in subsection (c). The clerk of the trial court shall, however, promptly notify the trial judge of the filing of the appeal.

(c) Within twenty days from the filing of an appeal from a contested pendente lite order or from a dismissal under Section 14-3 in which an oral or written decision has not been made pursuant to subsection (b), each party to the appeal shall file a brief with the trial court discussing the legal and factual issues in the matter. Within twenty days after the briefs have been filed by the parties, the judicial authority shall file a written memorandum of decision stating the factual basis for its decision on the issues in the matter and its conclusion as to each claim of law raised by the parties.

(P.B. 1978-1997, Sec. 334A.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 6-2. Judgment Files; Captions and Contents

The name and residence of every party to the action, at the date of judgment, must be given in the caption of every judgment file. In the captions of pleas, answers, etc., the parties may be described as John Doe v. Richard Roe et al., but this will not be sufficient in a judgment file, which must give all the data necessary for use in drawing any execution that may be necessary. All judgment files in actions for dissolution of marriage or civil union, legal separation and annulment shall state the date and place, including the city or town, of the marriage and the jurisdictional facts as found by the judicial authority upon the hearing.

(P.B. 1978-1997, Sec. 336.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 6-3. —Preparation; When; By Whom; Filing

(a) Judgment files in civil, criminal, family and juvenile cases shall be prepared when: (1) an appeal is taken; (2) a party requests in writing that the judgment be incorporated into a judgment file; (3) a judgment has been entered involving the granting of a dissolution of marriage or civil union, a legal separation, an annulment, injunctive relief, or title to property (including actions to quiet title but excluding actions of foreclosure), except in those instances where judgment is entered in such cases pursuant to Section 14-3 and no appeal has been taken from the judicial authority's judgment; (4) a judgment has been entered in a

juvenile matter involving allegations that a child has been neglected, abused, or uncared for, or involving termination of parental rights or commitment of a child from a family with service needs; (5) in criminal cases, sentence review is requested; or (6) ordered by the judicial authority.

(b) Unless otherwise ordered by the judicial authority, the judgment file in juvenile cases shall be prepared by the clerk and in all other cases, in the clerk's discretion, by counsel or the clerk. As to judgments of foreclosure, the clerk's office shall prepare a certificate of judgment in accordance with a form prescribed by the chief court administrator only when requested in the event of a redemption. In those cases in which a plaintiff has secured a judgment of foreclosure under authority of General Statutes § 49-17, when requested, the clerk shall prepare a decree of foreclosure in accordance with a form prescribed by the chief court administrator.

(c) Judgment files in family cases shall be filed within sixty days of judgment.

(P.B. 1978-1997, Sec. 337.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 6-4. —Signing of Judgment File

(a) Except as hereinafter provided, the judgment file, where it is necessary that it be prepared pursuant to Section 6-3, shall be signed by the clerk or assistant clerk unless otherwise ordered by the judicial authority.

(b) In all actions involving dissolution of marriage or civil union where counsel have appeared for both the plaintiff and the defendant, unless the judicial authority shall order otherwise, counsel for the parties shall endorse their approval of the judgment file immediately below the line for the subscribing authority in the following words: "I hereby certify that the foregoing judgment file conforms to the judgment entered by the court"; the clerk or assistant clerk, after ascertaining that the terms of the judgment have been correctly incorporated into the judgment file, may sign any judgment file so endorsed.

(c) In those cases in which there is no provision in this section for a clerk to sign a judgment file and in which a case has been tried and judgment has been directed in open court or by memorandum of decision and the trial judge shall die or become incapacitated before the judgment file is signed, any judge holding such court may examine the docket and file and, if it appears therefrom that the issues have been definitely decided and that the only thing remaining to be done is the signing of the judgment file, the judgment file may be drawn up by that judge or under that judge's direction and signed by him or her.

(d) Whenever a clerk or assistant clerk signs a judgment file, the signer's name shall be legibly typed or printed beneath such signature.

(P.B. 1978-1997, Sec. 338.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 6-5. —Notation of Satisfaction

When the judgment is satisfied in a civil action, the party recovering the judgment shall file written notice thereof with the clerk, who shall endorse judgment satisfied on the judgment file, if there is one, and make a similar notation on the file and docket sheet, giving the name of the party and the date. An execution returned fully satisfied shall be deemed a satisfaction of judgment and the notice required in this section shall not be filed. The judicial authority may, upon motion, make a determination that the judgment has been satisfied.

(P.B. 1978-1997, Sec. 339.) (Amended June 25, 2001, to take effect Jan. 1, 2002; amended June 30, 2003, to take effect Jan. 1, 2004.)

CHAPTER 7

CLERKS; FILES AND RECORDS

Sec.
7-1. Dockets; Clerk's Records
7-2. General Duties of Clerk
7-3. Financial Accounts
7-4. Daybook
7-4A. Identification of Cases
7-4B. Motion To File Record under Seal
7-4C. Lodging a Record
7-5. Notice To Attorneys and Self-Represented Parties
7-6. Filing of Papers
7-7. Custody of Files
7-8. Lost File or Pleading
7-9. Completing Records
7-10. Retention and Destruction of Files and Records; Withdrawals, Dismissals, Satisfactions of Judgment
7-11. —Judgments on the Merits—Stripping and Retention
7-12. —Actions Affecting the Title to Land
7-13. —Criminal/Motor Vehicle Files and Records
7-14. —Reports from Adult Probation and Family Division
7-15. —Retention Ordered by Chief Court Administrator; Transfer to State Library
7-16. —Motion To Prevent Destruction of File
7-17. Clerks' Offices
7-18. Hospital, Psychiatric and Medical Records
7-19. Issuing Subpoenas for Witnesses on Behalf of Self-Represented Litigants
7-20. Records of Short Calendar Matters
7-21. Removing Exhibits and Other Papers

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 7-1. Dockets; Clerk's Records

The clerk shall keep a record of all pending cases, including applications and petitions made to the court, together with a record of each paper filed and order made or judgment rendered therein, with the date of such filing, making or rendition. Duplicates of these records shall be kept with the original file in the case.

(P.B. 1978-1997, Sec. 250.)

Sec. 7-2. General Duties of Clerk

The clerk at each court location shall receive files, processes and documents, make records of all proceedings required to be recorded, have the custody of the files and records of the court location except those sent to the records center, make and certify true copies of the files and records at the court location of which each is the clerk, make and keep dockets of causes therein, issue executions on judgments and perform all other duties imposed on such clerks by law. Each such clerk shall collect and receive all fines and forfeitures imposed or decreed by the court, including fines paid after commitment. (See General Statutes § 51-52 and annotations.)

(P.B. 1978-1997, Sec. 395.)

Sec. 7-3. Financial Accounts

The clerk shall make and keep adequate accounts showing all receipts and disbursements. Records of such accounts shall be retained for such period as determined by the chief court administrator.

(P.B. 1978-1997, Sec. 396.)

Sec. 7-4. Daybook

The clerk shall keep daybooks in which to enter each case on the date upon which the matter is filed on a docket of the court location. Each entry shall state the first named plaintiff and the first named defendant, unless otherwise prohibited by statute or ordered by the judicial authority, the date of filing and the number assigned to the case. Daybooks shall be retained for a period determined by the chief court administrator.

(P.B. 1978-1997, Sec. 397.)

Sec. 7-4A. Identification of Cases

Except as otherwise required by statute, every case filed in the Superior Court shall be identified as existing in the records of the court by docket number and by the names of the parties, and this information shall be available to the public.

(Adopted May 14, 2003, to take effect July 1, 2003.)

COMMENTARY—2003: In all cases brought, the records of the clerk's office shall reflect a docket number and names of the parties involved. This information shall be available to any member of the public who shall request such information. The names of the parties reflected in the records of the clerk's office shall reflect the true identity of the parties unless permission has been granted for use of a pseudonym pursuant to Section 11-20A. If a motion for use of a pseudonym is granted, then the records of the clerk's office shall reflect that pseudonym.

Sec. 7-4B. Motion To File Record under Seal

(a) As used in this section, "record" means any affidavit, document, or other material.

(b) A party filing a motion requesting that a record be filed under seal or that its disclosure be limited shall lodge the record with the court pursuant to Section 7-4C when the motion is filed, unless the judicial authority, for good cause shown, orders that the record need not be lodged.

The motion must be accompanied by an appropriate memorandum of law to justify the sealing or limited disclosure.

(c) If necessary to prevent disclosure, the motion, any objection thereto, and any supporting records must be filed in a public redacted version and lodged in a nonredacted version conditionally under seal.

(d) If the judicial authority denies the motion to seal or to limit disclosure, the clerk shall either (1) return the lodged record to the submitting party and shall not place it in the court file or (2) upon written request of the submitting party retain the record as a lodged record so that in the event the submitting party appeals the denial of the motion, the lodged record can be part of the record on appeal of the final judgment in the case. In the latter event or if the judicial authority grants the motion, the clerk shall follow the procedure set forth in Section 7-4C (e). If the lodged record is retained pursuant to (2) above, the clerk shall return it to the submitting party or destroy it upon the expiration of the appeal period if no appeal has been filed.

(Adopted May 14, 2003, to take effect July 1, 2003; amended June 21, 2004, to take effect Jan. 1, 2005.)

COMMENTARY—2003: Sections 7-4B and 7-4C are necessary to provide a uniform procedure for the filing of motions to seal records and the processing of such motions by the clerks. These rules are based on Rule 243.2 of the California Rules of Court.

HISTORY—2005: In 2005, the words "or limited disclosure" were added to the end of subsection (b).

COMMENTARY—2005: The above change made the rule internally consistent.

Sec. 7-4C. Lodging a Record

(a) A "lodged" record is a record that is temporarily placed or deposited with the court but not filed.

(b) A party who moves to file a record under seal or to limit its disclosure shall put the record in a manila envelope or other appropriate container, seal the envelope or container, and lodge it with the court.

(c) The party submitting the lodged record must affix to the envelope or container a cover sheet that contains the case caption and docket number, the words "Conditionally Under Seal," the name of the party submitting the record and a statement that the enclosed record is subject to a motion to file the record under seal.

(d) Upon receipt of a record lodged under this section, the clerk shall note on the affixed cover sheet the date of its receipt and shall retain but not file the record unless the court orders it filed.

(e) If the judicial authority grants the motion to seal the record or to limit its disclosure, the clerk shall prominently place on the envelope or container in bold letters the words **"Sealed by Order of the Court on (Date)"** or **"Disclosure Limited by Order of the Court on (Date),"** as appropriate, and shall affix to the envelope or container a copy of the court's order and the public redacted version of the motion. If the judicial authority denies the motion and the submitting party requests in writing that the record be retained as a lodged record, the clerk shall prominently place on the envelope or container in bold letters the words **"Motion Denied, Retain as Lodged Record"** and shall affix to the envelope or container a copy of the court's order and the public redacted version of the motion.

(Adopted May 14, 2003, to take effect July 1, 2003.)

Sec. 7-5. Notice To Attorneys and Self-Represented Parties

The clerk shall give notice, by mail or by electronic delivery, to the attorneys of record and self-represented parties unless otherwise provided by statute or these rules, of all judgments, nonsuits, defaults, decisions, orders and rulings unless made in their presence. The clerk shall record in the court file the date of the issuance of the notice.

(P.B. 1978-1997, Sec. 398.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 7-6. Filing of Papers

No document in any case shall be filed by the clerk unless it has been signed by counsel or a self-represented party and contains the title of the case to which it belongs, the docket number assigned to it by the clerk and the nature of the document. The document shall contain a certification of service in accordance with Sections 10-12 through 10-17, and, if required by Section 11-1, a proper order and order of notice if one or both are necessary.

(P.B. 1978-1997, Sec. 399.)

Sec. 7-7. Custody of Files

Clerks will not permit files, records, transcripts, or exhibits to be taken from their offices, except for use in the courtroom or upon order of a judicial authority. No person shall take any file from the custody of the clerk or from the courtroom without the express authority of a judicial authority or a clerk of the court and unless a proper receipt is given to the clerk on a form prescribed by the Office of the Chief Court Administrator.

(P.B. 1978-1997, Sec. 400.)

Sec. 7-8. Lost File or Pleading

If any file or pleading be mislaid, lost or destroyed the clerk may permit the original duplicate or a sworn copy to be substituted therefor in

the files, and such substitution shall be certified by the clerk thereon.

(P.B. 1978-1997, Sec. 402.)

Sec. 7-9. Completing Records

The clerk may, when so directed by a judicial authority, make up, amend and complete any imperfect or unfinished record in such manner as the judicial authority may direct. (See General Statutes § 51-52a (b).)

(P.B. 1978-1997, Sec. 403.)

Sec. 7-10. Retention and Destruction of Files and Records; Withdrawals, Dismissals, Satisfactions of Judgment

The files in all civil, family and juvenile actions, including summary process and small claims, which, before a final judgment has been rendered on the issues, have been terminated by the filing of a withdrawal or by a judgment of dismissal or nonsuit when the issues have not been resolved on the merits or upon motion by any party or the court, or in which judgment for money damages only has been rendered and a full satisfaction of such judgment has been filed, may be destroyed upon the expiration of one year after such termination or the rendition of such judgment.

(P.B. 1978-1997, Sec. 403B.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 7-11. —Judgments on the Merits— Stripping and Retention

(a) With the exception of actions which affect the title to land and actions which have been disposed of pursuant to Section 7-10, the files in civil, family and juvenile actions in which judgment has been rendered may be stripped and destroyed pursuant to the schedule set forth in subsection (d), except that requests relating to discovery, responses and objections thereto may be stripped after the expiration of the appeal period.

(b) When a file is to be stripped, all papers in the file shall be destroyed except:

(1) The complaint, including any amendment thereto, substituted complaint or amended complaint;

(2) All orders of notice, appearances and officers' returns;

(3) All military or other affidavits;

(4) Any cross complaint, third-party complaint, or amendment thereto;

(5) All responsive pleadings;

(6) Any memorandum of decision;

(7) The judgment file or notation of the entry of judgment, and all modifications of judgment;

(8) All executions issued and returned.

(c) Upon the expiration of the stripping date, or at any time if facilities are not available for local retention, the file in any action set forth in subsection (d) may be transferred to the records center or other proper designated storage area, where it shall be retained for the balance of the retention period. Files in actions concerning dissolution of marriage or civil union, legal separation, or annulment may, upon agreement with officials of the state library, be transferred to the state library at the expiration of their retention period.

(d) The following is a schedule which sets forth when a file may be stripped and the length of time the file shall be retained. The time periods indicated herein shall run from the date judgment is rendered, except receivership actions or actions for injunctive relief, which shall run from the date of the termination of the receivership or injunction.

	Type of Case	*Stripping Date*	*Retention Date*
(1)	Administrative appeals		3 years
(2)	Contracts (where money damages are not awarded)	1 year	20 years
(3)	Eminent domain (except as provided in Section 7-12)		10 years
(4)	Family		
	–Dissolution of marriage or civil union, legal separation, annulment and change of name	5 years	75 years
	–Delinquency		Until Subject is 25 years of age
	–Family with service needs		Until Subject is 25 years of age
	–Termination of parental rights		Permanent
	–Neglect and uncared for		75 years
	–Emancipation of minor		5 years
	–Orders in relief from physical abuse (General Statutes § 46b-15)		5 years
	–Other		75 years
(5)	Family support magistrate matters		75 years
	–Uniform Reciprocal Enforcement of Support		75 years
	–Uniform Interstate Family Support Act		75 years
(6)	Landlord Tenant		
	–Summary process		3 years
	–Housing code enforcement (General Statutes § 47a-14h)		5 years
	–Contracts/Leases (where money damages are not awarded)	1 year	20 years
	–Money damages (except where a satisfaction of judgment has been filed)	1 year	26 years
(7)	Miscellaneous		
	–Bar discipline		50 years
	–Civil Protection Order (General Statutes § 46b-16a)		5 years
	–Money damages (except where a satisfaction of judgment has been filed)	1 year	26 years

–Mandamus, habeas corpus, arbitration, petition for new trial, –action for an accounting, interpleader		10 years
–Injunctive relief (where no other relief is requested)		5 years
(8) Property (except as provided in Section 7-12)	5 years	26 years
(9) Receivership		10 years
(10) Small claims		15 years
(11) Torts (except as noted below) –Money damages if the judgment was rendered in an action to recover damages for personal injury caused by sexual assault where the party at fault was convicted under General Statutes § 53a-70 or § 53a-70a (except where a satisfaction of judgment has been filed)	1 year	26 years Permanent
(12) Wills and estates		10 years
(13) Asset forfeiture (General Statutes § 54-36h)		10 years
(14) Alcohol and drug commitment (General Statutes § 17a-685)		10 years
(15) All other civil actions (except as provided in Section 7-12)		75 years

(P.B. 1978-1997, Sec. 403C.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 28, 1999, to take effect Jan. 1, 2000; amended June 30, 2003, to take effect Jan. 1, 2004; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 7-12. —Actions Affecting the Title to Land

Files in any actions concerning title to land which are terminated by a final judgment affecting any right, title or interest in real property shall be retained for forty years in the office of the clerk of the court location in which the judgment is rendered and thereafter may be transferred to the state library pursuant to Section 7-15 (b) or to the Judicial Branch record center.

(P.B. 1978-1997, Sec. 403D.)

Sec. 7-13. —Criminal/Motor Vehicle Files and Records

(Amended June 29, 1998, to take effect Jan. 1, 1999.)

(a) Upon the disposition of any criminal case, except a case in which a felony or a capital felony conviction resulted, or any motor vehicle case, including any matter brought pursuant to the commission of an infraction or a violation, the file may be stripped of all papers except (1) the executed arrest warrant and original affidavit in support of probable cause, the misdemeanor/motor vehicle summons, prosecutorial summons or the complaint ticket, (2) the uniform arrest report, (3) the information or indictment and any substitute information, (4) a written plea of nolo contendere, (5) documents relating to programs for adjudication and treatment as a youthful offender, programs relating to family violence education, community service labor, accelerated pretrial rehabilitation, pretrial drug education, pretrial alcohol education and treatment, determination of competency to stand trial or suspension of prosecution or any other programs for adjudication or treatment which may be created from time to time, (6) any official receipts, (7) the judgment mittimus, (8) any written notices of rights, (9) orders regarding probation, (10) any exhibits on file, (11) any transcripts on file of proceedings held in the matter, and (12) the transaction sheet.

(b) Unless otherwise ordered by the court, the copy of the application for a search warrant and affidavits filed pursuant to General Statutes § 54-33c shall be destroyed upon the expiration of three years from the filing of the copy of the application and affidavits with the clerk.

(c) Except as otherwise provided, the papers stripped from the court file may be destroyed upon the expiration of ninety days from the date of disposition of the case.

(d) Upon the disposition of any criminal or motor vehicle case in which the defendant has been released pursuant to a bond, the clerk shall remove the bond form from the file and maintain it in the clerk's office for such periods as determined by the chief court administrator.

(e) Upon the disposition of any criminal or motor vehicle case in which property is seized, whether pursuant to a search warrant, an arrest, an in rem proceeding or otherwise, the clerk shall remove the executed search warrant, if any, papers relating to any in rem proceedings, if any, and the inventory of the seized property from the court file and maintain them in the clerk's office during the pendency of proceedings to dispose of the property and for such further periods as determined by the chief court administrator.

(f) In cases in which there has been neither a conviction nor the payment of a fine on any charge, the file shall be destroyed upon the expiration of three years from the date of disposition.

(g) In cases in which a fine has been paid pursuant to an infraction or a violation, the file shall be destroyed upon the expiration of five years from the date of disposition.

(h) In cases in which there has been a conviction of a misdemeanor charge but not a conviction of a felony charge, the file shall be destroyed upon the expiration of ten years from the date of disposition.

(i) In cases in which there has been a conviction of a felony charge but not a conviction of a capital felony charge, the file, all exhibits and the transcripts of all proceedings held in the matter shall be destroyed upon the expiration of twenty years from the date of disposition or upon the expiration of the sentence, whichever is later.

(j) In cases in which there has been a conviction of a capital felony charge, the file, all exhibits and the transcripts of all proceedings held in the matter shall be destroyed upon the expiration of seventy-five years from such conviction.

(k) The file and records in any case in which an individual is adjudged a youthful offender shall be retained for ten years.

(*l*) The file in any case in which the disposition is not guilty by reason of mental disease or defect shall be retained for seventy-five years.

(m) Investigatory grand jury records shall be retained permanently.

(P.B. 1978-1997, Sec. 403E.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 30, 2003, to take effect Jan. 1, 2004; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 7-14. —Reports from Adult Probation and Family Division

(a) The Office of Adult Probation shall maintain one copy of each presentence investigation report for twenty-five years. Copies of such reports in the custody of the clerk pursuant to Section 43-8 may be destroyed upon the expiration of one year from the date of final disposition of the case.

(b) Except as provided in General Statutes § 45a-757, the family division of the Superior Court shall maintain one copy of each case study report prepared pursuant to Section 25-60 for two years beyond the youngest child's eighteenth birthday and copies of such reports in the custody of the clerk may be destroyed upon the expiration of one year from the date of final disposition of the case.

(P.B. 1978-1997, Sec. 403F.)

Sec. 7-15. —Retention Ordered by Chief Court Administrator; Transfer to State Library

(a) The chief court administrator may require that any files and records of the Judicial Branch, the retention of which is not otherwise provided for by rule or statute, be retained either for a specific period or permanently, and may authorize the transfer of any such files and records to the records center or other proper facility for retention. Such files and records may be destroyed upon the expiration of the specific period required for their retention.

(b) Except where prohibited by rule or statute, any files and records of the Judicial Branch may, with the written consent of the chief court administrator and upon agreement with the appropriate officials of the state library, be transferred to the state library for retention.

(P.B. 1978-1997, Sec. 403G.)

Sec. 7-16. —Motion To Prevent Destruction of File

Upon the motion of any interested party, the judicial authority may, for good cause shown, exempt from destruction for a specified period the file in any case which has gone to judgment for reasons other than dismissal.

(P.B. 1978-1997, Sec. 403H.)

Sec. 7-17. Clerks' Offices

The chief court administrator shall, from time to time, determine for each clerk's office the hours that it shall be open, provided that each clerk's office shall be open at least five days a week except during weeks which include a legal holiday. The chief court administrator may increase the hours of the clerk's office for the purpose of the acceptance of bonds or for other limited purposes for one or more court locations. If the last day for filing any matter in the clerk's office falls on a day on which such office is not open as thus provided or is closed pursuant to authorization by the administrative judge in consultation with the chief court administrator or the chief court administrator due to the existence of special circumstances, then the last day for filing shall be the next business day upon which such office is open. Except as provided below, a document that is electronically received by the clerk's office for filing after 5 p.m. on a day on which the clerk's office is open or that is electronically received by the clerk's office for filing at any time on a day on which the clerk's office is closed, shall be deemed filed on the next business day upon which such office is open. If a party is unable to electronically file a document because the court's electronic filing system is nonoperational for thirty consecutive minutes from 9 a.m. to 3 p.m. or for any period of time from 3 to 5 p.m. of the day on which the electronic filing is attempted, and such day is the last day for filing the document, the document shall be deemed to be timely filed if received by the clerk's office on the next business day the electronic system is operational.

(P.B. 1978-1997, Sec. 405.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 21, 2004, to take effect July 13, 2004; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 24, 2016, to take effect July 12, 2016; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the fourth sentence, "o'clock in the afternoon" was deleted and replaced with "p.m." Additionally,

prior to 2026, the fifth sentence read: "If a party is unable to electronically file a document because the court's electronic filing system is nonoperational for thirty consecutive minutes from 9 o'clock in the forenoon to 3 o'clock in the afternoon or for any period of time from 3 o'clock to 5 o'clock in the afternoon of the day on which the electronic filing is attempted, and such day is the last day for filing the document, the document shall be deemed to be timely filed if received by the clerk's office on the next business day the electronic system is operational."

COMMENTARY—2026: The changes to this section were made to update the use of time conventions and to make such use consistent with the other rules.

Sec. 7-18. Hospital, Psychiatric and Medical Records

Hospital, psychiatric and medical records shall not be filed with the clerk unless such records are submitted in a sealed envelope clearly identified with the case caption, the subject's name and the name of the attorney or self-represented party pursuant to Section 7-19 subpoenaing the same. Such records shall be opened only pursuant to court order.

(P.B. 1978-1997, Secs. 397B, 1011E.) (Amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 7-19. Issuing Subpoenas for Witnesses on Behalf of Self-Represented Litigants

(a) Self-represented litigants seeking to compel the attendance of necessary witnesses in connection with the hearing of any matter shall file an application to have the clerk of the court issue subpoenas for that purpose. The application shall include a summary of the expected testimony of each proposed witness so that the court may determine the relevance of the testimony. The clerk, after verifying the scheduling of the matter, shall present the application to the judge before whom the matter is scheduled for hearing, or the administrative judge or any judge designated by the administrative judge if the matter has not been scheduled before a specific judge, which judge shall review the application.

(b) The reviewing judge may act on the application ex parte and may direct or deny the issuance of subpoenas as such judge deems warranted under the circumstances, keeping in mind the nature of the scheduled hearing and future opportunities for examination of witnesses, as may be appropriate. If an application is granted ex parte, in whole or in part, any party may file a motion for protective order or motion to quash, as appropriate. If an application is denied ex parte, in whole or in part, the applicant may request a hearing which shall be scheduled by the court. The reviewing judge may order that an application acted upon ex parte be placed in the official court file, whether or not a hearing is requested.

(c) If the reviewing judge does not act on the application ex parte, such judge shall direct that the application be placed in the official court file to allow any party to file an objection, which objection will be filed by a date to be set by the reviewing judge. Having provided an opportunity for any party to object, the reviewing judge may direct or deny the issuance of subpoenas as such judge deems warranted under the circumstances, keeping in mind the nature of the scheduled hearing and future opportunities for examination of witnesses, as may be appropriate.

(d) Any party or nonparty to whom a subpoena is directed pursuant to this rule may file a motion to quash or a motion for protective order as appropriate.

(P.B. 1978-1997, Sec. 395A.) (Amended June 12, 2015, to take effect Jan. 1, 2016; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 7-20. Records of Short Calendar Matters

The clerk shall keep a record of all matters assigned for hearing on the civil short calendar together with the disposition made of them. Such records shall be retained for such period and in such format as determined by the chief court administrator.

(P.B. 1978-1997, Sec. 397A.) (Amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 7-21. Removing Exhibits and Other Papers

Unless otherwise ordered by the judicial authority, it is the duty of attorneys and self-represented parties, upon the final determination of any civil case, to remove from the courthouse all exhibits that have been entered into evidence, briefs, depositions, and memoranda and, if not so removed, such items may be destroyed by the clerk four months after the final determination of the case, without notice.

(P.B. 1978-1997, Sec. 401.)

SUPERIOR COURT—PROCEDURE IN CIVIL MATTERS

CHAPTER 8

COMMENCEMENT OF ACTION

Sec.
8-1. Process
8-2. Waiver of Court Fees and Costs
8-3. Bond for Prosecution [Repealed]
8-3A. Bond for Prosecution or Recognizance
8-4. Certification of Financial Responsibility [Repealed]
8-5. Remedy for Failure To Give Bond [Repealed]
8-6. Bond Ordered by Judicial Authority [Repealed]
8-7. Request To Furnish Bond [Repealed]
8-8. Member of Community Defending To Give Bond [Repealed]
8-9. Bond by Nonresident in Realty Action [Repealed]
8-10. Surety Company Bond Acceptable
8-11. Action on Probate Bond; Endorsement of Writ [Repealed]
8-12. Renewal of Bond

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 8-1. Process

(Amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) Process in civil actions shall be a writ of summons or attachment, describing the parties, the court to which it is returnable and the time and place of appearance, and shall be accompanied by the plaintiff's complaint. Such writ may run into any judicial district or geographical area and shall be signed by a Commissioner of the Superior Court or a judge or clerk of the court to which it is returnable. Except in those actions and proceedings indicated below, the writ of summons shall be on a form substantially in compliance with the following Judicial Branch forms prescribed by the chief court administrator: Form JD-FM-3 in family actions, Form JD-HM-32 in summary process actions, and Form JD-CV-1 in other civil actions, as such forms shall from time to time be amended. Any person proceeding without the assistance of counsel shall sign the complaint and present the complaint and proposed writ of summons to the clerk; the clerk shall review the proposed writ of summons and, unless it is defective as to form, shall sign it.

(b) For administrative appeals brought pursuant to General Statutes § 4-183 et seq., process and service of process shall be made in accordance with General Statutes § 4-183 (c) and Practice Book Section 14-7A (a).

(c) Form JD-FM-3, Form JD-HM-32, and Form JD-CV-1 shall not be used in the following actions and proceedings:

(1) Applications for change of name.

(2) Proceedings pertaining to arbitration.

(3) Probate appeals.

(4) Administrative appeals.

(5) Verified petitions to adjudicate parentage.

(6) Verified petitions for support orders.

(7) Any actions or proceedings in which an attachment, garnishment or replevy is sought.

(8) Applications for custody.

(9) Applications for visitation.

(d) A plaintiff may, before service on a defendant, alter printed forms JD-FM-3, JD-HM-32, and JD-CV-1 in order to make them conform to any relevant amendments to the rules of practice or statutes.

(P.B. 1978-1997, Sec. 49.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 8-2. Waiver of Court Fees and Costs

(a) Prior to the commencement of an action, or at any time during its pendency, a party may file with the clerk of the court in which the action is pending, or in which the party intends to return a writ, summons and complaint, an application for waiver of fees payable to the court and for payment by the state of the costs of service of process. The application shall set forth the facts which are the basis of the claim for waiver and for payment by the state of any costs of service of process; a statement of the applicant's current income, expenses, assets and liabilities; pertinent records of employment, gross earnings, gross wages and all other income; and the specific fees and costs of service of process sought to be waived or paid by the state and the amount of each. The application and any representations shall be supported by an affidavit of the applicant to the truth of the facts recited.

(b) The clerk with whom such an application is filed shall refer it to the court of which he or she is clerk. If the court finds that a party is indigent and unable to pay a fee or fees payable to the court or to pay the cost of service of process, the

court shall waive such fee or fees and the cost of service of process shall be paid by the state.

(c) There shall be a rebuttable presumption that a person is indigent and unable to pay a fee or fees or the cost of service of process if (1) such person receives public assistance or (2) such person's income after taxes, mandatory wage deductions and child care expenses is 125 percent or less of the federal poverty level. For purposes of this subsection, "public assistance" includes, but is not limited to, state administered general assistance, temporary family assistance, aid to persons who are elderly, persons who are blind or visually impaired or persons with disabilities, food stamps and supplemental security income.

(d) Nothing in this section shall preclude the court from (1) finding that a person whose income does not meet the criteria of subsection (c) of this section is indigent and unable to pay a fee or fees or the cost of service of process, or (2) denying an application for the waiver of the payment of a fee or fees or the cost of service of process when the court finds that (A) the applicant has repeatedly filed actions with respect to the same or similar matters, (B) such filings establish an extended pattern of frivolous filings that have been without merit, (C) the application sought is in connection with an action before the court that is consistent with the applicant's previous pattern of frivolous filings, and (D) the granting of such application would constitute a flagrant misuse of Judicial Branch resources.

If an application for the waiver of the payment of a fee or fees or the cost of service of process is denied, the court clerk shall, upon the request of the applicant, schedule a hearing on the application. Nothing in this section shall affect the inherent authority of the court to manage its docket.

(P.B. 1978-1997, Sec. 50.) (Amended June 21, 2010, to take effect Jan. 1, 2011; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 8-3. Bond for Prosecution

[Repealed as of Jan. 1, 2017.]

Sec. 8-3A. Bond for Prosecution or Recognizance

No bond for prosecution or recognizance for prosecution shall be required of a party in any civil action unless ordered by the judicial authority upon motion and for good cause shown. If the judicial authority finds that a party is not able to pay the costs of the action, the judicial authority shall order the party to give a sufficient bond to pay taxable costs. In determining the sufficiency of the bond to be given, the judicial authority shall consider only the taxable costs for which a party may be responsible under General Statutes § 52-257, except that in no event shall the judicial authority consider the fees or charges of expert witnesses notwithstanding that such fees or charges may be allowable under that section. Any party failing to comply with such order may be nonsuited or defaulted, as the case may be.

(Adopted June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 8-4. Certification of Financial Responsibility

[Repealed as of Jan. 1, 2017.]

Sec. 8-5. Remedy for Failure To Give Bond

[Repealed as of Jan. 1, 2017.]

Sec. 8-6. Bond Ordered by Judicial Authority

[Repealed as of Jan. 1, 2017.]

Sec. 8-7. Request To Furnish Bond

[Repealed as of Jan. 1, 2017.]

Sec. 8-8. Member of Community Defending To Give Bond

[Repealed as of Jan. 1, 2017.]

Sec. 8-9. Bond by Nonresident in Realty Action

[Repealed as of Jan. 1, 2017.]

Sec. 8-10. Surety Company Bond Acceptable

Any surety company chartered by this state or authorized to do business herein may be accepted as surety or recognizor upon any bond or recognizance required by law in any civil action or in any proceeding instituted under the statutes of this state and, in any case where a bond or recognizance is required by law, the bond of such company, duly executed and conditioned for the performance of the obligations expressed in such bond or recognizance, may be accepted by the person having authority thereto, who shall file it with the court where the action or proceeding is returnable or pending. (See General Statutes § 52-189 and annotations.)

(P.B. 1978-1997, Sec. 58.) (Amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 8-11. Action on Probate Bond; Endorsement of Writ

[Repealed as of Jan. 1, 2017.]

Sec. 8-12. Renewal of Bond

Bonds given in the course of any judicial proceedings may, for reasonable cause and upon due notice, be renewed, or other bonds taken in lieu of them, by the judicial authority.

(P.B. 1978-1997, Sec. 60.) (Amended June 24, 2016, to take effect Jan. 1, 2017.)

CHAPTER 9

PARTIES

Sec.
9-1. Continuance for Absent or Nonresident Defendant
9-2. Defense by Garnishee; Continuance
9-3. Joinder of Parties and Actions; Interested Persons as Plaintiffs
9-4. —Joinder of Plaintiffs in One Action
9-5. —Consolidation of Actions
9-6. —Interested Persons as Defendants
9-7. Class Actions; Prerequisites to Class Actions
9-8. —Class Actions Maintainable
9-9. —Procedure for Class Certification and Management of Class
9-10. —Orders To Ensure Adequate Representation
9-11. Executor, Administrator or Trustee of Express Trust
9-12. Personal Representatives of Cocontractor
9-13. Persons Liable on Same Instrument
9-14. Defendants Alternately Liable
9-15. Assignee of Part Interest
9-16. Assignment Pending Suit
9-17. Unsatisfied Judgment against One Defendant
9-18. Addition or Substitution of Parties; Additional Parties Summoned in by Court
9-19. —Nonjoinder and Misjoinder of Parties
9-20. —Substituted Plaintiff
9-21. —Counterclaim; Third Parties
9-22. —Motion To Cite in New Parties
9-23. Suit by Real Party in Interest
9-24. Change of Name by Minor Child
9-25. Action on Bond to Municipal Officer

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 9-1. Continuance for Absent or Nonresident Defendant

Every civil action in which the defendant is an inhabitant of this state but is absent therefrom at the commencement of the suit and continues to be absent until after the return day, without having entered any appearance therein, shall be continued or postponed for thirty days by order of the judicial authority. If the defendant does not then appear and no special reason is shown for further delay, judgment by default may be rendered against the defendant. If the defendant is not an inhabitant or resident of this state at the commencement of the action and does not appear therein, the judicial authority shall continue or postpone it for a period of three months and may, if it deems further notice advisable, direct such further notice of the pendency of the action to be given to the defendant by publication in some newspaper, or otherwise, as it deems expedient, or may authorize any person empowered to serve process by the laws of the foreign jurisdiction in which such defendant resides to serve upon such defendant a copy of the summons and complaint and of the order of notice and such person shall make affidavit of his or her doings thereon on the original order of notice. If, upon the expiration of such three months, the defendant does not then appear and no special reason is shown for further delay, judgment may be rendered against such defendant by default. Upon the expiration of any such continuance, it shall be presumed prima facie that no special reason for further delay exists. In actions of foreclosure, including prayers for relief incident thereto and part thereof, judgment may then be rendered upon the plaintiff's motion for judgment of foreclosure. The provisions of this section shall not apply in the case of any civil action brought under and pursuant to General Statutes § 47-33 or § 52-69 and no continuance or postponement of any such action or additional notice of the pendency thereof shall be required unless the judicial authority so orders. (See General Statutes § 52-87 and annotations.)

(P.B. 1978-1997, Sec. 80.)

Sec. 9-2. Defense by Garnishee; Continuance

In any action by foreign attachment, if the defendant does not appear, any garnishee may be admitted to defend his or her principal; but, if the defendant is not in this state and does not appear, personally or by attorney, and the garnishee does not appear to defend, the action shall be continued, postponed or adjourned for a period of three months from the return day of the writ. Any continuance, postponement or adjournment, prescribed in this or Section 9-1, shall not be granted or, if granted, shall terminate whenever the judicial authority finds that the absent or nonresident defendant, or authorized agent or attorney, has received actual notice of the pendency of the case at least twelve days prior to such finding, and thereupon, unless some special reason is shown for further delay, the cause may be brought to trial. (See General Statutes § 52-88 and annotations.)

(P.B. 1978-1997, Sec. 81.)

Sec. 9-3. Joinder of Parties and Actions; Interested Persons as Plaintiffs

All persons having an interest in the subject of the action, and in obtaining the judgment demanded, may be joined as plaintiffs, except as otherwise expressly provided; and, if one who ought to be joined as plaintiff declines to join, such person may be made a defendant, the reason therefor being stated in the complaint. (See General Statutes § 52-101 and annotations.)

(P.B. 1978-1997, Sec. 83.)

Sec. 9-4. —Joinder of Plaintiffs in One Action

All persons may be joined in one action as plaintiffs in whom any right of relief in respect to or arising out of the same transaction or series of transactions is alleged to exist either jointly or severally when, if such persons brought separate actions, any common question of law or fact would arise; provided, if, upon the motion of any party, it would appear that such joinder might embarrass or delay the trial of the action, the judicial authority may order separate trials, or make such other order as may be expedient, and judgment may be given for such one or more of the plaintiffs as may be found to be entitled to relief, for the relief to which he, she or they may be entitled; and there shall be but one entry fee, one jury fee, if claimed for jury trial, and such other costs as may by rule be prescribed.

(P.B. 1978-1997, Sec. 84.)

Sec. 9-5. —Consolidation of Actions

(a) Whenever there are two or more separate actions which should be tried together, the judicial authority may, upon the motion of any party or upon its own motion, order that the actions be consolidated for trial.

(b) If a party seeks consolidation, the motion to consolidate shall be filed in all of the court files proposed to be consolidated, shall include the docket number and judicial district of each of the cases, and shall contain a certification specifically stating that the motion was served in accordance with Sections 10-12 through 10-17 on all parties to such actions. The certification shall specifically recite the name and address of each counsel and self-represented party served, the date of such service and the name and docket number of the case in which that person has appeared. The moving party shall give reasonable notice to all such parties of the date on which the motion will be heard on short calendar. The judicial authority shall not consider the motion unless it is satisfied that such notice was given.

(c) The court files in any actions consolidated pursuant to this section shall be maintained as separate files and all documents submitted by counsel or the parties shall bear only the docket number and case title of the file in which it is to be filed.

(P.B. 1978-1997, Sec. 84A.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 9-6. —Interested Persons as Defendants

Any person may be made a defendant who has or claims an interest in the controversy, or any part thereof, adverse to the plaintiff, or whom it is necessary, for a complete determination or settlement of any question involved therein, to make a party. (See General Statutes § 52-102 and annotations.)

(P.B. 1978-1997, Sec. 85.)

Sec. 9-7. Class Actions; Prerequisites to Class Actions

One or more members of a class may sue or be sued as representative parties on behalf of all only if (1) the class is so numerous that joinder of all members is impracticable, (2) there are questions of law or fact common to the class, (3) the claims or defenses of the representative parties are typical of the claims or defenses of the class, and (4) the representative parties will fairly and adequately protect the interests of the class.

(P.B. 1978-1997, Sec. 87.)

Sec. 9-8. —Class Actions Maintainable

An action may be maintained as a class action if the prerequisites of Section 9-7 are satisfied, and in addition:

(1) the prosecution of separate actions by or against individual members of the class would create a risk of: (A) inconsistent or varying adjudications with respect to individual members of the class which would establish incompatible standards of conduct for the party opposing the class; or (B) adjudications with respect to individual members of the class which would, as a practical matter, be dispositive of the interests of the other members who are not parties to the adjudications or substantially impair or impede their ability to protect their interests; or

(2) the party opposing the class has acted or refused to act on grounds generally applicable to the class, thereby making appropriate final injunctive relief or corresponding declaratory relief with respect to the class as a whole; or

(3) the court finds that the questions of law or fact common to the members of the class predominate over any questions affecting only individual members and that a class action is superior to other available methods for the fair and efficient adjudication of the controversy. The matters pertinent to the findings include: (A) the interest of

members of the class in individually controlling the prosecution or defense of separate actions; (B) the extent and nature of any litigation concerning the controversy already commenced by or against members of the class; (C) the desirability or undesirability of concentrating the litigation of the claims in the particular forum; (D) the difficulties likely to be encountered in the management of class action.

(P.B. 1978-1997, Sec. 88.) (Amended June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 9-9. —Procedure for Class Certification and Management of Class

(Amended June 22, 2009, to take effect Jan. 1, 2010.)

(a) (1) (A) When a person sues or is sued as a representative of a class, the court must, at an early practicable time, determine by order whether to certify the action as a class action.

(B) An order certifying a class action must define the class and the class claims, issues or defenses, and must appoint class counsel.

(C) An order under Section 9-9 (a) (1) (A) may be altered or amended before final judgment.

(2) (A) For any class certified under Section 9-8 (1) or (2), the court must direct notice to the class.

(B) For any class certified under Section 9-8 (3), the court must direct to class members the best notice practicable under the circumstances, including individual notice to all members who can be identified through reasonable effort. The notice must concisely and clearly state in plain, easily understood language:

(i) the nature of the action;

(ii) the definition of the class certified;

(iii) the class claims, issues or defenses;

(iv) that a class member may enter an appearance through counsel if the member so desires;

(v) that the court will exclude from the class any member who requests exclusion, stating when and how members may elect to be excluded; and

(vi) the binding effect of a class judgment on class members under Section 9-8 (3).

(3) The judgment in an action maintained as a class action under Section 9-8 (1) or (2), whether or not favorable to the class, shall include and describe those whom the court finds to be members of the class. The judgment in an action maintained as a class action under Section 9-8 (3), whether or not favorable to the class, shall include and specify or describe those to whom the notice provided in Section 9-9 (a) (2) (B) was directed, and who have not requested exclusion, and whom the court finds to be members of the class.

(4) When appropriate, (A) an action may be brought or maintained as a class action with respect to particular issues, or (B) a class may be divided into subclasses and each subclass treated as a class, and the provisions of Sections 9-7 and 9-8 shall then be construed and applied accordingly.

(b) In the conduct of actions to which Section 9-7 et seq. apply, the court may make appropriate orders:

(1) determining the course of proceedings or prescribing measures to prevent undue repetition or complication in the presentation of evidence or argument;

(2) requiring, for the protection of the members of the class or otherwise for the fair conduct of the action, that notice be given in such manner as the court may direct to some or all of the members of:

(A) any step in the action;

(B) the proposed extent of the judgment; or

(C) the opportunity of members to signify whether they consider the representation fair and adequate, to intervene and to present claims or defenses, or otherwise to come into the action;

(3) imposing conditions on the representative parties or on intervenors;

(4) requiring that the pleadings be amended to eliminate therefrom allegations as to representation of absent persons, and that the action proceed accordingly;

(5) dealing with similar procedural matters.

The orders may be altered or amended as may be desirable from time to time.

(c) (1) (A) The court must approve any settlement, withdrawal, or compromise of the claims, issues, or defense of a certified class. Court approval is not required for settlement, withdrawal or compromise of a claim in which a class has been alleged but no class has been certified.

(B) The court must direct notice in a reasonable manner to all class members who would be bound by a proposed settlement, withdrawal or compromise.

(C) The court may approve a settlement, withdrawal, or compromise that would bind class members only after a hearing and on finding that the settlement, withdrawal, or compromise is fair, reasonable, and adequate.

(2) The parties seeking approval of a settlement, withdrawal, or compromise of an action in which a class has been certified must file a statement identifying any agreement made in connection with the proposed settlement, withdrawal or compromise.

(3) In an action previously certified as a class action under Section 9-8 (3), the court may refuse to approve a settlement unless it affords a new opportunity to request exclusion to individual class members who had an earlier opportunity to request exclusion but did not do so.

(4) (A) Any class member may object to a proposed settlement, withdrawal or compromise that requires court approval under (c) (1) (A).

(B) An objection made under (c) (4) (A) may be withdrawn only with the court's approval.

(d) Unless a statute provides otherwise, a court that certifies a class must appoint class counsel. An attorney appointed to serve as class counsel must fairly and adequately represent the interests of the class.

(1) In appointing class counsel, the court must consider:

(A) the work counsel has done in identifying or investigating potential claims in the action;

(B) counsel's experience in handling class actions, other complex litigation, and claims of the type asserted in the action;

(C) counsel's knowledge of the applicable law; and

(D) the resources counsel will commit to representing the class.

(2) The court may:

(A) consider any other matter pertinent to counsel's ability to represent the interests of the class fairly and adequately;

(B) direct potential class counsel to provide information on any subject pertinent to the appointment and to propose terms for attorney's fees and nontaxable costs; and

(C) make further orders in connection with the appointment.

(e) The court may designate interim counsel to act on behalf of the putative class before determining whether to certify the action as a class action. When there is one applicant for appointment as class counsel, the court may appoint that applicant only if the applicant is adequate under subsection (d). If more than one adequate applicant seeks appointment as class counsel, the court must appoint the applicant best able to represent the interests of the class. The order appointing class counsel may include provisions about the award of attorney's fees or nontaxable costs under subsection (f).

(f) In an action certified as a class action, the court may award reasonable attorney's fees and nontaxable costs authorized by law or by consent of the parties as follows:

(1) a request for an award of attorney's fees and nontaxable costs must be made by motion subject to the provisions of this subdivision, at a time set by the court. Notice of the motion must be served on all parties and, for motions by class counsel, directed to class members in a reasonable manner.

(2) A class member or a party from whom payment is sought, may object to the motion.

(3) The court may hold a hearing and must find the facts and state its conclusions of law on such motion.

(g) (1) "Residual funds" are funds that remain after the payment of approved class member claims, expenses, litigation costs, attorney's fees, and other court-approved disbursements made to implement the relief granted. Nothing in this rule is intended to limit the parties to a class action from recommending, or the trial court from approving, a settlement that does not create residual funds.

(2) Any order, judgment or approved settlement in a class action that establishes a process for identifying and compensating members of the class may designate the recipient or recipients of any such residual funds that may remain after the claims payment process has been completed. In the absence of such designation, the residual funds shall be disbursed to the organization administering the program for the use of interest on lawyers' client funds pursuant to General Statutes § 51-81c for the purpose of funding those organizations that provide legal services for the poor in Connecticut.

(P.B. 1978-1997, Sec. 89.) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 9-10. —Orders To Ensure Adequate Representation

The judicial authority at any stage of an action under this section may require such security and impose such terms as shall fairly and adequately protect the interests of the class in whose behalf the action is brought or defended. It may order that notice be given, in such manner as it may direct, of the pendency of the action, of a proposed settlement, of entry of judgment, or of any other proceedings in the action, including notice to the absent persons that they may come in and present claims and defenses if they so desire. Whenever the representation appears to the judicial authority inadequate fairly to protect the interests of absent parties who may be bound by the judgment, it may at any time prior to judgment order an amendment of the pleadings, eliminating therefrom all reference to representation of absent persons, and it shall order entry of judgment in such form as to affect only the parties to the action and those adequately represented.

(P.B. 1978-1997, Sec. 90.)

Sec. 9-11. Executor, Administrator or Trustee of Express Trust

An executor, administrator, or trustee of an express trust may sue or be sued without joining the persons represented by him or her and beneficially interested in the suit. The term "trustee of an express trust" shall be construed to include any person with whom, or in whose name, a contract is made for the benefit of another. (See General Statutes § 52-106 and annotations.)

(P.B. 1978-1997, Sec. 91.)

Sec. 9-12. Personal Representatives of Co-contractor

In suits on a joint contract, whether partnership or otherwise, the personal representatives of a deceased cocontractor may join, as plaintiffs, and be joined, as defendants, with the survivor; provided, where the estate of the decedent is in settlement in this state as an insolvent estate, his or her personal representatives cannot be joined as defendants. (See General Statutes § 52-78.)

(P.B. 1978-1997, Sec. 92.)

Sec. 9-13. Persons Liable on Same Instrument

Persons severally and immediately liable on the same obligation or instrument, including parties to bills of exchange and promissory notes, and endorsers, guarantors, and sureties, whether on the same or by separate instruments, may all, or any of them, be joined as defendants, and a joint judgment may be rendered against those so joined.

(P.B. 1978-1997, Sec. 93.)

Sec. 9-14. Defendants Alternately Liable

Persons may be joined as defendants against whom the right to relief is alleged to exist in the alternative, although a right to relief against one may be inconsistent with a right to relief against the other.

(P.B. 1978-1997, Sec. 94.)

Sec. 9-15. Assignee of Part Interest

If a part interest in a contract obligation be assigned, the assignor retaining the remaining interest and the assignee may join as plaintiffs.

(P.B. 1978-1997, Sec. 95.)

Sec. 9-16. Assignment Pending Suit

If, pending the action, the plaintiff assigns the cause of action, the assignee, upon written motion, may either be joined as a coplaintiff or be substituted as a sole plaintiff, as the judicial authority may order; provided that it shall in no manner prejudice the defense of the action as it stood before such change of parties.

(P.B. 1978-1997, Sec. 96.)

Sec. 9-17. Unsatisfied Judgment against One Defendant

Where the plaintiff may at his or her option join several persons as defendants, or sue them seprately, judgment without satisfaction against one shall not bar a suit against another.

(P.B. 1978-1997, Sec. 97.)

Sec. 9-18. Addition or Substitution of Parties; Additional Parties Summoned in by Court

The judicial authority may determine the controversy as between the parties before it, if it can do so without prejudice to the rights of others; but, if a complete determination cannot be had without the presence of other parties, the judicial authority may direct that they be brought in. If a person not a party has an interest or title which the judgment will affect, the judicial authority, on its motion, shall direct that person to be made a party. (See General Statutes § 52-107 and annotations.)

(P.B. 1978-1997, Sec. 99.)

Sec. 9-19. —Nonjoinder and Misjoinder of Parties

Except as provided in Sections 10-44 and 11-3 no action shall be defeated by the nonjoinder or misjoinder of parties. New parties may be added and summoned in, and parties misjoined may be dropped, by order of the judicial authority, at any stage of the cause, as it deems the interests of justice require. (See General Statutes § 52-108 and annotations.)

(P.B. 1978-1997, Sec. 100.)

Sec. 9-20. —Substituted Plaintiff

When any action has been commenced in the name of the wrong person as the plaintiff, the judicial authority may, if satisfied that it was so commenced through mistake and that it is necessary for the determination of the real matter in dispute so to do, allow any other person to be substituted or added as the plaintiff. (See General Statutes § 52-109 and annotations.)

(P.B. 1978-1997, Sec. 101.)

Sec. 9-21. —Counterclaim; Third Parties

When a counterclaim raises questions affecting the interests of third parties, the defendant may, and if required by the judicial authority shall, cause such parties to be summoned in as parties to such suit. (See General Statutes § 52-110 and annotations.)

(P.B. 1978-1997, Sec. 102.)

Sec. 9-22. —Motion To Cite in New Parties

Any motion to cite in or admit new parties must comply with Section 11-1 and state briefly the grounds upon which it is made.

(P.B. 1978-1997, Sec. 103.)

Sec. 9-23. Suit by Real Party in Interest

An action may be brought in all cases in the name of the real party in interest, but any claim or defense may be set up which would have been available had the plaintiff sued in the name of the nominal party in interest.

(P.B. 1978-1997, Sec. 104.)

Sec. 9-24. Change of Name by Minor Child

In all proceedings for change of name under General Statutes § 52-11, brought by a minor child through his or her next friend, the parents of such child, not named as next friends, shall be

necessary parties and shall be cited in, in such manner as shall be ordered by the court or a judge thereof.

(P.B. 1978-1997, Sec. 105.)

Sec. 9-25. Action on Bond to Municipal Officer

When any bond, note or other security is taken to any officer of a community or corporation in this state, wherein the beneficial interest belongs, or on the face of such security appears to belong, to such community or corporation, any action to recover or enforce the same may be maintained by such community or corporation in its own corporate name. (See General Statutes § 52-73a.)

(P.B. 1978-1997, Sec. 106.)

CHAPTER 10

PLEADINGS

Sec.		Sec.	
10-1.	Fact Pleading	10-42.	—Memorandum of Law—Motion and Objection [Repealed]
10-2.	Pleading Legal Effect	10-43.	—When Memorandum of Decision Required on Motion To Strike
10-3.	Allegations Based on Statutory Grounds; Foreign Law	10-44.	—Substitute Pleading; Judgment
10-4.	Implied Duty	10-45.	—Stricken Pleading Part of Another Cause or Defense
10-5.	Untrue Allegations or Denials	10-46.	The Answer; General and Special Denial
10-6.	Pleadings Allowed and Their Order	10-47.	—Evasive Denials
10-7.	Waiving Right To Plead	10-48.	—Express Admissions and Denials To Be Direct and Specific
10-8.	Time To Plead	10-49.	—Suit by Corporation; Admission by General Denial
10-9.	Common Counts	10-50.	—Denials; Special Defenses
10-10.	Supplemental Pleadings; Counterclaims	10-51.	—Several Special Defenses
10-11.	Impleading of Third Party by Defendant in Civil Action	10-52.	—Admissions and Denials in Special Defense
10-12.	Service of the Pleading and Other Papers; Responsibility of Counsel or Self-Represented Party: Documents and Persons To Be Served	10-53.	—Pleading Contributory Negligence
10-13.	—Method of Service	10-54.	—Pleading of Counterclaim and Setoff
10-14.	—Proof of Service	10-55.	—Withdrawal of Action after Counterclaim
10-15.	—Numerous Defendants	10-56.	Subsequent Pleadings; Plaintiff's Response to Answer
10-16.	—Several Parties Represented by One Attorney	10-57.	—Matter in Avoidance of Answer
10-17.	—Service by Indifferent Person	10-58.	—Pleadings Subsequent to Reply
10-18.	Penalty for Failing To Plead	10-59.	Amendments; Amendment as of Right by Plaintiff
10-19.	Implied Admissions	10-60.	—Amendment by Consent, Order of Judicial Authority, or Failure To Object
10-20.	Contents of Complaint	10-61.	—Pleading after Amendment
10-21.	Joinder of Causes of Action	10-62.	—Variance; Amendment
10-22.	—Transactions Connected with Same Subject	10-63.	—Amendment; Legal or Equitable Relief
10-23.	—Joinder of Torts	10-64.	—Amendment Calling for Legal Relief; Jury Trial
10-24.	—Legal and Equitable Relief	10-65.	—Amending Contract to Tort and Vice Versa
10-25.	Alternative Relief	10-66.	—Amendment of Amount in Demand
10-26.	Separate Counts	10-67.	—Amendment of Claim against Insolvent Estate
10-27.	Claim for Equitable Relief	10-68.	Pleading Special Matters; Pleading Notice
10-28.	Interest and Costs Need Not Be Claimed	10-69.	—Foreclosure Complaint; Pleading Encumbrances
10-29.	Exhibits as Part of Pleading	10-70.	—Foreclosure of Municipal Liens
10-30.	Motion To Dismiss; Grounds	10-71.	—Action on Probate Bond
10-31.	—Opposition; Date for Hearing Motion To Dismiss	10-72.	—Action by Assignee of Chose in Action
10-32.	—Waiver Based on Certain Grounds	10-73.	—Pleading Charters
10-33.	—Waiver and Subject Matter Jurisdiction	10-74.	—Wrongful Sale; Wrongful Conversion
10-34.	—Further Pleading by Defendant	10-75.	—Goods Sold; Variance
10-35.	Request To Revise	10-76.	—Probate Appeals; Reasons of Appeal
10-36.	—Reasons in Request To Revise	10-77.	—Appeals from Commissioners
10-37.	—Granting of and Objection to Request To Revise	10-78.	—Pleading Collateral Source Payments
10-38.	—Waiver of Pleading Revisions	10-79.	—Pleading Issues of Policy Limitations
10-39.	Motion To Strike; Grounds		
10-40.	—Opposition; Date for Hearing Motion To Strike		
10-41.	—Reasons in Motion To Strike [Repealed]		

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 10-1. Fact Pleading

Each pleading shall contain a plain and concise statement of the material facts on which the pleader relies, but not of the evidence by which they are to be proved, such statement to be divided into paragraphs numbered consecutively, each containing as nearly as may be a separate allegation. If any such pleading does not fully disclose the ground of claim or defense, the judicial authority may order a fuller and more particular statement; and, if in the opinion of the judicial authority the pleadings do not sufficiently define

the issues in dispute, it may direct the parties to prepare other issues, and such issues shall, if the parties differ, be settled by the judicial authority.

(P.B. 1978-1997, Sec. 108.)

Sec. 10-2. Pleading Legal Effect

Acts and contracts may be stated according to their legal effect, but in so doing the pleading should be such as fairly to apprise the adverse party of the state of facts which it is intended to prove. Thus an act or promise by a principal, other than a corporation, if in fact proceeding from an agent known to the pleader, should be so stated; and the obligation of a spouse to pay for necessaries furnished to his or her spouse, whom he or she has driven from the marital house, should be stated according to the facts.

(P.B. 1978-1997, Sec. 109.)

Sec. 10-3. Allegations Based on Statutory Grounds; Foreign Law

(a) When any claim made in a complaint, cross complaint, special defense, or other pleading is grounded on a statute, the statute shall be specifically identified by its number.

(b) A party to an action who intends to raise an issue concerning the law of any jurisdiction or governmental unit thereof outside this state shall give notice in his or her pleadings or other reasonable written notice.

(P.B. 1978-1997, Sec. 109A.)

Sec. 10-4. Implied Duty

It is unnecessary to allege any promise or duty which the law implies from the facts pleaded.

(P.B. 1978-1997, Sec. 110.)

Sec. 10-5. Untrue Allegations or Denials

Any allegation or denial made without reasonable cause and found untrue shall subject the party pleading the same to the payment of such reasonable expenses, to be taxed by the judicial authority, as may have been necessarily incurred by the other party by reason of such untrue pleading; provided that no expenses for counsel fees shall be taxed exceeding $500 for any one offense. Such expenses shall be taxed against the offending party whether that party prevails in the action or not. (See General Statutes § 52-99 and annotations.)

(P.B. 1978-1997, Sec. 111.)

Sec. 10-6. Pleadings Allowed and Their Order

The order of pleading shall be as follows:

(1) The plaintiff's complaint.

(2) The defendant's motion to dismiss the complaint.

(3) The defendant's request to revise the complaint.

(4) The defendant's motion to strike the complaint.

(5) The defendant's answer (including any special defenses) to the complaint.

(6) The plaintiff's request to revise the defendant's answer.

(7) The plaintiff's motion to strike the defendant's answer.

(8) The plaintiff's reply to any special defenses.

(P.B. 1978-1997, Sec. 112.)

Sec. 10-7. Waiving Right To Plead

In all cases, when the judicial authority does not otherwise order, the filing of any pleading provided for by the preceding section will waive the right to file any pleading which might have been filed in due order and which precedes it in the order of pleading provided in that section.

(P.B. 1978-1997, Sec. 113.)

Sec. 10-8. Time To Plead

Commencing on the return day of the writ, summons and complaint in civil actions, pleadings, including motions and requests addressed to the pleadings, shall advance within thirty days from the return day, and any subsequent pleadings, motions and requests shall advance at least one step within each successive period of thirty days from the preceding pleading or the filing of the decision of the judicial authority thereon if one is required, except that in summary process actions the time period shall be three days and in actions to foreclose a mortgage on real estate the time period shall be fifteen days. The filing of interrogatories or requests for discovery shall not suspend the time requirements of this section unless upon motion of either party the judicial authority shall find that there is good cause to suspend such time requirements.

(P.B. 1978-1997, Sec. 114.) (Amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 10-9. Common Counts

The common counts writ and complaint is hereby abolished.

(P.B. 1978-1997, Sec. 115.)

Sec. 10-10. Supplemental Pleadings; Counterclaims

Supplemental pleadings showing matters arising since the original pleading may be filed in actions for equitable relief by either party. In any action for legal or equitable relief, any defendant may file counterclaims against any plaintiff and cross claims against any codefendant provided that each such counterclaim and cross claim arises out of the transaction or one of the transactions which is the subject of the plaintiff's complaint; and if necessary, additional parties may be summoned in to answer any such counterclaim or cross claim. A defendant may also file a counterclaim or cross claim under this section against

any other party to the action for the purpose of establishing that party's liability to the defendant for all or part of the plaintiff's claim against that defendant.

(P.B. 1978-1997, Sec. 116.)

Sec. 10-11. Impleading of Third Party by Defendant in Civil Action

(a) A defendant in any civil action may move the court for permission as a third-party plaintiff to serve a writ, summons and complaint upon a person not a party to the action who is or may be liable to such defendant for all or part of the plaintiff's claim against him or her. Such a motion may be filed at any time before trial and such permission may be granted by the judicial authority if, in its discretion, it deems that the granting of the motion will not unduly delay the trial of the action or work an injustice upon the plaintiff or the party sought to be impleaded. The writ, summons and complaint so served shall be equivalent in all respects to an original writ, summons and complaint, and the person upon whom it is served, hereinafter called the third-party defendant, shall have available to him or her all remedies available to an original defendant, including the right to assert setoffs or counterclaims against the third-party plaintiff, and shall be entitled to file cross complaints against any other third-party defendant. The third-party defendant may also assert against the plaintiff any defenses which the third-party plaintiff has to the plaintiff's claim and may assert any claim against the plaintiff arising out of the transaction or occurrence which is the subject matter of the plaintiff's claim against the third-party plaintiff.

(b) The plaintiff, within twenty days after the third-party defendant appears in the action, may assert any claim against the third-party defendant arising out of the transaction or occurrence which is the subject matter of the original complaint, and the third-party defendant, as against such claim, shall have available to him or her all remedies available to an original defendant, including the right to assert setoffs or counterclaims against the plaintiff.

(c) A third-party defendant may proceed under this section against any person not a party to the action who is or may be liable to such defendant for all or any part of the third-party plaintiff's claim against him or her.

(d) When a counterclaim is asserted against a plaintiff, the plaintiff may cause a third party to be brought in under circumstances which under this section would entitle a defendant to do so.

(e) When any civil action in which such a third party has been brought in is reached for trial, the judicial authority hearing the case may order separate trials of different parts of the action and may make such other order respecting the trial of the action as will do justice to the parties and expedite final disposition of the case.

(P.B. 1978-1997, Sec. 117.)

Sec. 10-12. Service of the Pleading and Other Papers; Responsibility of Counsel or Self-Represented Party: Documents and Persons To Be Served

(a) It is the responsibility of counsel or a self-represented party filing the same to serve on each other party who has appeared one copy of every pleading subsequent to the original complaint, every written motion other than one in which an order is sought ex parte and every paper relating to discovery, request, demand, claim, notice or similar paper, except a request for mediation under General Statutes § 49-31*l*. When a party is represented by an attorney, the service shall be made upon the attorney unless service upon the party is ordered by the judicial authority.

(b) It shall be the responsibility of counsel or a self-represented party at the time of filing a motion for default for failure to appear to serve the party sought to be defaulted with a copy of the motion. Upon good cause shown, the judicial authority may dispense with this requirement when judgment is rendered.

(c) Any pleading asserting new or additional claims for relief against parties who have not appeared or who have been defaulted shall be served on such parties.

(P.B. 1978-1997, Sec. 121.) (Amended June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 10-13. —Method of Service

Service upon the attorney or upon a self-represented party, except service pursuant to Section 10-12 (c), may be by delivering a copy or by mailing it to the last known address of the attorney or party. Delivery of a copy within this section means handing it to the attorney or to the party; or leaving it at the attorney's office with a person in charge thereof; or, if there is no one in charge, leaving it in a conspicuous place therein; or, if the office is closed or the person to be served has no office, leaving it at the usual place of abode. Delivery of a copy within this rule may also mean electronic delivery to the last known electronic address of the attorney or party, provided that electronic delivery to a self-represented party was consented to in writing by that party. An attorney or self-represented party who files a document electronically with the court must serve it electronically on (1) any self-represented party who consented in writing to electronic delivery under this section

and (2) all attorneys who are not exempt from e-filing. Any attorney who is not exempt from e-filing is required to accept electronic delivery. Service by mail is complete upon mailing. Service by electronic delivery is complete upon sending the electronic notice unless the party making service learns that the attempted service did not reach the electronic address of the person to be served. Service pursuant to Section 10-12 (c) shall be made in the same manner as an original writ and complaint is served or as ordered by the judicial authority.

(P.B. 1978-1997, Sec. 122.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 10-14. —Proof of Service

(a) Proof of service pursuant to Section 10-12 (a) and (b) may be made by written acknowledgment of service by the party served, by a certificate of counsel for the party filing the pleading or paper or by the self-represented party, or by affidavit of the person making the service, but these methods of proof shall not be exclusive. Proof of service shall include the address at which such service was made. If proof of such service is made by a certificate of counsel or by the self-represented party, it shall be in substantially the following form:

I certify that a copy of the above was or will immediately be mailed or delivered electronically or nonelectronically on (*Date*) to all counsel and self-represented parties of record and that written consent for electronic delivery was received from all counsel exempt from e-filing and self-represented parties of record who were or will immediately be electronically served. (*Here list the name of each party served or immediately to be served and the address at which service was made or will immediately be made.*)

Or

to the party against whom the default for failure to appear is claimed. (*Here list the name of each nonappearing party served or immediately to be served and the address at which service was made or will immediately be made.*)

(*Individual signature of counsel or self-represented party*)

(b) Proof of service pursuant to Section 10-12 (c) shall be made in the same manner as proof of service is made of an original writ and complaint, unless the judicial authority ordered service in some other manner, in which event service may be proved as prescribed in subsection (a) above.

(P.B. 1978-1997, Sec. 123.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the second paragraph of subsection (a), "exempt from e-filing" was added after "from all counsel."

COMMENTARY—2026: The changes to this section amend the certification by counsel by requiring only consent for electronic delivery from self-represented parties of record and counsel exempt from e-filing. Any attorney who is not exempt from e-filing is required to accept electronic delivery, regardless of consent.

Sec. 10-15. —Numerous Defendants

In any action in which there is an unusually large number of defendants, the judicial authority, upon motion or of its own initiative, may order that service of the pleadings of the defendants and replies thereto need not be made as between the defendants and that any cross complaint, counterclaim, or matter constituting an avoidance or affirmative defense contained therein shall be deemed to be denied or avoided by all other defendants and that the filing of any such pleading and service thereof upon the plaintiff shall be deemed to constitute due notice of it to the parties. A copy of every such order shall be served upon the parties in such manner and form as the judicial authority directs.

(P.B. 1978-1997, Sec. 124.)

Sec. 10-16. —Several Parties Represented by One Attorney

When several parties have entered their appearance by one attorney or one firm of attorneys, such several parties shall be treated as a single party under this section.

(P.B. 1978-1997, Sec. 125.)

Sec. 10-17. —Service by Indifferent Person

Service of copies of any written pleading subsequent to the original complaint, motion, claim, notice or demand, when required by law or rule of the court, may be made by any indifferent person.

(P.B. 1978-1997, Sec. 126.)

Sec. 10-18. Penalty for Failing To Plead

Parties failing to plead according to the rules and orders of the judicial authority may be nonsuited or defaulted, as the case may be. (See General Statutes § 52-119 and annotations.)

(P.B. 1978-1997, Sec. 128.)

Sec. 10-19. Implied Admissions

Every material allegation in any pleading which is not denied by the adverse party shall be deemed to be admitted, unless such party avers that he or she has not any knowledge or information thereof sufficient to form a belief.

(P.B. 1978-1997, Sec. 129.)

Sec. 10-20. Contents of Complaint

The first pleading on the part of the plaintiff shall be known as the complaint. It shall contain a concise statement of the facts constituting the cause of action and, on a separate page of the complaint, a demand for relief which shall be a statement of the remedy or remedies sought. When money damages are sought in the demand for relief, the demand for relief shall include the information required by General Statutes § 52-91.

(P.B. 1978-1997, Sec. 131.)

Sec. 10-21. Joinder of Causes of Action

In any civil action the plaintiff may include in the complaint both legal and equitable rights and causes of action, and demand both legal and equitable remedies; but, if several causes of action are united in the same complaint, they shall all be brought to recover, either (1) upon contract, express or implied, or (2) for injuries, with or without force, to person and property, or either, including a conversion of property to the defendant's use, or (3) for injuries to character, or (4) upon claims to recover real property, with or without damages for the withholding thereof, and the rents and profits of the same, or (5) upon claims to recover personal property specifically, with or without damages for the withholding thereof, or (6) claims arising by virtue of a contract or by operation of law in favor of or against a party in some representative or fiduciary capacity, or (7) upon claims, whether in contract or tort or both, arising out of the same transaction or transactions connected with the same subject of action. The several causes of action so united shall all belong to one of these classes, and, except in an action for the foreclosure of a mortgage or lien, shall affect all the parties to the action, and not require different places of trial, and shall be separately stated; and, in any case in which several causes of action are joined in the same complaint, or as matter of counterclaim or setoff in the answer, if it appears to the judicial authority that they cannot all be conveniently heard together, it may order a separate trial of any such cause of action or may direct that any one or more of them be deleted from the complaint or answer. (See General Statutes § 52-97 and annotations.)

(P.B. 1978-1997, Sec. 133.)

Sec. 10-22. —Transactions Connected with Same Subject

Transactions connected with the same subject of action within the meaning of subdivision (7) of Section 10-21, may include any transactions which grew out of the subject matter in regard to which the controversy has arisen; as, for instance, the failure of a bailee to use the goods bailed for the purpose agreed, also an injury to them by his or her fault or neglect; the breach of a covenant for quiet enjoyment by the entry of the lessor, also a trespass to goods, committed in the course of the entry. Injuries to character, within the meaning of subdivision (3) of Section 10-21, may embrace libel, slander, and malicious prosecution.

(P.B. 1978-1997, Sec. 134.)

Sec. 10-23. —Joinder of Torts

Where several torts are committed simultaneously against the plaintiff, as a battery accompanied by slanderous words, they may be joined, within the meaning of subdivision (7) of Section 10-21, as causes of action arising out of the same transaction, although they may belong to different classes of torts.

(P.B. 1978-1997, Sec. 135.)

Sec. 10-24. —Legal and Equitable Relief

A cause of action for legal relief for breach of contract may be joined with another cause of action for equitable relief growing out of another contract, although such contracts in no way relate to each other.

(P.B. 1978-1997, Sec. 136.)

Sec. 10-25. Alternative Relief

The plaintiff may claim alternative relief, based upon an alternative construction of the cause of action.

(P.B. 1978-1997, Sec. 137.)

Sec. 10-26. Separate Counts

Where separate and distinct causes of action, as distinguished from separate and distinct claims for relief founded on the same cause of action or transaction, are joined, the statement of the second shall be prefaced by the words *Second Count*, and so on for the others; and the several paragraphs of each count shall be numbered separately beginning in each count with the number one.

(P.B. 1978-1997, Sec. 138.)

Sec. 10-27. Claim for Equitable Relief

A party seeking equitable relief shall specifically demand it as such, unless the nature of the demand itself indicates that the relief sought is equitable relief.

(P.B. 1978-1997, Sec. 139.)

Sec. 10-28. Interest and Costs Need Not Be Claimed

Interest and costs need not be specially claimed in the demand for relief, in order to recover them.

(P.B. 1978-1997, Sec. 140.)

Sec. 10-29. Exhibits as Part of Pleading

(a) Any plaintiff, except as otherwise provided in subsection (b) in connection with a plaintiff in the housing division as defined in Section 1-7, desiring to make a copy of any document a part of the complaint shall refer to it as Exhibit A, B, C, etc. No later than the return date, the plaintiff shall file the original or a copy of such exhibit or exhibits in court. The plaintiff shall serve a copy of such exhibit or exhibits on each party no later than ten days after receipt of notice of the appearance of such party, in the manner provided in Sections 10-12 through 10-17, and shall file proof of service on each appearing party with the court. Except as required by statute, the plaintiff shall not annex the document or documents referred to as exhibits to the complaint, or incorporate them in the complaint, at full length, and if the plaintiff does so, the plaintiff shall not be allowed in costs for such part of the fees of the officer for copies of such complaint left in service, as are chargeable for copying such document or documents referred to as exhibits.

(b) The provisions of subsection (a) shall apply to a plaintiff in the housing division, as defined in Section 1-7, desiring to make a copy of any document a part of the complaint, except that the plaintiff shall serve on each party who has appeared a copy of such exhibit or exhibits at the first court session of the matter or no later than seven days after receipt of notice of the appearance of such party, whichever is earlier.

(c) When either the plaintiff or the defendant in any pleading subsequent to the complaint desires to make a copy of any document a part of his or her pleading, such party may, without reciting it therein, either annex it thereto, or refer to it therein, and shall serve it and file it in court with proof of service in the manner provided in Sections 10-12 through 10-17.

(P.B. 1978-1997, Sec. 141.) (Amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec. 10-30. Motion To Dismiss; Grounds

(Amended June 30, 2003, to take effect Jan. 1, 2004; amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) A motion to dismiss shall be used to assert: (1) lack of jurisdiction over the subject matter; (2) lack of jurisdiction over the person; (3) insufficiency of process; and (4) insufficiency of service of process.

(b) Any defendant, wishing to contest the court's jurisdiction, shall do so by filing a motion to dismiss within thirty days of the filing of an appearance.

(c) This motion shall always be filed with a supporting memorandum of law and, where appropriate, with supporting affidavits as to facts not apparent on the record.

(P.B. 1978-1997, Sec. 142.) (Amended June 30, 2003, to take effect Jan. 1, 2004; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 10-31. —Opposition; Date for Hearing Motion To Dismiss

(Amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) Any adverse party shall have thirty days from the filing of the motion to dismiss to respond to the motion to dismiss by filing and serving in accordance with Sections 10-12 through 10-17 a memorandum of law in opposition and, where appropriate, supporting affidavits as to facts not apparent on the record.

(b) Except in summary process matters, the motion shall be placed on the short calendar to be held not less than forty-five days following the filing of the motion, unless the judicial authority otherwise orders. If an evidentiary hearing is required, any party shall file a request for such hearing with the court.

(P.B. 1978-1997, Sec. 143.) (Amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 10-32. —Waiver Based on Certain Grounds

Any claim of lack of jurisdiction over the person or insufficiency of process or insufficiency of service of process is waived if not raised by a motion to dismiss filed in the sequence provided in Sections 10-6 and 10-7 and within the time provided by Section 10-30.

(P.B. 1978-1997, Sec. 144.) (Amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 10-33. —Waiver and Subject Matter Jurisdiction

Any claim of lack of jurisdiction over the subject matter cannot be waived; and whenever it is found after suggestion of the parties or otherwise that the court lacks jurisdiction of the subject matter, the judicial authority shall dismiss the action.

(P.B. 1978-1997, Sec. 145.)

Sec. 10-34. —Further Pleading by Defendant

If any motion to dismiss is denied with respect to any jurisdictional issue, the defendant may plead further without waiving the right to contest jurisdiction further.

(P.B. 1978-1997, Sec. 146.)

Sec. 10-35. Request To Revise

Whenever any party desires to obtain (1) a more complete or particular statement of the allegations of an adverse party's pleading, or (2) the deletion of any unnecessary, repetitious, scandalous, impertinent, immaterial or otherwise improper allegations in an adverse party's pleading, or (3) separation of causes of action which may be united in one complaint when they are improperly combined in one count, or the separation of two or more grounds of defense improperly combined in one defense, or (4) an attachment to an adverse party's complaint or other pleading any express agreement alleged as a ground of action or defense, notwithstanding the provisions of Section 10-29, or (5) any other appropriate correction in an adverse party's pleading, the party desiring any such amendment in an adverse party's pleading may file a timely request to revise that pleading.

(P.B. 1978-1997, Sec. 147; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What is now subdivision (4) was added and what had been subdivision (4) was redesignated as subdivision (5).

COMMENTARY—2026: The change to this section renumbers current subdivision (4) as subdivision (5) and adds new subdivision (4) that allows a party to request that any express agreement alleged as a ground of action or defense be attached to the adverse party's complaint. The most likely reason for such a request would be for the purposes of filing a motion to strike.

The provisions of Section 10-29, which generally do not require the plaintiff to attach the written agreement to the original complaint, are not impacted by this change. Section 4-7 will continue to control to the extent there is any personal identifying information in the agreement sought to be attached. If a litigant opposes the requested revision because they claim the agreement sought to be attached contains trade secrets or other confidential information, Section 11-20A would control, and that litigant could move to file under seal or seek to otherwise limit disclosure by redactions, etc., the agreement sought to be attached.

Sec. 10-36. —Reasons in Request To Revise

The request to revise shall set forth, for each requested revision, the portion of the pleading sought to be revised, the requested revision, and the reasons therefor, and, except where the request is served electronically in accordance with Section 10-13, in a format that allows the recipient to insert electronically the objection and reasons therefor, provide sufficient space in which the party to whom the request is directed can insert an objection and reasons therefor.

(P.B. 1978-1997, Sec. 148.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 10-37. —Granting of and Objection to Request To Revise

(a) Any such request, after service upon each party as provided by Sections 10-12 through 10 17 and with proof of service endorsed thereon, shall be filed with the clerk of the court in which the action is pending, and such request shall be deemed to have been automatically granted by the judicial authority on the date of filing and shall be complied with by the party to whom it is directed within thirty days of the date of filing the same, unless within thirty days of such filing the party to whom it is directed shall file objection thereto.

(b) The objection and the reasons therefor shall be inserted on the request to revise in the space provided under the appropriate requested revision. In the event that a reason for objection requires more space than that provided on the request to revise, it shall be continued on a separate sheet of paper which shall be attached to that document, except where the request is served electronically as provided in Section 10-13 and in a format that allows the recipient to electronically insert the objection and reasons therefor. The request to revise on which objections have been inserted shall be appended to a cover sheet which shall comply with Sections 4-1 and 4-2 and the objecting party shall specify thereon to which of the requested revisions objection is raised. The cover sheet with the appended objections shall be filed with the clerk within thirty days from the date of the filing of the request for the next short calendar list. If the judicial authority overrules the objection, a substitute pleading in compliance with the order of the judicial authority shall be filed within fifteen days of such order.

(P.B. 1978-1997, Sec. 149.) (Amended June 20, 2012, to take effect Jan. 1, 2012.)

Sec. 10-38. —Waiver of Pleading Revisions

Whenever any party files any request to revise or any subsequent motion or pleading in the sequence provided in Sections 10-6 and 10-7, that party thereby waives any right to seek any further pleading revisions which that party might then have requested.

(P.B. 1978-1997, Sec. 150.)

Sec. 10-39. Motion To Strike; Grounds

(Amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) A motion to strike shall be used whenever any party wishes to contest: (1) the legal sufficiency of the allegations of any complaint, counterclaim or cross claim, or of any one or more counts thereof, to state a claim upon which relief can be granted; or (2) the legal sufficiency of any prayer for relief in any such complaint, counterclaim or cross complaint; or (3) the legal sufficiency of any such complaint, counterclaim or

cross complaint, or any count thereof, because of the absence of any necessary party or, pursuant to Section 17-56 (b), the failure to join or give notice to any interested person; or (4) the joining of two or more causes of action which cannot properly be united in one complaint, whether the same be stated in one or more counts; or (5) the legal sufficiency of any answer to any complaint, counterclaim or cross complaint, or any part of that answer including any special defense contained therein.

(b) Each claim of legal insufficiency enumerated in this section shall be separately set forth and shall specify the reason or reasons for such claimed insufficiency.

(c) Each motion to strike must be accompanied by a memorandum of law citing the legal authorities upon which the motion relies.

(d) A motion to strike on the ground of the nonjoinder of a necessary party or noncompliance with Section 17-56 (b) must give the name and residence of the missing party or interested person or such information as the moving party has as to the identity and residence of the missing party or interested person and must state the missing party's or interested person's interest in the cause of action.

(P.B. 1978-1997, Sec. 152.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 10-40. —Opposition; Date for Hearing Motion To Strike

(Amended June 30, 2003, to take effect Jan. 1, 2004; amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) Any adverse party shall have thirty days from the filing of the motion to strike to respond to a motion to strike filed pursuant to Section 10-39 by filing and serving in accordance with Sections 10-12 through 10-17 a memorandum of law in opposition.

(b) Except in summary process matters, the motion to strike shall be placed on the short calendar to be held not less than forty-five days following the filing of the motion, unless the judicial authority otherwise orders.

(P.B. 1978-1997, Sec. 153.) (Amended June 30, 2003, to take effect Jan. 1, 2004; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 10-41. —Reasons in Motion To Strike

[Repealed as of Jan. 1, 2014.]

Sec. 10-42. —Memorandum of Law—Motion and Objection

[Repealed as of Jan. 1, 2014.]

Sec. 10-43. —When Memorandum of Decision Required on Motion To Strike

Whenever a motion to strike is filed and more than one ground of decision is set up therein, the judicial authority, in rendering the decision thereon, shall specify in writing the grounds upon which that decision is based.

(P.B. 1978-1997, Sec. 156.)

Sec. 10-44. —Substitute Pleading; Judgment

Within fifteen days after the granting of any motion to strike, the party whose pleading has been stricken may file a new pleading; provided that in those instances where an entire complaint, counterclaim or cross complaint, or any count in a complaint, counterclaim or cross complaint has been stricken, and the party whose pleading or a count thereof has been so stricken fails to file a new pleading within that fifteen day period, the judicial authority may, upon motion, enter judgment against said party on said stricken complaint, counterclaim or cross complaint, or count thereof.

Any new pleading filed pursuant to this section shall be accompanied by a separate document which shows the differences between the previous pleading and the new pleading by using underlining to indicate new language and by using either brackets or strikethrough to indicate deleted language.

Nothing in this section shall dispense with the requirements of Section 61-3 or 61-4 of the appellate rules.

(P.B. 1978-1997, Sec. 157.) (Amended June 30, 2003, to take effect Jan. 1, 2004; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 10-45. —Stricken Pleading Part of Another Cause or Defense

Whenever the judicial authority grants a motion to strike the whole or any portion of any pleading or count which purports to state an entire cause of action or defense, and such pleading or portion thereof states or constitutes a part of another cause of action or defense, the granting of that motion shall remove from the case only the cause of action or defense which was the subject of the granting of that motion, and it shall not remove such pleading or count or any portion thereof so far as the same is applicable to any other cause of action or defense.

(P.B. 1978-1997, Sec. 158.)

Sec. 10-46. The Answer; General and Special Denial

The defendant in the answer shall specially deny such allegations of the complaint as the

defendant intends to controvert, admitting the truth of the other allegations, unless the defendant intends in good faith to controvert all the allegations, in which case he or she may deny them generally. Any defendant who intends to controvert the right of the plaintiff to sue as executor, or as trustee, or in any other representative capacity, or as a corporation, or to controvert the execution or delivery of any written instrument or recognizance sued upon, shall deny the same in the answer specifically.

(P.B. 1978-1997, Sec. 160.)

Sec. 10-47. —Evasive Denials

Denials must fairly meet the substance of the allegations denied. Thus, when the payment of a certain sum is alleged, and in fact a lesser sum was paid, the defendant cannot simply deny the payment generally, but must set forth how much was paid to the defendant; and where any matter of fact is alleged with divers circumstances, some of which are untruly stated, it shall not be sufficient to deny it as alleged, but so much as is true and material should be stated or admitted, and the rest only denied.

(P.B. 1978-1997, Sec. 161.)

Sec. 10-48. —Express Admissions and Denals To Be Direct and Specific

Express admissions and denials must be direct, precise and specific, and not argumentative, hypothetical or in the alternative. Accordingly, any pleader wishing expressly to admit or deny a portion only of a paragraph must recite that portion; except that where a recited portion of a paragraph has been either admitted or denied, the remainder of the paragraph may be denied or admitted without recital. Admissions or denials of allegations identified only by a summary or generalization thereof, or by describing the facts alleged as "consistent" or "inconsistent" with other facts recited or referred to, are improper.

(P.B. 1978-1997, Sec. 162.)

Sec. 10-49. —Suit by Corporation; Admission by General Denial

In an action by a corporation, foreign or domestic, founded upon any contract, express or implied, the defendant shall not, under a general denial, be permitted to dispute, but shall be deemed to admit, the capacity of the plaintiff to make such contract.

(P.B. 1978-1997, Sec. 163.)

Sec. 10-50. —Denials; Special Defenses

No facts may be proved under either a general or special denial except such as show that the plaintiff's statements of fact are untrue. Facts which are consistent with such statements but show, notwithstanding, that the plaintiff has no cause of action, must be specially alleged. Thus, accord and satisfaction, arbitration and award, duress, fraud, illegality not apparent on the face of the pleadings, infancy, that the defendant was non compos mentis, payment (even though nonpayment is alleged by the plaintiff), release, the statute of limitations and res judicata must be specially pleaded, while advantage may be taken, under a simple denial, of such matters as the statute of frauds, or title in a third person to what the plaintiff sues upon or alleges to be the plaintiff's own.

(P.B. 1978-1997, Sec. 164.) (Amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 10-51. —Several Special Defenses

Where several matters of defense are pleaded, each must refer to the cause of action which it is intended to answer, and be separately stated and designated as a separate defense, as, *First Defense, Second Defense,* etc. Where the complaint or counterclaim is for more than one cause of action, set forth in several counts, each separate matter of defense should be preceded by a designation of the cause of action which it is designed to meet, in this manner: *First Defense to First Count, Second Defense to First Count, First Defense to Second Count,* and so on. Any statement of a matter of defense resting in part upon facts pleaded in any preceding statement in the same answer may refer to those facts as thus recited, without otherwise repeating them.

(P.B. 1978-1997, Sec. 165.)

Sec. 10-52. —Admissions and Denials in Special Defense

No special defense shall contain a denial of any allegation of the complaint or counterclaim unless that denial is material to such defense. An admission of any allegation of the complaint or counterclaim in a special defense will be deemed to incorporate such allegation in the defense.

(P.B. 1978-1997, Sec. 166.)

Sec. 10-53. —Pleading Contributory Negligence

If contributory negligence is relied upon as a defense, it shall be affirmatively pleaded by the defendant and the defendant shall specify the negligent acts or omissions on which the defendant relies. (See General Statutes § 52-114 and annotations.)

(P.B. 1978-1997, Sec. 167.)

Sec. 10-54. —Pleading of Counterclaim and Setoff

In any case in which the defendant has either in law or in equity or in both a counterclaim, or right of setoff, against the plaintiff's demand, the defendant may have the benefit of any such setoff or counterclaim by pleading the same as such in the answer, and demanding judgment accordingly; and the same shall be pleaded and replied to according to the rules governing complaints and answers. (See General Statutes §§ 52-139 to 52-142.)

(P.B. 1978-1997, Sec. 168.)

Sec. 10-55. —Withdrawal of Action after Counterclaim

The withdrawal of an action after a counterclaim, whether for legal or equitable relief, has been filed therein shall not impair the right of the defendant to prosecute such counterclaim as fully as if said action had not been withdrawn, provided that the defendant shall, if required by the judicial authority, give bond to pay costs as in civil actions.

(P.B. 1978-1997, Sec. 169.)

Sec. 10-56. Subsequent Pleadings; Plaintiff's Response to Answer

The plaintiff's reply pleading to each of the defendant's special defenses may admit some and deny others of the allegations of that defense, or by a general denial of that defense put the defendant upon proof of all the material facts alleged therein.

(P.B. 1978-1997, Sec. 171.)

Sec. 10-57. —Matter in Avoidance of Answer

Matter in avoidance of affirmative allegations in an answer or counterclaim shall be specially pleaded in the reply. Such a reply may contain two or more distinct avoidances of the same defense or counterclaim, but they must be separately stated.

(P.B. 1978-1997, Sec. 172.)

Sec. 10-58. —Pleadings Subsequent to Reply

Further pleadings, subsequent in their nature, may be had if necessary by leave of the judicial authority.

(P.B. 1978-1997, Sec. 173.)

Sec. 10-59. Amendments; Amendment as of Right by Plaintiff

The plaintiff may amend any defect, mistake or informality in the writ, complaint or petition and insert new counts in the complaint, which might have been originally inserted therein, without costs, during the first thirty days after the return day. (See General Statutes § 52-128 and annotations.)

Any writ, complaint or petition amended pursuant to this section shall be accompanied by a separate document showing the portion or portions of the original writ, complaint or petition so amended by using underlining to indicate new language and by using either brackets or strikethrough to indicate deleted language.

(P.B. 1978-1997, Sec. 175.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 10-60. —Amendment by Consent, Order of Judicial Authority, or Failure To Object

(a) Except as provided in Section 10-66, a party may amend his or her pleadings or other parts of the record or proceedings at any time subsequent to that stated in the preceding section in the following manner:

(1) By order of judicial authority; or

(2) By written consent of the adverse party; or

(3) By filing a request for leave to file an amendment together with the amended pleading or other parts of the record or proceedings. The party shall file the request and accompanying documents after service upon each party as provided by Sections 10-12 through 10-17, and with proof of service endorsed thereon. If no party files an objection to the request within fifteen days from the date it is filed, the amendment shall be deemed to have been filed by consent of the adverse party. If an opposing party shall have objection to any part of such request or the amendment appended thereto, such objection in writing specifying the particular paragraph or paragraphs to which there is objection and the reasons therefor, shall, after service upon each party as provided by Sections 10-12 through 10-17 and with proof of service endorsed thereon, be filed with the clerk within the time specified above and placed upon the next short calendar list.

(b) Any amended pleading or other part of the record or proceedings filed pursuant to this section or accompanying a request for leave to file an amendment pursuant to this section shall be accompanied by a separate document showing the amendments to the original pleading or other parts of the record or proceedings being amended by using underlining to indicate new language and by using either brackets or strikethrough to indicate deleted language.

(c) The judicial authority may restrain such amendments so far as may be necessary to compel the parties to join issue in a reasonable time for trial. If the amendment occasions delay in the

trial or inconvenience to the other party, the judicial authority may award costs in its discretion in favor of the other party. For the purposes of this rule, a substituted pleading shall be considered an amendment. (See General Statutes § 52-130 and annotations.)

(P.B. 1978-1997, Sec. 176.) (Amended June 24, 2016, to take effect Jan. 1, 2017; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 10-61. —Pleading after Amendment

When any pleading is amended the adverse party may plead thereto within the time provided by Section 10-8 or, if the adverse party has already pleaded, alter the pleading, if desired, within ten days after such amendment or such other time as the rules of practice, or the judicial authority, may prescribe, and thereafter pleadings shall advance in the time provided by that section. If the adverse party fails to plead further, pleadings already filed by the adverse party shall be regarded as applicable so far as possible to the amended pleading.

(P.B. 1978-1997, Sec. 177.)

Sec. 10-62. —Variance; Amendment

In all cases of any material variance between allegation and proof, an amendment may be permitted at any stage of the trial. If such allegation was made without reasonable excuse, or if the adverse party was actually misled thereby to his or her prejudice in maintaining the action or defense upon the merits, or if such amendment requires postponement of the trial or additional expense to the adverse party and this is shown to the satisfaction of the judicial authority, such amendment shall be made only upon payment of costs or upon such terms as the judicial authority may deem proper; but in any other case, without costs. Immaterial variances shall be wholly disregarded.

(P.B. 1978-1997, Sec. 178.)

Sec. 10-63. —Amendment; Legal or Equitable Relief

If, on the trial, whether upon an issue of fact or of law, of a cause wherein equitable relief is demanded, it appears that the plaintiff is not entitled to such relief but may be entitled to legal relief, the judicial authority may permit the complaint to be amended so as to present a proper case for the latter relief; and in like manner a complaint demanding legal relief may be so amended as to entitle the plaintiff to equitable relief. (See General Statutes § 52-137 and annotations.)

(P.B. 1978-1997, Sec. 179.)

Sec. 10-64. —Amendment Calling for Legal Relief; Jury Trial

If on the trial any complaint is so amended as to call for legal instead of equitable relief, the judicial authority shall not proceed to judgment until the defendant has had a reasonable opportunity to put the issue or issues, on which the new claim for relief may be based, on the jury docket. (See General Statutes § 52-138 and annotations.)

(P.B. 1978-1997, Sec. 180.)

Sec. 10-65. —Amending Contract to Tort and Vice Versa

A complaint for breach of contract may be amended so as to set forth a cause of action founded on a tort arising from the same transaction or subject of action; and a complaint founded on a tort may be amended so as to set forth a cause of action for a breach of contract arising out of the same transaction or subject of action. (See General Statutes § 52-136 and annotations.)

(P.B. 1978-1997, Sec. 181.)

Sec. 10-66. —Amendment of Amount in Demand

A party may amend the party's statement concerning the amount in demand by order of the judicial authority upon filing of a motion for leave to file such amendment, with a copy of the amendment appended, after service upon each party as provided by Sections 10-12 through 10-17, and with proof of service endorsed thereon. After obtaining permission of the judicial authority, the moving party shall file the amended statement of amount in demand with the clerk and shall pay any entry fee prescribed by statute to the clerk when the amendment is filed.

(P.B. 1978-1997, Sec. 182.) (Amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 10-67. —Amendment of Claim against Insolvent Estate

In any hearing on appeal from the doings of commissioners on the estate of an insolvent debtor or a deceased person, the claimant may amend any defect, mistake or informality in the statement of the claim, not changing the ground of action; such amendment to be upon such terms as to costs as the judicial authority directs. (See General Statutes § 52-131 and annotations.)

(P.B. 1978-1997, Sec. 183.)

Sec. 10-68. Pleading Special Matters; Pleading Notice

Whenever in an action of tort or upon a statute the plaintiff is compelled to allege the giving of a notice required by statute, the plaintiff shall either recite the same in the complaint or annex a copy thereto.

(P.B. 1978-1997, Sec. 185.)

Sec. 10-69. —Foreclosure Complaint; Pleading Encumbrances

The complaint in all actions seeking the foreclosure of a mortgage or other lien upon real estate shall set forth, in addition to the other essentials of such complaint: All encumbrances of record upon the property both prior and subsequent to the encumbrance sought to be foreclosed, the dates of such encumbrances, the amount of each and the date when such encumbrance was recorded; if such encumbrance be a mechanic's lien, the date of commencing to perform services or furnish materials as therein recited; and if such encumbrance be a judgment lien, whether said judgment lien contains a reference to the previous attachment of the same premises in the same action, as provided by General Statutes § 52-380a.

(P.B. 1978-1997, Sec. 186.)

Sec. 10-70. —Foreclosure of Municipal Liens

(a) In any action to foreclose a municipal tax or assessment lien the plaintiff need only allege and prove: (1) the ownership of the liened premises on the date when the same went into the tax list, or when said assessment was made; (2) that thereafter a tax in the amount specified in the list, or such assessment in the amount made, was duly and properly assessed upon the property and became due and payable; (3) (to be used only in cases where the lien has been continued by certificate) that thereafter a certificate of lien for the amount thereof was duly and properly filed and recorded in the land records of the said town on the date stated; (4) that no part of the same has been paid; and (5) other encumbrances as required by the preceding section.

(b) When the lien has been continued by certificate, the production in court of the certificate of lien, or a certified copy thereof, shall be prima facie evidence that all requirements of law for the assessment and collection of the tax or assessment secured by it, and for the making and filing of the certificate, have been duly and properly complied with. Any claimed informality, irregularity or invalidity in the assessment or attempted collection of the tax, or in the lien filed, shall be a matter of affirmative defense to be alleged and proved by the defendant.

(P.B. 1978-1997, Sec. 187.)

Sec. 10-71. —Action on Probate Bond

In any action upon a bond taken in a Probate Court, not brought by a representative of the estate in connection with which the bond was given or by some person in that person's own behalf and that of all other persons interested in the estate, the plaintiff shall aver in the complaint or reply for whose special benefit the action is prosecuted, and how such persons are interested in the same, and how the act or neglect of the defendant has injured their rights or affected their interests and the judgment rendered in any such case shall not, in any future proceedings, by scire facias or otherwise, bar or conclude the rights of other persons interested in the bond. (See General Statutes § 52-117 and annotations.)

(P.B. 1978-1997, Sec. 189.)

Sec. 10-72. —Action by Assignee of Chose in Action

Where the assignee and equitable and bona fide owner of any chose in action, not negotiable, sues thereon in his or her own name, such party shall in the complaint allege that he or she is the actual bona fide owner thereof, and set forth when and how such party acquired title thereto. (See General Statutes § 52-118 and annotations.)

(P.B. 1978-1997, Sec. 190.)

Sec. 10-73. —Pleading Charters

All acts of incorporation passed by the General Assembly may be declared on or pleaded as public acts. (See General Statutes § 52-115 and annotations.)

(P.B. 1978-1997, Sec. 191.)

Sec. 10-74. —Wrongful Sale; Wrongful Conversion

Where the defendant has wrongfully sold personal property of the plaintiff, the latter may waive the tort, affirm the sale, and sue for the proceeds; but in case of wrongful conversion of property, without a sale, the plaintiff cannot waive the tort and declare as on a contract.

(P.B. 1978-1997, Sec. 192.)

Sec. 10-75. —Goods Sold; Variance

In an action for goods sold at a reasonable price, if the proof is that they were sold at an agreed price, the plaintiff shall not be precluded, on the ground of a variance, from recovering such agreed price; and in an action for goods sold at an agreed price the plaintiff may recover a different or a reasonable price, if the proof fails to establish the price alleged; and the like rule shall prevail in actions for work done, materials furnished, or use and occupation of land.

(P.B. 1978-1997, Sec. 193.)

Sec. 10-76. —Probate Appeals; Reasons of Appeal

(a) Unless otherwise ordered, in all appeals from probate the appellant shall file reasons of appeal, which upon motion shall be made reasonably specific, within ten days after the return day;

and pleadings shall thereafter follow in analogy to civil actions.

(b) Appellees opposing the probate of a will shall specifically deny such of the reasons of appeal as they intend to controvert and affirmatively allege any other grounds upon which they propose to rely.

(c) The appellant in appeals involving the probate of a will shall file, with the reasons of appeal, a copy of the will. (See General Statutes §§ 45a-186 to 45a-193.)

(P.B. 1978-1997, Sec. 194.)

Sec. 10-77. —Appeals from Commissioners

In all appeals from the allowance or disallowance of any claim by commissioners appointed by courts of probate, the party presenting the claim shall, within ten days after the return day, unless otherwise ordered, file a statement of the amount and nature of the claim, and of the facts upon which it is based, which statement shall conform, as far as may be, in form and substance, to the requirements of a complaint brought to recover upon said claim in a civil action. To such statement the adverse party, unless otherwise ordered by the judicial authority, shall plead, and thereafter the pleadings shall continue until issues are joined, as in civil actions.

(P.B. 1978-1997, Sec. 195.)

Sec. 10-78. —Pleading Collateral Source Payments

No pleading shall contain any allegations regarding receipt by a party of collateral source payments as described in General Statutes §§ 52-225a and 52-225b.

(P.B. 1978-1997, Sec. 195A.)

Sec. 10-79. —Pleading Issues of Policy Limitations

An insurer should raise issues of monetary policy limits, or credits for payments by or on behalf of third-party tortfeasors, by special defense. When a jury determination of the facts raised by special defense is not necessary, the special defense shall not be submitted to the jury but, rather, shall be resolved by the trial court prior to the rendering of judgment.

(P.B. 1978-1997, Sec. 195B.)

CHAPTER 11

MOTIONS, REQUESTS, ORDERS OF NOTICE AND SHORT CALENDAR

Sec.
11-1. Form of Motion and Request
11-2. Definition of "Motion" and "Request"
11-3. Motion for Misjoinder of Parties
11-4. Applications for Orders of Notice
11-5. Subsequent Orders of Notice; Continuance
11-6. Notice by Publication
11-7. Attestation; Publication; Proof of Compliance
11-8. Orders of Notice Directed outside of the United States of America
11-9. Disclosure of Previous Applications
11-10. Requirement That Memorandum of Law Be Filed with Certain Motions
11-11. Motions Which Delay the Commencement of the Appeal Period or Cause the Appeal Period To Start Again
11-12. Motion To Reargue
11-13. Short Calendar; Need for List; Case Assigned for Trial; Reclaims
11-14. —Short Calendar; Frequency; Time; Lists
11-15. —Short Calendar; Assignments Automatic
11-16. —Continuances when Counsel's Presence or Oral Argument Required
11-17. —Transfers on Short Calendar
11-18. —Oral Argument of Motions in Civil Matters
11-19. —Time Limit for Deciding Short Calendar Matters
11-20. Closure of Courtroom in Civil Cases
11-20A. Sealing Files or Limiting Disclosure of Documents in Civil Cases
11-20B. —Documents Containing Personal Identifying Information
11-21. Motions for Attorney's Fees

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 11-1. Form of Motion and Request

(a) Every motion, request, application or objection directed to pleading or procedure, unless relating to procedure in the course of a trial, shall be in writing. A motion to extend time to plead, respond to written discovery, object to written discovery, or respond to requests for admissions shall state the date of the certification of service of the document for which an extension is sought and the date through which the moving party is seeking the extension.

(b) (1) For civil matters, with the exception of housing, family and small claims matters, when any motion, application or objection is filed either electronically or on paper, no order page should be filed unless an order of notice and citation is necessary.

(2) For family, juvenile, housing and small claims matters, when any motion, application or objection is filed in paper format, an order shall be annexed to the filing until such cases are incorporated into the Judicial Branch's electronic filing system. Once these case types are incorporated into such electronic filing system, no order page should be filed unless an order of notice and citation is necessary.

(c) Whether filed under subsection (b) (1) or (b) (2), such motion, request, application or objection shall be served on all parties as provided in Sections 10-12 through 10-17 and, when filed, the fact of such service shall be endorsed thereon. Any such motion, request, application or objection, as well as any supporting brief or memorandum, shall include a page number on each page other than the first page, except that this requirement shall not apply to forms supplied by the Judicial Branch or generated by the electronic filing system.

(P.B. 1978-1997, Sec. 196.) (Amended June 20, 2011, to take effect Jan. 1, 2012; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 11-2. Definition of ''Motion'' and "Request"

As used in these rules, the term "motion" means any application to the court for an order, which application is to be acted upon by the court or any judge thereof; and the term "request" means any application to the court which shall be granted by the clerk by operation of these rules unless timely objection is filed.

(P.B. 1978-1997, Sec. 197.)

Sec. 11-3. Motion for Misjoinder of Parties

The exclusive remedy for misjoinder of parties is by motion to strike. As set forth in Section 10-39, the exclusive remedy for nonjoinder of parties is by motion to strike.

(P.B. 1978-1997, Sec. 198.)

Sec. 11-4. Applications for Orders of Notice

Applications for orders of notice, whether made to a court, a judge, a clerk, or an assistant clerk, shall be made in writing, shall state the residence of the party whom the notice is sought to reach or that all reasonable efforts have been made to ascertain the residence and have failed, and shall

further state what notice is considered most likely to come to the attention of such person, with the reasons therefor, unless they are evident; and such applications shall become a part of the file of the case.

(P.B. 1978-1997, Sec. 199.)

Sec. 11-5. Subsequent Orders of Notice; Continuance

Motions made to the court for a second or subsequent order of notice shall be filed with the clerk, who shall call them to the attention of the judicial authority at the earliest convenient time. The judicial authority may thereupon enter its order or direct that the matter be placed on the next short calendar list. If a continuance of the case is desired, it may also be requested in the motion for the order of notice.

(P.B. 1978-1997, Sec. 200.)

Sec. 11-6. Notice by Publication

(a) If an order of notice is by publication and it states the nature of the action and the relief sought sufficiently to inform the party to whom the notice is addressed of the way in which the interests of the party may be affected, the authority issuing the order may direct that only the order be published.

(b) Every notice by publication shall have the words "State of Connecticut" in the caption of the case, and following it, in bold type, the words "Notice to (*the person to whom it is addressed*)."

(P.B. 1978-1997, Sec. 201.)

Sec. 11-7. Attestation; Publication; Proof of Compliance

Orders of notice of legal or judicial proceedings need not be directed to or attested by any officer or person, but all copies of complaints or other papers thereby ordered, served or mailed shall be so attested as true copies of the original. To prove publication of any legal notice, either the return of any officer authorized to serve process or the affidavit of any person showing that such publication was made as directed shall be sufficient. Such order shall not require publication of any recital stating where the designated newspaper is printed or recital of any other details in or pertinent to the application for such order which are not essential parts of the notice to be given. A copy of the prescribed notice, instead of the original order, may be left with the newspaper for publication purposes, and each original order shall be left with or returned to the clerk of the court in which the proceeding is pending or returnable. When proof of compliance with the order is filed with such clerk, he or she shall note such fact upon the docket, and such proof and order shall be preserved as part of the case file. (See General Statutes § 52-52 and annotations.)

(P.B. 1978-1997, Sec. 202.)

Sec. 11-8. Orders of Notice Directed outside of the United States of America

If service of process cannot be made under the applicable international treaty or convention within sixty days from the issuance of the summons, then the judicial authority may issue, upon the application of any party, an order of notice. In determining what manner and form of notice shall be ordered, the judicial authority shall consider the following:

(1) other methods of service specified or allowed in any applicable international treaty or convention, including any reservations;

(2) whether all applicable international treaties and conventions prohibit substituted service;

(3) what method of service provides the greatest likelihood the party being served will receive actual and timely notice of the suit so the party may appear and defend;

(4) whether a particular method of service violates the law, particularly the criminal law, of the foreign country involved;

(5) whether an actual agent of the party being served can be served within the United States.

(P.B. 1978-1997, Sec. 202A.)

Sec. 11-9. Disclosure of Previous Applications

Upon making a motion or application to the court, or to a judge thereof before the return day of the action, (1) for an order appointing a receiver or an injunction, or (2) for a modification or dissolution of any such order or injunction, or (3) for issuance of a prejudgment remedy, or (4) for a reduction or dissolution of an attachment, if a motion or application for the same order or injunction has been previously made to the court or to any judge, such motion or application shall so recite. Nothing in this section shall be so construed as to preclude the making of more than one motion or application for the same or similar order or injunction or affect in any way the right of the applicant to have such motion or application passed upon on its merits.

(P.B. 1978-1997, Sec. 203.)

Sec. 11-10. Requirement That Memorandum of Law Be Filed with Certain Motions

(a) A memorandum of law briefly outlining the claims of law and authority pertinent thereto shall be filed and served by the movant with the following motions and requests: (1) motions regarding parties filed pursuant to Sections 9-18 through 9-22 and motions to implead a third-party defendant filed pursuant to Section 10-11; (2) motions to dismiss except those filed pursuant to Section 14-3; (3) motions to strike; (4) motions to set aside judgment filed pursuant to Section 17-4; and (5) motions for summary judgment. Memoranda of

law may be filed by other parties on or before the time the matter appears on the short calendar.

(b) A reply memorandum is not required and the absence of such memoranda will not prejudice any party. A reply memorandum shall be strictly confined to a discussion of matters raised by the responsive memorandum and shall be filed within fourteen days of the filing of the responsive memorandum to which such reply memoranda is being made.

(c) Surreply memoranda cannot be filed without the permission of the judicial authority.

(P.B. 1978-1997, Sec. 204.) (Amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 11-11. Motions Which Delay the Commencement of the Appeal Period or Cause the Appeal Period To Start Again

Any motions which would, pursuant to Section 63-1, delay the commencement of the appeal period, and any motions which, pursuant to Section 63-1, would toll the appeal period and cause it to begin again, shall be filed simultaneously insofar as such filing is possible, and shall be considered by the judge who rendered the underlying judgment or decision. The party filing any such motion shall set forth the judgment or decision which is the subject of the motion, the name of the judge who rendered it, the specific grounds upon which the party relies, and shall indicate on the bottom of the first page of the motion that such motion is a Section 11-11 motion. The foregoing applies to motions to reargue decisions that are final judgments for purposes of appeal, but shall not apply to motions under Sections 16-35, 17-2A and 11-12.

(P.B. 1978-1997, Sec. 204A.)

Sec. 11-12. Motion To Reargue

(a) A party who wishes to reargue a decision or order rendered by the court shall, within twenty days from the issuance of notice of the rendition of the decision or order, file a motion to reargue setting forth the decision or order which is the subject of the motion, the name of the judge who rendered it, and the specific grounds for reargument upon which the party relies.

(b) The judge who rendered the decision or order may, upon motion of a party and a showing of good cause, extend the time for filing a motion to reargue. Such motion for extension must be filed before the expiration of the twenty day time period in subsection (a).

(c) The motion to reargue shall be considered by the judge who rendered the decision or order. Such judge shall decide, without a hearing, whether the motion to reargue should be granted. If the judge grants the motion, the judge shall schedule the matter for hearing on the relief requested.

(d) This section shall not apply to motions to reargue decisions which are final judgments for purposes of appeal. Such motions shall be filed pursuant to Section 11-11.

(P.B. 1978-1997, Sec. 204B.)

Sec. 11-13. Short Calendar; Need for List; Case Assigned for Trial; Reclaims

(a) Unless otherwise provided in these rules or ordered by the judicial authority, questions as to the terms or form of a decree or judgment to be rendered on the report of a committee or of auditors, or on an award of arbitrators, foreclosures where the only question is as to the time to be limited for redemption, all motions and objections to requests when practicable, and all issues of law must be placed on the short calendar list. No motions will be heard which are not on said list and ought to have been placed thereon; provided that any motion in a case on trial, or assigned for trial, may be disposed of by the judicial authority at its discretion, or ordered upon the short calendar list on terms, or otherwise.

(b) Unless it is filed electronically, whenever a short calendar matter or reclaim slip is filed in a case which has been assigned for trial, the filing party shall place the words “assigned for trial” on the bottom of the first page of the document and on any short calendar reclaim slip. The moving party at a short calendar hearing shall, when applicable, inform the judicial authority that the case has been assigned for trial.

(c) If a motion has gone off the short calendar without being adjudicated, any party may claim the motion for adjudication. If an objection to a request has gone off the short calendar without being adjudicated, the party who filed the request may claim the objection to the request for adjudication. If a case is on the docket management list, any party may claim any motion or objection for adjudication when the motion or objection must be resolved to close the pleadings.

(P.B. 1978-1997, Sec. 206.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 11-14. —Short Calendar; Frequency; Time; Lists

Short calendar sessions shall be held in each judicial district and geographical area at least once each month, the date, hour and place to be fixed by the presiding judge upon due notice to the clerk. The caseflow coordinator or clerk, in consultation with the presiding judge, shall determine the number of lists, such as whether there shall be separate lists for family relations matters and foreclosures, and whether various portions of any one list shall be scheduled for different days and for different hours of the same day. Notice of

the assigned date and time of the motion shall be provided to attorneys and self-represented parties of record.

(P.B. 1978-1997, Sec. 207.) (Amended June 29, 2007, to take effect Jan. 1, 2008.)

Sec. 11-15. —Short Calendar; Assignments Automatic

Matters to be placed on the short calendar shall be assigned automatically by the clerk without written claim, except as provided in Section 17-31. No such matters shall be so assigned unless filed at least five days before the opening of court on the short calendar day. Motions to dismiss, motions to strike, and motions for summary judgment shall be assigned in accordance with Sections 10-31, 10-40 and 17-45, respectively.

(P.B. 1978-1997, Sec. 208.)

Sec. 11-16. —Continuances when Counsel's Presence or Oral Argument Required

Matters upon the short calendar list requiring oral argument or counsel's presence shall not be continued except for good cause shown; and no such matter in which adverse parties are interested shall be continued unless the parties shall agree thereto before the day of the short calendar session and notify the clerk, who shall make note thereof on the list of the presiding judge; in the absence of such agreement, unless the judicial authority shall otherwise order, any counsel appearing may argue the matter and submit it for decision, or request that it be denied.

(P.B. 1978-1997, Sec. 209.)

Sec. 11-17. —Transfers on Short Calendar

Matters on the short calendar list may, by written stipulation of the parties and consent of the judge, be heard and disposed of by any judge in any judicial district, who shall certify the decision to the clerk of the court in which the action is pending, who shall thereupon enter the decision as the order or judgment of the court.

(P.B. 1978-1997, Sec. 210.)

Sec. 11-18. —Oral Argument of Motions in Civil Matters

(a) Oral argument is at the discretion of the judicial authority except as to motions to dismiss, motions to strike, motions for summary judgment, motions for judgment of foreclosure, and motions for judgment on the report of an attorney trial referee and/or hearing on any objections thereto. For those motions, oral argument shall be a matter of right, provided:

(1) the motion has been marked ready in accordance with the procedure that appears on the short calendar on which the motion appears, or

(2) a nonmoving party files and serves on all other parties pursuant to Sections 10-12 through 10-17, with proof of service endorsed thereon, a written notice stating the party's intention to argue the motion or present testimony. Such a notice shall be filed on or before the third day before the date of the short calendar date and shall contain (A) the name of the party filing the motion and (B) the date of the short calendar on which the matter appears.

(b) As to any motion for which oral argument is of right and as to any other motion for which the judicial authority grants or, in its own discretion, requires argument or testimony, the date for argument or testimony shall be set by the judge to whom the motion is assigned.

(c) If a case has been designated for argument as of right or by the judicial authority but a date for argument or testimony has not been set within thirty days of the date the motion was marked ready, the movant may reclaim the motion.

(d) Failure to appear and present argument on the date set by the judicial authority shall constitute a waiver of the right to argue unless the judicial authority orders otherwise.

(e) Notwithstanding the above, all motions to withdraw appearance, except those under Section 3-9 (b), and any other motions designated by the chief court administrator in the civil short calendar standing order shall be set down for oral argument.

(f) For those motions for which oral argument is not a matter of right, oral argument may be requested in accordance with the procedure that is printed on the short calendar on which the motion appears.

(P.B. 1978-1997, Sec. 211.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 11-19. —Time Limit for Deciding Short Calendar Matters

(a) Any judge of the Superior Court and any judge trial referee to whom a short calendar matter has been submitted for decision, with or without oral argument, shall issue a decision on such matter not later than 120 days from the date of such submission, unless such time limit is waived by the parties. In the event that the judge or referee conducts a hearing on the matter and/or the parties file briefs concerning it, the date of submission for purposes of this section shall be the date the matter is heard or the date the last brief ordered by the court is filed, whichever occurs later. If a decision is not rendered within this period the matter may be claimed in accordance with subsection (b) for assignment to another judge or referee.

(b) A party seeking to invoke the provisions of this section shall not later than fourteen days after

the expiration of the 120 day period file with the clerk a motion for reassignment of the undecided short calendar matter which shall set forth the date of submission of the short calendar matter, the name of the judge or referee to whom it was submitted, that a timely decision on the matter has not been rendered, and whether or not oral argument is requested or testimony is required. The failure of a party to file a timely motion for reassignment shall be deemed a waiver by that party of the 120 day time.

(P.B. 1978-1997, Sec. 211A.)

Sec. 11-20. Closure of Courtroom in Civil Cases

(Amended May 14, 2003, to take effect July 1, 2003.)

(a) Except as otherwise provided by law, there shall be a presumption that courtroom proceedings shall be open to the public.

(b) Except as provided in this section and except as otherwise provided by law, the judicial authority shall not order that the public be excluded from any portion of a courtroom proceeding.

(c) Upon written motion of any party, or upon its own motion, the judicial authority may order that the public be excluded from any portion of a courtroom proceeding only if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in attending such proceeding. The judicial authority shall first consider reasonable alternatives to any such order and any such order shall be no broader than necessary to protect such overriding interest. An agreement of the parties to close the courtroom shall not constitute a sufficient basis for the issuance of such an order.

(d) In connection with any order issued pursuant to subsection (c) of this section, the judicial authority shall articulate the overriding interest being protected and shall specify its findings underlying such order. If any findings would reveal information entitled to remain confidential, those findings may be set forth in a sealed portion of the record. The time, date and scope of any such order shall be set forth in a writing signed by the judicial authority which upon issuance the court clerk shall immediately enter in the court file and publish by posting both on the Judicial Branch website and on a bulletin board adjacent to the clerk's office and accessible to the public. The judicial authority shall order that a transcript of its decision be included in the file or prepare a memorandum setting forth the reasons for its order.

(e) A motion to close a courtroom proceeding shall be filed not less than fourteen days before the proceeding is scheduled to be heard. Such motion shall be placed on the short calendar so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The motion itself may be filed under seal, where appropriate, by leave of the judicial authority. When placed on a short calendar, motions filed under this rule shall be listed in a separate section titled "Motions to Seal or Close" and shall also be listed with the time, date and place of the hearing on the Judicial Branch website. A notice of such motion being placed on the short calendar shall, upon issuance of the short calendar, be posted on a bulletin board adjacent to the clerk's office and accessible to the public.

(f) With the exception of any provision of the General Statutes under which the judicial authority is authorized to close courtroom proceedings, whether at a pretrial or trial stage, no order excluding the public from any portion of a courtroom proceeding shall be effective until seventy-two hours after it has been issued. Any person affected by such order shall have the right to the review of such order by the filing of a petition for review with the Appellate Court within seventy-two hours from the issuance of such order. The timely filing of any petition for review shall stay such order.

(P.B. 1978-1997, Sec. 211B.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended May 14, 2003, to take effect July 1, 2003; amended June 21, 2004, to take effect Jan. 1, 2005; June 20, 2011, to take effect Jan. 1, 2012.)

HISTORY—2003: Prior to July 1, 2003, Sec. 11-20 read: "Exclusion of the Public; Sealing Files Limiting Disclosure of Documents

"(a) Except as provided in this section and except as otherwise provided by law, including Section 13-5, the judicial authority shall not order that the public, which may include the news media, be excluded from any portion of a proceeding and shall not order that any files, affidavits, documents, or other materials on file with the court or filed in connection with a court proceeding be sealed or their disclosure limited.

"(b) Upon motion of any party, or upon its own motion, the judicial authority may order that the public be excluded from any portion of a proceeding and may order that files, affidavits, documents or other materials on file with the court or filed in connection with a court proceeding be sealed or their disclosure limited if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in attending such proceeding or in viewing such materials. Any such order shall be no broader than necessary to protect such overriding interest.

"(c) In connection with any order issued pursuant to subsection (b) of this section, the judicial authority shall, on the record in open court, articulate the overriding interest being protected and shall specify its findings underlying such order. The time and date of any such order shall be entered by the court clerk in the court file together with such order.

"(d) With the exception of orders concerning any session of court conducted pursuant to General Statutes §§ 46b-11, 46b-49, 46b-122 or any other provision of the General Statutes under which the judicial authority is authorized to close proceedings, whether at a pretrial or trial stage, no order excluding

the public from any portion of a proceeding shall be effective until seventy-two hours after it has been issued. Any person affected by such order shall have the right to the review of such order by the filing of a petition for review with the Appellate Court within seventy-two hours from the issuance of such order. The timely filing of any petition for review shall stay such order.

"(e) With the exception of orders concerning the confidentiality of records and other papers, issued pursuant to General Statutes § 46b-11 or any other provision of the General Statutes under which the court is authorized to seal or limit the disclosure of files, affidavits, documents or other materials, whether at a pretrial or trial stage, any person affected by a court order that seals or limits the disclosure of any files, documents or other materials on file with the court or filed in connection with a court proceeding, shall have the right to the review of such order by the filing of a petition for review with the Appellate Court within seventy-two hours from the issuance of such order. Nothing under this subsection shall operate as a stay of such sealing order.

"(f) The provisions of this section shall not apply to settlement agreements which have not been incorporated into a judgment of the court."

COMMENTARY—2003: The public and press enjoy a right of access to attend trials in civil as well as criminal cases. *Westmoreland* v. *Columbia Broadcasting System, Inc.*, 752 F.2d 16, 22 (2d Cir. 1984); *Publicker Industries, Inc.* v. *Cohen*, 733 F.2d 1059, 1071 (3d Cir. 1984). This right is implicit in the first and fourteenth amendments. *Westmoreland* v. *Columbia Broadcasting System, Inc.*, supra, 21. In civil cases, public access to trials "enhances the quality and safeguards the integrity of the factfinding process . . . fosters an appearance of fairness . . . and heightens public respect for the judicial process . . . while permitting the public to participate in and serve as a check upon the judicial process—an essential component in our structure of self government . . . ." (Citations omitted; internal quotation marks omitted.) Id., 23.

For a further discussion of court closure, see the Commentary to Section 42-49.

Because this section no longer deals with the sealing of documents, subsections (e) and (f) have been transferred, with revisions, to Section 11-20A.

HISTORY—2005: Prior to 2005, the third sentence of subsection (d) read: "The time, date and scope of any such order shall be in writing and shall be signed by the judicial authority and be entered by the court clerk in the court file."

COMMENTARY—2005: As used in subsection (a) above, the words "Except as otherwise provided by law" are intended to exempt from the operation of this rule all established procedures for the closure of courtroom proceedings as required or permitted by statute; e.g., General Statutes §§ 19a-583 (a) (10) (D) (pertaining to court proceedings as to disclosure of confidential HIV-related information), 36a-21 (b) (pertaining to court proceedings at which certain records of the Department of Banking are disclosed), 46b-11 (pertaining to hearings in family relations matters), 54-86c (b) (pertaining to the disclosure of exculpatory information or material), 54-86f (pertaining to the admissibility of evidence of sexual conduct) and 54-86g (pertaining to the testimony of a victim of child abuse); other rules of practice; e.g., Practice Book Section 40-43; and/or controlling state or federal case law.

The above amendment to subsection (d) establishes a mechanism by which the public and the press, who are empowered by this rule to object to pending motions to close the courtroom in civil matters, will receive timely notice of the court's disposition of such motions. General Statutes § 51-164x (a) gives any person affected by a court closure order in a civil action the right to the review of such order by filing a petition for review with the Appellate Court within seventy-two hours from the issuance of the order.

HISTORY—2012: In 2012, in beginning of the fifth sentence of subsection (e), "notice of such motion being placed on" was substituted for "copy of," before "the short calendar." Also, in that same sentence, "page containing the aforesaid section" was deleted, after "short calendar."

COMMENTARY—2012: The above amendment is intended to provide for the electronic filing and processing of documents and orders, and the maintenance of court records, where the present terminology, filing requirements or processes that are applicable in a paper environment result in confusion or redundancy when applied to an electronic environment.

Sec. 11-20A. Sealing Files or Limiting Disclosure of Documents in Civil Cases

(a) Except as otherwise provided by law, there shall be a presumption that documents filed with the court shall be available to the public.

(b) Except as provided in this section and except as otherwise provided by law, including Section 13-5, the judicial authority shall not order that any files, affidavits, documents, or other materials on file with the court or filed in connection with a court proceeding be sealed or their disclosure limited.

(c) Upon written motion of any party, or upon its own motion, the judicial authority may order that files, affidavits, documents, or other materials on file or lodged with the court or in connection with a court proceeding be sealed or their disclosure limited only if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in viewing such materials. The judicial authority shall first consider reasonable alternatives to any such order and any such order shall be no broader than necessary to protect such overriding interest. An agreement of the parties to seal or limit the disclosure of documents on file with the court or filed in connection with a court proceeding shall not constitute a sufficient basis for the issuance of such an order.

(d) In connection with any order issued pursuant to subsection (c) of this section, the judicial authority shall articulate the overriding interest being protected and shall specify its findings underlying such order and the duration of such order. If any findings would reveal information entitled to remain confidential, those findings may be set forth in a sealed portion of the record. The time, date, scope and duration of any such order shall be set forth in a writing signed by the judicial authority which upon issuance the court clerk shall immediately enter in the court file and publish by posting both on the Judicial Branch website and on a bulletin board adjacent to the clerk's office and accessible to the public. The judicial authority shall order that a transcript of its decision be included in the file or prepare a memorandum setting forth the reasons for its order.

(e) Except as otherwise ordered by the judicial authority, a motion to seal or limit the disclosure

of affidavits, documents, or other materials on file or lodged with the court or in connection with a court proceeding shall be calendared so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The procedures set forth in Sections 7-4B and 7-4C shall be followed in connection with a motion to file affidavits, documents or other materials under seal or to limit their disclosure.

(f) (1) A motion to seal the contents of an entire court file shall be placed on the short calendar to be held not less than fifteen days following the filing of the motion, unless the judicial authority otherwise directs, so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The procedures set forth in Sections 7-4B and 7-4C shall be followed in connection with such motion.

(2) The judicial authority may issue an order sealing the contents of an entire court file only upon a finding that there is not available a more narrowly tailored method of protecting the overriding interest, such as redaction, sealing a portion of the file or authorizing the use of pseudonyms. The judicial authority shall state in its decision or order each of the more narrowly tailored methods that was considered and the reason each such method was unavailable or inadequate.

(g) With the exception of any provision of the General Statutes under which the court is authorized to seal or limit the disclosure of files, affidavits, documents, or other materials, whether at a pretrial or trial stage, any person affected by a court order that seals or limits the disclosure of any files, documents or other materials on file with the court or filed in connection with a court proceeding, shall have the right to the review of such order by the filing of a petition for review with the Appellate Court within seventy-two hours from the issuance of such order. Nothing under this subsection shall operate as a stay of such sealing order. Any party requesting the use of a pseudonym pursuant to this section shall lodge the original documents with the true identity of the party or parties with the clerk of the court in accordance with Sections 7-4B and 7-4C.

(h) (1) Pseudonyms may be used in place of the name of a party or parties only with the prior approval of the judicial authority and only if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in knowing the name of the party or parties. The judicial authority shall first consider reasonable alternatives to any such order and any such order shall be no broader than necessary to protect such overriding interest. The judicial authority shall articulate the overriding interest being protected and shall specify its findings underlying such order and the duration of such order. If any findings would reveal information entitled to remain confidential, those findings may be set forth in a sealed portion of the record. The time, date, scope and duration of any such order shall forthwith be reduced to writing and be signed by the judicial authority and be entered by the court clerk in the court file. The judicial authority shall order that a transcript of its decision be included in the file or prepare a memorandum setting forth the reasons for its order. An agreement of the parties that pseudonyms be used shall not constitute a sufficient basis for the issuance of such an order. The authorization of pseudonyms pursuant to this section shall be in place of the names of the parties required by Section 7-4A.

(2) The judicial authority may grant prior to the commencement of the action a temporary ex parte application for permission to use pseudonyms pending a hearing on continuing the use of such pseudonyms to be held not less than fifteen days after the return date of the complaint.

(3) After commencement of the action, a motion for permission to use pseudonyms shall be placed on the short calendar to be held not less than fifteen days following the filing of the motion, unless the judicial authority otherwise directs, so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. Leave of the court may be sought to file the motion under seal pending a disposition of the motion by the judicial authority.

(4) Any order allowing the use of a pseudonym in place of the name of a party shall also require the parties to use such pseudonym in all documents filed with the court.

(i) The provisions of this section shall not apply to settlement conferences or negotiations or to documents submitted to the court in connection with such conferences or negotiations. The provisions of this section shall apply to settlement agreements which have been filed with the court or have been incorporated into a judgment of the court.

(j) When placed on a short calendar, motions filed under this rule shall be listed in a separate section titled "Motions to Seal or Close" and shall also be listed with the time, date and place of the hearing on the Judicial Branch website. A notice of such motion being placed on the short calendar shall, upon issuance of the short calendar, be posted on a bulletin board adjacent to the clerk's office and accessible to the public.

(Adopted May 14, 2003, to take effect July 1, 2003; amended June 21, 2004, to take effect Jan. 1, 2005; amended

June 20, 2011, to take effect Jan. 1, 2012; amended June 23, 2017, to take effect Jan. 1, 2018.)

COMMENTARY—2003: The public and press enjoy a right of access to attend trials in civil as well as criminal cases. See *Nixon* v. *Warner Communications, Inc.*, 435 U.S. 589, 597–608, 98 S. Ct. 1306, 55 L. Ed. 2d 570 (1978). The guarantee of open public proceedings in civil trials applies as well to the sealing of court documents. See *Publicker Industries, Inc.* v. *Cohen*, 733 F.2d 1059, 1070–71 (3d Cir. 1984).

See also the Commentary to Section 42-49A.

Motions to seal or limit the disclosure of affidavits, documents or other materials in cases on the complex litigation docket shall appear on the regular short calendar for the purpose of providing notice to the public.

As regards the use of pseudonyms set out in subsection (h) of this section, it is clear that such use generally runs afoul of the public's right of access to judicial proceedings. *Does I Thru XXIII* v. *Advanced Textile Corp.*, 214 F.3d 1058, 1067 (9th Cir. 2000). "Though not as critical as access to the proceedings, knowing the litigants' identities nevertheless tends to sharpen public scrutiny of the judicial process, to increase confidence in the administration of the law, to enhance the therapeutic value of judicial proceedings, and to serve the structural function of the first amendment by enabling informed discussion of judicial operations." (Internal quotation marks omitted.) *Doe* v. *Burkland*, 808 A.2d 1090, 1097 (R.I. 2002).

"[M]any federal courts . . . have permitted parties to proceed anonymously when special circumstances justify secrecy. . . . In [the Ninth] [C]ircuit, [parties are allowed] to use pseudonyms in the 'unusual case' when nondisclosure of the party's identity 'is necessary . . . to protect a person from harassment, injury, ridicule or personal embarrassment.' *United States* v. *Doe*, 655 F.2d 920, 922 n.1 (9th Cir. 1981) . . . ." (Citations omitted.) *Does I Thru XXIII* v. *Advanced Textile Corp.*, supra, 214 F.3d 1067–68. In *Does I Thru XXIII* v. *Advanced Textile Corp.*, supra, 1062, the plaintiffs filed suit under pseudonyms against their employers alleging multiple violations of the Fair Labor Standards Act. The court concluded that in determining whether to allow the use of pseudonyms, the trial court must consider the severity of the plaintiffs' threatened injury, the reasonableness of their fears and their vulnerability to retaliation. Id., 1068. In *Doe* v. *Frank*, 951 F.2d 320, 322 (11th Cir. 1992), the plaintiff, a government employee challenging government activity, was denied permission to proceed under a pseudonym which he sought due to his alcoholism. The court concluded that a plaintiff should be permitted to proceed anonymously only in "exceptional cases involving matters of a highly sensitive and personal nature, real danger of physical harm, or where the injury litigated against would be incurred as a result of the disclosure of the plaintiff's identity. The risk that a plaintiff may suffer some embarrassment is not enough." Id., 324. The need for anonymity must outweigh the presumption of openness.

"The privilege of using fictitious names in actions should be granted only in the rare case where the nature of the issue litigated and the interest of the parties demand it and no harm can be done to the public interest." See *Buxton* v. *Ullman*, 147 Conn. 48, 60, 156 A.2d 508 (1959) (parties who were medical patients of named plaintiff were allowed to use pseudonyms due to intimate and distressing details alleged in complaint regarding prevention of contraception), appeal dismissed sub nom. *Poe* v. *Ullman*, 367 U.S. 497, 81 S. Ct. 1752, 6 L. Ed. 2d 989 (1961). Connecticut trial courts applying the *Buxton* holding have concluded that permission to proceed anonymously may be appropriate in situations involving social stigmatization, real danger of physical harm, or risk of an unfair trial. *Doe* v. *Diocese Corp.*, 43 Conn. Supp. 152, 158, 647 A.2d 1067 (1994) (plaintiff was allowed to proceed anonymously in action against defendants for past sexual abuse). Courts have generally concluded that there must be a strong social interest in concealing a party's identity, but the possibility that a litigant may suffer some embarrassment, economic harm, or loss of reputation have been found not to be sufficiently overriding interests to justify anonymity. *ABC, LLC* v. *State Ethics Commission*, Superior Court, judicial district of New Britain, Docket No. CV-00-050407S (October 11, 2000).

In *Doe* v. *Connecticut Bar Examining Committee*, 263 Conn. 39, 818 A.2d 14 (2003), the plaintiff sought to proceed anonymously in an action against the defendant in connection with the defendant's failure to recommend the plaintiff for admission to the bar. The Supreme Court, in determining that the use of a pseudonym in this case should be left to the discretion of the Superior Court, stated: "Because lawsuits are public events . . . a plaintiff should be permitted to proceed anonymously only in those exceptional cases involving matters of a highly sensitive and personal nature. . . . A plaintiff's desire to avoid economic and social harm as well as embarrassment and humiliation in his professional and social community is normally insufficient to permit him to appear without disclosing his identity." (Citation omitted; internal quotation marks omitted.) Id., 70.

HISTORY—2005: Prior to 2005, the third sentence of subsection (d) read: "The time, date, scope and duration of any such order shall forthwith be reduced to writing and be signed by the judicial authority and be entered by the court clerk in the court file."

COMMENTARY—2005: As used in subsection (a) above, the words "Except as otherwise provided by law" are intended to exempt from the operation of this rule all established procedures for the sealing or ex parte filing, in camera inspection and/or nondisclosure to the public of documents, records and other materials, as required or permitted by statute; e.g., General Statutes §§ 12-242vv (pertaining to taxpayer information), 52-146c et seq. (pertaining to the disclosure of psychiatric records) and 54-56g (pertaining to the pretrial alcohol education program); other rules of practice; e.g., Practice Book Sections 7-18, 13-5 (6) through (8) and 40-13 (c); and/or controlling state or federal case law; e.g., *Matza* v. *Matza*, 226 Conn. 166, 627 A.2d 414 (1993) (establishing a procedure whereby an attorney seeking to withdraw from a case due to his client's anticipated perjury at trial may support his motion to withdraw by filing a sealed affidavit for the court's review).

The above amendment to subsection (d) establishes a mechanism by which the public and the press, who are empowered by this rule to object to pending motions to seal files or limit the disclosure of documents in civil matters, will receive timely notice of the court's disposition of such motions. General Statutes § 51-164x (c) gives any person affected by a court order sealing a file or limiting the disclosure of a document in a civil action the right to the review of such order by filing a petition for review with the Appellate Court within seventy-two hours from the issuance of the order.

HISTORY—2012: In 2012, at the beginning of the second sentence of subsection (j), "notice of such motion being placed on" was substituted for "copy of," before "the short calendar." Also, in that same sentence, "page containing the aforesaid section" was deleted, after "short calendar."

COMMENTARY—2012: The above amendment is intended to provide for the electronic filing and processing of documents and orders, and the maintenance of court records, where the present terminology, filing requirements or processes that are applicable in a paper environment result in confusion or redundancy when applied to an electronic environment.

HISTORY—2018: What is now the final sentence was added to subsection (g).

COMMENTARY—2018: The change to this section clarifies that a party requesting the approval of the judicial authority to use a pseudonym must lodge the original documents identifying the party or parties by name with the clerk of the court.

Sec. 11-20B. —Documents Containing Personal Identifying Information

(a) The requirements of Section 11-20A shall not apply to "personal identifying information," as defined in Section 4-7, that may be found in documents filed with the court. If a document containing personal identifying information is filed with the court, a party or a person identified by the personal identifying information may request that the document containing the personal identifying information be sealed. In response to such request, or on its own motion, the court shall order that the document be sealed and that the party who filed the document submit a redacted copy of the document within ten days of such order.

(b) If the party who filed the document fails to submit a redacted copy of the document within ten days of the order, the court may enter sanctions, including a nonsuit or default, as appropriate, against said party for such failure upon the expiration of the ten day period. Upon the submission of a redacted copy of such document, the original document containing the personal identifying information shall be retained as a sealed document in the court file, unless otherwise ordered by the court.

(Adopted June 22, 2009, to take effect Jan. 1, 2010; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 11-21. Motions for Attorney's Fees

Motions for attorney's fees shall be filed with the trial court within thirty days following the date on which the final judgment of the trial court was rendered. If appellate attorney's fees are sought, motions for such fees shall be filed with the trial court within thirty days following the date on which the Appellate Court or Supreme Court rendered its decision disposing of the underlying appeal. Nothing in this section shall be deemed to affect an award of attorney's fees assessed as a component of damages.

(Adopted June 29, 1998, to take effect Jan. 1, 1999.)

CHAPTER 12

TRANSFER OF ACTIONS

Sec.
12-1. Procedure for Transfer
12-2. Transfer of Action Filed in Wrong Location of Correct Court
12-3. Transmission of Files and Papers

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 12-1. Procedure for Transfer

Any cause, or the trial of any issue therein, may be transferred from a judicial district court location to any other judicial district court location or to any geographical area court location, or from a geographical area court location to any other geographical area court location or to any judicial district court location, by order of a judicial authority (1) upon its own motion or upon the granting of a motion of any of the parties, or (2) upon written agreement of the parties filed with the court. (See General Statutes § 51-347b and annotations.)

(P.B. 1978-1997, Sec. 212.)

Sec. 12-2. Transfer of Action Filed in Wrong Location of Correct Court

A clerk of the court of a judicial district or geographical area should not accept a civil cause which is made returnable to a judicial district or geographical area of which such person is not the clerk. A clerk who does accept and enter such a civil cause shall, upon discovery of the error, bring the matter to the attention of the court. The judicial authority shall then order the plaintiff to file a motion to transfer with such notice to the defendant as the judicial authority may direct. If the plaintiff complies, the motion to transfer shall be granted; but if the plaintiff fails to comply with the order of the judicial authority within a reasonable time, the judicial authority shall dismiss the action with costs.

(P.B. 1978-1997, Sec. 213.)

Sec. 12-3. Transmission of Files and Papers

Upon the transfer of any action, the clerk of the court in which such action is pending shall transmit to the clerk of the court to which such cause is transferred the original files and papers in such cause with a certificate of such transfer, who shall enter such cause in the docket of the court to which it is so transferred; and such cause shall thereafter be proceeded with in the same manner as if it were originally brought to such court. When a case which has been claimed for trial is subsequently transferred to another court, a new certificate of closed pleadings shall not be required, and its position on the inventory of pending cases of the transferee court shall be determined by the certificate of closed pleadings date in the original file. Where only the trial of an issue or issues in an action is transferred, the files, after such issues have been disposed of, shall be returned to the clerk of the court where the action originated and judgment may be entered in such court. (See General Statutes § 51-347b; see also Section 14-8.)

(P.B. 1978-1997, Sec. 215.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

CHAPTER 13

DISCOVERY AND DEPOSITIONS

Sec.
13-1. Definitions
13-2. Scope of Discovery; In General
13-3. —Materials Prepared in Anticipation of Litigation; Statements of Parties; Privilege Log
13-4. —Experts
13-5. —Protective Order
13-6. Interrogatories; In General
13-7. —Answers to Interrogatories
13-8. —Objections to Interrogatories
13-9. Requests for Production, Inspection and Examination; In General
13-10. —Responses to Requests for Production; Objections
13-11. Physical or Mental Examination
13-11A. —Motion for Authorization To Obtain Protected Health Information
13-12. Disclosure of Amount and Provisions of Insurance Liability Policy
13-12A. Disclosure of Medicare Enrollment, Eligibility and Payments Received
13-13. Disclosure of Assets in Cases in Which Prejudgment Remedy Sought
13-14. Order for Compliance; Failure To Answer or Comply with Order
13-15. Continuing Duty To Disclose
13-16. Orders by Judge
13-17. Disclosure before Court or Committee
13-18. Disclosures in Equity
13-19. Disclosure of Defense
13-20. Discovery Sought by Judgment Creditor
13-21. Discovery outside of the United States of America
13-22. Admission of Facts and Execution of Writings; Requests for Admission
13-23. —Answers and Objections to Requests for Admission
13-24. —Effect of Admission
13-25. —Expenses on Failure To Admit
13-26. Depositions; In General
13-27. —Notice of Deposition; General Requirements; Special Notice; Nonstenographic Recording Production of Documents and Things; Deposition of Organization
13-28. —Persons before Whom Deposition May Be Taken or Use in Proceedings in this State
13-28A —Deposition Subpoenas
13-29. —Place of Deposition
13-30. —Deposition Procedure
13-31. —Use of Depositions in Court Proceedings
13-32. Agreements regarding Discovery and Deposition Procedure
13-33. Claim of Privilege or Protection after Production

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 13-1. Definitions

(a) For purposes of this chapter: (1) "statement" means (A) a written statement in the handwriting of the person making it, or signed, or initialed, or otherwise in writing adopted or approved by the person making it; or (B) a stenographic, mechanical, electrical or other recording or a transcription thereof, which is a substantially verbatim recital of an oral statement by the person making it and which is contemporaneously recorded; (2) "party" means (A) a person named as a party in the action, or (B) an agent, employee, officer, or director of a public or private corporation, partnership, association, or governmental agency, named as a party in the action; (3) "representative" includes agent, attorney, consultant, indemnitor, insurer, and surety; (4) "electronic" means relating to technology having electrical, digital, magnetic, wireless, optical, electromagnetic, or similar capabilities; (5) "electronically stored information" means information that is stored in an electronic medium and is retrievable in perceivable form.

(b) The full text of the definitions and rules of construction set forth in subsections (c) and (d) herein is deemed incorporated by reference into all discovery requests served pursuant to this chapter and shall preclude any broader definition of a term defined in subsection (c), but shall not preclude: (1) the definition of other terms specific to the particular litigation; (2) the use of abbreviations; or (3) a more narrow definition of a term defined in subsection (c).

(c) The following definitions apply to all discovery requests:

(1) Communication. The term "communication" means the transmittal of information (in the form of facts, ideas, inquiries or otherwise).

(2) Document. The term "document" means any writing, drawing, graph, chart, photograph, sound recording, image, and other data or data compilation, stored in any medium from which information can be obtained either directly or, if necessary, after translation by the responding party into a reasonably usable form. A draft or nonidentical copy is a separate document within the meaning of this term. A request for production of "documents" shall encompass, and the response shall include, electronically stored information, as defined in subsection (a) above, unless otherwise specified by the requesting party.

(3) Identify (with respect to persons). When referring to a person, to "identify" means to provide, to the extent known, the person's full name,

present or last known address, and when referring to a natural person, additionally, the present or last known place of employment. Once a person has been identified in accordance with this subdivision, only the name of that person need be listed in response to subsequent discovery requesting the identification of that person.

(4) Identify (with respect to documents or electronically stored information). When referring to documents or electronically stored information, to "identify" means: to provide, to the extent known, information about the (A) type of document or electronically stored information; (B) its general subject matter; (C) the date of the document or electronically stored information; and (D) author(s), addressee(s) and recipient(s).

(5) Identify (with respect to oral communications). When referring to an oral communication, to "identify" means: (A) to state the date and place of the oral communication; (B) to identify all persons hearing, present or participating in the communication; (C) to state whether the communication was in person, by telephone, or by some other means or medium; (D) to summarize what was said by each such person, or provide a transcript if one is available.

(6) Identify (with respect to an act or event). When referring to an act or event, to "identify" means: (A) to describe the act or event, including its location and its date; (B) to identify the persons participating, present or involved in the act or event; (C) to identify all oral communications which were made at the act or event identified; and (D) to identify all documents concerning the act or event identified.

(7) Person. The term "person" is defined as any natural person or any business, legal or governmental entity or association.

(8) Concerning. The term "concerning" means relating to, referring to, describing, evidencing or constituting.

(9) You. The term "you" means the party or person to whom a discovery request is directed, except that: (A) if the party is the representative of the estate of a decedent, ward, or incapable person, "you" shall also refer to the party's decedent, ward or incapable person, unless the context of the discovery request clearly indicates otherwise; and (B) notwithstanding subsection (b) above, the propounding party may specify a different definition of the term "you."

(d) The following rules of construction apply to all discovery requests:

(1) All/Each. The terms "all" and "each" shall both be construed as all and each.

(2) And/Or. The connectives "and" and "or" shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the discovery request all responses that might otherwise be construed to be outside its scope.

(3) Number. The use of the singular form of any word includes the plural and vice versa.

(4) Gender. Unless the context clearly requires otherwise, the use of any pronoun or gender-identified form of any word includes both the male and female genders.

(P.B. 1978-1997, Sec. 216.) (Amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 13-2. Scope of Discovery; In General

In any civil action, in any probate appeal, or in any administrative appeal where the judicial authority finds it reasonably probable that evidence outside the record will be required, a party may obtain in accordance with the provisions of this chapter discovery of information or disclosure, production and inspection of papers, books, documents and electronically stored information material to the subject matter involved in the pending action, which are not privileged, whether the discovery or disclosure relates to the claim or defense of the party seeking discovery or to the claim or defense of any other party, and which are within the knowledge, possession or power of the party or person to whom the discovery is addressed. Discovery shall be permitted if the disclosure sought would be of assistance in the prosecution or defense of the action and if it can be provided by the disclosing party or person with substantially greater facility than it could otherwise be obtained by the party seeking disclosure. It shall not be ground for objection that the information sought will be inadmissible at trial if the information sought appears reasonably calculated to lead to the discovery of admissible evidence. Written opinions of health care providers concerning evidence of medical negligence, as provided by General Statutes § 52-190a, shall not be subject to discovery except as provided in that section.

(P.B. 1978-1997, Sec. 218.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 13-3. —Materials Prepared in Anticipation of Litigation; Statements of Parties; Privilege Log

(Amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) Subject to the provisions of Section 13-4, a party may obtain discovery of documents and tangible things otherwise discoverable under Section 13-2 and prepared in anticipation of litigation or for trial by or for another party or by or for that other party's representative only upon a showing that the party seeking discovery has substantial need of the materials in the preparation of the case and is unable without undue hardship to obtain the substantial equivalent of the materials by other means. In ordering discovery of such materials when the required showing has been

made, the judicial authority shall not order disclosure of the mental impressions, conclusions, opinions, or legal theories of an attorney or other representative of a party concerning the litigation.

(b) A party may obtain, without the showing required under this section, discovery of the party's own statement and of any nonprivileged statement of any other party concerning the action or its subject matter.

(c) A party may obtain, without the showing required under this section, discovery of any recording, by film, photograph, video, audio or any other digital or electronic means, of the requesting party and of any recording of any other party concerning the action or the subject matter, thereof, including any transcript of such recording, prepared in anticipation of litigation or for trial by or for another party or by or for that other party's representative. A party may obtain information identifying any such recording and transcript, if one was created, prior to the deposition of the party who is the subject of the recording; but the person from whom discovery is sought shall not be required to produce the recording or transcript until thirty days after the completion of the deposition of the party who is the subject of the recording or sixty days prior to the date the case is assigned to commence trial, whichever is earlier; except that if a deposition of the party who is the subject of the recording was not taken, the recording and transcript shall be produced sixty days prior to the date the case is assigned to commence trial. If a recording was created within such sixty day period, the recording and transcript must be produced immediately. No such recording or transcript is required to be identified or produced if neither it nor any part thereof will be introduced into evidence at trial. However, if any such recording or part or transcript thereof is required to be identified or produced, all recordings and transcripts thereof of the subject of the recording party shall be identified and produced, rather than only those recordings, or transcripts or parts thereof that the producing party intends to use or introduce at trial.

(d) When a claim of privilege or work product protection has been asserted pursuant to Section 13-5, 13-8 or 13-10 in response to a discovery request for documents or electronically stored information, the party asserting the privilege or protection shall provide, within forty-five days from the request of the party serving the discovery, the following information in the form of a privilege log:

(1) The type of document or electronically stored information;

(2) The general subject matter of the document or electronically stored information;

(3) The date of the document or electronically stored information;

(4) The author of the document or electronically stored information;

(5) Each recipient of the document or electronically stored information; and

(6) The nature of the privilege or protection asserted.

The privilege log shall initially be served upon all parties but not filed in court.

If the information called for by one or more of the foregoing categories is itself privileged, it need not be disclosed. However, the existence of the document and any nonprivileged information called for by the other categories must be disclosed.

A privilege log must be prepared with respect to all documents and electronically stored information withheld on the basis of a claim of privilege or work product protection, except for the following: written or electronic communications after commencement of the action between a party and the firm or lawyer appearing for the party in the action or as otherwise ordered by the judicial authority.

(P.B. 1978-1997, Sec. 219.) (Amended June 29, 2007, to take effect Jan. 1, 2008; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 13-4. —Experts

(a) A party shall disclose each person who may be called by that party to testify as an expert witness at trial, and all documents that may be offered in evidence in lieu of such expert testimony, in accordance with this section. The requirements of Section 13-15 shall apply to disclosures made under this section.

(b) A party shall file with the court and serve upon counsel a disclosure of expert witnesses which identifies the name, address and employer of each person who may be called by that party to testify as an expert witness at trial, whether through live testimony or by deposition. In addition, the disclosure shall include the following information:

(1) Except as provided in subdivision (2) of this subsection, the field of expertise and the subject matter on which the witness is expected to offer expert testimony; the expert opinions to which the witness is expected to testify; the substance of the grounds for each such expert opinion; and the written report of the expert witness, if any. The report shall not be filed with the court. Disclosure of the information required under this subsection may be made by making reference in the disclosure to the written report of the expert witness containing such information.

(2) If the witness to be disclosed hereunder is a health care provider who rendered care or treatment to the plaintiff, and the opinions to be offered hereunder are based upon that provider's care or treatment, then the disclosure obligations under this section may be satisfied by disclosure to the parties of the medical records and reports of such care or treatment. A witness disclosed under this subsection shall be permitted to offer expert opinion testimony at trial as to any opinion as to which fair notice is given in the disclosed medical records or reports. Expert testimony regarding any opinion as to which fair notice is not given in the disclosed medical records or reports must be disclosed in accordance with subdivision (1) of subsection (b) of this section. The parties shall not file the disclosed medical records or disclosed medical reports with the court.

(3) Except for an expert witness who is a health care provider who rendered care or treatment to the plaintiff, or unless otherwise ordered by the judicial authority or agreed upon by the parties, the party disclosing an expert witness shall, upon the request of an opposing party, produce to all other parties all materials obtained, created and/or relied upon by the expert in connection with his or her opinions in the case within fourteen days prior to that expert's deposition or within such other time frame determined in accordance with the Schedule for Expert Discovery prepared pursuant to subsection (g) of this section. If any such materials have already been produced to the other parties in the case, then a list of such materials, made with sufficient particularity that the materials can be easily identified by the parties, shall satisfy the production requirement hereunder with respect to those materials. If an expert witness otherwise subject to this subsection is not being compensated in that capacity by or on behalf of the disclosing party, then that party may give written notice of that fact in satisfaction of the obligations imposed by this subsection. If such notice is provided, then it shall be the duty of the party seeking to depose such expert witness to obtain the production of the requested materials by subpoena or other lawful means.

(4) Nothing in this section shall prohibit any witness disclosed hereunder from offering nonexpert testimony at trial.

(c) (1) Unless otherwise ordered by the judicial authority upon motion, a party may take the deposition of any expert witness disclosed pursuant to subsection (b) of this section in the manner prescribed in Section 13-26 et seq. governing deposition procedure generally. Nothing contained in subsection (b) of this section shall impair the right of any party from exercising that party's rights under the rules of practice to subpoena or to request production of any materials, to the extent otherwise discoverable, in addition to those produced under subsection (b) of this section, in connection with the deposition of any expert witness, nor shall anything contained herein impair the right of a party to raise any objections to any request for production of documents sought hereunder to the extent that a claim of privilege exists.

(2) Unless otherwise ordered by the judicial authority for good cause shown, or agreed upon by the parties, the fees and expenses of the expert witness for any such deposition, excluding preparation time, shall be paid by the party or parties taking the deposition. Unless otherwise ordered, the fees and expenses hereunder shall include only (A) a reasonable fee for the time of the witness to attend the deposition itself and the witness' travel time to and from the place of deposition; and (B) the reasonable expenses actually incurred for travel to and from the place of deposition and lodging, if necessary. If the parties are unable to agree on the fees and expenses due under this subsection, the amount shall be set by the judicial authority, upon motion.

(d) (1) A party shall file with the court a list of all documents or records that the party expects to submit in evidence pursuant to any statute or rule permitting admissibility of documentary evidence in lieu of the live testimony of an expert witness. The list filed hereunder shall identify such documents or records with sufficient particularity that they shall be easily identified by the other parties. The parties shall not file with the court a copy of the documents or records on such list.

(2) Unless otherwise ordered by the judicial authority upon motion, a party may take the deposition of any expert witness whose records are disclosed pursuant to subdivision (1) of subsection (d) of this section in the manner prescribed in Section 13-26 et seq. governing deposition procedure generally. Nothing contained in subsection (d) of this section shall impair the right of any party from exercising that party's rights under the rules of practice to subpoena or to request production of any materials, to the extent otherwise discoverable, in addition to those produced under subsection (d), in connection with the deposition of any expert witness.

(3) Unless otherwise ordered by the judicial authority for good cause shown, or agreed upon by the parties, the fees and expenses of the expert witness for any such deposition, excluding preparation time, shall be paid by the party or parties taking the deposition. Unless otherwise ordered, the fees and expenses hereunder shall include only (A) a reasonable fee for the time of the witness to attend the deposition itself and the witness' travel time to and from the place of deposition; and (B) the reasonable expenses actually

incurred for travel to and from the place of deposition and lodging, if necessary. If the parties are unable to agree on the fees and expenses due under this subsection, the amount shall be set by the judicial authority, upon motion.

(e) If any party expects to call as an expert witness at trial any person previously disclosed by any other party under subsection (b) hereof, the newly disclosing party shall file a notice of disclosure: (1) stating that the party adopts all or a specified part of the expert disclosure already on file; and (2) disclosing any other expert opinions to which the witness is expected to testify and the substance of the grounds for any such expert opinion. Such notice shall be filed within the time parameters set forth in subsection (g).

(f) A party may discover facts known or opinions held by an expert who had been retained or specially employed by another party in anticipation of litigation or preparation for trial and who is not expected to be called as a witness at trial only as provided in Section 13-11 or upon a showing of exceptional circumstances under which it is impracticable for the party seeking discovery to obtain facts or opinions on the same subject by other means.

(g) Unless otherwise ordered by the judicial authority, or otherwise agreed by the parties, the following schedule shall govern the expert discovery required under subsections (b), (c), (d) and (e) of this section.

(1) Within 120 days after the return date of any civil action, or at such other time as the parties may agree or as the court may order, the parties shall submit to the court for its approval a proposed Schedule for Expert Discovery, which, upon approval by the court, shall govern the timing of expert discovery in the case. This schedule shall be submitted on a "Schedule for Expert Discovery" form prescribed by the Office of the Chief Court Administrator. The deadlines proposed by the parties shall be realistic and reasonable, taking into account the nature and relative complexity of the case, the need for predicate discovery and the estimated time until the case may be exposed for trial. If the parties are unable to agree on discovery deadlines, they shall so indicate on the proposed Schedule for Expert Discovery, in which event the court shall convene a scheduling conference to set those deadlines.

(2) If a party is added or appears in a case after the proposed Schedule for Expert Discovery is filed, then an amended proposed Schedule for Expert Discovery shall be prepared and filed for approval by the court within sixty days after such new party appears, or at such other time as the court may order.

(3) Unless otherwise ordered by the court, disclosure of any expert witness under subsection (e) hereof shall be made within thirty days of the event giving rise to the need for that party to adopt the expert disclosure as its own (e.g., the withdrawal or dismissal of the party originally disclosing the expert).

(4) The parties, by agreement, may modify the approved Schedule for Expert Discovery or any other time limitation under this section so long as the modifications do not interfere with an assigned trial date. A party who wishes to modify the approved Schedule for Expert Discovery or other time limitation under this section without agreement of the parties may file a motion for modification with the court stating the reasons therefor. Said motion shall be granted if: (A) the requested modification will not cause undue prejudice to any other party; (B) the requested modification will not cause undue interference with the trial schedule in the case; and (C) the need for the requested modification was not caused by bad faith delay of disclosure by the party seeking modification.

(h) A judicial authority may, after a hearing, impose sanctions on a party for failure to comply with the requirements of this section. An order precluding the testimony of an expert witness may be entered only upon a finding that: (1) the sanction of preclusion, including any consequence thereof on the sanctioned party's ability to prosecute or to defend the case, is proportional to the noncompliance at issue, and (2) the noncompliance at issue cannot adequately be addressed by a less severe sanction or combination of sanctions.

(i) The revisions to this rule adopted by the judges of the Superior Court in June, 2008, effective on January 1, 2009, and the revisions to this rule adopted by the judges of the Superior Court in June, 2009, and March, 2010, shall apply to cases commenced on or after January 1, 2009. The version of this rule in effect on December 31, 2008, shall apply to cases commenced on or before that date.

(P.B. 1978-1997, Sec. 220.) (Amended June 30, 2008, to take effect Jan. 1, 2009; amended June 22, 2009, to take effect Sept. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 13-5. —Protective Order

Upon motion by a party from whom discovery is sought, and for good cause shown, the judicial authority may make any order which justice requires to protect a party from annoyance, embarrassment, oppression, or undue burden or expense, including one or more of the following: (1) that the discovery not be had; (2) that the discovery may be had only on specified terms and conditions, including a designation of the time or place; (3) that the discovery may be had only by

a method of discovery other than that selected by the party seeking discovery; (4) that certain matters not be inquired into, or that the scope of the discovery be limited to certain matters; (5) that discovery be conducted with no one present except persons designated by the judicial authority; (6) that a deposition after being sealed be opened only by order of the judicial authority; (7) that a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a designated way; (8) that the parties simultaneously file specified documents or information enclosed in sealed envelopes to be opened as directed by the judicial authority; (9) specified terms and conditions relating to the discovery of electronically stored information including the allocation of expense of the discovery of electronically stored information, taking into account the amount in controversy, the resources of the parties, the importance of the issues, and the importance of the requested discovery in resolving the issues.

(P.B. 1978-1997, Sec. 221.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 13-6. Interrogatories; In General

(a) In any civil action, in any probate appeal, or in any administrative appeal where the judicial authority finds it reasonably probable that evidence outside the record will be required, any party may serve in accordance with Sections 10-12 through 10-17 written interrogatories, which may be in electronic format, upon any other party to be answered by the party served. Written interrogatories may be served upon any party without leave of the judicial authority at any time after the return day. Except as provided in subsection (d) or where the interrogatories are served electronically as provided in Section 10-13 and in a format that allows the recipient to electronically insert the answers in the transmitted document, the party serving interrogatories shall leave sufficient space following each interrogatory in which the party to whom the interrogatories are directed can insert the answer. In the event that an answer requires more space than that provided on interrogatories that were not served electronically and in a format that allows the recipient to electronically insert the answers in the transmitted document, the answer shall be continued on a separate sheet of paper which shall be attached to the completed answers.

(b) Interrogatories may relate to any matters which can be inquired into under Sections 13-2 through 13-5, and the answers may be used at trial to the extent permitted by the rules of evidence. In all personal injury actions alleging liability based on the operation or ownership of a motor vehicle or alleging liability based on the ownership, maintenance or control of real property, or in actions claiming a loss of consortium or uninsured/underinsured motorist coverage benefits, the interrogatories shall be limited to those set forth in Forms 201, 202, 203, 208, 210, 212, 213 and/or 214 of the rules of practice, unless upon motion, the judicial authority determines that such interrogatories are inappropriate or inadequate in the particular action. These forms are set forth in the Appendix of Forms in this volume. Unless the judicial authority orders otherwise, the frequency of use of interrogatories in all actions except those for which interrogatories have been set forth in Forms 201, 202, 203, 208, 210, 212, 213, 214, 218, 220 and/or 221 of the rules of practice is not limited.

(c) In all actions alleging medical negligence, the interrogatories shall be limited to: (1) those set forth in Forms 218, 220, and 221 of the rules of practice and contained in the Appendix of Forms in this volume to which no objections shall be allowed and (2) twenty additional interrogatories as of right, which may not contain subparts. The party to whom the additional twenty as of right interrogatories are directed may file specific, individual objections to each additional as of right interrogatory.

(d) The standard interrogatories in civil actions, including standard and as of right additional interrogatories in medical negligence actions, are intended to address discovery needs in most cases in which their use is mandated, but they do not preclude any party from moving for permission to serve such additional discovery as may be necessary in any particular case as contemplated by Section 13-2.

(e) In lieu of serving the interrogatories set forth in Forms 201, 202, 203, 208, 210, 212, 213, 214, 218, 220, and/or 221 of the rules of practice on a party who is represented by counsel, the moving party may serve on such party a notice of interrogatories, which shall not include the actual interrogatories to be answered, but shall instead set forth the number of the Practice Book form containing such interrogatories and the name of the party to whom the interrogatories are directed. The party to whom such notice is directed shall in his or her response set forth each interrogatory immediately followed by that party's answer thereto.

(f) The party serving interrogatories or the notice of interrogatories shall not file them with the court.

(g) Unless leave of court is granted, the instructions to Forms 201 through 203 are to be used for all nonstandard interrogatories.

(P.B. 1978-1997, Sec. 223.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended Aug. 24, 2001, to take

effect Jan. 1, 2002; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 13-7. —Answers to Interrogatories

(a) Any such interrogatories shall be answered under oath by the party to whom directed and such answers shall not be filed with the court but shall be served within sixty days after the date of certification of service, in accordance with Sections 10-12 through 10-17, of the interrogatories or, if applicable, the notice of interrogatories on the answering party, or within such shorter or longer time as the judicial authority may allow, unless:

(1) Counsel file with the court a written stipulation extending the time within which answers or objections may be served; or

(2) Upon motion, the judicial authority allows a longer time; or

(3) Objections to the interrogatories and the reasons therefor are filed and served within the sixty day period.

(b) All answers to interrogatories shall: (1) repeat immediately before each answer the interrogatory being answered; and (2) be signed by the person making them.

(c) A party objecting to one or more interrogatories shall file an objection in accordance with Section 13-8.

(d) Objection by a party to certain of the interrogatories directed to such party shall not relieve that party of the obligation to answer the interrogatories to which he or she has not objected within the sixty day period.

(e) The party serving interrogatories or the notice of interrogatories may move for an order under Section 13-14 with respect to any failure to answer.

(P.B. 1978-1997, Sec. 224.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 12, 2015, to take effect Jan. 1, 2016; amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 13-8. —Objections to Interrogatories

(a) The party objecting to any interrogatory shall: (1) set forth each interrogatory; (2) specifically state the reasons for the objection; and (3) state whether any responsive information is being withheld on the basis of the stated objection. Objections shall be governed by the provisions of Sections 13-2 through 13-5, signed by the attorney or self-represented party making them, and filed with the court pursuant to Section 13-7. No objection may be filed with respect to interrogatories which have been set forth in Forms 201, 202, 203, 208, 210, 212, 213, 214, 218, 220 and/or 221 of the rules of practice for use in connection with Section 13-6.

(b) To the extent a party withholds responsive information based on an assertion of a claim of privilege or work product protection, the party must file an objection in compliance with the provisions of subsection (a) of this section and comply with the provisions set forth in subsection (d) of Section 13-3.

(c) No objections to interrogatories shall be placed on the short calendar list until an affidavit by either counsel is filed certifying that bona fide attempts have been made to resolve the differences concerning the subject matter of the objection and that counsel have been unable to reach an agreement. The affidavit shall set forth the date of the objection, the name of the party who filed the objection and the name of the party to whom the objection was addressed. The affidavit shall also recite the date, time and place of any conference held to resolve the differences and the names of all persons participating therein or, if no conference has been held, the reasons for the failure to hold such a conference. If any objection to an interrogatory is overruled, the objecting party shall answer the interrogatory, and serve the answer within twenty days after the judicial authority ruling unless otherwise ordered by the judicial authority.

(d) An interrogatory otherwise proper is not objectionable merely because it involves more than one fact or relates to the application of law to facts.

(P.B. 1978-1997, Sec. 225.) (Amended Aug. 24, 2001, to take effect Jan. 1, 2002; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 13-9. Requests for Production, Inspection and Examination; In General

(a) In any civil action, in any probate appeal, or in any administrative appeal where the judicial authority finds it reasonably probable that evidence outside the record will be required, any party may serve in accordance with Sections 10-12 through 10-17 upon any other party a request to afford the party submitting the request the opportunity to inspect, copy, photograph or otherwise reproduce designated documents or to inspect and copy, test or sample any tangible things in the possession, custody or control of the party upon whom the request is served or to permit entry upon designated land or other property for the purpose of inspection, measuring, surveying, photographing, testing or sampling the property

or any designated object or operation thereon. Such requests will be governed by the provisions of Sections 13-2 through 13-5. In all personal injury actions alleging liability based on the operation or ownership of a motor vehicle or alleging liability based on the ownership, maintenance or control of real property, or in actions claiming a loss of consortium or uninsured/underinsured motorist coverage benefits, the requests for production shall be limited to those set forth in Forms 204, 205, 206, 209, 211, 215 and/or 216 of the rules of practice, unless, upon motion, the judicial authority determines that such requests for production are inappropriate or inadequate in the particular action. These forms are set forth in the Appendix of Forms in this volume.

(b) In all actions alleging medical negligence, production requests shall be limited to: (1) those set forth in Forms 219, 222, and 223 of the rules of practice and contained in the Appendix of Forms in this volume and (2) twenty additional production requests as of right, which may not contain subparts. The party to whom the additional twenty as of right requests are directed may file specific, individual objections to each additional as of right production request. A party may move for permission to file additional discovery, which the judicial authority shall permit if it determines that such requests for production filed to date are inappropriate or inadequate in the particular action.

(c) The standard requests for production are intended to address discovery needs in most cases in which their use is mandated, but they do not preclude any party from moving for permission to serve such additional discovery as may be necessary in any particular case.

(d) Requests for production may be served upon any party without leave of court at any time after the return day. In lieu of serving the requests for production set forth in Forms 204, 205, 206, 209, 211, 215, 216, 219, 222 and/or 223 of the rules of practice on a party who is represented by counsel, the moving party may serve on such party a notice of requests for production, which shall not include the actual requests, but shall instead set forth the number of the Practice Book form containing such requests and the name of the party to whom the requests are directed.

(e) The request shall clearly designate the items to be inspected either individually or by category. The request or, if applicable, the notice of requests for production shall specify a reasonable time, place and manner of making the inspection. Unless the judicial authority orders otherwise, the frequency of use of requests for production in all actions except those for which requests for production have been set forth in Forms 204, 205, 206, 209, 211, 215, 216, 219, 222, and/or 223 of the rules of practice is not limited.

(f) If information has been electronically stored, and if a request for production does not specify a form for producing a type of electronically stored information, the responding party shall produce the information in a form in which it is ordinarily maintained or in a form that is reasonably usable. A party need not produce the same electronically stored information in more than one form.

(g) The party serving such request or notice of requests for production shall not file it with the court.

(h) Unless leave of court is granted, the instructions to Forms 204 through 206 of the rules of practice are to be used for all nonstandard requests for production.

(i) A party seeking the production of a written authorization in compliance with the Health Insurance Portability and Accountability Act to inspect and make copies of protected health information, or a written authorization in compliance with the Public Health Service Act to inspect and make copies of alcohol and drug records that are protected by that act, shall file a motion pursuant to Section 13-11A. A motion need not be filed to obtain such authorization in actions to which Forms 204, 205, 216, 219, 222, and 223 of the rules of practice apply.

(P.B. 1978-1997, Sec. 227.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended Aug. 24, 2001, to take effect Jan. 1, 2002; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 13-10. —Responses to Requests for Production; Objections

(a) The party to whom the request is directed or such party's attorney shall serve a written response, which may be in electronic format, within sixty days after the date of certification of service, in accordance with Sections 10-12 through 10-17, of the request or, if applicable, the notice of requests for production on the responding party or within such shorter or longer time as the judicial authority may allow, unless: (1) counsel and/or self-represented parties file with the court a written stipulation extending the time within which responses may be served; or (2) upon motion, the court allows a longer time; or (3) objections to the requests for production and the reasons therefor are filed and served within the sixty day period.

(b) All responses: (1) shall repeat immediately before the response the request for production being responded to; and (2) shall state with respect to each item or category that inspection and related activities will be permitted as requested, unless the request or any part thereof is objected to.

(c) Where a request calling for submission of copies of documents is not objected to, the party responding to the request shall produce those copies with the response served upon all parties.

(d) Objection by a party to certain parts of a request shall not relieve that party of the obligation to respond to those portions to which that party has not objected within the sixty day period.

(e) A party objecting to one or more of the requests for production shall file an objection in accordance with subsection (f) of this section.

(f) A party who objects to any request or portion of a request shall: (1) set forth the request objected to; (2) specifically state the reasons for the objection; and (3) state whether any responsive materials are being withheld on the basis of the stated objection. Objections shall be governed by the provisions of Sections 13-2 through 13-5, signed by the attorney or self-represented party making them and filed with the court.

(g) To the extent a party withholds any responsive material based on an assertion of a claim of privilege or work product protection, the party must file an objection in compliance with the provisions of subsection (f) of this section and comply with the provisions set forth in subsection (d) of Section 13-3.

(h) No objection may be filed with respect to requests for production set forth in Forms 204, 205, 206, 209, 211, 215, 216, 219, 222 and/or 223 of the rules of practice for use in connection with Section 13-9.

(i) No objection to any request for production shall be placed on the short calendar list until an affidavit by counsel or self-represented parties is filed certifying that they have made good faith attempts to resolve the objection and that counsel and/or self-represented parties have been unable to reach an agreement. The affidavit shall set forth: (1) the date of the objection; (2) the name of the party who filed the objection and to whom the objection was addressed; (3) the date, time and place of any conference held to resolve the differences; and (4) the names of all conference participants. If no conference has been held, the affidavit shall also set forth the reasons for the failure to hold such a conference.

(j) If an objection to any part of a request for production is overruled, the objecting party shall comply with the request at a time set by the judicial authority.

(k) The party serving the request or the notice of request for production may move for an order under Section 13-14 with respect to any failure to respond by the party to whom the request or notice is addressed.

(P.B. 1978-1997, Sec. 227.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended Aug. 24, 2001, to take effect Jan. 1, 2002; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 12, 2015, to take effect Jan. 1, 2016; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 13-11. —Physical or Mental Examination

(a) In any civil action, in any probate appeal, or in any administrative appeal where the judicial authority finds it reasonably probable that evidence outside the record will be required, in which the mental or physical condition of a party, or of a person in the custody of or under the legal control of a party, is material to the prosecution or defense of said action, the judicial authority may order the party to submit to a physical or mental examination by a physician or to produce for examination the person in the party's custody or legal control.

(b) In the case of an action to recover damages for personal injuries, any party adverse to the plaintiff may file and serve in accordance with Sections 10-12 through 10-17 a request that the plaintiff submit to a physical or mental examination at the expense of the requesting party. That request shall specify the time, place, manner, conditions and scope of the examination and the person or persons by whom it is to be made. Any such request shall be complied with by the plaintiff unless, within ten days from the filing of the request, the plaintiff files in writing an objection thereto specifying to which portions of said request objection is made and the reasons for said objection. The objection shall be placed on the short calendar list upon the filing thereof. The judicial authority may make such order as is just in connection with the request. No plaintiff shall be compelled to undergo a physical or mental examination by any physician to whom he or she objects in writing.

(c) In any other case, such order may be made only on motion for good cause shown to be heard at short calendar. The motion shall specify the time, place, manner, conditions and scope of the examination and the person or persons by whom it is to be made.

(d) If requested by the party against whom an order is made under this rule, or who has voluntarily agreed to an examination, the party causing the examination to be made shall deliver to such party a copy of a written report of the examining physician, setting out the findings, including results of all tests made, diagnoses and conclusions, together with like reports of all earlier examinations of the same condition. After delivery, the party causing the examination shall be entitled upon request to receive from the party against whom the order is made, or who has voluntarily agreed to an examination, a like report of any examination, previously or thereafter made, of the same condition. The judicial authority on motion may make an order requiring delivery by a party of a report on such terms as are just, and if a physician fails or refuses to make a report, the judicial authority may exclude the physician's testimony if offered at the trial.

(e) By requesting and obtaining a report of the examination so ordered or by taking the deposition of the examiner, the party examined waives, in that action, or in any other action involving the same controversy, any privilege he or she may have regarding the testimony of every other person who has examined or may thereafter examine the party in respect to the same mental or physical condition.

(f) This section does not preclude discovery of a report of an examining physician or the taking of a deposition of the physician in accordance with the provisions of any other section of this chapter.

(P.B. 1978-1997, Sec. 229.) (Amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 13-11A. —Motion for Authorization To Obtain Protected Health Information

The judicial authority may, on motion of a party and for good cause shown, order a party to provide a written authorization sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act, as that act may from time to time be amended, to inspect and make copies of protected health information.

The judicial authority may, on application of a party that is in compliance with the provisions of the Public Health Service Act and for good cause shown, order a party to provide a written authorization sufficient to comply with the provisions of said act, as that act may from time to time be amended, to inspect and make copies of alcohol and drug records that are protected by that act.

(Adopted June 20, 2005, to take effect Jan. 1, 2006.)

Sec. 13-12. Disclosure of Amount and Provisions of Insurance Liability Policy

In any civil action the existence, contents and policy limits of any insurance policy under which any insurer may be liable to satisfy part or all of a judgment which may be rendered in the action against any party or to indemnify or reimburse any defendant for payments made to satisfy the judgment shall be subject to discovery by any party by interrogatory or request for production under Sections 13-6 through 13-11. Information concerning the insurance agreement is not by reason of disclosure admissible in evidence at trial.

(P.B. 1978-1997, Sec. 230.)

Sec. 13-12A. Disclosure of Medicare Enrollment, Eligibility and Payments Received

In any civil action involving allegations of personal injury, information on the claimant's Medicare enrollment status, eligibility or payments received, which is sufficient to allow providers of liability insurance, including self-insurance, no fault insurance, and/or workers' compensation insurance to comply with Medicare Secondary Payer obligations, including those imposed under 42 U.S.C. § 1395y (b) (2) and (8), shall be subject to discovery by any party by interrogatory as provided in Sections 13-6 through 13-8. The interrogatories shall be limited to those set forth in Form 217. The information disclosed pursuant to this section shall not be admissible at trial solely by reason of such disclosure. Such information shall be used only for purposes of the litigation and for complying with 42 U.S.C. § 1395y (b) (8) and shall not be used or disclosed for any other purpose.

(Adopted June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 13-13. Disclosure of Assets in Cases in Which Prejudgment Remedy Sought

(a) The judicial authority may, on motion, order any appearing party against whom a prejudgment remedy has been granted to disclose property in which the party has an interest or debts owing to the party sufficient to satisfy a prejudgment remedy. The existence, location and extent of a party's interest in such property or debts shall be subject to disclosure after hearing on the motion for disclosure. The form and terms of disclosure shall be determined by the judicial authority.

(b) A motion to disclose pursuant to this section may be made by filing it with the application for a prejudgment remedy or may be made at any time after the filing of the application.

(c) The judicial authority may order disclosure at any time prior to final judgment after it has determined that the party filing the motion for disclosure has, pursuant to either General Statutes §§ 52-278d, 52-278e or 52-278i, probable cause sufficient for the issuance of a prejudgment remedy.

(d) Any party, in lieu of disclosing assets pursuant to subsection (a), may move the judicial

authority for substitution either of a bond with surety substantially in compliance with General Statutes §§ 52-307 and 52-308 or of other sufficient security.

(P.B. 1978-1997, Sec. 230A.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 13-14. Order for Compliance; Failure To Answer or Comply with Order

(a) If any party has failed to answer interrogatories or to answer them fairly, or has intentionally answered them falsely or in a manner calculated to mislead, or has failed to respond to requests for production or for disclosure of the existence and contents of an insurance policy or the limits thereof, or has failed to submit to a physical or mental examination, or has failed to comply with a discovery order made pursuant to Section 13-13, or has failed to comply with the provisions of Section 13-15, or has failed to appear and testify at a deposition duly noticed pursuant to this chapter, or has failed otherwise substantially to comply with any other discovery order made pursuant to Sections 13-6 through 13-11, the judicial authority may, on motion, make such order proportional to the noncompliance as the ends of justice require.

(b) Such orders may include the following:

(1) An order of compliance;

(2) The award to the discovering party of the costs of the motion, including a reasonable attorney's fee;

(3) The entry of an order that the matters regarding which the discovery was sought or other designated facts shall be taken to be established for the purposes of the action in accordance with the claim of the party obtaining the order;

(4) The entry of an order prohibiting the party who has failed to comply from introducing designated matters in evidence;

(5) An order of dismissal, nonsuit or default.

(c) The failure to comply as described in this section may not be excused on the ground that the discovery is objectionable unless written objection as authorized by Sections 13-6 through 13-11 has been filed.

(d) The failure to comply as described in this section shall be excused and the judicial authority may not impose sanctions on a party for failure to provide information, including electronically stored information, lost as the result of the routine, good-faith operation of a system or process in the absence of a showing of intentional actions designed to avoid known preservation obligations.

(P.B. 1978-1997, Sec. 227.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended Aug. 24, 2001, to take effect Jan. 1, 2002; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 12, 2015, to take effect Jan. 1, 2016; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018, amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 13-15. Continuing Duty To Disclose

If, subsequent to compliance with any request or order for discovery, including partial compliance subject to an objection or made notwithstanding an objection, and prior to or during trial, a party discovers additional or new material or information previously requested and ordered subject to discovery or inspection or discovers that the prior compliance was totally or partially incorrect or, though correct when made, is no longer true and the circumstances are such that a failure to amend the compliance is in substance a knowing concealment, that party shall promptly notify the other party, or the other party's attorney, and file and serve in accordance with Sections 10-12 through 10-17 a supplemental or corrected compliance.

(P.B. 1978-1997, Sec. 232.) (Amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 13-16. Orders by Judge

Any order provided in this chapter to be made by the court may be made by a judge thereof when the court is not actually in session.

(P.B. 1978-1997, Sec. s233.)

Sec. 13-17. Disclosure before Court or Committee

Disclosures by garnishees and all other disclosures in civil actions not under Sections 13-2 through 13-16 may be made to the judicial authority or before a committee, as the judicial authority may determine.

(P.B. 1978-1997, Sec. 234.)

Sec. 13-18. Disclosures in Equity

Disclosures made in answer to complaints in the nature of bills of discovery in equity may be made either by sworn answers or before a committee, as the judicial authority may determine. When either party in any action has obtained from the other party a disclosure on oath, respecting the matters alleged in any pleading, the disclosure shall not be deemed conclusive, but may be contradicted as any other testimony. (See General Statutes § 52-200.)

(P.B. 1978-1997, Sec. 235.)

Sec. 13-19. Disclosure of Defense

In any action to foreclose or to discharge any mortgage or lien or to quiet title, or in any action upon any written contract, in which there is an appearance by an attorney for any defendant, the

plaintiff may at any time file and serve in accordance with Sections 10-12 through 10-17 a written demand that such attorney present to the court, to become a part of the file in such case, a writing signed by the attorney stating whether he or she has reason to believe and does believe that there exists a bona fide defense to the plaintiff's action and whether such defense will be made, together with a general statement of the nature or substance of such defense. If the defendant fails to disclose a defense within ten days of the filing of such demand in any action to foreclose a mortgage or lien or to quiet title, or in any action upon any written contract, the plaintiff may file a written motion that a default be entered against the defendant by reason of the failure of the defendant to disclose a defense. If no disclosure of defense has been filed, the judicial authority may order judgment upon default to be entered for the plaintiff at the time the motion is heard or thereafter, provided that in either event a separate motion for such judgment has been filed. The motions for default and for judgment upon default may be served and filed simultaneously but shall be separate motions.

(P.B. 1978-1997, Sec. 236.) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 13-20. Discovery Sought by Judgment Creditor

(a) A judgment creditor may obtain discovery from the judgment debtor, or from any third person the judgment creditor reasonably believes, in good faith, may have assets of the judgment debtor, or from any financial institution to the extent provided by this section, of any matters relevant to satisfaction of the money judgment. The judgment creditor shall commence any discovery proceeding by serving interrogatories on a form approved by the judges of the Superior Court, or their designees, on the person from whom discovery is sought. Neither the interrogatories nor a notice thereof shall be filed with the court. The interrogatories shall be in clear and simple language and shall be placed on the page in such manner as to leave space under each interrogatory for the person served to insert the answer. The person to whom interrogatories are directed shall answer them and return them to the judgment creditor within thirty days of the date of service. Answers to interrogatories served on a judgment debtor shall be signed by such debtor under penalty of false statement. With respect to assets, the person served is required to reveal information concerning the amount, nature and location of the judgment debtor's nonexempt assets up to an amount clearly sufficient in value to ensure full satisfaction of the judgment with interest and costs, provided disclosure shall be first required as to assets subject to levy or foreclosure within the state. If interrogatories are served on a financial institution, the financial institution shall disclose only whether it holds funds of the judgment debtor on account and the balance of such funds, up to the amount necessary to satisfy the judgment with interest and costs.

(b) On failure of a person served with interrogatories to, within the thirty days, return a sufficient answer or disclose sufficient assets for execution, or on objection by such person to the interrogatories, which objection shall not be filed with the court by such person, the judgment creditor may move the judicial authority for such supplemental discovery orders as may be necessary to ensure disclosure including (1) an order for compliance with the interrogatories or authorizing additional interrogatories and (2) an order for production or for examination of the judgment debtor or third person, provided any such examination shall be conducted before the judicial authority. The judicial authority may order such discovery as justice requires provided the order shall contain a notice that failure to comply therewith may subject the person served to being held in contempt of court.

(c) On motion of a judgment debtor or third person from whom discovery is sought, and for good cause shown, or on its own motion, the judicial authority may make any order which justice requires to protect such debtor or third person from annoyance, embarrassment, oppression or undue burden or expense.

(d) The other provisions of this chapter shall not apply to discovery sought under this section.

(P.B. 1978-1997, Sec. 236A.)

Sec. 13-21. Discovery outside of the United States of America

(a) If an applicable treaty or convention renders discovery inadequate or inequitable but does not prohibit additional discovery, the judicial authority may order, upon application of any party, discovery on such terms and conditions as the judicial authority deems just and equitable after considering the following:

(1) other methods of discovery specified or allowed in any applicable international treaty or convention, including any reservations;

(2) whether all applicable international treaties and conventions prohibit one or more specified methods of discovery;

(3) whether the method of discovery violates the criminal law of the foreign nation involved;

(4) whether the foreign nation's procedure will allow the parties to directly apply to the foreign nation's courts for judicial assistance in obtaining discovery;

(5) the importance of the requested documents or other information to the litigation;

(6) the degree of specificity of the request;

(7) whether the information originated within the United States;

(8) the availability of alternate means of obtaining the information;

(9) the extent noncompliance with the request would undermine important interests of the United States;

(10) the extent compliance with the request would undermine important interests of the foreign nation involved;

(11) whether the discovery sought, or the method sought to be employed, is unreasonably intrusive or burdensome under the circumstances;

(12) whether the request can be modified to make it reasonable under the circumstances;

(13) whether the foreign party is wholly or partially owned by a foreign nation or the instrumentality of a foreign nation;

(14) the cost of compliance;

(15) whether the foreign country requires that discovery be obtained through a judicial officer.

(b) As used in this section, discovery includes the taking of testimony by deposition upon oral examination.

(P.B. 1978-1997, Sec. 236B.)

Sec. 13-22. Admission of Facts and Execution of Writings; Requests for Admission

(a) A party may serve in accordance with Sections 10-12 through 10-17 upon any other party a written request, which may be in electronic format, for the admission, for purposes of the pending action only, of the truth of any matters relevant to the subject matter of the pending action set forth in the request that relate to statements or opinions of fact or of the application of law to fact, including the existence, due execution and genuineness of any documents described in the request. The party serving a request for admission shall separately set forth each matter of which an admission is requested and unless the request is served electronically as provided in Section 10-13 and in a format that allows the recipient to electronically insert the answers in the transmitted document, shall leave sufficient space following each request in which the party to whom the requests are directed can insert an answer or objection. Copies of documents shall be served with the request unless they have been or are otherwise furnished or made available for inspection and copying. The request may, without leave of the judicial authority, be served upon any party at any time after the return day. Unless the judicial authority orders otherwise, the frequency of use of requests for admission is not limited.

(b) The party serving such request shall not file it with the court but shall instead file a notice with the court which states that the party has served a request for admission on another party, the name of the party to whom the request has been directed and the date upon which service in accordance with Sections 10-12 through 10-17 was made.

(P.B. 1978-1997, Sec. 238.) (Amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 13-23. —Answers and Objections to Requests for Admission

(a) Each matter of which an admission is requested is admitted unless, within thirty days after the filing of the notice required by Section 13-22 (b), or within such shorter or longer time as the judicial authority may allow, the party to whom the request is directed files and serves upon the party requesting the admission a written answer or objection addressed to the matter, signed by the party or by his attorney. Any such answer or objection shall be inserted directly on the original request. In the event that an answer or objection requires more space than that provided on a request for admission that was not served electronically and in a format that allows the recipient to electronically insert the answers in the transmitted document, it shall be continued on a separate sheet of paper which shall be attached to the response. Documents sought to be admitted by the request shall be filed with the response by the responding party only if they are the subject of an answer or objection. If objection is made, the reasons therefor shall be stated. The answer shall specifically deny the matter or set forth in detail the reasons why the answering party cannot truthfully admit or deny the matter. A denial shall fairly meet the substance of the requested admission, and when good faith requires that a party qualify his or her answer or deny only a part of the matter of which an admission is requested, such party shall specify so much of it as is true and qualify or deny the remainder. An answering party may not give lack of information or knowledge as a reason for failure to admit or deny unless such party states that he or she has made reasonable inquiry and that the information known or readily obtainable by him or her is insufficient to enable an admission or denial. A party who considers that a matter of which an admission

has been requested presents a genuine issue for trial may not, on that ground alone, object to the request; the party may deny the matter or set forth reasons why he or she cannot admit or deny it. The responding party shall attach a cover sheet to the response which shall comply with Sections 4-1 and 4-2 and shall specify those requests to which answers and objections are addressed.

(b) The party who has requested the admission may move to determine the sufficiency of the answer or objection. No such motion shall be placed on the short calendar list until an affidavit by either counsel is filed certifying that bona fide attempts have been made to resolve the differences concerning the subject matter of the motion and that counsel have been unable to reach an accord. Unless the judicial authority determines that an objection is justified, it shall order that an answer be served. If the judicial authority determines that an answer does not comply with the requirements of this rule, it may order either that the matter is admitted or that an amended answer be served. The judicial authority may, in lieu of these orders, determine that final disposition of the request be made at a designated time prior to trial.

(P.B. 1978-1997, Sec. 239.) (Amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 13-24. —Effect of Admission

(a) Any matter admitted under this section is conclusively established unless the judicial authority on motion permits withdrawal or amendment of the admission. The judicial authority may permit withdrawal or amendment when the presentation of the merits of the action will be subserved thereby and the party who obtained the admission fails to satisfy the judicial authority that withdrawal or amendment will prejudice such party in maintaining his or her action or defense on the merits. Any admission made by a party under this section is for the purpose of the pending action only and is not an admission by him or her for any other purpose nor may it be used against him or her in any other proceeding.

(b) The admission of any matter under this section shall not be deemed to waive any objections to its competency or relevancy. An admission of the existence and due execution of a document, unless otherwise expressed, shall be deemed to include an admission of its delivery, and that it has not since been altered.

(P.B. 1978-1997, Sec. 240.)

Sec. 13-25. —Expenses on Failure To Admit

If a party fails to admit the genuineness of any document or the truth of any matter as requested herein, and if the party requesting the admissions thereafter proves the genuineness of the document or the truth of the matter, such party may apply to the court for an order requiring the other party to pay the reasonable expenses incurred in making that proof, including reasonable attorney's fees. The judicial authority shall make the order unless it finds that such failure to admit was reasonable.

(P.B. 1978-1997, Sec. 241.)

Sec. 13-26. Depositions; In General

In addition to other provisions for discovery and subject to the provisions of Sections 13-2 through 13-5, any party who has appeared in a civil action, in any probate appeal, or in any administrative appeal where the judicial authority finds it reasonably probable that evidence outside the record will be required, may, at any time after the commencement of the action or proceeding, in accordance with the procedures set forth in this chapter, take the testimony of any person, including a party, by deposition upon oral examination. The attendance of witnesses may be compelled by subpoena as provided in Section 13-28A. The attendance of a party deponent or of an officer, director, or managing agent of a party may be compelled by notice to the named person or such person's attorney in accordance with the requirements of Section 13-27 (a). The deposition of a person confined in prison may be taken only by leave of the judicial authority on such terms as the judicial authority prescribes. (See General Statutes § 52-178.)

(P.B. 1978-1997, Sec. 243; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the second sentence, "A" was added after "13-28."

COMMENTARY—2026: Several of the following sections have been changed in response to the adoption of the Interstate Depositions and Discovery Act, now codified at General Statutes § 52-655 et seq. The only change to this section is to reflect that new Section 13-28A addresses deposition subpoenas.

Sec. 13-27. —Notice of Deposition; General Requirements; Special Notice; Nonstenographic Recording; Production of Documents and Things; Deposition of Organization

(a) A party who desires to take the deposition of any person upon oral examination shall give reasonable notice in writing to every other party to the action. Such notice shall not be filed with the court but shall be served upon each party or each party's attorney in accordance with Sections 10-12 through 10-17. The notice shall state the time and place for taking the deposition, the name and address of each person to be examined, if known, and, if the name is not known, a general description sufficient to identify such person or

the particular class or group to which he or she belongs and the manner of recording. If a subpoena duces tecum is to be served on the person to be examined, the designation of the materials to be produced as set forth in the subpoena shall be attached to or included in the notice.

(b) Leave of a judicial authority, granted with or without notice, must be obtained only if the party seeks to take a deposition prior to the expiration of twenty days after the return day, except that leave is not required (1) if the adverse party has served a notice of the taking of a deposition or has otherwise sought discovery, or (2) if special notice is given as provided herein.

(c) Leave of a judicial authority is not required for the taking of a deposition by a party if the notice (1) states that the person to be examined is about to go out of this state, or is bound on a voyage to sea, and will be unavailable for examination unless such person's deposition is taken before the expiration of twenty days after the return day, and (2) sets forth facts to support the statement. The party's attorney shall sign the notice, and this signature constitutes a certification by such attorney that to the best of his or her knowledge, information and belief the statement and supporting facts are true.

(d) Whenever the whereabouts of any adverse party is unknown, a deposition may be taken pursuant to Section 13-26 after such notice as the court, in which such deposition is to be used, or, when such court is not in session, any judge thereof, may direct.

(e) The judicial authority may for good cause shown increase or decrease the time for taking the deposition.

(f) (1) The judicial authority may upon motion order that the testimony at a deposition be recorded by other than stenographic means such as by video recording, in which event the order shall designate the manner of recording, preserving, and filing the deposition, and may include other provisions to assure that the recorded testimony will be accurate and trustworthy. If the order is made, a party may nevertheless arrange to have a stenographic transcription made at the party's own expense.

(2) Notwithstanding this section, a deposition may be recorded by video recording without prior court approval if (A) any party desiring to video record the deposition provides written notice of the video recording to all parties in either the notice of deposition or other notice served in the same manner as a notice of deposition and (B) the deposition is also recorded stenographically.

(g) The notice to a party deponent may be accompanied by a request made in compliance with Sections 13-9 through 13-11 for the production of documents and tangible things at the taking of the deposition. The procedure of Sections 13-9 through 13-11 shall apply to the request.

(h) A party may in the notice and in the subpoena name as the deponent a public or private corporation or a partnership or an association or a governmental agency or a state officer in an action arising out of the officer's performance of employment and designate with reasonable particularity the matters on which examination is requested. The organization or state officer so named shall designate one or more officers, directors, or managing agents, or other persons who consent to testify on its behalf, and may set forth, for each person designated, the matters on which the person will testify. The persons so designated shall testify as to matters known or reasonably available to the organization. This subsection does not preclude the taking of a deposition by any other procedure authorized by the rules of practice.

(P.B. 1978-1997, Sec. 244.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 22, 2009, to take effect Jan. 1, 2010.)

TECHNICAL CHANGE: Technical changes were made in subsection (f) to update the terminology to align with current technology and practice.

Sec. 13-28. —Persons before Whom Deposition May Be Taken for Use in Proceedings in this State

(Amended June 12, 2025, to take effect Jan. 1, 2026.)

(a) Within this state, depositions shall be taken before a judge or clerk of any court, notary public or Commissioner of the Superior Court.

(b) In any other state, as defined in General Statutes § 52-656 (4), that has adopted the Interstate Depositions and Discovery Act, depositions for use in a civil action, probate proceeding or administrative appeal within this state shall be taken before a person authorized by that state to administer oaths. In any other state that has not adopted the Interstate Depositions and Discovery Act, depositions for use in a civil action, probate proceeding or administrative appeal within this state shall be taken before a notary public of such state, a commissioner appointed by the governor of this state, any magistrate having power to administer oaths in such state, or a person commissioned by the Superior Court before which such action or proceeding is pending, or when such court is not in session, by any judge thereof. Any person so commissioned shall have the power by virtue of that person's commission to

administer any necessary oaths and to take testimony.

(c) Outside of the United States, depositions for use in a civil action, probate proceeding or administrative appeal within this state shall be taken before a notary public of such country, a commissioner appointed by the governor of this state, any magistrate having power to administer oaths in such country, or a person commissioned by the Superior Court before which such action or proceeding is pending. Additionally, such a deposition may be taken before any foreign minister, secretary of a legation, consul or vice-consul appointed by the United States or any person by him or her appointed for the purpose and having authority under the laws of the country where the deposition is to be taken; and the official character of any such person may be proved by a certificate from the secretary of state of the United States.

(P.B. 1978-1997, Sec. 245.) (Amended June 21, 2004, to take effect Jan. 1, 2005; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, the title to this section read: "—Persons before Whom Deposition Taken; Subpoenas." Additionally, what had been the second, third and fourth sentences of subsection (a) were deleted.

Furthermore, prior to 2026, subsections (b) and (c) read:

"(b) Each judge or clerk of any court, notary public or Commissioner of the Superior Court, in this state, may issue a subpoena, upon request, for the appearance of any witness before an officer authorized to administer oaths within this state to give testimony at a deposition subject to the provisions of Sections 13-2 through 13-5, if the party seeking to take such person's deposition has complied with the provisions of Sections 13-26 and 13-27.

"(c) A subpoena issued for the taking of a deposition may command the person to whom it is directed to produce and permit inspection and copying of designated books, papers, documents or tangible things which constitute or contain matters within the scope of the examination permitted by Sections 13-2 through 13-5. Unless otherwise ordered by the court or agreed upon in writing by the parties any subpoena issued to a person commanding the production of documents or other tangible thing at a deposition shall not direct compliance within less than fifteen days from the date of service thereof."

Additionally, what had been subsections (d) through (g) were deleted.

COMMENTARY—2026: The changes to this section have been made in response to the adoption of the Interstate Depositions and Discovery Act, now codified at General Statutes § 52-655 et seq. Former subsection (a) has been divided into three subsections. Each of them addresses depositions for use in in-state actions. They identify the persons before whom depositions may be taken where (a) the deposition is in this state, (b) the deposition is in another state or territory of the United States, and (c) the deposition is outside the United States.

Former subsections (b) through (g) were moved from this section to a new Section 13-28A, which specifically addresses deposition subpoenas.

Sec. 13-28A. —Deposition Subpoenas

(a) In an action pending in this state, any judge or clerk of any court in this state or Commissioner of the Superior Court, may issue a subpoena, upon request, for the appearance of any witness before a person designated in Section 13-28 (a) within this state to give testimony at a deposition subject to the provisions of Sections 13-2 through 13-5, if the party seeking to take such person's deposition has complied with the provisions of Sections 13-26 and 13-27.

(b) In any action pending in another state, as defined in General Statutes § 52-656 (4), that has adopted the Interstate Depositions and Discovery Act, any judge or clerk of the Connecticut Superior Court, upon receipt of the documents required by General Statutes § 52-657, may issue a subpoena in accordance with the procedures set forth in General Statutes § 52-657 for discovery to be had in this state.

(c) A subpoena issued for the taking of a deposition may command the person to whom it is directed to produce and permit inspection and copying of designated books, papers, documents or tangible things which constitute or contain matters within the scope of the examination permitted by Sections 13-2 through 13-5. Unless otherwise ordered by a judge of the Superior Court or agreed upon in writing by the parties, any subpoena issued to a person commanding the production of documents or other tangible thing at a deposition shall not direct compliance within less than fifteen days from the date of service thereof.

(d) (1) Any person to whom a subpoena has been directed, which subpoena commands (A) the person's appearance at a deposition, or (B) the production, copying or inspection of books, papers, documents or tangible things may, within fifteen days after the service thereof or on or before the time specified in the subpoena for compliance if such time is less than fifteen days after service, serve upon the party who requested issuance of the subpoena written objection to appearing or producing, copying or permitting the inspection of such books, papers, documents or tangible things. Service of the objection shall be made by United States mail, certified or registered, postage prepaid, return receipt requested, without the use of a state marshal or other officer. If the objection is based upon the subpoenaed person incurring unreasonable expense, such written objection shall be accompanied by an affidavit of costs setting forth the estimated or actual costs of compliance with such subpoena, including, but not limited to, the person's attorney's fees or the costs to such person of electronic discovery.

(2) If a person makes such written objection, the party who requested issuance of the subpoena (A) shall not be entitled to compel such person's appearance or receive, copy or inspect the books, papers, documents or tangible things, except pursuant to an order of the Superior Court, and (B) may, upon notice to such person, file a motion pursuant to subsection (g) below for an order to compel such person's appearance or production, copying or inspection of such materials in accordance with the terms of such subpoena.

(3) The provisions of subdivisions (1) and (2) of this subsection shall not be applicable to a civil action filed to recover damages resulting from personal injury or wrongful death in which it is alleged that such injury or death resulted from professional malpractice of a health care provider or health care institution.

(e) For purposes of any motion filed pursuant to this section, the appropriate Superior Court is (1) for an action pending in this state, the judicial district where the action is pending, (2) for an action pending in another state that has adopted the Interstate Depositions and Discovery Act, the judicial district in this state that issued the subpoena, and (3) for an action pending in a state that has not adopted that Act, the judicial district where the person to whom the subpoena is directed resides.

(f) A party or the person to whom the subpoena is directed may move to quash or modify the subpoena. The court may, upon motion made promptly and, in any event, at or before the time for compliance specified in a subpoena authorized by subsections (a) or (b) of this section, (1) quash or modify the subpoena if it is unreasonable and oppressive or if it seeks the production of materials not subject to production under the provisions of subsection (c) of this section, or (2) condition denial of the motion upon the advancement by the party who requested the subpoena of the reasonable cost of producing the materials being such.

(g) A party may move for a protective order pursuant to Section 13-5 to prevent or to modify the subpoena.

(h) The party who served the subpoena may move to compel compliance with the subpoena. Upon receipt of such motion together with the payment of all entry fees, if required, the clerk shall schedule the matter for hearing and provide the moving party notice of the time and place of the hearing. The moving party shall serve the motion to compel and the notice of the time and place of the hearing upon the subpoenaed party. If the nonparty to whom the subpoena was directed served an objection asserting that the subpoena subjected that nonparty to unreasonable burden or expense, when ruling on a motion to compel directed to such person, the court shall make a finding as to whether the subpoena subjects the person to undue or unreasonable burden or expense prior to entering any order to compel such person's appearance or the production, copying or inspection of such materials. If the court finds that the subpoena issued to the person subjects such person to undue or unreasonable burden or expense, any order to compel such person's appearance or production, copying or inspection of such materials shall protect the person from undue or unreasonable burden or expense resulting from compliance with such subpoena and, except in the case of a subpoena commanding the production, copying or inspection of medical records, may include, but not be limited to, the reimbursement of such person's reasonable costs of compliance, as set forth in the affidavit of costs.

(i) If any person to whom a lawful subpoena is issued under any provision of this section fails without just excuse to comply with any of its terms, the court may issue a capias and cause the person to be brought before that court, and, if the person subpoenaed refuses to comply with the subpoena, the court may commit the person to jail until such person signifies a willingness to comply with it. Alternatively, the court may impose one or more of the orders set forth in Section 13-14 for discovery noncompliance.

(Adopted June 12, 2025, to take effect Jan. 1, 2026.)

COMMENTARY–2026: This new section was created in response to the adoption of the Interstate Depositions and Discovery Act, now codified at General Statutes § 52-655 et seq. Former subsections (b) through (g) were moved from Section 13-28 to this new section to specifically address deposition subpoenas. Subsection (a) addresses deposition subpoenas for actions pending in this state. Subsection (b) is new, and it addresses subpoenas to be issued in this state for actions pending in other states that have adopted the Interstate Depositions and Discovery Act. Subsection (c) is essentially the same as former Section 13-28 (c), and it addresses the inclusion of document requests in deposition subpoenas. Subsection (d) incorporates language that previously was in Section 13-28 (g) (2) and (3). It provides for an objection to a subpoena. Subsection (e) is new. It instructs litigants on where any motion responsive to a subpoena served in this state should be filed. Subsection (f) is a slightly modified version of former Section 13-28 (e). It provides for a motion to quash or modify a subpoena. Subsection (g) is new. It refers parties to the protective order procedure in Section 13-5. Subsection (h) is a slightly modified version of part of former Section 13-28 (g) (2). It permits the party who served the subpoena to move to compel compliance. Subsection (i) was formerly Section 13-28 (f). It has been modified to provide the court with options in addition to issuing a capias when the person issued a deposition subpoena fails to comply.

TECHNICAL CHANGE: In subsection (e), "is" was added before "directed."

Sec. 13-29. —Place of Deposition

(a) Any party who is a resident of this state may be compelled by notice as provided in Section 13-27 (a) to give a deposition at any place within the county of such party's residence, or within thirty miles of such residence, or at such other place as is fixed by order of the judicial authority or as otherwise agreed. A plaintiff who is a resident of this state may also be compelled by like notice to give a deposition at any place within the county where the action is commenced or is pending.

(b) A plaintiff who is not a resident of this state may be compelled by notice under Section 13-27 (a) to attend at the plaintiff's expense an examination in the county of this state where the action is commenced or is pending or at any place within thirty miles of the plaintiff's residence or within the county of his or her residence or in such other place as is fixed by order of the judicial authority or as otherwise agreed.

(c) A defendant who is not a resident of this state may be compelled:

(1) By subpoena to give a deposition in any county in this state in which the defendant is personally served, or

(2) By notice under Section 13-27 (a) to give a deposition at any place within thirty miles of the defendant's residence or within the county of the defendant's residence or at such other place as is fixed by order of the judicial authority or as otherwise agreed.

(d) A nonparty deponent who is a resident of this state may be compelled by subpoena served within this state to give a deposition at a place within the county of the nonparty deponent's residence or within thirty miles of such residence or at such other place as is fixed by order of the judicial authority or as otherwise agreed including the nonparty deponent.

(e) In an action pending in this state, a nonparty deponent who is not a resident of this state may be compelled by subpoena to give a deposition within any county in this state in which such nonparty deponent is personally served, or within the state of their residence if such nonparty deponent is served by a subpoena issued under authority of a court in that state pursuant to the Interstate Depositions and Discovery Act or, if that state has not adopted the Act, pursuant to a commission granted by a court in this state. The place of that deposition also may be at such other place as is fixed by order of the judicial authority or as otherwise agreed including the nonparty deponent.

(f) In this section, the terms "plaintiff" and "defendant" include officers, directors and managing agents of corporate plaintiffs and corporate defendants or other persons designated under Section 13-27 (h) as appropriate.

(g) If a deponent is an officer, director or managing agent of a corporate party, or other person designated under Section 13-27 (h), the place of examination shall be determined as if the residence of the deponent were the residence of the party.

(P.B. 1978-1997, Sec. 246.) (Amended June 14, 2024, to take effect Jan. 1, 2025; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In subdivision (c) (2), "his or her" was deleted and replaced with "the defendant's." Additionally, prior to 2026, subsection (d) read: "A nonparty deponent may be compelled by subpoena served within this state to give a deposition to a place within the county of his or her residence or within thirty miles of the nonparty deponent's residence, or if a nonresident of this state within any county in this state in which he or she is personally served, or at such other place as is fixed by order of the judicial authority or as otherwise agreed including the nonparty deponent."

Furthermore, what is now subsection (e) was added, and what had been designated as subsections (e) and (f) were redesignated as subsections (f) and (g), respectively.

COMMENTARY—2026: The changes to this section have been made in response to the adoption of the Interstate Depositions and Discovery Act, now codified at General Statutes § 52-655 et seq. The revisions to subsection (d) address nonparty deponents who are residents of this state, and new subsection (e) addresses deponents who are not residents of this state. The revised subsection (d) applies to both in-state and out-of-state actions when the nonparty deponent is a resident of this state. New subsection (e) provides additional guidance for in-state actions for the place for depositions of nonparty deponents who reside outside of this state.

Sec. 13-30. —Deposition Procedure

(a) Examination and cross-examination of deponents may proceed as permitted at trial. The officer before whom the deposition is to be taken shall put the deponent on oath and shall personally, or by someone acting under the officer's direction, record the testimony of the deponent. The testimony shall be taken stenographically or recorded by any other means authorized in accordance with Section 13-27 (f). If the testimony is taken stenographically, it shall be transcribed at the request of one of the parties.

(b) All objections made at the time of the examination to the qualifications of the officer taking the deposition, or to the manner of taking it, or to the evidence presented, or to the conduct of any party, and any other objection to the proceedings, shall be noted by the officer upon the deposition. Evidence objected to shall be taken subject to the objections. Every objection raised during a deposition shall be stated succinctly and framed so as not to suggest an answer to the deponent and, at the request of the questioning attorney, shall include a clear statement as to any defect in form or other basis of error or irregularity. A person may instruct a deponent not to answer only when necessary to preserve a privilege, to enforce a limitation directed by the court, or to present a motion under subsection (c) of this section. In lieu of participating in the oral examination, parties may serve written questions in a sealed

envelope on the party taking the deposition and the party shall transmit the questions to the officer, who shall propound them to the witness and record the answers verbatim.

(c) At any time during the taking of the deposition, on motion of a party or of the deponent and upon a showing that the examination is being conducted in bad faith or in such manner as unreasonably to annoy, embarrass, or oppress the deponent or party, the court in which the action is pending may order the officer conducting the examination forthwith to cease taking the deposition, or may limit the scope and manner of the taking of the deposition as provided in Section 13-5. If the order made terminates the examination, it shall be resumed thereafter only upon the order of the court in which the action is pending.

(d) If requested by the deponent or any party, when the testimony is fully transcribed the deposition shall be submitted to the deponent for examination and shall be read to or by the deponent. Any changes in form or substance which the deponent desires to make shall be entered upon the deposition by the officer with a statement of the reasons given by the deponent for making them. The deposition shall then be signed by the deponent certifying that the deposition is a true record of the deponent's testimony, unless the parties by stipulation waive the signing or the witness is ill or cannot be found or refuses to sign. If the deposition is not signed by the deponent within thirty days after its submission to the deponent, the officer shall sign it and state on the record the fact of the waiver or of the illness or absence of the deponent or the fact of the refusal or failure to sign together with the reason, if any, given therefor; and the deposition may then be used as fully as though signed unless, on a motion to suppress under Section 13-31 (d) (4), the judicial authority holds that the reasons given for the refusal or failure to sign require rejection of the deposition in whole or in part.

(e) The person recording the testimony shall certify on the deposition that the witness was duly sworn by the person, that the deposition is a true record of the testimony given by the deponent, whether each adverse party or his agent was present, and whether each adverse party or his agent was notified, and such person shall also certify the reason for taking the deposition. The person shall then cause a watermark or other indicia of origin to be added to the deposition and shall then promptly deliver it to the party at whose request it was taken and give to all other parties a notice that the deposition has been transcribed and so delivered. The party at whose request the deposition was taken shall file the deposition with the court at the time of trial.

(f) Documents and things produced for inspection during the examination of the deponent, shall, upon the request of a party, be marked for identification and annexed to and returned with the deposition, and may be inspected and copied by any party, except that (1) the person producing the materials may substitute copies to be marked for identification, if the person affords to all parties fair opportunity to verify the copies by comparison with the originals, and (2) if the person producing the materials requests their return, the officer shall mark them, give each party an opportunity to inspect and copy them, and return them to the person producing them, and the materials may then be used in the same manner as if annexed to and returned with the deposition to the court, pending final disposition of the case.

(g) The parties may agree, or the court may upon motion order, that a deposition be taken by telephone, videoconference, or other remote electronic means. For the purposes of Sections 13-26 through 13-29 and this section, such a deposition is deemed taken at the place where the deponent is to answer questions. Except as otherwise provided in this subsection, the rules governing the practice, procedures and use of depositions shall apply to remote electronic means depositions. The following additional rules, unless otherwise agreed or ordered by the court, shall apply to depositions taken by remote electronic means:

(1) The presence of the officer administering the oath and recording the deposition may be remote to the deponent. An officer may administer an oath by means of an interactive audiovisual device to any party, witness or other participant in a proceeding who appears pursuant to this section, provided such officer can see, hear and clearly identify the participant to whom the oath is to be administered via the audiovisual device.

(2) Nothing in subsection (g) shall prohibit any party from being with the deponent during the deposition, at that party's expense; provided, however, that a party attending a deposition shall give written notice of that party's intention to appear at the deposition to all other parties within a reasonable time prior to the deposition.

(3) The party at whose instance the remote electronic means deposition is taken shall pay all costs of the remote electronic means deposition for the transmission from the location of the deponent and one site for participation of counsel located in the judicial district where the case is

pending together with the cost of the stenographic, video or other electronic record. The cost of participation in a remote electronic means deposition from any other location shall be paid by the party or parties participating from such other location.

(h) Notwithstanding this section, a deposition may be attended by any party by remote electronic means even if the party noticing the deposition does not elect to use remote electronic means if (1) a party desiring to attend by remote electronic means provides written notice of such intention to all parties in either the notice of deposition or a notice served in the same manner as a notice of deposition and (2) if the party electing to participate by remote electronic means is not the party noticing the deposition, such party pays all costs associated with implementing such remote electronic participation by that party.

(i) Nothing contained in any provision providing for the use of remote electronic means depositions shall prohibit any party from securing a representative to be present at the location where the deponent is located to report on the record any events which occur in that location which might not otherwise be transmitted and/or recorded by the electronic means utilized.

(j) The party on whose behalf a deposition is taken shall bear the cost of the original transcript, and any permanent electronic record including audio or video recording. Any party or the deponent may obtain a copy of the deposition transcript and permanent electronic record including audio or video recording at its own expense.

(P.B. 1978-1997, Sec. 247.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 30, 2003, to take effect Jan. 1, 2004; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 9, 2023, to take effect Jan. 1, 2024; amended June 14, 2024, to take effect Jan. 1, 2025.)

TECHNICAL CHANGE: A technical change was made to subsection (d) of this section to update the reference to Section 13-31 (d) (4). In addition, technical changes were made in subsection (j) to update the terminology to align with current technology and practice.

Sec. 13-31. —Use of Depositions in Court Proceedings

(a) **Use of Depositions in Proceedings in this State**.

At the trial of a civil action, probate proceeding or administrative appeal, or upon the hearing of a motion or an interlocutory proceeding, any part or all of a deposition, so far as admissible under the rules of evidence applied as though the witness were there present and testifying, may be used against any party who was present or represented at the taking of the deposition or who had reasonable notice thereof, in accordance with any of the following provisions:

(1) Any deposition may be used by any party for the purpose of contradicting or impeaching the testimony of the deponent as a witness.

(2) The deposition of any physician, psychologist, chiropractor, natureopathic physician, osteopathic physician or dentist licensed under the provisions of the General Statutes may be received in evidence in lieu of the appearance of such witness at the trial or hearing whether or not the person is available to testify in person at the trial or hearing.

(3) The deposition of a party or of anyone who at the time of the taking of the deposition was an officer, director, or managing agent or employee or a person designated under Section 13-27 (h) to testify on behalf of a public or private corporation, partnership or association or governmental agency which is a party may be used by an adverse party for any purpose.

(4) The deposition of a witness other than a person falling within the scope of subdivision (2) hereof, whether or not a party, may be used by any party for any purpose if the judicial authority finds: (A) that the witness is dead; (B) that the witness is at a greater distance than thirty miles from the place of trial or hearing, or is out of the state and will not return before the termination of the trial or hearing, unless it appears that the absence of the witness was procured by the party offering the deposition; (C) that the witness is unable to attend or testify because of age, illness, infirmity, or imprisonment; (D) that the party offering the deposition has been unable to procure the attendance of the witness by subpoena; (E) that the parties have agreed that the deposition may be so used; (F) upon application and notice, that such exceptional circumstances exist as to make it desirable, in the interest of justice and with due regard to the importance of presenting the testimony of witnesses orally in open court, to allow the deposition to be used.

(5) If only part of a deposition is offered in evidence by a party, an adverse party may require the party to introduce any other part which ought in fairness to be considered with the part introduced, and any party may introduce any other parts.

(6) Substitution of parties does not affect the right to use depositions previously taken; and when an action in any court of the United States or of any state has been dismissed and another action involving the same subject matter is afterward brought between the same parties or their representatives or successors in interest, all depositions lawfully taken and duly filed in the

former action may be used in the latter as if originally taken therefor.

(b) **Use of Depositions in Proceedings Outside this State.**

Depositions of witnesses living in this state may be taken before any of the individuals listed in Section 13-28 (a) to be used as evidence in a civil action, probate proceeding or administrative appeal pending in any court of the United States or of any other state of the United States or of any foreign country, on application of any party to such civil action, probate proceeding, or administrative appeal.

(c) **Objections to Admissibility**.

Subject to the provisions of subsection (d) of this section, objection may be made at the trial or hearing to receiving in evidence any deposition or part thereof for any reason which would require the exclusion of the evidence if the witness were then present and testifying.

(d) **Effect of Errors and Irregularities in Depositions.**

(1) As to notice: All errors and irregularities in the notice for taking a deposition are waived unless written objection is promptly served upon the party giving the notice.

(2) As to disqualification of officer: Objection to taking a deposition because of disqualification of the officer before whom it is to be taken is waived unless made before the taking of the deposition begins or as soon thereafter as the disqualification becomes known or could be discovered with reasonable diligence.

(3) As to taking of deposition: (A) Objections to the competency of a witness or to the competency, relevancy or materiality of testimony are not waived by failure to make them before or during the taking of the deposition, unless the ground of the objection is one which might have been obviated or removed if presented at that time. (B) Errors and irregularities occurring at the oral examination in the manner of taking the deposition, in the form of the questions or answers, in the oath or affirmation, or in the conduct of parties, and errors of any kind which might be obviated, removed, or cured if promptly presented, are waived unless seasonable objection thereto is made at the taking of the deposition.

(4) As to completion and return of deposition: Errors and irregularities in the manner in which the testimony is transcribed or the deposition is prepared, signed, certified, sealed, endorsed, transmitted, filed or otherwise dealt with by the officer are waived unless a motion to suppress the deposition or some part thereof is made with reasonable promptness after such defect is, or with due diligence might have been, ascertained.

(P.B. 1978-1997, Sec. 248; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, the title of subsection (a) read: "Use of Depositions." Additionally, what is now subsection (b) was added, what had been subsections (b) and (c) were redesignated as subsections (c) and (d), respectively, and in what is now subsection (c), the reference to what is now subsection (d) was updated.

COMMENTARY—2026: The changes to this section have been made in response to the adoption of the Interstate Depositions and Discovery Act, now codified at General Statutes § 52-655 et seq. The change to subsection (a) makes it clear that the subsection refers to the use of depositions in in-state proceedings. Subsection (b), which is a slight modification of former Section 13-28 (g) (1), applies to depositions taken in this state for out-of-state proceedings.

Sec. 13-32. Agreements regarding Discovery and Deposition Procedure

(Amended June 14, 2024, to take effect Jan. 1, 2025.)

Unless the court orders otherwise, the parties may agree (1) that depositions may be taken before any person, at any time or place, upon any notice, and in any manner, and when so taken may be used as other depositions, and (2) modify the procedures provided by this chapter for other methods of discovery.

(P.B. 1978-1997, Sec. 249.) (Amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 13-33. Claim of Privilege or Protection after Production

(a) If papers, books, documents or electronically stored information produced in discovery are subject to a claim of privilege or of protection as trial preparation material, the party making the claim may notify any party that received the information of the claim and the basis for the claim.

(b) After being notified of a claim of privilege or of protection under subsection (a), a party shall immediately sequester the specified information and any copies it has and: (1) return or destroy the information and all copies and not use or disclose the information until the claim is resolved; or (2) present the information to the judicial authority under seal for a determination of the claim and not otherwise use or disclose the information until the claim is resolved.

(c) If a party that received notice under subsection (b) disclosed the information subject to the notice before being notified, the party shall take reasonable steps to retrieve the information.

(Adopted June 20, 2011, to take effect Jan. 1, 2012.)

CHAPTER 14

DOCKETS, TRIAL LISTS, PRETRIALS AND ASSIGNMENT LISTS

Sec.
14-1. Claim for Statutory Exemption or Stay by Reason of Bankruptcy
14-2. Claim for Exemption from Docket Management Program by Reason of Bankruptcy
14-3. Dismissal for Lack of Diligence
14-4. Maintenance of Case Records
14-5. Definition of Administrative Appeals
14-6. Administrative Appeals Are Civil Actions
14-7. Administrative Appeals; Exceptions
14-7A. —Administrative Appeals Brought Pursuant to General Statutes § 4-183 et seq.; Appearances; Records, Briefs and Scheduling
14-7B. Administrative Appeals from Municipal Land Use, Historic and Resource Protection Agencies; Records, Briefs and Scheduling; Withdrawal or Settlement
14-8. Certifying That Pleadings Are Closed
14-9. Privileged Cases in Assignment for Trial

Sec,
14-10. Claims for Jury
14-11. Pretrial; Assignment for Pretrial
14-12. —When Case Not Disposed of at Pretrial
14-13. —Pretrial Procedure
14-14. —Orders at Pretrial
14-15. Assignments for Trial in General
14-16. Methods of Assigning Cases for Trial
14-17. Immediate Trial
14-18. Cases Reached for Trial
14-19. Cases Marked Settled
14-20. Order of Trial
14-21. Clerk To Communicate with Counsel in Cases Assigned for Week Certain
14-22. Assignment for Trial on Motion of Garnishee
14-23. Motions To Continue or Postpone Case Assigned for Trial
14-24. Motion To Postpone; Absent Witness; Missing Evidence
14-25. Availability of Counsel for Trial

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 14-1. Claim for Statutory Exemption or Stay by Reason of Bankruptcy

When a claim for a statutory exemption or stay by reason of bankruptcy is filed, it shall be accompanied by an affidavit setting forth the date the bankruptcy petition was filed, the district of the bankruptcy court in which it was filed and the address, the name of the bankruptcy debtor and the number of the bankruptcy case.

When the stay has been relieved or terminated, the plaintiff, the person filing the petition, or any other interested party shall file with the court a copy of the relief or termination of stay issued by the bankruptcy court.

(P.B. 1978-1997, Sec. 250A.) (Amended June 21, 2004, to take effect Jan. 1, 2005.)

Sec. 14-2. Claim for Exemption from Docket Management Program by Reason of Bankruptcy

(Amended June 24, 2002, to take effect Jan. 1, 2003.)

When a claim for an exemption from the docket management program by reason of bankruptcy is filed, it shall be accompanied by an affidavit setting forth the date the bankruptcy petition was filed, the district of the bankruptcy court in which it was filed and the address, the name of the bankruptcy debtor and the number of the bankruptcy case and shall be sworn to by the party claiming the exemption or that party's attorney. An updated affidavit shall be filed every six months by that claimant.

(P.B. 1978-1997, Sec. 250B.) (Amended June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 14-3. Dismissal for Lack of Diligence

(a) If a party shall fail to prosecute an action with reasonable diligence, the judicial authority may, after hearing, on motion by any party to the action pursuant to Section 11-1, or on its own motion, render a judgment dismissing the action with costs. At least two weeks' notice shall be required except in cases appearing on an assignment list for final adjudication. Judgment files shall not be drawn except where an appeal is taken or where any party so requests.

(b) If a case appears on a docket management calendar pursuant to the docket management program administered under the direction of the chief court administrator, and a motion for default for failure to plead is filed pursuant to Section 10-18, only those papers which close the pleadings by joining issues, or raise a special defense, may be filed by any party, unless the judicial authority otherwise orders.

(P.B. 1978-1997, Sec. 251.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 14-4. Maintenance of Case Records

The clerk in each judicial district and geographical area shall maintain and have available for inspection during office hours a record concerning each civil case and administrative appeal. Such record shall designate whether the pleadings are closed and shall distinguish those cases in which

the amount, legal interest or property in demand, is less than $15,000, exclusive of interest and costs, from cases in which the amount, legal interest or property in demand, is $15,000 or more, exclusive of interest and costs.

(P.B. 1978-1997, Sec. 254.)

Sec. 14-5. Definition of Administrative Appeals

For the purposes of these rules, administrative appeals are those appeals taken pursuant to statute from decisions of officers, boards, commissions or agencies of the state or of any political subdivision of the state, and include specifically appeals taken pursuant to:

(1) chapter 54 of the General Statutes;

(2) chapters 124 through 134 of the General Statutes; or

(3) other enabling legislation.

(P.B. 1978-1997, Sec. 255.)

Sec. 14-6. Administrative Appeals Are Civil Actions

For purposes of these rules, administrative appeals are civil actions subject to the provisions and exclusions of General Statutes § 4-183 et seq. and the Practice Book. Whenever these rules refer to civil actions, actions, civil causes, causes or cases, the reference shall include administrative appeals except that an administrative appeal shall not be deemed an action for purposes of Section 10-8 of these rules or for General Statutes §§ 52-48, 52-591, 52-592 or 52-593.

(P.B. 1978-1997, Sec. 256.) (Amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 14-7. Administrative Appeals; Exceptions

(Amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) Appeals from the Employment Security Board of Review shall follow the procedure set forth in Chapter 22 of these rules.

(b) Workers' compensation appeals taken to the Appellate Court shall follow the procedure set forth in the Rules of Appellate Procedure.

(c) Appeals in which the parties are entitled to a trial de novo, including but not limited to: (1) appeals from municipal boards of tax review or boards of assessment appeals taken pursuant to General Statutes §§ 12-117a and 12-119; (2) appeals from municipal assessors taken pursuant to General Statutes § 12-103; (3) appeals from the Commissioner of Revenue Services; and (4) appeals from the insurance commissioner taken pursuant to General Statutes § 38a-139, are excluded from the procedures prescribed in Section 14-7A and 14-7B, and shall, subsequent to the filing of the appeal, follow the same course of pleading as that followed in ordinary civil actions.

(d) Administrative appeals are not subject to the pretrial rules, except as otherwise provided in Sections 14-7A and 14-7B.

(P.B. 1978-1997, Sec. 257.) (Amended June 21, 2004, to take effect Jan. 1, 2005; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 14-7A. —Administrative Appeals Brought Pursuant to General Statutes § 4-183 et seq.; Appearances; Records, Briefs and Scheduling

(Amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) Administrative appeals brought pursuant to General Statutes § 4-183 et seq. shall be served in accordance with applicable law either by certified or registered mail of the appeal, and a notice of filing on a form substantially in compliance with Form JD-CV-137 or by personal service of the appeal, and a citation on a form substantially in compliance with Form JD-CV-138. The appeal shall be filed with the court in accordance with General Statutes § 4-183 (c).

(b) In administrative appeals brought pursuant to General Statutes § 4-183 et seq., the defendant shall file an appearance within thirty days of service made pursuant to General Statutes § 4-183 (c). Within thirty days of the filing of the defendant's appearance, or if a motion to dismiss is filed, within forty-five days of the denial of a motion to dismiss, the agency shall file with the court and transmit to all parties a certified list of the papers in the record as set forth in General Statutes § 4-183 (g), and, unless otherwise excluded by law or subject to a pending motion by either party, shall make the existing listed papers available for inspection by the parties.

(c) Except as provided in Section 14-7, or except as otherwise permitted by the judicial authority in its discretion, in an administrative appeal brought pursuant to General Statutes § 4-183 et seq., the record shall be transmitted and filed in accordance with this section. For the purposes of this section, the term "papers" shall include any and all documents, transcripts, exhibits, plans, minutes, agendas, correspondence, or other materials, regardless of format, which are part of the entire record of the proceeding appealed from described in General Statutes §§ 4-177 (d) and 4-183 (g), including additions to the record pursuant to General Statutes § 4-183 (h).

(d) No less than thirty days after the filing of the certified list of papers in the record under subsection (b), the court and the parties will set up a conference to establish which of the contents of the record are to be transmitted and will set up a

scheduling order, including dates for the filing of the designated contents of the record, for the filing of appropriate pleading and briefs, and for conducting appropriate conferences and hearings. No brief shall exceed thirty-five pages without permission of the judicial authority. At the conference, the court shall also determine which, if any, of the designated contents of the record shall be transmitted to the parties and/or the court in paper format because such papers are either difficult to reproduce electronically or difficult to review in electronic format.

(e) The agency shall transmit to the court certified copies of the designated contents of the record established in accordance with subsection (d).

(f) If any party seeks to include in such party's brief or appendices, papers the party deems material to its claim or position, which were not part of the designated contents of the record determined under subsection (d), but were on the certified list filed in accordance with subsection (b), such party shall file an amendment to the record as of right attaching such papers. In the event such an amendment to the record as of right is filed, the scheduling order may be adjusted to provide either party with additional time to file a brief or reply brief.

(g) No party shall include in such party's brief or appendices, papers that were neither part of the designated contents of the record under subsection (d), nor on the certified list filed in accordance with subsection (b), unless the court requires or permits subsequent corrections of additions to the record under General Statutes § 4-183 (g) or unless an application for leave to present additional evidence is filed and granted under General Statutes § 4-183 (h) or (i).

(h) Disputes about the contents of the record or other motion, application or objection will be heard as otherwise scheduled by the court.

(i) If a party is not in compliance with the scheduling order, the judicial authority may, on its own motion or on motion of one of the parties, and after hearing, make such order, including sanctions, as the ends of justice require.

(j) Any hearings to consider the taxation of costs in accordance with General Statutes § 4-183 (g) shall be conducted after the court renders its decision on the appeal.

(Adopted June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 24, 2016, to take effect Jan. 1, 2017.)

TECHNICAL CHANGE: A change was made to the sequence of the statutes referenced in subsection (c).

Sec. 14-7B. Administrative Appeals from Municipal Land Use, Historic and Resource Protection Agencies; Records, Briefs and Scheduling; Withdrawal or Settlement

(Amended June 14, 2013, to take effect Jan. 1, 2014.)

(a) Except as provided in Section 14-7 or 14-7A, for appeals from municipal land use, historic, and resource protection agencies, the board or agency shall transmit and file the record in accordance with this section. For the purposes of this Section 14-7B, the term "papers" shall include any and all documents, transcripts, exhibits, plans, minutes, agendas, correspondence, or other materials, regardless of format, which are part of the return of record described in General Statutes § 8-8 (i), including additions to the record per § 8-8 (k).

(b) Within thirty days of the return date, the board or agency shall transmit a certified list of the papers in the record to all parties and shall make the existing listed papers available for inspection by the parties.

(c) The first time that the appeal appears on the administrative appeals calendar, the court and the parties will establish, or will set up a conference to establish, which of the contents of the record are to be transmitted, and will set up a scheduling order, which will include dates for the filing of the designated contents of the record, for the filing of appropriate pleading and briefs, and for conducting appropriate conferences and hearings. No brief shall exceed thirty-five pages without permission of the judicial authority. At the conference, the court shall also determine which, if any, of the designated contents of the record shall be transmitted to the parties and/or the court in paper format because such papers are either difficult to reproduce electronically or difficult to review in electronic format.

(d) The board or agency shall transmit to the court and all parties: (1) the certified list of papers in the record that was transmitted to the parties under subsection (b) of this section; and (2) certified copies of the designated contents of the record established in accordance with subsection (c).

(e) If any party seeks to include in such party's brief or appendices papers the party deems material to its claim or position, which were not part of the designated contents of the record determined under subsection (c) but were on the certified list filed in accordance with subsection (b), such party shall file an amendment to the record as of right attaching such papers. In the event such an amendment to the record as of right is filed, the scheduling order may be adjusted to provide either party with additional time to file a brief or reply brief.

(f) No party shall include in such party's brief or appendices, papers that were neither part of the designated contents of the record under subsection (c), nor on the certified list filed in accordance with subsection (b), unless the court grants permission to supplement the records with such papers pursuant to General Statutes § 8-8 (k).

(g) Disputes about the contents of the records or other motions, applications or objections will be heard on the administrative appeals calendar or as otherwise scheduled by the court.

(h) If a party is not in compliance with the scheduling order, the judicial authority may, on its own motion or on motion of one of the parties, and after hearing, make such order, including sanctions, as the ends of justice require.

(i) Any hearings to consider taxation of costs in accordance with General Statutes § 8-8 (i) shall be conducted after the court renders its decision on the appeal.

(j) No appeal under General Statutes §§ 8-8 or 22a-43 shall be withdrawn and no settlement between the parties to any such appeal shall be effective unless and until a hearing has been held before the Superior Court and such court has approved such proposed withdrawal or settlement. No decision that is appealed under General Statutes §§ 8-8 or 22a-43 shall be modified by settlement or stipulated judgment unless the terms of the settlement or stipulated judgment have been approved at a public meeting of the municipal agency that issued the decision. The proposed settlement shall be identified on the agenda of such meeting, which agenda shall be posted in accordance with the applicable requirements of General Statutes § 1-210 et seq., and the reasons for such approval shall be stated on the record during such public meeting of such agency and before the court. The court may inquire about the procedure followed by the agency, inquire of the parties whether settlement was reached by coercion or intimidation, and consider any other factors that the court deems appropriate. No notice of the court proceeding other than normal publication of the calendar and notice to the parties is required unless otherwise ordered by the court.

(Adopted June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 14-8. Certifying That Pleadings Are Closed

(a) A case may be scheduled for trial at any time by order of the court. When the pleadings are closed on the issue or issues in the case as to all parties, an accurate certificate of closed pleadings shall be filed within ten days. Any party may file the certificate. Upon the filing of the certificate of closed pleadings, the case shall be scheduled for a trial as soon as the court's docket permits if it has not already been scheduled for a trial.

(b) If the case is claimed as privileged, the ground of privilege as defined in Section 14-9 shall be stated. If the privilege claimed arises from some other statute or rule giving a matter precedence for trial, the applicable provisions shall be cited with specificity.

(c) An administrative appeal may be placed on the administrative appeal trial list at the direction of the judicial authority, pursuant to Section 14-7A or 14-7B or in accordance with subsections (a) and (b) of this section.

(d) This section shall not apply to summary process matters.

(P.B. 1978-1997, Sec. 258.) (Amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 14-9. Privileged Cases in Assignment for Trial

The following classes of cases shall be privileged in respect to assignment for trial: (1) hearings under the Fair Employment Practices Act and the Labor Relations Act; (2) all actions, except actions upon probate bonds, brought by or on behalf of the state, including informations on the relation of a private individual; (3) appeals from the Employment Security Board of Review; (4) appeals from probate and from the doings of commissioners appointed by courts of probate; (5) actions brought by receivers of insolvent corporations by order of court; (6) actions by or against any person sixty-five years of age or older or who reaches such age during the pendency of the action; (7) appeals from findings, orders or other actions of the Public Utilities Regulatory Authority; (8) equitable actions tried to the court wherein the essential claim asserted is for a permanent injunction and any claim for damages or other relief, legal or equitable, is merely in lieu of, or supplemental to, the claim for injunction; (9) habeas corpus proceedings; (10) motions to dissolve temporary injunctions; (11) motions for temporary injunctions; (12) writs of ne exeat, prohibition and mandamus; (13) applications for appointment of receivers; (14) disclosures by garnishees; (15) actions by or against executors, administrators, or trustees in bankruptcy or insolvency; (16) hearings to the court in damages on default or cases where there is an issue as to damages after the judicial authority has granted a summary judgment on the issue of liability; (17) cases remanded by the Supreme and Appellate Courts for a new trial and cases in which a verdict has been set

aside, a new trial granted or a mistrial declared; (18) any other actions given precedence by statute or rule.

(P.B. 1978-1997, Sec. 259.)

Sec. 14-10. Claims for Jury

All claims of cases for the jury shall be made in writing, served on all other parties and filed with the clerk within the time allowed by General Statutes § 52-215. The jury claim fee shall be paid at the time the jury claim is filed.

(P.B. 1978-1997, Sec. 260.)

Sec. 14-11. Pretrial; Assignment for Pretrial

(a) Cases in which the pleadings are closed may be assigned by the caseflow coordinator or clerk in consultation with the presiding judge for pretrial.

(b) If there are reasons why a case scheduled for pretrial cannot be pretried effectively, for example in cases in which the extent of the injuries are unknown or discovery has not been completed, then the judicial authority shall continue the case to a date certain for pretrial and may limit the time for the completion of discovery.

(P.B. 1978-1997, Sec. 263.)

Sec. 14-12. —When Case Not Disposed of at Pretrial

If the pretrial does not result in the disposition of the case by settlement, judgment by stipulation, or withdrawal, then the judicial authority may (1) continue the matter for a reasonable period if the parties agree to participate in any form of alternative dispute resolution, (2) enter appropriate orders to assure that the case is readied for trial, (3) order the case assigned for trial on a date certain or a week certain in the future or, (4) assign the case to a specific judge for trial on a date certain. The date designated for trial shall, if possible, be agreeable to the parties.

(P.B. 1978-1997, Sec. 264.)

Sec. 14-13. —Pretrial Procedure

The chief court administrator or the presiding judge with the consent of the chief court administrator may designate one or more available judges or judge trial referees to hold pretrial sessions. Parties and their attorneys shall attend the pretrial session; provided, that when a party against whom a claim is made is insured, an insurance adjuster for such insurance company shall be available by telephone at the time of such pretrial session unless the judge or judge referee, in his or her discretion, requires the attendance of the adjuster at the pretrial. If any person fails to attend or to be available by telephone pursuant to this rule, the judicial authority may make such order as the ends of justice require, which may include the entry of a nonsuit or default against the party failing to comply and an award to the complying party of reasonable attorney's fees. Each party claiming damages or seeking relief of any kind, or such party's attorney, shall obtain from the court clerk a pretrial memo form, shall complete the form before the pretrial session and shall, at the commencement of the pretrial session, distribute copies of the completed form to the judge and to each other party. Such pretrial memoranda shall not be placed in the court file unless otherwise ordered by the judicial authority who conducted the pretrial.

The following matters shall be considered at the pretrial session:

(1) A discussion of the possibility of settlement.

(2) Simplification of the issues.

(3) Amendments to pleadings.

(4) Admissions of fact, including stipulations of the parties concerning any material matter and admissibility of evidence, particularly photographs, maps, drawings and documents, in order to minimize the time required for trial.

(5) The limitation of number of expert witnesses.

(6) Inspection of hospital records and X-ray films.

(7) Exchange of all medical reports, bills and evidences of special damage which have come into possession of the parties or of counsel since compliance with previous motions for disclosure and production for inspection.

(8) Scheduling of a trial management conference and issuance of a trial management order by the judicial authority with reference thereto.

(9) Consideration of alternative dispute resolution options to trial.

(10) Such other procedures as may aid in the disposition of the case, including the exchange of medical reports, and the like, which come into possession of counsel subsequent to the pretrial session.

(P.B. 1978-1997, Sec. 265.) (Amended June 20, 2005, to take effect Jan. 1, 2006.)

TECHNICAL CHANGE: A hyphen was inserted in "X-ray."

Sec. 14-14. —Orders at Pretrial

The judicial authority may make any appropriate order at pretrial, including the issuance of a trial management order, and such order shall control the subsequent conduct of the case unless modified at the trial to prevent manifest injustice. If any party fails to abide by any such order the judicial authority may make such order as the ends of justice require, which may include the entry of a nonsuit or default against the offending

party and an award to a complying party of reasonable attorney's fees.

(P.B. 1978-1997, Sec. 268.)

Sec. 14-15. Assignments for Trial in General

Each week a sufficient number of cases shall be assigned to provide business for each trial day of that week. Cases may be assigned for different days and different times of the same day. In determining the number of cases to be assigned, the caseflow coordinator or clerk, in consultation with the presiding judge, will schedule only the number of cases that can reasonably be expected to be tried that week. Cases not reached for trial on the day certain or during the week certain to which they were assigned shall be assigned with priority to a new date, which shall, if possible, be agreeable to the parties.

(P.B. 1978-1997, Sec. 270.)

Sec. 14-16. Methods of Assigning Cases for Trial

(a) In each court location the presiding judge, subject to the approval of the chief court administrator, shall assign to trial judges for trial those cases not resolved at pretrial in accordance with Section 14-12.

(b) The presiding judge may, if circumstances require, assign for trial a case that has not been pretried.

(c) Upon request of a party and for good cause shown, the presiding judge may postpone a case or reassign it to another judge.

(P.B. 1978-1997, Sec. 271.)

Sec. 14-17. Immediate Trial

The judicial authority may, on its own motion or on the motion of a party and upon a showing of extraordinary circumstances, order a case to be assigned for immediate trial.

(P.B. 1978-1997, Sec. 273.)

Sec. 14-18. Cases Reached for Trial

When a case is reached on a day or week certain it shall be tried, defaulted, dismissed pursuant to Section 17-19 or nonsuited, unless for good cause shown the judicial authority may assign it for trial on a future date. Such rescheduling shall not displace cases already assigned for trial.

(P.B. 1978-1997, Sec. 274.)

Sec. 14-19. Cases Marked Settled

Any case that does not proceed to trial because it has been reported to the judicial authority as having been settled shall be withdrawn within thirty days or shall be dismissed thereafter unless the judicial authority, for good cause shown, extends the time for a withdrawal.

(P.B. 1978-1997, Sec. 274A.)

Sec. 14-20. Order of Trial

Parties and counsel shall be present and ready to proceed to trial on the day and time specified by the judicial authority. The day specified shall be during the week certain selected by counsel.

(P.B. 1978-1997, Sec. 276.)

Sec. 14-21. Clerk To Communicate with Counsel in Cases Assigned for Week Certain

The caseflow coordinator or clerk, at the direction of the presiding judge, shall communicate with counsel for the parties in the cases assigned for each week certain for trial to keep the court provided with sufficient business for each day the court is in session. Cases shall not be assigned for trial prior to the week certain that has been assigned unless the parties consent.

(P.B. 1978-1997, Sec. 277.)

Sec. 14-22. Assignment for Trial on Motion of Garnishee

When, in an action commenced by process of foreign attachment, the defendant does not appear, if the plaintiff does not take a default in such action within four months after the day on which the process is returnable to such court, the judicial authority may, at any time thereafter, upon motion of any garnishee in such action, assign the same for trial.

(P.B. 1978-1997, Sec. 278.)

Sec. 14-23. Motions To Continue or Postpone Case Assigned for Trial

Whenever a motion for a postponement or continuance of a case assigned for trial is made by either party and such motion is granted, the court may require the party making the same to pay to the adverse party such sum by way of indemnity as it deems reasonable. (See General Statutes § 52-196.)

(P.B. 1978-1997, Sec. 279.)

Sec. 14-24. Motion To Postpone; Absent Witness; Missing Evidence

(a) Whenever a motion is made for the postponement or continuance of a cause assigned for trial on account of the absence of a material witness, such motion, if the adverse party or the judicial authority requires it, shall be supported by an affidavit stating the name of the absent witness, if known, and the particular facts which, it is believed, may be proved by him or her, with

the grounds of such belief. The judicial authority may refuse to continue such cause if there is no good reason why the party making the request did not make proper preparation to have the witness present or if the adverse party will admit that the absent witness would, if present, testify to the facts stated in the affidavit, and will agree that the same shall be received as evidence on the trial, in like manner as if the witness were present and had testified thereto. Such agreement shall be made in writing at the foot of the affidavit and signed by the party or attorney.

(b) The same rule shall apply where the motion is grounded on the want of any material document or other evidence that might be used on the trial.

(P.B. 1978-1997, Sec. 280.)

Sec. 14-25. Availability of Counsel for Trial

Whenever an attorney has cases assigned simultaneously before the court and jury, the jury assignment shall take precedence over the court assignment unless the attorney is actually engaged in the court trial.

(P.B. 1978-1997, Sec. 281.) (Amended June 24, 2002, to take effect Jan. 1, 2003.)

CHAPTER 15

TRIALS IN GENERAL; ARGUMENT BY COUNSEL

Sec.
15-1. Order of Trial
15-2. Separate Trials
15-3. Motion in Limine
15-4. Medical Evidence
15-5. Order of Parties Proceeding at Trial
15-6. Opening Argument
15-7. Time Limit on Argument
15-8. Dismissal in Court Cases for Failure To Make Out a Prima Facie Case

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 15-1. Order of Trial

In all cases, whether entered upon the docket as jury cases or court cases, the judicial authority may order that one or more of the issues joined be tried before the others. Where the pleadings in an action present issues both of law and of fact, the issues of law must be tried first, unless the judicial authority otherwise directs. If some, but not all, of the issues in a cause are put to the jury, the remaining issue or issues shall be tried first, unless the judicial authority otherwise directs. (See General Statutes § 52-205 and annotations.)

(P.B. 1978-1997, Sec. 283.)

Sec. 15-2. Separate Trials

The judicial authority may, upon motion, for good cause shown, order a separate trial between any parties.

(P.B. 1978-1997, Sec. 284.)

Sec. 15-3. Motion in Limine

The judicial authority to whom a case has been assigned for trial may in its discretion entertain a motion in limine made by any party regarding the admission or exclusion of anticipated evidence. If a case has not yet been assigned for trial, a judicial authority may, for good cause shown, entertain the motion. Such motion shall be in writing and shall describe the anticipated evidence and the prejudice which may result therefrom. All interested parties shall be afforded an opportunity to be heard regarding the motion and the relief requested. The judicial authority may grant the relief sought in the motion or such other relief as it may deem appropriate, may deny the motion with or without prejudice to its later renewal, or may reserve decision thereon until a later time in the proceeding.

(P.B. 1978-1997, Sec. 284A.)

Sec. 15-4. Medical Evidence

A party who plans to offer a hospital record in evidence shall have the record in the clerk's office twenty-four hours prior to trial. The judge holding the civil jury shall, at the opening session, order that all such records be available for inspection in the clerk's office to any counsel of record under the supervision of the clerk. Counsel must recognize their responsibility to have medical testimony available when needed and shall, when necessary, subpoena medical witnesses to that end.

(P.B. 1978-1997, Sec. 290.)

Sec. 15-5. Order of Parties Proceeding at Trial

(a) Unless the judicial authority for cause permits otherwise, the parties shall proceed with the trial and argument in the following order:

(1) The plaintiff shall present a case-in-chief.

(2) The defendant may present a case-in-chief.

(3) The plaintiff and the defendant may present rebuttal evidence in successive rebuttals, as required. The judicial authority for cause may permit a party to present evidence not of a rebuttal nature, and if the plaintiff is permitted to present further evidence-in-chief, the defendant may respond with further evidence-in-chief.

(4) The plaintiff shall be entitled to make the opening and final closing arguments.

(5) The defendant may make a single closing argument following the opening argument of the plaintiff.

(b) If there are two or more plaintiffs or two or more defendants and they do not agree as to their order of proceeding, the judicial authority shall determine their order.

(P.B. 1978-1997, Sec. 295.)

Sec. 15-6. Opening Argument

Instead of reading the pleadings, counsel for any party shall be permitted to make a brief opening statement to the jury in jury cases, or in a court case at the discretion of the presiding judge, to apprise the trier in general terms as to the

nature of the case being presented for trial. The presiding judge shall have discretion as to the latitude of the statements of counsel.

(P.B. 1978-1997, Sec. 296.)

Sec. 15-7. Time Limit on Argument

The argument on behalf of any party shall not occupy more than one hour, unless the judicial authority, on motion for special cause, before the commencement of such argument, allows a longer time. (See General Statutes § 52-209 and annotations.)

(P.B. 1978-1997, Sec. 297.)

Sec. 15-8. Dismissal in Court Cases for Failure To Make Out a Prima Facie Case

If, on the trial of any issue of fact in a civil matter tried to the court, the plaintiff has produced evidence and rested, a defendant may move for judgment of dismissal, and the judicial authority may grant such motion if the plaintiff has failed to make out a prima facie case. The defendant may offer evidence in the event the motion is not granted, without having reserved the right to do so and to the same extent as if the motion had not been made.

(P.B. 1978-1997, Sec. 302.) (Amended June 30, 2008, to take effect Jan. 1, 2009.)

CHAPTER 16

JURY TRIALS

Sec.
16-1. Jurors Who Are Deaf or Hard of Hearing
16-2. Challenge to Array
16-3. Preliminary Proceedings in Jury Selection
16-4. Disqualification of Jurors and Selection of Panel
16-5. Peremptory Challenges
16-6. Voir Dire Examination
16-7. Juror Questions and Note-taking
16-8. Oath and Admonitions to Trial Jurors
16-9. Questions of Law and Fact
16-10. Order by Judicial Authority for Jury Trial of Factual Issues in Equitable Actions
16-11. Cases Presenting Both Legal and Equitable Issues
16-12. View by Jury of Place or Thing Involved in Case
16-13. Judgment of the Court
16-14. Communications between Parties and Jurors
16-15. Materials To Be Submitted to Jury
16-16. Jury Deliberations
16-17. Jury Returned for Reconsideration
16-18. Interrogatories to the Jury
16-19. Reading of Statement of Amount in Demand or Statement of Claim; Arguing Amount Recoverable
16-20. Requests To Charge and Exceptions; Necessity for
16-21. —Requests To Charge on Specific Claims
16-22. —Filing Requests
16-23. —Form and Contents of Requests To Charge
16-24. —Charge Conference
16-25. Modification of Instructions for Correction or Clarification
16-26. Other Instructions after Additional Instructions
16-27. Jury Request for Review of Testimony
16-28. Jury Request for Additional Instructions
16-29. Deadlocked Jury
16-30. Verdict; Return of Verdict
16-31. —Acceptance of Verdict
16-32. —Poll of Jury after Verdict
16-33. —Discharge of Jury
16-34. —Impeachment of Verdict
16-35. Motions after Verdict: Motions in Arrest of Judgment, To Set Aside Verdict, for Additur or Remittitur, for New Trial, or for Collateral Source Reduction
16-36. Motions To Reduce Verdict [Repealed] (Transferred to Section 17-2A.)
16-37. Reservation of Decision on Motion for Directed Verdict
16-38. Memorandum on Setting Verdict Aside

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 16-1. Jurors Who Are Deaf or Hard of Hearing

(Amended June 15, 2018, to take effect Jan. 1, 2019.)

At the request of a juror who is deaf or hard of hearing or the judicial authority, an interpreter or interpreters provided by the Judicial Branch and qualified under General Statutes § 17a-838 shall assist such juror during the juror orientation program and all subsequent proceedings, and when the jury assembles for deliberation.

(P.B. 1978-1997, Sec. 303A.) (Amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 16-2. Challenge to Array

Any party may challenge an array on the ground that there has been a material departure from the requirements of law governing the selection and summoning of an array. Such challenge shall be made within five days after notification of the hearing or trial date, unless the defect claimed has arisen subsequent to the time required to make such motion.

(P.B. 1998.)

Sec. 16-3. Preliminary Proceedings in Jury Selection

The judicial authority shall cause prospective jurors to be sworn or affirmed in accordance with General Statutes §§ 1-23 and 1-25. The judicial authority shall require counsel to make a preliminary statement as to the names of other counsel with whom he or she is affiliated and other relevant facts, and shall require counsel to disclose the names, and if ordered by the judicial authority, the addresses of all witnesses counsel intends to call at trial. The judicial authority may excuse any prospective juror for cause.

(See Sec. 303C, P.B. 1978-1997.) (P.B. 1998.)

Sec. 16-4. Disqualification of Jurors and Selection of Panel

(a) A person shall be disqualified to serve as a juror if such person is found by the judicial authority to exhibit any quality which will impair this person's capacity to serve as a juror, except that no person shall be disqualified on the basis of deafness or being hard of hearing.

(b) The clerks shall keep a list of all persons disqualified under this section and shall send a copy of that list to the jury administrator at such time as the jury administrator may direct.

(c) The clerk of the court, in impaneling the jury for the trial of each cause, shall, when more jurors are in attendance than are required of the panel,

designate by lot those who shall compose the panel.

(P.B. 1978-1997, Sec. 303, 304.) (Amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 16-5. Peremptory Challenges

(a) Each party may challenge peremptorily the number of jurors which each is entitled to challenge by law. Where the judicial authority determines a unity of interests exists, several plaintiffs or several defendants may be considered as a single party for the purpose of making challenges, or the judicial authority may allow additional peremptory challenges and permit them to be exercised separately or jointly. For the purposes of this section, a "unity of interest" means that the interests of the several plaintiffs or the several defendants are substantially similar. A unity of interest shall be found to exist among parties who are represented by the same attorney or law firm. In addition, there shall be a presumption that a unity of interest exists among parties where no cross claims or apportionment complaints have been filed against one another. In all civil actions, the total number of peremptory challenges allowed to the plaintiff or plaintiffs shall not exceed twice the number of peremptory challenges allowed to the defendant or defendants, and the total number of peremptory challenges allowed to the defendant or defendants shall not exceed twice the number of peremptory challenges allowed to the plaintiff or plaintiffs.

(b) Pursuant to the provisions of Section 5-12, a party or the court on its own may object to the use of a peremptory challenge to raise a claim of improper bias.

(P.B. 1998.) (Amended June 21, 2004, to take effect Jan. 1, 2005; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 16-6. Voir Dire Examination

Each party shall have the right to examine, personally or by counsel, each juror outside the presence of other prospective jurors as to qualifications to sit as a juror in the action, or as to the person's interest, if any, in the subject matter of the action, or as to the person's relations with the parties thereto. If the judicial authority before whom such examination is held is of the opinion from such examination that any juror would be unable to render a fair and impartial verdict, such juror shall be excused by the judicial authority from any further service upon the panel, or in such action, as the judicial authority determines. The right of such examination shall not be abridged by requiring questions to be put to any juror in writing and submitted in advance of the commencement of the trial.

(P.B. 1978-1997, Sec. 305.)

Sec. 16-7. Juror Questions and Note-taking

The members of the jury may, in the discretion of the judicial authority, take notes and submit questions to be asked of witnesses during the trial of a civil action.

(P.B. 1978-1997, Sec. 305A.)

TECHNICAL CHANGE: A hyphen was added to "Note-taking in the title."

Sec. 16-8. Oath and Admonitions to Trial Jurors

(a) The judicial authority shall cause the jurors selected for the trial to be sworn or affirmed in accordance with General Statutes §§ 1-23 and 1-25. The judicial authority shall admonish the jurors not to read, listen to or view news reports of the case or to discuss with each other or with any person not a member of the jury the cause under consideration, except that after the case has been submitted to the jury for deliberation the jurors shall discuss it among themselves in the jury room.

(b) In the presence of the jury, the judicial authority shall instruct any interpreter for a juror who is deaf or hard of hearing to refrain from participating in any manner in the deliberations of the jury and to refrain from having any communications, oral or visual, with any member of the jury except for the literal translation of jurors' remarks made during deliberations.

(P.B. 1998.) (Amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 16-9. Questions of Law and Fact

The judicial authority shall decide all issues of law and all questions of law arising in the trial of any issue of fact, and, in committing the cause to the jury, shall direct it to find accordingly, and shall submit all questions of fact to the jury, with such observations on the evidence, for the jury's information, as it thinks proper, without any direction how the jury shall find the facts. After the cause has been committed to the jury, no pleas, arguments or evidence shall be received before the verdict is returned into court and recorded. (See General Statutes § 52-216 and annotations.)

(P.B. 1978-1997, Sec. 306.)

Sec. 16-10. Order by Judicial Authority for Jury Trial of Factual Issues in Equitable Actions

No issues of fact in an equitable action shall be tried to the jury except upon order of the judicial authority. Upon the application of any party, the judicial authority may order any issue or issues of fact in any action demanding equitable relief to be tried by a jury, and such application shall be

deemed to be a request for a jury of six. (See General Statutes § 52-218 and annotations.)

(P.B. 1978-1997, Sec. 307.)

Sec. 16-11. Cases Presenting Both Legal and Equitable Issues

A case presenting issues both in equity and law may be claimed for the jury list, but, unless the judicial authority otherwise orders, only the issues at law shall be assigned for trial by the jury. Whenever such an action has been placed upon the docket as a jury case, no determination of the equitable issues raised by the pleadings shall prevent a jury trial of the claim for damages, unless both parties agree in writing to waive a jury, or unless the determination of the equitable issues has necessarily adjudicated all the facts upon which the claim for damages rests. (See General Statutes § 52-219 and annotations.)

(P.B. 1978-1997, Sec. 308.)

Sec. 16-12. View by Jury of Place or Thing Involved in Case

When the judicial authority is of the opinion that a viewing by the jury of the place or thing involved in the case will be helpful to the jury in determining any material factual issue, it may in its discretion, at any time before the closing arguments, order that the jury be conducted to such place or location of such thing. During the viewing, the jury must be kept together under the supervision of a proper officer appointed by the judicial authority. The judicial authority and an official court reporter or court recording monitor must be present, and, with the judicial authority's permission, any other person may be present. Counsel and self-represented parties may as a matter of right be present, but the right may be waived. The purpose of viewing shall be solely to permit visual observation by the jury of the place or thing in question and to permit a brief description of the site or thing being viewed by the judicial authority or by any witness or witnesses as allowed by the judicial authority. Any proceedings at the location, including examination of witnesses, shall be at the discretion of the judicial authority. Neither the parties nor counsel nor the jurors while viewing the place or thing may engage in discussion of the significance or the implications of anything under observation or of any issue in the case.

(See Sec. 844, P.B. 1978-1997.) (P.B.1998.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 16-13. Judgment of the Court

(a) Where a complaint embracing matters calling for both legal and equitable relief is by order of the judicial authority tried to the jury, the judicial authority may render judgment, either for legal or equitable relief or both, not inconsistent with the verdict.

(b) When an issue or issues of fact are determined by the verdict, the judge presiding at the trial shall, if possible, upon the evidence produced and after hearing the claims and arguments of counsel, determine the other issues in the case and render final judgment at the session at which the verdict is rendered.

(c) If additional evidence is required, the judge presiding at the trial shall, if possible, hear this and render final judgment at said session.

(P.B. 1978-1997, Sec. 309.)

Sec. 16-14. Communications between Parties and Jurors

No party, and no attorney, employee, representative or agent of any party or attorney, shall contact, communicate with or interview any juror or alternate juror, or any relative, friend or associate of any juror or alternate juror concerning the deliberations or verdict of the jury or of any individual juror or alternate juror in any action during trial until the jury has returned a verdict and/or the jury has been dismissed by the judicial authority, except upon leave of the judicial authority, which shall be granted only upon the showing of good cause. A violation of this section may be treated as a contempt of court, and may be punished accordingly.

(P.B. 1978-1997, Sec. 309A.)

Sec. 16-15. Materials To Be Submitted to Jury

(a) The judicial authority shall submit to the jury all exhibits received in evidence.

(b) The judicial authority may, in its discretion, submit to the jury:

(1) The complaint, counterclaim and cross complaint, and responsive pleadings thereto;

(2) A copy or audio recording of the judicial authority's instructions to the jury;

(3) In response to an inquiry by the jury, a copy or audio recording of an appropriate portion of the judicial authority's instructions to the jury.

(P.B. 1978-1997, Sec. 309B.) (Amended June 20, 2011, to take effect Jan. 1, 2012; amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 16-16. Jury Deliberations

After the case has been submitted to the jury, the jurors shall be in the custody of an officer who shall permit no person to be present with them or to speak to them when assembled for deliberations except a qualified interpreter assisting a juror who is deaf or hard of hearing. The jurors shall be kept together for deliberations as the judicial

authority reasonably directs. If the judicial authority permits the jury to recess its deliberations, the judicial authority shall admonish the jurors not to discuss the case until they reconvene in the jury room. The judicial authority shall direct the jurors to select one of their members to preside over the deliberations and to deliver any verdict agreed upon, and the judicial authority shall admonish the jurors that until they are discharged in the case they may communicate upon subjects connected with the trial only while they are convened in the jury room. If written forms of verdict are submitted to the jury, the member of the jury selected to deliver the verdict shall sign any verdict agreed upon.

(See Sec. 856, P.B. 1978-1997.) (P.B. 1998.) (Amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 16-17. Jury Returned for Reconsideration

The judicial authority may, if it determines that the jury has mistaken the evidence in the cause and has brought in a verdict contrary to it, or has brought in a verdict contrary to the direction of the judicial authority in a matter of law, return the jury to a second consideration, and for like reason may return it to a third consideration, and no more. (See General Statutes § 52-223 and annotations.)

(P.B. 1978-1997, Sec. 311.)

Sec. 16-18. Interrogatories to the Jury

The judicial authority may submit to the jury written interrogatories for the purpose of explaining or limiting a general verdict, which shall be answered and delivered to the clerk as a part of the verdict. The clerk will take the verdict and then the answers to the several interrogatories, and thereafter the clerk will take the judicial authority's acceptance of the verdict returned and the questions as answered, and proceed according to the usual practice. The judicial authority will not accept a verdict until the interrogatories which are essential to the verdict have been answered.

(P.B. 1978-1997, Sec. 312.)

Sec.16-19. Reading of Statement of Amount in Demand or Statement of Claim; Arguing Amount Recoverable

In any action seeking damages for injury to the person, the amount demanded in the complaint shall not be disclosed to the jury. In the event that the jury shall return a verdict which exceeds the amount demanded, the judicial authority shall reduce the award to, and render judgment in, the amount demanded. Counsel for any party to the action may articulate to the jury during closing argument a lump sum or mathematical formula as to damages claimed to be recoverable. The judicial authority shall issue cautionary instructions pursuant to General Statutes § 52-216b.

(P.B. 1978-1997, Sec. 313.)

Sec. 16-20. Requests To Charge and Exceptions; Necessity for

An appellate court shall not be bound to consider error as to the giving of, or the failure to give, an instruction unless the matter is covered by a written request to charge or exception has been taken by the party appealing immediately after the charge is delivered. Counsel taking the exception shall state distinctly the matter objected to and the ground of objection. The exception shall be taken out of the hearing of the jury.

(P.B. 1978-1997, Sec. 315.)

Sec. 16-21. —Requests To Charge on Specific Claims

Any party intending to claim the benefit of the doctrines of supervening negligence, superseding cause, intervening cause, assumption of risk, or the provisions of any specific statute shall file a written request to charge on the legal principle involved.

(P.B. 1978-1997, Sec. 316.)

Sec. 16-22. —Filing Requests

Written requests to charge the jury and written requests for jury interrogatories must be filed with the clerk before the beginning of arguments or at such an earlier time as the judicial authority directs, and the clerk shall file them and forthwith hand one copy to the judicial authority and one to opposing counsel. A party's request to charge may be amended in writing as a matter of right at any time prior to the beginning of the charge conference.

(P.B. 1978-1997, Sec. 317.)

Sec. 16-23. —Form and Contents of Requests To Charge

(a) When there are several requests, they shall be in separate and numbered paragraphs, each containing a single proposition of law clearly and concisely stated with the citation of authority upon which it is based, and the evidence to which the proposition would apply. Requests to charge should not exceed fifteen in number unless, for good cause shown, the judicial authority permits the filing of an additional number. If the request is granted, the judicial authority shall apply the proposition of law to the facts of the case.

(b) A principle of law should be stated in but one request and in but one way. Requests attempting to state in different forms the same principle of law as applied to a single issue are improper.

(P.B. 1978-1997, Sec. 318.)

Sec. 16-24. —Charge Conference

After the close of evidence but before arguments to the jury, the judicial authority shall, if requested, inform counsel out of the presence of the jury of the substance of its proposed instructions.

(P.B. 1978-1997, Sec. 318A.)

Sec. 16-25. Modification of Instructions for Correction or Clarification

The judicial authority, after exceptions to the charge, or upon its own motion, may recall the jury to the courtroom and give it additional instructions in order to:

(1) Correct or withdraw an erroneous instruction;

(2) Clarify an ambiguous instruction; or

(3) Instruct the jury on any matter which should have been covered in the original instructions.

(P.B. 1998; see Sec. 860.)

Sec. 16-26. Other Instructions after Additional Instructions

If the judicial authority gives additional instructions, it also may give or repeat other instructions in order to avoid undue emphasis on the additional instructions. Additional instructions shall be governed by the procedures set forth in Section 16-25 concerning exceptions.

(See Sec. 861, P.B. 1978-1997.) (P.B. 1998.)

Sec. 16-27. Jury Request for Review of Testimony

If the jury after retiring for deliberations requests a review of certain testimony, the jury shall be conducted to the courtroom. Whenever the jury's request is reasonable, the judicial authority, after notice to and consultation with counsel, shall have the requested parts of the testimony read to the jury.

(See Sec. 863, P.B. 1978-1997.) (P.B. 1998.)

Sec. 16-28. Jury Request for Additional Instructions

If the jury, after retiring for deliberations, requests additional instructions, the judicial authority, after providing notice to the parties and an opportunity for suggestions by counsel, shall recall the jury to the courtroom and give additional instructions necessary to respond properly to the request or to direct the jury's attention to a portion of the original instructions.

(See Sec. 864, P.B. 1978-1997.) (P.B. 1998.)

Sec. 16-29. Deadlocked Jury

If it appears to the judicial authority that the jury has been unable to agree, it may require the jury to continue its deliberations. The judicial authority shall not require or threaten to require the jury to deliberate for an unreasonable length of time or for unreasonable intervals. It may also instruct the jury as to disagreements in accordance with the law.

(See Sec. 865, P.B. 1978-1997.) (P.B. 1998.)

Sec. 16-30. Verdict; Return of Verdict

The verdict shall be unanimous and shall be announced by the jury in open court.

(See Sec. 867, P.B. 1978-1997.) (P.B. 1998.)

Sec. 16-31. —Acceptance of Verdict

Subject to the provisions of Section 16-17, the judicial authority shall, if the verdict is in order and is technically correct, accept it without comment.

(See Sec. 868, P.B. 1978-1997.) (P.B. 1998; amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 16-32. —Poll of Jury after Verdict

Subject to the provisions of Section 16-17, after a verdict has been returned and before the jury has been discharged, the jury shall be polled at the request of any party or upon the judicial authority's own motion. The poll shall be conducted by the clerk of the court by asking each juror individually whether the verdict announced is such juror's verdict. If upon the poll there is not unanimous concurrence, the jury may be directed to retire for further deliberations or it may be discharged.

(See Sec. 869, P.B. 1978-1997.) (P.B. 1998; amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 16-33. —Discharge of Jury

Subject to the provisions of Section 16-17, the judicial authority shall discharge the jury after it has rendered its verdict or after a mistrial has been declared.

(See Sec. 870, P.B. 1978-1997.) (P.B. 1998; amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 16-34. —Impeachment of Verdict

Upon an inquiry into the validity of a verdict, no evidence shall be received to show the effect of any statement, conduct, event or condition upon the mind of a juror nor any evidence concerning mental processes by which the verdict was determined. Subject to these limitations, a juror's testimony or affidavit shall be received when it concerns any misconduct which by law permits a jury to be impeached.

(See Sec. 871, P.B. 1978-1997.) (P.B. 1998.)

Sec. 16-35. Motions after Verdict: Motions in Arrest of Judgment, To Set Aside Verdict, for Additur or Remittitur, for New Trial, or for Collateral Source Reduction

Motions in arrest of judgment, whether for extrinsic causes or causes apparent on the record, motions to set aside a verdict, motions for

remittitur, motions for additur, motions for new trials, unless brought by petition served on the adverse party or parties, and motions pursuant to General Statutes § 52-225a for reduction of the verdict due to collateral source payments must be filed with the clerk within ten days after the day the verdict is accepted; provided that for good cause the judicial authority may extend this time. The clerk shall notify the trial judge of such filing. Such motions shall state the specific grounds upon which counsel relies.

(P.B. 1978-1997, Sec. 320.)

Sec. 16-36. Motions To Reduce Verdict

[Transferred as of Jan. 1, 2012, to Section 17-2A.]

Sec. 16-37. Reservation of Decision on Motion for Directed Verdict

Whenever a motion for a directed verdict made at any time after the close of the plaintiff's case-in-chief is denied or for any reason is not granted, the judicial authority is deemed to have submitted the action to the jury subject to a later determination of the legal questions raised by the motion. The defendant may offer evidence in the event the motion is not granted, without having reserved the right to do so and to the same extent as if the motion had not been made. After the acceptance of a verdict and within the time stated in Section 16-35 for filing a motion to set a verdict aside, a party who has moved for a directed verdict may move to have the verdict and any judgment rendered thereon set aside and have judgment rendered in accordance with his or her motion for a directed verdict; or if a verdict was not returned such party may move for judgment in accordance with his or her motion for a directed verdict within the aforesaid time after the jury has been discharged from consideration of the case. If a verdict was returned, the judicial authority may allow the judgment to stand or may set the verdict aside and either order a new trial or direct the entry of judgment as if the requested verdict had been directed. If no verdict was returned, the judicial authority may direct the entry of judgment as if the requested verdict had been directed or may order a new trial.

(P.B. 1978-1997, Sec. 321.)

Sec. 16-38. Memorandum on Setting Verdict Aside

When the judicial authority grants a motion to set a verdict aside, it shall file a memorandum stating the grounds of its decision.

(P.B. 1978-1997, Sec. 322.)

CHAPTER 17

JUDGMENTS

Sec.
17-1. Judgments in General
17-2. Judgment on Verdict and Otherwise
17-2A. Motions To Reduce Verdict
17-3. Remittitur where Judgment Too Large
17-4. Setting Aside or Opening Judgments
17-4A. Motions for New Trial
17-5. Record of Proceeding; Facts Supporting Judgment To Appear on Record
17-6. Form of Finding
17-7. Special Finding; Request
17-8. —Functions of Special Finding
17-9. —Form and Contents of Special Finding
17-10. Modifying Judgment after Appeal
17-11. Offer of Compromise by Defendant; How Made
17-12. —Acceptance of Defendant's Offer
17-13. —Defendant's Offer Not Accepted
17-14. Offer of Compromise by Plaintiff; How Made
7-14A. —Alleged Negligence of Health Care Provider
17-15. —Acceptance of Plaintiff's Offer
17-16. —Plaintiff's Offer Not Accepted
17-17. —Offer of Compromise and Acceptance Included in Record
17-18. —Judgment where Plaintiff Recovers an Amount Equal to or Greater than Offer
17-19. Procedure where Party Fails To Comply with Order of Judicial Authority or To Appear for Trial
17-20. Motion for Default and Nonsuit for Failure To Appear
17-21. Defaults under Servicemembers Civil Relief Act
17-22. Notice of Judgments of Nonsuit and Default for Failure To Enter an Appearance
17-23. Contract Actions To Pay a Definite Sum where There Is a Default for Failure To Appear; Limitations
17-24. —Promise To Pay Liquidated Sum
17-25. —Motion for Default and Judgment; Affidavit of Debt; Military Affidavit; Bill of Costs; Debt Instrument
17-26. —Order for Weekly Payments
17-27. —Entry of Judgment
17-28. —Enforcement of Judgment
17-29. —Default Motion Not on Short Calendar
17-30. Summary Process; Default and Judgment for Failure To Appear or Plead
17-31. Procedure where Party Is in Default
17-32. Where Defendant Is in Default for Failure To Plead
17-33. When Judgment May Be Rendered after a Default
17-33A. Motions for Judgment of Foreclosure
17-34. Hearings in Damages; Notice of Defenses
17-35. —Requirements of Notice; Time
17-36. —Notice by Clerk
17-37. —Notice of Defense To Be Specific
17-38. —Amending Notice of Defense
17-39. —No Reply Allowed
17-40. —Evidence To Reduce Damages
17-41. Relief Permissible on Default
17-42. Opening Defaults where Judgment Has Not Been Rendered
17-43. Opening Judgment upon Default or Nonsuit
17-44. Summary Judgments; Scope of Remedy
17-45. —Proceedings upon Motion for Summary Judgment
17-46. —Form of Affidavits
17-47. —When Appropriate Documents Are Unavailable
17-48. —Affidavits Made in Bad Faith
17-49. —Judgment
17-50. —Triable Issue as to Damages Only
17-51. —Judgment for Part of Claim
17-52. Executions
17-53. Summary Process Executions
17-54. Declaratory Judgment; Scope
17-55. —Conditions for Declaratory Judgment
17-56. —Procedure for Declaratory Judgment
17-57. —Costs in Declaratory Judgment
17-58. —Declaratory Judgment Appealable
17-59. —Order of Priorities in Declaratory Judgment

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 17-1. Judgments in General

In all actions, whether the relief sought be legal or equitable in its nature, judgment may be given for or against one or more of several plaintiffs, and for or against one or more of several defendants; and the judicial authority may grant to a defendant any affirmative relief to which the defendant may be entitled, and may determine the rights of the parties on each side as between themselves insofar as a consideration of the issues between them is necessary to a full adjudication as regards the claim stated in the complaint. (See General Statutes § 52-227.)

(P.B. 1978-1997, Sec. 323.)

Sec. 17-2. Judgment on Verdict and Otherwise

The judicial authority shall render judgment on all verdicts of the jury, according to the jury's finding, subject to statutory adjustments, with costs, unless the verdict is set aside; and in all cases where judgment is rendered otherwise than on a verdict, in favor of the plaintiff, the court shall assess the damages which the plaintiff shall recover. If no motions under Section 16-35 or 17-2A are filed, upon the expiration of the time provided for the filing of such motions, judgment on the verdict shall be rendered in accordance with the verdict, and the date of the judgment shall

be the date the verdict was accepted. If motions are filed pursuant to Section 16-35 or 17-2A, judgment shall be rendered at the time of and in accordance with the decision on such motions. Whenever a judgment is rendered in a civil jury case, the clerk shall send notice of such judgment to all attorneys and self-represented parties of record. (See General Statutes § 52-225 and annotations.)

(P.B. 1978-1997, Sec. 324.)

Sec. 17-2A. Motions To Reduce Verdict

Motions to reduce the amount of a verdict or award pursuant to General Statutes §§ 52-216a or 52-225a shall be filed within ten days after the day the verdict or award is accepted and shall be heard by the judge who conducted the trial. In matters referred to an arbitrator under the provisions of Section 23-61, motions to reduce the amount of an award shall be filed within ten days after the decision of the arbitrator becomes a judgment of the court pursuant to subsection (a) of Section 23-66.

(P.B. 1978-1997, Sec. 320A.) (Amended June 28, 1999, on an interim basis pursuant to the provisions of Sec. 1-9 (c) to take effect Jan. 1, 2000, and amendment adopted June 26, 2000, to take effect Jan. 1, 2001; transferred June 20, 2011, to take effect Jan. 1, 2012.)

TECHNICAL CHANGE: A change was made to the sequence of the statutes referenced in the first sentence.

Sec. 17-3. Remittitur where Judgment Too Large

If any judgment is rendered, by mistake or clerical error, for a larger sum than is due, the excess may be remitted by the party recovering the judgment, at any time, reasonable notice being first given to the adverse party or that party's attorney; and the judicial authority may thereupon order the record of such judgment to be corrected, and affirm the same for the amount to which it has been remitted. (See General Statutes § 52-228 and annotations.)

S(P.B. 1978-1997, Sec. 325.)

Sec. 17-4. Setting Aside or Opening Judgments

(a) Unless otherwise provided by law and except in such cases in which the court has continuing jurisdiction, any civil judgment or decree rendered in the Superior Court may not be opened or set aside unless a motion to open or set aside is filed within four months succeeding the date on which notice was sent. The parties may waive the provisions of this subsection or otherwise submit to the jurisdiction of the court.

(b) Upon the filing of a motion to open or set aside a civil judgment, except a judgment in a juvenile matter, the moving party shall pay to the clerk the filing fee prescribed by statute unless such fee has been waived by the judicial authority.

(c) The expedited procedures set forth in this subsection may be followed with regard to a motion to open a judgment of foreclosure filed by a plaintiff in which the filing fee has been paid, the motion has been filed prior to the vesting of title or the sale date, the plaintiff states in the motion that the committee and appraisal fees have been paid or will be paid within thirty days of court approval, and the motion has been served on each party as provided by Sections 10-12 through 10-17 and with proof of service endorsed thereon.

(1) Parties shall have five days from the filing of the motion to file an objection with the court. Unless otherwise ordered by the judicial authority, the motion shall be heard not less than seven days after the date the motion was filed. If the plaintiff states in the motion that all appearing parties have received actual notice of the motion and are in agreement with it, the judicial authority may grant the motion without a hearing.

(2) When a motion to open judgment is filed pursuant to this subsection, the court will retain jurisdiction over the action to award committee fees and expenses and appraisal fees, if necessary. If judgment is not entered or the case has not been withdrawn within 120 days of the granting of the motion, the judicial authority shall forthwith enter a judgment of dismissal.

(P.B. 1978-1997, Sec. 326.) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 17-4A. Motions for New Trial

Motions for new trials in cases tried to the court, unless brought by petition served on the adverse party or parties, must be filed with the clerk within ten days after the day the judgment is rendered; provided that for good cause the judicial authority may extend this time. The clerk shall notify the trial judge of such filing. Such motions shall state the specific grounds upon which counsel relies.

(Adopted June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 17-5. Record of Proceeding; Facts Supporting Judgment To Appear on Record

Each judicial authority shall keep a record of its proceedings and cause the facts on which it found its final judgments and decrees to appear on the record; and any such finding if requested by any party shall specially set forth such facts. (See General Statutes § 52-231 and annotations.)

(P.B. 1978-1997, Sec. 327.)

Sec. 17-6. Form of Finding

When all the material allegations put in issue in any action, whether brought for legal or for

equitable relief, are found for either the plaintiff or defendant, the finding of the issue or issues for the plaintiff or defendant, as the case may be, will be deemed equivalent to a finding that all material allegations which were put in issue are true, and will be a sufficient compliance with Section 17-5. Where only a part of the material allegations put in issue by the pleadings are found for the prevailing party the judgment must indicate the particular facts that are found.

(P.B. 1978-1997, Sec. 328.)

Sec. 17-7. Special Finding; Request

A request for a special finding of facts under General Statutes § 52-226 shall be by written motion filed within fourteen days after the entry of judgment.

(P.B. 1978-1997, Sec. 332.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 17-8. —Functions of Special Finding

A special finding of facts under Section 17-5 should rarely be requested or made but when made it becomes a part of the record with the same effect as though the facts were included in the judgment and claims of error may be based upon it as appearing of record. If the special finding is insufficient to support the judgment, the error is one upon the record. The purpose of a special finding is to place upon the record the material facts upon which the judgment is based; other matters have no place in it and can only be presented in a finding made for the purpose of an appeal. A special finding is an incident to the judgment, and interlocutory rulings should not be included in it. The rules as to seeking corrections in a finding for an appeal have no application to a special finding.

(P.B. 1978-1997, Sec. 333.)

Sec. 17-9. —Form and Contents of Special Finding

The special findings of fact required by Section 17-5 to be made, if requested, as an incident to the judgment should ordinarily form a part of the judgment file. It should contain only facts material to the issues tried. When any fact upon which final judgment is founded is simply a bare conclusion of law from more detailed and subordinate facts, as, for instance, in cases of constructive fraud, the finding, if a special one be requested, must specially set forth the subordinate facts from which, as such conclusion of law, the judicial authority finds the principal fact. In such cases the finding should be such as distinctly to show any conclusion of law thus drawn. When a material fact is found from more detailed or subordinate acts, not as a conclusion of law but as a conclusion of fact, only the main or resulting fact should be set forth in the finding.

(P.B. 1978-1997, Sec. 334.)

Sec. 17-10. Modifying Judgment after Appeal

If a judgment fixing a set time for the performance of an act is affirmed on appeal by the Supreme Court and such time has elapsed pending the appeal, the judicial authority which rendered the judgment appealed from may, on motion and after due notice, modify it by extending the time.

(P.B. 1978-1997, Sec. 340.)

Sec. 17-11. Offer of Compromise by Defendant; How Made

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

In any action on contract, or seeking the recovery of money damages, whether or not other relief is sought, the defendant may not later than thirty days before the commencement of jury selection in a jury trial or before the commencement of evidence in a court trial file with the clerk of the court a written offer of compromise signed by the defendant or the defendant's attorney, directed to the plaintiff or the plaintiff's attorney, offering to settle the claim underlying the action for a sum certain. (See General Statutes § 52-193 and annotations.)

(P.B. 1978-1997, Sec. 342.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 17-12. —Acceptance of Defendant's Offer

The plaintiff may, within sixty days after being notified by the defendant of the filing of an offer of compromise, file with the clerk of the court a written acceptance of the offer signed by the plaintiff or the plaintiff's attorney agreeing to settle the underlying action for the sum certain specified in the defendant's offer of compromise. Upon the filing of the written acceptance and receipt by the plaintiff of such sum certain, the plaintiff shall file a withdrawal of the action with the clerk of the court and the clerk shall record the withdrawal of the action against the defendant accordingly. No trial shall be postponed because the period within which the plaintiff may accept such offer has not expired, except at the discretion of the judicial

authority. (See General Statutes § 52-194 and annotations.)

(P.B. 1978-1997, Sec. 343.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 17-13. —Defendant's Offer Not Accepted

If the plaintiff does not, within the time allowed for acceptance of the offer of compromise and before any evidence is offered at the trial, file the plaintiff's notice of acceptance, the offer shall be deemed to be withdrawn and shall not be given in evidence; and the plaintiff, unless recovering more than the sum specified in the offer, with interest from its date, shall recover no costs accruing after the plaintiff received notice of the filing of such offer, but shall pay the defendant's costs accruing after said time. Such costs may include reasonable attorney's fees in an amount not to exceed $350. Nothing in this section shall be interpreted to abrogate the contractual rights of any party concerning the recovery of attorney's fees in accordance with the provisions of any written contract between the parties to the action. The provisions of this section shall not apply to cases in which nominal damages have been assessed upon a hearing after a default or after a motion to strike has been denied. (See General Statutes § 52-195 and annotations.)

(P.B. 1978-1997, Sec. 344.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 17-14. Offer of Compromise by Plaintiff; How Made

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

After commencement of any civil action based upon contract or seeking the recovery of money damages, whether or not other relief is sought, the plaintiff may, not earlier than 180 days after service of process is made upon the defendant in such action but not later than thirty days before the commencement of jury selection in a jury trial or the commencement of evidence in a court trial, file with the clerk of the court a written offer of compromise signed by the plaintiff or the plaintiff's attorney, directed to the defendant or the defendant's attorney, offering to settle the claim underlying the action for a sum certain. For the purposes of this section, such plaintiff includes a counterclaim plaintiff under General Statutes § 8-132. The plaintiff shall give notice of such offer of compromise to the defendant's attorney, or if the defendant is not represented by an attorney, to the defendant.

(P.B. 1978-1997, Sec. 346.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 17-14A. —Alleged Negligence of Health Care Provider

In the case of any action to recover damages resulting from personal injury or wrongful death, whether in tort or in contract, in which it is alleged that such injury or death resulted from the negligence of a health care provider, an offer of compromise pursuant to Section 17-14 may be filed not earlier than 365 days after service of process is made on the defendant in such action and, if the offer of compromise is not accepted within sixty days and prior to the rendering of a verdict by the jury or an award by the court, the offer of compromise shall be considered rejected and not subject to acceptance unless refiled.

(Adopted June 26, 2006, to take effect Jan. 1, 2007; amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec. 17-15. —Acceptance of Plaintiff's Offer

Within thirty days after being notified of the filing of such offer of compromise and prior to the rendering of a verdict by the jury or an award by the judicial authority, the defendant or the defendant's attorney may file with the clerk of the court a written acceptance of the offer of compromise agreeing to settle the claim underlying the action for the sum certain specified in the plaintiff's offer. Upon such filing and the receipt by the plaintiff of such sum certain, the plaintiff shall file a withdrawal of the action with the clerk and the clerk shall record the withdrawal of the action against the defendant accordingly.

(P.B. 1978-1997, Sec. 347.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 17-16. —Plaintiff's Offer Not Accepted

If such offer of compromise is not accepted within thirty days and prior to the rendering of a verdict by the jury or an award by the judicial authority, such offer of compromise shall be considered rejected and not subject to acceptance unless refiled.

(P.B. 1978-1997, Sec. 348.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 17-17. —Offer of Compromise and Acceptance Included in Record

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

Any such offer of compromise and any acceptance of the offer of compromise shall be included by the clerk in the record of the case.

(P.B. 1978-1997, Sec. 349.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 17-18. —Judgment where Plaintiff Recovers an Amount Equal to or Greater than Offer

After trial the judicial authority shall examine the record to determine whether the plaintiff made an offer of compromise which the defendant failed to accept. If the judicial authority ascertains from the record that the plaintiff has recovered an amount equal to or greater than the sum certain specified in that plaintiff's offer of compromise, the judicial authority shall add to the amount so recovered 8 percent annual interest on said amount. In the case of a counterclaim plaintiff under General Statutes § 8-132, the judicial authority shall add to the amount so recovered 8 percent annual interest on the difference between the amount so recovered and the sum certain specified in the counterclaim plaintiff's offer of compromise. Any such interest shall be computed as provided in General Statutes § 52-192a. The judicial authority may award reasonable attorney's fees in an amount not to exceed $350 and shall render judgment accordingly. Nothing in this section shall be interpreted to abrogate the contractual rights of any party concerning the recovery of attorney's fees in accordance with the provisions of any written contract between the parties to the action.

(P.B. 1978-1997, Sec. 350.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 17-19. Procedure where Party Fails To Comply with Order of Judicial Authority or To Appear for Trial

If a party fails to comply with an order of a judicial authority or a citation to appear or fails without proper excuse to appear in person or by counsel for trial, the party may be nonsuited or defaulted by the judicial authority.

(P.B. 1978-1997, Sec. 351.)

Sec. 17-20. Motion for Default and Nonsuit for Failure To Appear

(a) Except as provided in subsection (b), if no appearance has been entered for any party to any action on or before the second day following the return day, any other party to the action may make a motion that a nonsuit or default be entered for failure to appear.

(b) In an action commenced by a mortgagee prior to July 1, 2014, for the foreclosure of (1) a mortgage on residential real property consisting of a one to four-family dwelling occupied as the primary residence of the mortgagor, with a return date on or after July 1, 2008, or (2) a mortgage on real property owned by a religious organization with a return date during the period from October 1, 2011, to June 30, 2014, inclusive, if no appearance has been entered for the mortgagor on or before the fifteenth day after the return day or, if the court has extended the time for filing an appearance and no appearance has been entered on or before the date ordered by the court, any other party to the action may make a motion that a default be entered for failure to appear.

(c) It shall be the responsibility of counsel filing a motion for default for failure to appear to serve the defaulting party with a copy of the motion. Service and proof thereof may be made in accordance with Sections 10-12, 10-13 and 10-14. Upon good cause shown, the judicial authority may dispense with this requirement when judgment is rendered.

(d) Except as provided in Sections 17-23 through 17-30, motions for default for failure to appear shall be acted on by the clerk not less than seven days from the filing of the motion and shall not be printed on the short calendar. The motion shall be granted by the clerk if the party who is the subject of the motion has not filed an appearance. The provisions of Section 17-21 shall not apply to such motions, but such provisions shall be complied with before a judgment may be entered after default. If the defaulted party files an appearance in the action prior to the entry of judgment after default, the default shall automatically be set aside by operation of law. A claim for a hearing in damages shall not be filed before the expiration of fifteen days from the entry of a default under this subsection, except as provided in Sections 17-23 through 17-30.

(e) A motion for nonsuit for failure to appear shall be placed on the short calendar. If it is proper to grant the motion, the judicial authority shall grant it without the need for the moving party to appear at the short calendar.

(f) The granting of a motion for nonsuit for failure to appear or a motion for judgment after default for failure to appear shall be subject to the provisions of Sections 9-1 and 17-21. Such motion shall contain either (1) a statement that a military affidavit is attached thereto or (2) a statement, with reasons therefor, that it is not necessary to attach a military affidavit to the motion.

(P.B. 1978-1997, Sec. 352.) (Amended June 21, 2004, to take effect Jan. 1, 2005; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec. 17-21. Defaults under Servicemembers Civil Relief Act

(a) An affidavit must be filed in every case in which there is a nonappearing defendant, either

(1) stating that such defendant is in military service, within the meaning of the Servicemembers Civil Relief Act, or that the plaintiff is unable to determine whether or not such defendant is in such service, or (2) setting forth facts showing that such defendant is not in such service.

(b) If it appears that the defendant is in such service the judicial authority shall, and if it is undetermined whether the defendant is in such service or not the judicial authority may, appoint an attorney to represent such defendant before judgment is rendered. No such attorney shall have the power to waive any right of the person for whom he or she is appointed or to bind such person by his or her acts.

(c) Unless it appears that the defendant is not in such service, the judicial authority may require as a condition before judgment is rendered that the plaintiff file a bond approved by the judicial authority conditioned to indemnify the defendant, if in military service, against any loss or damage that such defendant may suffer by reason of any judgment should the judgment be thereafter set aside in whole or in part.

(d) If it appears that the defendant is in military service, the judicial authority shall grant a stay of proceedings for a minimum period of ninety days upon application of counsel or on the judicial authority's own motion, if the judicial authority determines that: (1) there may be a defense to the action which cannot be presented without the defendant's presence, or (2) counsel has been unable to contact the defendant or otherwise determine if a meritorious defense exists.

(e) If the defendant is in military service or is within ninety days after termination of or release from such service and has received notice of the proceedings, the following provisions apply. At any stage before final judgment the judicial authority may on its own motion and shall, upon application by the defendant, stay the action for a period of not less than ninety days if the application includes (1) a letter or other communication containing facts stating how current military duty requirements materially affect the defendant's ability to appear and stating a date when the defendant will be able to appear, and (2) a letter or other communication from the defendant's commanding officer stating that current military duty prevents appearance and that military leave is not authorized at the time of the letter.

(f) (1) A defendant who is granted a stay under subsection (e) may apply for an additional stay based on the continuing material effect of military duty on the defendant's ability to appear. The application may be made at the time of the initial application or when it appears that the defendant is unable to appear to defend the action. The application shall include the same information required under subparagraphs (1) and (2) of subsection (e).

(2) If the judicial authority denies the application for an additional stay, the judicial authority shall appoint counsel to represent the defendant.

(g) The findings made under the six preceding subsections shall be recited in the judgment.

(h) An application for a stay under this section does not constitute an appearance for jurisdictional purposes and does not constitute a waiver of any substantive or procedural defense.

(P.B. 1978-1997, Sec. 353.) (Amended June 20, 2005, to take effect Jan. 1, 2006.)

Sec. 17-22. Notice of Judgments of Nonsuit and Default for Failure To Enter an Appearance

A notice of every nonsuit for failure to enter an appearance or judgment after default for failure to enter an appearance, which notice includes the terms of the judgment, shall be sent by mail or electronic delivery within ten days of the entry of judgment by counsel of the prevailing party to the party against whom it is directed and a copy of such notice shall be filed with the clerk's office. Proof of service shall be in accordance with Section 10-14.

(P.B. 1978-1997, Sec. 354.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 17-23. Contract Actions To Pay a Definite Sum where There Is a Default for Failure To Appear; Limitations

Sections 17-24 through 17-27 shall not be applicable to: (1) any action wherein any defendant against whom judgment is sought is in the military or naval service of the United States when judgment is rendered; or (2) any action brought under the small claims rules.

(P.B. 1978-1997, Sec. 356.)

Sec. 17-24. —Promise To Pay Liquidated Sum

(a) In any action based upon an express or implied promise to pay a definite sum and claiming only liquidated damages, which may include interest, a reasonable attorney's fee and other lawful charges, the procedure set forth in Section 17-20 and in Sections 17-25 through 17-28 shall be followed, if there is a default of appearance. A certificate of closed pleadings shall not be filed in matters which fall within the scope of these rules because such matters shall not proceed on the inventory of pending cases requiring a hearing in damages.

(b) When moving for default and judgment pursuant to Sections 17-25 through 17-28, a party shall move for default and judgment on forms prescribed by the Office of the Chief Court Administrator.

(P.B. 1978-1997, Sec. 357.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 17-25. —Motion for Default and Judgment; Affidavit of Debt; Military Affidavit; Bill of Costs; Debt Instrument

(a) The plaintiff shall file a motion for default for failure to appear and judgment, a bill of costs, a proposed judgment and notice to all parties and, if applicable, a request for an order of weekly payments pursuant to Section 17-26.

(b) The motion shall have attached to it the following affidavits:

(1) An affidavit of debt signed by the plaintiff or by an authorized representative of the plaintiff who is not the plaintiff's attorney. The affidavit shall state the amount due or the principal owed and contain an itemization of interest, attorney's fees and other lawful charges claimed. The affidavit shall contain a statement that any documents attached to it are true copies of the originals. Any plaintiff claiming interest shall separately state the interest and shall specify the dates from which and to which interest is computed, the rate of interest, the manner in which it was calculated and the authority upon which the claim for interest is based.

(A) If the instrument on which the contract is based is a negotiable instrument or assigned contract, the affidavit shall state that the instrument or contract is now owned by the plaintiff, and a copy of the executed instrument or contract shall be attached to the affidavit. If the plaintiff is not the original party with whom the instrument or contract was made, the plaintiff shall either (i) attach all bills of sale back to the original creditor and swear to its purchase of the debt from the last owner in its affidavit of debt or (ii) in the affidavit of debt, recite the names of all prior owners of the debt with the date of each prior sale and also include the most recent bill of sale from the plaintiff's seller and swear to its purchase of the debt from its seller in the affidavit of debt.

(B) If the plaintiff claims any lawful fees or charges other than interest, including a reasonable attorney's fee, the plaintiff shall attach to the affidavit of debt a copy of the portion of the contract containing the terms of the contract providing for such fees or charges and the amount claimed.

(C) If a claim for a reasonable attorney's fee is made, the plaintiff shall include in the affidavit of debt the reasons for the specific amount requested in order that the judicial authority may determine the relationship between the fee requested and the actual and reasonable costs which are incurred by counsel.

(2) A military affidavit as required by Section 17-21.

(c) Nothing contained in this section shall prevent the judicial authority from requiring the submission of additional written documentation or the presence of the plaintiff, the authorized representative of the plaintiff or other affiants, as well as counsel, before the court prior to rendering judgment if it appears to the judicial authority that additional information or evidence is required in order to enter judgment.

(P.B. 1978-1997, Sec. 358.) (Amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 17-26. —Order for Weekly Payments

If the moving party seeks and is entitled to an order for payments under the General Statutes in excess of a nominal amount, the judicial authority may make, as part of the judgment, an order for weekly payment of such sums as shall appear to the judicial authority to be reasonable. If such order is sought, the proposed notice and form of judgment shall contain substantially the following language: It is further adjudged that the defendant make weekly payments of $ on this judgment to commencing on .

(P.B. 1978-1997, Sec. 359.)

Sec. 17-27. —Entry of Judgment

Not less than seven days from receipt of the motion and affidavits, the clerk shall bring the motion and affidavits to the attention of the judicial authority. If the judicial authority orders judgment entered, the clerk shall complete the proposed judgment and notice to all parties in accordance with the terms of the judgment. The clerk shall immediately mail or electronically deliver one copy of the judgment and notice to all parties to the plaintiff or the plaintiff's attorney.

(P.B. 1978-1997, Sec. 360.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 17-28. —Enforcement of Judgment

Execution upon such judgment shall be stayed until twenty days after the clerk receives from the plaintiff, or the plaintiff's attorney, one copy of the judgment and notice to all parties, with a certification that one copy thereof was served upon each judgment debtor. Service and proof thereof must be made in accordance with Sections 10-12 through 10-14.

(P.B. 1978-1997, Sec. 361.)

Sec. 17-29. —Default Motion Not on Short Calendar

No motion for default and judgment filed under Sections 17-24 through 17-28 shall be placed on the short calendar, unless the judicial authority shall so order. No short calendar claim shall be filed with this motion. Other than as provided for in those sections and in Section 17-20 no notice of a default or of a judgment after default shall be required in connection with any such motion.

(P.B. 1978-1997, Sec. 362.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 17-30. Summary Process; Default and Judgment for Failure To Appear or Plead

(Amended June 26, 2000, to take effect Jan. 1, 2001.)

(a) If the defendant in a summary process action does not appear within two days after the return day and a motion for judgment for failure to appear and the notice to quit signed by the plaintiff or the plaintiff's attorney and endorsed, with his or her doings thereon, by the proper officer or indifferent person who served such notice to quit is filed with the clerk, the judicial authority shall, not later than the first court day after the filing of such motion, enter judgment that the plaintiff recover possession or occupancy of the premises with costs, and execution shall issue subject to the statutory provisions.

(b) If the defendant in a summary process action appears but does not plead within two days after the return day or within three days after the filing of the preceding pleading or motion, the plaintiff may file a motion for judgment for failure to plead, served in accordance with Sections 10-12 through 10-17. If the defendant fails to plead within three days after receipt of such motion by the clerk, the judicial authority shall forthwith enter judgment that the plaintiff recover possession or occupancy with costs.

(c) In summary process actions, a motion for judgment by default that is sent to the court either electronically or is hand-delivered to the court shall be deemed to be filed on the third business day following such delivery unless the party filing the motion for judgment by default certifies that the motion has also been sent electronically or hand-delivered on the same day to all opposing parties or their counsel.

(P.B. 1978-1997, Sec. 362A.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 17-31. Procedure where Party Is in Default

Where either party is in default by reason of failure to comply with Sections 10-8, 10-35, 13-6 through 13-8, 13-9 through 13-11, the adverse party may file a written motion for a nonsuit or default or, where applicable, an order pursuant to Section 13-14. Except as otherwise provided in Sections 17-30 and 17-32, any such motion, after service upon each adverse party as provided by Sections 10-12 through 10-17 and with proof of service endorsed thereon, shall be filed with the clerk of the court in which the action is pending, and, unless the pleading in default be filed or the disclosure be made within ten days thereafter, the clerk shall, upon the filing of a short calendar claim by the moving party, place the motion on the next available short calendar list.

(P.B. 1978-1997, Sec. 363.)

Sec. 17-32. Where Defendant Is in Default for Failure To Plead

(a) Where a defendant is in default for failure to plead pursuant to Section 10-8, the plaintiff may file a written motion for default which shall be acted on by the clerk not less than seven days from the filing of the motion, without placement on the short calendar.

(b) If a party who has been defaulted under this section files an answer before a judgment after default has been rendered by the judicial authority, the default shall automatically be set aside by operation of law unless a claim for a hearing in damages or a motion for judgment has been filed. If a claim for a hearing in damages or a motion for judgment has been filed, the default may be set aside only by the judicial authority. A claim for a hearing in damages or motion for judgment shall not be filed before the expiration of fifteen days from the date of notice of issuance of the default under this subsection.

(P.B. 1978-1997, Sec. 363A.) (Amended June 21, 2010, to take effect Jan. 1, 2011; amended on an interim basis pursuant to Section 1-9 (c) on June 12, 2015, to take effect Aug. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 17-33. When Judgment May Be Rendered after a Default

(a) If a defendant is defaulted for failure to appear for trial, evidence may be introduced and judgment rendered without notice to the defendant.

(b) Since the effect of a default is to preclude the defendant from making any further defense in the case so far as liability is concerned, the judicial authority, at or after the time it renders the default, notwithstanding Section 17-32 (b), may also render judgment in foreclosure cases, in actions similar thereto and in summary process actions, provided the plaintiff has also made a motion for judgment and provided further that any

necessary affidavits of debt or accounts or statements verified by oath, in proper form, are submitted to the judicial authority. The judicial authority may render judgment in any contract action where the damages are liquidated provided that the plaintiff has made a motion for judgment and submitted the affidavits and attachments specified in Section 17-25 (b) (1).

(c) If the taking of testimony is required, the procedures in Section 17-34 shall be followed before judgment is rendered.

(P.B. 1978-1997, Sec. 364.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 17-33A. Motions for Judgment of Foreclosure

In all foreclosure actions, motions for judgment shall not be filed prior to the expiration of 30 days after the return date.

(Adopted June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 17-34. Hearings in Damages; Notice of Defenses

(a) In any hearing in damages upon default, the defendant shall not be permitted to offer evidence to contradict any allegations in the plaintiff's complaint, except such as relate to the amount of damages, unless notice has been given to the plaintiff of the intention to contradict such allegations and of the subject matter which the defendant intends to contradict, nor shall the defendant be permitted to deny the right of the plaintiff to maintain such action, nor shall the defendant be permitted to prove any matter of defense, unless written notice has been given to the plaintiff of the intention to deny such right or to prove such matter of defense.

(b) This notice shall apply to defaults entered on all claims, counterclaims, cross claims, and other claims for affirmative relief. (See General Statutes § 52-221 and annotations.)

(P.B. 1978-1997, Sec. 367.)

Sec. 17-35. —Requirements of Notice; Time

(a) The notices required by Section 17-34 shall be given in the manner provided in Sections 10-12 through 10-14, the original with proof of service being filed with the clerk.

(b) In all actions in which there may be a hearing in damages, notice of defenses must be filed within ten days after notice from the clerk to the defendant that a default has been entered.

(P.B. 1978-1997, Sec. 368.)

Sec. 17-36. —Notice by Clerk

The clerk shall give notice of entry of a default, in the case of a defendant who has filed an appearance, in person to the defendant or the defendant's attorney, by mail, or by electronic notice, and in the case of a nonappearing defendant, by mailing such notice to the defendant at his or her last known address. The clerk shall enter on the docket the date when the clerk gives, mails or sends the notice, and said period of ten days shall run from said date.

(P.B. 1978-1997, Sec. 369.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 17-37. —Notice of Defense To Be Specific

The notice shall not contain a general denial, but shall specify which, if any, of the allegations, or parts thereof, of the complaint will be controverted; and only those allegations should be specified which it is intended to controvert by proof. The denial of the right of the plaintiff to maintain the action must go to the plaintiff's right to maintain it in the capacity in which the plaintiff sues, and not otherwise controvert the right of action. Any new matter by way of confession and avoidance must be specified. The defense of contributory negligence must be specified and the grounds stated. Partial defenses must be specified in the same manner as complete defenses.

(P.B. 1978-1997, Sec. 371.)

Sec. 17-38. —Amending Notice of Defense

The judicial authority may, for cause shown, and upon such terms as it may impose, permit such notice to be filed or amended at any time.

(P.B. 1978-1997, Sec. 372.)

Sec. 17-39. —No Reply Allowed

The plaintiff shall file no pleading to such notice, but may meet the facts set up therein by any proper evidence.

(P.B. 1978-1997, Sec. 373.)

Sec. 17-40. —Evidence To Reduce Damages

The defendant may, without notice, offer evidence to reduce the amount of damages claimed.

(P.B. 1978-1997, Sec. 374.)

Sec. 17-41. Relief Permissible on Default

Upon a default, the plaintiff can have no greater relief than that demanded in the complaint; but in any other case the judicial authority may, upon a proper amendment, grant the plaintiff any other relief consistent with the case made on the trial and embraced within the issues.

(P.B. 1978-1997, Sec. 375.)

Sec. 17-42. Opening Defaults where Judgment Has Not Been Rendered

A motion to set aside a default where no judgment has been rendered may be granted by the judicial authority for good cause shown upon such

terms as it may impose. As part of its order, the judicial authority may extend the time for filing pleadings or disclosure in favor of a party who has not been negligent. Certain defaults may be set aside by the clerk pursuant to Sections 17-20 and 17-32.

(P.B. 1978-1997, Sec. 376.)

Sec. 17-43. Opening Judgment upon Default or Nonsuit

(a) Any judgment rendered or decree passed upon a default or nonsuit may be set aside within four months succeeding the date on which notice was sent, and the case reinstated on the docket on such terms in respect to costs as the judicial authority deems reasonable, upon the written motion of any party or person prejudiced thereby, showing reasonable cause, or that a good cause of action or defense in whole or in part existed at the time of the rendition of such judgment or the passage of such decree, and that the plaintiff or the defendant was prevented by mistake, accident or other reasonable cause from prosecuting or appearing to make the same. Such written motion shall be verified by the oath of the complainant or the complainant's attorney, shall state in general terms the nature of the claim or defense and shall particularly set forth the reason why the plaintiff or the defendant failed to appear. The judicial authority shall order reasonable notice of the pendency of such written motion to be given to the adverse party, and may enjoin that party against enforcing such judgment or decree until the decision upon such written motion.

(b) If the judicial authority opens a nonsuit entered pursuant to Section 17-31, the judicial authority as part of its order may extend the time for filing pleadings or disclosure. (See General Statutes § 52-212.)

(P.B. 1978-1997, Sec. 377.)

Sec. 17-44. Summary Judgments; Scope of Remedy

In any action, including administrative appeals which are enumerated in Section 14-7 (c), any party may move for a summary judgment as to any cause of action or defense as a matter of right at any time if no scheduling order exists and the case has not been assigned for trial. If a scheduling order has been entered by the court, either party may move for summary judgment as to any cause of action or defense as a matter of right by the time specified in the scheduling order. If no scheduling order exists but the case has been assigned for trial, a party must move for permission of the judicial authority to file a motion for summary judgment. These rules shall be applicable to counterclaims and cross complaints, so that any party may move for summary judgment upon any counterclaim or cross complaint as if it were an independent action. The pendency of a motion for summary judgment shall delay trial only at the discretion of the trial judge.

(P.B. 1978-1997, Sec. 379.) (Amended June 14, 2013, to take effect Jan. 1, 2014; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 17-45. —Proceedings upon Motion for Summary Judgment

(Amended June 30, 2003, to take effect Jan. 1, 2004; amended June 11, 2021, to take effect Jan. 1, 2022.)

(a) A motion for summary judgment shall be supported by appropriate documents, including but not limited to affidavits, certified transcripts of testimony under oath, disclosures, written admissions and other supporting documents.

(b) Unless otherwise ordered by the judicial authority, any adverse party shall file and serve a response to the motion for summary judgment within forty-five days of the filing of the motion, including opposing affidavits and other available documentary evidence.

(c) Unless otherwise ordered by the judicial authority, the moving party shall not claim the motion for summary judgment to the short calendar less than forty-five days after the filing of the motion for summary judgment.

(P.B. 1978-1997, Sec. 380.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 30, 2003, to take effect Jan. 1, 2004; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 17-46. —Form of Affidavits

Supporting and opposing affidavits shall be made on personal knowledge, shall set forth such facts as would be admissible in evidence, and shall show affirmatively that the affiant is competent to testify to the matters stated therein. Sworn or certified copies of all papers or parts thereof referred to in an affidavit shall be attached thereto.

(P.B. 1978-1997, Sec. 381.)

Sec. 17-47. —When Appropriate Documents Are Unavailable

Should it appear from the affidavits of a party opposing the motion that such party cannot, for reasons stated, present facts essential to justify opposition, the judicial authority may deny the motion for judgment or may order a continuance to permit affidavits to be obtained or discovery to be had or may make such other order as is just.

(P.B. 1978-1997, Sec. 382.)

Sec. 17-48. —Affidavits Made in Bad Faith

Should it appear to the satisfaction of the judicial authority at any time that any affidavit is made or

presented in bad faith or solely for the purpose of delay, the judicial authority shall forthwith order the offending party to pay to the other party the reasonable expenses which the filing of the affidavit caused that party to incur, including attorney's fees. Any offending party or attorney may be adjudged guilty of contempt, and any offending attorney may also be disciplined by the judicial authority.

(P.B. 1978-1997, Sec. 383.)

Sec. 17-49. —Judgment

The judgment sought shall be rendered forthwith if the pleadings, affidavits and any other proof submitted show that there is no genuine issue as to any material fact and that the moving party is entitled to judgment as a matter of law.

(P.B. 1978-1997, Sec. 384.)

Sec. 17-50. —Triable Issue as to Damages Only

A summary judgment, interlocutory in character, may be rendered on the issue of liability alone, although there is a genuine issue as to damages. In such case the judicial authority shall order an immediate hearing before a judge trial referee, before the court, or before a jury, whichever may be proper, to determine the amount of the damages. If the determination is by a jury, the usual procedure for setting aside the verdict shall be applicable. Upon the conclusion of these proceedings, the judicial authority shall forthwith render the appropriate summary judgment.

(P.B. 1978-1997, Sec. 385.)

Sec. 17-51. —Judgment for Part of Claim

If it appears that the defense applies to only part of the claim, or that any part is admitted, the moving party may have final judgment forthwith for so much of the claim as the defense does not apply to, or as is admitted, on such terms as may be just; and the action may be severed and proceeded with as respects the remainder of the claim.

(P.B. 1978-1997, Sec. 386.)

Sec. 17-52. Executions

Pursuant to the General Statutes, the judgment creditor or the attorney for the judgment creditor may file a written application with the court for an execution to collect an unsatisfied money judgment.

(P.B. 1978-1997, Sec. 387.)

Sec. 17-53. Summary Process Executions

Whenever a summary process execution is requested because of a violation of a term in a judgment by stipulation or a judgment with a stay of execution beyond the statutory stay, a hearing shall be required. If the violation consists of nonpayment of a sum certain, an affidavit with service certified in accordance with Sections 10-12 through 10-17 shall be accepted in lieu of a hearing unless an objection to the execution is filed by the defendant prior to the issuance of the execution. The execution shall issue on the third business day after the filing of the affidavit.

An affidavit asserting nonpayment of a sum certain that is sent to the court either electronically or is hand-delivered to the court shall be deemed to be filed on the third business day following such delivery unless the party filing the affidavit certifies that the affidavit has also been sent electronically or hand-delivered on the same day to all opposing parties or their counsel.

(P.B. 1978-1997, Sec. 387A.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 25, 2001, to take effect Jan. 1, 2002; amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 17-54. Declaratory Judgment; Scope

The judicial authority will, in cases not herein excepted, render declaratory judgments as to the existence or nonexistence (1) of any right, power, privilege or immunity; or (2) of any fact upon which the existence or nonexistence of such right, power, privilege or immunity does or may depend, whether such right, power, privilege or immunity now exists or will arise in the future.

(P.B. 1978-1997, Sec. 389.)

Sec. 17-55. —Conditions for Declaratory Judgment

A declaratory judgment action may be maintained if all of the following conditions have been met:

(1) The party seeking the declaratory judgment has an interest, legal or equitable, by reason of danger of loss or of uncertainty as to the party's rights or other jural relations;

(2) There is an actual bona fide and substantial question or issue in dispute or substantial uncertainty of legal relations which requires settlement between the parties; and

(3) In the event that there is another form of proceeding that can provide the party seeking the declaratory judgment immediate redress, the court is of the opinion that such party should be allowed to proceed with the claim for declaratory judgment despite the existence of such alternate procedure.

(P.B. 1978-1997, Sec. 390.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 17-56. —Procedure for Declaratory Judgment

(a) Procedure in actions seeking a declaratory judgment shall be as follows:

(1) The form and practice prescribed for civil actions shall be followed.

(2) The prayer for relief shall state with precision the declaratory judgment desired and no claim for consequential relief need be made.

(3) Actions claiming coercive relief may also be accompanied by a claim for a declaratory judgment, either as an alternative remedy or as an independent remedy.

(4) Subject to the provisions of Sections 10-21 through 10-24, causes of action for other relief may be joined in complaints seeking declaratory judgments.

(5) The defendant in any appropriate action may seek a declaratory judgment by a counterclaim.

(6) Issues of fact necessary to the determination of the cause may be submitted to the jury as in other actions.

(b) All persons who have an interest in the subject matter of the requested declaratory judgment that is direct, immediate and adverse to the interest of one or more of the plaintiffs or defendants in the action shall be made parties to the action or shall be given reasonable notice thereof. If the proceeding involves the validity of a municipal ordinance, persons interested in the subject matter of the declaratory judgment shall include such municipality, and if the proceeding involves the validity of a state statute, such persons shall include the attorney general.

The party seeking the declaratory judgment shall append to its complaint or counterclaim a certificate stating that all such interested persons have been joined as parties to the action or have been given reasonable notice thereof. If notice was given, the certificate shall list the names, if known, of all such persons, the nature of their interest and the manner of notice.

(c) Except as provided in Sections 10-39 and 10-44, no declaratory judgment action shall be defeated by the nonjoinder of parties or the failure to give notice to interested persons. The exclusive remedy for nonjoinder or failure to give notice to interested persons is by motion to strike as provided in Sections 10-39 and 10-44.

(d) Except as otherwise provided by law, no declaration shall be binding against any persons not joined as parties. If it appears to the court that the rights of nonparties will be prejudiced by its declaration, it shall order entry of judgment in such form as to affect only the parties to the action.

(P.B. 1978-1997, Sec. 391.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 17-57. —Costs in Declaratory Judgment

Costs shall be discretionary and may be granted to or against any party to the action.

(P.B. 1978-1997, Sec. 392.)

Sec. 17-58. —Declaratory Judgment Appealable

The decision of the judicial authority shall be final between the parties to the action as to the question or issue determined, and shall be subject to review by appeal as in other causes.

(P.B. 1978-1997, Sec. 393.)

Sec. 17-59. —Order of Priorities in Declaratory Judgment

In any action in which order of priorities could be determined under scire facias proceedings, such order of priorities may be determined by declaratory judgment proceedings. (See General Statutes § 52-235a.)

(P.B. 1978-1997, Sec. 394.)

CHAPTER 18

FEES AND COSTS

Sec.
18-1. Vouchers for Court Expenses
18-2. Costs on Appeal from Commissioners
18-3. Costs on Creditor's Appeal
18-4. Eminent Domain; Clerk's Fees
18-5. Taxation of Costs; Appeal
18-6. Costs on Writ of Error
18-7. Costs on Interlocutory Proceedings
18-8. Jury Fee where More than One Trial
18-9. Nonresident Witnesses; Fees
18-10. Witness Fees in Several Suits
18-11. Witness Not Called; Fees
18-12. Costs where Several Issues
18-13. Several Defendants; Costs
18-14. Fees and Costs where Plaintiffs Join or Actions Are Consolidated
18-15. Costs where Both Legal and Equitable Issues
18-16. Costs on Complaint and Counterclaim
18-17. Costs on Counterclaim
18-18. Costs for Exhibits
18-19. Proceedings before Judge; No Costs

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 18-1. Vouchers for Court Expenses

No costs shall be taxed for court expenses unless each item of payment of over $50 shall be accompanied by a proper voucher. No part of the clerk's bill or fees shall be included for taxation in the state marshal's bill, or in any bill of a community correctional center.

(P.B. 1978-1997, Sec. 407.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 18-2. Costs on Appeal from Commissioners

If an executor, administrator or trustee upon an estate shall appeal from the report of the commissioners in allowing a claim to a creditor and such claim is disallowed upon the appeal, or if a creditor shall appeal from the disallowance of claim in whole or in part and shall recover no more than was allowed by the commissioners, judgment for costs shall be rendered against the creditor. If upon an appeal by an executor, administrator or trustee the creditor shall recover as large a sum as, or a larger sum than, was allowed to the creditor by the commissioners, or if upon the creditor's own appeal from the disallowance of claim in whole or in part, a creditor shall recover a greater sum than was allowed by the commissioners, costs will be taxed in the creditor's favor against the estate. In any other case, costs shall be discretionary with the judicial authority.

(P.B. 1978-1997, Sec. 409.)

Sec. 18-3. Costs on Creditor's Appeal

If any creditor of such an estate shall appeal from the doings or report of the commissioners in allowing the claim of any other creditor, costs, at the discretion of the judicial authority, may be taxed in favor of the prevailing party against the other. No costs shall be allowed against the estate.

(P.B. 1978-1997, Sec. 410.)

Sec. 18-4. Eminent Domain; Clerk's Fees

If, by the provisions of the charter of any railroad company, canal company, bridge company, or the like, it shall be made the duty of the judicial authority to appoint appraisers, assessors, commissioners, etc., the clerk's fees must be paid as in other causes.

(P.B. 1978-1997, Sec. 411.)

Sec. 18-5. Taxation of Costs; Appeal

(a) Except as otherwise provided in this section, costs may be taxed by the clerk in civil cases fourteen days after the filing of a written bill of costs provided that no objection is filed. If a written objection is filed within the fourteen day period, notice shall be given by the clerk to all appearing parties of record of the date and time of the clerk's taxation. The parties may appear at such taxation and have the right to be heard by the clerk.

(b) Either party may move the judicial authority for a review of the taxation by the clerk by filing a motion for review of taxation of costs within twenty days of the issuance of the notice of taxation by the clerk.

(c) Notwithstanding the provisions of subsection (a), the costs paid as an application fee for any execution on a money judgment shall be taxed by the clerk upon the issuance of the execution.

(P.B. 1978-1997, Sec. 412.) (Amended June 20, 2005, to take effect Jan. 1, 2006.)

Sec. 18-6. Costs on Writ of Error

No copy of a record upon which a writ of error shall be pending shall be taxed in the bill of costs on such writ, unless such copy shall become necessary by reason of a defense of nul tiel record.

(P.B. 1978-1997, Sec. 413.)

Sec. 18-7. Costs on Interlocutory Proceedings

Costs taxed on any interlocutory proceedings must be paid before any further pleading may be filed or other step taken in the cause by the party against whom they were awarded, unless the judicial authority specially directs otherwise or the written consent of the adverse party is given.

(P.B. 1978-1997, Sec. 414.)

Sec. 18-8. Jury Fee where More than One Trial

If more than one trial to the jury of a case is had, no more than one jury fee shall be required to be paid.

(P.B. 1978-1997, Sec. 415.)

Sec. 18-9. Nonresident Witnesses; Fees

The mileage or travel of witnesses residing out of the state will be computed and taxed from the state line, on the usual course of travel.

(P.B. 1978-1997, Sec. 416.)

Sec. 18-10. Witness Fees in Several Suits

If a witness be in attendance in more cases than one, between the same parties, at the same time, and on behalf of the same party, the fees of the witness for travel and attendance will be taxed for one case only.

(P.B. 1978-1997, Sec. 417.)

Sec. 18-11. Witness Not Called; Fees

If witnesses, having been duly summoned, attend as witnesses, but are not called to testify, their fees shall be taxed in the bill of costs, if it appears to the judicial authority that they were summoned in good faith and with the expectation of using them, and if their testimony would have been admissible.

(P.B. 1978-1997, Sec. 418.)

Sec. 18-12. Costs where Several Issues

(a) Whenever in any action there shall be two or more issues joined on material allegations, and a part of such issues shall be found for the defendant and the remainder for the plaintiff, the defendant shall recover such costs as were incurred upon the issues found in the defendant's favor, including fees of witnesses and the expense of summoning them. If several distinct claims shall be made under one count, and the plaintiff shall recover upon some and not upon others, the plaintiff shall not recover costs incurred in attempting to support the claims which the plaintiff shall fail to establish.

(b) When costs are awarded to both parties, the judicial authority upon motion of either party may order a setoff of the same, and execution will then issue only for the balance.

(P.B. 1978-1997, Sec. 419.)

Sec. 18-13. Several Defendants; Costs

In all cases where there are several defendants, the judicial authority may make such order as it may deem just to prevent any defendant from being embarrassed or put to expense by being required to attend upon any proceedings in the action in which such defendant may have no interest; and no costs shall be taxed against any defendant with which that defendant is not justly chargeable.

(P.B. 1978-1997, Sec. 420.)

Sec. 18-14. Fees and Costs where Plaintiffs Join or Actions Are Consolidated

(a) Where plaintiffs join under Section 9-4, or actions are consolidated, and the case is claimed for the jury, there shall be but one jury fee, except that if separate jury trials are ordered, a jury fee shall be paid for each such trial.

(b) Each party who prevails shall be entitled to recover from the losing party or parties indemnity, trial and witness fees to the same extent as though the plaintiffs who have several rights had brought separate actions.

(P.B. 1978-1997, Sec. 421.)

Sec. 18-15. Costs where Both Legal and Equitable Issues

Where legal and equitable matters or claims for relief arising out of the same transaction or transactions connected with the same subject of action are joined in the same complaint, or where any pleading setting forth a matter which, before January 1, 1980, would have been cognizable only at law is met by setting up some equitable matter, either by itself or in connection with a legal defense, the costs upon the whole case shall be at the discretion of the judicial authority; but where legal and equitable causes of action which are wholly unconnected with each other are joined in the same complaint, the costs upon the judgment on the equitable causes of action only shall be discretionary.

(P.B. 1978-1997, Sec. 422.)

Sec. 18-16. Costs on Complaint and Counterclaim

When judgment shall be for the defendant on the complaint and for the plaintiff on a counterclaim, costs shall be taxed for the defendant as the prevailing party under General Statutes § 52-257, unless the judicial authority shall direct otherwise.

(P.B. 1978-1997, Sec. 423.)

Sec. 18-17. Costs on Counterclaim

No costs shall be taxed in favor of a defendant recovering judgment on a counterclaim or setoff, which were incurred before the same was filed.

(P.B. 1978-1997, Sec. 424.)

Sec. 18-18. Costs for Exhibits

The sum to be taxed to the prevailing party under General Statutes § 52-257, for maps, plans, mechanical drawings, and photographs shall be determined by the judicial authority.

(P.B. 1978-1997, Sec. 425.)

Sec. 18-19. Proceedings before Judge; No Costs

In proceedings before a judge no costs shall be taxed in favor of either party unless otherwise provided by statute.

(P.B. 1978-1997, Sec. 427.)

CHAPTER 19

REFERENCES

Sec.		Sec.	
19-1.	Application of Chapter	19-9.	Request for Finding
19-2.	Reference to Committee	19-10.	Alternative Report
19-2A.	Reference to Attorney Trial Referee	19-11.	Amending Report
19-3.	Reference to Judge Trial Referee	19-12.	Motion To Correct [Repealed]
19-3A.	Reference to Special Assignment Probate Judge	19-13.	Exceptions to Report or Finding [Repealed]
19-4.	Attorney Trial Referees and Special Assignment Probate Judges; Time To File Report	19-14.	Objections to Acceptance of Report
19-5.	Appointment of Committee or Referee	19-15.	Time To File Objections
19-6.	Effect of Reference	19-16.	Judgment on the Report
19-7.	Pleadings	19-17.	Function of the Court
19-8.	Report	19-18.	Extensions of Time
		19-19.	Reference to Accountant

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 19-1. Application of Chapter

The provisions of this chapter shall govern the procedure in matters, except dissolution of marriage or civil union, legal separation, annulment, and juvenile matters, referred to committees, state referees and senior judges, attorney trial referees, special assignment probate judges, and, so far as applicable, to auditors, appraisers or other persons designated to make reports to the court.

(P.B. 1978-1997, Sec. 428.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-2. Reference to Committee

The court or any judge thereof may send to a committee for a finding of facts any case wherein the parties are not, as a matter of right, entitled to a trial by jury. A committee shall not be appointed without the consent of all parties appearing, unless the court, after a hearing upon motion for appointment of a committee, is of the opinion that the questions involved are such as clearly ought to be sent to a committee.

(P.B. 1978-1997, Sec. 429.)

Sec. 19-2A. Reference to Attorney Trial Referee

The court or judicial authority may refer to an attorney trial referee any civil nonjury case in which the issues have been closed, provided that the appearing parties or their counsel consent to the referral.

(Adopted June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 19-3. Reference to Judge Trial Referee

(Amended June 28, 1999, to take effect Jan. 1, 2000.)

The clerk shall give notice to each referee of a reference and note in the court file the date of the issuance of the notice. In addition to matters required to be referred to a judge trial referee, the judicial authority may refer any civil nonjury case or, with the written consent of the parties or their attorneys, any civil jury case, pending before such court, in which the issues have been closed, to a judge trial referee, who shall have and exercise the powers of the Superior Court in respect to trial, judgment and appeal in such case, and any proceeding resulting from a demand for a trial de novo pursuant to subsection (e) of General Statutes § 52-549z, may be referred without the consent of the parties to a judge trial referee who has been specifically designated to hear such proceedings pursuant to subsection (b) of General Statutes § 52-434. Any case referred to a judge trial referee shall be deemed to have been referred for all further proceedings and judgment, including matters pertaining to any appeal therefrom, unless otherwise ordered before or after the reference. The court may also refer to a judge trial referee any motion for summary judgment and any other pretrial matter in any civil nonjury or civil jury case.

(P.B. 1978-1997, Sec. 430.) (Amended June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 19-3A. Reference to Special Assignment Probate Judge

The court may refer any appeal filed under General Statutes § 45a-186, except those matters described in subdivision (*l*) (3) of that statute, to a special assignment probate judge appointed in accordance with General Statutes § 45a-79b who is assigned by the Probate Court Administrator for the purposes of such appeal, except that such appeal shall be heard by the court if any party files a demand for such hearing in writing with the court not later than twenty days after service of the appeal.

(Adopted June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-4. Attorney Trial Referees and Special Assignment Probate Judges; Time To File Report

(Amended June 20, 2011, to take effect Jan. 1, 2012.)

An attorney trial referee or special assignment probate judge to whom a case has been referred shall file a report with the clerk of the court, with sufficient copies for all counsel, within 120 days of the completion of the trial before such referee or special assignment probate judge.

(P.B. 1978-1997, Sec. 430A.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-5. Appointment of Committee or Referee

It is the function of the court or judge to determine and appoint the person or persons who shall constitute a committee, or the referee to whom a case shall be referred. Recommendations by counsel shall be made only at the request of the court or judge. If more than one person shall constitute the committee, the first person named by the court shall be the chair of the committee.

(P.B. 1978-1997, Sec. 431.)

Sec. 19-6. Effect of Reference

(a) When any case shall be referred, no trial will be had by the court unless the reference be revoked upon stipulation of the parties or order of the court. Any reference shall continue in force until the duties thereunder have been performed or the order revoked.

(b) In making a reference in any eminent domain proceeding, the court shall fix a date not more than sixty days thereafter, unless for good cause shown a longer period is required, on which the parties shall exchange copies of their appraisal reports. Such reports shall set forth the valuation placed upon the property in issue and the details of the items of, or the basis for, such valuation. The court may, in its discretion and under such conditions as it deems proper, and after notice and hearing, grant a further extension of time, beyond that originally fixed, to any party confronted with unusual and special circumstances requiring additional time for the exchange of appraisal reports.

(P.B. 1978-1997, Sec. 432.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 19-7. Pleadings

No case shall be referred to a committee, attorney trial referee or special assignment probate judge until the issues are closed and a certification to that effect has been filed pursuant to Section 14-8. Thereafter no pleadings may be filed except by agreement of all parties or order of the court or the attorney trial referee or special assignment probate judge. Such pleadings shall be filed with the clerk and a copy filed with the committee, the attorney trial referee or the special assignment probate judge.

(P.B. 1978-1997, Sec. 433.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-8. Report

(a) The report of a committee, attorney trial referee or special assignment probate judge shall state, in separate and consecutively numbered paragraphs, the facts found and the conclusions drawn therefrom. It should not contain statements of evidence or excerpts from the evidence. The report should ordinarily state only the ultimate facts found; but if the committee, attorney trial referee or special assignment probate judge has reason to believe that the conclusions as to such facts from subordinate facts will be questioned, it may also state the subordinate facts found proven; and any committee, attorney trial referee or special assignment probate judge having reason to believe that the rulings will be questioned may state them with a brief summary of such facts as are necessary to explain them; and the committee, attorney trial referee or special assignment probate judge should state such claims as were made by the parties and which either party requests be stated.

(b) The committee, attorney trial referee or special assignment probate judge may accompany the report with a memorandum of decision including such matters as it may deem helpful in the decision of the case, and, in any case in which appraisal fees may be awarded by the court, shall make a finding and recommendation as to such appraisal fees as it deems reasonable.

(P.B. 1978-1997, Sec. 434.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-9. Request for Finding

Either party may request a committee, attorney trial referee or special assignment probate judge to make a finding of subordinate facts or of its rulings, and of the claims made, and shall include in or annex to such request a statement of the facts, or rulings, or claims, the party desires the committee, attorney trial referee or special assignment probate judge to incorporate in the report.

(P.B. 1978-1997, Sec. 435.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-10. Alternative Report

If alternative claims are made before the committee, attorney trial referee or special assignment

probate judge, or the committee, attorney trial referee or special assignment probate judge deems it advisable, it may report all the facts bearing upon such claims and make its conclusions in the alternative, so that the judgment rendered will depend upon which of the alternative conclusions the facts are found legally to support.

(P.B. 1978-1997, Sec. 436.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2011.)

Sec. 19-11. Amending Report

A committee, attorney trial referee or special assignment probate judge may, at any time before a report is accepted, file an amendment to it or an amended report.

(P.B. 1978-1997, Sec. 437.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-12. Motion To Correct

[Repealed as of Jan. 1, 2000.]

Sec. 19-13. Exceptions to Report or Finding

[Repealed as of Jan. 1, 2000.]

Sec. 19-14. Objections to Acceptance of Report

A party may file objections to the acceptance of a report on the ground that conclusions of fact stated in it were not properly reached on the basis of the subordinate facts found, or that the committee, attorney trial referee or special assignment probate judge erred in rulings on evidence or other rulings or that there are other reasons why the report should not be accepted. A party objecting on these grounds must file with the party's objections a transcript of the evidence taken before the committee, except such portions as the parties may stipulate to omit.

(P.B. 1978-1997, Sec. 440.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2000, to take effect Jan. 1, 2001; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-15. Time To File Objections

Objections to the acceptance of a report shall be filed within twenty-one days after the mailing or electronic delivery of the report to the parties or their counsel by the clerk.

(P.B. 1978-1997, Sec. 441.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-16. Judgment on the Report

After the expiration of twenty-one days from the mailing or electronic delivery of the report, either party may, without written motion, claim the case for the short calendar for judgment on the report of the committee, attorney trial referee or special assignment probate judge, provided, if the parties file a stipulation that no objections will be filed, the case may be so claimed at any time thereafter.

The court may, on its own motion and with notice thereof, schedule the matter for judgment on the report and/or hearing on any objections thereto, anytime after the expiration of twenty-one days from the mailing or electronic delivery of the report to the parties or their counsel by the clerk.

(P.B. 1978-1997, Sec. 442.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-17. Function of the Court

(a) The court shall render such judgment as the law requires upon the facts in the report. If the court finds that the committee, attorney trial referee or special assignment probate judge has materially erred in its rulings or that there are other sufficient reasons why the report should not be accepted, the court shall reject the report and refer the matter to the same or another committee, attorney trial referee or special assignment probate judge, as the case may be, for a new trial or revoke the reference and leave the case to be disposed of in court.

(b) The court may correct a report at any time before judgment upon the written stipulation of the parties or it may upon its own motion add a fact which is admitted or undisputed or strike out a fact improperly found.

(P.B. 1978-1997, Sec. 443.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 19-18. Extensions of Time

Any judge of the court in which the report is filed may for good cause shown allow extensions of time for taking any of the steps herein provided.

(P.B. 1978-1997, Sec. 444.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 19-19. Reference to Accountant

The court or any judge thereof may refer any pending matter to an accountant for an examination of any account or books. The accountant shall have authority to make such examination and shall file a report with comments with the court or judge. The fees and expenses of the accountant, as fixed and allowed by the court or judge, shall be paid by the estate or the parties, as the court or judge may determine. The other provisions of this chapter shall not be applicable to reports by accountants under this section.

(P.B. 1978-1997, Sec. 445.)

CHAPTER 20
HEARINGS IN CHAMBERS

Sec.
20-1. Procedure in Contested Matters
20-2. Certifying Proceedings to Court
20-3. Transfer of Hearings before Judges
20-4. Trial before Judge; Lodging File and Papers
20-5. Lodging Papers in Cause Affecting Land
20-6. Clerk Designated by Judge To Take Papers

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 20-1. Procedure in Contested Matters

Where any matter in a proceeding which has or might have been made returnable to the court in any judicial district is brought, pursuant to statute before a judge, and is contested, and it may become necessary to take oral testimony, the judge may, at his or her discretion and by agreement of the parties, repair to the courthouse, open a special session of the court, certify such proceedings to said court, and go forward with the hearing as a court.

(P.B. 1978-1997, Sec. 446.)

Sec. 20-2. Certifying Proceedings to Court

Each application or petition made to any judge in connection with any cause then pending in or returnable to any court and the proceedings thereon shall be certified to the said court by said judge. (See General Statutes § 52-504.)

(P.B. 1978-1997, Sec. 447.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 20-3. Transfer of Hearings before Judges

When, upon any application, petition or matter presented to any judge of the court for a hearing by him or her as a judge, notice to the adverse party of the hearing thereon is required, either by statute or in the discretion of the judge, the judge to whom such application, petition or matter has been presented may, in the order of notice issued by the judge, designate any other judge of the court to hear the same, the consent thereto of such other judge having first been obtained, and when any application, petition or matter is pending before any judge of the court, such application, petition or matter may be by the judge transferred to any other judge of the court, upon like consent first obtained; and in either case such other judge shall thereupon proceed with such application, petition or matter with the same authority as though the same had originally been presented to such judge or had theretofore been pending before him or her. (See General Statutes § 51-189.)

(P.B. 1978-1997, Sec. 448.)

Sec. 20-4. Trial before Judge; Lodging File and Papers

In all trials of causes before a judge that might have been brought to the court, the judge, when a decision has been reached, shall lodge the file and papers in such cause, and a memorandum of the judge's decision, with the clerk of the court who would have been the custodian thereof had the cause been tried by the court in such judicial district, and such clerk shall thereupon become their lawful custodian. (See General Statutes § 51-190a.)

(P.B. 1978-1997, Sec. 449.)

Sec. 20-5. Lodging Papers in Cause Affecting Land

In all causes relating to an interest in land, tried by a judge, the judge shall lodge the file and papers in the cause, with a memorandum of the judge's decision, with a clerk of the court in the judicial district in which the land affected is located, who shall thereupon become their lawful custodian.

(P.B. 1978-1997, Sec. 450.)

Sec. 20-6. Clerk Designated by Judge To Take Papers

When a cause other than one mentioned in Sections 20-4 and 20-5 is tried by a judge, and it is not otherwise provided by law where the file and papers shall be lodged, the judge, when a decision has been reached, shall designate a clerk of the Superior Court with whom the same shall be lodged, and shall thereupon lodge the same with such clerk with a memorandum of the judge's decision, and such clerk shall thereupon become the lawful custodian thereof.

(P.B. 1978-1997, Sec. 451.)

CHAPTER 21
RECEIVERS

Sec.
21-1. Appointment of Temporary Receiver in Chambers
21-2. Permanent Receiver
21-3. Appointments by Court
21-4. Receiver To Give Bond
21-5. Inventory
21-6. Insolvent Estates To Be Liquidated
21-7. Presentation and Allowance of Claims; Presentation
21-8. —Allowance; Hearing
21-9. —Extensions of Time
21-10. —Hearing before Action on Allowance
21-11. Continuance of Business
21-12. Reports where Business Continued
21-13. Semiannual Summary of Orders
21-14. Semiannual Accounts
21-15. Orders in Chambers
21-16. Duty of Clerks
21-17. Removal of Receivers
21-18. Ancillary Receivers
21-19. Receiver of Rents; Applicability of Previous Sections
21-20. —Appointment
21-21. —Bond
21-22. —Discharge
21-23. —Orders
21-24. —Reports
21-25. Applicability of Rules

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 21-1. Appointment of Temporary Receiver in Chambers

All applications for the appointment of a receiver shall be made in a civil action, and at any time after the writ and complaint has been signed. As ancillary thereto, an application may be made, when the court before which such action is pending is not in actual session, to a judge in chambers for the appointment of a temporary receiver, after notice to the parties in interest, unless the exigencies of the case require otherwise; and said judge may appoint a temporary receiver, and upon such appointment shall fix a time for a hearing upon the confirmation of such temporary receiver and the appointment of appraisers, and cause not less than six days' notice thereof to be given to all parties in interest by mail and otherwise if deemed necessary. Upon such hearing or an adjournment thereof, the judge may appoint two or more appraisers and either confirm the temporary receiver or make a new appointment of a temporary receiver. The appointment of a temporary receiver shall continue until a permanent receiver shall be appointed or until the further order of the court.

(P.B. 1978-1997, Sec. 485.)

Sec. 21-2. Permanent Receiver

The temporary receiver shall cause the case to be duly assigned for trial in the court at the earliest practicable day after the return day of the action, for the appointment of a permanent receiver, and in cases where the day for such hearing has not been fixed before the opening of the session of the court to which said proceeding is returnable, the temporary receiver, on or before such opening, shall make and place upon the short calendar list an application therefor.

(P.B. 1978-1997, Sec. 486.)

Sec. 21-3. Appointments by Court

(a) All appointments of receivers shall be temporary appointments, unless made by the court after the return day of the action, and upon full notice and opportunity to be heard to all concerned. If made after the return day the appointment shall be upon written motion addressed to the court. If made before the return day the party desiring the appointment shall file a written application as is required where the appointment is by a judge in chambers.

(b) In either case the court making a temporary appointment shall forthwith make an order for a hearing upon the confirmation of such temporary appointment and the appointment of two or more appraisers, and direct the temporary receiver to give notice of such hearing and of the time and place thereof to all parties concerned by public advertisement if it seems advisable and by causing a written or printed notice thereof to be mailed, postpaid, to all known creditors and to all stockholders of record of the corporation, if the defendant be a corporation, at least six days before such hearing.

(c) At said hearing, if after the return day, the court may appoint a permanent receiver, who may be either the temporary receiver or a new appointee. If said hearing is before the return day, then such appointment shall be temporary only, and such temporary receiver shall cause the matter

of his or her confirmation as permanent receiver or the appointment of some other person as permanent receiver to be brought before the court as provided in the case of temporary receivers appointed by a judge in chambers.
(P.B. 1978-1997, Sec. 487.)

Sec. 21-4. Receiver To Give Bond

Every receiver, temporary or permanent, before assuming to act as such, shall file with the clerk of the court by which, or by a judge of which, he or she was appointed, a bond with such surety or sureties, and for such an amount as such court or judge may order and approve, payable to the state and conditioned for the faithful performance of the receiver's official duties. (See General Statutes § 52-506 and annotations.)
(P.B. 1978-1997, Sec. 488.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 21-5. Inventory

Every receiver, upon confirmation or permanent appointment, shall forthwith, and without any order therefor, prepare and file a sworn inventory of the assets of the estate, which shall contain an appraisal of each item therein, made by the appraisers appointed for such purpose. Every temporary receiver, upon original appointment, shall make an inventory, unless otherwise ordered.
(P.B. 1978-1997, Sec. 489.)

Sec. 21-6. Insolvent Estates To Be Liquidated

At the time of the appointment or of the confirmation of a temporary receiver or the appointment of a permanent receiver, such inquiry as is practicable shall be made by the judge or court relative to the solvency of the estate. When, upon such inquiry or thereafter, it appears to the judge or court that the estate is insolvent, the estate shall be promptly liquidated and no further continuance of the business, except for the purpose of liquidation, shall be permitted, unless, because of exceptional circumstances, it shall be otherwise ordered.
(P.B. 1978-1997, Sec. 490.)

Sec. 21-7. Presentation and Allowance of Claims; Presentation

The court shall, in the judgment appointing a permanent receiver, limit a time for the presentation of claims against the estate and direct that the receiver forthwith give notice thereof, and that all claims not exhibited within said time will be barred, to all known creditors, by mailing a written or printed copy of such order. The court may provide for further notice if it deems the same advisable.
(P.B. 1978-1997, Sec. 492.)

Sec. 21-8. —Allowance; Hearing

(a) The receiver shall, within two weeks after the order of notice, make a return of compliance with it, and within a like time after the expiration of the limitation file a list of claims presented, separately stating those in which a preference is claimed, and make application for an order of the court thereon.

(b) The court shall thereupon by its order allow or disallow, in whole or in part, the claims so returned and any preferences claimed and order the receiver forthwith to give written notice to each claimant whose claim has been disallowed in whole or in part that unless the claimant shall within two weeks from the giving of such notice by the receiver bring an application to the court for the allowance of the claim, the same shall be barred; and any such application shall be speedily heard and the decision thereon shall, subject to appeal, be final. Any creditor may intervene in the proceeding.
(P.B. 1978-1997, Sec. 493.)

Sec. 21-9. —Extensions of Time

The court, for good cause shown, may extend the time for presenting a claim or claims to the receiver, and may extend the time for making application for the allowance of a claim or claims disallowed in whole or in part.
(P.B. 1978-1997, Sec. 494.)

Sec. 21-10. —Hearing before Action on Allowance

The court may, upon due notice to a claimant, hear the claimant's claim before allowing or disallowing the same and, subject to appeal, the decision thereon shall be final.
(P.B. 1978-1997, Sec. 495.)

Sec. 21-11. Continuance of Business

No order for the continuance of a business shall be made for a greater period of time than four months, except for special cause shown. For cause shown, such orders may be renewed from time to time, as the exigencies of the case may require.
(P.B. 1978-1997, Sec. 496.)

Sec. 21-12. Reports where Business Continued

When a receiver is continuing business under the order of a judge or the court, the receiver shall, during the first ten days of each month, file a report showing the results of operating the business during the preceding month. The receiver shall furnish supplemental schedules and information if required by the court.
(P.B. 1978-1997, Sec. 497.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 21-13. Semiannual Summary of Orders

Every receiver shall, on the first Tuesdays of April and October of each year, file a summary statement of all orders made in said cause during

the six months preceding, and the doings thereunder. The clerk shall refer the statement to the judge holding the term or session then pending, or held next thereafter, who shall, upon examination of the same, make such further orders in said cause as are deemed necessary, and may direct that the cause be placed on the short calendar for an order approving the statement.

(P.B. 1978-1997, Sec. 498.) (Amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 21-14. Semiannual Accounts

Every receiver upon an estate which has been in process of settlement more than four months (except receivers of state banks and trust companies) shall during the first week of April and October of each year sign, swear to and file with the court a full and detailed account of the condition and prospects of the estate as of the close of the next preceding month, including therein a statement of realization and liquidation. The receiver shall furnish supplemental schedules and information if required by the court. The receiver shall cause a motion for the approval of the report to be placed on the short calendar.

(P.B. 1978-1997, Sec. 499.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 21-15. Orders in Chambers

Whenever any judge shall have appointed a receiver in chambers, all applications for orders in said proceeding made out of court shall, except in the case of such judge's absence from the state, the judge's disability or a request in writing to the contrary, be made to such judge.

(P.B. 1978-1997, Sec. 500.)

Sec. 21-16. Duty of Clerks

The clerks shall see that these rules are enforced and shall promptly report any violations thereof to the court.

(P.B. 1978-1997, Sec. 501.)

Sec. 21-17. Removal of Receivers

Receivers may be removed at any time, at the pleasure of the court by which they were appointed or, if such court is not in session, by a judge thereof; and, if any receiver is removed or declines to act or dies, the court that appointed the receiver, or, if such court is not in session, a judge thereof, may fill the vacancy. (See General Statutes § 52-513 and annotations.)

(P.B. 1978-1997, Sec. 502.)

Sec. 21-18. Ancillary Receivers

These rules, so far as applicable, shall govern the appointment and duties of ancillary receivers.

(P.B. 1978-1997, Sec. 503.)

Sec. 21-19. Receiver of Rents; Applicability of Previous Sections

Sections 21-1 through 21-15 shall not apply to receivers of rents.

(P.B. 1978-1997, Sec. 505.)

Sec. 21-20. —Appointment

Every application for the appointment of a receiver of rents shall be made in or ancillary to a civil action and may be made either to the court before which such action is pending or, when the court is not in actual session, to a judge in chambers. The court or judge may examine the plaintiff or the plaintiff's attorney and may thereupon appoint a receiver of rents. Notice of the hearing should be given when practical but such appointment may be made without notice if sufficient cause appears.

(P.B. 1978-1997, Sec. 506.)

Sec. 21-21. —Bond

No such appointment shall become effective until the receiver shall have filed a bond in such amount as shall have been fixed at the time of appointment or until said bond shall have been approved by the judge or clerk of the court in which the action is pending; provided that no bond need be required of a bank or trust company. The condition of bonds of such receivers shall be substantially in the following form:

The condition of this obligation is such that, whereas the above named A has by (*court* or *judge*) been appointed, in an action brought by X against Y, to be receiver of rents of property located in the town of _____ and described as (*describe generally, e.g., No. 93 Maple Street*):

Now, therefore, if said A shall well and truly perform his or her duties under such appointment, then this obligation shall be void, otherwise in full force and effect.

(P.B. 1978-1997, Sec. 507.)

Sec. 21-22. —Discharge

Any party in interest may at any time move for the discharge of the receiver.

(P.B. 1978-1997, Sec. 508.)

Sec. 21-23. —Orders

The court in which the action is pending, or the appointing judge, may make such orders for the governance of the receiver as circumstances require. The judge shall certify any order passed

by the judge in chambers to the court in which the action may be pending.
(P.B. 1978-1997, Sec. 509.)

Sec. 21-24. —Reports

Such receivers shall file written reports quarterly and at such other times as may be required.
(P.B. 1978-1997, Sec. 510.)

Sec. 21-25. Applicability of Rules

Sections 21-1 through 21-24 shall apply to receivers except as otherwise provided by law, including the Uniform Commercial Real Estate Receivership Act pursuant to Chapter 930 of the General Statutes, and Section 21-19.
(Adopted June 9, 2023, to take effect June 20, 2023.)

CHAPTER 22

UNEMPLOYMENT COMPENSATION

Sec.
22-1. Appeal
22-2. Assignment for Hearing
22-3. Finding
22-4. Correction of Finding; Motion To Correct Finding
22-5. —Evidence To Be Filed by Appellee
22-6. —Motion To Correct by Appellee
22-7. —Duty of Board on Motion To Correct
22-8. —Claiming Error on Board's Decision on Motion To Correct
22-9. Function of the Court

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 22-1. Appeal

(a) A decision of the Employment Security Board of Review may be appealed, within the time limited by statute, to the Superior Court for the judicial district of Hartford or for the judicial district wherein the appellant resides. The appeal shall be in the form of a petition which shall state the grounds on which a review is sought. The appellant shall file the original and five copies of the petition in the Office of the Employment Security Board of Review. The chair of the board shall, within the third business day after such filing, cause the original petition or petitions to be mailed to the clerk of the Superior Court and, copy or copies thereof to be mailed to the administrator and to each other party to the proceeding in which the appeal was taken. The clerk shall docket the appeal as returned to the next return day after the receipt of the petition or petitions. No appeal bond shall be required.

(b) At the time the petition is mailed to the clerk, or as soon thereafter as practicable, the chair of the board shall cause to be mailed to the clerk a certified copy of the record, which shall consist of the notice of appeal to the referee and the board, the notices of hearing before them, the referee's findings of fact and decision, the findings and decision of the board, all documents admitted into evidence before the referee and the board or both, and all other evidentiary material accepted by them.

(c) The judicial authority may, on request of a party to the action or on its own motion, order the board to prepare and verify to the court a transcript of the hearing before the referee in cases in which the board's decision was rendered on the record of such hearing, or a transcript of the hearing before the board in cases in which the board's decision was rendered on the record of its own evidentiary hearing.

(P.B. 1978-1997, Sec. 511A.) (Amended June 29, 1998, to take effect Sept. 1, 1998; amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 22-2. Assignment for Hearing

(a) Appeals from decisions of the Employment Security Board of Review are privileged with respect to their assignment for trial, but they shall be claimed for the short calendar. The judicial authority, however, may order the appeal placed on the administrative appeal trial list.

(b) In any appeal in which one of the parties is not represented by counsel and in which the party taking the appeal does not claim the case for the short calendar or trial within a reasonable time after the return day, the judicial authority may of its own motion dismiss the appeal, or the party ready to proceed may move for nonsuit or default as appropriate.

(P.B. 1978-1997, Sec. 511B.)

Sec. 22-3. Finding

The finding of the board should contain only the ultimate, relevant and material facts essential to the case in hand and found by it, together with a statement of its conclusions and the claims of law made by the parties. It should not contain excerpts from evidence or merely evidential facts, nor the opinions or beliefs of the board, nor the reasons for its conclusions. The opinions, beliefs, reasons and argument of the board should be expressed in the memorandum of decision, if any be filed, so far as they may be helpful in the decision of the case.

(P.B. 1978-1997, Sec. 514.)

Sec. 22-4. Correction of Finding; Motion To Correct Finding

If the appellant desires to have the finding of the board corrected, he or she must, within two weeks after the record has been filed in the Superior Court, unless the time is extended for cause by the board, file with the board a motion for the correction of the finding and with it such portions of the evidence as he or she deems relevant and material to the corrections asked for, certified by the stenographer who took it; but if the appellant

claims that substantially all the evidence is relevant and material to the corrections sought, he or she may file all of it, so certified, indicating in the motion so far as possible the portion applicable to each correction sought. The board shall forthwith upon the filing of the motion and of the transcript of the evidence, give notice to the adverse party or parties.

(P.B. 1978-1997, Sec. 515A.)

Sec. 22-5. —Evidence To Be Filed by Appellee

The appellee should, if he or she deems that additional evidence is relevant and material to the motion to correct, within one week after the appellant has filed the transcript of evidence, so notify the board, and, at the earliest time, he or she can procure it file with the board such additional evidence.

(P.B. 1978-1997, Sec. 516.)

Sec. 22-6. —Motion To Correct by Appellee

If the appellee desires to file a motion to correct, the procedure to be followed shall be the same as that set forth in Sections 22-4 and 22-5 above.

(P.B. 1978-1997, Sec. 516A.)

Sec. 22-7. —Duty of Board on Motion To Correct

The board shall file with the court, within a reasonable time, such motions to correct together with its decision thereon. If the motions are denied in whole or in part and such denial is made a ground of appeal to the court, the board shall, within a reasonable time thereafter, file in the court the transcripts of evidence filed by the appellant and the appellee, together with such additional evidence as may have been taken before the board in the form of testimony, or taken by it in other ways, and deemed by it relevant and material to these corrections.

(P.B. 1978-1997, Sec. 518.)

Sec. 22-8. —Claiming Error on Board's Decision on Motion To Correct

(a) Any party to the appeal may file claims of error concerning the board's decision on a motion to correct the finding. Such claims shall be filed with the court within two weeks from the date the board's decision on the motion to correct was mailed to the party making the claim, and shall contain a certification that a copy thereof has been served on the board and on each other party to the appeal in accordance with Sections 10-12 through 10-17.

(b) The appellant shall include his or her claims of error in the appeal petition unless they are filed subsequent to the filing of that petition, in which case they shall be set forth in an amended petition.

(P.B. 1978-1997, Sec. 518A.)

Sec. 22-9. Function of the Court

(a) Such appeals are heard by the court upon the certified copy of the record filed by the board. The court does not retry the facts or hear evidence. It considers no evidence other than that certified to it by the board, and then for the limited purpose of determining whether the finding should be corrected, or whether there was any evidence to support in law the conclusions reached. It cannot review the conclusions of the board when these depend upon the weight of the evidence and the credibility of witnesses. In addition to rendering judgment on the appeal, the court may order the board to remand the case to a referee for any further proceedings deemed necessary by the court. The court may remand the case to the board for proceedings de novo, or for further proceedings on the record, or for such limited purposes as the court may prescribe. The court may retain jurisdiction by ordering a return to the court of the proceedings conducted in accordance with the order of the court, or may order final disposition. A party aggrieved by a final disposition made in compliance with an order of the Superior Court may, by the filing of an appropriate motion, request the court to review the disposition of the case.

(b) Corrections by the court of the board's finding will only be made upon the refusal to find a material fact which was an admitted or undisputed fact, upon the finding of a fact in language of doubtful meaning so that its real significance may not clearly appear, or upon the finding of a material fact without evidence.

(P.B. 1978-1997, Sec. 519.)

CHAPTER 23

MISCELLANEOUS REMEDIES AND PROCEDURES

Sec.
23-1. Arbitration; Confirming, Correcting or Vacating Award
23-2. Expedited Process Cases [Repealed]
23-3. —Placement on the Expedited Process Track [Repealed]
23-4. —Pleadings Allowed in Expedited Process Track Cases [Repealed]
23-5. —Motions Allowed [Repealed]
23-6. —Discovery Allowed [Repealed]
23-7. —Discovery Procedure for Expedited Process Cases [Repealed]
23-8. —Certification That Pleadings Are Closed [Repealed]
23-9. —Case Management Conference for Expedited Process Track Cases [Repealed]
23-10. —Transfer to Regular Docket [Repealed]
23-11. —Offers of Judgment [Repealed]
23-12. —Trial of Cases on Expedited Process Track [Repealed]
23-13. Granting of Complex Litigation Status and Assignment
23-14. —Powers of Judge Assigned in Complex Litigation Cases
23-15. —Request for Complex Litigation Status
23-16. Foreclosure of Mortgages
23-17. —Listing of Law Days
23-18. —Proof of Debt in Foreclosures
23-19. —Motion for Deficiency Judgment
23-20. Review of Civil Contempt
23-21. Habeas Corpus
23-22. —The Petition
23-23. —Return of Noncomplying Petition
23-24. —Preliminary Consideration of Judicial Authority
23-25. —Waiver of Filing Fees and Costs of Service
23-26. —Appointment of Counsel
23-27. —Venue for Habeas Corpus
23-28. —Transfer of Habeas Corpus
23-29. —Dismissal
23-30. —The Return
23-31. —Reply to the Return
23-32. —Amendments
23-33. —Request for a More Specific Statement
23-34. —Summary Procedures for Habeas Corpus Petitions
23-35. —Schedule for Filing Pleadings
23-36. —The Expanded Record
23-37. —Summary Judgment in Habeas Corpus
23-38. —Discovery in Habeas Corpus
23-39. —Depositions in Habeas Corpus
23-40. —Court Appearance in Habeas Corpus
23-41. —Motion for Leave To Withdraw Appearance of Appointed Counsel
23-42. —Judicial Action on Motion for Permission To Withdraw Appearance
23-43. Interpleader; Pleadings
23-44. —Procedure in Interpleader
23-45. Mandamus; Parties Plaintiff; Complaint
23-46. —Mandamus Complaint [Repealed]
23-47. —Mandamus Order in a Pending Action
23-48. —Temporary Order of Mandamus
23-49. —Pleadings in Mandamus
23-50. Writs of Error
23-51. Petition To Open Parking or Citation Assessment
23-52. Fact-Finding; Approval of Fact Finders
23-53. —Referral of Cases to Fact Finders
23-54. —Selection of Fact Finders; Disqualification
23-55. —Hearing in Fact-Finding
23-56. —Finding of Facts
23-57. —Objections to Acceptance of Finding of Facts
23-58. —Action by Judicial Authority
23-59. —Failure To Appear at Hearing
23-60. Arbitration; Approval of Arbitrators
23-61. —Referral of Cases to Arbitrators
23-62. —Selection of Arbitrators; Disqualification
23-63. —Hearing in Arbitration
23-64. —Decision of Arbitrator
23-65. —Failure To Appear at Hearing before Arbitrator
23-66. —Claim for Trial De Novo in Arbitration; Judgment
23-67. Alternative Dispute Resolution
23-68. Where Presence of Person May Be by Means of an Interactive Audiovisual Device

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 23-1. Arbitration; Confirming, Correcting or Vacating Award

In proceedings brought for confirming, vacating or correcting an arbitration award under chapters 862 and 909 of the General Statutes, the court or judge to whom the application is made shall cause to be issued a citation directing the adverse party or parties in the arbitration proceeding to appear on a day certain and show cause, if any there be, why the application should not be granted.

(P.B. 1978-1997, Sec. 525.) (Amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 23-2. Expedited Process Cases

[Repealed as of Jan. 1, 2015.]

Sec. 23-3. —Placement on the Expedite Process Track

[Repealed as of Jan. 1, 2015.]

Sec. 23-4. —Pleadings Allowed in Expedited Process Track Cases

[Repealed as of Jan. 1, 2015.]

Sec. 23-5. —Motions Allowed

[Repealed as of Jan. 1, 2015.]

Sec. 23-6. —Discovery Allowed

[Repealed as of Jan. 1, 2015.]

Sec. 23-7. —Discovery Procedure for Expedited Process Cases

[Repealed as of Jan. 1, 2015.]

Sec. 23-8. —Certification That Pleadings Are Closed

[Repealed as of Jan. 1, 2015.]

Sec. 23-9. —Case Management Conference for Expedited Process Track Cases

[Repealed as of Jan. 1, 2015.]

Sec. 23-10. —Transfer to Regular Docket

[Repealed as of Jan. 1, 2015.]

Sec. 23-11. —Offers of Judgment

[Repealed as of Jan. 1, 2015.]

Sec. 23-12. —Trial of Cases on Expedited Process Track

[Repealed as of Jan. 1, 2015.]

Sec. 23-13. Granting of Complex Litigation Status and Assignment

The chief court administrator or the chief administrative judge of the civil division may designate a group of cases that have many parties and common questions of law or fact as complex litigation cases and assign the cases to a single judge for pretrial, trial, or both and, if appropriate, may assign the cases to another judge or court officer for settlement or mediation discussions.

(P.B. 1998.)

Sec. 23-14. —Powers of Judge Assigned in Complex Litigation Cases

The judge to whom complex litigation cases have been assigned may stay any or all further proceedings in the cases, may transfer any or all further proceedings in the cases to the judicial district where the judge is sitting, may hear all pretrial motions, and may enter any appropriate order which facilitates the management of the complex litigation cases.

(P.B. 1998.)

Sec. 23-15. —Request for Complex Litigation Status

An attorney, judge or self-represented party may request the chief court administrator to make an assignment pursuant to Section 23-13. The request shall be submitted in writing on a form prescribed by the chief court administrator. When an attorney or self-represented party makes such a request, a copy of the request shall be served on other parties pursuant to Sections 10-12 through 10-17. Should the chief court administrator deem it appropriate to do so, the chief court administrator may solicit comments on the request by causing a notice to be published in the Connecticut Law Journal.

(P.B. 1998.) (Amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 23-16. Foreclosure of Mortgages

At the time the plaintiff files a motion for judgment of foreclosure, the plaintiff shall serve on each appearing defendant, in accordance with Sections 10-12 through 10-17, a copy of the appraisal report of the property being foreclosed. The motion for judgment shall contain a certification that such service was made.

(P.B. 1978-1997, Sec. 526.)

Sec. 23-17. —Listing of Law Days

(a) In any action to foreclose a mortgage or lien, any party seeking a judgment of strict foreclosure shall file, with the motion for judgment, a list indicating the order in which law days should be assigned to the parties to the action. The order of the law days so indicated shall reflect the information contained in the plaintiff's complaint, as that information may have been modified by the pleadings. Objections to the order of law days indicated on said list shall only be considered in the context of a motion for determination of priorities, which motion must be filed prior to the entry of judgment.

(b) Unless otherwise ordered by the judicial authority at the time it renders the judgment of strict foreclosure, the following provisions shall be deemed to be part of every such judgment:

(1) That, upon the payment of all of the sums found by the judicial authority to be due the plaintiff, including all costs as allowed by the judicial authority and taxed by the clerk, by any defendant, after all subsequent parties in interest have been foreclosed, the title to the premises shall vest absolutely in the defendant making such payment, subject to such unpaid encumbrances, if any, as precede the interest of the redeeming defendant.

(2) That the defendants, and all persons claiming possession of the premises through any of the defendants under any conveyance or instrument executed or recorded subsequent to the date of the lis pendens or whose interest shall have been thereafter obtained by descent or otherwise, deliver up possession of the premises to the plaintiff or the defendant redeeming in accordance with this decree, with stay of execution of ejectment in favor of the redeeming defendant until one day after the time herein limited to redeem, and if all

parties fail to redeem, then until the day following the last assigned law day.

(P.B. 1978-1997, Sec. 526A.)

Sec. 23-18. —Proof of Debt in Foreclosures

(a) In any action to foreclose a mortgage where no defense as to the amount of the mortgage debt is interposed, such debt may be proved by presenting to the judicial authority the original note and mortgage, together with the affidavit of the plaintiff or other person familiar with the indebtedness, stating what amount, including interest to the date of the hearing, is due, and that there is no setoff or counterclaim thereto.

(b) No less than five days before the hearing on the motion for judgment of foreclosure, the plaintiff shall file with the clerk of the court and serve on each appearing party, in accordance with Sections 10-12 through 10-17, a preliminary statement of the plaintiff's monetary claim.

(P.B. 1978-1997, Sec. 527.)

Sec. 23-19. —Motion for Deficiency Judgment

(a) Whenever a deficiency judgment is claimed in a foreclosure action, the party claiming such judgment shall file with the clerk of the court within the time limited by statute a written motion setting forth the facts relied on as the basis for the judgment, which motion shall be placed on the short calendar for an evidentiary hearing. Such hearing shall be held not less than fifteen days following the filing of the motion, except as the judicial authority may otherwise order. At such hearing the judicial authority shall hear the evidence, establish a valuation for the mortgaged property and shall render judgment for the plaintiff for the difference, if any, between such valuation and the plaintiff's claim. The plaintiff in any further action upon the debt, note or obligation, shall recover only the amount of such judgment.

(b) Upon the motion of any party and for good cause shown, the court may refer such motion to a judge trial referee for hearing and judgment.

(c) Not less than fifteen days prior to the hearing on the motion for deficiency judgment, the party claiming the deficiency judgment shall file with the clerk of the court and serve on each appearing party, in accordance with Sections 10-12 through 10-17, a preliminary computation of the debt, the name of any expert on whose opinion the party will rely to prove the value of the property on the date of vesting, and a statement of the party's claims as to the value. If any party intends to offer evidence contradicting the debt or the valuation of the property, such party shall file an objection five days before the hearing on the motion and shall disclose the name of any person who will testify as to the value of the property.

(P.B. 1978-1997, Sec. 528.)

Sec. 23-20. Review of Civil Contempt

No person shall continue to be detained in a correctional facility pursuant to an order of civil contempt for longer than thirty days, unless at the expiration of such thirty days such person is presented to the judicial authority. On each such presentment, the contemnor shall be given an opportunity to purge himself or herself of the contempt by compliance with the order of the judicial authority. If the contemnor does not so act, the judicial authority may direct that the contemnor remain in custody under the terms of the order of the judicial authority then in effect, or may modify the order if the interests of justice so dictate.

(P.B. 1978-1997, Sec. 528A.)

Sec. 23-21. Habeas Corpus

Except as otherwise provided herein, the procedures set forth in Sections 23-22 through 23-42 shall apply to any petition for a writ of habeas corpus which sets forth a claim of illegal confinement. Such procedures shall not apply to any petition for a writ of habeas corpus brought to determine the custody and visitation of children or brought by or on behalf of a person confined in a hospital for mental illness.

(P.B. 1978-1997, Sec. 529.)

Sec. 23-22. —The Petition

A petition for a writ of habeas corpus shall be under oath and shall state:

(1) the specific facts upon which each specific claim of illegal confinement is based and the relief requested;

(2) any previous petitions for the writ of habeas corpus challenging the same confinement and the dispositions taken thereon; and

(3) whether the legal grounds upon which the petition is based were previously asserted at the criminal trial, on direct appeal or in any previous petition.

(P.B. 1978-1997, Sec. 529A.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 23-23. —Return of Noncomplying Petition

The court may return any petition not in substantial compliance with the requirements of Section 23-22 with a description of how the petition fails to comply with filing requirements and a statement indicating that a corrected petition may be resubmitted.

(P.B. 1978-1997, Sec. 529B.)

Sec. 23-24. —Preliminary Consideration of Judicial Authority

(a) The judicial authority shall promptly review any petition for a writ of habeas corpus to determine whether the writ should issue. The judicial authority shall issue the writ unless it appears that:

(1) the court lacks jurisdiction;

(2) the petition is wholly frivolous on its face; or

(3) the relief sought is not available.

(b) The judicial authority shall notify the petitioner if it declines to issue the writ pursuant to this rule.

(P.B. 1978-1997, Sec. 529C.)

Sec. 23-25. —Waiver of Filing Fees and Costs of Service

The judicial authority may waive the filing fee and costs of service in accordance with Section 8-2.

(P.B. 1978-1997, Sec. 529D.)

Sec. 23-26. —Appointment of Counsel

In petitions arising from criminal matters, extradition proceedings or delinquency matters, if the petitioner has requested counsel, the judicial authority shall refer the matter to the public defender for an investigation of indigence. If, after such investigation, the judicial authority determines that the petitioner is eligible for public defender services, the judicial authority shall appoint counsel in accordance with the provisions of General Statutes § 51-296.

(P.B. 1978-1997, Sec. 529E.)

Sec. 23-27. —Venue for Habeas Corpus

The venue for habeas corpus matters shall be in accordance with the General Statutes. Transfer or removal of the subject of the petition to another location shall not affect venue, provided that the subject of the petition remains in the custody of the respondent.

(P.B. 1978-1997, Sec. 529F.)

Sec. 23-28. —Transfer of Habeas Corpus

The petition may be transferred to another judicial district for good cause shown.

(P.B. 1978-1997, Sec. 529G.)

Sec. 23-29. —Dismissal

The judicial authority may, at any time, upon its own motion or upon motion of the respondent, dismiss the petition, or any count thereof, if it determines that:

(1) the court lacks jurisdiction;

(2) the petition, or a count thereof, fails to state a claim upon which habeas corpus relief can be granted;

(3) the petition presents the same ground as a prior petition previously denied and fails to state new facts or to proffer new evidence not reasonably available at the time of the prior petition;

(4) the claims asserted in the petition are moot or premature;

(5) any other legally sufficient ground for dismissal of the petition exists.

(P.B. 1978-1997, Sec. 529H.)

Sec. 23-30. —The Return

(a) The respondent shall file a return to the petition setting forth the facts claimed to justify the detention and attaching any commitment order upon which custody is based.

(b) The return shall respond to the allegations of the petition and shall allege any facts in support of any claim of procedural default, abuse of the writ, or any other claim that the petitioner is not entitled to relief.

(P.B. 1978-1997, Sec. 529I.)

Sec. 23-31. —Reply to the Return

(a) If the return alleges any defense or claim that the petitioner is not entitled to relief, and such allegations are not put in dispute by the petition, the petitioner shall file a reply.

(b) The reply shall admit or deny any allegations that the petitioner is not entitled to relief.

(c) The reply shall allege any facts and assert any cause and prejudice claimed to permit review of any issue despite any claimed procedural default. The reply shall not restate the claims of the petition.

(P.B. 1978-1997, Sec. 529J.)

Sec. 23-32. —Amendments

The petitioner may amend the petition at any time prior to the filing of the return. Following the return, any pleading may be amended with leave of the judicial authority for good cause shown.

(P.B. 1978-1997, Sec. 529K.)

Sec. 23-33. —Request for a More Specific Statement

Any party may request a more specific statement regarding a preceding pleading to obtain a more complete and particular statement of the facts supporting each legal claim or to obtain any other appropriate correction in the preceding pleading. Such request shall be deemed to have been granted by the judicial authority on the date of the filing and shall be complied with by the party to whom it is directed within thirty days of filing, unless within thirty days of filing the party to whom it is directed objects, setting forth, in concise fashion, the basis for the objection. A request for a more specific statement, and objection, may be ruled upon by the judicial authority without oral

argument, unless the judicial authority determines that oral argument is necessary.

(P.B. 1978-1997, Sec. 529L.)

Sec. 23-34. —Summary Procedures for Habeas Corpus Petitions

The judicial authority may establish such additional procedures as it determines will aid in the fair and summary disposition of habeas corpus petitions, including, but not limited to, scheduling orders.

(P.B. 1978-1997, Sec. 529M.)

Sec. 23-35. —Schedule for Filing Pleadings

Unless the judicial authority issues specific scheduling orders, the following schedule shall apply:

(a) Amended Petition.

(1) Transcript Necessary. If a transcript of prior proceedings is necessary to pursue the petition, within thirty days after notice that the writ has issued, or notice of appointment of counsel, whichever is later, the petitioner shall file a statement describing any transcript(s) ordered. Upon receipt of the transcript(s), the petitioner shall file a notice of transcript receipt. Within sixty days of receipt of the transcript(s), the petitioner shall file an amended petition, or notice that the petition will not be amended.

(2) Transcript not Necessary. If a transcript is not necessary to pursue the petition, within thirty days after notice that the writ has issued, or notice of appointment of counsel, whichever is later, the petitioner shall file an amended petition or a notice that the petition will not be amended.

(b) Return or Responsive Pleading. The return or responsive pleading shall be filed within thirty days of the filing of the amended petition or the notice that the petition will not be amended.

(c) Reply. Any reply to the return shall be filed within thirty days after the filing of the return.

(d) The judicial authority may alter the time for filing any pleading.

(P.B. 1978-1997, Sec. 529N.)

Sec. 23-36. —The Expanded Record

A party may, consistent with the rules of evidence, offer as an exhibit, or the habeas court may take judicial notice of, the transcript and any portion of the Superior Court, Appellate Court or Supreme Court record or clerk's file from the petitioner's criminal matter which is the subject of the habeas proceeding.

(P.B. 1978-1997, Sec. 529O.) (Amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 23-37. —Summary Judgment in Habeas Corpus

At any time after the pleadings are closed, any party may move for summary judgment, which shall be rendered if the pleadings, affidavits and any other evidence submitted show that there is no genuine issue of material fact between the parties requiring a trial and the moving party is entitled to judgment as a matter of law.

(P.B. 1978-1997, Sec. 529P.)

Sec. 23-38. —Discovery in Habeas Corpus

(a) Discovery, as of right, is limited to:

(1) A list of witnesses;

(2) A statement of the subject matter upon which any expert witness is expected to testify;

(3) A statement of the opinions the expert is expected to render and the ground for each opinion.

(b) The parties may cooperatively engage in informal discovery. The provisions of Chapter 13, Discovery and Depositions of the rules of practice, do not apply to habeas corpus proceedings.

(c) Upon motion, the judicial authority may order such other limited discovery as the judicial authority determines will enhance the fair and summary disposal of the case.

(P.B. 1978-1997, Sec. 529Q.)

Sec. 23-39. —Depositions in Habeas Corpus

(a) Upon leave of the judicial authority, the testimony of any person may be taken by deposition if the testimony will be required at an evidentiary hearing and it appears:

(1) the testimony may not be available at the required evidentiary hearing because of physical or mental illness or infirmity of the witness; or

(2) the witness resides out of this state and cannot be compelled to attend and give testimony; or

(3) the witness may otherwise be unavailable to testify at the required evidentiary hearing.

(b) The admissibility of deposition testimony shall be governed by the rules of evidence.

(P.B. 1978-1997, Sec. 529R.)

Sec. 23-40. —Court Appearance in Habeas Corpus

(a) The petitioner and, if they are not the same, the subject of the petition, shall have the right to be present at any evidentiary hearing and at any hearing or oral argument on a question of law which may be dispositive of the case, unless the petitioner, or the subject of the petition, as the case may be, waives such right or is excused by the judicial authority for good cause shown. If the petitioner is represented by counsel, the judicial authority may, but is not required to, permit the petitioner to be present at any other proceeding.

(b) Notwithstanding any other provision of these rules, in a petition arising from a claim regarding

conditions of confinement the physical appearance in court of the petitioner or the subject of the petition may, in the discretion of the judicial authority, be made by means of an interactive audiovisual device. Such audiovisual device must operate so that the petitioner, or the subject of the petition, his or her attorney, if any, and the judicial authority can see and communicate with each other simultaneously. In addition, a procedure by which the petitioner and his or her attorney can confer in private must be provided.

(P.B. 1978-1997, Sec. 529S.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 23-41. —Motion for Leave To Withdraw Appearance of Appointed Counsel

(a) When counsel has been appointed pursuant to Section 23-26, and counsel, after conscientious investigation and examination of the case, concludes that the case is wholly frivolous, counsel shall so advise the judicial authority by filing a motion for leave to withdraw from the case.

(b) At the time such motion is filed, counsel for the petitioner shall also file all relevant portions of the record of the criminal case, direct appeal and any postconviction proceedings not already filed together with a memorandum of law outlining:

(1) the claims raised by the petitioner and any other potential claims apparent in the case;

(2) the efforts undertaken to investigate the factual basis and legal merit of each claim;

(3) the factual and legal basis for the conclusion that the case is wholly frivolous.

(c) Any motion for leave to withdraw and supporting memorandum of law shall be filed under seal and provided to the petitioner. Counsel shall serve opposing counsel with notice that a motion for leave to withdraw has been filed but shall not serve opposing counsel with a copy of the motion or any supporting memorandum of law. The petitioner shall have thirty days from the date the motion and supporting memorandum are filed to file a response with the court.

(P.B. 1978-1997, Sec. 529T.) (Amended June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 23-42. —Judicial Action on Motion for Permission To Withdraw Appearance

(a) The presiding judge shall fully examine the memoranda of law filed by counsel and the petitioner, together with any relevant portions of the records of prior trial court, appellate and postconviction proceedings. If, after such examination, the presiding judge concludes that the submissions establish that the petitioner's case is wholly frivolous, such judge shall grant counsel's motion to withdraw and permit the petitioner to proceed as a self-represented party. A memorandum shall be filed under seal setting forth the basis for granting any motion under Section 23-41.

(b) If, after the examination required in subsection (a), the presiding judge does not conclude that the petitioner's case is wholly frivolous, such judge may deny the motion to withdraw, may appoint substitute counsel for further proceedings under Section 23-41, or may allow the withdrawal on other grounds and appoint new counsel to represent the petitioner.

(P.B. 1978-1997, Sec. 529U.) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 23-43. Interpleader; Pleadings

The complaint in an interpleader action shall allege only such facts as show that there are adverse claims to the fund or property.

(P.B. 1978-1997, Sec. 538.)

Sec. 23-44. —Procedure in Interpleader

No trial on the merits of an interpleader action shall be had until (1) an interlocutory judgment of interpleader shall have been entered; and (2) all defendants shall have filed statements of claim, been defaulted or filed waivers. Issues shall be closed on the claims as in other cases.

(P.B. 1978-1997, Sec. 539.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 23-45. Mandamus; Parties Plaintiff; Complaint

(Amended June 24, 2016, to take effect Jan. 1, 2017.)

(a) An action of mandamus may be brought in an individual right by any person who claims entitlement to that remedy to enforce a private duty owed to that person, or by any state's attorney to enforce a public duty.

(b) The plaintiff shall commence the action by serving and filing a writ and complaint that conforms to the requirements of Section 8-1 of these rules. The prayer for relief shall include asking that an order in the nature of a mandamus be granted. No affidavit to the truth of the allegation of the complaint is required.

(P.B. 1978-1997, Sec. 541.) (Amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 23-46. —Mandamus Complaint

[Repealed as of Jan. 1, 2017.]

Sec. 23-47. —Mandamus Order in a Pending Action

(Amended June 24, 2016, to take effect Jan. 1, 2017.)

Any party may move for an order in the nature of a mandamus in a pending action. Any person claimed to be charged with the duty of performing the act in question may be summoned before the

court by the service upon that person of a rule to show cause.

(P.B. 1978-1997, Sec. 543.) (Amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 23-48. —Temporary Order of Mandamus

The plaintiff may attach to the complaint or subsequently file a motion under oath for a temporary order of mandamus to be effective until the final disposition of the cause. Such a motion shall be addressed to the court to which the action is returnable. The judicial authority may, if it appears upon hearing that the plaintiff will otherwise suffer irreparable injury, forthwith issue such an order or it may issue a rule to show cause why it should not be issued; but no such temporary order shall issue in any case, except where the state's attorney is the plaintiff, until the plaintiff has given to the opposing party a bond with surety, approved by the judicial authority, that the plaintiff will answer all damages should the plaintiff fail to prosecute the action to effect, unless the judicial authority shall find that the giving of such bond is unnecessary. Any party may at any time make a motion to the court that any such temporary order be dissolved.

(P.B. 1978-1997, Sec. 544.)

Sec. 23-49. —Pleadings in Mandamus

The defendant may file any proper motion directed to the allegations of the complaint, or, desiring to attack their legal sufficiency in law, a motion to strike, or a return in the form of an answer, and further pleadings shall continue as in civil actions until issues are joined, provided that, where an application for an order is made in a pending action, the extent to which and the time in which the respondent may plead shall be as directed by the judicial authority.

(P.B. 1978-1997, Sec. 545.)

Sec. 23-50. Writs of Error

In every writ of error there must be a special assignment of errors, in which the precise matters of error in the proceedings in the Superior Court relied upon as grounds of relief must be set forth. No others will be heard or considered by the judicial authority.

(P.B. 1978-1997, Sec. 546.)

Sec. 23-51. Petition To Open Parking or Citation Assessment

(a) Any aggrieved person who wishes to appeal a parking or citation assessment issued by a town, city, borough or other municipality shall file with the clerk of the court within the time limited by statute a petition to open assessment with a copy of the notice of assessment annexed thereto. A copy of the petition with the notice of assessment annexed shall be sent by the petitioner by certified mail to the town, city, borough or municipality involved.

(b) Upon receipt of the petition, the clerk of the court, after consultation with the presiding judge, shall set a hearing date on the petition and shall notify the parties thereof. There shall be no pleadings subsequent to the petition.

(c) The hearing on the petition shall be de novo. There shall be no right to a hearing before a jury.

(P.B. 1978-1997, Sec. 546A.)

Sec. 23-52. Fact-Finding; Approval of Fact Finders

(a) Upon publication of notice requesting applications, any Commissioner of the Superior Court admitted to practice in this state for at least five years may submit his or her name to the Office of the Chief Court Administrator for approval to be placed on a list of fact finders for one or more judicial districts.

(b) The chief court administrator shall have the power to designate fact finders for such term as the chief court administrator may fix and, in his or her discretion, to revoke such designation at any time.

(c) Applicants and fact finders must satisfactorily complete such training programs as may be required by the chief court administrator.

(P.B. 1978-1997, Sec. 546C.)

Sec. 23-53. —Referral of Cases to Fact Finders

The court, on its own motion, may refer to a fact finder any contract action pending in the Superior Court, except claims under insurance contracts for uninsured and or underinsured motorist coverage, in which money damages only are claimed, which is based upon an express or implied promise to pay a definite sum, and in which the amount, legal interest or property in controversy is less than $50,000, exclusive of interest and costs. Such cases may be referred to a fact finder only after the pleadings have been closed, a certificate of closed pleadings has been filed, and the time prescribed for filing a jury trial claim has expired.

(P.B. 1978-1997, Sec. 546D.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 23-54. —Selection of Fact Finders; Disqualification

(a) The fact finder shall be selected by the presiding civil judge for the court location where the case is pending.

(b) A fact finder may disqualify himself or herself upon his or her own application or upon application of a party. Should a party object to a fact finder's refusal to disqualify himself or herself for cause, such party may file an application for disqualification with the presiding civil judge in the court location where the case is pending.

(c) Should a fact finder disqualify himself or herself, the fact finder shall inform in writing the presiding civil judge in the court location where the case is pending.

(P.B. 1978-1997, Sec. 546E.)

Sec. 23-55. —Hearing in Fact-Finding

In matters submitted to fact-finding, a record shall be made of the proceedings and the Connecticut Code of Evidence shall apply.

(P.B. 1978-1997, Sec. 546F.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 23-56. —Finding of Facts

(a) The findings of facts shall be in writing, and in accordance with Section 19-8. The fact finder shall include in the finding of facts the number of days on which hearings concerning that case were held. It shall be signed by the fact finder and should include an award of damages, if applicable.

(b) The fact finder may accompany the finding of facts with a memorandum of decision including such matters as the fact finder may deem helpful in the decision of the case.

(c) Within 120 days of the completion of the fact finder's hearing the fact finder shall file the finding of facts with the clerk of the court with sufficient copies for all counsel.

(P.B. 1978-1997, Sec. 546G.)

Sec. 23-57. —Objections to Acceptance of Finding of Facts

(a) A party may file objections to the acceptance of a finding of facts on the ground that conclusions of fact stated in it were not properly reached on the basis of the subordinate facts found, or that the fact finder erred in rulings on evidence or in other rulings, or that there are other reasons why the finding of facts should not be accepted.

(b) Objections must be filed within fourteen days after the filing of the finding of facts.

(P.B. 1978-1997, Sec. 546H.)

Sec. 23-58. —Action by Judicial Authority

(a) After review of the finding of facts and hearing on any objections thereto, the judicial authority may take the following action: (1) render judgment in accordance with the finding of facts; (2) reject the finding of facts and remand the case to the fact finder who originally heard the matter for a rehearing on all or part of the finding of facts; (3) reject the finding of facts and remand the matter to another fact finder for rehearing; (4) reject the finding of facts and revoke the reference; (5) remand the case to the fact finder who originally heard the matter for a finding on an issue raised in an objection which was not addressed in the original finding of facts; or (6) take any other action the judicial authority may deem appropriate.

(b) The judicial authority may correct a finding of facts at any time before accepting it, upon the written stipulation of the parties.

(c) The fact finder shall not be called as a witness, nor shall the decision of the fact finder be admitted into evidence at another proceeding ordered by a judicial authority.

(P.B. 1978-1997, Sec. 546J.)

Sec. 23-59. —Failure To Appear at Hearing

(a) Where a party fails to appear at the hearing, the fact finder shall nonetheless proceed with the hearing and shall make a finding of facts, as may be just and proper under the facts and circumstances of the action, which shall be filed with the clerk of the court pursuant to Section 23-56 for consideration by the judicial authority pursuant to Section 23-58. If, pursuant to Section 23-57, the party who failed to appear files an objection to the acceptance of the finding of facts and the objection is sustained by the judicial authority, the judicial authority may require that party to pay to the court an amount not greater than the total fees then payable to the fact finder for services in the case.

(b) If all parties fail to appear at the hearing, the fact finder shall file a request with the court to dismiss the action. If the judicial authority does not dismiss the action it may be heard by the fact finder upon further order of the judicial authority. Such order may provide for the payment by any party to the court of an amount not greater than $100.

(P.B. 1978-1997, Sec. 546K.)

Sec. 23-60. Arbitration; Approval of Arbitrators

(a) Upon publication of notice requesting applications, any Commissioner of the Superior Court admitted to practice in this state for at least five years, and who possesses civil litigation experience may submit his or her name to the Office of the Chief Court Administrator for approval to be placed on a list of arbitrators for one or more judicial districts.

(b) The chief court administrator shall have the power to designate arbitrators for such term as the chief court administrator may fix and, in his or her discretion, to revoke such designation at any time.

(c) Applicants and arbitrators must satisfactorily complete such training programs as may be required by the chief court administrator.

(P.B. 1978-1997, Sec. 546M.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 23-61. —Referral of Cases to Arbitrators

The court, on its own motion, may refer to an arbitrator any civil action in which, in the discretion of the court, the reasonable expectation of a judgment is less than $50,000, exclusive of interest and costs and in which a claim for a trial by jury and a certificate of closed pleadings have been filed. An award under this section shall not exceed $50,000, exclusive of legal interest and costs. Any party may petition the court to participate in the arbitration process hereunder.

(P.B. 1978-1997, Sec. 546N.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 23-62. —Selection of Arbitrators; Disqualification

(a) The arbitrator shall be selected by the presiding civil judge for the court location in which the case is pending.

(b) An arbitrator may disqualify himself or herself upon his or her own application or upon application of a party. Should a party object to an arbitrator's refusal to disqualify himself or herself for cause, such party may file an application for disqualification with the presiding civil judge in the court location where the case is pending.

(c) Should an arbitrator disqualify himself or herself, the arbitrator shall inform in writing the presiding civil judge in the court location where the case is pending.

(P.B. 1978-1997, Sec. 546O.)

Sec. 23-63. —Hearing in Arbitration

In matters submitted to arbitration, no record shall be made of the proceedings and the strict adherence to the Connecticut Code of Evidence shall not be required.

(P.B. 1978-1997, Sec. 546P.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 23-64. —Decision of Arbitrator

(a) The arbitrator shall state in writing the decision on the issues in the case and the factual basis of the decision. The arbitrator shall include in the decision the number of days on which hearings concerning that case were held.

(b) Within 120 days of the completion of the arbitration hearing the arbitrator shall file the decision with the clerk of the court together with sufficient copies for all counsel.

(P.B. 1978-1997, Sec. 546Q.)

Sec. 23-65. —Failure To Appear at Hearing before Arbitrator

(a) Where a party fails to appear at the hearing, the arbitrator shall nonetheless proceed with the hearing and shall render a decision, which shall be rendered as a judgment by the court. Such judgment may not be opened or set aside unless a motion to open or set aside is filed within four months succeeding the date on which notice was sent. If the judicial authority opens or sets aside the judgment, it may resubmit the action to the arbitrator. Any order opening or setting aside the judgment may be upon condition that the moving party pay to the court an amount not greater than the total fees then payable to the arbitrator for services in the case.

(b) If all parties fail to appear at the hearing, the arbitrator shall file a request with the court to dismiss the action. If the judicial authority does not dismiss the action, it may be heard by the arbitrator upon further order of the judicial authority. Such order may provide for the payment by any party to the court of an amount not greater than $100.

(P.B. 1978-1997, Sec. 546R.) (Amended June 29, 1998, to take effect Jan. 1, 1999.)

Sec. 23-66. —Claim for Trial De Novo in Arbitration; Judgment

(a) A decision of the arbitrator shall become a judgment of the court if no claim for a trial de novo is filed in accordance with subsection (c).

(b) A decision of the arbitrator shall become null and void if a claim for a trial de novo is filed in accordance with subsection (c).

(c) A claim for a trial de novo must be filed with the court clerk within twenty days after the deposit of the arbitrator's decision in the United States mail, as evidenced by the postmark. Thirty days after the filing of a timely claim for a trial de novo the court may, in its discretion, schedule the matter for a trial within thirty days thereafter. Only a party who appeared at the arbitration hearing may file a claim for a trial de novo. The decision of the arbitrator shall not be admissible in any proceeding resulting after a claim for a trial de novo pursuant to this section or from a setting aside of an award pursuant to General Statutes § 52-549aa.

(d) The judicial authority may refer any proceeding resulting from the filing of a demand for a trial de novo under subsection (c) of this section to a judge trial referee without the consent of the parties, and said judge trial referee shall have and exercise the powers of the Superior Court in respect to trial, judgment and appeal in the case, including a judgment of $50,000 or more.

(P.B. 1978-1997, Sec. 546S.) (Amended June 29, 1998, to take effect Jan. 1, 1999; subsection (c) was amended June 29, 1998, on an interim basis, pursuant to the provisions of Section 1-9 (c), to take effect Jan. 1, 1999; amended June 28, 1999, to take effect Jan. 1, 2000; amended June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 23-67. Alternative Dispute Resolution

The judicial authority may, upon stipulation of the parties, refer a civil action to a program of alternative dispute resolution agreed to by the parties. The judicial authority shall set a time limit on the duration of the referral, which shall not exceed ninety days. The referral of an action to such a program will stay the time periods within which all further pleadings, motions, requests, discovery and other procedures must be filed or undertaken until such time as the alternative dispute resolution process is completed or the time period set by the judicial authority has elapsed, whichever occurs sooner. Such referred action shall be exempt from the docket management program during the time of the referral.

(P.B. 1978-1997, Sec. 546T.) (Amended June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 23-68. Where Presence of Person May Be by Means of an Interactive Audiovisual Device

(a) Upon motion of any party, and at the discretion of the judicial authority, any party, counsel, witness, or other participant in any proceeding may appear by means of an interactive audiovisual device at any proceeding scheduled to be heard in person in any civil matter, including all proceedings within the jurisdiction of the small claims section, or any family matter, including all proceedings within the jurisdiction of the family support magistrate division.

(b) At the discretion of the judicial authority, any party, counsel, witness or other participant in a proceeding may be required to appear by means of an interactive audiovisual device in any civil matter, including all proceedings within the jurisdiction of the small claims section, or any family matter, including all proceedings within the jurisdiction of the family support magistrate.

(c) For purposes of this section, an interactive audiovisual device must operate so that the judicial authority; any party and his or her counsel, if any; and any person appearing by means of an interactive audiovisual device pursuant to a court order under this section can see and communicate with each other simultaneously. In addition, a procedure by which an incarcerated individual and his or her counsel can confer in private must be provided.

(d) Unless otherwise required by law or unless otherwise ordered by the judicial authority, prior to any proceeding in which a person appears by means of an interactive audiovisual device, copies of all documents which may be offered at the proceeding shall be provided to all counsel and self-represented parties in advance of the proceeding.

(e) An officer, as identified in General Statutes § 1-24, may administer an oath by means of an interactive audiovisual device to any party, witness or other participant in a proceeding who appears pursuant to this section, provided such officer can see, hear and clearly identify the participant to whom the oath is to be administered via the audiovisual device.

(f) Nothing contained in this section shall be construed to limit the discretion of the judicial authority to deny a request to appear by means of an interactive audiovisual device where, in the judicial authority's judgment, the interest of justice or the presentation of the case require that the party, counsel, witness, or other participant in the proceeding appear in person.

(g) Nothing contained in this section shall be construed to preclude the Judicial Branch, at the discretion of the chief court administrator, from handling any matter remotely.

(h) For purposes of this section, judicial authority includes family support magistrates and magistrates appointed by the chief court administrator pursuant to General Statutes § 51-193*l*.

(Adopted Dec. 19, 2006, to take effect March 12, 2007; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 26, 2020, on an interim basis pursuant to Section 1-9 (c), to take effect July 14, 2020, and amendment adopted June 11, 2021, to take effect Jan. 1, 2022.)

CHAPTER 24
SMALL CLAIMS

Sec.
24-1. In General
24-2. Allowable Actions
24-3. Institution of Actions; Electronic Filing
24-4. Where Claims Shall Be Filed
24-5. Venue
24-6. Definition of "Plaintiff" and "Representative"
24-7. What Constitutes File
24-8. Institution of Small Claims Actions; Beginning of Action
24-9. —Preparation of Writ
24-10. —Service of Small Claims Writ and Notice of Suit
24-11. —Further Service of Claim [Repealed]
24-12. —Answer Date
24-13. —Alternative Method of Commencing Action [Repealed]
24-14. —Notice of Time and Place of Hearing
24-15. —Scheduling of Hearings; Continuance
24-16. Answers; Requests for Time To Pay
24-17. —Prohibition of Certain Filings
24-18. —Plaintiff To Inquire as to Answer Filed [Repealed]
24-19. —Claim of Setoff or Counterclaim
24-20. —Amendment of Claim or Answer, Setoff or Counterclaim; Motion To Dismiss
24-20A. —Request for Documents; Depositions
24-21. Transfer to Regular Docket
24-22. Hearings in Small Claims Actions; Subpoenas
24-23. —Procedure
24-24. Judgments in Small Claims; When Presence of the Plaintiff or Representative Is Not Required for Entry of Judgment
24-25. —Failure of the Defendant To Answer
24-26. —Failure of a Party To Appear before the Court when Required
24-27. —Dismissal for Failure To Obtain Judgment
24-28. —Finality of Judgments and Decisions
24-29. —Decision in Small Claims; Time Limit
24-30. —Satisfying Judgment
24-31. —Opening Judgment; Costs
24-32. Execution in Small Claims Actions
24-33. Costs in Small Claims

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 24-1. In General

(a) The general purpose of these rules is to secure the prompt and inexpensive hearing and determination of small claims by simplified procedure designed to allow the public maximum access to and use of the court in connection with such claims. Any comments as to the operation of the small claims court should be directed to the Office of the Chief Court Administrator.

(b) All proceedings shall be simple and informal. The services of an attorney at law are permissible but not obligatory. Notice to the representative for a party shall be equivalent to notice to such party.

(P.B. 1978-1997, Sec. 547.) (Amended June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 24-2. Allowable Actions

(Amended June 26, 2000, to take effect Jan. 1, 2001.)

These rules shall apply to actions claiming money damages only, including actions against a nonresident defendant if he or she owns real or personal property in this state and actions against in-state and out-of-state corporations. Actions of libel and slander are not permitted under these rules. In no case shall the damages claimed exceed the jurisdictional monetary limit fixed by statute, including attorney's fees and other costs of collection, but exclusive of interest and costs.

(P.B. 1978-1997, Sec. 548.) (Amended June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 24-3. Institution of Actions; Electronic Filing

(Amended June 21, 2010, to take effect Jan. 1, 2011.)

Actions may be instituted at the option of the claimant by the procedure herein provided for, or by writ and complaint returnable to the regular civil docket of the Superior Court. Actions may also be instituted and papers filed, signed or verified by electronic means in the manner prescribed in Section 4-4.

(P.B. 1978-1997, Sec. 549.) (Amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-4. Where Claims Shall Be Filed

Claims shall be filed in the clerk's office serving the small claims area designated by the chief court administrator where venue exists, as set forth in General Statutes §§ 51-345, 51-346 and 51-347, except that claims concerning housing matters, as defined by General Statutes § 47a-68, which are filed in a judicial district in which a housing session has been established, shall be filed with the clerk of the housing session for that judicial district. Claims may be filed electronically pursuant to Section 24-3. The plaintiff shall include in the statement of the claim a statement of facts that provides the basis for venue in accordance with General Statutes § 51-345 (d) and (g) and such other statutes as are applicable.

(P.B. 1978-1997, Sec. 550.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-5. Venue

The venue for small claims shall be in accordance with the General Statutes.

(P.B. 1978-1997, Sec. 551.)

Sec. 24-6. Definition of "Plaintiff" and "Representative"

(Amended June 21, 2010, to take effect Jan. 1, 2011.)

(a) Except as hereinafter limited, the word "representative" as used in this chapter shall mean: an attorney at law; one of a number of partners; one of a number of joint plaintiffs acting for all; an officer, manager or local manager of a corporation; an employee of an unincorporated business which is not a partnership; the Commissioner of Administrative Services or his or her authorized representative while acting in an official capacity; the chief court administrator or his or her authorized representative while acting in an official capacity. The word "representative" shall not mean a consumer collection agency as defined in chapter 669 of the General Statutes or an individual acting pursuant to a power of attorney.

(b) The word "plaintiff" as used in this chapter shall include "representative" as defined in subsection (a), except where otherwise indicated.

(c) It is prohibited for one who is not an attorney at law to receive a fee for the representation of any party.

(P.B. 1978-1997, Sec. 552.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-7. What Constitutes File

(Amended June 26, 2000, to take effect Jan. 1, 2001.)

The file shall consist of the small claims writ and notice of suit, documents relating to the service of the writ, allowable pleadings and motions, and documents relating to postjudgment proceedings. All continuances granted pursuant to Section 24-15 shall be documented.

(P.B. 1978-1997, Sec. 553.) (Amended June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 24-8. Institution of Small Claims Actions; Beginning of Action

The signature by the plaintiff, or representative, on the small claims writ and notice of suit, and the filing of the writ with the clerk, together with the payment of all required fees, shall be deemed the beginning of the action. Any plaintiff or representative who wishes to obtain a judgment pursuant to the provisions of Section 24-24 shall also file the affidavits required by that section.

(P.B. 1978-1997, Sec. 556.) (Amended June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 24-9. —Preparation of Writ

The small claims writ and notice of suit shall be on a form prescribed by the Office of the Chief Court Administrator. The plaintiff, or representative, shall state the nature and amount of the claim on the writ in concise, untechnical form and, if the claim seeks collection of a consumer debt, shall state the basis upon which the plaintiff claims that the statute of limitations has not expired. The writ is to be signed by either the plaintiff, or representative, under oath. The oath shall provide that the signer has read the claim, and that to the best of the signer's knowledge, information and belief there is good ground to support it. If the claim is more than a convenient length for entry on the writ in full, the plaintiff, or representative, shall attach additional pages as needed. The plaintiff, or representative, shall also state on the writ the plaintiff's and the defendant's place of residence or other address. At the time of filing any writ, the plaintiff, or attorney shall verify the defendant's address. Such verification shall include confirmation by at least one of the following methods made during the six months prior to the filing of the writ: (1) municipal record verification (e.g., from a street list or tax records); (2) verification from the Department of Motor Vehicles; (3) receipt of correspondence from the defendant with that return address; (4) other verification, specifically described by the plaintiff, from the defendant that the address is current; (5) the mailing by first class mail, at least four weeks prior to the filing of the small claims action, of a letter to the defendant at such address, which letter has not been returned by the United States Postal Service. The plaintiff shall state under oath in the writ which method of verification was employed within the last six months, the date of verification, and that the method confirmed the accuracy of the address submitted. No default judgment shall enter in the absence of such verification or if it is apparent that the defendant did not reside at the address at the time of service.

(P.B. 1978-1997, Sec. 557.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-10. —Service of Small Claims Writ and Notice of Suit

(Amended June 26, 2000, to take effect Jan. 1, 2001.)

(a) The plaintiff, or representative, shall cause service of the writ and notice of suit separately on each defendant by priority mail with delivery confirmation, by certified mail with return receipt requested or with electronic delivery confirmation, by a nationally recognized courier service providing delivery confirmation, or by a proper officer in the manner in which a writ of summons is served in a civil action. The plaintiff, or representative, shall include any information required by the Office of the Chief Court Administrator. A statement of how service has been made, together with the delivery

confirmation or return receipt or electronic delivery confirmation and the original writ and notice of suit shall be filed with the clerk. The writ and notice of suit and the statement of service shall be returned to the court not later than one month after the date of service.

(b) For each defendant which is an out-of-state business entity, the plaintiff shall cause service of the writ and notice of suit and answer form to be made in accordance with the General Statutes. The officer lawfully empowered to make service shall make return of service to the court. The clerk shall document the return of service.

(c) Upon receipt of the writ and accompanying documents, the clerk shall set an answer date and send notice to all plaintiffs or their representatives of the docket number and answer date. The clerk will send an answer form that includes the docket number and answer date to each defendant at the address provided by the plaintiff.

(P.B. 1978-1997, Sec. 559.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 24-11. —Further Service of Claim

[Repealed as of Jan. 1, 2011.]

Sec. 24-12. —Answer Date

The answer date shall not be less than fifteen nor more than forty-five days after the writ and accompanying documents are filed in the court.

(P.B. 1978-1997, Sec. 562.) (Amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-13. —Alternative Method of Commencing Action

[Repealed as of Jan. 1, 2011.]

Sec. 24-14. —Notice of Time and Place of Hearing

Whenever a hearing is scheduled, the clerk shall send to each party or representative a notice of the time and place set for hearing. This shall include the street address of the court, a telephone number for inquiries, and the room number or other information sufficient to describe the place where the hearing will be held.

(P.B. 1978-1997, Sec. 564.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-15. —Scheduling of Hearings; Continuances

(a) A hearing shall be scheduled not less than six and not more than forty-five days after the answer date.

(b) Continuances

(1) In any case where the plaintiff claims prejudice because of an unexpected defense or counterclaim or where either party shows good cause therefor, the judicial authority may postpone the hearing of any claim upon such terms as the judicial authority may order.

(2) A new hearing shall be scheduled within ninety days of the date set for the hearing which was postponed.

(3) Requests for continuances shall be made in writing to the clerk and shall state the reasons therefor. The party requesting the continuance shall first attempt to notify the other party of the request and shall include in the request when such notice was given and whether the other party agreed to the request. Requests for a continuance made prior to the scheduled hearing date shall be decided by the clerk. Requests for a continuance made on the scheduled date shall be decided by the judicial authority. All requests shall be acted on as soon as possible. Oral requests for continuance shall be permitted by the clerk only in extraordinary circumstances.

(4) The clerk shall notify all parties of the decision on any request for continuance and of the new hearing date.

(P.B. 1978-1997, Sec. 565.) (Amended June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 24-16. Answers; Requests for Time To Pay

(Amended June 26, 2000, to take effect Jan. 1, 2001.)

(a) A defendant, unless the judicial authority shall otherwise order, shall be defaulted and judgment shall enter in accordance with the provisions of Section 24-24, unless such defendant shall, personally or by representative, not later than the answer date, file an answer or file a motion to transfer pursuant to Section 24-21. The answer should state fully and specifically, but in concise and untechnical form, such parts of the claim as are contested, and the grounds thereof, provided that an answer of general denial shall be sufficient for purposes of this section. Each defendant shall send a copy of the answer to each plaintiff and shall certify on the answer form that the defendant has done so, including the address(es) to which a copy has been mailed. Upon the filing of an answer, the clerk shall set the matter down for hearing by the judicial authority.

(b) A defendant who admits the claim but desires time in which to pay may state that fact in the answer, with reasons to support this request, on or before the time set for answering, and may suggest a method of payment which he or she can afford. The request for a proposed method of payment shall be considered by the judicial authority in determining whether there shall be a stay of execution to permit deferred payment or an order of payment. The judicial

authority in its discretion may require that a hearing be held concerning such request.

(P.B. 1978-1997, Sec. 567.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-17. —Prohibition of Certain Filings

(Amended June 21, 2010, to take effect Jan. 1, 2011.)

No filings other than those provided for in this chapter shall be permitted without permission of the judicial authority.

(P.B. 1978-1997, Sec. 568.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-18. —Plaintiff To Inquire as to Answer Filed

[Repealed as of Jan. 1, 2001.]

Sec. 24-19. —Claim of Setoff or Counterclaim

The defendant, or representative may claim any setoff or counterclaim within the jurisdiction of the small claims court. Such written setoff or counterclaim may be filed at any time on or before the answer date or upon the granting of a motion to open. Upon the making of such claim by the defendant, the clerk shall give notice to the plaintiff by first class mail, of the setoff or counterclaim and shall notify the parties of the new answer date. The defendant's claim shall be answered within the time and in the manner provided by Section 24-16. The original claim, and the claim of setoff or counterclaim, shall be deemed one case.

(P.B. 1978-1997, Sec. 570.) (Amended June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 24-20. —Amendment of Claim or Answer, Setoff or Counterclaim; Motion To Dismiss

(Amended June 26, 2000, to take effect Jan. 1, 2001.)

The judicial authority may at any time allow any claim or answer, setoff or counterclaim to be amended. A party may challenge jurisdiction by way of a motion to dismiss.

(P.B. 1978-1997, Sec. 571.) (Amended June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 24-20A. —Request for Documents; Depositions

A party may request from the opposing party documents, or copies thereof, that are necessary or desirable for the full presentation of the case. The party requesting such documents, or copies thereof, shall make the request directly to the opposing party or the party's representative. When a party refuses to honor such request, the requesting party may bring the request to the judicial authority's attention, either orally or in writing, for a decision. No deposition shall be taken except by order of the judicial authority.

(Adopted June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-21. Transfer to Regular Docket

(a) A case duly entered on the small claims docket of a small claims area or housing session court location shall be transferred to the regular docket of the Superior Court or to the regular housing docket, respectively, if the following conditions are met:

(1) The defendant, or the plaintiff if the defendant has filed a counterclaim, shall file a motion to transfer the case to the regular docket. This motion must be filed on or before the answer date with certification of service pursuant to Section 10-12 et seq. If a motion to open claiming lack of actual notice is granted, the motion to transfer with accompanying documents and fees must be filed within fifteen days after the notice granting the motion to open was sent.

(2) The motion to transfer must be accompanied by (A) a counterclaim in an amount greater than the jurisdiction of the small claims court; or (B) an affidavit stating that a good defense exists to the claim and setting forth with specificity the nature of the defense, or stating that the case has been properly claimed for trial by jury.

(3) The moving party shall pay all necessary statutory fees at the time the motion to transfer is filed, including any jury fees if a claim for trial by jury is filed.

(b) When a defendant or plaintiff on a counterclaim has satisfied one of the conditions of subsection (a) (2) herein, the motion to transfer to the regular docket shall be granted by the judicial authority, without the need for a hearing.

(c) A case which has been properly transferred shall be transferred to the docket of the judicial district which corresponds to the venue of the small claims matter, except that a housing case properly transferred shall remain in or be transferred to the housing session and be placed upon the regular housing docket. A case may be consolidated with a case pending in any other clerk's office of the Superior Court.

(d) When a case is transferred from the small claims docket to the regular docket of the Superior Court or to the regular housing docket, the appearance entered in the small claims case of an attorney at law and of a self-represented party as an individual shall be entered on the appropriate docket of the Superior Court. Unless otherwise ordered, when a case is transferred from the small claims docket to the regular docket of the Superior Court or to the regular housing docket, the appear-

ance of any representative that was recognized in the small claims case, other than an attorney at law or a self-represented party as an individual, shall be entered on the appropriate docket of the Superior Court for notice purposes only and not as a representative of any party in the case.

(P.B. 1978-1997, Sec. 572.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 24-22. Hearings in Small Claims Actions; Subpoenas

Subpoenas, if requested, shall be issued by the clerk without fee, and may be issued upon the clerk's own motion or by order of the judicial authority. The party requesting the subpoena shall pay the fees for service and witness fees. An application for issuance of subpoena shall not be required in small claims matters.

(P.B. 1978-1997, Sec. 574.) (Amended June 26, 2000, to take effect Jan. 1, 2001.)

Sec. 24-23. —Procedure

Witnesses shall be sworn; but the judicial authority shall conduct the hearing in such order and form and with such methods of proof as it deems best suited to discover the facts and to determine the justice of the case in accordance with substantive law.

(P.B. 1978-1997, Sec. 575.)

Sec. 24-24. Judgments in Small Claims; When Presence of the Plaintiff or Representative Is Not Required for Entry of Judgment

(a) In any action based on an express or implied promise to pay a definite sum and claiming only liquidated damages, which may include interest and reasonable attorney's fees, if the defendant has not filed an answer by the answer date and the judicial authority has not required that a hearing be held concerning any request by the defendant for more time to pay, the judicial authority may render judgment in favor of the plaintiff without requiring the presence of the plaintiff or representative before the court, provided the plaintiff has complied with the provisions of this section and Section 24-8. Nothing contained in this section shall prevent the judicial authority from requiring the presence of the plaintiff or representative before the court prior to rendering any such default and judgment if it appears to the judicial authority that additional information or evidence is required prior to the entry of judgment.

(b) In order for the judicial authority to render any judgment pursuant to this section at the time set for entering a judgment whether by default, stipulation or other method, the following affidavits must have been filed by the plaintiff:

(1) An affidavit of debt signed by the plaintiff or representative who is not the plaintiff's attorney. A small claims writ and notice of suit signed and sworn to by the plaintiff or representative who is not the plaintiff's attorney shall be considered an affidavit of debt for purposes of this section only if it sets forth either the amount due or the principal owed as of the date of the writ and contains an itemization of interest, attorney's fees and other lawful charges. Any plaintiff claiming interest shall separately state the interest and shall specify the dates from which and to which interest is computed, the rate of interest, the manner in which it was calculated and the authority upon which the claim for interest is based. In those matters involving the collection of credit card and other debt owed to a financial institution and subject to federal requirements for the charging off of accounts, the federally recognized charge-off balance may be treated as the "principal" for purposes of this section and itemization regarding such debt is required only from the date of the charge-off balance. Nothing in this section shall prohibit a magistrate from requiring further documentation.

(A) If the instrument on which the contract is based is a negotiable instrument or assigned contract, the affidavit shall state that the instrument or contract is now owned by the plaintiff and a copy of the executed instrument shall be attached to the affidavit. If the plaintiff is not the original party with whom the instrument or contract was made, the plaintiff shall either (i) attach all bills of sale back to the original creditor and swear to its purchase of the debt from the last owner in its affidavit of debt while also referencing the attached chain of title in the affidavit of debt or (ii) in the affidavit of debt, recite the names of all prior owners of the debt with the date of each prior sale, and also include the most recent bill of sale from the plaintiff's seller and swear to its purchase of the debt from its seller in the affidavit of debt. If applicable, the allegations shall comply with General Statutes § 52-118.

(B) The affidavit shall simply state the basis upon which the plaintiff claims the statute of limitations has not expired.

(C) If the plaintiff has claimed any lawful fees or charges based on a provision of the contract, the plaintiff shall attach to the affidavit of debt a copy of a portion of the contract containing the terms of the contract providing for such fees or charges and the amount claimed.

(D) If a claim for a reasonable fee for an attorney at law is made, the plaintiff shall include in the affidavit the reasons for the specific amount

requested. Any claim for reasonable fees for an attorney at law must be referred to the judicial authority for approval prior to its inclusion in any default judgment.

(2) A military affidavit as required by Section 17-21.

(P.B. 1978-1997, Sec. 577.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 24-25. —Failure of the Defendant To Answer

If the defendant does not file an answer by the answer date, a notice of default shall be sent to all parties or their representatives and if the case does not come within the purview of Section 24-24, the clerk shall set a date for hearing, and the judicial authority shall require the presence of the plaintiff or representative. Notice of the hearing shall be sent to all parties or their representatives. If a defendant files an answer at any time before a default judgment has been entered, including at the time of a scheduled hearing in damages, the default shall be vacated automatically. If the answer is filed at the time of a hearing in damages, the judicial authority shall allow the plaintiff a continuance if requested by the plaintiff, or representative.

(P.B. 1978-1997, Sec. 578.) (Amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-26. —Failure of a Party To Appear before the Court when Required

(a) If the plaintiff or representative fails to appear before the court on the hearing date, the judicial authority may dismiss the claim for want of prosecution, render a finding on the merits for the defendant or make such other disposition as may be proper.

(b) If the defendant fails to appear before the court at any time set for hearing, the judicial authority may render judgment in favor of the plaintiff based on such proofs as it deems necessary to establish the amount due under the claim, or make such other disposition as may be proper, provided that the plaintiff has appeared at the hearing.

(P.B. 1978-1997, Sec. 579.)

Sec. 24-27. —Dismissal for Failure To Obtain Judgment

During the months of January and July of each year, small claims cases which, within one year from the date of the institution of the action, have not gone to judgment may be dismissed upon the order of the chief court administrator.

(P.B. 1978-1997, Sec. 580.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-28. —Finality of Judgments and Decisions

Except as provided in Section 24-31, the judgments and decisions rendered in the small claims session are final and conclusive. (See General Statutes § 51-197a.)

(P.B. 1978-1997, Sec. 581.)

Sec. 24-29. —Decision in Small Claims; Time Limit

(Amended June 26, 2000, to take effect Jan. 1, 2001.)

(a) A written decision stating the reasons for the decision shall be required in matters in which a contested hearing is held, in which a counterclaim is filed or in which a judgment is entered in an amount other than the amount claimed. Nothing in this section precludes the judicial authority from filing a written decision in any matter when such judicial authority deems it appropriate.

(b) Judgments shall be rendered no later than forty-five days from the completion of the proceedings unless such time limit is waived in writing by the parties or their representatives. The judgment of the judicial authority shall be recorded by the clerk and notice of the judgment and written decision shall be sent by mail or electronic delivery to each party or representative, if any.

(P.B. 1978-1997, Sec. 582.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 24-30. —Satisfying Judgment

(a) The judicial authority may order that the judgment shall be paid to the prevailing party at a certain date or by specified installments. Unless otherwise ordered, the issue of execution and other supplementary process shall be stayed during compliance with such order. Such stay may be modified and vacated at any time for good cause. The stay is automatically lifted by a default in postjudgment court-ordered payments by the judgment debtor.

(b) When the judgment is satisfied in a small claims action, the party recovering the judgment shall file a written notice thereof within ninety days with the clerk who shall record the judgment as satisfied, identifying the name of the party and the date. An execution returned fully satisfied shall be deemed a satisfaction of judgment and the notice required in this section shall not be filed. The judicial authority may, upon motion, make a determination that the judgment has been satisfied.

(P.B. 1978-1997, Sec. 583.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 25, 2001, to take effect Jan. 1, 2002; amended June 30, 2003, to take effect Jan. 1, 2004; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-31. —Opening Judgment; Costs

(a) The judicial authority may, upon motion, and after such notice by mail, or otherwise as it may order, open any judgment rendered under this procedure for lack of actual notice to a party, or, within four months from the date thereof, for any other cause that the judicial authority may deem sufficient, and may stay and supersede execution; except that the judicial authority may, for the reasons indicated above, open any judgment rendered by default at any time within four months succeeding the date upon which an execution was levied. The judicial authority may also order the repayment of any sum collected under such judgment and may render judgment and issue execution therefor. Costs in an amount fixed by the judicial authority and not exceeding $100 may be awarded, in the discretion of the judicial authority, for or against either party to a motion to open the judgment, and judgment may be rendered and execution may be issued therefor; and any action by the judicial authority may be conditioned upon the payment of such costs or the performance of any proper condition.

(b) When a judgment has been rendered after a contested hearing on the merits, a motion to open shall be scheduled for hearing only upon order of the judicial authority.

(P.B. 1978-1997, Sec. 584.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 24-32. Execution in Small Claims Actions

(a) Pursuant to the General Statutes, the judgment creditor or the representative of the judgment creditor may file with the court a written application on forms prescribed by the Office of the Chief Court Administrator for an execution to collect an unsatisfied money judgment.

(b) Service of an initial set of interrogatories, on forms prescribed by the Office of the Chief Court Administrator relevant to obtaining satisfaction of a small claims money judgment shall be made by sending the interrogatories by certified mail, with return receipt requested or with electronic delivery confirmation, to the person from whom discovery is sought.

(P.B. 1978-1997, Sec. 585.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 24-33. Costs in Small Claims

The actual legal disbursements of the prevailing party for entry fee, witness' fees, fees for copies, officers' fees, and costs for service shall be allowed as costs, including any statutory costs. The recording fee paid for filing a judgment lien shall also be added to the judgment amount. The costs paid as an application fee for any execution on a money judgment shall be taxed by the clerk upon the issuance of an execution. No other costs shall be allowed either party except by special order of the judicial authority. The judicial authority shall have power in its discretion to award costs, in a sum fixed by the judicial authority, not exceeding $100 (exclusive of such cash disbursements, or in addition thereto) against any party, whether the prevailing party or not, who has set up a frivolous or vexatious claim, defense or counterclaim, or has made an unfair, insufficient or misleading answer, or has negligently failed to be ready for trial, or has otherwise sought to hamper a party or the judicial authority in securing a speedy determination of the claim upon its merits, and it may render judgment and issue execution therefor, or set off such costs against damages or costs, as justice may require. In no case shall costs exceed the amount of the judgment.

(P.B. 1978-1997, Sec. 590.) (Amended June 26, 2000, to take effect Jan. 1, 2001; amended June 21, 2010, to take effect Jan. 1, 2011.)

SUPERIOR COURT—PROCEDURE IN FAMILY MATTERS

CHAPTER 25

GENERAL PROVISIONS

Sec.
25-1. Definitions Applicable to Proceedings on Family Matters
25-2. Complaints for Dissolution of Marriage or Civil Union, Legal Separation, or Annulment
25-2A. Premarital and Postnuptial Agreements
25-3. Action for Custody of Minor Child
25-4. Action for Visitation of Minor Child
25-5. Automatic Orders upon Service of Complaint or Application
25-5A. Automatic Orders upon Service of Petition for Child Support
25-5B. Automatic Orders upon Filing of Joint Petition—Nonadversarial Divorce
25-6. Parties and Appearances
25-6A. Appearance by Self-Represented Party in Addition to Appearance of Attorney
25-7. Pleadings in General; Amendments to Complaint or Application
25-8. —Amendment; New Ground for Dissolution of Marriage or Civil Union
25-9. —Answer, Cross Complaint, Claims for Relief by Defendant
25-10. —Answer to Cross Complaint
25-11. —Order of Pleadings
25-12. Motion To Dismiss
25-13. —Grounds on Motion To Dismiss
25-14. —Waiver and Subject Matter Jurisdiction
25-15. —Further Pleading by Defendant
25-16. Motion To Strike; In General
25-17. —Date for Hearing
25-18. —Reasons
25-19. —Memorandum of Law
25-20. —When Memorandum of Decision Required
25-21. —Substitute Pleading; Judgment
25-22. —Stricken Pleading Part of Another Cause or Defense
25-23. Motions, Requests and Orders of Notice
25-24. Motions
25-25. Motion for Exclusive Possession
25-26. Modification of Custody, Alimony or Support
25-27. Motion for Contempt
25-28. Order of Notice
25-29. Notice of Orders for Support or Alimony
25-30. Statements To Be Filed
25-31. Discovery and Depositions
25-32. Mandatory Disclosure and Production
25-32A. Discovery Noncompliance
25-32B. Discovery—Special Master
25-33. Judicial Appointment of Expert Witnesses
25-34. Procedure for Short Calendar [Repealed]
25-34A. Scheduling of Motions
Sec.
25-35. Disclosure of Conference Recommendation
25-36. Motion for Decree Finally Dissolving Marriage or Civil Union after Decree of Legal Separation
25-37. —Notice and Hearing
25-38. Judgment Files
25-39. Miscellaneous Rules
25-40. Habeas Corpus in Family Matters; the Petition
25-41. —Preliminary Consideration
25-42. —Dismissal
25-43. —The Return
25-44. —Reply to the Return
25-45. —Schedule for Filing Pleadings
25-46. —Summary Judgment as to Writ of Habeas Corpus
25-47. —Discovery
25-48. Dockets, Pretrials and Assignment for Disposition
25-49. Definitions
25-50. Case Management [Repealed]
25-50A. Case Management Under Pathways
25-51. When Motion for Default for Failure To Appear Does Not Apply
25-52. Failure To Appear for Scheduled Disposition
25-53. Reference of Family Matters
25-54. Order of Trial; Argument by Counsel
25-55. Medical Evidence
25-56. Production of Documents at Hearing or Trial
25-57. Affidavit concerning Children
25-58. Reports of Dissolution of Marriage or Civil Union and Annulment
25-59. Closure of Courtroom in Family Matters
25-59A. Sealing Files or Limiting Disclosure of Documents in Family Matters
25-59B. —Documents Containing Personal Identifying Information
25-60. Evaluations, Studies, Family Services Mediation Reports and Family Services Conflict Resolution Reports
25-60A. Court-Ordered Private Evaluations
25-61. Family Division
25-61A. Standing Committee on Guardians Ad Litem and Attorneys for the Minor Child in Family Matters
25-62. Appointment of Guardian Ad Litem
25-62A. Appointment of Attorney for a Minor Child
25-63. Right to Counsel in Family Civil Contempt Proceedings
25-64. —Waiver
25-65. Family Support Magistrates; Procedure [Repealed]
25-66. Appeal from Decision of Family Support Magistrate Repealed]
25-67. Support Enforcement Services [Repealed]
25-68. Right to Counsel in State Initiated Parentage Actions
25-69. Social Services; Additional Duties

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 25-1. Definitions Applicable to Proceedings on Family Matters

(a) The following shall be "family matters" within the scope of these rules: Any actions brought pursuant to General Statutes § 46b-1, including, but not limited to, dissolution of marriage or civil union, legal separation, dissolution of marriage or civil union after legal separation, annulment of mar-

riage or civil union, alimony, support, custody, and change of name incident to dissolution of marriage or civil union, habeas corpus and other proceedings to determine the custody and visitation of children except those which are properly filed in the Superior Court as juvenile matters, the establishing of parentage, enforcement of foreign matrimonial or civil union judgments, actions related to prenuptial or pre-civil union and separation agreements and to matrimonial or civil union decrees of a foreign jurisdiction, actions brought pursuant to General Statutes § 46b-15, custody proceedings brought under the provisions of the Uniform Child Custody Jurisdiction and Enforcement Act and proceedings for enforcement of support brought under the provisions of the Uniform Interstate Family Support Act.

(b) Whenever a rule applicable to family matters as defined in subsection (a) of this Section provides for the scheduling of a motion or other matter on the short calendar, the rule may be satisfied by the scheduling of the motion or other matter for a case date, motion docket, or other court event, so long as any time periods specified in the rule for the scheduling of the matter are observed.

(P.B. 1998.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 12, 2015, to take effect Jan. 1, 2016; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-2. Complaints for Dissolution of Marriage or Civil Union, Legal Separation, or Annulment

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) Every complaint in a dissolution of marriage or civil union, legal separation or annulment action shall state the date and place, including the city or town, of the marriage or civil union and the facts necessary to give the court jurisdiction.

(b) Every such complaint shall also state whether there are minor children issue of the marriage or minor children of the civil union and whether there are any other minor children born to the wife since the date of marriage of the parties, or born to a party to the civil union since the date of the civil union, the name and date of birth of each, and the name of any individual or agency presently responsible by virtue of judicial award for the custody or support of any child. These requirements shall be met whether a child is issue of the marriage or not, whether a child is born to a party of the civil union or not, and whether custody of children is sought in the action or not. In every case in which the state of Connecticut or any town thereof is contributing or has contributed to the support or maintenance of a party or child of said party, such fact shall be stated in the complaint and a copy thereof served on the attorney general or town clerk in accordance with the provisions of Sections 10-12 through 10-17. Although the attorney general or town clerk shall be a party to such cases, he or she need not be named in the writ of summons or summoned to appear.

(c) The complaint shall also set forth the plaintiff's demand for relief and the automatic orders as required by Section 25-5.

(P.B. 1978-1997, Sec. 453.) (Amended June 25, 2001, to take effect Jan. 1, 2002; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 25-2A. Premarital and Postnuptial Agreements

(a) If a party seeks enforcement of a premarital agreement or postnuptial agreement, he or she shall specifically demand the enforcement of that agreement, including its date, within the party's claim for relief. The defendant shall file said claim for relief within sixty days of the return date unless otherwise permitted by the court.

(b) If a party seeks to avoid the premarital agreement or postnuptial agreement claimed by the other party, he or she shall, within sixty days of the claim seeking enforcement of the agreement, unless otherwise permitted by the court, file a reply specifically demanding avoidance of the agreement and stating the grounds thereof.

(Adopted June 20, 2011, to take effect Aug. 15, 2011.)

Sec. 25-3. Action for Custody of Minor Child

Every application in an action for custody of a minor child, other than actions for dissolution of marriage or civil union, legal separation or annulment, shall state the name and date of birth of such minor child or children, the names of the parents and legal guardian of such minor child or children, and the facts necessary to give the court jurisdiction. The application shall comply with Section 25-5. Such application shall be commenced by an order to show cause. Upon presentation of the application and an affidavit concerning children, the judicial authority shall cause an order to be issued requiring the adverse party or parties to appear on a day certain and show cause, if any there be, why the relief requested in the application should not be granted. The application, order and affidavit shall be served on the adverse party not less than twelve days before the date of the hearing or other court event, which shall not be more than thirty-five days from the filing of the application.

(P.B. 1998.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2000, to take effect Jan. 1, 2001; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-4. Action for Visitation of Minor Child

Every application or verified petition in an action for visitation of a minor child, other than actions for dissolution of marriage or civil union, legal separation or annulment, shall state the name and date of birth of such minor child or children, the names of the parents and legal guardian of such minor child or children, and the facts necessary to give the court jurisdiction. An application brought under this section shall comply with Section 25-5. Any application or verified petition brought under this Section shall be commenced by an order to show cause. Upon presentation of the application or verified petition and an affidavit concerning children, the judicial authority shall cause an order to be issued requiring the adverse party or parties to appear on a day certain and show cause, if any there be, why the relief requested in the application or verified petition should not be granted. The application or verified petition, order and affidavit shall be served on the adverse party not less than twelve days before the date of the hearing or other court event, which shall not be more than thirty-five days from the filing of the application or verified petition.

(P.B. 1998.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2000, to take effect Jan. 1, 2001; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-5. Automatic Orders upon Service of Complaint or Application

(Amended June 28, 1999, to take effect Jan. 1, 2000.)

The following automatic orders shall apply to both parties, with service of the automatic orders to be made with service of process of a complaint for dissolution of marriage or civil union, legal separation, or annulment, or of an application for custody or visitation. An automatic order shall not apply if there is a prior, contradictory order of a judicial authority. The automatic orders shall be effective with regard to the plaintiff or the applicant upon the signing of the complaint or the application and with regard to the defendant or the respondent upon service and shall remain in place during the pendency of the action, unless terminated, modified, or amended by further order of a judicial authority upon motion of either of the parties:

(a) In all cases involving a child or children, whether or not the parties are married or in a civil union:

(1) Neither party shall permanently remove the minor child or children from the state of Connecticut, without written consent of the other or order of a judicial authority.

(2) A party vacating the family residence shall notify the other party or the other party's attorney, in writing, within forty-eight hours of such move, of an address where the relocated party can receive communication. This provision shall not apply if and to the extent there is a prior, contradictory order of a judicial authority.

(3) If the parents of minor children live apart during this proceeding, they shall assist their children in having contact with both parties, which is consistent with the habits of the family, personally, by telephone, and in writing. This provision shall not apply if and to the extent there is a prior, contradictory order of a judicial authority.

(4) Neither party shall cause the children of the marriage or the civil union to be removed from any medical, hospital and dental insurance coverage, and each party shall maintain the existing medical, hospital and dental insurance coverage in full force and effect.

(5) The parties shall participate in the parenting education program within sixty days of the return day or within sixty days from the filing of the application.

(6) These orders do not change or replace any existing court orders, including criminal protective and civil restraining orders.

(b) In all cases involving a marriage or civil union, whether or not there are children:

(1) Neither party shall sell, transfer, exchange, assign, remove, or in any way dispose of, without the consent of the other party in writing, or an order of a judicial authority, any property, except in the usual course of business or for customary and usual household expenses or for reasonable attorney's fees in connection with this action.

(A) Nothing in subsection (b) (1) shall be construed to preclude a party from purchasing or selling securities, in the usual course of the parties' investment decisions, whether held in an individual or jointly held investment account, provided that the purchase or sale is: (i) intended to preserve the estate of the parties, (ii) transacted either on an open and public market or at an arm's length on a private market, and (iii) completed in such manner that the purchased securities or sales proceeds resulting from a sale remain, subject to the provisions and exceptions recited in subsection (b) (1), in the account in which the securities or cash were maintained immediately prior to the transaction. Nothing contained in this subsection shall be construed to apply to a party's purchase or sale on a private market of an interest in an entity that conducts a business in which the party is or intends to become an active participant.

(B) Notwithstanding the requirement of subparagraph (A) of subsection (b) (1) that the transaction be made in the usual course of the parties' investment decisions, if historically the parties' usual course of investment decisions involves their discussion of proposed transactions with each other before they are made, but a sale proposed by one party is a matter of such urgency as to timing that the party proposing the sale has a good faith belief that the delay occasioned by such discussion would result in loss to the estate of the parties, then the party proposing the sale may proceed with the transaction without such prior discussion, but shall notify the other party of the transaction immediately upon its execution; provided, that a sale permitted by this subparagraph (B) shall be subject to all other conditions and provisions of subparagraph (A) of subsection (b) (1), so long as the transaction is intended to preserve the estate of the parties.

(2) Neither party shall conceal any property.

(3) Neither party shall encumber (except for the filing of a lis pendens) without the consent of the other party, in writing, or an order of a judicial authority, any property except in the usual course of business or for customary and usual household expenses or for reasonable attorney's fees in connection with this action.

(4) Neither party shall cause any asset, or portion thereof, co-owned or held in joint name, to become held in that party's name solely without the consent of the other party, in writing, or an order of the judicial authority.

(5) Neither party shall incur unreasonable debts hereafter, including, but not limited to, further borrowing against any credit line secured by the family residence, further encumbrancing any assets, or unreasonably using credit cards or cash advances against credit cards.

(6) Neither party shall cause the other party to be removed from any medical, hospital and dental insurance coverage, and each party shall maintain the existing medical, hospital and dental insurance coverage in full force and effect.

(7) Neither party shall change the beneficiaries of any existing life insurance policies, and each party shall maintain the existing life insurance, automobile insurance, homeowners or renters insurance policies in full force and effect.

(8) If the parties are living together on the date of service of these orders, neither party may deny the other party use of the current primary residence of the parties, whether it be owned or rented property, without order of a judicial authority. This provision shall not apply if there is a prior, contradictory order of a judicial authority.

(c) In all cases the parties shall each complete and exchange sworn financial statements substantially in accordance with a form prescribed by the chief court administrator within thirty days of the return day. The parties may thereafter enter and submit to the court a stipulated interim order allocating income and expenses, including, if applicable, proposed orders in accordance with the uniform child support guidelines.

(d) The automatic orders of a judicial authority as enumerated above shall be set forth immediately following the party's requested relief in any complaint for dissolution of marriage or civil union, legal separation, or annulment, or in any application for custody or visitation, and shall set forth the following language in bold letters:

Failure to obey these orders may be punishable by contempt of court. If you object to or seek modification of these orders during the pendency of the action, you have the right to a hearing before a judge within a reasonable time.

The clerk shall not accept for filing any complaint for dissolution of marriage or civil union, legal separation, or annulment, or any application for custody or visitation, that does not comply with this subsection.

(P.B. 1998.) (Amended June 29, 1998, to take effect Jan. 1, 1999; subdivision (a) (1) was amended on an interim basis, pursuant to the provisions of Section 1-9 (c), to take effect Jan. 1,1999; amended June 28, 1999, to take effect Jan. 1, 2000; amended August 22, 2001, to take effect Jan. 1, 2002; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-5A. Automatic Orders upon Service of Petition for Child Support

(a) The following automatic orders shall apply to both parties, with service of the automatic orders to be made with service of process of a petition for child support. An automatic order shall not apply if there is a prior, contradictory order of a judicial authority. The automatic orders shall be effective with regard to the petitioner or the applicant upon the signing of the document initiating the action (whether it be complaint, petition or application), and with regard to the respondent, upon service and shall remain in place during the pendency of the action, unless terminated, modified, or amended by further order of a judicial authority upon motion of either of the parties:

Neither party shall cause the other party or the children who are the subject of the complaint, application or petition to be removed from any medical, hospital and dental insurance coverage, and each party shall maintain the existing medical, hospital and dental insurance coverage in full force and effect.

(b) The automatic orders of a judicial authority as enumerated in subsection (a) shall be set forth immediately following the party's requested relief in any complaint, petition or application, and shall set forth the following language in bold letters:

If you do not follow or obey these orders, you may be punished by contempt of court. If you object to these orders or would like to have them changed or modified while your case is pending, you have the right to a hearing by a judicial authority within a reasonable time.

The clerk shall not accept for filing any complaint, petition or application that does not comply with this subsection.

(Adopted June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 25-5B. Automatic Orders upon Filing of Joint Petition—Nonadversarial Divorce

(a) The following automatic orders shall apply to both petitioners, upon the filing of the joint petition for nonadversarial divorce. An automatic order shall not apply if there is a prior, contradictory order of a judicial authority. The automatic orders shall be effective with regard to the petitioners upon filing of the joint petition and shall remain in place until further order of a judicial authority:

(1) Neither petitioner shall sell, transfer, exchange, assign, remove, or in any way dispose of, without the consent of the other petitioner in writing, or an order of a judicial authority, any property, except in the usual course of business or for customary and usual household expenses or for reasonable attorney's fees in connection with this action.

(2) Neither petitioner shall conceal any property.

(3) Neither petitioner shall encumber without the consent of the other petitioner, in writing, or an order of a judicial authority, any property except in the usual course of business or for customary and usual household expenses or for reasonable attorney's fees in connection with this action.

(4) Neither petitioner shall cause any asset, or portion thereof, co-owned or held in joint name, to become held in his or her name solely without the consent of the other petitioner, in writing, or an order of the judicial authority.

(5) Neither petitioner shall incur unreasonable debts hereafter, including, but not limited to, further encumbrancing any assets, or unreasonably using credit cards or cash advances against credit cards.

(6) Neither petitioner shall cause the other petitioner to be removed from any medical, hospital and dental insurance coverage, and each petitioner shall maintain the existing medical, hospital and dental insurance coverage in full force and effect.

(7) Neither petitioner shall change the beneficiaries of any existing life insurance policies, and each petitioner shall maintain the existing life insurance, automobile insurance, or renters insurance policies in full force and effect.

(8) If the petitioners are living together on the date of these orders, neither petitioner may deny the other petitioner use of the current primary residence of the petitioners, without order of a judicial authority. This provision shall not apply if there is a prior, contradictory order of a judicial authority.

(9) The petitioners shall each complete and exchange sworn financial statements substantially in accordance with a form prescribed by the chief court administrator and file the financial statement with the joint petition. The petitioners may thereafter enter and submit to the court a stipulated interim order allocating income and expenses.

(b) The automatic orders of a judicial authority as enumerated above shall be attached immediately following the petitioners' joint petition for nonadversarial divorce and shall set forth the following language in bold letters:

Failure to obey these orders may be punishable by contempt of court. If you object to or seek modification of these orders during the pendency of the action, you have the right to a hearing before a judge within a reasonable time.

The clerk shall not accept for filing any joint petition for nonadversarial divorce that does not comply with this subsection.

(Adopted June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 25-6. Parties and Appearances

The provisions of Sections 8-1, 8-2, 9-1, 9-3 through 9-6, inclusive, 9-18, 9-19, 9-22, 9-24 and 10-12 through 10-17 of the rules of practice shall apply to family matters as defined in Section 25-1.

(P.B. 1998.)

Sec. 25-6A. Appearance by Self-Represented Party in Addition to Appearance of Attorney

(a) A party may file an appearance as a self-represented party without prior approval of the court even though there is an existing appearance of one or more attorneys on file for that party. For purposes of this section, a "party with dual representation" is a party for whom one or more attorneys have current appearances on file and who also has a current appearance on file as a self-represented party.

(b) Pursuant to Section 4-2, any pleading or other paper filed by or on behalf of a party with

dual representation must be signed by an attorney of record for the party.

(c) If a party with dual representation files a motion that is not signed by an attorney of record, the court may, upon its own motion or upon the motion of any party, order that proceedings on the motion be stayed until an attorney of record adopts said motion as if it were signed by that attorney. The attorney may adopt the motion either by filing a notice of such adoption with the court or by making an oral statement to that effect in court on the record. Alternatively, if the party with dual representation affirms to the court that no attorney is actively representing the party with respect to any matters in the case in which the motion was filed, the court may in its discretion order that proceedings on the motion be stayed until the party with dual representation files a new appearance as a self-represented party in lieu of the appearances of any and all attorneys of record for the party.

(d) Unless and until a motion filed by a party with dual representation without the signature of the party's attorney is adopted by the attorney, disposed of, or withdrawn:

(1) The party with dual representation shall be solely responsible for the prosecution or litigation of the motion; and

(2) An attorney of record for any other party in the case may communicate directly with the party with dual representation, but only with respect to the subject matter of the motion.

(e) If two motions of a party with dual representation are scheduled for hearing at the same time, with one or more having been signed or adopted by the party's attorney and one or more not having been so signed or adopted, the court in its discretion may determine the most appropriate method of proceeding with the hearing of the multiple motions.

(f) If a party with dual representation files a pleading or paper, other than a motion, which is not signed by the party's attorney, the court may treat such filing in the same manner as it may treat a motion under this section or in such other manner as in its discretion it deems appropriate under the circumstances.

(Adopted June 11, 2021, to take effect Jan. 1, 2022.)

COMMENTARY—2022: The above rule is intended to clarify the procedures to be followed when parties in family matters file appearances on their own behalf even though they may also have, or intend to have, an attorney who has filed an appearance. The rule recognizes that filing a self-representation appearance may be desirable in order to receive notices from the court. However, the rule is not intended to supersede the requirement of Section 4-2 that a pleading or other paper filed on behalf of a party who is represented by an attorney be signed by the attorney. The rule also acknowledges the possibility that a party will nevertheless file a motion without the attorney's signature. In that event, it is intended to provide guidance to the parties, attorneys, and the court about how to proceed. In exercising its discretion to stay proceedings on a motion filed by a party without the attorney's signature, the court may consider any relevant circumstances, including, but not limited to, the emergency nature, if any, of the motion; any time limits imposed by statute or rule on the court's hearing on the motion; the pendency of another motion filed on behalf of the party which has been signed or adopted by the party's attorney, or by another party, which concerns the same facts or legal issues; and the likelihood that action by the court on the motion that has not been signed or adopted by the attorney will substantially impact the adjudication of other issues in the case.

Sec. 25-7. Pleadings in General; Amendments to Complaint or Application

(Amended June 28, 1999, to take effect Jan. 1, 2000.)

If Section 25-2, 25-3 or 25-4 is not complied with, the judicial authority, whenever its attention is called to the matter, shall order that the complaint or the application, as the case may be, be amended upon such terms and conditions as it may direct. Where an amendment is filed concerning support or maintenance contributed by the state of Connecticut, no further action shall be taken by the judicial authority until such amendment shall be served upon the attorney general and opportunity given him or her to be heard upon the matter. Nothing in this section shall be construed to affect the automatic orders in Section 25-5 above.

(P.B. 1978-1997, Sec. 454.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 25-8. —Amendment; New Ground for Dissolution of Marriage or Civil Union

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

(a) In any action for a dissolution of marriage or civil union an amendment to the complaint which states a ground for dissolution of marriage or civil union alleged to have arisen since the commencement of the action may be filed with permission of the judicial authority.

(b) The provisions of Sections 10-59, 10-60 and 10-61 of the rules of practice shall apply to family matters as defined in Section 25-1.

(P.B. 1978-1997, Sec. 455.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 25-9. —Answer, Cross Complaint, Claims for Relief by Defendant

The defendant in a dissolution of marriage or civil union, legal separation, or annulment matter may file, in addition to the above mentioned pleadings, one of the following pleadings which shall comply with Sections 10-1, 10-3, 10-5, 10-7, 10-8 and 10-12 through 10-17, 10-18 and 10-19 inclusive:

(1) An answer may be filed which denies or admits the allegations of the complaint, or which

states that the defendant has insufficient information to form a belief and leaves the pleader to his or her proof, and which may set forth the defendant's claims for relief.

(2) An answer and cross complaint may be filed which denies or admits the allegations of the complaint, or which states that the defendant has insufficient information to form a belief and leaves the pleader to his or her proof, and which alleges the grounds upon which a dissolution, legal separation or annulment is sought by the defendant and specifies therein the claims for relief.

(P.B. 1978-1997, Sec. 456.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 25-10. —Answer to Cross Complaint

A plaintiff in a dissolution of marriage or civil union, legal separation, or annulment matter seeking to contest the grounds of a cross complaint shall file an answer admitting or denying the allegations of such cross complaint or leaving the pleader to his or her proof. If a decree is rendered on the cross complaint, the judicial authority may award to the plaintiff such relief as is claimed in the complaint.

(P.B. 1978-1997, Sec. 457.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 25-11. —Order of Pleadings

The order of pleadings shall be:

(1) the plaintiff's complaint;

(2) the defendant's motion to dismiss the complaint;

(3) the defendant's motion to strike the complaint or claims for relief;

(4) the defendant's answer, cross complaint and claims for relief;

(5) the plaintiff's motion to strike the defendant's answer, cross complaint, or claims for relief;

(6) the plaintiff's answer.

(P.B. 1998.)

Sec. 25-12. Motion To Dismiss

(a) Any defendant, wishing to assert grounds to dismiss the action under Section 25-13 (a) (2), (3) or (4) must do so by filing a motion to dismiss within thirty days of the filing of an appearance.

(b) Any claim based on Section 25-13 (a) (2), (3) or (4) is waived if not raised by a motion to dismiss filed in the sequence provided in Section 25-11, within the time provided in this section.

(P.B. 1998.) (Amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 25-13. —Grounds on Motion To Dismiss

(a) The motion to dismiss shall be used to assert (1) lack of jurisdiction over the subject matter, (2) lack of jurisdiction over the person, (3) insufficiency of process and (4) insufficiency of service of process. This motion shall always be filed with a supporting memorandum of law and, where appropriate, with supporting affidavits as to facts not apparent on the record.

(b) If an adverse party objects to this motion he or she shall, at least five days before the motion is to be considered on the short calendar, file and serve in accordance with Sections 10-12 through 10-17 a memorandum of law and, where appropriate, supporting affidavits as to facts not apparent on the record.

(P.B. 1998.) (Amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 25-14. —Waiver and Subject Matter Jurisdiction

Any claim of lack of jurisdiction over the subject matter cannot be waived; and whenever it is found after suggestion of the parties or otherwise that the court lacks jurisdiction of the subject matter, the judicial authority shall dismiss the action.

(P.B. 1998.)

Sec. 25-15. —Further Pleading by Defendant

If any motion to dismiss is denied with respect to any jurisdictional issue, the defendant may plead further without waiving his or her right to contest jurisdiction further.

(P.B. 1998.)

Sec. 25-16. Motion To Strike; In General

(a) Whenever any party wishes to contest (1) the legal sufficiency of the allegations of any complaint or cross complaint, or of any one or more counts thereof, to state a claim upon which relief can be granted, or (2) the legal sufficiency of any claim for relief in any such complaint or cross complaint, or (3) the legal sufficiency of any such complaint or cross complaint, or any count thereof, because of the absence of any necessary party, or (4) the joining of two or more causes of action which cannot properly be united in one complaint or cross complaint, whether the same be stated in one or more counts, or (5) the legal sufficiency of any answer to any complaint or cross complaint, or any part of that answer contained therein, that party may do so by filing a motion to strike the contested pleading or part thereof.

(b) A motion to strike on the ground of the nonjoinder of a necessary party must give the name

and residence of the missing party or such information as the moving party has as to his or her identity and residence and must state his or her interest in the cause of action.

(P.B. 1998.)

Sec. 25-17. —Date for Hearing

The hearing on the motion shall be held not less than fifteen days following the filing of the motion, unless the judicial authority otherwise directs.

(P.B. 1998.) (Amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-18. —Reasons

Each motion to strike raising any of the claims of legal insufficiency enumerated in Sections 25-12, 25-13 and 25-16 shall separately set forth each such claim of insufficiency and shall distinctly specify the reason or reasons for each such claimed insufficiency.

(P.B. 1998.)

Sec. 25-19. —Memorandum of Law

(a) Each motion to strike must be accompanied by an appropriate memorandum of law citing the legal authorities upon which the motion relies.

(b) If an adverse party objects to this motion such party shall, at least five days before the date the motion is to be considered on the short calendar, file and serve in accordance with Sections 10-12 through 10-17 a memorandum of law.

(P.B. 1998.)

Sec. 25-20. —When Memorandum of Decision Required

Whenever a motion to strike is filed and more than one ground of decision is set up therein, the judicial authority, in rendering the decision thereon, shall specify in writing the grounds upon which that decision is based.

(P.B. 1998.)

Sec. 25-21. —Substitute Pleading; Judgment

Within fifteen days after the granting of any motion to strike, the party whose pleading has been stricken may file a new pleading; provided that in those instances where an entire complaint or cross complaint has been stricken, and the party whose pleading has been so stricken fails to file a new pleading within that fifteen day period, the judicial authority may upon motion enter judgment against said party on said stricken complaint or cross complaint.

(P.B. 1998.)

Sec. 25-22. —Stricken Pleading Part of Another Cause or Defense

Whenever the judicial authority grants a motion to strike the whole or any portion of any pleading or count which purports to state an entire cause of action, and such pleading or portion thereof states or constitutes a part of another cause of action, the granting of that motion shall remove from the case only the cause of action which was the subject of the granting of that motion, and it shall not remove such pleading or count or any portion thereof so far as the same is applicable to any other cause of action.

(P.B. 1998.)

Sec. 25-23. Motions, Requests and Orders of Notice

(Amended June 14, 2024, to take effect Jan. 1, 2025.)

The provisions of Sections 11-1, 11-2, 11-4, 11-5, 11-6, 11-8, 11-10, 11-11, 11-12, 11-19, 12-1, 12-2 and 12-3 of the rules of practice shall apply to family matters as defined in Section 25-1.

(P.B. 1998.) (Amended May 14, 2003, to take effect July 1, 2003.)

Sec. 25-24. Motions

(a) Any appropriate party may move for alimony, child support, custody, visitation, appointment or removal of counsel for the minor child, appointment or removal of a guardian ad litem for the minor child, counsel fees, or for an order with respect to the maintenance of the family or for any other equitable relief.

(b) Each such motion shall state clearly, in the caption of the motion, whether it is a pendente lite or a postjudgment motion.

(P.B. 1998.) (Amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 25-25. Motion for Exclusive Possession

Each motion for exclusive possession shall state the nature of the property, whether it is rental property or owned by the parties or one of them, the length of tenancy or ownership of each party, the current family members residing therein and the grounds upon which the moving party seeks exclusive possession.

(P.B. 1998.)

Sec. 25-26. Modification of Custody, Alimony or Support

(a) Upon an application for a modification of an award of alimony pendente lite, alimony or support of minor children, filed by a person who is then in arrears under the terms of such award, the judicial authority shall, upon hearing, ascertain whether such arrearage has accrued without sufficient excuse so as to constitute a contempt

of court, and, in its discretion, may determine whether any modification of current alimony and support shall be ordered prior to the payment, in whole or in part as the judicial authority may order, of any arrearage found to exist.

(b) Either parent or both parents of minor children may be cited or summoned by any party to the action to appear and show cause, if any they have, why orders of custody, visitation, support or alimony should not be entered or modified.

(c) If any applicant is proceeding without the assistance of counsel and citation of any other party is necessary, the applicant shall sign the application and present the application, proposed order and summons to the clerk; the clerk shall review the proposed order and summons and, unless it is defective as to form, shall sign the proposed order and summons and shall assign a date for a hearing or other court event on the application.

(d) Each motion for modification of custody, visitation, alimony or child support shall state clearly in the caption of the motion whether it is a pendente lite or a postjudgment motion.

(e) Each motion for modification shall state the specific factual and legal basis for the claimed modification and shall include the outstanding order and date thereof to which the motion for modification is addressed.

(f) On motions addressed to financial issues, the provisions of Section 25-30 shall be followed.

(g) Upon or after entry of judgment of a dissolution of marriage, dissolution of civil union, legal separation or annulment, or upon or after entry of a judgment or final order of custody and/or visitation for a petition or petitions filed pursuant to Section 25-3 and/or Section 25-4, the judicial authority may order that any further motion for modification of a final custody or visitation order shall be appended with a request for leave to file such motion and shall conform to the requirements of subsection (e) of this section. The specific factual and legal basis for the claimed modification shall be sworn to by the moving party or other person having personal knowledge of the facts recited therein. If no objection to the request has been filed by any party within ten days of the date of service of such request on the other party, the request for leave may be determined by the judicial authority with or without hearing. If an objection is filed, the request shall be placed on the next short calendar, unless the judicial authority otherwise directs. At such hearing, the moving party must demonstrate probable cause that grounds exist for the motion to be granted. If the judicial authority grants the request for leave, at any time during the pendency of such a motion to modify, the judicial authority may determine whether discovery or a study or evaluation pursuant to Section 25-60 shall be permitted.

(P.B. 1978-1997, Sec. 464.) (Amended June 20, 2005, to take effect Jan. 1, 2006; amended June 29, 2007, to take effect Oct. 1, 2007; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-27. Motion for Contempt

(a) Each motion for contempt must state (1) the date and specific language of the order of the judicial authority on which the motion is based; (2) the specific acts alleged to constitute the contempt of that order, including the amount of any arrears claimed due as of the date of the motion or a date specifically identified in the motion; (3) the movant's claims for relief for the contempt.

(b) Each motion for contempt must state clearly in the caption of the motion whether it is a pendente lite or a postjudgment motion, and the subject matter and the type of order alleged to have been violated.

(P.B. 1998.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 25-28. Order of Notice

(a) On a complaint for dissolution of marriage or civil union, legal separation, or annulment, or on an application for custody or visitation, when the adverse party resides out of or is absent from the state or the whereabouts of the adverse party are unknown to the plaintiff or the applicant, any judge or clerk of the court may make such order of notice as he or she deems reasonable. If such notice is by publication, it shall not include the automatic orders set forth in Section 25-5, but shall instead include a statement that automatic orders have issued in the case pursuant to Section 25-5 and that such orders are set forth in the complaint or the application on file with the court. Such notice having been given and proved, the judicial authority may hear the complaint or the application if it finds that the adverse party has actually received notice that the complaint or the application is pending. If actual notice is not proved, the judicial authority in its discretion may hear the case or continue it for compliance with such further order of notice as it may direct.

(b) With regard to any postjudgment motion for modification or for contempt or any other motion requiring an order of notice, where the adverse party resides out of or is absent from the state any judge or clerk of the court may make such order of notice as he or she deems reasonable. Such notice having been given and proved, the court may hear the motion if it finds that the

adverse party has actually received notice that the motion is pending.

(P.B. 1978-1997, Sec. 461.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 25-29. Notice of Orders for Support or Alimony

In all dissolution of marriage or civil union, legal separation, annulment, custody or visitation actions, such notice as the judicial authority shall direct shall be given to nonappearing parties of any orders for support or alimony. No such order shall be effective until the order of notice shall have been complied with or the nonappearing party has actually received notice of such orders.

(P.B. 1978-1997, Sec. 462.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 25-30. Statements To Be Filed

(a) At least five business days before the hearing date of a motion or order to show cause concerning alimony, support, or counsel fees, or at the time a dissolution of marriage or civil union, legal separation or annulment action or action for custody or visitation is scheduled for a hearing, each party shall file, where applicable, a sworn statement substantially in accordance with a form prescribed by the chief court administrator, of current income, expenses, assets and liabilities. When the attorney general has appeared as a party in interest, a copy of the sworn statements shall be served upon the attorney general in accordance with Sections 10-12 through 10-17. Unless otherwise ordered by the judicial authority, all appearing parties shall file sworn statements within thirty days prior to the date of the decree. Notwithstanding the above, the court may render pendente lite and permanent orders, including judgment, in the absence of the opposing party's sworn statement.

(b) At least five business days before the scheduled family special masters session, alternative dispute resolution session, or judicial pretrial, the parties shall serve on each appearing party, but not file with the court, written proposed orders, and, unless the matter is uncontested or the defendant has not appeared, at least five business days prior to the date of the final hearing or trial, the parties shall file with the court and serve on each appearing party written proposed orders.

(c) The written proposed orders shall be comprehensive and shall set forth the party's requested relief including, where applicable, the following:

(1) a parenting plan;
(2) alimony;
(3) child support;
(4) property division;
(5) counsel fees;
(6) life insurance;
(7) medical insurance; and
(8) division of liabilities.

(d) The proposed orders shall be neither factual nor argumentative but shall, instead, only set forth the party's claims.

(e) Where there is a minor child who requires support, the parties shall file a completed child support and arrearage guidelines worksheet at the time of any court hearing concerning child support; or at the time of a final hearing in an action for dissolution of marriage or civil union, legal separation, annulment, custody or visitation.

(f) At the time of any hearing, including pendente lite and postjudgment proceedings, in which a moving party seeks a determination, modification, or enforcement of any alimony or child support order, a party shall submit an Advisement of Rights Re: Income Withholding Form (JD-FM-71).

(P.B. 1978-1997, Sec. 463.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-31. Discovery and Depositions

Except as otherwise provided in Section 25-33, the provisions of Sections 13-1 through 13-10 inclusive, 13-13 through 13-16 inclusive, and 13-17 through 13-32 of the rules of practice inclusive, shall apply to family matters as defined in Section 25-1.

(P.B. 1998.) (Amended June 20, 2011, to take effect Aug. 1, 2011; amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 25-32. Mandatory Disclosure and Production

(a) Unless otherwise ordered by the judicial authority for good cause shown, upon request by a party involved in an action for dissolution of marriage or civil union, legal separation, annulment or support, or a postjudgment motion for modification of alimony or support, opposing parties shall exchange the following documents within sixty days of such request:

(1) all federal and state income tax returns filed within the last three years, including personal returns and returns filed on behalf of any partnership or closely held corporation of which a party is a partner or shareholder;

(2) IRS forms W-2, 1099 and K-1 within the last three years including those for the past year if the income tax returns for that year have not been prepared;

(3) copies of all pay stubs or other evidence of income for the current year and the last pay stub from the past year;

(4) statements for all accounts maintained with any financial institution, including banks, brokers and financial managers, for the past 24 months;

(5) the most recent statement showing any interest in any Keogh, IRA, profit sharing plan, deferred compensation plan, pension plan, or retirement account;

(6) the most recent statement regarding any insurance on the life of any party;

(7) a summary furnished by the employer of the party's medical insurance policy, coverage, cost of coverage, spousal benefits and COBRA costs following dissolution;

(8) any written appraisal concerning any asset owned by either party.

(b) Such duty to disclose shall continue during the pendency of the action should a party appear. This section shall not preclude discovery under any other provisions of these rules.

(P.B. 1998.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 25-32A. Discovery Noncompliance

If a party fails to comply with a discovery request or a discovery order in any manner set forth in Section 13-14 (a), the party who requested such discovery or in whose favor the discovery order was made may move to compel compliance with the request or order. The moving party shall specify in a memorandum in support of his or her motion, the discovery sought and the remedy sought. The party to whom the discovery request or order was directed shall, in a memorandum, specify why the discovery has not been provided or why such party has not complied with the discovery order. If the party to whom the discovery request or order was directed claims that the discovery has been provided or order has been complied with, he or she shall detail with specificity what discovery was provided and how compliance with the discovery order was made.

(Adopted June 20, 2011, to take effect Aug. 15, 2011.)

Sec. 25-32B. Discovery—Special Master

The judicial authority may appoint a discovery special master to assist in the resolution of discovery disputes. When such an appointment is made, the judicial authority shall specify the duties, authority and compensation of the discovery special master and how that compensation shall be allocated between the parties.

(Adopted June 20, 2011, to take effect Aug. 15, 2011.)

Sec. 25-33. Judicial Appointment of Expert Witnesses

Whenever the judicial authority deems it necessary, it may appoint any expert witnesses of its own selection. The judicial authority shall give notice of its intention to appoint such expert, and give the parties an opportunity to be heard concerning such appointment. An expert witness shall not be appointed by the judicial authority unless the expert consents to act. An expert witness so appointed shall be informed of his or her duties by the judicial authority in writing, a copy of which shall be filed with the clerk, or the witness shall be informed of his or her duties at a conference in which the parties shall have an opportunity to participate. Such expert witness shall advise the parties of his or her findings, if any, and may thereafter be called to testify by the judicial authority or by any party and shall be subject to cross-examination by each party. The judicial authority may determine the reasonable compensation for such witness and direct payment out of such funds as may be provided by law or by the parties or any of them as the judicial authority may direct. Nothing in this section shall prohibit the parties from retaining their own expert witnesses.

(P.B. 1998.) (Amended June 13, 2014, to take effect Jan. 1, 2015.)

Sec. 25-34. Procedure for Short Calendar

[Repealed as of Jan. 1, 2025.]

Sec. 25-34A. Scheduling of Motions

(a) Any pendente lite motion filed shall, unless scheduled for the motion docket pursuant to subsection (c) of this section or otherwise scheduled or docketed by the court, be deemed automatically scheduled for the next case date held in the action pursuant to Section 25-50A or, if no future case dates are to be held, then for the time of trial. At least five business days before a case date, each party shall provide to the other party and file with the court a notice listing those of the party's pending pendente lite motions, if any, that the party wishes to pursue at the case date, in the order of priority that the party wishes the motions to be heard. If a party fails to provide and file such list, or files a motion less than five business days before the case date and the nonmoving party objects to having such motion heard on the case date, the motion will not be heard on that date unless the court determines that the interests of justice would be served by hearing it on the case date and doing so would cause no substantial prejudice to the nonmoving party.

(b) Each judicial district shall have a regular motion docket for scheduling pendente lite motions. Such docket shall be scheduled on a regular basis, but at least once each month. Motions shall be placed on the motion docket in accordance with subsection (c) of this section.

(c) (1) With the exception of matters governed by Chapter 13, oral argument on any motion or the presentation of evidence thereon shall be allowed before the next court event at which the motion would otherwise be deemed scheduled pursuant to this section if an appearing party has requested that such motion be placed on the motion docket and the judicial authority has granted such request.

(2) A request that a motion be placed on the motion docket may be made as follows:

(A) when the parties appear before a judge, either party may orally request that a particular motion be placed on an upcoming motion docket, or (B) by filing a Caseflow Request (JD-FM-292) with the section for requesting placement of a pendente lite motion on a motion docket completed. Nothing in this section shall preclude a party from requesting that a motion be placed on the motion docket prior to the resolution plan date.

(3) In acting on a request to place a motion on the motion docket, the court may consider the following factors along with any other factors the court deems relevant: (A) the nature of the motion and the reasons stated for the request, including but not limited to the need of either party for a court order regarding (i) sufficient child support or alimony to meet the reasonable current expenses, (ii) custody, visitation or decision making regarding children, (iii) occupancy of the party's dwelling unit, (iv) use of a motor vehicle, or (v) essential personal property of one party in the possession of the other party; (B) if not placed on the motion docket, the length of time before the next court date at which the motion could be heard; (C) whether the motion is related to, or duplicative of, another motion or motions already heard or scheduled to be heard; (D) if the case has been assigned to a designated judge, the availability of that judge to hear the motion if it is placed on a motion docket.

(4) If the matter will require more than one hour of court time, it may be specifically assigned for a date certain.

(5) Parties are required to appear and be prepared to proceed with a hearing on the day of the assigned motion docket unless a timely request for continuance has been granted, or the motion is withdrawn or resolved by agreement in advance.

(6) Nothing in this section shall prevent the judicial authority from assigning any other motion to be heard on the motion docket.

(d) Oral argument and the presentation of evidence on motions made under Chapter 13 and other nonarguable motions are at the discretion of the judicial authority. The nonmoving party shall have a period of five business days to file an objection to such a motion, unless the Practice Book specifies a different period of time for objection to the particular type of motion filed, in which case the different period shall apply. After allowing the applicable period for objection, the court may, in its discretion, rule on the motion or assign the matter for oral argument or an evidentiary hearing, provided that argument or a hearing shall be scheduled if any other rule applicable to the motion in question requires the same when an objection is filed.

If the judicial authority has determined that oral argument or the presentation of evidence is necessary on a motion made under Chapter 13 or other nonarguable motion, the judicial authority shall set the matter for oral argument or an evidentiary hearing on a case date or motion docket upon consideration of the same factors set forth in subsection (c) of this section for the placement of arguable motions on the motion docket, or other date determined by the judicial authority.

(e) Failure to appear and to present argument on the date set by the judicial authority shall constitute a waiver of the right to argue unless the judicial authority orders otherwise. This subsection shall not apply to those motions where counsel appeared on the date set by the judicial authority and entered into an agreement for a scheduling order for discovery, depositions and a date certain for hearing that was approved and ordered by the court.

(f) Unless otherwise ordered by the court: (1) a postjudgment motion that does not relate to emergency ex parte relief will be assigned a resolution plan date in the same manner as set forth in Section 25-50A (a); (2) if an additional postjudgment motion is filed in the same case before the resolution plan date is held, it will be scheduled for the same resolution plan date; and (3) if an additional postjudgment motion is filed in the same case after the resolution plan date is held, but before the court hearing date for the original motion, the subsequent motion will be scheduled for the same hearing date as the original motion. Nothing in this subsection shall preclude the court from issuing an order on the resolution plan date.

(Adopted June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-35. Disclosure of Conference Recommendation

In the event the parties or their counsel confer with a family relations counselor on finances concerning alimony and child support in connection with either a pendente lite, postjudgment or dissolution hearing, the recommendations of the family relations counselor concerning alimony and child

support shall not be reported to the judicial authority by the parties or their counsel or the family relations counselor unless, before such conference, the parties or their counsel have stipulated that the recommendation of the family relations counselor may be made known to the judicial authority.

(P.B. 1978-1997, Sec. 464A.)

Sec. 25-36. Motion for Decree Finally Dissolving Marriage or Civil Union after Decree of Legal Separation

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

Every motion for a decree finally dissolving and terminating the marriage or civil union, after a decree of legal separation, shall state the number of the case in which the separation was granted, the date of the decree of legal separation and whether the parties have resumed relations relating to the marriage or civil union since the entry of the decree, and it shall be accompanied by an application for an order of notice to the adverse party.

(P.B. 1978-1997, Sec. 472.) (Amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 25-37. —Notice and Hearing

Upon presentation of such motion to the judicial authority it shall fix a time for hearing the same and make an order of notice, by personal service if the adverse party is within the state and that party's place of residence is known, otherwise in such manner as it shall deem reasonable.

(P.B. 1978-1997, Sec. 473.)

Sec. 25-38. Judgment Files

The provisions of Sections 17-4, 17-9 and 17-43 shall apply to family matters as defined in Section 25-1. The provisions of Section 3-9 concerning withdrawal of appearance of an attorney 180 days after the entry of judgment shall not apply to family matters actions until the provisions of this section concerning the filing of judgment files have been satisfied.

(P.B. 1998.)

Sec. 25-39. Miscellaneous Rules

Except as otherwise provided in Section 25-51, the provisions of Sections 7-19, 17-20, 18-5, 18-9, 20-1, 20-3, 23-67 and 23-68 of the rules of practice shall apply to family matters as defined in Section 25-1.

(P.B. 1998.) (Amended Dec. 19, 2006, to take effect March 12, 2007.)

Sec. 25-40. Habeas Corpus in Family Matters; the Petition

A petition for a writ of habeas corpus shall be under oath and shall state:

(1) the specific facts upon which each claim of custody or visitation is based such that the judicial authority would immediately order the child or children to be brought before the court;

(2) any previous petitions for the writ of habeas corpus, and any existing custody or visitation orders, involving the same child or children and the dispositions taken thereon; and

(3) the specific facts upon which the court has jurisdiction.

(P.B. 1998.)

Sec. 25-41. —Preliminary Consideration

(a) The judicial authority shall promptly review any petition for a writ of habeas corpus to determine whether the writ should issue. The judicial authority shall issue the writ if it appears that:

(1) the court has jurisdiction;

(2) the petition is meritorious; and

(3) another proceeding is not more appropriate.

(b) The judicial authority shall notify the petitioner if it declines to issue the writ pursuant to this section.

(P.B. 1998.)

Sec. 25-42. —Dismissal

The judicial authority may, at any time, upon its own motion or upon motion of the respondent, dismiss the petition, or any count thereof, if it determines that:

(1) the court lacks jurisdiction;

(2) the petition, or a count thereof, fails to state a claim upon which habeas corpus relief can be granted;

(3) the petition presents the same ground as a prior petition previously denied and fails to state new facts or proffer new evidence not reasonably available at the time of the prior petition;

(4) the claims asserted in the petition are moot or premature;

(5) any other legally sufficient ground for dismissal of the petition exists.

(P.B. 1998.)

Sec. 25-43. —The Return

The return shall respond to the allegations of the petition and shall allege any facts in support of any claim of procedural default, abuse of the writ, or any other claim that the petitioner is not entitled to relief.

(P.B. 1998.)

Sec. 25-44. —Reply to the Return

(a) If the return alleges any defense or claim that the petitioner is not entitled to relief, and such allegations are put in dispute by the petition, the petitioner shall file a reply.

(b) The reply shall admit or deny any allegations that the petitioner is not entitled to relief.
(P.B. 1998.)

Sec. 25-45. —Schedule for Filing Pleadings

The return or responsive pleading and any reply to the return shall be filed as the judicial authority may order.
(P.B. 1998.)

Sec. 25-46. —Summary Judgment as to Writ of Habeas Corpus

At any time after the pleadings are closed, any party may move for summary judgment, which shall be rendered if the pleadings, affidavits and any other evidence submitted, show that there is no genuine issue of material fact between the parties requiring a trial and the moving party is entitled to judgment as a matter of law.
(P.B. 1998.)

Sec. 25-47. —Discovery

Discovery shall be as in all other family matters.
(P.B. 1998.)

Sec. 25-48. Dockets, Pretrials and Assignment for Disposition

The provisions of Sections 14-2, 14-3, 14-23 and 14-25 of the rules of practice shall apply to family matters as defined in Section 25-1.
(P.B. 1998.)

Sec. 25-49. Definitions

For purposes of these rules the following definitions shall apply:

(1) "Uncontested matter" means a case in which both parties are appearing and no aspect of the matter is in dispute.

(2) "Financial Disputes" means a case in which monetary awards, real property or personal property are in dispute.

(3) "Parenting Disputes" means a case in which child custody, visitation rights, also called parenting time or access, parentage or the grounds for the action are in dispute.

A case may contain both financial and parenting disputes.
(P.B. 1998.) (Amended June 12, 2015, to take effect Jan. 1, 2016; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-50. Case Management

[Repealed as of Jan. 1, 2025.]

Sec. 25-50A. Case Management under Pathways

The Pathways approach shall be followed and shall include:

(a) A resolution plan date, which shall be assigned in dissolution of marriage, dissolution of civil union, legal separation, and annulment cases, no less than thirty days and no more than sixty days from the return date, and in custody and visitation cases in accordance with Sections 25-3 and 25-4, to meet with a family relations counselor to identify: (1) all matters where the parties agree; (2) how likely the parties are to reach an agreement on any disputed issues; and (3) the resources needed to resolve the case. The family relations counselor will recommend an action plan for the court's consideration, including a recommendation for one of three tracks: (1) Track A for cases that require the lowest level of court time and resources, including cases that are fully resolved on the resolution plan date; (2) Track B for cases that are expected to require a moderate level of court time and resources; or (3) Track C for cases with disputes about major issues that are expected to require the highest level of judicial time and resources. Failure to appear at the resolution plan date or comply with the court's orders regarding the resolution plan date may result in sanctions or the entry of a nonsuit, default, or dismissal. After considering the recommendations of the family relations counselor and input from the parties, the court shall make a scheduling order on that day which shall include, but is not limited to, assigning the case to a track, scheduling future court dates (including one or more case dates), ordering a schedule for discovery, and specifying the steps the parties must take between such court dates. The parties must follow the terms of the scheduling order, or the case may be dismissed, or other sanctions may be imposed. Nothing in this section shall preclude the court from issuing temporary orders on the resolution plan date on any pending pleading before the court by consent of the parties or as otherwise determined by the judicial authority.

(b) In all cases, except those seeking only visitation, the party or parties shall file sworn financial affidavits on or before the resolution plan date.

(c) If, in a dissolution of marriage, dissolution of civil union, legal separation or annulment case, the defendant has not filed an appearance, not earlier than thirty days after the return date, the plaintiff may file a motion in accordance with General Statutes § 46b-67 (b) and, if granted, appear and proceed to judgment without further notice to the defendant, provided the plaintiff has complied with the provisions of Section 25-30. If such motion is filed, and the respondent was served personally or at the respondent's usual place of abode, the court may, in accordance with General Statutes § 46b-67 (b), enter judgment with or without a hearing. If service was made in any other manner, no judgment shall be entered until after

a hearing held at least sixty days after the return date.

(d) If the matter is uncontested, the parties may follow the proper procedures to proceed to judgment without a hearing or may appear and proceed to judgment at a hearing at any time, subject to the schedule of the court and provided the parties have complied with the provisions of Section 25-30. Otherwise the clerk shall assign the matter to a date certain for disposition.

(e) In a Track B or Track C case, the scheduling order issued by the court may include, but is not limited to, one or more of the following: (1) one or more case dates for the court to hear or address matters that need to be considered before the final trial date; (2) assignment of motions to a motion docket; (3) a date for pretrial; (4) a trial date; and (5) a discovery schedule.

(f) Unless otherwise ordered by the court, in any case assigned a judicial, family relations or special master pretrial, the parties must exchange and submit to the authority presiding over the pretrial at least five business days prior to the scheduled pretrial: (1) a nonargumentative memorandum that sets forth the facts relevant to the criteria in General Statutes §§ 46b-81 and 46b-82; (2) written proposed orders in accordance with Section 25-30 (c) and (d), which shall be comprehensive and state the parties' requested relief; (3) current sworn financial affidavits, including a detailed income statement, a list of assets and liabilities, the value of all assets, current value of all retirement and employment benefits and any proposed distribution; and (4) if there are minor children, a fully completed child support guidelines worksheet that the parties agree to. If the parties do not agree, each party shall individually provide a fully completed child support guidelines worksheet.

The parties must be prepared to provide any supporting documentation needed and bring such documentation to the pretrial.

If a party does not fully comply with this subsection, sanctions may be imposed by the presiding judge.

(Adopted June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-51. When Motion for Default for Failure To Appear Does Not Apply

If, in any case involving a dissolution of marriage or civil union, legal separation, or annulment, the defendant has not filed an appearance, the plaintiff may proceed to judgment in accordance with Section 25-50A and General Statutes § 46b-67. Section 17-20 concerning motions for default shall not apply to such cases.

(P.B. 1998.) (Amended June 26, 2006, to take effect Jan. 1, 2007; amended June 12, 2015, to take effect Jan. 1, 2016; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-52. Failure To Appear for Scheduled Disposition

If a party fails to appear in person or by counsel for a scheduled disposition, the opposing party may introduce evidence and the case may proceed to judgment without further notice to such party who failed to appear.

(P.B. 1998.)

Sec. 25-53. Reference of Family Matters

In any family matter the court may, upon its own motion or upon motion of a party, refer any matter for hearing and decision to a judge trial referee who shall have been a judge of the referring court. Such matters shall be deemed to have been referred for all further proceedings and judgment, including matters pertaining to any appeal therefrom, except that the referring court may retain jurisdiction to hear and decide any pendente lite or contempt matters.

(P.B. 1978-1997, Sec. 458.) (Amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-54. Order of Trial; Argument by Counsel

The provisions of Sections 15-5, 15-6 and 15-7, shall apply to family matters as defined in Section 25-1.

(P.B. 1998.)

Sec. 25-55. Medical Evidence

A party who plans to offer a hospital record in evidence shall have the record in the clerk's office twenty-four hours prior to trial. The judge shall order that all such records be available for inspection in the clerk's office to any counsel of record under the supervision of the clerk. Counsel must recognize their responsibility to have medical testimony available when needed and shall, when necessary, subpoena medical witnesses to that end. Such records shall be submitted in accordance with the provisions of Section 7-18.

(P.B. 1998.) (Amended June 28, 1999, to take effect Jan. 1, 2000.)

Sec. 25-56. Production of Documents at Hearing or Trial

(a) At the trial management conference prior to the commencement of an evidentiary hearing or trial, but in no event later than five days before the scheduled hearing date, either party may serve on the other a request for production of documents and tangible things, in a manner consistent with Sections 13-9 through 13-11. Service may be made in the same manner as a subpoena or consistent with Sections 10-12 through 10-14.

(b) If a party fails to produce the requested documents and items, the party filing the request shall be permitted to introduce into evidence such

copies as that party might have, without having to authenticate the copies offered.

(c) If a party fails to produce the requested documents and items and the requesting party does not have copies to offer into evidence, the judicial authority may impose such sanctions on the nonproducing party as the judicial authority deems appropriate pursuant to Section 13-14 and as are available to the judicial authority for the enforcement of subpoenas.

(P.B. 1998.)

Sec. 25-57. Affidavit concerning Children

Before the judicial authority renders any order in any matter pending before it involving the custody, visitation or support of a minor child or children, an affidavit shall be filed with the judicial authority averring (1) whether any of the parties is believed to be pregnant; (2) the name and date of birth of any minor child born since the date of the filing of the complaint or the application; (3) information which meets the requirements of the Uniform Child Custody Jurisdiction and Enforcement Act, General Statutes § 46b-115 et seq.; (4) that there is no other proceeding in which either party has participated as a party, witness, or otherwise, concerning custody of the child in any state; and (5) that no person not a party has physical custody or claims custody or visitation rights with respect to the child. This section shall not apply to modifications of existing support orders or in situations involving allegations of contempt of support orders.

(P.B. 1978-1997, Sec. 476.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended August 24, 2001, to take effect Jan. 1, 2002; amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 25-58. Reports of Dissolution of Marriage or Civil Union and Annulment

(Amended June 26, 2006, to take effect Jan. 1, 2007.)

Before a hearing is commenced for a dissolution of marriage or civil union or annulment of marriage or civil union, the parties concerned, or their attorneys, shall provide, on forms prescribed by the chief court administrator and furnished by the clerk, such information as is required by the judges of the Superior Court.

(P.B. 1978-1997, Sec. 477.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 25-59. Closure of Courtroom in Family Matters

(Amended May 14, 2003, to take effect July 1, 2003.)

(a) Except as otherwise provided by law, there shall be a presumption that courtroom proceedings shall be open to the public.

(b) Except as provided in this section and except as otherwise provided by law, the judicial authority shall not order that the public be excluded from any portion of a courtroom proceeding.

(c) Upon motion of any party, or upon its own motion, the judicial authority may order that the public be excluded from any portion of a courtroom proceeding only if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in attending such proceeding. The judicial authority shall first consider reasonable alternatives to any such order and any such order shall be no broader than necessary to protect such overriding interest. An agreement of the parties to close the courtroom shall not constitute a sufficient basis for the issuance of such an order.

(d) In connection with any order issued pursuant to subsection (c) of this section, the judicial authority shall articulate the overriding interest being protected and shall specify its findings underlying such order. If any findings would reveal information entitled to remain confidential, those findings may be set forth in a sealed portion of the record. The time, date and scope of any such order shall be set forth in a writing signed by the judicial authority which upon issuance the court clerk shall immediately enter in the court file. The judicial authority shall order that a transcript of its decision be included in the file or prepare a memorandum setting forth the reasons for its order.

(e) A motion to close a courtroom proceeding shall be filed not less than fourteen days before the proceeding is scheduled to be heard. Such motion shall be placed on the short calendar so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The motion itself may be filed under seal, where appropriate, by leave of the judicial authority. When placed on a short calendar, motions filed under this rule shall be listed in a separate section titled "Motions to Seal or Close" and shall also be listed with the time, date and place of the hearing on the Judicial Branch website. A notice of such motion being placed on the short calendar shall, upon issuance of the short calendar, be posted on a bulletin board adjacent to the clerk's office and accessible to the public.

(P.B. 1978-1997, Sec. 478.) (Amended May 14, 2003, to take effect July 1, 2003; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 20, 2011, to take effect Jan. 1, 2012.)

HISTORY—2003: Prior to 2003, when both the title and text were amended, Section 25-59 read: "**Closed Hearings and Records**

"Subject to the provision of Section 11-20, any family matter may be heard in chambers or in a courtroom from which the public and press have been excluded, and the records and other papers in any family matter may be ordered by the court to be kept confidential and not to be open to inspection except under order of the court or a judge thereof."

COMMENTARY—2003: The public and press enjoy a right of access to attend trials in civil as well as criminal cases. *Press-Enterprise Co.* v. *Superior Court*, 478 U.S. 1, 10, 106 S. Ct. 2735, 92 L. Ed. 2d 1 (1986); *Globe Newspaper Co.* v. *Superior Court*, 457 U.S. 596, 606, 102 S. Ct. 2613, 73 L. Ed. 2d 248 (1982); *Westmoreland* v. *Columbia Broadcasting System, Inc.*, 752 F.2d 16, 22 (2d Cir. 1984).

For a further discussion of court closure, see the Commentary to Sections 11-20 and 42-49. It is intended that the above rule also apply to family support magistrates.

HISTORY—2005: Prior to 2005, the third sentence of subsection (d) read: "The time, date and scope of any such order shall be in writing and shall be signed by the judicial authority and be entered by the court clerk in the court file."

COMMENTARY—2005: As used in subsection (a) above, the words "Except as otherwise provided by law" are intended to exempt from the operation of this rule all established procedures for the closure of courtroom proceedings as required or permitted by statute; e.g., General Statutes §§ 19a-583 (a) (10) (D) (pertaining to court proceedings as to disclosure of confidential HIV-related information), 36a-21 (b) (pertaining to court proceedings at which certain records of the Department of Banking are disclosed), 46b-11 (pertaining to hearings in family relations matters), 54-86c (b) (pertaining to the disclosure of exculpatory information or material), 54-86f (pertaining to the admissibility of evidence of sexual conduct) and 54-86g (pertaining to the testimony of a victim of child abuse); other rules of practice; e.g., Practice Book Section 40-43; and/or controlling state or federal case law.

The above amendment to subsection (d) establishes a mechanism by which the public and the press, who are empowered by this rule to object to pending motions to close the courtroom in family matters, will receive timely notice of the court's disposition of such motions.

HISTORY—2012: Prior to 2012, the last sentence of subsection (e) read: "A copy of the short calendar page containing the aforesaid section shall, upon issuance of the short calendar, be posted on a bulletin board adjacent to the clerk's office and accessible to the public."

COMMENTARY—2012: The above amendment is intended to provide for the electronic filing and processing of documents and orders, and the maintenance of court records, where the present terminology, filing requirements or processes that are applicable in a paper environment result in confusion or redundancy when applied to an electronic environment.

Sec. 25-59A. Sealing Files or Limiting Disclosure of Documents in Family Matters

(a) Except as otherwise provided by law, there shall be a presumption that documents filed with the court shall be available to the public.

(b) Except as provided in this section and except as otherwise provided by law, including Section 13-5, the judicial authority shall not order that any files, affidavits, documents, or other materials on file with the court or filed in connection with a court proceeding be sealed or their disclosure limited.

(c) Upon written motion of any party, or upon its own motion, the judicial authority may order that files, affidavits, documents, or other materials on file or lodged with the court or in connection with a court proceeding be sealed or their disclosure limited only if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in viewing such materials. The judicial authority shall first consider reasonable alternatives to any such order and any such order shall be no broader than necessary to protect such overriding interest. An agreement of the parties to seal or limit the disclosure of documents on file with the court or filed in connection with a court proceeding shall not constitute a sufficient basis for the issuance of such an order.

(d) In connection with any order issued pursuant to subsection (c) of this section, the judicial authority shall articulate the overriding interest being protected and shall specify its findings underlying such order and the duration of such order. If any findings would reveal information entitled to remain confidential, those findings may be set forth in a sealed portion of the record. The time, date, scope and duration of any such order shall be set forth in a writing signed by the judicial authority which upon issuance the court clerk shall immediately enter in the court file. The judicial authority shall order that a transcript of its decision be included in the file or prepare a memorandum setting forth the reasons for its order.

(e) Except as otherwise ordered by the judicial authority, a motion to seal or limit the disclosure of affidavits, documents, or other materials on file or lodged with the court or filed in connection with a court proceeding shall be calendared so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The procedures set forth in Sections 7-4B and 7-4C shall be followed in connection with a motion to file affidavits, documents or other materials under seal or to limit their disclosure.

(f) (1) A motion to seal the contents of an entire court file shall be placed on the short calendar to be held not less than fifteen days following the filing of the motion, unless the judicial authority otherwise directs, so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The

procedures set forth in Sections 7-4B and 7-4C shall be followed in connection with such motion.

(2) The judicial authority may issue an order sealing the contents of an entire court file only upon a finding that there is not available a more narrowly tailored method of protecting the overriding interest, such as redaction or sealing a portion of the file. The judicial authority shall state in its decision or order each of the more narrowly tailored methods that was considered and the reason each such method was unavailable or inadequate.

(g) The provisions of this section shall not apply to settlement conferences or negotiations or to documents submitted to the court in connection with such conferences or negotiations. The provisions of this section shall apply to settlement agreements which have been filed with the court or have been incorporated into a judgment of the court.

(h) Sworn statements of current income, expenses, assets and liabilities filed with the court pursuant to Sections 25-30 and 25a-15 shall be under seal and be disclosable only to the judicial authority, to court personnel, to the parties to the action and their attorneys, and to any guardians ad litem and attorneys appointed for any minor children involved in the matter, except as otherwise ordered by the judicial authority. Any person may file a motion to unseal these documents. When such motion is filed, the provisions of paragraphs (a) through (e) of this section shall apply and the party who filed the documents shall have the burden of proving that they should remain sealed. The judicial authority shall order that the automatic sealing pursuant to this paragraph shall terminate with respect to all such sworn statements then on file with the court when any hearing is held at which financial issues are in dispute. This shall not preclude a party from filing a motion to seal or limit disclosure of such sworn statements pursuant to this section.

(i) Any Income Withholding for Support form (JD-FM-1) filed with the clerk's office, after being signed by the clerk, shall be returned to the filer for service on the payer of income. A copy of the signed form shall be retained for the court file and shall be under seal. Any such copy shall be disclosable only to the judicial authority, to court personnel, to the parties to the action and their attorneys, and to any individual or entity under cooperative agreement with the Title IV-D agency requesting disclosure of such form in the administration of the child support program. Any person may file a motion to unseal this document. A copy of the signed form with all Social Security numbers and dates of birth redacted by the clerk shall be retained in the court file and be available for public inspection.

(j) When placed on a short calendar, motions filed under this rule shall be listed in a separate section titled "Motions to Seal or Close" and shall also be listed with the time, date and place of the hearing on the Judicial Branch website. A notice of such motion being placed on the short calendar shall, upon issuance of the short calendar, be posted on a bulletin board adjacent to the clerk's office and accessible to the public.

(Adopted May 14, 2003, to take effect July 1, 2003; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 12, 2015, to take effect Jan. 1, 2016.)

COMMENTARY—2003: The public and press enjoy a right of access to attend trials in civil as well as criminal cases. See *Nixon* v. *Warner Communications, Inc.*, 435 U.S. 589, 608, 98 S. Ct. 1306, 55 L. Ed. 2d 570 (1978). The guarantee of open public proceedings in civil trials applies as well to the sealing of court documents. See *Publicker Industries, Inc.* v. *Cohen*, 733 F.2d 1059, 1070–71 (3d Cir. 1984).

See also the Commentary to Section 42-49A.

Subsection (h) is intended to minimize the potential for abuse that can result when personal financial information is made available to persons who engage in identity theft or other illegal activities.

It is intended that subsection (h) not apply retroactively to sworn statements that have been filed before the effective date of this rule.

It is intended that the above rule also apply to family support magistrates.

It is intended that the use of pseudonyms in place of the name of a party or parties not be permitted in family cases.

HISTORY—2005: Prior to 2005, the third sentence of subsection (d) read: "The time, date, scope and duration of any such order shall forthwith be reduced to writing and be signed by the judicial authority and entered by the court clerk in the court file." In 2005, in the first sentence of subsection (h), a comma was substituted for "and" between "court personnel" and "to the parties" and the words "and to any guardians ad litem and attorneys appointed for any minor children involved in the matter," were inserted.

COMMENTARY—2005: As used in subsection (a) above, the words "Except as otherwise provided by law" are intended to exempt from the operation of this rule all established procedures for the sealing or ex parte filing, in camera inspection and/or nondisclosure to the public of documents, records and other materials, as required or permitted by statute; e.g., General Statutes §§ 12-242vv (pertaining to taxpayer information), 52-146c et seq. (pertaining to the disclosure of psychiatric records) and 54-56g (pertaining to the pretrial alcohol education program); other rules of practice; e.g., Practice Book Sections 7-18, 13-5 (6) through (8) and 40-13 (c); and/or controlling state or federal case law; e.g., *Matza* v. *Matza*, 226 Conn. 166, 627 A.2d 414 (1993) (establishing a procedure whereby an attorney seeking to withdraw from a case due to his client's anticipated perjury at trial may support his motion to withdraw by filing a sealed affidavit for the court's review).

The above amendment to subsection (d) establishes a mechanism by which the public and the press, who are empowered by this rule to object to pending motions to seal files or limit the disclosure of documents in family matters, will receive timely notice of the court's disposition of such motions.

The above change to subsection (h) adds to those categories of individuals to whom financial affidavits filed with the court pursuant to Section 25-30 are disclosable the following: guardians ad litem and attorneys appointed for the minor children.

HISTORY—2012: Prior to 2012, the last sentence of subsection (i) read: "A copy of the short calendar page containing the aforesaid section shall, upon issuance of the short calendar, be posted on a bulletin board adjacent to the clerk's office and accessible to the public."

COMMENTARY—2012: The above amendment is intended to provide for the electronic filing and processing of documents and orders, and the maintenance of court records, where the present terminology, filing requirements or processes that are applicable in a paper environment result in confusion or redundancy when applied to an electronic environment.

HISTORY—2014: In 2014, "and 25a-15" was added to the first sentence of subsection (h), following "25-30," and "Section" was made plural, before "25-30 and 25a-15."

COMMENTARY—2014: The above change is made to make clear that the provisions of Section 25-59A (h) apply to sworn statements filed under Section 25a-15 (a).

HISTORY—2016: In 2016, what had been the second and third sentences of subsection (h) were deleted. Prior to 2016, the second and third sentences of subsection (h) read: "When such sworn statements are filed, the clerk shall place them in a sealed envelope clearly identified with the words 'Financial Affidavit.' All such sworn statements that are filed in a case may be placed in the same sealed envelope."

Also in 2016, what is now subsection (i) was added and what had been subsection (i) was designated subsection (j).

COMMENTARY—2016: The language that has been deleted in subsection (h) was applicable to a paper file. There are, as of December 15, 2014, paperless family files for which sealing financial affidavits in an envelope is not applicable. A comparable electronic process "seals" those affidavits in accordance with the other provisions of this section.

New subsection (i) concerns the Income Withholding for Support form (JD-FM-1) which is a federally mandated form. The Social Security number and dates of birth are required fields, and there is currently no law that protects this information from disclosure. Family files are now electronic and may be viewed from any courthouse public access computer in the state, allowing for greater access to these documents without the need to go to a clerk's office. Therefore, the most secure way of protecting the Social Security number and other personal identifying information on this form is to seal the copy of the form that is retained in the court file. A provision has been included to allow any person to move to unseal the document. A redacted copy of the signed form will be retained in the court file for public inspection.

Sec. 25-59B. —Documents Containing Personal Identifying Information

(a) The requirements of Section 25-59A shall not apply to "personal identifying information," as defined in Section 4-7, that may be found in documents filed with the court, with the exception of financial affidavits that are under seal. When a financial affidavit is unsealed, this section shall apply. If a document containing personal identifying information is filed with the court, a party or a person identified by the personal identifying information may request that the document containing the personal identifying information be sealed. In response to such request, or on its own motion, the court shall order that the document be sealed and that the party who filed the document submit a redacted copy of the document within ten days of such order.

(b) If the party who filed the document fails to submit a redacted copy of the document within ten days of the order, the court may enter sanctions, as appropriate, against said party for such failure upon the expiration of the ten day period. Upon the submission of a redacted copy of such document, the original document containing the personal identifying information shall be retained as a sealed document in the court file, unless otherwise ordered by the court.

(Adopted June 22, 2009, to take effect Jan. 1, 2010; amended June 21, 2010, to take effect Jan. 1, 2011.)

Sec. 25-60. Evaluations, Studies, Family Services Mediation Reports and Family Services Conflict Resolution Reports

(Amended June 20, 2011, to take effect Aug. 15, 2011; amended June 13, 2014, to take effect Jan. 1, 2015.)

(a) Whenever, in any family matter, an evaluation or study has been ordered pursuant to Section 25-60A or Section 25-61, or the court support services division family services unit has been ordered to conduct mediation or to hold a conflict resolution conference pursuant to Section 25-61, the case shall not be disposed of until the report has been filed as hereinafter provided, and counsel and the parties have had a reasonable opportunity to examine it prior to the time the case is to be heard, unless the judicial authority orders that the case be heard before the report is filed.

(b) Any report of an evaluation or study pursuant to Section 25-60A or Section 25-61, or any mediation report or conflict resolution conference report filed by the family services unit as a result of a referral of the matter to such unit, shall be filed with the clerk, who will seal such report, and shall be provided by the filer to counsel of record, guardians ad litem and self-represented parties unless otherwise ordered by the judicial authority. Any such report shall be available for inspection to counsel of record, guardians ad litem and the parties to the action, unless otherwise ordered by the judicial authority.

(c) Any report of an evaluation or study prepared pursuant to Section 25-60A or Section 25-61 shall be admissible in evidence provided the author of the report is available for cross-examination.

(d) The file compiled by the family services unit in the course of preparing any mediation report or conflict resolution conference report shall not

be available for inspection or copying unless otherwise ordered by the judicial authority. The file compiled by the family services unit in the course of preparing an evaluation or study conducted pursuant to Section 25-61 that has been completed and filed with the clerk in accordance with subsection (b) of this section shall be available for inspection only to counsel of record, guardians ad litem and the parties to the action to the extent permitted by any applicable authorization for release of information; and further provided that copies of documents, notes, information or other material in the file shall only be provided to such individuals if they make the request in writing and certify that it is requested for legitimate purposes of trial preparation and/or trial proceedings in the case in which the evaluation or study was filed. For purposes of this section, the word "file" shall include any documents, notes, information or other material retained by the family services unit in any format.

(e) Any information or copies of the file disclosed pursuant to this section shall not be further disclosed unless otherwise ordered by the judicial authority or as otherwise authorized in this section or as otherwise required by law.

(P.B. 1978-1997, Sec. 479.) (Amended June 20, 2011, to take effect Aug. 15, 2011; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 25-60A. Court-Ordered Private Evaluations

(Amended June 15, 2012, to take effect Jan. 1, 2013).

(a) If the court orders a private evaluation of any party or any child in a family proceeding where custody, visitation or parental access is at issue, a qualified, licensed health care provider shall conduct such evaluation.

(b) If the court has determined that an evaluation can be undertaken and a qualified, licensed health care provider has been selected to perform the evaluation, the court's order for an evaluation shall contain the name of the provider who is to undertake the evaluation, the estimated cost of the evaluation, each party's responsibility for the cost of the evaluation, the professional credentials of the provider, the estimated deadline by which the evaluation shall be completed and submitted to the court, and the estimated fee of the provider for testifying in court. The estimated cost of the evaluation shall include, separately stated, the estimated fee of the provider for testifying in court.

(c) Not later than thirty days after the date of the completion of the evaluation, the provider shall file a report containing the results of the evaluation with the clerk of the court, who shall seal such report.

(d) Notice of any orders relating to the evaluation ordered shall be communicated to the evaluator by the guardian ad litem or, where there is no guardian ad litem, by court personnel.

(e) Until a court-ordered evaluation is filed with the clerk pursuant to Section 25-60 (b), counsel for the parties shall not initiate contact with the evaluator, unless otherwise ordered by the judicial authority.

(f) The provisions of subsections (a) and (b) of Section 25-60 shall apply to completed private court-ordered evaluations.

(Adopted June 20, 2011, to take effect Aug. 15, 2011; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 25-61. Family Division

The family services unit shall, at the request of the judicial authority, provide assistance with regard to issues concerning custody, visitation, finances, mediation, case management and such other matters as the judicial authority may direct, including, but not limited to, an evaluation of any party or any child in a family proceeding. If an evaluation of a party or child is requested by the judicial authority, counsel for the party or child shall not initiate contact with the evaluator, unless otherwise ordered by the judicial authority, until the evaluation is filed with the clerk pursuant to Section 25-60 (b).

(P.B. 1998.) (Amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 25-61A. Standing Committee on Guardians Ad Litem and Attorneys for the Minor Child in Family Matters

(a) There shall be a standing committee on guardians ad litem and attorneys for the minor child in family matters. The membership shall consist of nine individuals, appointed by the chief court administrator. The members shall serve at the pleasure of the chief court administrator, and shall include:

(1) the chief public defender, or his or her designee;

(2) a mental health professional, with experience in the fields of child and family matters;

(3) the Commissioner of the Department of Public Health, or his or her designee;

(4) an attorney in good standing, licensed to practice law in the State of Connecticut by the Judicial Branch, who focuses his or her practice in the area of family law, and who is not on the list of individuals qualified to be appointed as a guardian ad litem or an attorney for a minor child in a family matter;

(5) two judges of the Superior Court with experience presiding over family matters, one of whom

shall be designated by the chief court administrator to serve as chairperson;

(6) two members of the public; and

(7) a representative of a nonprofit legal services organization who has experience in family law.

(b) In addition to any other powers and duties set forth in this chapter, the standing committee on guardians ad litem and attorneys for the minor child in family matters shall:

(1) From time to time, establish additional qualifications, not inconsistent with Sections 25-62 and 25-62A, for an individual to be deemed eligible to be appointed as a guardian ad litem or attorney for the minor child in family matters;

(2) Approve the curriculum for the training required by Sections 25-62 and 25-62A as amended;

(3) Establish and administer a process by which an individual may be removed from the list of those deemed eligible for appointment as a guardian ad litem or attorney for the minor child in family matters;

(4) Annually review and approve a list of individuals deemed eligible for appointment as a guardian ad litem or attorney for the minor child in family matters; and

(5) Adopt procedures to carry out its functions.

(c) The Office of Chief Public Defender shall collaborate with the standing committee on guardians ad litem and attorneys for the minor child in family matters to:

(1) Administer the training of guardians ad litem and attorneys for the minor child in family matters;

(2) Promulgate and maintain an application for individuals to be deemed eligible to be appointed as a guardian ad litem or attorney for the minor child in family matters; and

(3) Provide a list of qualified individuals to be eligible for appointment as a guardian ad litem or attorney for the minor child to the Judicial Branch at least once per year.

(d) The Office of Chief Public Defender may promulgate and maintain an additional application process for eligible individuals wishing to contract with the Office of Chief Public Defender to serve as a guardian ad litem or attorney for the minor child at state rates.

(Adopted June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 25-62. Appointment of Guardian Ad Litem

(a) The judicial authority may appoint a guardian ad litem for a minor involved in any family matter. Unless the judicial authority orders that another person be appointed guardian ad litem, a family relations counselor shall be designated as guardian ad litem. The guardian ad litem is not required to be an attorney.

(b) With the exception of family relations counselors, no person may be appointed as guardian ad litem unless he or she:

(1) Is an attorney in good standing, licensed to practice law in the State of Connecticut by the Judicial Branch; or

(2) Is a mental health professional, licensed by the Connecticut Department of Public Health and in good standing, in the areas of clinical social work, marriage and family therapy, professional counseling, psychology or psychiatry; or

(3) Is a mental health professional, licensed by the Connecticut Department of Public Health and in good standing, in an area other than clinical social work, marriage and family therapy, professional counseling, psychology or psychiatry, who has been approved as eligible to serve as a guardian ad litem by the standing committee on guardians ad litem and attorneys for the minor child in family matters. Such approval may be requested by submitting an application containing the following information to the standing committee for its consideration:

(A) The area of mental health in which the applicant is licensed and in good standing;

(B) A statement as to whether the applicant's practice incorporates the topics of family dynamics, childhood development and adjustment, communicating with children, trauma, addiction, and domestic violence including a detailed description of the way in which these topics are incorporated;

(C) A statement that the applicant is otherwise in compliance with the remainder of this section in its entirety; and

(D) Any other information the applicant believes will assist the standing committee in making a fully informed decision regarding the request.

The standing committee may contact the applicant to obtain clarification or further discuss the application.

The standing committee shall review the application and provide a written decision to the applicant. The standing committee's decision will be based upon a majority vote and shall be final. The applicant may not request reconsideration or further review once the standing committee has issued its decision,

(4) Provides proof that he or she does not have a criminal record;

(5) Provides proof that he or she does not appear on the Department of Children and Families' central registry of child abuse and neglect;

(6) Completes a minimum of twenty hours of preservice training as determined by the standing

committee on guardians ad litem and attorneys for the minor child in family matters;

(7) Meets any additional qualifications established by the standing committee on guardians ad litem and attorneys for the minor child in family matters; and

(8) Applies, provides proof of the foregoing items and is approved as eligible to serve as a guardian ad litem by the standing committee on guardians ad litem and attorneys for the minor child in family matters.

(c) The status of all individuals deemed eligible to be appointed as a guardian ad litem in family matters shall be reviewed by the standing committee on guardians ad litem and attorneys for the minor child in family matters every three years. To maintain eligibility, individuals must:

(1) Certify that they have completed twelve hours of relevant training within the past three years, three hours of which must be in ethics;

(2) Disclose any changes to their criminal history;

(3) Certify that they do not appear on the Department of Children and Families' central registry of child abuse and neglect; and

(4) Meet additional qualifications as determined by the standing committee on guardians ad litem and attorneys for the minor child in family matters.

(d) The judicial authority may order compensation for services rendered by a court-appointed guardian ad litem.

(P.B. 1978-1997, Sec. 484.) (Amended June 20, 2011, to take effect Jan. 1, 2012; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What had been subdivision (b) (1) was split into two subdivisions by adding "(2)" after "or," by capitalizing "Is" before "a mental health professional," and by adding "or" after "psychiatry;." Additionally, what is now subdivision (b) (3) was added, and what had been subdivisions (b) (2) through (6) were redesignated as subdivisions (b) (4) through (8), respectively.

COMMENTARY—2026: The changes to this rule allow a mental health professional, licensed by the Connecticut Department of Public Health, and in good standing, in an area other than clinical social work, marriage and family therapy, professional counseling, psychology or psychiatry, to be appointed by the court as a guardian ad litem in family matters, if approved as eligible by the Standing Committee on Guardians Ad Litem and Attorneys for the Minor Child in Family Matters.

Sec. 25-62A. Appointment of Attorney for a Minor Child

(a) The judicial authority may appoint an attorney for the minor child in any family matter.

(b) No person may be appointed as an attorney for the minor child unless he or she:

(1) Is an attorney in good standing, licensed to practice law in the state of Connecticut.

(2) Provides proof that he or she does not have a criminal record;

(3) Provides proof that he or she does not appear on the Department of Children and Families' central registry of child abuse and neglect;

(4) Completes a minimum of twenty hours of preservice training as determined by the standing committee on guardians ad litem and attorneys for the minor child in family matters;

(5) Meets any additional qualifications established by the standing committee on guardians ad litem and attorneys for the minor child in family matters; and

(6) Applies, provides proof of the foregoing items and is approved as eligible to serve as an attorney for the minor child by the standing committee on guardians ad litem and attorneys for the minor child in family matters.

(c) The status of all individuals deemed eligible to be appointed as an attorney for the minor child in family matters shall be reviewed by the standing committee on guardians ad litem and attorneys for the minor child in family matters every three years.

To maintain eligibility, individuals must:

(1) Certify that they have completed twelve hours of relevant training within the past three years, three hours of which must be in ethics;

(2) Disclose any changes to their criminal history;

(3) Certify that they do not appear on the Department of Children and Families' central registry of child abuse and neglect; and

(4) Meet additional qualifications as determined by the standing committee on guardians ad litem and attorneys for the minor child in family matters.

(d) The judicial authority may order compensation for services rendered by a court-appointed attorney for the minor child.

(Adopted June 20, 2011, to take effect Jan. 1, 2012; amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 25-63. Right to Counsel in Family Civil Contempt Proceedings

(a) A person who is before the court in a civil contempt proceeding involving the failure to comply with the order of a judicial authority in a family matter and who faces potential incarceration shall be advised of his or her right to be represented by counsel and his or her right to court-appointed counsel if he or she is indigent. If the person is unable to obtain counsel by reason of his or her indigency he or she shall have counsel appointed to represent him or her unless:

(1) He or she waives such appointment pursuant to Section 25-64; or

(2) At the time of the application for the appointment of counsel, the judicial authority eliminates

incarceration as a possible result of the proceeding and makes a statement to that effect on the record.

(b) The person shall be further advised that no person shall continue to be detained in a correctional facility pursuant to an order of civil contempt for longer than thirty days, unless at the expiration of such thirty days he or she is presented to the judicial authority. On each such presentment, the contemnor shall be given an opportunity to purge himself or herself of the contempt by compliance with the order of the judicial authority. If the contemnor does not so act, the judicial authority may direct that the contemnor remain in custody under the terms of the order of the judicial authority then in effect, or may modify the order if the interests of justice so dictate.

(c) Any attorney appointed to represent the contemnor shall represent such contemnor only on the contempt, and shall not be appointed for any other purpose.

(P.B. 1978-1997, Sec. 484A.)

Sec. 25-64. —Waiver

A person shall be permitted to waive his or her right to counsel and shall be permitted to represent himself or herself at any stage of the proceedings, either prior to or following the appointment of counsel. A waiver will be accepted only after the judicial authority makes a thorough inquiry and is satisfied that the person:

(1) Has been clearly advised of his or her right to the assistance of counsel, including his or her right to the assignment of counsel when he or she is so entitled;

(2) Possesses the intelligence and capacity to appreciate the consequences of the decision to represent himself or herself;

(3) Comprehends the nature of the proceedings, the range of permissible sanctions and any additional facts essential to a broad understanding of the case; and

(4) Has been made aware of the risks and disadvantages of self-representation.

(P.B. 1978-1997, Sec. 484B.)

Sec. 25-65. Family Support Magistrates; Procedure

[Repealed as of Aug. 1, 2010.]

Sec. 25-66. Appeal from Decision of Family Support Magistrate

[Repealed as of Aug. 1, 2010.]

Sec. 25-67. Support Enforcement Services

[Repealed as of Aug. 1, 2010.]

Sec. 25-68. Right to Counsel in State Initiated Parentage Actions

(Amended June 14, 2024, to take effect Jan. 1, 2025.)

(a) An alleged parent named in a state initiated parentage action shall be advised by the judicial authority of the alleged parent's right to be represented by counsel and such parent's right to court-appointed counsel if indigent. If the alleged parent is unable to obtain counsel due to indigency, such parent shall have counsel appointed unless the appointment is waived pursuant to Section 25-64.

(b) In cases under this section, a copy of the parentage petition shall be served on the attorney general in accordance with the provisions of Sections 10-12 through 10-17. The attorney general shall be a party to such cases, but need not be named in the petition or summoned to appear.

(P.B. 1978-1997, Sec. 484C.) (Amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 25-69. Social Services; Additional Duties

(a) Under the supervision and direction of the judicial authority, a family relations counselor shall, where there is a motion for change of custody of a child, or where his or her knowledge of the family situation causes him or her to believe that the welfare of the child requires a hearing on a change of custody, upon direction of the judicial authority, be permitted to investigate the domestic and financial situation of the parties and report his or her findings. The judicial authority may thereafter, on its own motion if necessary, hold a hearing thereon after such notice to the parties as it deems proper.

(b) Under the supervision and direction of the judicial authority, the family relations counselor shall conduct such investigations or mediation conferences in domestic relations matters as may be directed by the judicial authority.

(c) Under the supervision and direction of the judicial authority, the family relations counselor may, where necessary, bring an application to the court for a rule requiring a party to appear before the court to show cause why such party should not be held in contempt for failure to comply with an order of the judicial authority for visitation.

(d) Family relations caseworkers, family relations counselors and support enforcement officers shall investigate all criminal matters involving family relations cases referred to them by the prosecuting attorney or by the judicial authority.

(P.B. 1978-1997, Sec. 481A.)

SUPERIOR COURT—PROCEDURE IN FAMILY SUPPORT MAGISTRATE MATTERS

CHAPTER 25a

FAMILY SUPPORT MAGISTRATE MATTERS

Sec.		Sec.	
25a-1.	Family Support Magistrate Matters; Procedure	25a-16.	Opening Argument
25a-1A.	Notice of Title IV-D Child Support Enforcement Services	25a-17.	Motion To Open Judgment of Parentage by Acknowledgment
25a-2.	Prompt Filing of Appearance	25a-18.	Modification of Alimony or Support
25a-3.	Withdrawal of Appearance; Duration of Appearance	25a-19.	Standard Disclosure and Production
25a-4.	Telephonic Hearings	25a-20.	Medical Evidence
25a-5.	Signing of Pleading	25a-21.	Experts
25a-6.	Contents of Petition	25a-22.	Interrogatories; In General
25a-7.	Automatic Orders upon Service of Petition	25a-23.	Answers to Interrogatories
25a-8.	Order of Notice	25a-24.	Requests for Production, Inspection and Examination; In General
25a-9.	Motions	25a-25.	Order for Compliance; Failure To Answer or Comply with Order
25a-10.	—Motion To Cite in New Parties	25a-26.	Continuing Duty To Disclose
25a-11.	Answer to Cross Petition	25a-27.	Depositions; In General
25a-12.	Order of Pleadings	25a-28.	—Place of Deposition
25a-13.	Reclaims	25a-29.	Appeal from Decision of Family Support Magistrate
25a-14.	—Continuances when Counsel's Presence or Oral Argument Required	25a-30.	Support Enforcement Services
25a-15.	Statements To Be Filed		

COMMENTARY—August, 2010: This new chapter is intended to clarify what rules of practice are specifically incorporated in the family support magistrate court rules and what rules are exclusive only to the family support magistrate court. They include rules that mirror, to the extent possible, the language of the Superior Court rules but are in an exclusive new section based upon the sense that they vary sufficiently such that it was more efficacious to provide them as separate rules.

Sec. 25a-1. Family Support Magistrate Matters; Procedure

(a) In addition to the specific procedures set out in this chapter, the following provisions shall govern the practice and procedure in all family support magistrate matters, whether heard by a family support magistrate or any other judicial authority. The term "judicial authority" and the word "judge" as used in the rules referenced in this section shall include family support magistrates where applicable, unless specifically otherwise designated. The word "complaint" as used in the rules referenced in this section shall include petitions and applications filed in family support magistrate matters.

(1) General Provisions:

(A) Chapters 1, 2, 5, 6 and 7 in their entirety;

(B) Chapter 3, in its entirety except subsection (b) of Section 3-2 and Section 3-9;

(C) Chapter 4, in its entirety except subsections (a) and (b) of Section 4-2;

(2) Procedure in Civil Matters:

(A) Chapter 8, Sections 8-1 and 8-2;

(B) Chapter 9, Sections 9-1 and 9-18 through 9-20;

(C) Chapter 10, Sections 10-1, 10-3 through 10-5, 10-7, 10-10, 10-12 through 10-14, 10-17, 10-26, 10-28, subsections (a) and (c) of Section 10-30, 10-31 through 10-34, subsection (b) of Section 10-39, 10-40, 10-43 through 10-45 and 10-59 through 10-68;

(D) Chapter 11, Sections 11-1 through 11-8, 11-10 through 11-12 and 11-19;

(E) Chapter 12, in its entirety;

(F) Chapter 13, Sections 13-1 through 13-3, 13-5, 13-8, 13-10 except subsection (c), 13-11A, 13-21 except subdivision (13) of subsection (a), subsections (a), (e), (f), (g) and (h) of Section 13-27, and Sections 13-28, 13-28A and 13-30 through 13-32;

(G) Chapter 14, Sections 14-1 through 14-3, 14-9, 14-15, 14-17, 14-18, 14-24 and 14-25;

(H) Chapter 15, Sections 15-3, 15-5, 15-7 and 15-8;

(I) Chapter 17, Sections 17-1, 17-4, 17-5, 17-19, 17-21, subsection (a) of Section 17-33 and Section 17-41;

(J) Chapter 18, Section 18-19;

(K) Chapter 19, Section 19-19;

(L) Chapter 20, Sections 20-1 and 20-3;

(M) Chapter 23, Sections 23-20, 23-67 and 23-68.

(3) Procedure in Family Matters:

Chapter 25, Sections 25-1, 25-9, 25-12 through 25-22, 25-27, 25-33, 25-48, 25-54, 25-59, 25-59A, 25-61, 25-62 through 25-64 and 25-68.

(b) Any pleading or motion filed in a family support magistrate matter shall indicate, in the lower right hand corner of the first page of the document, that it is a family support magistrate matter.

(c) Family support magistrate matters shall be placed on the family support magistrate matters list for hearing and determination.

(d) Family support magistrate list matters shall be assigned automatically by the clerk without the necessity of a written claim. No such matters shall be so assigned unless filed at least five days before the opening of court on the day the list is to be called.

(e) Family support magistrate list matters shall not be continued except by order of a judicial authority.

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 14, 2013, to take effect Oct. 1, 2013; amended June 23, 2017, to take effect Jan. 1, 2018.)

TECHNICAL CHANGE: Section 13-28A was added to the list of references in subparagraph (F) of subsection (a) (2).

Sec. 25a-1A. Notice of Title IV-D Child Support Enforcement Services

(a) In any Title IV-D support case as defined by General Statutes § 46b-231, the Title IV-D agency, or one of its cooperative agencies, shall file a notice, on a form prescribed by the Office of the Chief Court Administrator, that the parties or child are receiving child support enforcement services.

(b) Upon termination of child support enforcement services, the Title IV-D agency, or one of its cooperative agencies, shall file a notice, on a form prescribed by the Office of the Chief Court Administrator, that the Title IV-D support case is closed.

(Adopted June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 25a-2. Prompt Filing of Appearance

An appearance in Title IV-D child support matters should be filed promptly but may be filed at any stage of the proceeding.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-2 was temporarily assigned the number 25a-1A in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-3. Withdrawal of Appearance; Duration of Appearance

(a) An attorney or party whose appearance has been filed shall be deemed to have withdrawn such appearance upon failure to file a written objection within ten days after written notice has been given or mailed to such attorney or party that a new appearance has been filed in place of the appearance of such attorney or party in accordance with Section 3-8.

(b) An attorney may withdraw his or her appearance for a party or parties in any action after the appearance of other counsel representing the same party or parties has been entered. An application for withdrawal in accordance with this subsection shall state that such an appearance has been entered and that such party or parties are being represented by such other counsel at the time of the application. Such an application may be granted by the clerk as of course, if such an appearance by other counsel has been entered.

(c) In addition to the grounds set forth in subsections (a), (b), and (d), a lawyer who represents a party or parties on a limited basis in accordance with Section 3-8 (b) and has completed his or her representation as defined in the limited appearance, shall file a certificate of completion of limited appearance on Judicial Branch form JD-CL-122. The certificate shall constitute a full withdrawal of a limited appearance. Copies of the certificate must be served in accordance with Sections 10-12 through 10-17 on the client, and all attorneys and self-represented parties of record.

(d) All appearances of counsel shall be deemed to have been withdrawn 180 days after the entry of judgment in any action seeking a dissolution of marriage or civil union, annulment, or legal separation, provided no appeal shall have been taken. In the event of an appeal or the filing of a motion to open a judgment within such 180 days, all appearances of counsel shall be deemed to have been withdrawn after final judgment on such appeal or motion or within 180 days after the entry of the original judgment, whichever is later. Nothing herein shall preclude or prevent any attorney from filing a motion to withdraw with leave of the court during that period subsequent to the entry of judgment. In the absence of a specific withdrawal, counsel will continue of record for all postjudgment purposes until 180 days have elapsed from the entry of judgment or, in the event an appeal or a motion to open a judgment is filed within such 180 day period, until final judgment on that appeal or determination of that motion, whichever is later.

(e) Except as provided in subsections (a), (b), (c), and (d) no attorney shall withdraw his or her appearance after it has been entered upon the record of the court without the leave of the court.

(f) All appearances entered on behalf of parties for matters involving Title IV-D child support matters shall be deemed to be for those matters only.

(g) All appearances entered on behalf of parties in the family division of the Superior Court shall not be deemed appearances for any matter involving a Title IV-D child support matter unless specifically so designated.

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 15, 2012, to take effect Jan. 1, 2013; amended

June 14, 2013, to take effect Oct. 1, 2013.) (Sec. 25a-3 was temporarily assigned the number 25a-2 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-4. Telephonic Hearings

(a) In any case where mandated by law, the judicial authority shall upon written motion or on its own motion permit an individual to testify by telephone or other audio electronic means.

(b) In any case where permitted by law, the judicial authority may, upon written motion or on its own motion, permit an individual to testify by telephone or other audio electronic means.

(c) Upon an order for a telephonic hearing, the judicial authority shall set the date, time and place for such hearing and shall issue an order in connection therewith.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-4 was temporarily assigned the number 25a-2A in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-5. Signing of Pleading

(a) Every pleading and other paper of a party represented by an attorney shall be signed by at least one attorney of record in the attorney's individual name. A party who is not represented by an attorney, and a support enforcement officer where appropriate, shall sign the pleadings and other papers. The name of the attorney, party or support enforcement officer who signs such document shall be legibly typed or printed beneath the signature.

(b) The signing of any pleading, motion, objection or request shall constitute a certificate that the signer has read such document, that to the best of the signer's knowledge, information and belief there is good ground to support it, that it is not interposed for delay, and that the signer has complied with the requirements of Section 4-7 regarding personal identifying information. Each pleading and every other court-filed document shall set forth the signer's telephone number and mailing address.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-5 was temporarily assigned the number 25a-2B in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-6. Contents of Petition

All petitions shall contain a concise statement of the facts constituting the cause of action, a demand for relief and the basis on which relief is sought.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-6 was temporarily assigned the number 25a-3 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-7. Automatic Orders upon Service of Petition

(a) The following automatic orders shall apply to both parties, with service of the automatic orders to be made with service of process of a petition for child support. An automatic order shall not apply if there is a prior, contradictory order of a judicial authority. The automatic orders shall be effective with regard to the petitioner or the applicant upon the signing of the document initiating the action (whether it be complaint, petition or application), and with regard to the respondent, upon service and shall remain in place during the pendency of the action, unless terminated, modified, or amended by further order of a judicial authority upon motion of either of the parties:

(1) Neither party shall cause the other party or the children who are the subject of the complaint, application or petition to be removed from any medical, hospital and dental insurance coverage, and each party shall maintain the existing medical, hospital and dental insurance coverage in full force and effect.

(b) The automatic orders of a judicial authority as enumerated in subsection (a) shall be set forth immediately following the party's requested relief in any complaint, petition or application, and shall set forth the following language in bold letters: **If you do not follow or obey these orders you may be punished by contempt of court. If you object to these orders or would like to have them changed or modified while your case is pending, you have the right to a hearing by a judicial authority within a reasonable time.** The clerk shall not accept for filing any complaint, petition or application that does not comply with this subsection.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-7 was temporarily assigned the number 25a-4 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-8. Order of Notice

(a) On a petition for support or the establishment of parentage when the adverse party resides out of or is absent from the state or the whereabouts of the adverse party are unknown to the plaintiff or the applicant, any judicial authority or clerk of the court may make such order of notice as he or she deems reasonable. If such notice is by publication, it shall not include the automatic orders set forth in Section 25a-7, but shall, instead, include a statement that automatic orders have issued in the case pursuant to Section 25a-7 and that such orders are set forth in the application or petition on file with the court. Such notice having been given and proved, the judicial authority may hear the application or petition if it finds that the adverse party has actually received notice that the application or petition is pending. If actual notice is not proved, the judicial authority in its discretion may hear the case or continue it for compliance with such further order of notice as it may direct.

(b) With regard to any motion for modification or for contempt or any other motion requiring an order of notice, where the adverse party resides

out of or is absent from the state, any judicial authority or clerk of the court may make such order of notice as he or she deems reasonable. Such notice having been given and proved, the court may hear the motion if it finds that the adverse party has actually received notice that the motion is pending.

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 14, 2024, to take effect Jan. 1, 2025.) (Sec. 25a-8 was temporarily assigned the number 25a-4A in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-9. Motions

(a) Any appropriate party may move for child support, appointment of counsel or guardian ad litem for the minor child, counsel fees, or for an order or enforcement of an order with respect to the maintenance of the family or for any other statutorily authorized relief.

(b) Each such motion shall state clearly, in the caption of the motion, whether it is a pendente lite or a postjudgment motion.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-9 was temporarily assigned the number 25a-5 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-10. —Motion To Cite in New Parties

Any motion to cite in or to admit new parties must comply with Section 11-1 and state briefly the grounds upon which it is made. In Title IV-D child support matters, a motion to cite in or to admit new parties is limited to a parent, legal custodian or guardian.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-10 was temporarily assigned the number 25a-5A in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-11. Answer to Cross Petition

A plaintiff in a family support magistrate matter seeking to contest the grounds of a cross petition may file an answer admitting or denying the allegations of such cross petition or leaving the pleader to his or her proof. If a decree is rendered on the cross petition, the judicial authority may award to the plaintiff such relief as is claimed in the petition.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-11 was temporarily assigned the number 25a-6 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-12. Order of Pleadings

The order of pleadings shall be:

(1) the petition for establishment of parentage and/or a petition for support;

(2) the defendant's motion to dismiss the petition;

(3) the defendant's motion to strike the petition or claims for relief;

(4) the defendant's answer, cross petition and claims for relief;

(5) the plaintiff's motion to strike the defendant's answer, cross petition, or claims for relief;

(6) the plaintiff's answer.

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 14, 2024, to take effect Jan. 1, 2025.) (Sec. 25a-12 was temporarily assigned the number 25a-7 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-13. Reclaims

If a motion has gone off the family support magistrate calendar without being adjudicated, any party may claim the motion for adjudication. If an objection to a request has gone off the family support magistrate calendar without being adjudicated, the party who filed the request may claim the objection to the request for adjudication. Any party may claim for adjudication any motion or request initiated by support enforcement services that has gone off without being adjudicated and a support enforcement officer may claim any motion or request initiated by support enforcement services that has gone off without being adjudicated.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-13 was temporarily assigned the number 25a-8 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-14. —Continuances when Counsel's Presence or Oral Argument Required

Matters upon the short calendar list requiring oral argument or counsel's presence shall not be continued except for good cause shown; and no such matter in which adverse parties are interested shall be continued unless the parties shall agree thereto before the day of the short calendar session and notify the clerk, who shall make note thereof on the list of the judicial authority; in the absence of such agreement, unless the judicial authority shall otherwise order, any counsel appearing may argue the matter and submit it for decision or request that it be denied.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-14 was temporarily assigned the number 25a-8A in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-15. Statements To Be Filed

(a) At least five days before the hearing date of a motion or order to show cause concerning alimony, support, or counsel fees, or at the time a dissolution of marriage or civil union, legal separation or annulment action or action for custody or visitation is scheduled for a hearing, each party shall file, where applicable, a sworn statement substantially in accordance with a form prescribed by the chief court administrator, of current income, expenses, assets and liabilities. When the attorney general has appeared as a party in interest, a copy of the sworn statements shall be served

upon him or her in accordance with Sections 10-12 through 10-14 and 10-17. Unless otherwise ordered by the judicial authority, all appearing parties shall file sworn statements within thirty days prior to the date of the decree. Notwithstanding the above, the court may render pendente lite and permanent orders, including judgment, in the absence of the opposing party's sworn statement. The provisions of Section 25-59A (h) shall apply to sworn statements filed under this subsection.

(b) Where there is a minor child who requires support, the parties shall file a completed child support and arrearage guidelines worksheet at the time of any court hearing concerning child support.

(c) At the time of any hearing, including pendente lite and postjudgment proceedings, in which a moving party seeks a determination, modification, or enforcement of any alimony or child support order, a party shall submit an Advisement of Rights Re: Income Withholding form (JD-FM-71).

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 14, 2013, to take effect Jan. 1, 2014.) (Sec. 25a-15 was temporarily assigned the number 25a-9 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-16. Opening Argument

Instead of reading the pleadings, any party shall be permitted to make a brief opening statement at the discretion of the judicial authority, to apprise the trier in general terms as to the nature of the case being presented for trial. The judicial authority shall have discretion as to the latitude of the statements of the parties.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-16 was temporarily assigned the number 25a-10 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-17. Motion To Open Judgment of Parentage by Acknowledgment

(Amended June 14, 2024, to take effect Jan. 1, 2025.)

(a) Any signatory to an acknowledgement of parentage who wishes to challenge said acknowledgment pursuant to General Statutes § 46b-483 shall file a motion to open judgment, which shall state the statutory grounds upon which the motion is based and shall append a certified copy of the document containing the acknowledgment of parentage to such motion.

(b) Upon receipt of such motion to open and accompanying document, the clerk shall cause the matter to be docketed.

(c) Any action to challenge an acknowledgment of parentage for which there is no other family court file involving the same parties shall be commenced by an order to show cause accompanied by the motion to open judgment and the document containing the acknowledgment of parentage required by subsection (a) of this section. Upon presentation of the motion to open and the acknowledgment of parentage, the judicial authority shall cause an order to be issued requiring the adverse party or parties to appear on a day certain and show cause, if any there be, why the relief requested by the moving party should not be granted. The motion to open, acknowledgment of parentage and order shall be served on the adverse party not less than twelve days before the date of the hearing, which shall not be held more than thirty days from the filing of the challenge.

(d) If the judicial authority determines that the moving party has met the burden of proof, the acknowledgment of parentage shall be set aside only if the judicial authority determines that doing so is in the best interest of the child, based on the relevant factors set forth in General Statutes § 46b-475.

(e) Nothing in this section shall preclude an individual from filing a special defense of a challenge to a parentage judgment, or a counterclaim in response to a petition for support.

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 14, 2024, to take effect Jan. 1, 2025.) (Sec. 25a-17 was temporarily assigned the number 25a-11 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-18. Modification of Alimony or Support

(a) Upon an application for a modification of an award of alimony or support of minor children, filed by a person who is then in arrears under the terms of such award, the judicial authority may, upon hearing, ascertain whether such arrearage has accrued without sufficient excuse so as to constitute a contempt of court and, in its discretion, may determine whether any modification of current alimony and support shall be ordered prior to the payment, in whole or in part as the judicial authority may order, of any arrearage found to exist.

(b) In Title IV-D matters, upon any motion to modify support for minor children, where the motion seeks to reduce the amount of support, the judicial authority may, upon hearing, ascertain whether such arrearage has accrued without sufficient excuse so as to constitute a contempt of court and, in its discretion, may determine whether any modification of current alimony and support shall be ordered prior to the payment, in whole or in part as the judicial authority may order, of any arrearage found to exist.

(c) Either parent or both parents of minor children, or any individual receiving Title IV-D services from the state of Connecticut may be cited or summoned by any party to the action, or in Title IV-D matters by support enforcement services of

the Judicial Branch, to appear and show cause why orders of support or alimony should not be entered or modified.

(d) In matters where the parties, or other individuals pursuant to subsection (b) of this section, to a child support order are receiving Title IV-D services from the state of Connecticut, support enforcement services of the Judicial Branch may initiate a motion to modify an existing child support order pursuant to General Statutes § 46b-231 (s) (4) and, in connection with such motion, may issue an order and summons and assign a date for a hearing on such motion.

(e) If any applicant, other than support enforcement services of the Judicial Branch, is proceeding without the assistance of counsel and citation of any other party is necessary, the applicant shall sign the application and present the application, proposed order and summons to the clerk; the clerk shall review the proposed order and summons and, unless it is defective as to form, shall sign the proposed order and summons and shall assign a date for a hearing on the application.

(f) Each motion for modification shall state the specific factual and statutory basis for the claimed modification and shall include the outstanding order and date thereof to which the motion for modification is addressed.

(g) On motions addressed to financial issues, the provisions of Section 25-30 (a), (e) and (f) shall be followed.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-18 was temporarily assigned the number 25a-12 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-19. Standard Disclosure and Production

(a) Upon request by a party or as ordered by the judicial authority, opposing parties shall exchange the following documents within thirty days of such request or such order:

(1) all federal and state income tax returns filed within the last three years, including personal returns and returns filed on behalf of any partnership or closely held corporation of which a party is a partner or shareholder;

(2) IRS forms W-2, 1099 and K-1 within the last three years including those for the past year if the income tax returns for that year have not been prepared;

(3) copies of all pay stubs or other evidence of income for the current year and the last pay stub from the past year;

(4) statements for all accounts maintained with any financial institution, including banks, brokers and financial managers, for the past twenty-four months;

(5) the most recent statement showing any interest in any Keogh, IRA, profit sharing plan, deferred compensation plan, pension plan, or retirement account;

(6) the most recent statement regarding any insurance on the life of any party;

(7) a summary furnished by the employer of the party's medical insurance policy, coverage, cost of coverage, spousal benefits, and COBRA costs following dissolution;

(8) any written appraisal concerning any asset owned by either party.

(b) Such duty to disclose shall continue during the pendency of the action should a party appear. This section shall not preclude discovery under any other provisions of these rules.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-19 was temporarily assigned the number 25a-13 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-20. Medical Evidence

A party who plans to offer a hospital record in evidence shall have the record in the clerk's office twenty-four hours prior to trial. Counsel must recognize their responsibility to have medical testimony available when needed and shall, when necessary, subpoena medical witnesses to that end.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-20 was temporarily assigned the number 25a-14 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-21. Experts

As soon as is practicable, if a party, including the state of Connecticut, is going to rely on in-court expert testimony, that party shall provide notice to all opposing parties, but said notice shall not be provided less than fourteen days before the hearing. Discovery, facts unknown, and opinions held by experts may be ordered disclosed by the judicial authority on such terms and conditions as the judicial authority deems reasonable.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-21 was temporarily assigned the number 25a-15 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-22. Interrogatories; In General

(a) In any action in the family support magistrate division to establish, enforce or modify a child support order, upon motion of any party and when the judicial authority deems it necessary, any party may be required to answer all or part of the interrogatories set forth in Form 207 of the rules of practice, which is printed in the Appendix of Forms in this volume.

(b) In any parentage action before the family support magistrate division, interrogatories may only be served upon a party where the judicial authority deems it necessary.

(c) For good cause shown, in postjudgment matters, the judicial authority may upon motion authorize further discovery.

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 14, 2024, to take effect Jan. 1, 2025.) (Sec. 25a-22 was temporarily assigned the number 25a-15A in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-23. Answers to Interrogatories

(a) Any such interrogatories shall be answered under oath by the party to whom directed and such answers shall not be filed with the court but shall be served within sixty days after the date of certification of service, in accordance with Sections 10-12, 10-14 and 10-17, of the interrogatories or, if applicable, the notice of interrogatories on the answering party, unless:

(1) Counsel file with the court a written stipulation extending the time within which answers or objections may be served; or

(2) The party to whom the interrogatories are directed, after service in accordance with Sections 10-12, 10-14 and 10-17, files a request for extension of time, for not more than thirty days, within the initial sixty day period. Such request shall contain a certification by the requesting party that the case has not been assigned for trial. Such request shall be deemed to have been automatically granted by the judicial authority on the date of filing, unless within ten days of such filing the party who has served the interrogatories or the notice of interrogatories shall file objection thereto. A party shall be entitled to one such request for each set of interrogatories directed to that party; or

(3) Upon motion, the judicial authority allows a longer time.

(b) The party answering interrogatories shall attach a cover sheet to the answers. The cover sheet shall comply with Sections 4-1 and 4-2 and shall state that the party has answered all of the interrogatories or shall set forth those interrogatories to which the party objects and the reasons for objection. The cover sheet and the answers shall not be filed with the court unless the responding party objects to one or more interrogatories, in which case only the cover sheet shall be so filed.

(c) All answers to interrogatories shall repeat immediately before each answer the interrogatory being answered. Answers are to be signed by the person making them. The party serving the interrogatories or the notice of interrogatories may move for an order under Section 25a-25 with respect to any failure to answer.

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 23, 2017, to take effect Jan. 1, 2018.) (Sec. 25a-23 was temporarily assigned the number 25a-16 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-24. Requests for Production, Inspection and Examination; In General

(a) Upon motion and by order of the judicial authority, requests for production may be served upon any party at any time after the return day.

(b) If data has been electronically stored, the judicial authority may for good cause shown order disclosure of the data in an alternative format provided the data is otherwise discoverable. When the judicial authority considers a request for a particular format, the judicial authority may consider the cost of preparing the disclosure in the requested format and may enter an order that one or more parties shall pay the cost of preparing the disclosure.

(c)The party serving such request or notice of requests for production shall not file it with the court.

(d) A party seeking the production of a written authorization in compliance with the Health Insurance Portability and Accountability Act to inspect and make copies of protected health information, or a written authorization in compliance with the Public Health Service Act to inspect and make copies of alcohol and drug records that are protected by that act, shall file a motion pursuant to Section 13-11A.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-24 was temporarily assigned the number 25a-17 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-25. Order for Compliance; Failure To Answer or Comply with Order

(a) If any party has failed to answer interrogatories or to answer them fairly, or has intentionally answered them falsely or in a manner calculated to mislead, or has failed to respond to requests for production or has failed to comply with the provisions of Section 25a-26, or has failed to appear and to testify at a deposition duly noticed pursuant to this chapter, or has failed otherwise substantially to comply with any other discovery order made pursuant to Section 13-8, 13-10 except subsection (c), 25a-22, 25a-23 or 25a-24, the judicial authority may make such order as appropriate.

(b) Such orders may include the following:

(1) The entry of a nonsuit or default against the party failing to comply;

(2) The award to the discovering party of the costs of the motion, including a reasonable attorney's fee;

(3) The entry of an order that the matters regarding which the discovery was sought or other designated facts shall be taken to be established for the purposes of the action in accordance with the claim of the party obtaining the order;

(4) The entry of an order prohibiting the party who has failed to comply from introducing designated matters in evidence;

(5) If the party failing to comply is the plaintiff, the entry of a judgment of dismissal.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-25 was temporarily assigned the number 25a-18 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-26. Continuing Duty To Disclose

If, subsequent to compliance with any request or order for discovery at any time the matter is before the court, a party discovers additional or new material or information previously requested and ordered subject to discovery or inspection or discovers that the prior compliance was totally or partially incorrect or, though correct when made, is no longer true and the circumstances are such that a failure to amend the compliance is in substance a knowing concealment, that party shall promptly notify the other party, or the other party's attorney, and file and serve in accordance with Sections 10-12, 10-14 and 10-17 a supplemental or corrected compliance.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-26 was temporarily assigned the number 25a-19 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-27. Depositions; In General

In addition to other provisions for discovery and subject to the provisions of Sections 13-2, 13-3 and 13-5, any party who has appeared in any Title IV-D matter or in any matter under General Statutes §§ 46b-301 through 46b-425 where the judicial authority finds it reasonably probable that evidence outside the record will be required, may, at any time after the commencement of the action or proceeding, in accordance with the procedures set forth in this chapter, take the testimony of any person, including a party, by deposition upon oral examination. The attendance of witnesses may be compelled by subpoena as provided in Section 13-28A. The attendance of a party deponent or of an officer, director, or managing agent of a party may be compelled by notice to the named person or such person's attorney in accordance with the requirements of Section 13-27 (a). The deposition of a person confined in prison may be taken only by leave of the judicial authority on such terms as the judicial authority prescribes.

Leave of the court for such a deposition is required. Motions for the taking of a deposition shall include the proposed notice of the deposition and the identification of such documents or other tangible evidence as may be sought to be subpoenaed. Only those documents or other tangible evidence approved by the judicial authority shall be permitted to be subpoenaed from the deponent.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-27 was temporarily assigned the number 25a-19A in the Connecticut Law Journal of July 13, 2010.)

TECHNICAL CHANGE: The reference in the second sentence was updated.

Sec. 25a-28. —Place of Deposition

(a) Any party who is a resident of this state may be compelled by notice as provided in Section 13-27 (a) to give a deposition at any place within the county of such party's residence, or within thirty miles of such residence, or at such other place as is fixed by order of the judicial authority. A plaintiff who is a resident of this state may also be compelled by like notice to give a deposition at any place within the county where the action is commenced or is pending.

(b) Except as otherwise required by law, a plaintiff who is not a resident of this state may be compelled by notice under Section 13-27 (a) to attend at the plaintiff's expense an examination in the county of this state where the action is commenced or is pending or at any place within thirty miles of the plaintiff's residence or within the county of his or her residence or in such other place as is fixed by order of the judicial authority.

(c) Except as otherwise required by law, a defendant who is not a resident of this state may be compelled:

(1) By subpoena to give a deposition in any county in this state in which the defendant is personally served, or

(2) By notice under Section 13-27 (a) to give a deposition at any place within thirty miles of the defendant's residence or within the county of his or her residence or at such other place as is fixed by order of the judicial authority.

(d) A nonparty deponent may be compelled by subpoena served within this state to give a deposition at a place within the county of his or her residence or within thirty miles of the nonparty deponent's residence, or if a nonresident of this state within any county in this state in which he or she is personally served, or at such other place as is fixed by order of the judicial authority.

(e) In this section, the terms "plaintiff" and "defendant" include officers, directors and managing agents of corporate plaintiffs and corporate defendants or other persons designated under Section 13-27 (h) as appropriate.

(f) If a deponent is an officer, director or managing agent of a corporate party, or other person designated under Section 13-27 (h), the place of examination shall be determined as if the residence of the deponent were the residence of the party.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-28 was temporarily assigned the number 25a-19B in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-29. Appeal from Decision of Family Support Magistrate

Any person who is aggrieved by a final decision of a family support magistrate may appeal such decision in accordance with the provisions of General Statutes § 46b-231. The appeal shall be instituted by the filing of a petition which shall include the reasons for the appeal.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-29 was temporarily assigned the number 25a-20 in the Connecticut Law Journal of July 13, 2010.)

Sec. 25a-30. Support Enforcement Services

In cases where the payment of alimony and/or support has been ordered, a support enforcement officer, where provided by statute, shall:

(a) Whenever there is a default in any payment of alimony or support of children under judgments of dissolution of marriage or civil union or separation, or of support under judgments of support, where necessary, (1) initiate and facilitate, but not advocate on behalf of either party, an application to a family support magistrate and issue an order requiring said party to appear before a family support magistrate to show cause why such party should not be held in contempt, or (2) take such other action as is provided by rule or statute.

(b) Review child support orders (1) in non-TFA Title IV-D cases at the request of either parent or custodial party subject to a support order, or upon receipt of information indicating a substantial change in circumstances of any party to the support order, (2) in TFA cases, at the request of the office of child support services, (3) as necessary to comply with federal requirements for the child support enforcement program mandated by Title IV-D of the Social Security Act, and initiate and facilitate, but not advocate on behalf of either party, an action before a family support magistrate to modify such support order if it is determined upon such review that the order substantially deviates from the child support guidelines established pursuant to General Statutes § 46b-215a or § 46b-215b. The requesting party shall have the right to such review every three years without proving a substantial change in circumstances; more frequent reviews shall be made only if the requesting party demonstrates a substantial change in circumstances.

(c) In connection with subsection (a) or (b) above, or at any other time upon direction of a family support magistrate, investigate (1) the financial situation of the parties, using all appropriate information and resources available to the Title IV-D child support program, including information obtained through electronic means from state and federal sources in the certified child support system, or (2) information about the status of participation in programs that increase the party's ability to fulfill the duty of support, and report his or her findings thereon to a family support magistrate and to the parties and upon direction of a family support magistrate facilitate agreements between parties.

(Adopted June 21, 2010, to take effect Aug. 1, 2010.) (Sec. 25a-30 was temporarily assigned the number 25a-21 in the Connecticut Law Journal of July 13, 2010.)

SUPERIOR COURT—PROCEDURE IN JUVENILE MATTERS

CHAPTER 26

GENERAL PROVISIONS

(Amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec.
26-1. Definitions Applicable to Proceedings on Juvenile Matters
26-2. Persons in Attendance at Hearings
26-3. Case Initiation; Electronic Filing

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 26-1. Definitions Applicable to Proceedings on Juvenile Matters

In these definitions and in the rules of practice and procedure on juvenile matters, the singular shall include the plural and the plural, the singular where appropriate.

(a) The definitions of the terms "child," "abused," "delinquent," "delinquent act," "neglected," "uncared for," "alcohol-dependent," "drug-dependent," "serious juvenile offense," "serious juvenile offender," "serious juvenile repeat offender," "predispositional study," and "risk and needs assessment" shall be as set forth in General Statutes § 46b-120. The definition of "victim" shall be as set forth in General Statutes § 46b-122. The definition of "youth" shall be as set forth in General Statutes § 54-76b.

(b) "Alleged genetic parent" means a person who is alleged to be, or alleges that the person is, a genetic parent or possible genetic parent of a child or youth whose parentage has not been adjudicated. "Alleged genetic parent" includes an alleged genetic father and alleged genetic mother. "Alleged genetic parent" shall not include: (1) a presumed parent; (2) a person whose parental rights have been terminated or declared not to exist; or (3) a donor.

(c) "Clinical Coordinator" means a licensed mental health professional with specialized forensic training and employed by the court support services division of the Judicial Branch to provide consultation and assessment in delinquency matters related to the behavioral health and mental health of the child.

(d) "Clinical Consultation" means the process by which the Clinical Coordinator provides guidance regarding mental health treatment or evaluation needs.

(e) "Commitment" means an order of the judicial authority whereby custody and/or guardianship of a child or youth are transferred to the Commissioner of the Department of Children and Families.

(f) "Complaint" means a written allegation or statement presented to the judicial authority that a child's or youth's conduct as a delinquent brings the child or youth within the jurisdiction of the judicial authority as prescribed by General Statutes § 46b-121.

(g) "Forensic Clinical Assessment" means a court-ordered evaluation that is performed as part of the legal decision-making process to assist the court and others in decisions regarding interventions by taking into account the child's or youth's mental conditions, ability, behaviors, and relevant risk factors.

(h) "Guardian" means a person who has a judicially created relationship with a child or youth, which is intended to be permanent and self-sustaining, as evidenced by the transfer to the caretaker of the following parental rights with respect to the child or youth: protection, education, care and control of the person, custody of the person and decision making.

(i) "Hearing" means an activity of the court on the record in the presence of a judicial authority and shall include: (1) "Adjudicatory hearing" is a court hearing to determine the validity of the facts alleged in a petition or information to establish thereby the judicial authority's jurisdiction to decide the matter which is the subject of the petition or information; (2) "Contested hearing on an order of temporary custody" means a hearing on an ex parte order of temporary custody or an order to appear which is held not later than ten days from the day of a preliminary hearing on such orders. Contested hearings shall be held on consecutive days except for compelling circumstances or at the request of the respondent; (3) "Dispositional hearing" is a court hearing in which the judicial authority, after considering the social

study or predispositional study and the total circumstances of the child or youth, orders whatever action is in the best interests of the child or youth or family and, where applicable, the community. In the discretion of the judicial authority, evidence concerning adjudication and disposition may be presented in a single hearing; (4) "Preliminary hearing" means a hearing on an ex parte order of temporary custody or an order to appear or the first hearing on a petition alleging that a child or youth is uncared for, abused, or neglected. A preliminary hearing on any ex parte custody order or order to appear shall be held not later than ten days from the issuance of the order; (5) "Plea hearing" is a hearing at which (A) a parent or guardian who is a named respondent in a neglect, uncared for or dependency petition, upon being advised of their rights, admits, denies, or pleads nolo contendere to allegations contained in the petition; or (B) a child or youth who is a named respondent in a delinquency petition or information enters a plea of not guilty, guilty, or nolo contendere upon being advised of the charges against them contained in the information or petition; (6) "Probation status review hearing" means a hearing requested, ex parte, by a probation officer regardless of whether a new offense or violation has been filed. The court may grant the ex parte request, in the best interest of the child or youth or the public, and convene a hearing on the request within seven days.

(j) "Indian child" means an unmarried person under age eighteen who is either a member of a federally recognized Indian tribe or is eligible for membership in a federally recognized Indian tribe and is the biological child of a member of a federally recognized Indian tribe, and is involved in custody proceedings, excluding delinquency proceedings.

(k) "Juvenile residential center" means a hardware-secured residential facility operated by the court support services division of the Judicial Branch that includes direct staff supervision, surveillance enhancements and physical barriers that allow for close supervision and controlled movement in a treatment setting for preadjudcated juveniles and juveniles adjudicated as delinquent.

(*l*) "Parent" means a person who has established a parent-child relationship pursuant to General Statutes § 46b-471.

(m) "Parties" includes: (1) The child or youth who is the subject of a proceeding; (2) any person, including a parent, whose legal relationship to the matter pending before the judicial authority is of such a nature and kind as to mandate the receipt of proper legal notice as a condition precedent to the establishment of the judicial authority's jurisdiction to adjudicate the matter pending before it; and (3) any person who is permitted to intervene in accordance with Section 35a-4.

(n) "Person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3)" means a person who jointly with another parent, resided in the same household with the child and openly held out the child as the person's own child from the time the child was born or adopted and for a period of at least two years thereafter, including any period of temporary absence.

(o) "Permanency plan" means a plan developed by the Commissioner of the Department of Children and Families for the permanent placement of a child or youth in the commissioner's care. Permanency plans shall be reviewed by the judicial authority as prescribed in General Statutes §§ 17a-110 (b), 17a-111b (c) and 46b-129 (k).

(p) "Petition" means a formal pleading, executed under oath, alleging that the respondent is within the judicial authority's jurisdiction to adjudicate the matter which is the subject of the petition by reason of cited statutory provisions and seeking a disposition. Except for a petition for erasure of record, such petitions invoke a judicial hearing and shall be filed by any one of the parties authorized to do so by statute.

(q) "Information" means a formal pleading filed by a prosecutor alleging that a child or youth in a delinquency matter is within the judicial authority's jurisdiction.

(r) "Probation supervision" means a legal status whereby a child or youth who has been adjudicated delinquent is placed by the court under the supervision of juvenile probation for a specified period of time and upon such terms as the court determines.

(s) "Probation supervision with residential placement" means a legal status whereby a child or youth who has been adjudicated delinquent is placed by the court under the supervision of juvenile probation for a specified period of time, upon such terms as the court determines, that include a period of placement in a secure or staff-secure residential treatment facility, as ordered by the court, and a period of supervision in the community.

(t) "Respondent" means a child or youth who is alleged to be a delinquent, or a parent or a guardian of a child or youth who is the subject of a petition alleging that the child or youth is uncared for, abused, neglected, or requesting termination of parental rights.

(u) "Secure-residential facility" means a hardware-secured residential facility that includes

direct staff supervision, surveillance enhancements and physical barriers that allow for close supervision and controlled movement in a treatment setting.

(v) "Service Memorandum" means a written report completed by a clinical coordinator in response to a court order for a forensic clinical assessment.

(w) "Specific steps" means those judicially determined steps the parent or guardian and the Commissioner of the Department of Children and Families shall take in order for the parent or guardian to retain or regain custody of a child or youth.

(x) "Staff-secure facility" means a residential facility: (1) that does not include construction features designed to physically restrict the movements and activities of juvenile residents who are placed therein; (2) that may establish reasonable rules restricting entrance to and egress from the facility; and (3) in which the movements and activities of individual juvenile residents may, for treatment purposes, be restricted or subject to control through the use of intensive staff supervision.

(y) "Staff-secure residential facility" means a residential facility that provides residential treatment for a child or youth in a structured setting monitored by staff.

(z) "Supervision" includes: (1) "Nonjudicial supervision," a legal status without the filing of a petition or a court conviction or adjudication but following the child's or youth's admission to a complaint wherein a probation officer exercises supervision over the child or youth with the consent of the child or youth and the parent; (2) "Protective supervision," a disposition following adjudication in neglected, abused or uncared for cases created by an order of the judicial authority requesting a supervising agency other than the court to assume the responsibility of furthering the welfare of the family and best interests of the child or youth when the child's or youth's place of abode remains with the parent or any suitable or worthy person, or when the judicial authority vests custody or guardianship in another suitable and worthy person, subject to the continuing jurisdiction of the court; and (3) "Judicial supervision," a legal status similar to probation for a child or youth subject to supervision pursuant to an order of suspended delinquency proceedings under General Statutes § 46b-133b or § 46b-133e.

(aa) "Take into Custody Order" means an order by a judicial authority that a child or youth be taken into custody and immediately turned over to a Juvenile Residential Center Superintendent where probable cause has been found that the child or youth has committed a delinquent act, there is no less restrictive alternative available, and the child or youth meets the criteria set forth in Section 31a-13.

(P.B. 1978-1997, Sec. 1023.1.) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 26-2. Persons in Attendance at Hearings

(a) Except as provided in subsection (b) of this section, any judge hearing a juvenile matter may, during such hearing, exclude from the courtroom in which such hearing is held any person whose presence is, in the court's opinion, not necessary except that in delinquency proceedings, any victim or a victim's next of kin shall not be excluded unless, after hearing from the parties and the victim or a victim's next of kin and for good cause shown, which shall be clearly and specifically stated on the record, the judge orders otherwise.

(b) Any judge hearing a juvenile matter, in which a child or youth is alleged to be uncared for, neglected or abused or in which a child or youth is the subject of a petition for termination of parental rights, may permit any person whom the court finds has a legitimate interest in the hearing or the work of the court to attend such hearing. Such person may include a party, foster parent, relative related to the child or youth by blood or marriage, service provider or any person or representative of any agency, entity or association, including a representative of the news media. The court may, as a condition of participation, for the child's or youth's safety and protection and for good cause shown, prohibit any person or representative of any agency, entity or association, including a representative of the news media, who is present in court from further disclosing any information that would identify the child or youth, the custodian or caretaker of the child or youth or the members of the child's or youth's family involved in the hearing.

(Adopted June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 26-3. Case Initiation; Electronic Filing

Proceedings in juvenile matters may be initiated and papers filed, signed or verified by electronic means in the manner prescribed in Section 4-4.

(Adopted June 12, 2015, to take effect Jan. 1, 2016.)

CHAPTER 27

RECEPTION AND PROCESSING OF DELINQUENCY COMPLAINTS OR PETITIONS

(Amended June 30, 2008, to take effect Jan. 1, 2009; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec.		Sec.	
27-1.	Complaints; In General [Repealed]	27-5.	Initial Interview for Delinquency Nonjudicial Handling Eligibility
27-1A.	Referrals for Nonjudicial Handling of Delinquency Complaints	27-6.	Denial of Responsibility
27-2.	—Insufficient Allegations in Complaints [Repealed]	27-7.	—Written Statement of Responsibility
27-3.	—Sufficient Allegations in Complaints [Repealed]	27-8.	—Scheduling of Judicial Plea/Dispositional Hearing [Repealed]
27-4.	Additional Offenses and Misconduct	27-8A.	Nonjudicial Supervision—Delinquency
27-4A.	Ineligibility for Nonjudicial Handling or Diversion of Delinquency Complaint	27-9.	Family with Service Needs Referrals [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 27-1. Complaints; In General

[Repealed as of Jan. 1, 2003.]

Sec. 27-1A. Referrals for Nonjudicial Handling of Delinquency Complaints

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) Any police summons accompanied by a police report alleging an act of delinquency shall be in writing and signed by the police officer and filed with the clerk of the Superior Court for juvenile matters. After juvenile identification and docket numbers are assigned, the summons and report shall be referred to the probation department for possible nonjudicial handling.

(b) If the probation supervisor or designee determines that a delinquency complaint is eligible for nonjudicial handling, the assigned probation officer shall contact the parent or guardian in advance of the summons date in order to schedule an interview with the parent or guardian and child or youth for the purpose of conducting risk and behavioral health screenings. A child or youth determined by the risk screen to be at low risk to reoffend will be referred to community based diversionary programs with no further court intervention. Judicial handling will be reserved for those found to be at the highest levels of risk. All other cases will be eligible for nonjudicial handling. Refusal to participate in the screening process will render the child or youth ineligible for diversion.

(c) Delinquency matters eligible for nonjudicial handling shall be designated as such on the docket. If the prosecuting authority objects to the designation, the judicial authority shall determine if such designation is appropriate. The judicial authority may refer to the Office of Juvenile Probation a matter so designated and may, sua sponte, refer a matter for nonjudicial handling prior to adjudication.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 27-2. —Insufficient Allegations in Complaints

[Repealed as of Jan. 1, 2003.]

Sec. 27-3. —Sufficient Allegations in Complaints

[Repealed as of Jan. 1, 2003.]

Sec. 27-4. Additional Offenses and Misconduct

(Amended June 24, 2002, to take effect Jan. 1, 2003.)

Any additional police summons, delinquency complaint, delinquency petition, or information regarding a child or youth which is received by the court prior to action by the judicial authority on any pending request for nonjudicial handling shall be consolidated with the initial offenses or misconduct for purposes of eligibility for nonjudicial handling.

(P.B. 1978-1997, Sec. 1025.1 (2).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 27-4A. Ineligibility for Nonjudicial Handling or Diversion of Delinquency Complaint

(Amended June 30, 2008, to take effect Jan. 1, 2009; amended June 10, 2022, to take effect Jan. 1, 2023.)

In the case of a delinquency complaint, a child or youth shall not be eligible for nonjudicial han-

dling or diversion if one or more of the following apply, unless waived by the judicial authority:

(1) The alleged misconduct is:

(A) a serious juvenile offense under General Statutes § 46b-120;

(B) a violent felony; or

(C) a violation of General Statutes § 53a-54d; or

(2) The alleged misconduct was committed by a child or youth while on probation or under judicial supervision.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 27-5. Initial Interview for Delinquency Nonjudicial Handling Eligibility

(Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) At the initial interview to determine eligibility for nonjudicial handling of a delinquency complaint, held at the time of arraignment or notice date, the probation officer shall inquire of the child or youth and parent or guardian whether they have read the court documents and understand the nature of the complaint set forth therein. Any allegations of misconduct being considered for nonjudicial handling, including any additional allegations not contained in the summons or notice to appear because they were filed with the court after the issuance of that notice shall likewise be explained in simple and nontechnical language.

(b) The probation officer shall inform the child or youth and parent or guardian of their rights under Section 30a-1. If either the child or youth or the parent or guardian state that they wish to be represented by counsel, or if the probation officer determines that a judicial hearing is necessary, the interview shall end. Any further interview to consider nonjudicial handling shall take place with counsel present unless waived.

(P.B. 1978-1997, Sec. 1025.1 (3), (4).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 27-6. Denial of Responsibility

(Amended June 24, 2002, to take effect Jan. 1, 2003.)

Where the child or youth denies responsibility for the alleged misconduct, the interview shall end and the child or youth and the parent or guardian shall be informed that, if the evidence warrants, the case will be set down for a plea hearing.

(P.B. 1978-1997, Sec. 1025.1 (8), (9).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 27-7. —Written Statement of Responsibility

(a) Where the child or youth and the parent or guardian affirm that they are ready to go forward with the investigation, with or without counsel, and to make a statement concerning the child's or youth's responsibility for the alleged misconduct, such affirmation must be embodied in a written statement of responsibility executed by both child or youth and parent, or guardian, and, in the case of the child or youth, in the presence of the parent or guardian.

(b) If a child or youth orally acknowledges responsibility for the alleged misconduct but refuses to execute a written statement of responsibility, such an oral admission shall not be accepted as the equivalent of an admission, and the case shall be dealt with in the manner pre- scribed in Section 27-6. If the written statement of responsibility is executed, the probation officer shall proceed with the nonjudicial handling of the case.

(c) The age, intelligence and maturity of the child or youth and the mutuality of interests between parent or guardian and child or youth shall be weighed in determining their competency to execute such written statement of responsibility.

(P.B. 1978-1997, Sec. 1025.1 (5), (6).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 27-8. —Scheduling of Judicial Plea/ Dispositional Hearing

[Repealed as of Jan. 1, 2003.]

Sec. 27-8A. Nonjudicial Supervision—Delinquency

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) If a child or youth has acknowledged responsibility for the alleged misconduct which is not one for which a judicial hearing is mandated pursuant to Section 27-4A, and the probation officer has then found from investigation of the child's or youth's total circumstances that some form of court accountability less exacting than that arising out of a court appearance appears to be in the child's or youth's best interests, the officer may, subject to the conditions imposed by subsection (b) hereof, place the child or youth on nonjudicial supervision for a term established by the juvenile probation supervisor for a period not to exceed 180 days.

(b) Whenever the probation officer seeks to effect nonjudicial supervision, the parent and the child or youth shall have a right to a conference with the probation officer's administrative superior, or a court hearing. Whenever a parent or child or youth elects to pursue either or both rights,

supervision shall be held in abeyance until the outcome thereof.

(c) Such nonjudicial supervision when completed shall constitute a resolution of the case, and thereafter a child or youth may not again be presented for formal court action on the same summons, complaint or petition or the facts therein set forth, provided however, that a judicial hearing may be initiated on the original summons, complaint, petition, or information during said nonjudicial supervision if there has been a failure to comply with terms of the supervision and any oral or written statement of responsibility shall not be used against the child or youth. When the judicial authority refers the file for nonjudicial handling, the referral order should provide that upon successful completion of any nonjudicial handling, the matter will be dismissed and erased immediately without the filing of a request, application or petition for erasure, for all purposes except for subsequent consideration for nonjudicial handling under Section 27-4A.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 27-9. Family with Service Needs Referrals

[Repealed as of Jan. 1, 2022.]

CHAPTER 28

DELINQUENCY AND FAMILY WITH SERVICE NEEDS NONJUDICIAL SUPERVISION

[Repealed as of Jan. 1, 2003.]

Sec.
28-1. Nonjudicial Supervision [Repealed] (Transferred to Section 27-8A.)

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 28-1. Nonjudicial Supervision

[Repealed as of Jan. 1 2003.]

CHAPTER 29

RECEPTION AND PROCESSING OF DELINQUENCY PETITIONS AND DELINQUENCY INFORMATIONS

(Amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec.
29-1. Contents of Delinquency Petitions or Informations
29-1A. Processing of Delinquency Petitions and Informations
29-1B. Processing of Family with Service Needs Petitions [Repealed]
29-2. Service of Petitions

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 29-1. Contents of Delinquency Petitions or Informations

(Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022.)

A delinquency petition or information shall set forth in plain, concise and definite language the offense which the petitioner contends the child or youth has committed. The petition or information shall further state the citation of any provision of law which is the basis of the petition or information, together with a statement that the offense occurred on or about a particular date or period of time at a particular location.

(P.B. 1978-1997, Sec. 1027.1 (1), (2).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 29-1A. Processing of Delinquency Petitions and Informations

The procedures promulgated in General Statutes § 46b-128 or § 46b-133 (a), (b), (c) and (d) shall apply. Any police summons and report which requires judicial processing should be returned to the clerk for preparation of a formal information based on the police summons report. The information, summons and report shall be submitted to the juvenile prosecutor for review and verified signature. The juvenile prosecutor may thereafter file an amendment or a substituted information.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 29-1B. Processing of Family with Service Needs Petitions

[Repealed as of Jan.1 2022.]

Sec. 29-2. Service of Petitions

(a) Notice of summons, together with a copy of the verified delinquency petition, may be made to the child or youth and parent, guardian or other person having control of the child or youth by service in accordance with any one of the methods set out in General Statutes § 46b-128. Any notice sent by first class mail shall include a provision informing the party that appearance in court as a result of the notice may subject the appearing party to the jurisdiction of the court. If the child or youth does not appear on the plea date, service shall be made in accordance with General Statutes § 46b-128.

(b) Petitions alleging delinquency shall be served or delivered not less than seven days before the date of the hearing which shall be held not more than thirty days from the date of filing of the petition.

(P.B. 1978-1997, Sec. 1027.1 (3), (4).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022.)

CHAPTER 30

DETENTION

Sec.
30-1. Notice and Statement by Person Bringing Child to Detention [Repealed]
30-1A. Admission to a Juvenile Residential Center
30-2. Release [Repealed]
30-2A. Nondelinquent Juvenile Runaway from Another State and Detention
30-3. Advisement of Rights
30-4. Notice to Parents by Juvenile Residential Center Personnel
30-5. Detention Time Limitations
30-6. Basis for Detention
30-7. Place of Detention Hearings
30-8. Initial Order for Detention; Waiver of Hearing
30-9. Information Allowed at Detention Hearing
30-10. Orders of a Judicial Authority after Initial Detention Hearing
30-11. Detention after Dispositional Hearing
30-12. Where Presence of a Detained Child or Youth May Be by Means of an Interactive Audiovisual Device

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 30-1. Notice and Statement by Person Bringing Child to Detention

[Repealed as of Jan. 1, 2003.]

Sec. 30-1A. Admission to a Juvenile Residential Center

(Amended June 10, 2022, to take effect Jan. 1, 2023.)

Whenever an officer or other person intends to admit a child into a juvenile residential center, the provisions of General Statutes § 46b-133 shall apply.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 30-2. Release

[Repealed as of Jan. 1, 2003.]

Sec. 30-2A. Nondelinquent Juvenile Runaway from Another State and Detention

(Amended June 11, 2021, to take effect Jan. 1, 2022.)

No nondelinquent juvenile runaway from another state may be held in a juvenile residential center in accordance with the provisions of General Statutes § 46b-151h.

(Adopted June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 30-3. Advisement of Rights

Upon admission to a juvenile residential center, the child or youth shall be advised of the right to remain silent and the right to counsel and be further advised of the right to a detention hearing in accordance with Sections 30-5 through 30-8, which hearing may be waived only with the written consent of the child or youth and the child's or youth's attorney.

(P.B. 1978-1997, Sec. 1030.1 (3).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30-4. Notice to Parents by Juvenile Residential Center Personnel

(Amended June 10, 2022, to take effect Jan. 1, 2023.)

Upon admission, the Juvenile Residential Center Superintendent or a designated representative shall make efforts to immediately notify the parent or guardian in the manner calculated most speedily to effect such notice and, upon the parent's or guardian's appearance at the juvenile residential center, shall advise the parent or guardian of their rights and note the child's or youth's rights, including the child's or youth's right to a detention hearing.

(P.B. 1978-1997, Sec. 1030.1 (4).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30-5. Detention Time Limitations

(a) No child or youth shall be held in a juvenile residential center for more than twenty-four hours, excluding Saturdays, Sundays, and holidays, unless (1) a delinquency petition or information alleging a delinquent act has been filed and (2) an order for such continued detention has been signed by the judicial authority following a hearing as provided by subsection (b) of this section or a waiver of hearing as provided by Section 30-8.

(b) A hearing to determine probable cause and the need for further detention shall be held no later than the next business day following the arrest.

(c) If a nondelinquent child or youth is being held for another jurisdiction in accordance with the Interstate Compact on Juveniles, following the initial hearing as provided by subsection (b) of this section, that child or youth shall be held not

more than ninety days and shall be held in a secure facility, as defined by rules promulgated in accordance with the Compact, other than a locked juvenile residential center.

(P.B. 1978-1997, Sec. 1031.1 (1).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30-6. Basis for Detention

No child or youth may be held in a juvenile residential center unless a judge of the Superior Court determines, based on the available facts that there is probable cause to believe that the child or youth has committed the delinquent acts alleged, that there is no appropriate less restrictive alternative available and that there is (1) probable cause to believe that the level of risk that the child or youth poses to public safety if released to the community prior to the court hearing or disposition cannot be managed in a less restrictive setting, (2) a need to hold the child or youth in order to ensure the child's or youth's appearance before the court or compliance with court process, as demonstrated by the child's or youth's previous failure to respond to the court process, or (3) a need to hold the child or youth for another jurisdiction. The court in exercising its discretion to detain under General Statutes § 46b-133 (e) may consider as an alternative to detention a suspended detention order with graduated sanctions based upon a detention risk screening for such child or youth developed by the Judicial Branch.

(P.B. 1978-1997, Sec. 1031.1 (2).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30-7. Place of Detention Hearings

The initial detention hearing shall be in the Superior Court for juvenile matters where the child or youth resides if the residence of the child or youth can be determined, and, thereafter, detention hearings shall be held at the Superior Court for juvenile matters of appropriate venue.

(P.B. 1978-1997, Sec. 1031.1 (3).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30-8. Initial Order for Detention; Waiver of Hearing

(Amended June 24, 2002, to take effect Jan. 1, 2003.)

Such initial order of detention may be signed without a hearing only if there is a written waiver of the detention hearing by the child or youth and the child's or youth's attorney and there is a finding by the judicial authority that the circumstances outlined in Section 30-6 pertain to the child or youth in question. An order of detention entered without a hearing shall authorize the detention of the child or youth for a period not to exceed seven days, including the date of admission, or until the dispositional hearing is held, whichever is shorter, and may further authorize the Juvenile Residential Center Superintendent or a designated representative to release the child or youth to the custody of a parent, guardian or some other suitable person, with or without conditions of release, if detention is no longer necessary, except that no child or youth shall be released from a juvenile residential center who is alleged to have committed a serious juvenile offense except by order of a judicial authority of the Superior Court. Such an ex parte order of detention shall be renewable only at a detention hearing before the judicial authority for a period that does not exceed seven days or until the dispositional hearing is held, whichever is shorter.

(P.B. 1978-1997, Sec. 1031.1 (4).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30-9. Information Allowed at Detention Hearing

At the detention hearing the judicial authority may consider any information which is material and relevant to the issue of detention. Probable cause may be proven by sworn affidavit in lieu of testimony. The probation department may ascertain such factors as might pertain to any need for detention. Any written reports or social records made available to the judicial authority shall be made available to counsel of record and, in the absence of counsel, to the parties unless the judicial authority finds that the availability of such materials would be psychologically destructive to the relationship between members of the family. Either through direct access or by quotation or summation by the judicial authority, the parties should be made aware of such findings in the reports or social records as directly enter into the judicial authority's decision.

(P.B. 1978-1997, Sec. 1032.1 (1).) (Amended June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 30-10. Orders of a Judicial Authority after Initial Detention Hearing

(Amended June 24, 2002, to take effect Jan. 1, 2003.)

(a) At the conclusion of the initial detention hearing, the judicial authority shall issue an order for

detention on finding probable cause to believe that the child or youth has committed a delinquent act and that at least one of the factors outlined in Section 30-6 applies to the child or youth.

(b) If the child or youth is placed in a juvenile residential center, such order for detention shall be for a period not to exceed seven days, including the date of admission, or until the dispositional hearing is held, whichever is the shorter period, unless, following a further detention review hearing, the order is renewed for a period that does not exceed seven days or until the dispositional hearing is held, whichever is shorter. Such detention review hearing may not be waived.

(c) If the child or youth is not placed in a juvenile residential center but released on a suspended order of detention on conditions, such suspended order of detention shall continue to the dispositional hearing or until further order of the judicial authority. Said suspended order of detention may be reviewed by the judicial authority every seven days. Upon a finding of probable cause that the child or youth has violated any condition, a judicial authority may issue a take into custody order or order such child or youth to appear in court for a hearing on revocation of the suspended order of detention. Such an order to appear shall be served upon the child or youth in accordance with General Statutes § 46b-128 (b), or, if the child or youth is represented, by serving the order to appear upon the child's or youth's counsel, who shall notify the child or youth of the order and the hearing date. After a hearing and upon a finding that the child or youth has violated reasonable conditions imposed on release, the judicial authority may impose different or additional conditions of release or may remand the child or youth to a juvenile residential center.

(d) In conjunction with any order of release from a juvenile residential center, the judicial authority may, in accordance with General Statutes § 46b-133 (g), order the child or youth to participate in a program of periodic alcohol or drug testing and treatment as a condition of such release. The results of any such alcohol or drug test shall be admissible only for the purposes of enforcing the conditions of release from a juvenile residential center.

(P.B. 1978-1997, Sec. 1032.1 (2), (3).) (Amended June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30-11. Detention after Dispositional Hearing

While awaiting implementation of the judicial authority's order in a delinquency case, a child or youth may be held in a juvenile residential center subsequent to the dispositional hearing, provided a hearing to review the circumstances and conditions of such detention order shall be conducted every seven days and such hearing may not be waived.

(P.B. 1978-1997, Sec. 1032.1 (4).) (Amended June 30, 2008, to take effect Jan. 1, 2009; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30-12. Where Presence of a Detained Child or Youth May Be by Means of an Interactive Audiovisual Device

(Amended June 14, 2024, to take effect Jan. 1, 2025.)

(a) The appearance of a detained child or youth for proceedings held in accordance with Sections 30-10 and 30-11 may, with the consent of the detained child or youth, the consent of counsel for the detained child or youth, and in the discretion of the judicial authority on motion of a party or on its own motion, be made by means of an interactive audiovisual device. Such interactive audiovisual device must operate so that such detained child or youth, counsel, and the judicial authority if the proceeding is in court, can see and communicate with each other simultaneously. In addition, a procedure by which such detained child or youth can confer with counsel in private must be provided.

(b) Unless otherwise required by law or unless otherwise ordered by the judicial authority, prior to a detention hearing in which a detained child or youth appears by means of an interactive audiovisual device, copies of all documents which may be offered at the detention hearing shall be provided to all counsel.

(Adopted June 13, 2019, to take effect Oct. 1, 2019; amended June 14, 2024, to take effect Jan. 1, 2025.)

CHAPTER 30a

DELINQUENCY HEARINGS

(Amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec.
30a-1. Initial Plea Hearing
30a-1A. Family with Service Needs Preadjudication Continuance [Repealed]
30a-2. Pretrial Conference
30a-3. —Standard of Proof; Burden of Going Forward
30a-4. Plea Canvass
30a-5. Dispositional Hearing
30a-6. —Statement on Behalf of Victim
30a-6A. —Persons in Attendance at Hearings [Repealed] (Transferred to Section 26-2.)
30a-7. Recording of Hearings
30a-8. Records
30a-9. Appeals in Delinquency Proceedings

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 30a-1. Initial Plea Hearing

(a) The judicial authority shall begin the hearing by determining whether all necessary parties are present, that the rules governing service or notice for nonappearing parties have been complied with, and shall note these facts for the record. The judicial authority shall then inform the parties of the substance of the petition or information.

(b) In age appropriate language, the judicial authority prior to any plea shall advise the child or youth and parent or guardian of the following rights:

(1) That the child or youth is not obligated to say anything and that anything that is said may be used against the child or youth;

(2) That the child or youth is entitled to the services of an attorney and that if the child or youth and the parent or parents, or guardian are unable to afford an attorney for the child or youth, an application for a public defender or an attorney appointed by the chief public defender should be completed and filed with the Office of the Public Defender or the clerk of the court to request an attorney without cost;

(3) That the child or youth will not be questioned unless they consent that the child or youth can consult with an attorney before being questioned and may have an attorney present during questioning, and that the child or youth can stop answering questions at any time;

(4) That the child or youth has the right to a trial and the rights of confrontation and cross examination of witnesses; and

(5) That the child or youth has the right to appeal and final decision made by the court.

(c) Notwithstanding any prior statement acknowledging responsibility for the acts alleged, the judicial authority shall inquire of the child or youth whether the child or youth presently admits or denies the allegations of the petition or information.

(d) If the judicial authority determines that a child or youth, or the parent, parents or guardian of a child or youth are unable to afford counsel for the child or youth, the judicial authority shall, in a delinquency proceeding, appoint the Office of the Public Defender to represent the child or youth.

(e) If the judicial authority, even in the absence of a request for appointment of counsel, determines that the interests of justice require the provision of an attorney to represent the child, youth or the child's or youth's parent or parents, guardian or other person having control of the child or youth, in any delinquency proceeding, the judicial authority may appoint an attorney to represent any such party and shall notify the chief public defender who shall assign an attorney to represent any such party. Where, under the provisions of this section, the court so appoints counsel for any such party who is found able to pay, in whole or in part, the cost thereof, the judicial authority shall assess as costs on the appropriate form against such parent or parents, guardian or other person having control of the child or youth, including any agency vested with the legal custody of the child or youth, the expense so incurred and paid by the Public Defender Services Commission in providing such counsel, to the extent of their financial ability to do so in accordance with the rates established by the Public Defender Services Commission for compensation of counsel.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30a-1A. Family with Service Needs Preadjudication Continuance

[Repealed as of Jan. 1, 2022.]

Sec. 30a-2. Pretrial Conference

(a) When counsel is requested, or responsibility is denied, the case may be continued for a pretrial

conference. At the pretrial, the parties may agree that a substitute information will be filed, or that certain charges will be nolled or dismissed. If the child or youth and parent or guardian subsequently execute a written statement of responsibility at the pretrial conference, or the attorney for the child or youth conveys to the prosecutor an agreement on the adjudicatory grounds, a predispositional study shall be compiled by the probation department and the case shall be assigned for a plea and dispositional hearing.

(b) If a plea agreement has been reached by the parties which contemplates the entry of a plea of guilty or nolo contendere in a delinquency case, and the recommendation of a particular disposition, the agreement shall be disclosed in open court at the time the plea is offered. Thereupon the judicial authority may accept or reject any agreement, or may defer the decision on acceptance or rejection of the agreement until it has had an opportunity to review the predispositional study.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 30a-3. —Standards of Proof; Burden of Going Forward

(Amended June 30, 2003, to take effect Jan. 1, 2004; amended June 11, 2021, to take effect Jan. 1, 2022.)

(a) The standard of proof for a delinquency adjudication is evidence beyond a reasonable doubt.

(b) The burden of going forward with evidence shall rest with the juvenile prosecutor.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2003, to take effect Jan. 1, 2004; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 30a-4. Plea Canvass

To assure that any plea or admission is voluntary and knowingly made, the judicial authority shall address the child or youth in age appropriate language to determine that the child or youth substantially understands:

(1) The nature of the charges;

(2) The factual basis of the charges;

(3) The possible penalty, including any extensions or modifications;

(4) That the plea or admission must be voluntary and not the result of force, threats, or promises, apart from the plea agreement;

(5) That the child or youth has (i) the right to deny responsibility or plead not guilty or to persist if that denial or plea has already been made, (ii) the right to be tried by a judicial authority and (iii) at trial, the right to the assistance of counsel, the right to confront and cross-examine witnesses against them and the right not to be compelled to incriminate themselves.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30a-5. Dispositional Hearing

(a) The dispositional hearing may follow immediately upon an adjudication.

(b) The judicial authority may admit into evidence any testimony that is considered relevant to the issue of the disposition, in any form the judicial authority finds of probative value, but no disposition shall be made by the judicial authority until the predispositional study, unless waived, has been submitted. A written predispositional study may be waived by the judicial authority for good cause shown upon the request of the parties, provided that the basis for the waiver and the probation officer's oral summary of any investigation are both placed on the record. The predispositional study shall be presented to the judicial authority and copies thereof shall be provided to all counsel in sufficient time for them to prepare adequately for the dispositional hearing, and, in any event, no less than forty-eight hours prior to the date of the disposition.

(c) No disposition for probation supervision with residential placement in either a secure or staff-secure facility shall be made by the court until the written predispositional study and service memorandum have been submitted and reviewed by the judicial authority and a finding has been made by the judicial authority that (1) such placement is indicated by the child's or youth's clinical and behavioral needs or (2) the level of risk the child or youth poses to public safety cannot be managed in a less restrictive setting. The written predispositional study and service memorandum shall be presented to the judicial authority, and copies thereof shall be provided to all counsel in sufficient time to prepare adequately for the dispositional hearing.

(d) In cases in which the disposition is probation supervision with residential placement, the child's or youth's length of stay in a residential facility shall be dependent on the child's or youth's treatment progress and attainment of treatment goals, for an indeterminate period not to exceed eighteen months, exclusive of any request made for an extension of probation.

(e) The prosecutor, the attorney for the child or youth, the child or youth, and parent or guardian for the child or youth shall have the right to produce witnesses and evidence, including an independent evaluation, on behalf of any dispositional plan they may wish to offer.

(f) Prior to any disposition, the child or youth shall be allowed a reasonable opportunity to make a personal statement to the judicial authority in mitigation of any disposition.

(g) The judicial authority shall determine an appropriate disposition upon adjudication of a child or youth as delinquent in accordance with General Statutes § 46b-140.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30a-6. —Statement on Behalf of Victim

Whenever a victim of a delinquent act, the parent or guardian of such victim or such victim's counsel exercises the right to appear before the judicial authority for the purpose of making a statement to the judicial authority concerning the disposition of the case, no statement shall be received unless the delinquent child or youth has signed a statement of responsibility, confirmed a plea agreement or been adjudicated as a delinquent.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 30a-6A. —Persons in Attendance at Hearings

[Transferred as of Jan. 1, 2013, to Section 26-2.]

Sec. 30a-7. Recording of Hearings

A verbatim stenographic or electronic recording shall be kept of any hearing, the transcript of which shall form part of the record of the case.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 30a-8. Records

(a) Except as otherwise provided by statute, all records maintained in juvenile matters brought before the judicial authority, either current or closed, including transcripts of hearings, shall be kept confidential.

(b) Except as otherwise provided by statute, no material contained in the court records, including the predispositional study, service memorandum, medical or clinical reports, school reports, police reports, or the reports of social agencies, may be copied or otherwise reproduced in written form in whole or in part by the parties without the express consent of the judicial authority.

(c) Each counsel and self-represented party in a delinquency matter shall have access to and be entitled to copies, at his or her expense, of the entire court record, including transcripts of all proceedings, without express consent of the judicial authority.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 14, 2024, to take effect Jan. 1, 2025.

Sec. 30a-9. Appeals in Delinquency Proceedings

(Amended June 11, 2021, to take effect Jan. 1, 2022.)

The rules governing other appeals shall, so far as applicable, be the rules for all proceedings in delinquency appeals.

(Adopted June 15, 2012, to take effect Jan. 1, 2013; amended June 11, 2021, to take effect Jan. 1, 2022.)

CHAPTER 31

DELINQUENCY AND FAMILY WITH SERVICE NEEDS HEARING

[Repealed as of Jan. 1, 2003.]

Sec.
31-1. Adjudicatory Hearing; Actions by Judicial Authority [Repealed]
31-2. —Continuance for Pretrial Conference [Repealed]
31-3. —Burden of Going Forward [Repealed]
31-4. —Physical Presence of Child [Repealed]
31-5. Dispositional Hearing; Factors To Be Considered by Judicial Authority [Repealed]
31-6. —When Held; Evidence and Predispositional Study [Repealed]
31-7. —Availability of Predispositional Study to Counsel and Parties [Repealed]
31-8. —Dispositional Plan Offered by Child or Parent [Repealed]
31-9. —Statement on Behalf of Victim [Repealed]
31-10. Modification of Probation and Supervision [Repealed]
31-11. Take into Custody [Repealed]
31-12. Physical and Mental Examinations [Repealed]
31-13. Mentally Ill Children [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 31-1. Adjudicatory Hearing; Actions by Judicial Authority

[Repealed as of Jan. 1, 2003.]

Sec. 31-2. —Continuance for Pretrial Conference

[Repealed as of Jan. 1, 2003.]

Sec. 31-3. —Burden of Going Forward

[Repealed as of Jan. 1, 2003.]

Sec. 31-4. —Physical Presence of Child

[Repealed as of Jan. 1, 2003.]

Sec. 31-5. Dispositional Hearing; Factors To Be Considered by Judicial Authority

[Repealed as of Jan. 1, 2003.]

Sec. 31-6. —When Held; Evidence and Predispositional Study

[Repealed as of Jan. 1, 2003.]

Sec. 31-7. —Availability of Predispositional Study to Counsel and Parties

[Repealed as of Jan. 1, 2003.]

Sec. 31-8. —Dispositional Plan Offered by Child or Parent

[Repealed as of Jan. 1, 2003.]

Sec. 31-9. —Statement on Behalf of Victim

[Repealed as of Jan. 1, 2003.]

Sec. 31-10. Modification of Probation and Supervision

[Repealed as of Jan. 1, 2003.]

Sec. 31-11. Take into Custody

[Repealed as of Jan. 1, 2003.]

Sec. 31-12. Physical and Mental Examinations

[Repealed as of Jan. 1, 2003.]

Sec. 31-13. Mentally Ill Children

[Repealed as of Jan. 1, 2003.]

CHAPTER 31a

DELINQUENCY MOTIONS AND APPLICATIONS

(Amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec.		Sec.	
31a-1.	Motions and Amendments	31a-14.	Physical and Mental Examinations
31a-1A.	Continuances and Advancements	31a-15.	Mentally Ill Children and Youth
31a-2.	Motion for Bill of Particulars	31a-16.	Discovery
31a-3.	Motion To Dismiss	31a-17.	Disclosure of Defenses in Delinquency Proceedings
31a-4.	Motion To Suppress		
31a-5.	Motion for Judgment of Acquittal	31a-18.	Modification of Probation and Supervision
31a-6.	Motion for Transfer of Venue	31a-19.	Motion for Extension of Delinquency Commitment; Motion for Review of Permanency Plan [Repealed]
31a-7.	Motion in Limine		
31a-8.	Motion for Sequestration		
31a-9.	Severance of Offenses	31a-19A.	Motion for Extension or Revocation of Family with Service Needs Commitment; Motion for Review of Permanency Plan [Repealed]
31a-10.	Trial Together on Petitions or Informations		
31a-11.	Motion for New Trial		
31a-12.	Motion To Transfer to Adult Criminal Docket	31a-20.	Petition for Violation of Family with Service Needs Post-Adjudicatory Orders [Repealed]
31a-13.	Take into Custody Order		
31a-13A.	Temporary Custody Order—Family with Service Needs Petition [Repealed]	31a-21.	Petition for Child from a Family with Service Needs at Imminent Risk [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 31a-1. Motions and Amendments

(a) A motion other than one made during a hearing shall be in writing and have annexed to it a proper order and, where appropriate, shall be in the form called for by Section 4-1. A motion shall state in paragraphs successively numbered the specific grounds upon which it is made. A copy of the written motion shall be served on the opposing party or counsel pursuant to Sections 10-12 through 10-17.

(b) Motions shall be filed not later than ten days after the setting of the trial date except with the permission of the judicial authority. All motions shall be calendared to be heard by the judicial authority not later than fifteen days after filing provided reasonable notice is given to parties in interest, or notices are waived. Any motion filed in a case on trial or assigned for trial may be disposed of by the judicial authority at its discretion or ordered to be scheduled for hearing.

(c) If the moving party determines and reports that all counsel and self-represented parties agree to the granting of a motion or the consideration of a motion without the need for oral argument or testimony, or the motion states on its face that there is such an agreement, the motion may be granted without a hearing.

(d) A petition or information may be amended at any time by the judicial authority on its own motion or in response to the motions of any party prior to any final adjudication. When an amendment has been so ordered, a continuance shall be granted whenever the judicial authority finds that the new allegations in the petition or charges in the information justify the need for additional time to permit the parties to respond adequately to the additional or changed facts and circumstances.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 31a-1A. Continuances and Advancements

(a) Motions for continuances or changes in scheduled court dates must be submitted in writing in compliance with Section 31a-1 (a) and filed no later than seven days prior to the scheduled date. Such motions must state the precise reasons for the request, the name of the judicial authority scheduled to hear the case, and whether or not all other parties consent to the request. After consulting with the judicial authority, the clerk will handle bona fide emergency requests submitted less than seven days prior to scheduled court dates.

(b) Trials that are not completed within the allotted prescheduled time will be subject to continuation at the next available court date.

(Adopted June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 31a-2. Motion for Bill of Particulars

The child or youth may file a motion, or the judicial authority may order at any time, that the prosecuting authority file a bill of particulars. The judicial

authority shall order that a bill of particulars disclose information sufficient to enable the child or youth to prepare the defense, including but not being limited to reasonable notice of the offense charged and the date, time and place of its commission. When any bill of particulars is ordered, an amended or substitute information, if necessary, shall be filed incorporating its provisions.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-3. Motion To Dismiss

The child or youth may file a motion to dismiss if the motion is capable of determination without a trial of the general issue on grounds (1) to (9) of Section 41-8 of the rules of procedure in criminal matters, subject to the conditions of Section 41-10 and 41-11.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-4. Motion To Suppress

The child or youth may file a motion to suppress potential testimony or other evidence if required under the constitution or laws of the United States or the state of Connecticut in accordance with the provisions of Sections 41-13 through 41-17 of the rules of procedure in criminal matters.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-5. Motion for Judgment of Acquittal

(a) After the close of the juvenile prosecutor's case-in-chief, upon motion of the child or youth or upon its own motion, the judicial authority shall order the entry of a judgment of acquittal as to any principal offense charged and as to any lesser included offense for which the evidence would not reasonably permit an adjudication. Such judgment of acquittal shall not apply to any lesser included offense for which the evidence would reasonably permit a finding of guilty.

(b) The judicial authority shall either grant or deny the motion before calling upon the child or youth to present the respondent's case-in-chief. If the motion is not granted, the respondent may offer evidence without having reserved the right to do so.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 31a-6. Motion for Transfer of Venue

The child or youth or juvenile prosecutor may file a motion, or the judicial authority may order at any time, that a juvenile matter be transferred to a different venue in accordance with Sections 41-23 and 41-25 of the rules of procedure in criminal matters.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-7. Motion in Limine

The judicial authority to whom a matter has been referred for trial may in its discretion entertain a motion in limine made by the child or youth or juvenile prosecutor regarding the admission or exclusion of anticipated evidence. Such motion shall be in writing and shall describe the anticipated evidence and the prejudice which may result therefrom. The judicial authority may grant the relief sought in the motion or such other relief as it may deem appropriate, may deny the motion with or without prejudice to its later renewal, or may reserve decision thereon until a later time in the proceeding.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-8. Motion for Sequestration

A child or youth or juvenile prosecutor may file a motion for sequestration. The judicial authority upon such motion shall cause any witness to be sequestered during the hearing on any issue or motion or during any part of the trial in which such witness is not testifying.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-9. Severance of Offenses

If it appears that a child or youth is prejudiced by a joinder of offenses, the judicial authority may, upon its own motion or the motion of the child or youth, order separate trials of the counts or provide whatever other relief justice may require.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-10. Trial Together on Petitions or Informations

The judicial authority may, upon its own motion or the motion of the child or youth or juvenile prosecutor, order that two or more petitions or informations against the same child or youth be tried together. Petitions or informations against different children or youths may not be tried together unless all parties agree to waive the confidentiality rules.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-11. Motion for New Trial

(a) Upon motion of the child or youth, the judicial authority may grant a new trial if it is required in the interest of justice in accordance with Section 42-53 of the rules of criminal procedure.

(b) Unless otherwise permitted by the judicial authority in the interests of justice, a motion for a new trial shall be made within five days after an adjudication or within any further time the judicial authority allows during the five day period.

(c) A request for a new trial on the ground of newly discovered evidence shall require a peti-

tion for a new trial and shall be brought in accordance with General Statutes § 52-270. The judicial authority may grant the petition even though an appeal is pending.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 31a-12. Motion To Transfer to Adult Criminal Docket

The juvenile prosecutor may file a motion to transfer prosecution to the adult criminal docket in accordance with General Statutes § 46b-127.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 31a-13. Take into Custody Order

(a) Upon written application in a delinquency proceeding, a take into custody order may be issued by the judicial authority:

(1) Upon a finding of probable cause to believe that the child or youth is responsible for (A) a delinquent act, including violation of court orders of probation or the failure of the child or youth charged with a delinquent act, duly notified, to attend a pretrial, probation or evaluation appointment, or (B) for failure to comply with any duly warned condition of a suspended order of detention. The judicial authority also must find at the time it issues a take into custody order that a ground for detention pursuant to Section 30-6 exists before issuing the order;

(2) For failure to appear in court in response to a delinquency petition or summons served in hand or to a direct notice previously provided in court.

(b) Any application for a take into custody order must be supported by a sworn statement alleging facts to substantiate probable cause, and where applicable, a petition or information charging a delinquent act.

(c) Any child or youth detained under a take into custody order is subject to Sections 30-1A through 30-11.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 31a-13A. Temporary Custody Order—Family with Service Needs Petition

[Repealed as of Jan. 1, 2022.]

Sec. 31a-14. Physical and Mental Examinations

(a) No physical and/or mental examination or examinations by any physician, psychologist, psychiatrist, social worker or clinical coordinator shall be ordered by the judicial authority of any child or youth denying delinquent behavior prior to the adjudication, except (1) with the agreement of the child's or youth's parent or guardian and attorney, (2) when the child or youth has executed a written statement of responsibility, (3) when the judicial authority finds that there is a question of the child's or youth's competence to understand the nature of the proceedings or to participate in the defense, or a question of the child or youth having been mentally capable of unlawful intent at the time of the commission of the alleged act, or (4) where the child or youth has been detained and as an incident of detention is administered a physical examination to establish the existence of any contagious or infectious condition.

(b) Any information concerning a child or youth that is obtained during any mental health screening or assessment of such child or youth shall be used solely for planning and treatment purposes and shall otherwise be confidential and retained in the files of the entity performing such screening or assessment. Such information may be further disclosed only for the purposes of any court-ordered evaluation or treatment of the child or youth, or provision of services to the child or youth, or pursuant to General Statutes §§ 17a-101 to 17a-101e, inclusive, 17b-450, 17b-451 or 51-36a. Such information shall not be subject to subpoena or other court process for use in any other proceeding or for any other purpose.

(c) Upon a showing that the mental health of a child or youth is at issue, either prior to adjudication for the reasons set forth in subsection (a) herein or subsequent thereto as a determinate of disposition, the judicial authority may order a child's or youth's placement for a period not to exceed thirty days in a hospital or other institution empowered by law to treat mentally ill children for study and a report on the child's or youth's mental condition. No order for the child's or youth's placement shall be made under this subsection until a written assessment or evaluation for the need for hospitalization and evaluation has been completed by a clinical coordinator and provided to the court and parties.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 31a-15. Mentally Ill Children and Youth

(Amended June 14, 2024, to take effect Jan. 1, 2025)

No child or youth shall be committed by a judicial authority as mentally ill pursuant to General Statutes § 46b-140 until such a study has been made and a sworn report filed with the judicial authority or in lieu thereof without the sworn certificate of at least two impartial physicians, one of

whom shall be a physician specializing in psychiatry, selected by the judicial authority who have personally examined the child or youth within ten days of the hearing, stating that in their opinion the child's or youth's mental condition necessitates placement in a designated hospital for mental illness. If, after such hearing, the judicial authority finds by clear and convincing evidence that the child or youth suffers from a mental disorder, as defined in General Statutes § 17a-75, is in need of hospitalization for treatment and such treatment is available as the least restrictive alternative, the judicial authority shall make an order for commitment for a definite period not to exceed six months to a designated hospital for mental illness of children. No child or youth shall be committed as mentally deficient pursuant to General Statutes § 46b-140 except in accordance with procedures of General Statutes § 17a-274 (b), (g), and (h).

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 31a-16. Discovery

(a) The child or youth or the juvenile prosecutor shall be permitted pretrial discovery in accordance with subsections (b), (c) and (d) of this section by interrogatory, production, inspection or deposition of a person in delinquency matters if the information or material sought is not otherwise obtainable and upon a finding that proceedings will not be unduly delayed.

(b) Motions or requests for discovery shall be filed with the court in accordance with Section 31a-1. The clerk shall calendar any such motion or request for a hearing. Objections to such motions or requests may be filed with the court and served in accordance with Sections 10-12 through 10-17 not later than ten days of the filing of the motion or request unless the judicial authority, for good cause shown, allows a later filing. Upon its own motion or upon the request or motion of a party, the judicial authority may, after a hearing, order discovery. The judicial authority shall fix the times for filing and for responding to discovery motions and requests and, when appropriate, shall fix the hour, place, manner, terms and conditions of responses to the motions and requests, provided that the party seeking discovery shall be allowed a reasonable opportunity to obtain information needed for the preparation of the case.

(c) Motions or requests for discovery should not be filed unless the moving party has attempted unsuccessfully to obtain an agreement to disclose from the party or person from whom information is being sought.

(d) The provisions of Sections 40-2 through 40-6, inclusive, 40-7 (b), 40-8 through 40-16, inclusive, and 40-26 through 40-58, inclusive, of the rules of procedure in criminal matters shall be applied by the judicial authority in determining whether to grant, limit or set conditions on the requested discovery, issue any protective orders, or order appropriate sanctions for any clear misuse of discovery or arbitrary delay or refusal to comply with a discovery request.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 31a-17. Disclosure of Defenses in Delinquency Proceedings

The child in a delinquency case shall disclose defenses to the charged offenses in accordance with Sections 40-17 through 40-25 of the rules of criminal procedure. Such disclosures shall be made not later than ten days after the matter is scheduled for trial except with the permission of the judicial authority.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 31a-18. Modification of Probation and Supervision

(a) At any time during the period of probation supervision or probation supervision with residential placement, after hearing and for good cause shown, the judicial authority may modify or enlarge the conditions, whether originally imposed by the judicial authority under this section or otherwise. The judicial authority may extend the period of probation supervision or probation supervision with residential placement by not more than twelve months, for a total maximum supervision period not to exceed thirty months as deemed appropriate by the judicial authority. The judicial authority shall cause a copy of any such order to be delivered to the child or youth and to such child's or youth's parent, guardian or other person having control over such child or youth, and the child's or youth's probation officer.

(b) The child or youth, attorney, juvenile prosecutor or parent may, in the event of disagreement, in writing request the judicial authority not later than five days of the receipt thereof for a hearing on the propriety of the modification. In the absence of any request, the modification of the terms of probation may be effected by the probation officer with the approval of the supervisor and the judicial authority.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 13, 2019, to take effect Jan. 1, 2020; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 31a-19. Motion for Extension of Delinquency Commitment; Motion for Review of Permanency Plan

[Repealed as of Jan. 1, 2020.]

Sec. 31a-19A. Motion for Extension or Revocation of Family with Service Needs Commitment; Motion for Review of Permanency Plan

[Repealed as of Jan. 1, 2022.]

Sec. 31a-20. Petition for Violation of Family with Service Needs Post-Adjudicatory Orders

[Repealed as of Jan. 1, 2022.]

Sec. 31a-21. Petition for Child from a Family with Service Needs at Imminent Risk

[Repealed as of Jan. 1, 2022.]

CHAPTER 32

NEGLECTED, UNCARED FOR AND DEPENDENT CHILDREN AND TERMINATION OF PARENTAL RIGHTS

[Repealed as of Jan. 1, 2003.]

Sec.
32-1. Initiation of Judicial Proceeding; Contents of Petitions and Summary of Facts [Repealed]
32-2. —Summons Accompanying Petitions [Repealed]
32-3. —Venue [Repealed]
32-4. —Identity or Location of Parent Unknown [Repealed]
32-5. —Address of Person Entitled to Personal Service Unknown [Repealed]
32-6. Order of Temporary Custody; Application and Sworn Statement [Repealed]
32-7. —Statement in Temporary Custody Order of Respondent's Rights and of Subsequent Hearing [Repealed]
32-8. —Authority of Temporary Custodian [Repealed]
32-9. —Emergency, Life-Threatening Medical Situations—Procedures [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 32-1. Initiation of Judicial Proceeding; Contents of Petitions and Summary of Facts

[Repealed as of Jan. 1, 2003.]

Sec. 32-2. —Summons Accompanying Petitions

[Repealed as of Jan. 1, 2003.]

Sec. 32-3. —Venue

[Repealed as of Jan. 1, 2003.]

Sec. 32-4. —Identity or Location of Parent Unknown

[Repealed as of Jan. 1, 2003.]

Sec. 32-5. —Address of Person Entitled to Personal Service Unknown

[Repealed as of Jan. 1, 2003.]

Sec. 32-6. Order of Temporary Custody; Application and Sworn Statement

[Repealed as of Jan. 1, 2003.]

Sec. 32-7. —Statement in Temporary Custody Order of Respondent's Rights and of Subsequent Hearing

[Repealed as of Jan. 1, 2003.]

Sec. 32-8. —Authority of Temporary Custodian

[Repealed as of Jan. 1, 2003.]

Sec. 32-9. —Emergency, Life-Threatening Medical Situations—Procedures

[Repealed as of Jan. 1, 2003.]

CHAPTER 32a

RIGHTS OF PARTIES NEGLECTED, ABUSED AND UNCARED FOR CHILDREN AND TERMINATION OF PARENTAL RIGHTS

(Amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec.		Sec.	
32a-1.	Right to Counsel and To Remain Silent	32a-6.	Interpreter
32a-2.	Hearing Procedure; Subpoenas	32a-7.	Records
32a-3.	Standards of Proof	32a-8.	Use of Confidential Alcohol or Drug Abuse Treatment Records as Evidence
32a-4.	Child or Youth Witness		
32a-5.	Consultation with Child or Youth	32a-9.	Competency of Parent

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 32a-1. Right to Counsel and To Remain Silent

(a) At the first hearing in which the parents, guardian, person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or a person named as the alleged genetic parent of the child or youth appears the judicial authority shall advise and explain to such persons their right to remain silent and right to counsel.

(b) The child or youth has the rights of confrontation and cross-examination and shall be represented by counsel in each and every phase of any and all proceedings in child protection matters, including appeals. The judicial authority before whom a juvenile matter is pending shall notify the chief public defender who shall assign an attorney to represent the child or youth.

(c) The judicial authority on its own motion or upon the motion of any party, may appoint a separate guardian ad litem for the child or youth upon a finding that such appointment is necessary to protect the best interest of the child or youth. An attorney guardian ad litem shall be appointed for a child or youth who is a parent in a termination of parental rights proceeding or any parent who is found to be incompetent by the judicial authority.

(d) The parents or guardian of the child or youth have the rights of confrontation and cross-examination and may be represented by counsel in each and every phase of any and all proceedings in child protection matters, including appeals. The judicial authority shall determine if the parents or guardian of the child or youth are eligible for counsel. Upon a finding that such parents or guardian of the child or youth are unable to afford counsel, the judicial authority shall notify the chief public defender of such finding, and the chief public defender shall assign an attorney to provide representation. The judicial authority shall also determine whether the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or the person named as the alleged genetic parent is eligible for appointment of counsel and, upon a finding of inability to afford counsel, notify the chief public defender who shall assign an attorney to provide representation.

(e) If the judicial authority, even in the absence of a request for appointment of counsel, determines that the interests of justice require the provision of an attorney to represent the child's or youth's parent or parents or guardian, or other party, the judicial authority may appoint an attorney to represent any such party and shall notify the chief public defender, who shall assign an attorney to represent any such party. For the purposes of determining eligibility for appointment of counsel, the judicial authority shall cause the parents or guardian of a child or youth to complete a written statement under oath or affirmation setting forth the parents' or guardian's liabilities and assets, income and sources thereof, and such other information as the Public Defender Services Commission shall designate and require on forms adopted by said commission.

(f) Where under the provisions of this section, the judicial authority so appoints counsel for any such party who is found able to pay, in whole or in part, the cost thereof, the judicial authority shall assess as costs on the appropriate form against such party, including any agency vested with the legal custody of the child or youth, the expense so incurred and paid for by the chief public defender in providing such counsel, to the extent of the party's financial ability to do so, in accordance with the rates established by the Public

Defender Services Commission for compensation of counsel. Reimbursement to the appointed attorney of unrecovered costs shall be made to that attorney by the chief public defender upon the attorney's certification of his or her unrecovered expenses to the chief public defender.

(g) Notices of initial hearings on petitions shall contain a statement informing the respondent, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or the person named as the alleged genetic parent of their right to counsel and that if the respondent, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or the alleged genetic parent is unable to afford counsel, counsel will be appointed to represent them, that they have a right to refuse to make any statement and that any statement they make may be introduced in evidence against them.

(h) Any confession, admission or statement written or oral, made by the parent or parents, guardian of the child or youth, alleged genetic parent or person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3), after the filing of a petition alleging such child or youth to be neglected, abused or uncared for, shall be inadmissible in any proceeding held upon such petition against the person making such admission or statement unless such person shall have been advised of the right to retain counsel, and that if such person is unable to afford counsel, counsel will be assigned to provide representation, that such person has a right to refuse to make any statement and that any statements such person makes may be introduced in evidence against such person.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 32a-2. Hearing Procedure; Subpoenas

(a) All hearings are essentially civil proceedings except where otherwise provided by statute. Testimony may be given in narrative form and the proceedings shall at all times be as informal as the requirements of due process and fairness permit.

(b) Issuance, service, and compliance with subpoenas are governed by General Statutes § 52-143 et seq.

(c) Any self-represented party may request the clerk of the court to issue subpoenas for persons to testify before the judicial authority. Self-represented parties shall obtain prior approval from the judicial authority to issue subpoenas and, if indigent, may seek reimbursement for the costs thereof.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 32a-3. Standards of Proof

(a) The standard of proof applied in a neglect, uncared for or dependency proceeding is a fair preponderance of the evidence.

(b) The standard of proof applied in a decision to terminate parental rights, a finding that efforts to reunify a parent with a child or youth are no longer appropriate, or as to permanent legal guardianship is clear and convincing evidence.

(c) Any Indian child or youth custody proceedings, except delinquency, involving removal of an Indian child or youth from a parent or Indian custodian for placement shall, in addition, comply with the Indian Child Welfare Act (ICWA), 25 U.S.C. §1901 et seq.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 32a-4. Child or Youth Witness

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) All oral testimony shall be given under oath. For child or youth witnesses, the oath may be "you promise that you will tell the truth." The judicial authority may, however, admit the testimony of a child or youth without the imposition of a formal oath if the judicial authority finds that the oath would be meaningless to the particular child or youth, or would otherwise inhibit the child or youth from testifying freely and fully.

(b) Any party who intends to call a child or youth as a witness shall first file a motion seeking permission of the judicial authority.

(c) In any proceeding when testimony of a child or youth is taken, an adult who is known to the child or youth and with whom the child or youth feels comfortable shall be permitted to sit in close proximity to the child or youth during the child's or youth's testimony without obscuring the child or youth from view and the attorneys shall ask questions and pose objections while seated and in a manner which is not intimidating to the child or youth. The judicial authority shall minimize any distress to a child or youth in court.

(d) The judicial authority with the consent of all parties may privately interview the child or youth. Counsel may submit questions and areas of concern for examination. The knowledge gained in such a conference shall be shared on the record with counsel and, if there is no legal representative, with the parent.

(e) When the witness is the child or youth of the respondent, the respondent may be excluded

from the hearing room upon a showing by clear and convincing evidence that the child or youth witness would be so intimidated or inhibited that trustworthiness of the child or youth witness is seriously called into question. In such an instance, if the respondent is without counsel, the judicial authority shall summarize for the respondent the nature of the child's or youth's testimony.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 32a-5. Consultation with Child or Youth

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) In any permanency hearing held with respect to the child or youth, including, but not limited to, any hearing regarding the transition of the child or youth from foster care to independent living, the judicial authority shall assure that there is consultation with the child or youth in an age-appropriate manner regarding the proposed permanency or transition plan for the child or youth.

(b) For good cause shown, the child or youth who is the subject of a hearing may be excluded from the courtroom.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 32a-6. Interpreter

The judicial authority shall provide an official interpreter to the parties as necessary to ensure their understanding of, and participation in, the proceedings.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 32a-7. Records

(a) Except as otherwise provided by statute, all records maintained in juvenile matters brought before the judicial authority, either current or closed, including the transcripts of hearings, shall be kept confidential.

(b) Except as otherwise provided by statute, no material contained in the court record, including the social study, medical or clinical reports, school reports, police reports and the reports of social agencies, may be copied or otherwise reproduced in written form in whole or in part by the parties without the express consent of the judicial authority.

(c) Each counsel and self-represented party in a child protection matter shall have access to and be entitled to copies, at his or her expense, of the entire court record, including transcripts of all proceedings, without the express consent of the judicial authority.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 32a-8. Use of Confidential Alcohol or Drug Abuse Treatment Records as Evidence

(a) Upon a determination by the judicial authority that good cause exists pursuant to federal law and regulations, the judicial authority may admit evidence of any party's alcohol or drug treatment by a facility subject to said regulations.

(b) A party seeking to introduce substance abuse treatment records shall submit a motion to the judicial authority requesting permission to subpoena such records and explaining the need for them, and shall also file a motion to disclose such confidential records and permit testimony regarding them. The motion for permission to subpoena such records may be signed ex parte by the judicial authority. If the judicial authority approves the motion, such records may be subpoenaed and submitted to the court under seal, and the judicial authority shall set a date for the parties and service providers to be heard on the motion to disclose confidential alcohol or drug abuse treatment records.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 32a-9. Competency of Parent

(a) In any proceeding for the termination of parental rights, either upon its own motion or a motion of any party alleging specific factual allegations of mental impairment that raise a reasonable doubt about the parent's competency, the judicial authority shall appoint an evaluator who is an expert in mental illness to assess such parent's competency; the judicial authority shall thereafter conduct a competency hearing within ten days of receipt of the evaluator's report.

(b) At a competency hearing held under subsection (a), the judicial authority shall determine whether the parent is incompetent and if so, whether competency may be restored within a reasonable time, considering the age and needs of the child or youth, including the possible adverse impact of delay in the proceedings. If competency may be restored within a reasonable time, the judicial authority shall stay proceedings and shall issue specific steps the parent shall take to have competency restored. If competency may not be restored within a reasonable time, the judicial authority may make reasonable accommodations to assist the parent and his or her attorney in the defense of the case, including the appointment of a guardian ad litem if one has not already been provided.

(Adopted June 30, 2008, to take effect Jan. 1, 2009.)

CHAPTER 33

HEARINGS CONCERNING NEGLECTED, UNCARED FOR AND DEPENDENT CHILDREN AND TERMINATION OF PARENTAL RIGHTS

[Repealed as of Jan. 1, 2003.]

Sec.	
33-1.	Adjudicatory Hearing; Actions by Judicial Authority [Repealed]
33-2.	—Continuance for Case Status Conference [Repealed]
33-3.	—Evidence [Repealed]
33-4.	—Burden of Proceeding [Repealed]
33-5.	Dispositional Hearing; Evidence and Social Study [Repealed]
33-6.	—Availability of Social Study to Counsel and Parties [Repealed]
33-7.	—Dispositional Plan Offered by Respondents [Repealed]
33-8.	Protective Supervision—Conditions and Modification [Repealed]
33-9.	Extension Petitions [Repealed]
33-10.	Revocation of Commitments [Repealed]
33-11.	Modifications [Repealed]
33-12.	Coterminous Petitions [Repealed]
33-13.	Transfer from Probate Court of Petitions for Removal of Parent as Guardian [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 33-1. Adjudicatory Hearing; Actions by Judicial Authority

[Repealed as of Jan. 1, 2003.]

Sec. 33-2. —Continuance for Case Status Conference

[Repealed as of Jan. 1, 2003.]

Sec. 33-3. —Evidence

[Repealed as of Jan. 1, 2003.]

Sec. 33-4. —Burden of Proceeding

[Repealed as of Jan. 1, 2003.]

Sec. 33-5. Dispositional Hearing; Evidence and Social Study

[Repealed as of Jan. 1, 2003.]

Sec. 33-6. —Availability of Social Study to Counsel and Parties

[Repealed as of Jan. 1, 2003.]

Sec. 33-7. —Dispositional Plan Offered by Respondents

[Repealed as of Jan. 1, 2003.]

Sec. 33-8. Protective Supervision—Conditions and Modification

[Repealed as of Jan. 1, 2003.]

Sec. 33-9. Extension Petitions

[Repealed as of Jan. 1, 2003.]

Sec. 33-10. Revocation of Commitments

[Repealed as of Jan. 1, 2003.]

Sec. 33-11. Modifications

[Repealed as of Jan. 1, 2003.]

Sec. 33-12. Coterminous Petitions

[Repealed as of Jan. 1, 2003.]

Sec. 33-13. Transfer from Probate Court of Petitions for Removal of Parent as Guardian

[Repealed as of Jan. 1, 2003.]

CHAPTER 33a

PETITIONS FOR NEGLECT, UNCARED FOR, DEPENDENCY AND TERMINATION OF PARENTAL RIGHTS: INITIATION OF PROCEEDINGS, ORDERS OF TEMPORARY CUSTODY AND PRELIMINARY HEARINGS

Sec.
33a-1. Initiation of Judicial Proceeding; Contents of Petitions and Summary of Facts
33a-2. Service of Summons, Petitions and Ex Parte Orders
33a-3. Venue
33a-4. Identity of Alleged Genetic Parent Unknown; Location of Respondent, Person Presumed To Be the Parent Pursuant to General Statutes § 46b-488 (a) (3) or Alleged Genetic Parent Unknown
33a-5. Address of Person Entitled to Personal Service Unknown
33a-6. Order of Temporary Custody; Ex Parte Orders and Orders To Appear
33a-7. Preliminary Order of Temporary Custody or First Hearing; Actions by Judicial Authority
33a-8. Emergency, Life-Threatening Medical Situations—Procedures

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 33a-1. Initiation of Judicial Proceeding; Contents of Petitions and Summary of Facts

(a) The petitioner shall set forth with reasonable particularity, including statutory references, the specific conditions which have resulted in the situation which is the subject of the petition.

(b) A summary of the facts substantiating the allegations of the petition, including such facts as bring the child or youth within the jurisdiction of the court, shall be attached thereto and shall be incorporated by reference.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 33a-2. Service of Summons, Petitions and Ex Parte Orders

(a) A summons accompanying a petition alleging that a child or youth is neglected, abused or uncared for, along with the summary of facts, shall be served by the petitioner on the respondents, alleged genetic parents, and persons presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) and provided to the Office of the Attorney General at least fourteen days before the date of the initial plea hearing on the petition, which shall be held not more than forty-five days from the date of filing the petition.

(b) A summons accompanying a petition for termination of parental rights, along with the summary of facts, shall be served by the petitioner on the respondents, alleged genetic parents, and persons presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) and provided to the Office of the Attorney General at least ten days prior to the date of the initial plea hearing on the petition, which shall be held not more than thirty days after the filing of the petition, except in the case of a petition for termination of parental rights based on consent, which shall be held not more than twenty days after the filing of the petition.

(c) A summons accompanying simultaneously filed coterminous petitions, along with the summary of facts, shall be served by the petitioner on the respondents, alleged genetic parents, and persons presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) and provided to the Office of the Attorney General at least ten days prior to the date of the initial plea hearing on the petition, which shall be held not more than thirty days after the filing of the petitions, except in the case of a petition for termination of parental rights based on consent, which shall be held not more than twenty days after the filing of the petition.

(d) A summons accompanying any petition filed with an application for order of temporary custody shall be served by the petitioner on the respondents, alleged genetic parents, and persons presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) and provided to the Office of the Attorney General as soon as practicable after the issuance of any ex parte order or order to appear, along with such order, any sworn statements supporting the order, the summary of facts, the specific steps provided by the judicial authority, and the notice required by Section 33a-6.

(e) Whenever the Commissioner of the Department of Children and Families obtains an ex parte order of temporary custody or an order to appear and show cause from the judicial authority, he or she shall provide the clerk with a sealed envelope marked “Attention: Counsel for Child(ren)” containing the following information: the

name, phone number and email of the investigation social worker; the name, phone number and email of the treatment supervisor or social worker, if known; and the child(ren)'s placement or home address and phone number, and name of a placement contact person. The clerk shall ensure that counsel assigned to the child or youth is provided with said envelope at the time his or her appearance is filed. In the event the placement information changes prior to the preliminary hearing, the Commissioner of the Department of Children and Families shall notify counsel for the child or youth immediately.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 33a-3. Venue

All child protection petitions shall be filed within the juvenile matters district where the child or youth resided at the time of the filing of the petition, but any child or youth born in any hospital or institution where the birth parent is confined at the time of birth shall be deemed to have residence in the district wherein such child's or youth's birth parent was living at the time of the admission to such hospital or institution. When placement of a child or youth has been effected prior to filing of a petition, venue shall be in the district wherein the custodial parent is living at the time of the filing of the petition.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 33a-4. Identity of Alleged Genetic Parent Unknown; Location of Respondent, Person Presumed To Be the Parent Pursuant to General Statutes § 46b-488 (a) (3) or Alleged Genetic Parent Unknown

(Amended June 14, 2024, to take effect Jan. 1, 2025.)

(a) If the identity of an alleged genetic parent is unknown when a petition is filed, an affidavit shall be attached reciting the efforts to identify that alleged genetic parent. The judicial authority may, in its discretion, require notice by publication to unidentified alleged genetic parents in any petition for termination of parental rights. Such notice shall comply with General Statutes § 45a-716.

(b) If the present location of a respondent, a person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or an alleged genetic parent is unknown when a petition is filed, an affidavit shall be attached reciting the efforts to locate that person. Notice by publication to absent respondents, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or alleged genetic parents shall be required in any petition for termination of parental rights in accordance with General Statutes § 45a-716.

(c) Subject to Section 32a-1 of these rules, the judicial authority may notify the chief public defender to assign counsel for absent respondents, person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or alleged genetic parent who has received only constructive notice of termination of parental rights proceedings, for the limited purposes of conducting a reasonable search for the absent respondents, person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or alleged genetic parents and reporting to the judicial authority before any adjudication.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 33a-5. Address of Person Entitled to Personal Service Unknown

If the address of any person entitled to personal service is unknown, service may be by publication as ordered by the judicial authority.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 33a-6. Order of Temporary Custody; Ex Parte Orders and Orders To Appear

(a) If the judicial authority finds, based upon the specific allegations of the petition and other verified affirmations of fact provided by the applicant, that there is reasonable cause to believe that: (1) the child or youth is suffering from serious physical illness or serious physical injury or is in immediate physical danger from his or her surroundings and (2) that as a result of said conditions, the child's or youth's safety is endangered and immediate removal from such surroundings is necessary to ensure the child's or youth's safety, the judicial authority shall, upon proper application at the time of filing of the petition or at any time subsequent thereto, either (A) issue an order to the respondents or other persons having responsibility for the care of the child or youth, including but not limited to persons named as the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or the alleged genetic parent, to appear at such time as the judicial authority may designate to determine whether the judicial authority should vest in some suitable agency or person the child's or youth's temporary care and custody pending disposition of the petition, or (B) issue an order ex parte vesting in some suitable agency or person the child's or youth's temporary care and custody.

(b) A preliminary hearing on any ex parte order of temporary custody or order to appear issued

by the judicial authority shall be held as soon as practicable but not later than ten days after the issuance of such order.

(c) If the application is filed subsequent to the filing of the petition, a motion to amend the petition or to modify protective supervision shall be filed no later than the next business date before such preliminary hearing.

(d) Upon issuance of an ex parte order of temporary custody or order to appear, the judicial authority shall provide to the Commissioner of the Department of Children and Families and the respondents specific steps necessary for each to take for the respondents to retain or regain custody of the child or youth.

(e) An ex parte order of temporary custody or order to appear shall be accompanied by a conspicuous notice to the respondents and other persons entitled to notice, including but not limited to persons named as the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or the alleged genetic parent, written in clear and simple language containing at least the following information: (i) That the order contains allegations that conditions in the home have endangered the safety and welfare of the child or youth; (ii) that a hearing will be held on the date on the form; (iii) that the hearing is the opportunity to present the respondents' position concerning the alleged facts; (iv) that the respondent, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3), and the person named as the alleged genetic parent have the right to remain silent; (v) that an attorney will be appointed for respondents, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) and the alleged genetic parent who cannot afford an attorney by the chief public defender; (vi) that respondents, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3), and the alleged genetic parent may apply for state paid representation by going in person to the court address on the form and are advised to go as soon as possible in order for the attorney to prepare for the hearing; (vii) if such respondents, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3), and alleged genetic parents have any questions concerning the case or appointment of counsel, they are advised to go to the court, or contact the clerk's office, or contact the chief public defender as soon as possible, and (viii) that such respondents or persons having responsibility for the care and custody of the child or youth may request the Commissioner of Children and Families to investigate placing the child or youth with a person related to the child or youth by blood, marriage or law who might serve as a licensed foster parent or temporary custodian for such child or youth.

(f) Upon application for state paid representation, the judicial authority shall promptly determine eligibility and, if the respondent, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or person named as the alleged genetic parent is eligible, promptly notify the chief public defender, who shall assign an attorney to provide representation. In the absence of such a request prior to the preliminary hearing, the chief public defender shall ensure that standby counsel is available at such hearing to assist and/or represent the respondents or other persons found eligible by the judicial authority.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 33a-7. Preliminary Order of Temporary Custody or First Hearing; Actions by Judicial Authority

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) At the preliminary hearing on the order of temporary custody or order to appear, or at the first hearing on a petition for neglect, uncared for, dependency, or termination of parental rights, the judicial authority shall:

(1) first determine whether the necessary parties are present and that the rules governing service on or notice to nonappearing parties, and notice to persons named as the alleged genetic parent, grandparents, foster parents, relative caregivers, preadoptive parents, and any other person entitled to notice of the proceedings, as applicable, have been complied with, and should note these facts for the record, and may proceed with respect to the parties who (i) are present and have been properly served; (ii) are present and waive any defects in service; and (iii) are not present, but have been properly served. As to any party or person who has not been properly served, the judicial authority may continue the proceedings with respect to such party or person for a reasonable period of time for service to be made and confirmed;

(2) inform the respondents of the allegations contained in all petitions and applications that are the subject of the hearing;

(3) inform the respondents, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3), and persons named as the alleged genetic parent of their right to remain silent;

(4) ensure that an attorney, and where appropriate, a separate guardian ad litem, has been assigned to represent the child or youth by the chief public defender, in accordance with General Statutes §§ 46b-129a (2), 46b-136, 51-296a and Section 32a-1 of these rules;

(5) advise the respondents, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3), and the alleged genetic parent of their right to counsel and their right to have counsel assigned if they are unable to afford representation, determine eligibility for state paid representation and notify the chief public defender to assign an attorney to represent any respondent, the person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3), and the alleged genetic parent who is unable to afford representation, as determined by the judicial authority;

(6) advise the respondents of the right to a hearing on the petitions and applications, to be held not later than ten days after the date of the preliminary hearing if the hearing is pursuant to an ex parte order of temporary custody or an order to appear;

(7) notwithstanding any prior statements acknowledging responsibility, inquire of the custodial respondent in neglect, uncared for and dependency matters, and of all respondents in termination matters, whether the allegations of the petition are presently admitted or denied;

(8) make any interim orders, including visitation, that the judicial authority determines are in the best interests of the child or youth, and order specific steps that the commissioner and the respondents shall take for the respondents to regain or to retain custody of the child or youth;

(9) take steps to determine the identity of the alleged genetic parent of the child or youth, including, if necessary, inquiring of the birth parent of the child or youth, under oath, as to the identity and address of any person who might be the genetic parent of the child or youth and ordering genetic testing, if necessary and appropriate, and order service of the amended petition citing in the alleged genetic parent and notice of the hearing date, if any, to be made upon such person;

(10) if the person named as the alleged genetic parent appears and admits that such person is the parent, provide such person and the birth parent with the notices which comply with General Statutes § 17b-27 and provide them with the opportunity to sign an acknowledgment of parentage on forms which comply with General Statutes § 17b-27, which documents shall be executed and filed in accordance with General Statutes Chapter 815y and a copy delivered to the clerk of the Superior Court for juvenile matters. The clerk of the Superior Court for juvenile matters shall send the original acknowledgment of parentage to the Department of Public Health for filing in the parentage registry maintained under General Statutes § 19a-42a, and shall maintain a copy of the acknowledgment of parentage in the court file;

(11) in the event that the person named as an alleged genetic parent appears and denies that such person is the parent of the child or youth, order genetic testing to determine parentage in accordance with the Connecticut Parentage Act. The clerk of the court shall send a certified copy of any judgment adjudicating parentage to the Department of Public Health for filing in the parentage registry maintained under General Statutes § 19a-42a. If the results of the genetic tests indicate that the person named as the alleged genetic parent is not the genetic parent of the child or youth, the court shall enter a judgment that such person is not the genetic parent, and the court shall remove such person from the case and afford such person no further standing in the case or in any subsequent proceeding regarding the child or youth; and

(12) identify any person or persons related to the child or youth by blood or marriage or law residing in this state or out of state who might serve as licensed foster parents or temporary custodians, and order the Commissioner of the Department of Children and Families to investigate and determine the appropriateness of placement of the child or youth with such relative or relatives pursuant to General Statutes § 46b-129 (c) and provide a written report to the court no later than thirty days from the date of the preliminary hearing and notify all counsel of record or set a reasonable date for such a report if a relative lives outside the state.

(b) At the preliminary hearing on the order of temporary custody or order to appear, the judicial authority may provide parties an opportunity to present argument with regard to the sufficiency of the sworn statements.

(c) If any respondent fails, after proper service, to appear at the preliminary hearing, the judicial authority may enter or sustain an order of temporary custody.

(d) Upon request, or upon its own motion, the judicial authority shall schedule a hearing on the order for temporary custody or the order to appear to be held as soon as practicable but not later than ten days after the date of the preliminary hearing. Such hearing shall be held on consecu-

tive days except for compelling circumstances or at the request of the respondents.

(e) Subject to the requirements of Section 33a-7 (a) (6), upon motion of any party or on its own motion, the judicial authority may consolidate the hearing, on the order of temporary custody or order to appear with the adjudicatory phase of the trial on the underlying neglect or uncared for petition. At a consolidated order of temporary custody and neglect or uncared for adjudication hearing, the judicial authority shall determine the outcome of the order of temporary custody based upon whether or not continued removal is necessary to ensure the child's or youth's safety, irrespective of its findings on whether there is sufficient evidence to support an adjudication of neglect or uncared for. Nothing in this subsection prohibits the judicial authority from proceeding to disposition of the underlying petition immediately after such consolidated hearing if the social study has been filed and the parties had previously agreed to sustain the order of temporary custody and waived the ten day hearing or the parties should reasonably be ready to proceed.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 33a-8. Emergency, Life-Threatening Medical Situations—Procedures

When an emergency medical situation exists which requires the immediate assumption of temporary custody of a child or youth by the Commissioner of the Department of Children and Families in order to save the child's or youth's life, two physicians under oath must attest to the need for such medical treatment. Oral permission by the judicial authority may be given after receiving sworn oral testimony of two physicians that the specific surgical or medical intervention is absolutely necessary to preserve the child's or youth's life. The judicial authority may grant the temporary custody order ex parte or may schedule an immediate hearing prior to issuing said order. At any immediate hearing the two physicians shall be available for testifying, and the judicial authority shall appoint counsel for the child or youth and notify the chief public defender as soon as practicable that said counsel has been appointed. If the judicial authority grants the temporary custody order ex parte by oral permission, based on the sworn oral testimony from the physicians, the Commissioner of the Department of Children and Families shall file the application for a temporary custody order together with a neglect or uncared for petition on the next business day following the granting of such order.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

CHAPTER 34

RIGHTS OF PARTIES

[Repealed as of Jan. 1, 2003.]

Sec.		Sec.	
34-1.	Right to Counsel and To Remain Silent [Repealed]	34-3.	Standards of Proof [Repealed]
34-2.	Hearing Procedure; Subpoenas [Repealed]	34-4.	Child Witness [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 34-1. Right to Counsel and To Remain Silent

[Repealed as of Jan. 1, 2003.]

Sec. 34-2. Hearing Procedure; Subpoenas

[Repealed as of Jan. 1, 2003.]

Sec. 34-3. Standards of Proof

[Repealed as of Jan. 1, 2003.]

Sec. 34-4. Child Witness

[Repealed as of Jan. 1, 2003.]

CHAPTER 34a

PLEADINGS, MOTIONS AND DISCOVERY NEGLECTED, ABUSED AND UNCARED FOR CHILDREN AND TERMINATION OF PARENTAL RIGHTS

(Amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec.
34a-1. Motions, Requests and Amendments
34a-2. Short Calendar—Frequency
34a-3. Short Calendar—Assignments Automatic
34a-4. Short Calendar—Continuances When Counsel's Presence or Oral Argument Required
34a-5. Continuances and Advancements
34a-6. Pleadings Allowed and Their Order
34a-7. Waiving Right To Plead
34a-8. Time To Plead
34a-9. Motion To Dismiss
34a-10. Grounds of Motion To Dismiss
34a-11. Waiver Based on Certain Grounds
Sec.
34a-12. Waiver and Subject Matter Jurisdiction
34a-13. Further Pleading by Respondent or Child
34a-14. Response to Summary of Facts
34a-15. Motion To Strike
34a-16. Reasons in Motion To Strike
34a-17. Memorandum of Law—Motion and Objection
34a-18. When Memorandum of Decision Required on Motion To Strike
34a-19. Substitute Pleading; Judgment
34a-20. Discovery
34a-21. Court-Ordered Evaluations
34a-22. Motion for Contempt
34a-23. Motion for Emergency Relief

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 34a-1. Motions, Requests and Amendments

(a) Except as otherwise provided, the sections in Chapters 1 through 7 shall apply to juvenile matters in the Superior Court as defined by General Statutes § 46b-121.

(b) The provisions of Sections 8-2, 9-5, 9-22, 10-12 (a) and (c), 10-13, 10-14, 10-17, 10-18, 10-29, 10-62, 11-4, 11-5, 11-6, 11-7, 11-8, 11-10, 11-11, 11-12, 11-13, 12-1, 12-2, 12-3, 13-1 through 13-11 inclusive, 13-14, 13-16, 13-21 through 13-32 inclusive, subject to Section 34a-20, 15-3, 15-8, 17-4, and 17-21 of the rules of practice shall apply to juvenile matters in the civil session as defined by General Statutes § 46b-121.

(c) A motion or request, other than a motion made orally during a hearing, shall be in writing. An objection to a request shall also be in writing. A motion, request or objection to a request shall have annexed to it a proper order and where appropriate shall be in the form called for by Section 4-1. The form and manner of notice shall adequately inform the interested parties of the time, place and nature of the hearing. A motion, request, or objection to a request whose form is not therein prescribed shall state in paragraphs successively numbered the specific grounds upon which it is made. A copy of all written motions, requests, or objections to requests shall be served on the opposing party or counsel pursuant to Sections 10-12 (a) and (c), 10-13, 10-14 and 10-17. All motions or objections to requests shall be given an initial hearing by the judicial authority within fifteen days after filing provided reasonable notice is given to parties in interest, or notices are waived; any motion in a case on trial or assigned for trial may be disposed of by the judicial authority at its discretion or ordered upon the docket.

(d) A petition may be amended at any time by the judicial authority on its own motion or in response to a motion prior to any final adjudication. When an amendment has been so ordered, a continuance shall be granted whenever the judicial authority finds that the new allegations in the petition justify the need for additional time to permit the parties to respond adequately to the additional or changed facts and circumstances.

(e) If the moving party determines and reports that all counsel and self-represented parties agree to the granting of a motion or agree that the motion may be considered without the need for oral argument or testimony and the motion states on its face that there is such an agreement, the judicial authority may consider and rule on the motion without a hearing.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 20, 2011, to take effect Jan. 1, 2012.)

Sec. 34a-2. Short Calendar—Frequency

Short calendar sessions shall be held in each juvenile matters court location at least once every two weeks, the date, hour and place to be fixed by the presiding judge upon due notice to the clerk.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-3. Short Calendar—Assignments Automatic

Matters to be placed on the short calendar shall be assigned automatically by the clerk. No such matters shall be so assigned unless filed at least five days before the opening of court on the short calendar day, unless for good cause shown.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-4. Short Calendar—Continuances When Counsel's Presence or Oral Argument Required

Matters on the short calendar docket requiring oral argument or counsel's presence shall not be continued except for good cause shown; and no such matter in which adverse parties are interested shall be continued unless the parties shall agree thereto before the day of the short calendar session and notify the clerk, subject to the approval of the judicial authority. In the absence of such an agreement, unless the judicial authority shall otherwise order, any counsel appearing may argue the matter and submit it for decision, or request that it be denied.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-5. Continuances and Advancements

(a) Motions for continuances or changes in scheduled court dates must be submitted in writing in compliance with Section 34a-1 (c) and filed no later than seven days prior to the scheduled date. Such motions must state the precise reason for the request, the name of the judge scheduled to hear the case, and whether or not all other parties consent to the request. After consulting with the presiding judge, a court services officer or clerk will handle bona fide emergency requests submitted less than seven days prior to scheduled court dates.

(b) Trials that are not completed within the allotted prescheduled time will be subject to continuation at the next available court date.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-6. Pleadings Allowed and Their Order

The order of pleadings shall be as follows:

(1) The petition;

(2) The respondent's or child's or youth's motion to dismiss;

(3) The respondent's or child's or youth's motion to strike.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 34a-7. Waiving Right To Plead

In all cases, when the judicial authority does not otherwise order, the filing of any pleading provided for by the preceding section will waive the right to file any pleading which might have been filed in due order and which precedes it in the order of pleading provided in that section.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-8. Time To Plead

Commencing on the plea date stated on the petition, pleadings shall first advance within fifteen days from the plea date stated on the petition, and any subsequent pleadings, motions and requests shall advance at least one step within each successive period of fifteen days from the preceding pleading or the filing of the decision of the judicial authority thereon if one is required.

If the respondent enters a pro forma denial before the plea date stated on the petition, the respondent is not precluded from filing any pleadings within the time frame specified.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-9. Motion To Dismiss

Any respondent or child or youth, wishing to contest the court's jurisdiction, may do so even after having entered a general appearance, but must do so by filing a motion to dismiss within fifteen days of the plea date stated on the petition.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 34a-10. Grounds of Motion To Dismiss

(a) The motion to dismiss shall be used to assert: (1) lack of jurisdiction over the subject matter; (2) lack of jurisdiction over the person; (3) insufficiency of process; and (4) insufficiency of service of process. A motion to dismiss shall always be filed with a supporting memorandum of law, and where appropriate, with supporting affidavits as to facts not apparent on the record.

(b) Any adverse party who objects to a motion to dismiss shall, at least five days before the motion is to be considered on the short calendar, file and serve in accordance with Sections 10-12 (a) and (c), 10-13, 10-14 and 10-17 a memorandum of law and, where appropriate, supporting affidavits as to facts not apparent on the record.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 34a-11. Waiver Based on Certain Grounds

Any claim of lack of jurisdiction over the person, insufficiency of process, or insufficiency of service of process is waived if not raised by a motion to dismiss filed in the sequence provided in Sections 34a-6 and 34a-7 and within the time provided by Section 34a-9.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 34a-12. Waiver and Subject Matter Jurisdiction

Any claim of lack of jurisdiction over the subject matter cannot be waived; and whenever it is found after suggestion of the parties or otherwise that the judicial authority lacks jurisdiction of the subject matter, the judicial authority shall dismiss the action.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-13. Further Pleading by Respondent or Child or Youth

(Amended June 14, 2024, to take effect Jan. 1, 2025.)

If a motion to dismiss is denied with respect to any jurisdictional issue, the respondent or child or youth may plead further without waiving the right to contest jurisdiction further.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 34a-14. Response to Summary of Facts

In addition to the entry of a pro forma plea of denial, a parent, legal guardian, child or youth may, within thirty days of the plea date, file a written response to the summary of facts attached to the petition specifying that certain allegations in said summary of facts are irrelevant, immaterial, false or otherwise improper.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 34a-15. Motion To Strike

(a) Whenever any party wishes to contest: (1) the legal sufficiency of the allegations of any petition, or of any one or more counts thereof, to state a claim upon which relief can be granted; or (2) the legal sufficiency of any prayer for relief in any such petition; or (3) the legal sufficiency of any such petition, or any count thereof, because of the absence of any necessary party; or (4) the joining of two or more causes of action which cannot properly be united in one petition whether the same be stated in one or more counts, that party may do so by filing a motion to strike the contested petition or part thereof.

(b) A motion to strike on the ground of the nonjoinder of a necessary party must give the name and residence of the missing party or such information as the moving party has as to the identity and residence of the missing party and must state the missing party's interest in the cause of action.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-16. Reasons in Motion To Strike

Each motion to strike raising any of the claims of legal insufficiency enumerated in the preceding sections shall separately set forth each such claim of insufficiency and shall distinctly specify the reason or reasons for each such claimed insufficiency.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-17. Memorandum of Law—Motion and Objection

(a) Each motion to strike must be accompanied by an appropriate memorandum of law citing the legal authorities upon which the motion relies.

(b) Any adverse party who objects to this motion shall, at least five days before the date the motion is to be considered on the short calendar, file and serve in accordance with Sections 10-12 (a) and (c), 10-13, 10-14 and 10-17 a memorandum of law.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-18. When Memorandum of Decision Required on Motion To Strike

Whenever a motion to strike is filed and more than one ground of decision is set forth therein, the judicial authority, in rendering the decision thereon, shall specify in writing the grounds upon which that decision is based.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-19. Substitute Pleading; Judgment

Within fifteen days after the granting of any motion to strike, the petitioner may file a new petition; provided that in those instances where an entire petition has been stricken, and the petitioner fails to file a new petition within that fifteen-day period, the judicial authority may, upon motion, enter judgment against said party on said stricken petition.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-20. Discovery

(a) Access to the records of the Department of Children and Families shall be permitted in accordance with General Statutes § 17a-28 and other applicable provisions of the law.

(b) Pretrial discovery by interrogatory, production, inspection or deposition of a person may be allowed with the permission of the judicial authority only if the information or material sought is not otherwise obtainable and upon a finding that proceedings will not be unduly delayed.

(c) Upon its own motion or upon the request of a party, the judicial authority may limit discovery methods, and specify overall timing and sequence, provided that the parties shall be allowed a reasonable opportunity to obtain information needed for the preparation of their case. The judicial authority may grant the requested discovery, order reciprocal discovery, order appropriate sanctions permitted under Section

13-14 for any clear misuse of discovery or arbitrary delay or refusal to comply with a discovery request, and deny, limit, or set conditions on the requested discovery, including any protective orders under Section 13-5.

(d) If the judicial authority permits discovery, the provisions of Sections 13-1 through 13-11 inclusive, 13-14, 13-16, 13-21 through 13-32 inclusive may be incorporated in the discovery order in the discretion of the judicial authority. Motions for discovery or disclosure of confidential records should not be filed unless the moving party has attempted unsuccessfully to obtain an appropriate release or agreement to disclose from the party or person whose records are being sought.

(e) If, subsequent to compliance with any filed request or order for discovery and prior to or during trial, a party discovers additional or new material or information previously requested and ordered subject to discovery or inspection, or discovers that the prior compliance was totally or partially incorrect or, though correct when made, is no longer true and the circumstances are such that a failure to amend the compliance is in substance a knowing concealment, that party shall promptly notify the other party, or the other party's attorney and file and serve in accordance with Sections 10-12 through 10-17 a supplemental or corrected compliance.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-21. Court-Ordered Evaluations

(a) The judicial authority, after hearing on a motion for a court-ordered evaluation or after an agreement has been reached to conduct such an evaluation, may order a mental or physical examination of a child or youth. The judicial authority after hearing or after an agreement has been reached may also order a thorough physical or mental examination of a parent or guardian whose competency or ability to care for a child or youth is at issue.

(b) The judicial authority shall select and appoint an evaluator qualified to conduct such assessments, with the input of the parties. All expenses related to the court-ordered evaluations shall be the responsibility of the petitioner; however the party calling the evaluator to testify will bear the expenses of the evaluator related to testifying.

(c) At the time of appointment of any court appointed evaluator, counsel and a representative of the court shall complete the evaluation form and agree upon appropriate questions to be addressed by the evaluator and materials to be reviewed by the evaluator. If the parties cannot agree, the judicial authority shall decide the issue of appropriate questions to be addressed and materials to be reviewed by the evaluator. A representative of the court shall contact the evaluator and arrange for scheduling and for delivery of the referral package.

(d) Any party who wishes to alter, to update, to amend or to modify the initial terms of referral shall seek prior permission of the judicial authority. There shall be no ex parte communication with the evaluator by counsel prior to completion of the evaluation, except that the evaluator conducting a competency evaluation of a parent or guardian may have ex parte communication with said counsel of a parent or guardian prior to the completion of the competency evaluation.

(e) After the evaluation has been completed and filed with the court, counsel may communicate with the evaluator subject to the following terms and conditions:

(1) Counsel shall identify themselves as an attorney and the party she or he represents;

(2) Counsel shall advise the evaluator that with respect to any substantive inquiry into the evaluation or opinions contained therein, the evaluator has the right to have the interview take place in the presence of counsel of his/her choice, or in the presence of all counsel of record;

(3) Counsel shall have a duty to disclose to other counsel the nature of any ex parte communication with the evaluator and whether it was substantive or procedural. The disclosure shall occur within a reasonable time after the communication and prior to the time of the evaluator's testimony;

(4) All counsel shall have the right to contact the evaluator and discuss procedural matters relating to the time and place of court hearings or evaluation sessions, the evaluator's willingness to voluntarily attend without subpoena, what records are requested, and the parameters of the proposed examination of the evaluator as a witness.

(f) Counsel for children, youths, parents or guardians may move the judicial authority for permission to disclose court records for an independent evaluation of their own client. Such evaluations shall be paid for by the moving party and shall not be required to be disclosed to the judicial authority or other parties, unless the requesting party, upon receipt of the evaluation report, declares an intention to introduce the evaluation report or call the evaluator as a witness at trial.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 34a-22. Motion for Contempt

All motions for contempt must state: (1) the date and specific language of the order of the judicial

authority on which the motion is based; (2) the specific acts alleged to constitute the contempt of that order, including the amount of any arrears claimed due as of the date of the motion or a date specifically identified in the motion; (3) the movant's claims for relief for the contempt.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 34a-23. Motion for Emergency Relief

(a) Notwithstanding the above provisions, any party may file a motion for emergency relief, seeking an order directed to the parents, guardians, custodians or other adult persons owing some legal duty to the child or youth, as deemed necessary or appropriate to secure the welfare, protection, proper care and suitable support of a child or youth before this court for the protection of the child or youth. Such orders include, but are not limited to, an order for access to the family home, an order seeking medical exam or mental health exam or treatment of the child or youth, an order to remedy a dangerous condition in the family or foster home, an order to provide or to accept and cooperate with certain services, or an order prohibiting the removal of the child or youth from the state or the home. Such motions may be heard at the next short calendar; however, if the exigencies of the situation demand, the judicial authority may order immediate ex parte relief, pending an expeditious hearing.

(b) No motion for emergency relief shall be granted without notice to each party unless the applicant certifies one of the following to the court in writing:

(1) facts showing that within a reasonable time prior to presenting the motion the moving party gave notice to all other parties of the time when and the place where the motion would be presented and provided a copy of the motion; or

(2) the moving party in good faith attempted but was unable to give notice to the other parties, specifying the efforts made to contact such parties; or

(3) facts establishing good cause why the moving party should not be required to give notice to other parties.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2024, to take effect Jan. 1, 2025.)

CHAPTER 35

GENERAL PROVISIONS

[Repealed as of Jan. 1, 2003.]

Sec.
35-1. Petitions, Motions and Amendments [Repealed]
35-2. Continuances and Advancements [Repealed]
35-3. Discovery [Repealed]
35-4. Appeal [Repealed]
35-5. Recording of Testimony; Records [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 35-1. Petitions, Motions and Amendments

[Repealed as of Jan. 1, 2003.]

Sec. 35-2. Continuances and Advancements

[Repealed as of Jan. 1, 2003.]

Sec. 35-3. Discovery

[Repealed as of Jan. 1, 2003.]

Sec. 35-4. Appeal

[Repealed as of Jan. 1, 2003.]

Sec. 35-5. Recording of Testimony; Records

[Repealed as of Jan. 1, 2003.]

CHAPTER 35a

HEARINGS CONCERNING NEGLECTED, ABUSED AND UNCARED FOR CHILDREN AND TERMINATION OF PARENTAL RIGHTS

(Amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec.
35a-1. Adjudication upon Acceptance of Admission or Plea of Nolo Contendere
35a-1A. Record of the Case
35a-1B. Exclusion of Unnecessary Persons from Courtroom
35a-2. Case Status Conference or Judicial Pretrial
35a-3. Coterminous Petitions
35a-4. Motions To Intervene
35a-5. Notice and Right To Be Heard
35a-6. Postdisposition Role of Former Guardian
35a-6A. Consolidation
35a-7. Evidence
35a-7A. Adverse Inference
35a-8. Burden of Proceeding
35a-9. Dispositional Hearing; Evidence and Social Study
35a-10. Availability of Social Study to Counsel and Parties
35a-11. Dispositional Plan Offered by Respondents
35a-12. Protective Supervision—Conditions, Modification, and Termination
35a-12A. Motions for Transfer of Guardianship
Sec.
35a-13. Findings as to Continuation in the Home, Efforts To Prevent Removal
35a-14. Motions for Review of Permanency Plan
35a-14A. Revocation of Commitment
35a-15. Reunification Efforts—Aggravating Factors
35a-16. Modifications
35a-17. Motions To Review Plan for Child Whose Parents' Rights Have Been Terminated [Repealed]
35a-18. Opening Default
35a-19. Transfer from Probate Court of Petitions for Removal of Parent as Guardian or Termination of Parental Rights
35a-20. Motions for Reinstatement of Parent as Guardian
35a-20A. Motions for Reinstatement of Former Legal Guardian as Guardian or Modification of Guardianship Postdisposition
35a-21. Appeals in Child Protection Matters
35a-22. Where Presence of Person May Be by Means of an Interactive Audiovisual Device
35a-23. Child's or Youth's Hearsay Statement; Residual Exception
35a-24. Motions for Posttermination Visitation

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 35a-1. Adjudication upon Acceptance of Admission or Plea of Nolo Contendere

(Amended June 30, 2008, to take effect Jan. 1, 2009; amended June 10, 2022, to take effect Jan. 1, 2023.)

(a) Notwithstanding any prior statements acknowledging responsibility, the judicial authority shall inquire whether the allegations of the petition are presently admitted or denied. This inquiry shall be made of the parent, parents or guardian in neglect, abuse or uncared for matters, and of the parent or parents in termination matters.

(b) An admission to allegations or a plea of nolo contendere may be accepted by the judicial authority. Before accepting an admission or plea of nolo contendere, the judicial authority shall determine whether the right to trial has been waived, and that the parties understand the content and consequences of their admission or plea. If the allegations are admitted or the plea accepted, the judicial authority shall make its adjudicatory finding as to the validity of the facts alleged in the petition and may proceed to a dispositional hearing. Where appropriate, the judicial authority may permit a noncustodial parent or guardian to stand silent as to the entry of an adjudication. The judicial authority shall determine whether a noncustodial parent or guardian standing silent understands the consequences of standing silent.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 35a-1A. Record of the Case

A verbatim stenographic or electronic recording of all hearings shall be kept, any transcript of which shall be part of the record of the case.

(Adopted June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-1B. Exclusion of Unnecessary Persons from Courtroom

Any judicial authority hearing a child protection matter may, during such hearing, exclude from the room in which such hearing is held any person whose presence is, in the opinion of the judicial authority, not necessary.

(Adopted June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-2. Case Status Conference or Judicial Pretrial

(a) When the allegations of the petition are denied, necessitating testimony in support of the petitioner's allegations, the case shall be continued for a case status conference and/or a judicial pretrial. The case status conference or judicial pretrial may be waived by the judicial authority upon request of all the parties.

(b) Parties with decision-making authority to settle must be present or immediately accessible during a case status conference or judicial pretrial. Continuances will be granted only in accordance with Section 34a-5.

(c) At the case status conference and/or judicial pretrial, all attorneys and self-represented parties will be prepared to discuss the following matters:

(1) Settlement;

(2) Simplification and narrowing of the issues;

(3) Amendments to the pleadings;

(4) The setting of firm trial dates;

(5) Preliminary witness lists;

(6) Identification of necessary arrangements for trial including, but not limited to, application for a writ of habeas corpus for incarcerated parties, transportation, interpreters, and special equipment;

(7) Such other actions as may aid in the disposition of the case.

(d) When necessary, the judicial authority may issue a trial management order including, but not limited to, an order fixing a date prior to trial by which all parties are to exchange proposed witness and exhibit lists and copies of proposed exhibits not previously exchanged. Failure to comply with this order may result in the imposition of sanctions as the ends of justice may require.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-3. Coterminous Petitions

When coterminous petitions are filed, the judicial authority first determines by a fair preponderance of the evidence whether the child or youth is neglected, abused or uncared for; if so, then the judicial authority determines whether statutory grounds exist to terminate parental rights by clear and convincing evidence; if so, then the judicial authority determines whether termination of parental rights is in the best interests of the child or youth by clear and convincing evidence. If the judicial authority determines that termination grounds do not exist or termination of parental rights is not in the best interests of the child or youth, then the judicial authority may consider by a fair preponderance of the evidence any of the dispositional alternatives available under the neglect, abuse or uncared for petition.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec. 35a-4. Motions To Intervene

(Amended June 20, 2011, to take effect Jan. 1, 2012.)

(a) Interventions by any person related to the child or youth by blood, marriage or law for temporary custody or guardianship shall be governed by General Statutes § 46b-129 (c) or (d). All motions for intervention shall state with specificity the movant's interest and relief requested.

(b) Upon motion of any sibling of any child or youth committed to the Commissioner of the Department of Children and Families pursuant to General Statutes § 46b-129, such sibling shall have the right to be heard concerning visitation with, and placement of, any such child or youth. In awarding any visitation or modifying any placement, the judicial authority shall be guided by the best interests of all siblings affected by such determination.

(c) Other persons unrelated to the child or youth by blood, marriage or law, or persons related to the child or youth by blood, marriage or law who are not seeking to serve as a placement, temporary custodian or guardian of the child or youth may move to intervene in the dispositional phase of the case, and the judicial authority may grant said motion if it determines that such intervention is in the best interests of the child or youth or in the interests of justice.

(d) In making a determination upon a motion to intervene, the judicial authority may consider: the timeliness of the motion as judged by the circumstances of the case; whether the movant has a direct and immediate interest in the case; whether the movant's interest is not adequately represented by existing parties; whether the intervention may cause delay in the proceedings or other prejudice to the existing parties; the necessity for or value of the intervention in terms of resolving the controversy before the judicial authority; and the best interests of the child or youth.

(e) Any intervenor shall appear in person, with or without counsel, and shall not be entitled to court-appointed counsel or the assignment of counsel by the chief public defender except as provided in General Statutes § 46b-136.

(f) The judicial authority, may, on motion of any party or on its own motion, after notice and a hearing, terminate any person's intervenor status if such person's participation in the case is no longer warranted or necessary. The judicial authority may

determine if good cause exists to permit the intervenor to continue to participate in future proceedings as a party and what, if any further actions, the intervenor is required to take.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-5. Notice and Right To Be Heard

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) Any foster parent, prospective adoptive parent or relative caregiver shall be notified of and have a right to be heard in any proceeding held concerning a child or youth living with such foster parent, prospective adoptive parent or relative caregiver. The Commissioner of the Department of Children and Families shall provide written notice of all court proceedings concerning any child or youth to any such foster parent, prospective adoptive parent or relative caregiver of such child or youth. Records of such notice shall be kept by the Commissioner of the Department of Children and Families and information about notice given in each case provided to the court.

(b) Upon motion of any sibling of any child or youth committed to the Commissioner of the Department of Children and Families pursuant to General Statutes § 46b-129, the sibling shall have the right to be heard concerning visitation with and placement of any such child or youth.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-6. Postdisposition Role of Former Guardian

When a court of competent jurisdiction has ordered legal guardianship of a child or youth to a person other than the biological parents of the child or youth prior to the juvenile court proceeding, the juvenile court shall determine at the time of the commitment of the child or youth to the Commissioner of the Department of Children and Families whether good cause exists to allow said legal guardian to participate in future proceedings as a party and what, if any further actions the Commissioner of the Department of Children and Families and the guardian are required to take.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-6A. Consolidation

Upon motion of any party or on its own motion, the judicial authority may consolidate separate petitions for trial. In determining whether to consolidate, the judicial authority shall consider whether consolidation will expedite the business of the court without causing delay or injustice.

(Adopted June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-7. Evidence

(a) In the adjudicatory phase, the judicial authority is limited to evidence of events preceding the filing of the petition or the latest amendment, except where the judicial authority must consider subsequent events as part of its determination as to the existence of a ground for termination of parental rights.

(b) In the discretion of the judicial authority, evidence on adjudication and disposition may be heard in a nonbifurcated hearing, provided disposition may not be considered until the adjudicatory phase has concluded.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 35a-7A. Adverse Inference

If a party requests that the judicial authority draw an adverse inference from a parent's or guardian's failure to testify or the judicial authority intends to draw an adverse inference, either at the start of any trial or after the close of the petitioner's case-in-chief, the judicial authority shall notify the parents or guardian that an adverse inference may be drawn from their failure to testify.

(Adopted June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-8. Burden of Proceeding

(a) The petitioner shall be prepared to substantiate the allegations of the petition. All parties except the child or youth shall be present at trial unless excused for good cause shown. Failure of any party to appear in person or by their statutorily permitted designee may result in a default or nonsuit for failure to appear for trial, as the case may be, and evidence may be introduced and judgment rendered.

(b) If a parent, guardian, person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3) or a person named as the alleged genetic parent fails to appear at the initial hearing and no military affidavit has been filed, the judicial authority shall continue the proceedings prior to entering a default for failure to appear until such time as the military affidavit is filed.

(c) The clerk shall give notice by mail to the defaulted party and the party's attorney of the default and of any other action taken by the judicial authority. The clerk shall note the date that such notice is given or mailed.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-9. Dispositional Hearing; Evidence and Social Study

The judicial authority may admit into evidence any testimony relevant and material to the issue of the disposition, including events occurring through the close of the evidentiary hearing, but no disposition may be made by the judicial authority until any mandated social study has been submitted to the judicial authority. Said study shall be marked as an exhibit subject to the right of any party to be heard on a motion in limine requesting redactions and to require that the author, if available, appear for cross-examination.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-10. Availability of Social Study to Counsel and Parties

The mandated social study, addendums thereto, case status reports or other written reports made available to the judicial authority shall be reproduced and provided to all counsel of record and any self-represented party by the Commissioner of the Department of Children and Families before any scheduled case status conference, pretrial or hearing date. All persons who have access to such materials shall be responsible for preserving the confidentiality thereof in accordance with Section 32a-7.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 14, 2013, to take effect Jan. 1, 2014.)

Sec. 35a-11. Dispositional Plan Offered by Respondents

The respondents shall have the right to produce witnesses on behalf of any dispositional plan they may wish to offer.

(Adopted June 24, 2002, to take effect Jan. 1, 2003.)

Sec. 35a-12. Protective Supervision—Conditions, Modification and Termination

(Amended June 15, 2018, to take effect Jan. 1, 2019.)

(a) When protective supervision is ordered, the judicial authority will set forth any conditions of said supervision including duration, specific steps and review dates.

(b) A protective supervision order shall be scheduled for an in court review and reviewed by the judicial authority at least thirty days prior to its expiration. At said review, an updated social study shall be provided to the judicial authority.

(c) If an extension of protective supervision is being sought by the Commissioner of the Department of Children and Families or any other party in interest, including counsel for the minor child or youth, then a written motion for the same shall be filed not less than thirty days prior to such expiration. Such motion shall be heard either at the in court review of protective supervision if it is held within thirty days of such expiration or at a hearing to be held within ten days after the filing of such motion. For good cause shown and under extenuating circumstances, such written motion may be filed in a period of less than thirty days prior to the expiration of the protective supervision and the same shall be docketed accordingly. The motion shall set forth the reason(s) for the extension of the protective supervision and the period of the extension being sought. If the judicial authority orders such extension of protective supervision, the extension order shall be reviewed by the judicial authority at least thirty days prior to its expiration.

(d) Parental or guardian noncompliance with the order of protective supervision shall be a ground for a motion to modify the disposition. Upon finding that the best interests of the child or youth so warrant, the judicial authority, on its own motion or acting on a motion of any party and after notice is given and a hearing has been held, may modify a previously entered disposition of protective supervision in accordance with the applicable General Statutes.

(e) Any party who seeks to have an order of protective supervision terminate prior to its scheduled expiration date shall file a written motion to terminate the order. The motion shall set forth the reason or reasons why it is in the child's or youth's best interests for protective supervision to terminate early. If termination of protective supervision is sought on the day of a scheduled in court review hearing, such motion may be filed that day. All parties shall be afforded reasonable time to review the written motion and accompanying status reports or other relevant documents. Upon finding that the best interests of the child or youth so warrant, the judicial authority, acting on such motion and after notice is given and a hearing has been held, may terminate an order of protective supervision prior to its scheduled expiration date.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 15, 2018, to take effect Jan. 1, 2019; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-12A. Motions for Transfer of Guardianship

(a) Motions to transfer guardianship are dispositional in nature, based on the prior adjudication.

(b) In cases in which a motion for transfer of guardianship seeks to vest guardianship of a child or youth in any relative who is the licensed foster parent for such child or youth, or who is, pursuant to an order of the court, the temporary custodian of the child or youth at the time of the motion, the moving party has the burden of proof that the

proposed guardian is suitable and worthy and that transfer of guardianship is in the best interests of the child or youth. In such cases, there shall be a rebuttable presumption that the award of legal guardianship to that relative shall be in the best interests of the child or youth and that such relative is a suitable and worthy person to assume legal guardianship. The presumption may be rebutted by a preponderance of the evidence that an award of legal guardianship to such relative would not be in the child's or youth's best interests and such relative is not a suitable and worthy person.

(c) In cases in which a motion for transfer of guardianship, if granted, would require the removal of a child or youth from any relative who is the licensed foster parent for such child or youth, or who is, pursuant to an order of the court, the temporary custodian of the child or youth at the time of the motion, the moving party has the initial burden of proof that an award of legal guardianship to, or an adoption by, such relative would not be in the child's or youth's best interests and that such relative is not a suitable and worthy person. If this burden is met, the moving party then has the burden of proof that the movant's proposed guardian is suitable and worthy and that transfer of guardianship to that proposed guardian is in the best interests of the child or youth.

(d) In all other cases, the moving party has the burden of proof that the proposed guardian is suitable and worthy and that transfer of guardianship is in the best interests of the child or youth.

(Adopted June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-13. Findings as to Continuation in the Home, Efforts To Prevent Removal

Whenever the judicial authority orders a child or youth to be removed from the home, the judicial authority shall make written findings: (1) at the time of the order that continuation in the home is contrary to the welfare of the child or youth; and (2) at the time of the order or within sixty days after the child or youth has been removed from the home, whether the Commissioner of the Department of Children and Families has made reasonable efforts to prevent removal or whether such efforts were not possible.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-14. Motions for Review of Permanency Plan

(Amended June 30, 2008, to take effect Jan. 1, 2009.)

(a) Motions for review of the permanency plan shall be filed nine months after the placement of the child or youth in the custody of the Commissioner of the Department of Children and Families pursuant to a voluntary placement agreement, or removal of a child or youth pursuant to General Statutes § 17a-101g or an order of a court of competent jurisdiction, whichever is earlier. At the date custody is vested by order of a court of competent jurisdiction, or if no order of temporary custody is issued, at the date when commitment is ordered, the judicial authority shall set a date by which the subsequent motion for review of the permanency plan shall be filed. The Commissioner of the Department of Children and Families shall propose a permanency plan that conforms to the statutory requirements and shall provide a social study to support said plan. Nothing in this section shall preclude any party from filing a motion for revocation of commitment separate from a motion for review of permanency plan pursuant to General Statutes § 46b-129 (m) and subject to Section 35a-14A.

(b) At the time of the filing of a motion for review of permanency plan pursuant to subsection (a), the Commissioner of the Department of Children and Families shall also request a finding that it has made reasonable efforts to achieve the goal of the existing plan. The social study filed pursuant to subsection (a) shall include information indicating what efforts the commissioner has taken to achieve the goal of the existing plan.

(c) Once a motion for review of the permanency plan and requested findings regarding efforts to achieve the goal of the existing plan have been filed, the clerk of the court shall set a hearing not later than ninety days thereafter. The judicial authority shall provide notice to the child or youth, and the parent or guardian of such child or youth and any other party found entitled to such notice of the time and place of the court hearing on any such motion not less than fourteen days prior to such hearing. Any party who is in opposition to any such motion shall file a written objection and state with specificity the reasons therefor within thirty days after the filing of the Commissioner of the Department of Children and Families' motion for review of permanency plan and the objection shall be considered at the hearing. The judicial authority shall hold an evidentiary hearing in connection with any contested motion for review of the permanency plan. If there is no objection or motion for revocation filed, then the motion may be granted by the judicial authority at the date of said hearing.

(d) Whether to approve the permanency plan and to find that reasonable efforts to achieve the goal of the existing plan have been made are dispositional questions, based on the prior adjudication, and the judicial authority shall determine whether it is in the best interests of the child or

youth to approve the permanency plan and to find that reasonable efforts to achieve the goal of the existing plan have been made upon a fair preponderance of the evidence. The Commissioner of the Department of Children and Families shall have the burden of proving that the proposed permanency plan is in the best interests of the child or youth and that it has made reasonable efforts to achieve the goal of the existing plan.

(e) At each hearing on a motion for review of permanency plan, the judicial authority shall (1) ask the child or youth about their desired permanency outcome, or if the child or youth is unavailable to appear at such hearing require the attorney for the child or youth to consult with the child or youth regarding the child's or youth's desired permanency outcome and report the same to the court, (2) review the status of the child or youth, (3) review the progress being made to implement the permanency plan, (4) determine a timetable for attaining the permanency plan, (5) determine the services to be provided to the parent or guardian if the court approves a permanency plan of reunification and the timetable for such services, and (6) determine whether the Commissioner of the Department of Children and Families has made reasonable efforts to achieve the goal of the existing permanency plan. The judicial authority shall also determine whether the proposed goal of the permanency plan as set forth in General Statutes § 46b-129 (k) (2) is in the best interests of the child or youth by a fair preponderance of the evidence, taking into consideration the child's or youth's need for permanency. The child's or youth's health and safety shall be of paramount concern in formulating such plan. If a permanency plan is not approved by the judicial authority, it shall order the filing of a revised plan and set a hearing to review said revised plan within sixty days.

(f) As long as a child or youth remains in the custody of the Commissioner of the Department of Children and Families, the commissioner shall file a motion for review of permanency plan and for a finding regarding reasonable efforts to achieve the goal of the existing plan nine months after the prior permanency plan hearing. No later than twelve months after the prior permanency plan hearing, the judicial authority shall hold a subsequent permanency review hearing in accordance with this section.

(g) Whenever an approved permanency plan needs revision, the Commissioner of the Department of Children and Families shall file a motion for review of the revised permanency plan. The commissioner shall not be precluded from initiating a proceeding in the best interests of the child or youth considering the needs for safety and permanency.

(h) Where a petition for termination of parental rights is granted, the guardian or statutory parent of the child or youth shall report to the judicial authority not later than thirty days after the date the judgment is entered on a permanency plan and on the status of the child or youth. At least every three months thereafter, such guardian or statutory parent shall make a report to the judicial authority on the implementation of the plan, or earlier if the plan changes before the elapse of three months. The judicial authority may convene a hearing upon the filing of a report and shall convene and conduct a permanency hearing for the purpose of reviewing the permanency plan for the child or youth no more than twelve months from the date judgment is entered or from the date of the last permanency hearing held in accordance with General Statutes § 46b-129 (k), whichever is earlier, and at least once a year thereafter while the child or youth remains in the custody of the Commissioner of the Department of Children and Families. At each court hearing, the judicial authority shall make factual findings whether reasonable efforts to achieve the permanency plan or promote adoption have been made.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-14A. Revocation of Commitment

(Amended June 20, 2011, to take effect Jan. 1, 2012.)

Where a child or youth is committed to the custody of the Commissioner of the Department of Children and Families, the commissioner, a parent or the child's or youth's attorney may file a motion seeking revocation of commitment. The judicial authority may revoke commitment if a cause for commitment no longer exists and it is in the best interests of the child or youth. Whether to revoke the commitment is a dispositional question, based on the prior adjudication, and the judicial authority shall determine whether to revoke the commitment upon a fair preponderance of the evidence. The party seeking revocation of commitment has the burden of proof that no cause for commitment exists. If the burden is met, the party opposing the revocation has the burden of proof that revocation would not be in the best interests of the child or youth. If a motion for revocation is denied, a new motion shall not be filed by the movant until at least six months have elapsed from the date of the filing of the prior motion unless waived by the judicial authority.

(Adopted June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-15. Reunification Efforts—Aggravating Factors

Whenever any party seeks a finding of the existence of an aggravating factor negating the requirement that reasonable efforts be made to reunify a child or youth with a parent, the movant shall file a motion requesting such finding and the judicial authority shall proceed in accordance with General Statutes § 17a-111b (b).

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-16. Modifications

Motions to modify dispositions are dispositional in nature based on the prior adjudication, and the judicial authority shall determine whether a modification is in the best interests of the child or youth upon a fair preponderance of the evidence. Unless filed by the Commissioner of the Department of Children and Families, any modification motion to return a child or youth to the custody of the parent without protective supervision shall be treated as a motion for revocation of commitment.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 35a-17. Motions To Review Plan for Child Whose Parents' Rights Have Been Terminated

[Repealed as of Jan. 1, 2009.]

Sec. 35a-18. Opening Default

Any order or decree entered through a default may be set aside within four months succeeding the date of such entry of the order or decree upon the written motion of any party or person prejudiced thereby, showing reasonable cause, or that a defense in whole or in part existed at the time of the rendition of such order or of such decree, and that the party so defaulted was prevented by mistake, accident or other reasonable cause from prosecuting or appearing to make the same, except that no such order or decree shall be set aside if a final decree of adoption regarding the child or youth has been issued prior to the filing of any such motion. Such written motion shall be verified by the oath of the complainant and shall state in general terms the nature of the claim or defense and shall particularly set forth the reason why the party failed to appear. The judicial authority shall order reasonable notice of the pendency of such motion to be given to all parties to the action and also, in the case of a motion to set aside a judgment terminating parental rights, to any person who has legal custody of the child or youth or who has physical custody of the child or youth pursuant to an agreement, including an agreement with the Department of Children and Families or a licensed child-placing agency. The judicial authority may enjoin enforcement of such order or decree until the decision upon such written motion, unless said action shall prejudice or place the child's or youth's health, safety or welfare in jeopardy. The initial hearing on said motion shall be held as a priority matter but no later than fifteen days after the same has been filed with the clerk, unless otherwise agreed to by the parties and sanctioned by the judicial authority. All hearings on motions to set aside a judgment terminating parental rights shall be conducted in accordance with the provisions of General Statutes § 45a-719. In the event that any motion is granted, the matter shall be scheduled for an immediate pretrial or case status conference within fourteen days thereof, and failing a resolution at that time, then the matter shall be scheduled for a trial as expeditiously as possible.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-19. Transfer from Probate Court of Petitions for Removal of Parent as Guardian or Termination of Parental Rights

(a) When a contested application for removal of parent as guardian or petition for termination of parental rights or application to commit a child or youth to a hospital for the mentally ill has been transferred from the Probate Court to the Superior Court, the Superior Court clerk shall transmit to the Probate Court from which the transfer was made a copy of any orders or decrees thereafter rendered, including orders regarding reinstatement pursuant to General Statutes § 45a-611 and visitation pursuant to General Statutes § 45a-612, and a copy of any appeal of a Superior Court decision in the matter.

(b) The date of receipt by the Superior Court of a transferred petition shall be the filing date for determining initial hearing dates in the Superior Court. The date of receipt by the Superior Court of any Probate Court issued ex parte order of temporary custody not heard by that court shall be the issuance date in the Superior Court.

(c) Any appearance filed for any party in the Probate Court shall continue in the Superior Court for juvenile matters unless (1) a motion to withdraw is filed in the Probate Court within five days of the filing of the motion to transfer, and the motion to withdraw is granted by the Probate Court, (2) a motion to withdraw is filed by such party's counsel and granted by the Superior Court for juvenile matters, or (3) another counsel files

an "in place of" appearance on behalf of the party. If the party represented is indigent or is the child or youth subject to the proceedings, new counsel shall be assigned from the list of public defender services assigned counsel and shall be paid by the public defender services commission. The Superior Court for juvenile matters may request that the Division of Public Defender Services contract with probate counsel for representation if continued representation would be in the best interest of the client. Counsel for indigent parties or minor children appointed by the Probate Court who remain on the case in Superior Court for juvenile matters shall be paid by the Public Defender Services Commission according to its policies at the rate of pay established by the commission.

(d) (1) The Superior Court clerk shall notify appearing parties in applications for removal of guardian by mail of the date of the initial hearing which shall be held not more than thirty days from the date of receipt of the transferred application. Not less than ten days before the initial hearing, the Superior Court clerk shall cause a copy of the transfer order and probate petition for removal of guardian and an advisement of rights notice to be served on any nonappearing party or any party not served within the last twelve months with an accompanying order of notice and summons to appear at an initial hearing.

(2) Not less than ten days before the date of the initial hearing, the Superior Court clerk shall cause a copy of the transfer order and probate petition for termination of parental rights and an advisement of rights notice to be served on all parties, regardless of prior service, with an accompanying order of notice and summons to appear at an initial hearing which shall be held not more than thirty days from the date of receipt of the petition except in the case of a petition for termination of parental rights based on consent which shall be held not more than twenty days after the filing of the petition.

(3) The Superior Court clerk shall mail notice of the initial hearing date for all transferred petitions to all counsel of record and to the Commissioner of the Department of Children and Families or to any other agency which has been ordered by the Probate Court to conduct an investigation pursuant to General Statutes § 45a-619. The Commissioner of the Department of Children and Families or any other investigating agency will be notified of the need to have a representative present at the initial hearing.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-20. Motions for Reinstatement of Parent as Guardian

(Amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 11, 2021, to take effect Jan. 1, 2022.)

(a) Whenever a parent whose guardianship rights to a child or youth were removed and transferred to another person or an agency other than the Department of Children and Families by the Superior Court for juvenile matters seeks reinstatement as that child's or youth's guardian, the parent may file a motion for reinstatement of guardianship with the court that ordered the transfer of guardianship.

(b) The clerk shall assign such motion a hearing date and issue a summons to the current guardian and the nonmoving parent or parents. The moving party shall cause a copy of such motion and summons to be served on the child's or youth's current legal guardian(s) and the nonmoving parent or parents.

(c) Before acting on such motion, the judicial authority shall determine if the court still has custody jurisdiction and shall request, if necessary, that the Commissioner of the Department of Children and Families conduct an investigation and submit a home study that sets forth written findings and recommendations before rendering a decision.

(d) The hearing on a motion for reinstatement of guardianship is dispositional in nature. If the parent seeking reinstatement of guardianship demonstrates that the factors that resulted in the parent's removal as guardian are resolved satisfactorily, the parent is entitled to a presumption that reinstatement is in the best interest of the child or youth. The party opposing reinstatement of guardianship has the burden of proof to rebut this presumption by clear and convincing evidence.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 35a-20A. Motions for Reinstatement of Former Legal Guardian as Guardian or Modification of Guardianship Postdisposition

(a) Whenever a former legal guardian whose guardianship rights to a child or youth were removed and transferred to another person or an agency other than the Department of Children and Families by the Superior Court for juvenile matters seeks reinstatement as that child's or youth's guardian, the former legal guardian may file a motion for reinstatement of guardianship with the

court that ordered the transfer of guardianship. In other postdispositional cases concerning a child or youth whose legal guardianship was transferred to a person other than a parent or former legal guardian, or to an agency other than the Department of Children and Families, any person permitted to intervene may move the court to modify the award of guardianship.

(b) The clerk shall assign such motion a hearing date and issue a summons to the current guardian and the parent or parents. The moving party shall cause a copy of such motion and summons to be served on the child's or youth's current legal guardian(s) and the parent or parents.

(c) Before acting on such motion, the judicial authority shall determine if the court still has custody jurisdiction and shall request, if necessary, that the Commissioner of the Department of Children and Families conduct an investigation and submit a home study that sets forth written findings and recommendations before rendering a decision.

(d) The hearing on a motion for reinstatement of guardianship is dispositional in nature. The former legal guardian seeking reinstatement of guardianship has the burden of proof to establish that cause for transfer of guardianship to another person or agency no longer exists. The judicial authority shall then determine if reinstatement of guardianship is in the child's or youth's best interest.

(e) The hearing on a motion for postdispositional modification of a guardianship order is dispositional in nature. The party seeking to modify the existing guardianship order has the burden of proof to establish that the movant's proposed guardian is suitable and worthy. The judicial authority shall then determine if transfer of guardianship to that proposed guardian is in the child's or youth's best interest.

(Adopted June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 35a-21. Appeals in Child Protection Matters

(Amended June 15, 2012, to take effect Jan. 1, 2013.)

Unless a different period is provided by statute, appeals from final judgments or decisions of the Superior Court in child protection matters shall be taken within twenty days from the issuance of notice of the rendition of the judgment or decision from which the appeal is taken. If an extension to file an appeal is granted, the extension may not exceed an additional twenty days in all child protection appeals, except in an appeal in a termination of parental rights proceeding, the extension may not exceed an additional forty days pursuant to Section 79a-2.

(b) If an indigent party, child or youth wishes to appeal a final decision, the trial attorney shall file an appeal or seek review by an appellate review attorney in accordance with the rules for appeals in child protection matters in Chapter 79a. The reviewing attorney determining whether there is a nonfrivolous ground for appeal shall file a limited "in addition to" appearance with the trial court for purposes of reviewing the merits of an appeal. If the reviewing attorney determines there is merit to an appeal, the reviewing attorney shall notify the court, and the court shall grant the indigent party's application for appellate counsel, who shall file a limited "in addition to" appearance for the appeal with the Appellate Court. The trial attorney shall remain in the underlying juvenile matters case in order to handle ongoing procedures before the local or regional juvenile court. Any attorney who files an appeal or files an appearance in the Appellate Court after an appeal has been filed shall be deemed to have appeared in the trial court for the limited purpose of prosecuting or defending the appeal.

(c) Unless a new appeal period is created pursuant to Section 79a-2 (a), the time to take an appeal shall not be extended past forty days for an appeal from a judgment that did not result in a termination of parental rights (the original twenty days plus one twenty day extension for appellate review) or past sixty days for an appeal from a judgment terminating parental rights (the original twenty days plus one forty day extension for appellate review), from the date of the issuance of notice of the rendition of the judgment or decision.

(Adopted June 24, 2002, to take effect Jan. 1, 2003; amended June 30, 2008, to take effect Jan. 1, 2009; amended June 21, 2010, to take effect Jan. 1, 2011; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 26, 2020, on an interim basis pursuant to Section 1-9 (c), to take effect July 14, 2020, and amendment adopted June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 35a-22. Where Presence of Person May Be by Means of an Interactive Audiovisual Device

(a) The appearance of a person for any proceeding set forth in subsection (b) of this section may, in the discretion of the judicial authority on motion of a party or on its own motion, be made by means of an interactive audiovisual device. Such audiovisual device must operate so that such person and their attorney, if any, and the judicial authority if the proceeding is in court, can see and communicate with each other simultaneously. In addition, a procedure by which such person and their attorney can confer in private must be provided. Nothing contained in this section shall be construed to establish a right for any

person to be heard or to appear by means of an interactive audiovisual device or to require the Judicial Branch to pay for such person's appearance by means of an interactive audiovisual device.

(b) A person may appear by means of an interactive audiovisual device in juvenile matters in the civil session, as defined by General Statutes § 46b-121 (a), in the following proceedings or under the following circumstances:

(1) A party or a party's representative in case status and case management conferences;

(2) If a parent or guardian is incarcerated in this state, they may participate in plea hearings, judicial pretrials, order of temporary custody and termination of parental rights (TPR) case management conferences, reviews of protective supervision, permanency plan hearings, case status conferences, preliminary order of temporary custody hearings, neglect plea and disposition by agreement, neglect trials, TPR plea hearings, canvass of consents to TPR, contested transfer of guardianship hearings, motions to revoke commitment, emancipation petitions, and motions to reinstate guardian;

(3) If a parent or guardian is incarcerated in a federal correctional facility or another state's correctional facility, they may participate in all matters set forth in subdivision (2) above and in contested hearings including, but not limited to, temporary custody hearings, neglect or uncared for proceedings or TPR trials;

(4) A foster parent, prospective adoptive parent or relative caregiver may appear and be heard on the best interests of the child or youth pursuant to General Statutes § 46b-129 (p);

(5) A sibling of any child or youth committed to the Department of Children and Families, upon motion, may appear and be heard concerning visitation with, and placement of, any such child or youth pursuant to General Statutes § 46b-129 (q);

(6) A witness may testify in any proceeding in the discretion of the judicial authority.

(c) Unless otherwise required by law or unless otherwise ordered by the judicial authority, prior to any proceeding in which a person appears by means of an interactive audiovisual device, copies of all documents which may be offered at the proceeding shall be provided to all counsel and self-represented parties in advance of the proceeding.

(Adopted June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2024, to take effect Jan. 1, 2025.)

TECHNICAL CHANGE: In subdivisions (4) and (5) of subsection (b), the references to General Statutes § 46b-129 were updated.

Sec. 35a-23. Child's or Youth's Hearsay Statement; Residual Exception

(Amended June 14, 2024, to take effect Jan. 1, 2025.)

(a) A party who seeks the admission of a hearsay statement of a child or youth pursuant to the residual exception to the hearsay rule, based upon psychological unavailability, shall provide a written notice within a reasonable time before the trial.

(b) A notice pursuant to subsection (a) shall be filed with the court and shall be served on all counsel of record and self-represented parties when appropriate, in accordance with Section 10-13. The notice shall identify the proffered statement, the basis for the psychological unavailability claim and shall be filed within a reasonable time before the trial.

(c) A party who objects to the introduction of the child's or youth's hearsay statement and challenges the representations contained in the notice filed pursuant to subsection (b) of this section, shall file a written objection with the court within a reasonable time before the trial, stating the reasons therefor.

(d) The judicial authority shall hold an evidentiary hearing to determine the admissibility of the child's or youth's hearsay statement in a manner that does not unduly delay resolution of the proceedings. The party seeking to introduce the statement shall have the burden of proving the child's or youth's psychological unavailability; specifically, that the child or youth will suffer serious emotional or mental harm if required to testify.

(Adopted June 14, 2013, to take effect Jan. 1, 2014; amended June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 35a-24. Motions for Posttermination Visitation

(a) Whenever any party seeks an order for posttermination visitation in the context of the termination of parental rights proceeding, the movant shall file a motion in accordance with Section 34a-1.

(b) The judicial authority shall hold an evidentiary hearing to determine whether such an order is necessary or appropriate to secure the welfare, protection, proper care and suitable support of a child.

(c) Upon motion of any party or upon its own motion, the judicial authority may consolidate the hearing on the motion for posttermination visitation with the termination of parental rights trial.

(d) The moving party shall have the burden of proving that posttermination visits are necessary or appropriate to secure the welfare, protection, proper care and suitable support of a child.

(e) In deciding whether to order posttermination visitation, the judicial authority may consider: the wishes of the child; the expressed interests of the birth parent; the frequency and quality of visitation between the child and birth parent prior to the termination of the parent's parental rights; the strength of the emotional bond between the child and the birth parent; any interference with present custodial arrangements; any impact on the adoption prospects for the child; and any other factors the judicial authority finds relevant and material.

(Adopted June 9, 2023, to take effect Jan. 1, 2024.)

SUPERIOR COURT—PROCEDURE IN CRIMINAL MATTERS

CHAPTER 36

PROCEDURE PRIOR TO APPEARANCE

Sec.	
36-1.	Arrest by Warrant; Issuance
36-2.	—Affidavit in Support of Application, Filing, Disclosure
36-3.	—Contents of Warrant
36-4.	—Direction by Judicial Authority for Use of Summons
36-5.	—Execution and Return of Warrant
36-6.	—Cancellation of Warrant
36-7.	Summons; Form of Summons and Complaint
36-8.	—Issuance of Summons by Prosecuting Authority in Lieu of Arrest Warrant
36-9.	—Service of Summons
36-10.	—Failure To Respond to Summons
36-11.	Information and Complaint; Use
36-12.	—Issuance of Information
36-13.	—Form of Information
36-14.	—Former Conviction in Information
36-15.	—Filing and Availability of Information
36-16.	Amendments; Minor Defects
36-17.	—Substantive Amendment before Trial
36-18.	—Substantive Amendment after Commencement of Trial
36-19.	—Request by Defendant for Essential Facts
36-20.	—Continuance Necessitated by Amendment
36-21.	Joinder of Offenses in Information
36-22.	Joinder of Defendants

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 36-1. Arrest by Warrant; Issuance

Upon the submission of an application for an arrest warrant by a prosecuting authority, a judicial authority may issue a warrant for the arrest of an accused person if the judicial authority determines that the affidavit accompanying the application shows that there is probable cause to believe that an offense has been committed and that the accused committed it.

(P.B. 1978-1997, Sec. 593.)

Sec. 36-2. —Affidavit in Support of Application, Filing, Disclosure

(a) All affidavits submitted to the judicial authority in support of the application for an arrest warrant and from which a determination of probable cause for the issuance of an arrest warrant has been made shall be filed with the clerk of the court together with the return of the arrest warrant pursuant to Section 44-11 and thereafter remain a part of the court file.

(b) At the time the arrest warrant is issued, upon written request of the prosecuting authority and for good cause shown, the judicial authority may order that the supporting affidavits be sealed from public inspection or that disclosure be limited under such terms and conditions as it finds reasonable, subject to the further order of any judicial authority thereafter having jurisdiction of the matter. No such order shall limit their disclosure to the attorney for the accused, but the judicial authority may place reasonable restrictions on the attorney's further disclosure of the contents of the affidavits.

(c) Any order sealing such affidavits from public inspection or limiting their disclosure shall be for a specific period of time, not to exceed two weeks from the date of arrest, and within that time period the prosecuting authority may by written motion seek an extension of the period. The original order of the court sealing the affidavit or limiting its disclosure shall remain in effect until the court issues an order on the motion. The motion to extend the period and the court's order thereon shall be made in accordance with the provisions of Section 42-49A. Affidavits which are the subject of such an order shall remain in the custody of the clerk's office but shall be kept in a secure location apart from the remainder of the court file as long as the order is in effect.

(d) Unless the judicial authority issuing an arrest warrant has, upon written request of the prosecuting authority, entered an order limiting disclosure of the supporting affidavits, all affidavits filed pursuant to this section shall be open to public inspection and copying and the clerk shall provide copies to any person upon receipt of any applicable fee.

(P.B. 1978-1997, Sec. 593A.) (Amended May 14, 2003, to take effect July 1, 2003; amended June 21, 2004, to take effect Jan. 1, 2005; amended June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 36-3. —Contents of Warrant

The warrant shall be signed by the judicial authority and shall contain the name of the accused person, or if such name is unknown, any name or description by which the accused can

be identified with reasonable certainty, and the conditions of release fixed, if any. It shall state the offense charged and direct any officer authorized to execute it to arrest the accused person and to bring him or her before a judicial authority without undue delay.

(P.B. 1978-1997, Sec. 594.)

Sec. 36-4. —Direction by Judicial Authority for Use of Summons

(a) Instead of issuing an arrest warrant, even where probable cause has been found, the judicial authority may direct that a summons and complaint be issued to an accused person pursuant to Sections 36-7 through 36-10, unless the judicial authority determines that it is necessary to take the accused into custody for any of the following reasons:

(1) The criminal offense involved is a felony;

(2) There are facts indicating a substantial likelihood that such person will not appear in court at the specified time and place unless taken into custody;

(3) Such person is likely to cause injury to himself or herself or to others, or is likely to cause serious damage to property;

(4) The offense is likely to continue if such person is not taken into custody;

(5) Custody is necessary for the protection of such person or to provide that person with needed medical or other aid;

(6) The person fails satisfactorily to identify himself or herself; or

(7) The person has previously failed to appear in court when required to do so.

(b) The failure to comply with this section shall not be a ground for dismissal of an information, but shall entitle the accused to be released upon a written promise to appear where none of the foregoing reasons shall be found to exist.

(P.B. 1978-1997, Sec. 595.)

Sec. 36-5. —Execution and Return of Warrant

The officer executing an arrest warrant may do so anywhere within the state upon apprehension of the accused. The officer shall take the accused into custody, serve a copy of the warrant upon him or her and follow the procedure specified in Section 38-1 or 38-2, whichever is applicable.

(P.B. 1978-1997, Sec. 596.)

Sec. 36-6. —Cancellation of Warrant

At the request of the prosecuting authority, any unserved arrest warrant shall be returned to a judicial authority for cancellation. A judicial authority also may direct that any unserved arrest warrant be returned for cancellation.

(P.B. 1978-1997, Sec. 597.)

Sec. 36-7. Summons; Form of Summons and Complaint

A summons and complaint issued by a prosecuting authority or law enforcement officer shall:

(1) Be in writing;

(2) Be signed by the person issuing it with the title of such person's office;

(3) State the date of issuance and the municipality where issued;

(4) Specify the name of the accused person;

(5) Designate a time for appearance not more than fourteen days after issuance;

(6) State the offense charged against the accused person;

(7) State that if the accused does not appear at a specified time and place, an application may be made for the issuance of a warrant for arrest;

(8) Inform the accused that he or she is entitled to be represented by an attorney;

(9) Inform any accused charged with an offense punishable by incarceration who is unable to afford an attorney that he or she may be entitled to the services of a public defender.

(P.B. 1978-1997, Sec. 599.)

Sec. 36-8. —Issuance of Summons by Prosecuting Authority in Lieu of Arrest Warrant

When a prosecuting authority receives a complaint that a misdemeanor has been committed, in lieu of applying for an arrest warrant, the prosecuting authority may summon the person or persons against whom the complaint is made to appear before the court at the date and time specified in the summons. The prosecuting authority also may issue a summons when directed to do so by the judicial authority pursuant to Section 36-4.

(P.B. 1978-1997, Sec. 601.)

Sec. 36-9. —Service of Summons

The summons and complaint shall be served upon the accused by any law enforcement officer by delivering a copy to the accused personally, or by leaving it at the accused's usual place of abode with a person of suitable age and discretion then residing therein, or by mailing it by registered or certified mail to the last known address of the accused.

(P.B. 1978-1997, Sec. 602.)

Sec. 36-10. —Failure To Respond to Summons

Upon the failure of the officer to make due return of a summons within two weeks of its issuance, or upon the failure of the accused to respond to the summons, the prosecuting authority may apply for the arrest of the accused.

(P.B. 1978-1997, Sec. 603.)

Sec. 36-11. Information and Complaint; Use

All felonies shall be prosecuted by information. All misdemeanors, violations, and infractions

shall be prosecuted by information or complaint. In all jury cases, and in all other cases on written request of the defendant, the prosecuting authority as of course shall issue an information in place of the uniform summons and complaint.

(P.B. 1978-1997, Sec. 616.)

Sec. 36-12. —Issuance of Information

An information shall be signed by the prosecuting authority. When any person is arrested without a warrant or is issued a summons, the prosecuting authority shall, without unnecessary delay, review the acts complained of and determine whether it appears that there is reasonable cause to believe that an offense has been committed within the jurisdiction of the court and that the person arrested or the person to whom the summons was issued committed the offense. If the prosecuting authority determines that reasonable cause exists, it shall, in cases where an information is required, present an information to the court, pursuant to Section 36-11. If the prosecuting authority determines that reasonable cause does not exist, it shall not present the matter to the court, but an entry shall be made on the case papers indicating that prosecution was declined upon authority of this section, and a brief statement shall be made in open court. For purposes of erasure pursuant to the General Statutes, that action shall be deemed a dismissal.

(P.B. 1978-1997, Sec. 617.)

Sec. 36-13. —Form of Information

The information shall be a plain, concise and definite written statement of the offense charged. The information need not contain a formal commencement, a formal conclusion or any other matter not necessary to such statement. Allegations made in one count may be incorporated by reference in another count. It may be alleged in a single count that the means by which the defendant committed the offense are unknown or that the defendant committed the offense by one or more specified means. The information shall state for each count the official or customary citation of the statute, rule, regulation, or other provision of law which the defendant is alleged to have violated. The information shall also contain:

(1) The name of the court in which it is filed;

(2) The title of the action;

(3) The name of the defendant;

(4) A statement that such crime was committed in a particular judicial district or geographical area, or at a particular place within such judicial district or geographical area; and

(5) A statement that such crime was committed on, or on or about, a particular date or period of time.

(P.B. 1978-1997, Sec. 618.)

Sec. 36-14. —Former Conviction in Information

Where the information alleges, in addition to the principal offense charged, a former conviction or convictions, such information shall be in two separate parts, each signed by the prosecuting authority. In the first part, the particular offense with which the accused is charged shall be set out, and in the other part the former conviction or convictions shall be alleged. In alleging the former conviction, it is sufficient that the information allege the date when, the town or city where, and the court wherein such conviction was obtained and the crime of which the defendant was convicted, all of which may be stated in accordance with the provisions of Section 36-13.

(P.B. 1978-1997, Sec. 619.)

Sec. 36-15. —Filing and Availability of Information

The information or complaint shall be filed with the clerk and be available for inspection by the defendant or counsel for the defendant. Upon written request, a copy thereof shall be furnished without charge to the defendant or counsel for the defendant.

(P.B. 1978-1997, Sec. 620.)

Sec. 36-16. Amendments; Minor Defects

The judicial authority may order at any time such relief as is required to remedy any defect, imperfection or omission in the information or complaint, including the following:

(1) Any matter of form;

(2) Any miswriting, misspelling, or improper English;

(3) Any misuse of a sign, symbol, figure, or abbreviation; or

(4) Any omission of the true name or any misspelling of the name of the defendant.

(P.B. 1978-1997, Sec. 622.)

Sec. 36-17. —Substantive Amendment before Trial

If the trial has not commenced, the prosecuting authority may amend the information, or add additional counts, or file a substitute information. Upon motion of the defendant, the judicial authority, in its discretion, may strike the amendment or added counts or substitute information, if the trial or the cause would be unduly delayed or the substantive rights of the defendant would be prejudiced.

(P.B. 1978-1997, Sec. 623.)

Sec. 36-18. —Substantive Amendment after Commencement of Trial

After commencement of the trial for good cause shown, the judicial authority may permit the prosecuting authority to amend the information at any time before a verdict or finding if no additional or

different offense is charged and no substantive rights of the defendant would be prejudiced. An amendment may charge an additional or different offense with the express consent of the defendant.

(P.B. 1978-1997, Sec. 624.)

Sec. 36-19. —Request by Defendant for Essential Facts

Whenever the information charges the offense only by referring to the statute which is alleged to have been violated, the prosecuting authority, upon written request of the defendant, shall as of course amend the information by adding or annexing thereto a statement of the essential facts claimed to constitute the offense charged. Such request shall be made not later than ten days after the first pretrial conference unless otherwise directed by the judicial authority for good cause shown.

(P.B. 1978-1997, Sec. 625.)

Sec. 36-20. —Continuance Necessitated by Amendment

Within the judicial authority's discretion, an extension of time, an adjournment, or a continuance reasonably necessitated by an amendment may be granted.

(P.B. 1978-1997, Sec. 626.)

Sec. 36-21. Joinder of Offenses in Information

Two or more offenses may be charged in the same information in a separate count for each offense for any defendant.

(P.B. 1978-1997, Sec. 627.)

Sec. 36-22. Joinder of Defendants

Each defendant shall be charged in a separate information.

(P.B. 1978-1997, Sec. 628.)

CHAPTER 37

ARRAIGNMENT

Sec.
37-1. Arraignment; Timing, Alternative Proceedings
37-2. —Information and Materials To Be Provided to the Defendant Prior to Arraignment
37-3. —Advisement of Constitutional Rights
37-4. —Collective Statement Advising of Constitutional Rights
37-5. —Reference to Public Defender; Investigation of Indigency
37-6. —Appointment of Public Defender
37-7. Pleas; In General
37-8. —Plea of Guilty or Nolo Contendere
37-9. —Plea of Not Guilty
37-10. —Taking of Plea when Information in Two Parts
37-11. —Notice to Defendant when Information in Two Parts
37-12. Defendant in Custody; Determination of Probable Cause

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 37-1. Arraignment; Timing, Alternative Proceedings

(Amended June 11, 2021, to take effect Jan. 1, 2022.)

(a) Unless otherwise provided in this section, a defendant who is not released from custody sooner shall be brought before a judicial authority for arraignment no later than the first court day following arrest. A defendant not in custody shall appear for arraignment in person at the time and place specified in the summons or the terms of release, or at such other date or place fixed by the judicial authority.

(b) Except as provided in subsection (c) of this section, any defendant who is hospitalized, has escaped, or is otherwise incapacitated shall be presented for arraignment no later than the next court day following such defendant's medical discharge or return to police custody or a determination that the defendant is no longer incapacitated.

(c) The judicial authority may, upon motion of any party or upon its own motion, and for good cause shown, arraign remotely, via interactive audiovisual device or other remote technology, any defendant who is hospitalized or otherwise incapacitated or, if a remote arraignment is not feasible, arraign the defendant without his or her presence. Upon request, the judicial authority shall provide counsel for the defendant with a reasonable opportunity to consult with the defendant privately prior to any hearing on such motion and any arraignment conducted pursuant to this subsection. For the purposes of this subsection, "good cause" includes, but is not limited to, a risk that the defendant's constitutional rights may be violated were the defendant's arraignment to be conducted in accordance with subsection (b) of this section.

(d) An arraignment conducted in accordance with subsection (c) of this section shall, in all other respects, be carried out in accordance with the rules and procedures otherwise applicable to arraignments, and any such arraignment shall be considered to have complied with the requirements set forth in General Statutes § 54-1g.

(e) Any defendant whom the court has arraigned pursuant to subsection (c) of this section and who has not posted bond or been otherwise released from custody prior to his or her medical discharge or a determination that he or she is no longer incapacitated shall be presented to the court no later than the next court day following his or her medical discharge or the determination that he or she is no longer incapacitated.

(f) Any defendant whom the court has arraigned pursuant to subsection (c) of this section shall have the right to de novo review of any orders entered at such arraignment.

(P.B. 1978-1997, Sec. 635.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

COMMENTARY—2022: This section has been amended to allow the judicial authority to arraign a defendant remotely or without his or her presence if the defendant is hospitalized or otherwise incapacitated.

Although defendants have a fundamental constitutional right to be physically present at all critical stages of trial; *Rushen* v. *Spain*, 464 U.S. 114, 117, 104 S. Ct. 453, 78 L. Ed. 2d 267 (1983); including arraignment, this change is intended to balance a defendant's right to be physically present at arraignment with his or her other constitutional rights such as the right to counsel, the right against self-incrimination, and the right to be released on bail. This change is also intended to provide greater First Amendment access to the public in cases where the public might otherwise be excluded from an arraignment that needs to take place in a hospital room due to the defendant's extended hospitalization. It is the intent that arraignments conducted pursuant to new subsection (c) of this section, particularly arraignments conducted without the presence of the defendant, be conducted sparingly and only upon good cause.

Sec. 37-2. —Information and Materials To Be Provided to the Defendant Prior to Arraignment

Prior to the arraignment of the defendant before the judicial authority to determine the existence of

probable cause to believe such person committed the offense charged or to determine the conditions of such person's release pursuant to Section 38-4, the prosecuting authority shall provide the defendant or counsel with a copy of any affidavit or report submitted to the court for the purpose of making such determination; except that the judicial authority may, upon motion of the prosecuting authority and for good cause shown, limit the disclosure of any such affidavit or report, or portion thereof.

(P.B. 1978-1997, Sec. 635A.)

Sec. 37-3. —Advisement of Constitutional Rights

(a) Unless a defendant has been previously advised of his or her constitutional rights by a clerk pursuant to General Statutes § 54-64b or by a judicial authority pursuant to General Statutes § 54-1b, or unless the arraignment is proceeding without the presence of the defendant in accordance with subsection (c) of Section 37-1, the judicial authority shall, personally and in open court, advise any defendant or defendants appearing for arraignment, either individually or collectively of the following at the opening of the court session:

(1) That the defendant is not obligated to say anything and that anything the defendant says may be used against him or her;

(2) That the defendant is entitled to the services of an attorney;

(3) If the defendant is unable to pay for one, what the procedures are through which the services of an attorney will be provided for him or her; and

(4) That the defendant will not be questioned unless he or she consents, that the defendant may consult with an attorney before being questioned and that the defendant may have an attorney present during any questioning.

(b) If the judicial authority arraigns a defendant without his or her presence in accordance with subsection (c) of Section 37-1, the judicial authority shall order that the defendant be informed in writing of his or her rights under subsection (a) of this section as quickly as possible under the circumstances. The judicial authority shall also advise the defendant of his or her rights pursuant to subsection (a) of this section upon the defendant's first appearance in court.

(P.B. 1978-1997, Sec. 637.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 37-4. —Collective Statement Advising of Constitutional Rights

If the judicial authority shall have collectively informed all defendants of their rights at the opening of court, it shall preface the individual arraignment of each by asking whether he or she heard and understood the collective statement.

(P.B. 1978-1997, Sec. 638.)

Sec. 37-5. —Reference to Public Defender; Investigation of Indigency

The judicial authority shall refer the defendant to the public defender for an investigation of indigency unless the judicial authority:

(1) Accepts the defendant's waiver of counsel in accordance with Section 44-3;

(2) Is informed by the defendant, and concludes, that the defendant has retained or will retain private counsel within a reasonable time;

(3) Decides to dispose of the case in accordance with Section 44-1 (2); or

(4) Learns that the public defender has already conferred with the defendant at some time following arrest and that the investigation of indigency has been made.

(P.B. 1978-1997, Sec. 640.)

Sec. 37-6. —Appointment of Public Defender

(a) If the judicial authority determines after investigation by the public defender that the defendant is indigent, the judicial authority may designate the public defender or a public defender assigned counsel to represent the defendant unless, in a misdemeanor case, at the time of the application for appointment of counsel, the judicial authority decides or believes that disposition of the pending case will not result in a sentence involving incarceration or a suspended sentence of incarceration with a period of probation or conditional discharge, and makes a statement to that effect on the record. If the public defender or his or her office determines that a defendant is not eligible to receive the services of a public defender, the defendant may appeal the public defender's decision to the judicial authority in accordance with General Statutes § 51-297 (g). The judicial authority may not appoint the public defender or a public defender assigned counsel unless the judicial authority finds the defendant indigent following such appeal. If a conflict of interest or other circumstance exists which prevents the public defender from representing the defendant, the judicial authority, upon recommendation of the public defender or upon its own motion, may appoint a public defender assigned counsel to represent the defendant.

(b) The fact that the judicial authority, in a misdemeanor case, decides or believes that disposition of the pending case will not result in a sentence involving incarceration or a suspended sentence of incarceration with a period of probation or conditional discharge, shall not preclude the judicial authority from appointing, in its discretion, a public defender or a public defender assigned counsel to represent an indigent defendant.

(c) The judicial authority may designate the public defender or a public defender assigned counsel to represent a defendant who is subject to a motion to arraign such defendant remotely or without his or her presence, pursuant to subsection (c) of Section 37-1, and who is not represented by counsel. Counsel for the defendant shall file an appearance in accordance with subsection (c) of Section 3-6. Such appearance shall expire upon the defendant's first appearance in court. If the defendant thereafter applies for public defender services, the judicial authority may designate the public defender or public defender assigned counsel to represent the defendant in full in accordance with subsection (a) of this section.

(P.B. 1978-1997, Sec. 641.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 37-7. Pleas; In General

Upon being read the charges against him or her contained in the information or complaint, the defendant shall enter a plea of not guilty, guilty, or nolo contendere.

(P.B. 1978-1997, Sec. 643.)

Sec. 37-8. —Plea of Guilty or Nolo Contendere

A plea of guilty or nolo contendere shall be entered in accordance with Sections 39-1 and 39-18. If the case is to be continued for sentencing, the judicial authority shall set a date for the sentencing hearing and, if necessary, order a presentence investigation.

(P.B. 1978-1997, Sec. 644.)

Sec. 37-9. —Plea of Not Guilty

Any defendant who pleads not guilty shall be asked whether he or she desires a trial either by the court or by a jury. Pursuant to these rules, including Sections 44-11 through 44-17, the case shall be placed on the trial list and, where possible or necessary, assigned dates for a disposition conference, a probable cause hearing, and/or a trial.

(P.B. 1978-1997, Sec. 645.)

Sec. 37-10. —Taking of Plea when Information in Two Parts

Where the information is in two parts pursuant to Section 36-14 and alleges, in addition to the principal offense charged, a former conviction or convictions, the plea and the election of a method of trial shall first be taken only on the first part of the information.

(P.B. 1978-1997, Sec. 647.)

Sec. 37-11. —Notice to Defendant when Information in Two Parts

(Amended June 15, 2012, to take effect Jan. 1, 2013.)

Prior to the time the defendant enters a guilty plea, or, if the defendant pleads not guilty, prior to the commencement of trial, the court shall notify the defendant of the contents of the second part of the information. The clerk shall enter on the docket the time and place of the giving of such notification and, where necessary, shall include entry thereof in the judgment file.

(P.B. 1978-1997, Sec. 648.) (Amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec. 37-12. Defendant in Custody; Determination of Probable Cause

(a) If a defendant has been arrested without a warrant and has not been released from custody by the time of the arraignment or is not released at the arraignment pursuant to Section 38-4, the judicial authority shall, unless waived by the defendant, make an independent determination as to whether there is probable cause for believing that the offense charged has been committed by the defendant. Unless such a defendant is released sooner, such probable cause determination shall be made no later than forty-eight hours following the defendant's arrest. Such determination shall be made in a nonadversary proceeding, which may be ex parte based on affidavits. If no such probable cause is found, the judicial authority shall release the defendant from custody.

(b) At the time the judicial authority makes its probable cause determination pursuant to subsection (a), the judicial authority may, on its own motion or upon written request of any party and for good cause shown, order that any affidavits submitted in support of a finding of probable cause, including any police reports, be sealed from public inspection or that disclosure be limited under such terms and conditions as it finds reasonable, subject to the further order of any judicial authority thereafter having jurisdiction of the matter. If such a request has been granted, the moving party may have up to seven days to make a recommendation as to the details of the sealing order. If no such recommendation is made within that time period, the supporting affidavits shall be made public. No such order shall limit their disclosure to the attorney for the accused, but the judicial authority may place reasonable restrictions on the further disclosure of the contents of the affidavits by the attorney for the accused and the prosecuting authority.

(c) Any order sealing such affidavits from public inspection or limiting their disclosure shall be for a specific period of time, not to exceed two weeks

from the date of the court's probable cause determination, and within that time period the party who obtained the order may, by written motion, seek an extension of the period. The original order of the court sealing such affidavits or limiting their disclosure shall remain in effect until the court issues an order on the motion. Affidavits which are the subject of such an order shall remain in the custody of the clerk's office but shall be kept in a secure location apart from the remainder of the file as long as the order is in effect.

(d) Unless the judicial authority entered an order limiting disclosure of the affidavits submitted to the judicial authority in support of a finding of probable cause, whether or not probable cause has been found, all such affidavits, including any police reports, shall be made part of the court file and be open to public inspection and copying, and the clerk shall provide copies to any person upon receipt of any applicable fee.

(P.B. 1978-1997, Sec. 650.) (Amended June 29, 2007, to take effect Jan. 1, 2008; amended June 22, 2009, to take effect Jan. 1, 2010.)

CHAPTER 38

PRETRIAL RELEASE

Sec.
38-1. Release from Custody; Superior Court Arrest Warrant where Appearance before Clerk Required
38-2. Release Following Any Other Arrest; Release by Law Enforcement Officer or Probation Officer Serving Warrant
38-3. —Release by Bail Commissioner or Intake, Assessment and Referral Specialist
38-4. —Release by Judicial Authority
38-5. —Release by Correctional Officials
38-6. Appearance after Release
38-7. Cash Bail
38-8. Seven Percent Cash Bail
38-9. Real Estate Bond
38-10. Factors To Be Considered by the Judicial Authority in Release Decision [Repealed]
38-11. Request for Judicial Determination of Release
38-12. Attorneys Not Allowed To Give Bonds
38-13. Bail Modification; In General
38-14. —Motion of Parties for Bail Modification
38-15. —Application of Bail Commissioner
38-16. —Application of Surety
38-17. —Hearing on Motion or Application for Modification of Bail
38-18. —Review of Detention Prior to Arraignment, Trial or Sentencing
38-19. Violation of Conditions of Bail; Order To Appear
38-20. —Sanctions for Violation of Conditions of Release
38-21. —Forfeiture of Bail and Rearrest Warrant
38-22. Rebate of Forfeited Bonds
38-23. Discharge of Surety's Obligation

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 38-1. Release from Custody; Superior Court Arrest Warrant where Appearance before Clerk Required

(a) When any person is arrested on a warrant pursuant to General Statutes § 54-2a in which the judicial authority issuing such warrant has indicated that bail should be denied, or has ordered that the arrested person be brought before a clerk or assistant clerk of the Superior Court, the arresting officer shall, without undue delay, bring such person before the clerk or assistant clerk of the Superior Court for the geographical area where such offense is alleged to have been committed during the office hours of such clerk and, if such clerk's office is not open, the arresting officer shall, without undue delay, bring such person to a holding facility within the geographical area where such offense is alleged to have been committed or, if there is no such facility available within such geographical area, to the nearest available facility, or the York Correctional Institution. Such clerk or assistant clerk or such person designated by the Commissioner of Correction shall advise the arrested person of the warnings contained in Section 37-3 and, when the judicial authority has not indicated that bail should be denied, shall release the arrested person upon his or her entering into the conditions of release fixed in the warrant, conditioned that the arrested person shall appear before the Superior Court having criminal jurisdiction in and for the geographical area to answer to the bench warrant of arrest and information filed in the case. If the arrested person was brought to such a facility, he or she shall be given the opportunity to contact private counsel or the public defender. If the arrested person is not released because of his or her failure to enter into the conditions of release fixed by the judicial authority, or if he or she has been arrested for an offense that is not bailable, the arrested person shall be presented before a judicial authority pursuant to Section 37-1.

(b) When any person is arrested on a bench warrant of arrest issued by a judicial authority, in which the judicial authority has not indicated that bail should be denied, or has not ordered that the officer making such arrest bring such person before the clerk, the officer making the arrest shall, without undue delay, comply with the provisions of Sections 38-2 and 38-3 in setting the conditions of release for such person.

(P.B. 1978-1997, Sec. 654.) (Amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 38-2. Release Following Any Other Arrest; Release by Law Enforcement Officer or Probation Officer Serving Warrant

(Amended June 15, 2018, to take effect Jan. 1, 2019.)

(a) Except in cases of arrest pursuant to a warrant in which the judicial authority has indicated that bail should be denied or has ordered that the arrested person be brought before a clerk or assistant clerk of the Superior Court, when any person is taken into custody for a bailable offense that person shall be brought promptly to a police station or other lawful place of detention, where, as quickly as possible under the circumstances, he or she shall be informed or warned in writing of his or her rights under Section 37-3 and

of his or her right to be interviewed concerning the terms and conditions of release. Unless the arrested person waives or refuses such interview, a law enforcement officer or a probation officer serving a violation of probation warrant shall promptly interview that person to obtain information relevant to the terms and conditions of his or her release from custody and shall seek independent verification of such information where necessary. At the request of the arrested person, his or her counsel may be present during such interview. No statement made by the arrested person in response to any question during the interview related to the terms and conditions of release shall be admissible as evidence against the arrested person in any proceeding arising from the incident for which the conditions of release were set. After such a waiver, refusal or interview, the law enforcement officer or probation officer shall promptly order release of the arrested person upon his or her execution of a written promise to appear or his or her posting of a bond with or without surety in such amount as may be set by such officer, except that no condition of release set by the judicial authority may be modified by such officer, and no person shall be released upon the execution of a written promise to appear or the posting of a bond without surety if the person is charged with a family violence crime and, in the commission of such crime, the person used or threatened the use of a firearm. If the arrested person has not posted bail, the officer shall immediately notify a bail commissioner. The officer may administer such oaths as are necessary in the taking of promises or bonds.

(b) If the arrested person is charged with a family violence crime, and the police officer or probation officer does not intend to impose nonfinancial conditions of release pursuant to this subsection, the police officer or probation officer shall promptly order the release of such person pursuant to the procedure set forth in subsection (a) of this section. If the arrested person is not so released, the officer shall make reasonable efforts to contact a bail commissioner or an intake, assessment and referral specialist immediately. If, after making such reasonable efforts, the officer is unable to contact a bail commissioner or an intake, assessment and referral specialist, or the officer makes contact, but the bail commissioner or intake, assessment and referral specialist is unavailable promptly to perform his or her duties pursuant to Section 38-3, the officer shall order the release of the arrested person pursuant to the procedure set forth in subsection (a) of this section, and may impose nonfinancial conditions of release, which may require the arrested person to do one or more of the following:

(1) Avoid all contact with the alleged victim of the crime;

(2) Comply with specified restrictions on his or her travel, association, or place of abode that are directly related to the protection of the alleged victim of the crime;

(3) Not use or possess a dangerous weapon, intoxicant or controlled substance.

Any nonfinancial conditions of release imposed pursuant to this subsection shall remain in effect until the arrested person is presented before the Superior Court. On such date, the judicial authority shall conduct a hearing pursuant to General Statutes § 46b-38c, at which the arrested person is entitled to be heard with respect to the issuance of a protective order.

An officer imposing nonfinancial conditions of release shall, on a form prescribed by the Office of the Chief Court Administrator, indicate such conditions and state and swear to:

(1) The efforts that were made to contact a bail commissioner;

(2) The specific factual basis relied upon by the officer to impose the nonfinancial conditions of release; and

(3) If the arrested person was non-English speaking, that the services of a translation service or interpreter were used.

A copy of this form shall be provided to the arrested person immediately, and a copy of this form shall also be provided to counsel for the arrested person at arraignment.

(c) No officer shall set the terms and conditions of an arrested person's release, set a bond for an arrested person, or release an arrested person from custody under this section unless the officer has first checked the National Crime Information Center (NCIC) computerized index of criminal justice information to determine if the arrested person is listed in the index.

(P.B. 1978-1997, Sec. 656.) (Amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 38-3. —Release by Bail Commissioner or Intake, Assessment and Referral Specialist

(Amended June 15, 2018, to take effect Jan. 1, 2019.)

(a) Upon notification by a law enforcement officer that an arrested person has not posted bail, a bail commissioner or an intake, assessment, and referral specialist shall promptly conduct an interview and investigation and, based upon release criteria established by the court support services division, shall, except as provided in subsection (c) of this section, promptly order the release of the arrested person upon the first of the following conditions of release found sufficient to ensure his or her appearance in court:

(1) The arrested person's execution of a written promise to appear without special conditions;

(2) The arrested person's execution of a written promise to appear with any of the nonfinancial conditions specified in subsection (b) of this section;

(3) The arrested person's execution of a bond without surety in no greater amount than necessary;

(4) The arrested person's execution of a bond with surety in no greater amount than necessary.

If the arrested person is unable to meet the conditions of release ordered, the bail commissioner or intake, assessment, and referral special-ist shall inform the court in a report prepared pursuant to subsection (d) of this section.

(b) In addition to or in conjunction with any of the conditions enumerated in subsection (a) of this section, the bail commissioner or intake, assessment, and referral specialist may impose nonfinancial conditions of release, which may require that the arrested person do any of the following:

(1) Remain under the supervision of a designated person or organization;

(2) Comply with specified restrictions on his or her travel, association, or place of abode;

(3) Not engage in specified activities, including the use or possession of a dangerous weapon, or the unlawful use or possession of an intoxicant or a controlled substance;

(4) Not use classes of intoxicants or controlled substances, if the bail commissioner or intake, assessment and referral specialist makes a finding that use of such classes of intoxicants or controlled substances would pose a danger to the arrested person or to the public and includes individualized reasons supporting such finding, provided that such finding shall not consider any prior arrests or convictions for use or possession of cannabis;

(5) Avoid all contact with an alleged victim of the crime and with a potential witness who may testify concerning the offense; or

(6) Satisfy any other condition that is reasonably necessary to ensure his or her appearance in court.

Any of the conditions imposed under subsection (a) of this section and this subsection shall be effective until the appearance of such person in court.

(c) No person shall be released upon the execution of a written promise to appear or the posting of a bond without surety if the person is charged with a family violence crime and, in the commission of such crime, the person used or threatened the use of a firearm.

(d) The bail commissioner shall prepare for review by the judicial authority an interview record and a written report for each person interviewed. The written report shall contain the information obtained during the interview and verification process, the arrested person's prior criminal record, if possible, the determination or recommendation of the bail commissioner concerning terms and conditions of release, and, where applicable, a statement that the arrested person was unable to meet the conditions of release ordered by the bail commissioner or the intake, assessment, and referral specialist.

(P.B. 1978-1997, Sec. 657.) (Amended June 29, 1998, to take effect Jan. 1, 1999; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 15, 2018, to take effect Jan. 1, 2019; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 38-4. —Release by Judicial Authority

(a) Except as provided in subsection (c) of this section, when any defendant is presented before a judicial authority, such authority shall, in bailable offenses, promptly order the release of such defendant upon the first of the following conditions of release found sufficient to reasonably ensure the defendant's appearance in court:

(1) The defendant's execution of a written promise to appear without special conditions;

(2) The defendant's execution of a written promise to appear with nonfinancial conditions;

(3) The defendant's execution of a bond without surety in no greater amount than necessary;

(4) The defendant's deposit with the clerk of the court of an amount of cash equal to 7 percent of the amount of the surety bond set, pursuant to Section 38-8;

(5) The defendant's execution of a bond with surety in no greater amount than necessary.

In no event shall the judicial authority prohibit a bond from being posted by surety.

(b) The judicial authority may, in determining what conditions of release will reasonably ensure the appearance of the defendant in court pursuant to subsection (a) of this section, consider the following factors:

(1) The nature and circumstances of the offense;

(2) The defendant's record of previous convictions;

(3) The defendant's past record of appearance in court;

(4) The defendant's family ties;

(5) The defendant's employment record;

(6) The defendant's financial resources, character, and mental condition;

(7) The defendant's community ties; and

(8) In the case of a violation of General Statutes § 53a-222a when the condition of release was issued for a family violence crime, as defined in General Statutes § 46b-38a, the heightened risk

posed to victims of family violence by violations of conditions of release.

(c) When any defendant charged with a serious felony enumerated in General Statutes § 54-64a (b) (1) or a family violence crime, as defined in General Statutes § 46b-38a, is presented before a judicial authority, such authority shall, in bailable offenses, promptly order the release of such defendant upon the first of the following conditions of release found sufficient to reasonably ensure the defendant's appearance in court and that the safety of any other person will not be endangered:

(1) The defendant's execution of a written promise to appear without special conditions;

(2) The defendant's execution of a written promise to appear with nonfinancial conditions;

(3) The defendant's execution of a bond without surety in no greater amount than necessary;

(4) The defendant's deposit with the clerk of the court of an amount of cash equal to 7 percent of the amount of the surety bond set, pursuant to Section 38-8;

(5) The defendant's execution of a bond with surety in no greater amount than necessary.

In no event shall the judicial authority prohibit a bond from being posted by surety.

(d) The judicial authority may, in determining what conditions of release will reasonably ensure the appearance of the defendant in court and that the safety of any other person will not be endangered pursuant to subsection (c) of this section, consider the following factors:

(1) The nature and circumstances of the offense;

(2) The defendant's record of previous convictions;

(3) The defendant's past record of appearance in court after being admitted to bail;

(4) The defendant's family ties;

(5) The defendant's employment record;

(6) The defendant's financial resources, character, and mental condition;

(7) The defendant's community ties;

(8) The number and seriousness of the charges pending against the defendant;

(9) The weight of evidence against the defendant;

(10) The defendant's history of violence;

(11) Whether the defendant has previously been convicted of similar offenses while released on bond;

(12) The likelihood based upon the expressed intention of the defendant that he or she will commit another crime while released; and

(13) the heightened risk posed to victims of family violence by violations of conditions of release and court orders of protection.

When imposing conditions of release under subsection (c) of this section, the court shall state for the record any factors under subsection (d) of this section that it considered and the findings that it made as to the danger, if any, that the defendant might pose to the safety of any other person upon the defendant's release that caused the court to impose the specific conditions of release that it imposed.

(e) If the defendant is charged with no offense other than a misdemeanor, the court shall not impose financial conditions of release on such person unless:

(1) The defendant is charged with a family violence crime;

(2) The defendant requests such financial conditions; or

(3) The judicial authority makes a finding on the record that there is a likely risk that:

(A) The defendant will fail to appear in court, as required;

(B) The defendant will obstruct or attempt to obstruct justice, or threaten, injure, or intimidate, or attempt to threaten, injure, or intimidate a prospective witness or juror; or

(C) The defendant will engage in conduct that threatens the safety of himself or herself or another person.

In making such finding, the judicial authority may consider past criminal history, including any prior record of failing to appear as required in court that resulted in any conviction for failure to appear in the first degree, in violation of General Statutes § 53a-172, or any conviction during the previous ten years for Failure to Appear in the Second Degree, in violation of General Statutes § 53a-173, and any other pending criminal cases.

(f) In addition to or in conjunction with any of the conditions enumerated in subsection (a) or (c) of this section, the judicial authority may, when it has reason to believe that the defendant is drug-dependent and where necessary, reasonable, and appropriate, order the person to submit to a urinalysis drug test and to participate in a program of periodic drug testing and treatment. The results of any such drug test shall not be admissible in any criminal proceeding concerning such defendant.

(g) If the judicial authority determines that a nonfinancial condition of release should be imposed in addition to or in conjunction with any of the conditions enumerated in subsection (a) or (c) of this section, the judicial authority shall order the pretrial release of the defendant subject to the least restrictive condition or combination of conditions that the judicial authority determines will reasonably ensure the appearance of the defendant in court and, when the defendant is charged with a felony enumerated in General Statutes § 54-64a (b) (1) or a family violence crime, that the

safety of any person will not be endangered, which conditions may include an order that he or she do one or more of the following:

(1) Remain under the supervision of a designated person or organization;

(2) Comply with specified restrictions on his or her travel, association, or place of abode;

(3) Not engage in specified activities, including the use or possession of a dangerous weapon, an intoxicant, or a controlled substance;

(4) Provide sureties of the peace pursuant to General Statutes § 54-56f under supervision of a designated bail commissioner or intake, assessment and referral specialist;

(5) Avoid all contact with an alleged victim of the crime and with a potential witness who may testify concerning the offense;

(6) Maintain employment or, if unemployed, actively seek employment;

(7) Maintain or commence an educational program;

(8) Be subject to electronic monitoring; or

(9) Satisfy any other condition that is reasonably necessary to ensure the appearance of the defendant in court and that the safety of any other person will not be endangered.

The judicial authority shall state on the record its reasons for imposing any such nonfinancial condition.

(h) The judicial authority may require that the defendant subject to electronic monitoring pursuant to subsection (g) of this section pay directly to the electronic monitoring service provider a fee for the cost of such electronic monitoring services. If the judicial authority finds that the defendant subject to electronic monitoring is indigent and unable to pay the costs of electronic monitoring services, it shall waive such costs.

(i) If any defendant is not released, the judicial authority shall order the defendant committed to the custody of the Commissioner of Correction until he or she is released or discharged in due course of law.

(P.B. 1978-1997, Sec. 658.) (Amended June 20, 2005, to take effect Jan. 1, 2006; amended June 26, 2006, to take effect Jan. 1, 2007; amended June 15, 2012, to take effect Jan. 1, 2013; amended June 15, 2018, to take effect Jan. 1, 2019; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 38-5. —Release by Correctional Officials

Any person who has not made bail shall be detained in a correctional facility and shall be released from such institution upon entering into a recognizance, with sufficient surety, or upon posting cash bail as provided in Sections 38-7 and 38-9 for his or her appearance before the court having cognizance of the offense, which are to be taken by any person designated by the Commissioner of Correction at such institution where such person is detained. The person so designated shall deliver the recognizance or cash bail to the clerk of the appropriate court before the opening of such court on the first court day thereafter.

(P.B. 1978-1997, Sec. 659.) (Amended June 15, 2018, to take effect Jan. 1, 2019.)

Sec. 38-6. Appearance after Release

The person taking any promise or bond shall give the defendant released thereunder a copy of such promise or bond, which shall notify the defendant of the time when and the place where he or she is next to appear and of the penalty for failure to appear. The initial appearance date shall not be more than fourteen days after the date of arrest, unless the defendant has been arrested for a crime of family violence, in which case the defendant shall be promptly presented before the Superior Court sitting next regularly for the geographical area where the offense is alleged to have been committed.

(P.B. 1978-1997, Sec. 661.)

Sec. 38-7. Cash Bail

In any criminal case in which a bond is allowed or required and the amount thereof has been determined, the defendant, or any person in his or her behalf, may deposit with the clerk of the court having jurisdiction of the offense with which the defendant stands charged, or any assistant clerk of such court who is bonded in the same manner as the clerk, or any person or officer authorized to accept bail, a sum of money equal to the amount called for by such bond, and such defendant shall thereupon be admitted to bail. When cash bail is offered, such bond shall be executed and the money shall be received in lieu of a surety or sureties upon such bond. Such cash bail shall be retained by the clerk of such court until a final order of the judicial authority disposing of the case is entered, provided that if such bond is forfeited, the clerk of such court shall pay the money to the obligee named therein, according to the terms and conditions of the bond. Upon discharge of the bond the cash deposit made with the clerk shall be returned to the person depositing the same.

(P.B. 1978-1997, Sec. 663.)

Sec. 38-8. Seven Percent Cash Bail

(Amended June 9, 2023, to take effect Jan. 1, 2024.)

Unless otherwise ordered by the judicial authority, 7 percent cash bail shall be automatically available for surety bonds not exceeding $50,000. For

surety bond amounts exceeding $50,000, 7 percent cash bail may be granted pursuant to an order of the judicial authority. This 7 percent cash bail option applies to bonds set by the court as well as bonds set at the police department.

When 7 percent cash bail is authorized either automatically or pursuant to court order, upon the depositing in cash, by the defendant or any other person in his or her behalf other than a paid surety, of 7 percent of the surety bond set, the defendant shall thereupon be admitted to bail in the same manner as a defendant who has executed a bond for the full amount. If such bond is forfeited, the defendant shall be liable for the full amount of the bond. Upon discharge of the bond, the 7 percent cash deposit made with the clerk shall be returned to the person depositing the same, less any fee that may be required by statute.

(P.B. 1978-1997, Sec. 664.) (Amended June 13, 2019, to take effect Jan. 1, 2020; amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 38-9. Real Estate Bond

(a) In lieu of a cash bond, the defendant, or any person in the defendant's behalf, may pledge equity in real property located within the state of Connecticut as bond.

(b) Unless otherwise ordered by the judicial authority, the pledge shall be accepted and the defendant shall be admitted to bail upon receipt of the following: (1) proof that a notice of lien containing the terms of the bond has been properly filed, pursuant to the provisions of General Statutes § 54-66, on a form prescribed by the Office of the Chief Court Administrator in the office of the town clerk of the town in which the property is located; (2) a current certificate of title from an attorney containing a listing of all encumbrances of record including the notice of lien; (3) one independent appraisal by a licensed real estate appraiser prepared within ninety days of application as to present fair market value; and (4) an affidavit by each owner of the property setting forth (A) the location of the property, (B) the affiant's ownership interest therein, (C) the amount of the affiant's equity in the property, (D) the present fair market value as shown on the appraisal, (E) the present amount of each encumbrance of record filed prior to the notice of lien required by this subsection, and the present amount of any tax liabilities, and (F) whether the same property is pledged as security for any other bonds under this section or for any other purpose.

(c) All record owners of the property as well as the accused shall enter into a bond for the appearance of the accused.

(d) The value of the owner's equity as calculated and verified pursuant to this section shall be not less than the amount of bail set by the judicial authority, but shall not be required to be in any greater amount unless the equity is pledged as security for other bonds under this section, in which case the value of the equity shall be not less than the total amount of all bonds for which it is pledged.

(e) Upon order of forfeiture of the bond, the procedures set forth in General Statutes § 54-66 shall be followed.

(P.B. 1978-1997, Sec. 665.) (Amended June 30, 2003, to take effect Jan. 1, 2004.)

Sec. 38-10. Factors To Be Considered by the Judicial Authority in Release Decision

[Repealed as of Jan. 1, 2006.]

Sec. 38-11. Request for Judicial Determination of Release

Upon written motion of the defendant or the prosecuting authority, the judicial authority shall state on the record its reasons for imposing the particular conditions of release which were established.

(P.B. 1978-1997, Sec. 668.)

Sec. 38-12. Attorneys Not Allowed To Give Bonds

No attorney shall give any bond or recognizance in any criminal action or proceeding in which he or she is interested as an attorney.

(P.B. 1978-1997, Sec. 669.)

Sec. 38-13. Bail Modification; In General

The judicial authority shall have the power to modify or revoke at any time the terms and conditions of release as provided for in these rules.

(P.B. 1978-1997, Sec. 673.)

Sec. 38-14. —Motion of Parties for Bail Modification

Whenever the prosecuting authority or the defendant alleges that any bond with or without surety is excessive or insufficient in amount or security or that the written promise of the defendant to appear is inadequate, that person may make a motion to a judicial authority to modify or set terms and conditions of release. Such motion shall be served prior to the hearing date upon the opposing party, the sureties upon any bond and the appropriate bail commissioner, unless otherwise ordered by the judicial authority.

(P.B. 1978-1997, Sec. 674.)

Sec. 38-15. —Application of Bail Commissioner

A bail commissioner who has reason to believe that a person released under any of the provisions of these rules or of the General Statutes intends

not to appear in court as required by the conditions of release may apply to a judicial authority for the court before whom such person is required to appear, and verify by oath the reason for this belief, and request that such person be brought before the judicial authority in order that the conditions of release be reviewed. Upon finding reasonable grounds to believe that the released person intends not to appear, such judicial authority shall forthwith issue a capias directed to a proper officer or indifferent person, commanding him or her forthwith to arrest and bring such person to the court for a hearing to review the conditions of his or her release. Copies of the bail commissioner's application shall be served upon the defendant, the prosecuting authority and any sureties upon any bond.

(P.B. 1978-1997, Sec. 675.)

Sec. 38-16. —Application of Surety

(a) A surety upon a bail bond who believes that his or her principal intends not to appear in court as required by the conditions of release shall file with a judicial authority an application, with a summons and citation, setting forth the reasons for his or her belief, verified by oath and requesting that the judicial authority issue either a summons and citation or a capias to compel the appearance of the released person before the judicial authority for a hearing to review the conditions of such person's release.

(b) Except as provided below, in lieu of issuing a capias the judicial authority may order a copy of the surety's application and a summons and citation, signed by the judicial authority or the clerk or assistant clerk of the court, to be served on the principal by a proper officer or indifferent person summoning him or her to appear in court at a time and place named for a hearing upon such application.

(c) If the judicial authority determines that it is necessary to take the accused into custody because there are facts indicating a substantial likelihood that such person will not appear in court as required by the conditions of his or her release unless he or she is taken into custody, it shall issue a capias directed to a proper officer or indifferent person commanding that person forthwith to arrest and bring the released person to the court for a hearing to review the conditions of his or her release. However, a capias shall not issue unless the application sets forth the particular facts in narrative form which lead the surety to believe there is a substantial likelihood that such person will not appear in court.

(d) All expenses incurred pursuant to the issuance and service of the capias or summons shall be paid by the surety.

(P.B. 1978-1997, Sec. 675A.)

Sec. 38-17. —Hearing on Motion or Application for Modification of Bail

(a) Upon the filing and service of such motion or application, the judicial authority shall, with reasonable promptness, conduct a hearing to determine whether the terms and conditions of release should be continued, modified or set. The judicial authority shall release the defendant subject to and in accordance with the provisions of Section 38-4 upon the first of the following conditions of release found sufficient to provide reasonable assurance of the appearance of the defendant in court:

(1) The defendant's execution of a written promise to appear;

(2) The defendant's execution of a bond without surety in no greater amount than necessary;

(3) The defendant's deposit with the clerk of the court of an amount equal to 7 percent of the surety bond set, pursuant to Section 38-8;

(4) The defendant's execution of a bond with surety in no greater amount than necessary.

(b) If, after such hearing, the judicial authority relieves a surety of his or her undertaking on a bond, it may enter such order contingent upon the return of such portion of the bond fee as it deems equitable.

(P.B. 1978-1997, Sec. 676.)

Sec. 38-18. —Review of Detention Prior to Arraignment, Trial or Sentencing

(a) No person shall be detained in a correctional facility for arraignment, sentencing or trial for an offense not punishable by death for longer than forty-five days, unless at the expiration of such forty-five days such person is presented to the judicial authority having cognizance of the offense. On each such presentment, the judicial authority may reduce, modify or discharge such bail. On the expiration of each successive forty-five day period, such person may again by motion be presented to the judicial authority for such purpose.

(b) If the offense is classified as a class D felony or as a misdemeanor, the time period under this section shall be thirty days, except with regard to a person charged with a crime in another state and detained pursuant to chapter 964 of the General Statutes or a person detained for violation of his parole pending a parole revocation hearing.

(P.B. 1978-1997, Sec. 677.)

Sec. 38-19. Violation of Conditions of Bail; Order To Appear

Upon application by the prosecuting authority alleging that a defendant has violated the conditions of release, a judicial authority may, if probable cause is found, order that the defendant appear in court for a hearing upon such allegations. Said order shall be served upon the defendant (1) by delivering a copy to the defendant personally, (2) by leaving it at his or her usual place of abode with a person of suitable age and discretion then residing therein, (3) by mailing it by registered or certified mail to the defendant's last known address, or (4) by serving the order upon the defendant's counsel who shall notify the defendant of the order and the hearing date. If service is made pursuant to (4) above and such service proves insufficient to give the defendant notice, then service shall be made as otherwise provided in this section.

(P.B. 1978-1997, Sec. 682.)

Sec. 38-20. —Sanctions for Violation of Conditions of Release

After a hearing and upon a finding that the defendant has violated reasonable conditions imposed on release, the judicial authority may impose different or additional conditions upon the defendant's release or revoke the release.

(P.B. 1978-1997, Sec. 683.)

Sec. 38-21. —Forfeiture of Bail and Rearrest Warrant

(a) If the defendant fails to appear at the time and place promised in any bond or written promise to appear, or in response to an order issued pursuant to Sections 38-19 and 38-20 unless otherwise ordered by the judicial authority, the bond may be forfeited in accordance with its terms and the judicial authority may issue a warrant to cause the arrest of the defendant and his or her appearance in court or may issue a capias.

(b) If the bond which has been forfeited was in an amount of $500 or more, the court shall order a stay of execution upon the forfeiture for six months. When the arrested person whose bond has been forfeited is returned to custody within six months of the date such bond was ordered forfeited, the bond shall be reinstated and the surety released. Such stay of execution shall not prevent the issuance of a rearrest warrant or a capias.

(c) Upon issuance of a rearrest warrant or a capias the judicial authority shall, pursuant to Section 38-4, set a condition of release sufficient to ensure the defendant's appearance in court.

(P.B. 1978-1997, Sec. 684.)

Sec. 38-22. Rebate of Forfeited Bonds

Whenever an arrested person, whose bond has been forfeited, is returned to the jurisdiction of the court within one year of the date such bond was ordered forfeited, the surety on such bond shall be entitled to a rebate in the following amount:

(1) 46 percent of the amount of the bond ordered forfeited if the arrested person is returned to the jurisdiction of the court within 210 days of the date such bond was ordered forfeited;

(2) 38 percent of the amount of the bond ordered forfeited if the arrested person is returned to the jurisdiction of the court within 240 days of the date such bond was ordered forfeited;

(3) 30 percent of the amount of the bond ordered forfeited if the arrested person is returned to the jurisdiction of the court within 270 days of the date such bond was ordered forfeited;

(4) 23 percent of the amount of the bond ordered forfeited if the arrested person is returned to the jurisdiction of the court within 300 days of the date such bond was ordered forfeited;

(5) 15 percent of the amount of the bond ordered forfeited if the arrested person is returned to the jurisdiction of the court within 330 days of the date such bond was ordered forfeited;

(6) 7 percent of the amount of the bond ordered forfeited if the arrested person is returned to the jurisdiction of the court within one year of the date such bond was ordered forfeited.

(P.B. 1998.)

Sec. 38-23. Discharge of Surety's Obligation

Where bail has been posted by a bondsman or other surety, such bondsman or surety shall not be relieved of any obligation upon the bond except with the permission of the judicial authority and for good cause shown.

(P.B. 1978-1997, Sec. 685.)

CHAPTER 39

DISPOSITION WITHOUT TRIAL

Sec.
39-1. Procedure for Plea Discussions; In General
39-2. —Discussions with Defendant
39-3. —Role of Defense Counsel
39-4. —Subject Matter of Discussion
39-5. Plea Agreements; Upon Plea of Guilty or Nolo Contendere
39-6. —Alternate Agreements
39-7. —Notice of Plea Agreement
39-8. —Sentencing after Acceptance of Plea Agreement
39-9. —Continuance for Sentencing
39-10. —Rejection of Plea Agreement
39-11. Disposition Conference; Assignment of Jury Cases
39-12. —Effect of Previous Plea Discussions on Disposition Conference
39-13. —Attendance at Disposition Conference
39-14. —Nature of Disposition Conference; In General
39-15. —Inability To Reach Agreement
39-16. —Notice of Agreement to Judicial Authority
39-17. —Effect of Disposition Conference
39-18. Plea of Guilty or Nolo Contendere; Entering
39-19. —Acceptance of Plea; Advice to Defendant
39-20. —Ensuring That the Plea Is Voluntary
39-21. —Factual Basis for Plea
39-22. Pleading to Other Offenses after Guilty Finding
39-23. Previous Offender; Plea to Second Part
39-24. Record of Proceedings regarding Guilty Pleas
39-25. Inadmissibility of Rejected Guilty Pleas
39-26. Withdrawal of Plea; When Allowed
39-27. —Grounds for Allowing Plea Withdrawal
39-28. —Effect of Plea Withdrawal
39-29. Nolle Prosequi
39-30. —Objection by Defendant to Nolle Prosequi
39-31. —Effect of Nolle Prosequi
39-32. —Dismissal
39-33. Miscellaneous Dispositions

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 39-1. Procedure for Plea Discussions; In General

The prosecuting authority and counsel for the defendant, or the defendant when not represented by counsel, may engage in discussions at any time with a view toward disposition. Negotiations may occur either prior to or after the arraignment. The prosecuting authority shall be in his or her office at reasonable times for the purpose of giving to counsel for the defendant, and to all others in interest, a reasonable opportunity for consultation.

(P.B. 1978-1997, Sec. 687.)

Sec. 39-2. —Discussions with Defendant

The prosecuting authority shall not engage in plea discussions at the disposition conference, or at other times, directly with a defendant who is represented by counsel, except with such counsel's approval. If the defendant refuses to be represented by counsel or waives this right under Section 44-3, the prosecuting authority may properly discuss disposition of the charges directly with the defendant.

(P.B. 1978-1997, Sec. 688.)

Sec. 39-3. —Role of Defense Counsel

Defense counsel shall conclude plea agreements only with the consent of the defendant and shall insure that the decision to dispose of the case or to proceed to trial is ultimately made by the defendant.

(P.B. 1978-1997, Sec. 689.)

Sec. 39-4. —Subject Matter of Discussion

Discussion need not be limited to the entry of a plea of guilty or nolo contendere, and may include any disposition without trial permitted under these rules or the General Statutes. The parties may also discuss pretrial motions filed or yet to be filed which would lead to a disposition of the case without trial.

(P.B. 1978-1997, Sec. 690.)

Sec. 39-5. Plea Agreements; Upon Plea of Guilty or Nolo Contendere

The parties may agree that the defendant will plead guilty or nolo contendere on one or more of the following conditions:

(1) That the prosecuting authority will amend the information to charge a particular offense;

(2) That the prosecuting authority will nolle, recommend dismissal of, or not bring certain other charges against the defendant; or

(3) That the sentence or other disposition will not exceed specified terms or that the prosecuting authority will recommend a specific sentence, not oppose a particular sentence, or make no specific recommendation.

(P.B. 1978-1997, Sec. 692.)

Sec. 39-6. —Alternate Agreements

The prosecuting authority may also recommend an alternative disposition under Section 39-33.

(P.B. 1978-1997, Sec. 693.)

Sec. 39-7. —Notice of Plea Agreement

If a plea agreement has been reached by the parties, which contemplates the entry of a plea of guilty or nolo contendere, the judicial authority shall require the disclosure of the agreement in open court or, on a showing of good cause, in camera at the time the plea is offered. Thereupon, the judicial authority may accept the plea agreement in accordance with Section 39-18, or reject the plea agreement, or may defer his or her decision on acceptance or rejection until there has been an opportunity to consider the presentence report, or may defer it for other reasons.

(P.B. 1978-1997, Sec. 694.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 39-8. —Sentencing after Acceptance of Plea Agreement

If the judicial authority accepts the plea agreement, it shall embody in the judgment and the sentence the disposition provided for in the plea agreement or another disposition more favorable to the defendant than that provided for in the plea agreement.

(P.B. 1978-1997, Sec. 696.)

Sec. 39-9. —Continuance for Sentencing

If the case is continued for sentencing, the judicial authority shall inform the defendant that a different sentence from that embodied in the plea agreement may be imposed on the receipt of new information or on sentencing by another judicial authority, but that if such a sentence is imposed, the defendant will be allowed to withdraw his or her plea in accordance with Sections 39-26 through 39-28.

(P.B. 1978-1997, Sec. 697.)

Sec. 39-10. —Rejection of Plea Agreement

If the judicial authority rejects the plea agreement, it shall inform the parties of this fact; advise the defendant personally in open court or, on a showing of good cause, in camera that the judicial authority is not bound by the plea agreement; afford the defendant the opportunity then to withdraw the plea, if given; and advise the defendant that if he or she persists in a guilty plea or plea of nolo contendere, the disposition of the case may be less favorable to the defendant than that contemplated by the plea agreement.

(P.B. 1978-1997, Sec. 698.)

Sec. 39-11. Disposition Conference; Assignment of Jury Cases

After conferring with the clerk, the presiding judge shall assign for disposition conferences so much of the jury trial list as he or she shall deem necessary for the proper conduct of the court and he or she shall direct the clerk to print and distribute a list of the cases so assigned to the appearing parties. The clerk shall schedule the conferences at times which will not interfere with the orderly calling of the court docket. Cases may also be assigned for a disposition conference at the time of the entry of a plea pursuant to Section 44-15.

(P.B. 1978-1997, Sec. 700.)

Sec. 39-12. —Effect of Previous Plea Discussions on Disposition Conference

Unless an agreement has been reached in a previous plea discussion, a case will be assigned for a disposition conference. It shall be the duty of the prosecuting authority to notify the clerk if an agreement has been reached or if the case has been disposed of.

(P.B. 1978-1997, Sec. 701.)

Sec. 39-13. —Attendance at Disposition Conference

The prosecuting authority, the defense counsel, and, in cases claimed for jury trial, the defendant shall appear at the time set for the disposition conference unless excused by the judicial authority. Requests for postponements shall be made only to the presiding judge and shall be granted upon good cause shown.

(P.B. 1978-1997, Sec. 702.)

Sec. 39-14. —Nature of Disposition Conference; In General

The prosecuting authority and counsel for the defendant should attempt to reach a plea agreement pursuant to the procedures of Sections 39-1 through 39-10.

(P.B. 1978-1997, Sec. 704.)

Sec. 39-15. —Inability To Reach Agreement

Should the parties be unable to reach an agreement as to disposition, they shall report to the presiding judge or to another judge assigned by him or her.

(P.B. 1978-1997, Sec. 705.)

Sec. 39-16. —Notice of Agreement to Judicial Authority

If the parties reach an agreement which contemplates the entry of a plea of guilty or nolo contendere, they may advise the judicial authority in advance of the plea. The judicial authority may indicate whether it will concur in or reject the proposed disposition.

(P.B. 1978-1997, Sec. 706.)

Sec. 39-17. —Effect of Disposition Conference

If a case is not resolved at the disposition conference or if the judicial authority rejects the plea agreement, the case shall be assigned to a trial list in accordance with Section 44-15. If an agreement

is reached, a judicial authority shall be available to accept guilty pleas and other dispositions.

(P.B. 1978-1997, Sec. 707.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 39-18. Plea of Guilty or Nolo Contendere; Entering

(a) In the discretion of the judicial authority, the defendant may enter a plea of guilty or nolo contendere to the information or complaint at arraignment or any later time, provided that the judicial authority confirms in open court that the defendant has received all discovery materials that he or she requested in writing pursuant to Chapter 40 that are within the possession of the prosecuting authority. If the defendant has not received all requested discovery, the judicial authority shall confirm that the defendant and his or her counsel agree to waive any right to receive further disclosure, before allowing the defendant to enter the plea. Any such waiver shall not apply to the prosecuting authority's continuing obligation to disclose exculpatory information or materials pursuant to Sections 40-3 and 40-11.

(b) A plea of nolo contendere shall be in writing, shall be signed by the defendant, and, when accepted by the judicial authority, shall be followed by a finding of guilty.

(P.B. 1978-1997, Sec. 709.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 39-19. —Acceptance of Plea; Advice to Defendant

The judicial authority shall not accept the plea without first addressing the defendant personally and determining that he or she fully understands:

(1) The nature of the charge to which the plea is offered;

(2) The mandatory minimum sentence, if any;

(3) The fact that the statute for the particular offense does not permit the sentence to be suspended;

(4) The maximum possible sentence on the charge, including, if there are several charges, the maximum sentence possible from consecutive sentences and including, when applicable, the fact that a different or additional punishment may be authorized by reason of a previous conviction; and

(5) The fact that he or she has the right to plead not guilty or to persist in that plea if it has already been made, and the fact that he or she has the right to be tried by a jury or a judge and that at that trial the defendant has the right to the assistance of counsel, the right to confront and cross-examine witnesses against him or her, and the right not to be compelled to incriminate himself or herself.

(P.B. 1978-1997, Sec. 711.)

Sec. 39-20. —Ensuring That the Plea Is Voluntary

The judicial authority shall not accept a plea of guilty or nolo contendere without first determining, by addressing the defendant personally in open court, that the plea is voluntary and is not the result of force or threats or of promises apart from a plea agreement. The judicial authority shall also inquire as to whether the defendant's willingness to plead guilty or nolo contendere results from prior discussions between the prosecuting authority and the defendant or his or her counsel.

(P.B. 1978-1997, Sec. 712.)

Sec. 39-21. —Factual Basis for Plea

The judicial authority shall not accept a plea of guilty unless it is satisfied that there is a factual basis for the plea.

(P.B. 1978-1997, Sec. 713.)

Sec. 39-22. Pleading to Other Offenses after Guilty Finding

Upon entry of a finding of guilty after acceptance of a plea of guilty or nolo contendere or after a trial, a defendant may request permission to plead guilty or nolo contendere to any other offense for which the court wherein the finding of guilty was entered has jurisdiction to impose the maximum authorized penalty. Upon the written approval of the prosecuting authority who is authorized to request imposition of the maximum authorized penalty in the judicial district or geographical area wherein the offense has been or could be charged, and upon the written approval of the prosecuting authority who is authorized to request imposition of the maximum authorized penalty in the judicial district or geographical area wherein the court, in which the finding of guilty was entered, is located, a defendant may enter a plea of guilty or nolo contendere in conformity with Section 39-18. Such a plea shall operate as a waiver of venue and as a consent to the filing of an appropriate information.

(P.B. 1978-1997, Sec. 715.)

Sec. 39-23. Previous Offender; Plea to Second Part

Where the defendant has been charged in the second part of an information with a former conviction or convictions, he or she may enter a plea of guilty to the second part upon a finding of guilty of the particular offense he or she was charged with in the first part.

(P.B. 1978-1997, Sec. 716.)

Sec. 39-24. Record of Proceedings regarding Guilty Pleas

A verbatim record shall be made of the proceedings at which the defendant enters a plea of guilty or nolo contendere. This record shall include the judicial authority's advice to the defendant, the inquiry into the voluntariness of the plea, including any plea agreement, and the inquiry into the factual basis for the plea.

(P.B. 1978-1997, Sec. 717.)

Sec. 39-25. Inadmissibility of Rejected Guilty Pleas

No evidence of the court proceedings at which a plea of guilty or nolo contendere was entered, where such plea is not accepted by the judicial authority or is later withdrawn pursuant to Sections 39-26 through 39-28, shall be received at the trial of the case.

(P.B. 1978-1997, Sec. 718.)

Sec. 39-26. Withdrawal of Plea; When Allowed

A defendant may withdraw his or her plea of guilty or nolo contendere as a matter of right until the plea has been accepted. After acceptance, the judicial authority shall allow the defendant to withdraw his or her plea upon proof of one of the grounds in Section 39-27. A defendant may not withdraw his or her plea after the conclusion of the proceeding at which the sentence was imposed.

(P.B. 1978-1997, Sec. 720.)

Sec. 39-27. —Grounds for Allowing Plea Withdrawal

The grounds for allowing the defendant to withdraw his or her plea of guilty after acceptance are as follows:

(1) The plea was accepted without substantial compliance with Section 39-19;

(2) The plea was involuntary, or it was entered without knowledge of the nature of the charge or without knowledge that the sentence actually imposed could be imposed;

(3) The sentence exceeds that specified in a plea agreement which had been previously accepted, or in a plea agreement on which the judicial authority had deferred its decision to accept or reject the agreement at the time the plea of guilty was entered;

(4) The plea resulted from the denial of effective assistance of counsel;

(5) There was no factual basis for the plea; or

(6) The plea either was not entered by a person authorized to act for a corporate defendant or was not subsequently ratified by a corporate defendant.

(P.B. 1978-1997, Sec. 721.)

Sec. 39-28. —Effect of Plea Withdrawal

If the defendant is permitted to withdraw his or her plea, the original finding of guilty shall be set aside, a plea of not guilty shall be entered, and further proceedings shall be scheduled in accordance with these rules. The judicial authority permitting the vacating of the guilty plea shall not sit on the trial of the matter, unless this is waived by the defendant in writing.

(P.B. 1978-1997, Sec. 722.)

Sec. 39-29. Nolle Prosequi

A prosecuting authority shall have the power to enter a nolle prosequi in a case. It shall be entered upon the record after a brief statement by the prosecuting authority in open court of the reasons therefor.

(P.B. 1978-1997, Sec. 725.)

Sec. 39-30. —Objection by Defendant to Nolle Prosequi

Where a prosecution is initiated by complaint or information, the defendant may object to the entering of a nolle prosequi at the time it is offered by the prosecuting authority and may demand either a trial or a dismissal, except when a nolle prosequi is entered upon a representation to the judicial authority by the prosecuting authority that a material witness has died, disappeared or become disabled or that material evidence has disappeared or has been destroyed and that a further investigation is therefore necessary.

(P.B. 1978-1997, Sec. 726.)

Sec. 39-31. —Effect of Nolle Prosequi

The entry of a nolle prosequi terminates the prosecution and the defendant shall be released from custody. If subsequently the prosecuting authority decides to proceed against the defendant, a new prosecution must be initiated.

(P.B. 1978-1997, Sec. 727.)

Sec. 39-32. —Dismissal

The judicial authority may dismiss the information or complaint and discharge the defendant, at any time, in accordance with Sections 41-8 through 41-11.

(P.B. 1978-1997, Sec. 728.)

Sec. 39-33. Miscellaneous Dispositions

Upon motion by the defendant, counsel for the defendant, or the prosecuting authority, the judicial authority may make any order permitted by statute or rule that may result in the disposition of the case without trial, including, but not limited to, the following:

(1) Adjudication and treatment as a youthful offender;

(2) Accelerated pretrial rehabilitation;

(3) Pretrial alcohol education and treatment;

(4) Reference to the family relations division and a hearing thereon;

(5) Commitment to the Commissioner of Mental Health and Addiction Services following examination and hearing;

(6) Suspension of prosecution for drug-dependent defendants after examination and release to the Commission on Adult Probation;

(7) Reference to a community service labor program; or

(8) Reference to an alternative incarceration program under the auspices of the Office of Adult Probation.

(P.B. 1978-1997, Sec. 730.)

CHAPTER 40

DISCOVERY AND DEPOSITIONS

Sec.
40-1. Discovery in General; Regulating Discovery
40-2. —Good Faith Efforts and Subpoenas
40-3. —Continuing Obligation To Disclose
40-4. —Limitations on Requests or Motions
40-5. —Failure To Comply with Disclosure
40-6. —Discovery Performance
40-7. —Procedures for Disclosure
40-8. —Objection to Disclosure
40-9. —Presence during Tests and Experiments
40-10. —Custody of Materials
40-11. Disclosure by the Prosecuting Authority
40-12. Discretionary Disclosure Directed to Prosecuting Authority
40-13. Names of Witnesses; Prior Record of Witnesses; Statements of Witnesses
40-13A. Law Enforcement Reports, Affidavits and Statements
40-13B. Notice by Prosecuting Authority of Intention To Use Prior Uncharged Sexual Misconduct Involving a Person Other Than the Victim in Sexual Assault Cases
40-14. Information Not Subject to Disclosure by Prosecuting Authority
40-15. Disclosure of Statements; Definition of Statement
40-16. Request for Recess by Defendant upon Receipt of Statement
40-17. Defense of Mental Disease or Defect or Extreme Emotional Disturbance; Notice by Defendant
40-18. —Notice by Defendant of Intention To Use Expert Testimony regarding Mental State; Filing Reports of Exam
40-19. —Prosecutorial Motion for Psychiatric Examination
40-20. —Failure of Expert To Submit Report
40-21. Defense of Alibi; Notice by Defendant
40-22. —Notice by Prosecuting Authority concerning Alibi Defense
40-23. —Continuing Duty of Parties To Disclose regarding Alibi Defense
40-24. —Exceptions
40-25. —Inadmissibility of Withdrawn Alibi
Sec.
40-26. Disclosure by the Defendant; Information and Materials Discoverable by the Prosecuting Authority as of Right
40-27. Discretionary Disclosure Directed to Defendant
40-28. Derivative Evidence
40-29. Protective Orders Requested by Defendant
40-30. Admissibility at Time of Trial
40-31. Information Not Subject to Disclosure by Defendant
40-32. Obtaining Nontestimonial Evidence from Defendant
40-33. —Emergency Procedure regarding Nontestimonial Evidence
40-34. —Scope of Order for Nontestimonial Evidence
40-35. —Contents of Order
40-36. —Service of Order
40-37. —Implementation of Order
40-38. —Obtaining Nontestimonial Evidence from Defendant upon Motion of Defendant
40-39. —Comparing Nontestimonial Evidence
40-40. Protective Orders; Relief
40-41. —Grounds for Protective Order
40-42. —In Camera Proceedings
40-43. —Excision as Protective Order
40-44. Depositions; Grounds
40-45. —Failure To Appear for Deposition
40-46. —Use of Deposition
40-47. —Notice and Person Taking Deposition
40-48. —Protective Order Prior to Deposition
40-49. —Manner of Taking Deposition
40-50. —Scope of Examination at Deposition
40-51. —Objections at Depositions
40-52. —Protective Order during Deposition
40-53. —Return of Deposition
40-54. —Right of Defendant To Be Present and Represented at Deposition
40-55. —Waiver of Presence and Failure To Appear at Deposition
40-56. —Definition of Unavailable
40-57. —Taking and Use in Court of Deposition by Agreement
40-58. —Expenses of Deposition and Copies

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 40-1. Discovery in General; Regulating Discovery

Except as otherwise provided in these rules, the judicial authority before whom the defendant appears shall fix the times for filing and for responding to discovery motions and requests and, when appropriate, shall fix the hour, place, manner, terms, and conditions of responses to the motions and requests.

(P.B. 1978-1997, Sec. 732.)

Sec.40-2. —Good Faith Efforts and Subpoenas

When documents or objects are the subject of discovery orders, good faith efforts shall be made by the party to whom any such order is directed to secure their possession. If the efforts of such party are unsuccessful the judicial authority may, upon written request or upon its own motion, issue a subpoena or order directing that such documents or objects be delivered to the clerk of the court within a specified time. The clerk shall give a receipt for them and be responsible for their safekeeping. Such documents and tangible objects shall be sealed and shall be open to inspection to the parties to the action and their attorneys only upon an order of the judicial authority.

(P.B. 1978-1997, Sec. 733.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 40-3. —Continuing Obligation To Disclose

If prior to or during trial a party discovers additional material previously ordered to be disclosed or which the party is otherwise obligated to disclose, such party shall promptly notify the other party and the judicial authority of its existence.

(P.B. 1978-1997, Sec. 734.)

Sec. 40-4. —Limitations on Requests or Motions

A party shall file all requests or motions under this chapter within the time specified and shall include in the initial request or motion all information or materials sought. The judicial authority may for good cause shown allow the filing of supplemental requests or motions.

(P.B. 1978-1997, Sec. 735.)

Sec. 40-5. —Failure To Comply with Disclosure

If a party fails to comply with disclosure as required under these rules, the opposing party may move the judicial authority for an appropriate order. The judicial authority hearing such a motion may enter such orders and time limitations as it deems appropriate, including, without limitation, one or more of the following:

(1) Requiring the noncomplying party to comply;

(2) Granting the moving party additional time or a continuance;

(3) Relieving the moving party from making a disclosure required by these rules;

(4) Prohibiting the noncomplying party from introducing specified evidence;

(5) Declaring a mistrial;

(6) Dismissing the charges;

(7) Imposing appropriate sanctions on the counsel or party, or both, responsible for the noncompliance; or

(8) Entering such other order as it deems proper.

(P.B. 1978-1997, Sec. 735A.)

Sec. 40-6. —Discovery Performance

(a) Unless otherwise specified by agreement of the parties or judicial order, the parties shall perform their obligations under Sections 40-1 through 40-10 by making available at reasonable times specified information or materials for inspecting, testing, copying and photographing.

(b) Unless otherwise specified by agreement of the parties or judicial order, the parties shall provide any information or materials ordered to be disclosed or that the parties are otherwise obligated to disclose pursuant to this chapter that are within the possession, custody, or control of such parties in an electronic format via electronic means to the other party. In the event that the file size of such electronic information or materials exceeds the file size limitations for emailing such information or materials, the party entitled to receive such information or materials shall provide the party obligated to disclose such information or materials an electronic storage medium or electronic storage media with sufficient storage capacity to accommodate the electronic transfer of such information or materials.

(P.B. 1978-1997, Sec. 737.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 40-7. —Procedures for Disclosure

(a) All requests for disclosure by any party shall be filed in accordance with Section 41-5 and shall be served in accordance with Sections 10-12 through 10-17 but need not be filed with the court, subject, however, to the provisions of Section 40-40 et seq. The party requesting disclosure or the party responding shall file with the court a notice of service certifying that a request or response was served and the date and manner of service. The party responsible for service of a document shall retain custody of the original.

(b) Except as otherwise provided in Section 40-13, any party may make disclosure by notifying the opposing party that all pertinent material and information may be inspected and, if practicable, copied at specific times and locations and the parties may schedule agreed dates and times to photograph and have reasonable tests made upon any disclosed material.

(P.B. 1978-1997, Sec. 737A.)

Sec. 40-8. —Objection to Disclosure

Notwithstanding the provisions of Sections 40-11 and 40-26, the prosecuting authority or the defendant may object to disclosure of any information or items which are directed to be provided by those sections but which the objecting party believes for good cause should not be disclosed or for which it is reasonably believed that a protective order provided by Section 40-40 et seq. would be warranted. Such objection shall be made in writing and shall set forth the grounds of such belief as fully as possible. The objection shall be served in accordance with Sections 10-12 through 10-17 and a copy shall be filed with the court within twenty days of the request unless the judicial authority, for good cause shown, allows a later filing. After hearing the judicial authority shall determine whether such information or items shall be disclosed.

(P.B. 1978-1997, Sec. 737B.)

Sec. 40-9. —Presence during Tests and Experiments

If a scientific test or experiment to be performed upon any object which has been the subject of a

disclosure order may preclude or impair any further tests or experiments, the opposing party and any other person known to have or believed to have an interest in the matter shall be given reasonable notice and opportunity to be present and to have an expert observe or participate in the test or experiment, unless the judicial authority for good cause shall order otherwise.

(P.B. 1978-1997, Sec. 738.)

Sec. 40-10. —Custody of Materials

(a) Any materials furnished to counsel pursuant to this chapter, including statements, reports and affidavits disclosed pursuant to Section 40-13A, shall be used only for the purposes of conducting such counsel's side of the case or for the performance of his or her official duties, and shall be subject to such other terms and conditions as the judicial authority may provide. Without the prior approval of the prosecuting authority or the court, defense counsel and his or her agents shall not provide copies of materials disclosed pursuant to Section 40-13A to any person except to persons employed by defense counsel in connection with the investigation or defense of the case.

(b) The prosecuting authority is not required to disclose to an unrepresented defendant the names and addresses required by Section 40-13 unless the court orders disclosure upon a finding of need which cannot reasonably be met by other means. Before other materials are disclosed or provided to an unrepresented defendant pursuant to this chapter, the prosecuting authority may request and the court may order that the materials remain in the defendant's exclusive custody to be used only for the purpose of conducting the case, subject to such terms, conditions and restrictions that the court, in its discretion, may impose. The court shall also inform the unrepresented defendant that violation of an order issued under this subsection is punishable as a contempt of court.

(P.B. 1978-1997, Sec. 739.) (Amended June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 40-11. Disclosure by the Prosecuting Authority

(Amended June 22, 2009, to take effect Jan. 1, 2010.)

(a) Upon written request by a defendant filed in accordance with Section 41-5 and without requiring any order of the judicial authority, the prosecuting authority, subject to Section 40-40 et seq., shall promptly, but no later than forty-five days from the filing of the request, unless such time is extended by the judicial authority for good cause shown, disclose in writing the existence of, provide photocopies of, and allow the defendant in accordance with Section 40-7, to inspect, copy, photograph and have reasonable tests made on any of the following items:

(1) Any books, tangible objects, papers, photographs, or documents within the possession, custody or control of any governmental agency, which the prosecuting authority intends to offer in evidence-in-chief at trial or which are material to the preparation of the defense or which were obtained from or purportedly belong to the defendant;

(2) Copies of the defendant's prior criminal record, if any, which are within the possession, custody, or control of the prosecuting authority, the existence of which is known, or by the exercise of due diligence may become known, to the prosecuting authority;

(3) Any reports or statements of experts made in connection with the offense charged including results of physical and mental examinations and of scientific tests, experiments or comparisons which are material to the preparation of the defense or are intended for use by the prosecuting authority as evidence-in-chief at the trial;

(4) Any warrant executed for the arrest of the defendant for the offense charged, and any search and seizure warrants issued in connection with the investigation of the offense charged;

(5) (A) Any written, recorded or oral statements made by the defendant or a codefendant, before or after arrest to any law enforcement officer or to a person acting under the direction of or in cooperation with a law enforcement officer concerning the offense charged; or

(B) Any relevant statements of coconspirators which the prosecuting authority intends to offer in evidence at any trial or hearing.

(b) In addition to the foregoing, the prosecuting authority shall disclose to the defendant, in accordance with any applicable constitutional and statutory provisions, any exculpatory information or materials that the prosecuting authority may have, whether or not a request has been made therefor.

(P.B. 1978-1997, Sec. 741.) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 40-12. Discretionary Disclosure Directed to Prosecuting Authority

Upon written request by a defendant filed in accordance with Section 40-7 the judicial authority may direct the prosecuting authority to disclose in writing to the defendant and make available for inspection, photographing, copying and reasonable testing any other relevant material and information not covered by Section 40-11 which the judicial authority determines on good cause shown should be made available.

(P.B. 1978-1997, Sec. 742.)

Sec. 40-13. Names of Witnesses; Prior Record of Witnesses; Statements of Witnesses

(Amended June 22, 2009, to take effect Jan. 1, 2010.)

(a) Upon written request by a defendant filed in accordance with Section 41-5 and without requiring any order of the judicial authority, the prosecuting authority, subject to Section 40-40 et seq., shall promptly, but no later than forty-five days from the filing of the request, unless such time is extended by the judicial authority for good cause shown, disclose to the defendant the names and, subject to the provisions of subsections (f) and (g) of this section, the addresses of all witnesses that the prosecuting authority intends to call in his or her case-in-chief. The prosecuting authority shall additionally make a reasonable affirmative effort to obtain a record of the witness' felony convictions and pending misdemeanor and felony charges and shall disclose any such convictions and pending charges to the defendant.

(b) Upon written request by the prosecuting authority, filed in accordance with Section 41-5 and without requiring any order of the judicial authority, the defendant, subject to Section 40-40 et seq., shall promptly, but no later than forty-five days from the filing of the request, unless such time is extended by the judicial authority for good cause shown, disclose to the prosecuting authority the names and, subject to the provisions of subsection (g) of this section, the addresses of all witnesses whom the defendant intends to call in the defendant's case-in-chief and shall additionally disclose to the prosecuting authority any statements of the witnesses other than the defendant in the possession of the defendant or his or her agents, which statements relate to the subject matter about which each witness will testify.

(c) No witness shall be precluded from testifying for any party because his or her name or statement or criminal history was not disclosed pursuant to this rule if the party calling such witness did not in good faith intend to call the witness at the time that he or she provided the material required by this rule. In the interests of justice the judicial authority may in its discretion permit any undisclosed individual to testify.

(d) The provisions of this section shall apply to any additional testimony presented by any party as rebuttal evidence pursuant to Section 42-35 (3) and the statements and criminal histories of such witnesses shall be provided to the opposing party before the commencement of any such rebuttal testimony.

(e) The fact that a witness' name or statement is provided under this section shall not be a ground for comment upon a failure to call a witness.

(f) Notwithstanding any provision of this section, the personal residence address of a police officer or correction officer shall not be required to be disclosed except pursuant to an order of the judicial authority after a hearing and a showing that good cause exists for the disclosure of the information.

(g) Upon written request of a party and for good cause shown, the judicial authority may order that the address of any witness whose name was disclosed pursuant to subsection (a) or (b) of this section not be disclosed to the opposing party.

(P.B. 1978-1997, Sec. 743.) (Amended June 22, 2009, to take effect Jan. 1, 2010; amended June 12, 2015, to take effect Jan. 1, 2016.)

Sec. 40-13A. Law Enforcement Reports, Affidavits and Statements

Upon written request by a defendant and without requiring any order of the judicial authority, the prosecuting authority shall, no later than forty-five days from receiving the request, provide photocopies of all statements, law enforcement reports and affidavits within the possession of the prosecuting authority and his or her agents, including state and local law enforcement officers, which statements, reports and affidavits were prepared concerning the offense charged, subject to the provisions of Sections 40-10 and 40-40 et seq.

(Adopted June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 40-13B. Notice by Prosecuting Authority of Intention To Use Prior Uncharged Sexual Misconduct Involving a Person Other Than the Victim in Sexual Assault Cases

If the prosecuting authority intends to introduce evidence of prior uncharged sexual misconduct pursuant to § 4-5 (b) of the Connecticut Code of Evidence involving a person other than the victim(s) in a sexual assault prosecution, the state shall provide notice to the defendant of its intent to use such evidence as soon as practicable, but in no event less than fifteen days before trial or at such later time as the judicial authority may direct for good cause. The state shall file a copy of such notice with the clerk.

Along with such notice, the prosecuting authority shall provide to the defendant a disclosure which identifies each proposed witness by name and date of birth and shall include all such witnesses' statements, if any, and a summary of their expected testimony. Any proposed witness whose identity is subject to the protections of the confidentiality provisions of General Statutes § 54-86e shall be identified in accordance with the statute.

The judicial authority may for good cause shown allow late filing of the notice or grant additional time to the parties to prepare for trial or make such other order as may be appropriate. When late notice is

provided upon a finding of good cause, the court should implement measures to ensure that the defendant is not prejudiced by the late disclosure.

At trial, the state shall make an offer of proof outside the presence of the jury of each such witness's proposed trial testimony. A variance between the offer of proof and the state's disclosure shall not serve as the basis for excluding such testimony if the court, in its discretion, determines that such variance is immaterial or has not unfairly surprised the defense.

(Adopted June 14, 2024, to take effect Jan. 1, 2025.)

Sec. 40-14. Information Not Subject to Disclosure by Prosecuting Authority

Subject to Sections 40-13 and 40-13A and except for the substance of any exculpatory material contained herein, Sections 40-11 through 40-14 do not authorize or require disclosure or inspection of:

(1) Reports, memoranda or other internal documents made by a prosecuting authority or by law enforcement officers in connection with the investigation or prosecution of the case;

(2) Legal research;

(3) Records, correspondence, reports or memoranda to the extent that they contain the opinions, theories or conclusions of a prosecuting authority.

(P.B. 1978-1997, Sec. 746.) (Amended June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 40-15. Disclosure of Statements; Definition of Statement

The term "statement" as used in Sections 40-11, 40-13 and 40-26 means:

(1) A written statement made by a person and signed or otherwise adopted or approved by such person; or

(2) A stenographic, mechanical, electrical, or other recording, or a transcription thereof, which is a substantially verbatim recital of an oral statement made by a person and recorded contemporaneously with the making of such oral statement.

(P.B. 1978-1997, Sec. 749.)

Sec. 40-16. Request for Recess by Defendant upon Receipt of Statement

Whenever any statement is delivered to a defendant pursuant to Section 40-13, the judicial authority in its discretion, upon application of the defendant, may recess the proceedings for such time as it may determine to be reasonably required for the examination of such statement by the defendant and his or her preparation for its use in the trial.

(P.B. 1978-1997, Sec. 754.)

Sec. 40-17. Defense of Mental Disease or Defect or Extreme Emotional Disturbance; Notice by Defendant

If a defendant intends to rely upon the affirmative defense of mental disease or defect or of extreme emotional disturbance at the time of the alleged crime, the defendant shall, not later than forty-five days after the first pretrial conference in the court where the case will be tried or at such later time as the judicial authority may direct, notify the prosecuting authority in writing of such intention and file a copy of such notice with the clerk. If there is a failure to comply with the requirements of this rule, such affirmative defenses may not be raised. The judicial authority may for cause shown allow late filing of the notice or grant additional time to the parties to prepare for trial or make such other order as may be appropriate.

(P.B. 1978-1997, Sec. 758.)

Sec. 40-18. —Notice by Defendant of Intention To Use Expert Testimony regarding Mental State; Filing Reports of Exam

If a defendant intends to introduce expert testimony relating to the affirmative defenses of mental disease or defect, or of extreme emotional disturbance or another condition bearing upon the issue of whether he or she had the mental state required for the offense charged, the defendant shall, not later than forty-five days after the first pretrial conference in the court where the case will be tried or at such later time as the judicial authority may direct, notify the prosecuting authority in writing of such intention and file a copy of such notice with the clerk. The defendant shall also furnish the prosecuting authority with copies of reports of physical or mental examinations of the defendant prepared by an expert whom the defendant intends to call as a witness in connection with the offense charged, within five days after receipt thereof. The judicial authority may for cause shown allow late filing of the notice or grant additional time to the parties to prepare for trial or make such other order as may be appropriate.

(P.B. 1978-1997, Sec. 759.)

Sec. 40-19. —Prosecutorial Motion for Psychiatric Examination

In an appropriate case the judicial authority may, upon motion of the prosecuting authority, order the defendant to submit to a psychiatric examination by a psychiatrist designated for this purpose by the prosecuting authority. No statement made by the defendant in the course of any examination provided for by Sections 40-17 through 40-19, whether the examination shall be with or without the consent of the defendant, shall be admitted in evidence against the defendant on the issue of guilt in any criminal proceeding. A copy of the report of the psychiatric examination shall be furnished to the defendant within five days after the receipt thereof by the prosecuting authority.

(P.B. 1978-1997, Sec. 760.)

Sec. 40-20. —Failure of Expert To Submit Report

If any expert fails to submit any written report of the result of any physical or mental examination conducted pursuant to Sections 40-17 through 40-19, the judicial authority, upon request of the party who engaged the expert, may issue an appropriate subpoena or order pursuant to Section 40-2 or may direct that the expert's deposition be taken pursuant to Sections 40-44 through 40-58.

(P.B. 1978-1997, Sec. 760A.)

Sec. 40-21. Defense of Alibi; Notice by Defendant

Upon written demand filed by the prosecuting authority stating the time, date, and place at which the alleged offense was committed, the defendant shall file within twenty days, or at such other time as the judicial authority may direct, a written notice of the defendant's intention to offer a defense of alibi. Such notice by the defendant shall state the specific place or places at which the defendant claims to have been at the time of the alleged offense and the names and addresses of the witnesses upon whom the defendant intends to rely to establish such alibi.

(P.B. 1978-1997, Sec. 763.)

Sec. 40-22. —Notice by Prosecuting Authority concerning Alibi Defense

If the written notice has been filed pursuant to Section 40-21, the prosecuting authority, within twenty days after filing of the notice, but in no event less than ten days before the trial unless the judicial authority otherwise directs, shall file a written notice stating the names and addresses of the witnesses upon whom the state intends to rely to establish the defendant's presence at the scene of the alleged offense and any other witnesses to be relied upon to rebut testimony of any of the defendant's alibi witnesses.

(P.B. 1978-1997, Sec. 764.)

Sec. 40-23. —Continuing Duty of Parties To Disclose regarding Alibi Defense

If prior to or during the trial, a party learns of an additional witness whose identity, if known, should have been included in the information furnished under Section 40-21 or 40-22, the party shall promptly notify the other party or his or her counsel of the existence and identity of such additional witness.

(P.B. 1978-1997, Sec. 765.)

Sec. 40-24. —Exceptions

For good cause shown, the judicial authority may grant an exception to any of the requirements of Sections 40-21 through 40-23.

(P.B. 1978-1997, Sec. 767.)

Sec. 40-25. —Inadmissibility of Withdrawn Alibi

Evidence of an intention to rely upon an alibi defense which intention is later withdrawn, or evidence of statements made in connection with such intention, is not admissible in any criminal proceeding against the person who gave notice of the intention.

(P.B. 1978-1997, Sec. 768.)

Sec. 40-26. Disclosure by Defendant; Information and Materials Discoverable by Prosecuting Authority as of Right

Upon written request by the prosecuting authority filed in accordance with Section 41-5 and without requiring any order of the judicial authority, the defendant, subject to Section 40-40 et seq., shall promptly, but no later than forty-five days from the filing of the request, unless such time is extended by the judicial authority for good cause shown, disclose in writing to the prosecuting authority the existence of and make available for examination and copying in accordance with the procedures of Section 40-7 the following items:

(1) Any books, papers, documents, photographs or tangible objects which the defendant intends to offer in evidence at trial except to the extent that it contains any communication of the defendant; and

(2) Any reports or statements of experts made in connection with the case, including results of physical or mental examinations and of scientific tests, experiments or comparisons, which the defendant intends to offer in evidence at trial or relating to the anticipated testimony of a person whom the defendant intends to call as a witness.

(P.B. 1978-1997, Sec. 769.)

Sec. 40-27. Discretionary Disclosure Directed to Defendant

Upon written request by a prosecuting authority filed in accordance with Section 40-7 the judicial authority may direct the defendant to disclose in writing to the prosecuting authority and make available for inspection, photographing, copying and reasonable testing any other relevant material and information not covered by Section 40-26 which the judicial authority determines on good cause shown should be made available.

(P.B. 1978-1997, Sec. 769A.)

Sec. 40-28. Derivative Evidence

The defendant shall be supplied with copies of any reports of experts derived from or based upon the examination of materials produced pursuant to Section 40-26.

(P.B. 1978-1997, Sec. 770.)

Sec. 40-29. Protective Orders Requested by Defendant

The defendant may, to the same extent as the prosecuting authority, move for a protective order under the provisions of Sections 40-40 through 40-43.

(P.B. 1978-1997, Sec. 771.)

Sec. 40-30. Admissibility at Time of Trial

The fact that the defendant has indicated an intent to offer a matter in evidence or to call a person as a witness pursuant to Sections 40-17 through 40-31 is not admissible in evidence at the defendant's trial. Information obtained by the prosecuting authority pursuant to Sections 40-17 through 40-31 shall be used only for the cross-examination or rebuttal of defense testimony except with permission of the judicial authority for good cause shown.

(P.B. 1978-1997, Sec. 772.)

Sec. 40-31. Information Not Subject to Disclosure by Defendant

Subject to Section 40-13 and except as to scientific or medical reports, Sections 40-17 through 40-31 do not authorize or require disclosure or inspection of:

(1) Reports, memoranda or other internal defense documents made by the defendant, or counsel for the defendant or any person employed by the defendant in connection with the investigation or defense of the case;

(2) Legal research; or

(3) Records, correspondence, reports or memoranda to the extent that they contain the opinions, theories or conclusions of the defendant, counsel for the defendant, or any other person employed by the defendant in connection with the investigation or defense of the case.

(P.B. 1978-1997, Sec. 773.)

Sec. 40-32. Obtaining Nontestimonial Evidence from Defendant

Upon motion of the prosecuting authority, the judicial authority by order may direct a defendant to participate in a reasonably conducted procedure to obtain nontestimonial evidence, if the judicial authority finds probable cause to believe that:

(1) The evidence sought may be of material aid in determining whether the defendant committed the offense charged; and

(2) The evidence sought cannot practicably be obtained from other sources.

(P.B. 1978-1997, Sec. 776.)

Sec. 40-33. —Emergency Procedure regarding Nontestimonial Evidence

Upon application of the prosecuting authority, the judicial authority by order may direct a law enforcement officer to bring the defendant forthwith before the judicial authority for an immediate hearing on a motion made under Sections 40-32 through 40-39, if an affidavit or testimony shows that there is probable cause to believe that the evidence sought will be altered, dissipated, or lost if not promptly obtained. Upon presentation of the defendant, the judicial authority shall inform the defendant of his or her rights as specified in Sections 37-3 through 37-6 and shall afford the defendant reasonable opportunity to consult with an attorney before hearing the motion.

(P.B. 1978-1997, Sec. 777.)

Sec. 40-34. —Scope of Order for Nontestimonial Evidence

An order under Sections 40-32 through 40-39 may direct the defendant to participate in one or more of the following procedures:

(1) Appearing, moving, or speaking for identification in a lineup, but if a lineup is not practicable, then in some other reasonable procedure;

(2) Wearing clothing or other articles of personal use or adornment;

(3) Providing handwriting and voice exemplars;

(4) Submitting to the taking of photographs;

(5) Submitting to the taking of fingerprints, palm prints, footprints, and other body impressions;

(6) Submitting to the taking of specimens of saliva, breath, hair, and nails;

(7) Submitting to body measurements or other reasonable body surface examinations;

(8) Submitting to the removal of foreign substances or objects from the surface of the body, if the removal does not involve an unreasonable intrusion of the body or an unreasonable affront to the dignity of the individual;

(9) Submitting to the taking of specimens of blood and urine, if the taking does not involve an unreasonable intrusion of the body or an unreasonable affront to the dignity of the individual;

(10) Submitting to physical examinations, including X-rays under medical supervision; or

(11) Submitting to chemical or physical tests of the surface of the body which do not involve an unreasonable intrusion of the body or an unreasonable affront to the dignity of the individual or a significant risk of injury.

(P.B. 1978-1997, Sec. 778.)

Sec. 40-35. —Contents of Order

An order under Sections 40-32 through 40-39 shall specify with particularity the authorized procedure, the scope of the defendant's participation, the time, duration, place, and other conditions of the procedure, and the person or persons who may conduct it. It shall inform the defendant that he or she may not be subjected to investigative interrogation while participating in or being present for the procedure, and that he or she may

be held in contempt of court by failing to appear and participate in the procedure as directed. It may also direct the defendant not to alter substantially any identifying physical characteristics to be examined or to destroy any evidence sought.

(P.B. 1978-1997, Sec. 779.)

Sec. 40-36 —Service of Order

An order under Sections 40-32 through 40-39 shall be served by delivering a copy of the order to the defendant personally and to his or her counsel, if represented by counsel.

(P.B. 1978-1997, Sec. 780.)

Sec. 40-37. —Implementation of Order

An order directing the defendant to participate shall be implemented in the following manner:

(1) While participating in or being present for an authorized procedure, the defendant may be accompanied by counsel and by an observer of choice. The presence of other persons at the procedure may be limited as the judicial authority deems appropriate under the circumstances.

(2) The procedure shall be conducted with dispatch. If the taking of a specimen or the removal of a foreign substance involves an intrusion of the body, medical or other qualified supervision is required. Upon timely request of the defendant and approval by the judicial authority, the defendant may have a qualified physician designated by the defendant in attendance.

(3) The defendant may not be subjected to investigative interrogation while participating in or being present for the procedure.

(4) Any evidence obtained from the defendant may be used only with respect to the offense charged or any related offense.

(5) The defendant shall be furnished with a report of the results of the procedure within fifteen days of its completion.

(P.B. 1978-1997, Sec. 781.)

Sec. 40-38. —Obtaining Nontestimonial Evidence from Defendant upon Motion of Defendant

Upon motion of a defendant who has been arrested, summoned, or charged in a complaint or information, the judicial authority by order may direct the prosecuting authority to arrange for the defendant's participation in one or more of the procedures specified in Sections 40-32 through 40-39, if the judicial authority finds that the evidence sought could contribute to an adequate defense. The order shall specify with particularity the authorized procedure, the scope of the defendant's permitted participation, the designation of representatives of the prosecution who may be present, the time, duration, place and other conditions of the procedure, and the person or persons who may conduct the procedure. Sections 40-32 through 40-37 apply to procedures ordered under this section.

(P.B. 1978-1997, Sec. 782.)

Sec. 40-39. —Comparing Nontestimonial Evidence

Upon motion of the defendant, the judicial authority by order may direct a prosecuting authority to have a scientific comparison made between a specified sample or specimen of nontestimonial evidence in the prosecuting authority's possession or control and other nontestimonial evidence of a similar character in the prosecuting authority's possession or control, if the judicial authority finds that the results of the comparison could contribute to an adequate defense. The order shall specify the comparison authorized, the person or persons who may make it, and the appropriate conditions under which it is to be made.

(P.B. 1978-1997, Sec. 783.)

Sec. 40-40. Protective Orders; Relief

Upon the filing of a motion for a protective order by either party and after a hearing thereon, the judicial authority may at any time order that disclosure or inspection be denied, restricted or deferred, or that reasonable conditions be imposed as to the manner of inspection, photographing, copying or testing, to the extent necessary to protect the evidentiary values of any information or material.

(P.B. 1978-1997, Sec. 785.)

Sec. 40-41. —Grounds for Protective Order

In deciding the motion for a protective order the judicial authority may consider the following:

(1) The timeliness of the motion;

(2) The protection of witnesses and others from physical harm, threats of harm, bribes, economic reprisals and other intimidation;

(3) The maintenance of secrecy regarding informants as required for effective investigation of criminal activity;

(4) The protection of confidential relationships, privileges and communications recognized by law; and

(5) Any other relevant considerations.

(P.B. 1978-1997, Sec. 786.)

Sec. 40-42. —In Camera Proceedings

Upon the hearing of any motion under Sections 40-40 through 40-43, the judicial authority may permit all or part of any showing of cause for denial or deferral of access to be made in camera and out of the presence of the opposing party. Any in camera proceedings shall be recorded verbatim. If the judicial authority allows any access

to be denied or deferred, the entire record of the in camera proceedings shall be sealed and preserved in the court's records, to be made available to the Appellate Court in the event of an appeal.

(P.B. 1978-1997, Sec. 787.)

Sec. 40-43. —Excision as Protective Order

If the moving party claims in a motion for a protective order that a portion of any information or materials requested or required to be disclosed is not subject to disclosure or inspection or contains irrelevant material, that party shall deliver such information or materials to the judicial authority for inspection in camera out of the presence of the other party. If the judicial authority excises any portion of such information or materials, a record of the in camera proceedings shall be made and sealed and preserved in the court's records, to be made available to the Appellate Court in the event of an appeal. That portion of the information or materials made available to the other party shall show that an excision has been made.

(P.B. 1978-1997, Sec. 788.)

Sec. 40-44. Depositions; Grounds

In any case involving an offense for which the punishment may be imprisonment for more than one year the judicial authority, upon request of any party, may issue a subpoena for the appearance of any person at a designated time and place to give his or her deposition if such person's testimony may be required at trial and it appears to the judicial authority that such person:

(1) Will, because of physical or mental illness or infirmity, be unable to be present to testify at any trial or hearing; or

(2) Resides outside of this state, and his or her presence cannot be compelled under the provisions of General Statutes § 54-82i; or

(3) Will otherwise be unable to be present to testify at any trial or hearing; or

(4) Is an expert who has examined a defendant pursuant to Sections 40-17 through 40-19 and has failed to file a written report as provided by such sections.

(P.B. 1978-1997, Sec. 791.)

Sec. 40-45. —Failure To Appear for Deposition

If, after proper service within this state of a subpoena, the person subpoenaed fails to appear at the designated place and time, the judicial authority may issue a capias directed to a proper officer to arrest and bring such person before the judicial authority.

(P.B. 1978-1997, Sec. 792.)

Sec. 40-46. —Use of Deposition

So far as otherwise admissible under the rules of evidence, a deposition may be used as evidence at the trial or at any hearing if the deponent is unavailable, as defined in Section 40-56. Any deposition may also be used by any party for the purpose of contradicting or impeaching the testimony of the deponent as a witness. If only a part of a deposition is offered in evidence by a party, an adverse party may require such party to offer, or may himself or herself offer, all of it which is relevant to the part offered.

(P.B. 1978-1997, Sec. 793.)

Sec. 40-47. —Notice and Person Taking Deposition

The party at whose request the deposition is to be taken shall give the other parties reasonable written notice of the name and address of each person to be examined, the time and place for the deposition, and the manner of recording. The deposition may be taken before any officer authorized to administer oaths and agreed to by the parties or, absent such agreement, designated by the judicial authority. Such notice shall be served upon each party or each party's attorney by personal or abode service or by registered or certified mail.

(P.B. 1978-1997, Sec. 794.)

Sec. 40-48. —Protective Order Prior to Deposition

After a deposition is ordered, upon written motion seasonably made and served on all affected persons by a party or by the deponent, the judicial authority may for good cause shown change the time, place, or manner of recording the deposition, or order that it shall not be taken or that the scope of the examination shall be limited to certain matters, or make any other order which justice requires. Upon written demand of the objecting party or the deponent, the taking of the deposition shall be suspended for the time required to act upon the motion. In no event shall the deposition of the defendant be taken without the defendant's consent.

(P.B. 1978-1997, Sec. 795.)

Sec. 40-49. —Manner of Taking Deposition

The witness shall be put on oath and a verbatim record of his or her testimony shall be made. The testimony shall be taken stenographically and transcribed, unless the judicial authority orders otherwise. In the event that the judicial authority orders that the testimony at a deposition be recorded by other than stenographic means, the order shall designate the manner of recording, e.g., video, preserving, and filing the deposition, and it may include other provisions to assure that the recorded testimony will be accurate and trustworthy. If such an order is made, a

party may nevertheless arrange to have a stenographic transcription made at his or her own expense.

(P.B. 1978-1997, Sec. 796.)

TECHNICAL CHANGE: A technical change was made to update the terminology to align with current technology and practice.

Sec. 40-50. —Scope of Examination at Deposition

The scope and manner of examination and cross-examination shall be the same as that allowed at trial. Each party having possession of a statement of the deponent shall make the statement available to the other party for examination and use at the taking of a deposition if such other party would be entitled to the statement at trial.

(P.B. 1978-1997, Sec. 797.)

Sec. 40-51. —Objections at Depositions

All objections made at the time of the examination to the qualifications of the person taking the deposition, or to the manner of taking it, or to the questions or evidence presented, or to the conduct of any party, and any other objection to the proceedings shall be recorded by the person before whom the deposition is taken.

(P.B. 1978-1997, Sec. 798.)

Sec. 40-52. —Protective Order during Deposition

(a) At any time during the taking of the deposition, upon motion of a party or of the deponent, and upon a showing that the examination is being conducted in bad faith, or in such manner as to annoy, embarrass, or oppress the deponent or a party, or to elicit privileged testimony, the judicial authority who ordered the deposition taken may order the person conducting the examination immediately to cease taking the deposition, or it may limit the scope and manner of taking the deposition by ordering:

(1) That certain matters not be inquired into, or that the scope of the examination be limited to certain matters; or

(2) That the examination be conducted with no one present except those persons designated by the judicial authority.

(b) Upon demand of the objecting party or the deponent, the taking of the deposition shall be suspended for the time necessary to act upon the motion.

(P.B. 1978-1997, Sec. 799.)

Sec. 40-53. —Return of Deposition

Except as otherwise provided in these rules, or as ordered by the judicial authority, depositions shall be sealed by the authority taking them and returned to the clerk of the court in which the prosecution is pending, who shall file such depositions. Any deposition returned unsealed or with the seal broken may be rejected by the judicial authority who ordered its taking.

(P.B. 1978-1997, Sec. 800.)

Sec. 40-54. —Right of Defendant To Be Present and Represented at Deposition

A defendant shall have the right to be present in person at any deposition subject to such terms and conditions as may be established by the judicial authority. Upon the application for the taking of a deposition, the judicial authority shall advise any defendant who is without counsel of the right thereto and assign counsel to represent such defendant unless he or she elects to proceed without counsel or is able to obtain counsel.

(P.B. 1978-1997, Sec. 801.)

Sec. 40-55. —Waiver of Presence and Failure To Appear at Deposition

A defendant may waive, in writing, the right to be present in person. Failure of a defendant not in custody, absent good cause shown, to appear after notice, shall constitute a waiver of that right and of any objection to the taking and use of the deposition based upon that right. The deposition shall not be admissible in evidence if the defendant has not appeared in person and has not validly waived his or her right to appear. When a deposition is taken in the absence of the defendant, the prosecuting authority shall file a copy of the deposition within thirty days for inspection by the defendant, unless before that time he or she has delivered the deposition or a copy thereof to the defendant. If this section is not complied with, such deposition shall not be admissible in evidence.

(P.B. 1978-1997, Sec. 802.)

Sec. 40-56. —Definition of Unavailable

(a) "Unavailable" as used in Section 40-46 includes situations in which the deponent:

(1) Is exempted by a ruling of the judicial authority on the ground of privilege from testifying concerning the subject matter of his or her deposition;

(2) Persists in refusing to testify concerning the subject matter of his or her deposition despite an order of the judicial authority to do so;

(3) Testifies to a lack of memory of the subject matter of his or her deposition;

(4) Is unable to be present or to testify at a trial or hearing because of his or her death or physical or mental illness or infirmity; or

(5) Is absent from the trial or hearing and the proponent of his or her deposition has been unable to procure his or her attendance by subpoena or by other reasonable means.

(b) A deponent is not unavailable as a witness if his or her exemption, refusal, claim of lack of memory, inability, or absence is the result of the procurement or wrongdoing by the proponent of his or her deposition for the purpose of preventing the witness from attending or testifying.

(P.B. 1978-1997, Sec. 803.)

Sec. 40-57. —Taking and Use in Court of Deposition by Agreement

Nothing in Sections 40-44 through 40-58 precludes the taking of a deposition, orally or upon written interrogatories, or the use of a deposition by agreement of the parties with the consent of the judicial authority.

(P.B. 1978-1997, Sec. 804.)

Sec. 40-58. —Expenses of Deposition and Copies

All expenses incurred in the taking of a deposition, including a copy for each adverse party, but excluding counsel's fees, shall be paid by the party taking the deposition.

(P.B. 1978-1997, Sec. 805.)

CHAPTER 41

PRETRIAL MOTIONS

Sec.		Sec.	
41-1.	Pretrial Motion Practice; Exclusive Procedures	41-13.	—Return and Suppression of Seized Property
41-2.	—Matters To Be Raised by Motion	41-14.	—Suppression of Intercepted Communications
41-3.	—Pretrial Motions and Requests	41-15.	—Time for Filing Motion To Suppress
41-4.	—Failure To Raise Defense, Objection or Request	41-16.	—Effect on Seized Property of Granting Motion
41-5.	—Time for Making Pretrial Motions or Requests	41-17.	—Particular Judicial Authority May Not Hear Motion
41-6.	—Form and Manner of Making Pretrial Motions	41-18.	Severance of Offenses
41-7.	—Hearing and Ruling on Pretrial Motions	41-19.	Trial Together of Informations
41-8.	Motion To Dismiss	41-20.	Bill of Particulars; Time for Filing
41-9.	—Restriction on Motion To Dismiss	41-21.	—Content of Bill
41-10.	—Defects Not Requiring Dismissal	41-22.	—Furnishing of Bill
41-11.	—Remedies for Minor Defects Not Requiring Dismissal	41-23.	Transfer of Prosecution; Grounds
41-12.	Motion To Suppress	41-24.	—Time for Motion to Transfer
		41-25.	—Proceedings on Transfer

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 41-1. Pretrial Motion Practice; Exclusive Procedures

Except as otherwise provided in these rules, all motions to strike, motions to quash, motions to dismiss, and other dilatory pleas are abolished, and defenses and objections which heretofore could have been raised by one or more of them may be raised only by motions made in conformity with this chapter.

(P.B. 1978-1997, Sec. 807.)

Sec. 41-2. —Matters To Be Raised by Motion

Any defense, objection or request capable of determination without a trial of the general issue may be raised only by a pretrial motion made in conformity with this chapter.

(P.B. 1978-1997, Sec. 808.)

Sec. 41-3. —Pretrial Motions and Requests

Unless otherwise provided by statute or rule, or permitted by the judicial authority for good cause shown, pretrial motions and requests shall consist only of one or more of the following:

(1) Motions to dismiss under Sections 41-8 through 41-11;

(2) Motions and requests for discovery and depositions under Chapter 40;

(3) Motions to suppress evidence under Sections 41-12 through 41-17;

(4) Motions for joinder or severance under Sections 41-18 and 41-19;

(5) Motions for a bill of particulars under Sections 41-20 through 41-22;

(6) Motions for transfer of prosecution under Sections 41-23 through 41-25.

(P.B. 1978-1997, Sec. 809.)

Sec. 41-4. —Failure To Raise Defense, Objection or Request

Failure by a party, at or within the time provided by these rules, to raise defenses or objections or to make requests that must be made prior to trial shall constitute a waiver thereof, but a judicial authority, for good cause shown, may grant relief from such waiver, provided, however, that lack of jurisdiction over the offense charged or failure of the information to charge an offense may be raised by the defendant or noticed by the judicial authority at any time during the pendency of the proceedings.

(P.B. 1978-1997, Sec. 810.)

Sec. 41-5. —Time for Making Pretrial Motions or Requests

Unless otherwise provided by these rules or statute, all pretrial motions or requests shall be made not later than ten days after the first pretrial conference in the court where the case will be tried, or, with permission of the judicial authority, at such later time as the judicial authority may fix. However, defenses and objections alleging lack of jurisdiction over the offense charged or failure of the information to charge an offense may be raised by the defendant or noticed by the judicial authority at any time during the pendency of the proceedings.

(P.B. 1978-1997, Sec. 811.)

Sec. 41-6. —Form and Manner of Making Pretrial Motions

Pretrial motions shall be written and served in accordance with Sections 10-12 through 10-17 unless, for good cause shown, the judicial authority shall grant permission to make an oral pretrial motion. Every written motion shall include a statement of the factual and legal or other basis therefor, shall state whether the same or a similar motion was previously filed and ruled upon, and shall have annexed to it a proper order. All defenses and objections that must be raised by motion prior to trial shall, to the extent possible, be raised at the same time.

(P.B. 1978-1997, Sec. 812.)

Sec. 41-7. —Hearing and Ruling on Pretrial Motions

A motion made before trial shall be determined prior to trial, unless the judicial authority orders that the ruling be deferred until during the trial of the general issue or until after the verdict. Unless the judicial authority otherwise permits, all pretrial motions pending at the time for the hearing of any pretrial motion shall be heard at the same time. The judicial authority may order the filing of briefs prior to, at, or following such hearing. Where factual issues are involved in determining a motion, the judicial authority shall state its essential findings on the record. A verbatim record shall be made of all proceedings at a hearing on a pretrial motion, including such findings of fact and conclusions of law as are made orally. All motions which require an evidentiary hearing shall be heard by the judicial authority to whom the case has been assigned for trial, unless otherwise provided by rule or statute, or otherwise ordered by the presiding judge.

(P.B. 1978-1997, Sec. 813.)

Sec. 41-8. Motion To Dismiss

The following defenses or objections, if capable of determination without a trial of the general issue, shall, if made prior to trial, be raised by a motion to dismiss the information:

(1) Defects in the institution of the prosecution including any grand jury proceedings;

(2) Defects in the information including failure to charge an offense;

(3) Statute of limitations;

(4) Absence of jurisdiction of the court over the defendant or the subject matter;

(5) Insufficiency of evidence or cause to justify the bringing or continuing of such information or the placing of the defendant on trial;

(6) Previous prosecution barring the present prosecution;

(7) Claim that the defendant has been denied a speedy trial;

(8) Claim that the law defining the offense charged is unconstitutional or otherwise invalid; or

(9) Any other grounds.

(P.B. 1978-1997, Sec. 815.)

Sec. 41-9. —Restriction on Motion To Dismiss

No defendant who is charged with a crime punishable by death or life imprisonment for which probable cause has been found at a preliminary hearing pursuant to General Statutes § 54-46a or who has been arrested pursuant to a warrant may make a motion under subdivisions (5) or (9) of Section 41-8.

(P.B. 1978-1997, Sec. 816.)

Sec. 41-10. —Defects Not Requiring Dismissal

No information shall be dismissed because of any defect or imperfection in, or omission of, any matter of form only, or because of any miswriting, misspelling or improper English, or because of any use of a sign, symbol, figure or abbreviation or, because of any similar defect, imperfection or omission. No information shall be dismissed merely for misjoinder of parties accused, misjoinder of offenses charged, multiplicity, duplicity or uncertainty, provided an offense is charged.

(P.B. 1978-1997, Sec. 817.)

Sec. 41-11. —Remedies for Minor Defects Not Requiring Dismissal

If the judicial authority determines that any of the defects stated in Section 41-10 exist in any information, it shall order such relief as is required to remedy such defect, including the severance of such information into separate counts or the filing of a bill of particulars. No appeal, or motion made after verdict, based on any of the defects enumerated in Section 41-10 shall be sustained unless it is affirmatively shown that the defendant was, in fact, prejudiced in his or her defense upon the merits and that substantial injustice was done to the defendant because of such defect.

(P.B. 1978-1997, Sec. 818.)

Sec. 41-12. Motion To Suppress

Upon motion, the judicial authority shall suppress potential testimony or other evidence if it finds that suppression is required under the constitution or laws of the United States or the state of Connecticut.

(P.B. 1978-1997, Sec. 821.)

Sec. 41-13. —Return and Suppression of Seized Property

A person aggrieved by a search and seizure may make a motion to the judicial authority who has jurisdiction of the case, or if such jurisdiction has not yet been invoked, then to the judicial authority who issued the warrant or to the court in which the case is pending, for the return of specific items of property and to suppress their use as evidence on the grounds that:

(1) The property was illegally seized without a warrant under circumstances requiring a warrant;

(2) The warrant is insufficient on its face;

(3) The property seized is not that described in the warrant;

(4) There was not probable cause for believing the existence of the grounds on which the warrant was issued; or

(5) The warrant was illegally executed.

(P.B. 1978-1997, Sec. 822.)

Sec. 41-14. —Suppression of Intercepted Communications

Any aggrieved person in any trial, hearing or proceeding in or before any court may move to suppress the contents of any intercepted wire communication, or any evidence derived therefrom, on the grounds that:

(1) The communication was unlawfully intercepted under the provisions of chapter 959a of the General Statutes;

(2) The order of authorization or approval under which it was intercepted is insufficient on its face;

(3) The interception was not made in conformity with the order of authorization or approval; or

(4) The interception was otherwise illegal.

(P.B. 1978-1997, Sec. 823.)

Sec. 41-15. —Time for Filing Motion To Suppress

A motion under Sections 41-12 through 41-17 shall be made before trial or hearing in accordance with Section 41-5 unless opportunity therefor did not exist or the defendant or other moving party was not aware of the grounds of the motion, in which case such motion may be made at any time during the trial or the pendency of any proceeding. The judicial authority in its discretion may entertain such a motion at any time.

(P.B. 1978-1997, Sec. 824.)

Sec. 41-16. —Effect on Seized Property of Granting Motion

If the judicial authority grants a motion made under Sections 41-12 through 41-17, the property seized shall be returned unless the judicial authority finds that the property is subject to lawful detention or destruction.

(P.B. 1978-1997, Sec. 825.)

Sec. 41-17. —Particular Judicial Authority May Not Hear Motion

A judicial authority who signed any warrant or order for the seizure of property, testimony or evidence or for the interception of any communications shall not preside at any hearing on a motion made pertaining to such warrant or order.

(P.B. 1978-1997, Sec. 826.)

Sec. 41-18. Severance of Offenses

If it appears that a defendant is prejudiced by a joinder of offenses, the judicial authority may, upon its own motion or the motion of the defendant, order separate trials of the counts or provide whatever other relief justice may require.

(P.B. 1978-1997, Sec. 828.)

Sec. 41-19. Trial Together of Informations

The judicial authority may, upon its own motion or the motion of any party, order that two or more informations, whether against the same defendant or different defendants, be tried together.

(P.B. 1978-1997, Sec. 829.)

Sec. 41-20 Bill of Particulars; Time for Filing

Pursuant to Section 41-5, the defendant may make a motion, or the judicial authority may order at any time, that the prosecuting authority file a bill of particulars.

(P.B. 1978-1997, Sec. 831.)

Sec. 41-21. —Content of Bill

The judicial authority shall order that a bill of particulars disclose information sufficient to enable the defendant to prepare the defense, including but not being limited to reasonable notice of the crime charged and the date, time, and place of its commission.

(P.B. 1978-1997, Sec. 832.)

Sec. 41-22. —Furnishing of Bill

When any bill of particulars is ordered, an amended or substitute information shall be filed incorporating its provisions.

(P.B. 1978-1997, Sec. 833.)

Sec. 41-23. Transfer of Prosecution; Grounds

Upon motion of the prosecuting authority or the defendant, or upon its own motion, the judicial authority may order that any pending criminal matter be transferred to any other court location:

(1) If the judicial authority is satisfied that a fair and impartial trial cannot be had where the case is pending;

(2) If the defendant and the prosecuting authority consent; or

(3) Where the joint trial of informations is ordered pursuant to Section 41-19 and the cases are pending in different judicial districts or geographical areas.

(P.B. 1978-1997, Sec. 835.)

Sec. 41-24. —Time for Motion To Transfer

A motion for transfer of prosecution shall be made within the time prescribed by Section 41-5 for making pretrial motions.

(P.B. 1978-1997, Sec. 836.)

Sec. 41-25. —Proceedings on Transfer

The clerk of the court in which such case is pending shall transmit the original files and papers therein, with a certificate of such transfer, to the clerk of the court to which such case is transferred, who shall at once enter it on the docket of such court. Such case may be heard at a session of such court then being held, or thereafter to be held, for the transaction of criminal business and may be there proceeded with and in the same manner as if it were originally brought to such court.

(P.B. 1978-1997, Sec. 837.)

CHAPTER 42

TRIAL PROCEDURE

Sec.
42-1. Jury Trials; Right to Jury Trial and Waiver
42-2. —Two Part Information
42-3. —Size of Jury
42-4. —Challenge to Array
42-5. —Disqualification of Jurors and Selection of Panel
42-6. —View by Jury of Place or Thing Involved in Case
42-7. —Communications between Judicial Authority and Jury
42-8. —Communications between Parties and Jurors
42-9. —Juror Questions and Note-Taking
42-10. Selection of Jury; Jurors Who Are Deaf or Hard of Hearing
42-11. —Preliminary Proceedings in Jury Selection
42-12. —Voir Dire Examination
42-13. —Peremptory Challenges
42-14. —Oath and Admonitions to Trial Jurors
42-15. Motion in Limine
42-16. Requests To Charge and Exceptions; Necessity for
42-17. —Filing Requests
42-18. —Form and Contents of Requests To Charge
42-19. —Charge Conference
42-20. Submission for Verdict; Role of Judicial Authority in Trial
42-21. Jury Deliberations
42-22. Sequestration of Jury
42-23. Materials To Be Submitted to Jury
42-24. Modification of Instructions for Correction or Clarification
42-25. —Other Instructions after Additional Instructions
42-26. Jury Requests for Review of Testimony
42-27. Jury Requests for Additional Instructions
42-28. Deadlocked Jury

Sec
42-29. Verdict; Return of Verdict
42-30. —Acceptance of Verdict
42-31. —Poll of Jury after Verdict
42-32. —Discharge of Jury
42-33. —Impeachment of Verdict
42-34. Trial without Jury
42-35. Order of Parties Proceeding at Trial
42-36. Sequestration of Witnesses
42-37. Time Limits in Argument
42-38. Order of Proceeding of Defendants
42-39. Judicial Appointment of Expert Witnesses
42-40. Motions for Judgment of Acquittal; In General
42-41. —At Close of Prosecution's Case
42-42. —At Close of Evidence
42-43. Motion for Mistrial; For Prejudice to Defendant
42-44. —For Prejudice to State
42-45. Jury's Inability To Reach Verdict
42-46. Control of Judicial Proceedings; Restraint of Disruptive Defendant
42-47. —Removal of Disruptive Defendant
42-48. —Cautioning Parties and Witnesses
42-49. Closure of Courtroom in Criminal Cases
42-49A. Sealing or Limiting Disclosure of Documents in Criminal Cases
42-50. Motion for Judgment of Acquittal; After Mistrial
42-51. —Upon Verdict of Guilty
42-52. —Time for Filing Motion for Judgment of Acquittal
42-53. Motion for New Trial; In General
42-54. —Time for Filing Motion for New Trial
42-55. —Time for Filing Motion for New Trial Based on Newly Discovered Evidence
42-56. Motion in Arrest of Judgment

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 42-1. Jury Trials; Right to Jury Trial and Waiver

The defendant in a criminal action may demand a trial by jury of issues which are triable of right by jury. If at the time the defendant is put to plea, he or she elects a trial by the court, the judicial authority shall advise the defendant of his or her right to a trial by jury and that a failure to elect a jury trial at that time may constitute a waiver of that right. If the defendant does not then elect a jury trial, the defendant's right thereto may be deemed to have been waived.

(P.B. 1978-1997, Sec. 839.)

Sec. 42-2. —Two Part Information

When an information is divided into two parts under Section 36-14, on a finding of guilty on the first part of the information, a plea shall be taken and, if necessary, election made on the second part and the trial thereon proceeded with. If the defendant elects a jury trial on the second part of the information, such trial may be had to the same or to another jury as the judicial authority may direct.

(P.B. 1978-1997, Sec. 840.)

Sec. 42-3. —Size of Jury

The parties, after submission of the matter to the jury and prior to the verdict, may, by stipulation in writing and with the approval of the judicial authority, elect to have the verdict rendered by a number of jurors fewer than that prescribed by law. The judicial authority shall not permit such an election or stipulation unless the defendant, after being advised by the judicial authority of his or her right to a trial by a full jury, personally waives such right either in writing or in open court on the record.

(P.B. 1978-1997, Sec. 841.)

Sec. 42-4. —Challenge to Array

Any party may challenge an array on the ground that there has been a material departure from the requirements of law governing the selection and summoning of an array. Such challenge shall be made within five days after notification of the hearing or trial date, unless the defect claimed has arisen subsequent to the time required to make such motion.

(P.B. 1978-1997, Sec. 842.)

Sec. 42-5 —Disqualification of Jurors and Selection of Panel

A person shall be disqualified to serve as a juror if such person is found by the judicial authority to exhibit any quality which will impair that person's capacity to serve as a juror, except that no person shall be disqualified on the basis of deafness or being hard of hearing. The clerk shall keep a list of all persons disqualified under this section and shall send a copy of that list to the jury administrator at such time as the jury administrator may direct. The clerk of the court, in impaneling the jury for the trial of each cause, shall, when more jurors are in attendance than are required for the panel, designate by lot those who shall compose the panel.

(P.B. 1978-1997, Sec. 843.) (Amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 42-6 —View by Jury of Place or Thing Involved in Case

When the judicial authority is of the opinion that a viewing by the jury of the place where the offense being tried was committed, or of any other place or thing involved in the case, will be helpful to the jury in determining any material factual issue, it may in its discretion, at any time before the closing arguments, order that the jury be conducted to such place or location of such thing. During the viewing the jury must be kept together under the supervision of a proper officer appointed by the judicial authority. The judicial authority and an official court reporter or court recording monitor must be present, and, with the judicial authority's permission, any other person may be present. The prosecuting authority, the defendant and defense counsel may as a matter of right be present, but the right may be waived. The purpose of viewing shall be solely to permit visual observation by the jury of the place or thing in question and to permit a brief description of the site or thing being viewed by the judicial authority or by any witness or witnesses as allowed by the judicial authority. Any proceedings at the location, including examination of witnesses, shall be at the discretion of the judicial authority. Neither the parties nor counsel nor the jurors while viewing the place or thing may engage in discussion of the significance or the implications of anything under observation or of any issue in the case.

(P.B. 1978-1997, Sec. 844.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 42-7. —Communications between Judicial Authority and Jury

All communications from the jury to the judicial authority shall be in writing. The judicial authority shall require that a record be kept of all communications received by it from a juror or the jury after the jury has been sworn, and it shall not communicate with a juror or the jury on any aspect of the case itself, as distinguished from matters relating to physical comforts and the like, except after notice to all parties and reasonable opportunity for them to be present.

(P.B. 1978-1997, Sec. 845.)

Sec. 42-8. —Communications between Parties and Jurors

(a) No party, and no attorney, employee, representative or agent of any party or attorney, shall contact, communicate with or interview any juror or alternate juror, or any relative, friend or associate of any juror or alternate juror concerning the deliberations or verdict of the jury or of any individual juror or alternate juror in any action:

(1) during trial until the jury has returned a verdict and/or the jury has been dismissed by the judicial authority, except upon leave of the judicial authority, which shall be granted only upon a showing of good cause; or

(2) in any manner after trial which subjects the juror to harassment, misrepresentation, duress or coercion.

(b) After trial, jurors have no obligation to speak to any person about any case and may refuse all interviews or requests to discuss the case, except as ordered by the court. However, jurors shall report to the court any extraneous prejudicial information improperly brought to the jury's attention, any outside influence improperly brought to bear upon any juror, or whether the verdict reported was the result of a clerical mistake.

(c) A violation of subsection (a) may, where appropriate, be treated as a contempt of court, and may be punished accordingly. The judicial authority shall have continuing supervision over communications with jurors, even after a trial has been completed.

(P.B. 1978-1997, Sec. 845A.) (Amended June 15, 2012, to take effect Jan. 1, 2013.)

Sec. 42-9. —Juror Questions and Note-Taking

The members of the jury may, in the discretion of the judicial authority, take notes and submit

questions to be asked of witnesses during the trial of a criminal action.

(P.B. 1978-1997, Sec. 845B.)

TECHNICAL CHANGE: A hyphen was added to "Note-taking." in the title.

Sec. 42-10. Selection of Jury; Jurors Who Are Deaf or Hard of Hearing

(Amended June 13, 2019, to take effect Jan. 1, 2020.)

At the request of a juror who is deaf or hard of hearing or at the request of the judicial authority, an interpreter or interpreters provided by the Judicial Branch and qualified under General Statutes § 17a-838 shall assist such juror during the juror orientation program and all subsequent proceedings, and when the jury assembles for deliberation.

(P.B. 1978-1997, Sec. 846A.) (Amended August 24, 2001, to take effect Jan. 1, 2002; amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 42-11. —Preliminary Proceedings in Jury Selection

The judicial authority shall cause prospective jurors to be sworn or affirmed in accordance with General Statutes §§ 1-23 and 1-25. The judicial authority shall require counsel to make a preliminary statement as to the names of other counsel with whom he or she is affiliated and other relevant facts, and shall require counsel to disclose the names, and if ordered by the judicial authority, the addresses of all witnesses counsel intends to call at trial. The judicial authority may excuse any prospective juror for cause.

(P.B. 1978-1997, Sec. 847.)

Sec. 42-12. —Voir Dire Examination

Each party shall have the right to examine, personally or by counsel, each juror outside the presence of other prospective jurors as to qualifications to sit as a juror in the action, or as to interest, if any, in the subject matter of the action, or as to relations with the parties thereto. If the judicial authority before whom such examination is held is of the opinion from such examination that any juror would be unable to render a fair and impartial verdict, such juror shall be excused by the judicial authority from any further service upon the panel, or in such action, as the judicial authority determines. The judicial authority shall not abridge the right of such examination by requiring counsel or the defendant to put questions to any juror in writing and to submit them in advance of the commencement of the trial.

(P.B. 1978-1997, Sec. 848.) (Amended June 22, 2009, to take effect Jan. 1, 2010.)

Sec. 42-13. —Peremptory Challenges

(a) The prosecuting authority and the defendant may challenge peremptorily the number of jurors which each is entitled to challenge by law.

(b) Pursuant to the provisions of Section 5-12, a party or the court on its own may object to the use of a peremptory challenge to raise a claim of improper bias.

(P.B. 1978-1997, Sec. 849.) (Amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 42-14. —Oath and Admonitions to Trial Jurors

(a) The judicial authority shall cause the jurors selected for the trial to be sworn or affirmed in accordance with General Statutes §§ 1-23 and 1-25. The judicial authority shall admonish the jurors not to read, listen to or view news reports of the case or to discuss with each other or with any person not a member of the jury the cause under consideration, except that after the case has been submitted to the jury for deliberation the jurors shall discuss it among themselves in the jury room.

(b) In the presence of the jury, the judicial authority shall instruct any interpreter for a juror who is deaf or hard of hearing to refrain from participating in any manner in the deliberations of the jury and to refrain from having any communications, oral or visual, with any member of the jury except for the literal translation of jurors' remarks made during deliberations.

(P.B. 1978-1997, Sec. 850.) (Amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 42-15. Motion in Limine

The judicial authority to whom a matter has been referred for trial may in its discretion entertain a motion in limine made by either party regarding the admission or exclusion of anticipated evidence. Such motion shall be in writing and shall describe the anticipated evidence and the prejudice which may result therefrom. The judicial authority may grant the relief sought in the motion or such other relief as it may deem appropriate, may deny the motion with or without prejudice to its later renewal, or may reserve decision thereon until a later time in the proceeding.

(P.B. 1978-1997, Sec. 850B.)

Sec. 42-16. Requests To Charge and Exceptions; Necessity for

An appellate court shall not be bound to consider error as to the giving of, or the failure to give, an instruction unless the matter is covered by a written request to charge or exception has been taken by the party appealing immediately after the charge is delivered. Counsel taking the

exception shall state distinctly the matter objected to and the ground of exception. The exception shall be taken out of the hearing of the jury.

(P.B. 1978-1997, Sec. 852.)

Sec. 42-17. —Filing Requests

Written requests to charge the jury must be filed in triplicate with the clerk before the beginning of the arguments or at such earlier time during the trial as the judicial authority directs, and the clerk shall file them and forthwith hand one copy to the judicial authority and one to opposing counsel. A party's requests to charge may be amended in writing as a matter of right at any time prior to the beginning of the charge conference.

(P.B. 1978-1997, Sec. 853.)

Sec. 42-18. —Form and Contents of Requests To Charge

(a) When there are several requests, they shall be in separate and numbered paragraphs, each containing a single proposition of law clearly and concisely stated with the citation of authority upon which it is based, and the evidence to which the proposition would apply. Requests to charge should not exceed fifteen in number unless, for good cause shown, the judicial authority permits the filing of an additional number. If the request is granted, the judicial authority shall apply the proposition of law to the facts of the case.

(b) A principle of law should be stated in but one request and in but one way. Requests attempting to state in different forms the same principle of law as applied to a single issue are improper.

(P.B. 1978-1997, Sec. 854.)

Sec. 42-19. —Charge Conference

After the close of evidence but before arguments to the jury, the judicial authority shall, if requested, inform counsel out of the presence of the jury of the substance of its proposed instructions.

The charge conference shall be on the record or summarized on the record.

(P.B. 1978-1997, Sec. 854A.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 42-20. Submission for Verdict; Role of Judicial Authority in Trial

The judicial authority shall decide all issues of law and all questions of law arising in the trial of criminal cases. In committing the case to the jury, if in the opinion of the judicial authority the evidence is not sufficient to justify the finding of guilt beyond a reasonable doubt, it may direct the jury to find a verdict of not guilty; otherwise, subject to the provisions of Section 42-40, the judicial authority shall submit the facts to the jury without directing how it is to find the facts or how it is to render the verdict.

(P.B. 1978-1997, Sec. 855.)

Sec. 42-21. Jury Deliberations

After the case has been submitted to the jury, the jurors shall be in the custody of an officer who shall permit no person to be present with them or to speak to them when assembled for deliberations except a qualified interpreter assisting a juror who is deaf or hard of hearing. The jurors shall be kept together for deliberations as the judicial authority reasonably directs. If the judicial authority permits the jury to recess its deliberations, the judicial authority shall admonish the jurors not to discuss the case until they reconvene in the jury room. The judicial authority shall direct the jurors to select one of their members to preside over the deliberations and to deliver any verdict agreed upon, and the judicial authority shall admonish the jurors that until they are discharged in the case they may communicate upon subjects connected with the trial only while they are convened in the jury room. If written forms of verdict are submitted to the jury pursuant to Section 42-23, the member of the jury selected to deliver the verdict shall sign any verdict agreed upon.

(P.B. 1978-1997, Sec. 856.) (Amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 42-22. Sequestration of Jury

If a case involves the penalty of capital punishment or imprisonment for life or is of such notoriety or its issues are of such a nature that, absent sequestration, highly prejudicial matters are likely to come to the jury's attention, the judicial authority, upon its own motion or the motion of either party, may order that the jurors remain together in the custody of an officer during the trial and until they are discharged from further consideration of the case. Such order shall include an interpreter or interpreters assisting a juror who is deaf or hard of hearing. A motion to sequester may be made at any time. The jury shall not be informed which party requested sequestration.

(P.B. 1978-1997, Sec. 857.) (Amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 42-23. Materials To Be Submitted to Jury

(a) The judicial authority shall submit to the jury:

(1) The information upon which the defendant was tried; and

(2) All exhibits received in evidence.

(b) The judicial authority may, in its discretion, submit to the jury:

(1) Appropriate written forms of verdict;

(2) A copy or recording of the judicial authority's instructions to the jury; and

(3) Upon request by the jury, a copy or recording of an appropriate portion of the judicial authority's instructions to the jury.

(P.B. 1978-1997, Sec. 858.)

TECHNICAL CHANGE: Technical changes were made in subsection (b) to update the terminology to align with current technology and practice.

Sec. 42-24. Modification of Instructions for Correction or Clarification

The judicial authority, after exceptions to the charge, or upon its own motion, may recall the jury to the courtroom and give it additional instructions in order to:

(1) Correct or withdraw an erroneous instruction;

(2) Clarify an ambiguous instruction; or

(3) Instruct the jury on any matter which should have been covered in the original instructions.

(P.B. 1978-1997, Sec. 860.)

Sec. 42-25. —Other Instructions after Additional Instructions

If the judicial authority gives additional instructions, it also may give or repeat other instructions in order to avoid undue emphasis on the additional instructions. Additional instructions shall be governed by the procedures set forth in Section 42-16 concerning exceptions.

(P.B. 1978-1997, Sec. 861.)

Sec. 42-26. Jury Requests for Review of Testimony

If the jury after retiring for deliberations requests a review of certain testimony, the jury shall be conducted to the courtroom. Whenever the jury's request is reasonable, the judicial authority, after notice to and consultation with the prosecuting authority and counsel for the defense, shall have the requested parts of the testimony read to the jury.

(P.B. 1978-1997, Sec. 863.)

Sec. 42-27. Jury Requests for Additional Instructions

If the jury, after retiring for deliberations, requests additional instructions, the judicial authority, after providing notice to the parties and an opportunity for suggestions by counsel, shall recall the jury to the courtroom and give additional instructions necessary to respond properly to the request or to direct the jury's attention to a portion of the original instructions.

(P.B. 1978-1997, Sec. 864.)

Sec. 42-28. Deadlocked Jury

If it appears to the judicial authority that the jury has been unable to agree, it may require the jury to continue its deliberations. The judicial authority shall not require or threaten to require the jury to deliberate for an unreasonable length of time or for unreasonable intervals. It may also instruct the jury as to disagreements in accordance with the law.

(P.B. 1978-1997, Sec. 865.)

Sec. 42-29. Verdict; Return of Verdict

The verdict shall be general unless otherwise directed by the judicial authority, but if the judicial authority instructs the jury regarding the defense of mental disease or defect, the jury, if it so finds, shall declare the finding in its verdict. The verdict shall be unanimous and shall be announced by the jury in open court. If there are two or more defendants, the jury may return a verdict with respect to any defendant as to whom it agrees. The defendant, if found not guilty of the offense charged, may be found guilty of an offense necessarily included in the offense charged or of an attempt to commit either the offense charged or an offense necessarily included therein, if the attempt is an offense.

(P.B. 1978-1997, Sec. 867.)

Sec. 42-30. —Acceptance of Verdict

The judicial authority shall, if the verdict is in order and is technically correct, accept it without comment.

(P.B. 1978-1997, Sec. 868.)

Sec. 42-31. —Poll of Jury after Verdict

After a verdict has been returned and before the jury has been discharged, the jury shall be polled at the request of any party or upon the judicial authority's own motion. The poll shall be conducted by the clerk of the court by asking each juror individually whether the verdict announced is such juror's verdict. If upon the poll there is not unanimous concurrence, the jury may be directed to retire for further deliberations or it may be discharged.

(P.B. 1978-1997, Sec. 869.)

Sec. 42-32. —Discharge of Jury

The judicial authority shall discharge the jury after it has rendered its verdict or after a mistrial has been declared.

(P.B. 1978-1997, Sec. 870.)

Sec. 42-33. —Impeachment of Verdict

Upon an inquiry into the validity of a verdict, no evidence shall be received to show the effect of any statement, conduct, event or condition upon the mind of a juror nor any evidence concerning

mental processes by which the verdict was determined. Subject to these limitations, a juror's testimony or affidavit shall be received when it concerns any misconduct which by law permits a jury to be impeached.

(P.B. 1978-1997, Sec. 871.)

Sec. 42-34. Trial without Jury

In a case tried without a jury the judicial authority shall, in accordance with Section 6-1, render a finding of guilty, not guilty, or not guilty by reason of mental disease or defect where appropriate.

(P.B. 1978-1997, Sec. 872.) (Amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 42-35. Order of Parties Proceeding at Trial

Unless the judicial authority for cause permits otherwise, the parties shall proceed with the trial in the following order:

(1) The prosecuting authority shall present the case-in-chief.

(2) The defendant may present a case-in-chief.

(3) The prosecuting authority and the defendant may present rebuttal evidence in successive rebuttals, as required. The judicial authority for cause may permit a party to present evidence not of a rebuttal nature, and if the prosecuting authority is permitted to present further evidence-in-chief, the defendant may respond with further evidence-in-chief.

(4) The prosecuting authority shall be entitled to make the opening and final closing arguments.

(5) The defendant may make a single closing argument following the opening argument of the prosecuting authority.

(P.B. 1978-1997, Sec. 874.)

Sec. 42-36. Sequestration of Witnesses

The judicial authority upon motion of the prosecuting authority or of the defendant shall cause any witness to be sequestered during the hearing on any issue or motion or during any part of the trial in which such witness is not testifying.

(P.B. 1978-1997, Sec. 876.)

Sec. 42-37. Time Limits in Argument

Counsel shall not occupy more than one hour in argument in any trial, unless the judicial authority, on motion for special cause before the commencement of such argument, allows counsel a longer time.

(P.B. 1978-1997, Sec. 879.)

Sec. 42-38. Order of Proceeding of Defendants

If there are two or more defendants and they do not agree as to their order of proceeding, the judicial authority shall determine their order.

(P.B. 1978-1997, Sec. 880.)

Sec. 42-39. Judicial Appointment of Expert Witnesses

Whenever the judicial authority deems it necessary, on its own motion it may appoint any expert witnesses of its own selection. An expert witness shall not be appointed by the judicial authority unless the expert consents to act. A witness so appointed shall be informed of his or her duties by the judicial authority in writing, a copy of which shall be filed with the clerk, or the witness shall be informed of his or her duties at a conference in which the parties shall have an opportunity to participate. A witness so appointed shall advise the parties of his or her findings, if any, and may thereafter be called to testify by the judicial authority or by any party. A witness so appointed shall be subject to cross-examination by each party. The judicial authority may determine the reasonable compensation for such a witness and direct payment out of such funds as may be provided by law. This section shall not apply to appointments made pursuant to General Statutes § 54-56d.

(P.B. 1978-1997, Sec. 881.)

Sec. 42-40. Motions for Judgment of Acquittal; In General

Motions for a directed verdict of acquittal and for dismissal when used during the course of a trial are abolished. Motions for a judgment of acquittal shall be used in their place. After the close of the prosecution's case-in-chief or at the close of all the evidence, upon motion of the defendant or upon its own motion, the judicial authority shall order the entry of a judgment of acquittal as to any principal offense charged and as to any lesser included offense for which the evidence would not reasonably permit a finding of guilty. Such judgment of acquittal shall not apply to any lesser included offense for which the evidence would reasonably permit a finding of guilty.

(P.B. 1978-1997, Sec. 883.)

Sec. 42-41. —At Close of Prosecution's Case

If the motion is made after the close of the prosecution's case-in-chief, the judicial authority shall either grant or deny the motion before calling upon the defendant to present the defendant's case-in-chief. If the motion is not granted, the defendant may offer evidence without having reserved the right to do so.

(P.B. 1978-1997, Sec. 884.)

Sec. 42-42. —At Close of Evidence

If the motion is made at the close of all the evidence in a jury case, the judicial authority may reserve decision on the motion, submit the case to the jury, and decide the motion either before the jury returns a verdict or after it returns a verdict

of guilty or after it is discharged without having returned a verdict.

(P.B. 1978-1997, Sec. 885.)

Sec. 42-43. Motion for Mistrial; For Prejudice to Defendant

Upon motion of a defendant, the judicial authority may declare a mistrial at any time during the trial if there occurs during the trial an error or legal defect in the proceedings, or any conduct inside or outside the courtroom which results in substantial and irreparable prejudice to the defendant's case. If there are two or more defendants, the mistrial shall not be declared as to a defendant who does not make or join in the motion.

(P.B. 1978-1997, Sec. 887.)

Sec. 42-44. —For Prejudice to State

Upon motion of the prosecuting authority, the judicial authority may declare a mistrial if there occurs during the trial, either inside or outside the courtroom, misconduct by the defendant, counsel for the defendant, or someone acting at the request of the defendant or such counsel, which results in substantial and irreparable prejudice to the prosecuting authority's case. If there are two or more defendants, the mistrial shall not be declared as to a defendant if neither that defendant, nor counsel for that defendant, nor a person acting at the request of that defendant or counsel for that defendant participated in the misconduct, or if the prosecuting authority's case is not substantially and irreparably prejudiced as to that defendant.

(P.B. 1978-1997, Sec. 888.)

Sec. 42-45. Jury's Inability To Reach Verdict

The judicial authority shall declare a mistrial in any case in which the jury is unable to reach a verdict.

(P.B. 1978-1997, Sec. 889.)

Sec. 42-46. Control of Judicial Proceedings; Restraint of Disruptive Defendant

(a) Reasonable means of restraint may be employed if the judicial authority finds such restraint reasonably necessary to maintain order. If restraints appear potentially necessary and the circumstances permit, the judicial authority may conduct an evidentiary hearing outside the presence of the jury before ordering such restraints. The judicial authority may rely on information other than that formally admitted into evidence. Such information shall be placed on the record outside the presence of the jury and the defendant given an opportunity to respond to it.

(b) In ordering the use of restraints or denying a request to remove them, the judicial authority shall detail its reasons on the record outside the presence of the jury. The nature and duration of the restraints employed shall be those reasonably necessary under the circumstances. All reasonable efforts shall be employed to conceal such restraints from the view of the jurors. Upon request, the judicial authority shall instruct the jurors that restraint is not to be considered in assessing the evidence or in the determination of the case.

(P.B. 1978-1997, Sec. 892.)

Sec. 42-47. —Removal of Disruptive Defendant

Upon the direction of the judicial authority, a defendant may be removed from the courtroom during trial or hearing when the defendant's conduct has become so disruptive that the trial or hearing cannot proceed in an orderly manner. The judicial authority shall advise the defendant that the trial or hearing will continue in the defendant's absence. A defendant who has been removed shall remain present in the court building while the trial or hearing is in progress. At the time of the defendant's removal, the judicial authority shall advise the defendant that the defendant may request to be returned to the courtroom if, at the time of making such request, the defendant assures the judicial authority that the defendant shall not engage in disruptive conduct. Whenever the defendant is removed, the judicial authority shall instruct the jurors that such removal is not to be considered in assessing the evidence or in the determination of the case.

(P.B. 1978-1997, Sec. 893.)

Sec. 42-48. —Cautioning Parties and Witnesses

Whenever appropriate in the light of the issues in the case or its notoriety, the judicial authority may direct the parties, their counsel and the witnesses not to make extrajudicial statements relating to the case or the issues in the case for dissemination by any means of public communication.

(P.B. 1978-1997, Sec. 894.)

Sec. 42-49. Closure of Courtroom in Criminal Cases

(Amended May 14, 2003, to take effect July 1, 2003.)

(a) Except as otherwise provided by law, there shall be a presumption that courtroom proceedings shall be open to the public.

(b) Except as provided in this section and except as otherwise provided by law, the judicial authority shall not order that the public be excluded from any portion of a courtroom proceeding.

(c) Upon written motion of the prosecuting authority or of the defendant, or upon its own motion, the judicial authority may order that the

public be excluded from any portion of a courtroom proceeding only if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in attending such proceeding. The judicial authority shall first consider reasonable alternatives to any such order and any such order shall be no broader than necessary to protect such overriding interest. An agreement of the parties to close the courtroom shall not constitute a sufficient basis for the issuance of such an order.

(d) In connection with any order issued pursuant to subsection (c) of this section, the judicial authority shall articulate the overriding interest being protected and shall specify its findings underlying such order. If any findings would reveal information entitled to remain confidential, those findings may be set forth in a sealed portion of the record. The time, date and scope of any such order shall be set forth in a writing signed by the judicial authority which upon issuance the court clerk shall immediately enter in the court file and publish by posting on a bulletin board adjacent to the clerk's office and accessible to the public. The judicial authority shall order that a transcript of its decision be included in the file or prepare a memorandum setting forth the reasons for its order.

(e) A motion to close a courtroom proceeding shall be calendared so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The notice of the time, date and place of the hearing on the motion shall be posted on a bulletin board adjacent to the clerk's office and accessible to the public. The motion itself may be filed under seal, where appropriate, by leave of the judicial authority.

(f) With the exception of orders concerning any session of court conducted pursuant to General Statutes § 54-76h or any other provision of the General Statutes under which the court is authorized to close courtroom proceedings, whether at a pretrial or trial stage, no order excluding the public from any portion of a courtroom proceeding shall be effective until seventy-two hours after it has been issued. Any person affected by such order shall have the right to the review of such order by the filing of a petition for review with the Appellate Court within seventy-two hours from the issuance of such order. The timely filing of any petition for review shall stay such order.

(P.B. 1978-1997, Sec. 895.) (Amended June 28, 1999, to take effect Jan. 1, 2000; amended May 14, 2003, to take effect July 1, 2003; amended June 21, 2004, to take effect Jan. 1, 2005.)

HISTORY—2003: Prior to 2003, when both the title and text were amended, Section 42-49 read: "**—Exclusion of the Public; Sealing or Limiting Disclosure of Documents**

"(a) Except as provided in this section and except as otherwise provided by law, including Sections 36-2, 40-29 and 40-40 through 40-43 and General Statutes § 54-33c, the judicial authority shall not order that the public, which may include the news media, be excluded from any portion of a court proceeding and shall not order that any files, affidavits, documents, or other materials on file with the court or filed in connection with a court proceeding be sealed or their disclosure limited.

"(b) Upon motion of the prosecuting authority or of the defendant, or upon its own motion, the judicial authority may order that the public be excluded from any portion of a court proceeding and may order that files, affidavits, documents or other materials on file with the court or filed in connection with a court proceeding be sealed or their disclosure limited if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in attending such proceeding or in viewing such materials. Any such order shall be no broader than necessary to protect such overriding interest.

"(c) In connection with any order issued pursuant to subsection (b) of this section, the judicial authority shall, on the record in open court, articulate the overriding interest being protected and shall specify its findings underlying such order. The time and date of any such order shall be entered by the court clerk in the court file together with such order.

"(d) With the exception of orders concerning any session of court conducted pursuant to General Statutes § 54-76h or any other provision of the General Statutes under which the court is authorized to close proceedings, whether at a pretrial or trial stage, no order excluding the public from any portion of a proceeding shall be effective until seventy-two hours after it has been issued. Any person affected by such order shall have the right to the review of such order by the filing of a petition for review with the Appellate Court within seventy-two hours from the issuance of such order. The timely filing of any petition for review shall stay such order. (See General Statutes § 51-164x.)

"(e) With the exception of orders concerning the disclosure of any documents pursuant to General Statutes § 54-33c or any other provision of the General Statutes under which the court is authorized to seal or limit the disclosure of files, affidavits, documents or materials, whether at a pretrial or trial stage, and any order issued pursuant to a court rule that seals or limits the disclosure of any affidavit in support of an arrest warrant, any person affected by a court order that seals or limits the disclosure of any files, documents or other materials on file with the court or filed in connection with a court proceeding, shall have the right to the review of such order by the filing of a petition for review with the Appellate Court within seventy-two hours from the issuance of such order. Nothing under this subsection shall operate as a stay of such sealing order."

COMMENTARY—2003: The public and press enjoy a right of access to attend trials in criminal cases. *Press-Enterprise Co.* v. *Superior Court*, 478 U.S. 1, 10, 106 S. Ct. 2735, 92 L. Ed. 2d 1 (1986) (*Press-Enterprise II*); *Globe Newspaper Co.* v. *Superior Court*, 457 U.S. 596, 606, 102 S. Ct. 2613, 73 L. Ed. 2d 248 (1982). This right is well settled in the common law and has been held to be implicit in the first amendment rights protecting the freedom of speech, of the press, of peaceable assembly and to petition the government for a redress of grievances. *Globe Newspaper Co.* v. *Superior Cour*t, supra, 603; *Richmond Newspapers, Inc.* v. *Virginia*, 448 U.S. 555, 575, 100 S. Ct. 2814, 65 L. Ed. 2d 973 (1980); see generally *Press-Enterprise II*, supra, 6–13; see also *In re Matter of the New York Times C*o., 828 F.2d 110, 113 (2d Cir. 1987). In

Richmond Newspapers, Inc. v. *Virginia*, supra, 564, the court explained that "throughout its evolution, the trial has been open to all who care to observe."

The guarantee of open public proceedings in criminal trials applies as well to voir dire and pretrial proceedings. *Press-Enterprise Co*. v. *Superior Court*, 464 U.S. 501, 505, 104 S. Ct. 819, 78 L. Ed. 2d 248 (1984) (*Press-Enterprise I*); *United States* v. *Cojab*, 996 F.2d 1404, 1407 (2d Cir. 1993); *United States* v. *Haller*, 837 F.2d 84, 86 (2d Cir. 1988); *United States* v. *Gerena*, 703 F. Supp. 211, 213 (D. Conn. 1988). The presumption of openness may be overcome only by an overriding interest based on findings that closure is essential to preserve higher values and is narrowly tailored to serve that interest. The interest is to be articulated along with findings specific enough that a reviewing court can determine whether the closure order was entered properly. *Press-Enterprise I*, supra, 510; *United States* v. *Haller*, supra, 87; *Doe* v. *Meachum*, 126 F.R.D. 452, 455 (D. Conn. 1989); *State* v. *Kelly*, 208 Conn. 365, 372, 545 A.2d 1048 (1988). Such findings may be made under seal when necessary. *United States* v. *Haller,* supra, 87; see *In re Application of the Herald Co.*, 734 F.2d 93, 100 (2d Cir. 1984) (closure of suppression hearing should be allowed only upon showing of significant risk of prejudice to defendant's right to fair trial, if there is danger to persons or property, or in connection with significant activities entitled to confidentiality, such as undercover investigations); see also *United States* v. *Brooklier*, 685 F.2d 1162, 1168–69 (9th Cir. 1982) (since purpose of articulated findings is to enable appellate court to determine whether order was properly entered, findings must be sufficiently specific to show that public proceedings would result in irreparable damage to defendant's right to fair trial, that no alternative to closure would adequately protect defendant's right to fair trial, and that closure would protect that right).

Since the circumstances of a particular case may affect the significance of the interest sought to be protected, the requirement that specific findings justifying closure be articulated mandates a case-by-case analysis of the interest involved. *Globe Newspaper Co*. v. *Superior Court*, supra, 457 U.S. 607–608 (where welfare of minor child is at issue, factors to be weighed in determining whether closure is warranted include minor victim's age, psychological maturity and understanding, nature of crime, desires of victim, and interests of parents and relatives). A case-by-case analysis of the interests involved ensures that the constitutional right of access to trials will not be restricted except where absolutely necessary. Id., 609. "For a case-by-case approach to be meaningful, representatives of the press and general public 'must be given an opportunity to be heard on the question of their exclusion.' " Id., 609 n.25, quoting *Gannett Co. v. DePasquale*, 443 U.S. 368, 401, 99 S. Ct. 2898, 61 L. Ed. 2d 608 (1979) (Powell, J., concurring). Except in extraordinary circumstances, the press and public must have a means of learning of the closure or sealing order. See *United States* v. *Haller*, supra, 837 F.2d 87. "[A] motion for courtroom closure should be docketed in the public docket files maintained in the court clerk's office. . . . The motion itself may be filed under seal, when appropriate, by leave of court . . . ." (Citation omitted.) *In re Application of the Herald Co*., supra, 734 F.2d 102; see also *In re Knight Publishing Co*., 743 F.2d 231, 235 (4th Cir. 1984); *In re Knoxville News-Sentinel Co.*, 723 F.2d 470, 474–76 (6th Cir. 1983). Because this section no longer deals with the sealing of documents, subsection (e) has been transferred to Section 42-49A.

HISTORY—2005: Prior to 2005, the third sentence of subsection (d) read: "The time, date and scope of any such order shall be in writing and shall be signed by the judicial authority and be entered by the court clerk in the court file."

COMMENTARY—2005: As used in subsection (a) above, the words "Except as otherwise provided by law" are intended to exempt from the operation of this rule all established procedures for the closure of courtroom proceedings as required or permitted by statute; e.g., General Statutes §§ 19a-583 (a) (10) (D) (pertaining to court proceedings as to disclosure of confidential HIV-related information), 36a-21 (b) (pertaining to court proceedings at which certain records of the Department of Banking are disclosed), 46b-11 (pertaining to hearings in family relations matters), 54-86c (b) (pertaining to the disclosure of exculpatory information or material), 54-86f (pertaining to the admissibility of evidence of sexual conduct) and 54-86g (pertaining to the testimony of a victim of child abuse); other rules of practice; e.g., Practice Book Section 40-43; and/or controlling state or federal case law.

The above amendment to subsection (d) establishes a mechanism by which the public and the press, who are empowered by this rule to object to pending motions to close the courtroom in criminal matters, will receive timely notice of the court's disposition of such motions. General Statutes § 51-164x (a) gives any person affected by a court closure order in a criminal action the right to the review of such order by filing a petition for review with the Appellate Court within seventy-two hours from the issuance of the order.

Sec. 42-49A. Sealing or Limiting Disclosure of Documents in Criminal Cases

(a) Except as otherwise provided by law, there shall be a presumption that documents filed with the court shall be available to the public.

(b) Except as provided in this section and except as otherwise provided by law, including Sections 36-2, 40-29 and 40-40 through 40-43 and General Statutes § 54-33c, the judicial authority shall not order that any files, affidavits, documents, or other materials on file with the court or filed in connection with a court proceeding be sealed or their disclosure limited.

(c) Upon written motion of the prosecuting authority or of the defendant, or upon its own motion, the judicial authority may order that files, affidavits, documents, or other materials on file or lodged with the court or in connection with a court proceeding be sealed or their disclosure limited only if the judicial authority concludes that such order is necessary to preserve an interest which is determined to override the public's interest in viewing such materials. The judicial authority shall first consider reasonable alternatives to any such order and any such order shall be no broader than necessary to protect such overriding interest. An agreement of the parties to seal or limit the disclosure of documents on file with the court or filed in connection with a court proceeding shall not constitute a sufficient basis for the issuance of such an order.

(d) In connection with any order issued pursuant to subsection (c) of this section, the judicial authority shall articulate the overriding interest being protected and shall specify its findings underlying such order and the duration of such order. If any finding would reveal information entitled to remain confidential, those findings may be

set forth in a sealed portion of the record. The time, date, scope and duration of any such order shall be set forth in a writing signed by the judicial authority which upon issuance the court clerk shall immediately enter in the court file and publish by posting on a bulletin board adjacent to the clerk's office and accessible to the public. The judicial authority shall order that a transcript of its decision be included in the file or prepare a memorandum setting forth the reasons for its order.

(e) Except as otherwise ordered by the judicial authority, a motion to seal or limit the disclosure of affidavits, documents, or other materials on file or lodged with the court or in connection with a court proceeding shall be calendared so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The notice of the time, date and place of the hearing on the motion shall be posted on a bulletin board adjacent to the clerk's office and accessible to the public. The procedures set forth in Sections 7-4B and 7-4C shall be followed in connection with a motion to file affidavits, documents or other materials under seal or to limit their disclosure.

(f) (1) A motion to seal the contents of an entire court file shall be placed on a calendar to be held not less than fifteen days following the filing of the motion, unless the judicial authority otherwise directs, so that notice to the public is given of the time and place of the hearing on the motion and to afford the public an opportunity to be heard on the motion under consideration. The notice of the time, date and place of the hearing on the motion shall be posted on a bulletin board adjacent to the clerk's office and accessible to the public. The procedures set forth in Sections 7-4B and 7-4C shall be followed in connection with such motion.

(2) The judicial authority may issue an order sealing the contents of an entire court file only upon a finding that there is not available a more narrowly tailored method of protecting the overriding interest, such as redaction or sealing a portion of the file. The judicial authority shall state in its decision or order each of the more narrowly tailored methods that was considered and the reason each such method was unavailable or inadequate.

(g) With the exception of orders concerning the disclosure of any documents pursuant to General Statutes § 54-33c or any other provision of the General Statutes under which the court is authorized to seal or limit the disclosure of files, affidavits, documents, or materials, whether at a pretrial or trial stage, and any order issued pursuant to a court rule that seals or limits the disclosure of any affidavit in support of an arrest warrant, any person affected by a court order that seals or limits the disclosure of any files, documents, or other materials on file with the court or filed in connection with a court proceeding, shall have the right to the review of such order by the filing of a petition for review with the Appellate Court within seventy-two hours from the issuance of such order. Nothing under this subsection shall operate as a stay of such sealing order.

(h) The provisions of this section shall not apply to pretrial settlement conferences or negotiations or to documents submitted to the court in connection with such conferences or negotiations.

(Adopted May 14, 2003, to take effect July 1, 2003; amended June 21, 2004, to take effect Jan. 1, 2005.)

COMMENTARY—2003: The public and press enjoy a right of access to attend trials in criminal cases and to access documents filed in connection with such cases. *Press-Enterprise Co.* v. *Superior Court*, 478 U.S. 1, 10, 106 S. Ct. 2735, 92 L. Ed. 2d 1 (1986) (*Press-Enterprise II*); *Globe Newspaper Co.* v. *Superior Court*, 457 U.S. 596, 606, 102 S. Ct. 2613, 73 L. Ed. 2d 248 (1982); *Associated Press* v. *United States District Court*, 705 F.2d 1143, 1145 (9th Cir. 1983); *United States v. Gerena*, 703 F. Supp. 211, 213 (D. Conn. 1988), citing *In re Matter of the New York Times Co.*, 828 F.2d 110, 114 (2d Cir. 1987). This right is well settled in the common law and has been held to be implicit in the first amendment rights protecting the freedom of speech, of the press, of peaceable assembly and to petition the government for a redress of grievances. *Globe Newspaper Co.* v. *Superior Court*, supra, 604–605; *Richmond Newspapers, Inc.* v. *Virginia*, 448 U.S. 555, 575, 100 S. Ct. 2814, 65 L. Ed. 2d 973 (1980); see generally *Press-Enterprise II*, supra, 6–13; see also *In re Matter of the New York Times Co.*, supra, 113; *United States* v. *Gerena*, supra, 213.

The right of access to documents is not absolute. *United States* v. *Gerena*, supra, 703 F. Supp. 213. The presumption of openness may be overcome only by an overriding interest based on findings that denying access is essential to preserve higher values and is narrowly tailored to serve that interest. The interest is to be articulated along with findings specific enough that a reviewing court can determine whether the closure order was entered properly. Id., citing *Press-Enterprise II*, supra, 478 U.S. 9–10; see also *United States* v. *Haller*, 837 F.2d 84, 87 (2d Cir. 1988); *Doe* v. *Meachum*, 126 F.R.D. 452, 455 (D. Conn. 1989); *State* v. *Kelly*, 208 Conn. 365, 372, 545 A.2d 1048 (1988). Such findings may be made under seal when necessary. *United States* v. *Haller*, supra, 87.

Since the circumstances of a particular case may affect the significance of the interest sought to be protected, the requirement that specific findings justifying closure or sealing be articulated mandates a case-by-case analysis of the interest involved. *Globe Newspaper Co.* v. *Superior Court*, supra, 457 U.S. 607–608; *In re Knight Publishing Co.*, 743 F.2d 231, 235 (4th Cir. 1984); see *Publicker Industries, Inc.* v. *Cohen*, 733 F.2d 1059, 1070–71 (3d Cir. 1984). "For a case-by-case approach to be meaningful, representatives of the press and general public 'must be given an opportunity to be heard on the question of their exclusion.' " *Globe Newspaper Co.* v. *Superior Court*, supra, 609 n.25, quoting *Gannett Co.* v. *DePasquale*, 443 U.S. 368, 401, 99 S. Ct. 2898, 61 L. Ed. 2d 608 (1979) (Powell, J., concurring). Except in extraordinary circumstances, the press and public must have a means of learning of the closure or sealing order. See *United States* v. *Haller*, supra, 837 F.2d 87; *In re Knight Publishing Co.*, supra,

235. In *In re the Application of the Herald Co.*, 734 F.2d 93, 102 (2d Cir. 1984), the court stated that "a motion for courtroom closure should be docketed in the public docket files maintained in the court clerk's office. . . . The motion itself may be filed under seal, when appropriate, by leave of the court . . . ." (Citation omitted.) See also *In re Knight Publishing Co.*, supra, 235; *In re Knoxville News-Sentinel Co.*, 723 F.2d 470, 474–76 (6th Cir. 1983).

It is intended that the use of pseudonyms in place of the name of a party or parties not be permitted in criminal matters.

HISTORY—2005: Prior to 2005, the third sentence of subsection (d) read: "The time, date, scope and duration of any such order shall forthwith be reduced to writing and be signed by the judicial authority and be entered by the court clerk in the court file."

COMMENTARY—2005: As used in subsection (a) above, the words "Except as otherwise provided by law" are intended to exempt from the operation of this rule all established procedures for the sealing or ex parte filing, in camera inspection and/or nondisclosure to the public of documents, records and other materials, as required or permitted by statute; e.g., General Statutes §§ 12-242vv (pertaining to taxpayer information), 52-146c et seq. (pertaining to the disclosure of psychiatric records) and 54-56g (pertaining to the pretrial alcohol education program); other rules of practice; e.g., Practice Book Sections 7-18, 13-5 (6) through (8) and 40-13 (c); and/or controlling state or federal case law; e.g., *Matza* v. *Matza*, 226 Conn. 166, 627 A.2d 414 (1993) (establishing a procedure whereby an attorney seeking to withdraw from a case due to his client's anticipated perjury at trial may support his motion to withdraw by filing a sealed affidavit for the court's review).

The above amendment to subsection (d) establishes a mechanism by which the public and the press, who are empowered by this rule to object to pending motions to seal files or limit the disclosure of documents in criminal matters, will receive timely notice of the court's disposition of such motions. General Statutes § 51-164x (c) gives any person affected by a court order sealing a file or limiting the disclosure of a document in a criminal action the right to the review of such order by filing a petition for review with the Appellate Court within seventy-two hours from the issuance of the order.

The above section shall not apply to motions and orders made pursuant to General Statutes § 54-33c concerning the limitation of the disclosure of affidavits in support of search warrant applications.

Sec. 42-50. Motion for Judgment of Acquittal; After Mistrial

Upon the declaration of a mistrial pursuant to Sections 42-43 through 42-45, at any time after the close of the state's case-in-chief, the judicial authority, upon motion of the defendant or upon its own motion, may order the entry of a judgment of acquittal as to any offense charged, or any lesser included offense, for which the evidence would not reasonably permit a finding of guilty beyond a reasonable doubt. The acquittal does not bar prosecution for any offense as to which the judicial authority does not direct an acquittal.

(P.B. 1978-1997, Sec. 898.)

Sec. 42-51. —Upon Verdict of Guilty

If the jury returns a verdict of guilty, the judicial authority, upon motion of the defendant or upon its own motion, shall order the entry of a judgment of acquittal as to any offense specified in the verdict, or any lesser included offense, for which the evidence does not reasonably permit a finding of guilty beyond a reasonable doubt. If the judicial authority directs an acquittal for the offense specified in the verdict, but not for a lesser included offense, it may either:

(1) Modify the verdict accordingly; or

(2) Grant the defendant a new trial as to the lesser included offense.

(P.B. 1978-1997, Sec. 899.)

Sec. 42-52. —Time for Filing Motion for Judgment of Acquittal

Unless the judicial authority, in the interests of justice, permits otherwise, a motion for a judgment of acquittal shall be made within five days after a mistrial or a verdict or within any further time the judicial authority allows during the five day period.

(P.B. 1978-1997, Sec. 900.)

Sec. 42-53. Motion for New Trial; In General

(a) Upon motion of the defendant, the judicial authority may grant a new trial if it is required in the interests of justice. Unless the defendant's noncompliance with these rules or with other requirements of law bars his or her asserting the error, the judicial authority shall grant the motion:

(1) For an error by reason of which the defendant is constitutionally entitled to a new trial; or

(2) For any other error which the defendant can establish was materially injurious to him or her.

(b) If the trial was by the court and without a jury, the judicial authority, with the defendant's consent and instead of granting a new trial, may vacate any judgment entered, receive additional evidence, and direct the entry of a new judgment.

(P.B. 1978-1997, Sec. 902.)

Sec. 42-54. —Time for Filing Motion for New Trial

Unless otherwise permitted by the judicial authority in the interests of justice, a motion for a new trial shall be made within five days after a verdict or finding of guilty or within any further time the judicial authority allows during the five-day period.

(P.B. 1978-1997, Sec. 903.)

Sec. 42-55. —Time for Filing Motion for New Trial Based on Newly Discovered Evidence

A request for a new trial on the ground of newly discovered evidence shall be called a petition for a new trial and shall be brought in accordance with General Statutes § 52-270. The judicial authority may grant the petition even though an appeal is pending.

(P.B. 1978-1997, Sec. 904.)

Sec. 42-56. Motion in Arrest of Judgment

On motion of the defendant, the judicial authority shall arrest judgment if the indictment or information does not charge an offense or if the judicial authority was without jurisdiction of the offense charged. The motion in arrest of judgment shall be made prior to the imposition of sentence.

(P.B. 1978-1997, Sec. 905.)

CHAPTER 43
SENTENCING, JUDGMENT AND APPEAL

Sec.
43-1. Posttrial Release Following Appeal by Prosecuting Authority
43-2. Posttrial Release Following Conviction
43-3. Presentence Investigation and Report; Waiver; Alternative Incarceration and Plan
43-4. —Scope of Investigation or Assessment
43-5. —Participation of Defense Counsel in Report Preparation
43-6. —Period of Continuance To Complete Report
43-7. —Persons Receiving Report
43-8. —Prohibition against Making Copies
43-9. —Use and Disclosure of Reports
43-10. Sentencing Hearing; Procedures To Be Followed
43-11. —Role at Sentencing of Prosecuting Authority
43-12. —Role of Prosecuting Authority at Sentencing when There Was a Plea Agreement
43-13. —Familiarization with Report by Defense Counsel
43-14. —Correction of Report Indicated by Defense Counsel
43-15. —Undisclosed Plea Agreement
43-16. —Submission of Supplementary Documents by Defense Counsel
43-17. Payment of Fines; Inquiry concerning Ability
43-18. —Incarceration for Failure To Pay
43-19. —Payment and Satisfaction
43-20. —Mittimus
43-21. Reduction of Sentence or Discharge of Defendant by Sentencing Court
43-22. Correction of Illegal Sentence
43-23. Sentence Review; Appearance of Counsel
Sec.
43-24. —Time for Filing Application for Sentence Review
43-25. —Preparation of Documents by Clerk
43-26. —Additional Material for Sentence Review
43-27. —Hearing on Sentence Review Application
43-28. —Scope of Review
43-29. Revocation of Probation
43-29A. Notice of Motions To Modify or Enlarge Conditions of Probation or Conditional Discharge or Terminate Conditions of Probation or Conditional Discharge
43-30. Notification of Right To Appeal
43-31. Stay of Imprisonment upon Appeal
43-32. Stay of Probation upon Appeal
43-33. Appointment of Initial Counsel for Appeal by Indigent Defendant
43-34. Attorney's Finding That Appeal Is Wholly Frivolous; Request by Initial Counsel To Withdraw
43-35. —Submission of Memorandum of Law
43-36. —Finding That Appeal Is Frivolous
43-37. —Finding That Appeal Is Not Frivolous
43-38. —Disqualification of Presiding Judge
43-39. Speedy Trial; Time Limitations
43-40. —Excluded Time Periods in Determining Speedy Trial
43-40A. —Included Time Period in Determining Speedy Trial; Failure To Comply with Disclosure by Prosecuting Authority
43-41. —Motion for Speedy Trial; Dismissal
43-42. —Definition of Commencement of Trial
43-43. —Waiver of Speedy Trial Provisions

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 43-1. Posttrial Release Following Appeal by Prosecuting Authority

The defendant shall not be denied liberty pending determination of an appeal by the state from any judgment of acquittal or from any judgment not resulting in a sentence, the effect of which is to terminate prosecution.

(P.B. 1978-1997, Sec. 907.)

Sec. 43-2. Posttrial Release Following Conviction

(a) A person who has been convicted of any offense and who either is awaiting sentence or has given oral or written notice of his or her intention to appeal or file a petition for certification or a writ of certiorari may be released, subject to General Statutes § 54-95, pending final disposition of his or her case upon sentence or appeal, unless the judicial authority finds custody to be necessary to provide reasonable assurance of the person's appearance in court, upon the first of the following conditions of release found sufficient by the judicial authority to provide such assurance:

(1) His or her execution of a written promise to appear;

(2) His or her execution of a bond without surety in no greater amount than necessary;

(3) His or her execution of a bond with surety in no greater amount than necessary;

(4) His or her deposit of a sum of money equal to the amount called for by the bond required by the judicial authority;

(5) His or her pledge of real property, the equity of which shall be calculated, and be in such an amount, as set forth in Section 38-9.

(b) The judicial authority may order that the bond in effect at that time continue until the imposition of sentence, and it may order an increase in the amount of such bond. It shall also have authority to modify or revoke at any time the terms and conditions of release.

(c) The provisions of Section 38-7 shall apply to condition (4) herein, except that the cash bail shall be deposited with the clerk of the court having jurisdiction of the offense with which such person stands convicted or any assistant clerk of such court who is bonded in the same manner as the clerk or any person or officer authorized to accept bail.

(P.B. 1978-1997, Sec. 908.)

Sec. 43-3. Presentence Investigation and Report; Waiver; Alternative Incarceration and Plan

(a) If the defendant is convicted of a crime other than a capital felony, the punishment for which may include imprisonment for more than one year, the judicial authority shall order a presentence investigation, or the supplementation of any existing presentence investigation report. The judicial authority may, in its discretion, order a presentence investigation for a defendant convicted of any crime or offense.

(b) A defendant who is convicted of a crime and is not eligible for sentence review pursuant to General Statutes § 51-195 may, with the consent of the sentencing judge and the prosecuting authority, waive the presentence investigation.

(c) Pursuant to General Statutes § 53a-39a, the judicial authority may, in its discretion, order an assessment for placement in an alternate incarceration program to be conducted by the Office of Adult Probation.

(P.B. 1978-1997, Sec. 910.)

Sec. 43-4. —Scope of Investigation or Assessment

(a) Whenever an investigation is required or an assessment is ordered or both, the probation officer shall promptly inquire into the attitude of the complainant or the victim, or of the immediate family where possible in cases of homicide, and the criminal record, social history and present condition of the defendant. Such investigation shall include an inquiry into the circumstances of the offense and any damages suffered by the victim, including medical expenses, loss of earnings and property loss. Such assessment shall include an inquiry into the defendant's prior participation in any release programs and the defendant's attitude about participation in an alternate incarceration program. When it is desirable in the opinion of the judicial authority or the investigating authority, such investigation or assessment shall include a physical and mental examination of the defendant.

(b) If an assessment includes a recommendation for placement in an alternate incarceration program, it shall include, as an attachment, a proposed alternate incarceration plan. A current or updated presentence investigation report may be used in lieu of an alternate incarceration assessment report provided attached thereto is a statement by the investigating authority recommending whether or not the defendant should participate in an alternate incarceration program and any recommendation that the defendant participate includes a proposed alternate incarceration plan.

(P.B. 1978-1997, Sec. 911.)

Sec. 43-5. —Participation of Defense Counsel in Report Preparation

Defense counsel, on a prompt request, shall be notified of the time when the defendant shall be interviewed by probation officers regarding a presentence or alternate incarceration assessment report or both for the judicial authority and may be present:

(1) To assist in answering inquiries of the probation officer;

(2) To assist in resolving factual issues and questions;

(3) To protect the defendant against incrimination regarding other pending indictments or investigations; and

(4) To protect the defendant's rights with respect to an appeal of conviction.

(P.B. 1978-1997, Sec. 912.)

Sec. 43-6. —Period of Continuance To Complete Report

When it is necessary to continue a case for sentencing, the judicial authority may consider the period of time necessary to complete the investigation or assessment or both and report, and any reasonable request, and shall set a date for sentencing accordingly.

(P.B. 1978-1997, Sec. 913.)

Sec. 43-7. —Persons Receiving Report

The presentence investigation or alternate incarceration assessment report or both shall be provided to the judicial authority, and copies thereof shall be provided to the prosecuting authority and to the defendant or his or her counsel in sufficient time for them to prepare adequately for the sentencing hearing, and in any event, no less than forty-eight hours prior to the date of the sentencing. Upon request of the defendant, the sentencing hearing shall be continued for a reasonable

time if the judicial authority finds that the defendant or his or her counsel did not receive the presentence investigation or alternate incarceration assessment report or both within such time.

(P.B. 1978-1997, Sec. 915.) (Amended June 26, 2006, to take effect Jan. 1, 2007.)

Sec. 43-8. —Prohibition against Making Copies

No person shall, without the permission of the judicial authority, make or cause to be made any copy of any presentence investigation or alternate incarceration assessment report except as authorized by Sections 43-7 and 43-9.

(P.B. 1978-1997, Sec. 916.)

Sec. 43-9. —Use and Disclosure of Reports

The presentence investigation and alternate incarceration assessment reports shall not be public records and shall not be accessible to the public. They shall be available initially to the parties designated in Section 43-7 for use in the sentencing hearing and in any subsequent proceedings wherein the same conviction may be involved, and they shall be available at all times to the following:

(1) The Office of Adult Probation;

(2) The correctional or mental health institution to which the defendant is committed or may be committed;

(3) The Board of Pardons and Paroles;

(4) The sentence review division of the Superior Court;

(5) The Judicial Review Council;

(6) Any court of proper jurisdiction where it is relevant to any proceeding before such court. Such court may also order that the report be made available to counsel for the parties for the purpose of such proceeding;

(7) Counsel for the defendant and the prosecuting authority during negotiations relating to other offenses pending against the defendant or subsequently charged against the defendant;

(8) Counsel for the defendant in a sentence review hearing or habeas corpus proceeding upon counsel's request to the Department of Adult Probation;

(9) Counsel for the defendant and the prosecuting authority in connection with extradition proceedings; and

(10) Any other person or agency specified by statute. The prosecuting authority and counsel for the defendant shall retain a copy of the presentence investigation and alternate incarceration reports and may use the same in connection with any matter pertaining to actions by the entities defined in paragraphs (1) through (9) of this section, or for any other purpose for which permission is first obtained from any judicial authority. In all other respects, both the prosecuting authority and counsel for the defendant shall maintain the confidentiality of the information contained in the records. A defendant may obtain a copy of the presentence and alternate incarceration reports under proper application to a judicial authority in the judicial district in which sentence was imposed.

(P.B. 1978-1997, Sec. 917.) (Amended June 30, 2008, to take effect Jan. 1, 2009.)

Sec. 43-10. Sentencing Hearing; Procedures To Be Followed

Before imposing a sentence or making any other disposition after the acceptance of a plea of guilty or nolo contendere or upon a verdict or finding of guilty, the judicial authority shall, upon the date previously determined for sentencing, conduct a sentencing hearing as follows:

(1) The judicial authority shall afford the parties an opportunity to be heard and, in its discretion, to present evidence on any matter relevant to the disposition, and to explain or controvert the presentence investigation report, the alternate incarceration assessment report or any other document relied upon by the judicial authority in imposing sentence. When the judicial authority finds that any significant information contained in the presentence report or alternate incarceration assessment report is inaccurate, it shall order the Office of Adult Probation to amend all copies of any such report in its possession and in the clerk's file, and to provide both parties with an amendment containing the corrected information.

(2) The judicial authority shall allow the victim and any other person directly harmed by the commission of the crime a reasonable opportunity to make, orally or in writing, a statement with regard to the sentence to be imposed.

(3) The judicial authority shall allow the defendant a reasonable opportunity to make a personal statement in his or her own behalf and to present any information in mitigation of the sentence.

(4) In cases where guilt was determined by a plea, the judicial authority shall, pursuant to Section 39-7, be informed by the parties whether there is a plea agreement, and if so, the substance thereof.

(5) The judicial authority shall impose the sentence in the presence and hearing of the defendant, unless the defendant shall have waived his or her right to be present.

(6) In cases where sentence review is available, the judicial authority shall state on the record, in the presence of the defendant, the reasons for the sentence imposed.

(7) In cases where sentence review is available and where the defendant files an application for such review, the clerk shall promptly notify the official court reporter of such application pursuant to Section 43-24 and the official court reporter or court recording monitor shall file a copy of the transcript of the sentencing hearing with the review division within sixty days from the date the application for review is filed with the clerk.

(P.B. 1978-1997, Sec. 919.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 43-11. —Role at Sentencing of Prosecuting Authority

The prosecuting authority shall inform the judicial authority of the offenses for which the defendant is to be sentenced, shall give a brief summation of the facts relevant to each offense, shall disclose to the judicial authority any information in the files of the prosecuting authority that is favorable to the defendant and relevant to sentencing and shall state the basis for any recommendation which it chooses to make as to the appropriate sentence.

(P.B. 1978-1997, Sec. 921.)

Sec. 43-12. —Role of Prosecuting Authority at Sentencing when There Was a Plea Agreement

Where, as part of a plea agreement, the prosecuting authority has agreed to make representations or recommendations to the judicial authority regarding a defendant, or has made other agreements relating to the disposition of the charges against the defendant, it shall disclose to the judicial authority such representations or recommendations or any other terms of the plea agreement relevant to sentencing.

(P.B. 1978-1997, Sec. 922.)

Sec. 43-13. —Familiarization with Report by Defense Counsel

Defense counsel shall familiarize himself or herself with the contents of the presentence or alternate incarceration assessment report or both, including any evaluative summary, and any special medical or psychiatric reports pertaining to the client.

(P.B. 1978-1997, Sec. 924.)

Sec. 43-14. —Correction of Report Indicated by Defense Counsel

Defense counsel shall bring to the attention of the judicial authority any inaccuracy in the presentence or alternate incarceration assessment report of which he or she is aware or which the defendant claims to exist.

(P.B. 1978-1997, Sec. 925.)

Sec. 43-15. —Undisclosed Plea Agreement

Defense counsel shall disclose to the judicial authority any plea agreement that has not already been disclosed.

(P.B. 1978-1997, Sec. 926.)

Sec. 43-16. —Submission of Supplementary Documents by Defense Counsel

Defense counsel may submit such supplementary documents as such counsel thinks appropriate.

(P.B. 1978-1997, Sec. 927.)

Sec. 43-17. Payment of Fines; Inquiry concerning Ability

No person shall be incarcerated as a result of failure to pay a fine unless the judicial authority first inquires as to the person's ability to pay the fine.

(P.B. 1978-1997, Sec. 929.)

Sec. 43-18. —Incarceration for Failure To Pay

The judicial authority may, upon a finding that the defendant is able to pay the fine and that the nonpayment is wilful, order the defendant incarcerated for nonpayment of the fine.

(P.B. 1978-1997, Sec. 931.)

Sec. 43-19. —Payment and Satisfaction

A defendant incarcerated under Section 43-18, for wilful nonpayment of a fine, shall be released upon payment of the fine or when such defendant is otherwise discharged according to law.

(P.B. 1978-1997, Sec. 932.)

Sec. 43-20. —Mittimus

When a defendant has been sentenced to a term of imprisonment and ordered to pay a fine, the mittimus shall state that if the fine has not been paid by the time the sentence has been served the defendant may not continue to be incarcerated unless the judicial authority has found that the defendant is able to pay the fine and that the defendant's nonpayment is wilful.

(P.B. 1978-1997, Sec. 932A.)

Sec. 43-21. Reduction of Sentence or Discharge of Defendant by Sentencing Court

(Amended June 9, 2023, to take effect Jan. 1, 2024.)

(a) Except as provided in subsection (b) of this section, at any time during an executed period of incarceration, the judicial authority may, after a hearing and for good cause shown, reduce the sentence or order the defendant discharged or released on probation or on a conditional discharge for a period not to exceed that to which the defendant could have been sentenced originally.

(b) On and after October 1, 2021, at any time during the period of a sentence in which a defendant has been sentenced prior to, on, or after October 1, 2021, to an executed period of incarceration of more than seven years as a result of a plea agreement, including an agreement in which there is an agreed upon range of sentence, upon agreement of the defendant and the state's attorney to seek review of the sentence, the judicial authority may, after hearing and for good cause shown, reduce the sentence, order the defendant discharged, or order the defendant discharged on probation or conditional discharge for a period not to exceed that to which the defendant could have been originally sentenced.

(c) If, after a hearing pursuant to this section, the judicial authority denies a motion to reduce a defendant's sentence or discharge the defendant, the defendant may not file a subsequent motion for relief under this section until five years have elapsed from the date of the most recent decision denying such defendant relief pursuant to this section.

(d) The provisions of this section shall not apply to any portion of a sentence imposed that is a mandatory minimum sentence for an offense which may not be suspended or reduced by the court.

(e) At a hearing held by the judicial authority under this section, such judicial authority shall permit any victim of the crime to appear before the court or judge for the purpose of making a statement for the record concerning whether or not the sentence of the defendant should be reduced, the defendant should be discharged or the defendant should be discharged on probation or conditional discharge pursuant to subsection (a) or (b) of this section. In lieu of such appearance, the victim may submit a written statement to the judicial authority, and the judicial authority shall make such statement a part of the record at the hearing. For the purposes of this subsection, "victim" means the victim, the legal representative of the victim or a member of the deceased victim's immediate family.

(P.B. 1978-1997, Sec. 934.) (Amended June 9, 2023, to take effect Jan. 1, 2024.)

Sec. 43-22. Correction of Illegal Sentence

The judicial authority may at any time correct an illegal sentence or other illegal disposition, or it may correct a sentence imposed in an illegal manner or any other disposition made in an illegal manner.

(P.B. 1978-1997, Sec. 935.)

Sec. 43-23. Sentence Review; Appearance of Counsel

It is the responsibility of the counsel of record at the time of sentencing to represent the defendant at the hearing before the sentence review division of the Superior Court, unless, for exceptional reasons, such counsel is excused by the division.

(P.B. 1978-1997, Sec. 937.)

Sec. 43-24. —Time for Filing Application for Sentence Review

In cases where sentence review is available pursuant to General Statutes § 51-195, the defendant may file, within thirty days from the date that sentence is imposed or from the date that the defendant's suspended sentence is revoked, with the clerk of the court for the judicial district or geographical area in which the judgment was rendered, an application for review of sentence by the review division. The clerk shall notify the review division, the judge who imposed the sentence, the official court reporter, and all counsel of record upon the filing of the application for review. The official court reporter or court recording monitor shall prepare a transcript of the sentencing hearing in accordance with the provisions of Section 43-10.

(P.B. 1978-1997, Sec. 938.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 43-25. —Preparation of Documents by Clerk

The clerk of the court in which the application is filed shall forward the necessary documents to the review division.

(P.B. 1978-1997, Sec. 939.)

Sec. 43-26. —Additional Material for Sentence Review

The defendant, at the time the application for review is filed, may request the clerk to forward to the review division any documents in the possession of the clerk previously presented to the judicial authority at the time of the imposition of sentence.

(P.B. 1978-1997, Sec. 940.)

Sec. 43-27. —Hearing on Sentence Review Application

A hearing upon an application filed under Section 43-24 shall be conducted expeditiously upon receipt by the review division of the materials submitted by the clerk under Sections 43-23 through 43-28. The parties may file such briefs or memoranda as are appropriate to assist the division in the discharge of its duties. Counsel for the defendant and the defendant shall address the panel of

judges in support of the application. Upon request of the defendant the review division shall hear his or her application while an appeal or collateral review is pending.

(P.B. 1978-1997, Sec. 941.)

Sec. 43-28. —Scope of Review

The review division shall review the sentence imposed and determine whether the sentence should be modified because it is inappropriate or disproportionate in the light of the nature of the offense, the character of the offender, the protection of the public interest, and the deterrent, rehabilitative, isolative, and denunciatory purposes for which the sentence was intended.

(P.B. 1978-1997, Sec. 942.)

Sec. 43-29. Revocation of Probation

In cases where the revocation of probation is based upon a conviction for a new offense and the defendant is before the court or is being held in custody pursuant to that conviction, the revocation proceeding may be initiated by a motion to the court by a probation officer and a copy thereof shall be delivered personally to the defendant. All other proceedings for revocation of probation shall be initiated by an arrest warrant supported by an affidavit or by testimony under oath showing probable cause to believe that the defendant has violated any of the conditions of the defendant's probation or his or her conditional discharge or by a written notice to appear to answer to the charge of such violation, which notice, signed by a judge of the Superior Court, shall be personally served upon the defendant by a probation officer and contain a statement of the alleged violation. All proceedings thereafter shall be in accordance with the provisions of Sections 3-6, 3-9 and 37-1 through 38-23. At the revocation hearing, the prosecuting authority and the defendant may offer evidence and cross-examine witnesses. If the defendant admits the violation or the judicial authority finds from the evidence that the defendant committed the violation, the judicial authority may make any disposition authorized by law. The filing of a motion to revoke probation, issuance of an arrest warrant or service of a notice to appear, shall interrupt the period of the sentence as of the date of the filing of the motion, signing of the arrest warrant by the judicial authority or service of the notice to appear, until a final determination as to the revocation has been made by the judicial authority.

(P.B. 1978-1997, Sec. 943.) (Amended June 24, 2016, to take effect Jan. 1, 2017.)

Sec. 43-29A. Notice of Motions To Modify or Enlarge Conditions of Probation or Conditional Discharge or Terminate Conditions of Probation or Conditional Discharge

Whenever a motion to modify or enlarge the conditions of probation or conditional discharge is filed, and whenever a motion for termination of a sentence of probation or conditional discharge is filed, such motion shall be served prior to the hearing date upon the opposing party and, if the movant is not a probation officer, the appropriate probation officer, unless otherwise ordered by the judicial authority. Service of said motions shall be made on the defendant by delivering a copy to the defendant personally or by leaving it at his or her usual place of abode. Service of said motions may be made by any probation officer. Service of said motions shall be made on all other parties, and on the appropriate probation officer, in accordance with the provisions of Section 10-12 et seq.

(Adopted June 25, 2001, to take effect Jan. 1, 2002.)

Sec. 43-30. Notification of Right To Appeal

Where there has been a conviction after a trial, or where there has been an adverse decision upon an application for a writ of habeas corpus brought by or on behalf of one who has been convicted of a crime, it shall be the duty of the clerk of the court, immediately after the pronouncement of the sentence or the notice of a decision on the application for a writ of habeas corpus, to advise the defendant in writing of such rights as such defendant may have to an appeal, of the time limitations involved, and of the right of an indigent person who is unable to pay the cost of an appeal to apply for a waiver of fees, costs, and expenses and for the appointment of counsel to prosecute the appeal.

(P.B. 1978-1997, Sec. 945.)

Sec. 43-31. Stay of Imprisonment upon Appeal

A sentence of imprisonment shall be stayed if an appeal is taken and the defendant is released pursuant to Sections 43-1 and 43-2 pending disposition of the appeal, unless the judicial authority shall order otherwise.

(P.B. 1978-1997, Sec. 947.)

Sec. 43-32. Stay of Probation upon Appeal

Upon written motion of the defendant, an order placing the defendant on probation may be stayed if an appeal is taken. If it is not stayed, the judicial authority shall specify when the term of probation shall commence.

(P.B. 1978-1997, Sec. 948.)

Sec. 43-33. Appointment of Initial Counsel for Appeal by Indigent Defendant

(a) An indigent defendant who wishes to prosecute his or her appeal may apply to the court from which the appeal is taken for the appointment of counsel to prosecute the defendant's appeal and for a waiver of fees and costs, pursuant to Sections 63-7 and 44-1 through 44-5.

(b) The application for a waiver of costs and fees must be sent for investigation of the applicant's indigence to the public defender's office in the court from which the appeal is taken. The judicial authority shall assign the application for hearing within twenty days after filing unless otherwise ordered by the judicial authority for good cause shown. At least ten days before the hearing, the clerk's office shall notify in writing trial counsel, the state's attorney, the trial public defender's office to which the application had been sent for investigation and the chief of legal services of the public defender's office, of the date of such hearing. The lack of timely notification to any of the above parties shall result in a continuance of the hearing until proper and timely notification has been completed.

(c) The application for the appointment of counsel to prosecute the defendant's appeal shall be assigned to the same date and hearing as the application for waiver of fees, costs and expenses, and the judicial authority shall decide both applications at the same time. If trial counsel is not to be the assigned appellate counsel, the judicial authority shall inform and order trial counsel to cooperate fully with appellate counsel. If the chief of legal services of the public defender's office is to be assigned as appellate counsel, unless otherwise ordered by the court, trial counsel shall be deemed to have "cooperated fully" if counsel has delivered to the chief of legal services: a complete appellate worksheet, which shall be provided by the chief of legal services; and an electronic copy of trial counsel's file. Failure to fully cooperate with appellate counsel will result in a short continuance of the applications for appellate counsel and for the waiver of fees, costs and expenses until cooperation is completed, or, if full cooperation is not completed within a reasonable time, sanctions against trial counsel may be imposed.

(d) The judicial authority shall act promptly on the applications following the hearing. Upon determination by the judicial authority that a defendant in a criminal case is indigent, the court to which the fees required by statute or rule are to be paid may (1) waive payment by the defendant of fees specified by statute and of taxable costs, and waive the requirement of Section 60-9 concerning the furnishing of security for costs upon appeal, (2) order that the necessary expenses of prosecuting the appeal be paid by the state, and (3) appoint appellate counsel and permit the withdrawal of the trial attorney's appearance provided the judicial authority is satisfied that that attorney has cooperated fully with appellate counsel in the preparation of the defendant's appeal.

(P.B. 1978-1997, Sec. 950.) (Amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 43-34. Attorney's Finding That Appeal Is Wholly Frivolous; Request by Initial Counsel To Withdraw

When the defendant is represented at trial by the public defender or has counsel appointed to prosecute the appeal under the provisions of Section 43-33 and such public defender or counsel, after a conscientious examination of the case, finds that such an appeal would be wholly frivolous, counsel shall advise the presiding judge by filing a motion for leave to withdraw from the case.

(P.B. 1978-1997, Sec. 952.) (Amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 43-35. —Submission of Memorandum of Law

(Amended June 23, 2017, to take effect Jan. 1, 2018.)

(a) At the time such motion for leave to withdraw is filed, counsel shall submit to the presiding judge a memorandum of law outlining anything in the record that might arguably support the appeal and the factual and legal basis for the conclusion that an appeal would be wholly frivolous.

(b) Any motion for leave to withdraw and supporting memorandum of law shall be filed under seal and provided to the defendant. Counsel shall serve opposing counsel with notice that a motion for leave to withdraw has been filed but shall not serve opposing counsel with a copy of the motion or any supporting memorandum of law. The defendant shall have thirty days from the date the motion and supporting memorandum are filed to file a response with the court.

(P.B. 1978-1997, Sec. 953.) (Amended June 23, 2017, to take effect Jan. 1, 2018.)

Sec. 43-36. —Finding That Appeal Is Frivolous

The presiding judge shall fully examine memorandum of law of counsel and the defendant, together with any relevant portions of the record and transcript of the trial. If, after such examination, the presiding judge concludes that the defendant's appeal is wholly frivolous, such judge may grant counsel's motion to withdraw and permit the defendant to proceed as a self-represented party. The presiding judge shall file a

memorandum under seal setting forth the basis for the finding that the appeal is wholly frivolous.

(P.B. 1978-1997, Sec. 954.) (Amended June 23, 2017, to take effect Jan. 1, 2018; amended June 13, 2019, to take effect Jan. 1, 2020.)

Sec. 43-37. —Finding That Appeal Is Not Frivolous

If after a full examination pursuant to Section 43-36 the presiding judge concludes that the defendant's appeal is not wholly frivolous, such judge may allow counsel to withdraw and appoint new counsel to represent the defendant, or may order counsel of record to proceed with the appeal.

(P.B. 1978-1997, Sec. 955.)

Sec. 43-38. —Disqualification of Presiding Judge

Any presiding judge who was also the trial judge shall refer the matter to the administrative judge in the judicial district for assignment to another judicial authority. If such presiding judge is also the administrative judge, then the matter shall be referred by the presiding judge to the chief administrative judge for criminal matters for assignment to another judicial authority.

(P.B. 1978-1997, Sec. 956.) (Amended June 30, 2003, to take effect Jan. 1, 2004.)

Sec. 43-39. Speedy Trial; Time Limitations

(a) Except as otherwise provided herein and in Section 43-40 or 43-40A, the trial of a defendant charged with a criminal offense during the period from July 1, 1983, through June 30, 1985, inclusive, shall commence within eighteen months from the filing of the information or from the date of the arrest, whichever is later.

(b) The trial of such defendant shall commence within twelve months from the filing of the information or from the date of the arrest, whichever is later, if the following conditions are met:

(1) the defendant has been continuously incarcerated in a correctional institution of this state pending trial for such offense; and

(2) the defendant is not subject to the provisions of General Statutes § 54-82c.

(c) Except as otherwise provided herein and in Section 43-40 or 43-40A, the trial of a defendant charged with a criminal offense on or after July 1, 1985, shall commence within twelve months from the filing of the information or from the date of the arrest, whichever is later.

(d) The trial of such defendant shall commence within eight months from the filing of the information or from the date of the arrest, whichever is later, if the following conditions are met:

(1) the defendant has been continuously incarcerated in a correctional institution of this state pending trial for such offense; and

(2) the defendant is not subject to the provisions of General Statutes § 54-82c.

(e) If an information which was dismissed by the trial court is reinstated following an appeal, the time for trial set forth in subsections (a), (b) and (c) shall commence running from the date of release of the final appellate decision thereon.

(f) If the defendant is to be tried following a mistrial, an order for a new trial, an appeal or collateral attack, the time for trial set forth in subsections (a), (b) and (c) shall commence running from the date the order occasioning the retrial becomes final.

(P.B. 1978-1997, Sec. 881.) (Amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 43-40. —Excluded Time Periods in Determining Speedy Trial

The following periods of time shall be excluded in computing the time within which the trial of a defendant charged by information with a criminal offense must commence pursuant to Section 43-39:

(1) Any period of delay resulting from other proceedings concerning the defendant, including but not limited to:

(A) delay resulting from any proceeding, including any examinations, to determine the mental competency or physical capacity of the defendant;

(B) delay resulting from trial with respect to other charges against the defendant;

(C) delay resulting from any interlocutory appeal;

(D) the time between the commencement of the hearing on any pretrial motion and the issuance of a ruling on such motion;

(E) delay reasonably attributable to any period, not to exceed thirty days, during which any proceeding concerning the defendant is actually under advisement by the judicial authority;

(F) delay resulting from any proceeding under General Statutes §§ 17a-685, 17a-693 et seq., 53a-39c, 54-56e, 54-56g, 54-56i, 54-56l, 54-56m, 54-56p, or any other pretrial diversion program authorized by statute.

(2) Any period of delay resulting from the absence or unavailability of the defendant, counsel for the defendant, or any essential witness for the prosecution or defense. For purposes of this subdivision, a defendant or any essential witness shall be considered absent when such person's whereabouts are unknown and cannot be determined by due diligence. For purposes of this subdivision, a defendant or any essential witness

shall be considered unavailable whenever such person's whereabouts are known but his or her presence for trial cannot be obtained by due diligence or he or she resists appeaing at or being returned for trial.

(3) Any period of delay resulting from the fact that the defendant is mentally incompetent or physically unable to stand trial.

(4) A reasonable period of delay when the defendant has been joined for trial with a codefendant as to whom the time for trial has not run and no motion for severance has been granted.

(5) Any period of time between the date on which a defendant or counsel for the defendant and the prosecuting authority agree that the defendant will plead guilty or nolo contendere to the charge and the date the judicial authority accepts or rejects the plea agreement.

(6) Any period of time between the date on which the defendant enters a plea of guilty or nolo contendere and the date an order of the judicial authority permitting the withdrawal of the plea becomes final.

(7) Except as provided in Section 43-40A, the period of delay resulting from a continuance granted by the judicial authority at the personal request of the defendant, including any period of delay resulting from a continuance requested because the prosecuting authority has failed to disclose discovery materials within any applicable time period prescribed in Chapter 40 if the prosecuting authority's failure is because of the unavailability of such discovery materials and the prosecuting authority has exercised due diligence to obtain such discovery materials.

(8) The period of delay resulting from a continuance granted by the judicial authority at the request of the prosecuting authority if:

(A) the continuance is granted because of the unavailability of evidence material to the state's case, when the prosecuting authority has exercised due diligence to obtain such evidence and there are reasonable grounds to believe that such evidence will be available at a later date; or

(B) the continuance is granted to allow the prosecuting authority additional time to prepare the state's case and additional time is justified because of the exceptional circumstances of the case.

(9) With respect to a defendant incarcerated in another jurisdiction, the period of time until the defendant's presence for trial has been obtained, provided the prosecuting authority has exercised reasonable diligence (A) in seeking to obtain the defendant's presence for trial upon receipt of a demand from the defendant for trial, and (B) if the defendant has not theretofore demanded trial, in filing a detainer with the official having custody of the defendant requesting that official to advise the defendant of the defendant's right to demand trial.

(10) Other periods of delay occasioned by exceptional circumstances.

(P.B. 1978-1997, Sec. 956C.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 43-40A. —Included Time Period in Determining Speedy Trial; Failure To Comply with Disclosure by Prosecuting Authority

The time for trial set forth in Section 43-39 shall continue to run during any period of delay resulting from a continuance granted by the judicial authority at the request of the defendant on the basis of the prosecuting authority's wilful failure to disclose discovery materials within any applicable time period prescribed in Chapter 40. During any such continuance, the judicial authority may issue subpoenas, pursuant to Sections 40-2 and 40-20, to assist in the timely completion of discovery.

(Adopted June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 43-41. —Motion for Speedy Trial; Dismissal

If the defendant is not brought to trial within the applicable time limit set forth in Sections 43-39 through 43-40A, and, absent good cause shown, a trial is not commenced within thirty days of the filing of a motion for speedy trial by the defendant at any time after such time limit has passed, the information shall be dismissed with prejudice, on motion of the defendant filed after the expiration of such thirty day period. For the purpose of this section, good cause consists of any one of the reasons for delay set forth in Section 43-40 or 43-40A. When good cause for delay exists, the trial shall commence as soon as is reasonably possible. Failure of the defendant to file a motion to dismiss prior to the commencement of trial shall constitute a waiver of the right to dismissal under these rules.

(P.B. 1978-1997, Sec. 884.) (Amended June 10, 2022, to take effect Jan. 1, 2023.)

Sec. 43-42. —Definition of Commencement of Trial

For purposes of Sections 43-39 through 43-41, "commencement of trial" means the commencement of the voir dire examination in jury cases and the swearing-in of the first witness in nonjury cases.

(P.B. 1978-1997, Sec. 956E.)

Sec. 43-43. —Waiver of Speedy Trial Provisions

The provisions of Sections 43-39 through 43-42 may be waived by any defendant in writing or on the record in open court.

(P.B. 1978-1997, Sec. 956F.)

CHAPTER 44

GENERAL PROVISIONS

Sec.
44-1. Right to Counsel; Appointment in Specific Instances
44-2. —Appointment in Other Instances
44-3. —Waiver of Right to Counsel
44-4. —Standby Counsel for Defendant Self-Represented
44-5. —Role of Standby Counsel
44-6. —Standby Counsel for Disruptive Defendant
44-7. Presence of Defendant; Attire of Incarcerated Defendant or Witness
44-8. —When Presence of Defendant Is and Is Not Required at Trial and Sentencing
44-9. —Obtaining Presence of Unexcused Defendant at Trial or Sentencing
44-10. —Where Presence of Defendant Not Required
44-10A. —Where Presence of Defendant May Be by Means of an Interactive Audiovisual Device
44-11. Docketing and Scheduling in General of Criminal Cases
44-12. —Control of Scheduling
44-13. —Scheduling for Proceedings before Trial; Continuances
44-14. —Assignments for Plea in Judicial District Court Location
44-15. —Scheduling at Entry of Plea
44-16. —Scheduling from Trial List
44-17. —Motion To Advance
44-18. —Continuances
44-19. Reference to Judge Trial Referee
44-20. Appointment of Guardian Ad Litem
44-21. Infractions and Violations; When Treated as an Offense
44-22. —Form of Summons and Complaint for Infractions and Violations
44-23. —When Custody Not Required
44-24. —When Custody Required
44-25. —Plea of Nolo Contendere to Infraction or Violation
44-26. —Pleas of Not Guilty to Infraction or Violation
44-27. —Hearing of Infractions, Violations to Which Not Guilty Plea Filed
44-28. —Location of Infractions Bureau and Role of Clerks
44-29. —Powers of Centralized Infractions Bureau
44-30. —Hearing by Magistrates of Infractions and Certain Motor Vehicle Violations
44-31. Motion To Quash Subpoena Pursuant to Inquiry into Commission of Crime
44-32. Fees and Expenses; Return of Subpoenas
44-33. —Indigent Witnesses
44-34. —Fees for Witnesses
44-35. —Officer's Fees on Extradition; Habeas Corpus
44-36. —Fee on Motion To Open Certain Judgments
44-37. Definition of Terms

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 44-1. Right to Counsel; Appointment in Specific Instances

A person who is charged with an offense punishable by imprisonment, or who is charged with violation of probation, or who is a petitioner in any habeas corpus proceeding arising from a criminal matter, or who is accused in any extradition proceeding, and who is unable to obtain counsel by reason of indigency shall be entitled to have counsel represent him or her unless:

(1) The person waives such appointment pursuant to Section 44-3; or

(2) In a misdemeanor case, at the time of the application for the appointment of counsel, the judicial authority decides to dispose of the charge without subjecting the defendant to a sentence involving immediate incarceration or a suspended sentence of incarceration with a period of probation, or it believes that the disposition of the charge at a later date will not result in such a sentence and it makes a statement to that effect on the record. If it appears to the judicial authority at a later date that if convicted the defendant will be subjected to such a sentence, counsel shall be appointed prior to trial or the entry of a plea of guilty or nolo contendere.

(P.B. 1978-1997, Sec. 959.)

Sec. 44-2. —Appointment in Other Instances

In any other situation in which a defendant is unable to obtain counsel by reason of indigency, and is constitutionally or statutorily entitled to the assistance of counsel, such defendant may request the judicial authority to appoint a public defender in accordance with Section 44-1.

(P.B. 1978-1997, Sec. 960.)

Sec. 44-3. —Waiver of Right to Counsel

A defendant shall be permitted to waive the right to counsel and shall be permitted to represent himself or herself at any stage of the proceedings, either prior to or following the appointment of counsel. A waiver will be accepted only after the judicial authority makes a thorough inquiry and is satisfied that the defendant:

(1) Has been clearly advised of the right to the assistance of counsel, including the right to the assignment of counsel when so entitled;

(2) Possesses the intelligence and capacity to appreciate the consequences of the decision to represent oneself;

(3) Comprehends the nature of the charges and proceedings, the range of permissible punishments, and any additional facts essential to a broad understanding of the case; and

(4) Has been made aware of the dangers and disadvantages of self-representation.

(P.B. 1978-1997, Sec. 961.)

Sec. 44-4. —Standby Counsel for Defendant Self-Represented

When a defendant has been permitted to proceed without the assistance of counsel, the judicial authority may appoint standby counsel, especially in cases expected to be long or complicated or in which there are multiple defendants. A public defender or special public defender may be appointed as standby counsel only if the defendant is indigent and qualifies for appointment of counsel under General Statutes § 51-296, except that in extraordinary circumstances the judicial authority, in its discretion, may appoint a special public defender for a defendant who is not indigent.

(P.B. 1978-1997, Sec. 963.)

Sec. 44-5. —Role of Standby Counsel

If requested to do so by the defendant, the standby counsel shall advise the defendant as to legal and procedural matters. If there is no objection by the defendant, such counsel may also call the judicial authority's attention to matters favorable to the defendant. Such counsel shall not interfere with the defendant's presentation of the case and may give advice only upon request.

(P.B. 1978-1997, Sec. 964.)

Sec. 44-6. —Standby Counsel for Disruptive Defendant

Upon direction of the judicial authority in situations involving a disruptive defendant or one who has been removed under Section 42-46, standby counsel shall enter the case and represent the defendant notwithstanding a previous waiver under Section 44-3. If standby counsel is ordered to represent the defendant, counsel shall be granted reasonable time before proceeding with the trial.

(P.B. 1978-1997, Sec. 965.)

Sec. 44-7. Presence of Defendant; Attire of Incarcerated Defendant or Witness

The defendant has the right to be present at the arraignment, at the time of the plea, at evidentiary hearings, at the trial, and at the sentencing hearing, except as provided in Section 37-1 and Sections 44-7 through 44-10. Whenever present, the defendant shall be seated where he or she can effectively consult with counsel and can see and hear the proceedings. An incarcerated defendant or an incarcerated witness shall not be required during the course of a trial to appear in court in the distinctive attire of a prisoner or convict.

(P.B. 1978-1997, Sec. 967.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 44-8. —When Presence of Defendant Is and Is Not Required at Trial and Sentencing

The defendant must be present at the trial and at the sentencing hearing, but, if the defendant will be represented by counsel at the trial or sentencing hearing, the judicial authority may:

(1) Excuse the defendant from being present at the trial or a part thereof or the sentencing hearing if the defendant waives the right to be present;

(2) Direct that the trial or a part thereof or the sentencing hearing be conducted in the defendant's absence if the judicial authority determines that the defendant waived the right to be present; or

(3) Direct that the trial or a part thereof be conducted in the absence of the defendant if the judicial authority has justifiably excluded the defendant from the courtroom because of his or her disruptive conduct, pursuant to Section 42-46.

(P.B. 1978-1997, Sec. 968.)

Sec. 44-9. —Obtaining Presence of Unexcused Defendant at Trial or Sentencing

If the defendant is not present at the trial or a part thereof or the sentencing hearing and the defendant's absence has not been excused, the judicial authority may issue a capias in accordance with the provisions of Section 38-21.

(P.B. 1978-1997, Sec. 969.)

Sec. 44-10. —Where Presence of Defendant Not Required

(a) Unless otherwise ordered by the judicial authority, a defendant need not be present in the following situations:

(1) In proceedings involving a corporation, a corporation being able to appear by counsel for all purposes;

(2) In prosecutions for offenses punishable by a fine in which the defendant pleads guilty or nolo contendere and pays the fine by mail;

(3) At any argument on a question of law or at any conference, except a disposition conference pursuant to Section 39-13;

(4) In proceedings involving a reduction of a sentence under Sections 43-21 and 43-22; and

(5) In proceedings in which the defendant otherwise waives his or her right to be present.

(b) If ordered to be present by the judicial authority or if required to be present for a disposition conference pursuant to subsection (a) (3) of this section, the presence of the defendant may, in the discretion of the judicial authority and, in the case of such a disposition conference, with the consent of the defendant, be made by means of an interactive audiovisual device. Such audiovisual device must operate so that the defendant, his or her attorney, if any, and the judicial authority can see and communicate with each other simultaneously. In addition, a procedure by which the defendant and his or her attorney can confer in private must be provided.

(P.B. 1978-1997, Sec. 970.) (Amended December 19, 2006, to take effect March 12, 2007.)

Sec. 44-10A. —Where Presence of Defendant May Be by Means of an Interactive Audiovisual Device

(a) Unless otherwise ordered by the judicial authority, and in the discretion of the judicial authority, a defendant may be present by means of an interactive audiovisual device for the following proceedings:

(1) Hearings concerning indigency pursuant to General Statutes § 52-259b;

(2) Hearings concerning asset forfeiture, unless the testimony of witnesses is required;

(3) Hearings regarding seized property, unless the testimony of witnesses is required;

(4) With the defendant's consent, bail modification hearings pursuant to Section 38-14;

(5) Sentence review hearings pursuant to General Statutes § 51-195;

(6) Proceedings under General Statutes § 54-56d (k) if the evaluation under General Statutes § 54-56d (j) concludes that the defendant is not competent but is restorable and neither the state nor the defendant intends to contest that conclusion;

(7) Arraignments, provided that counsel for the defendant has been given the opportunity to meet with the defendant prior to the arraignment;

(8) A disposition conference held in the judicial district court pursuant to the provisions of Sections 39-11 through 39-17 when it is not reasonably anticipated that an offer for the final disposition of the case will be accepted or rejected upon the conclusion of the conference;

(9) With the consent of counsel a disposition conference held in the geographical area court pursuant to the provisions of Sections 39-11 through 39-17 when it is not reasonably anticipated that an offer for the final disposition of the case will be accepted or rejected upon the conclusion of the conference;

(10) The first scheduled court appearance of the defendant in the judicial district court following the transfer of the case from the geographical area court;

(11) Hearings regarding motions to correct an illegal sentence; and

(12) Hearings regarding motions for sentence modification.

(b) Such audiovisual device must operate so that the defendant, his or her attorney, if any, and the judicial authority can see and communicate with each other simultaneously. In addition, a procedure by which the defendant and his or her attorney can confer in private must be provided.

(c) Unless otherwise required by law or ordered by the judicial authority, prior to any proceeding in which a person appears by means of an interactive audiovisual device, copies of all documents which may be offered at the proceeding shall be provided to all counsel and self-represented parties in advance of the proceeding.

(d) Nothing contained in this section shall be construed to establish a right for any person to appear by means of an interactive audiovisual device.

(e) Nothing contained in this section shall be construed to preclude the Judicial Branch, at the discretion of the chief court administrator, from handling any matter remotely.

(Adopted Dec. 19, 2006, to take effect March 12, 2007; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 26, 2020, on an interim basis pursuant to Section 1-9 (c), to take effect July 14, 2020, and amendment adopted June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 44-11. Docketing and Scheduling in General of Criminal Cases

Upon the return of an indictment or of a summons, or of a warrant previously issued by the judicial authority, or upon receipt of notice of an arrest, the clerk of the court having jurisdiction of the case shall forthwith assign a number to the case, enter it on the criminal docket or on other appropriate documents, and make a file in connection therewith. Such clerk shall immediately notify the prosecuting authority of the number assigned to the case.

(P.B. 1978-1997, Sec. 972.)

Sec. 44-12. —Control of Scheduling

The judicial authority, acting through the clerk, shall control the time and the manner of scheduling all proceedings in criminal cases and shall have the cooperation of the prosecuting authority and defense counsel in carrying out their responsibilities under Sections 44-11 and 44-12. The clerk of the court shall file a written report with the court periodically, as directed by the judicial authority, indicating the age and the status of each pending case, including whether the defendant is being held in custody pending trial and, if so, how long he or she has been held in custody. The clerk shall consult with the prosecuting authority and defense counsel in matters of scheduling so that such clerk may be aware of and advise the judicial authority of any factors affecting the orderly movement of cases.

(P.B. 1978-1997, Sec. 973.)

Sec. 44-13. —Scheduling for Proceedings before Trial; Continuances

Cases should be promptly assigned for arraignments, motions and other preliminary proceedings so as not unduly to delay the progress of the cases or to exceed time limits for such proceedings set by rule or administrative directive. Ordinarily, continuances for any preliminary proceedings, when allowed under these rules, shall not exceed two weeks.

(P.B. 1978-1997, Sec. 975.)

Sec. 44-14. —Assignments for Plea in Judicial District Court Location

Each case pending in a judicial district court location shall be assigned for a plea within two weeks after it is placed on the list of pending cases, unless the judicial authority shall order otherwise.

(P.B. 1978-1997, Sec. 976.)

Sec. 44-15. —Scheduling at Entry of Plea

(a) Upon entry of a not guilty plea, the judicial authority shall, whenever feasible, assign a date certain for the trial of such case, and in jury cases, for a disposition conference pursuant to Sections 39-11 through 39-13, and it shall advise all parties that they are to be prepared to proceed to trial or to a disposition conference on that date.

(b) Prior to assigning any date certain for trial, the judicial authority shall inquire of the parties whether discovery pursuant to Chapter 40 is complete.

If discovery is not complete, the judicial authority shall continue the case for the timely completion of discovery. During any such continuance, the judicial authority may issue subpoenas, pursuant to Sections 40-2 and 40-20, to assist in the timely completion of discovery.

If discovery is complete, the judicial authority may assign a date certain for trial no earlier than forty-five days after the completion of discovery unless the defendant moves for a speedy trial pursuant to Section 43-41.

(c) If the setting of a definite date at the time of the not guilty plea is not feasible, the case shall be placed on a trial list of pending cases which shall be maintained by the clerk. Cases shall be placed on the trial list in the order in which the not guilty pleas were entered, but in no event shall a trial commence earlier than forty-five days after the completion of discovery in the case unless the defendant moves for a speedy trial pursuant to Section 43-41.

(d) If, after the judicial authority has assigned a date certain for trial or has assigned the case to the trial list pursuant to this section, either party identifies and produces any evidence or witness that is required to be disclosed pursuant to Chapter 40, the opposing party may move the judicial authority for an order in accordance with Section 40-5, including, but not limited to, moving for a continuance or an order prohibiting the producing party from introducing the delayed discovery at trial.

(P.B. 1978-1997, Sec. 977.) (Amended June 11, 2021, to take effect Jan. 1, 2022.)

Sec. 44-16. —Scheduling from Trial List

(a) The judicial authority shall assign for trial on dates certain so much of the trial list as shall be deemed necessary for the proper conduct of the court and shall direct the clerk to distribute a list of the cases so assigned to the counsel of record. Cases shall be assigned for trial in the order in which they appear on the trial list and they should be tried in the order in which they are assigned for trial, except that the judicial authority may depart from the listed order and may give priority in assignment or trial to the following types of cases:

(1) Cases in which the defendant is being held in custody for lack of a bond;

(2) Cases in which the judicial authority has granted a motion for a speedy trial; or

(3) Cases in which the judicial authority reasonably believes that the pretrial liberty of the defendant presents unusual risks over those of other criminal cases.

(b) The judicial authority shall not assign for trial on a date certain a number of cases greater than that which can be reasonably expected to be reached for trial on that date, based on the court's resources for trial and the number and percentage of trials generally conducted.

(P.B. 1978-1997, Sec. 978.)

Sec. 44-17. —Motion To Advance

Upon motion of a party and a showing of good cause, the judicial authority may advance a case for trial prior to the time when it would ordinarily be assigned.

(P.B. 1978-1997, Sec. 979.)

Sec. 44-18. —Continuances

Except for the defendant's arraignment pursuant to Sections 37-1 through 37-12, continuances may be granted only by the judicial authority or with the judicial authority's explicit approval.

(P.B. 1978-1997, Sec. 981.)

Sec. 44-19. Reference to Judge Trial Referee

The judicial authority may, with the consent of the parties or their attorneys, refer any criminal case to a judge trial referee who shall have and exercise the powers of the Superior Court in respect to trial, judgment, sentencing and appeal in the case, except that the judicial authority may, without the consent of the parties or their attorneys, (A) refer any criminal case, other than a criminal jury trial, to a judge trial referee assigned to a geographical area criminal court session, and (B) refer any criminal case, other than a class A or B felony or capital felony, to a judge trial referee to preside over the jury selection process and any voir dire examination conducted in such case, unless good cause is shown not to refer. Any case referred to a judge trial referee shall be deemed to have been referred for all further proceedings, judgment and sentencing, including matters pertaining to any appeal therefrom unless otherwise ordered before or after the reference.

(P.B. 1978-1997, Sec. 997A.) (Amended June 20, 2005, to take effect Jan. 1, 2006.)

Sec. 44-20. Appointment of Guardian Ad Litem

(a) In any criminal proceeding involving an abused or neglected minor child, a guardian ad litem shall be appointed. The judicial authority may also appoint a guardian ad litem for a minor involved in any other criminal proceedings, including those in which the minor resides with and is the victim of a person arrested or charged with a criminal offense, those in which the minor resides in the same household as the victim and the defendant, or those in which the minor is the defendant. Unless the judicial authority orders that another person be appointed guardian ad litem, the family relations counselor or family relations caseworker shall be designated as guardian ad litem.

(b) If the guardian ad litem is not the family relations counselor or family relations caseworker, the judicial authority may order compensation for the services rendered in accordance with the established Judicial Branch fee schedule.

(P.B. 1978-1997, Sec. 998.)

Sec. 44-21. Infractions and Violations; When Treated as an Offense

Pursuant to subdivision (4) of Section 44-37, infractions and violations are included in the general definition of "offense," and, except as distinguished in Sections 44-21 through 44-29, they are treated as any other offense under these rules.

(P.B. 1978-1997, Sec. 1000.)

Sec. 44-22. —Form of Summons and Complaint for Infractions and Violations

In all infractions and violations a summons and complaint shall, insofar as applicable, be used in the form designated in Section 36-7.

(P.B. 1978-1997, Sec. 1002.)

Sec. 44-23. —When Custody Not Required

(a) Except for those offenses listed in Section 44-24, and as provided in subsection (b) herein, a resident of the state of Connecticut or of a state that is a signatory with Connecticut of a no-bail compact, who has been arrested for a violation of any statute relating to motor vehicles, shall be issued a summons and complaint, and may, in the discretion of the law enforcement officer, be released without bail on his or her promise to appear.

(b) Any resident of the state of Connecticut who is charged with an infraction or violation payable by mail pursuant to statute, and any resident of a state that is a signatory with Connecticut of a no-bail compact who is charged with an infraction involving a motor vehicle or with a violation of General Statutes § 14-219 (e), shall not be taken into custody, but shall be issued a summons and complaint and follow the procedure set forth in Sections 44-25 through 44-27.

(P.B. 1978-1997, Sec. 1004.)

Sec. 44-24. —When Custody Required

(a) Any person charged with an infraction or with a violation, whether or not payable by mail pursuant to statute, who is not a resident of the state of Connecticut or of a state that is a signatory with Connecticut of a no-bail compact shall be taken into custody.

(b) In the following offenses, the defendant, whether or not a resident of this state, shall be taken into custody:

(1) Driving while under the influence of intoxicating liquor or drugs;

(2) Using a motor vehicle without the permission of the owner;

(3) Evading responsibility;

(4) Any offenses involving an accident resulting in death; or

(5) Any felonies.

(P.B. 1978-1997, Sec. 1005.)

Sec. 44-25. —Plea of Nolo Contendere to Infraction or Violation

Any resident of Connecticut or of a state that is a signatory with Connecticut of a no-bail compact who is charged with any infraction or with any violation which is payable by mail pursuant to statute may pay the penalty, either by mail or in person, to the centralized infractions bureau at the address set forth on the complaint on or before the answer date designated in the complaint or, if the case is pending at a court location, may pay the penalty by mail or in person at such court location. The payment of the fine shall be considered a plea of nolo contendere and shall be inadmissible in any proceeding, criminal or civil, to establish the conduct of the person making such payment, except for any administrative sanctions imposed by the Commissioner of Motor Vehicles pursuant to title 14 of the General Statutes.

(P.B. 1978-1997, Sec. 1007.)

Sec. 44-26. —Pleas of Not Guilty to Infraction or Violation

Pleas of not guilty for infractions and for violations which are payable by mail pursuant to statute may be accepted only at the centralized infractions bureau and at those locations authorized by the General Statutes.

(P.B. 1978-1997, Sec. 1008.)

Sec. 44-27. —Hearing of Infractions, Violations to Which Not Guilty Plea Filed

(a) Upon entry of a plea of not guilty to an infraction or to a violation which is payable by mail pursuant to statute, the clerk shall file such plea and forthwith transmit the file to the prosecuting authority for review.

(b) Unless a nolle prosequi or a dismissal is entered in the matter within ten days of the filing of a not guilty plea, the clerk shall schedule a hearing and shall send the defendant a written notice of the date, time and place of such hearing.

(c) Hearings shall be conducted in accordance with the Connecticut Code of Evidence and with the provisions of Chapter 42 insofar as the provisions of that chapter are applicable.

(d) A nolle prosequi or a dismissal may be entered in the absence of the defendant. In the event a nolle prosequi or a dismissal is entered in the matter, the clerk shall send a written notice of such disposition to any defendant who was not before the court at the time of such disposition. The entry of a nolle prosequi hereunder shall not operate as a waiver of the defendant's right thereafter to seek a dismissal pursuant to Section 39-30.

(P.B. 1978-1997, Sec. 1008A.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 44-28. —Location of Infractions Bureau and Role of Clerks

(a) There shall be a centralized infractions bureau of the Superior Court to handle payments or pleas of not guilty with respect to the commission of infractions and of violations which are payable by mail pursuant to statute.

(b) For the purpose of processing such matters which are not finally disposed at the centralized infractions bureau, the principal clerk's office of the Superior Court in each geographical area shall be the infractions bureau for such geographical area. The judges of the Superior Court may establish such other bureaus when and where they may deem them necessary and they may designate the clerks or the assistant clerks of the court, or any other appropriate persons, as clerks of such bureaus. If no other person is so designated by the judges, the clerk of the Superior Court for the geographical area shall be the clerk of each infractions bureau in that geographical area.

(P.B. 1978-1997, Sec. 1010.)

Sec. 44-29. —Powers of Centralized Infractions Bureau

Subject to the limitations in Sections 44-25 and 44-26, the centralized infractions bureau shall have the power to accept a plea of nolo contendere and the payment of fines in cases which have been designated by statute as infractions or as violations which are payable by mail.

(P.B. 1978-1997, Sec. 1011.)

Sec. 44-30. —Hearing by Magistrates of Infractions and Certain Motor Vehicle Violations

(a) Infractions and motor vehicle violations which may be submitted to a magistrate pursuant to statute may be heard by magistrates in those court locations where a magistrate has been appointed by the chief court administrator, except that magistrates may not conduct jury trials.

(b) Hearings by magistrates shall be conducted in accordance with the Connecticut Code of Evidence and with the provisions of Chapter 42 insofar as the provisions of that chapter are applicable. A magistrate shall sign all orders the magistrate issues, such signature to be followed by the word "magistrate."

(c) A decision of the magistrate, including any penalty imposed, shall become a judgment of the

court if no demand for a trial de novo is filed. Such decision of the magistrate shall become null and void if a timely demand for a trial de novo is filed. A demand for a trial de novo shall be filed with the court clerk within five days of the date the decision was rendered by the magistrate and, if filed by the prosecuting authority, it shall include a certification that a copy thereof has been served on the defendant or his or her attorney, in accordance with the rules of practice.

(d) If the defendant is charged with more than one offense, and not all such offenses are motor vehicle violations within the jurisdiction of a magistrate, a judicial authority shall hear and decide such case.

(e) This section shall be inapplicable at any court location to which a magistrate has not been assigned by the chief court administrator.

(P.B. 1978-1997, Sec. 1011D.) (Amended June 26, 2020, to take effect Jan. 1, 2021.)

Sec. 44-31. Motion To Quash Subpoena Pursuant to Inquiry into Commission of Crime

(a) Whenever a subpoena has been issued to compel the attendance of a witness or the production of documents at an inquiry conducted by an investigative grand jury, the person summoned may file a motion to quash the subpoena with the chief clerk of the judicial district wherein the investigation is then being conducted. No fees or costs shall be required or assessed.

(b) The motion shall be docketed as a criminal matter. The party filing the motion shall be designated as the plaintiff and the state's attorney for such judicial district shall be designated as the defendant. A prosecuting authority shall appear and defend on behalf of the state's attorney.

(c) Unless otherwise ordered by the judicial authority before whom such hearing shall be conducted, the hearing on the motion to quash shall be conducted in public and the court file on the motion to quash shall be open to public inspection.

(d) The motion shall be heard forthwith by a judicial authority who is not a member of the panel of judges which acted on the application, nor the grand jury in the proceeding. The hearing date and time shall be set by the clerk after consultation with the judicial authority having responsibility for the conduct of criminal business within the judicial district. The clerk shall give notice to the parties of the hearing so scheduled.

(P.B. 1978-1997, Sec. 1012A.)

Sec. 44-32. Fees and Expenses; Return of Subpoenas

An officer or an indifferent person serving subpoenas in criminal cases will not be allowed fees for returning the same to the court unless the person returns them in person or actually pays for their return, and then only the sum paid will be allowed, not exceeding the legal fees for returning civil process. No fee shall be paid to any police officer for serving subpoenas.

(P.B. 1978-1997, Sec. 1014.)

Sec. 44-33. —Indigent Witnesses

An officer or any other person serving a subpoena or a capias in criminal cases on behalf of the state on witnesses who are indigent and unable to procure the means of traveling to the court will be allowed a reasonable compensation for providing transportation of such witnesses to the court; a reasonable sum will be taxed for the support of such witnesses during their necessary attendance at court.

(P.B. 1978-1997, Sec. 1015.)

Sec. 44-34. —Fees for Witnesses

Witnesses in attendance in more cases than one at the same time will be allowed fees for travel and attendance in one case only. The travel of nonresident witnesses will be computed and taxed from the state line on the usual course of travel in all cases where witnesses' fees are not paid under General Statutes § 54-82i or § 54-152.

(P.B. 1978-1997, Sec. 1016.)

Sec. 44-35. —Officer's Fees on Extradition; Habeas Corpus

Any officer having charge of a person who is arrested upon an extradition warrant for delivery to another state and required to attend court upon a writ of habeas corpus shall be entitled to receive the same fees and expenses as such officer would receive for presenting a prisoner before the court for trial, and such fees and expenses are to be paid to such officer by the officer of such other state upon the surrender of the prisoner or, if the prisoner is released, they are to be taxed and allowed him or her at the next term of the court in the judicial district or geographical area where such prisoner was held.

(P.B. 1978-1997, Sec. 1017.)

Sec. 44-36. —Fee on Motion To Open Certain Judgments

Upon the filing of a motion to open judgment in any case in which the defendant has been charged with violation of a motor vehicle statute and has failed to appear at the time and place assigned for trial or, where applicable, has failed to plead or pay the fine and additional fee by mail, and the judicial authority has reported such failure to the Commissioner of Motor Vehicles, the movant shall pay to the clerk the filing fee prescribed

by statute unless such fee has been waived by the judicial authority.

(P.B. 1978-1997, Sec. 1020A.)

Sec. 44-37. Definition of Terms

Unless the context clearly requires otherwise:

(1) "Prosecuting authority" means any person appointed or otherwise designated or charged generally or specially with the duty of prosecuting persons accused of criminal offenses in any court, and includes, but is not limited to, the chief state's attorney and any deputies or assistants and each state's attorney of the Superior Court and any deputies or assistants.

(2) "Public defender" means any attorney appointed or otherwise designated or charged generally or specially by the court with the duty of representing persons accused of criminal offenses in any court or of representing anyone in habeas corpus proceedings or appeals, and includes, but is not limited to, the chief public defender and any deputies or assistants, and each public defender and any deputies or assistants.

(3) "Law enforcement officer" means any person vested by law with a duty to maintain public order or to make arrests for offenses, and includes, but is not limited to, a member of the state police department or an organized local police department, a detective in the Division of Criminal Justice, a sheriff or deputy sheriff, a conservation officer or special conservation officer as defined in General Statutes § 26-5, a constable who performs criminal law enforcement duties, a special policeman appointed under General Statutes §§ 29-18, 29-18a or 29-19, or an official of the Department of Correction authorized by the Commissioner of Correction to make arrests in a correctional institution or facility. "Law enforcement officer" also includes state and judicial marshals, but only where the use of that term in these rules is consistent with the authority given to such marshals by statute.

(4) "Offense" means any crime or violation which constitutes a breach of any law of this state or any local law or ordinance of a political subdivision of this state, for which a sentence of a term of imprisonment or a fine, or both, may be imposed, including infractions.

(5) "Crime" means a felony or a misdemeanor.

(6) "Violation" means an offense for which the only sentence authorized is a fine and which is not expressly designated as an infraction.

(7) "Felony" means an offense for which a person may be sentenced to a term of imprisonment in excess of one year.

(8) "Misdemeanor" means an offense for which a person may be sentenced to a term of imprisonment of not more than one year.

(9) "Infraction" means an act or a failure to act which is designated by the General Statutes as an infraction.

(10) "Trial" means that judicial proceeding at which the guilt or innocence of the defendant to the offense or offenses charged is to be determined.

(P.B. 1978-1997, Sec. 1021.) (Amended June 25, 2001, to take effect Jan. 1, 2002.)

RULES OF APPELLATE PROCEDURE

CHAPTER 60

GENERAL PROVISIONS RELATING TO APPELLATE RULES AND APPELLATE REVIEW

Sec.		Sec.	
60-1.	Rules To Be Liberally Interpreted	60-6.	Appellate Jurists Sitting as Superior Court Judges
60-2.	Supervision of Procedure	60-7.	Electronic Filing; Payment of Fees
60-3.	Suspension of the Rules	60-8.	Exemption from or Inapplicability of Electronic Filing; Payment of Fees
60-4.	Definitions	60-9.	Security for Costs
60-5.	Review by the Court; Plain Error; Preservation of Claims		

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 60-1. Rules To Be Liberally Interpreted

The design of these rules being to facilitate business and advance justice, they will be interpreted liberally in any appellate matter where it shall be manifest that a strict adherence to them will work surprise or injustice.

(P.B. 1978-1997, Sec. 4182.) (Amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

Sec. 60-2. Supervision of Procedure

The supervision and control of the proceedings shall be in the court having appellate jurisdiction from the time the appellate matter is filed, or earlier, if appropriate, and, except as otherwise provided in these rules, any motion the purpose of which is to complete or perfect the record of the proceedings below for presentation on appeal shall be made to the court in which the appeal is pending. The court may, on its own motion or upon motion of any party, modify or vacate any order made by the trial court, or a judge thereof, in relation to the prosecution of an appeal. It may also, for example, on its own motion or upon motion of any party: (1) order a judge to take any action necessary to complete the trial court record for the proper presentation of the appeal; (2) consider any matter in the record of the proceedings below necessary for the review of the issues presented by any appeal, regardless of whether the matter has been included in any party appendix; (3) order improper matter stricken from a brief or appendix; (4) order a stay of any proceedings ancillary to a case on appeal; (5) order that a party for good cause shown may file a late appeal, petition for certification, brief or any other document unless the court lacks jurisdiction to allow the late filing; (6) order that a hearing be held to determine whether it has jurisdiction over a pending matter; (7) order an appeal to be dismissed unless the appellant complies with specific orders of the trial court, submits to the process of the trial court, or is purged of contempt of the trial court; (8) remand any pending matter to the trial court for the resolution of factual issues where necessary; or (9) correct technical or other minor mistakes in a published opinion which do not affect the rescript.

(P.B. 1978-1997, Sec. 4183.) (Amended June 5, 2013, to take effect July 1, 2013; amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

Sec. 60-3. Suspension of the Rules

In the interest of expediting decision, or for other good cause shown, the court in which the appellate matter is pending may suspend the requirements or provisions of any of these rules on motion of a party or on its own motion and may order proceedings in accordance with its direction.

(P.B. 1978-1997, Sec. 4187.) (Amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

Sec. 60-4. Definitions

"Administrative appeal" shall mean an appeal from a judgment of the Superior Court concerning the appeal to that court from a decision of any officer, board, commission or agency of the state or of any political subdivision of the state.

"Appellant" shall mean the party, or parties if an appeal is jointly filed, taking the appeal.

"Appellee" shall mean all other parties in the trial court at the time of judgment, unless after judgment the matter was withdrawn as to them or unless a motion for permission not to participate in the appeal has been granted by the court.

"Certificate of interested entities or individuals" is a certificate filed pursuant to court order by counsel of record for a party that is an entity as

defined in this rule. The certificate shall list for that party: (1) any parent entities and (2) all entities or individuals owning or controlling an interest of 10 percent or more of that party. If there are no other interested entities or individuals, a certificate indicating that information is required. The certificate shall also state whether the party knows of any direct or indirect ownership, controlling or legal interest for that party that counsel of record thinks could reasonably require a judge to disqualify himself or herself under Rule 2.11 of the Code of Judicial Conduct. The court may order a party to supplement its certificate of interested entities or individuals to include any direct or indirect ownership or controlling or legal interest for any parent entities or listed interested entities, and so on, until the certificate lists all of the parent entities, interested entities, and interested individuals for that party and its affiliates. Counsel of record has a continuing duty to amend the certificate of interested entities or individuals during the pendency of the appeal if any changes occur.

"Counsel of record" shall include all attorneys and self-represented parties appearing in the trial court at the time of the initial appellate filing, unless an exception pursuant to Section 62-8 applies, all attorneys and self-represented parties who filed the appellate matter, and all attorneys and self-represented parties who file an appearance in the appellate matter.

"Entity" means any corporation, limited liability company, partnership, limited liability partnership, trust, joint venture, firm or association that is not a governmental entity or its agencies.

"Filed" shall mean the receipt by the appellate clerk of a paper or document by electronic submission pursuant to Section 60-7. If an exemption to electronic filing has been granted or if the electronic filing requirements do not apply, filed shall mean receipt of the paper or document by hand delivery, by first class mail or by express mail delivered by the United States Postal Service or an equivalent commercial service. If a document must be filed by a certain date under these rules or under any statutory provision, the document must be received by the appellate clerk by the close of business on that date; it is not sufficient that a document be mailed by that date to the appellate clerk unless a rule or statutory provision expressly so computes the time.

"Issues" shall include claims of error, certified questions and questions reserved.

"Motion" shall include applications and petitions, other than petitions for certification. A preappeal motion is one that is filed prior to or independent of an appeal.

"Paper" and "Document" shall include an electronic submission that complies with the procedures and standards established by the chief clerk of the appellate system under the direction of the administrative judge of the appellate system and a paper or document created in or converted to a digital format by the Judicial Branch.

"Petition" does not include petitions for certification unless the context clearly requires.

"Record" shall include the case file, any decisions, documents, transcripts, recordings and exhibits from the proceedings below, and, in appeals from administrative agencies, the record returned to the trial court by the administrative agency.

"Requests" shall include correspondence and notices as permitted by these rules.

"Submission" shall mean a "paper" or a "document" and shall include an electronic submission that complies with the procedures and standards established by the chief clerk of the appellate system under the direction of the administrative judge of the appellate system.

(For additional definitions, see Secs. 62-2 and 76-6.)

(P.B. 1978-1997, Sec. 4001A.) (Amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Aug. 1, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the fourth paragraph, "pursuant to court order" replaced "in any civil appellate matter, excluding habeas corpus matters," in the first sentence. In addition, what are now the final two sentences of that paragraph were added.

In the sixth paragraph, "trust, joint venture," was added after "partnership," and "any" was deleted before "association."

COMMENTARY—2026: The purpose of these amendments is to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary, and to broaden the definition of "entity" to include trusts and joint ventures.

Sec. 60-5. Review by the Court; Plain Error; Preservation of Claims

The court may reverse or modify the decision of the trial court if it determines that the factual findings are clearly erroneous in view of the evidence and pleadings in the whole record, or that the decision is otherwise erroneous in law.

The court shall not be bound to consider a claim unless it was distinctly raised at the trial or arose subsequent to the trial. The court may in the interests of justice notice plain error not brought to the attention of the trial court.

In jury trials, where there is a motion, argument, or offer of proof or evidence in the absence of the jury, whether during trial or before, pertaining

to an issue that later arises in the presence of the jury, and counsel has fully complied with the requirements for preserving any objection or exception to the judge's adverse ruling thereon in the absence of the jury, the matter shall be deemed to be distinctly raised at the trial for purposes of this rule without a further objection or exception provided that the grounds for such objection or exception, and the ruling thereon as previously articulated, remain the same.

If the court deems it necessary to the proper disposition of the cause, it may order a further articulation of the basis of the trial court's factual findings or decision.

It is the responsibility of the appellant to provide an adequate record for review as provided in Section 61-10.

(P.B. 1978-1997, Sec. 4061.) (Amended July 8, 2015, to take effect Jan. 1, 2016.)

Sec. 60-6. Appellate Jurists Sitting as Superior Court Judges

Without the permission of the chief justice, the justices of the Supreme Court and the judges of the Appellate Court will not, as judges of the Superior Court, in vacation, or when the Superior Court is not in session, pass orders which may be the subject of an appeal, unless it appears that there is a necessity for prompt action, and that no other judges having jurisdiction over the matter can conveniently act.

(P.B. 1978-1997, Sec. 4186.)

Sec. 60-7. Electronic Filing; Payment of Fees

(a) Counsel of record must file all appellate papers electronically unless the court grants a request for exemption. Papers may be filed, signed, or verified by electronic means that comply with procedures and standards established by the chief clerk of the appellate system under the direction of the administrative judge of the appellate system. A paper filed by electronic means in compliance with such procedures and standards constitutes a written paper for the purpose of applying these rules.

(b) At the time of filing, the appellant must (1) pay all required fees; or (2) upload a signed application for waiver of fees and the order of the trial court granting the fee waiver; or (3) certify that no fees are required. Any document that requires payment of a fee as a condition of filing may be returned or rejected for noncompliance with the Rules of Appellate Procedure.

(c) Self-represented parties are required to have an account with E-Services unless exempt from electronic filing pursuant to Section 60-8. All nonexempt self-represented parties in any matter in which the self-represented party has not already been granted electronic access to their case in the Superior Court must have their E-Services user identification verified within ten days of the filing of the appeal. To verify a self-represented party's user identification, follow the instructions provided on the Appellate E-Filing homepage in E-Services. Failure to comply with this rule may result in the dismissal of the appeal or the imposition of sanctions pursuant to Section 85-1.

(d) The requirements of this section do not apply to documents filed by incarcerated self-represented parties, the clerk of the trial court, the official court reporter, or the clerk of the court for any other state, federal or tribal court. This section also does not apply to any state board or commission filing documents with the appellate clerk pursuant to Section 68-1, 74-2A, 74-3A, 75-4, 76-3 or 76-5.

(Adopted Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Aug. 1, 2016; amended Oct. 18, 2017, to take effect Jan. 1, 2018; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 23, 2024, to take effect Jan. 1, 2025.)

COMMENTARY—August, 2016: The electronic filing requirements do not apply to incarcerated self-represented parties at this time. All other self-represented parties and attorneys are required to file all papers electronically unless an exemption from electronic filing requirements has been granted.

Sec. 60-8. Exemption from or Inapplicability of Electronic Filing; Payment of Fees

(Amended June 15, 2016, to take effect Aug. 1, 2016.)

Parties seeking an exemption from the electronic filing requirements shall follow the procedures established by the office of the chief clerk of the appellate system and set forth in the Appellate E-filing Procedures and Technical Standards. When an exemption from electronic filing has been granted or if electronic filing requirements do not apply pursuant to Section 60-7 (d), papers shall be filed with the appellate clerk and must be accompanied by (1) a receipt showing that all required fees have been paid; or (2) a signed application for waiver of fees and the order of the trial court granting the fee waiver; or (3) certification that no fee is required.

With the exception of any fees related to appeals in child protection matters and appeals from interlocutory orders as permitted by law, all appellate filing fees under this section may be paid to the clerk of any trial court in the state. In child protection matters and appeals from interlocutory orders as permitted by law, all fees under this section must be paid to the clerk of the original

trial court or the clerk of the court to which the case was transferred.

(Adopted Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Aug. 1, 2016.)

COMMENTARY—January, 2016: Appellate filing fees must be paid to the trial court clerk if electronic filing requirements do not apply or if an e-filing exemption has been granted. When fees are paid to the trial court clerk, the filer will receive a receipt from the clerk indicating the name of the document, the trial court docket number and the amount paid. It is not necessary for the filer to present an appeal form to the trial court clerk for signature. The filer must then file the paper appeal form or appellate document and the receipt of payment, if required, with the appellate clerk. An appeal is not filed upon payment of the filing fee; instead, an appeal is filed when the appeal form has been timely filed with the office of the appellate clerk accompanied by receipt of payment or proof of waiver of fees.

COMMENTARY—August, 2016: It is not necessary to provide a certification that no filing fee is required unless the filing requires payment of a fee. For example, a party does not have to certify that no fee is required when filing a motion for extension of time or a motion to dismiss since there is no requirement to pay a fee for those filings. A party who files a petition for certification to the Supreme Court in a workers compensation matter, however, would be required to certify that no fee is required since a petition for certification requires a filing fee.

Sec. 60-9. Security for Costs

Security for costs is not required to file an appeal, but security for costs may at any time, on motion and notice to the parties, be ordered by the court. Such security shall be filed with the trial court.

(Adopted Sept. 16, 2015, to take effect Jan. 1, 2016.)

CHAPTER 61

REMEDY BY APPEAL

Sec.
61-1. Right of Appeal
61-2. Appeal of Judgment on Entire Complaint, Counterclaim or Cross Complaint
61-3. Appeal of Judgment on Part of Complaint, Counterclaim or Cross Complaint that Disposes of All Claims in that Pleading Brought by or against One or More Parties
61-4. Appeal of Judgment that Disposes of at Least One Cause of Action while Not Disposing of Either (1) An Entire Complaint, Counterclaim or Cross Complaint, or (2) All the Causes of Action in a Pleading Brought by or against a Party
61-5. Deferring Appeal until Judgment Rendered that Disposes of Case for All Purposes and as to All Parties
61-6. Appeal of Judgment or Ruling in Criminal Case
61-7. Joint and Consolidated Appeals
61-8. Cross Appeals
61-9. Decisions Subsequent to Filing of Appeal; Amended Appeals
61-10. Responsibility of Appellant To Provide Adequate Record for Review
61-11. Stay of Execution in Noncriminal Cases
61-12. Discretionary Stays
61-13. Stay of Execution in Criminal Case
61-14. Review of Order concerning Stay; When Stay May Be Requested from Court Having Appellate Jurisdiction
61-15. Stay of Execution in Death Penalty Case [Repealed as of Jan. 1, 2024]
61-16. Notice of Bankruptcy Filing, Order of Bankruptcy Court Granting Relief from Automatic Stay and Disposition of Bankruptcy Case

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 61-1. Right of Appeal

An aggrieved party may appeal from a final judgment, except as otherwise provided by law.

(P.B. 1978-1997, Sec. 4000.)

Sec. 61-2. Appeal of Judgment on Entire Complaint, Counterclaim or Cross Complaint

When judgment has been rendered on an entire complaint, counterclaim or cross complaint, whether by judgment on the granting of a motion to strike pursuant to Section 10-44, by dismissal pursuant to Section 10-30, by summary judgment pursuant to Section 17-44, or otherwise, such judgment shall constitute a final judgment.

If at the time a judgment referred to in this section is rendered, an undisposed complaint, counterclaim or cross complaint remains in the case, appeal from such a judgment may be deferred (unless the appellee objects as set forth in Section 61-5) until the entire case is concluded by the rendering of judgment on the last such outstanding complaint, counterclaim or cross complaint.

If the judgment disposing of the complaint, counterclaim or cross complaint resolves all causes of action brought by or against a party who is not a party in any remaining complaint, counterclaim or cross complaint, a notice of intent to appeal in accordance with the provisions of Section 61-5 must be filed in order to preserve the right to appeal such a judgment at the conclusion of the case.

(P.B. 1978-1997, Sec. 4002A.)

Sec. 61-3. Appeal of Judgment on Part of Complaint, Counterclaim or Cross Complaint that Disposes of All Claims in that Pleading Brought by or against One or More Parties

A judgment disposing of only a part of a complaint, counterclaim or cross complaint is a final judgment if that judgment disposes of all causes of action in that complaint, counterclaim or cross complaint brought by or against a particular party or parties.

Such a judgment shall be a final judgment regardless of whether judgment was rendered on the granting of a motion to strike pursuant to Section 10-44, by dismissal pursuant to Section 10-30, by summary judgment pursuant to Section 17-44 or otherwise. The appeal from such judgment may be deferred (unless an objection is filed pursuant to Section 61-5) until the final judgment that disposes of the case for all purposes and as to all parties is rendered. If the appeal from such a judgment is to be deferred, a notice of intent to appeal must be filed in accordance with the provisions of Section 61-5.

A party entitled to appeal under this section may appeal regardless of which party moved for the judgment to be made final.

(P.B. 1978-1997, Sec. 4002B.)

Sec. 61-4. Appeal of Judgment that Disposes of at Least One Cause of Action while Not Disposing of Either (1) An Entire Complaint, Counterclaim or Cross Complaint, or (2) All the Causes of Action in a Pleading Brought by or against a Party

(Amended July 23, 1998, to take effect Jan. 1, 1999.)

(a) **Judgment not final unless trial court makes written determination and chief justice or chief judge concurs**

This section applies to a trial court judgment that disposes of at least one cause of action where the judgment does not dispose of either of the following: (1) an entire complaint, counterclaim or cross complaint, or (2) all the causes of action in a complaint, counterclaim or cross complaint brought by or against a party. If the order sought to be appealed does not meet these exact criteria, the trial court is without authority to make the determination necessary to the order's being immediately appealed.

This section does not apply to a judgment that disposes of an entire complaint, counterclaim or cross complaint (see Section 61-2); and it does not apply to a trial court judgment that partially disposes of a complaint, counterclaim or cross complaint, if the order disposes of all the causes of action in that pleading brought by or against one or more parties (see Section 61-3).

When the trial court renders a judgment to which this section applies, such judgment shall not ordinarily constitute an appealable final judgment. Such a judgment shall be considered an appealable final judgment only if the trial court makes a written determination that the issues resolved by the judgment are of such significance to the determination of the outcome of the case that the delay incident to the appeal would be justified, and the chief justice or chief judge of the court having appellate jurisdiction concurs.

If the procedure outlined in this section is followed, such judgment shall be an appealable final judgment, regardless of whether judgment was rendered on the granting of a motion to strike pursuant to Section 10-44, by dismissal pursuant to Section 10-30, by summary judgment pursuant to Section 17-44 or otherwise.

A party entitled to appeal under this section may appeal regardless of which party moved for the judgment to be made final.

(b) **Procedure for obtaining written determination and chief justice's or chief judge's concurrence; when to file appeal**

If the trial court renders a judgment described in this section without making a written determination, any party may file a motion in the trial court for such a determination within the statutory appeal period, or, if there is no applicable statutory appeal period, within twenty days after notice of the partial judgment has been sent to counsel. Papers opposing the motion may be filed within ten days after the filing of the motion.

Within twenty days after notice of such a determination in favor of appealability has been sent to counsel, any party intending to appeal shall file a motion, in accordance with the provisions of Sections 66-2 and 66-3, for permission to file an appeal with the clerk of the court having appellate jurisdiction. The motion shall state the reasons why an appeal should be permitted. Papers opposing the motion may be filed within ten days after the filing of the motion. The motion and any opposition papers shall be referred to the chief justice or chief judge to rule on the motion. If the chief justice or chief judge is unavailable or disqualified, the most senior justice or judge who is available and is not disqualified shall rule on the motion.

The appellate clerk shall send notice to the parties of the decision of the chief justice or chief judge on the motion for permission to file an appeal. For purposes of counting the time within which the appeal must be filed, the date of the issuance of notice of the decision on this motion shall be considered the date of issuance of notice of the rendition of the judgment or decision from which the appeal is filed.

(P.B. 1978-1997, Sec. 4002C.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 61-5. Deferring Appeal until Judgment Rendered that Disposes of Case for All Purposes and as to All Parties

(a) **When notice of intent to appeal required; procedure for filing**

An appeal of a judgment described in Section 61-2 or 61-3 may be deferred until the judgment that disposes of the case for all purposes and as to all parties is rendered. In the following two instances only, a notice of intent to appeal must be filed in order to defer the taking of an appeal until the final judgment that disposes of the case for all purposes and as to all parties is rendered:

(1) when the deferred appeal is to be filed from a judgment that not only disposes of an entire complaint, counterclaim or cross complaint but also disposes of all the causes of action brought by or against a party or parties so that that party or parties are not parties to any remaining complaint, counterclaim or cross complaint; or

(2) when the deferred appeal is to be filed from a judgment that disposes of only part of a complaint,

counterclaim or cross complaint but nevertheless disposes of all causes of action in that pleading brought by or against a particular party or parties.

In the event that the party aggrieved by a judgment described in (1) or (2) above elects to defer the taking of the appeal until the disposition of the entire case, the aggrieved party must, within the appeal period provided by statute, or, if there is no applicable statutory appeal period, within twenty days after issuance of notice of the judgment described in (1) or (2) above, file in the trial court a notice of intent to appeal the judgment, accompanied by a certification that a copy thereof has been delivered to each counsel of record in accordance with the provisions of Section 62-7.

When a notice of intent to appeal has been filed in accordance with this subsection, an objection to the deferral of the appeal may be made by (1) any party who, after the rendering of judgment on an entire complaint counterclaim or cross complaint, is no longer a party to any remaining complaint, counterclaim or cross complaint, or (2) any party who, by virtue of a judgment on a portion of any complaint, counterclaim or cross complaint, is no longer a party to that complaint, counterclaim or cross complaint. Objection shall be filed in the trial court, within twenty days of the filing of the notice of intent to appeal, accompanied by a certification that a copy thereof has been delivered to each counsel of record in accordance with the provisions of Section 62-7.

When such a party has filed a notice of objection to the deferral of the appeal, the appeal shall not be deferred, and the appellant shall file the appeal within twenty days of the filing of such notice of objection.

(b) **Effect of failure to file notice of intent to appeal when required; effect of filing notice of intent to appeal when not required**

If an aggrieved party, without having filed a timely notice of intent to appeal, files an appeal claiming that a judgment described in (1) or (2) of subsection (a) of this section was rendered improperly, the issues relating to such earlier judgment will be subject to dismissal as untimely.

The use of the notice of intent to appeal is abolished in all instances except as provided in subsection (a) of this section, which sets forth the two instances in which a notice of intent must be filed. Except as provided in subsection (a), the filing of a notice of intent to appeal will preserve no appeal rights.

(P.B. 1978-1997, Sec. 4002D.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 61-6. Appeal of Judgment or Ruling in Criminal Case

(Amended July 26, 2000, to take effect Jan. 1, 2001.)

(a) **Appeal by defendant**

(1) **Appeal from final judgment**

The defendant may appeal from a conviction for an offense when the conviction has become a final judgment. The conviction becomes a final judgment after imposition of sentence. In cases where a final judgment has been rendered on fewer than all counts in the information or complaint, the defendant may appeal from that judgment at the time it is rendered.

(2) **Appeal of ruling following judgment rendered upon conditional plea of nolo contendere**

(A) **On motion to dismiss or suppress**

When a defendant, prior to the commencement of trial, enters a plea of nolo contendere conditional on the right to file an appeal from the court's denial of the defendant's motion to suppress or motion to dismiss, the defendant, after the imposition of sentence, may file an appeal within the time prescribed by law. The issue to be considered in such appeal shall be limited to whether it was proper for the court to have denied the motion to suppress or the motion to dismiss. A plea of nolo contendere by a defendant under this subsection shall not constitute a waiver by the defendant of nonjurisdictional defects in the criminal prosecution. The court shall not accept a nolo contendere plea pursuant to this subsection where the denial of the motion to suppress or motion to dismiss would not be dispositive of the case in the trial court. The court shall also decline to accept such a nolo contendere plea where the record available for review of the denial of the motion to suppress or motion to dismiss is inadequate for appellate review of the court's determination thereof.

(B) **On any motion made prior to close of evidence**

With the approval of the court, after a hearing to consider any objections thereto, a defendant may enter a conditional plea of guilty or nolo contendere, reserving in writing the right, on appeal from the judgment, to review of the adverse determination of any motion made prior to the close of evidence, which motion must be specified in such written reservation. If the defendant prevails on appeal, the judgment shall be set aside and the defendant shall be allowed to withdraw the conditional plea of guilty or nolo contendere after the case has been remanded to the trial court. A plea of guilty or nolo contendere under this subsection shall not constitute a waiver of nonjurisdictional defects in the criminal prosecution. The court shall not accept a plea of guilty or nolo contendere pursuant to this subsection where the adverse determination of the specified motion would not

be dispositive of the case in the trial court. The court shall also decline to accept such a nolo contendere or guilty plea where the record available for review of the ruling upon the specified motion is inadequate for appellate review of the court's determination thereof.

(b) **Appeal by state**

The state, with the permission of the presiding judge of the trial court and as provided by law, may appeal from a final judgment. In cases where an appealable judgment has been rendered on fewer than all counts of the information or complaint, the state may appeal from the judgment at the time it is rendered.

(c) **Appeal from a ruling**

To the extent provided by law, the defendant or the state may appeal from a ruling that is not a final judgment or from an interlocutory ruling deemed to be a final judgment.

(P.B. 1978-1997, Sec. 4003.) (Amended July 26, 2000, to take effect Jan. 1, 2001; amended June 17, 2008, to take effect Jan. 1, 2009; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 61-7. Joint and Consolidated Appeals

(a) (1) Two or more parties in the same case may appeal jointly or severally. Separate cases heard together and involving at least one common party may as of right be appealed jointly, provided all the trial court docket numbers are shown on the appeal form (JD-SC-033).

(2) Prior to the filing of an appeal, the trial court, on motion of any party or on its own motion, may order that a joint appeal be filed in any situation not covered by the preceding paragraph.

(3) In the case of a joint appeal, only one entry fee is required. The appellant filing the appeal shall pay the entry fee. If using a fee waiver for a joint appeal, a granted waiver is required for each trial court docket number being appealed.

(4) When joint appellants are represented by different counsel or are self-represented, a single joint appeal consent form (JD-SC-035) signed by all joint appellants or their counsel shall be filed on the same business day the appeal is filed.

(b) (1) The Supreme Court or Appellate Court, on motion of any party or on its own motion, may order to consolidate appeals pending before it.

(2) When an appeal pending in the Supreme Court involves the same cause of action, transaction or occurrence as an appeal pending in the Appellate Court, the Supreme Court may, on motion of any party or on its own motion, order that the appeals be consolidated in the Supreme Court. The court may order consolidation at any time before the assignment of the appeals for hearing.

(3) There shall be no refund of fees if appeals are consolidated.

(c) Whenever appeals are jointly filed or are consolidated, all appellants shall file a single, consolidated brief and party appendix, if any, and a single, consolidated reply brief, if any. If the appellants cannot agree upon the contents of the brief, reply brief or party appendix, or if the issues to be briefed are not common to the joint appellants, any appellant may file a motion for permission to file a separate brief, reply brief or party appendix. Multiple appellees may file a joint or separate brief. Briefing shall otherwise be in accordance with the requirements of Section 67-2 et seq.

(P.B. 1978-1997, Sec. 4004.) (Amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended April 17, 2019, to take effect Jan. 1, 2020; amended June 15, 2021, to take effect Jan. 1, 2022; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 61-8. Cross Appeals

Any appellee or appellees aggrieved by the judgment or decision from which the appellant has appealed may jointly or severally file a cross appeal within ten days from the filing of the appeal. Except where otherwise provided, the filing and form of cross appeals, extensions of time for filing them, and all subsequent proceedings shall be the same as though the cross appeal were an original appeal. No entry fee is required.

(P.B. 1978-1997, Sec. 4005.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

(Commentary applicable to appeals filed on or after July 1, 2013.)

COMMENTARY—July, 2013: With respect to cross appeals, the cross appellant shall have all the obligations of the appellant with respect to the preparation and filing of the party appendix, if any.

Sec. 61-9. Decisions Subsequent to Filing of Appeal; Amended Appeals

If the trial court issues an additional decision after an appeal has been filed that the appellant wants to appeal, the appellant shall file an amended appeal within twenty days from the issuance of notice of the decision as provided for in Section 63-1.

The amended appeal shall be filed in the pending appeal using form (JD-SC-033), along with a certification pursuant to Section 62-7. No additional fee is required to be paid upon the filing of an amended appeal.

Within ten days of filing the amended appeal, the appellant shall file with the appellate clerk (1) a preliminary statement of issues (JD-SC-038) intended for presentation in the amended appeal, (2) a certificate stating that no transcript is necessary (JD-SC-040) for the amended appeal or a

transcript order confirmation from the official court reporter pursuant to Section 63-8, and, if applicable, (3) a preargument conference statement. Amendments to the designation of the proposed contents of the clerk appendix and docketing statement are permitted for an amended appeal but not required. Any other party may file responsive papers in accordance with the provisions of Section 63-4 (a).

If the original appeal is dismissed for lack of jurisdiction, any amended appeal shall remain pending if it was filed from a judgment or order from which an original appeal properly could have been filed.

If an amended appeal is filed after the filing of the appellant's brief but before the filing of the appellee's brief, the appellant may move for leave to file a supplemental brief. If an amended appeal is filed after the filing of the appellee's brief, either party may move for such leave. In any event, the court may order that an amended appeal be briefed or heard separately from the original appeal.

Once an appeal is ready pursuant to Section 69-2, absent permission of the court to file an amended appeal, any appeal from a subsequent decision in the trial court shall be filed as a new appeal in accordance with the provisions of Section 63-3. After disposition of an appeal where no amended appeals related to that appeal are pending, a subsequent appeal shall be filed as a new appeal.

If the appellant files a subsequent appeal from a trial court decision in a case where there is a pending appeal, the subsequent appeal may be treated as an amended appeal, and, if it is treated as an amended appeal, there will be no refund of the fees paid.

(P.B. 1978-1997, Sec. 4006.) (Amended July 30, 2009, to take effect Jan. 1, 2010; amended July 11, 2012, to take effect Jan. 1, 2013; amended June 5, 2013, to take effect July 1, 2013; amended April 30, 2014, to take effect Aug. 1, 2014; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2020, to take effect Jan. 1, 2021; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 23, 2024, to take effect Jan. 1, 2025.)

TECHNICAL CHANGE: In the second paragraph, the convention for the form number was updated for consistency purposes.

Sec. 61-10. Responsibility of Appellant To Provide Adequate Record for Review

(a) It is the responsibility of the appellant to provide an adequate record for review. The appellant shall determine whether the entire record is complete, correct and otherwise perfected for presentation on appeal.

(b) The failure of any party on appeal to seek articulation pursuant to Section 66-5 shall not be the sole ground upon which the court declines to review any issue or claim on appeal. If the court determines that articulation of the trial court decision is appropriate, it may, pursuant to Section 60-5, order articulation by the trial court within a specified time period. The trial court may, in its discretion, require assistance from the parties in order to provide the articulation. Such assistance may include, but is not limited to, supplemental briefs, oral argument and provision of copies of transcripts and exhibits.

(P.B. 1978-1997, Sec. 4007.) (Amended Oct. 18, 2012, to take effect Jan. 1, 2013; amended June 5, 2013, to take effect July 1, 2013; amended July 8, 2015, to take effect Jan. 1, 2016.)

COMMENTARY—January, 2013: Subsection (b) was adopted to effect a change in appellate procedure by limiting the use of the forfeiture sanction imposed when an appellant fails to seek an articulation from the trial court pursuant to Section 66-5 with regard to an issue on appeal, and the court therefore declines to review the issue for lack of an adequate record for review. In lieu of refusing to review the issue, when the court determines that articulation is appropriate, the court may now order an articulation and then address the merits of the issue after articulation is provided. The adoption of subsection (b) is not intended to preclude the court from declining to review an issue where the record is inadequate for reasons other than solely the failure to seek an articulation, such as, for example, the failure to procure the trial court's decision pursuant to Section 64-1 (b) or the failure to provide a transcript, exhibits or other documents necessary for appellate review.

Sec. 61-11. Stay of Execution in Noncriminal Cases

(Amended July 21, 1999, to take effect Jan. 1, 2000.)

(a) **Automatic stay of execution**

Except where otherwise provided by statute or other law, proceedings to enforce or carry out the judgment or order shall be automatically stayed until the time to file an appeal has expired. If an appeal is filed before the appeal period has expired, such proceedings shall be stayed until the final determination of the cause. If the case goes to judgment on appeal, any stay thereafter shall be in accordance with Section 71-6 (motions for reconsideration), Section 84-3 (petitions for certification by the Connecticut Supreme Court), and Section 71-7 (petitions for certiorari by the United States Supreme Court).

(b) **Matters in which no automatic stay is available under this rule**

Under this section, there shall be no automatic stay in actions concerning attorneys pursuant to Chapter 2 of these rules, in juvenile matters brought pursuant to Chapters 26 through 35a, or in any administrative appeal except as otherwise provided in this subsection.

Unless a court shall otherwise order, any stay that was in effect during the pendency of any

administrative appeal in the trial court shall continue until the filing of an appeal to the Appellate Court or the expiration of the appeal period, or any new appeal period, as provided in Section 63-1. If an appeal to the Appellate Court is filed, any further stay shall be sought pursuant to Section 61-12.

For purposes of this rule, "administrative appeal" means an appeal filed from a final judgment of the Compensation Review Board or filed from a final judgment of the trial court rendered in an appeal from a decision of any officer, board, commission, or agency of the state or of any political subdivision thereof. In addition to appeals filed pursuant to the Uniform Administrative Procedure Act, "administrative appeal" includes, among other matters, zoning appeals, teacher tenure appeals, tax appeals and unemployment compensation appeals.

(c) **Stays in family matters and cases involving orders of civil protection, and appeals from decisions of the Superior Court in family support magistrate matters**

Unless otherwise ordered, no automatic stay shall apply to orders of relief from physical abuse pursuant to General Statutes § 46b-15, to orders of civil protection pursuant to General Statutes § 46b-16a, to orders for exclusive possession of a residence pursuant to General Statutes § 46b-81 or § 46b-83 or to orders of periodic alimony, support, custody or visitation in family matters brought pursuant to Chapter 25, or to any decision of the Superior Court in an appeal of a final determination of a support order by a family support magistrate brought pursuant to Chapter 25a, or to any later modification of such orders. The automatic orders set forth in Section 25-5 (b) (1), (2), (3), (5) and (7) shall remain in effect during any appeal period and, if an appeal is filed, until the final determination of the cause unless terminated, modified or amended further by order of a judicial authority upon motion of either party.

Any party may file a motion to terminate or impose a stay in matters covered by this subsection, either before or after judgment is rendered, based upon the existence or expectation of an appeal. Such a motion shall be filed in accordance with the procedures in subsection (e) of this rule or Section 61-12. The judge hearing such motion may terminate or impose a stay of any order, pending appeal, as appropriate, after considering (1) the needs and interests of the parties, their children and any other persons affected by such order; (2) the potential prejudice that may be caused to the parties, their children and any other persons affected, if a stay is entered, not entered or is terminated; (3) if the appeal is from a judgment of dissolution, the need to preserve, pending appeal, the mosaic of orders established in the judgment; (4) the need to preserve the rights of the party taking the appeal to obtain effective relief if the appeal is successful; (5) the effect, if any, of the automatic orders under Section 25-5 on any of the foregoing considerations; and (6) any other factors affecting the equities of the parties. The judge who entered the order in a family matter from which an appeal lies may terminate any stay in that matter upon motion of a party as provided in this subsection or sua sponte, after considering the factors set forth in this subsection or if the judge is of the opinion that an extension of time to appeal is sought or the appeal is filed only for delay. Whether acting on a motion of a party or sua sponte, the judge shall hold a hearing prior to terminating the stay.

(d) **Termination of stay**

In all cases not governed by subsection (c), termination of a stay may be sought in accordance with subsection (e) of this rule. If the judge who tried the case is of the opinion that (1) an extension to appeal is sought, or the appeal is filed, only for delay or (2) the due administration of justice so requires, the judge may at any time, upon motion or sua sponte, order that the stay be terminated. Whether acting on a motion of a party or sua sponte, the judge shall hold a hearing prior to terminating the stay.

(e) **Motions to terminate stay**

(1) A motion to terminate a stay of execution filed before judgment is entered shall be filed with the trial court, and the judge who tried or presided over the matter may rule upon the motion when judgment is entered. If such a motion is filed after judgment but before an appeal is filed, the motion shall be filed with the clerk of the trial court and may be ruled upon by the trial judge thereafter.

(2) After an appeal is filed, such a motion shall be filed with the appellate clerk and shall be forwarded by the appellate clerk to the trial judge for a decision. If the judge who tried or presided over the case is unavailable, the motion shall be forwarded to the clerk of the trial court in which the case was tried, who shall assign the motion for a hearing and decision to any judge of the Superior Court.

(3) Upon hearing and consideration of the motion, the trial court shall file with the clerk of the trial court its written or oral memorandum of decision that shall include the factual and legal basis therefor. If oral, the decision shall be transcribed by an official court reporter or court recording monitor and signed by the trial court. If an appeal has not been filed, the clerk shall enter

the decision on the trial court docket and shall send notice of the decision to counsel of record. If an appeal has been filed, the clerk of the trial court shall enter the decision on the trial court docket and send notice of the decision to the appellate clerk, and the appellate clerk shall issue notice of the decision to all counsel of record.

(f) **Motions to request stay**

Requests for a stay pending appeal where there is no automatic stay shall be governed by Section 61-12.

(For stays of execution in criminal cases, see Section 61-13.)

(g) **Strict foreclosure—motion rendering ineffective a judgment of strict foreclosure**

In any action for foreclosure in which the owner of the equity has filed, and the court has denied, at least two prior motions to open or other similar motion, no automatic stay shall arise upon the court's denial of any subsequent contested motion by that party, unless the party certifies under oath, in an affidavit accompanying the motion, that the motion was filed for good cause arising after the court's ruling on the party's most recent motion. Such affidavit shall recite the specific facts relied on in support of the moving party's claim of good cause. If, notwithstanding the submission of such an affidavit of good cause, the plaintiff contends that there is no good cause to stay the court's judgment of strict foreclosure pending resolution of the appeal, the plaintiff may seek termination of the automatic stay by filing a motion requesting such relief accompanied by an affidavit stating the basis for the plaintiff's claim. In the event such a motion to terminate stay is filed, it shall be set down for argument and the taking of evidence, if necessary, on the second short calendar next following the filing of the motion. There shall be no automatic appellate stay in the event that the court grants the motion to terminate the stay and, if necessary, sets new law dates. There shall be no automatic stay pending a motion for review of an order terminating a stay under this subsection.

(h) **Foreclosure by sale—motion rendering ineffective a judgment of foreclosure by sale**

In any action for foreclosure in which the owner of the equity has filed a motion to open the judgment or extend the scheduled sale date or other similar motion, or a motion for reargument or reconsideration of the denial of such a motion, which motion was denied fewer than twenty days prior to the scheduled sale date, the sale shall proceed as scheduled notwithstanding the court's denial of the motion, but no motion for approval of the sale shall be considered until the expiration of the appeal period following the denial of the motion without an appeal having been filed. The trial court shall not vacate the automatic stay following its denial of the motion during such appeal period.

(P.B. 1978-1997, Sec. 4046.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended July 21, 1999, to take effect Jan. 1, 2000; amended July 26, 2000, to take effect Jan. 1, 2001; amended Oct. 10, 2001, to take effect Jan. 1, 2002; amended May 12, 2004, to take effect Jan. 1, 2005; amended July 26, 2012, to take effect Jan. 1, 2013; amended July 11, 2013, to take effect Oct. 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended March 15, 2017, to take effect June 15, 2017; amended July 23, 2019, to take effect Jan. 1, 2020; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 61-12. Discretionary Stays

(Amended July 21, 1999, to take effect Jan. 1, 2000.)

In noncriminal matters in which the automatic stay provisions of Section 61-11 are not applicable and in which there are no statutory stay provisions, any motion for a stay of the judgment or order of the Superior Court pending appeal shall be filed in the trial court. If the judge who tried the case is unavailable, the motion may be decided by any judge of the Superior Court. Such a motion may also be filed before judgment and may be ruled upon at the time judgment is rendered unless the court concludes that a further hearing or consideration of such motion is necessary. A temporary stay may be ordered sua sponte or on written or oral motion, ex parte or otherwise, pending the filing or consideration of a motion for stay pending appeal. The motion shall be considered on an expedited basis and the granting of a stay of an order for the payment of money may be conditioned on the posting of suitable security.

In the absence of a motion filed under this section, the trial court may order, sua sponte, that proceedings to enforce or carry out the judgment or order be stayed until the time to file an appeal has expired or, if an appeal has been filed, until the final determination of the cause. A party may file a motion to terminate such a stay pursuant to Section 61-11.

In determining whether to impose a stay in a family matter, the court shall consider the factors set forth in Section 61-11 (c).

(P.B. 1978-1997, Sec. 4047.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended July 26, 2012, to take effect Jan. 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 61-13. Stay of Execution in Criminal Case

(Amended July 21, 1999, to take effect Jan. 1, 2000.)

Except as otherwise provided in this rule, a judgment in a criminal case shall be stayed from the time of the judgment until the time to file an appeal has expired, and then, if an appeal is filed, until ten days after its final determination. The stay

provisions apply to an appeal from a judgment, to an appeal from a judgment on a petition for a new trial and to a writ of error, where those matters arise from a criminal conviction or sentence. Unless otherwise provided in this rule, all stays are subject to termination under subsection (d).

(a) **Appeal by defendant arising from a sentence**

(1) **Sentence of imprisonment**

A sentence of imprisonment shall be stayed automatically by an appeal, provided the defendant is released on bail.

(2) **Sentence of probation or conditional discharge**

Upon motion by the defendant to the trial court, a sentence of probation or conditional discharge may be stayed if an appeal is filed. If the sentence is stayed, the court shall fix the terms of the stay. If the sentence on appeal is not stayed, the court shall specify when the term of probation shall commence. If the sentence is not stayed and a condition of the sentence is restitution or other payment of money, the court shall order that such payments be made to the clerk of the trial court to be held by said clerk until ten days after final determination of the appeal.

(3) **Sentence of a fine**

A sentence to pay a fine shall be stayed automatically by an appeal, and the stay shall not be subject to termination.

(4) **Sentencing sanctions of restitution and forfeiture**

The execution of a sanction of restitution or forfeiture of property, which was imposed as part of a sentence, shall be stayed automatically by an appeal. Upon motion by the state or upon its own motion, the trial court may issue orders reasonably necessary to ensure compliance with the sanction upon final disposition of the appeal.

(5) **Other sentencing sanctions**

Upon motion by the defendant, other sanctions imposed as part of a sentence, including those imposed under General Statutes §§ 53a-40c, 53a-40e, 54-102b, 54-102g, and 54-260, may be stayed by an appeal. If the sanction is stayed, the trial court may issue orders reasonably necessary to ensure compliance with the sanction upon final disposition of the appeal.

(b) **Appeal by defendant from presentence order**

In an appeal from a presentence order where the defendant claims that an existing right, such as a right not to be tried, will be irreparably lost if the order is not reviewed immediately, the appeal shall stay automatically further proceedings in the trial court.

(c) **Appeal by the state from a judgment**

In an appeal by the state, the appeal shall stay automatically further proceedings in the trial court until ten days after the final determination of the appeal. The defendant shall be released pending determination of an appeal by the state from any judgment not resulting in a sentence, the effect of which is to terminate the entire prosecution.

(d) **Motion for stay or to terminate a stay**

A motion for stay or a motion to terminate a stay filed before an appeal is filed shall be filed with the trial court. After an appeal is filed, such motions shall be filed with the appellate clerk and shall be forwarded by the appellate clerk to the trial judge for a decision. If the judge who tried or presided over the case is unavailable, the motion shall be forwarded to the clerk of the court in which the case was tried and shall be assigned for a hearing and decision to any judge of the Superior Court. Upon hearing and consideration of the motion, the trial court shall file with the clerk of the trial court a written or oral memorandum of decision that shall include the factual and legal basis therefor. If oral, the decision shall be transcribed by an official court reporter or court recording monitor and signed by the trial court. The trial court shall send notice of the decision to the appellate clerk who shall issue notice of the decision to all counsel of record. If an appeal has not been filed, the clerk of the trial court shall enter the decision on the trial court docket and shall send notice of the decision to counsel of record. Pending the filing or consideration of a motion for stay, a temporary stay may be ordered sua sponte or on written or oral motion.

In appeals by the defendant from a presentence order and appeals by the state from a judgment, the judge who tried the case may terminate any stay, upon motion and hearing, if the judge is of the opinion that (1) an extension to appeal is sought, or the appeal is filed only for delay, or (2) the due administration of justice so requires.

(P.B. 1978-1997, Sec. 4048.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended Oct. 10, 2001, to take effect Jan. 1, 2002; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 61-14. Review of Order concerning Stay; When Stay May Be Requested from Court Having Appellate Jurisdiction

(Amended July 23, 1998, to take effect Jan. 1, 1999.)

(a) The sole remedy of any party desiring the court to review an order concerning a stay of execution shall be by motion for review under Section 66-6. Execution of an order of the court terminating a stay of execution shall be stayed for ten days from the issuance of notice of the order, and if a motion for review is filed within that period, the order shall be stayed pending decision of the

motion, unless the court having appellate jurisdiction rules otherwise.

A motion for extension of time to file a motion for review of a ruling concerning a stay of execution must be filed in the trial court but shall not automatically stay the execution after the ten days has expired, except that the trial judge may order a stay pending a ruling on the motion for extension of time.

(b) In any case in which there is no automatic stay of execution and in which the trial court denies, or refuses to rule on, a motion for stay, an aggrieved party may file a motion requesting a stay of execution of the judgment from the court having appellate jurisdiction pending the filing of and ruling upon a motion for review. The motion must be filed with the appellate clerk. The motion must clearly state on the first page that it seeks a temporary stay of execution of the judgment pursuant to Section 61-14 (b).

(c) Any stay of proceedings that was in effect during the pendency of the motion for review shall continue, unless the court having appellate jurisdiction rules otherwise, until the time for filing a motion for reconsideration under Section 71-5 has expired. If such a timely motion for reconsideration is filed, any stay that was in effect shall continue until its disposition and, if it is granted, until the matter is finally determined.

(d) A ruling concerning a stay is a judgment in a trial to the court for purposes of Section 64-1, and the trial court making such a ruling shall state its decision, either orally or in writing, in accordance with the requirements of that section.

(P.B. 1978-1997, Sec. 4049. See also Secs. 66-2 and 66-3.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2021, to take effect Jan. 1, 2022; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 61-15. Stay of Execution in Death Penalty Case

[Repealed as of Jan. 1, 2024.]

Sec. 61-16. Notice of Bankruptcy Filing, Order of Bankruptcy Court Granting Relief from Automatic Stay and Disposition of Bankruptcy Case

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2020, to take effect Jan. 1, 2021.)

(a) If a party to an appeal files a bankruptcy petition or is a debtor named in an involuntary bankruptcy petition, that party shall immediately file a notice with the appellate clerk, including any supporting documentation from the Bankruptcy Court file, setting forth the date the bankruptcy petition was filed, the Bankruptcy Court in which the petition was filed, the name of the bankruptcy debtor, the docket number of the bankruptcy case and how the automatic bankruptcy stay applies to the case on appeal. Any appearing party seeking to challenge the application of the automatic bankruptcy stay shall immediately file a notice with the appellate clerk, including any supporting documentation from the Bankruptcy Court file.

(b) If the Bankruptcy Court grants relief from the automatic bankruptcy stay, in rem relief regarding the property or any other pertinent relief, the party obtaining such relief shall immediately file a notice with the appellate clerk indicating such relief.

(c) Upon resolution of the bankruptcy case, the party who filed the bankruptcy petition or who was the debtor named in an involuntary bankruptcy petition shall immediately file a notice with the appellate clerk, including any supporting documentation from the Bankruptcy Court file, indicating that the case has been resolved in the Bankruptcy Court. Failure to comply with the notice requirement of this rule may result in the dismissal of the appeal or the imposition of sanctions pursuant to Section 85-1. Any other appearing party may also file a notice with the appellate clerk, including any supporting documentation from the Bankruptcy Court file, indicating that the case has been resolved in the Bankruptcy Court.

(d) Until resolution of the bankruptcy case or relief from the automatic bankruptcy stay, the appellant and the debtor shall file a notice of the status of the bankruptcy case with the appellate clerk every six months, unless otherwise ordered by the court. Failure to comply with the notice requirement of this rule may result in the imposition of sanctions pursuant to Section 85-2 upon the resolution of the bankruptcy case or relief from the bankruptcy stay.

(Adopted July 24, 2002, to take effect Oct. 1, 2002; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2020, to take effect Jan. 1, 2021; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In subsection (c), what is now the second sentence was added. Subsection (d) was added.

COMMENTARY—2026: The purpose of these amendments is to make it the parties' responsibility to keep the reviewing court informed of the status of bankruptcy cases when there is a bankruptcy stay in place.

CHAPTER 62

CHIEF JUDGE, APPELLATE CLERK AND DOCKET: GENERAL ADMINISTRATIVE MATTERS

Sec.
62-1. Chief Judge
62-2. Clerk
62-3. Entry of Cases
62-4. Case To Remain on Docket of Trial Court
62-5. Changes in Parties
62-6. Signature on Documents
62-7. Matters of Form; Filings; Delivery and Certification to Counsel of Record
62-8. Names of Counsel; Appearance
62-8A. Attorneys of Other Jurisdictions Participating Pro Hac Vice on Appeal
62-9. Withdrawal of Appearance
62-9A. Hybrid Representation; Removal or Substitution of Counsel in Criminal and Habeas Corpus Appeals
62-10. Files To Be Available to Parties
62-11. Files and Records Not To Be Removed

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 62-1. Chief Judge

(a) The chief justice shall designate one of the judges of the Appellate Court as chief judge of the Appellate Court.

(b) With the approval of the chief justice, the chief judge shall (1) schedule such sessions as may be necessary, at such locations as the facilitation of court business requires, (2) designate as many panels as may be necessary, and assign three judges to each panel, and (3) designate a presiding judge for each panel on which the chief judge does not sit.

(P.B. 1978-1997, Sec. 4028.)

Sec. 62-2. Clerk

The justices of the Supreme Court shall appoint an appellate clerk who shall be the chief clerk of the Supreme Court and of the Appellate Court, but who shall not be the chief clerk of any judicial district. As used in these rules, the clerk of any trial court from which an appeal is filed shall be referred to as the clerk of the trial court.

(P.B. 1978-1997, Sec. 4029.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 62-3. Entry of Cases

Appeals, reservations, writs of error, original jurisdiction actions, and other matters filed in accordance with the procedures set forth in Sections 60-7, 60-8, and 63-3, shall be docketed upon filing subject to return or rejection for noncompliance with the Rules of Appellate Procedure.

(P.B. 1978-1997, Sec. 4031.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 24, 2018, to take effect Jan. 1, 2019.)

Sec. 62-4. Case To Remain on Docket of Trial Court

A case that has been appealed shall remain on the docket of the court where it was tried until the appeal is decided or terminated.

(P.B. 1978-1997, Sec. 4032.)

Sec. 62-5. Changes in Parties

Any change in the parties to an action pending an appeal shall be made in the court in which the appeal is pending. The appellate clerk shall notify the clerk of the trial court of any change.

(P.B. 1978-1997, Sec. 4033.) (Amended July 19, 2022, to take effect Jan. 1, 2023; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What was the second paragraph was deleted.

COMMENTARY—2026: The purpose of this amendment is to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 62-6. Signature on Documents

(Amended March 15, 2017, to take effect June 15, 2017.)

(a) All documents shall be signed by counsel of record. Attorneys shall sign electronically filed documents and electronically submitted briefs by entering their individual juris number during the filing transaction. Self-represented parties shall sign electronically filed documents and electronically submitted briefs by entering their E-Services user identification during the filing transaction. If a document or brief is electronically filed by more than one self-represented party, it must include the E-Services user identification or written signature of each self-represented party filing the document.

(b) All documents, except Judicial Branch forms, must include a signature block at the end of the document or brief, but before the appendix, if any. The signature block shall include the name, phone number, address, and, unless filed by counsel of record that are excluded from electronic filing, email address for counsel of record filing the document.

(c) An attorney may assist a client in preparing a document or brief to be signed and filed by the

client. In such cases, the attorney shall insert the notation "prepared with assistance of counsel" on any document or brief prepared by the attorney. The attorney is not required to sign the document or brief, and the filing of such a document or brief shall not constitute an appearance by the attorney.

(P.B. 1978-1997, Sec. 4030.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Aug. 1, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended March 15, 2017, to take effect June 15, 2017; amended June 27, 2023, to take effect Jan. 1, 2024.)

Sec. 62-7. Matters of Form; Filings; Delivery and Certification to Counsel of Record

(a) Counsel of record must file papers in a timely manner and in compliance with the appellate rules. The appellate clerk may return any noncomplying papers and shall indicate on the return how the papers have failed to comply with the appellate rules. If a party is exempt from the requirements of electronic filing pursuant to Section 60-8, the clerk shall upload copies of the noncomplying papers into the file before returning them. When a timely, noncomplying document is returned, a complying document will be deemed timely filed if it is refiled with the appellate clerk within seven days of the notice date indicated on the return. If a party is exempt from the requirements of electronic filing pursuant to Section 60-8, and a timely, noncomplying document is returned, a complying document will be deemed timely filed if it is refiled with the appellate clerk within fifteen days of the notice date indicated on the return. Subsequent returns for the same filing will not initiate a new refiling period. The refiling period shall not be extended. The time for responding to any paper shall not start to run until a complying paper is filed.

(b) All papers shall contain a certification that a copy has been delivered to each other counsel of record, except as provided in Section 63-4 (a) (4), which certification shall include the names and email addresses for counsel of record that were sent the document electronically, or the names and physical addresses for counsel of record that were sent or delivered a paper copy of the document. Papers filed by a party exempt from the requirements of electronic filing pursuant to Section 60-8, must also include certifications that (1) the document has been redacted or does not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law; and (2) the document complies with all applicable Rules of Appellate Procedure.

Parties that electronically file documents comply with (b) (1) and (b) (2) during the electronic filing transaction. Any request to deviate from the requirement regarding personal identifying information shall be filed with the appellate clerk pursuant to Section 67-2 (g) or 67-2A (g). Briefs and appendices require additional certifications pursuant to Section 67-2 or 67-2A. Other certifications may be required by the rules under which specific documents are filed.

(c) Any counsel of record who files a document electronically with the court must deliver it electronically to all other counsel of record, except as provided in Section 63-4 (a) (4), unless the intended recipient has notified the appellate clerk and all other counsel of record in writing that the recipient declines to accept electronic delivery of documents or the intended recipient is exempt from the requirements of electronic filing pursuant to Section 60-8. Any counsel of record who has signed an electronically filed document shall be deemed to have consented to electronic delivery under this section. Delivery by email is complete upon sending the electronic notice unless the party sending notice learns that the attempted delivery did not reach the email address of the intended recipient.

If the intended recipient has declined to accept electronic delivery or is exempt from the requirements of electronic filing, a document shall be delivered to counsel of record by hand or by first class or express mail delivered by the United States Postal Service or an equivalent commercial service, postage prepaid, to the last known address of the intended recipient.

(P.B. 1978-1997, Sec. 4014.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended July 24, 2002, to take effect Oct. 1, 2002; amended May 15, 2003, to take effect Jan. 1, 2004; amended June 5, 2013, to take effect July 1, 2013; amended June 18, 2014, to take effect Sept. 1, 2014; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2017, to take effect Oct. 8, 2017; amended Oct. 18, 2017, to take effect Jan. 1, 2018; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended June 15, 2021, to take effect Jan. 1, 2022; amended July 23, 2024, to take effect Jan. 1, 2025.)

TECHNICAL CHANGE: In the second paragraph of subsection (b), the references to Section 67-2 (g) and Section 67-2A (g) were updated.

Sec. 62-8. Names of Counsel; Appearance

Counsel of record for all parties appearing in the trial court at the time of the appellate filing shall be deemed to have appeared in the appeal unless permission to withdraw has been granted pursuant to Section 62-9 or unless an in place of appearance pursuant to Section 3-8 has been filed by other counsel or unless the other provisions of Section 3-9 apply. Counsel of record who filed the appeal or filed an appearance in the Appellate Court after the appeal was filed shall be deemed to have appeared in the trial court for

the limited purpose of prosecuting or defending the appeal. Unless otherwise provided by statute or rule, counsel who have so appeared shall be entitled to review all trial court docket sheets and files, including sealed files, and shall be entitled to participate in proceedings in the trial court on motions filed in the trial court pursuant to Section 66-1 and motions filed in the Appellate Court but referred to the trial court for decision.

This rule shall not be deemed to permit appellate counsel to review records that were sealed as to trial counsel but retained in the trial court file for appellate review.

This rule shall not be deemed to excuse trial counsel with respect to preserving a defendant's right to appeal pursuant to Section 63-7; nor shall this rule prevent trial counsel from moving for a withdrawal of appearance pursuant to Section 62-9.

(P.B. 1978-1997, Sec. 4034.) (Amended Sept. 8, 2004, to take effect Jan. 1, 2005; amended May 4, 2006, to take effect Jan. 1, 2007; amended Jan. 4, 2007, to take effect Jan. 1, 2008; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended June 27, 2023, to take effect Jan. 1, 2024.)

Sec. 62-8A. Attorneys of Other Jurisdictions Participating Pro Hac Vice on Appeal

(a) An attorney, who upon written application pursuant to Section 2-16 has been permitted by a judge of the Superior Court to participate in the presentation of a cause or appeal pending in this state, shall be allowed to participate in any appeal of said cause without filing a written application to the court having jurisdiction over the appeal and without paying the filing fee. All terms, conditions and obligations set forth in Section 2-16 shall remain in full effect. The chief clerk of the Superior Court for the judicial district in which the cause originated shall continue to serve as the agent upon whom process and notice of service may be served.

(b) Any attorney who is in good standing at the bar of another state and who does not already have a pro hac vice appearance in the underlying matter, may apply to participate in the presenta-tion of an appeal. Such application shall be filed by a member of the bar of this state using form JD-CL-141, Application for Permission for Attorney to Appear Pro Hac Vice in a Court Case.

Such application shall be accompanied by a completed affidavit on form JD-CL-143, Affidavit of Attorney Seeking Permission to Appear Pro Hac Vice, and the filing fee shall be paid with the court for the application submitted pursuant to General Statutes § 52-259 (i).

A member of the bar of this state must be present at all proceedings and arguments and must sign all motions, briefs and other papers filed with the court having jurisdiction over the appeal and assume full responsibility for them and for the conduct of the appeal and of the attorney to whom such privilege is accorded.

(c) Upon the granting of an application to appear pro hac vice, the clerk of the court in which the application is granted shall immediately notify the Statewide Grievance Committee of such action.

(Adopted May 4, 2006, to take effect Jan. 1, 2007; amended Jan. 4, 2007, to take effect Jan. 1, 2008; amended June 27, 2013, to take effect Oct. 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2017, to take effect Oct. 8, 2017; amended June 15, 2021, to take effect Jan. 1, 2022; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 62-9. Withdrawal of Appearance

(a) An attorney or party whose appearance has been filed shall be deemed to have withdrawn such appearance upon failure to file a written objection within ten days after written notice has been given or mailed to such attorney or party that a new appearance has been filed in place of the appearance of such attorney or party in accordance with Section 62-8.

(b) An attorney may, by motion, seek to withdraw his or her appearance for a party or parties provided that a substitute appearance representing the same party or parties has been entered on the docket. A motion to withdraw pursuant to this subsection shall state that an additional appearance has been entered and that notice of the withdrawal has been given to the party or parties. The appellate clerk may as of course grant the motion if the additional appearance has been entered.

(c) Except as provided in subsections (a) and (b), no attorney whose appearance has been entered on the docket shall withdraw his or her appearance without leave of the court. A motion for leave to withdraw shall be filed with the appellate clerk in accordance with Sections 66-2 and 66-3. The motion shall include the current address of the party or parties as to whom the attorney seeks to withdraw. No motion for leave to withdraw shall be granted until the court is satisfied that reasonable notice has been given to the party or parties being represented and to other counsel of record. Reasonable notice to the party or parties may be satisfied by filing along with the motion, a certified or registered mail return receipt signed by the individual party or parties represented by the attorney.

(d) (1) A motion for leave to withdraw appearance of appointed appellate counsel filed pursuant to Section 23-41 (a) or 43-34, and supporting documentation, shall be filed under seal with the

appellate clerk. Except as otherwise provided herein, the form of the motion shall comply with Sections 66-2 and 66-3. The brief or memorandum of law accompanying the motion shall comply with Section 23-41 (b) or 43-35 in form and substance. The transcript of the relevant proceedings shall be filed concurrently with the motion to withdraw.

(2) The motion and supporting brief or memorandum of law shall be delivered to the petitioner or defendant. Counsel shall deliver a notice that a motion for leave to withdraw as appointed counsel has been filed, but shall not deliver a copy of the motion and supporting brief or memorandum of law to opposing counsel of record. The motion shall contain a certification that such notice has been delivered to opposing counsel of record and that a copy of the motion and supporting brief or memorandum of law has been delivered to the petitioner or defendant.

(3) The motion, brief or memorandum of law, and transcript shall be referred to the trial court for decision. If the trial court grants the motion to withdraw, counsel shall immediately notify his or her former client, by letter, of the status of the appeal, of the responsibilities necessary to prosecute the appeal, and that, if the former client wishes to challenge the trial court's decision allowing counsel to withdraw, the former client must file a motion for review with the Appellate Court in accordance with Section 66-6. Counsel shall file a copy of the letter with the appellate clerk. The trial court's decision shall be sealed and may be reviewed pursuant to Section 66-6. Subsequent motions regarding the trial court's decision on the motion to withdraw appointed counsel shall also be filed under seal.

(4) The appellate clerk shall maintain all filings and related decisions pursuant to this subsection under seal. The panel hearing the merits of the appeal shall not view any briefs and materials filed under seal pursuant to this subsection.

(P.B. 1978-1997, Sec. 4035.) (Amended Jan. 29, 2009, to take effect March 1, 2009; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended July 23, 2020, to take effect Jan. 1, 2021; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, subsection (b) provided: "An attorney may, by motion, withdraw his or her appearance for a party after an additional appearance representing the same party has been entered on the docket. A motion to withdraw pursuant to this subsection shall state that an additional appearance has been entered on appeal. The appellate clerk may as of course grant the motion if the additional appearance has been entered."

In addition, "or parties" was added after "party" twice in subsection (c).

COMMENTARY—2026: The purpose of these amendments is to ensure that clients are notified when an attorney has moved to withdraw his or her appearance, even when there is another appearance on file.

Sec. 62-9A. Hybrid Representation; Removal or Substitution of Counsel in Criminal and Habeas Corpus Appeals

(Amended Jan. 29, 2009, to take effect March 1, 2009.)

On appeal, a defendant or habeas petitioner has no right to self-representation while represented by counsel. If an indigent defendant or habeas petitioner wishes to replace appointed counsel or remove appointed counsel and appear as a self-represented party, in lieu of such counsel, the defendant or habeas petitioner shall file a motion with the appellate clerk making such request and setting forth the reasons therefor. A copy of such motion shall be delivered, in accordance with Section 62-7, to the attorney sought to be removed or replaced and to the state.

The appellate clerk shall forward the motion to the trial judge, who shall conduct a hearing and enter appropriate orders consistent with the relevant provisions of Chapter 44 of these rules. The trial court shall send notice of the order to all counsel of record and to the appellate clerk.

(Adopted Sept. 8, 2004, to take effect Jan. 1, 2005; amended Jan. 29, 2009, to take effect March 1, 2009; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 62-10. Files To Be Available to Parties

Subject to the provisions of Section 62-11, the clerk of the trial court and the appellate clerk or the appellate messenger having custody of the files, evidence and exhibits in any case shall make them available for the use of any party or counsel to that party, whether or not the file is sealed. This provision applies to counsel who have appeared in either the trial court or the Appellate Court. This rule shall not be deemed to permit appellate counsel to review records that were sealed as to trial counsel but retained in the trial court file for appellate review.

(P.B. 1978-1997, Sec. 4036.) (Amended Sept. 8, 2004, to take effect Jan. 1, 2005; amended June 15, 2016, to take effect Aug. 1, 2016.)

COMMENTARY—August, 2016: In civil and criminal cases that were filed on or after January 1, 2016, and that do not contain protected information, a case summary page and electronically filed documents in that case are available to the public on the Judicial Branch website. In family and child protection matters and in cases that contain protected information, attorneys and self-represented parties who have valid appearances in the case may view the case summary page and electronically filed documents in that case through E-Services. The applicable procedures for obtaining on-line access to these documents, set forth in the Appellate E-filing Procedures and Technical Standards, require a self-represented party to submit an "Appellate Electronic Access Form" and to provide the appellate clerk's office with a valid photo identification.

Sec. 62-11. Files and Records Not To Be Removed

No files, records or exhibits in the custody of officers of the court shall be removed from the court except by the appellate clerk, the reporter of judicial decisions or by order or permission of an appellate jurist.

(P.B. 1978-1997, Sec. 4037.)

CHAPTER 63

FILING THE APPEAL; WITHDRAWALS

Sec.
63-1. Time To Appeal
63-2. Expiration of Time Limitations; Counting Days; Hours of Operation
63-3. Filing of Appeal
63-3A. Appeals in E-Filed Cases [Repealed]
63-4. Additional Papers To Be Filed by Appellant and Appellee Subsequent to the Filing of the Appeal
63-5. Fees [Repealed]
63-6. Waiver of Fees, Costs and Security—Civil Cases
63-7. Waiver of Fees, Costs and Security—Criminal Cases
63-8. Ordering and Filing of Transcripts
63-8A. Electronic Copies of Transcripts
63-9. Filing Withdrawals of Appeals or Writs of Error
63-10. Preargument Conferences

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 63-1. Time To Appeal

(a) **General provisions**

Unless a different time period is provided by statute, an appeal must be filed within twenty days of the date notice of the judgment or decision is given. The appeal period may be extended if permitted by Section 66-1 (a). If circumstances give rise to a new appeal period as provided in subsection (c) of this rule, such new period may be similarly extended as long as no extension of the original appeal period was obtained.

If a motion is filed within the appeal period that might give rise to a new appeal period as provided in subsection (c) of this rule, the appeal may be filed either in the original appeal period, which continues to run, or in the new appeal period.

As used in this rule, "appeal period" includes any extension of such period obtained pursuant to Section 66-1 (a).

(b) **When appeal period begins**

If notice of the judgment or decision is given in open court, the appeal period shall begin on that day. If notice is given only by mail or by electronic delivery, the appeal period shall begin on the day that notice was sent to counsel of record by the clerk of the trial court. The failure to give notice of judgment to a nonappearing party shall not affect the running of the appeal period.

In criminal cases where the appeal is from a judgment of conviction, the appeal period shall begin when sentence is pronounced in open court.

In civil jury cases, the appeal period shall begin when the verdict is accepted.

(c) **New appeal period**

(1) **How new appeal period is created**

If a motion is filed within the appeal period that, if granted, would render the judgment, decision or acceptance of the verdict ineffective, either a new twenty day period or applicable statutory time period for filing the appeal shall begin on the day that notice of the ruling is given on the last such outstanding motion, except as provided for additur or remittitur in the next paragraph.

If a motion for additur or remittitur is filed within the appeal period and granted, a new twenty day appeal period shall begin upon the earlier of (A) acceptance of the additur or remittitur or (B) expiration of the time set for the acceptance. If the motion is denied, the new appeal period shall begin on the day that notice of the ruling is given.

Motions that, if granted, would render a judgment, decision or acceptance of the verdict ineffective include, but are not limited to, motions that seek: the opening or setting aside of the judgment; a new trial; the setting aside of the verdict; judgment notwithstanding the verdict; reargument of the judgment or decision; collateral source reduction; additur; remittitur; or any alteration of the terms of the judgment. Motions that do not give rise to a new appeal period include those that seek: clarification or articulation, as opposed to alteration, of the terms of the judgment or decision; a written or transcribed statement of the trial court's decision; or reargument of a motion listed in the previous paragraph.

If, within the appeal period, any motion is filed, pursuant to Section 63-6 or 63-7, seeking waiver of fees, costs and security or appointment of counsel, a new twenty day appeal period or statutory period for filing the appeal shall begin on the day that notice of the ruling is given on the last such outstanding motion. If a party files, pursuant to Section 66-6, a motion for review of any such motion, the new appeal period shall begin on the day that notice of the ruling is given on the motion for review.

(2) **Who may appeal during new appeal period**

If a new appeal period arises due to the filing of a motion that, if granted, would render a judgment,

decision or acceptance of the verdict ineffective, any party may file an appeal during the new appeal period regardless of who filed or prevailed upon such motion. If, however, a new appeal period arises due to the filing of a motion for waiver of fees, costs and security or a motion for appointment of counsel, only the party who filed such motion may file an appeal during the new appeal period.

(3) **What may be appealed during new appeal period**

The new appeal period may be used for appealing the original judgment or decision and/or for appealing any order that gave rise to the new appeal period. Such period may also be used for amending an existing appeal pursuant to Section 61-9 to challenge the ruling that gave rise to the new appeal period. Rulings on motions for waiver of fees, costs and security or motions for appointment of counsel may not be appealed during the new appeal period but may be challenged by motion for review in accordance with Section 66-6.

(d) **Simultaneous filing of motions**

Any party filing more than one motion that, if granted, would render the judgment, decision or acceptance of the verdict ineffective, shall file such motions simultaneously insofar as simultaneous filing is possible.

(P.B. 1978-1997, Sec. 4009.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended Sept. 22, 2004, to take effect Jan. 1, 2005; amended June 17, 2008, to take effect Jan. 1, 2009; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2017, to take effect Oct. 8, 2017; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 63-2. Expiration of Time Limitations; Counting Days; Hours of Operation

(Amended Oct. 18, 2016, to take effect Jan. 1, 2017.)

In determining the last day for filing any documents, the last day shall, and the first day shall not, be counted. Time shall be counted by calendar, not working, days. When the last day of any limitation of time for filing any document under these rules or an order of the court falls on a day when the office of the clerk of the trial court or of the appellate clerk is closed, the document may be filed on the next day when such office is open.

The appellate clerk's office shall be open from 8:30 a.m. until 5 p.m. on weekdays, with the exception of legal holidays and closures for exigent circumstances. The window at the appellate clerk's office shall be open from 8:30 a.m. until 4:30 p.m. From 4:30 p.m. until 5 p.m., paper briefs and paper documents filed by counsel of record who have received an exemption from the electronic filing requirements pursuant to Section 60-8, shall be placed in the lobby of the appellate clerk's office. All submissions placed in the lobby shall be considered filed as of that date. Upon review, the appellate clerk may return any noncompliant submission pursuant to Section 62-7 (a).

A document that is electronically received by the appellate clerk's office for filing after 5 p.m. on a day in which that office was open or is electronically received by that office for filing at any time on a day in which that office is closed, shall be deemed filed on the next business day that office is open. If a party is unable to electronically file a document because the court's electronic filing system is nonoperational for thirty consecutive minutes from 9 a.m. to 3 p.m. or for any period of time from 3 to 5 p.m. on the day on which the electronic filing is attempted, and such day is the last day for filing the document, the document shall be deemed to be timely filed if received by the appellate clerk's office on the next business day the electronic filing system is operational.

(P.B. 1978-1997, Sec. 4010.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017.)

TECHNICAL CHANGE: In the third paragraph, a time convention was updated.

Sec. 63-3. Filing of Appeal

All appeals shall be filed and all fees paid in accordance with the provisions of Section 60-7 or 60-8. The appeal will be docketed upon filing but may be returned or rejected for noncompliance with the Rules of Appellate Procedure.

The appellant must certify that a copy of the appeal form generated at the time of electronic filing and bearing the assigned docket number and electronic signature of the filer will immediately be delivered pursuant to Section 62-7 (c) to all counsel of record and, in criminal and habeas corpus matters, to the Office of the Chief State's Attorney, Appellate Bureau. The appellate clerk, upon receipt of the foregoing, shall deliver a copy of the appeal form to the clerk of the trial court. In criminal and habeas corpus matters, the appellate clerk shall deliver a copy of the appeal form to the Office of the Chief State's Attorney, Appellate Bureau, or to the attorney general, as appropriate.

(P.B. 1978-1997, Sec. 4012.) (Amended July 30, 2009, to take effect Jan. 1, 2010; amended March 25, 2010, to take effect May 1, 2010; amended June 27, 2013, to take effect Oct. 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 63-3A. Appeals in E-Filed Cases

[Repealed as of Jan. 1, 2016.]

Sec. 63-4. Additional Papers To Be Filed by Appellant and Appellee Subsequent to the Filing of the Appeal

(a) Within ten days of filing an appeal, the appellant shall also file with the appellate clerk the following:

(1) A preliminary statement of the issues (JD-SC-038) intended for presentation on appeal. If any appellee wishes to: (A) present for review alternative grounds upon which the judgment may be affirmed; (B) present for review adverse rulings or decisions of the court which should be considered on appeal in the event the appellant is awarded a new trial; or (C) claim that a new trial rather than a directed judgment should be ordered if the appellant is successful on the appeal, that appellee shall file a preliminary statement of issues within twenty days from the filing of the appellant's preliminary statement of the issues. Except as otherwise provided, a party may as of right file amendments to the preliminary statement of issues at any time until that party's brief is filed.

Whenever the failure to identify an issue in a preliminary statement of issues prejudices an opposing party, the court may refuse to consider such issue.

(2) A designation of the proposed contents of the clerk appendix (JD-SC-039) that is to be prepared by the appellate clerk under Section 68-2A listing the specific documents docketed in the case file that the appellant deems are necessary to include in the clerk appendix for purposes of presenting the issues on appeal, including their dates of filing in the proceedings below, and, if applicable, their number as listed on the docket sheet. The appellant shall limit the designation to the documents referenced in Section 68-3A for inclusion in the clerk appendix. If any other party disagrees with the inclusion of any documents designated by the appellant, or deems it necessary to include other documents docketed in the case file in the clerk appendix, that party may, within seven days from the filing of the appellant's designation of the proposed contents of the clerk appendix, file its own designation of the proposed contents of the clerk appendix.

(3) A certificate stating that no transcript is deemed necessary (JD-SC-040) or a transcript order confirmation from the official court reporter pursuant to Section 63-8. If the appellant is to rely on any transcript delivered prior to the filing of the appeal, the transcript order confirmation shall indicate that an electronic version of a previously delivered transcript has been ordered.

If any other party deems any other parts of the transcript necessary that were not ordered by the appellant, that party shall, within twenty days of the filing of the appellant's transcript papers, file a transcript order confirmation for an order placed in compliance with Section 63-8. If the order is for any transcript delivered prior to the filing of the appeal, the transcript order confirmation shall indicate that an electronic version of a previously delivered transcript has been ordered.

If, after filing a certificate regarding transcript, a party determines that additional transcripts from proceedings in the trial court action that is on appeal are necessary for the presentation of the issues on appeal, that party may amend their certificate regarding transcript and file a transcript order confirmation from the official court reporter for the additional dates that are deemed necessary. Pursuant to this section, parties are permitted one amendment as of right to their transcript order, except as provided herein. The following amendments require permission of the court: (A) any additional amendments after the initial amendment permitted pursuant to this section; (B) any amendments that seek to add transcripts from a different trial court matter; (C) any amendments that seek to add hearing dates that occurred after the appeal was filed, except as provided in Section 61-9; (D) any amendments sought after a final order for the appellant's brief has been issued; and (E) any amendments sought after the appellant's brief has been filed.

(4) A docketing statement (JD-SC-041) containing the following information to the extent known or reasonably ascertainable by the appellant: (A) the names and addresses of all parties to the appeal, and the names, addresses, and email addresses of trial and appellate counsel of record; (B) the case names and docket numbers of all pending cases, including appeals to the Supreme Court or Appellate Court, that arise from substantially the same controversy as the cause on appeal or involve issues closely related to those presented by the appeal; (C) the case name and docket number with respect to any active criminal protective order, civil protective order, or civil restraining order that governs any of the parties to the appeal as well as the case name and docket number with respect to any such order that has expired or previously was requested but not issued; and (D) in criminal and habeas cases, the defendant's or petitioner's conviction(s) and sentence(s) that are the subject of the direct criminal or habeas appeal and whether the defendant or petitioner is incarcerated. If additional information is or becomes known to, or is reasonably ascertainable by the appellee, the appellee shall file a docketing statement supplementing the

information required to be provided by the appellant. Amendments to the docketing statement may be filed at any time.

When an appellant or an appellee is aware that one or more appellees have no interest in participating in the appeal, the appellant and any other appellees may be relieved of the requirement of certifying copies of filings to those appellees by designating the nonparticipating appellee(s) in a section of the docketing statement named "Nonparticipating Appellee(s)." This designation shall indicate that if no docketing statement in disagreement is filed, subsequent filings will not be certified to those appellees.

If an appellee disagrees with the nonparticipating designation, that appellee shall file a docketing statement indicating such disagreement within twenty days of the filing of that designation. All documents filed on or before the expiration of the time for an appellee to file a docketing statement in disagreement as stated above shall be delivered pursuant to Section 62-7 (b) to all counsel of record. If no docketing statement in disagreement is filed, subsequent filings need not be certified to nonparticipating appellees.

(b) If applicable, within ten days of filing an appeal, the appellant shall also file with the appellate clerk the following:

(1) A preargument conference statement (JD-SC-028A) in matters that are eligible for a preargument conference pursuant to Section 63-10, if all parties participating in the appeal are interested in attending a preargument conference.

(2) A constitutionality notice, in all noncriminal cases where the constitutionality of a state statute, rule, regulation, or executive action is called into question. Said notice shall identify the statute, rule, regulation, or executive action; the name and address of the party questioning it; and whether the constitutionality of the questioned item was upheld by the trial court. The appellate clerk shall deliver a copy of such notice to the attorney general. If a question becomes apparent to a party or to the court at any time after preliminary papers are filed, the party shall immediately file or amend the notice mandated by this section, and the court, even absent a party filing a notice, shall issue such notice. This section does not apply to habeas corpus matters based on criminal convictions, or to any case in which the attorney general is a party, has appeared on behalf of a party, or has filed an amicus brief in proceedings prior to the appeal.

(3) In matters in which documents are under seal, conditionally or otherwise, or limited as to disclosure, a notice identifying the time, date, scope and duration of the sealing order with a copy of the order. (See Section 77-2.)

(c) Failure to comply with this rule shall be deemed as sufficient reason to schedule a case for sanctions under Section 85-3 or for dismissal under Section 85-1.

(d) The use of the forms indicated in subdivisions (1), (2) and (3) of subsection (a) is optional. The party may instead draft documents in compliance with the rules.

(P.B. 1978-1997, Sec. 4013.) (Amended April 3, 2002, to take effect Nov. 1, 2002; amended Oct. 14, 2003, to take effect Jan. 1, 2004; amended Jan. 4, 2007, to take effect Jan. 1, 2008; amended April 6, 2011, to take effect Jan. 1, 2012; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended March 15, 2017, to take effect June 15, 2017; amended Oct. 18, 2017, to take effect Jan. 1, 2018; amended June 6, 2018, to take effect Sept. 1, 2018; amended Jan. 2, 2020, on an interim basis, to take effect Feb. 11, 2020, and amendment adopted July 23, 2020, to take effect Aug. 4, 2020; amended June 15, 2021, to take effect Oct. 1, 2021; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 23, 2024, to take effect Oct. 1, 2024 and Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What is now the third paragraph of subsection (a) (3) replaced "Amendments to the transcript statement may be made only upon the granting of a motion." Subsection (b) (4) was removed.

COMMENTARY—2018: The designation of an appellee as nonparticipating pursuant to Section 63-4 (a) (3) in no way affects that appellee's status in the appeal. The appellate clerk will continue to send notice to all parties pursuant to Section 60-4.

COMMENTARY—August, 2020: The purpose of this amendment is to require the appellant, at the time of the filing of the appeal, to indicate in the docketing statement whether a criminal protective order, civil protective order, or civil restraining order was requested or issued during any of the underlying proceedings to better enable the appellate clerk to ensure that protected information is not published on the Internet.

COMMENTARY—October, 2021: A new subdivision requiring the appellant or other party to designate the proposed contents of the clerk appendix that is to be prepared by the appellate clerk pursuant to Section 68-2A was added.

COMMENTARY—2024: These amendments update this section to correspond to new optional forms for the preliminary statement of the issues, designation of the proposed contents of the clerk appendix and certificate of transcript. Note that the preargument conference statement (JD-SC-028) in subsection (a) (5) is not optional. In addition, the purpose of the amendments to subsection (a) (4) (C) of this section is to assist the appellate clerk with its obligations under the Violence Against Women Act Reauthorization Act of 2022, as more specific information is requested to assist in the screening of appeals in civil matters for preargument conferences.

COMMENTARY—2026: The purpose of these amendments is to allow parties to file one amended transcript order form as of right, so long as certain conditions are met, to delineate when certain amendments require the permission of the court, and to provide that parties are required to file a certificate of interested entities or individuals only when the

reviewing court orders the parties to file the certificate when necessary.

TECHNICAL CHANGE: In subsection (a) (4), the docketing statement form number was added.

Sec. 63-5. Fees

[Repealed as of Jan. 1, 2016.]

Sec. 63-6. Waiver of Fees, Costs and Security—Civil Cases

If a party in any case where fees and costs may lawfully be waived is indigent and desires to appeal, that party may, within the time provided by the rules for taking an appeal, make written application to the trial court for relief from payment of fees, costs and expenses. The application must be under oath and recite, or it must be accompanied by an affidavit reciting, the grounds upon which the applicant proposes to appeal and the facts concerning the applicant's financial status. Where an application arises out of a habeas corpus proceeding, the application shall be handled pursuant to Section 63-7. Where an application arises out of a child protection matter, the application shall be handled pursuant to Section 79a-4.

The judicial authority shall act promptly on the application for waiver of fees, costs and expenses. If the application is denied in whole or in part, and the applicant wishes to challenge that denial, the applicant shall file a written request for a hearing, pursuant to Section 8-2, within ten days of the issuance of notice of the denial of the application. The clerk of the trial court shall assign the application for a hearing within twenty days of the filing of the request and the judicial authority shall act promptly on the application following the hearing.

If the court is satisfied that the applicant is indigent and has a statutory or constitutional right to court appointed counsel or a statutory right to appeal without payment of fees, costs and expenses, the court may (1) waive payment by the applicant of fees specified by statute and of taxable costs, and (2) order that the necessary expenses of prosecuting the appeal be paid by the state. The court may not consider the relative merits of a proposed appeal in acting upon an application pursuant to this section except that the court may consider the criteria contained in General Statutes § 52-259b.

Before incurring any expense in excess of $100, including the expense of obtaining a transcript of the necessary proceedings or testimony, the applicant shall obtain the permission of the judge who presided at the applicant's trial. The judge shall authorize a transcript at state expense only of the portions of testimony or proceedings which may be pertinent to the issues on appeal.

The sole remedy of any party desiring the court to review an order concerning the waiver of fees, costs and security shall be by motion for review under Section 66-6.

(P.B. 1978-1997, Sec. 4017.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended June 2, 2005, to take effect Jan. 1, 2006; amended June 18, 2014, to take effect Sept. 1, 2014; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 63-7. Waiver of Fees, Costs and Security—Criminal Cases

Any defendant in a criminal case who is indigent and desires to appeal may, within the time provided by the rules for taking an appeal, make written application to the trial court for relief from payment of fees, costs and expenses. The application must be under oath and recite, or it must be accompanied by an affidavit reciting, the grounds upon which the applicant proposes to appeal and the facts concerning the applicant's financial status.

The application must be sent to the public defender's office for investigation. The judicial authority shall assign the request for waiver of fees, costs and expenses for hearing within twenty days after filing, and the trial counsel, the trial public defender's office to which the application had been sent for investigation and the chief of legal services of the public defender's office shall be notified in writing by the clerk's office of the date of such hearing.

The judicial authority shall act promptly on the application following the hearing. Upon determination by the judicial authority that a defendant in a criminal case is indigent, the trial court may (1) waive payment by the defendant of fees specified by statute and of taxable costs, (2) order that the necessary expenses of prosecuting the appeal be paid by the state, and (3) appoint appellate counsel and permit the withdrawal of the trial attorney's appearance provided the judicial authority is satisfied that that attorney has cooperated fully with appellate counsel in the preparation of the defendant's appeal as set forth in Section 43-33.

When the judicial authority has appointed an attorney in private practice to represent the defendant upon appeal, the attorney shall obtain the approval of the judicial authority who presided at the trial before incurring any expense in excess of $100, including the expense of obtaining a transcript of the necessary proceedings or testimony. The judicial authority shall authorize a transcript at state expense only of the portions of proceedings or testimony which may be pertinent to the issues on appeal.

The sole remedy of any defendant desiring the court to review an order concerning the waiver of fees, costs and security or the appointment of

counsel shall be by motion for review under Section 66-6.

(P.B. 1978-1997, Sec. 4018.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2019, to take effect Jan. 1, 2020.)

Sec. 63-8. Ordering and Filing of Transcripts

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 27, 2023, to take effect Jan. 1, 2024.)

(a) Within ten days of filing an appeal, the appellant shall, subject to Section 63-6 or Section 63-7 if applicable, order from an official court reporter an electronic version of the transcript of the parts of the proceedings not already on file that the appellant deems necessary for the proper presentation of the appeal. Such order shall specify the case name, docket number, judge's name(s), and hearing date(s), and include a brief, detailed statement describing the parts of the proceedings of which a transcript has been ordered. If any other party deems other parts of the transcript necessary that were not ordered by the appellant, that party shall, within twenty days from the filing of the appellant's certificate that no transcript is deemed necessary or transcript order confirmation, similarly order those parts from an official court reporter. Upon submission of a transcript order, the ordering party will be provided with an order confirmation that includes the information required above.

(b) A party shall promptly make satisfactory arrangements for payment of the costs of the transcript, pursuant to guidelines established by the chief court administrator. After those arrangements have been made, an official court reporter shall provide to the ordering party an acknowledgment of the order, with an estimated date of delivery and estimated number of pages in the transcript order. The ordering party shall file the acknowledgment with the appellate clerk with certification pursuant to Section 62-7. If the final portion of the transcript cannot be delivered on or before the estimated delivery date on the acknowledgment, the official court reporter will, not later than the next business day, provide to the ordering party an amended transcript order acknowledgment with a revised estimated delivery date. The ordering party shall file the amended acknowledgment form immediately with the appellate clerk with certification pursuant to Section 62-7.

(c) Whenever an electronic transcript is ordered in accordance with this section, Court Transcript Services shall have an electronic version of the transcript produced and deliver it to the ordering party and the official court reporter. Upon receipt of all electronic versions of the transcript ordered, the official court reporter shall deliver to the ordering party a certificate of completion stating the total number of pages in the entire transcript order and the date of final delivery of the transcript order. The official court reporter shall then deliver the electronic transcripts to the appellate clerk, with a certification that the electronic version of the transcript is accurate and a copy of the certificate of completion.

(d) Upon receipt of the certificate of completion from the official court reporter, the ordering party shall file with the appellate clerk the certificate of completion along with a certification that a copy of the certificate of completion has been delivered to all counsel of record in accordance with Section 62-7.

(P.B. 1978-1997, Sec. 4019.) (Amended April 3, 2002, to take effect Nov. 1, 2002; amended July 11, 2012, to take effect Jan. 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended June 15, 2021, to take effect Oct. 1, 2021; amended June 27, 2023, to take effect Jan. 1, 2024.)

Sec. 63-8A. Electronic Copies of Transcripts

[Repealed as of Jan. 1, 2024.]

Sec. 63-9. Filing Withdrawals of Appeals or Writs of Error

Prior to oral argument or the date the appeal is assigned for disposition without oral argument, an appeal or writ of error may be withdrawn as of right by filing form JD-AC-008 with the appellate clerk. The appellate clerk shall forward a copy to the trial judge and the clerk of the trial court.

After oral argument or the date the appeal is assigned for disposition without oral argument, an appeal or writ of error may be withdrawn only on the granting of a motion to the court in which the matter is pending.

Unless an appeal or writ of error is withdrawn on the consent of the appellee without costs, costs shall be taxed as if the trial court judgment had been affirmed.

(P.B. 1978-1997, Sec. 4038.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016.)

Sec. 63-10. Preargument Conferences

The chief justice or the chief judge or a designee may, in cases deemed appropriate, direct that conferences of the parties be scheduled in advance of oral argument. All noncriminal cases are eligible for preargument conferences except habeas corpus appeals, appeals involving juvenile matters, including child protection appeals as defined in Section 79a-1, summary process appeals, foreclosure appeals, and appeals from the suspension of a motor vehicle license due to operating under the influence of liquor or drugs. In order for an eligible case to receive a preargument conference, the appellant shall file a preargument

conference statement pursuant to Section 63-4 (b) (1) certifying that all parties who are participating in the appeal are interested in attending a preargment conference.

In any exempt case, all parties appearing and participating in the appeal may file a joint request for a preargument conference. In a foreclosure case, the request for a preargument conference is sufficient if jointly submitted by the owner of the equity and the foreclosing party. In any exempt case, however, the chief justice or the chief judge or a designee may, if deemed appropriate, order a preargument conference.

The chief justice may designate a judge of the Superior Court, a senior judge or a judge trial referee to preside at a preargument conference. The scheduling of or attendance at a preargument conference shall not affect the duty of the parties to adhere to the times set for the filing of briefs. Failure of counsel of record to attend a preargument conference may result in the imposition of sanctions under Section 85-2. Unless other arrangements have been approved in advance by the presiding judge, parties shall be present at the preargument conference site and available for consultation. When a party against whom a claim is made is insured, an insurance adjuster for such insurance company shall be available by telephone at the time of such preargument conference unless the presiding judge, in his or her discretion, requires the attendance of the adjuster at the preargument conference. The preargument conference proceedings shall not be brought to the attention of the court by the presiding judge or any of the parties unless the preargument conference results in a final disposition of the appeal.

The following matters may be considered:

(1) Possibility of settlement;

(2) Simplification of issues;

(3) Amendments to the preliminary statement of issues;

(4) Transfer to the Supreme Court;

(5) Timetable for the filing of briefs;

(6) En banc review; and

(7) Such other matters as the presiding judge shall consider appropriate.

All matters scheduled for a preargument conference before a judge trial referee are referred to that official by the chief court administrator pursuant to General Statutes § 52-434a, which vests judge trial referees with the same powers and jurisdiction as Superior Court judges and senior judges, including the power to implement settlements by opening and modifying judgments.

(P.B. 1978-1997, Sec. 4103.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended April 6, 2011, to take effect Jan. 1, 2012; amended July 8, 2015, to take effect Jan. 1, 2016; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended July 31, 2019, to take effect Jan. 1, 2020; amended Jan. 12, 2021, on an interim basis, to take effect Jan. 26, 2021, and amendment adopted June 15, 2021, to take effect Jan. 1, 2022; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 23, 2024, to take effect Oct. 1, 2024.)

CHAPTER 64

PROCEDURE CONCERNING MEMORANDUM OF DECISION

Sec. 64-1. Statement of Decision by Trial Court; When Required; How Stated; Contents

Sec. 64-2. Exceptions to Section 64-1

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 64-1. Statement of Decision by Trial Court; When Required; How Stated; Contents

(Amended July 23, 1998, to take effect Jan. 1, 1999.)

(a) The trial court shall state its decision either orally or in writing, in all of the following: (1) in rendering judgments in trials to the court in civil and criminal matters, including rulings regarding motions for stay of executions, (2) in ruling on aggravating and mitigating factors in capital penalty hearings conducted to the court, (3) in ruling on motions to dismiss under Section 41-8, (4) in ruling on motions to suppress under Section 41-12, (5) in granting a motion to set aside a verdict under Section 16-35, and (6) in making any other rulings that constitute a final judgment for purposes of appeal under Section 61-1, including those that do not terminate the proceedings. The court's decision shall encompass its conclusion as to each claim of law raised by the parties and the factual basis therefor. If oral, the decision shall be recorded by an official court reporter or court recording monitor, and, if there is an appeal, the trial court shall create a memorandum of decision for use in the appeal by ordering a transcript of the portion of the proceedings in which it stated its oral decision. The transcript of the decision shall be signed by the trial judge and filed with the clerk of the trial court. This section does not apply in small claims actions and to matters listed in Section 64-2.

(b) If the trial judge fails to file a memorandum of decision or sign a transcript of the oral decision in any case covered by subsection (a), any party may file with the appellate clerk a notice that the decision has not been filed in compliance with subsection (a). The notice shall specify the trial judge involved and the date of the ruling for which no memorandum of decision was filed. The appellate clerk shall promptly notify the trial judge of the filing of the appeal and the notice. The trial court shall thereafter comply with subsection (a).

(P.B. 1978-1997, Sec. 4059.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended June 2, 2010, to take effect Jan. 1, 2011; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of subsection (b), "any party" replaced "the appellant."

COMMENTARY—2026: The purpose of this amendment is to allow any party to file a notice that the memorandum of decision has not been filed.

Sec. 64-2. Exceptions to Section 64-1

(a) In any uncontested matter where no aspect of the matter is in dispute, in any pendente lite family relations matter whether contested or uncontested, or in any dismissal under Section 14-3, the oral or written decision as provided in Section 64-1 is not required. The trial clerk shall, however, promptly notify the trial judge of the filing of the appeal.

(b) Within twenty days from the filing of an appeal from a contested pendente lite order or from a dismissal under Section 14-3 in which an oral or written decision has not been made pursuant to subsection (a), each party to the appeal shall file a brief with the trial court discussing the legal and factual issues in the matter. Within twenty days after the briefs have been filed by the parties, the court shall file a written memorandum of decision stating the factual basis for its decision on the issues in the matter and its conclusion as to each claim of law raised by the parties.

(P.B. 1978-1997, Sec. 4060.)

CHAPTER 65

TRANSFER OF MATTERS

(Amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec.
65-1. Transfer of Matter by Supreme Court
65-1A. Transfer of Matter on Recommendation of Appellate Court
65-2. Party Motion to Transfer Appeal, Writ of Error or Reservation
65-3. Transfer of Petition for Review of Bail Order from Appellate Court to Supreme Court
65-4. Transfer of Matter Brought to Wrong Court
65-5. Proceedings after Transfer

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 65-1. Transfer of Matter by Supreme Court

(Amended July 19, 2022, to take effect Jan. 1, 2023.)

Pursuant to General Statutes § 51-199 (c), the Supreme Court may transfer a matter to itself from the Appellate Court or from itself to the Appellate Court.

(P.B. 1978-1997, Sec. 4023.) (Amended June 5, 2013, to take effect July 1, 2013; amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 65-1A. Transfer of Matter on Recommendation of Appellate Court

If, at any time before the final determination of a matter, the Appellate Court is of the opinion that the matter is appropriate for Supreme Court review, the Appellate Court may notify the Supreme Court of the reasons why transfer is appropriate. The Supreme Court will then determine if the matter will be transferred.

(Adopted July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 65-2. Party Motion to Transfer Appeal, Writ of Error or Reservation

(Amended July 19, 2022, to take effect Jan. 1, 2023.)

After the filing of an appeal, writ of error or reservation in the Appellate Court, but in no event after it has been assigned for hearing, any party may move for transfer to the Supreme Court. The motion, addressed to the Supreme Court, shall specify, in accordance with provisions of Section 66-2, the reasons why the party believes that the Supreme Court should hear the matter directly. A copy of the memorandum of decision of the trial court, if any, shall be attached to the motion. The filing of a motion for transfer shall not stay proceedings in the Appellate Court.

(P.B. 1978-1997, Secs. 4024; 4135.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 65-3. Transfer of Petition for Review of Bail Order from Appellate Court to Supreme Court

(Amended July 19, 2022, to take effect Jan. 1, 2023.)

Whenever a petition for review of an order of the Superior Court concerning release is filed in the Appellate Court pursuant to General Statutes § 54-63g in any case on appeal to the Supreme Court or where the defendant could appeal to the Supreme Court if convicted, such petition shall be transferred to the Supreme Court pursuant to the exercise of the Supreme Court's transfer jurisdiction under General Statutes § 51-199 (c) for review of such order.

(P.B. 1978-1997, Sec. 4025.) (Amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 65-4. Transfer of Matter Brought to Wrong Court

(Amended July 19, 2022, to take effect Jan. 1, 2023.)

Any matter brought to the Supreme Court or the Appellate Court which is not properly within the jurisdiction of the court to which it is brought shall not be dismissed for the reason that it was brought to the wrong court but shall be transferred by the appellate clerk to the court with jurisdiction and entered on its docket. Any timely filed matter that is transferred shall be considered timely filed in the appropriate court.

(P.B. 1978-1997, Sec. 4027.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 65-5. Proceedings after Transfer

The appellate clerk shall notify all parties and the clerk of the trial court that a matter has been transferred. The transferred matter shall be entered upon the docket of the court to which it was transferred. There shall be no fee on such transfer. If a matter is transferred after one or more briefs have been filed, the parties shall update the covers to their briefs with the new court and docket number, and file them in the new docket number.

(Adopted July 19, 2022, to take effect Jan. 1, 2023; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What is now the fourth sentence replaced "The appellate clerk may require the parties to take such steps as may be necessary to make the matter conform to the rules of the court to which it has been transferred, for

example, supply the court with additional copies of briefs and party appendices, if any."

COMMENTARY—2026: The purpose of this amendment is to clarify proceedings after transfer.

CHAPTER 66

MOTIONS AND OTHER PROCEDURES

Sec.
66-1. Extension of Time
66-2. Motions
66-2A. Supreme Court Briefs on Compact Disc; Hyperlinking [Repealed]
66-3. Motion Procedures and Filing
66-4. Hearings on Motions
66-5. Motion for Rectification; Motion for Articulation
66-6. Motion for Review; In General
66-7. Motion for Review of Motion for Rectification of Appeal or Articulation
66-8. Motion To Dismiss
66-9. Disqualification of Appellate Jurists

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 66-1. Extension of Time

(a) Motions to extend the time limit for filing an appeal shall be filed with the clerk of the trial court. Except as otherwise provided in these rules, the judge who tried the case may extend the time limit provided for filing the appeal, except that such extension shall be of no effect if the time within which the appeal must be filed is set by statute and is a time limit that the legislature intended as a limit on the subject matter jurisdiction of the court in which the appeal is filed. The trial judge shall not extend the time for filing the appeal more than twenty days from the expiration date of the appeal period. Where a motion for extension of the period of time within which to appeal has been filed at least ten days before expiration of the time limit sought to be extended, the party seeking to appeal shall have no less than ten days from issuance of notice of denial of the motion to file the appeal.

(b) Motions to extend the time limit for filing any appellate document, other than the appeal or a motion for review of a ruling concerning a stay of execution pursuant to Section 61-14, shall be filed with the appellate clerk. An extension of time may be requested by filing form (JD-SC-043) or by filing a motion not to exceed 2000 words, and in compliance with the provisions of Section 66-3. Requests to extend multiple deadlines cannot be filed together on a single form or in a single motion. If filing a motion, the motion shall include the following: (1) the reason for the requested extension, (2) a statement as to whether the other parties consent or object to the requested extension, (3) a certification that complies with Section 62-7; and, if an attorney is filing the motion on the client's behalf, (4) a statement that a copy of the motion has been delivered to each of his or her clients who are parties to the appeal. A motion for extension of time to file a brief must specify the current status of the brief or preparations therefor, indicate the estimated date of completion, and, in criminal cases, state whether the defendant is incarcerated as a result of the proceeding in which the appeal has been filed.

(c) The appellate clerk is authorized to grant or to deny motions for extension of time.

(d) An opposing party who objects to a motion for extension of time filed pursuant to subsection (b) of this section shall file an objection with reasons in support thereof with the appellate clerk within five days from the filing of the motion. Parties that are exempt from electronic filing pursuant to Section 60-8 shall file the objection within ten days from the filing of the motion.

(e) Any action by the trial judge pursuant to subsection (a) of this section or the appellate clerk pursuant to subsection (c) of this section is reviewable pursuant to Section 66-6.

(P.B. 1978-1997, Sec. 4040.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended Feb. 1, 2005, to take effect Jan. 1, 2006; amended Jan. 29, 2009, to take effect March 1, 2009; amended July 30, 2009, to take effect Jan. 1, 2010; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2020, to take effect Jan. 1, 2021; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 66-2. Motions

(Amended June 27, 2023, to take effect Jan. 1, 2024.)

(a) Motions shall be specific and shall not request multiple forms of relief. The motion shall set forth in separate paragraphs appropriately captioned: (1) a brief history of the case; (2) the specific facts upon which the moving party relies; and (3) the legal grounds upon which the moving party relies.

Any opposition to a motion shall be filed within ten days after the filing of the motion and shall clearly set forth in separate paragraphs appropriately captioned: (1) the specific facts upon which the opposing party relies, and (2) the legal grounds upon which the opposing party relies. An

opposition shall not include any request for relief that should be filed as a separate motion. Responses to oppositions are not permitted.

(b) Except as otherwise ordered, motions and oppositions shall not exceed 3500 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications, and appendix, if any.

(c) Where counsel for the moving party attests that all other parties to the appeal have consented to the granting of the motion, the motion may be submitted to the court immediately upon filing and may be acted upon without awaiting expiration of the time for filing an opposition. Notice of such consent shall be indicated on the first page of the motion.

(d) Motions which are not dispositive of the appeal may be ruled upon by one or more members of the court subject to review by a full panel upon a motion for reconsideration pursuant to Section 71-5.

(e) Motions that are directed to the trial court, such as motions to terminate stay pursuant to Section 61-11 or motions for rectification or articulation pursuant to Section 66-5, shall: (1) include both the trial court and the Appellate Court docket numbers in the caption of the case; (2) state in the first paragraph the name of the trial judge, or panel of judges, to whom the motion is directed; and (3) comply with the requirements of Section 66-3. Such motions will be forwarded to the trial court by the appellate clerk.

(f) When the appellate clerk issues an order on a motion, the official notice date shall be the date indicated on the order for notice to the clerk of the trial court and all counsel of record. The official notice date is not the date that such order is received.

(P.B. 1978-1997, Sec. 4041.) (Amended June 2, 2010, to take effect Jan. 1, 2011; amended July 26, 2012, to take effect Jan. 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 18, 2017, to take effect Jan. 1, 2018; amended June 27, 2023, to take effect Jan. 1, 2024.)

Sec. 66-2A. Supreme Court Briefs on Compact Disc; Hyperlinking

[Repealed as of Jan. 1, 2016.]

Sec. 66-3. Motion Procedures and Filing

All motions and oppositions shall be filed with the appellate clerk in accordance with the provisions of Sections 60-7 and 60-8 and docketed upon filing. The submission may be returned for noncompliance with the Rules of Appellate Procedure. All papers shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the motion or opposition complies with the word count requirement of Section 66-1 (b) or Section 66-2 (b), as applicable.

No motion or opposition directed to the Supreme or Appellate Court shall be filed after expiration of the time for its filing unless the filer demonstrates good cause for its untimeliness in a separate section captioned "good cause for late filing." No motion directed to the trial court that is required to be filed with the appellate clerk shall be filed after expiration of the time for its filing without permission of the court. A motion to file a late trial court motion must be accompanied by the proposed trial court motion. No amendment to a motion or opposition shall be filed without permission of the court.

No motion to dismiss a motion will be accepted by the appellate clerk. Any objection to the jurisdiction of the court to entertain the motion shall be included in the opposition.

Motions and oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes, and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

Motions and oppositions shall each be filed as one document with a single pagination scheme that starts on the first page of the motion or opposition and continues throughout the entire document, on every page, including the pages in an attached appendix, if any. The page numbers shall be centered on the bottom of the page and shall be written as "Page X of XX" (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

(P.B. 1978-1997, Sec. 4042.) (Amended Oct. 16, 2002, to take effect Jan. 1, 2003; amended May 15, 2003, to take effect Jan. 1, 2004; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first paragraph, subdivision (1) was enumerated as such, and subdivision (2) was added. What are now the third and fifth paragraphs were added, and what had been the last paragraph concerning the certificate of interested entities or individuals was deleted.

COMMENTARY—September, 2016: These amendments eliminate the requirement of filing a motion for permission to file a late paper in the Supreme or Appellate Court. For example, a party may file a late motion for review, provided that the motion includes a separate section demonstrating good cause for its untimeliness. Motions that are directed to the trial court that are filed with the appellate clerk's office, for example, motions for articulation or rectification, still require a separate

motion for permission to file late and must include the proposed trial court motion. This section does not apply to the late filing of the following: briefs, preliminary papers, writs of error, reservations, appeals, certified questions, and certification pursuant to General Statutes § 52-265a. See Section 60-2.

COMMENTARY—2026: The purpose of these amendments is to make the formatting rules for briefs, motions, petitions and oppositions consistent such that all of them are filed, with any attachments, as one document with a single pagination scheme, to make clear that a party cannot file a motion to dismiss a motion and, instead, shall raise any jurisdictional claim in an opposition, to add a word count certification requirement, and to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 66-4. Hearings on Motions

Hearings on motions will be assigned only upon order of the court and only in exceptional cases. In cases involving incarcerated self-represented parties, hearings on motions may be conducted by videoconference upon direction of the court.

(P.B. 1978-1997, Sec. 4043.) (Amended April 6, 2011, to take effect Jan. 1, 2012; amended June 15, 2016, to take effect Sept. 30, 2016.)

Sec. 66-5. Motion for Rectification; Motion for Articulation

A motion seeking corrections in the transcript or the trial court record shall be called a motion for rectification. A motion seeking an articulation of the decision of the trial court shall be called a motion for articulation. Any motion filed pursuant to this section shall state with particularity the relief sought and shall be filed with the appellate clerk. Any other party may oppose the motion by filing an opposition with the appellate clerk within ten days of the filing of the motion for rectification or articulation. The trial court may require assistance from the parties to rectify the record or provide an articulation. Such assistance may include, but is not limited to, provision of copies of transcripts and exhibits.

The appellate clerk shall forward the motion and the opposition, if any, to the trial judge who decided, or presided over, the subject matter of the motion for a decision. If any party requests it and it is deemed necessary by the trial court, the trial court shall hold a hearing at which arguments may be heard, evidence taken or a stipulation of counsel received and approved. The trial court may make such corrections or additions as are necessary for the proper presentation of the issues. The clerk of the trial court shall list the decision on the trial court docket and shall send notice of the court's decision on the motion to the appellate clerk, and the appellate clerk shall issue notice of the decision to all counsel of record.

Nothing herein is intended to affect the existing practice with respect to opening and correcting judgments and the records on which they are based. The trial court shall file any such order changing the judgment or the record with the appellate clerk.

Corrections or articulations made before the clerk appendix is prepared shall be included in the clerk appendix. Corrections or articulations made after the clerk appendix is prepared but before the appellant's brief is prepared shall be included in the appellant's party appendix. Corrections or articulations made after the appellant's brief has been filed, but before the appellee's brief has been filed, shall be included in the appellee's party appendix.

The sole remedy of any party wanting the court having appellate jurisdiction to review the trial court's decision on the motion filed pursuant to this section or any other correction or addition ordered by the trial court during the pendency of the appeal shall be by motion for review under Section 66-7.

Upon the filing of a motion for extension of time pursuant to Section 66-1, the appellate clerk may extend the time for filing briefs until after the trial court has ruled on a motion made pursuant to this section or until a motion for review under Section 66-7 is decided.

Any motion for rectification or articulation shall be filed at least ten days prior to the deadline for filing the appellant's brief, unless otherwise ordered by the court. If a final order has been issued for the appellant's brief, or if the appellant's brief has been filed, no motion for rectification or articulation shall be filed without permission of the court.

(P.B. 1978-1997, Sec. 4051.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended July 24, 2002, to take effect Oct. 1, 2002; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended March 15, 2017, to take effect June 15, 2017; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 66-6. Motion for Review; In General

(a) The court may, on written motion for review stating the grounds for the relief sought, modify or vacate (1) any order made by the trial court under Section 66-1 (a); (2) any action by the appellate clerk under Section 66-1 (c); (3) any order made by the trial court, or by the administrative law judge in cases arising under General Statutes § 31-290a (b), relating to the perfecting of the record for an appeal or the procedure of prosecuting or defending against an appeal; (4) any order made by the trial court concerning a stay of execution in a case on appeal; (5) any order

made by the trial court concerning the waiver of fees, costs and security under Section 63-6 or Section 63-7; or (6) any order concerning the withdrawal of appointed appellate counsel pursuant to Section 62-9 (d). Motions for review of the clerk's taxation of costs under judgments of the court having appellate jurisdiction shall be governed by Section 71-3.

(b) Motions for review shall be filed within ten days of notice of the order sought to be reviewed. If the order is issued in connection with a motion that was filed with the appellate clerk, the motion for review shall be filed within ten days from the issuance of notice by the appellate clerk of the order from the trial court sought to be reviewed. Otherwise, if notice of the order sought to be reviewed is given by the trial court in open court with the party seeking review present, the time for filing the motion for review shall begin on that day; if notice is given to the party seeking review only by mail or electronic delivery, the time for filing the motion for review shall begin on the day that notice was sent to counsel of record by the clerk of the trial court.

(c) If a motion for review of a decision depends on a transcript of evidence or proceedings taken by an official court reporter or court recording monitor, the moving party shall file with the motion either a transcript or a copy of the transcript order confirmation. The opposing party may, within one week after the transcript or the copy of the order confirmation is filed by the moving party, file either a transcript of additional evidence or a copy of the order confirmation for additional transcript.

(P.B. 1978-1997, Sec. 4053.) (Amended April 3, 2002, to take effect Nov. 1, 2002; amended June 2, 2005, to take effect Jan. 1, 2006; amended June 15, 2021, to take effect Oct. 1, 2021; amended June 27, 2023, to take effect Jan. 1, 2024.)

Sec. 66-7. Motion for Review of Motion for Rectification of Appeal or Articulation

Any party aggrieved by the action of the trial judge regarding rectification of the appeal or articulation under Section 66-5 may, within ten days of the issuance of notice by the appellate clerk of the decision from the trial court sought to be reviewed, file a motion for review with the appellate clerk, and the court may, upon such a motion, direct any action it deems proper. If the motion depends upon a transcript of evidence or proceedings taken by an official court reporter or court recording monitor, the procedure set forth in Section 66-6 shall be followed. Corrections or articulations which the trial court makes or orders made pursuant to this section shall be included in the appendices as indicated in Section 66-5.

(P.B. 1978-1997, Sec. 4054.) (Amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 66-8. Motion To Dismiss

Any claim that an appeal or writ of error should be dismissed, whether based on lack of jurisdiction, failure to file papers within the time allowed or other defect, shall be made by a motion to dismiss the appeal or writ. Any such motion must be filed in accordance with Sections 66-2 and 66-3. A motion to dismiss an appeal or writ of error that claims a lack of jurisdiction may be filed at any time. A motion for sanctions filed pursuant to Section 85-1, 85-2 or 85-3 may be filed at any time.

A motion to dismiss an appeal that claims any defect other than a lack of jurisdiction must be filed within ten days after the filing of the appeal.

A motion to dismiss a writ of error that claims any defect other than a lack of jurisdiction must be filed within ten days after the filing of an electronically filed writ of error or, if the plaintiff in error is exempt from the electronic filing requirements, within ten days after the return day. If a defendant in error was not a party to any action underlying the writ of error, and such defendant in error claims a defect in the writ other than lack of jurisdiction, a motion to dismiss must be filed within thirty days after the return day.

If the ground alleged for dismissal of an appeal or writ of error, other than a lack of jurisdiction, subsequently arises, a motion to dismiss must be filed within ten days after such ground for dismissal arises.

The court may on its own motion order that an appeal or writ of error be dismissed for lack of jurisdiction or other defect.

(P.B. 1978-1997, Sec. 4056.) (Amended July 19, 2017, to take effect Oct. 8, 2017.)

Sec. 66-9. Disqualification of Appellate Jurists

(a) A justice of the Supreme Court or a judge of the Appellate Court shall, upon motion of either party or upon his/her own motion, be disqualified from acting in a matter if such justice or judge is disqualified from acting therein pursuant to Rule 2.11 of the Code of Judicial Conduct.

(b) A justice of the Supreme Court or a judge of the Appellate Court is not automatically disqualified from acting in a matter merely because: (1) the justice or judge previously practiced law with the law firm or attorney who filed an amicus brief in the matter; or (2) the justice's or judge's spouse, domestic partner, parent, or child, or any other member of the justice's or judge's family residing in his or her household is practicing or has practiced law with the law firm or attorney who filed an amicus brief in the matter; or (3) an attorney or party to the matter has filed a lawsuit against the justice or judge or filed a complaint against the

justice or judge with the Judicial Review Council or an administrative agency.

(c) When an attorney or party who has filed a lawsuit or a complaint against a justice or judge is involved in a matter before the court on which the justice or judge sits, such attorney or party shall so advise the court and other attorneys and parties to the matter, and, thereafter, the justice or judge who is the subject of the disqualification issue shall decide whether to disqualify himself or herself from acting in the matter.

(Adopted June 27, 2023, to take effect Jan. 1, 2024.)

CHAPTER 67

BRIEFS

Sec.
67-1. Brief and Appendix
67-2. Format of Paper Briefs and Party Appendices for Filers Excluded or Exempt from Electronic Filing Pursuant to Section 60-8; Copies
67-2A. Format of Electronic Briefs and Party Appendices; Copies
67-3. Page Limitations; Time for Filing Paper Briefs and Party Appendices for Filers Excluded or Exempt from Electronic Filing Pursuant to Section 60-8; Copies
67-3A. Word Limitations; Time for Filing Electronic Briefs and Party Appendices
67-4. The Appellant's Brief; Contents and Organization
67-5. The Appellee's Brief; Contents and Organization
67-5A. The Reply Brief
67-6. Statutory (§ 53a-46b) Review of Death Sentences
67-7. The Amicus Curiae Brief (Applicable to appeals filed before October 1, 2021.)
67-7A. The Amicus Curiae Electronic Brief
67-8. The Party Appendix
67-8A. The Appendix in Administrative Appeals; Exceptions (Transferred from Section 68-10.) (Applicable to appeals filed before October 1, 2021.)
67-9. Citation of Unreported Decisions [Repealed as of July 1, 2013.]
67-10. Citation of Supplemental Authorities after Brief Is Filed
67-11. Table of Authorities; Citation of Cases
67-12. Stay of Briefing Obligations upon Filing of Certain Motions after Appeal Is Filed
67-13. Briefs in Family and Juvenile Matters and Other Matters involving Minor Children
67-14. Joint Briefs; Statements Adopting Briefs

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 67-1. Brief and Appendix

In any brief or appendix, the plaintiff and defendant shall be referred to as such rather than as the appellant and appellee, wherever it is possible to do so; on a reservation the plaintiff below shall be regarded as the appellant.

Each brief shall contain a concise statement of the principal issue or issues involved in the appeal. The statement ordinarily should be on one page by itself. The court may refuse to receive a brief not complying with this requirement.

(P.B. 1978-1997, Sec. 4064.) (Amended June 5, 2013, to take effect July 1, 2013; amended June 18, 2014, to take effect Sept. 1, 2014; amended June 15, 2021, to take effect Oct. 1, 2021.)

Sec. 67-2. Format of Paper Briefs and Party Appendices for Filers Excluded or Exempt from Electronic Filing Pursuant to Section 60-8; Copies

(Amended Jan. 29, 2009, to take effect March 1, 2009; amended June 5, 2013, to take effect July 1, 2013; amended June 18, 2014, to take effect Sept. 1, 2014; amended June 15, 2021, to take effect Oct. 1, 2021.)

(a) Briefs and party appendices, if any, shall be typewritten on white 8 1/2 by 11 inch paper. Unless ordered otherwise, briefs shall be copied on one side of the page only. Party appendices may be copied on both sides of the page. The page number for briefs and party appendices shall be centered on the bottom of each page. The brief shall be fully double spaced and shall not exceed three lines to the vertical inch or twenty-seven lines to the page; footnotes and block quotations may, however, be single spaced. Margins shall be 1 inch on all sides. Briefs and party appendices, which may be bound together, shall be bound in a way that preserves the integrity of the document. Any such binding shall be easy to remove so that the briefs and party appendices, if any, can be scanned.

(b) The brief and party appendix, if any, shall include a single pagination scheme that starts on the cover page of the brief and continues throughout the entire document, on every page, including the cover and table of contents for the party appendix through to the last page of the party appendix. The page numbers shall be centered on the bottom of each page and shall be written as "Page X of XX" (e.g., Page 1 of 55 . . . Page 32 of 55 . . . Page 55 of 55). A party appendix shall have an index of the names of witnesses whose testimony is cited within it. If any part of the testimony of a witness is omitted, this shall be indicated by asterisks. After giving the name of a witness, the party who called that witness shall be designated, and it shall be stated whether the testimony quoted was given on direct, cross or other examination.

(c) If constitutional provisions, statutes, ordinances, regulations, or portions of the transcript are contained in a party appendix, they may be reproduced in their original form so long as the document is not reduced to less than 75 percent of its original form.

(d) Briefs and separately bound party appendices, if any, must have a cover page that includes, from the top of the page: (1) the name of the court; (2) the appellate docket number; (3) the appellate

case name; (4) the nature of the brief (e.g., brief of the defendant-appellant; brief of the plaintiff-appellee on the appeal and of the plaintiff-cross appellant on the cross appeal); and (5) the name, address, telephone number and email address of individual counsel who is to argue the appeal and, if different, the name, address, telephone number and email address of the party's counsel of record. The foregoing shall be displayed in a font of 12 point or larger size.

(e) One legible copy of the brief and party appendix, if any, shall be filed with the appellate clerk.

(f) The brief filed with the Supreme Court or the Appellate Court must be accompanied by a: (1) certification that a copy of the brief and party appendix, if any, has been sent to each counsel of record in compliance with Section 62- 7; (2) certification that the brief and party appendix have been redacted or do not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law, except for briefs filed pursuant to Section 79a-6; and (3) certification that the brief complies with all provisions of this rule. The certification that a copy of the brief and party appendix has been sent to each counsel of record in compliance with Section 62-7 may be signed by counsel of record or the printing service, if any. All other certifications pursuant to this subsection shall be signed by counsel of record only.

(g) Any request for deviation from the above requirements, including requests to deviate from the requirement to redact or omit personal identifying information or information that is prohibited from disclosure by rule, statute, court order or case law, shall be filed with the appellate clerk. The request may be submitted in the form of a letter indicating the deviations sought and the reasons for the request or, when appropriate, by using form (JD-SC-044).

(P.B. 1978-1997, Sec. 4064A.) (Amended June 7, 2001, to take effect Sept. 1, 2001; amended Jan. 29, 2009, to take effect March 1, 2009; amended June 2, 2010, to take effect Jan. 1, 2011; amended June 5, 2013, to take effect July 1, 2013; amended June 18, 2014, to take effect Sept. 1, 2014; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Aug. 1, 2016; amended Oct. 18, 2017, to take effect Jan. 1, 2018; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended June 15, 2021, to take effect Oct. 1, 2021; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, this section provided:

"(a) Briefs and party appendices, if any, shall be typewritten or clearly photocopied from a typewritten original on white 8 1/2 by 11 inch paper. Unless ordered otherwise, briefs shall be copied on one side of the page only. Party appendices may be copied on both sides of the page. The page number for briefs and party appendices shall be centered on the bottom of each page. The brief shall be fully double spaced and shall not exceed three lines to the vertical inch or twenty-seven lines to the page; footnotes and block quotations may, however, be single spaced. Only the following two fonts, of 12 point or larger size, are approved for use in briefs: Arial and Univers. Each page of a brief or party appendix shall have as a minimum the following margins: top, 1 inch; left, 1 and 1/4 inches; right, 1/2 inch; and bottom, 1 inch. Briefs and party appendices shall be firmly bound 1/4 inch from the left side, at points approximately 1/4, 1/2 and 3/4 of the length of the page, so as to make an easily opened volume.

"(b) The brief and the party appendix, if any, may be bound together. When, however, binding the brief and party appendix together would affect the integrity of the binding, the party appendix shall be bound separately from the brief.

"(c) The brief and party appendix, if any, shall include a single pagination scheme that starts on the cover page of the brief and continues throughout the entire document, on every page, including the cover and table of contents for the party appendix through to the last page of the party appendix. The page numbers shall be centered on the bottom of each page and shall be written as "Page X of XX" (e.g., Page 1 of 55 . . . Page 32 of 55 . . . Page 55 of 55). A party appendix shall have an index of the names of witnesses whose testimony is cited within it. If any part of the testimony of a witness is omitted, this shall be indicated by asterisks. After giving the name of a witness, the party who called that witness shall be designated, and it shall be stated whether the testimony quoted was given on direct, cross or other examination.

"(d) If constitutional provisions, statutes, ordinances, regulations, or portions of the transcript are contained in a party appendix, they may be reproduced in their original form so long as the document is not reduced to less than 75 percent of its original form.

"(e) Briefs and separately bound party appendices, if any, shall have a suitable front cover of white heavy paper. A back cover is not necessary; however, if one is used, it must be white.

"(f) Briefs and separately bound party appendices, if any, must bear on the cover, in the following order, from the top of the page: (1) the name of the court; (2) the appellate docket number; (3) the appellate case name; (4) the nature of the brief (e.g., brief of the defendant-appellant; brief of the plaintiff-appellee on the appeal and of the plaintiff-cross appellant on the cross appeal); and (5) the name, address, telephone number and email address of individual counsel who is to argue the appeal and, if different, the name, address, telephone number and email address of the party's counsel of record. The foregoing shall be displayed in Arial or Univers font of 12 point or larger size.

"(g) Two legible photocopies of each brief and party appendix, if any, shall be filed with the appellate clerk.

"(h) All copies of the brief filed with the Supreme Court or the Appellate Court must be accompanied by a: (1) certification that a copy of the brief and party appendix, if any, has been sent to each counsel of record in compliance with Section 62-7; (2) certification that the brief and appendix have been redacted or do not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law, except for briefs filed pursuant to Section 79a-6; and (3) certification that the brief complies with all provisions of this rule. The certification that a copy of the brief and party appendix has been sent to each counsel of record in compliance with Section 62-7 may be signed by counsel of record or the printing service, if any. All other certifications pursuant to this subsection shall be signed by counsel of record only.

"(i) Any request for deviation from the above requirements, including requests to deviate from the requirement to redact or omit personal identifying information or information that is

prohibited from disclosure by rule, statute, court order or case law, shall be filed with the appellate clerk."

COMMENTARY—2026: The purpose of these proposed amendments is to update the filing and formatting requirements of paper briefs and party appendices for filers excluded or exempt from electronic filing, notably requiring that one copy of the brief and party appendix, if any, shall be filed with the appellate clerk, and to introduce a new form for use when a deviation from the rule's requirements is requested.

TECHNICAL CHANGE: "Party" was added before "Appendices" and "appendix" in the title and subsection (f), respectively. In addition, in subsection (g), the request for deviation form number was added.

Sec. 67-2A. Format of Electronic Briefs and Party Appendices; Copies

(a) Briefs and party appendices, if any, shall be uploaded together as a text searchable single document. Bookmarks to each section of the brief and to each item included in a party appendix are required. Briefs shall include internal hyperlinks for citations to items included in the party appendix. Internal hyperlinks must be clearly distinguishable from other text in the brief (e.g., underlined blue text or highlighted text). Any external hyperlink included in a brief will be viewed as text only. Visual aids that comply with the guidelines published on the Judicial Branch website are permitted to be included in the brief. Additional formatting information and recommendations can be found in the guidelines published on the Judicial Branch website.

(b) Briefs shall be typed in a 12 point serif font, including footnotes but excluding headings. Headings must be in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes, and block quotes. Bold face or italic emphasis tools shall be used in place of underlining. Sections shall be marked sequentially using numbers or letters (e.g., 1. Introduction, 2. Statement of the facts . . . 6. Conclusion; or A. Introduction, B. Statement of the facts . . . F. Conclusion).

(c) The brief and party appendix, if any, shall include a single pagination scheme that starts on the cover page of the brief and continues throughout the entire document, on every page, including the cover and table of contents for the party appendix through to the last page of the party appendix. The page numbers shall be centered on the bottom of each page and shall be written as "Page X of XX" (e.g., Page 1 of 55 . . . Page 32 of 55 . . . Page 55 of 55). The party appendix shall have an index of the names of witnesses whose testimony is cited within it. Any part of the testimony of a witness that is omitted shall be indicated by asterisks. After giving the name of a witness, the party who called that witness shall be designated, and it shall be stated whether the testimony quoted was given on direct, cross or other examination.

(d) Briefs must have a cover page that includes, in the following order, from the top of the page: (1) the name of the court; (2) the appellate docket number; (3) the appellate case name; (4) the nature of the brief (e.g., brief of the defendant-appellant; brief of the plaintiff-appellee on the appeal and of the plaintiff-cross appellant on the cross appeal); and (5) the name, address, telephone number and email address of individual counsel who is to argue the appeal and, if different, the name, address, telephone number and email address of the party's counsel of record. The foregoing shall be displayed in a 12 point or larger serif font.

(e) Counsel of record filing a brief shall file the brief and party appendix, if any, in accordance with guidelines established by the court and published on the Judicial Branch website.

(f) All briefs filed with the Supreme Court or the Appellate Court must be accompanied by a: (1) certification that a copy of the brief and party appendix, if any, has been sent electronically to each counsel of record in compliance with Section 62-7, except for counsel of record exempt from electronic filing pursuant to Section 60-8, to whom a paper copy of the brief and party appendix, if any, must be sent; (2) certification that the brief and party appendix have been redacted or do not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law, unless the brief is filed pursuant to Section 79a-6; and (3) certification of the word count in the brief.

(g) Any request for deviation from the above requirements, including requests to deviate from the requirement to redact or omit personal identifying information or information that is prohibited from disclosure by rule, statute, court order or case law, shall be filed with the appellate clerk. The request may be submitted in the form of a letter indicating the deviations sought and the reasons for the request or, when appropriate, by using form (JD-SC-044).

(Adopted June 15, 2021, to take effect Oct. 1, 2021; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, this section provided:

"(a) Briefs filed under this rule shall include the words "Filed Under the Electronic Briefing Rules" at the top center of the cover of the brief. Briefs and party appendices, if any, shall be uploaded together as a text searchable single document. Bookmarks are required and must link to sections of the brief and to items included in the party appendix. Briefs shall include internal hyperlinks for citations to items included in the party appendix. Internal hyperlinks must be clearly distinguishable from other

text in the brief (e.g., underlined blue text or highlighted text). External hyperlinks are not permitted. Any external hyperlink included in a brief will be viewed as text only. Visual aids that comply with the guidelines published on the Judicial Branch website are permitted to be included in the brief. Additional formatting information and recommendations can be found in the guidelines published on the Judicial Branch website.

"(b) Briefs shall be typed in a 12 point serif font, including footnotes but excluding headings. Headings must be in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes, and block quotes. Bold face or italic emphasis tools shall be used in place of underlining. Sections shall be marked sequentially using numbers or letters (e.g., 1. Introduction, 2. Statement of the facts . . . 6. Conclusion; or A. Introduction, B. Statement of the facts . . . F. Conclusion).

"(c) The brief and party appendix, if any, shall include a single pagination scheme that starts on the cover page of the brief and continues throughout the entire document, on every page, including the cover and table of contents for the party appendix through to the last page of the party appendix. The page numbers shall be centered on the bottom of each page and shall be written as "Page X of XX" (e.g., Page 1 of 55 . . . Page 32 of 55 . . . Page 55 of 55). The party appendix shall have an index of the names of witnesses whose testimony is cited within it. Any part of the testimony of a witness that is omitted shall be indicated by asterisks. After giving the name of a witness, the party who called that witness shall be designated, and it shall be stated whether the testimony quoted was given on direct, cross or other examination.

"(d) Two legible photocopies of each brief and party appendix, if any, shall be filed with the appellate clerk. The party appendix may be printed on both sides of a page. The brief and party appendix may be bound together or separately. No specific type or style of binding is required as long as the documents are securely bound. The covers for all types of briefs shall be white.

"(e) Briefs and separately bound party appendices, if any, must bear on the cover, in the following order, from the top of the page: (1) the name of the court; (2) the appellate docket number; (3) the appellate case name; (4) the nature of the brief (e.g., brief of the defendant-appellant; brief of the plaintiff-appellee on the appeal and of the plaintiff-cross appellant on the cross appeal); and (5) the name, address, telephone number and email address of individual counsel who is to argue the appeal and, if different, the name, address, telephone number and email address of the party's counsel of record. The foregoing shall be displayed in a serif font of 12 point size.

"(f) Counsel of record filing a brief shall submit the electronic version of the brief and party appendix, if any, in accordance with guidelines established by the court and published on the Judicial Branch website. The electronic version shall be submitted prior to the timely filing of the party's paper copies of the brief and party appendix pursuant to subsection (d) of this section.

"(g) All electronic and paper copies of the brief submitted and filed with the Supreme Court or the Appellate Court must be accompanied by a: (1) certification that a copy of the brief and party appendix, if any, has been sent electronically to each counsel of record in compliance with Section 62-7, except for counsel of record exempt from electronic filing pursuant to Section 60-8, to whom a paper copy of the brief and party appendix, if any, must be sent; (2) certification that the brief and party appendix being filed with the appellate clerk are true copies of the brief and party appendix that were submitted electronically pursuant to subsection (f) of this section; (3) certification that the brief and party appendix have been redacted or do not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law, unless the brief is filed pursuant to Section 79a-6; (4) certification of the word count in the brief; (5) certification that the brief complies with all provisions of this rule; and (6) certification listing the approved deviations from this rule or that no deviations were requested/approved. The certification that a copy of the brief and party appendix has been sent to each counsel of record in compliance with Section 62-7 may be signed by counsel of record or the printing service, if any; and if copies are sent by a printing service, that certification is not required to be included in the electronic version of the brief and party appendix. All other certifications pursuant to this subsection shall be signed by counsel of record only.

"(h) Any request for deviation from the above requirements, including requests to deviate from the requirement to redact or omit personal identifying information or information that is prohibited from disclosure by rule, statute, court order or case law, shall be filed with the appellate clerk."

COMMENTARY—2026: The purpose of these proposed amendments is to update the filing and formatting requirements of electronic briefs and party appendices, notably eliminating the requirement of filing a paper copy with the appellate clerk, and to introduce a new form for use when a deviation from the rule's requirements is requested.

TECHNICAL CHANGE: In subsection (g), the request for deviation form number was added.

Sec. 67-3. Page Limitations; Time for Filing Paper Briefs and Party Appendices for Filers Excluded or Exempt from Electronic Filing Pursuant to Section 60-8; Copies

(Amended July 28, 2021, on an interim basis, to take effect Oct. 1, 2021, and amendment adopted July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

Except as otherwise ordered, the brief of the appellant shall not exceed thirty-five pages and shall be filed with the party appendix, if any, within forty-five days after the delivery date of the initial transcript order by the appellant or forty-five days after the clerk appendix is sent to the parties, whichever is later. In cases where no transcript is required or the transcript has been received by the appellant prior to the filing of the appeal, the appellant's brief and party appendix, if any, shall be filed forty-five days after the clerk appendix is sent to the parties. Amendments to the transcript order pursuant to Section 63-4 (a) (3) or with permission of the court are not considered in determining the due date for the appellant's brief under this section.

Any party whose interest in the judgment will not be affected by the appeal and who intends not to file a brief shall inform the appellate clerk of this intent prior to the deadline for the filing of the appellee's brief. In the case of multiple appellees, an appellee who supports the position of the appellant shall meet the appellant's time schedule for filing a brief.

Except as otherwise ordered, the brief of the appellee shall not exceed thirty-five pages, and

shall be filed with any party appendix within thirty days after the filing of the appellant's brief or the delivery date of the portions of the transcript ordered only by that appellee, whichever is later.

The appellant may file a reply brief in accordance with Section 67-5A.

Where there is a cross appeal, the brief and party appendix, if any, of the cross appellant shall be combined with the brief and party appendix, if any, of the appellee. The brief shall not exceed fifty pages and shall be filed with any party appendix at the time the appellee's brief is due. The brief and party appendix, if any, of the cross appellee shall be combined with the appellant's reply brief, if any. This brief shall not exceed forty pages and shall be filed within thirty days after the filing of the original appellee's brief. The cross appellant may file a cross appellant's reply brief in accordance with Section 67-5A.

Where cases are consolidated or a joint appeal has been filed, the brief of the appellants and that of the appellees shall not exceed the page limitations specified above.

All page limitations shall be exclusive of party appendices, if any, the cover page, the table of contents, the table of authorities, the statement of issues, the signature block of counsel of record and certifications.

Briefs shall not exceed the page limitations set forth herein except by permission of the chief justice or chief judge. Requests for permission to exceed the page limitations shall be filed with the appellate clerk, stating both the compelling reason for the request and the number of additional pages sought.

Where a claim relies on the state constitution as an independent ground for relief, the clerk shall, upon request, grant an additional five pages for the appellant and appellee briefs, which pages are to be used for the state constitutional argument only.

(P.B. 1978-1997, Sec. 4064B.) (Amended June 2, 2010, to take effect Jan. 1, 2011; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended June 15, 2021, to take effect Oct. 1, 2021; amended July 28, 2021, on an interim basis, to take effect Oct. 1, 2021, and amendment adopted July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the title, "for Filers Excluded or Exempt from Electronic Filing Pursuant to Section 60-8; Copies" was added.

Prior to 2026, the first paragraph provided: "Except as otherwise ordered, the brief of the appellant shall not exceed thirty-five pages and shall be filed with the party appendix, if any, within forty-five days after the delivery date of the transcript ordered by the appellant or forty-five days after the clerk appendix is sent to the parties, whichever is later. In cases where no transcript is required or the transcript has been received by the appellant prior to the filing of the appeal, the appellant's brief and party appendix, if any, shall be filed within forty-five days of the filing of the appeal or forty-five days after the clerk appendix is sent to the parties, whichever is later."

In addition, what had been the second paragraph, "The delivery date of the paper—not electronic—transcript shall be used, where applicable, in determining the filing date of briefs," was deleted.

COMMENTARY—2026: The purpose of these proposed amendments is to clarify the time for filing paper briefs and party appendices.

TECHNICAL CHANGE: "Party" was added before "Appendices" in the title.

Sec. 67-3A. Word Limitations; Time for Filing Electronic Briefs and Party Appendices

Except as otherwise ordered, the brief of the appellant shall not exceed 13,500 words. The brief shall be filed with the party appendix, if any, either within forty-five days after the delivery date of the initial transcript order by the appellant or forty-five days after the clerk appendix is sent to the parties, whichever is later. In cases where no transcript is required or the transcript has been received by the appellant prior to the filing of the appeal, the appellant's brief and party appendix, if any, shall be filed forty-five days after the clerk appendix is sent to the parties. Amendments to the transcript order pursuant to Section 63-4 (a) (3) or with permission of the court are not considered in determining the due date for the appellant's brief under this section.

Any party whose interest in the judgment will not be affected by the appeal and who intends not to file a brief shall inform the appellate clerk of this intent prior to the deadline for the filing of the appellee's brief. In the case of multiple appellees, an appellee who supports the position of the appellant shall meet the appellant's time schedule for filing a brief.

Except as otherwise ordered, the brief of the appellee shall not exceed 13,500 words, and shall be filed with any party appendix within thirty days after the filing of the appellant's brief or the delivery date of the portions of the transcript ordered only by that appellee, whichever is later.

The appellant may file a reply brief in accordance with Section 67-5A.

Where there is a cross appeal, the brief and party appendix, if any, of the cross appellant shall be combined with the brief and party appendix, if any, of the appellee. The brief shall not exceed 18,000 words and shall be filed with any party appendix at the time the appellee's brief is due. The brief and party appendix, if any, of the cross appellee shall be combined with the appellant's reply brief, if any. This brief shall not exceed 16,000 words and shall be filed within thirty days after the filing of the original appellee's brief. The cross

appellant may file a cross appellant's reply brief in accordance with Section 67-5A.

Where cases are consolidated or a joint appeal has been filed, the brief of the appellants and that of the appellees shall not exceed the word limitations specified above.

All word limitations shall be exclusive of party appendices, if any, the cover page, the table of contents, the table of authorities, the statement of issues, the signature block of counsel of record, certifications and, in the case of an amicus brief, the statement of the interest of the amicus curiae required by Section 67-7A.

Briefs shall not exceed the word limitations set forth herein except by permission of the chief justice or chief judge. Requests for permission to exceed the word limitations shall be filed with the appellate clerk, stating both the compelling reason for the request and the number of additional words sought.

Where a claim relies on the state constitution as an independent ground for relief, the clerk shall, upon request, grant an additional 2000 words for the appellant and appellee briefs, which words are to be used for the state constitutional argument only.

(Adopted June 15, 2021, to take effect Oct. 1, 2021; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, the first paragraph provided: "Except as otherwise ordered, the brief of the appellant shall not exceed 13,500 words. The brief shall be filed with the party appendix, if any, either within forty-five days after the delivery date of the transcript ordered by the appellant or forty-five days after the clerk appendix is sent to the parties, whichever is later. In cases where no transcript is required or the transcript has been received by the appellant prior to the filing of the appeal, the appellant's brief and party appendix, if any, shall be filed either within forty-five days of the filing of the appeal or forty-five days after the clerk appendix is sent to the parties, whichever is later."

COMMENTARY—2026: The purposes of these proposed amendments is to clarify the time for filing electronic briefs and party appendices.

Sec. 67-4. The Appellant's Brief; Contents and Organization

The appellant's brief shall contain the following:

(a) A table of contents.

(b) A concise statement setting forth, in separately numbered paragraphs, without detail or discussion, the principal issue or issues involved in the appeal, with appropriate references to the page or pages of the brief where the issue is discussed, pursuant to subsection (e) hereof. Such statement shall be deemed in replacement of and shall supersede the preliminary statement of issues.

(c) A table of authorities cited in the brief, with references to the page or pages of the brief where the citations to those authorities appear. Citations shall be in the form provided in Section 67-11.

(d) A statement of the nature of the proceedings and of the facts of the case bearing on the issues raised. The statement of facts shall be in narrative form, shall be supported by appropriate references to the page or pages of the transcript or to the document upon which the party relies and shall not be unnecessarily detailed or voluminous.

(e) The argument, divided under appropriate headings into as many parts as there are points to be presented, with appropriate references to the statement of facts or to the page or pages of the transcript or to the relevant document. The argument on each point shall include a separate, brief statement of the standard of review the appellant believes should be applied.

(1) When error is claimed in the trial court's refusal to charge the jury as requested, the party claiming such error shall include in the brief of that party or the appendix thereto a verbatim statement of the relevant portions of the charge as requested and as given by the court and any relevant exceptions to the charge as given and shall recite in narrative form any evidence which it is claimed would entitle that party to the charge as requested, with appropriate references to the page or pages of the transcript.

(2) When error is claimed in the charge to the jury, the brief or appendix shall include a verbatim statement of all relevant portions of the charge and all relevant exceptions to the charge. Unless essential to review of a claimed error, a verbatim statement of the entire charge to the jury should not be included in the brief or appendix. Evidence relevant to the claimed error shall be recited in narrative form with appropriate references to the page or pages of the transcript.

(3) When error is claimed in any evidentiary ruling in a court or jury case, the brief or appendix shall include a verbatim statement of the following: the question or offer of exhibit; the objection and the ground on which it was based; the ground on which the evidence was claimed to be admissible; the answer, if any; and the ruling.

(4) When error is claimed in any other ruling in a court or jury case, the brief or appendix shall include the pertinent motion or pleading as well as any other pertinent documents which are a part of the record of the proceedings below.

(5) When the basis of an evidentiary or other ruling referred to in subsection (e) (3) or (e) (4) cannot be understood without knowledge of the evidence or proceeding which preceded or followed the ruling, a brief narrative or verbatim statement of the evidence or proceeding should be made. A verbatim excerpt from the transcript should not be

used if a narrative statement will suffice. When the same ruling is repeated, the brief should contain only a single ruling unless the other rulings are further illustrative of the rule which determined the action of the trial court or establish the materiality or harmfulness of the error claimed. The statement of rulings in the brief shall include appropriate references to the page or pages of the transcript.

(f) A short conclusion stating the precise relief sought.

(g) The text of the pertinent portions of any constitutional provision, statute, ordinance or regulation at issue or on which the appellant relies. Such text need not be included in the brief if it is included in the appendix to the appellant's brief.

(h) In appeals filed pursuant to Section 81-4, a statement identifying the version of the land use regulations filed with the appellate clerk.

(i) The appellant's brief shall be organized in the following order: table of contents; statement of issues; table of authorities; if the appeal was filed pursuant to Section 81-4, statement identifying version of land use regulations filed with the appellate clerk; statement of facts; argument; conclusion and statement of relief requested; signature; and certification pursuant to Section 62-7.

(P.B. 1978-1997, Sec. 4064C.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended July 24, 2002, to take effect Oct. 1, 2002; amended July 30, 2009, to take effect Jan. 1, 2010; amended June 2, 2010, to take effect Jan. 1, 2011; amended June 5, 2013, to take effect July 1, 2013; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What had been subsection (i) concerning the certificate of interested entities or individuals was deleted, and what had been subsection (j) was redesignated as subsection (i). In the new subsection (i), the language concerning the certificate of interested entities or individuals was deleted.

COMMENTARY—2026: The purpose of these proposed amendments is to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 67-5. The Appellee's Brief; Contents and Organization

The brief of the appellee shall contain, in a form corresponding to that stated in Section 67-4, the following:

(a) A table of contents.

(b) A counterstatement of any issue involved as to which the appellee disagrees with the statement of the appellant or a statement of any other grounds which were properly raised by an appellee under Section 63-4. Such statement shall be deemed in replacement of and shall supersede the preliminary statement of the issues.

(c) A table of authorities cited in the brief, with references to the page or pages of the brief where the citations to those authorities appear. Citations shall be in the form provided in Section 67-11.

(d) A counter statement of any fact as to which the appellee disagrees with the statement of the appellant. The counter statement of facts shall be in narrative form and shall be supported by appropriate references to the page or pages of the transcript or to the relevant document upon which the appellee relies. An appellee may not rely on any fact unless it is set forth in the appellee's counter statement of facts or in the appellant's statement of facts or is incorporated in any brief of the parties in accordance with Section 67- 4 (e) or with subsection (e) hereof.

(e) The argument of the appellee, divided as provided in Section 67-4 (e). The argument on each point shall include a separate, brief statement of the standard of review the appellee believes should be applied. The argument may augment or take exception to the appellant's presentation of rulings or the charge by reference to any relevant part of the court's charge or any other evidence in narrative or verbatim form which is relevant to such question, with appropriate references to the statements of facts or to the page or pages of the transcript or to the relevant document.

(f) Claims, if any, directed to any rulings or decisions of the trial court adverse to the appellee. These shall be made in the manner provided in Section 67-4 (e).

(g) A short conclusion stating the precise relief sought.

(h) The text of the pertinent portions of any constitutional provision, statute, ordinance or regulation at issue or on which the appellee relies. Such text need not be included in the brief if it is included in the appellant's brief or appendix or in the appendix to the appellee's brief.

(i) In appeals filed pursuant to Section 81-4, a statement as to whether the appellee disputes the applicability of the version of the land use regulations filed with the appellate clerk. If the appellee disputes the applicability of such regulations, it shall set forth its basis for maintaining that such regulations do not apply.

(j) The appellee's brief shall be organized in the following order: table of contents; statement of issues; table of authorities; statement of facts; argument; conclusion and statement of relief requested; signature; and certification pursuant to Section 62-7.

(k) When the appellee is also the cross appellant, the issues on the cross appeal shall be briefed in accordance with Section 67-4. In such a case, the briefs shall clearly label which sections of the

brief refer to the appeal and which refer to the cross appeal.

(P.B. 1978-1997, Sec. 4064D.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended July 24, 2002, to take effect Oct. 1, 2002; amended June 2, 2005, to take effect Jan. 1, 2006; amended July 30, 2009, to take effect Jan. 1, 2010; amended June 2, 2010, to take effect Jan. 1, 2011; amended June 5, 2013, to take effect July 1, 2013; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What had been subsection (j) concerning the certificate of interested entities or individuals was deleted, and what had been subsections (k) and (l) were redesignated as subsections (j) and (k). In the new subsection (j), the language concerning the certificate of interested entities or individuals was deleted.

COMMENTARY—2026: The purpose of these proposed amendments is to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 67-5A. The Reply Brief

The appellant may file a reply brief, which should respond directly and succinctly to the arguments in the appellee's brief. The format of a reply brief shall be in accordance with Section 67-2 or 67-2A.

The reply brief shall be filed within twenty days after the filing of the last appellee's brief.

Except as otherwise ordered, the reply brief shall not exceed 6500 words for electronic filers, or fifteen pages for filers that are excluded or exempt from electronic filing pursuant to Section 60-8. Word counts and page limitations are exclusive of the cover page, the table of contents, the table of authorities, the signature block of counsel of record, certifications and any appendix. Requests for permission to exceed 6500 words or fifteen pages shall be filed in accordance with Section 67-3 or 67-3A.

If there is a cross appeal, the cross appellant may file a reply brief as to the cross appeal in accordance with the requirements of this rule.

Where a claim relies on the state constitution as an independent ground for relief, the clerk shall, upon request, grant an additional two pages or 800 words for the reply brief, which pages or words are to be used for the state constitutional argument only.

(Adopted June 15, 2021, to take effect Oct. 1, 2021; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, the second paragraph provided: "The reply brief shall be filed within twenty days of the appellee's brief. If there are multiple appellees and they file separate briefs, then the time to file a reply brief shall run from the filing date of the last appellee's brief."

COMMENTARY—2026: The purpose of this proposed amendment is intended to clarify the deadline for filing a reply brief when there are multiple appellees.

Sec. 67-6. Statutory (§ 53a-46b) Review of Death Sentences

(a) When a sentence of death has been imposed upon a defendant, following a conviction of a capital felony in violation of General Statutes § 53a-54b and the hearing upon imposition of the death penalty pursuant to General Statutes § 53a-46a, the briefs of the parties shall include a discussion of the issues set forth in General Statutes § 53a-46b (b), to wit, whether (1) the sentence was the product of passion, prejudice or any other arbitrary factor; (2) the evidence fails to support the finding of an aggravating circumstance specified in subsection (h) of § 53a-46a; and (3) the sentence is excessive or disproportionate to the penalty imposed in similar cases, considering both the circumstances of the crime and the character and record of the defendant.

(b) For the purpose of reviewing the issue of disproportionality pursuant to General Statutes § 53a-46b (b), the briefs of the parties shall contain appendices setting forth the circumstances of the crimes that are claimed to be similar to that of which the defendant has been convicted and the characters and records of the defendants involved therein so far as these are ascertainable from the transcripts of those trials and hearings on the imposition of the death penalty or may be judicially noticed. Only those capital felony cases that have been prosecuted in this state after October 1, 1973, and in which hearings on the imposition of the death penalty have taken place, whether or not the death penalty has been imposed, shall be deemed eligible for consideration as "similar cases," unless the court, on application of a party claiming that the resulting pool of eligible cases is inadequate for disproportionality review, shall modify this limitation in a particular case. Any such application shall identify the additional case or cases claimed to be similar and set forth, in addition to the circumstances of the crime and the character and record of the defendant involved, the provisions of the applicable statutes pertaining to the imposition of the death penalty with citations of pertinent decisions interpreting such provisions.

Any such application shall be filed within thirty days after the delivery date of the transcript ordered by the appellant, or, if no transcript is required or the transcript has been received by the appellant

prior to the filing of the appeal, such application shall be filed within thirty days after filing the appeal.

(P.B. 1978-1997, Sec. 4064E.)

Sec. 67-7. The Amicus Curiae Brief

[Repealed as of Jan. 1, 2025.]

Sec. 67-7A. The Amicus Curiae Electronic Brief

(a) A brief of an amicus curiae in cases before the court on the merits may be filed only with the permission of the court unless subsection (f) of this section applies. An application for permission to appear as amicus curiae and to file a brief shall be filed within twenty days after the filing of the brief of the party, if any, whom the applicant intends to support. If there is no such party, then the application shall be filed no later than twenty days after the filing of the last appellee's brief, or if no appellee files a brief, no later than twenty days after the due date for the filing of the last appellee's brief.

(b) The application shall state concisely the nature of the applicant's interest and the reasons why a brief of an amicus curiae should be allowed. A party to the appellate matter in which the application is filed may, within ten days after the filing of the application, file an objection.

Applications and objections, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes, and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

Applications and objections shall not exceed 3500 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications, and appendix, if any.

An amicus curiae brief shall not exceed 4000 words and shall conform with the requirements set forth in Chapter 67. The applicant may request to file a brief in excess of 4000 words by including a request in the application that sets forth reasons to justify the additional words.

(c) All briefs filed under this section shall comply with the applicable provisions of this chapter, and shall set forth the interest of the amicus curiae.

(d) An amicus curiae may argue orally only when a specific request for such permission is granted by the court in which the appeal is pending.

(e) With the exception of briefs filed by the attorney general as provided by this rule, all briefs shall indicate whether counsel for a party wrote the brief in whole or in part and whether such counsel or a party contributed to the cost of the preparation or submission of the brief and shall identify those persons, other than the amicus curiae, its members or its counsel, who made such monetary contribution. The disclosure shall be made in the first footnote on the first page of text.

(f) Except for habeas corpus matters based on criminal convictions, if an appeal in a noncriminal matter involves an attack on the constitutionality of a state statute, the attorney general may appear and file a brief amicus curiae as of right. The attorney general's brief shall be filed within twenty days of the filing of the brief of the party that the attorney general supports. If there is no party that the attorney general supports or no appellee files a brief, the attorney general's brief shall be filed no later than twenty days after the due date for the filing of the last appellee's brief.

(Adopted June 15, 2021, to take effect Oct. 1, 2021; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, subsection (a) provided: "A brief of an amicus curiae in cases before the court on the merits may be filed only with the permission of the court unless subsection (f) of this section applies. An application for permission to appear as amicus curiae and to file a brief shall be filed within twenty days after the filing of the brief of the party, if any, whom the applicant intends to support, and if there is no such party, then the application shall be filed no later than twenty days after the filing of the appellee's brief."

In subsections (b) and (c), what had been the second sentences concerning the certificate of interested entities or individuals were deleted.

Prior to 2026, subsection (f) provided: "Except for habeas corpus matters based on criminal convictions, if an appeal in a noncriminal matter involves an attack on the constitutionality of a state statute, the attorney general may appear and file a brief amicus curiae as of right. Any such appearance by the attorney general shall be filed no later than the date on which the brief of the party that the attorney general supports is filed, and the attorney general's brief will be due twenty days after the filing of the brief of the party that the attorney general supports."

COMMENTARY—2026: The purpose of these proposed amendments is to clarify the deadlines for filing an amicus curiae electronic brief, and to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

TECHNICAL CHANGE: The style of the reference in the first sentence of subsection (a) was updated.

Sec. 67-8. The Party Appendix

(Amended June 15, 2021, to take effect Oct. 1, 2021.)

(a) No party appendix is required in either a court or a jury case, except where an opinion is cited that is not officially published, in which case the text of the opinion must be included in the party appendix.

A party appendix may be used: (1) to include excerpts from exhibits; (2) to include excerpts from the transcripts deemed necessary by any parties

pursuant to Section 63-4 (a) (3); (3) to provide other items from the proceedings below that a party deems necessary for the proper presentation of the issues on appeal; or (4) to comply with other provisions of the rules of practice that require the inclusion of certain materials in the party appendix.

The transcript cover page and certification page must be included with any transcript excerpt. To reproduce a full transcript or exhibit when an excerpt would suffice, or to include portions of the proceedings below that are not necessary for the proper presentation of the issues on appeal, is a misuse of a party appendix. Pursuant to Section 67-2A (a), briefs shall include internal hyperlinks for citations to items included in the party appendix.

(b) The party appendix, if any, shall be prepared in accordance with Section 67-2 or Section 67-2A. A party appendix shall have at its beginning a table of contents of any items in it. If constitutional provisions, statutes, ordinances, regulations, or portions of the transcript are contained in a party appendix, they may be reproduced in their original form so long as the document is not reduced to less than 75 percent of its original form.

(c) All briefs and party appendices shall protect personal identifying information as defined by Section 4-7, or other information protected by rule, statute, court order or case law. Appeals that have been ordered sealed in part or in their entirety or are subject to limited disclosure shall comply with Section 77-2.

(P.B. 1978-1997, Sec. 4064G.) (Amended Jan. 29, 2009, to take effect March 1, 2009; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended March 15, 2017, to take effect June 15, 2017; amended July 19, 2017, to take effect Oct. 8, 2017; amended July 23, 2020, to take effect Jan. 1, 2021; amended June 15, 2021, to take effect Oct. 1, 2021.)

TECHNICAL CHANGE: In the third paragraph of subsection (a), the reference was updated.

Sec. 67-8A. The Appendix in Administrative Appeals; Exceptions

[Repealed as of Jan. 1, 2025.]

Sec. 67-9. Citation of Unreported Decisions

[Repealed as of July 1, 2013.]

Sec. 67-10. Citation of Supplemental Authorities after Brief Is Filed

When pertinent and significant authorities come to the attention of a party after the party's brief has been filed, or after oral argument but before decision, a party may promptly file with the appellate clerk a letter listing such supplemental authorities, including citations, with a copy certified to all counsel of record in accordance with Section 62-7. If the authority is an unreported decision, a copy of the text of the decision must accompany the filing, unless the authority is an advance release opinion of the Supreme or Appellate Court that is available on the Judicial Branch website or a slip opinion of the United States Supreme Court available on that court's website. The letter shall concisely state the relevance of the supplemental citations and shall include, where applicable, reference to the pertinent page(s) of the brief. The body of the letter must not exceed 350 words. Any response shall be made promptly and shall be similarly limited. Replies to responses are not permitted.

This section may not be used after oral argument to elaborate on points made or to address points not made.

All papers shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the letter or response complies with the word count requirement of this section.

(P.B. 1978-1997, Sec. 4064J.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended July 9, 2008, to take effect Jan. 1, 2009; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2020, to take effect Jan. 1, 2021; amended July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the third sentence of the first paragraph, "and without argument" was deleted following "concisely." What is now the last paragraph was added.

COMMENTARY—2026: The purpose of these proposed amendments is to remove the "without argument" requirement from and add a word count certification requirement to the rule.

Sec. 67-11. Table of Authorities; Citation of Cases

(a) In the table of authorities, citations to state cases shall be to the official reporter first, if available, followed by the regional reporter. Citations to cases from jurisdictions having no official reporter shall identify the court rendering the decision. Citations to opinions of the United States Supreme Court shall be to the United States Reports, if therein; otherwise, such citations shall be to the Supreme Court Reporter, the Lawyer's Edition, or United States Law Week, in that order of preference.

(b) In the argument portion of a brief, citations to Connecticut cases shall be to the official reporter only. Citations to other state cases may be to either the official reporter or the regional reporter. United States Supreme Court cases should be cited as they appear in the table of authorities.

(c) If a case is not available in print and is available on an electronic database, such as LEXIS, Westlaw, or CaseBase, the case shall be cited to that database. In the table of authorities, citations to such cases shall include the case name; docket number; name of the database and, if applicable, numeric identifiers unique to the database; court name; and full date of the disposition of the case. Screen, page or paragraph numbers shall be pre-

ceded by an asterisk. In the argument portion of a brief, such cases shall be cited only by name and database. If such a case is published in a print reporter after the filing of the party's brief, but prior to the case on appeal being orally argued or submitted for decision on the record and briefs, the party who cited the unreported case shall, by letter, inform the chief clerk of the print citation of that case.

(Adopted July 21, 1999, to take effect Jan. 1, 2000.)

Sec. 67-12. Stay of Briefing Obligations upon Filing of Certain Motions after Appeal Is Filed

[Repealed as of Jan. 1, 2025.]

Sec. 67-13. Briefs in Family and Juvenile Matters and Other Matters involving Minor Children

In family and juvenile matters and other matters involving minor children, counsel for the minor child and/or counsel for the guardian ad litem shall, within ten days of the filing of the last appellee's brief, file either: (1) a brief, (2) a statement adopting the brief of either the appellant or an appellee, or (3) a detailed statement that the factual or legal issues on appeal do not implicate the child's interests. If no appellee files a brief, the court will set a due date for the above filing.

(Adopted Nov. 4, 2004, to take effect Jan. 1, 2005; amended July 15, 2015, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence, "last" was added before "appellee's brief," and what is now the second sentence was added.

COMMENTARY—2026: The purpose of these proposed amendments is to clarify the deadline for the filing requirements of counsel for minor children and counsel for the guardian ad litem when there are multiple appellees, and to provide a procedure for when no appellee files a brief.

Sec. 67-14. Joint Briefs; Statements Adopting Briefs

(a) If one or more parties want to join in the brief of another party, those parties may file a joint brief. A joint brief must conform to the requirements of Sections 67-2 et seq., and must be signed by all counsel of record joining in the brief.

(b) If a party agrees with the contents of another party's brief, a statement adopting the brief of the other party may be filed. Any statement adopting a brief must be filed before the case is ready for assignment.

(Adopted July 23, 2024, to take effect Jan. 1, 2025.)

CHAPTER 68
CASE FILE AND CLERK APPENDIX

(Amended June 5, 2013, to take effect July 1, 2013; amended June 15, 2021, to take effect Oct. 1, 2021.)

Sec.
68-1. Responsibilities of Clerk of the Trial Court regarding Copying Case File and Additions to Case File Made after Appeal Is Filed; Exhibits and Lodged Records
68-2. Record Preparation
[Repealed as of July 1, 2013.]
68-2A. Assembly of the Clerk Appendix
68-3. Record Contents
[Repealed as of July 1, 2013.]
68-3A. Clerk Appendix Contents
68-4. Record Format
[Repealed as of July 1, 2013.]
68-4A. Clerk Appendix Format
68-5. Record where More than One Appeal
[Repealed as of July 1, 2013.]
68-5A. Clerk Appendix when More than One Appeal
68-6. Record where Several Cases Present Same Question
[Repealed as of July 1, 2013.]
68-6A. Clerk Appendix when Several Cases Present Same Question
68-7. Record Filing
[Repealed as of July 1, 2013.]
68-8. Supplements
[Repealed as of July 1, 2013.]
68-8A. Supplements
68-9. Evidence Not To Be Included in Record
[Repealed as of July 1, 2013.]
68-10. Record in Administrative Appeals; Exceptions
[Repealed as of July 1, 2013.]
68-10A. Clerk Appendix in Administrative Appeals; Exceptions
68-11. Decision To Be Part of Record
[Repealed as of July 1, 2013.]
68-11A. Decision To Be Part of Clerk Appendix

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 68-1. Responsibilities of Clerk of the Trial Court regarding Copying Case File and Additions to Case File Made after Appeal Is Filed; Exhibits and Lodged Records

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

(a) With the exception of those appeals in which the contents of the case file consist solely of papers filed by electronic means, the clerk of the trial court shall, within ten days of the filing of the appeal, prepare and forward to the appellate clerk one complete copy of the case file, including the case detail page for noncriminal cases and all written requests to charge. No omissions may be made from the case file except upon the authorization of the appellate clerk. The appellate clerk may direct the clerk of the trial court to prepare and to forward a case file in any other instance in which it is needed. The clerk of the trial court shall, within five days of the filing, forward to the appellate clerk one copy of all additions made to the case file after the initial preparation and transmittal of the case file.

Nothing in this section relieves the appellant and the appellee of their duty to comply with the party appendix requirements of Section 67-8.

(b) Each document of the case file must be numbered, and the file must include a table of contents listing each item entered in the file according to its number.

(c) In an appeal from an administrative agency, the papers returned by the agency to the trial court, even though annexed to and incorporated by reference in the answer, shall accompany the copy of the file that is numbered and indexed pursuant to subsection (b).

(d) All exhibits in the trial court are deemed exhibits on appeal and are deemed in the custody of the appellate clerk while the appeal is pending. The appellate clerk shall notify the clerk of the trial court of the exhibits required by the court in which the appeal is pending. Within ten days of such notice, the clerk of the trial court shall transmit those exhibits to the appellate clerk accompanied by a list of all exhibits in the case. The clerk of the trial court shall notify all counsel of record of the transmittal and provide them with a copy of the exhibit list. The provisions of this paragraph shall apply to records lodged pursuant to Section 7-4C.

(P.B. 1978-1997, Sec. 4084.) (Amended July 24, 2002, to take effect Oct. 1, 2002; amended Oct. 15, 2003, to take effect Jan. 1, 2004; amended July 30, 2009, to take effect Jan. 1, 2010; amended Jan. 31, 2013, to take effect March 1, 2013; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended June 15, 2021, to take effect Oct. 1, 2021.)

Sec. 68-2. Record Preparation

[Repealed as of July 1, 2013.]

Sec. 68-2A. Assembly of the Clerk Appendix

As soon as possible after the filing of the appeal and the delivery of the case file, the appellate

clerk shall assemble the clerk appendix. After assembling the clerk appendix, the appellate clerk shall upload the clerk appendix in a searchable portable document format to the appellate file and deliver it to the parties.

(Adopted June 15, 2021, to take effect Oct. 1, 2021.)

Sec. 68-3. Record Contents

[Repealed as of July 1, 2013.]

Sec. 68-3A. Clerk Appendix Contents

The clerk appendix shall contain the oral or written decision that is the subject of the appeal, pleadings, motions, orders and other documents docketed in the case file that are necessary for presenting the issues on appeal. The appellate clerk shall assemble the clerk appendix based on a review of the case file and the preliminary papers submitted by the parties pursuant to Section 63-4. The appellate clerk may confer with counsel and with the clerk of the trial court to determine the contents of the clerk appendix. Officer's returns, transcripts and exhibits shall not be included in the clerk appendix unless they had been annexed to a document docketed in the case file in the proceedings below. Nevertheless, exhibits annexed to a document docketed in the case file in the proceedings below may be excluded from the clerk appendix at the discretion of the appellate clerk. The contents of the clerk appendix in administrative appeals is governed by Section 68-10A.

(Adopted June 15, 2021, to take effect Oct. 1, 2021; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence, "(but not memoranda of law)" was deleted following "other documents."

COMMENTARY—2026: The purpose of this amendment is to remove the prohibition on including memoranda of law in the clerk appendix.

Sec. 68-4. Record Format

[Repealed as of July 1, 2013.]

Sec. 68-4A. Clerk Appendix Format

The cover of the clerk appendix shall include the following in order from the top of the page: (1) the name of the court; (2) the appellate docket number; and (3) the appellate case name. The appellate clerk shall prepare a table of contents giving the title or nature of each document included in the clerk appendix, along with the corresponding page number on which the document begins. The pages of the clerk appendix shall be numbered sequentially. The date when each paper contained in the clerk appendix was filed must be stated.

(Adopted June 15, 2021, to take effect Oct. 1, 2021.)

Sec. 68-5. Record where More than One Appeal

[Repealed as of July 1, 2013.]

Sec. 68-5A. Clerk Appendix when More than One Appeal

When more than one appeal is taken from the same trial court docket number, the appellate clerk has the discretion to assemble only one clerk appendix.

(Adopted June 15, 2021, to take effect Oct. 1, 2021.)

Sec. 68-6. Record where Several Cases Present Same Question

[Repealed as of July 1, 2013.]

Sec. 68-6A. Clerk Appendix when Several Cases Present Same Question

In the discretion of the appellate clerk, if several cases are pending in which the same question of law is presented, whether between the same or different parties, such clerk may assemble only one clerk appendix.

(Adopted June 15, 2021, to take effect Oct. 1, 2021.)

Sec. 68-7. Record Filing

[Repealed as of July 1, 2013.]

Sec. 68-8. Supplements

[Repealed as of July 1, 2013.]

Sec. 68-8A. Supplements

After the clerk appendix has been filed, the appellate clerk may supplement the clerk appendix as needed and shall upload any supplement to the appellate file and deliver it to the parties.

(Adopted June 15, 2021, to take effect Oct. 1, 2021.)

Sec. 68-9. Evidence Not To Be Included in Record

[Repealed as of July 1, 2013.]

Sec. 68-10. Record in Administrative Appeals; Exceptions

[Repealed as of July 1, 2013.]

Sec. 68-10A. Clerk Appendix in Administrative Appeals; Exceptions

(a) If not already included in the copy of the case file pursuant to subsection (c), in appeals from administrative agencies, the clerk appendix shall include the part of the return of the administrative agency which identifies the papers returned to the trial court, and also such of the papers returned as consist of (1) the application or appeal to the agency; (2) the notice of hearing and the affidavit of publication, if they are at issue in the appeal; and (3) any minutes or decision showing the action taken by the agency, the reasons assigned for that action and

any findings and conclusions of fact made by the agency. The clerk appendix shall also contain such other portions of the returned agency record as the appellate clerk finds are needed for the proper presentation of any of the issues on appeal. Relevant portions of the record before the agency returned by it to the trial court but not included in the clerk appendix should be reproduced in the brief or party appendix as provided in Section 67-8.

(b) The party appendix, if any, shall be prepared in accordance with the provisions of Section 67-8.

(c) Subsection (a) shall not apply to the following administrative appeals:

(1) Appeals from municipal boards of tax review filed pursuant to General Statutes §§ 12-117a and 12-119.

(2) Appeals from municipal assessors filed pursuant to General Statutes § 12-103.

(3) Appeals from the Commissioner of Revenue Services.

(4) Appeals from the insurance commissioner filed pursuant to General Statutes § 38a-139.

(5) Any other appeal in which the parties received a trial de novo in the Superior Court.

The clerk appendix in these matters shall be assembled pursuant to the rules applicable to the clerk appendix in ordinary civil actions.

(Adopted June 15, 2021, to take effect Oct. 1, 2021.)

Sec. 68-11. Decision To Be Part of Record

[Repealed as of July 1, 2013.]

Sec. 68-11A. Decision To Be Part of Clerk Appendix

The oral or written decision that is the subject of the appeal shall be included as part of the clerk appendix. See Sections 64-1 and 64-2.

(Adopted June 15, 2021, to take effect Oct. 1, 2021.)

CHAPTER 69
ASSIGNMENT OF CASES FOR ARGUMENT

Sec.
69-1. Docket
69-2. Cases Ready for Assignment
69-3. Time for Assignments; Order of Assignment

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 69-1. Docket

The appellate clerk shall periodically prepare a docket of all pending cases which are not on a current assignment list and which appear to be ready for assignment under Section 69-2 or have been ordered to be heard by the court. The appellate clerk shall post the docket on the Judicial Branch website. The electronic posting on the Judicial Branch website shall be official notice of the docket. Counsel of record who have received an exemption from the electronic filing requirements pursuant to Section 60-8 shall receive paper notice of the inclusion of the case on the docket.

(P.B. 1978-1997, Sec. 4100.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016; amended Oct. 18, 2016, to take effect Nov. 30, 2016.)

Sec. 69-2. Cases Ready for Assignment

Cases will be considered ready for assignment when the briefs and appendices, if any, of all parties, including reply briefs, have been filed or the time for filing reply briefs has expired. Any case ready for assignment may be assigned pursuant to Section 69-3. After notice to counsel of record of a date and time to be heard, the chief justice, the chief judge, or a designee may order the assignment of any appeal, notwithstanding the fact that the case on appeal does not appear on the docket.

If an assigned case is settled or withdrawn for any reason, counsel for the appellant shall notify the appellate clerk immediately.

(P.B. 1978-1997, Sec. 4101.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017.)

Sec. 69-3. Time for Assignments; Order of Assignment

Assignments of cases ordinarily will be made in the order in which the cases become ready for assignment pursuant to Section 69-2. Requests for variations from this order, stating the reason therefor, shall be made by filing an assignment form (JD-SC-037) in the time frame specified on the docket with certification pursuant to Section 62-7.

An attorney making such a request shall also indicate that a copy of the request has been delivered to each of his or her clients who are parties to the appeal.

Assignments for oral argument in the Supreme Court and Appellate Court shall take precedence over all other Judicial Branch assignments.

The appellate clerk will post the assignment of cases on the Judicial Branch website. The electronic posting on the Judicial Branch website shall be official notice of the assignment. Counsel of record who have received an exemption from the electronic filing requirements pursuant to Section 60-8 shall receive paper notice of the assignment of the case.

(P.B. 1978-1997, Sec. 4104.) (Amended Jan. 29, 2009, to take effect March 1, 2009; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016; amended Oct. 18, 2016, to take effect Nov. 30, 2016.)

TECHNICAL CHANGE: In the first paragraph, the convention for the form number was updated for consistency purposes.

CHAPTER 70

ARGUMENTS AND MEDIA COVERAGE OF COURT PROCEEDINGS

Sec.
70-1. Oral Argument; Videoconferencing of Oral Argument in Certain Cases
70-2. Submission without Oral Argument on Request of Parties
70-3. Order of Oral Argument; Nonappearance at Oral Argument
70-4. Time Allowed for Oral Argument; Who May Argue
70-5. Points To Be Argued
70-6. Reconsideration when Court Evenly Divided
70-7. Appellate Court Consideration En Banc and Reargument En Banc
70-8. Special Sessions
70-9. Coverage of Court Proceedings by Cameras and Electronic Media
70-10. Cameras and Electronic Media; Coverage of Supreme and Appellate Court Proceedings by News Media [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 70-1. Oral Argument; Videoconferencing of Oral Argument in Certain Cases

(a) Oral argument will be allowed as of right in all appeals except as provided in subsection (b) of this rule.

(b) In civil cases where: (1) the dispositive issue or set of issues has been recently authoritatively decided; or (2) the facts and legal arguments are adequately presented in the briefs and the decisional process would not be significantly aided by oral argument, notice will be sent to counsel of record that the case will be decided on the briefs and record only. This notice will be issued after all briefs and appendices, if any, have been filed. Any party may file a request for argument stating briefly the reasons why oral argument is appropriate and shall do so within ten days of the issuance of the court's notice. After receipt and consideration of such a request, the court will either assign the case for oral argument or assign the case for disposition without oral argument, as it deems appropriate.

(c) In matters involving incarcerated self-represented parties, oral argument may be conducted by videoconference upon direction of the court in its discretion.

(P.B. 1978-1997, Sec. 4106.) (Amended May 19, 2011, to take effect Jan. 1, 2012; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016; amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 70-2. Submission without Oral Argument on Request of Parties

(Amended May 19, 2011, to take effect Jan. 1, 2012.)

Counsel of record may, before or after a case has been assigned for a hearing, file a request to submit the case for decision on the briefs and record only, without oral argument. No request for submission without oral argument will be granted unless the requesting party certifies that all other parties agree to waive oral argument. This rule applies only to counsel of record who have filed a brief or joined in the brief of another party.

(P.B. 1978-1997, Sec. 4102.) (Amended May 19, 2011, to take effect Jan. 1, 2012; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 70-3. Order of Oral Argument; Nonappearance at Oral Argument

(Amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

(a) Counsel of record for the appellant or the plaintiff in error will be entitled to open and close oral argument. On a reservation, the plaintiff will open and close, unless the court otherwise directs, except in suits for the construction of wills or of interpleader, when the court will fix the order of oral argument. If there are cross appeals, the original appellant will open and the cross appellant will close unless the court otherwise orders for cause shown. If there are consolidated appeals, the parties in the appeal filed first will argue first unless the court otherwise orders.

(b) If either party fails to appear at oral argument, the court may decide the case on the basis of the briefs, the record, and the oral argument of the appearing party. If neither party appears at oral argument, the court may decide the case on the basis of the briefs and record only, without oral argument. The court may impose sanctions on a nonappearing party in accordance with Section 85-3, including dismissal of the case.

(P.B. 1978-1997, Sec. 4107.) (Amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

Sec. 70-4. Time Allowed for Oral Argument; Who May Argue

Argument of any case shall not exceed thirty minutes on each side in the Supreme Court and

twenty minutes on each side in the Appellate Court unless the court grants a request for additional time made prior to argument. The court may terminate the argument whenever in its judgment further argument is unnecessary.

When a case has multiple parties on the same side, the parties may apportion time for argument as they choose, but counsel of record must provide notice to the court prior to argument.

When a party has more than one counsel of record, counsel may file a request by letter with the appellate clerk to allow more than one counsel to present argument for that party. The request must be approved by the court prior to argument.

When a party has more than one counsel of record, and counsel not identified as arguing counsel on the brief wishes to argue, the attorney who will be arguing shall file a letter notifying the court of the change prior to argument.

When counsel of record has a firm appearance, and an attorney from the appearing firm wishes to argue the appeal but is not identified as the arguing attorney on the brief, the attorney who will be arguing the appeal shall file a letter notifying the court of the change prior to argument.

No argument shall be allowed by any party who has not filed a brief or who has not joined in the brief of another party in accordance with Section 67-14 (a).

(P.B. 1978-1997, Sec. 4108.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended July 23, 2019, to take effect Jan. 1, 2020; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 70-5. Points To Be Argued

(a) Oral argument should clarify and focus arguments in the briefs. The court discourages oral argument read from a prepared text and lengthy quotations from legal precedents, the transcript, or the record.

(b) Counsel of record should assume that the court has read the briefs in advance of oral argument. No points made in briefs will be considered waived because not argued orally. Rebuttal argument shall be confined to the points presented by the argument of opposing counsel of record.

(P.B. 1978-1997, Sec. 4109.) (Amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of subsection (a), "written" was deleted before "briefs."

COMMENTARY—2026: This amendment was made for purposes of clarity and consistency.

Sec. 70-6. Reconsideration when Court Evenly Divided

When the court is evenly divided as to the result, the court shall reconsider the case, with or without oral argument, with an odd number of justices or judges.

(P.B. 1978-1997, Sec. 4111.)

Sec. 70-7. Appellate Court Consideration En Banc and Reargument En Banc

(Amended July 21, 1999, to take effect Jan. 1, 2000; amended June 2, 2010, to take effect Jan. 1, 2011.)

(a) Before a case is assigned for oral argument, the chief judge may order, on the motion of a party or sua sponte, that a case be heard en banc.

(b) After argument but before decision, the entire court may order that the case be considered en banc with or without further oral argument or with or without supplemental briefs. The judges who did not hear oral argument shall have available to them the electronic recording or a transcript of the oral argument before participating in the decision.

(c) After decision, the entire court may order, on the motion of a party pursuant to Section 71-5 or sua sponte, that reargument be heard en banc.

(P.B. 1978-1997, Sec. 4112.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended June 2, 2010, to take effect Jan. 1, 2011.)

Sec. 70-8. Special Sessions

The Supreme Court will be deemed in special session whenever the justices meet for consultation; but the presence of the clerk or a judicial marshal will not be required, unless specially directed.

(P.B. 1978-1997, Sec. 4115.) (Amended Oct. 10, 2001, to take effect Jan. 1, 2002.)

Sec. 70-9. Coverage of Court Proceedings by Cameras and Electronic Media

(a) The broadcasting, televising, recording or photographing of proceedings in the Supreme or Appellate Court by the media as defined in Section 1-10A should be allowed unless the panel of jurists partially or totally excludes coverage in the interests of the administration of justice.

(b) Unless good cause is shown, any media or pool representative who has been approved as media pursuant to Section 1-10A and wishes to broadcast, televise, record or photograph a Supreme or Appellate Court proceeding shall send an email request for electronic coverage to a person designated by the chief court administrator to receive such requests at least three business days prior to the commencement of the proceeding. Said designee shall promptly transmit any such request to the panel of jurists assigned to hear the matter.

(c) The right to permit or to exclude coverage, whether partially or totally, shall remain with the panel of jurists, consistent with subsection (a).

(d) In any case involving: (1) sexual assault; (2) risk of injury to, or impairing the morals of, a child; (3) abuse or neglect of a child; (4) termination of parental rights; and (5) contested questions of child custody or visitation, counsel of record shall not disclose any information that would likely publicly reveal the identity or location of the protected parties during the proceeding.

(e) If there are multiple requests to broadcast, televise, record or photograph the same proceeding, the media representatives making such requests must make pooling arrangements among themselves, unless otherwise determined by the panel of jurists. The panel of jurists shall not mediate any disputes among the media regarding pooling arrangements.

(f) As used in this rule, "panel of jurists" means the justices or judges assigned to hear a particular case.

(P.B. 1978-1997, Sec. 4116A.) (Amended Feb. 19, 2003, to take effect Jan. 1, 2004; amended April 11, 2007, to take effect June 1, 2007; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 70-10. Cameras and Electronic Media; Coverage of Supreme and Appellate Court Proceedings by News Media

[Repealed as of June 1, 2007.]

CHAPTER 71

APPELLATE JUDGMENTS AND OPINIONS

Sec.
71-1. Appellate Judgment Files
71-2. Costs Included in Judgments
71-3. Motion To Reconsider Costs
71-4. Opinions; Rescripts; Official Release Date
71-5. Motions for Reconsideration; Motions for Reconsideration En Banc
71-6. Stay of Proceedings
71-7. Stays of Execution Pending Decision by United States Supreme Court

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 71-1. Appellate Judgment Files

Judgments of the court may be embodied in judgment files, to be drawn upon request and signed by the appellate clerk. Unless the court otherwise directs, a judgment shall be deemed to have been rendered on the date an opinion or memorandum decision appears in the Connecticut Law Journal; except that if an opinion or decision is issued by slip opinion or by oral announcement from the bench, the judgment shall be deemed to have been rendered on the date that appears as the officially released date in the slip opinion or the date that the oral announcement is made. In the case of an order on, for example, a motion or petition, the order shall be deemed to have been made on the date that the appellate clerk issues notice of the order to the clerk of the trial court and to all counsel of record. Judgments or orders shall be entered as of the appropriate date.

(P.B. 1978-1997, Sec. 4117.) (Amended Jan. 29, 2009, to take effect March 1, 2009; amended June 2, 2010, to take effect Jan. 1, 2011.)

Sec. 71-2. Costs Included in Judgments

Except as otherwise provided herein, in all appeals or writs of error which go to judgment in the Supreme or Appellate Court including an order for a new trial, costs shall be taxed to the prevailing party by the appellate clerk, in the absence of special order to the contrary by the court. On all reservations the mandate which follows the opinion of the court will specify what costs shall be taxed. A bill of costs shall be filed with the appellate clerk no more than thirty days after the notice of the appellate decision, or, of the denial of a motion for reconsideration, or, of the denial of a petition for certification by the Supreme Court of this state, whichever is latest.

(P.B. 1978-1997, Sec. 4118.) (Amended July 21, 1999, to take effect Jan. 1, 2000.)

Sec. 71-3. Motion To Reconsider Costs

Any party may within ten days after the issuance of the decision on the taxation of costs file a written motion, in accordance with the provisions of Sections 66-2 and 66-3, that the court review the clerk's taxation of costs under its judgment. Any such motion must be submitted without oral argument.

(P.B. 1978-1997, Sec. 4119.)

Sec. 71-4. Opinions; Rescripts; Official Release Date

(Amended Jan. 29, 2009, to take effect March 1, 2009; amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

(a) After the court releases an opinion in any case other than a case involving a question certified from a federal court, the Reporter of Judicial Decisions shall provide a hyperlink to an electronic version of the opinion and send a copy of the rescript to the clerk of the trial court and shall make the rescript available to the appellate clerk. Notice of the decision of the court shall be deemed to have been given, for all purposes, on the official release date that appears in the court's opinion or memorandum decision.

(b) The official opinion of the court is the version published in the bound or electronic volumes of the Connecticut Reports and the Connecticut Appellate Reports, or, if not published in a bound or electronic volume, the most recent version published in the Connecticut Law Journal.

(P.B. 1978-1997, Sec. 4120.) (Amended Jan. 29, 2009, to take effect March 1, 2009; amended June 2, 2010, to take effect Jan. 1, 2011; amended Oct. 18, 2017, to take effect Jan. 1, 2018; amended June 6, 2018, to take effect Sept. 1, 2018; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 71-5. Motions for Reconsideration; Motions for Reconsideration En Banc

(Amended July 21, 1999, to take effect Jan. 1, 2000.)

A motion for reconsideration will not be entertained unless filed with the appellate clerk within ten days from the date when the decision or any order being challenged is officially released. Any required fees shall be paid in accordance with the provisions of Section 60-7 or 60-8. A fee shall not

be required for a motion for reconsideration when either (1) no fee was required to file the appeal, or (2) the movant was granted a waiver of fees to file the appeal.

The motion for reconsideration shall state briefly the grounds for requesting reconsideration.

A party may also request reconsideration en banc by placing "en banc" in the caption of the motion and requesting such relief as an alternative to reconsideration by the panel.

Whenever reconsideration en banc is sought, the motion shall state briefly why reconsideration en banc is necessary (for example, to secure or maintain uniformity of decision or because of the importance of the decision) and shall also state the names of the decisions, if any, with which the decision conflicts. A motion for reconsideration shall be treated as a motion for reconsideration en banc when any member of the court which decided the matter will not be available, within a reasonable time, to act on the motion for reconsideration.

(P.B. 1978-1997, Sec. 4121.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 6, 2018, to take effect Sept. 1, 2018.)

Sec. 71-6. Stay of Proceedings

(Amended July 21, 1999, to take effect Jan. 1, 2000.)

(a) Unless the chief justice or chief judge shall otherwise direct, any stay of proceedings which was in effect during the pendency of the appeal shall continue until the time for filing a motion for reconsideration has expired, and, if a motion is filed, until its disposition, and, if it is granted, until the appeal is finally determined. For appeals in the Appellate Court, any stay in effect shall continue until the time to file a petition for certification to the Supreme Court has expired, and if such a petition is timely filed, any stay shall be governed by Section 84-3.

(b) If no stay of proceedings was in effect during the pendency of the appeal and the decision of the court having appellate jurisdiction would change the position of any party from its position during the pendency of the appeal, all proceedings to enforce or carry out the decision of the court having appellate jurisdiction shall be stayed until the time for filing a motion for reconsideration has expired, and, if a motion is filed, until its disposition, and, if it is granted, until the appeal is finally determined. For appeals in the Appellate Court, any stay in effect shall continue until the time to file a petition for certification to the Supreme Court has expired, and if such a petition is timely filed, any stay shall be governed by Section 84-3. (See also Section 61-11.)

(P.B. 1978-1997, Sec. 4123.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 71-7. Stays of Execution Pending Decision by United States Supreme Court

When a case has gone to judgment in the state Supreme Court and a party to the action wishes to obtain a stay of execution pending a decision in the case by the United States Supreme Court, that party shall, within twenty days of the judgment, file a motion for stay with the appellate clerk directed to the state Supreme Court. The filing of the motion shall operate as a stay pending the state Supreme Court's decision thereon.

When the state Supreme Court has denied a petition for certification from the Appellate Court, any stay in existence at the time of such denial shall remain in effect for twenty days. Any party to the action wishing to extend such stay of execution or to otherwise obtain a stay of execution pending a decision in the case by the United States Supreme Court shall file a motion for stay with the appellate clerk directed to the Appellate Court. The filing of the motion shall operate as a stay pending the Appellate Court's decision thereon.

(P.B. 1978-1997, Sec. 4050.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

CHAPTER 72

WRITS OF ERROR

Sec.
72-1. Writs of Error; In General
72-2. Form
72-3. Applicable Procedure
72-3A. Stays
72-4. Applicability of Rules

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 72-1. Writs of Error; In General

(a) Writs of error for errors in matters of law only may be brought from a final judgment of the Superior Court to the Appellate Court in the following cases: (1) a decision binding on an aggrieved nonparty; (2) a summary decision of criminal contempt; (3) a denial of transfer of a small claims action to the regular docket; and (4) as otherwise necessary or appropriate in aid of its jurisdiction and agreeable to the usages and principles of law.

(b) No writ of error may be brought in any civil or criminal proceeding for the correction of any error where (1) the error might have been reviewed by process of appeal, or by way of certification, or (2) the parties, by failure timely to seek a transfer or otherwise, have consented to have the case determined by a court or tribunal from whose judgment there is no right of appeal or opportunity for certification.

(P.B. 1978-1997, Sec. 4143A.) (Amended Nov. 19, 2003, to take effect Jan. 1, 2004; amended July 23, 2019, to take effect Jan. 1, 2020; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What had been subsection (c) concerning the certificate of interested entities or individuals was deleted.

COMMENTARY—2026: The purpose of this amendment is to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 72-2. Form

The writ of error shall contain in numbered paragraphs the facts upon which the plaintiff in error relies and a statement of the relief claimed.

(P.B. 1978-1997, Sec. 4143A.) (Amended June 2, 2010, to take effect Jan. 1, 2011; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2017, to take effect Oct. 8, 2017.)

Sec. 72-3. Applicable Procedure

(a) The writ of error, if in proper form, shall be allowed and signed by a judge or clerk of the court in which the judgment or decree was rendered. The writ of error shall be presented for signature within twenty days of the date notice of the judgment or decision complained of is given but shall be signed by the judge or clerk even if not presented in a timely manner. Failure without cause to present the writ of error in a timely manner may be a ground for dismissal of the writ of error by the court having appellate jurisdiction.

(b) The writ of error shall be served and returned as other civil process, except that the writ of error shall be served at least ten days before the return day and shall be returned to the appellate clerk at least one day before the return day. The return days are any Tuesday not less than twelve nor more than thirty days after the writ of error is signed by a judge or clerk of the court.

(c) The writ of error shall be deemed filed the day it is properly returned to the appellate clerk. The plaintiff in error shall return the writ of error to the appellate clerk by (1) complying with Section 60-7 or 60-8 by paying the required fee, submitting a signed application for waiver of fees and the order of the trial court granting the fee waiver, or certifying that no fees are required; (2) submitting the matter in accordance with the provisions of Section 63-3; and (3) submitting the allowed and signed writ of error and the signed marshal's return to the appellate clerk.

(d) An electronically filed writ of error will be docketed upon the submission of the matter in accordance with Section 63-3 but will be rejected upon review by the appellate clerk if the plaintiff in error fails to comply with Section 60-7 or to submit an allowed and signed writ of error and the signed marshal's return on the same business day the matter is submitted in accordance with the provisions of Section 63-3. The writ of error may also be returned upon review by the appellate clerk for noncompliance with the Rules of Appellate Procedure. The appellate clerk shall forthwith give notice to all parties of the filing of the writ of error.

(e) If the writ of error is brought against a judge of the Superior Court to contest a summary decision of criminal contempt by that judge, the defendant in error shall be the Superior Court. In all other writs of error, the writ of error shall bear the caption of the underlying action in which the judgment or decision was rendered. All parties to the underlying action shall be served in accordance with Chapter 8 of these rules.

(f) Within ten days of filing a writ of error, the plaintiff in error shall file with the appellate clerk:

(1) A certificate stating that no transcript is deemed necessary or a transcript order confirmation from the official court reporter in compliance with Section 63-4 (a) (3). If any other party deems any other parts of the transcript necessary that were not ordered by the plaintiff in error, that party shall, within twenty days of the filing of the plaintiff in error's transcript papers, file a transcript order confirmation for an order placed in compliance with Section 63-8.

(2) A docketing statement in compliance with Section 63-4 (a) (4). If additional information is or becomes known to, or is reasonably ascertainable by the defendant in error, the defendant in error shall file a docketing statement supplementing the information required to be provided by the plaintiff in error.

(g) Within twenty days of filing a writ of error, the plaintiff in error shall file with the appellate clerk such documents as are necessary to present the claims of error made in the writ of error, including pertinent pleadings, memoranda of decision and judgment file, accompanied by a certification that a copy thereof has been served on each counsel of record in accordance with Section 62-7.

(h) Within ten days of the filing by the plaintiff in error of the documents referred to in subsection (g) of this rule, the defendant in error may file such additional documents as are necessary to defend the action, accompanied by a certification that a copy thereof has been served on each counsel of record in accordance with Section 62-7.

(i) Answers or other pleas shall not be filed in response to any writ of error. No amended writ of error may be filed without leave of the court having appellate jurisdiction.

(j) Briefing is in accordance with Section 67-1 et seq. in which the rules applicable to appellants shall apply to plaintiffs in error, and the rules applicable to appellees shall apply to defendants in error.

(P.B. 1978-1997, Sec. 4144.) (Amended Nov. 19, 2003, to take effect Jan. 1, 2004; amended June 2, 2010, to take effect Jan. 1, 2011; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016; amended July 19, 2017, to take effect Oct. 8, 2017; amended July 23, 2019, to take effect Jan. 1, 2020; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 72-3A. Stays

Except where otherwise provided by statute or other law, proceedings to enforce or carry out the judgment or order that is challenged in the writ of error shall be automatically stayed for twenty days and if the writ is timely allowed and signed, the stay shall continue until the return date set forth in the writ. If a writ of error is timely filed, such proceedings shall be stayed until the final determination of the writ. If the writ goes to judgment in the Supreme Court or Appellate Court, any stay thereafter shall be in accordance with Section 71-6 (motions for reconsideration), Section 84-3 (petitions for certification by the Connecticut Supreme Court), and Section 71-7 (petitions for certiorari by the United States Supreme Court). The automatic stay only applies to proceedings to enforce or carry out the judgment or order that is being challenged in the writ of error and does not stay any other trial court proceedings. There shall be no automatic stay if a writ of error is filed challenging an order of civil contempt, summary criminal contempt or any decisions under Section 61-11 (b) and (c) in accordance with the rules for appeals.

Any aggrieved nonparty plaintiff in error or defendant in error or a party may file a motion to terminate or impose a stay in matters covered by this section, either before or after the judgment or order is rendered, based upon the existence of a writ of error. Such a motion shall be filed in accordance with the procedures in Section 61-11 (d) and (e) or Section 61-12. Whether acting on a motion of a party, a nonparty plaintiff in error or defendant in error or sua sponte, the judge shall hold a hearing prior to terminating the automatic stay.

In a family matter, the trial judge shall consider: (1) the needs and interests of the parties, their children and any other persons affected by such order; (2) the potential prejudice that may be caused to the parties, their children and any other persons affected, if a stay is entered, not entered or is terminated; (3) the need to preserve the rights of the nonparty bringing the writ of error to obtain effective relief if the writ is successful; (4) the effect, if any, of the automatic orders under Section 25-5 on any of the foregoing considerations; and (5) any other factors affecting the equities of the parties and aggrieved nonparties. The judge

who entered the order in a family matter from which a writ of error is brought may terminate any stay in that matter upon motion of a party or nonparty or sua sponte, after considering the factors set forth above.

(Adopted June 6, 2018, to take effect Sept. 1, 2018.)

Sec. 72-4. Applicability of Rules

Except as otherwise provided by statute or rule, the prosecution and defense of a writ of error shall be in accordance with the rules for appeals.

(P.B. 1978-1997, Sec. 4145.) (Amended Nov. 19, 2003, to take effect Jan. 1, 2004.)

CHAPTER 73
RESERVATIONS

Sec.
73-1. Reservation of Questions from the Superior Court to the Supreme Court or Appellate Court; Contents of Reservation Request
73-2. Consideration of Reservation Request by Superior Court
73-3. Procedure upon Acceptance of Reservation
73-4. Briefs, Appendices and Argument

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 73-1. Reservation of Questions from the Superior Court to the Supreme Court or Appellate Court; Contents of Reservation Request

(a) Counsel may jointly file with the Superior Court a request to reserve questions of law for consideration by the Supreme Court or Appellate Court. A reservation request shall set forth: (1) a stipulation of the essential undisputed facts and a clear and full statement of the question or questions upon which advice is desired; (2) a statement of reasons why the resolution of the question by the appellate court having jurisdiction would serve the interest of simplicity, directness and judicial economy; and (3) whether the answers to the questions will determine, or are reasonably certain to enter into the final determination of the case. All questions presented for advice shall be specific and shall be phrased so as to require a Yes or No answer.

(b) Reservation requests may be brought only in those cases in which an appeal could have been filed directly to the Supreme Court, or to the Appellate Court, respectively, had judgment been rendered. Reservations in cases where the proper court for the appeal cannot be determined prior to judgment shall be filed directly to the Supreme Court.

(P.B. 1978-1997, Sec. 4147.) (Amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What had been subsection (c) concerning the certificate of interested entities or individuals was deleted.

COMMENTARY—2026: The purpose of this amendment is to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 73-2. Consideration of Reservation Request by Superior Court

If the Superior Court determines that a reservation would be appropriate, it shall forward the reservation request with its determination, which shall include the items specified in Section 73-1 (a), to the appellate clerk and to all parties of record. The Supreme Court or Appellate Court shall either preliminarily accept or decline the reservation request, but may later reject the reservation if it should appear to have been improvidently granted. The Supreme Court or Appellate Court will not entertain a reservation unless the question or questions presented are reasonably certain to enter into the decision of the case and it appears that their determination would be in the interest of simplicity, directness and judicial economy. The Supreme Court or Appellate Court may also request that the Superior Court provide additional facts required for a decision upon the questions reserved and to clarify such questions when necessary.

(Adopted Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 73-3. Procedure upon Acceptance of Reservation

(a) The appellate clerk shall notify the clerk of the trial court and the parties of the decision or order on the reservation request. Within twenty days of issuance of the notice of an order of preliminary acceptance, the appellant shall file the reservation in accordance with the provisions of Section 63-3, except that no entry fee shall be paid and no costs shall be taxed in favor of any party. In addition, within ten days of the filing of the appeal, the appellant shall file a docketing statement in the form specified in Section 63-4 (a) (4).

(b) The plaintiff in the court that ordered the reservation shall be deemed the appellant, and the defendant in such court shall be deemed the appellee for purposes of these rules, unless otherwise ordered by the court.

(c) The advice of the Appellate Court on a reservation may be reviewed by the Supreme Court only upon the granting of certification as provided in Chapter 84.

(Adopted Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 73-4. Briefs, Appendices and Argument

Briefs and appendices filed by the parties shall conform to the rules set forth in Chapter 67, except that the parties shall file initial briefs and appendices within forty-five days of issuance of the notice of an order of preliminary acceptance. A party wishing to file a reply brief must do so within twenty days of the filing of the last initial brief. Extensions of time will not be granted except for extraordinary cause.

Oral argument shall be as provided in Chapter 70, unless otherwise ordered by the court.

(Adopted Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 6, 2018, to take effect Sept. 1, 2018.)

CHAPTER 74
DECISIONS OF JUDICIAL REVIEW COUNCIL

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec.
74-1. Appeals by Respondent Judge from Decision of Judicial Review Council
74-2. Papers To Be Filed [Repealed]
74-2A. Referral to Supreme Court by Judicial Review Council Following Recommendation of Suspension or Removal (Transferred from Sec. 74-7)
74-3. Costs and Security Not Required [Repealed]
74-3A. Initiation of Action by Supreme Court (Transferred from Sec. 74-8)
74-4. Decision of Council; Remand by Supreme Court
74-5. Parties
74-6. Applicability of Rules
74-7. Action on Recommendation when No Appeal (Transferred to Sec. 74-2A)
74-8. Initiation of Action by Supreme Court (Transferred to Sec. 74-3A)

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 74-1. Appeals by Respondent Judge from Decision of Judicial Review Council

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

(a) An appeal by a respondent judge from a decision of the Judicial Review Council shall be taken within twenty days from the date the decision appealed from is received by the respondent judge.

(b) The appeal shall be filed with the Supreme Court in accordance with the provisions of Section 63-3, except that no entry fee shall be paid and no costs shall be taxed in favor of any party. The respondent judge shall serve a copy of the appeal form on the chair or executive director of the Judicial Review Council in accordance with the provisions of Section 62-7.

(c) The appellate clerk shall forward one copy of the appeal form to the Judicial Review Council and one copy to the respondent judge.

(d) Within ten days of filing the appeal, the respondent judge shall file with the appellate clerk:

(1) a copy of the decision of the Judicial Review Council appealed from, and

(2) the filings required by Section 63-4.

(e) With the exception of decisions recommending suspension for more than one year or removal from office, which are referred to the Supreme Court pursuant to Section 74-2A, a decision of the Judicial Review Council will be final unless a timely appeal is filed by the respondent judge.

(P.B. 1978-1997, Sec. 4150.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 74-2. Papers To Be Filed

[Repealed as of Jan. 1, 2016.]

Sec. 74-2A. Referral to Supreme Court by Judicial Review Council Following Recommendation of Suspension or Removal

[Transferred from Sec. 74-7 as of Jan. 1, 2016.] (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

If the Judicial Review Council recommends suspension for more than one year or removal from office, the council shall, at the expiration of the time to appeal, forward to the appellate clerk a certified copy of its decision together with those parts of the record and transcript as it deems necessary for a proper consideration of its recommendation.

The appellate clerk shall assign a docket number and notify the court of the matter. The court shall, as soon as practicable, review the filed documents and render a decision on the recommendation of the council.

(P.B. 1978-1997, Sec. 4156.) (Transferred from Sec. 74-7 as of Jan. 1, 2016.)

Sec. 74-3. Costs and Security Not Required

[Repealed as of Jan. 1, 2016.]

Sec. 74-3A. Initiation of Action by Supreme Court

[Transferred from Sec. 74-8 as of Jan. 1, 2016.]

In the event that the Supreme Court, on its own motion, wishes to initiate proceedings against a judge, it may refer the matter to the Judicial Review Council or, if the judge to be investigated is a member of that council, to a committee of three state referees for investigation and hearing. The council or the committee shall render a decision pursuant to Section 74-4 and forward a copy of its decision to the respondent judge and to the appellate clerk.

The decision may be appealed by the respondent judge pursuant to the provisions of this chapter. If the respondent judge fails to appeal within the time provided, the decision shall be final, unless it was rendered by a committee or contains a recommendation for suspension or removal of the judge, in which case, at the expiration of the

time to appeal, the council or committee shall file pertinent parts of the record and transcript with the appellate clerk pursuant to Section 74-1 (d) and the Supreme Court shall render a decision thereon.

(P.B. 1978-1997, Sec. 4157.) (Transferred from Sec. 74-8 as of Jan. 1, 2016; amended June 27, 2023, to take effect Jan. 1, 2024.)

Sec. 74-4. Decision of Council; Remand by Supreme Court

The Judicial Review Council shall state its decision in writing on the issues of the case and, if there are factual issues, the factual basis for its decision. The Judicial Review Council shall state in its decision its conclusion as to each claim of law raised by the parties. If the Supreme Court deems it necessary to the proper disposition of the cause, it may remand the case to the Judicial Review Council for clarification of the basis for its decision.

(P.B. 1978-1997, Sec. 4153.)

Sec. 74-5. Parties

The parties shall be referred to as the Judicial Review Council and the respondent.

(P.B. 1978-1997, Sec. 4154.)

Sec. 74-6. Applicability of Rules

All proceedings subsequent to the filing of the appeal, referral of the matter by the Judicial Review Council or initiation by the Supreme Court shall be governed by the rules applicable to appeals.

(P.B. 1978-1997, Sec. 4155.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 74-7. Action on Recommendation when No Appeal

[Transferred as of Jan. 1, 2016, to Sec. 74-2A.]

Sec. 74-8. Initiation of Action by Supreme Court

[Transferred as of Jan. 1, 2016, to Sec. 74-3

CHAPTER 75

APPEALS FROM COUNCIL ON PROBATE JUDICIAL CONDUCT

Sec.
75-1. Appeals by Respondent Judge from Decision of Council on Probate Judicial Conduct
75-2. Papers To Be Filed [Repealed]
75-3. Costs and Security Not Required [Repealed]
75-4. Decision of Council; Remand by Supreme Court
75-5. Parties
75-6. Applicability of Rules

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 75-1. Appeals by Respondent Judge from Decision of Council on Probate Judicial Conduct

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

(a) An appeal by a respondent judge from a decision of the Council on Probate Judicial Conduct to publicly admonish or censure shall be taken within twenty days from the date that notice of the admonishment or censure is received by the respondent judge.

(b) The appeal shall be directed to and filed with the Supreme Court in accordance with the provisions of Section 63-3, except that no entry fee shall be paid and no costs shall be taxed in favor of either party. The respondent shall serve a copy of the appeal form on the chair or secretary of the Council on Probate Judicial Conduct in accordance with the provisions of Section 62-7.

(c) The appellate clerk shall forward one copy of the appeal form to the Council on Probate Judicial Conduct and one copy to the respondent judge.

(d) Within ten days of filing the appeal, the respondent shall file with the appellate clerk:

(1) a copy of the decision of the Council on Probate Judicial Conduct appealed from, and

(2) the filings required by Section 63-4.

(P.B. 1978-1997, Sec. 4159.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 75-2. Papers To Be Filed

[Repealed as of Jan. 1, 2016.]

Sec. 75-3. Costs and Security Not Required

[Repealed as of Jan. 1, 2016.]

Sec. 75-4. Decision of Council; Remand by Supreme Court

The Council on Probate Judicial Conduct shall state its decision in writing on the issues of the case. Within two weeks of receipt of notice of an appeal, the council shall forward a finding of fact and conclusions therefrom to the appellate clerk. If the Supreme Court deems it necessary to the proper disposition of the cause, it may remand the case to the Council on Probate Judicial Conduct for clarification of the basis of its decision.

(P.B. 1978-1997, Sec. 4162.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 75-5. Parties

The parties shall be referred to as the Council on Probate Judicial Conduct and the respondent.

(P.B. 1978-1997, Sec. 4163.)

Sec. 75-6. Applicability of Rules

All proceedings subsequent to the filing of the appeal shall be governed by the rules applicable to appeals.

(P.B. 1978-1997, Sec. 4164.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

CHAPTER 76

APPEALS IN WORKERS' COMPENSATION CASES

Sec.
76-1. Applicability of Rules
76-2. Filing Appeal
76-3. Preparation of Case File; Exhibits
76-4. Fees and Costs
76-5. Reservation of Question from Compensation Review Board
76-5A. Procedure upon Acceptance of Reservation
76-6. Definitions

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 76-1. Applicability of Rules

Except as otherwise noted in Sections 76-2 through 76-6, the practice and procedure for appeals to the Appellate Court (1) from a decision of the Compensation Review Board (board), or (2) from a decision of an administrative law judge acting pursuant to General Statutes § 31-290a (b), shall conform to the rules of practice governing other appeals.

(P.B. 1978-1997, Sec. 4165.)

Sec. 76-2. Filing Appeal

The appeal shall be filed with the appellate clerk in accordance with the provisions of Section 63-3. The appellant shall deliver a copy of the appeal form to each party of record in accordance with the provisions of Section 62-7 and to the board or the administrative law judge, as appropriate.

The appellate clerk shall deliver a copy of the appeal form to the board or the administrative law judge, as appropriate, and to each appearing party.

(P.B. 1978-1997, Sec. 4165.1.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 76-3. Preparation of Case File; Exhibits

(Amended June 5, 2013, to take effect July 1, 2013.)

Within ten days of the issuance of notice of the filing of an appeal, the board or the administrative law judge, as appropriate, shall deliver to the appellate clerk an electronic copy of the file. No omissions may be made from the case file except upon the authorization of the appellate clerk. Each document of the case file must be numbered, and the file must include a table of contents listing each item entered in the file according to its number.

All exhibits before the board or the administrative law judge are deemed exhibits on appeal. The appellate clerk shall notify the board or the administrative law judge of the exhibits required by the court. It shall be the responsibility of the board or the administrative law judge to transmit those exhibits promptly to the appellate clerk.

Nothing in this section relieves the appellant and the appellee of their duty to comply with the appendix requirements of Section 67-8.

(P.B. 1978-1997, Sec. 4165.2.) (Amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended June 27, 2023, to take effect Jan. 1, 2024.)

Sec. 76-4. Fees and Costs

On appeals from the board or the administrative law judge, or upon the reservation of a workers' compensation case by the Compensation Review Board, no entry fee shall be paid, and no costs shall be taxed in favor of either party provided that if an appeal is found by the court either to be frivolous or to be filed for the purpose of vexation or delay, the court may tax costs in its discretion against the person so taking the appeal.

(P.B. 1978-1997, Sec. 4165.4.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 76-5. Reservation of Question from Compensation Review Board

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

When, in any case arising under the provisions of this chapter, the Compensation Review Board is of the opinion that the decision involves principles of law which are not free from reasonable doubt and which public interest requires shall be determined by the Appellate Court, in order that a definite rule be established applicable to future cases, the Compensation Review Board may, on its own motion and without any agreement or act of the parties or their counsel, prepare a reservation request in the manner specified by Section 73-1 and deliver it to the appellate clerk and to all parties of record. The Appellate Court shall either preliminarily accept or decline the reservation request. The appellate clerk shall notify the Compensation Review Board and the parties of the decision or order on the reservation request.

The Appellate Court may later reject the reservation if it should appear to have been improvidently granted. The Appellate Court may also

request that the Compensation Review Board provide additional facts required for a decision upon the questions reserved and to clarify such questions when necessary.

The plaintiff in the underlying workers' compensation matter shall be deemed the appellant, and the defendant in the underlying matter shall be deemed the appellee for purposes of these rules, unless otherwise ordered by the court.

(P.B. 1978-1997, Sec. 4165.5.) (Amended July 21, 1999, to take effect Jan. 1, 2000; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 76-5A. Procedure upon Acceptance of Reservation

Within twenty days of issuance of the notice of an order of preliminary acceptance, the appellant shall file an appeal in accordance with Section 63-3 and Section 76-4. Any reservation under this rule may be transferred to the Supreme Court on its own motion pursuant to General Statutes § 51-199 (c) or on the motion of any party pursuant to Section 65-2.

(Adopted Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 76-6. Definitions

With regard to appeals from the board or the administrative law judge, references in the Rules of Appellate Procedure to trial court or trial judge shall, where applicable, be deemed to mean the individuals who comprised the board which rendered the decision from which the appeal was filed, or the administrative law judge, as appropriate.

(P.B. 1978-1997, Sec. 4165.6; see also Sec. 60-4.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

CHAPTER 77

PROCEDURES CONCERNING COURT CLOSURE AND SEALING ORDERS OR ORDERS LIMITING THE DISCLOSURE OF FILES, AFFIDAVITS, DOCUMENTS OR OTHER MATERIAL

(Amended Oct. 15, 2003, to take effect Jan. 1, 2004.)

Sec.
77-1. Petition for Review Seeking Expedited Review of an Order concerning Court Closure, or an Order That Seals or Limits the Disclosure of Files, Affidavits, Documents or Other Material
77-2. Sealing Orders; Treatment of Lodged Records
77-3. Sealing Documents or Limiting Disclosure of Documents on Appeal
77-4. Motion To Seal; Lodging of Documents with Appellate Clerk

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 77-1. Petition for Review Seeking Expedited Review of an Order concerning Court Closure, or an Order That Seals or Limits the Disclosure of Files, Affidavits, Documents or Other Material

(Amended July 21, 1999, to take effect Jan. 1, 2000; amended Oct. 24, 2018, to take effect Jan. 1, 2019.)

(a) Except as provided in subsection (d), any person affected by a court order which prohibits the public or any person from attending any session of court, or any order that seals or limits the disclosure of files, affidavits, documents or other material on file with the court or filed in connection with a court proceeding, may seek review of such order by filing a petition for review with the Appellate Court within seventy-two hours after the issuance of the order.

(b) The petition shall set forth in separate paragraphs appropriately captioned: (1) a brief history of the case, (2) the specific facts upon which the petitioning party relies and (3) the legal grounds upon which the petitioning party relies. An appendix containing the information or complaint, the answer, all motions pertaining to the matter, the opinion or orders of the trial court sought to be reviewed, a list of all parties with the names, addresses, telephone numbers, email addresses, and, if applicable, the juris number of their counsel, the names of all judges who participated in the case, and an expedited transcript order confirmation, shall be filed with the petition for review. Any opposition to the petition shall be filed within ninety-six hours after the filing of the petition and shall set forth in separate paragraphs appropriately captioned: (1) the specific facts upon which the opposing party relies, and (2) the legal grounds upon which the opposing party relies. Except as otherwise ordered, petitions and oppositions shall not exceed 3500 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications, and appendix, if any.

Petitions and oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining. Responses to oppositions are not permitted.

Petitions and oppositions shall each be filed as one document with a single pagination scheme that starts on the first page of the petition or opposition and continues throughout the entire document, on every page, including the pages in an attached appendix. The page numbers shall be centered on the bottom of the page and shall be written as “Page X of XX” (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

All papers shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the petition or opposition complies with the word count requirement of this subsection.

(c) Any person filing a petition for review pursuant to this rule shall deliver a copy of the petition and appendix to (1) all parties to the case and (2) any nonparty who sought the closure order or order sealing or limiting disclosure in compliance with the provisions of Section 62-7 on the same day as the petition is filed. Within one business day of the receipt of the transcript and the certificate of completion provided for by Section 63-8 (c), the person filing the petition for review shall

file the transcript and the certificate of completion with the Appellate Court.

The filing of any petition for review of a court order which prohibits the public or any person from attending any session of court shall stay the order until the final determination of the review. The filing of any petition for review of an order that seals or limits the disclosure of files, affidavits, documents or other material on file with the court shall not stay the order during the review.

After the receipt of the transcript and the response to the petition, if any, the Appellate Court shall hold an expedited hearing on any petition for review. The appellate clerk will notify the petitioner, the parties and any nonparties who sought the closure order or order sealing or limiting disclosure of files, affidavits, documents or other material on file with the court or filed in connection with a court proceeding of the date and time of the hearing. Failure to file a response shall not preclude the party or nonparty who sought the order under review from participating in the hearing on the petition. After such hearing the Appellate Court may affirm, modify or vacate the order reviewed.

(d) This section shall not apply to court orders concerning any session of court conducted pursuant to General Statutes § 46b-11, § 46b-49, § 46b-122, § 54-76h or any other provision of the General Statutes under which the court is authorized to close proceedings. This section also shall not apply to any order issued pursuant to General Statutes § 46b-11 or § 54-33c or any other provision of the General Statutes under which the court is authorized to seal or limit the disclosure of files, affidavits, documents or materials and any order issued pursuant to a court rule that seals or limits the disclosure of any affidavit in support of an arrest warrant.

(P.B. 1978-1997, Sec. 4166.) (Amended July 21, 1999, and December 13, 1999, to take effect Jan. 1, 2000; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended July 23, 2019, to take effect Jan. 1, 2020; amended June 15, 2021, to take effect Oct. 1, 2021; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What are now the third and fourth paragraphs of subsection (b) were added.

COMMENTARY—2026: The purpose of these amendments is to make the formatting rules for briefs, motions, petitions and oppositions consistent such that all of them are filed, with any attachments, as one document with a single pagination scheme, and to add a word count certification requirement.

Sec. 77-2. Sealing Orders; Treatment of Lodged Records

(a) When, by order of the trial court or by operation of statute, a trial court file is sealed or is subject to limited disclosure, all filings with the appellate clerk in that matter shall be treated similarly unless otherwise ordered by the court having appellate jurisdiction. Any sealing or limitation on disclosure ordered by the trial court or required by operation of statute as to any affidavit, document or other material filed in the trial court shall continue throughout the appellate process.

(b) If a party includes material in a brief or appendix that is sealed or subject to limited disclosure, that party shall file a redacted brief and appendix, if any, to be made available to the public, and an unredacted brief and appendix, if any, to be made available to only the parties and the court. Both the redacted and unredacted brief and appendix shall be filed in accordance with the applicable provisions of Section 67-2 or Section 67-2A. Prior to filing, counsel of record shall file a letter notifying the court that the briefs and appendices will be filed pursuant to this subsection. This subsection shall not apply to briefs or appendices filed in child protection matters pursuant to Section 79a-6, or where the only redacted material are names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law.

(c) If a claim is raised on appeal challenging the denial of a motion to seal or limit disclosure pursuant to Section 7-4B (d), a lodged record shall remain conditionally under seal in the court having appellate jurisdiction and shall be treated as an exhibit pursuant to the provisions of Section 68-1.

(Adopted Oct. 15, 2003, to take effect Jan. 1, 2004; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the second sentence of subsection (b), ", except that only one paper copy of the redacted brief and appendix is required" was deleted.

COMMENTARY—2026: This amendment was made for purposes of clarity and consistency.

Sec. 77-3. Sealing Documents or Limiting Disclosure of Documents on Appeal

(a) Except as otherwise provided by law, there shall be a presumption that documents filed with the appellate clerk shall be available to the public.

(b) Except as otherwise provided in this section and except as otherwise provided by law, the court shall not order that any document filed or lodged with the appellate clerk be sealed or its disclosure limited.

(c) Upon written motion or upon its own motion, the court may order that any document filed or

lodged with the appellate clerk be sealed or its disclosure limited only if the court concludes that such order is necessary to preserve an interest which is determined to override the public's interest in viewing such document. The court shall first consider reasonable alternatives to any such order and any such order shall be no broader than necessary to protect such overriding interest. An agreement of the parties to seal or limit the disclosure of documents filed or lodged with the appellate clerk shall not constitute a sufficient basis for the issuance of such an order.

(d) The court may, upon determination that the resolution of the motion requires findings of fact, refer the motion to the trial court to make such findings.

(Adopted Oct. 18, 2017, to take effect Jan. 1, 2018.)

Sec. 77-4. Motion To Seal; Lodging of Documents with Appellate Clerk

(a) A motion to seal any document filed previously with the appellate clerk or to be filed with the appellate clerk shall be filed in accordance with the provisions of Sections 60-7 and 60-8 and delivered to all counsel of record in accordance with Section 62-7, but shall not disclose any information that the filing party is seeking to seal and shall indicate if documents are being lodged with the appellate clerk.

(1) If the motion to seal pertains to a document previously filed with the appellate clerk, the appellate clerk will, upon receipt of the motion, promptly remove the document in question from the Judicial Branch website on a temporary basis until the resolution of the motion. The motion to seal shall be accompanied by a memorandum explaining why the document should be sealed or its disclosure limited. The memorandum and any supporting documents shall be lodged with the appellate clerk on paper, but shall not be filed in accordance with the provisions of Section 60-7.

(2) If the motion to seal pertains to a document that has not yet been filed with the appellate clerk, the motion shall be accompanied by a memorandum explaining why the document or documents should be sealed. The memorandum, the document that the party is seeking to seal, and any supporting documents shall be lodged with the appellate clerk on paper, but shall not be filed in accordance with the provisions of Section 60-7.

(b) Any response to a motion to seal shall be filed in accordance with the provisions of Sections 60-7 and 60-8 and be delivered to all counsel of record in accordance with Section 62-7, shall not disclose any information that the movant is seeking to seal and shall indicate if documents are being lodged with the appellate clerk. Any memorandum or documents filed in support of the response shall be lodged with the appellate clerk on paper, but shall not be filed in accordance with the provisions of Section 60-7.

(c) Upon the filing of a motion to seal or to limit disclosure of any records, or upon the court's own motion, the court may issue any orders it deems necessary to aid in the court's jurisdiction. Before a motion to seal or to limit disclosure may be granted, notice to the public of the motion shall be given, and a hearing shall be held. Such notice shall be posted on the Judicial Branch website, listing the motion and the time and place of the hearing. In the order granting the motion, the court shall articulate the overriding interest being protected and set forth the more narrowly tailored method of protecting the overriding interest it considered inadequate or unavailable and the duration of the order. If any findings would reveal information entitled to remain confidential, those findings shall be set forth in a sealed portion of the record. The order shall be posted immediately on the Judicial Branch website.

(d) Following a decision on the motion to seal, any documents lodged with the appellate clerk will be retained under seal or returned to the filing party.

(Adopted Oct. 18, 2017, to take effect Jan. 1, 2018.)

TECHNICAL CHANGE: The subsections were redesignated into new subsections and subdivisions.

CHAPTER 78

REVIEW OF GRAND JURY RECORD OR FINDING ORDER

Sec.
78-1. Review of an Order concerning Disclosure of Grand Jury Record or Finding

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 78-1. Review of an Order concerning Disclosure of Grand Jury Record or Finding

(a) Any person aggrieved by an order of a panel or an investigatory grand jury pursuant to General Statutes § 54-47g may seek review of such order by filing a petition for review with the Appellate Court within seventy-two hours after the issuance of the order. The filing of any such petition for review shall stay the order until the final determination of the petition. The Appellate Court shall hold an expedited hearing on such petition. After such hearing, the Appellate Court may affirm, modify or vacate the order reviewed.

(b) The petition shall set forth in separate paragraphs appropriately captioned: (1) a brief history of the case, (2) the specific facts upon which the petitioning party relies and (3) the legal grounds upon which the petitioning party relies. Any opposition to the petition shall be filed within ten days after the filing of the petition and shall set forth in separate paragraphs appropriately captioned: (1) the specific facts upon which the opposing party relies, and (2) the legal grounds upon which the opposing party relies. Except as otherwise ordered, petitions and oppositions shall not exceed 3500 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications, and appendix, if any.

Petitions and oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining. Responses to oppositions are not permitted.

Petitions and oppositions shall each be filed as one document with a single pagination scheme that starts on the first page of the petition or opposition and continues throughout the entire document, on every page, including the pages in an attached appendix, if any. The page numbers shall be centered on the bottom of the page and shall be written as “Page X of XX” (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

All papers shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the petition or opposition complies with the word count requirement of this subsection.

(P.B. 1978-1997, Sec. 4166A.) (Amended June 27, 2023, to take effect Jan. 1, 2024; amended July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What are now the third and fourth paragraphs of subsection (b) were added.

COMMENTARY—2026: The purpose of these amendments is to make the formatting rules for briefs, motions, petitions and oppositions consistent such that all of them are filed, with any attachments, as one document with a single pagination scheme, and to add a word count certification requirement.

CHAPTER 78a

REVIEW OF ORDERS CONCERNING RELEASE ON BAIL

Sec.
78a-1 Petition for Review of Order concerning Release on Bail

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 78a-1. Petition for Review of Order concerning Release on Bail

(a) Any accused person or the state, aggrieved by an order of the Superior Court concerning release, may petition the Appellate Court for review of such order. Any such petition shall have precedence over any other matter before the Appellate Court and any hearing ordered by the court shall be held expeditiously with reasonable notice.

Petitions for review of bail must conform to the requirements for motions for review set forth in Section 66-6 and are subject to transfer to the Supreme Court pursuant to Section 65-3.

(b) The petition shall set forth in separate paragraphs appropriately captioned: (1) a brief history of the case, (2) the specific facts upon which the petitioning party relies and (3) the legal grounds upon which the petitioning party relies. Any opposition to the petition shall be filed within ten days after the filing of the petition and shall set forth in separate paragraphs appropriately captioned: (1) the specific facts upon which the opposing party relies, and (2) the legal grounds upon which the opposing party relies. Except as otherwise ordered, petitions and oppositions shall not exceed 3500 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications, and appendix, if any.

Petitions and oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining. Responses to oppositions are not permitted.

Petitions and oppositions shall each be filed as one document with a single pagination scheme that starts on the first page of the petition or opposition and continues throughout the entire document, on every page, including the pages in an attached appendix, if any. The page numbers shall be centered on the bottom of the page and shall be written as “Page X of XX” (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

All papers shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the petition or opposition complies with the word count requirement of this subsection.

(Adopted June 2, 2005, to take effect Jan. 1, 2006; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What are now the third and fourth paragraphs of subsection (b) were added.

COMMENTARY—2026: The purpose of these amendments is to make the formatting rules for briefs, motions, petitions and oppositions consistent such that all of them are filed, with any attachments, as one document with a single pagination scheme, and to add a word count certification requirement.

CHAPTER 78b

REVIEW OF ORDERS DENYING APPLICATION FOR WAIVER OF FEES TO COMMENCE A CIVIL ACTION OR A WRIT OF HABEAS CORPUS

(Adopted July 19, 2022, to take effect Jan. 1, 2023.)

Sec.
78b-1. Petition for Review of Order Denying Application for Waiver of Fees to Commence a Civil Action or a Writ of Habeas Corpus

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 78b-1. Petition for Review of Order Denying Application for Waiver of Fees to Commence a Civil Action or a Writ of Habeas Corpus

(a) Any person aggrieved by an order of the Superior Court denying an application for waiver of the payment of a fee for filing an action or the cost of service of process to commence a civil action or a writ of habeas corpus in the Superior Court may petition the Appellate Court for review of such an order after a hearing pursuant to the provisions of Section 8-2 (d) and a decision thereon.

Petitions for review of the denial of an application for waiver of the payment of a fee for filing an action or the cost of service of process to commence a civil action or writ of habeas corpus are subject to transfer to the Supreme Court pursuant to Section 65-3, and must conform to the requirements for motions for review set forth in Section 66-6, except that the moving party shall not be required to provide a transcript or transcript order confirmation.

(b) The petition shall set forth in separate paragraphs appropriately captioned: (1) a brief history of the case, (2) the specific facts upon which the petitioning party relies and (3) the legal grounds upon which the petitioning party relies. Any opposition to the petition shall be filed within ten days after the filing of the petition and shall set forth in separate paragraphs appropriately captioned: (1) the specific facts upon which the opposing party relies, and (2) the legal grounds upon which the opposing party relies. Except as otherwise ordered, petitions and oppositions shall not exceed 3500 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications, and appendix, if any.

Petitions and oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining. Responses to oppositions are not permitted.

Petitions and oppositions shall each be filed as one document with a single pagination scheme that starts on the first page of the petition or opposition and continues throughout the entire document, on every page, including the pages in an attached appendix, if any. The page numbers shall be centered on the bottom of the page and shall be written as “Page X of XX” (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

All papers shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the petition or opposition complies with the word count requirement of this subsection.

(Adopted July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What are now the third and fourth paragraphs of subsection (b) were added.

COMMENTARY—2026: The purpose of these amendments is to make the formatting rules for briefs, motions, petitions and oppositions consistent such that all of them are filed, with any attachments, as one document with a single pagination scheme, and to add a word count certification requirement.

CHAPTER 79

APPEALS IN JUVENILE MATTERS

[Repealed as of Feb. 1, 2012.]

Sec.
79-1. Time To Take; Form; Filing; Costs [Repealed]
79-2. Clerk's Duties [Repealed]
79-3. Inspection of Records [Repealed]
79-4. Hearings; Confidentiality [Repealed]
79-5. Briefs [Repealed]

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 79-1. Time To Take; Form; Filing; Costs

[Repealed as of Feb. 1, 2012.]

Sec. 79-2. Clerk's Duties

[Repealed as of Feb. 1, 2012.]

Sec. 79-3. Inspection of Records

[Repealed as of Feb. 1, 2012.]

Sec. 79-4. Hearings; Confidentiality

[Repealed as of Feb. 1, 2012.]

Sec. 79-5. Briefs

[Repealed as of Feb. 1, 2012.]

CHAPTER 79a

APPEALS IN CHILD PROTECTION MATTERS

Sec.
79a-1. Child Protection Appeals Defined
79a-2. Time To Appeal
79a-3. Filing of the Appeal
79a-4. Waiver of Fees, Costs and Security
79a-5. Ordering Transcripts
79a-6. Format and Time for Filing Briefs and Appendices
79a-7. Motions for Extension of Time
79a-8. Docketing Child Protection Appeals for Assignment
79a-9. Oral Argument
79a-10. Submission without Oral Argument on Request of Parties
79a-11. Official Release Date
79a-12. Inspection of Records
79a-13. Hearings; Confidentiality
79a-14. Motions Filed with the Appellate Clerk
79a-15. Applicability of Rules

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 79a-1. Child Protection Appeals Defined

Appeals in child protection matters include all appeals from judgments in all proceedings concerning uncared for, neglected or abused children within this state, termination of parental rights of children committed to a state agency, motions for transfers, removal or reinstatement of guardianship, motions for permanent guardianship and contested matters involving termination of parental rights or removal of guardian transferred or appealed from the Probate Court.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended July 23, 2020, to take effect Aug. 4, 2020.)

Sec. 79a-2. Time To Appeal

(a) **General provisions**

Unless a different period is provided by statute, appeals from judgments of the Superior Court in child protection matters shall be filed within twenty days from the issuance of notice of the rendition of the decision or judgment from which the appeal is filed. A judge may, for good cause shown, extend the time limit provided for filing the appeal. In no event shall the judge extend the time for filing the appeal to a date which is more than twenty days from the expiration date of the initial appeal period, except in the case of an appeal in a termination of parental rights proceeding, for which the time for filing an appeal may be extended to a date no more than forty days from the expiration of the initial appeal period. Where a motion for extension of the period of time within which to appeal has been filed at least ten days before expiration of the time limit sought to be extended, and such motion is denied, the party seeking to appeal shall have no less than ten days from issuance of notice of the denial of the motion for extension in which to file the appeal.

(b) **When appeal period begins**

If notice of the judgment or decision is given in open court, the appeal period shall begin on that day. If notice of the judgment or decision is given only by mail or by electronic delivery, the appeal period shall begin on the day that notice of the judgment or decision is sent to counsel of record by the clerk for juvenile matters. The failure to give notice of judgment to a nonappearing party shall not affect the running of the appeal period.

(c) **How a new appeal period is created**

If a motion is filed within the appeal period that, if granted, would render the judgment or decision ineffective, then a new twenty day appeal period for filing the appeal shall begin on the day that notice of the ruling is given on the last such outstanding motion. Such motions include, but are not limited to, motions that seek: the opening or setting aside of the judgment; a new trial; reargument of the judgment or decision; or any alteration of the terms of the judgment. Motions that do not give rise to a new appeal period include those that seek: clarification or articulation, as opposed to alteration, of the terms of the judgment or decision; a written or transcribed statement of the trial court's decision; or reargument or reconsideration of a motion listed in this paragraph.

If, within the appeal period, any application is filed, pursuant to Section 79a-4, seeking waiver of fees, costs and security or appointment of appellate counsel, a new twenty day appeal period or statutory period for filing the appeal is not created. If a party files, pursuant to Section 66-6, a motion for review of the denial of any such application, a new appeal period shall begin on the day that notice of the ruling is given on the motion for review.

(d) **What may be appealed during new appeal period**

If a new appeal period is created under Section 79a-2 (c), the new appeal period may be used for

appealing the original judgment or decision and/or for appealing any order that gave rise to the new appeal period. Such period may also be used for amending an existing appeal pursuant to Section 61-9 to challenge the ruling that gave rise to the new appeal period. Rulings on applications for waiver of fees, costs and security or motions for appointment of appellate counsel may not be appealed during the new appeal period but shall be challenged solely by motion for review in accordance with Section 66-6.

(e) **Limitation of time to appeal**

Unless a new appeal period is created pursuant to Section 79a-2 (c), the time to file a child protection appeal shall not be extended past forty days (the original twenty days plus one twenty day extension for appellate review pursuant to Section 79a-3) from the date of issuance of notice of the rendition of the judgment or decision, except in the case of an appeal in a termination of parental rights proceeding, for which the time for filing an appeal shall not be extended beyond sixty days (the original twenty days plus one forty day extension) from the date of issuance of notice of the rendition of the judgment or decision.

Any party seeking to extend the time to file a child protection appeal past the limited appeal periods in this subsection shall seek permission to file a late appeal from the Appellate Court pursuant to Section 60-2 (5). Any motion for permission to file a late appeal in a child protection matter shall state the current status of any motion or application pending in the Superior Court and shall include an appendix with: (1) the decision or order of the Superior Court sought to be appealed and (2) a list of all parties to the case in the Superior Court with the names, addresses, telephone numbers, email addresses and, if applicable, the juris numbers of their counsel.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended April 30, 2014, to take effect Aug. 1, 2014; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2017, to take effect Oct. 8, 2017; amended July 23, 2020, to take effect Aug. 4, 2020.)

Sec. 79a-3. Filing of the Appeal

(a) **General provisions**

Appeals in child protection matters shall be filed in accordance with the provisions of Section 63-3 and all required fees shall be paid in accordance with Sections 60-7 and 60-8.

(b) **Appeal by indigent party**

If a trial attorney who has provided representation to an indigent party through the Division of Public Defender Services declines to pursue an appeal, that attorney shall ascertain that the indigent party expressly wishes to appeal and obtain the indigent party's current address, email address and telephone number. The trial attorney shall explain to the indigent party the appellate review process set forth in this section. The trial attorney shall within twenty days of the decision or judgment simultaneously file with the court before which the matter was heard a motion for an additional twenty or forty day extension of time to appeal pursuant to Section 79a-2 (a) and (e), a sworn application signed by the indigent party for appointment of appellate counsel and a waiver of fees, costs and expenses, including the cost of an expedited transcript. If the court finds the indigent party still to be indigent, the court shall not grant the application for appointment of appellate counsel but shall first appoint an appellate review attorney for the sole purpose of determining whether there is any nonfrivolous ground on which to appeal. The trial attorney shall immediately request an expedited transcript from an official court reporter or court recording monitor in accordance with Section 79a-5, the cost of which shall be paid for by the Division of Public Defender Services.

Any party who is indigent who wishes to appeal and was not provided with representation by the Division of Public Defender Services during the proceeding which resulted in the decision or judgment from which an appeal is being sought shall, within twenty days of the decision or judgment, simultaneously file with the court before which the matter was heard a motion for an additional twenty or forty day extension of time to appeal pursuant to Section 79a-2 (a) and (e), a sworn application signed by the indigent party for appointment of appellate counsel and a waiver of fees, costs, and expenses, including the cost of an expedited transcript. If the court finds the party to be indigent, the court shall not grant the application for appointment of appellate counsel but shall first appoint an appellate review attorney for the sole purpose of determining whether there is any nonfrivolous ground on which to appeal. The indigent party shall immediately request an expedited transcript from the official court reporter or court recording monitor in accordance with Section 79a-5, the cost of which shall be paid for by the Division of Public Defender Services.

(c) **Review by the Division of Public Defender Services**

(1) An appellate review attorney determining whether there is a nonfrivolous ground for appeal shall file a limited "in addition to" appearance with the trial court for the purpose of that determination. If the appellate review attorney determines that there is a nonfrivolous ground on which to appeal, that attorney shall notify the court, and the application for appellate counsel shall be granted by the

court. The appellate counsel so appointed shall file a limited "in addition to" appearance with the trial court for the purpose of prosecuting the appeal and shall file the appeal in accordance with Section 63-3.

(2) In a child protection proceeding that has not resulted in the termination of parental rights, if the appellate review attorney determines that there is no nonfrivolous ground on which to appeal, that attorney shall promptly make this determination known to the indigent party, the judicial authority and the Division of Public Defender Services. The reviewing attorney shall inform the indigent party, by letter, of his or her determination and of the balance of the time remaining to file an appeal as a self-represented party or to secure counsel, who may file an appearance to represent the indigent party on appeal at the indigent party's own expense. A copy of the letter shall be filed with the clerk for juvenile matters forthwith.

(3) In a termination of parental rights proceeding, if the appellate review attorney determines that there is no nonfrivolous ground on which to appeal, that attorney immediately shall file, under seal, a motion for in-court review, which shall indicate that the appellate review attorney has thoroughly reviewed the record for potential errors and set forth the least meritless grounds that might arguably support an appeal and the factual and legal bases for the conclusion that an appeal would be frivolous. Simultaneous with the filing of the motion for in-court review, the appellate review attorney shall provide a copy of such motion to the indigent party seeking to appeal and shall serve counsel of record and the Division of Public Defender Services with a written notice that a motion for an in-court review by the appellate review attorney has been filed, but shall not serve counsel of record or the Division of Public Defender Services with a copy of the motion or any supporting documentation. The clerk for juvenile matters shall schedule a hearing on the motion for in-court review with the presiding judge or other judge designated to hear the motion within ten days of the date of its filing.

(4) Unless the presiding judge was also the trial judge or is unavailable, the presiding judge shall conduct a nonevidentiary hearing to fully examine the motion for an in-court review and any argument or response by the indigent party, together with any relevant portions of the record. The presiding judge shall afford the indigent party an adequate opportunity to bring to the court's attention what he or she believes are appealable issues. In his or her discretion, such judge may require briefing. The hearing shall be closed except that the appellate review attorney and the indigent party shall attend. If the indigent party cannot attend the hearing for good cause shown, he or she may file, under seal, a written response to the motion for an in-court review prior to the date of the hearing. Absent compelling circumstances, the hearing shall not be continued if the indigent party does not appear.

(A) If, after the in-court review, the presiding judge independently concludes that any appeal would be frivolous, such judge, within fourteen days of the date of the hearing, shall issue a decision, either written or oral, denying the indigent party's application for appellate counsel and setting forth the basis for his or her finding that an appeal would be frivolous. Any written or transcribed oral decision of the presiding judge shall be filed under seal. The presiding judge also shall order the appellate review attorney to inform the indigent party, by letter, of the decision and to provide a copy of the decision to the indigent party. The appellate review attorney shall also advise the indigent party of the balance of the time remaining to file a motion for review and/or an appeal as a self-represented party or to secure counsel who may file an appearance to represent the indigent party for purposes of filing a motion for review and/or an appeal at the indigent party's own expense. A copy of the letter shall be filed with the clerk for juvenile matters forthwith. An indigent party may seek review of a denial of an application for appointment of appellate counsel on the basis of a finding by the presiding judge that any appeal would be frivolous solely by filing, under seal, a motion for review pursuant to Section 79a-2 (d). The Appellate Court shall expeditiously consider any such motion for review.

(B) If, after the in-court review, the presiding judge concludes that the indigent party's appeal is not frivolous, such judge shall grant the application for appointment of appellate counsel.

(5) Any presiding judge who also was the trial judge or is unavailable shall refer a motion for in-court review filed by an appellate review attorney to the chief administrative judge for juvenile matters for assignment to another judicial authority. If such presiding judge is also the chief administrative judge for juvenile matters, then the motion for in-court review shall be referred by the presiding judge to the administrative judge in the judicial district where the juvenile court hearing the motion for in-court review is located for assignment to another judicial authority.

(d) **Duties of clerk for juvenile matters for cases on appeal**

The appellate clerk shall send notice to the clerk for juvenile matters and to the clerk of any trial court to which the matter was transferred that

an appeal has been filed. Upon receipt of such notice, the clerk for juvenile matters shall send a copy of the appeal form and the case information form to the Commissioner of Children and Families, to the petitioner upon whose application the proceedings in the Superior Court were instituted, unless such party is the appellant, to any person or agency having custody of any child who is a subject of the proceeding, to the Division of Public Defender Services, and to all other interested persons; and if the addresses of any such persons do not appear of record, the clerk for juvenile matters shall call the matter to the attention of a judge of the Superior Court, who shall make such an order of notice as such judge deems advisable.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2020, to take effect Aug. 4, 2020; amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 79a-4. Waiver of Fees, Costs and Security

(a) Any written application to the court for appointment of appellate counsel or the waiver of fees, costs and expenses must be personally signed by the indigent party under oath and include a financial affidavit reciting facts concerning the applicant's financial status. The judicial authority shall act without a hearing on the application. If the court is satisfied that the applicant is indigent and has a statutory right to the appointment of appellate counsel or a statutory right to appeal without payment of fees, costs and expenses, the court may without a hearing (1) waive payment by the applicant of fees specified by statute and of taxable costs, and (2) order that the necessary expenses of reviewing or prosecuting the appeal be paid by the Division of Public Defender Services in accordance with Section 79a-3 (c). If the court is not satisfied that the applicant is indigent and has a statutory right to the appointment of appellate counsel or a statutory right to appeal without payment of fees, costs and expenses, then an immediate hearing shall be scheduled for the application. If an application is untimely filed, the court may deny the application without hearing. The court may not consider the relative merits of a proposed appeal in acting upon an application pursuant to this section.

(b) The filing of the application for the appointment of appellate counsel or waiver of fees, costs and expenses will not extend the appeal period unless a judge has extended the time limit provided for filing an appeal pursuant to Section 79a-2. A denial of the application may be addressed solely by motion for review under Section 66-6. See Section 79a-2 (c).

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended July 23, 2020, to take effect Aug. 4, 2020.)

Sec. 79a-5. Ordering Transcripts

Transcripts in child protection appeals and in cases reviewed by the Division of Public Defender Services shall be ordered expedited and delivered to the ordering party no later than the close of the fifth business day following the date the order is placed.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012.)

Sec. 79a-6. Format and Time for Filing Briefs and Appendices

(Amended June 5, 2013, to take effect July 1, 2013.)

Briefs and appendices, if any, shall be prepared and submitted in accordance with Chapter 67 of these rules except that the briefs and appendices are not required to be redacted, and the time for filing briefs and appendices shall be strictly observed and abbreviated as set forth below.

(a) Except as otherwise ordered, the appellant's brief and appendix, if any, shall be filed within forty days after the delivery of the transcript ordered by the appellant. In cases where no transcript is required or the transcript has been received by the appellant prior to the filing of the appeal, the appellant's brief and appendix shall be filed within forty days of the filing of the appeal.

(b) Except as otherwise ordered, the brief and appendix, if any, of the appellee shall be filed within thirty days after the filing of the appellant's brief or the delivery date of the portions of the transcript ordered only by that appellee, whichever is later.

(c) Counsel for the minor child and/or counsel for the guardian ad litem shall, within ten days of the filing of the last appellee's brief, file either (1) a brief, (2) a statement adopting the brief of either the appellant or an appellee, or (3) a detailed statement that the factual or legal issues on appeal do not implicate the child's interests. If no appellee files a brief, the court will set a due date for the above filing.

(d) The appellant may file a reply brief within ten days of the filing of the appellee's brief.

(e) Except as otherwise ordered, the case shall be deemed ready for assignment by the court after the filing of the appellee's brief and appendix, if any.

(f) The unexcused failure to file briefs and appendices in accordance with this schedule may result in a dismissal of the appeal pursuant to Section 85-1, a refusal of the court to accept the late brief and/or an assignment of the case without the delinquent brief.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended June 5, 2013, to take effect July 1, 2013; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: What is now the last sentence of subsection (c) was added.

COMMENTARY—2026: The purpose of these amendments is to clarify the deadline for the filing requirements of counsel for minor children and counsel for the guardian ad litem when there are multiple appellees, and to provide a procedure for when no appellee files a brief.

Sec. 79a-7. Motions for Extension of Time

Motions for extension of time filed in the Appellate Court shall be filed in accordance with Section 66-1 and, if filed, shall be presented to a judge of the Appellate Court for determination. Such motions may be granted only for good cause shown.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012.)

Sec. 79a-8. Docketing Child Protection Appeals for Assignment

The Supreme Court and Appellate Court may assign child protection matters without the case appearing on the docket. See Sections 69-1 and 69-2.

Notwithstanding the provisions of Section 69-3, child protection appeals shall ordinarily take precedence for assignment for oral argument.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 79a-9. Oral Argument

(a) Oral argument will be allowed as of right except as provided in subsection (b) of this rule.

(b) In child protection appeals as defined by Section 79a-1 where (1) the dispositive issue or set of issues has been recently authoritatively decided, or (2) the facts and legal arguments are adequately presented in the briefs and the decisional process would not be significantly aided by oral argument, notice will be sent to counsel of record that the case will be decided on the briefs and record only. This notice will be issued after all briefs and appendices have been filed. Any party may file a request for argument stating briefly the reasons why oral argument is appropriate and shall do so within ten days of the issuance of the court's notice. After receipt and consideration of such a request, the court will either assign the case for oral argument or assign the case for disposition without oral argument, as it deems appropriate.

(c) In matters involving incarcerated self-represented parties, oral argument may be conducted by videoconference upon direction of the court in its discretion.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016; amended July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 79a-10. Submission without Oral Argument on Request of Parties

Counsel of record may, before or after a case has been assigned for a hearing, file a request to submit the case for decision on the briefs and record only, without oral argument. No request for submission without oral argument will be granted unless the requesting party certifies that all other parties agree to waive oral argument. This rule applies only to counsel of record who have filed a brief or joined in the brief of another party.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 79a-11. Official Release Date

A judgment in child protection appeals shall be deemed to have been rendered on the date an opinion or memorandum decision appears in the Connecticut Law Journal; except that if an opinion or memorandum decision is issued by slip opinion, the official release date is the date indicated in the slip opinion, and the parties shall be notified and sent the opinion or memorandum decision by the reporter of judicial decisions via email. If any of the parties who participated in the appeal has not provided the reporter of judicial decisions with an email address, then the slip opinion or memorandum decision shall be mailed to the parties by the appellate clerk on the date indicated in the slip opinion.

If a judgment in a child protection appeal is given by oral announcement from the bench, then the judgment shall be deemed to have been rendered on the date the oral announcement is made.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

Sec. 79a-12. Inspection of Records

The records and papers of any child protection matter shall be open for inspection only to counsel of record and to others having a proper interest therein only upon order of the court. The name of the child involved in any appeal from a child protection matter shall not appear on the record of the appeal.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended June 15, 2016, to take effect Aug. 1, 2016; amended July 23, 2020, to take effect Aug. 4, 2020.)

COMMENTARY—August, 2016: In child protection matters that were filed on or after January 1, 2016, attorneys and self-represented parties who have valid appearances in a case may view the case summary page and electronically filed documents in that case through E-Services. The applicable procedures, set forth in the Appellate E-filing Procedures and Technical Standards, require a self-represented party to sub-

mit an "Appellate Electronic Access Form" and to provide the appellate clerk's office with a valid photo identification.

Sec. 79a-13. Hearings; Confidentiality

(a) For the purpose of maintaining confidentiality, upon the hearing of an appeal from a child protection matter, the court may exclude any person from the court whose presence is unnecessary.

(b) All proceedings shall be conducted in a manner that will preserve the anonymity of the child.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012; amended July 23, 2020, to take effect Aug. 4, 2020.)

Sec. 79a-14. Motions Filed with the Appellate Clerk

All motions filed with the appellate clerk in child protection matters shall include a statement on the first page by the moving party as to whether the other parties consent or object to the motion.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012.)

Sec. 79a-15. Applicability of Rules

The rules governing other appeals shall, so far as applicable, and to the extent they have not been modified by this chapter, be the rules for all proceedings in child protection appeals.

(Adopted Nov. 17, 2011, to take effect Feb. 1, 2012.)

CHAPTER 80

APPEALS IN HABEAS CORPUS PROCEEDINGS FOLLOWING CONVICTION

Sec.
80-1. Certification To Appeal; Procedure on Appeal

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 80-1. Certification To Appeal; Procedure on Appeal

In any habeas corpus proceeding where the party desiring to appeal is required by statute to petition the trial court for certification that a question is involved in the decision which ought to be reviewed by the Appellate Court, the petition for such certification shall be made to the judge who tried the case or, if such judge is unavailable, a judge of the Superior Court designated by the chief court administrator, within ten days after the case is decided. The appeal shall be filed within twenty days from the issuance of the notice of decision on the petition for certification, unless an application for waiver of fees, costs and security is filed pursuant to Section 63-6, in which event the appeal shall be filed within twenty days from the decision on the application.

(P.B. 1978-1997, Sec. 4166C.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended May 12, 2004, to take effect Jan. 1, 2005.)

CHAPTER 81
APPEALS TO APPELLATE COURT BY CERTIFICATION FOR REVIEW IN ACCORDANCE WITH GENERAL STATUTES CHAPTERS 124 AND 440

Sec.
81-1. Petition; Where To File; Time To File; Service; Fee
81-2. Form of Petition
81-3. Opposition to Petition
81-3A. Grant or Denial of Certification
81-4. Proceedings after Certification by Appellate Court
81-5. Extensions of Time
81-6. Filing of Regulations

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 81-1. Petition; Where To File; Time To File; Service; Fee

(a) A petition for certification in accordance with chapters 124 and 440 of the General Statutes shall be filed with the appellate clerk by the party aggrieved by the decision of the trial court within twenty days from the issuance of notice of the decision of the trial court. All petitions for certification to appeal shall be filed and all fees paid in accordance with the provisions of Section 60-7 or 60-8. If within this period a timely motion is filed which, if granted, would render the trial court judgment ineffective, as, for example, a motion for a new trial, then the twenty days shall run from the issuance of notice of the decision thereon.

The petitioner shall deliver a copy of the petition to every other party in the manner set forth in Section 62-7. The appellate clerk will send notice of the filing to the trial judge and the clerk of the trial court that rendered the decision sought to be appealed.

(b) Any other party aggrieved by the decision of the trial court may file a cross petition within ten days of the filing of the original petition. The filing of cross petitions, including the payment of the fee, service pursuant to Section 62-7, the form of the cross petition, and all subsequent proceedings shall be the same as though the cross petition were an original petition.

(c) The filing of a petition or cross petition by one party shall be deemed to be a filing on behalf of that party only.

(d) No petition or opposition shall be filed after the expiration of the time for its filing unless the filer demonstrates good cause for its untimeliness in a separate section captioned "good cause for late filing." No amendment to a petition or opposition shall be filed without permission of the court.

(P.B. 1978-1997, Sec. 4142.) (Amended Sept. 22, 2004, to take effect Jan. 1, 2005; amended May 4, 2006, to take effect Jan. 1, 2007; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2016, to take effect Sept. 30, 2016; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the second sentence of the second paragraph of subsection (a), "trial judge and the clerk of the trial court that rendered the decision sought to be appealed" replaced "clerk of the original trial court and to the clerk of any trial courts to which the matter was transferred." What is now subsection (d) was added.

COMMENTARY—2026: The purpose of these amendments is to codify the practice of the Office of the Appellate Clerk of sending a copy of the petition to the trial judge and the clerk of the trial court that rendered the decision that is the subject of the prospective appeal, and to reinstate the good cause requirement for the filing of a late petition or opposition.

Sec. 81-2. Form of Petition

(a) A petition for certification shall be filed as one document with a single pagination scheme that starts on the first page of the petition and continues throughout. The page numbers shall be centered on the bottom of the page and shall be written as "Page X of XX" (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33). The petition must contain the following sections in the order indicated here:

(1) A statement of the questions presented for review, expressed in the terms and circumstances of the case but without unnecessary detail.

(2) A statement of the basis for certification identifying the specific reasons why the Appellate Court should allow the extraordinary relief of certification. These reasons may include but are not limited to the following:

(A) The court below has decided a question of substance not theretofore determined by the Supreme Court or the Appellate Court or has decided it in a way probably not in accord with applicable decisions of the Supreme Court or the Appellate Court.

(B) The decision under review is in conflict with other decisions of the court below.

(C) The court below has so far departed from the accepted and usual course of judicial proceedings, or has so far sanctioned such a departure

by any other court, as to call for an exercise of the Appellate Court's supervision.

(D) A question of great public importance is involved.

(3) A summary of the case containing the facts material to the consideration of the questions presented, reciting the disposition of the matter in the trial court, and describing specifically how the trial court decided the questions presented for review in the petition.

(4) A concise argument amplifying the reasons relied upon to support the petition. No separate memorandum of law in support of the petition will be accepted by the appellate clerk.

(5) An appendix containing a table of contents, the operative complaint, all briefs filed by all parties, the opinion or order of the trial court sought to be reviewed, a copy of the order on any motion, other than a motion for extension of time, which would stay or extend the time period for filing the petition, and a list of all parties to the appeal in the trial court with the names, addresses, telephone numbers, email addresses, and, if applicable, the juris numbers of their counsel.

(6) A certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the petition complies with the word count requirement of subsection (b) of this section.

(b) Except as otherwise ordered, petitions shall not exceed 4000 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications and appendix. Petitions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

(P.B. 1978-1997, Sec. 4142.1.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended Jan. 17, 2002, to take effect April 15, 2002; amended May 15, 2003, to take effect Jan. 1, 2004; amended July 11, 2012, to take effect Jan. 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2019, to take effect Jan. 1, 2020; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, the introductory paragraph to subsection (a) provided: "A petition for certification shall contain the following sections in the order indicated here."

In addition, what were the last two sentences of subsection (a) (5), "If a petitioner in a civil matter is an entity as defined in Section 60-4, counsel of record must also provide a certificate of interested entities or individuals in the appendix. The appendix shall be paginated separately from the petition with consecutively numbered pages preceded by the letter "A.", were deleted.

What is now subsection (a) (6) was added.

COMMENTARY—2026: The purpose of these amendments is to make the format of petitions consistent with recent changes to the format of briefs, to add a word count certification requirement, and to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 81-3. Opposition to Petition

(Amended July 15, 2025, to take effect Jan. 1, 2026.)

(a) Within ten days of the filing of the petition, any party may file an opposition with the appellate clerk stating the reasons why certification should not be granted. The opposition shall be presented in a manner which is responsive, in form and content, to the petition it opposes. Except as otherwise ordered, oppositions shall not exceed 4000 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications and appendix, if any. Oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

Oppositions shall be filed as one document with a single pagination scheme that starts on the first page of the opposition and continues throughout the entire document, on every page, including the pages in an attached appendix, if any. The page numbers shall be centered on the bottom of the page and shall be written as "Page X of XX" (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

No separate memorandum of law in support of the opposition will be accepted by the appellate clerk.

(b) The opposition shall be delivered in the manner set forth in Section 62-7 and shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the opposition complies with the word count requirement of subsection (a) of this section.

(c) No motion to dismiss a petition for certification will be accepted by the appellate clerk. Any objection to the jurisdiction of the court to entertain the petition shall be included in the opposition.

(d) Responses to oppositions are not permitted.

(P.B. 1978-1997, Sec. 4142.2.) (Amended Jan. 17, 2002, to take effect April 15, 2002; amended May 15, 2003, to take effect Jan. 1, 2004; amended May 4, 2006, to take effect Jan. 1, 2007; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, this section was titled "Statement in Opposition to Petition," and provided:

"(a) Within ten days of the filing of the petition, any party may file a statement in opposition with the appellate clerk stating the reasons why certification should not be granted. The statement shall be presented in a manner which is responsive, in form and content, to the petition it opposes. Except as otherwise ordered, oppositions shall not exceed 4000 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications and appendix, if any. Oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining. No separate memorandum of law in support of the statement in opposition will be accepted by the appellate clerk.

"(b) The statement in opposition shall be delivered in the manner set forth in Section 62-7.

"(c) No motion to dismiss a petition for certification will be accepted by the appellate clerk. Any objection to the jurisdiction of the court to entertain the petition shall be included in the statement in opposition.

"(d) If the party in a civil matter filing the opposition is an entity as defined in Section 60-4, a certificate of interested entities or individuals shall be attached to the opposition.

"(e) Responses to oppositions are not permitted."

COMMENTARY—2026: The purpose of these amendments is to make the formatting rules for briefs, motions, petitions and oppositions consistent such that all of them are filed, with any attachments, as one document with a single pagination scheme, to add a word count certification requirement, and to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 81-3A. Grant or Denial of Certification

A petition by a party shall be granted on the affirmative vote of three of the judges of the Appellate Court. Upon the determination of any petition, the appellate clerk shall enter an order granting or denying the certification in accordance with the determination of the court and shall send notice of the court's order to the clerk of the trial court and to all counsel of record.

(Adopted July 23, 2020, to take effect Jan. 1, 2021.)

Sec. 81-4. Proceedings after Certification by Appellate Court

Within twenty days from the issuance of notice that certification has been granted, the petitioner, who shall be considered the appellant, shall file the appeal in accordance with the procedure set forth in Section 63-3 and shall pay all required fees in accordance with the provisions of Section 60-7 or 60-8. The clerk of the trial court must forward the case file to the appellate clerk in accordance with Section 68-1. Except as otherwise noted in Section 81-6, all proceedings subsequent to the filing of the appeal shall be governed by the rules applicable to appeals.

(P.B. 1978-1997, Sec. 4142.3.) (Amended July 24, 2002, to take effect Oct. 1, 2002; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 81-5. Extensions of Time

Motions for extensions of time for purposes of filing a petition for certification or an opposition thereto shall be filed with the appellate clerk and shall be governed by Section 66-1.

(P.B. 1978-1997, Sec. 4142.4.) (Amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In this section, "an" replaced "a statement in" before "opposition."

COMMENTARY—2026: This amendment was made for the purpose of consistency.

Sec. 81-6. Filing of Regulations

Immediately after filing the appellant's brief, the appellant shall file one complete copy of the local land use regulations that were in effect at the time of the hearing that gave rise to the agency action or ruling in dispute. The regulations shall be certified by the local zoning or equivalent official as having been in effect at the time of the hearing. The appellant need not deliver a copy of such regulations to other counsel of record.

(Adopted July 24, 2002, to take effect Oct. 1, 2002; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

CHAPTER 82

CERTIFIED QUESTIONS TO OR FROM COURTS OF OTHER JURISDICTIONS

(Amended Nov. 4, 2004, to take effect Jan. 1, 2005; amended Feb. 1, 2005, to take effect Jan. 1, 2006.)

Sec.		Sec.	
82-1.	Certification of Questions from Other Courts	82-5.	Receipt; Costs of Certification
82-2.	Method of Initiating [Repealed]	82-6.	Briefs, Appendices, Assignment and Argument
82-3.	Contents of Certification Request	82-7.	Opinion
82-4.	Preparation of Certification Request	82-8.	Certification of Questions to Other Courts

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 82-1. Certification of Questions from Other Courts

The Supreme Court may answer questions of law certified to it by a court of the United States or by the highest court of another state, as defined in General Statutes § 51-199b, or by the highest court of a tribe of Native Americans recognized by federal law when requested by the certifying court if the answer may be determinative of an issue in pending litigation in the certifying court and if there is no controlling appellate decision, constitutional provision or statute of this state.

(P.B. 1978-1997, Sec. 4168.) (Amended Nov. 4, 2004, to take effect Jan. 1, 2005; amended Feb. 1, 2005, to take effect Jan. 1, 2006.)

Sec. 82-2. Method of Initiating

[Repealed as of Jan. 1, 2005.]

Sec. 82-3. Contents of Certification Request

A certification request shall set forth: (1) The questions of law to be answered; (2) a finding or stipulation approved by the court setting forth all facts relevant to answering the questions certified and showing fully the nature of the controversy in which the questions arose; (3) that the receiving court may reformulate the questions; and (4) the names and addresses of counsel of record.

The questions presented should be such as will be determinative of the case, and it must appear that their present determination would be in the interest of simplicity, directness and economy of judicial action.

All questions presented shall be specific and shall be phrased so as to require a Yes or No answer, wherever possible.

(P.B. 1978-1997, Sec. 4170.) (Amended Nov. 4, 2004, to take effect Jan. 1, 2005; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 15, 2025; to take effect Jan. 1, 2026.)

HISTORY—2026: What had been the fourth paragraph concerning the certificate of interested entities or individuals was deleted.

COMMENTARY—2026: The purpose of this amendment is to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 82-4. Preparation of Certification Request

The certification request shall be prepared by the certifying court, signed by the judge presiding at the hearing, and forwarded to the Supreme Court by the clerk of the certifying court under its official seal. Upon receipt of the certification request, the appellate clerk shall notify the parties who shall be allowed a period of ten days from the date of such notice to file objections to the acceptance of the certification request. The Supreme Court shall either preliminarily accept or decline the certification request. The appellate clerk shall notify the clerk of the court requesting certification and all parties of the decision or order on the certification request. If the Supreme Court preliminarily accepts the certified question, the plaintiff in the court that requested certification shall be deemed the appellant, and the defendant in such court shall be deemed the appellee unless otherwise ordered by the Supreme Court.

The Supreme Court may later reject the certification if it should appear to have been improvidently granted. The Supreme Court may decline to answer the questions certified whenever it appears that the questions have been improperly framed, the necessary facts have not been fully set forth, or, for any other reason, certification has been improvidently granted. The Supreme Court may also request that the certifying court provide additional facts required for a decision upon the questions certified and clarify such questions when necessary. If the Supreme Court grants the certification request, it may require the appellant to file those portions of the record that the

Supreme Court deems necessary to answer the certified questions.

(P.B. 1978-1997, Sec. 4171.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 82-5. Receipt; Costs of Certification

Within twenty days of issuance of the notice of an order of preliminary acceptance, the appellant shall file the matter in accordance with the provisions of Section 63-3 for filing an appeal and shall pay all required fees in accordance with Section 60-7 or 60-8. After paying the filing fee, the appellant shall be entitled to seek reimbursement from the appellee for one half of the filing fee, unless otherwise ordered by the court that requested certification. All proceedings subsequent to the filing of the matter shall be governed by the rules applicable to appeals except as to the time for filing briefs and appendices. No security or recognizance shall be required, and no costs shall be taxed in favor of either party.

(P.B. 1978-1997, Sec. 4172.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2017, to take effect Oct. 8, 2017.)

Sec. 82-6. Briefs, Appendices, Assignment and Argument

(Amended July 19, 2017, to take effect Oct. 8, 2017.)

Briefs and appendices, if any, filed by the parties shall conform to the rules set forth in Chapter 67, except that the parties shall file initial briefs and appendices within forty-five days of issuance of the notice of an order of preliminary acceptance. A party wishing to file a reply brief must do so within twenty days of the filing of the last initial brief. Extensions of time will not be granted except for extraordinary cause. The Supreme Court may assign certified questions without the matter appearing on the docket and before reply briefs are filed.

Oral argument shall be as provided in Chapter 70, unless otherwise ordered by the court.

(P.B. 1978-1997, Sec. 4173.) (Amended Nov. 4, 2004, to take effect Jan. 1, 2005; amended June 5, 2013, to take effect July 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2017, to take effect Oct. 8, 2017; amended June 6, 2018, to take effect Sept. 1, 2018.)

Sec. 82-7. Opinion

Upon publication thereof, the written opinion of the Supreme Court in response to the question or questions certified shall be sent by the appellate clerk to the certifying court. Unless otherwise ordered by the Supreme Court, official notification to counsel of record shall be the publication of the opinion in the Connecticut Law Journal.

(P.B. 1978-1997, Sec. 4174.)

Sec. 82-8. Certification of Questions to Other Courts

The Supreme Court, on its own motion or motion of a party, may certify a question of law to the highest court of another state, as defined in General Statutes § 51-199b, or to the highest court of a tribe of Native Americans recognized by federal law if the pending cause involves a question to be decided under the law of the other jurisdiction; the answer to the question may be determinative of an issue in the pending cause; and the question is one for which no answer is provided by a controlling appellate decision, constitutional provision, or statute of the other jurisdiction. The procedures for certification from the Supreme Court to the receiving court shall be those provided in the statutes or rules of the receiving court.

(Adopted Feb. 1, 2005, to take effect Jan. 1, 2006.)

CHAPTER 83

CERTIFICATION PURSUANT TO GENERAL STATUTES § 52-265a IN CASES OF SUBSTANTIAL PUBLIC INTEREST

Sec.		Sec.	
83-1.	Time To File; Where To File	83-2.	Application Granted
83-1A	Form of Application	83-3.	Application Denied
83-1B	Opposition to Application	83-4.	Unavailability of Chief Justice

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 83-1. Time To File; Where To File

(Amended July 15, 2025, to take effect Jan. 1, 2026.)

Within fourteen days of the issuance of an order or decision of the Superior Court involving a matter of substantial public interest pursuant to General Statutes § 52-265a, any party may file an application for certification by the chief justice. The applicant shall deliver a copy of the application to every other party in the manner set forth in Section 62-7. The appellate clerk will send notice of the filing to the trial judge and the clerk of the trial court that rendered the decision sought to be appealed.

(P.B. 1978-1997, Sec. 4177.) (Amended July 26, 2000, to take effect Jan. 1, 2001; amended Jan. 31, 2013, to take effect April 19, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, this section was titled "Application; In General," and provided:

"Within two weeks of the issuance of an order or decision of the Superior Court involving a matter of substantial public interest pursuant to General Statutes § 52-265a, any party may file an application for certification by the chief justice. The application for certification shall contain: (1) the question of law on which the appeal is to be based; (2) a description of the substantial public interest that is alleged to be involved; (3) an explanation as to why delay may work a substantial injustice; and (4) an appendix with: (A) the decision or order of the Superior Court sought to be appealed and (B) a list of all parties to the case in the Superior Court with the names, addresses, telephone numbers, email addresses and, if applicable, the juris numbers of their counsel. If the party in a civil matter is an entity as defined in Section 60-4, counsel of record must also provide a certificate of interested entities or individuals in the appendix.

"Using an expeditious delivery method such as overnight mail or facsimile or other electronic medium, in addition to the certification requirements of Section 62-7, the party submitting the application shall also notify the trial judge and the clerk of the trial court that rendered the decision sought to be appealed.

"A party response to the application must be filed within five days from the filing of the application."

COMMENTARY—2026: The purpose of these amendments is to update the rule to conform to current practice, to make the format for applications pursuant to General Statutes § 52-265a more consistent with the format for motions, and to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 83-1A. Form of Application

(a) The application for certification shall contain: (1) the question of law on which the appeal is to be based; (2) a description of the substantial public interest that is alleged to be involved; (3) an explanation as to why delay may work a substantial injustice; (4) an appendix with: (A) the decision or order of the Superior Court sought to be appealed and (B) a list of all parties to the case in the Superior Court with the names, addresses, telephone numbers, email addresses and, if applicable, the juris numbers of their counsel; and (5) a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the application complies with the word count requirement of subsection (b) of this section.

(b) Except as otherwise ordered, the application shall not exceed 4000 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications and appendix. Applications, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

Applications shall be filed as one document with a single pagination scheme that starts on the first page of the application and continues throughout the entire document, on every page, including the pages in an attached appendix. The page numbers shall be centered on the bottom of the page and shall be written as "Page X of XX" (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

(Adopted July 15, 2025, to take effect Jan. 1, 2026.)

COMMENTARY—2026: The purpose of this new rule is to update the rules to conform to current practice and to make the format for applications pursuant to General Statutes § 52-265a more consistent with the format for motions.

Sec. 83-1B. Opposition to Application

(a) Within three days of the filing of the application, unless otherwise ordered by the court, any party may file an opposition to the application with the appellate clerk. Except as otherwise ordered, oppositions shall not exceed 4000 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications and appendix, if any.

Oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

Oppositions shall be filed as one document with a single pagination scheme that starts on the first page of the opposition and continues throughout the entire document, on every page, including the pages in an attached appendix, if any. The page numbers shall be centered on the bottom of the page and shall be written as "Page X of XX" (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

No separate memorandum of law in support of the opposition will be accepted by the appellate clerk. Responses to oppositions are not permitted.

(b) The opposition shall be delivered in the manner set forth in Section 62-7 and shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the opposition complies with the word count requirement of subsection (a) of this section.

(Adopted July 15, 2025, to take effect Jan. 1, 2026.)

COMMENTARY—2026: The purpose of this new rule is to update the rules to conform to current practice and to make the format for applications pursuant to General Statutes § 52-265a more consistent with the format for motions.

Sec. 83-2. Application Granted

If any application is certified pursuant to General Statutes § 52-265a by the chief justice, the party that sought certification shall file the appeal in accordance with the procedure set forth in Section 63-3, except as modified by the Supreme Court pursuant to Section 60-2 or 60-3, and shall pay all required fees in accordance with Sections 60-7 and 60-8. The party certified to appeal shall have such additional time as the order of certification allows to file the appeal.

(P.B. 1978-1997, Sec. 4178.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 83-3. Application Denied

If an application pursuant to General Statutes § 52-265a is denied by the chief justice, the denial shall be deemed to terminate all proceedings relating to the appeal.

(P.B. 1978-1997, Sec. 4179.)

Sec. 83-4. Unavailability of Chief Justice

If the chief justice is unavailable or disqualified, the most senior associate justice who is available and is not disqualified shall rule on the application for certification.

(P.B. 1978-1997, Sec. 4180.)

CHAPTER 84

APPEALS TO SUPREME COURT BY CERTIFICATION FOR REVIEW

Sec.
84-1. Certification by Supreme Court
84-2. Basis for Certification
84-3. Stay of Execution
84-4. Petition; Time To File; Where To File; Service; Fee
84-5. Form of Petition
84-6. Opposition to Petition
84-6A. Positions of Minor Children and Guardians ad Litem in Family and Child Protection Matters and Other Matters Involving Minor Children
84-7. Extensions of Time
84-8. Grant or Denial of Certification
84-9. Proceedings after Certification
84-10. Record [Repealed as of July 1, 2013.]
84-10A. Record
84-11. Papers To Be Filed by Appellant and Appellee in an Appeal After Certification
84-12. Applicability of Rules

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 84-1. Certification by Supreme Court

No appeal may be taken from a final decision of the Appellate Court to the Supreme Court unless the Supreme Court grants certification. When an appeal is decided by the Appellate Court, an aggrieved party may petition the Supreme Court for certification to appeal. If certification is granted, the petitioner may file an appeal to the Supreme Court. Failure to obtain an order from the Supreme Court granting certification will result in the rejection of the appeal to the Supreme Court.

(P.B. 1978-1997, Sec. 4126.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2024, to take effect Jan. 1, 2025.)

Sec. 84-2. Basis for Certification

Certification by the Supreme Court on petition by a party is not a matter of right but of sound judicial discretion and will be allowed only where there are special and important reasons therefor. The following, while neither controlling nor fully measuring the court's discretion, indicate the character of the reasons which will be considered:

(1) Where the Appellate Court has decided a question of substance not theretofore determined by the Supreme Court or has decided a question in a way probably not in accord with applicable decisions of the Supreme Court.

(2) Where the decision under review is in conflict with other decisions of the Appellate Court.

(3) Where the Appellate Court has so far departed from the accepted and usual course of judicial proceedings, or so far sanctioned such a departure by any other court, as to call for an exercise of the Supreme Court's supervision.

(4) Where a question of great public importance is involved.

(5) Where the judges of the appellate panel are divided in their decision or, though concurring in the result, are unable to agree upon a common ground of decision.

(P.B. 1978-1997, Sec. 4127.) (Amended June 15, 2021, to take effect Jan. 1, 2022.)

Sec. 84-3. Stay of Execution

(a) In any action in which a stay of proceedings was in effect during the pendency of the appeal, proceedings to enforce or carry out the judgment shall be stayed until the time to file the petition has expired. If no stay of proceedings was in effect, but the decision of the Appellate Court would change the position of any party from its position during the pendency of the appeal, proceedings to enforce or carry out the judgment shall be stayed until the time to file the petition has expired. If a petition by a party is timely filed, the proceedings shall continue to be stayed until the Supreme Court acts on the petition and, if the petition is granted, until the final determination of the cause.

(b) Any party may file a motion in the Appellate Court to terminate the stay provided for in subsection (a). Such motion shall comply with Sections 66-2 and 66-3 and state, in the first paragraph, the panel of Appellate Court judges that heard the case. The presiding judge, or if such presiding judge is unavailable, the most senior judge on such panel who is available, may act upon such a motion for termination of the stay up to the time the Supreme Court acts upon the petition. If the judge is of the opinion that the certification proceedings have been filed only for delay or that the due administration of justice so requires, such judge may order that the stay be terminated.

(P.B. 1978-1997, Sec. 4128.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the third sentence of subsection (a), "continue to" was added before "be stayed."

COMMENTARY—2026: The purpose of this amendment is to make clear that, if a stay is in effect when the Appellate Court decides an appeal and a timely petition for certification to appeal to the Supreme Court is filed, then the proceedings shall continue to be stayed until the Supreme Court decides the petition.

Sec. 84-4. Petition; Time To File; Where To File; Service; Fee

(a) A petition for certification shall be filed by the petitioner within twenty days of (1) the date the opinion is officially released as set forth in Section 71-4 or (2) the issuance of notice of any order or judgment finally determining a cause in the Appellate Court, whichever is earlier. If within this period a timely motion is filed which, if granted, would render the Appellate Court order or judgment ineffective, as, for example, a motion for reconsideration, or if within this period an application for waiver of fees is filed, then the twenty days shall run from the issuance of notice of the decision thereon.

(b) All petitions for certification to appeal shall be filed and all fees paid in accordance with the provisions of Section 60-7 or 60-8. The petition for certification will be docketed upon filing but may be returned or rejected for noncompliance with the Rules of Appellate Procedure.

The petitioner shall deliver a copy of the petition to every other party in the manner set forth in Section 62-7. The appellate clerk will send notice of the filing to the trial judge and the clerk of the trial court that rendered the decision sought to be appealed.

A fee shall not be required for a petition when either (1) no fee was required to file the appeal, or (2) the petitioner was granted a waiver of fees to file the appeal.

In workers' compensation cases, the petitioner shall also deliver a copy of the petition to the administrative law judge, and in an appeal from the board, the petitioner shall also deliver a copy of the petition to the board.

(c) Any other party aggrieved by the judgment of the Appellate Court may file a cross petition within ten days of the filing of the original petition. The filing of cross petitions, including the payment of the fee, delivery pursuant to Section 62-7, the form of the cross petition, and all subsequent proceedings shall be the same as though the cross petition were an original petition.

(d) The filing of a petition or cross petition by one party shall not be deemed to be a filing on behalf of any other party.

(e) No petition or opposition shall be filed after the expiration of the time for its filing unless the filer demonstrates good cause for its untimeliness in a separate section captioned "good cause for late filing." No amendment to a petition or opposition shall be filed without permission of the court.

(P.B. 1978-1997, Sec. 4129.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended July 21, 1999, to take effect Jan. 1, 2000; amended Oct. 10, 2001, to take effect Jan. 1, 2002; amended May 4, 2006, to take effect Jan. 1, 2007; amended July 26, 2012, to take effect Jan. 1, 2013; amended June 27, 2013, to take effect Oct. 1, 2013; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 6, 2018, to take effect Sept. 1, 2018; amended Oct. 24, 2018, to take effect Jan. 1, 2019; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, the second paragraph of subsection (b) provided: "The petitioner shall deliver a copy of the petition to every other party in the manner set forth in Section 62-7. The appellate clerk will send notice of the filing to the clerk of the original trial court and to the clerk of any trial courts to which the matter was transferred."

What is now subsection (e) was added.

COMMENTARY—2026: The purpose of these amendments is to codify the practice of the Office of the Appellate Clerk of sending a copy of the petition to the trial judge and the clerk of the trial court that rendered the decision that is the subject of the prospective appeal, and to reinstate the good cause requirement for the filing of a late petition or opposition.

Sec. 84-5. Form of Petition

(a) A petition for certification shall be filed as one document with a single pagination scheme that starts on the first page of the petition and continues throughout. The page numbers shall be centered on the bottom of the page and shall be written as "Page X of XX" (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33). The petition must contain the following sections in the order indicated here:

(1) A brief introduction providing context for the statement of the questions presented for review.

(2) A statement of the questions presented for review, expressed in the terms and circumstances of the case but without unnecessary detail. The Supreme Court will ordinarily consider only those questions squarely raised, subject to any limitation in the order granting certification.

(3) A brief history of the case containing the facts material to the consideration of the questions presented, including the disposition of the matter in the Appellate Court, and if applicable, a specific description of how the Appellate Court decided the questions presented for review in the petition.

(4) A concise argument expanding on the bases for certification, as presented in Section 84-2, and explaining why the Supreme Court should allow the extraordinary relief of certification. No separate memorandum of law in support of the petition will be accepted by the appellate clerk.

(5) An appendix, containing:

(A) a table of contents,

(B) the opinion, preferably as published in the Connecticut Law Journal, or order of the Appellate Court sought to be reviewed,

(C) if the opinion or order of the Appellate Court was per curiam or a summary affirmance or dismissal, a copy of the trial court's memorandum of decision that was entered in connection with the claim raised by the petitioner before the Appellate Court, or, if no memorandum was filed, a copy of the trial court's ruling on the matter,

(D) a copy of the order on any motion, other than a motion for extension of time, which would stay or extend the time period for filing the petition,

(E) a list of all parties to the appeal in the Appellate Court with the names, addresses, telephone numbers, email addresses, and, if applicable, the juris numbers of their trial and appellate counsel.

(6) A certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the petition complies with the word count requirement of subsection (b) of this section.

(b) Except as otherwise ordered, petitions shall not exceed 4000 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications and appendix. Petitions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

(P.B. 1978-1997, Sec. 4130.) (Amended July 23, 1998, to take effect Jan. 1, 1999; amended Jan. 17, 2002, to take effect April 15, 2002; amended May 15, 2003, to take effect Jan. 1, 2004; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 23, 2019, to take effect Jan. 1, 2020; amended June 15, 2021, to take effect Jan. 1, 2022; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, the introductory paragraph to subsection (a) provided: "A petition for certification shall contain the following sections in the order indicated here."

Additionally, the introductory paragraph to subsection (a) (5) provided: "An appendix, which shall be paginated separately from the petition with consecutively numbered pages preceded by the letter "A," containing." The last sentence in subsection (a) (5) (E) concerning the certificate of interested entities or individuals was deleted.

In addition, what is now subsection (a) (6) was added.

COMMENTARY—2026: The purpose of these amendments is to make the format of petitions consistent with recent changes to the format of briefs, to add a word count certification requirement, and to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 84-6. Opposition to Petition

(Amended July 15, 2025, to take effect Jan. 1, 2026.)

(a) Within ten days of the filing of the petition, any party may file an opposition to the petition with the appellate clerk. The opposition shall disclose any reasons why certification should not be granted by the Supreme Court and shall be presented in a manner which is responsive, in form and content, to the petition it opposes. Except as otherwise ordered, oppositions shall not exceed 4000 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications and appendix, if any.

Oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

Oppositions shall be filed as one document with a single pagination scheme that starts on the first page of the opposition and continues throughout the entire document, on every page, including the pages in an attached appendix, if any. The page numbers shall be centered on the bottom of the page and shall be written as "Page X of XX" (e.g., Page 1 of 33 . . . Page 7 of 33 . . . Page 33 of 33).

No separate memorandum of law in support of the opposition will be accepted by the appellate clerk.

(b) The opposition shall be delivered in the manner set forth in Section 62-7 and shall contain a certification that: (1) a copy has been delivered to each other counsel of record in accordance with the provisions of Section 62-7, and (2) that the opposition complies with the word count requirement of subsection (a) of this section.

(c) No motion to dismiss a petition for certification will be accepted by the appellate clerk. Any objection to the jurisdiction of the court to entertain the petition shall be included in the opposition.

(d) Responses to oppositions are not permitted.

(P.B. 1978-1997, Sec. 4131.) (Amended Jan. 17, 2002, to take effect April 15, 2002; amended May 15, 2003, to take effect Jan. 1, 2004; amended May 4, 2006, to take effect Jan. 1, 2007; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 19, 2022, to take effect Jan. 1, 2023; amended June 27, 2023, to take effect Jan. 1, 2024; amended July 23,

2024, to take effect Jan. 1, 2025; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, this section was titled Statement in opposition to Petition and provided:

"(a) Within ten days of the filing of the petition, any party may file a statement in opposition to the petition with the appellate clerk. The statement in opposition shall disclose any reasons why certification should not be granted by the Supreme Court and shall be presented in a manner which is responsive, in form and content, to the petition it opposes. Except as otherwise ordered, oppositions shall not exceed 4000 words. The word count is exclusive of the case caption, signature block of counsel of record, certifications and appendix, if any.

"Oppositions, including footnotes, shall be typed in a 12 point serif font. Section captions shall be typed in a 14 point serif font. A list of serif fonts can be found in the guidelines published on the Judicial Branch website. Margins shall be 1 and 1/2 inches on all sides. All text must be left aligned. Line spacing can be between 1.3x and 1.5x and must be uniform throughout, including the body of the document, footnotes and block quotes. Bold face or italic emphasis tools shall be used, not underlining.

"No separate memorandum of law in support of the statement in opposition will be accepted by the appellate clerk.

"(b) The statement in opposition shall be delivered in the manner set forth in Section 62-7.

"(c) No motion to dismiss a petition for certification will be accepted by the appellate clerk. Any objection to the jurisdiction of the court to entertain the petition shall be included in the statement in opposition.

"(d) If the party filing the opposition in a civil action is an entity as defined in Section 60-4, a certificate of interested entities or individuals shall be attached to the opposition.

"(e) Responses to oppositions are not permitted."

COMMENTARY—2026: The purpose of these amendments is to make the formatting rules for briefs, motions, petitions and oppositions consistent such that all of them are filed, with any attachments, as one document with a single pagination scheme, to add a word count certification requirement, and to provide that parties are required to file a certificate of interested entities or individuals only when the reviewing court orders the parties to file the certificate when necessary.

Sec. 84-6A. Positions of Minor Children and Guardians ad Litem in Family and Child Protection Matters and Other Matters Involving Minor Children

(Amended July 15, 2025, to take effect Jan. 1, 2026.)

In family and child protection matters and other matters involving minor children, counsel for the minor child and/or counsel for the guardian ad litem shall, within ten days of the filing of the opposition to a petition for certification or, if no opposition is filed, within fifteen days of the filing of the petition, file either (1) an opposition, (2) a statement adopting the position of either the petitioner or a respondent or (3) a detailed statement that the factual or legal issues proposed in the petition for certification do not implicate the child's interests.

(Adopted June 15, 2021, to take effect Jan. 1, 2022; amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: Prior to 2026, this section was titled "Petitions, Responses and Statements in Opposition in Family and Child Protection Matters and Other Matters Involving Minor Children," and provided:

"In family and child protection matters and other matters involving minor children, counsel for the minor child and/or counsel for the guardian ad litem shall, within ten days of the filing of the response or opposition to a petition for certification or, if no response or opposition is filed, within fifteen days of the filing of the petition, file either (1) a response, (2) a statement adopting the position of either the petitioner or a respondent or (3) a detailed statement that the factual or legal issues proposed in the petition for certification do not implicate the child's interests."

COMMENTARY—2026: These amendments were made for the purpose of consistency.

Sec. 84-7. Extensions of Time

Motions for extensions of time for purposes of filing a petition for certification or an opposition thereto shall be filed with the appellate clerk and shall be governed by Section 66-1.

(P.B. 1978-1997, Sec. 4132.) (Amended July 15, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In this section, "an" was substituted for "a statement in" before "opposition."

COMMENTARY—2026: This amendment was made for the purpose of consistency.

Sec. 84-8. Grant or Denial of Certification

A petition by a party shall be granted on the affirmative vote of three or more justices of the Supreme Court, except that if fewer than six justices are available to consider a petition, a vote of two justices shall be required to certify a case. Upon the determination of any petition, the appellate clerk shall enter an order granting or denying the certification in accordance with the determination of the court and shall send notice of the court's order to the clerk of the trial court and to all counsel of record.

(P.B. 1978-1997, Sec. 4136.) (Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

Sec. 84-9. Proceedings after Certification

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

(a) Within twenty days from the issuance of notice that certification to appeal has been granted, the petitioner, who shall be considered the appellant, shall file the appeal in accordance with the procedure set forth in Section 63-3 and shall pay all required fees in accordance with the provisions of Section 60-7 or 60-8.

(b) The issues which the appellant may present are limited to those set forth in the order granting certification or where other issues are presented for review pursuant to Section 84-11.

(P.B. 1978-1997, Sec. 4138.) (Amended July 24, 2002, to take effect Oct. 1, 2002; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended July 30, 2024, to take effect Jan. 1, 2025.)

Sec. 84-10. Record

[Repealed as of July 1, 2013.]

Sec. 84-10A. Record

Those portions of the record for the appeal to the Appellate Court relevant to the issue certified by the Supreme Court shall be included in the clerk appendix, which shall be prepared and distributed in accordance with Section 68-2 et seq. In addition, the clerk appendix shall include the order granting certification, the opinion or order of the Appellate Court under review and, to the extent the appellate clerk deems appropriate, any papers subsequently filed pursuant to Section 84-11.

(Adopted July 19, 2022, to take effect Jan. 1, 2023.)

Sec. 84-11. Papers To Be Filed by Appellant and Appellee in an Appeal After Certification

(Amended July 19, 2022, to take effect Jan. 1, 2023.)

(a) Within ten days of filing the appeal, the appellant shall also file a docketing statement pursuant to Section 63-4 (a) (4) and a designation of the proposed contents of the clerk appendix pursuant to Section 63-4 (a) (2). The parties shall not file other Section 63-4 papers on a certified appeal without permission of the Supreme Court.

(b) Within ten days of the filing of the appeal, the appellee may file a statement of alternative grounds for affirmance, provided that the appellee briefed such alternative grounds in the Appellate Court. If such alternative grounds for affirmance were not raised in the Appellate Court, the appellee seeking to raise them in the Supreme Court must move for permission to do so prior to the filing of the appellee's brief.

(c) Within thirty days of the filing of the appeal, any party to the appeal may seek permission to present for review: (1) adverse rulings or decisions which, in the interest of judicial economy, should be considered in the event of a remand for further proceedings, provided that such party briefed such issues in the Appellate Court and (2) any claim that the relief afforded by the Appellate Court in its judgment should be modified, provided the arguments underlying such claim were briefed in the Appellate Court or raised in a motion for reconsideration.

(P.B. 1978-1997, Sec. 4140.) (Amended July 28, 1999, to take effect Jan. 1, 2000; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended Oct. 18, 2016, to take effect Jan. 1, 2017; amended July 19, 2022, to take effect Jan. 1, 2023; amended July 30, 2024, to take effect Jan. 1, 2025.)

Sec. 84-12. Applicability of Rules

The rules governing other appeals shall, so far as applicable, and to the extent they have not been modified by this chapter, be the rules for all proceedings subsequent to the granting of certification.

(P.B. 1978-1997, Sec. 4141.)

CHAPTER 84a

MATTERS WITHIN SUPREME COURT'S ORIGINAL JURISDICTION IN WHICH FACTS MAY BE FOUND

Sec.
84a-1. Application of Rules
84a-2. Procedure for Filing Original Jurisdiction Action; Pleadings and Motions
84a-3. Discovery
84a-4. Reference of Issues of Fact
84a-5. Evidence
84a-6. Other Officers

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 84a-1. Application of Rules

These rules apply only to an action within the original jurisdiction of the Supreme Court in which facts may be found.

These rules do not apply to (1) a motion to invoke the court's supervisory powers under Section 60-2 of these rules, or (2) certified questions of law from courts of other jurisdictions under Chapter 82 of these rules.

(Adopted June 2, 2005, to take effect Jan. 1, 2006.)

Sec. 84a-2. Procedure for Filing Original Jurisdiction Action; Pleadings and Motions

(Amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

An original jurisdiction action shall be filed in accordance with the procedures for filing an appeal as set forth in Section 63-3. Motions and any other documents prescribed in the rules of appellate procedure shall be filed in accordance with the rules of appellate procedure. In all other respects and unless otherwise ordered in a particular case, pleadings and motions shall be filed in accordance with the Superior Court rules of procedure, which may be taken as a guide to procedure in an original action in this court.

(Adopted June 2, 2005, to take effect Jan. 1, 2006; amended Sept. 16, 2015, to take effect Jan. 1, 2016; amended June 15, 2021, to take effect Jan. 1, 2022.)

Sec. 84a-3. Discovery

The rules of practice pertaining to discovery shall not apply in original actions in the Supreme Court except to the extent expressly authorized by the court in a particular case.

(Adopted June 2, 2005, to take effect Jan. 1, 2006.)

Sec. 84a-4. Reference of Issues of Fact

(a) **Reference**

Issues of fact closed on pleadings in an original action in the Supreme Court may be referred, by order of the chief justice or his or her designee, to a senior judge, justice or judge trial referee or, should the parties agree, to any other person or persons, which referral may contain such provisions as the court deems advisable.

(b) **Procedure**

Unless otherwise ordered by the court, if any reference is made pursuant to subsection (a), the rules of practice pertaining to references in Chapter 19 of these rules shall apply.

(c) **Costs of references**

The court may allocate the costs of the reference in its discretion.

(Adopted June 2, 2005, to take effect Jan. 1, 2006.)

Sec. 84a-5. Evidence

The Connecticut Code of Evidence may be taken as a guide to the admission of evidence in an original action in the Supreme Court.

(Adopted June 2, 2005, to take effect Jan. 1, 2006.)

Sec. 84a-6. Other Officers

The court may appoint such other officers as the court deems advisable in carrying out its original jurisdiction. The costs of such officers shall be taxed in accordance with Section 84a-4 (c).

(Adopted June 2, 2005, to take effect Jan. 1, 2006.)

CHAPTER 85

SANCTIONS

Sec.
85-1. Lack of Diligence in Prosecuting or Defending Appeal
85-2. Other Actions Subject to Sanctions
85-3. Procedure on Sanctions

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 85-1. Lack of Diligence in Prosecuting or Defending Appeal

If a party shall fail to prosecute an appeal with proper diligence, the court may dismiss the appeal with costs. If a party shall fail to defend against an appeal with proper diligence, the court may set aside in whole or in part the judgment under attack, with costs, and direct the entry of an appropriate final judgment by the trial court against the party guilty of the failure. If that party is a defendant in the action, the directed judgment may be in the nature of a judgment by default for such amount as may, upon a hearing in damages, be found to be due. If that party is a plaintiff in the action, the directed judgment may be one dismissing the action as to that plaintiff, and the judgment shall operate as an adjudication upon the merits. The statutory provisions regarding the opening of judgments of nonsuit and by default shall not apply to a judgment directed under the provisions of this rule.

(P.B. 1978-1997, Sec. 4184A.)

Sec. 85-2. Other Actions Subject to Sanctions

Actions which may result in the imposition of sanctions include, but are not limited to, the following:

(1) Failure to comply with rules and orders of the court.

(2) Filing of any papers which unduly delay the progress of an appeal.

(3) Presentation of unnecessary or unwarranted motions or opposition to motions.

(4) Presentation of unnecessary or unwarranted issues on appeal.

(5) Presentation of a frivolous appeal or frivolous issues on appeal.

(6) Presentation of a frivolous defense or defenses on appeal.

(7) Failure to attend preargument settlement conferences.

(8) Failure to appear at oral argument.

(9) Disregard of rules governing withdrawal of appeals.

(10) Repeated failures to meet deadlines.

Offenders will be subject, at the discretion of the court, to appropriate discipline, including the prohibition against appearing in the court or filing any papers in the court for a reasonable and definite period of time, the imposition of a fine pursuant to General Statutes § 51-84, and costs and payment of expenses, together with attorney's fees to the opposing party.

The sanction of prohibition against filing any papers in the court shall not prevent an offender from filing a motion for reconsideration of that sanction within seven days.

Offenders subject to such discipline include both counsel and self-represented parties and, if appropriate, parties represented by counsel.

(P.B. 1978-1997, Sec. 4184B.) (Amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

Sec. 85-3. Procedure on Sanctions

Sanctions may be imposed by the court, on its own motion, or on motion by any party to the appeal. A motion for sanctions may be filed at any time, but a request for sanctions may not be included in an opposition to a motion, petition or application. Before the court imposes any sanction on its own motion, it shall provide notice to the parties and an opportunity to respond.

(P.B. 1978-1997, Sec. 4184C.) (Amended Jan. 31, 2013, to take effect April 19, 2013; amended Oct. 18, 2017, to take effect Jan. 1, 2018.)

CHAPTER 86

RULE CHANGES; EFFECTIVE DATE; APPLICABILITY

Sec. 86-1. Publication of Rules; Effective Date
Sec. 86-2. Rule Changes; Applicability to Pending Appeals

For previous Histories and Commentaries see the editions of the Practice Book corresponding to the years of the previous amendments.

Sec. 86-1. Publication of Rules; Effective Date

(a) Before the justices of the Supreme Court and the judges of the Appellate Court adopt a new rule or change to an existing rule, the proposed rule or change, or a summary thereof, shall be published in the Connecticut Law Journal with notice stating the time when, the place where, and the manner in which interested parties may present their views on the proposed rule or change.

(b) Any new rule or change to an existing rule adopted by the justices and judges shall be published in the Connecticut Law Journal. The new rule or change shall become effective as of the date that the justices and judges prescribe, but not less than sixty days after such publication. The justices and judges may waive the sixty day provision if they determine that circumstances require that a new rule or change to an existing rule be adopted expeditiously.

(c) The justices and the judges may waive the provisions of subsection (a) if they determine that the circumstances require that a new rule or change to an existing rule be adopted expeditiously, provided that adoption in connection with such a waiver shall be on an interim basis. The justices and judges shall prescribe an effective date for any new rule or change adopted on an interim basis, and such rule or change shall be published in the Connecticut Law Journal before the interim rule becomes effective. Thereafter, notice shall be published in the Connecticut Law Journal stating the time when, the place where, and the manner in which interested parties may present their views on the interim rule or change, after which the justices and judges may finally adopt the rule or change in accordance with subsection (b).

(P.B. 1978-1997, Sec. 4188.) (Amended May 12, 2004, to take effect Jan. 1, 2005; amended July 23, 2020, to take effect Jan. 1, 2021.)

Sec. 86-2. Rule Changes; Applicability to Pending Appeals

Whenever a new rule is adopted or a change is made to an existing rule, the new rule or rule change shall apply to all appeals pending on the effective date of the new rule or rule change and to all appeals filed thereafter. Appellate papers filed prior to the effective date of any new rule or rule change need not be refiled.

Any difficulty occasioned by the application of a new rule or rule change to appeals filed prior to the effective date thereof shall be resolved in the spirit of Section 60-1.

(P.B. 1978-1997, Sec. 4189.) (Amended July 26, 2000, to take effect Jan. 1, 2001; amended Sept. 16, 2015, to take effect Jan. 1, 2016.)

REFERENCE TABLE

Rules in the Practice Book of 1978 as amended* to Rules in the Pracice Book of 1998. The numbers in the center column are the temporary rule numbers assigned in the Connecticut Law Journal (CLJ) of July 29, 1997.

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
1		1-1
None	1A	1-2
2		1-3
3		1-4
4		1-5
5		1-6
5A		1-7
6		1-8
7		1-9
7A Title		None
7B		1-10
7C		1-11
8		2-1
9		2-2
10 Title		None
11.		2-3
12.		2-4
13.		2-5
14.		2-6
15A		2-7
16.		2-8
17.		2-9
18.		2-10
18A		2-11
19.		2-12
20 Title		None
21.		2-13
22.		2-14
23.		2-15
24.		2-16
24A Title		None
24B		2-17
24C		2-18
24D		2-19
24E		2-20
24F		2-21
25.		2-22
26.		2-23
26A		2-24
26B		2-25
27.		2-26
27A		2-27
27A.1		2-28
27B		2-29
27C Title		None
27D		2-30
27E		2-31
27F		2-32
27G		2-33
27H		2-34
27J		2-35
27M.		2-36
27M.1		2-37
27N		2-38
28 Title		None
28A		2-39
28B		2-40
28B.1		2-41
28C		2-42
28D		2-43
29.		2-44
30.		2-45
30A		2-46
31.		2-47
31A		2-48
31B		2-49
32.		2-50
34.		2-51
35.		2-52
36.		2-53
36A		2-54
37.		2-55
38 Title		None
39.		2-56
40.		2-57
41.		2-58
42.		2-59
44.		2-60
45.		2-61
46.		2-62
46A		2-63
46B		2-64
46C		2-65
47.		2-66
48.		2-67
48A		None
49.		8-1
50.		8-2
51.		8-3
52.		8-4
53.		8-5
54.		8-6
55.		8-7
56.		8-8
57.		8-9
58.		8-10
59.		8-11
60.		8-12
63 Title		None
64(a)	7P	3-1
64(b)	7Q	3-2
64(b)	7R	3-3
64(c)	7S	3-4
None	7T	3-5
None	7U	3-6
None	7V	3-7
65.	7W	3-8
68.	7CC	3-14
69.	7DD	3-15
70.	7EE	3-16

* Rules repealed prior to 1995 are not represented in this table.

P.B. 1978-1997 Sec.	CLJ	P.B. 1988 Sec.
71.	7FF	3-17
72.	7GG	3-18
73.	7HH	3-19
74.	7II.	3-20
75.	7JJ	3-21
76.	7Z	3-11
77.	7X	3-9
77(d)	7Y	3-10
78.	7AA	3-12
79.	7BB	3-13
80.		9-1
81.		9-2
82 Title		None
83.		9-3
84.		9-4
84A		9-5
85.		9-6
86 Title		None
87.		9-7
88.		9-8
89.		9-9
90.		9-10
91.		9-11
92.		9-12
93.		9-13
94.		9-14
95.		9-15
96.		9-16
97.		9-17
98 Title		None
99.		9-18
100		9-19
101		9-20
102		9-12
103		9-22
104		9-23
105		9-24
106		9-25
107 Title		None
108		10-1
109		10-2
109A		10-3
110		10-4
111		10-5
112		10-6
113		10-7
114		10-8
115		10-9
116		10-10
117		10-11
118	7KK	4-1
119	7LL	4-2
120 Title		None
121		10-12
122		10-13
123		10-14
124		10-15
125		10-16
126		10-17
127	7MM	4-3

P.B. 1978-1997 Sec.	CLJ	P.B. 1988 Sec.
128		10-18
129		10-19
130 Title		None
131		10-20
132 Title		None
133		10-21
134		10-22
135		10-23
136		10-24
137		10-25
138		10-26
139		10-27
140		10-28
141		10-29
142		10-30
143		10-31
144		10-32
145		10-33
146		10-34
147		10-35
148		10-36
149		10-37
150		10-38
151 Title		None
152		10-39
153		10-40
154		10-41
155		10-42
156		10-43
157		10-44
158		10-45
159 Title		None
160		10-46
161		10-47
162		10-48
163		10-49
164		10-50
165		10-51
166		10-52
167		10-53
168		10-54
169		10-55
170 Title		None
171		10-56
172		10-57
173		10-58
174 Title		None
175		10-59
176		10-60
177		10-61
178		10-62
179		10-63
180		10-64
181		10-65
182		10-66
183		10-67
184 Title		None
185		10-68
186		10-69
187		10-70

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
189		10-71
190		10-72
191		10-73
192		10-74
193		10-75
194		10-76
195		10-77
195A		10-78
195B		10-79
196		11-1
197		11-2
198		11-3
199		11-4
200		11-5
201		11-6
202		11-7
202A		11-8
203		11-9
204		11-10
204A		11-11
204B		11-12
205 Title		None
206		11-13
207		11-14
208		11-15
209		11-16
210		11-17
211		11-18
211A		11-19
211B		11-20
212		12-1
213		12-2
215		12-3
216		13-1
217 Title		None
218		13-2
219		13-3
220		13-4
221		13-5
222 Title		None
223		13-6
224		13-7
225		13-8
226 Title		None
227		13-9
228		13-10
229		13-11
230		13-12
230A		13-13
231		13-14
232		13-15
233		13-16
234		13-17
235		13-18
236		13-19
236A		13-20
236B		13-21
237 Title		None
238		13-22
239		13-23
240		13-24
241		13-25
242 Title		None
243		13-26
244		13-27
245		13-28
246		13-29
247		13-30
248		13-31
249		13-32
250	7CCC	7-1
250A		14-1
250B		14-2
251		14-3
252 Title		None
253		None
254		14-4
255		14-5
256		14-6
257		14-7
258		14-8
259		14-9
260		14-10
262 Title		None
263		14-11
264		14-12
265		14-13
267		None
268		14-14
269 Title		None
270		14-15
271		14-16
272		None
273		14-17
274		14-18
274A		14-19
276		14-20
277		14-21
278		14-22
279		14-23
280		14-24
281		14-25
282		None
283		15-1
284		15-2
284A		15-3
285A	7NN	5-1
286	7PP	5-3
287	7QQ	5-4
288	7RR	5-5
289	7SS	5-6
290		15-4
291	7TT	5-7
292 Title		None
293	7UU	5-8
294	7VV	5-9
295		15-5
296		15-6
297		15-7
299	7D	1-12

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
300	7F	1-13
301		None
302		15-8
303		16-4(c)
303A		16-1
None	303B	16-2
None	303C	16-3
304		16-4
None	304A	16-5
305		16-6
305A		16-7
None	305B	16-8
306		16-9
307		16-10
308		16-11
None	308A	16-12
309		16-13
309A		16-14
309B		16-15
None	309C	16-16
311		16-17
312		16-18
313		16-19
314 Title		None
315		16-20
316		16-21
317		16-22
318		16-23
318A		16-24
None	318B	16-25
None	318C	16-26
None	318D	16-27
None	318E	16-28
None	318F	16-29
None	318G	16-30
None	318H	16-31
None	318I.	16-32
None	318J	16-33
None	318K	16-34
319 Title		None
320		16-35
320A		16-36
321		16-37
322		16-38
323		17-1
324		17-2
325		17-3
326		17-4
327		17-5
328		17-6
329		None
330		None
331 Title		None
332		17-7
333		17-8
334		17-9
334A	7XX	6-1
335 Title		None
336	7YY	6-2
337	7ZZ	6-3

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
333	7AAA	6-4
339	7BBB	6-5
340		17-10
341 Title		None
342		17-11
343		17-12
344		17-13
345 Title		None
346		17-14
347		17-15
348		17-16
349		17-17
350		17-18
351		17-19
352		17-20
353		17-21
354		17-22
355 Title		None
356		17-23
357		17-24
358		17-25
359		17-26
360		17-27
360A		None
361		17-28
362		17-29
362A		17-30
363		17-31
363A		17-32
364		17-33
365 Title		None
367		17-34
368		17-35
369		17-36
370		None
371		17-37
372		17-38
373		17-39
374		17-40
375		17-41
376		17-42
377		17-43
378 Title		None
379		17-44
380		17-45
381		17-46
382		17-47
383		17-48
384		17-49
385		17-50
386		17-51
387		17-52
387A		17-53
388 Title		None
389		17-54
390		17-55
391		17-56
392		17-57
393		17-58
394		17-59

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
395	7DDD	7-2
395A		7-19
396	7EEE	7-3
397	7FFF	7-4
397A		7-20
397B	7TTT	7-18
398	7GGG	7-5
399	7HHH	7-6
400	7III	7-7
401		7-21
402	7JJJ	7-8
403	7KKK	7-9
403A Title		None
403B	7LLL	7-10
403C	7MMM	7-11
403D	7NNN	7-12
403E	7OOO	7-13
403F	7PPP	7-14
403G	7QQQ	7-15
403H	7RRR	7-16
405	7SSS	7-17
406		None
407		18-1
408		None
409		18-2
410		18-3
411		18-4
412		18-5
413		18-6
414		18-7
415		18-8
416		18-9
417		18-10
418		18-11
419		18-12
420		18-13
421		18-14
422		18-15
423		18-16
424		18-17
425		18-18
427		18-19
428		19-1
429		19-2
430		19-3
430A		19-4
431		19-5
432		19-6
433		19-7
434		19-8
435		19-9
436		19-10
437		19-11
438		19-12
439		19-13
440		19-14
441		19-15
442		19-16
443		19-17
444		19-18
445		19-19
446		20-1
447		20-2
448		20-3
449		20-4
450		20-5
451		20-6
452 Title		None
453	1201	25-2
454	1207	25-7
455	1208	25-8
456	1209	25-9
457	1210	25-10
458	1255	25-53
459		None
460		None
461	1229	25-28
462	1230	25-29
463	1231	25-30
464	1227	25-26
464A	1236	25-35
465 Title		None
466		None
467		None
468		None
469		None
470		None
471		None
472	1237	25-36
473	1238	25-37
474		None
475		None
476	1259	25-57
477	1260	25-58
478	1261	25-59
479	1262	25-60
479A	1267	25-65
479B	1268	25-66
481	1269	25-67
481A	1271	25-69
484	1264	25-62
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484B	1266	25-64
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P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
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546J		23-58
546K		23-59
546L Title		None
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P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
572		24-21
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576 Title		None
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P.B. 1978-1997 CLJ Sec.	P.B. 1998 Sec.
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P.B. 1978-1997 CLJ Sec.	P.B. 1998 Sec.
763	40-21
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817	41-10
818	41-11
820 Title	None
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822	41-13

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
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845A		42-8
845B		42-9
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850B		42-15
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935		43-22

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
936 Title		None
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1031.1(2)		30-6

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
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1041.1(4)		32-9
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1042.1(3)		33-2
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[479]	1262	25-60

P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
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[484B]	1266	25-64
[479A]	1267	25-65
[479B]	1268	25-66
[481]	1269	25-67
[484C]	1270	25-68
[481A]	1271	25-69
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4064J		67-10
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4096		68-11
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4101		69-2
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P.B. 1978-1997 Sec.	CLJ	P.B. 1998 Sec.
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4166		77-7
4166A		78-1
4166B		79-1
4166B.1		79-2
4166B.2		79-3
4166B.3		79-4
4166C		80-1
4168		82-1
4169		82-2
4170		82-3
4171		82-4
4172		82-5
4173		82-6
4174		82-7
4177		83-1
4178		83-2
4179		83-3
4180		83-4
4182		60-1
4183		60-2
4184A		85-1
4184B		85-2
4184C		85-3
4185		60-5
4186		60-6
4187		60-3
4188		86-1
4189		86-2

REFERENCE TABLE

Rules in the Practice Book of 1998 from Rules in the Practice Book of 1978 as amended.* The numbers in the center column are the temporary rule numbers assigned in the Connecticut Law Journal (CLJ) of July 29, 1997.

P.B. 1998 Sec.	**CLJ** Sec.	**P.B. 1979-1997** Sec.
1-1		1
1-2	1A	None
1-3		2
1-4		3
1-5		4
1-6		5
1-7		5A
1-8		6
1-9		7
1-10		7B
1-11		7C
1-12	7D	299
1-13	7F	300
1-14	7F	985
1-15	7G	986
1-16	7H	988
1-17	7I	989
1-18	7J	991
1-19	7K	992
1-20	7L	993
1-21	7M	994
1-22	7N	996
1-23	7O	997
2-1		8
2-2		9
2-3		11
2-4		12
2-5		13
2-6		14
2-7		15A
2-8		16
2-9		17
2-10		18
2-11		18A
2-12		19
2-13		21
2-14		22
2-15		23
2-16		24
2-17		24B
2-18		24C
2-19		24D
2-20		24E
2-21		24F
2-22		25
2-23		26
2-24		26A
2-25		26B
2-26		27
2-27		27A
2-28		27A.1
2-29		27B
2-30		27D

P.B. 1998 Sec.	**CLJ** Sec.	**P.B. 1978-1997** Sec.
2-31		27E
2-32		27F
2-33		27G
2-34		27H
2-35		27J
2-36		27M
2-37		27M.1
2-38		27N
2-39		28A
2-40		28B
2-41		28B.1
2-42		28C
2-43		28D
2-44		29
2-45		30
2-46		30A
2-47		31
2-48		31A
2-49		31B
2-50		32
2-51		34
2-52		35
2-53		36
2-54		36A
2-55		37
2-56		39
2-57		40
2-58		41
2-59		42
2-60		44
2-61		45
2-62		46
2-63		46A
2-64		46B
2-65		46C
2-66		47
2-67		48
3-1	7P	64(a)
3-2	7Q	64(b)
3-3	7R	64(b)
3-4	7S	64(c)
3-5	7T	None
3-6	7U	None
3-7	7V	None
3-8	7W	65
3-9	7X	77
3-10	7Y	77(d)
3-11	7Z	76
3-12	7AA	78
3-13	7BB	79
3-14	7CC	68
3-15	7DD	69
3-16	7EE	70

* Rules repealed prior to 1995 are not represented in this table.

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
3-17	7FF	71
3-18	7GG	72
3-19	7HH	73
3-20	7II	74
3-21	7JJ	75
4-1	7KK	118
4-2	7LL	119
4-3	7MM	127
5-1	7NN	285A
5-2		None
5-3	7PP	286
5-4	7QQ	287
5-4	7QQ	875
5-5	7RR	288
5-5	7RR	850A
5-6	7SS	289
5-7	7TT	291
5-8	7UU	293
5-9	7VV	294
5-10	7WW	983
6-1	7XX	334A
6-2	7YY	336
6-3	7ZZ	337
6-4	7AAA	338
6-5	7BBB	339
7-1	7CCC	250
7-2	7DDD	395
7-3	7EEE	396
7-4	7FFF	397
7-5	7GGG	398
7-6	7HHH	399
7-7	7III	400
7-8	7JJJ	402
7-9	7KKK	403
7-10	7LLL	403B
7-11	7MMM	403C
7-12	7NNN	403D
7-13	7OOO	403E
7-14	7PPP	403F
7-15	7QQQ	403G
7-16	7RRR	403H
7-17	7SSS	405
7-18	7TTT	397B
7-18	7TTT	1011E
7-19		395A
7-20		397A
7-21		401
8-1		49
8-2		50
8-3		51
8-4		52
8-5		53
8-6		54
8-7		55
8-8		56
8-9		57
8-10		58
8-11		59
8-12		60
9-1		80

P.B. 1998 Sec.	CLJ Sec.	P.B. 1978-1997 Sec.
9-2		81
9-3		83
9-4		84
95		84A
9-6		85
9-7		87
9-8		88
9-9		89
9-10		90
9-11		91
9-12		92
9-13		93
9-14		94
9-15		95
9-16		96
9-17		97
9-18		99
9-19		100
9-20		101
9-21		102
9-22		103
9-23		104
9-24		105
9-25		106
10-1		108
10-2		109
10-3		109A
10-4		110
10-5		111
10-6		112
10-7		113
10-8		114
10-9		115
10-10		116
10-11		117
10-12		121
10-13		122
10-14		123
10-15		124
10-16		125
10-17		126
10-18		128
10-19		129
10-20		131
10-21		133
10-22		134
10-23		135
10-24		136
10-25		137
10-26		138
10-27		139
10-28		140
10-29		141
10-30		142
10-31		143
10-32		144
10-33		145
10-34		146
10-35		147
10-36		148

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
10-37		149
10-38		150
10-39		152
10-40		153
10-41		154
10-42		155
10-43		156
10-44		157
10-45		158
10-46		160
10-47		161
10-48		162
10-49		163
10-50		164
1051		165
10-52		166
10-53		167
10-54		168
10-55		169
10-56		171
10-57		172
10-58		173
10-59		175
10-60		176
10-61		177
10-62		178
10-63		179
10-64		180
10-65		181
10-66		182
10-67		183
10-68		185
10-69		186
10-70		187
10-71		189
10-72		190
10-73		191
10-74		192
10-75		193
10-76		194
10-77		195
10-78		195A
10-79		195B
11-1		196
11-2		197
11-3		198
11-4		199
11-5		200
11-6		201
11-7.		202
11-8.		202A
11-9.		203
11-10		204
11-11		204A
11-12		204B
11-13		206
11-14		207
11-15		208
11-16		209
11-17		210

P.B. 1998 Sec.	CLJ Sec.	P.B. 1978-1997 Sec.
11-18		211
11-19		211A
11-20		211B
12-1.		212
12-2.		213
12-3.		215
13-1.		216
13-2.		218
13-3.		219
13-4.		220
13-5.		221
13-6.		223
13-7.		224
13-8.		225
13-9.		227
13-10		228
13-11		229
13-12		230
13-13		230A
13-14		231
13-15		232
13-16		233
13-17		234
13-18		235
13-19		236
13-20		236A
13-21		236B
13-22		238
13-23		239
13-24		240
13-25		241
13-26		243
13-27		244
13-28		245
13-29		246
13-30		247
13-31		248
13-32		249
14-1		250A
14-2		250B
14-3.		251
14-4.		254
14-5.		255
14-6.		256
14-7.		257
14-8.		258
14-9.		259
14-10		260
14-11		263
14-12		264
14-13		265
14-14		268
14-15		270
14-16		271
14-17		273
14-18		274
14-19		274A
14-20		276
14-21		277
14-22		278

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
14-23		279
14-24		280
14-25		281
15-1		283
15-2		284
15-3		284A
15-4		290
15-5		295
15-6		296
15-7		297
15-8		302
16-1		303A
16-2	303B	None
16-3.	303C	None
16-4(a), (b)		304
16-4(c)		303
16-5	304A	None
16-6		305
16-7		305A
16-8	305B	None
16-9		306
16-10		307
16-11		308
16-12	308A	None
16-13		309
16-14		309A
16-15		309B
16-16	309C	None
16-17		311
16-18		312
16-19		313
16-20		315
16-21		316
16-22		317
16-23		318
16-24		318A
16-25	318B	None
16-26	318C	None
16-27	318D	None
16-28	318E	None
16-29	318F	None
16-30	318G	None
16-31	318H	None
16-32	318I.	None
16-33	318J	None
16-34	318K	None
16-35		320
16-36		320A
16-37		321
16-38		322
17-1		323
17-2		324
17-3		325
17-4		326
17-5		327
17-6		328
17-7		332
17-8		333
17-9		334
17-10		340

P.B. 1998 Sec.	CLJ Sec.	P.B. 1978-1997 Sec.
17-11		342
17-12		343
17-13		344
17-14		346
17-15		347
17-16		348
17-17		349
17-18		350
17-19		351
17-20		352
17-21		353
17-22		354
17-23		356
17-24		357
17-25		358
17-26		359
17-27		360
17-28		361
17-29		362
17-30		362A
17-31		363
17-32		363A
17-33		364
17-34		367
17-35		368
17-36		369
17-37		371
17-38		372
17-39		373
17-40		374
17-41		375
17-42		376
17-43		377
17-44		379
17-45		380
17-46		381
17-47		382
17-48		383
17-49		384
17-50		385
17-51		386
17-52		387
17-53		387A
17-54		389
17-55		390
17-56		391
17-57		392
17-58		393
17-59		394
18-1		407
18-2		409
18-3		410
18-4		411
18-5		412
18-6		413
18-7		414
18-8		415
18-9		416
18-10		417
18-11		418

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
18-12		419
18-13		420
18-14		421
18-15		422
18-16		423
18-17		424
18-18		425
18-19		427
19-1		428
19-2		429
19-3		430
19-4		430A
19-5		431
19-6		432
19-7		433
19-8		434
19-9		435
19-10		436
19-11		437
19-12		438
19-13		439
19-14		440
19-15		441
19-16		442
19-17		443
19-18		444
19-19		445
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20-2		447
20-3		448
20-4		449
20-5		450
20-6		451
21-1		485
21-2		486
21-3		487
21-4		488
21-5		489
21-6		490
21-7		492
21-8		493
21-9		494
21-10		495
21-11		496
21-12		497
21-13		498
21-14		499
21-15		500
21-16		501
21-17		502
21-18		503
21-19		505
21-20		506
21-21		507
21-22		508
21-23		509
21-24		510
22-1		511A
22-2		511B
22-3		514
22-4		515A
22-5		516
22-6		516A
22-7		518
22-8		518A
22-9		519
23-1		525
23-2		525A
23-3		525B
23-4		525C
23-5		525D
23-6		525E
23-7		525F
23-8		525G
23-9		525H
23-10		525I
23-11		525J
23-12		525K
23-13	526L	None
23-14	526M	None
23-15	526N	None
23-16		526
23-17		526A
23-18		527
23-19		528
23-20		528A
23-21		529
23-22		529A
23-23		529B
23-24		529C
23-25		529D
23-26		529E
23-27		529F
23-28		529G
23-29		529H
23-30		529I
23-31		529J
23-32		529K
23-33		529L
23-34		529M
23-35		529N
23-36		529O
23-37		529P
23-38		529Q
23-39		529R
23-40		529S
23-41		529T
23-42		529U
23-43		538
23-44		539
23-45		541
23-46		542
23-47		543
23-48		544
23-49		545
23-50		546
23-51		546A
23-52		546C
23-53		546D
23-54		546E

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
23-55		546F
23-56		546G
23-57		546H
23-58		546J
23-59		546K
23-60		546M
23-61		546N
23-62		546O
23-63		546P
23-64		546Q
23-65		546R
23-66		546S
23-67		546T
24-1		547
24-2		548
24-3		549
24-4		550
24-5		551
24-6		552
24-7		553
24-8		556
24-9		557
24-10		559
24-11		561
24-12		562
24-13		563
24-14		564
24-15		565
24-16		567
24-17		568
24-18		569
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24-21		572
24-22		574
24-23		575
24-24		577
24-25		578
24-26		579
24-27		580
24-28		581
24-29		582
24-30		583
24-31		584
24-32		585
24-33		590
25-1	1200	None
25-2	1201	453
25-3	1202	None
25-4	1203	None
25-5	1204	None
25-6	1205	None
25-7	1207	454
25-8	1208	455
25-9	1209	456
25-10	1210	457
25-11	1211	None
25-12	1212	None
25-13	1213	None
25-14	1214	None
25-15	1215	None
25-16	1217	None
25-17	1218	None
25-18	1219	None
25-19	1220	None
25-20	1221	None
25-21	1222	None
25-22	1223`	None
25-23	1224	None
25-24	1225	None
25-25	1226	None
25-26	1227	464
25-27	1228	None
25-28	1229	461
25-29	1230	462
25-30	1231	463
25-31	1232	None
25-32	1233	None
25-33	1234	None
25-34	1235	None
25-35	1236	464A
25-36	1237	472
25-37	1238	473
25-38	1239	None
25-39	1240	None
25-40	1242	None
25-41	1243	None
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25-50	1252	None
25-51	1253	None
25-52	1254	None
25-53	1255	458
25-54	1256	None
25-55	1257	None
25-56	1258	None
25-57	1259	476
25-58	1260	477
25-59	1261	478
25-60	1262	479
25-61	1263	None
25-62	1264	484
25-63	1265	484A
25-64	1266	484B
25-65	1267	479A
25-66	1268	479B
25-67	1269	481
25-68	1270	484C
25-69	1271	484A
26-1		1023.1
27-1		1024.1(1)
27-2		1024.1(2)
27-3		1025.1(1)
27-4		1025.1(2)

P.B. 1998 Sec.	CLJ Sec.	P.B. 1978-1997 Sec.

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
27-5		1025.1(3)
27-5		1025.1(4)
27-6		1025.1(8)
27-6		1025.1(9)
27-7		1025.1(5)
27-7		1025.1(6)
27-8		1025.1(7)
28-1		1026.1
29-1		1027.1(1)
29-1		1027.1(2)
29-2		1027.1(3)
29-2		1027.1(4)
30-1		1030.1(1)
30-2		1030.1(2)
30.3.		1030.1(3)
30.4.		1030.1(4)
30.5.		1031.1(1)
30-6		1031.1(2)
30-7		1031.1(3)
30-8		1031.1(4)
30-9		1032.1(1)
30-10		1032.1(2)
30-10		1032.1(3)
30-11		1032.1(4)
31-1		1033.1(1)
31-1		1033.1(2)
31-1		1033.1(3)
31-2		1033.1(4)
31-3		1033.1(5)
31-4		1033.1(6)
31-5		1034.1(1)
31-6		1034.1(2)
31-6		1034.1(3)
31-7		1034.1(4)
31-8		1034.1(5)
31-9		1034.1(6)
31-10		1035.1
31-11		1036.1
31-12		1037.1
31-13		1038.1
32-1		1040.1(1)
32-1		1040.1(2)
32-2		1040.1(3)
32-2		1040.1(4)
32-3		1040.1(5)
32-4		1040.1(6)
32-5		1040.1(7)
32-6		1041.1(1)
32-7		1041.1(2)
32-8		1041.1(3)
32-9		1041.1(4)
33-1		1042.1(1)
33-1		1042.1(2)
33-2		1042.1(3)
33-3		1042.1(4)
33-3		1042.1(6)
33-4		1042.1(5)
33-5		1043.1(1)
33-5		1043.1(2)
33-6		1043.1(3)
33-7		1043.1(4)
33-8		1044.1
33-9		1045.1(1)
33-10		1045.1(2)
33-11		1045.1(3)
33-12		1046.1
33-13		1047.1
34-1		1048.1
34.2.		1049.1
34.3.		1050.1
34-4		1051.1
35-1		1055.1
35-2		1057.1
35-3		1058.1
35-4		1059.1
35-5		1060.1
36-1		593
36-2		593A
36-3		594
36-4		595
36-5		596
36-6		597
36-7		599
36-8		601
36-9		602
36-10		603
36-11		616
36-12		617
36-13		618
36-14		619
36-15		620
36-16		622
36-17		623
36-18		624
36-19		625`
36-20		626
36-21		627
36-22		628
37-1		635
37-2		635A
37-3		637
37-4		638
37-5		640
37-6		641
37-7		643
37-8		644
37-9		645
37-10		647
37-11		648
37-12		650
38-1		654
38-2		656
38-3		657
38-4		658
38-5		659
38-6		661
38-7		663
38-8		664
38-9		665
38-10		666

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
38-11		668
38-12		669
38-13		673
38-14		674
38-15		675
38-16		675A
38-17		676
38-18		677
38-19		682
38-20		683
38-21		684
38-22	684A	None
38-29		685
39-1		687
39-2		688
39-3		689
39-4		690
39-5		692
39-6		693
39-7		694
39-8		696
39-9		697
39-10		698
39-11		700
39-12		701
39-13		702
39-14		704
39-15		705
39-16		706
39-17		707
39-18		709
39-19		711
39-20		712
39-21		713
39-22		715
39-23		716
39-24		717
39-25		718
39-26		720`
39-27		721
39-28		722
39-29		725
39-30		726
39-31		727
39-32		728
39-33		730
40-1		732
40-2		733
40-3		734
40-4		735
40-5		735A
40-6		737
40-7		737A
40-8		737B
40-9		738
40-10		739
40-11		741
40-12		742
40-13		743
40-14		746

P.B. 1998 Sec.	CLJ Sec.	P.B. 1978-1997 Sec.
40-15		749
40-16		754
40-17		758
40-18		759
40-19		760
40-20		760A
40-21		763
40-22		764
40-23		765
40-24		767
40-25		768
40-26		769
40-27		769A
40-28		770
40-29		771
40-30		772
40-31		773
40-32		776
40-33		777
40-34		778
40-35		779
40-36		780
40-37		781
40-38		782
40-39		783
40-40		785
40-41		786
40-42		787
40-43		788
40-44		791
40-45		792
40-46		793
40-47		794
40-48		795
40-49		796
40-50		797
40-51		798
40-52		799
40-53		800
40-54		801
40-55		802
40-56		803
40-57		804
40-58		805
41-1		807
41-2		808
41-3		809
41-4		810
41-5		811
41-6		812
41-7		813
41-8		815
41-9		816
41-10		817
41-11		818
41-12		821
41-13		822
41-14		823
41-15		824
41-16		825

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
41-17		826
41-18		828
41-19		829
41-20		831
41-21		832
41-22		833
41-23		835
41-24		836
41-25		837
42-1		839
42-2		840
42-3		841
42-4		842
42-5		843
42-6		844
42-7		845
42-8		845A
42-9		845B
42-10		846A
42-11		847
42-12		848
42-13		849
42-14		850
42-15		850B
42-16		852
42-17		853
42-18		854
42-19		854A
42-20		855
42-21		856
42-22		857
42-23		858
42-24		860
42-25		861
42-26		863
42-27		864
42-28		865
42-29		867
42-30		868
42-31		869
42-32		870
42-33		871
42-34		872
42-35		874
42-36		876
42-37		879
42-38		880
42-39		881
42-40		883
42-41		884
42-42		885
42-43		887
42-44		888
42-45		889
42-46		892
42-47		893
42-48		894
42-49		895
42-50		898
42-51		899
42-52		900
42-53		902
42-54		903
42-55		904
42-56		905
43-1		907
43-2		908
43-3		910
43-4		911
43-5		912
43-6		913
43-7		915
43-8		916
43-9		917
43-10		919
43-11		921
43-12		922
43-13		924
43-14		925
43-15		926
43-16		927
43-17		929
43-18		931
43-19		932
43-20		932A
43-21		934
43-22		935
43-23		937
43-24		938
43-25		939
43-26		940
43-27		941
43-28		942
43-29		943
43-30		945
43-31		947
43-32		948
43-33		950
43-34		952
43-35		953
43-36		954
43-37		955
43-38		956
43-39		956B
43-40		956C
43-41		956D
43-42		956E
43-43		956F
44-1		959
44-2		960
44-3		961
44-4		963
44-5		964
44-6		965
44-7		967
44-8		968
44-9		969
44-10		970
44-11		972
44-12		973

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
44-13		975
44-14		976
44-15		977
44-16		978
44-17		979
44-18		981
44-19		997A
44-20		998
44-21		1000
44-22		1002
44-23		1004
44-24		1005
44-25		1007
44-26		1008
44-27		1008A
44-28		1010
44-29		1011
44-30		1011D
44-31		1012A
44-32		1014
44-33		1015
44-34		1016
44-35		1017
44-36		1020A
44-37		1021
60-1		4182
60-2		4183
60-3		4187
60-4		4001A
60-5		4061
60-5		4185
60-6		4186
61-1		4000
61-2		4002A
61-3		4002B
61-4		4002C
61-5		4002D
61-6		4003
61-7		4004
61-8		4005
61-9		4006
61-10		4007
61-11		4046
61-12		4047
61-13		4048
61-14		4049
62-1		4028
62-2		4029
62-3		4031
62-4		4032
62-5		4033
62-6		4030
62-7		4014
62-8		4034
62-9		4035
62-10		4036
62-11		4037
63-1		4009
63-2		4010
63-3		4012

P.B. 1998 Sec.	CLJ Sec.	P.B. 1978-1997 Sec.
63-4		4013
63-5		4015
63-6		4017
63-7		4018
63-8		4019
63-9		4038
63-10		4103
64-1		4059
64-2		4060
65-1		4023
65-2		4024
		4135
65-3		4025
65-4		4027
66-1		4040
66-2		4041
66-3		4042
66-4		4043
66-5		4051
66-6		4053
66-7		4054
66-8		4056
67-1		4064
67-2		4064A
67-3		4064B
67-4		4064C
67-5		4064D
67-6		4064E
67-7		4064F
67-8		4064G
67-9		4064H
67-10		4064J
68-1		4084
68-2		4085
68-3		4086
68-4		4087
68-5		4090
68-6		4091
68-7		4092
68-8		4093
68-9		4094
68-10		4095
68-11		4096
69-1		4100
69-2		4101
69-3		4104
70-1		4106
70-2		4102
70-3		4107
70-4		4108
70-5		4109
70-6		4111
70-7		4112
70-8		4115
70-9		4116A
70-10		4116B
71-1		4117
71-2		4118
71-3		4119
71-4		4120

P.B. 1998 Sec.	CLJ Sec.	P.B. 1979-1997 Sec.
71.5		4121
71-6		4123
71-7		4050
72-1		4143
72-2		4143A
72-3		4144
72-4		4145
73-1		4147
74-1		4150
74-2		4151
74-3		4152
74-4		4153
74-5		4154
74-6		4155
74-7		4156
74-8		4157
75-1		4159
75-2		4160
75-3		4161
75-4		4162
75-5		4163
75-6		4164
76-1		4165
76-2		4165.1
76-3		4165.2
76-4		4165.4
76-5		4165.5
76-6		4165.6
77-1		4166
78-1		4166A
79-1		4166B
79-2		4166B.1
79-3		4166B.2
79-4		4166B.3

P.B. 1998 Sec.	CLJ Sec.	P.B. 1978-1997 Sec.
80-1		4166C
81-1		4142
81-2		4142.1
81-3		4142.2
81-4		4142.3
81-5		4142.4
82-1		4168
82-2		4169
82-3		4170
82-4		4171
82-5		4172
82-6		4173
82-7		4174
83-1		4177
83-2		4178
83-3		4179
83-4		4180
84-1		4126
84-2		4127
84-3		4128
84-4		4129
84-5		4130
84-6		4131
84-7		4132
84-8		4136
84-9		4138
84-10		4139
84-11		4140
84-12		4141
85-1		4184A
85-2		4184B
85-3		4184C
86-1		4188
86-2		4189

STATUTES NOTED

Wherever a statute has been mentioned in the rules of practice in this volume, it is noted in this table. The abbreviation Ch. signifies chapter.

Statutes	*P.B. 2026*
1-23	16-3
	16-8
	42-11
	42-14
1-24	23-68
1-25	16-3
	16-8
	42-11
	42-14
1-210 et seq.	14-7B
Ch. 54	14-5
4-177 (d)	14-7A
4-183 et seq.	.8-1
	14-6
	14-7A
4-183 (c)	.8-1
	14-7A
4-183 (g), (h), (i)	14-7A
Ch. 124	81-1
Ch. 124 through 134	14-5
8-8	14-7B
8-8 (i)	14-7B
8-8 (k)	14-7B
8-132	17-14
	17-18
12-103	14-7
	67-10A
12-117a	14-7
	67-10A
12-119	14-7
	67-10A
Title 14	44-25
14-219 (e)	44-23
17a-28	34a-20
17a-75	.31a-15
17a-101 through 17a-101e	.31a-14
17a-101g	.35a-14
17a-110 (b)	26-1
17a-111b (b)	.35a-15
17a-111b (c)	26-1
17a-274 (b), (g), (h)	.31a-15
17a-685	7-11
	43-40
17a-693 et seq.	43-40
17a-838	16-1
	42-10
17b-27	33a-7
17b-450	.31a-14
17b-451	.31a-14
19a-42a	33a-7
19a-131a	1-9B
Ch. 440	81-1
22a-43	14-7B
26-5	44-37

Statutes	*P.B. 2026*
28-9	1-9B
29-18	44-37
29-18a	44-37
29-19	44-37
31-290a	76-1
	76-2
	76-3
	76-4
	76-6
	84-4
31-290a (b)	66-6
	76-1
Ch. 669	24-6
38a-139	14-7
	68-10A
45a-79b	19-3A
45a-186	19-3A
45a-186 to 45a-193	10-76
45a-611	.35a-19
45a-612	.35a-19
45a-619	.35a-19
45a-716	33a-4
45a-719	.35a-18
45a-757	7-14
46b-1	1-10B
	5-11
	25-1
46b-11	77-1
46b-15	.4-5
	7-11
	25-1
	61-11
46b-16a	7-11
	61-11
46b-38a	38-4
46b-38c	5-11
	38-2
46b-49	77-1
46b-67	25-51
46b-67 (b)	25-50A
46b-81	25-50A
	61-11
46b-82	25-50A
46b-83	61-11
46b-115 et seq.	25-57
46b-120	26-1
	27-4A
46b-121	1-10B
	26-1
	34a-1
46b-121 (a)	.35a-22
46b-122	26-1
	77-1
46b-127	.31a-12
46b-128	29-1A
	29-2
46b-128 (b)	30-10
46b-129	.3-9

Statutes	*P.B. 2026*
	4-5
	35a-4
	35a-5
46b-129 (c)	33a-7
	35a-4
46b-129 (d)	35a-4
46b-129 (k)	26-1
	35a-14
46b-129 (k) (2)	35a-14
46b-129 (m)	35a-14
46b-129 (p)	35a-22
46b-129 (q)	35a-22
46b-129a (2)	33a-7
46b-133	30-1A
46b-133 (a), (b), (c), (d)	29-1A
46b-133 (e)	30-6
46b-133 (g)	30-10
46b-133b	26-1
46b-133e	26-1
46b-136	33a-7
	35a-4
46b-140	30a-5
	31a-15
46b-151h	30-2A
46b-215a	25a-30
46b-215b	25a-30
46b-220 through 46b-223	2-46
46b-220 (a)	2-46
46b-220 (b)	2-46
46b-231	25a-1A
	25a-29
46b-231 (s) (4)	25a-18
46b-301 through 46b-425	25a-27
46b-471	26-1
46b-475	25a-17
46b-483	25a-17
46b-488 (a) (3)	26-1
	32a-1
	33a-2
	33a-4
	33a-6
	33a-7
	35a-8
47-33	9-1
47a-14h	7-11
47a-68	1-7
	24-4
49-17	6-3
49-31*l*	10-12
Ch. 862	23-1
51-36a	31a-14
51-52	7-2
51-52a (b)	7-9
51-81b	2-16
	2-27
51-81c	2-68
	2-73
	9-9
51-81d (f)	2-76
51-84	1-25
	5-10
	85-2
51-88	2-33
	2-34A
	2-63
51-189	20-3
51-190a	20-4
51-193*l*	1-1
	23-68
51-195	43-3
	43-24
	44-10A
51-197a	24-28
51-199 (c)	65-1
	65-3
	76-5A
51-199b	82-1
	82-8
51-296	23-26
	44-4
51-296a	33a-7
51-297 (g)	37-6
51-345	24-4
51-345 (d)	24-4
51-345 (g)	24-4
51-346	24-4
51-347	24-4
51-347b	12-1
	12-3
52-11	9-24
52-48	14-6
52-52	11-7
52-69	9-1
52-73a	9-25
52-78	9-12
52-86	3-13
52-87	9-1
52-88	9-2
52-91	10-20
52-97	10-21
52-99	10-5
52-101	9-3
52-102	9-6
52-106	9-11
52-107	9-18
52-108	9-19
52-109	9-20
52-110	9-21
52-114	10-53
52-115	10-73
52-117	10-71
52-118	10-72
	24-24
52-119	10-18
52-128	10-59
52-130	10-60
52-131	10-67
52-136	10-65
52-137	10-63
52-138	10-64
52-139 to 52-142	10-54
52-143 et seq.	32a-2
52-178	13-26

Statutes	*P.B. 2026*
52-189	8-10
52-190a	13-2
52-192a	17-18
52-193	17-11
52-194	17-12
52-195	17-13
52-196	14-23
52-200	13-18
52-205	15-1
52-208	5-6
52-209	15-7
52-212	17-43
52-215	14-10
52-216	16-9
52-216a	17-2A
52-216b	16-19
52-218	16-10
52-219	16-11
52-221	17-34
52-223	16-17
52-225	17-2
52-225a	10-78
	16-35
	17-2A
52-225b	10-78
52-226	17-7
52-227	17-1
52-228	17-3
52-231	17-5
52-235a	17-59
52-257	8-3A
	18-16
	18-18
52-259 (i)	2-16
	62-8A
52-259b	44-10A
	63-6
52-263	6-1
52-265a	83-1
	83-2
	83-3
52-270	31a-11
	42-55
52-278d	13-13
52-278e	13-13
52-278i	13-13
52-307	13-13
52-308	13-13
52-380a	10-69
Ch. 909	23-1
52-434	1-1
	19-3
52-434a	63-10
52-504	20-2
52-506	21-4
52-513	21-17

Statutes	*P.B. 2026*
52-549z	19-3
52-549aa	23-66
52-591	14-6
52-592	14-6
52-593	14-6
52-656 (4)	13-28
	13-28A
52-657	13-28A
Ch. 930	21-25
53a-39a	43-3
53a-39c	43-40
53a-40c	61-13
53a-40e	61-13
53a-46a	67-6
53a-46b	67-6
53a-46b (b)	67-6
53a-54b	67-6
53a-54d	27-4A
53a-70	7-11
53a-70a	7-11
53a-172	38-4
53a-173	38-4
53a-222a	38-4
54-1b	37-3
54-1g	37-1
54-2a	38-1
54-33c	7-13
	42-49A
	77-1
54-36h	7-11
Ch. 959a	41-14
54-46a	41-9
54-47g	78-1
54-56d	42-39
54-56d (j)	44-10A
54-56d (k)	44-10A
54-56e	43-40
54-56f	38-4
54-56g	43-40
54-56i	43-40
54-56*l*	43-40
54-56m	43-40
54-56p	43-40
54-63g	65-3
54-64a (b) (1)	38-4
54-64b	37-3
54-66	38-9
54-76b	26-1
54-76h	42-49
	77-1
54-82c	43-39
54-82i	40-44
	44-34
54-86e	40-13B
54-95	43-2
54-102b	61-13
54-102g	61-13
54-152	44-34
Ch. 964	38-18
54-260	61-13

ADDITUR
Motion for 16-35

ADMINISTRATIVE APPEALS
Certified list of papers 14-7A
Civil rules, applicability of 14-6
Costs, taxation of 14-7A
Definition 14-5, 60-4
Designation of record 14-7A
Disputes concerning 14-7A
Exceptions 14-7
Municipal land use, historic and resource protection agencies
Briefs 14-7B
Certified list of papers 14-7B
Costs, taxation of 14-7B
Designation of record 14-7B
Disputes concerning 14-7B
Scheduling 14-7B
Settlement 14-7B
Scheduling order 14-7A
Service 14-7A

ADMISSIONS
See **DISCOVERY AND DEPOSITIONS—CIVIL; PLEADINGS, CIVIL ACTIONS**

ADMISSION TO PRACTICE
See **ATTORNEYS, Admission To Practice**

ALIMONY
See **FAMILY MATTERS**

ALTERNATE INCARCERATION PROGRAM
See **CRIMINAL PROCEDURE**

ALTERNATIVE DISPUTE RESOLUTION 23-67

AMENDMENT OF PLEADINGS
See **PLEADINGS—CIVIL ACTIONS**

AMICUS CURIAE
Appellate brief of 67-7A

ANNULMENT
See **FAMILY MATTERS**

ANSWER
See **PLEADINGS—CIVIL ACTIONS**

APPEARANCE AND ARRAIGNMENT—CRIMINAL MATTERS
See also **APPEARANCES—IN GENERAL**
Appearance after pretrial release 38-6
Arraignment, timing, alternative proceedings 37-1
Constitutional rights, advisement of 37-3, 37-4
Indigency, investigation of 37-5
Information and materials to be provided to defendant 37-2
Public defender, appointment 37-6
Reference to, investigation of indigency 37-5
Detention prior to arraignment, trial, sentencing, limit on 38-18
Disposition conference 39-11—39-17
Dispositions without trial, miscellaneous 39-33

APPEARANCE AND ARRAINGMENT—CRIMINAL MATTERS — (Cont)
Nolle prosequi, see **CRIMINAL PROCEDURE, Nolle prosequi**
Plea, see **CRIMINAL PROCEDURE, Pleas**
Probable cause, determination of where defendant in custody 37-12

APPEARANCES—IN GENERAL
Appeal, appearance by counsel 62-8
Criminal appeals, hybrid representation prohibited 62-9A
Criminal appeals, removal or substitution of counsel 62-9A
Habeas corpus appeals, hybrid representation prohibited 62-9A
Pro hac vice appearance 62-8A
Trial court files and motions, review of and participation in by appellate counsel 62-8, 62-10
Withdrawal of appearance 62-9
Withdrawal of appearance, motion for review 62-9, 66-6
Bail, detention hearing, or alternative arraignment proceedings only, appearances for 3-6
Civil and family cases, appearance for plaintiff 3-1
Consequence of filing 3-7
Creditor, when allowed to appear and defend 3-13
Duration of appearance 3-9
Electronic filing 4-4
Family matters 25-6
By self-represented party in addition to attorney 25-6A
Failure to appear, consequences of 25-51, 25-52
Family support magistrate matters 25a-2, 25a-3
Filing 3-4
Form and signing of 3-3
Habeas corpus
Appearance by petitioner in court 23-40
By interactive audiovisual device 23-40
Counsel, appointment of 23-26
Motion for leave to withdraw appearance 23-41
Judicial action on 23-42
Interactive audiovisual device, appearance by means of in civil proceedings 23-68
Interactive audiovisual device, appearance of detained child or youth by means of in detention hearings 30-12
Limited appearance 3-3, 3-8
Completion of 3-9
Legal interns 3-14
Activities of 3-17
Certification of 3-18
Requirements and limitations 3-16
Supervision of legal interns 3-15
Unauthorized practice 3-20
Motion to withdraw 3-10
Name, composition or membership of firm or professional corporation, notice of change of 3-12
Notice to counsel and self-represented parties 3-4
Plaintiff, appearance for 3-1
Pro hac vice appearance 2-16, 62-8A
Represented party, appearance for 3-8
Service of appearances on other parties 3-5
Several parties, appearance for 3-11
Time to file appearance 3-2

APPEARANCES—IN GENERAL — (Cont)
Withdrawal of appearance 3-9
Limited appearance to object to in place of appearance 3-9
Writ or complaint, appearance for plaintiff 3-1

APPELLATE COURT
See generally **APPELLATE PROCEDURE**

APPELLATE PROCEDURE
See also **CRIMINAL PROCEDURE, Appeal**; **JUVENILE MATTERS, Appeal**
Additions to case file 68-1
Administrative appeal, definition 60-4
Amended appeals 61-9
Amicus curiae briefs 67-7A
Appeal form, filing 63-3
Additional papers to be filed 63-4 (a) and (b)
Amendment of papers 63-4 (a)
Where to file 63-3
Withdrawal of appeal 63-9
Appeal period, generally 63-1 (a) and (b)
Calculation of time, in general 63-2
Motions that delay commencement of 11-11
New appeal period, how created 63-1 (c) (1)
Simultaneous filing required of motions that render judgment or decision ineffective 63-1 (d)
What may be appealed during 63-1 (c) (3)
Who may appeal during 63-1 (c) (2)
Appeal, right to 61-1
Appearance by counsel 62-8
Criminal appeals, hybrid representation prohibited 62-9A
Criminal appeals, removal or substitution of counsel 62-9A
Habeas corpus appeals, hybrid representation prohibited 62-9A
Habeas corpus appeals, removal or substitution of counsel 62-9A
Pro hac vice 62-8A
Trial court files and motions, review of and participation in by appellate counsel 62-8, 62-10
Withdrawal of appearance 62-9
Appellant, definition 60-4
Brief of, contents and organization 67-4
Responsibility to provide adequate record for review 60-5
Appellate clerk 62-2
Assignment list, delivery to counsel of record 69-3
Docketing of cases 62-3
Ready case docket, distribution 69-1
Exhibits, to be transmitted to appellate clerk by trial court clerk 68-1
Extension of time motions, action on 66-1, 79a-7
Judgment files, preparation of 71-1
Notice, automatic bankruptcy stay, challenge to 61-16
Notice, bankruptcy petition and of resolution 61-16
Notice, decisions on motions and of orders to be given by appellate clerk 71-4
Notice, relief from automatic bankruptcy stay or in rem relief 61-16
Notification of trial court clerk of change in parties 62-5
Ready cases, distributing docket of 69-1
Taxation of costs 71-2
Motion to reconsider 71-3
Appellate review attorney, see Child protection matters, appeals, this title
Appellee, definition 60-4
Brief of, contents and organization 67-5

APPELLATE PROCEDURE — (Cont)
Appendix
Addendum to 66-5
Certification for review by Supreme Court, order granting, included in appendix 67-8
Certified questions to or from courts of other jurisdictions
Time for filing 82-6
Child protection matters, appeals 79a-6
Clerk Appendix
Assembly 68-2A
Contents 68-3A
Decision, as part of 68-11A
Format 68-4A
In administrative appeals 68-10A
Supplements 68-8A
When more than one appeal 68-5A
When several cases present same question 68-6A
Complaint, included in appendix 67-8
Consolidated appeals 61-7
Permission to file separate brief and appendix, motion for 61-7
Contents and organization 67-8
Copies 67-2
Corrections or articulations
Included in appendix, generally 66-7
Included in appellant's appendix or party appendix 66-5
Included in appellee's appendix or party appendix 66-5
Included in clerk appendix 66-5
Filed as addendum by appellant 66-5
Cross appeals 67-1
Decisions of trial court, part of appendix 67-8
Format and filing 62-7, 67-2
Generally 67-1
Judgment file, signed 67-8
Party appendix 67-8
Personal identifying information 62-7, 67-1, 67-2, 67-2A, 67-8
Self-represented, incarcerated, preparation of appendix, criminal and habeas matters 68-1
Time for filing 67-3
Argument, see Oral argument this title
Articulation, order 60-5
Failure to seek, effect of 61-10
Motion for 66-5
Review of decision on 66-7
Assignment of cases for argument 69-2
Order of assignment 69-3
Precedence of Supreme and Appellate Court assignments 69-3
Ready cases 69-2
Authorities, table of in briefs 67-11
Automatic stay, Bankruptcy, see Bankruptcy, this title
Automatic stay pending appeal, noncriminal cases 61-11 (a)
Automatic stay not available 61-11 (b) and (c)
Criminal cases, stays in 61-13
Discretionary stay, motion for 61-12
Family matters, not available 61-11 (c)
Family support magistrate matters 61-11 (c)
Review of order concerning stay 61-14
Bankruptcy
Automatic stay, challenge of, notice 61-16
Automatic stay, notice of 61-16
Automatic stay, relief from, notice of 61-16
In rem relief, notice of 61-16
Notice to appellate clerk, 61-16

APPELLATE PROCEDURE — (Cont)
Briefs, in general 67-1
Amended appeals 61-9
Amicus curiae briefs 67-7A
Appellant's brief, contents and organization 67-4
Appellee's brief, contents and organization 67-5
Certification concerning 62-7
Child protection matters 67-13, 79a-6
Citation of cases, form 67-11
Consolidated or joint appeals 61-7
Copies 67-2, 67-2A
Death sentences, statutory review of, briefs 67-6
Electronic briefing requirement 67-2
Family matters 67-13
Format 67-2, 67-2A
Joint Briefs 67-14
Land use regulations, statement as to 67-4, 67-5
Copy to be filed with brief 81-6
Page limitations 67-3
Reply brief 67-5A
Statement adopting briefs 67-14
Supplemental authorities, citation after filing of brief 67-10
Supplemental briefs 61-9
On amendment of transcript statement 63-4 (a)
Table of authorities 67-11
Time for filing 67-3, 67-3A
Unreported decisions, citation of 67-10
Word limitations 67-3A
Cameras and electronic media 70-9
Case citations in briefs, form 67-11
Case file, preparation of 68-1
Additions to after appeal taken 68-1
Workers' compensation appeals 76-3
Certificate of interested entities or individuals, definition 60-4
Certification
Filed papers, certification of 62-7
For review by Appellate Court, see Petitions for certification, this title
For review by Supreme Court, see Petitions for certification, this title
General Statutes § 52-265a, application for certification pursuant to, in general 83-1
Application denied 83-3
Application granted 83-2
Form of Application 83-1A
Opposition to Application 83-1B
Time to file 83-1
Unavailability of chief justice 83-4
Where to file 83-1
Habeas corpus 80-1
Certified questions to or from courts of other jurisdictions
Briefs, appendices and argument 82-6
Certification of questions from other courts 82-1
Certification of questions to other courts 82-8
Certification request, contents of 82-3
Preparation of 82-4
Fees and Costs 82-5
Filing after preliminary acceptance 82-5
Opinion on 82-7
Chief justice or chief judge
Action by, on motion for permission to appeal judgment not disposing all claims by or against party 61-4
Designation of appellate panels and presiding judges by chief judge 62-1
Designation of chief judge by chief justice 62-1
Permission to exceed page limitations of briefs 67-3
Permission to exceed word limitations of briefs 67-3A

APPELLATE PROCEDURE — (Cont)
Chief justice or chief judge — (Cont)
Scheduling of sessions by chief judge 62-1
Child protection matters, appeals, in general 35a-21, 79a-1
Appellate counsel, application for 35a-21
Appellate review attorney, limited "in addition to" appearance 79a-3
Appellate review attorney, motion for appointment of 35a-21, 79a-3
Applicability of appellate rules 79a-15
Briefs and appendices 67-13, 79a-6
Confidentiality of hearings, exclusion of unnecessary persons 79a-13
Docketing for assignment, Supreme and Appellate Courts 79a-8
Duties of clerk for juvenile matters 79a-3
Extension of time, length 35a-21
Extension of time, motions for 35a-21, 60-2, 66-1, 79a-7
Extension of time, termination of parental rights 79a-2
Filing appeal 79a-3
Indigent party, appeal by 35a-21, 79a-3
Inspection of records 79a-12
Motion for in-court review 79a-3
Motions, statement of consent or objection thereto 79a-14
New appeal period 79a-2
Official release date 79a-11
Oral argument 79a-9
Slip opinions 79a-11
Submission on briefs and record 79a-10
Time for filing, appeal 35a-21, 79a-2
Transcripts, ordering of 79a-5
Videoconference, oral argument by 79a-9
Waiver of fees, costs and security 79a-4
Citation of cases in briefs 67-11
Citation of unreported decisions 67-10
Claims to be preserved 60-5
Clerk, appellate, see Appellate clerk, this title
Clerk, trial court, responsibilities after appeal filed 68-1
Clerk appendix, see Appendix, this title
Compensation Review Board, reservation of question from 76-5
Complaint, included in appendix 67-8
Conditional plea of guilty or nolo contendere
Appeal from denial of motion to suppress or to dismiss 61-6 (a) (2) (A)
Reservation of right to appeal 61-6 (a) (2) (B)
Connecticut Law Journal date as date of judgment or order 71-1
Connecticut Reports and Connecticut Appellate Reports, official opinions contained in 71-4
Consolidation of appeals 61-7
Appendices 61-3, 67-3A
Briefs 67-3, 67-3A
Constitutionality of statute, statement in appeal of challenge to 63-4 (b)
Amendment 63-4 (b)
Control of proceedings on appeal 60-2
Copies of filed papers, in general 62-7
Of appeal 63-3
Of appendices 67-2, 67-2A
Of briefs 67-2, 67-2A
Costs
Certified questions from federal courts 82-5
Judicial Review Council, costs waived in appeals from 74-1
Probate judicial conduct, costs waived in appeals from decisions of council on 75-1

APPELLATE PROCEDURE — (Cont)
Costs — (Cont)
Security for not required 60-9
Waiver, civil cases 63-6
Waiver, criminal cases 63-7
Taxation of 71-2
Motion to reconsider 71-3
Workers' compensation appeals 76-4
Counsel
Appearance by 62-8
Appellate review attorney 79a-3
Assignment list, delivery to counsel of record 69-3
Counsel of record, definition 60-4
Hybrid representation prohibited in criminal appeals 62-9A
Notification to counsel of intended disposition of case without argument 70-1
Removal or substitution of in criminal appeals 62-9A
Review of withdrawal 62-9, 66-6
Trial court files, review of 62-8, 62-10
Trial court motions, participation by appellate counsel 62-8
Withdrawal of 62-9
Court closure order, expedited review of 77-1
Criminal cases
Appeal by defendant 61-6 (a)
Appeal by state 61-6 (b)
Interlocutory ruling, appeal from 61-6 (c)
Stays in 61-13
Cross appeals 61-8
Appendices 67-3, 67-3A
Briefs 67-3, 67-3A
Cross petition for certification 81-1, 84-4
Death sentences, statutory review of, briefs 67-6
Decision of trial court, statement of 64-1
Defendant, reference to in brief 67-1
Deferral of appeal where undisposed complaint, counterclaim or cross complaint remains 61-2
Notice of intent to appeal 61-2, 61-5 (a)
Failure to file, consequences 61-5 (b)
Objection to deferral of appeal 61-5 (a)
Definitions 60-4
Designation of proposed contents of clerk appendix 63-4 (a)
Diligence, lack in prosecuting or defending appeal 85-1
Dismiss, motion to 66-8
Disqualification of appellate jurists 66-9
Docket
Certified questions from federal courts 82-5
Entry of cases on by appellate clerk 62-3
Ready case docket, distribution of 69-1
Transfer of matters between Supreme Court and Appellate Court 65-1, 65-1A
Party motion for transfer from Appellate Court to Supreme Court 65-2
Trial court docket, appealed cases to remain on 62-4
Docketing statement, filing with appeal 63-4 (a)
Amendment 63-4 (a)
Documents, form and contents 62-7
Certification 62-7
Definition 60-4
Filing and service 62-7
Time limitations, calculation 63-2
Timely submission 62-7
Electronic briefing requirement, see Briefs, this title
Electronic filing of appeal 60-7
Electronic filing, exemption 60-8
Electronic media coverage at proceedings 70-9

APPELLATE PROCEDURE — (Cont)
En banc consideration and reconsideration of cases 70-7
Reconsideration, motion for en banc 71-5
Entity, definition 60-4
Evidence and exhibits
Availability to parties 62-10
Removal 62-11
Transmitting exhibits to appellate clerk 68-1
Expedited review, court closure order or order sealing or limiting disclosure 77-1
Fact-finding, Supreme Court 84a-1—84a-6
Family matters, briefs 67-13
Family support magistrates, appeal from 25a-29
Federal courts, certified questions from, see Certified questions from federal courts, this title
Fees
Appeal, fees on filing, in general 60-7, 60-8
Certification for review by Supreme Court, fees on 84-4
Statement that fees paid or not required 84-9
Waiver of fees, certification 84-4
Certified questions from federal courts 82-5
Entry fee, cross appeal 61-8
Entry fee, joint appeal 61-7
Judicial Review Council, fees waived in appeals from 74-1
Probate judicial conduct, fees waived in appeals from decisions of council on 75-1
Waiver, civil cases 63-6
Waiver, criminal cases 63-7
Workers' compensation appeals 76-4
Filed, definition 60-4
Files
Availability to parties 62-10
Case file, preparation of 68-1
Removal 62-11
Filing appeal 60-7, 63-3; see also 63-1 and 63-2 on appeal period and calculating time
Additional papers to be filed 63-4 (a) and (b)
Amendment of 63-4 (a) and (b)
Exemption from electronic filing 60-8
Final judgment, right to appeal from 61-1
What constitutes 61-2
Deferral of appeal 61-2, 61-3
Notice of intent to appeal 61-5 (a)
Failure to file, consequences 61-5 (b)
Objection to deferral 61-5 (a)
Judgment disposing of part of complaint, counterclaim or cross complaint
All claims by or against party in particular pleading disposed 61-3
All claims by or against party not disposed, motion for permission to appeal 61-4
Further articulation, remand for 60-5
General Statutes § 52-265a, application for certification pursuant to, in general 83-1
Application denied 83-3
Application granted 83-2
Form of Application 83-1A
Opposition to Application 83-1B
Time to file 83-1
Unavailability of chief justice 83-4
Where to file 83-1
Grand jury order, review of 78-1
Habeas corpus, certification to appeal 80-1
Hearings on motions 66-4
Issues, definition 60-4

APPELLATE PROCEDURE — (Cont)
Joint appeals 61-7
Appendices 67-3, 67-3A
Briefs 67-3, 67-3A, 67-14
Judges and justices sitting as Superior Court judges 60-6
Judgments, appealability, see Final judgment, right to appeal from, this title
Judgments in appellate proceedings
Connecticut Law Journal date as date of judgment or order 71-1
Costs, taxation of 71-2
Motion to reconsider 71-3
Judgment files, preparation by appellate clerk 71-1
Judicial Review Council, appeals from, in general 74-1
Appellate rules, applicability of 74-6
Decision of council statement of 74-4
Fees and costs waived 74-1
Initiation of proceedings by Supreme Court 74-3A
Papers to be filed 74-1
Parties, proper form of reference 74-5
Referral to Supreme Court by council 74-2A
Jurisdiction, original of Supreme Court
Discovery 84a-3
Evidence 84a-5
Fact-finding 84a-4
Filing original jurisdiction action 84a-2
Other officers, appointment of 84a-6
Pleadings and motions 84a-2
Rules, Application of 84a-1
Land use regulations
Copy to be filed with brief 81-6
Statement as to applicable version 67-4, 67-5
Liberal interpretation of rules 60-1
Memorandum of decision by trial court 64-1
Exceptions to requirement 64-2
Included in appendix 67-8
Motions
Articulation, motion for 66-5
Costs, motion to reconsider 71-3
Decisions on motions, notice of to be given by appellate clerk 71-4
Definition of motion 60-4
Delaying commencement of appeal period 11-11, 63-1 (c) (1)
Simultaneous filing of motions required 63-1 (d)
Dismiss, motion to 66-8
Disqualification of appellate jurists 66-9
Extension of time 66-1, 79a-7
Petitions for certification 81-5
Filed after appeal that stays appeal period 63-1 (c)
Filing procedures 66-3
Form 66-2, 66-3
Hearings on 66-4
In-court review 79a-3
Nonautomatic stay pending appeal, motion for 61-12
Official notice date 66-2
Opposition to 66-2
Permission to appeal where all claims by or against party not disposed of, motion for 61-4
Rectification, motion for 66-5
Review, motion for 66-6
Review of decision on motion for articulation or rectification 66-7
Review of order concerning stay, motion for 61-14
Terminate stay pending appeal, motion for 61-11
Transfer from Appellate Court to Supreme Court 65-2

APPELLATE PROCEDURE — (Cont)
Nolo contendere, appeal from denial of motion to suppress or dismiss after conditional plea of 61-6 (a) (2)
Notice of intent to appeal 61-2, 61-5 (a)
Failure to file, consequences 61-5 (b)
Objection to deferral of appeal 61-5 (a)
Opinions
Certified questions from federal courts, opinions on 82-5
Official opinions contained in Connecticut Reports and Connecticut Appellate Reports 71-4
Official release date 71-1, 71-4
Child protection matters, appeals 79a-11
Memorandum of decision 71-4
Opinion 71-4
Slip opinion 71-1, 71-4, 79a-11
Reporter of Judicial Decisions to send copy to trial court 71-4
Oral argument, assignment of cases for 69-2
Child protection matters 79a-9
Submission without oral argument 79a-10
Disposition of cases without argument, determination by court and notification of counsel 70-1
En banc consideration 70-7
Nonappearance at 70-3
Order of argument 70-3
Order of assignment for argument 69-3
Points of argument 70-5
Precedence of Supreme and Appellate Court assignments 69-3
Ready cases 69-2
Rebuttal 70-5
Reconsideration where court evenly divided 70-6
Right to oral argument, and exceptions 70-1, 70-2
Submission without oral argument 70-2
Time allowed 70-4
Videoconferencing, certain cases 70-1
Who may argue 70-4
Orders, notice of to be given by appellate clerk 71-4
Page limitations for briefs 67-3
Papers
Additional papers to be filed with appeal 63-4 (a) and (b) Amendment 63-4 (a) and (b)
Certification 62-7
Copies, number of 62-7
Filing and service 62-7
Timely submission 62-7
Calculating time for filing 63-2
Parties
Availability to of files, evidence and exhibits 62-10
Change in, court where made 62-5
Party appendix, see Appendix, this title
Perfection of record, motion to be filed in court having jurisdiction of appeal 60-2
Petition, definition of 60-4
Petitions for certification
For review by Appellate Court, in general, filing 81-1
Extensions of time 81-5
Grant or denial 81-3A
Filing appeal after certification 81-4
Form of petition 81-2
Opposition 81-3
For review by Supreme Court, in general 84-1
Basis for 84-2
Family and child protection and other matters involving minor children 84-6A
Filing, fees, time to file 84-4
Extensions of time 84-7

APPELLATE PROCEDURE — (Cont)
Petitions for certification — (Cont)
Form of petition 84-5
Grant or denial of certification 84-8
Appellate rules, applicability of 84-12
Filing appeal after certification granted 84-9, 84-11
Opposition 84-6
Record 84-10A
Stay of execution 84-3
Trial court ruling, copy of, when required 84-5
Waiver of fees, certification 84-4
Workers' compensation cases 84-4
Petition for review of order concerning release on bail 78a-1
Petition for review of order denying application for waiver of fees to commence a civil action or a writ of habeas corpus 78b-1
Petition for review seeking expedited review of order concerning court closure or that seals or limits disclosure of material 77-1
Plain error review 60-5
Plaintiff, reference to in brief 67-1
Preargument conferences 63-10
Exceptions 63-10
Failure to attend, sanctions for 85-1
Preargument conference statement, filing with appeal 63-4 (b)
Request for preargument conference, procedure in exempt case 63-10
Preliminary statement of issues 63-4 (a)
Amendment 63-4 (a)
Preservation of claims 60-5
Probate judicial conduct, appeals from decisions of council on, in general 75-1
Appellate rules, applicability of 75-6
Decision of council, statement of 75-4
Fees and costs waived 75-1
Papers to be filed 75-1
Parties, proper form of reference 75-5
Publication of rules, effective date 86-1
Ready cases
Assignment, generally 69-2
Order of 69-3
Precedence of Supreme and Appellate Court assignments 69-3
Definition of 69-2
Docket, distribution of 69-1
Reconsideration en banc 70-7
Motion for 71-5
Stay pending 71-6
Record
Appellant to provide adequate record 60-5, 61-10
Definition 60-4
Motion for perfection to be filed in court having jurisdiction of appeal 60-2
Rectification, motion for 66-5
Removal of files, records and exhibits 62-11
Reporter of Judicial Decisions
Sending opinions to trial court 71-4
Sending rescripts to trial court and appellate clerk 71-4
Request, definition 60-4
Rescripts, to be sent to trial court and appellate clerk 71-4
Reservations 73-1
By Compensation Review Board 76-5
Review, motion for 66-6
Review of order concerning stay 61-14
Review of rectification or articulation 66-7

APPELLATE PROCEDURE — (Cont)
Right to appeal 61-1
Reservation of on conditional plea of guilty or nolo contendere 61-6 (a) (2) (B)
Rules
Changes in, applicability to pending appeals 86-2
Effective date 86-1
Interim rules or changes 86-1
Liberal interpretation 60-1
Suspension of 60-3
Sanctions
Actions subject to 85-2
Diligence in prosecuting or defending appeal, sanctions for 85-1
Failure to comply with rule on appeal papers 63-4 (c)
Procedure 85-3
Security for costs 60-9
Waiver, civil cases 63-6
Waiver, criminal cases 63-7
Service and filing, in general 62-7
Sessions, scheduling by chief judge 62-1
Cameras and electronic media 70-9
Signature on documents 62-6
Special sessions of court 70-8
Stay of execution pending appeal
Automatic stay, noncriminal cases 61-11 (a)
Automatic stay not available, where 61-11 (b)
Automatic stay, family matters, not available 61-11 (c)
Automatic stay, order of civil protection, not available 61-11 (c)
Certification for review by Supreme Court, stay pending 84-3
Criminal cases, stays in 61-13
Discretionary stay, motion for 61-12
Discretionary stay, order sua sponte 61-12
Reconsideration, stay pending 71-6
Review of order concerning stay 61-14
Termination of stay 61-11 (c) and (d)
United States Supreme Court, stay pending decision by 71-7
Supervision of proceedings on appeal 60-2
Supplemental authorities, citation after filing of brief 67-10
Supplemental briefs, amended appeals 61-9
Suspension of rules 60-3
Taxation of costs 18-5, 71-2
Motion to reconsider 71-3
Time
Briefs and appendices, time for filing 67-3, 67-3A
Calculation of 63-2
Extension of 66-1
Extension of, child protection matters 79a-7
Petitions for certification for review by Appellate Court 81-1
Extension of time 81-5
Petitions for certification for review by Supreme Court 84-4
Extensions of time 84-7
Transcript
Excerpts, included in appendix 67-8
Ordering and filing 63-8
Rectification, motion for 66-5
Statement, filing with appeal 63-4 (a)
Amendment 63-4 (a)
Statement that transcript not necessary, filing with appeal 63-4
Transfer
Matters between Supreme Court and Appellate Court 65-1, 65-1A

APPELLATE PROCEDURE — (Cont)
Transfer — (Cont)
Party motion for transfer from Appellate Court to Supreme Court 65-2
Petition for review of order concerning release 65-3
Proceedings after 65-5
Wrong court, matter brought to 65-4
Trial court clerk, responsibilities 68-1
Trial court decision, statement of 64-1
Copy of to accompany petition for certification, when 84-5
Trial court docket, appealed cases to remain on 62-4
Trial court files and motions, review of and participation in by appellate counsel 62-8, 62-10
United States Supreme Court, stay pending decision by 71-7
Unreported decisions, citation of 67-10
Videoconference, hearings on motions 66-4
Waiver of fees, costs and security
Civil cases 63-6
Criminal cases 63-7
Joint appeal 61-7
Petition for review of order denying application for, to commence action 78b-1
Withdrawal of appeal or writ of error 63-9
Withdrawal of appearance 62-9
Withdrawal of appearance, review of 62-9, 66-6
Word limitations for briefs 67-3A
Workers' compensation appeals
Applicability of appellate rules 76-1
Case file, exhibits 76-3
Definitions 76-6
Fees and costs 76-4
Filing appeal 76-2
Petitions for certification 84-4
Reservation of question from Compensation Review Board 76-5, 76-5A
Writ of error, in general 72-1
Appellate rules, applicability of 72-4
Copy of record not to be taxed in costs 18-6
Form of 72-2
Procedure applicable 72-3
Withdrawal 63-9
Wrong court, transfer of matters brought to 65-4

APPENDIX
See **APPELLATE PROCEDURE**

APPLICATIONS
See **MOTIONS, APPLICATIONS AND REQUESTS, CIVIL, MISCELLANEOUS**

APPRAISERS
See generally **RECEIVERS**

ARBITRATION
Approval of arbitrators by chief court administrator 23-60
Confirming, correcting or vacating award 23-1
Decision of arbitrator 23-64
As judgment 23-66
Disqualification of arbitrators 23-62
Failure to appear at hearing 23-65
Fee arbitration, order by Statewide Grievance Committee 2-37
Hearing in 23-63
Failure to appear at hearing 23-65
Referral to arbitrators 23-61
Selection of arbitrators 23-62
Trial de novo, claim for 23-66

ARGUMENT BY COUNSEL
Generally 15-5, 15-6; see also **APPELLATE PROCEDURE, Oral Argument**
Argument on interlocutory questions during trial 5-5
Time limit 15-7
Criminal cases 42-37

ARREST AND PRELIMINARY CRIMINAL PROCEDURE
See also **APPEARANCE AND ARRAIGNMENT—CRIMINAL MATTERS**; **CRIMINAL PROCEDURE, Bail; Bond; Pleas**
By warrant, issuance 36-1
Affidavit supporting warrant application 36-2
Cancellation of warrant 36-6
Contents of warrant 36-3
Execution and return of warrant 36-5
Information and complaint, use 36-11
Amendments, minor defects 36-16
Continuance necessitated by amendment 36-20
Essential facts, request by defendant for 36-19
Substantive amendment after trial commenced 36-18
Substantive amendment before trial 36-17
Filing and availability of information 36-15
Former conviction in information 36-14
Election of jury trial 42-2
Plea to 37-10
Form of information 36-13
Issuance of information 36-12
Joinder
Defendants 36-22
Offenses 36-21
Summons, form of summons and complaint 36-7
Direction by judicial authority for use of 36-4
Failure to respond to 36-10
In lieu of arrest warrant 36-12
Service of 36-9

ARREST OF JUDGMENT
Motion in arrest of judgment 16-35

ASSIGNMENT FOR TRIAL—CIVIL
See generally Chapter 14; see also **TRIALS IN GENERAL**
Administrative appeals
Briefing schedule 14-7
Civil rules, applicability of 14-6
Definition 14-5
Appellate Court arguments, precedence of 1-2, 69-3
Assignment for trial, in general 14-15
Counsel, availability of 14-25
Methods of assigning 14-16
Bankruptcy
Claim for exemption from docket management program 14-2
Claim for statutory exemption or stay 14-1
Case records, maintenance of 14-4
Clerk, communication with counsel to ensure sufficient business 14-21
Continuance or postponement, motion for 14-23
Absent witness, missing evidence 14-24
Counsel, availability of 14-25
Dismissal, lack of diligence 14-3
Family matters 25-48
Case management 25-50A
Garnishee, assignment on motion of 14-22
Immediate trial 14-17
Jury assignments to have precedence over court assignments 14-25

ASSIGNMENT FOR TRIAL—CIVIL — (Cont)
Jury, claims for 14-10
Order of trial 14-20
Pleadings closed, certification 14-8
Pretrial, assignment for 14-11
Orders at 14-14
Pretrial procedure 14-13
When case not disposed of at 14-12
Privileged cases 14-9
Supreme Court arguments, precedence of 1-2, 69-3
Unemployment compensation appeals 22-2

ATTORNEYS
Generally Chapter 2
Admission to practice
Bar examining committee
Examination of candidates 2-5
Personnel of 2-6
Records of 2-4A
Regulations by 2-4
By Superior Court 2-10
Certification of recommended applicants 2-9
Conditions of admission by Superior Court 2-9, 2-11
Appeal from decision of bar examining committee concerning 2-11A
Drug, alcohol dependency 2-9
Health diagnosis, treatment 2-9
Monitoring compliance with 2-11
Removal or modification of 2-11
County committees on recommendations for admission 2-12
County court designations 2-1
Fees for admission, disposition of 2-22
Fitness to practice law 2-5A, 2-8, 2-9, 2-13, 2-15, 2-17
Foreign legal consultants
Affiliation of with Connecticut bar 2-21
Conditions of admission 2-9
Disciplinary provisions regarding 2-20
Filings to become 2-18
Health diagnosis, treatment, or drug or alcohol dependency, inquiries 2-8
Licensing requirements 2-17
Scope of practice of 2-19
In Absentia 2-10
Military spouse temporary license 2-13A
Number of times applicant may take examination 2-7
Other jurisdictions, attorneys of, qualifications and requirements for admission 2-13
Practice of law, defined 2-13
Pro hac vice appearance 2-16
Qualifications for admission 2-8
Superior Court, admission by 2-10
Superior Court, admission by with conditions 2-11
Advertising, mandatory Filing 2-28A
Advisory Opinions 2-28B
Appeal from decision of Statewide Grievance Committee 2-38
Appearance, see **APPEARANCES—IN GENERAL**
Appointment of counsel
Criminal cases in general 44-1, 44-2; see also **CRIMINAL PROCEDURE, Counsel**
Family matters, motion for 25-24
Juvenile matters appeals 35-4; see also **JUVENILE MATTERS, Attorney**
Juvenile matters, initial plea hearing, see **JUVENILE MATTERS, Attorney**

ATTORNEYS — (Cont)Attorney trial referee, reference to 19-2A
Time to file report 19-4
Authorized house counsel 2-15A
Bank and trust companies, payment of attorneys by 2-67
Chief disciplinary counsel 2-34A
Client funds, fiduciary accounts, overdraft notification 2-27, 2-28
Audits and inspections, trust accounts 2-27
Notice of alleged misuse of 2-43
Registration 2-27
Client security fund 2-68
Annual fee, assessment, exemption, failure to pay 2-70
Enforcement of payment 2-79
Pro hac vice, certification of payment 2-16
Claims
Attorney's fee for prosecuting 2-77
Confidentiality 2-76
Reimbursement, eligibility for 2-71
Restitution of claims 2-53
Committee
Action by 2-72
Appointment of members 2-72
Claims processing 2-75
Confidentiality 2-76
Duties and powers 2-73
Operation 2-72
Rules and regulations 2-74
Status of fund, review by committee 2-77
Subrogation to rights of claimant 2-81
Complaints against attorney, filing, time, action on 2-32
Conditions of admission
Drug, alcohol dependency 2-9
Health diagnosis, treatment 2-9
Continuing legal education 2-27A
Enforcement of attorney registration 2-27B
Counsel
Child protection matters appeals, appellate counsel, application for 35a-21; appellate review attorney 35a-21; see also **JUVENILE MATTERS, Attorney**
Criminal cases, appointment 44-1, 44-2; see also **CRIMINAL PROCEDURE, Counsel**
Family contempt, right to 25-63
Waiver 25-64
Family matters, motion for appointment 25-24
Fees, motion for in family matters 25-24
Parentage actions, right to 25-68
Counsel of record, appeals, definition 60-4
Court officials, practice by 2-66
Crisis intervention and referral assistance 2-68, 2-68A, 2-70, 2-77
Dishonest conduct, defined 2-69
Exemption, retirement 2-55
Restitution to fund by attorney 2-53, 2-80
Subrogation of committee to rights of claimant 2-81
Disciplinary counsel 2-34A
Discipline, see also Grievances, this title
Admission of misconduct 2-82
Alleged misuse of clients' funds, notice 2-43
Appeal from decision of Statewide Grievance Committee 2-38
Appointment of attorney to protect clients' and attorney's interests 2-64
Attorneys found guilty of serious crimes in Connecticut 2-40
Attorneys found guilty of serious crimes in another jurisdiction 2-41

ATTORNEYS — (Cont)
Discipline, see also Grievances, this title — (Cont)
Costs and expenses 2-51
Deactivated attorney 2-47B
Discipline by consent 2-82
Foreign legal consultants 2-20
Inactive status 2-56
Appointment of attorney to protect interests 2-64
Burden of proof 2-61
Disability claimed during course of disciplinary proceeding 2-59
No prior determination of incompetency or involuntary commitment 2-58
Prior judicial determination of incompetency or involuntary commitment 2-57
Reinstatement upon termination of disability 2-60
Waiver of doctor-patient privilege upon application for 2-62
Interim suspension, conduct constituting threat of harm to clients 2-42
Misappropriation of funds, disbarment for 2-47A
Notice of inactive status, reprimand, suspension, disbarment, publication of 2-54
Presentments 2-47
Prosecution of 2-48
Reciprocal discipline 2-39
Reinstatement of attorney after suspension, disbarment or resignation 2-53
Resignation of attorney facing disciplinary investigation 2-52
Restitution 2-49, 2-53
Restriction on activities, deactivated attorney 2-47B
Sanctions of reprimand, suspension, disbarment, publication of notice of 2-54
Superior Court, power to discipline attorneys 2-44
Cause occurring in presence of court 2-45
Suspension, violation of support orders 2-46
Unauthorized practice of law, power of court to restrain 2-44
Petitions 2-47
Dishonest conduct, defined, client security fund 2-69
Drug, alcohol dependency, conditions of admission 2-9
Felony
Connecticut conviction 2-40
Conviction elsewhere 2-41
Fitness to practice law 2-5A, 2-8, 2-9, 2-13, 2-15, 2-17, 2-40, 2-41
Foreign legal consultants 2-17—2-21
Good moral character, fitness to practice law 2-5A
Good standing of attorney 2-65
Grievances
See also Discipline, this title
Bar counsel, statewide 2-34
Complaints against attorneys, filing, action on 2-32
Disciplinary counsel 2-34A
Grievance committee, statewide 2-33
Action by on request for review 2-36
Action by or by reviewing committee 2-35
Appeal from decision by 2-38
Sanctions that may be imposed by 2-37
Grievance panels 2-29
Counsel for panels and investigators 2-30
Grievance counsel, duties and powers 2-31
Health diagnosis, treatment, conditions of admission 2-9
Health diagnosis, treatment, or drug or alcohol dependency of applicant for admission, inquiries 2-8
House counsel, authorized 2-15A

ATTORNEYS — (Cont)
Juvenile matters, see **JUVENILE MATTERS, Attorney**
Law-related activity, defined 2-47B
Legal interns, see **LEGAL INTERNS**
Notices
Admission in other jurisdiction 2-24
Alleged misuse of clients funds 2-43
Change in address 2-26
Disciplinary action in other jurisdiction 2-25
Disciplinary sanctions, miscellaneous 2-54
Payment by bank and trust companies 2-67
Practice of law, definition 2-44A
Pro hac vice appearance 2-16, 62-8A
Reciprocal discipline 2-39
Reciprocity 2-13
Records
Statewide Grievance Committee, reviewing committee and grievance panel 2-50
Reinstatement after suspension, disbarment or resignation 2-53
Resignation of attorney facing disciplinary investigation 2-52
Retirement of attorney 2-55
Roll of attorneys 2-23
Statewide bar counsel 2-34
Unauthorized practice of law, power of court to restrain 2-44
Petitions 2-47
Waiver of right to hearing, attorney facing disciplinary investigation 2-52

BAIL
See also **CRIMINAL PROCEDURE**, **Bond**
Appearance for bail hearing 3-6
Cash bail where bond allowed 38-7
Seven percent cash bail 38-8
Pretrial release by bail commissioner 38-3
Review of orders concerning release on bail
Petition for review of order concerning release on bail 78a-1

BANKRUPTCY
Claim for exemption from docket management program 14-2
Claim for statutory exemption or stay 14-1
Notice to appellate clerk of petition and of resolution 61-16

BAR, ADMISSION TO
See **ATTORNEYS, Admission To Practice**

BILL OF PARTICULARS 41-20—41-22

BOND
See **CIVIL ACTIONS, Commencement of Action**; **CRIMINAL PROCEDURE**; **RECEIVERS**

BRIEFS
See also **APPELLATE PROCEDURE**
Trial briefs 5-1
Page limitations 4-6

CAMERAS IN COURTROOM
See **MEDIA**

CELL PHONES IN COURTROOM
See **MEDIA**

CENTRALIZED INFRACTIONS BUREAU
See **INFRACTIONS**

CERTIFICATION FOR REVIEW
See **APPELLATE PROCEDURE, Petitions for Certification**

CERTIFIED QUESTIONS TO OR FROM COURTS OF OTHER JURISDICTIONS
Briefs, appendices, assignment and argument 82-6
Certification of questions from other courts 82-1
Certification of questions to other courts 82-8
Certification requests, contents of 82-3
Preparation of 82-4
Docketing after preliminary acceptance 82-5
Fees and costs 82-5
Opinions on 82-7

CHAMBERS, HEARINGS IN
See generally **HEARINGS**

CHILD PROTECTION
See generally **JUVENILE MATTERS**

CHILD SUPPORT
See **FAMILY MATTERS**

CITATIONS IN BRIEFS
See **APPELLATE PROCEDURE**

CIVIL ACTIONS
See also **FAMILY MATTERS**; **SMALL CLAIMS**
Appearance, see **APPEARANCES—IN GENERAL**
Arbitration, see **ARBITRATION**
Argument by counsel, generally 15-5, 15-6
Argument on interlocutory questions during trial 5-5
Time limit 15-7
Administrative appeals
Certified list of papers 14-7A
Civil rules, applicability of 14-6
Costs, taxation of 14-7A
Definition 14-5
Designation of record 14-7A
Disputes concerning 14-7A
Exceptions 14-7
Scheduling order 14-7A
Service 14-7A
Assignment for trial, in general 14-15
Clerk, communication with counsel to ensure sufficient business 14-21
Counsel, availability of 14-25
Immediate trial 14-17
Jury trial to have precedence over court trial 14-25
Methods of assigning 14-16
Motion of garnishee, assignment on 14-22
Order of trial 14-20
Bankruptcy
Claim for exemption from docket management program 14-2
Claim for statutory exemption or stay 14-1
Case records, maintenance of 14-4
Continuance or postponement, motion for 14-23
Absent witness, missing evidence 14-24
Counsel, availability of 14-25
Dismissal, lack of diligence 14-3
Jury assignments to have precedence over court assignments 14-25
Jury, claims for 14-10
Pretrial, assignment for 14-11
Orders at 14-14
Pretrial procedure 14-13
When case not disposed of at 14-12
Privileged cases 14-9
Cameras in courtroom, see **MEDIA**
Chambers, hearings in, see Hearings in chambers, this title

CIVIL ACTIONS — (Cont)
Class actions, see **CLASS ACTIONS**
Closure of court to public and media 11-20
Expedited review of order 77-1
Commencement of action
See also **PLEADINGS—CIVIL ACTIONS**
Bond
For prosecution or recognizance 8-3A
Renewal of 8-12
Surety company bond acceptable 8-10
Court fees and costs, waiver of 8-2
Process 8-1
Consolidation of actions for trial 9-5
Contempt, civil 1-21A
Review of 23-20
Continuances
Absent or nonresident defendant 9-1
Garnishee not appearing to defend 9-2
Small claims 11-16
Decision, statement of by judicial authority, when required 6-1, 64-1, 64-2
Discovery and depositions
Admission of facts and execution of writings, requests for admission 13-22
Answers and objections to requests for admission 13-23
Effect of admission 13-24
Expenses on failure to admit 13-25
Agreements regarding Discovery and Deposition Procedure 13-32
Construction, rules of 13-1
Definitions 13-1
Communication 13-1
Concerning 13-1
Document 13-1
Identify
Act or event 13-1
Electronically stored information 13-1
Oral communications 13-1
Persons 13-1
Person 13-1
You 13-1
Depositions, in general 13-26
Deposition procedure 13-30
Notice of deposition
Deposition of organization, production of documents and materials 13-27
General requirements, special notice, nonstenographic recording 13-27
Persons before whom deposition taken 13-28
Place of deposition 13-29
Remote electronic means of taking 13-30
Subpoenas 13-28A
Use of depositions in court proceedings 13-31
Disclosure
Amount and provisions of insurance liability policy 13-12
Assets, where prejudgment remedy sought 13-13
Before court or committee 13-17
Continuing duty to disclose 13-15
Defense 13-19
In equity 13-18
Medicare enrollment status, eligibility or payments received 13-12A
Order limiting, expedited review 77-1
Discovery

CIVIL ACTIONS — (Cont)
Discovery and depositions — (Cont)
Health information, motion for authorization to obtain protected 13-9, 13-11A
Outside the United States 13-21
Scope, in general 13-2
Experts 13-4
Materials prepared in anticipation of litigation, statements of parties 13-3
Privilege log 13-3
Protective order 13-5
Sought by judgment creditor 13-20
Duty to disclose, continuing 13-15
Interrogatories, in general 13-6
Answers to 13-7
Objections to 13-8
Order for compliance, failure to answer or comply with order 13-14
Orders by judge 13-16
Requests for admission 13-22
Answers and objections to 13-23
Requests for production, inspection and examination, in general 13-9
Physical or mental examination 13-11
Responses to requests for production, objections 13-10
Subpoenas 13-28A
Subpoena duces tecum 13-27
Dismiss, motion to 10-30—10-34
Dissolution of marriage or civil union, legal separation, annulment, see **FAMILY MATTERS**
Dockets, see Assignment lists, dockets, pretrials and trial lists, this title
Electronic filing 4-4
Evidence
Exceptions not required 5-7
Exhibits, marking 5-7
Interlocutory matters, address by counsel 5-5, 5-8
Medical evidence 15-4
Motion in limine 15-3
Objections, reasons for 5-5
Reception of evidence objected to 5-6
Prima facie case, dismissal for failure to make 15-8
Witnesses, examination of 5-4
Oath, administration of 5-3
Experts, see **EXPERT WITNESSES**
Fact-finding
Action by judicial authority on finding of facts 23-58
Appointment of fact finders by chief court administrator 23-52
Referral of cases to 23-53
Selection of, disqualification 23-54
Committees and referees, see **REFERENCES**
Failure to appear at hearing 23-59
Finding of facts 23-56
Action on by judicial authority 23-58
Objections to acceptance of 23-57
Hearing in 23-55
Failure to appear at hearing 23-59
Fees and costs
Costs
For Exhibits 18-18
Interest and costs unnecessary to claim 10-28
On appeal from commissioners 18-2
On complaint and counterclaim 18-16
On counterclaim 18-17
On creditor's appeal 18-3
On interlocutory proceedings 18-7

CIVIL ACTIONS — (Cont)
Fees and costs — (Cont)
On writ of error 18-6
Several defendants 18-13
Taxation of, appeal 18-5
Where both legal and equitable issues 18-15
Where several issues 18-12
Court expenses, vouchers for 18-1
Eminent domain, clerk's fees 18-4
Fees and costs, where plaintiffs join or actions consolidated 18-14
Jury fee, where more than one trial 18-8
Proceedings before judge, no costs 18-19
Witness fees
In several suits 18-10
Nonresident witnesses 18-9
Witness not called 18-11
Files and documents, sealing 11-20
Expedited review of order 77-1
Foreclosures, see **FORECLOSURE**
Habeas, see **HABEAS CORPUS**
Hearings in chambers
Certifying proceedings to court 20-2
Contested matters, procedure in 20-1
Papers
Cause affecting land 20-5
Clerk designated by judge to take 20-6
Trial before judge, lodging papers and file 20-4
Transfer of hearings before judges 20-3
Identification of cases 7-4A
Interactive audiovisual device, appearance by means of 23-68
Interest and costs unnecessary to claim 10-28
Jury trials, see **JURIES—CIVIL**
Lodging record 7-4C
Media coverage of court proceedings, see **MEDIA**
Memorandum of decision by trial court 6-1, 64-1, 64-2
Motions, applications and requests, miscellaneous
Appeal period, motions that delay 11-11
Argument of motions 11-18
Cite in new parties, motion to 9-22
Definition of 11-2
Dismiss, motion to 10-30—10-34
Dismissal for lack of diligence 14-3
Exclusion of public, sealing documents, motion for 11-20
Form of 11-1
Limine, motion in 15-3
Memorandum of law required 11-10
Misjoinder and nonjoinder of parties, motion to strike for 11-3
New trial 17-4A
Order of notice, applications for 11-4
Personal identifying information, motion to seal or redact documents containing 11-20B
Previous motions and applications, disclosure of 11-9
Reargue, motion to 11-12
Request to revise 10-35
Granting of and objection to 10-37
Reasons in 10-36
Waiver of further pleading revisions 10-38
Sealing documents, motion for 11-20
File record under seal 7-4B
Strike, motion to 10-39—10-45
Municipal officers, action to enforce bond to 9-25
Orders of notice
Applications for 11-4
Attestation, publication, proof of compliance 11-7

CIVIL ACTIONS — (Cont)
Orders of notice — (Cont)
Continuance, subsequent orders of 11-5
Directed outside United States 11-8
Publication, notice by 11-6
Parties
See also **JOINDER**
Addition or substitution of 9-18
Motion to cite in new parties 9-22
Class actions 9-7, 9-8
Adequate representation, orders to ensure 9-10
Dismissal or compromise 9-9
Fiduciaries 9-11
Parents as necessary parties in minor's name change action 9-24
Real party in interest 9-23
Substituted plaintiff 9-20
Third parties affected by counterclaim 9-21
Personal identifying information, see **RECORDS**, see also Motions, this title
Pleadings, see **PLEADINGS—CIVIL ACTIONS**
Pretrial, assignment for 14-11
Orders at 14-14
Pretrial procedure 14-13
When case not disposed of at 14-12
Process 8-1
Public, exclusion of from court 11-20
Expedited review of order 77-1
References, see **REFERENCES**
Sealing files and documents 11-20A, 11-20B
Motion to file record under seal 7-4B
Lodging record 7-4C
Short calendar, generally 11-13
Assignments automatic 11-15
Continuances 11-16
Frequency, time of sessions, lists 11-14
Oral argument 11-18
Time limit for deciding matters 11-19
Transfers 11-17
Small claims, see **SMALL CLAIMS**
Transfer of actions 12-1—12-3
Trial lists, see Assignment lists, dockets, pretrials and trial lists, this title
Trials in general
See also **ASSIGNMENT FOR TRIAL—CIVIL**; **EVIDENCE**; **JURIES**
Briefs 5-1
Counsel
Argument by 15-5—15-7
Failure to appear by, sanctions 5-10
New trial, motion for 17-4A
Order of parties proceeding 15-5
Order of trial of issues 15-1
Question of law that may be subject of appeal, raising 5-2
Separate trials 15-2
Verdicts, see **VERDICTS**

CIVIL UNIONS
See **FAMILY MATTERS**

CLASS ACTIONS
Generally 9-7, 9-8
Adequate representation, orders to ensure 9-10
Appointment of class counsel 9-9
Notice required 9-9
Procedure for class certification and management of class 9-9

CLERKS
Appellate clerk, see **APPELLATE PROCEDURE**
Case records, maintenance of 14-4
Custody of files 7-7
Daybooks to be kept by 7-4
Documents, prerequisites for filing with clerks 7-6
Duties of, generally 7-2
Electronic filings 4-4
Nonoperational electronic filing system 7-17
Exhibits, removal from clerk's office or destruction on determination of case 7-21
Files and records of cases to be kept by 7-1
Destruction of files 7-10
Motion to prevent 7-16
Retention and stripping of files, schedule 7-11
Adult probation and family division, reports from 7-14
Criminal actions, records and files in 7-13
Title to land, files in actions affecting 7-12
Transfer to records center or state library 7-15
Financial accounts to be kept 7-3
Hospital, medical and psychiatric records, prerequisites for filing with clerk 7-18
Hours of offices 7-17
Judgment files, see **JUDGMENTS**
Lost files or pleadings 7-8
Notice of judgments and rulings to be given counsel and self-represented parties 7-5
Offices, hours of 7-17
Prerequisites for filing papers and documents 7-6
Responsibilities after appeal filed 68-1
Short calendar matters, records of 7-20
Subpoena, issuing for self-represented parties 7-19

CLIENT SECURITY FUND
See **ATTORNEYS**

COLLATERAL SOURCE
Reduction of verdict, motion for 16-35

COMMITTEES AND REFEREES
See **REFERENCES**

COMPUTERS, PORTABLE IN COURTROOM
See **MEDIA**

CONNECTICUT LAW JOURNAL
Appellate opinions and orders, date of 71-1
Child protection matters, appeals 79a-11
Attorneys, inactive status, reprimand, suspension, disbarment, publication of notice of 2-54
Rules of court, publication of 1-9, 86-1
Emergency adoption of rules 1-9B

CONNECTICUT REPORTS AND CONNECTICUT APPELLATE REPORTS
Official appellate opinions contained in 71-4

CONSOLIDATION OF ACTIONS FOR TRIAL 9-5

CONTEMPT
Generally 1-13A
Civil 1-21A
Review of 23-20
Criminal 1-14
Deferral of proceedings 1-17
Disqualification of judicial authority, nonsummary proceedings 1-19
Judgment, nonsummary proceedings 1-21
Jury trial, right to in nonsummary proceedings 1-20

CONTEMPT — (Cont)
Criminal 1-14 — (Cont)
Nonsummary proceedings 1-18
Summary proceedings 1-16
Family matters, motion for 25-27
Right to counsel 25-63
Waiver 25-64

CONTINUANCES
Absent or nonresident defendant 9-1
Garnishee not appearing to defend 9-2
Small claims 11-16
Subsequent orders of notice 11-5

COSTS
See **APPELLATE PROCEDURE**; **FEES AND COSTS**

COUNSEL
See **ATTORNEYS**

COURT CLOSURE
Civil proceedings 11-20
Criminal trials 42-49
Expedited review of order 77-1
Family matters 25-59

CRIMINAL CONTEMPT
See **CONTEMPT**

CRIMINAL PROCEDURE
Accelerated pretrial rehabilitation without trial 39-33
Acquittal
Judgment of following guilty verdict 42-51
Motion for directed verdict of abolished 42-40
Motion for judgment of 42-40
After guilty verdict 42-51
After mistrial 42-50
At close of evidence, reservation of decision on 42-42
At close of prosecution's case 42-41
Time limit for filing 42-52
Release pending appeal by state from judgment of 43-1
Adult probation, commitment to of drug-dependent defendant without trial 39-33
Alcohol education and treatment, commitment to without trial 39-33
Alibi defense 40-21—40-25
Alternate incarceration program
Order for assessment for placement in, following conviction 43-3
Assessment report not public record 43-9
Copying assessment report prohibited 43-8
Defense counsel, participation in 43-5
Disclosure of assessment report 43-9
Persons receiving assessment report 43-7
Scope of assessment 43-4
Time to complete 43-6
Use of assessment report 43-9
Reference to without trial 39-33
Appeal, see also **APPELLATE PROCEDURE**
Appellate counsel
Hybrid representation prohibited 62-9A
Removal or substitution of 62-9A
Indigent defendant, appointment of counsel, waiver of fees and costs 43-33
Frivolous appeal, request by counsel to withdraw 43-34—43-38
Interlocutory ruling, appeal from 61-6 (c)
Notice of appeal rights 43-30
Release from custody pending 43-1, 43-2

CRIMINAL PROCEDURE — (Cont)
Appeal, see also **APPELLATE PROCEDURE** — (Cont)
State, appeal by 61-6 (b)
Stay of imprisonment pending 43-31
Stay of probation pending 43-32
Appearance and arraignment
See also **APPEARANCES—IN GENERAL**; Bail, this title; Pretrial release, this title
Appearance after pretrial release 38-6
Arraignment, timing, alternative proceedings 37-1
Constitutional rights, advisement of 37-3, 37-4
Indigency, investigation of 37-5
Information and materials to be provided to defendant 37-2
Public defender, appointment 37-6
Reference to, investigation of indigency 37-5
Detention prior to arraignment, trial, sentencing, limit on 38-18
Disposition conference 39-11—39-17
Dispositions without trial, miscellaneous 39-33
Media coverage of arraignments 1-11A
Nolle prosequi, see Nolle prosequi, this title
Plea, see Pleas, this title
Probable cause, determination of where defendant in custody 37-12
Arrest and preliminary procedure
See also Bail, this title; Pretrial release, this title
By warrant, issuance 36-1
Affidavit in support of warrant application 36-2
Sealing 36-2
Cancellation of warrant 36-6
Contents of warrant 36-3
Execution and return of warrant 36-5
Information and complaint, use 36-11
Amendments, minor defects 36-16
Continuance necessitated by amendment 36-20
Essential facts, request by defendant for 36-19
Substantive amendment after trial commenced 36-18
Substantive amendment before trial 36-17
Filing and availability of information 36-15
Former conviction in information 36-14
Election of jury trial 42-2
Plea to 37-10
Form of information 36-13
Issuance of information 36-12
Joinder
Defendants 36-22
Offenses 36-21
Summons, form of summons and complaint 36-7
Direction by judicial authority for use of 36-4
Failure to respond to 36-10
In lieu of arrest warrant 36-12
Service of 36-9
Arrest of judgment, motion 42-54
Assignment and scheduling of cases, in general 44-11, 44-12
Continuances 44-13, 44-18
Disposition conference, assignment for 44-15
Plea, assignment for 44-14
Preliminary proceedings, continuances 44-13
Trial, assignment for 44-15
Motion to advance 44-17
Order of trial assignments, priorities 44-16
Bail
See also Bond, this title; Pretrial release, this title
Cash, where bond allowed 38-7
For release pending appeal of conviction 43-2

CRIMINAL PROCEDURE — (Cont)
Bail — (Cont)
Petition for review of order concerning release on bail 78a-1
Seven percent cash bail 38-8
Bill of particulars, motion for 41-20
Amended or substitute information incorporating bill 41-22
Content 1-21
Bond
See also Pretrial release, this title
As condition of release pending appeal of conviction 43-2
Attorney not to give bond 38-12
Cash bail in amount of 38-7
Forfeiture on violations of release, issuance of rearrest warrant or capias 38-21
Rebate to surety after forfeiture 38-22
Modification, motion for 38-14
Real property pledge in lieu of cash bond 38-9
As condition of release pending appeal of conviction 43-2
Rebate to surety after forfeiture 38-22
Seven percent cash bail 38-8
Surety, discharge of 38-23
Capias for
Defendant unexcused from trial or sentencing 44-9
Failure to appear for deposition 40-45
Hearing to review conditions of release 38-15, 38-16
Violation of bond or promise to appear 38-21
Closure of court 42-49
Expedited review of order 77-1
Commissioner of Mental Health and Addiction Services, commitment to without trial 39-33
Community service labor program, reference to without trial 39-33
Complaint, see Arrest and preliminary procedure, this title
Consolidation of informations for trial 41-19
Counsel, representation by
Appeal by indigent defendant 43-33
Frivolous appeal, request by counsel to withdraw 43-34—43-38
Appellate counsel 62-9A
Appointed counsel, right to in general 44-1, 44-2
Public defender, reference at arraignment 37-5, 37-6
Waiver of right to counsel 44-3
Standby counsel, appointment and role 44-4—44-6
Crime, defined 44-37
Custody, see Release, this title
Decision, statement of by judicial authority, when required 6-1, 64-1, 64-2
Defense, alibi 40-1—40-25
Definitions 44-37
Depositions, in general, grounds 40-44; see also Discovery, this title
Defendant, right to be present and represented 40-54
Waiver of right 40-55
Expenses of 40-58
Failure to appear for, capias 40-45
Manner of taking 40-49, 40-57
Notice of 40-47
Objections during 40-49
Person taking deposition 40-47
Protective order concerning 40-48
During examination 40-52
Return of, depositions to be sealed 40-53
Right of defendant to be present 40-54
Waiver of right 40-55
Scope of examination 40-50

CRIMINAL PROCEDURE — (Cont)
Depositions, in general, grounds 40-44; see also Discovery, this title — (Cont)
Unavailable deponent, defined 40-56
Use of 40-46, 40-57
Detention prior to arraignment, trial, sentencing, limit on 38-18
Discovery, in general 40-1; see also Depositions, this title
Admissibility of defendant's intent to offer evidence or call witness 40-30
Alibi defense, required notices concerning 40-21—40-23
Exceptions 40-24
Withdrawn alibi not admissible 40-25
Continuing duty to disclose 40-3
Custody of materials 40-10
Disclosure to unrepresented defendant 40-10
Defendant's duty, materials discoverable by prosecution as of right 40-26
Derivative materials, disclosure to defendant 40-28
Discretionary disclosure by 40-27
Materials excepted from disclosure 40-31
Protective orders, for defendant 40-29
Documents or objects, subpoenas for 40-2
Failure to comply 40-5
Law enforcement reports, affidavits and statements, disclosure of 40-13A
Mental disease or defect or extreme emotional disturbance, disclosure of defense of 40-17
Expert testimony concerning, disclosure by defendant of intent to use 40-18
Failure of expert to submit report 40-20
Psychiatric examination, prosecutorial motion for 40-19
Nontestimonial evidence, obtaining from defendant 40-32
Comparison of 40-39
Emergency procedure for 40-33
Motion for, by defendant 40-38
Order for, scope 40-34
Contents 40-35
Implementation 40-37
Service 40-36
Objection to disclosure 40-8
Performance 40-6
Procedure 40-7
Prosecuting authority's duty to disclose 40-11
Discretionary disclosure by 40-12
Materials excepted from disclosure 40-14
Protective orders 40-29, 40-40
Factors to be considered 40-41
In camera proceedings on motion for 40-42, 40-43
Excision as relief, record of 40-43
Requests and motions 40-4
Scientific tests and experiments 40-9
Statements 40-15, 40-16
Subpoenas for documents or objects 40-2
Witnesses, information concerning and statements by 40-13
Dismiss, motion to, see Motion to dismiss, this title
Disposition conference 39-11—39-17
Docketing, see Assignment and scheduling of cases, this title
Electronic filing 4-4
Family relations division, reference to without trial 39-33
Fees
Extradition, officer's fees 44-35
Subpoenas, return of 44-32
Witnesses, travel fees 44-34
Indigent witnesses, transportation and support 44-33

CRIMINAL PROCEDURE — (Cont)
Felony, defined 44-37
Files and documents, sealing 42-49A
Finding of guilty or not guilty by judicial authority 42-34
Fines
Ability to pay, inquiry by judicial authority concerning 43-17
Incarceration for wilful nonpayment 43-18
Release on payment 43-19
Mittimus where sentence includes fine as well as imprisonment 43-20
Guardian ad litem, appointment 44-20
Identification of cases 7-4A
Incarceration
Correction of illegal sentence 43-22
Discharge of defendant 43-21
For wilful nonpayment of fine 43-18
Release on payment 43-19
Inquiry by judicial authority concerning ability to pay fine 43-17
Mittimus where sentence includes fine as well as imprisonment 43-20
Reduction of sentence or discharge of defendant by sentecing court 43-21
Release pending appeal 43-1
Stay of imprisonment pending appeal 43-31
Information, see Arrest and preliminary procedure, this title
Infraction, defined 44-37
See **INFRACTIONS**
Interactive audiovisual device, presence of incarcerated defendant by means of 44-10, 44-10A
Joinder
Defendants 36-22
Offenses 36-21
Severance 41-18
Joint trial of two or more informations 41-19
Judge trial referee, reference to 44-19
Judgment, motion in arrest of 42-56
Judicial authority, determination of guilt where no jury 42-43
Jury trials, right to and waiver 42-1
Array, challenge to 42-4
Cause, excuse of juror for 42-11
Charge, see Instructions, this title
Communications
Judicial authority and jurors 42-7
Parties and jurors 42-8
Deaf, jurors who are, interpreters 42-10
Deliberations 42-21
Deadlocked jury 42-28
Testimony, request by jury for review of 42-26
Disqualification of jurors 42-5
Hard of hearing, jurors who are, interpreters 42-10
Information, exhibits, copy or recording of instructions to be submitted to jury 42-23
Instructions, conference with counsel concerning substance 42-19
Additional instructions 42-25
Jury's request for 42-27
Clarification or modification 42-24
Jury selection, preliminary proceedings 42-11
Peremptory challenges 5-12, 42-13
Voir dire 42-12
Note-taking by jurors 42-9
Oath and admonitions to jurors 42-14
Questions by jurors 42-9
Questions of fact, jury to decide 42-20
Requests to charge and exceptions 42-16

CRIMINAL PROCEDURE — (Cont)
Jury trials, right to and waiver 42-1 — (Cont)
Filing 42-17
Form and contents 42-18
Selection of jurors, preliminary proceedings 42-11
Peremptory challenges 5-12, 42-13
Voir dire 42-12
Sequestration 42-22
Size of jury, election by defendant 42-3
Testimony, request by jury for review of 42-26
Two part information 42-2
Verdict, see **VERDICT**
Viewing of place or thing by jury 42-6
Voir dire of jurors 42-12
Law enforcement officer, defined 44-37
Law enforcement reports, affidavits and statements 40-13A
Limine, motion in 42-15
Media coverage of criminal proceedings 1-11C
Memorandum of decision by trial court 6-1, 64-1
Misdemeanor, defined 44-37
Mistrial, for prejudice to defendant 42-43
For prejudice to prosecution 42-44
Mittimus, where sentence includes fine as well as imprisonment 43-20
Motion for acquittal, see Acquittal, this title
Motion for mistrial, see Mistrial, this title
Motion for new trial, see New trial, this title
Motion in arrest of judgment 42-56
Motion in limine 42-15
Motions and requests, pretrial, in general 41-1, 41-2
Form and manner of making 41-6
Hearings and rulings 41-7
List of motions 41-3
Speedy trial 43-41
Time to make, waiver 41-4, 41-5
Motion to dismiss, matters to be raised by 41-8
Appeal from denial of after conditional plea of nolo contendere 61-6 (a) (2) (A)
Defects not requiring dismissal 41-10
Remedies for 41-11
Restrictions on 41-9
Motion to suppress 41-12
Appeal from denial of after conditional plea of nolo contendere 61-6 (a) (2) (A)
Intercepted communications 41-14
Judicial authority, when disqualified from hearing 41-17
Seized property, return and suppression 41-13, 41-16
Time to file 41-15
New trial, motion for 42-53
Time for filing 42-54
Where based on newly discovered evidence 42-55
Nolle prosequi 39-29
Dismissal of information or complaint 39-32
Effect of 39-31
Objection by defendant 39-30
Offense, defined 44-37
Order of parties at trial 42-35
Of defendants where two or more 42-38
Pleas, in general 37-7
Agreements, conditional pleas of guilty or nolo contendere 39-5
Alternative dispositions recommended by prosecuting authority 39-6
Appeal from denial of motion to dismiss or to suppress 61-6 (a) (2) (A)
Disclosure to judicial authority 39-7
Rejection by judicial authority 39-10

CRIMINAL PROCEDURE — (Cont)
Pleas, in general 37-7 — (Cont)
Reservation of right to appeal 61-6 (a) (2) (B)
Sentencing 39-8, 39-9
Discussions, procedure for in general 39-1
Defendant represented by counsel or not 39-2
Defense counsel, role in plea agreements 39-3
Subject matter 38-4
Guilty or nolo contendere 37-8, 39-18
Acceptance and canvass of defendant by judicial authority 39-19—39-21
Conditional pleas of 39-5
Other offenses, pleading to after finding of guilty 39-22
Record of proceedings 39-24
Rejected plea inadmissible 39-35
Sentencing, see Sentencing, this title
Withdrawal of plea 39-26—39-28
Nolle prosequi 39-29
Dismissal of information or complaint 39-32
Effect of 39-31
Objection by defendant 39-30
Not guilty 37-9
Two part information charging former conviction 37-10, 37-11, 39-23
Election of jury trial on second part 42-2
Presence of defendant at arraignment, plea, evidentiary hearings, trial and sentencing 44-7
Trial and sentencing, when presence not required 44-8
Other exceptions 44-10
Unexcused defendant, capias 44-9
Presence of incarcerated defendant by interactive audiovisual device 44-10, 44-10A
Presentence investigation and report 43-3
Copying report prohibited 43-8
Defense counsel, participation in 43-5
Familiarization of with report and correction of report at sentencing 43-13, 43-14
Disclosure of report 43-9
Persons receiving report 43-7
Report not public record 43-9
Scope 43-4
Time to complete 43-6
Use of report 43-9
Waiver by defendant 43-3
Pretrial motions in general 41-1, 41-2
Form and manner of making 41-6
Hearings and rulings 41-7
List of motions 41-3
Time to make, waiver 41-4, 41-5
Pretrial release
By bail commissioner, conditions 38-3
By clerk, procedure 38-1
By correction officials 38-5
By intake, assessment and referral specialist 38-3
By judicial authority, conditions 38-4 (a)
Factors to be considered 38-4 (b)
Statement of reasons for conditions imposed 38-11
By law enforcement officer or probation officer on bond or promise to appear 38-2
Capias for hearing to review conditions of release 38-15, 38-16
Detention prior to arraignment, trial, sentencing, limit on 38-18
Modification 38-13
Application for by surety on bail bond 38-16
Hearing to consider 38-17
Motion for by bail commissioner 38-15

CRIMINAL PROCEDURE — (Cont)
Pretrial release — (Cont)
Motion for by parties 38-14
Violation of conditions, hearing on 38-19
Forfeiture of bond, issuance of capias or rearrest warrant 38-21
Sanctions for 38-20
Probation
Revocation 43-29
Stay pending appeal 43-32
Prosecuting authority, defined 44-37
Disclosure of plea agreement 43-12
Role at sentencing 43-11
Public defender 37-5, 37-6
Appeals by indigent defendants 43-33—43-38
Appointed counsel, in general 44-1—44-6
Definition of 44-37
Public, exclusion from court proceedings 42-48
Expedited review of order 77-1
Reference to judge trial referee 44-19
Release
See also Pretrial release, this title
Appeal by defendant from judgment of conviction, release pending, conditions 43-2
Appeal by state from judgment of acquittal, release pending 43-1
Pretrial, see Pretrial release, this title
Revocation of probation 43-29
Sealing affidavits in support of arrest warrant application 36-2
Sealing files and documents 42-49A
Sentence review, see Sentencing, this title
Sentencing
See also Incarceration, this title
Correction of illegal sentence 43-22
Defendant's right to make statement 43-10
Defense counsel
Correction of presentence investigation report 43-14
Disclosure of undisclosed plea agreement 43-15
Supplementary documents, submission of 43-16
Hearing, procedure 43-10
Illegal sentence, correction of 43-22
Mittimus, where sentence includes fine as well as imprisonment 43-20
Prosecuting authority, role 43-11
Disclosure of plea agreement 43-12
Reduction of sentence or discharge of defendant by sentencing 43-21
Sentence review
Application for, time for filing 43-24
Counsel, representation by before sentence review division 43-23
Documents, preparation by clerk 43-25, 43-26
Hearing, briefs and memoranda 43-27
Scope of review 43-28
Stay pending appeal 61-13
Victim, participation at 43-10
Sequestration
Jurors 42-22
Witnesses 42-36
Severance of offenses for trial 41-18
Speedy trial, time limitations 43-39
Commencement of trial, defined 43-42
Excluded periods for calculation of time 43-40
Failure to comply with disclosure by prosecuting authority 43-40A
Included periods for calculation of time 43-40A

CRIMINAL PROCEDURE — (Cont)
Speedy trial, time limitations 43-49 — (Cont)
Motion for; dismissal 43-41
Waiver 43-43
Stay
Of imprisonment pending appeal 43-31
Of probation pending appeal 43-32
Stay pending appeal 61-13
Subpoenas
Fees, return of subpoenas 44-32
For production of documents and objects 40-2
Inquiry by investigative grand jury, motion to quash subpoena 44-31
Summons, see Arrest and preliminary procedure, this title
Suppress, motion to, see Motion to suppress, this title
Transfer of pending matter 41-23—41-25
Trial, definition of 44-37
Argument by counsel, time limits 42-37
Extrajudicial statements, warning not to make 42-48
Order of parties proceeding at 42-35
Of defendants where two or more 42-38
Public, exclusion of 42-49
Restraint of disruptive defendant 42-46
Removal of 42-47
Sealing files and documents 42-49
Speedy trial, see Speedy trial, this title
Without jury 42-34
Verdict, see **VERDICT**
Victim
Inquiry concerning during presentence investigation 43-4
Participation at sentencing 43-10
Violation, definition of 44-37
Voir dire of jurors 42-12
Warrant, see Arrest and preliminary procedure, this title
Witnesses
Fees for travel and support 44-34
Indigent witnesses, transportation and support for 44-33
Sequestration 42-36
Youthful offender adjudication without trial 39-33

CUSTODY
See generally **CRIMINAL PROCEDURE, Release**; **FAMILY MATTERS**; **JUVENILE MATTERS**

DAMAGES
Assessment by court 17-2
Claim for following default for failure to appear 17-20
Time for filing 17-20
Default for failure to plead, procedure to be followed 17-32
Demand for relief, statement of 10-20
Interest and costs unnecessary to claim 10-28
Not to be disclosed to jury 16-19
Hearings in damages
Following default 17-34—17-40
Following summary judgment on liability 17-50
Privileged for assignment 14-9
Jury trial where claim joined with equitable issues 16-11
Liquidated damages
Contract action 17-33
Procedure on default for failure to appear 17-24
When judgment may be rendered following default for failure to appear 17-33
Offer of judgment 17-11—17-18
Physical or mental examination, request for where personal injury damages claimed 13-11
Reduction of award where verdict exceeds demand 16-19

DAMAGES — (Cont)
Referrals
To arbitrators 23-61
To fact finders 23-53
Small claims rules, applicability 24-2
Default where liquidated damages claimed 24-24
Statement of in demand for relief 10-20

DEAF, JURORS WHO ARE
Civil juries 16-1, 16-8
Criminal juries 42-10

DECLARATORY JUDGMENT
Generally 17-54
Appeal 17-58
Conditions 17-55
Costs 17-57
Order of priorities 17-59
Procedure 17-56

DEFAULT JUDGMENTS
Absent or nonresident defendant 9-1
Default judgments and nonsuits
Appear, failure to 17-19
Affidavit of debt 17-25
Judgment, entry of 17-27, 17-33
Enforcement of 17-28
Liquidated sum, action for, applicable procedure 17-24
Military service, affidavit concerning 17-21, 17-25
Default rules not applicable to defendant in military or naval service 17-23
Motion for default for failure to appear 17-20, 17-25
Procedure not applicable to dissolution of marriage, legal separation, annulment 25-51
Notice of judgment, mailing by counsel 17-22
Short calendar, motion not on 17-29
Weekly payments, order for 17-26
Damages, hearing in
Defense, notice to be specific 17-37
Amending notice 17-38
Reply not allowed 17-39
Time to give 17-35
Evidence to reduce damages 17-39
Notice by clerk of default 17-36
Plead, default for failure to 17-31, 17-32
Opening default where judgment not rendered 17-42
Opening judgment on default or nonsuit 17-43
Small claims, defaults in 24-24

DEFICIENCY JUDGMENTS
See **FORECLOSURE**

DELINQUENCY
See **JUVENILE MATTERS**

DISBARMENT
See generally **ATTORNEYS, Discipline; Grievances**

DISCOVERY AND DEPOSITIONS—CIVIL
Admission of facts and execution of writings, requests for admission 13-22
Answers and objections to requests for admission 13-23
Effect of admission 13-24
Expenses on failure to admit 13-25
Agreements regarding Discovery and Deposition Procedure 13-32
Definitions 13-1

DISCOVERY AND DEPOSITIONS—CIVIL — (Cont)
Depositions, in general 13-26
Deposition procedure 13-30
Notice of deposition
Deposition of organization, production of documents and materials 13-27
General requirements, special notice, nonstenographic recording 13-27
Persons before whom deposition taken 13-28
Place of deposition 13-29
Subpoenas 13-28A
Use of depositions in court proceedings 13-31
Disclosure
Amount and provisions of insurance liability policy 13-12
Assets, where prejudgment remedy sought 13-13
Before court or committee 13-17
Continuing duty to disclose 13-15
Defense 13-19
In equity 13-18
Medicare enrollment, eligibility or payments received 13-12A
Discovery
Health information, motion for authorization to obtain protected 13-9, 13-11A
Outside the United States 13-21
Scope, in general 13-2
Experts 13-4
Materials prepared in anticipation of litigation, statements of parties 13-3
Protective order 13-5
Sought by judgment creditor 13-20
Duty to disclose, continuing 13-15
Electronic deposition procedure 13-30
Electronically stored information, loss of 13-14
Family matters 25-31, 25-32
Habeas corpus, civil 23-38, 23-39
Interrogatories, in general 13-6
Answers to 13-7
Objections to 13-8
Juvenile matters 31a-16, 34a-20
Order for compliance, failure to answer or comply with order 13-14
Orders by judge 13-16
Physical or mental examination, request for 13-11
Privilege or protection, postproduction claim of 13-33
Remote deposition procedure 13-30
Requests for admission 13-22
Answers and objections to 13-23
Requests for production, inspection and examination, in general 13-9
Physical or mental examination 13-11
Responses to requests for production, objections 13-10
Subpoenas 13-28A
Subpoena duces tecum 13-27

DISCOVERY AND DEPOSITIONS—CRIMINAL
Depositions, in general, grounds 40-44
Defendant, right to be present and represented 40-54
Waiver of right 40-55
Expenses of 40-58
Failure to appear for, capias 40-45
Manner of taking 40-49, 40-57
Notice of 40-47
Objections during 40-49
Person taking deposition 40-47
Protective order concerning 40-48
During examination 40-52

DISCOVERY AND DEPOSITIONS—CIVIL — (Cont)
Depositions, in general, grounds 40-44 — (Cont)
Return of, depositions to be sealed 40-53
Scope of examination 40-50
Unavailable deponent, defined 40-56
Use of 40-46, 40-57
Discovery, in general 40-1; see also Depositions, this title
Admissibility of defendant's intent to offer evidence or call witness 40-30
Alibi defense, required notices concerning 40-21—40-23
Exceptions 40-24
Withdrawn alibi not admissible 40-25
Continuing duty to disclose 40-3
Custody of materials 40-10
Disclosure to unrepresented defendant 40-10
Defendant's duty, materials discoverable by prosecution as of right 40-26
Derivative materials, disclosure to defendant 40-28
Discretionary disclosure by 40-27
Materials excepted from disclosure 40-31
Protective orders, for defendant 40-29
Documents or objects, subpoenas for 40-2
Failure to comply 40-5
Law enforcement reports, affidavits and statements 40-13A
Mental disease or defect or extreme emotional disturbance, disclosure of defense of 40-17
Expert testimony concerning, disclosure by defendant of intent to use 40-18
Failure of expert to submit report 40-20
Psychiatric examination, prosecutorial motion for 40-19
Nontestimonial evidence, obtaining from defendant 40-32
Comparison of 40-39
Emergency procedure for 40-33
Motion for by defendant 40-38
Order for, scope 40-34
Contents 40-35
Implementation 40-37
Service 40-36
Objection to disclosure 40-8
Performance 40-6
Procedure 40-7
Prosecuting authority's duty, materials discoverable by defendant as of right 40-11
Discretionary disclosure by 40-12
Materials excepted from disclosure 40-14
Protective orders 40-29, 40-40
Factors to be considered 40-41
In camera proceedings on motion for 40-42, 40-43
Excision as relief, record of 40-43
Requests and motions 40-4
Scientific tests and experiments 40-9
Statements 40-15, 40-16
Subpoenas for documents or objects 40-2
Witnesses, information concerning and statements by 40-13

DISMISS, MOTION TO
Civil 10-30—10-34
Criminal 41-8—41-11

DISQUALIFICATION OF JUDICIAL AUTHORITY
Appellate jurists 66-9
Generally 1-19, 1-22, 1-23

DISSOLUTION OF MARRIAGE OR CIVIL UNION
See **FAMILY MATTERS**

DOCKET
See generally **ASSIGNMENTS FOR TRIAL—CIVIL**; **CLERKS**; **CRIMINAL PROCEDURE**

E-FILED CASES
See **ELECTRONIC FILING**

ELECTRONIC BRIEFING REQUIREMENT
See **APPELLATE PROCEDURE; BRIEFS**

ELECTRONIC DEPOSITION PROCEDURE 13-30

ELECTRONIC FILING 4-4
Appeals 60-7, 63-3
Court system nonoperational 7-17, 63-2
Small claims 24-3

ELECTRONIC DEVICES AND MEDIA
See **MEDIA**

EMINENT DOMAIN
Clerk's fees 18-4
Reference to committee or referee 19-6

EQUITABLE RELIEF
See **MANDAMUS**

EVIDENCE
Exceptions not required 5-7
Exhibits, marking 5-7
Exhibits, transmitting to appellate clerk 68-1
Interlocutory matters, address by counsel 5-5, 5-8
Medical evidence 15-4
Family matters, procedure for introducing 25-55
Motion in limine, civil 15-3
Criminal 42-15
Objections, reasons for 5-5
Reception of evidence objected to 5-6
Prima facie case, dismissal for failure to make 15-8
Prior uncharged sexual misconduct 40-13B
Suppress, motion to, criminal cases 41-12
Appeal from denial of after conditional plea of nolo contendere 61-6 (a) (2) (A)
Intercepted communications 41-14
Judicial authority, when disqualified from hearing 41-17
Seized property, return and suppression 41-13, 41-16
Time to file 41-15
Supreme Court, admission in original action 84a-5
Witnesses, examination of 5-4
Oath, administration of 5-3
Sequestration, criminal cases 42-36

EXECUTIONS
Civil actions
Application for, unsatisfied money judgment 17-52
Costs, execution for balance 18-12
Default judgment, execution on 17-28
Foreclosures
Execution of ejectment, stay 23-17
Small claims 24-30, 24-31, 24-32
Summary process executions 17-30, 17-53
Criminal matters
Bond, forfeiture of, stay of execution 38-21
Warrant, execution and return of 36-5

EXHIBITS
Appeals, availability and removal of exhibits 62-10, 62-11
Transmitting to appellate clerk 68-1
Marking 5-7
Removal from clerk's office on determination of case 7-21

EXPERT WITNESSES
Appointment by judicial authority in family matters 25-33
Criminal cases 40-18—40-20
Deposition fees 13-4
Disclosure of 13-4
Reports of 13-4
Schedule for expert discovery 13-4

FACT-FINDING
See **CIVIL ACTIONS, Fact-Finding**

FAMILY MATTERS
Definition of 25-1; see also **CIVIL ACTIONS**; **FAMILY SUPPORT MAGISTRATE MATTERS**; **JUVENILE MATTERS**
Affidavit concerning minor child 25-57
Alimony, motions for 25-24
Modification 25-26
Order of notice concerning 25-29
Annulment, complaint 25-2
Automatic orders on service 25-5
Required information prior to hearing 25-58
Appearances, generally 25-6
By self-represented party in addition to attorney 25-6A
Failure to file 25-51
Interactive audiovisual device, use of 23-68
Appellate briefs 67-13
Application
Automatic orders on service 25-5, 25-5A
Custody of minor child 25-3
Visitation of minor child 25-4
Appointment of counsel for minor child, motion for 25-24
Assignments 25-48
Attorney for minor child, appointment of 25-62A
Automatic orders on service of complaint or application 25-5, 25-5A, 25-5B
Case management
Date, automatic order on 25-5
Date, filings by 25-34A, 25-50A
Scheduling 25-34A, 25-50A
Scheduling of motions, 25-34A
Child support, motion for 25-24
Automatic orders on service of petition, child support 25-5A
Child support and arrearage guidelines worksheet 25-30
Modification 25-26
Order of notice concerning 25-29
Support enforcement officer, services by 25a-30
Civil union, complaint for dissolution of 25-2
Automatic orders on service 25-2
Motion for dissolution following legal separation 25-36
Required information prior to hearing 25-58
Closure of courtroom 25-59
Complaint
Amendment 25-7, 25-8
Automatic orders on service 25-5
Dissolution of marriage or civil union, legal separation, annulment 25-2
Contempt, motion for 25-27
Right to counsel 25-63
Waiver 25-64
Counsel
Appointment for minor child, motion for 25-24
Fees, motion for 25-24
Right to in contempt proceedings 25-63
Waiver 25-64
Right to in parentage actions 25-68

FAMILY MATTERS — (Cont)
Criminal restraining order, testimony by person on behalf of whom order issued 5-11
Custody of minor child, action for 25-3
Automatic orders on service of application 25-5
Modification 25-26
Motion for 25-24
Debt, unreasonable, automatic order not to incur 25-5
Definitions 25-49
Discovery and depositions 25-31, 25-32, 25-56
Noncompliance with request or order 25-32A
Special master 25-32B
Dissolution of marriage, complaint 25-2
Automatic orders on service 25-5, 25-5B
Motion for following legal separation 25-36
Notice and hearing on 25-36
Required information prior to hearing 25-58
Dockets 25-48
Documents
Limiting disclosure of 25-59A
Mandatory exchange of 25-32
Personal Identifying information in 25-59B
Production on request prior to hearing or trial 25-56
Evaluation, court-ordered 25-60A
Evaluation or study, disposition of case to await report 25-60
Evaluation, prohibition against contract with evaluator 25-61
Evidence, medical 25-55
Expert witnesses, appointment by judicial authority 25-33
Failure of defendant to appear, generally 25-51
For scheduled disposition 25-52
Family relations counselor
Disclosure to judicial authority of recommendations by concerning alimony and child support 25-35
Duties of 25-69
Evaluations and studies 25-60
Investigations by 25-69
Family services unit, assistance by 25-61
Family services mediation reports and family services conflict resolution reports 25-60
Family support magistrates, determination of matters by 25a-1
Appeal from 25a-29
Files, sealing 25-59A
Financial disputes, definition 25-49
Financial statements, automatic orders to complete and exchange 25-5
To be filed before hearing on motion or order to show cause 25-30
Guardian ad litem, appointment 25-62
Comprehensive training program 25-62
Habeas corpus, petition 25-40
Discovery 25-47
Dismissal, grounds for 25-42
Issuance of writ, preliminary 25-41
Return 25-43
Reply to return 25-44
Schedule for filing pleadings 25-45
Summary judgment, motion for 25-46
Identification of cases 7-4A
Insurance coverage, automatic orders to maintain 25-5, 25-5A
Interactive audiovisual device, use of 23-68
Judge trial referees, references to 25-53
Judgment files 25-38
Legal separation, complaint 25-2
Automatic orders on service 25-5
Mandatory exchange of documents 25-32

FAMILY MATTERS — (Cont)
Medical evidence 25-55
Memorandum of decision 64-1, 64-2
Minor child
Affidavits concerning 25-57
Attorney for, appointment of 25-62A
Automatic orders concerning filing of dissolution of marriage or civil union, annulment or separation complaint or custody or visitation application 25-5
Automatic orders concerning petition for child support 25-5A
Custody action 25-3
Guardian ad litem, appointment for 25-62
Visitation action 25-4
Motions, generally 25-23
Alimony 25-24
Appointment of counsel for minor child 25-24
Child support 25-24
Contempt 25-27
Counsel fees 25-24
Custody 25-24
Exclusive possession of property 25-25
Financial statement to be filed before hearing on motion or order to show cause 25-30
Personal identifying information, motion to seal or redact documents containing 25-59B
Visitation 25-24
Order of trial 25-54
Orders of notice 25-23, 25-28, 25-29
Parentage actions, right to counsel 25-68
Parenting education program, o rder to participate in 25-5
Parenting disputes, definition 25-49
Pendente lite orders in absence of sworn statements by parties 25-30
Pleadings
Answer 25-9
Complaints and applications 25-2—25-4
Amendments 25-7, 25-8
Cross complaint 25-9
Answer 25-10
Dismiss, motion to 25-12
Denial, further pleading 25-15
Grounds 25-13
Subject matter jurisdiction, lack of not subject to waiver 25-14
Electronic filing 4-4
Order of 25-11
Strike, motion to, grounds 25-16
Hearing on 25-17
Judgment, failure to plead after pleading stricken 25-21
Memorandum of decision, when required 25-20
Memorandum of law required 25-19
Reasons to be specified 25-18
Stricken pleading part of other cause of action 25-22
Substitute pleading following granting 25-21
Postnuptial agreements, enforcement or avoidance of 25-2A
Pretrials 25-48
Production of documents on request prior to hearing or trial 25-56
Premarital agreements, enforcement or avoidance of 25-2A
Property, automatic order not to dispose of 25-5
Proposed written orders to be filed and served by parties 25-30
Protective order, testimony by individual on behalf of whom order issued 5-11
References to judge trial referees 25-53

FAMILY MATTERS — (Cont)
Removal of minor child from state, automatic order concerning 25-5
Residence, automatic orders concerning 25-5
Restraining order, testimony by person on behalf of whom order issued 5-11
Sealing files 25-59A, 25-59B
Securities, purchasing or selling, automatic order concerning 25-5
Support enforcement officer, services by 25a-30
Trial, order of 25-54
Uncontested matter, definition 25-49
Uniform Interstate Family Support Act 25-1
Visitation of minor child, action for 25-4
Automatic orders on service of application 25-5
Motion for 25-24
Witnesses, expert, appointment by judicial authority 25-33

FAMILY RELATIONS COUNSELOR
See **FAMILY MATTERS**

FAMILY SUPPORT MAGISTRATE MATTERS
Alimony or child support, modification 25a-18
Appeal from decision of family support magistrate 25a-29
Appearance, filing, duration and withdrawal 25a-2, 25a-3
Applicability of rules in other chapters 25a-1
Automatic orders on service of petition 25a-7
Certificate of completion of limited appearance, filing of 25a-3
Child support or alimony, modification 25a-18
Cite in new party, motion for 25a-10
Continuance, matters requiring counsel's presence or oral argument 25a-14
Depositions 25a-27, 25a-28
Disclosure and production of documents 25a-19
Discovery 25a-24, 25a-25, 25a-26
Expert witnesses, disclosure of 25a-21
Financial affidavits, filing 25a-15
Hearings, telephonic 25a-4
Hospital records as evidence 25a-20
Interrogatories and answers to interrogatories 25a-22, 25a-23
Failure to comply 25a-25
Modification of alimony or child support 25a-18
Motions 25a-9
Cite in new party 25a-10
Open judgment of parentage by acknowledgment 25a-17
Notice of child support enforcement services 25a-1A
Opening statement to be allowed at discretion of judicial authority 25a-16
Orders of notice 25a-8
Parentage acknowledgment, motion to open 25a-17
Petitions, contents 25a-6
Automatic orders on service of petition 25a-7
Cross petition, answer to 25a-11
Pleadings, signing of 25a-5
Answer to cross-petition 25a-11
Order of pleadings 25a-12
Production, inspection and examination, requests for 25a-24
Continuing duty to disclose 25a-26
Failure to comply 25a-25
Reclaim of matters gone off family support magistrate calendar 25a-13
Rules in other chapters, applicability of 25a-1
Short calendar matters, continuance where counsel's presence or oral argument required 25a-14
Support enforcement officer, services to be provided 25a-30

FEES AND COSTS
Admission to bar, disposition of fees 2-22
Appeals 60-7, 60-8, 61-7, 61-8
Certification for review by Supreme Court 84-4, 84-9
Civil actions, application for waiver 8-2
Client security fund fee 2-70
Pro hac vice, payment by 2-16
Consolidated actions 18-14
Costs
For exhibits 18-18
Interest and costs, unnecessary to claim 10-28
On appeal from commissioners 18-2
On complaint and counterclaim 18-16
On counterclaim 18-17
On creditor's appeal 18-3
On interlocutory proceedings 18-7
On writ of error 18-6
Several defendants 18-13
Taxation of, appeal 18-5
Where both legal and equitable issues 18-15
Where several issues 18-12
Counsel fees in family matters, motion for 25-24
Court expenses, vouchers for 18-1
Criminal cases
Extradition, officer's fees 44-35
Subpoenas, return of 44-32
Waiver, appeal of conviction by indigent defendant 43-33
Witnesses, travel fees 44-34
Indigent witnesses, transportation and support 44-33
Eminent domain, clerk's fees 18-4
Family matters, counsel fees 25-24
Joint plaintiffs or consolidated actions 18-14
Jury fee, where more than one trial 18-8
Motor vehicle violation, fee on motion to open judgment 44-36
Proceedings before judge, no costs 18-19
Small claims 24-32
On motion to open judgment 24-31
Waiver, appeals 63-6, 63-7
Waiver, civil actions 8-2
Witness fees
In several suits 18-10
Nonresident witnesses 18-9
Witness not called 18-11

FILES
Appeals, availability and removal of files 62-10, 62-11
Review of trial court files by appellate counsel 62-8
Clerks, records and files of cases to be kept by 7-1
Custody of 7-7
Destruction of files 7-10, 7-11
Motion to prevent 7-16
Retention and stripping of files, schedule 7-11
Adult probation and family division, reports from 7-14
Criminal actions, records and files in 7-13
Sealing 42-49
Motor vehicle cases, files in 7-13
Title to land, files in actions affecting 7-12
Transfer to records center or state library 7-15
Documents and papers, prerequisites for filing 7-6
Electronic filings 4-4
Nonoperational electronic filing system 7-17, 63-2
Exhibits, removal or destruction on determination of case 7-21
Financial accounts, records of to be kept by clerks 7-3
Hospital, psychiatric and medical records, prerequisites for filing with clerk 7-18

FILES — (Cont)
Identification of cases 7-4A
Judgment files, see **JUDGMENTS**
Lost files or pleadings 7-8
Sealing
Civil matters 11-20A, 11-20B
Criminal cases 42-49A
Expedited review of order 77-1
Family matters 25-59A
Unfinished record, completion of by clerk 7-9

FORECLOSURE
Judgment, timing to file motion for 17-33A
Expedited procedure; opening judgment of foreclosure 17-4
Mortgages, appraisal report to be served on each appearing defendant 23-16
Complaint 10-69
Complex litigation status and assignment 23-13
Assigned judge, powers of 23-14
Request for 23-15
Deficiency judgment, motion for 23-19
Law days, listing 23-17
Proof of debt 23-18
Municipal tax liens, foreclosure of, allegations 10-70

GRAND JURY
Review of order of 78-1

GRIEVANCES
See **ATTORNEYS**

GUARDIAN AD LITEM
Appointment in criminal cases 44-20
Appointment in family matters 25-62

HABEAS CORPUS
Appeal, notice of right to 43-30; see also **CRIMINAL PROCEDURE, Appeal**
Certification to appeal 80-1
Appointment of counsel 23-26
Motion for leave to withdraw appearance 23-41
Judicial action on 23-42
Discovery and depositions 23-38, 23-39
Family cases, petition 25-40
Discovery 25-47
Dismissal, grounds for 25-42
Issuance of writ, preliminary 25-41
Return 25-43
Reply to return 25-44
Schedule for filing pleadings 25-45
Summary judgment, motion for 25-46
Fees and costs 23-25
Petitioner's presence in court 23-40
By interactive audiovisual device 23-40
Pleadings
Petition 23-22
Amendment of 23-32
Consideration by judicial authority, preliminary 23-24
Dismissal of 23-29
Noncomplying petition, return of 23-23
Reply to return 23-31
Return 23-30
Request for more specific statement 23-33
Schedule of filing 23-35
Record 23-36
Summary judgment 23-37
Summary procedure 23-34
Transfer 23-28

HABEAS CORPUS — (Cont)
Venue 23-27

HARD OF HEARING, JURORS WHO ARE
Civil juries 16-1, 16-8
Criminal juries 42-10

HEARINGS
See also **CIVIL ACTIONS, Fact-Finding**; **JUVENILE MATTERS**
Appeals, hearings on motions 66-4
Videoconference of hearings 66-4
Civil actions
Counsel's failure to appear 5-10
Fact-finding hearings 23-55
Failure to appear at by party 23-59
Hearings in chambers
Certifying proceedings to court 20-2
Contested matters, procedure in 20-1
Papers
Cause affecting land 20-5
Clerk designated by judge to take 20-6
Trial before judge, lodging papers and file 20-4
Transfer of hearings before judges 20-3
Hearings in damages
Following default 17-34—17-40
Following summary judgment on liability 17-50
Privileged for assignment 14-9
Small claims 24-22, 24-23
Scheduling, continuances 24-15
Time and place, notice 24-14
Unemployment compensation 22-2
Delinquency, see **JUVENILE MATTERS**
Telephonic hearings, family support magistrate proceedings 25a-4
Termination of parental rights, see **JUVENILE MATTERS**

HEARSAY
Child's or youth's hearsay statement; residual exception 35a-23

IN CAMERA
See generally **HEARINGS**
Proceedings on motion for protective order in criminal case 40-42, 40-43

INDIGENT DEFENDANT
See **PUBLIC DEFENDER**

INFORMATION
See **ARREST AND PRELIMINARY CRIMINAL PROCEDURE**

INFRACTIONS
As offenses 44-21
Centralized infractions bureau 44-28
Powers of 44-29
Custody, when not required 44-23
When required 44-24
Definition of 44-37
Magistrates, hearings by 44-30
Not guilty pleas 44-26
Hearings following entry of 44-27
Payment of fine as plea of nolo contendere 44-25
Summons and complaint, form 44-22

INJUNCTION
Notice required for ex parte temporary 4-5

INSTRUCTIONS
See **JURIES—CIVIL**; **JURIES—CRIMINAL**

INTAKE, ASSESSMENT AND REFERRAL SPECIALIST
Release by 38-3

INTERACTIVE AUDIOVISUAL DEVICE
Civil and family proceedings, use of for appearance of incarcerated individual 23-68
Criminal proceedings, presence of incarcerated individual by means of 44-10, 44-10A
Detention hearings, presence of detained child or youth by means of 30-12
Juvenile matters, appearance of person by means of 35a-22
Oath, administration of by means of 23-68

INTEREST
See **FEES AND COSTS**

INTERNS
See **LEGAL INTERNS**

INTERPLEADER
Pleadings 23-43
Procedure in 23-44

JOINDER
Civil Actions
Causes of action 10-21—10-22
Class actions, see **CLASS ACTIONS**
Consolidations of actions for trial 9-5
Impleading of third party 10-11
Interested persons as defendants 9-6
Legal and equitable relief, claims for 10-24
Miscellaneous parties, joinder as plaintiffs or defendants
Assignees 9-15, 9-16
Defendants alleged to be alternatively liable 9-14
Personal representatives of deceased cocontractors on joint contract 9-12
Persons liable on same instrument 9-13
Misjoinder 9-19
Motion to strike as remedy for 11-3
Nonjoinder 9-19
Motion to strike for nonjoinder 10-39, 11-3
Parties and actions 9-3
Plaintiffs in one action 9-4
Torts 10-23
Criminal Matters
Defendants 36-22
Misjoinder not requiring dismissal 41-10
Motion for 41-3
Motion for severance 41-18
Offenses in information 36-22
Family Matters
Nonjoinder of necessary party, motion to strike 25-16

JUDGES AND JUDICIAL AUTHORITIES
Appellate jurists sitting as Superior Court judges 60-6
Chief judge of Appellate Court 62-1
Complaint or action filed against, notice of 4-8
Disqualification 1-22, 66-9
Motion for 1-23
Judge trial referee, reference to 19-3
Criminal cases 44-19
Senior judges, references, applicable rules 19-1

JUDGMENT FILES
See **JUDGMENTS**

JUDGMENTS
Generally 17-1, chapters 6 and 17; see also **APPELLATE PROCEDURE**; **VERDICT**
Automatic stay pending appeal, and exceptions 61-11
Nonautomatic stay 61-12
Decision, statement of by judicial authority, when required 6-1, 64-1, 64-2
Declaratory judgments, see **DECLARATORY JUDGMENT**
Default judgments and nonsuits
Appear, failure to 17-19
Affidavit of debt 17-25
Judgment, entry of 17-27, 17-33
Enforcement of 17-28
Liquidated sum, action for, applicable procedure 17-24
Military or naval service, affidavit concerning 17-21, 17-25
Default rules not applicable to defendant in military or naval service 17-23
Motion for default for failure to appear 17-20, 17-25
Notice of judgment, mailing by counsel 17-22
Short calendar, motion not on 17-29
Weekly payments, order for 17-26
Damages, hearing in
Defense, notice to be specific 17-37
Amending notice 17-38
Reply not allowed 17-39
Time to give 17-35
Evidence to reduce damages 17-39
Notice by clerk of default 17-36
Opening default where judgment not rendered 17-42
Opening judgment on default or nonsuit 17-43
Plead, default for failure to 17-31, 17-32
Executions 17-52
Facts underlying judgment to appear of record 17-5
Finality for purposes of appeal, see **APPELLATE PROCEDURE**
Finding, form of 17-6
Special finding, request for 17-7
Form and contents of 17-9
Functions of 17-8
Foreclosure, timing to file motion for judgment, see **FORECLOSURE**
Judgment files, captions and contents 6-2
Appeal papers, filing requirements 63-4, 67-8
Appellate proceedings, judgment files in, see **APPELLATE PROCEDURE**
Family matters 25-38
Notation of satisfaction of judgment 6-5
Preparation, when, by whom, filing 6-3
Signing 6-4
Memorandum of decision 6-1, 64-1, 64-2
Modifying judgment after appeal 17-10
Offer of compromise
By defendant 17-11
Acceptance of offer 17-12
Failure to accept offer 17-13
By plaintiff, counterclaim plaintiff 17-14
Acceptance of offer 17-15
Failure to accept offer 17-16
Judgment where amount greater than offer recovered 17-18
Negligence of health care provider alleged 17-14A
Offer and acceptance to be included in record 17-17
Opening 17-4
Expedited procedure, opening judgment of foreclosure 17-4
Record of proceeding, facts to appear on 17-5

JUDGMENTS — (Cont)
Remittitur where judgment too large 17-3
Setting aside 17-4
Stay pending appeal, and exceptions 61-11, 61-12
Summary judgments, scope of remedy 17-44
Affidavits
Bad faith, affidavits made in 17-48
Form of 17-46
Appropriate documents not available 17-47
Judgment 17-49
For part of claim 17-51
Motion for, proceedings upon 17-45
Permission to file, motion for 17-44
Timing of, when scheduling order exists 17-44
Timing of, when assigned for trial, no scheduling order 14-44
Triable issue as to damages only 17-50
Summary process 17-30
Execution 17-53

JUDICIAL REVIEW COUNCIL
Appeals from, in general 74-1
Appellate rules, applicability of 74-6
Complaint filed by attorney or party, notice of 4-8
Decision of council, statement of 74-4
Initiation of proceedings by Supreme Court 74-3A
Papers to be filed 74-1
Parties, proper form of reference 74-5
Recommendation by council, action on by Supreme Court where no appeal 74-2A

JURIES—CIVIL
Amount in demand, disclosure to jury prohibited 16-19
Array, challenge to 16-2
Cause, excuse of juror for 16-3
Charge, see Instructions this title
Communications with jurors prohibited 16-14
Deaf, jurors who are, interpreters for 16-1
Deliberations 16-16
Deadlocked jury 16-29
Interrogatories 16-18
Return for reconsideration 16-17
Review of testimony during 16-27
Discharge after verdict 16-33
Exhibits, pleadings and copy or recording of instructions, submission to jury 16-15
Fact, questions of to be decided by jury 16-9
Equitable actions, facts decided by jury, when 16-10
Judgment of court 16-13
Hard of hearing, jurors who are, interpreters for 16-1
Interpreters not to participate in deliberations 16-8
Instructions
Additional instructions 16-26, 16-28
Counsel to be informed of substance of charge 16-25
Deadlocked jury 16-29
Modification for correction or clarification 16-25
Requests for, see Requests to charge and exceptions, this title
Interrogatories 16-18
Jury selection, preliminary proceedings
Disqualification of jurors 16-4
Peremptory challenges 5-12, 16-5
Voir dire 16-6
Legal and equitable issues, determination of case presenting both 16-11
Judgment in 16-13
Note-taking by jurors 16-7

JURIES_CIVIL — (Cont)
Oath and admonitions to jurors 16-8
Pleadings, submission to jury 16-15
Polling after verdict 16-32
Questions by jurors during trial 16-7
Questions of fact, jury to decide 16-9
Judgment 16-13
Questions of law, judicial authority to decide 16-9
Request to charge and exceptions 16-20
Filing 16-22
Form, contents and number 16-23
Principles of law in 16-21
Selection of jurors
Disqualification of jurors 16-4
Peremptory challenges 5-12, 16-5
Voir dire 16-6
Verdict, see **VERDICT**
Viewing of place or thing by jury 16-12
Voir dire of prospective jurors 16-6

JURIES—CRIMINAL
Array, challenge to 42-4
Cause, excuse of juror for 42-11
Charge, see Instructions, this title
Communications
Judicial authority and jurors 42-7
Parties and jurors 42-8
Deaf, jurors who are, interpreters 42-10
Deliberations 42-21
Deadlocked jury 42-28
Testimony, request by jury for review of 42-26
Disqualification of jurors 42-5
Duty to report prejudicial information, improper outside influence, clerical mistake in verdict 42-8
Hard of hearing, jurors who are, interpreters 42-10
Information, exhibits, copy or recording of instructions to be submitted to jury 42-23
Instructions, conference with counsel concerning substance 42-19
Additional instructions 42-25
Jury's request for 42-27
Clarification or modification 42-24
Jury selection, preliminary proceedings 42-11
Array, challenge to 42-4
Peremptory challenges 5-12, 42-13
Voir dire 42-12
Note-taking by jurors 42-9
Oath and admonitions to jurors 42-14
Questions by jurors 42-9
Questions of fact, jury to decide 42-20
Requests to charge and exceptions 42-16
Filing 42-17
Form and contents 42-18
Right to jury trial, waiver 42-1
Selection of jurors, preliminary proceedings 42-11
Array, challenge to 42-4
Peremptory challenges 5-12, 42-13
Voir dire 42-12
Sequestration 42-22
Size of jury, election by defendant 42-3
Testimony, request by jury for review of 42-26
Two part information 42-2
Verdict, see **VERDICT**
Viewing of place or thing by jury 42-6
Voir dire of jurors 42-12
Waiver of right to jury trial 42-1

JUVENILE MATTERS
Adjudicatory hearing
Neglected, abused and uncared for child; termination of parental rights 35a-1
Alleged genetic parent, definition 26-1
Appeal, see also **APPELLATE PROCEDURE**
Applicability of general Superior Court rules 34a-1
Attorney
Access to reports and studies
Delinquency 30-9, 30a-8
Neglected, abused and uncared for child; termination of parental rights 32a-1, 32a-7
Appellate counsel, application for 35a-21
Review by appellate review attorney 35a-21
Right to 27-5, 27-6, 30-3, 30a-1, 32a-1
Waiver of right, neglected, abused and uncared for child; termination of parental rights 35a-1
Chief public defender, assignment of attorney to represent child or youth 32a-1
Child, definition of 26-1
As witness, procedure for testimony 32a-4
Child protection, see Neglected, abused and uncared for child; termination of parental rights, this title
Clinical consultation, definition 26-1
Clinical coordinator, definition 26-1
Commitment, definition 26-1
Commitment of child or youth as mentally ill 31a-15
Revocation of 35a-14A
Complaint, definition of 26-1
Contempt 34a-22
Continuances and advancements 34a-5
For case status conference on denial of petition alleging neglected, abused and uncared for child or youth and termination of parental rights 33a-7, 35a-2
Coterminous petitions, neglected, abused and uncared for child; termination of parental rights 35a-3
Counsel, see Attorney, this title
Court-ordered evaluation of child 34a-21
Custody, order of temporary 33a-6
Emergency or life-threatening situation, application procedure 33a-8
Preliminary hearing 33a-7
Respondent's rights, statement of 33a-7
Default, opening order obtained by 35a-18
Defenses, disclosure of, delinquency proceedings 31a-17
Definitions 26-1
Delinquency, complaint or petition, nonjudicial handling, see Nonjudicial handling of delinquency complaints or petitions, this title
Delinquency hearing, see Hearings: delinquency, this title
Delinquency informations or petitions, contents and service 29-1, 29-2
Processing 29-1A
Detention
Basis for, requirements 30-6
Conditional release 30-10
Duration of 30-5, 30-8, 30-10
Requirements for extension 30-5
Hearing
Information to be considered 30-9
Place of 30-7
Waiver of 30-8
Initial order for, without hearing 30-8
Release to parents 30-8
Nondelinquent child or youth, other jurisdiction 30-5
Nondelinquent juvenile runaway from another state 30-2A

JUVENILE MATTERS— (Cont)
Detention — (Cont)
Order for, after hearing, on finding of necessary factor 30-10
Release, and periodic drug testing as condition 30-10
Subsequent to dispositional hearing, mandatory review 30-11
Disclosure of defenses, delinquency proceedings 31a-17
Discovery
Delinquency, youth in crisis matters 31a-16
Neglected, abused and uncared for child; termination of parental rights 34a-20
Dismiss, motion to 34a-9—34a-11
Electronic filing 26-3
Emergency medical situations requiring temporary custody 33a-8
Emergency relief 34a-23
Evaluation of child 34a-21
Examinations, physical or mental, delinquency 31a-14
Forensic clinical assessment, definition 26-1
Guardian, definition 26-1
Hearing procedure, neglected, abused and uncared for child; termination of parental rights 32a-2
Hearings
Adjudicatory, neglected, abused and uncared for child; termination of parental rights 35a-1
Advancement of 34a-5
Attendance of persons 26-2
Agency representative 26-2
Exclusion of persons not necessary 26-2
Foster parent 26-2
News media 26-2
Prohibition of disclosure of identifying information for good cause 26-2
Relatives 26-2
Service provider 26-2
Termination of parental rights or allegations of uncared for, neglected or abused child, attendance of persons with legitimate interest 26-2
Victim in delinquency hearings, exclusion of for good cause 26-2
Audiovisual device, appearance by 35a-22
Civil proceedings, hearings as 32a-2
Continuance 34a-5
For case status conference, neglected, abused and uncared for child; termination of parental rights 33a-7, 35a-2
Definition 26-1
Delinquency hearing, see Hearings: delinquency, this title
Detention hearing, see Detention, hearing, this title
Dispositional hearings 30a-5, 30a-6, 35a-9—35a-11
Dispositive hearing, definition 26-1
Hearings: delinquency
Advisement of rights, initial plea hearing 30a-1
Burden of going forward 30a-3
Continuance for pretrial conference 30a-2
Counsel, request for 30a-2
Dispositional hearing 30a-5
Victim, statement on behalf of 30a-6
Plea agreement 30a-2
Plea canvass 30a-4
Plea hearing, initial 30a-1
Counsel, appointment of 30a-1
Pretrial conference 30a-2
Recording of hearings 30a-7
Records 30a-8
Testimony admissible at dispositional hearing 30a-5

JUVENILE MATTERS — (Cont)
Hearsay, child's or youth's statement; residual exception 35a-23
Indian child, definition of 26-1
Indigent parties, requests for subpoenas 32a-2
Information, definition 26-1
Informations, delinquency, contents and service 29-1, 29-2
Processing 29-1A
Interactive audiovisual device, appearance by 35a-22
Interactive audiovisual device, appearance by detained child or youth by means of in detention hearings 30-12
Mentally ill child or youth, commitment as 31a-15
Modification of probation 31a-18
Motions and applications: delinquency
Adult criminal docket, motion to transfer to 31a-12
Bill of particulars, motion for 31a-2
Continuances and advancements 31a-1A
Discovery, motions for 31a-16
Dismiss, motion to 31a-3
Form of motions, time for filing, amendment 31a-1
Joint trial of petitions or informations, motion for 31a-10
Judgment of acquittal, motion for 31a-5
Motion in limine 31a-7
New trial, motion for 31a-11
Sequestration of witnesses, motion for 31a-8
Severance of offenses for trial, motion for 31a-9
Suppress, motion to 31a-4
Take into custody order, application for 31a-13
Transfer of venue, motion for 31a-6
Transfer to adult criminal docket, motion for 31a-12
Motions, in general 31a-1, 34a-1
Changes in court dates, continuances 34a-5
Contempt 34a-22
Dismiss 34a-9—34a-13
Emergency relief 34a-23
Evaluation of child 34a-21
Intervene 35a-4
Strike 34a-15—34a-19
Transfer of guardianship 35a-12
Neglected, abused and uncared for child or youth; termination of parental rights
Adjudication 35a-1
Admission or denial of allegations of petition 35a-1
Adverse inference 35a-7A
Burden of proceeding 35a-8
Consolidation of petitions 35a-6A
Consolidation with hearing on temporary custody order 33a-7
Continuance for case status conference 33a-7, 35a-2
Evidence 35a-7
Exclusion of unnecessary persons from courtroom 35a-1B
Explanation of petition 35a-1
Nolo contendere plea 35a-1
Record of case 35a-1A
Advisement of rights 32a-1
Allegations of petition 33a-1
Chief public defender, assignment of attorney to represent child or youth 32a-1
Child or youth
As witness 32a-4
Consultation with in court 32a-5
Exclusion from courtroom 32a-5
Competency of parent 32a-9
Coterminous petitions 35a-3
Counsel, right to 32a-1
Default, opening 35a-18

JUVENILE MATTERS — (Cont)
Neglected, abused and uncared for child or youth; termination of parental rights — (Cont)
Hearing 35a-18
Discovery 34a-20
Dismiss, motion to 34a-9—34a-13
Dispositional hearing
Evidence and mandated social study 35a-9
Mandated social study, availability to parties, counsel and self-represented parties 35a-10
Witnesses, respondents' right to produce 35a-11
Dispositions, motions to modify 35a-16
Evaluation of child 34a-21
Foster parents, prospective adoptive parent, relative care giver and siblings, right to be heard 35a-5
Guardian, role of 35a-6
Hearing procedure in general 32a-2
Interpreter 32a-6
Intervene, motions to 35a-4
Modification of guardianship, postdisposition motion for 35a-20, 35a-20A
Motions to modify dispositions 35a-16
Order of temporary custody 33a-6
Preliminary hearing 33a-7
Permanency plan, motion for review 35a-14
Petitions, allegations 33a-1
Petitions, consolidation of 35a-6A
Petitions, coterminous 35a-3
Petition to reinstate former legal guardian as guardian 35a-20A
Petition to reinstate parent as guardian 35a-20
Petition to remove parent as guardian, transfer from Probate Court 35a-19
Pleading 34a-6—34a-8
Posttermination visitation, motions for 35a-24
Probate court, transfer of petition to remove parent as guardian 35a-19
Protective supervision
Application to modify 33a-6
Conditions, modification and termination 35a-12
Publication as service 33a-5
Records, confidentiality 32a-7
Records, substance abuse treatment 32a-8
Reinstatement of former legal guardian as guardian, motion for 35a-20A
Reinstatement of parent as guardian, motion for 35a-20
Removal of child from home 35a-13
Residential center 30-1A
Admission to 30-1A
Advisement of rights 30-3
Definition of 26-1
Notice to parents 30-4
Respondent, identity or location unknown 33a-4
Chief child protection attorney to assign counsel 33a-4
Reunification efforts 35a-15
Revocation of commitment 35a-14A
Rights of parents or guardians 32a-1
Service 33a-2
Standard of proof
Clear and convincing evidence and proof beyond a reason able doubt, termination of parental rights 32a-3
Fair preponderance of evidence, neglect, uncared for and dependency petition 32a-3
Strike, motion to 34a-15—34a-19
Subpoenas 32a-2
Substance abuse treatment records 32a-8

JUVENILE MATTERS — (Cont)
Neglected, abused and uncared for child or youth; termination of parental rights — (Cont)
Summons accompanying petition, neglected, abused and uncared for child or youth 33a-2
Temporary custody, order of 33a-6
Emergency or life-threatening situation, application procedure 33a-8
Location of minor child or youth, information provided under seal to counsel for child or youth 33a-2
Preliminary hearing; notification of rights 33a-7
Respondent's rights, statement of 33a-7
Transfer of guardianship, motions for 35a-12A
Venue 33a-3
Nonjudicial handling of delinquency complaints 27-1A
Additional offenses and misconduct 27-4
Denial of responsibility for misconduct 27-6
Dismissal following successful completion of nonjudicial handling 27-8A
Eligibility for delinquency nonjudicial handling, initial interview 27-5
Erasure following successful completion of nonjudicial handling 27-8A
Ineligibility for nonjudicial handling 27-4A
Initial interview, explanation of allegations 27-5
Notice to appear 27-1A
Probation department, referral to 27-1A
Responsibility, acknowledgment or denial 27-6, 27-7
Nonjudicial supervision of child or youth 27-8A
Written statement of responsibility 27-7
Rights of parties, explanation of 27-5
Successful completion of nonjudicial handling, dismissal and erasure of matter 27-8A
Notice
Detention 30-4
To appear, delinquency 27-1A
Orders
Custody, take into, definition of 26-1
Application for 31a-13
Following violation of condition of suspended detention 30-10
Temporary custody 33a-6
Emergency or life-threatening situation, application procedure 33a-8
Location of minor child, information provided to counsel for child or youth under seal, 33a-2
Preliminary order of first hearing 33a-7
Respondent's rights, statement of 33a-7
Parent, definition of 26-1
Parties, definition of 26-1
Intervening party, definition of 26-1
Legal party, definition of 26-1
Permanency plan, definition 26-1
Motion for review of 35a-14
Person presumed to be the parent pursuant to General Statutes § 46b-488 (a) (3), definition 26-1
Petitions
Amendment 31a-1, 34a-1
Definition of 26-1
Delinquency petition, contents and service 29-1, 29-2
Processing 29-1A
Neglected, abused and uncared for child; termination of parental rights 33a-1
Removal of parent as guardian 35a-19
Termination of parental rights 35a-19
Physical and mental examinations, delinquency 31a-14

JUVENILE MATTERS — (Cont)
Pleadings, neglected, abused and uncared for child or youth; termination of parental rights
Contempt, motion for 34a-22
Dismiss, motion to 34a-9—34a-13
Emergency relief, motion for 34a-23
Evaluation of child or youth, motion for 34a-21
Order 34a-6
Response to summary of facts 34a-14
Strike, motion to 34a-15—34a-19
Time to plead 34a-8
Waiver of right to plead 34a-7
Pretrial conference, delinquency 30a-2
Probate Court, transfer from, or application for removal of parent as guardian 35a-19
Probation
Department, assignment to of delinquency complaints 27-1A
Presentation of information at detention hearing 30-9
Modification of probation 31a-18
Officer, investigation of delinquency complaints 27-1A, 27-5, 27-8A
Predispositional study by, consideration of at dispositional hearing 30a-5
Probation status review hearing, definition of 26-1
Probation supervision, definition of 26-1
Probation supervision with residential placement, definition of 26-1
Records
Attorney access to 30a-8, 32a-7
Confidentiality, copying and reproduction of 30a-8, 32a-7
Erasure 27-8A
Substance abuse treatment 32a-8
Recording of hearings 30a-7, 32a-7, 35a-1A
Removal of child from home, required findings 35a-13
Respondent, definition of 26-1
Rights of parties
Right of respondents to neglected, abused and uncared for child or youth or termination of parental rights petition 33a-7
To confrontation and cross-examination 30a-1, 32a-1
To counsel 27-5, 30-3, 30a-1, 32a-1, 35a-21
To remain silent 30a-1, 32a-1
Secure-residential facility, definition of 26-1
Service Memorandum, definition 26-1
Short calendar sessions 34a-2—34a-4
Specific steps, definition 26-1
Staff-secure facility, definition of 26-1
Staff-secure residential facility, definition of 26-1
Standards of proof 30a-3, 32a-3
Subpoenas 32a-2
Substance abuse treatment records 32a-8
Superior Court Rules, general provisions, applicability 34a-1
Supervision
Judicial, definition of 26-1
Nonjudicial, definition of 26-1
After acknowledgment of responsibility, delinquency 27-8A
Protective 26-1, 35a-12
Take into custody order, definition 26-1
After violation of condition of suspended detention 30-10
Application for 31a-13
Temporary custody, order of 33a-6
Consolidation of hearing with underlying petition 33a-7
Emergency or life-threatening situation, application procedure 33a-8
Preliminary order or first hearing 33a-7

JUVENILE MATTERS — (Cont)
Temporary custody, order of 33a-6 — (Cont)
Preliminary order 33a-7
Respondent's rights, statement of 33a-7
Termination of parental rights, see Neglected, abused and uncared for child; termination of parental rights, this title
Testimony
Admissible at dispositional hearing, delinquency 30a-5
Child as witness, procedure 32a-4
Narrative form permissible 32a-2
Recording of 30a-7, 32a-7
Transfer from Probate Court of petition to remove parent as guardian 35a-19
Transfer to adult criminal docket 31a-12
Uncared for child, see Neglected, abused and uncared for child; termination of parental rights, this title
Venue, child protection 33a-3
Venue, delinquency, motion for transfer 31a-6
Victim, definition 26-1
Attendance at hearing 26-2
Youth, definition 26-1

LAND USE REGULATIONS
Copy to be filed with appellate brief 81-6
Statement in brief as to applicable version 67-4, 67-5

LAW DAYS
See **FORECLOSURE**

LEGAL INTERNS 3-14
Activities of 3-17
Certification of 3-18
Requirements and limitations 3-16
Supervision of 3-15

LEGAL SEPARATION
See **FAMILY MATTERS**

MAGISTRATES
Family support, see **FAMILY MATTERS**
Infractions, hearings on 44-30

MANDAMUS
Complaint 23-45
Order in pending action 23-47
Parties plaintiff 23-45
Pleadings in 23-49
Privileged in assignment for trial 14-9
Temporary order of 23-48

MEDIA
Appellate proceedings 70-9
Arraignments, media coverage 1-11A
Cell phones in courts 1-10
Civil proceedings, media coverage 1-11B
Computers, portable in courts 1-10
Coverage of court proceedings in general, requests for and limitations on 1-10B
Criminal proceedings, media coverage 1-11C
Definition of media 1-10A
Electronic devices in courts, generally 1-10
Exclusion by judicial authority 11-20
Homicide involving sexual assault, media coverage 1-11C
Juvenile matters 26-2
Personal digital assistant in courts 1-10

MEDICAL, HOSPITAL AND PSYCHIATRIC RECORDS
Family matters, procedure for introducing 25-55
Prerequisites for filing in clerks' offices 7-18

MEDICARE ENROLLMENT, disclosure of
See **CIVIL ACTIONS; DISCOVERY and**
See also **DEPOSITIONS-CIVIL**

MORTGAGES
See **FORECLOSURE**

MOTIONS, APPLICATIONS AND REQUESTS, CIVIL, MISCELLANEOUS
See also **FAMILY MATTERS**; **JUVENILE MATTERS**
Appeal period, motions that delay 11-11
Appellate counsel, participation in trial court motions 62-8
Argument of motions 11-18
Cite in new parties 9-22
Definition of 11-2
Destruction of files and records, motion to prevent 7-16
Dismiss, motion to 10-30
Family matters 25-12—25-15
Further pleading by defendant following denial 10-34
Grounds 10-31
Subject matter jurisdiction not subject to waiver 10-33
Waiver of lack of personal jurisdiction, insufficiency of process or service 10-32
Electronic filing 4-4
Electronic filing system nonoperational 7-17
Exclusion of public, sealing documents, motion for 11-20
Family matters 25-23
Form of 11-1
Health information, motion for authorization to obtain protected 13-9, 13-11A
Limine, motion in 15-3
Memorandum of law required 11-10
Misjoinder and nonjoinder of parties, motion to strike for 11-3
Motion to dismiss, see Dismiss, motion to, this title
Motion to strike, see Strike, motion to, this title
New trial, motion for 17-4A
Oral argument of motions 11-18
Order of notice, applications for 11-4
Postverdict motions: arrest of judgment, additur, remittitur, set aside verdict, new trial, collateral source reduction 16-35
Previous motions and applications, disclosure of 11-9
Reargue, motion to 11-12
Request to revise 10-35
Granting of and objection to 10-37
Reasons in 10-36
Waiver of further pleading revisions 10-38
Sealing files and documents 11-20
Strike, motion to, grounds 10-39
Date for hearing 10-40
Family matters 25-16—25-22
Memorandum of decision, when required 10-43
Memorandum of law 10-39
Misjoinder and nonjoinder of parties 11-3
Opposition 10-40
Stricken pleading part of other cause or defense 10-45
Substitute pleading, or judgment after motion granted 10-44

MOTIONS, MISCELLANEOUS, CRIMINAL
See also **CRIMINAL PROCEDURE**
Acquittal, motion for
Motion for directed verdict of, abolished 42-40
Motion for judgment of 42-40
After guilty verdict 42-51
After mistrial 42-50
At close of evidence, reservation of decision on 42-42
At close of prosecution's case 42-41

MOTIONS, MISCELLANEIOUS, CRIMINAL — (Cont)
Acquittal, motion for — (Cont)
Time limit for filing 42-52
Arrest of judgment, motion in 42-56
Dismiss, motion to, matters to be raised by 41-8
Appeal from denial after conditional plea of nolo contendere 61-6 (a) (2) (A)
Defects not requiring dismissal 41-10
Remedies for 41-11
Restrictions on 41-9
Electronic filing 4-4
Limine, motion in 42-15
Mistrial, motion for
Prejudice to defendant 42-43
Prejudice to prosecution 42-44
New trial, motion for 42-53
Time for filing 42-54
Where based on newly discovered evidence 42-55
Pretrial motions and requests, in general 41-1, 41-2
Form and manner of making 41-6
Hearings and rulings 41-7
List of motions 41-3
Speedy trial 43-41
Time to make, waiver 41-4, 41-5
Suppress, motion to 41-12
Appeal from denial after conditional plea of nolo contendere 61-6 (a) (2) (A)
Intercepted communications 41-14
Judicial authority, when disqualified from hearing 41-17
Seized property, return and suppression 41-13, 41-16
Time to file 41-15

MOTOR VEHICLE OFFENSES
See generally **INFRACTIONS**

MUNICIPAL OFFICERS
Bond to, action to enforce 9-25

MUNICIPAL TAX LIENS
Foreclosure, allegations 10-70

NOLLE PROSEQUI
Generally 39-29—39-32

NONSUIT
See generally **DEFAULT JUDGMENTS**

NOTICE
Alimony and support, notice of orders concerning 25-29
Clerks to notify counsel and self-represented parties of judgments, decisions and rulings 7-5
Complaint or action filed against judicial authority, notice filed 4-8
Criminal convictions, notice of right to appeal 43-30
Default judgments 17-22, 17-36
Depositions, criminal cases 40-48
Ex parte temporary injunction 4-5
Habeas corpus, notice of right to appeal 43-30
Juvenile matters, detention 30-4
Orders of notice 11-4—11-8; see **ORDERS OF NOTICE**
Pleading notice 10-68
Receivers, appointment 21-1, 21-3
Small claims, notice in 24-1
Notice of suit, service of 24-10
Notice of time and place of hearing 24-14

OATH
Administration by interactive audiovisual device 23-68
Administration to jurors 16-8, 42-14

OATH — (Cont)
Administration to witnesses 5-3
Deposed witnesses, criminal cases 40-49
Juvenile matters, child witnesses 34-4

OFFER OF COMPROMISE
See **Judgments**

OFF-SITE JUDICIAL PROCEEDINGS
Transcript, recording, summary of 1-24

ORAL ARGUMENT
See also **APPELLATE PROCEDURE**
Appellate Court arguments, precedence over trial court assignments 1-2
Argument on interlocutory questions during trial 5-5
Child protection matters, appeals 79a-9
Short calendar 11-18
Supreme Court arguments, precedence over trial court assignments 1-2
Time limit 15-7
Criminal cases 42-37

ORDER OF TEMPORARY CUSTODY
See **JUVENILE MATTERS**

ORDERS OF NOTICE
Applications for 11-4
Attestation, publication, proof of compliance 11-7
Continuance, subsequent orders of 11-5
Directed outside United States 11-8
Family matters 25-23, 25-28, 25-29
Publication, notice by 11-6
Receivers, presentation of claims to 21-7

PARENTAGE ACTIONS
Right to counsel 25-68

PARENTAL RIGHTS, TERMINATION OF
See **JUVENILE MATTERS**

PARKING OR CITATION ASSESSMENT
Petition to open 23-51

PARTIES, CIVIL ACTIONS
See also **JOINDER**
Addition or substitution of 9-18
Motion to cite in new parties 9-22
Class actions 9-7, 9-8
Adequate representation, orders to ensure 9-10
Dismissal or compromise 9-9
Fiduciaries 9-11
Parents as necessary parties in minor's name change action 9-24
Real party in interest 9-23
Substituted plaintiff 9-20
Third parties affected by counterclaim 9-21

PERSONAL DIGITAL ASSISTANT IN COURTROOM
See **MEDIA**

PERSONAL IDENTIFYING INFORMATION
See **RECORDS; CIVIL ACTIONS, Motions; FAMILY MATTERS, Documents;** see also **APPELLATE PROCEDURE, Appendix**

PICTURE IDENTIFICATION CARD
See also **MEDIA**
Authorizing attorney use of electronic devices in courtroom 1-10

PLAIN ERROR REVIEW 60-5

PLEA AGREEMENTS
See **PLEAS—CRIMINAL**

PLEADINGS, CIVIL ACTIONS
See also **FAMILY MATTERS; JUVENILE MATTERS; SMALL CLAIMS**
Admissions
Express admissions and denials to be direct and specific 10-48
In special defenses 10-52
Of material allegations, implied 10-19
Alternative relief, claims for 10-25
Amendments
Amendment calling for legal relief, issue to be placed on jury docket 10-64
Amount in demand 10-66
As of right by plaintiff, time limit 10-59
Claim against insolvent estate, amendment of 10-67
Consent, order of judicial authority, or failure to object, amendment by 10-60
Contract to tort 10-65
Equitable to legal relief, legal to equitable relief 10-63
Pleading after amendment 10-61
Time limit, amendment by plaintiff as of right 10-59
Tort to contract 10-65
Variance between pleadings and proof, amendment in cases of 10-62
Answer, general and special denial 10-46
Contributory negligence, pleading of 10-53
Counterclaim and setoff, pleading of 10-54
Right to prosecute after withdrawal of action 10-55
Denials to meet substance of allegations 10-47
Express admissions and denials 10-48
General denial in action by corporation on contract 10-49
Response to answer by plaintiff 10-56
Matter in avoidance of answer 10-57
Pleadings subsequent to reply 10-58
Special defenses 10-50
Admissions and denials in 10-52
Several special defenses 10-51
Closed pleadings, certification of 14-8
Common counts writ, abolished 10-9
Complaint, contents of 10-20
Counterclaim, supplemental pleadings 10-10
Dismiss, motion to see Motion to dismiss, this title
Equitable relief, claim for 10-27
Exhibits as part of pleading 10-29
Fact pleading 10-1
Family matters 25-2—25-4, 25-7—25-11
Filing and endorsing pleadings 4-3
Electronic filing 4-4
Signing pleadings 4-2
Prepared with assistance of counsel notation 4-2
Foreign law, notice of claim based on 10-3
Form of pleadings 4-1
Electronically filed 4-1
Filing and endorsing pleadings 4-3
Signing pleadings 4-2
Prepared with assistance of counsel notation 4-2
Impleading, of third party defendant 10-11
Implied admissions of material allegations 10-19
Implied duty, unnecessary to allege 10-4
Interest and costs, unnecessary to claim 10-28

PLEADINGS, CIVIL ACTIONS — (Cont)
Joinder of causes of action 10-21
Legal and equitable relief 10-24
Torts 10-23
Transactions connected with same subject 10-22
Legal effect, pleading 10-2
Miscellaneous special matters and required pleadings
Action by assignee of chose in action, required pleading 10-72
Charters, pleading 10-73
Collateral source payments, pleading 10-78
Foreclosure of mortgage or real property lien, required pleading 10-69
Foreclosure of municipal liens, required pleading 10-70
Incorporation by General Assembly, pleading 10-73
Insurance, policy limitations or payments by insurer, special defense of 10-79
Probate appeals, required pleading 10-76
Appeals from commissioners appointed by Probate Court, required pleading 10-77
Probate bond 10-71
Wrongful sale, wrongful conversion 10-74
Motion to dismiss 10-30
Family matters 25-12—25-15
Further pleading by defendant following denial 10-34
Opposition 10-31
Subject matter jurisdiction not subject to waiver 10-33
Waiver of lack of personal jurisdiction, improper venue, insufficiency of process or service 10-32
Motion to strike, grounds 10-39
Date for hearing 10-40
Family matters 25-16—25-22
Memorandum of decision, when required 10-43
Memorandum of law 10-41
Substitute pleading, or judgment after motion granted 10-44
Where stricken pleading part of other cause or defense 10-45
Notice, pleading of 10-68
Order of pleading 10-6
Pleadings closed, certification of 14-8
Request to revise 10-35
Granting of and objection to 10-37
Reasons in 10-36
Waiver of further pleading revisions 10-38
Separate counts for separate causes of action 10-26
Service 10-12
Electronic delivery, service by 10-13
Exception for request for mediation 10-12
Indifferent person, service by 10-17
Method of 10-13
Numerous defendants, service where 10-15
Proof of service 10-14
Several parties represented by one attorney 10-16
Signing pleadings 4-2
Prepared with assistance of counsel notation 4-2
Statutory grounds, allegations based on 10-3
Strike, motion to, see Motion to strike, this title
Third party, impleading of by defendant 10-11
Time to plead 10-8
Untrue allegations or denials, payment of reasonable expenses required 10-5
Variance, in action for goods sold at reasonable price 10-75
Waiver of right to plead 10-7

PLEAS—CRIMINAL
See also **APPEARANCE AND ARRAIGNMENT—CRIMINAL MATTERS**
Agreements, conditional pleas of guilty or nolo contendere 39-5
Alternative dispositions recommended by prosecuting authority 39-6
Appeal from denial of motion to dismiss or suppress 61-6 (a) (2) (i)
Disclosure to judicial authority 39-7
Rejection by judicial authority 39-10
Reservation of right to appeal 61-6 (a) (2) (ii)
Sentencing 39-8, 39-9
At arraignment 37-7
Discussions, procedure for in general 39-1
Defendant represented or unrepresented by counsel 39-2
Defense counsel, role in plea agreements 39-3
Subject matter 38-4
Guilty or nolo contendere 37-8, 39-18
Acceptance and canvass of defendant by judicial authority 39-19—39-21
Conditional pleas of 39-5
Other offenses, pleading to after finding of guilty 39-22
Record of proceedings 39-24
Rejected plea inadmissible 39-35
Withdrawal of plea 39-26—39-28
Nolle prosequi 39-29
Dismissal of information or complaint 39-32
Effect of 39-31
Objection by defendant 39-30
Not guilty 37-9
Two part information charging former conviction 37-10, 37-11, 39-23

PRACTICE OF LAW
See **ATTORNEYS**

PREJUDGMENT REMEDIES
Disclosure of assets by party against whom prejudgment remedy granted 13-13

PRESENTENCE INVESTIGATION
See **CRIMINAL PROCEDURE**

PRETRIAL—CIVIL
Assignment for 14-11
Orders at 14-14
Pretrial procedure 14-13
When case not disposed of at 14-12
Family matters 25-48
Interactive audiovisual device, presence of incarcerated individual by 23-68

PRETRIAL CRIMINAL PROCEDURE
See **CRIMINAL PROCEDURE, Appearance and Arraignment; Arrest and Preliminary Procedure; Bail; Bond; Pleas**

PRETRIAL RELEASE
See **CRIMINAL PROCEDURE**

PRIVILEGE LOG
See **CIVIL ACTIONS, Discovery**

PROBABLE CAUSE
See **APPEARANCE AND ARRAIGNMENT—CRIMINAL MATTERS**

PROBATE
Action on bond 10-71

PROBATE — (Cont)
Appeals, pleading in 10-76
Commissioners, appeals from, pleading in 10-77
Application for removal of parent as guardian, transfer from Probate Court 35a-19
Physical or mental examination, request for 13-11

PROBATE JUDICIAL CONDUCT, COUNCIL ON
Appeals from decisions of, in general 75-1
Appellate rules, applicability of 75-6
Decision of council, statement of 75-4
Fees, costs and security waived 75-1
Papers to be filed 75-1
Parties, proper form of reference 75-5

PROBATION
Delinquency, referral to probation department 27-1A
Investigation by probation officer 27-1A, 27-5, 27-8A
Modification of probation 31a-18
Nonjudicial supervision of child or youth 27-8A
Predispositional study by probation officer, consideration at dispositional hearing 30a-5
Vocational probation, definition 26-1
Revocation of 43-29
Stay pending appeal 43-32

PROCESS 8-1

PRO HAC VICE
See **ATTORNEYS**

PUBLIC DEFENDER
Appeals by indigent defendant 43-33—43-38
Appointment of 37-6
Reference to, investigation of indigency 37-5
Appointment of counsel, criminal cases in general 44-1—44-6

QUESTIONS OF LAW AND FACT
See generally **JURIES—CIVIL**; **JURIES—CRIMINAL**

RECEIVERS
Accounts, semiannual 21-14
Ancillary receivers 21-18
Applicability of rules 21-25
Application for 21-1
Appraisers and temporary receivers, appointment 21-1, 21-3
Bond 21-4
Business, continuance of 21-11
Reports 21-12
Chambers, appointment of receiver in 21-1
Applications for orders, receiver appointed in chambers 21-15
Claims, presentation 21-7
Allowance and disallowance 21-8
Extensions of time 21-9
Hearing 21-10
Clerks, duty to enforce rules 21-16
Inventory of estate, receiver to give 21-5
Insolvent estates, liquidation 21-6
Permanent receivers, assignment of case for appointment 21-2
Removal 21-17
Rents, receivers of 21-19
Appointment 21-20
Bond 21-21
Discharge 21-22
Orders concerning 21-23

RECEIVERS — (Cont)
Rents, receivers of 21-19 — (Cont)
Reports 21-24
Summary of orders, semiannual, receiver to file 21-13
Temporary receivers, appointment 21-1, 21-3

RECORD ON APPEAL
See **APPELLATE PROCEDURE**

RECORDS
Child or youth, erasure 27-8A
Clerks, records of cases to be kept by 7-1
Destruction of files and records 7-10
Motion to prevent 7-16
Retention and stripping of files, schedule 7-11
Adult probation and family division, reports from 7-14
Criminal actions, records and files 7-13
Title to land, files in actions affecting 7-12
Transfer to records center or state library 7-15
Financial accounts, clerks to keep records of 7-3
Lodged records 7-4C
Treatment during appellate process 68-1, 77-2
Motion to file record under seal 7-4B
Personal identifying information, omission and redaction of in civil and family matters 4-7
Motion to redact or seal 11-20B
Short calendar matters, records of 7-20
Unfinished record, completion of by clerk 7-9

REFERENCES
See also **ARBITRATION; CIVIL ACTIONS, Fact-Finding**
Acceptance of report, objections 19-14, 19-15
Accountant, reference to 19-19
Application of rules 19-1
Dissolution of marriage or civil union, legal separation, annulment, excepted from rules 19-1
Appointment, committee or referee 19-2, 19-5
Hearing on motion for 19-2
Appraiser, applicability of rules to 19-1
Appraisal fees, recommendation by committee 19-8
Appraisal report in eminent domain proceeding 19-6
Attorney trial referee, reference to 19-2A
Report by 19-4
Auditor, applicability of rules to 19-1
Cases that may be referred 19-3
Committee, reference to 19-2
Consent of parties 19-2, 19-3
Correction of report 19-17
Court, action by on report 19-17
Dissolution of marriage or civil union, legal separation, annulment, excepted from rules 19-1
Effect of reference 19-6
Eminent domain proceeding, appraisal report in 19-6
Examination of account or books 19-19
Exceptions to finding and report 19-13
Extension of time 19-18
Family matters 25-53
Finding of facts 19-2
Request for 19-9
Function of court 19-17
Judge trial referee 19-3
Criminal cases 44-19
Powers of Superior Court to be exercised by 19-3, 44-19
Judgment on report 19-16, 19-17
Motions
Appointment of committee 19-2
Summary judgment, reference of motion for 19-3
Original action, Supreme Court 84a-4

REFERENCES — (Cont)
Pleadings to be closed before reference made 19-7
Recommendations by counsel 19-5
Report 19-8
Acceptance 19-14, 19-15
Alternative claims, report on 19-10
Amendment 19-11
Attorney trial referee, report by 19-4
Judgment on 19-16
Objections 19-14, 19-15
Rejection 19-17
Special assignment probate judges, report by 19-4
Request for finding 19-9
Revocation of reference 19-6
Senior judge, applicability of rules to 19-1
Special assignment probate judges 19-3A
Applicability of rules to 19-1
State referees, applicability of rules to 19-1
Summary judgment, reference of motion for 19-3

REMITTITUR
Judgment too large 17-3
Motion for 16-35

REQUESTS
See **MOTIONS, APPLICATIONS AND REQUESTS, CIVIL, MISCELLANEOUS**

REQUESTS TO CHARGE
Civil trials 16-20—16-23
Criminal trials 42-16—42-18

RESCRIPTS
To be sent to trial court and appellate clerk 71-4

RESERVATIONS
Procedure, form 73-1

RETENTION AND DESTRUCTION OF FILES AND RECORDS 7-10—7-16

RULES OF COURT
Appellate rules, applicability of changes to pending appeals 86-2
Definitions 1-1
Effective date 1-9
Appellate rules 86-1
Emergency powers of rules committee 1-9B
Liberal interpretation of 1-8
Appellate rules 60-1
Promulgation and publication 1-9
Appellate rules 86-1
Emergency 1-9B
Judicial website, placement of rules information on 1-9A
Scope 1-1

SANCTIONS
Actions subject to 1-25

SEALING FILES OR LIMITING DISCLOSURE
Appeal, first time 77-3, 77-4
Civil cases 11-20A, 11-20B
Criminal cases 42-49A
Affidavit supporting arrest warrant application 36-2
During appellate process 77-2
Family matters 25-59A, 25-59B
Identification of cases 7-4A
Motion to file record under seal 7-4B, 77-4
Lodging record 7-4C, 77-4

SECURITIES, PURCHASING OR SELLING, AUTOMATIC ORDERS concerning
See **FAMILY MATTERS**

SENTENCE REVIEW
See **SENTENCING**

SENTENCING
Correction of illegal sentence 43-22
Defendant's right to make statement 43-10
Defense counsel
Correction of presentence investigation report 43-14
Disclosure of undisclosed plea agreement 43-15
Supplementary documents, submission of 43-16
Hearing, procedure 43-10
Illegal sentence, correction of 43-22
Mittimus, where sentence includes fine as well as imprisonment 43-20
Prosecuting authority, role 43-11
Disclosure of plea agreement 43-12
Reduction of sentence or discharge of defendant by sentencing court 43-21
Sentence review
Application for, time for filing 43-24
Counsel, representation by before sentence review division 43-23
Documents, preparation by clerk 43-25, 43-26
Hearing, briefs and memoranda 43-27
Scope of review 43-28
Stay pending appeal 61-13
Victim, participation at 43-10

SERVICE
See **PLEADINGS—CIVIL ACTIONS**

SHORT CALENDAR
Generally 11-13
Assignments automatic 11-15
Continuances 11-16
Default for failure to appear, motion for not on short calendar 17-29
Frequency, time of sessions, lists 11-14
Interactive audiovisual device, presence of incarcerated individual by 23-68
Juvenile matters 34a-2—34a-4
Oral argument 11-18
Records to be kept by clerks 7-20
Time limit for deciding matters 11-19
Transfers 11-17
Unemployment compensation appeals to be claimed for 22-2

SMALL CLAIMS
Actions, institution 24-3, 24-8
Answer, date 24-10, 24-12
Failure to file 24-25
Notice of defense 24-16
Electronic filing 24-3
Filing claims, where 24-4
Notice of suit, service 24-10
Undelivered notice, further notice 24-11
Pleadings
Amendment of claim, answer, counterclaim or setoff 24-20
Answer, notice of defense 24-16
Counterclaim or setoff, claim for 24-19
Deposition or documents, request 24-20A
Dismiss, motion to 24-20

SMALL CLAIMS — (Cont)
Actions, institution 24-3. 24-8 — (Cont)
Prohibited pleadings 24-17
Setoff or counterclaim, claim for 24-19
Time to pay, request for 24-16
Service, notice of suit 24-10
Undelivered writ and notice, further notice 24-11
Writ, preparation of 24-9
Affidavits required for judgment 24-24
Allowable actions 24-2
Applicability of rules, limitations 24-2
Attorney, services of not required 24-1
Costs 24-33
Default judgments 24-24, 24-25
Definition of representative 24-6
Deposition or documents, request for 24-20A
Dismissal for failure to obtain judgment 24-27
Electronic institution of action 24-3
Execution, application for 24-32
File, what constitutes 24-7
Hearings
Continuances 24-15
Failure of party to appear 24-26
Hearing in damages following default 24-25
Notice of time and place 24-14
Scheduling 24-15
Judgments 24-24
Appear, failure of party to 24-26
Dismissal of action for failure to obtain 24-27
Execution, application for 24-32
Finality 24-28
Notice of 24-29
Opening, costs 24-31
Satisfaction 24-30
Time limit on 24-29
Written decision, when required 24-29
Purpose of 24-1
Regular docket, transfer to 24-21
Representative, definition of 24-6
Subpoenas, issuance by clerk 24-22
Transfer to regular docket 24-21
Venue 24-25
Where claims to be filed 24-4
Witnesses 24-33
Writ, form of service 24-9
Service 24-10
Written decision, when required 24-29

SPEEDY TRIAL
See **CRIMINAL PROCEDURE**

STATEWIDE GRIEVANCE COMMITTEE
See **ATTORNEYS**

STAY OF EXECUTION PENDING APPEAL
See **APPELLATE PROCEDURE**

STRIKE, MOTION TO
Generally 10-39—10-45

SUBPOENAS
Generally 13-27, 13-28A; see also **DISCOVERY AND DEPOSITIONS—CIVIL**
Criminal cases, subpoenas for documents or objects 40-2
Issuance by clerk for self-represented parties 7-19
Juvenile matters 32a-2
Small claims, issuance by clerk 24-22

SUMMARY JUDGMENTS
Affidavits, bad faith 17-48
Affidavits, form 17-46
Appropriate documents, unavailability 17-47
Habeas corpus
Civil cases 23-34, 23-37
Family cases 25-46
Judgment 17-49
Judgment for part of claim 17-51
Motion for, proceedings upon 17-45
Triable issue as to damages only 17-50

SUMMARY PROCESS
Default for failure to appear 17-30
Executions 17-53

SUMMONS AND COMPLAINT—CRIMINAL
See **ARREST AND PRELIMINARY CRIMINAL PROCEDURE**

SUPERIOR COURT
See also **CLERKS**; **FILES**; **RECORDS**
Adjournment 1-13
County court designations, admission of attorneys 2-1
Divisions 1-3
Civil 1-5
Criminal 1-6
Family 1-4
Housing 1-7
Judicial authority, disqualification 1-22
Motion for 1-23
Opening 1-12
Recess 1-13

SUPPORT ENFORCEMENT OFFICER
Services by 25a-30

SUPREME COURT
See generally **APPELLATE PROCEDURE**

TERMINATION OF PARENTAL RIGHTS
See **JUVENILE MATTERS**

THIRD PARTY
Impleading in civil action 10-11

TRANSCRIPT, APPELLATE PROCEDURE
Ordering and filing 63-8
Ordering, child protection matters 79a-5
Rectification, motion for 66-5
Statement concerning, filing with appeal 63-4 (a)
Amendment 63-4 (a)

TRANSFER OF ACTIONS 12-1—12-3
Small claims to regular docket 24-21
Wrong court, appeals brought to 65-4

TRIALS IN GENERAL
See also **ASSIGNMENT FOR TRIAL—CIVIL**; **EVIDENCE**; **JURIES—CIVIL**; **JURIES—CRIMINAL**; **VERDICT**
Briefs 5-1
Page limitations 4-6
Civil actions, consolidation for trial 9-5
Counsel
Argument by 15-5—15-7
Criminal trials, time limits 42-37
Failure to appear by, sanctions 5-10
New trial, motion for 17-4A
Order of parties proceeding 15-5

TRIALS IN GENERAL — (Cont)
Order of trial of issues 15-1
Protective order, restraining order, criminal protective order or criminal restraining order, testimony by person on behalf of whom order issued 5-11
Public, exclusion
Expedited review of order 77-1
From civil proceedings 11-20
From criminal trials 42-48
Question of law that may be subject of appeal, raising 5-2
Separate trials 15-2

UNEMPLOYMENT COMPENSATION
Appeals from Employment Security Board of Review
Filing and form of appeal 22-1
Finding of board 22-3
Correction, motion for by appellant 22-4
Additional evidence, filing by appellee 22-5
Decision of board, challenge to 22-8
Duty of board 22-7
Motion by appellee 22-6
Hearing, assignment for, privileged status 22-2
Record 22-1
Time limit 22-1
Court, function on appeal 22-9

VERDICT
Civil actions
Acceptance of 16-31
Communication with jurors prohibited 16-14
Deliberations by jury 16-16
Directed verdict, reservation of decision on motion for 16-37
Discharge of jury 16-33
Impeachment of verdict 16-34
In excess of amount in demand 16-19
Judgment on verdict 16-13, 17-2
Jury interrogatories 16-18
Memorandum of decision by trial court 64-1, 64-2
Motion for directed verdict, reservation of decision on 16-37
Polling jury after verdict 16-32
Postverdict motions: additur, arrest of judgment, remittitur, set aside verdict, new trial, collateral source reduction 16-35
Reduce verdict, motion to 17-2A
Reduction by judicial authority 16-19
Return of jury for reconsideration 16-17
Return of verdict 16-30
Setting aside, memorandum on 16-38
Criminal matters
Acceptance of verdict 42-30
Acquittal
Judgment of following guilty verdict 42-51
Motion for directed verdict of abolished 42-40
Motion for judgment of 42-40
After guilty verdict 42-51
After mistrial 42-50
At close of evidence, reservation of decision on 42-42
At close of prosecution's case 42-41
Time limit for filing 42-52
Communication with jurors prohibited 42-8
Deliberations by jury 42-21
Directed verdict of acquittal, motion for abolished 42-40
Discharge of jury 42-32
Impeachment of verdict 42-33
Inability of jury to reach verdict 42-45

VERDICT — (Cont)
Criminal matters — (Cont)
Lesser included offense, modification of verdict 42-51
Memorandum of decision by trial court 64-1, 64-2
New trial, time limit for motion following verdict 42-54
Polling jury after verdict 42-31
Return of verdict 42-29
Submission of facts to jury 42-20

VICTIM
Inquiry concerning during presentence investigation 43-4
Participation at sentencing 43-10
Statement of at dispositional hearing, delinquency 30a-6

VIDEOCONFERENCING
See also **INTERACTIVE AUDIOVISUAL DEVICE**
Appeals, hearings on motion, certain cases 66-4
Appeals; oral argument, certain cases 70-1
Child protection matters; appeals; oral argument; certain cases 79a-9
Deposition by 13-30
Family relations matter, testimony in, when protective order, restraining order or standing criminal restraining order issued on behalf of party or child 5-11

VOIR DIRE
See **JURIES**

WARRANT
See **ARREST AND PRELIMINARY CRIMINAL PROCEDURE**

WITNESSES
Absent witness, missing evidence 14-24
Child witness, juvenile matters 34-3

WITNESSES — (Cont)
Discovery concerning, criminal cases 40-13
Examination of 5-4
Oath, administration of 5-3
Expert, appointment by judicial authority in family matters 25-33
Experts, criminal cases 40-18—40-20
Experts, disclosure of 13-4
Fees
In several suits 18-10
Nonresident witnesses 18-9
Witness not called 18-11
Protective order, restraining order, criminal protective order or criminal restraining order, testimony by person on behalf of whom order issued 5-11
Sequestration, criminal cases 42-36
Small claims 24-23

WORKERS' COMPENSATION APPEALS
Applicability of appellate rules 76-1
Case file, exhibits 76-3
Definitions 76-6
Fees and costs 76-4
Filing appeal 76-2
Reservation of question from Compensation Review Board 76-5, 76-5A

WRITS OF ERROR
Generally 72-1
Appellate rules, applicability of 72-4
Assignments of error 23-50
Copy of record not to be taxed in costs 18-6
Form 72-2
Procedure applicable 72-3
Withdrawal 63-9

APPENDIX OF FORMS

The forms in this appendix were adopted by the judges of the Superior Court and are specifically referenced in the rules, with the exception of Form 101, which implements Section 4-1.

Table of Contents

101 Heading of Pleadings, Motions and Requests . . . 602
201 Plaintiff's Interrogatories . . . 603
202 Defendant's Interrogatories . . . 607
203 Plaintiff's Interrogatories—Premises Liability Cases . . . 614
204 Plaintiff's Requests for Production . . . 617
205 Defendant's Requests for Production . . . 619
206 Plaintiff's Requests for Production—Premises Liability . . . 622
207 Interrogatories—Actions To Establish, Enforce or Modify Child Support Orders . . . 624
208 Defendant's Supplemental Interrogatories—Workers' Compensation Benefits—No Intervening Plaintiff . . . 629
209 Defendant's Supplemental Requests for Production—Workers' Compensation Benefits—No Intervening Plaintiff . . . 632
210 Defendant's Interrogatories—Workers' Compensation Benefits—Intervening Plaintiff . . . 634
211 Defendant's Requests for Production—Workers' Compensation Benefits—Intervening Plaintiff . . . 636
212 Defendant's Interrogatories—Loss of Consortium . . . 638
213 Plaintiff's Interrogatories—Uninsured/Underinsured Motorist Cases . . . 641
214 Defendant's Interrogatories—Uninsured/Underinsured Motorist Cases . . . 645
215 Plaintiff's Requests for Production—Uninsured/Underinsured Motorist Cases . . . 653
216 Defendant's Requests for Production—Uninsured/Underinsured Motorist Cases . . . 655
217 Interrogatories—Civil Actions Alleging Personal Injury—Medicare Enrollment, Eligibility and Payments . . . 658
218 Defendant's Interrogatories—Medical Negligence . . . 660
219 Defendant's Requests for Production—Medical Negligence . . . 668
220 Plaintiff's Interrogatories—Medical Negligence—Health Care Provider . . . 673
221 Plaintiff's Interrogatories—Medical Negligence—Hospital and/or Medical Group . . . 678
222 Plaintiff's Requests for Production—Medical Negligence—Health Care Provider . . . 682
223 Plaintiff's Requests for Production—Medical Negligence—Hospital and/or Medical Group. 685

TECHNICAL CHANGE—2026: Certain nonsubstantive, technical editorial changes have been made to a number of the forms to update the terminology to align with current technology and practice.

Form 101
Heading of Pleadings, Motions and Requests

No.

_____ Superior Court
(First Named Plaintiff)

Judicial District of *(or)* G.A. No.

v. _____

at _____

_____ _____
(First Named Defendant) (Date)

_____
(Name or Designation of Pleading or Motion)

(PB. 1963, Form 249; P.B. 1978-1997, Form 105.1)

Form 201

Plaintiff's Interrogatories

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Plaintiff, hereby propounds the following interrogatories to be answered by the Defendant, _____, under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

Definition: "You" shall mean the Defendant to whom these interrogatories are directed except that if that Defendant has been sued as the representative of the estate of a decedent, ward, or incapable person, "you" shall also refer to the Defendant's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

In answering these interrogatories, the Defendant(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State the following:

(a) your full name and any other name(s) by which you have been known;

(b) your date of birth;

(c) your motor vehicle operator's license number;

(d) your home address;

(e) your business address;

(f) if you were not the owner of the subject vehicle, the name and address of the owner or lessor of the subject vehicle on the date of the alleged occurrence.

(2) Have you made any statements, as defined in Practice Book Section 13-1, to any person regarding any of the incidents alleged in the Complaint?

COMMENT:

This interrogatory is intended to include party statements made to a representative of an insurance company prior to involvement of defense counsel.

(3) If the answer to Interrogatory #2 is affirmative, state:

(a) the name(s) and address(es) of the person or persons to whom such statements were made;

(b) the date on which such statements were made;

(c) the form of the statement (i.e., whether written, made by recording device or recorded by a stenographer, etc.);

(d) the name and address of each person having custody, or a copy or copies of each statement.

(4) State the names and addresses of all persons known to you who were present at the time of the incident alleged in the Complaint or who observed or witnessed all or part of the incident.

(5) As to each individual named in response to Interrogatory #4, state whether to your knowledge, or the knowledge of your attorney, such individual has given any statement or statements as defined in Practice Book Section 13-1 concerning the subject matter of the Complaint in this lawsuit. If your answer to this interrogatory is affirmative, state also:

(a) the date on which the statement or statements were taken;

(b) the name(s) and address(es) of the person or persons who took such statement or statements;

(c) the name(s) and address(es) of any person or persons present when such statement or statements were taken;

(d) whether such statement or statements were written, made by recording device or taken by a court reporter or stenographer;

(e) the name(s) and address(es) of any person or persons having custody or a copy or copies of such statement or statements.

(6) Are you aware of any photographs or any recordings by film, video, audio or any other digital or electronic means depicting the incident alleged in the Complaint, the scene of the incident, any vehicle involved in the incident alleged in the Complaint, or any condition or injury alleged to have been caused by the incident alleged in the Complaint? If so, for each set of photographs or each recording taken, obtained or prepared of each such subject, please state:

(a) the name and address of the person who took, obtained or prepared such photograph or recording, other than an expert who will not testify at trial;

(b) the dates on which such photographs were taken or such recordings were obtained or prepared;

(c) the subject (e.g., “Plaintiff’s vehicle,” “scene,” etc.);

(d) the number of photographs or recordings;

(e) the nature of the recording (e.g., film, video, audio, etc.).

(7) If, at the time of the incident alleged in the Complaint, you were covered by an insurance policy under which an insurer may be liable to satisfy part or all of a judgment or reimburse you for payments to satisfy part or all of a judgment, state the following:

(a) the name(s) and address(es) of the insured(s);

(b) the amount of coverage under each insurance policy;

(c) the name(s) and address(es) of said insurer(s).

(8) If at the time of the incident which is the subject of this lawsuit you were protected against the type of risk which is the subject of this lawsuit by excess umbrella insurance, or any other insurance, state:

(a) the name(s) and address(es) of the named insured(s);

(b) the amount of coverage effective at this time;

(c) the name(s) and address(es) of said insurer(s).

(9) State whether any insurer, as described in Interrogatories #7 and #8 above, has disclaimed/ reserved its duty to indemnify any insured or any other person protected by said policy.

(10) If applicable, describe in detail the damage to your vehicle.

(11) If applicable, please state the name and address of an appraiser or firm which appraised or repaired the damage to the vehicle owned or operated by you.

(12) If any of the Defendants are deceased, please state the date and place of death, whether an estate has been created, and the name and address of the legal representative thereof.

(13) If any of the Defendants is a business entity that has changed its name or status as a business entity (whether by dissolution, merger, acquisition, name change, or in any other manner) since the date of the incident alleged in the Complaint, please identify such Defendant, state the date of the change, and describe the change.

(14) If you were the operator of any motor vehicle involved in the incident that is the subject of this action, please state whether, at the time of the incident, you were operating that vehicle in the course of your employment with any person or legal entity not named as a party to this lawsuit, and, if so, state the full name and address of that person or entity.

(15) If you were the operator of any motor vehicle involved in the incident that is the subject of this action, please state whether you consumed or used any alcoholic beverages, drugs or medications within the eight (8) hours next preceding the time of the incident alleged in the Complaint and, if so, indicate what you consumed or used, how much you consumed, and when.

(16) Please state whether, within eight (8) hours after the incident alleged in the Complaint, any testing was performed to determine the presence of alcohol, drugs or other medications in your blood, and, if so, state:

(a) the name and address of the hospital, person or entity performing such test or screen;

(b) the date and time;

(c) the results.

(17) Please identify surveillance material discoverable under Practice Book Section 13-3 (c), by stating the name and address of any person who obtained or prepared any and all recordings by film, photograph, video, audio or any other digital or electronic means, of any party concerning this lawsuit or its subject matter, including any transcript thereof which are in your possession or control or in the possession or control of your attorney, and state the date on which each such recordings were obtained and the person or persons of whom each such recording was made.

(18) If you were the operator of any motor vehicle involved in the incident that is the subject of this action, please state whether you were using a cell phone for any activity including, but not limited to, calling, texting, emailing, posting, tweeting, or visiting sites on the Internet for any purpose, at or immediately prior to the time of the incident.

PLAINTIFF,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Defendant)

Subscribed and sworn to before me this _____day of _____, 20 ___.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(P.B. 1978-1997, Form 106.10A.) (Amended June 21, 2004, to take effect Jan. 1, 2005; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 202

Defendant's Interrogatories

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Defendant, hereby propounds the following interrogatories to be answered by the Plaintiff, _____, under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

Definition: "You" shall mean the Plaintiff to whom these interrogatories are directed except that if suit has been instituted by the representative of the estate of a decedent, ward, or incapable person, "you" shall also refer to the Plaintiff's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

In answering these interrogatories, the Plaintiff(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State the following:

(a) your full name and any other name(s) by which you have been known;

(b) your date of birth;

(c) your motor vehicle operator's license number;

(d) your home address;

(e) your business address;

(f) if you were not the owner of the subject vehicle, the name and address of the owner or lessor of the subject vehicle on the date of the alleged occurrence.

(2) Identify and list each injury you claim to have sustained as a result of the incidents alleged in the Complaint.

(3) When, where and from whom did you first receive treatment for said injuries?

(4) If you were treated at a hospital for injuries sustained in the alleged incident, state the name and location of each hospital and the dates of such treatment and confinement therein.

(5) State the name and address of each physician, therapist or other source of treatment for the conditions or injuries you sustained as a result of the incident alleged in your Complaint.

(6) When and from whom did you last receive any medical attention for injuries alleged to have been sustained as a result of the incident alleged in your Complaint?

(7) On what date were you fully recovered from the injuries or conditions alleged in your Complaint?

(8) If you claim you are not fully recovered, state precisely from what injuries or conditions you are presently suffering.

(9) Are you presently under the care of any doctor or other health care provider for the treatment of injuries alleged to have been sustained as a result of the incident alleged in your Complaint?

(10) If the answer to Interrogatory #9 is in the affirmative, state the name and address of each physician or other health care provider who is treating you.

(11) Do you claim any present disability resulting from injuries or conditions allegedly sustained as a result of the incident alleged in your Complaint?

(12) If so, state the nature of the disability claimed.

(13) Do you claim any permanent disability resulting from said incident?

(14) If the answer to Interrogatory #13 is in the affirmative, please answer the following:

(a) list the parts of your body which are disabled;

(b) list the motions, activities or use of your body which you have lost or which you are unable to perform;

(c) state the percentage of loss of use claimed as to each part of your body;

(d) state the name and address of the person who made the prognosis for permanent disability and the percentage of loss of use;

(e) list the date for each such prognosis.

(15) If you were or are confined to your home or your bed as a result of injuries or conditions sustained as a result of the incident alleged in your Complaint, state the dates you were so confined.

(16) List each medical report received by you or your attorney relating to your alleged injuries or conditions by stating the name and address of the treating doctor or other health care provider, and of any doctor or health care person you anticipate calling as a trial witness, who provided each such report and the date thereof.

(17) List each item of expense which you claim to have incurred as a result of the incident alleged in your Complaint, the amount thereof, and state the name and address of the person or organization to whom each item has been paid or is payable.

(18) For each item of expense identified in response to Interrogatory #17, if any such expense, or portion thereof, has been paid or reimbursed or is reimbursable by an insurer, state, as to each such item of expense, the name of the insurer that made such payment or reimbursement or that is responsible for such reimbursement.

(19) If, during the ten year period prior to the date of the incident alleged in the Complaint, you were under a doctor's care for any conditions which were in any way similar or related to those identified and listed in your response to Interrogatory #2, state the nature of said conditions, the dates on which treatment was received, and the name of the doctor or health care provider.

(20) If, during the ten year period prior to the date of the incident alleged in your Complaint, you were involved in any incident in which you received personal injuries similar or related to those identified and listed in your response to Interrogatory #2, please answer the following with respect to each such earlier incident:

(a) on what date and in what manner did you sustain such injuries?

(b) did you make a claim against anyone as a result of said accident?

(c) if so, provide the name(s) and address(es) of the person or persons against whom a claim was made;

(d) if suit was brought, state the name and location of the Court, the return date of the suit, and the docket number;

(e) state the nature of the injuries received in said accident;

(f) state the name and address of each physician who treated you for said injuries;

(g) state the dates on which you were so treated;

(h) state the nature of the treatment received on each such date;

(i) if you are presently or permanently disabled as a result of said injuries, please state the nature of such disability, the name and address of each physician who diagnosed said disability and the date of each such diagnosis.

(21) If you were involved in any incident in which you received personal injuries since the date of the incident alleged in the Complaint, please answer the following:

(a) on what date and in what manner did you sustain said injuries?

(b) did you make a claim against anyone as a result of said accident?

(c) if so, provide the name(s) and address(es) of the person or persons against whom a claim was made;

(d) if suit was brought, state the name and location of the Court, the return date of the suit, and the docket number;

(e) state the nature of the injuries received in said accident;

(f) state the name and address of each physician who treated you for said injuries;

(g) state the dates on which you were so treated;

(h) state the nature of the treatment received on each such date;

(i) if you are presently or permanently disabled as a result of said injuries, please state the nature of such disability, the name and address of each physician who diagnosed said disability and the date of each such diagnosis.

(22) Please state the name and address of any medical service provider who has rendered an opinion in writing or through testimony that you have sustained a permanent disability to any body part other than those listed in response to Interrogatories #13, #14, #20 or #21, and:

(a) list each such part of your body that has been assessed a permanent disability;

(b) state the percentage of loss of use assessed as to each part of your body;

(c) state the date on which each such assessment was made.

(23) If you claim that as a result of the incident alleged in your Complaint you were prevented from following your usual occupation, or otherwise lost time from work, please provide the following information:

(a) the name and address of your employer on the date of the incident alleged in the Complaint;

(b) the nature of your occupation and a precise description of your job responsibilities with said employer on the date of the incident alleged in the Complaint;

(c) your average, weekly earnings, salary, or income received from said employment for the year preceding the date of the incident alleged in the Complaint;

(d) the date following the date of the incident alleged in the Complaint on which you resumed the duties of said employment;

(e) what loss of income do you claim as a result of the incident alleged in your Complaint and how is said loss computed?

(f) the dates on which you were unable to perform the duties of your occupation and lost time from work as a result of injuries or conditions claimed to have been sustained as a result of the incident alleged in your Complaint;

(g) the name(s) and address(es) of each employer for whom you worked for three years prior to the date of the incident alleged in your Complaint.

(24) Do you claim an impairment of earning capacity?

(25) List any other expenses or loss and the amount thereof not already set forth and which you claim to have incurred as a result of the incident alleged in your Complaint.

(26) If you have signed a covenant not to sue, a release or discharge of any claim you had, have or may have against any person, corporation or other entity as a result of the incident alleged in your Complaint, please state in whose favor it was given, the date thereof, and the consideration paid to you for giving it.

(27) If you or anyone on your behalf agreed or made an agreement with any person, corporation or other entity to limit in any way the liability of such person, corporation or other entity as a result of any claim you have or may have as a result of the incident alleged in your Complaint, please state in whose favor it was given, the date thereof, and the consideration paid to you for giving it.

(28) If since the date of the incident alleged in your Complaint, you have made any claims for workers' compensation benefits, state the nature of such claims and the dates on which they were made.

(29) Have you made any statements, as defined in Practice Book Section 13-1, to any person regarding any of the events or happenings alleged in your Complaint?

COMMENT:

This interrogatory is intended to include party statements made to a representative of an insurance company prior to involvement of defense counsel.

(30) State the names and addresses of all persons known to you who were present at the time of the incident alleged in your Complaint or who observed or witnessed all or part of the accident.

(31) As to each individual named in response to Interrogatory #30, state whether to your knowledge, or the knowledge of your attorney, such individual has given any statement or statements as defined in Practice Book Section 13-1 concerning the subject matter of your Complaint or alleged injuries. If your answer to this interrogatory is affirmative, state also:

(a) the date on which such statement or statements were taken;

(b) the name(s) and address(es) of the person or persons who took such statement or statements;

(c) the name(s) and address(es) of any person or persons present when such statement or statements were taken;

(d) whether such statement or statements were written, made by recording device or taken by a court reporter or stenographer;

(e) the name(s) and address(es) of any person or persons having custody or a copy or copies of such statement or statements.

(32) Are you aware of any photographs or any recordings by film, video, audio or any other digital or electronic means depicting the incident alleged in the Complaint, the scene of the incident, any vehicle involved in the incident alleged in the Complaint, or any condition or injury alleged to have been caused by the incident alleged in the Complaint? If so, for each set of photographs or each recording taken, obtained or prepared of each such subject, please state:

(a) the name and address of the person who took, obtained or prepared such photograph or recording, other than an expert who will not testify at trial;

(b) the dates on which such photographs were taken or such recordings were obtained or prepared;

(c) the subject (e.g., "Plaintiff's vehicle," "scene," etc.);

(d) the number of photographs or recordings;

(e) the nature of the recording (e.g., film, video, audio, etc.).

(33) If you were the operator of any motor vehicle involved in the incident that is the subject of this action, please state whether you consumed or used any alcoholic beverages, drugs or medications within the eight (8) hours next preceding the time of the incident alleged in the Complaint and, if so, indicate what you consumed or used, how much you consumed, and when.

(34) Please state whether, within eight (8) hours after the incident alleged in the Complaint, any testing was performed to determine the presence of alcohol, drugs or other medications in your blood, and, if so, state:

(a) the name and address of the hospital, person or entity performing such test or screen;

(b) the date and time;

(c) the results.

(35) Please identify surveillance material discoverable under Practice Book Section 13-3 (c), by stating the name and address of any person who obtained or prepared any and all recordings, by film, photograph, video, audio or any other digital or electronic means, of any party concerning this lawsuit

or its subject matter, including any transcript thereof which are in your possession or control or in the possession or control of your attorney, and state the date on which each such recordings were obtained and the person or persons of whom each such recording was made.

COMMENT:

The following two interrogatories are intended to identify situations in which a plaintiff has applied for and received workers' compensation benefits. If compensation benefits were paid, then the supplemental interrogatories and requests for production may be served on the Plaintiff without leave of the court if the compensation carrier does not intervene in the action.

(36) Did you make a claim for workers' compensation benefits as a result of the incident/occurrence alleged in the Complaint?

(37) Did you receive workers' compensation benefits as a result of the incident/occurrence alleged in the Complaint?

(38) If you were the operator of any motor vehicle involved in the incident that is the subject of this action, please state whether you were using a cell phone for any activity including, but not limited to, calling, texting, emailing, posting, tweeting, or visiting sites on the Internet for any purpose, at or immediately prior to the time of the incident.

DEFENDANT,

BY _____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Plaintiff)

Subscribed and sworn to before me this _____ day of _____, 20 ___ .

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____
Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____
Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(P.B. 1978-1997, Form 106.10B.) (Amended June 21, 2004, to take effect Jan. 1, 2005; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018 ; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 203

Plaintiff's Interrogatories—
Premises Liability Cases

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Plaintiff, hereby propounds the following interrogatories to be answered by the Defendant, _____, under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

In answering these interrogatories, the Defendant(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) Identify the person(s) who, at the time of the Plaintiff's alleged injury, owned the premises where the Plaintiff claims to have been injured.

(a) If the owner is a natural person, please state:

(i) your name and any other name by which you have been known;

(ii) your date of birth;

(iii) your home address;

(iv) your business address.

(b) If the owner is not a natural person, please state:

(i) your name and any other name by which you have been known;

(ii) your business address;

(iii) the nature of your business entity (corporation, partnership, etc.);

(iv) whether you are registered to do business in Connecticut;

(v) the name of the manager of the property, if applicable.

(2) Identify the person(s) who, at the time of the Plaintiff's alleged injury, had a possessory interest (e.g., tenants) in the premises where the Plaintiff claims to have been injured.

(3) Identify the person(s) responsible for the maintenance and inspection of the premises at the time and place where the Plaintiff claims to have been injured. "Maintenance and inspection" includes, but is not limited to, snow and ice removal.

(4) State whether you received or prepared any invoices or records related to such maintenance and inspection for the thirty days prior to, or on, the date on which the Plaintiff claims to have been injured.

(5) State whether you had in effect at the time of the Plaintiff's injuries any written policies, procedures or contracts that relate to the kind of conduct or condition the Plaintiff alleges caused the injury.

(6) State whether it is your business practice to prepare, or to obtain from your employees, a written report of the circumstances surrounding injuries sustained by persons on the subject premises.

(7) State whether any written report of the incident described in the Complaint was prepared by you or your employees in the regular course of business.

(8) State whether any warning or caution signs or barriers were erected at or near the scene of the incident at the time the Plaintiff claims to have been injured.

(9) If the answer to the previous interrogatory is in the affirmative, please state:

(a) the name, address and employer of the person who erected the warning or caution signs or barriers;

(b) the name, address and employer who instructed the person to erect the warning or caution signs or barriers;

(c) the time and date a sign or barrier was erected;

(d) the size of the sign or barrier and wording that appeared thereon.

(10) State whether you received, at any time within twenty-four (24) months before the incident described by the Plaintiff, complaints from anyone about the defect or condition that the Plaintiff claims caused the Plaintiff's injury.

(11) If the answer to the previous interrogatory is in the affirmative, please state:

(a) the name and address of the person who made the complaint;

(b) the name and address of the person to whom said complaint was made;

(c) whether the complaint was in writing;

(d) the nature of the complaint.

(12) Please identify surveillance material discoverable under Practice Book Section 13-3 (c), by stating the name and address of any person who obtained or prepared any and all recordings, by film, photograph, video, audio or any other digital or electronic means, of any party concerning this lawsuit or its subject matter, including any transcript thereof which are in your possession or control or in the possession or control of your attorney, and state the date on which each such recordings were obtained and the person or persons of whom each such recording was made.

(13) Are you aware of any photographs or any recordings by film, video, audio or any other digital or electronic means depicting the incident alleged in the Complaint, the scene of the incident, or any condition or injury alleged to have been caused by the incident alleged in the Complaint? If so, for each set of photographs or each recording taken, obtained or prepared of each such subject, please state:

(a) the name and address of the person who took, obtained or prepared such photographs or recording, other than an expert who will not testify at trial;

(b) the dates on which such photographs were taken or such recordings were obtained or prepared;

(c) the subject (e.g., "scene of incident," etc.);

(d) the number of photographs or recordings;

(e) the nature of the recording (e.g., film, video, audio, etc.).

(14)-(24) (Interrogatories #1 (a) through (e), #2 through #5, #7, #8, #9, #12, #13 and #16 of Form 201 may be used to complete this standard set of interrogatories.)

PLAINTIFF,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(P.B. 1978-1997, Form 106.10C.) (Amended June 20, 2005, to take effect Jan. 1, 2006; amended June 29, 2007, to take effect Jan. 1, 2008; amended June 22, 2009, to take effect Jan. 1, 2010; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 10, 2022, to take effect Jan. 1, 2023; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 204

Plaintiff's Requests for Production

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Plaintiff(s) hereby request(s) that the Defendant provide counsel for the Plaintiff(s) with copies of the documents described in the following requests for production, or afford counsel for said Plaintiff(s) the opportunity or, if necessary, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorization shall take place at the offices of _____on _____(day),_____(date) at _____(time).

In answering these production requests, the Defendant(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

Definition: "You" shall mean the Defendant to whom these interrogatories are directed except that if that Defendant has been sued as the representative of the estate of a decedent, ward, or incapable person, "you" shall also refer to the Defendant's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

(1) A copy of the appraisal or bill for repairs as identified in response to Interrogatory #11.

(2) A copy of declaration page(s) of each insurance policy identified in response to Interrogatory #7 and/or #8.

(3) If the answer to Interrogatory #9 is in the affirmative, a copy of the complete policy contents of each insurance policy identified in response to Interrogatory #7 and/or #8.

(4) A copy of any photographs or recordings identified in response to Interrogatory #6.

(5) A copy of any nonprivileged statement, as defined in Practice Book Section 13-1, of any party in this lawsuit concerning this action or its subject matter.

(6) A copy of all lease agreements pertaining to any motor vehicle involved in the incident which is the subject of this action, which was owned or operated by you or your employee, and all documents referenced or incorporated therein.

(7) A copy of all records of blood alcohol testing or drug screens referred to in answer to Interrogatory #16, or a signed authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA) or those of the Public Health Service Act, whichever is applicable, to obtain the same for each hospital, person or entity that performed such test or screen. Information obtained pursuant to the provisions of HIPAA or the Public Health Service Act shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(8) A copy of each and every recording of surveillance material discoverable under Practice Book Section 13-3 (c), by film, photograph, video, audio or any other digital or electronic means, of any party to this lawsuit concerning this lawsuit or the subject matter thereof, including any transcript of such recording.

PLAINTIFF,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(P.B. 1978-1997, Form 106.11A.) (Amended June 21, 2004, to take effect Jan. 1, 2005; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 26, 2007, to take effect Jan. 1, 2008; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 205

Defendant's Requests for Production

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Defendant(s) hereby request(s) that the Plaintiff provide counsel for the Defendant(s) with copies of the documents described in the following requests for production, or afford counsel for said Defendant(s) the opportunity or, where requested, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorizations shall take place at the offices of _____ not later than sixty (60) days after the service of the Requests for Production.

In answering these production requests, the Plaintiff(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

(1) All hospital records relating to treatment received as a result of the alleged incident, and to injuries, diseases or defects to which reference is made in the answers to Interrogatories #19, #20, #21 and #22, or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA), to inspect and make copies of said hospital records. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(2) All reports and records of all doctors and all other care providers relating to treatment allegedly received by the Plaintiff(s) as a result of the alleged incident, and to the injuries, diseases or defects to which reference is made in the answers to Interrogatories #19, #20, #21 and #22 (exclusive of any records prepared or maintained by a licensed psychiatrist or psychologist) or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA), to inspect and make copies of said reports. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(3) If a claim for lost wages or lost earning capacity is being made, copies of, or sufficient written authorization to inspect and make copies of, the wage and employment records of all employers of the Plaintiff(s) for three (3) years prior to the date of the incident and for all years subsequent to the date of the incident to and including the date hereof.

(4) If a claim of impaired earning capacity or lost wages is being alleged, provide copies of, or sufficient written authorization to obtain copies of, that part of all income tax returns relating to lost income filed by the Plaintiff(s) for a period of three (3) years prior to the date of the incident and for all years subsequent to the date of the incident through the time of trial.

(5) All property damage bills that are claimed to have been incurred as a result of this incident.

(6) All medical bills that are claimed to have been incurred as a result of this incident or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA), to inspect and make copies of said medical bills. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(7) All bills for each item of expense that is claimed to have been incurred in the answer to Interrogatory #17, and not already provided in response ¶5 and ¶6 above.

(8) Copies of all documentation of claims of right to reimbursement provided to the Plaintiff by third-party payors, and copies of, or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA), to obtain any and all documentation of payments made by a third party for medical services received or premiums paid to obtain such payment. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(9) All documents identified or referred to in the answers to Interrogatory #26.

(10) A copy of any nonprivileged statement, as defined in Practice Book Section 13-1, of any party in this lawsuit concerning this action or its subject matter.

(11) Any and all photographs or recordings identified in response to Interrogatory #32.

(12) A copy of all records of blood alcohol testing or drug screens referred to in the answer to Interrogatory #34, or a signed authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA) or those of the Public Health Service Act, whichever is applicable, to obtain the same. Information obtained pursuant to the provisions of HIPAA or the Public Health Service Act shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(13) A copy of each and every recording of surveillance material discoverable under Practice Book Section 13-3 (c), by film, photograph, video, audio or any other digital or electronic means, of any party to this lawsuit concerning this lawsuit or the subject matter thereof, including any transcript of such recording.

DEFENDANT,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(P.B. 1978-1997, Form 106.11B.) (Amended June 21, 2004, to take effect Jan. 1, 2005; amended June 20, 2005, to take effect Jan. 1, 2006; amended June 26, 2007, to take effect Jan. 1, 2008; amended June 20, 2011, to take effect Jan. 1, 2012; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 206

Plaintiff's Requests for Production—Premises Liability

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Plaintiff hereby requests that the Defendant provide counsel for the Plaintiff with copies of the documents described in the following requests for production, or afford counsel for said Plaintiff the opportunity or, if necessary, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorization shall take place at the offices of _____ on _____ (day), _____ (date) at _____ (time).

In answering these production requests, the Defendant(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

(1) A copy of the policies, procedures, contracts, invoices, or records identified in response to Interrogatories #4 and #5.

(2) A copy of the report identified in response to Interrogatory #7.

(3) A copy of any written complaints identified in Interrogatory #11.

(4) A copy of declaration page(s) evidencing the insurance policy or policies identified in response to Interrogatories numbered ___and _____.

(5) A copy of any nonprivileged statement, as defined in Practice Book Section 13-1, of any party in this lawsuit concerning this action or its subject matter.

(6) A copy of each and every recording of surveillance material discoverable under Practice Book Section 13-3 (c), by film, photograph, video, audio or any other digital or electronic means, of any party to this lawsuit concerning this lawsuit or the subject matter thereof, including any transcript of such recording.

(7) A copy of any photographs or recordings, identified in response to Interrogatory #13.

(8) A copy of any written lease(s) and any amendments or extensions to such lease(s) for the premises where the Plaintiff claims to have been injured in effect at the time of the Plaintiff's injury between you and the person or entity identified in Interrogatory #2.

(9) A copy of any written contract or agreement regarding the maintenance and inspection of the premises where the Plaintiff claims to have been injured in effect at the time of the Plaintiff's injury between you and the person or entity identified in Interrogatory #3.

PLAINTIFF,

BY _____

CERTIFICATION

I hereby certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(P.B. 1978-1997, Form 106.11C.) (Amended June 29, 2007, to take effect Jan. 1, 2008; amended June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 10, 2022, to take effect Jan. 1, 2023 ; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 207

Interrogatories—Actions To Establish, Enforce or Modify Child Support Orders

No.	: SUPERIOR COURT
(Plaintiff)	: FAMILY SUPPORT
	: MAGISTRATE DIVISION
VS.	: JUDICIAL DISTRICT OF
	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Plaintiff/Defendant, propounds the following interrogatories to be answered by the Defendant/Plaintiff within sixty (60) days of the filing hereof.

(1) For your present residence:

(a) What is the address?

(b) What type of property is it (apartment, condominium, single-family home)?

(c) Who is the owner of the property?

(d) What is your relationship to the owner (landlord, parents, spouse)?

(e) When did you start living at this residence?

(2) List the names of all the adults that live with you.

(a) For each adult you live with, what is your relationship to them (spouse, sibling, roommate, parent, girlfriend or boyfriend)?

(b) For each adult you live with, what is their financial contribution to the household (who pays the rent, who pays the utilities, who buys the groceries)?

(3) Give the name and address of your employer.

(a) Are you employed full-time or part-time? Are you self-employed? If you are self-employed, do not answer (b) through (h) and go directly to Interrogatory #4.

(b) Are you paid a salary, on an hourly basis, or do you work on commission or tips?

(c) What is your income per week?

(d) How many hours per week do you usually work?

(e) Is overtime available, and if it is, how many hours per week do you work overtime and what are you paid?

(f) Do you receive, or have you ever received, bonus income from your employment and what is the basis for the bonus?

(g) Does your employer deduct federal and state taxes and Medicare from your wages or are you responsible for filing your own deductions? If you file, provide a copy of your most recent tax returns.

(h) Do you have a second source of employment? If so, please provide the same information as requested in (a) through (g).

(4) If you are self-employed:

(a) Are you part of a partnership, corporation or LLC, and if you are, give the name of the business and your role in it?

(b) Name the other people involved in your business and their roles.

(c) Does the business file taxes (if so, bring copies of the last two tax returns filed to your next court date)?

(d) Describe the work you do.

(e) How many hours per week do you work, on average?

(f) How much do you typically earn per hour?

(g) List your business expenses, and what they cost per week.

(h) State how you are typically paid (check or cash).

(i) Name the five people or companies you did most of your work for in the last year.

(j) If you have a business account, what bank is it at (bring copies of the last six months of bank statements to your next court date)?

(k) Do you work alone or do you employ anyone and pay them wages? If you employ anyone, please identify them, their relationship to you, if any, and the amount you pay them.

(*l*) How do you keep your payment and expense records? Do you employ an accountant, and if so, please give the name and address of the accountant responsible for your records?

(5) Except for your current job, list all the places you have worked for in the last three years. For each place, list the address, the type of work you did, the dates you worked there and how much you were paid at each job.

(6) If you cannot work because of a disability, what is the nature of your disability?

(a) What is the date you became disabled?

(b) Is this disability permanent or temporary?

(c) If a doctor has told you that you cannot work, what is the name of the doctor and his or her office (bring a note from this doctor stating that you cannot work to your next court date)?

(d) If a doctor has told you that you cannot work, did he or she say you cannot work full-time or part-time?

(e) If you have a partial or permanent disability, please provide the percentage rating.

(f) Is your disability the result of an automobile accident, an accident at work, an accident at home or otherwise? Please give the date and details of the incident and state whether you have filed a lawsuit or workers' compensation claim as a result.

(g) Have you had any children since the incident? If so, list their dates of birth.

(7) Have you applied for Social Security Disability (SSD) or Supplemental Security Income (SSI)?

(a) If you did, when did you apply and where are you in the application process?

(b) Have you been told if or when you will receive benefits? If so, who told you and what is the date they gave you?

(c) If your application for SSD and/or SSI has been denied, did you appeal? If you appealed, what is the status of the appeal and what lawyer, if any, represents you?

(d) Have you applied for or are you receiving state assistance?

(e) Are you a recipient of the state supplement program, medical assistance program, temporary family assistance program or state-administered general assistance program (SAGA medical or cash)? If so, state the source of the benefit, the effective date of the benefit and the date when your eligibility for benefits will be redetermined by the Department of Social Services.

(8) Do you have any lawsuits pending?

(a) If you do, what type of case is it?

(b) Give the name, address, email address and phone number of the lawyer handling the case for you.

(c) What amount do you expect to recover and when do you expect to receive it?

(d) If you have already settled the case, please provide a copy of the settlement statement.

(9) Do you expect to inherit any money or property in the next six months?

(a) If you do, who do you expect to inherit from and where do they or where did they live?

(b) What do you expect to inherit, what is its value and when do you expect to inherit it?

(c) What is the name and address of the person or lawyer handling the estate and where is the Probate Court in which the action is filed?

(10) Is anyone holding any money for you? If so, name the person, their relationship to you, their address and the amount of money they are holding.

(11) Do you own any rental properties, by yourself, with someone else or in trust? If the answer is yes:

(a) Is the property residential or commercial?

(b) Please identify the location of the property or properties, include the address and identify your ownership interest.

(c) Do you derive any income from the property? Do you calculate your net income from the property on a weekly, monthly or yearly basis?

(d) What are your expenses relating to the property or properties? Please state the amount of your mortgage payment, if any, and the amount of your taxes, insurance and utility payments, if any, and your method of payment of these expenses.

(e) Did you have to apply for a loan to finance any part of the real property or to finance the purchase of any personal property? If so, identify the item, state the amount of the loan and give a copy of the loan application.

(12) Are you the beneficiary or settlor of a trust?

(a) If so, please identify the trust, the type of trust, the date of the creation of the trust, the name and address of the trustee and how the trust is funded.

(b) How often do you receive a distribution from the trust and from whom and in what amounts are the distributions?

BY _____

I, _____, certify that I have reviewed the interrogatories set out above and the responses to those interrogatories and that they are true and accurate to the best of my knowledge and belief.

_____

Subscribed and sworn to before me this _____ day of _____, 20____.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

Signed (*Signature of filer*) Print or type name of person signing Date Signed

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 21, 2010, to take effect Aug. 1, 2010; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 208

**Defendant's Supplemental Interrogatories—
Workers' Compensation Benefits—No Intervening Plaintiff**

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Defendant, hereby propounds the following interrogatories to be answered by the Plaintiff, _____, under oath, within sixty (60) days of the filing hereof insofar as the disclosure sought will be of assistance in the defense of this action and can be provided by the Plaintiff with substantially greater facility than could otherwise be obtained.

Definition: "You" shall mean the Plaintiff to whom these interrogatories are directed except that if suit has been instituted by the representative of the estate of a decedent, ward, or incapable person, "you" shall also refer to the Plaintiff's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

In answering these interrogatories, the Plaintiff(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full, and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State your full name, home address, and business address.

(2) State the workers' compensation claim number and the date of injury of each workers' compensation claim that you have filed as a result of the incident/occurrence alleged in the Complaint.

(3) State the total amount paid on your behalf on each of the claims filed as a result of the incident/occurrence alleged in the Complaint and referred to in Interrogatory #2, and if known, specify the amount of medical benefits, loss of income benefits, and specific award benefits, and if unknown, provide an authorization for the same.

(4) Identify any First Report of Injury, Notice of Claim for Compensation, Notice of Intention to Reduce or Discontinue Benefits, Notice to Administrative Law Judge and Employee of Intention to Contest Employee's Right to Compensation Benefits, and any reports of medical exams requested by the administrative law judge, respondent and/or employer arising out of the incident/occurrence alleged in the Complaint.

(5) Identify any voluntary agreements, approved stipulations to date, approved full and final stipulations and findings and awards, and findings and denials arising out of the incident/occurrence alleged in the Complaint and which formed the basis for your answer to Interrogatory #3.

(6) Which of your claims arising out of the incident/occurrence alleged in the Complaint and referenced in your answer to Interrogatory #2 are still open?

COMMENT:

These supplemental interrogatories are specifically directed at eliciting information about any workers' compensation claims, benefits and agreements. Unless the compensation carrier is a party to the action, it can be difficult to obtain this information. Often the Plaintiff's lawyers do not represent the client in the workers' compensation case, and although this information is available in the workers' compensation file, providing these records to lawyers not involved in the compensation case could be

time-consuming for the workers' compensation office staff. If compensation benefits were paid, these supplemental interrogatories may be served on the Plaintiff without leave of the court if there is no Intervening Plaintiff in the action.

DEFENDANT,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Plaintiff)

Subscribed and sworn to before me this _____ day of _____, 20____.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

Signed (*Signature of filer*) Print or type name of person signing Date Signed

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 209

**Defendant's Supplemental Requests for Production—
Workers' Compensation Benefits—No Intervening Plaintiff**

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Defendant(s) hereby request(s) that the Plaintiff provide counsel for the Defendant(s) with copies of the documents described in the following requests for production, or afford counsel for said Defendant(s) the opportunity or, where requested, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorizations shall take place at the offices of _____ not later than sixty (60) days after the service of the Requests for Production.

In answering these production requests, the Plaintiff(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

(1) Produce a copy of the First Report of Injury (Form FRI), Notice of Claim for Compensation (Form 30C), Notice of Intention to Reduce or Discontinue Benefits (Form 36), and Notice to Administrative Law Judge and Employee of Intention to Contest Employee's Right to Compensation Benefits (Form 43).

(2) Produce a copy of all of the approved voluntary agreements, approved stipulations to date, approved full and final stipulations, findings and awards, and findings and denials that relate to one or more of the claims referenced in your answer to Interrogatory #2 on Form 208.

(3) Produce a copy of all reports of medical exams requested by the administrative law judge, respondent and/or employer that were prepared concerning any of the claims referenced in your answer to Interrogatory #2 on Form 208.

(4) If you are unable to specify the amount of medical benefits, loss of income benefits, and specific award benefits paid on your behalf, provide an authorization for the same.

COMMENT:
These supplemental requests for production are specifically directed at eliciting information about any workers' compensation claims, benefits and agreements. Unless the compensation carrier is a party to the action, it can be difficult to obtain this information. Often the Plaintiff's lawyers do not represent the client in the workers' compensation case, and although this information is available in the workers' compensation file, providing these records to lawyers not involved in the compensation case could be time-consuming for the workers' compensation office staff. If compensation benefits were paid, these supplemental requests for production may be served on the Plaintiff without leave of the court if there is no Intervening Plaintiff in the action.

DEFENDANT,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys and exempt from e-filing self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

Signed (*Signature of filer*) Print or type name of person signing Date Signed

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018: ; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 210

Defendant's Interrogatories—
Workers' Compensation Benefits—Intervening Plaintiff

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Defendant, hereby propounds the following interrogatories to be answered by the Intervening Plaintiff, _____, under oath, within sixty (60) days of the filing hereof insofar as the disclosure sought will be of assistance in the defense of this action and can be provided by the Intervening Plaintiff with substantially greater facility than could otherwise be obtained.

Definition: "You" shall mean the Intervening Plaintiff to whom these interrogatories are directed except that if suit has been instituted by the representative of the estate of a decedent, ward, or incapable person, "you" shall also refer to the Intervening Plaintiff's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

In answering these interrogatories, the Plaintiff(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full, and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State the name, business address, business telephone number, business email address and relationship to the workers' compensation lien holder of the person answering these interrogatories.

(2) State the workers' compensation claim number and the date of injury of each workers' compensation claim that gave rise to the lien asserted by the workers' compensation lien holder.

(3) State the total amount paid on each claim referenced in the answer to Interrogatory #2, specifying the amount of medical benefits, loss of income benefits, and specific award benefits paid.

(4) Identify any First Report of Injury, Notice of Claim for Compensation, Notice of Intention to Reduce or Discontinue Benefits, Notice to Administrative Law Judge and Employee of Intention to Contest Employee's Right to Compensation Benefits, and any reports of medical exams requested by the administrative law judge, respondents and/or employer arising out of the incident/occurrence alleged in the Complaint.

(5) Identify any voluntary agreements, approved stipulations to date, approved full and final stipulations and findings and awards, and findings and denials.

(6) Identify the claims referenced in your answer to Interrogatory #2 that are still open.

COMMENT:

These standard interrogatories are intended to tailor the discovery from the intervening compensation carrier to the limited role and limited material information in the workers' compensation lien holder's file. The existing standard interrogatories directed to the Plaintiffs place an unnecessary burden on the parties, result in discovery disputes, and require the compensation carrier to produce information and documentation, in many instances, that is duplicative of the responses engendered by the same interrogatories served upon the Plaintiff in the case.

DEFENDANT,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Plaintiff)

Subscribed and sworn to before me this _____ day of _____, 20___.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____
Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____
Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 211

**Defendant's Requests for Production—
Workers' Compensation Benefits—Intervening Plaintiff**

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Defendant(s) hereby request(s) that the Intervening Plaintiff provide counsel for the Defendant(s) with copies of the documents described in the following requests for production, or afford counsel for said Defendant(s) the opportunity or, where requested, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorizations shall take place at the offices of _____ not later than sixty (60) days after the service of the Requests for Production.

In answering these production requests, the Plaintiff(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

(1) Produce a copy of the First Report of Injury (Form FRI), Notice of Claim for Compensation (Form 30C), Notice of Intention to Reduce or Discontinue Benefits (Form 36), and Notice to Administrative Law Judge and Employee of Intention to Contest Employee's Right to Compensation Benefits (Form 43).

(2) Produce a copy of all of the approved voluntary agreements, approved stipulations to date, approved full and final stipulations, findings and awards, and findings and denials that relate to one or more of the claims referenced in your answer to Interrogatory #2 on Form 210.

(3) Produce a copy of all reports of medical exams requested by the administrative law judge, respondent and/or employer that were prepared concerning any of the claims referenced in your answer to Interrogatory #2 on Form 210.

(4) Produce a copy of your workers' compensation lien calculations.

COMMENT:

These standard requests for production are intended to tailor the discovery from the intervening compensation carrier to the limited role and limited material information in the workers' compensation lien holder's file. The existing standard requests for production directed to the Plaintiffs place an unnecessary burden on the parties, result in discovery disputes, and require the compensation carrier to produce information and documentation, in many instances, that is duplicative of the responses engendered by the same requests for production served upon the Plaintiff in the case.

DEFENDANT,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

Signed (*Signature of filer*) Print or type name of person signing Date Signed

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 14, 2013, to take effect Jan. 1, 2014; amended June 13, 2014, to take effect Jan. 1, 2015; amended June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 212

Defendant's Interrogatories—Loss of Consortium

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Defendant, hereby propounds the following interrogatories to be answered by the Plaintiff, _____, under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

Definition: "You" shall mean the Plaintiff to whom these interrogatories are directed except that if suit has been instituted by the representative of the estate of a decedent, ward, or incapable person, "you" shall also refer to the Plaintiff's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

In answering these interrogatories, the Plaintiff(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) Please state your name, address and occupation.

(2) Please state the date and place of your marriage.

(3) Do you have any children? If so, state their names and dates of birth.

(4) Describe the nature of your loss of consortium claim.

(5) During your marriage, please list your employers, the length of time employed by each, and the average number of hours worked per month.

(6) Prior to the incident which is the subject of this lawsuit ("the incident"), did your spouse regularly perform work, services and/or chores ("services") in or around the home?

(7) If the answer to the previous interrogatory is in the affirmative, please describe the nature and frequency of such services.

(8) Subsequent to the incident, did such services change? If so, state how, and describe the impact of this change on you.

(9) Subsequent to the incident, did anyone other than your spouse perform the services usually performed by your spouse in and around the home?

(10) If the answer to the previous interrogatory is in the affirmative, please state the name(s) and address(es) of each person(s), the amount paid, the period of time they were hired and what services they performed.

(11) Have you or your spouse ever instituted legal proceedings seeking a divorce or separation? If so, state when.

(12) Did you, at any time during your marriage live apart from or separate yourself from your spouse? If so, state when and for how long such separation occurred, and state the reason for such separation.

(13) Describe any change(s) in the affection your spouse expressed or displayed toward you following the incident.

(14) If claimed, describe any change(s) in the frequency and satisfaction of your sexual relations with your spouse following the incident.

(15) Describe any change(s) in the activities which you and your spouse enjoyed together before the incident that you claim were caused by the incident.

(16) Within two years prior to the year of the incident up to the present, have you and/or your spouse had any marriage counseling? If so, state the name of each person consulted and the dates consulted or treated.

DEFENDANT,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Plaintiff)

Subscribed and sworn to before me this _____ day of _____, 20___.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*)_____to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

Signed (*Signature of filer*) Print or type name of person signing Date Signed

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 24, 2016, to take effect Jan. 1, 2017; amended June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 213

Plaintiff's Interrogatories—Uninsured/Underinsured Motorist Cases

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Plaintiff, hereby propounds the following interrogatories to be answered by the Defendant, _____, under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

In answering these interrogatories, the Defendant(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State whether the Plaintiff or Plaintiffs were insured by you for purposes of uninsured/underinsured motorist coverage with regard to this incident under the policy.

(2) If the answer to the preceding interrogatory is other than "yes," please state each reason for which you contend that such Plaintiff(s) were not so insured.

(3) Identify each policy of motor vehicle liability insurance, excess liability insurance, and/or umbrella liability insurance, of which you are aware, that provided coverage to the alleged tortfeasor(s) or the vehicle owned or operated by the alleged tortfeasor(s), his, her, its, or their agents, servants, and/or employees, with regard to this incident, stating:

(a) The name and address of each such insurer;

(b) The named insured(s);

(c) The policy number;

(d) The effective dates;

(e) The limits of uninsured/underinsured motorist coverage under such policy (including per person and per accident limits, if applicable); and

(f) The basis for contending that said alleged tortfeasor(s) are covered under said policy, including a brief description of any documents supporting that contention, and the names and addresses of any witnesses supporting that contention.

(4) State the limits of uninsured/underinsured motorist coverage available under the policy (including per person and per accident limits, if applicable), which you issued.

(5) State whether the policy affords uninsured/underinsured motorist conversion coverage, pursuant to General Statutes § 38a-336a.

(6) With regard to each credit, setoff, reduction, or deduction, which you contend lowers the maximum amount that you could be required to pay any plaintiff below the limits of the uninsured/underinsured motorist coverage as stated on the declarations page of the policy, state:

(a) The policy provision providing for said credit, setoff, reduction, or deduction;

(b) The amount of the credit, setoff, reduction, or deduction; and

(c) A brief description of the factual basis for the credit, setoff, reduction, or deduction.

COMMENT:

Interrogatory #6 is not intended to address any reduction in the verdict that may arise from the application of General Statutes § 52-572h (regarding comparative negligence and apportionment) or General Statutes § 52-225a (regarding collateral sources, as defined by General Statutes § 52-225b).

(7) Are you aware of any other insurance policy affording uninsured/underinsured motorist coverage, to any plaintiff herein, that is primary to the coverage afforded by your policy?

(8) If so, for each such policy, state:

(a) The name and address of the insurer;

(b) The name and address of each named insured;

(c) The policy number;

(d) The limits of uninsured/underinsured motorist coverage under such policy; and

(e) The basis for your contention that it is primary to your policy.

(9) State the names and addresses of all persons known to you who were present at the time of the incident alleged in the Complaint or who observed or witnessed all or part of the incident.

(10) As to each individual named in response to Interrogatory #9, state whether to your knowledge, or the knowledge of your attorney, such individual has given any statement or statements as defined in the Practice Book Sections 13-1 and 13-3 (b) concerning the subject matter of the Complaint in this action. If the answer to this interrogatory is affirmative, state also:

(a) The name and address of the person giving the statement;

(b) The date on which the statement or statements were taken;

(c) The names and addresses of the person or people who took such statement(s);

(d) The name and address of any person present when such statement(s) was taken;

(e) Whether such statement(s) was written, made by recording device, or taken by a court reporter or stenographer; and

(f) The name and address of each person having custody or a copy or copies of such statement(s).

(11) Are you aware of any photographs or any recordings by film, video, audio or any other digital or electronic means depicting the incident alleged in the Complaint, the scene of the incident, any vehicle involved in the incident alleged in the Complaint, or any condition or injury alleged to have been caused by the incident alleged in the Complaint? If so, for each set of photographs or each recording taken, obtained or prepared of each such subject, state:

(a) the name and address of the person who took, obtained or prepared such photograph or recording, other than an expert who will not testify at trial;

(b) the dates on which such photographs were taken or such recordings were obtained or prepared;

(c) the subject (e.g., “Plaintiff’s vehicle,” “scene,” etc.);

(d) the number of photographs or recordings;

(e) the nature of the recording (e.g., film, video, audio, etc.).

(12) Identify surveillance material discoverable under Practice Book Section 13-3 (c), by stating the name and address of any person who obtained or prepared any and all recordings, by film, photograph, video, audio or any other digital or electronic means, of any party concerning this action or its subject matter, including any transcript thereof which are in your possession or control or in the possession or control of your attorney, and state the date on which each such recording was obtained and the person or persons of whom each such recording was made.

PLAINTIFF,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Defendant)

Subscribed and sworn to before me this _____ day of _____, 20 ___.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 214

Defendant's Interrogatories—Uninsured/Underinsured Motorist Cases

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Defendant, hereby propounds the following interrogatories to be answered by the Plaintiff, _____, under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

In answering these interrogatories, the Plaintiff(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State the following:

(a) Your full name and any other name(s) by which you have been known;

(b) Your date of birth;

(c) Your motor vehicle operator's license number;

(d) Your home address;

(e) Your business address;

(f) If you were not the owner of the subject vehicle, the name and address of the owner or lessor of the subject vehicle on the date of the alleged occurrence.

(2) If, at the time of the incident alleged in the Complaint, you were covered by any uninsured/underinsured motorist policy, including any excess or umbrella policies, under which an insurer may be liable to satisfy part or all of a judgment after the underlying policy limits are exhausted or reimburse you for payments to satisfy part or all of a judgment after the underlying policy limits are exhausted, state the following:

(a) the name(s) and address(es) of the insured(s);

(b) the amount of coverage under each insurance policy;

(c) the name(s) and address(es) of said insurer(s); and

(d) whether a claim has been made for underinsured motorist benefits.

(3) State whether you resided with any relatives at the time of the incident, and, if so, identify any auto insurance policy they had that was in effect at the time of the accident.

(4) State whether any insurer, as described in Interrogatory #2 or #3 above, has disclaimed/reserved its duty to indemnify any insured or any other person protected by said policy.

(5) State the date on which your claim/lawsuit in the underlying matter settled, the sum(s) for which it settled and when you received the check.

(6) State all liability coverage that covered the person(s) against whom you brought suit in the underlying matter, including the policy limits.

(7) State whether the driver of the other vehicle in the underlying claim was working at the time of the incident and if so, state whether you made a claim against the other driver's employer.

(8) Identify and list each injury you claim to have sustained as a result of the incident alleged in the Complaint.

(9) When, where and from whom did you first receive treatment for said injuries?

(10) If you were treated at a hospital for injuries sustained in the alleged incident, state the name and location of each hospital and the dates of such treatment and confinement therein.

(11) State the name and address of each physician, therapist or other source of treatment for the conditions or injuries you sustained as a result of the incident alleged in your Complaint.

(12) When and from whom did you last receive any medical attention for injuries alleged to have been sustained as a result of the incident alleged in your Complaint?

(13) On what date were you fully recovered from the injuries or conditions alleged in your Complaint?

(14) If you claim you are not fully recovered, state precisely from what injuries or conditions you are presently suffering.

(15) Are you presently under the care of any doctor or other health care provider for the treatment of injuries alleged to have been sustained as a result of the incident alleged in your Complaint?

(16) If the answer to Interrogatory #15 is in the affirmative, state the name and address of each physician or other health care provider who is treating you.

(17) Do you claim any present disability resulting from injuries or conditions allegedly sustained as a result of the incident alleged in your Complaint?

(18) If so, state the nature of the disability claimed.

(19) Do you claim any permanent disability resulting from said incident?

(20) If the answer to Interrogatory #19 is in the affirmative, please answer the following:

(a) List the parts of your body which are disabled;

(b) List the motions, activities or use of your body which you have lost or which you are unable to perform;

(c) State the percentage of loss of use or the loss of function claimed as to each part of your body as provided by a medical service provider, if any;

(d) State the name and address of the person who made the prognosis for permanent disability and the percentage of loss of use;

(e) List the date for each such prognosis.

(21) If you were or are confined to your home or your bed as a result of injuries or conditions sustained as a result of the incident alleged in your Complaint, state the dates you were so confined.

(22) List each medical report received by you or your attorney relating to your alleged injuries or conditions by stating the name and address of the treating doctor or other health care provider, and of any doctor or health care person you anticipate calling as a trial witness, who provided each such report and the date thereof.

(23) List each item of expense which you claim to have incurred as a result of the incident alleged in your Complaint, the amount thereof, and state the name and address of the person or organization to whom each item has been paid or is payable.

(24) For each item of expense identified in response to Interrogatory #23, if any such expense, or portion thereof, has been paid or reimbursed or is reimbursable by an insurer, state, as to each such item of expense, the name of the insurer that made such payment or reimbursement or that is responsible for such reimbursement.

(25) If, during the ten year period prior to the date of the incident alleged in the Complaint, you were under a doctor's care for any conditions which were in any way similar or related to those identified and listed in your response to Interrogatory #8, state the nature of said conditions, the dates on which treatment was received, and the name of the doctor or health care provider.

(26) If, during the ten year period prior to the date of the incident alleged in your Complaint, you were involved in any incident in which you received personal injuries similar or related to those identified and listed in your response to Interrogatory #8, please answer the following with respect to each such earlier incident:

(a) On what date and in what manner did you sustain such injuries?

(b) Did you make a claim against anyone as a result of said incident?

(c) If so, provide the name(s) and address(es) of the person or persons against whom a claim was made;

(d) If suit was brought, state the name and location of the court, the return date of the suit, and the docket number;

(e) State the nature of the injuries received in said incident;

(f) State the name and address of each physician who treated you for said injuries;

(g) State the dates on which you were so treated;

(h) State the nature of the treatment received on each such date;

(i) If you are presently or permanently disabled as a result of said injuries, please state the nature of such disability, the name and address of each physician who diagnosed said disability and the date of each such diagnosis.

(27) If you were involved in any incident in which you received personal injuries since the date of the incident alleged in the Complaint, please answer the following:

(a) On what date and in what manner did you sustain such injuries?

(b) Did you make a claim against anyone as a result of said incident?

(c) If so, provide the name(s) and address(es) of the person or persons against whom a claim was made;

(d) If suit was brought, state the name and location of the court, the return date of the suit, and the docket number;

(e) State the nature of the injuries received in said incident;

(f) State the name and address of each physician who treated you for said injuries;

(g) State the dates on which you were so treated;

(h) State the nature of the treatment received on each such date;

(i) If you are presently or permanently disabled as a result of said injuries, please state the nature of such disability, the name and address of each physician who diagnosed said disability and the date of each such diagnosis.

(28) Please state the name and address of any medical service provider who has rendered an opinion in writing or through testimony that you have sustained a permanent disability to any body part other than those listed in response to Interrogatories #19, #20, #26, or #27, and:

(a) List each such part of your body that has been assessed a permanent disability;

(b) State the percentage of loss of use or function assessed as to each part of your body, if any;

(c) State the date on which each such assessment was made.

(29) If you claim that as a result of the incident alleged in your Complaint you were prevented from following your usual occupation, or otherwise lost time from work, please provide the following information:

(a) The name and address of your employer on the date of the incident alleged in the Complaint;

(b) The nature of your occupation and a precise description of your job responsibilities with said employer on the date of the incident alleged in the Complaint;

(c) Your average weekly earnings, salary, or income received from said employment for the year preceding the date of the incident alleged in the Complaint;

(d) The date following the date of the incident alleged in the Complaint on which you resumed the duties of said employment;

(e) What loss of income do you claim as a result of the incident alleged in your Complaint and how is said loss computed?

(f) The dates on which you were unable to perform the duties of your occupation and lost time from work as a result of injuries or conditions claimed to have been sustained as a result of the incident alleged in your Complaint;

(g) The name and address of each employer for whom you worked for three years prior to the date of the incident alleged in your Complaint.

(30) Do you claim an impairment of earning capacity?

(31) List any other expenses or loss and the amount thereof not already set forth and which you claim to have incurred as a result of the incident alleged in your Complaint.

(32) If you have signed a covenant not to sue, a release or discharge of any claim you had, have or may have against any person, corporation or other entity as a result of the incident alleged in your Complaint, please state in whose favor it was given, the date thereof, and the consideration paid to you for giving it.

(33) If you or anyone on your behalf agreed or made an agreement with any person, corporation or other entity to limit in any way the liability of such person, corporation or other entity as a result of any claim you have or may have as a result of the incident alleged in your Complaint, please state in whose favor it was given, the date thereof, and the consideration paid to you for giving it.

(34) If, since the date of the incident alleged in your Complaint, you have made any claims for workers' compensation benefits as a result of the incident alleged in your Complaint:

(a) State the nature of such claims and the dates on which they were made.

(b) State the workers' compensation claim number and the date of injury of each workers' compensation claim that you have filed as a result of the incident/occurrence alleged in the Complaint.

(c) State the total amount paid on your behalf on each of the claims filed as a result of the incident/occurrence alleged in the Complaint and referred to in Interrogatory #34, and if known, specify the amount of medical benefits, loss of income benefits, and specific award benefits, and if unknown, provide an authorization for the same.

(d) Identify any First Report of Injury, Notice of Claim for Compensation, Notice of Intention to Reduce or Discontinue Benefits, Notice to Administrative Law Judge and Employee of Intention to Contest Employee's Right to Compensation Benefits, and any reports of medical exams requested by the administrative law judge, respondent and/or employer arising out of the incident/occurrence alleged in the Complaint.

(e) Identify any voluntary agreements, approved stipulations to date, approved full and final stipulations and findings and awards, and findings and denials arising out of the incident/occurrence alleged in the Complaint and which formed the basis for your answer to Interrogatory #34.

(f) Which of your claims arising out of the incident/occurrence alleged in the Complaint and referenced in your answer to Interrogatory #34 are still open?

(35) Have you made any statements, as defined in Practice Book Section 13-1, to any person regarding any of the events or happenings alleged in your Complaint?

(36) State the names and addresses of all persons known to you who were present at the time of the incident alleged in your Complaint or who observed or witnessed all or part of the incident.

(37) As to each individual named in response to Interrogatory #36, state whether to your knowledge, or the knowledge of your attorney, such individual has given any statement or statements as defined in Practice Book Section 13-1 concerning the subject matter of the Complaint in this action. If the answer to this interrogatory is affirmative, state also:

(a) The date on which the statement or statements were taken;

(b) The names and addresses of the person or people who took such statement(s);

(c) The name and address of any person present when such statement(s) was taken;

(d) Whether such statement(s) was written, made by recording device, or taken by a court reporter or stenographer; and

(e) The name and address of each person having custody or a copy or copies of such statement(s).

(38) Are you aware of any photographs or any recordings by film, video, audio or any other digital or electronic means depicting the incident alleged in the Complaint, the scene of the incident, any vehicle involved in the incident alleged in the Complaint, or any condition or injury alleged to have been caused by the incident alleged in the Complaint? If so, for each set of photographs or each recording taken, obtained or prepared of each such subject state:

(a) The name and address of the person who took, obtained or prepared such photograph or recording, other than an expert who will not testify at trial;

(b) The dates on which such photographs were taken or such recordings were obtained or prepared;

(c) The subject (e.g., “Plaintiff’s vehicle,” “scene,” etc.);

(d) The number of photographs or recordings; and

(e) The nature of the recording (e.g., film, video, audio, etc.).

(39) If you were the operator of any motor vehicle involved in the incident that is the subject of this action, please state whether you consumed or used any alcoholic beverages, drugs or medications within the eight (8) hours next preceding the time of the incident alleged in the Complaint, and, if so, indicate what you consumed or used, how much you consumed, and when.

(40) Please state whether, within eight (8) hours after the incident alleged in the Complaint, any testing was performed to determine the presence of alcohol, drugs or other medications in your blood, and, if so, state:

(a) The name and address of the hospital, person or entity performing such test or screen;

(b) The date and time;

(c) The results.

(41) Please identify surveillance material discoverable under Practice Book Section 13-3 (c), by stating the name and address of any person who obtained or prepared any and all recordings, by film, photograph, video, audio or any other digital or electronic means, of any party concerning this lawsuit or its subject matter, including any transcript thereof, which are in your possession or control or in the possession or control of your attorney, and state the date on which each such recording was obtained and the person or persons of whom each such recording was made.

(42) If you were the operator of any motor vehicle involved in the incident that is the subject of this action, please state whether you were using a cell phone for any activity including, but not limited to, calling, texting, emailing, posting, tweeting, or visiting sites on the Internet for any purpose, at or immediately prior to the time of the incident.

DEFENDANT,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Plaintiff)

Subscribed and sworn to before me this _____ day of _____, 20___.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

Signed (*Signature of filer*) Print or type name of person signing Date Signed

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, "exempt from e-filing" was added after "from all attorneys."

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 215

Plaintiff's Requests for Production—Uninsured/Underinsured Motorist Cases

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Plaintiff(s) hereby request(s) that the Defendant provide counsel for the Plaintiff(s) with copies of the documents described in the following requests for production, or afford counsel for said Plaintiff(s) the opportunity or, if necessary, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorizations shall take place at the offices of _____ not later than sixty (60) days after the service of the Requests for Production.

In answering these production requests, the Defendant is required to provide all information within its possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

(1) A copy of the declarations page and complete policy for each insurance policy referred to in the allegations against you in the Complaint and for any other policy of insurance in effect on the date of the incident, by which you provided uninsured/underinsured motorist coverage with regard to any person or vehicle involved in the incident that is the subject of this action.

(2) Copies of all documents and records regarding the existence of or the lack of insurance on the alleged tortfeasor(s) or the motor vehicle operated by the alleged tortfeasor(s), his, her, its or their agent, servant and/or employee, at the time of this incident, including but not limited to reservations of rights letters and letters about declination of coverage.

(3) A copy of any written request by any insured for a lesser limit of uninsured/underinsured motorist coverage than the amount equal to their limits for liability imposed by law, under the policy or any earlier policy of which the policy was a renewal, extension, change, replacement, or superseding policy.

(4) Any copy of any nonprivileged statement, as defined in Practice Book Sections 13-1 and 13-3 (b), of any party in this action concerning this action or its subject matter.

(5) A copy of each and every recording of surveillance material discoverable under Practice Book Section 13-3 (c), by film, photograph, video, audio or any other digital or electronic means, of any party to this lawsuit concerning this action or the subject matter thereof, including any transcript of such recording.

(6) A copy of any photographs or recordings identified in response to Interrogatory #11.

PLAINTIFF,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 216

Defendant's Requests for Production—Uninsured/Underinsured Motorist Cases

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Defendant(s) hereby request(s) that the Plaintiff, _____, provide counsel for the Defendant(s) with copies of the documents described in the following requests for production, or afford counsel for said Defendant(s) the opportunity or, where requested, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorizations shall take place at the offices of _____ not later than sixty (60) days after the service of the Requests for Production.

In answering these production requests, the Plaintiff(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

(1) A copy of the declarations page and of the complete policy for each insurance policy in effect at the time of the incident alleged in your Complaint, including any excess or umbrella policies identified in response to Interrogatory #2.

(2) A copy of the declarations page and of the complete policy for each insurance policy in effect at the time of the incident alleged in your Complaint, including any excess or umbrella policies identified in response to Interrogatory #3.

(3) Copies of all documents and records regarding the existence or the lack of insurance on the alleged tortfeasor(s) or the motor vehicle operated by the alleged tortfeasor(s), his, her, its or their agent, servant and/or employee, at the time of this incident, including but not limited to reservations of rights letters and declination of coverage letters.

(4) A copy of any affidavit of "no other insurance" in the underlying matter.

(5) A copy of any notice to the Defendant in writing of your claim in this action.

(6) All hospital records relating to treatment received as a result of the alleged incident, and to injuries, diseases or defects to which reference is made in the answers to Interrogatories #25, #26, #27 and #28, or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA), to inspect and make copies of said hospital records. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(7) All reports and records of all doctors and all other care providers relating to treatment allegedly received by the Plaintiff(s) as a result of the alleged incident, and to the injuries, diseases or defects to which reference is made in the answers to Interrogatories #25, #26, #27 and #28, or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA), to inspect and make copies of said reports. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(8) If a claim for lost wages or lost earning capacity has been made as a result of the alleged incident, copies of, or sufficient written authorization to inspect and make copies of the wage and employment records of all employers of the Plaintiff(s) for three (3) years prior to the date of the incident and for all years subsequent to the date of the incident to and including the date hereof.

(9) If a claim of impaired earning capacity or lost wages has been made as a result of the alleged incident, copies of, or sufficient written authorization to obtain copies of, that part of all income tax returns relating to lost income filed by the Plaintiff(s) for a period of three (3) years prior to the date of the incident and for all years subsequent to the date of the incident through the time of trial.

(10) All property damage bills that are claimed to have been incurred as a result of the alleged incident.

(11) All medical bills that are claimed to have been incurred as a result of this incident or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA), to inspect and make copies of said medical bills. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(12) All bills for each item of expense that is claimed to have been incurred in the answer to Interrogatory #23, and not already provided in response to Production Requests #10 and #11.

(13) Copies of all documentation of claims of right to reimbursement provided to the Plaintiff by third-party payors, and copies of, or written authorization, sufficient to comply with provisions of the Health Insurance Portability and Accountability Act (HIPAA), to obtain any and all documentation of payments made by a third party for medical services received or premiums paid to obtain such payment. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(14) All documents identified or referenced in your answer to Interrogatories #32 and #33.

(15) A copy of any nonprivileged statement, as defined in Practice Book Section 13-1, of any party in this action concerning this action or its subject matter.

(16) Any and all photographs or recordings identified in response to Interrogatory #38.

(17) A copy of all records of blood alcohol testing or drug screens referred to in the answer to Interrogatory #39, or a signed authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA) or those of the Public Health Service Act, whichever is applicable, to obtain the same. Information obtained pursuant to the provisions of HIPAA or the Public Health Service Act shall not be used or disclosed by the parties for any purpose other than the litigation or proceeding for which such information is requested.

(18) A copy of each and every recording of surveillance material discoverable under Practice Book Section 13-3 (c), by film, photograph, video, audio or any other digital or electronic means, of any party to this action concerning this action or the subject matter thereof, including any transcript of such recording.

(19) A copy of the First Report of Injury (Form FRI), Notice of Claim for Compensation (Form 30C), Notice of Intention to Reduce or Discontinue Benefits (Form 36), and Notice to Administrative Law Judge and Employee of Intention to Contest Employee's Right to Compensation Benefits (Form 43) referenced in your answer to Interrogatory #34.

(20) A copy of all of the approved voluntary agreements, approved stipulations to date, approved full and final stipulations, findings and awards, and findings and denials that relate to one or more of the claims referenced in your answer to Interrogatory #34.

(21) A copy of all reports of medical exams requested by the administrative law judge, respondent and/or employer that were prepared concerning any of the claims referenced in your answer to Interrogatory #34.

(22) If you are unable to specify the amount of medical benefits, loss of income benefits, and specific award benefits paid on your behalf, provide an authorization for the same.

DEFENDANT,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

Signed (*Signature of filer*) Print or type name of person signing Date Signed

Mailing address (Number, street, town, state and zip code) or Email address, if applicable Telephone number

(Adopted June 23, 2017, to take effect Jan. 1, 2018; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 217

Interrogatories—
Civil Actions Alleging Personal Injury—
Medicare Enrollment, Eligibility and Payments

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the _____, hereby propounds the following interrogatories to be answered under oath by the party being served within sixty (60) days of the service hereof in compliance with Practice Book Section 13-2.

Definition: "You" shall mean the party to whom these interrogatories are directed except that if suit has been instituted by the representative of the estate of a decedent, ward, or incapable person, "You" shall also refer to the party's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

In answering these interrogatories, You are required to provide all information within your knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State the following:

(a) your full name;

(b) any other name(s) by which You have been known;

(c) your date of birth;

(d) your home address;

(e) your business address.

(2) State whether You have ever been enrolled in a plan offered pursuant to any Medicare Part

If your answer to Interrogatory #2 is affirmative, state the following:

(a) the effective date(s);

(b) your Medicare claim number(s);

(c) your name exactly as it appears on your Medicare card.

(3) State whether a plan offered pursuant to any Medicare Part has paid any bills for treatment of any injuries allegedly sustained as a result of the incident alleged in your complaint.

If your answer to Interrogatory #3 is affirmative, state the amount paid.

(4) If You are not presently enrolled in any Medicare Part, state whether You are eligible to enroll.

(5) If You are not presently enrolled in any Medicare Part, state whether You plan to apply within the next thirty-six (36) months.

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

Subscribed and sworn to before me this _____day of _____, 20 ____.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____
Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____
Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 13, 2019, to take effect Jan. 1, 2020; amended June 12, 2025, to take effect Jan. 1, 2026.)
HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”
COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).
TECHNICAL CHANGE: The certification was updated to correct an error in the language and for consistency purposes.

Form 218

**Defendant's Interrogatories—
Medical Negligence**

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Defendant, hereby propounds the following interrogatories to be answered by the Plaintiff, _____, under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

Definition: "You" or "your" shall mean the Plaintiff to whom these interrogatories are directed, except that if a lawsuit has been instituted by the representative of the estate of a decedent, ward, or incapable person, "you" or "your" shall also refer to the Plaintiff's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

In answering these interrogatories, the Plaintiff(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State the following:

(a) Your full name and any other name(s) by which you have been known;

(b) Your date of birth;

(c) Your current home address;

(d) Your home address as of the time of the negligence alleged in the Complaint; and

(e) Your home address for the five years prior to and since the negligence alleged in the Complaint.

(2) State your marital status at the time of and since the negligence alleged in the Complaint and, if married, provide the date of the marriage, the full legal name, and current address of your spouse.

(3) State the full legal name and age of each person with whom you have lived at or since the time of the negligence alleged in the Complaint and identify each time period.

(4) State the full legal names and ages of your children. For each child, identify the time periods during which they resided with you at or since the time of the negligence alleged in the Complaint.

(5) Identify and list each physical and mental injury or condition you claim to have sustained as a result of the negligence alleged in the Complaint.

(6) If you were treated at a hospital for injuries and conditions sustained as a result of the negligence alleged in the Complaint, state the name and location of each hospital and the dates of such treatment and admission.

(7) State the name and address of each physician or other health care provider who treated you for the injuries and conditions you sustained as a result of the negligence alleged in the Complaint.

(8) When and from whom did you last receive any medical treatment for injuries and conditions alleged to have been sustained as a result of the negligence alleged in the Complaint?

(9) Identify the date you last received medical services or treatment from the Defendant.

(10) State the date you fully recovered from the injuries and conditions alleged in your Complaint.

(11) If you are not fully recovered, state precisely from what injuries and conditions you are presently suffering.

(12) Are you presently under the care of any physician or other health care provider for the treatment of injuries and conditions alleged to have been sustained as a result of the negligence alleged in your Complaint?

(13) If the answer to the prior interrogatory is in the affirmative, state the name and address of each physician or other health care provider who is treating you.

(14) Do you claim any disability resulting from injuries and conditions allegedly sustained as a result of the negligence alleged in your Complaint?

(15) If so, state the nature of the disability claimed.

(16) Do you claim any permanent disability resulting from the negligence alleged in the Complaint?

(17) If the answer to the prior interrogatory is in the affirmative, answer the following:

(a) List the parts of your body which are disabled;

(b) List the motions, activities or use of your body which you have lost or which you are unable to perform;

(c) State the percentage of loss of use claimed as to each part of your body;

(d) State the name and address of the person who made the prognosis for permanent disability and the percentage of loss of use; and

(e) List the date for each such prognosis.

(18) If you were or are confined to your home or your bed as a result of injuries and conditions sustained as a result of the negligence alleged in your Complaint, state the dates you were so confined.

(19) Identify any nonprivileged medical reports received by you or your attorney relating to your alleged injuries and conditions by stating the name and address of the treating physician or other health care provider, and any physician or health care provider you anticipate calling as a trial witness, who provided such reports and the date of the report.

(20) List each item of expense which you claim to have incurred as a result of the negligence alleged in your Complaint, and state the name and address of the person or organization to whom each item has been paid or is payable.

(21) For each item of expense identified in response to the prior interrogatory, if any such expense, or portion thereof, has been paid or reimbursed or is reimbursable by an insurer, state, as to each such item of expense, the name of the insurer that made such payment or reimbursement or that is responsible for such reimbursement.

(22) If, during the ten year period prior to the date of the negligence alleged in the Complaint, you were under a physician's or other health care provider's care for any conditions which were in any way similar or related to those identified and listed in your response to Interrogatory #5, state the nature of said injuries or conditions, the dates you received treatment, and the name of the physician or other health care provider who provided treatment for the prior condition.

(23) State whether you have ever filed a claim or lawsuit for physical or mental injury or condition. If so, state the caption, venue and docket number of any such lawsuit.

(24) If you were involved in any incident in which you received physical or mental injuries or conditions since the date of the negligence alleged in the Complaint, provide the following information:

(a) On what date and in what manner did you sustain said injuries?

(b) Did you make a claim against anyone as a result of said incident?

(c) If so, provide the name(s) and address(es) of the person or persons against whom a claim was made;

(d) If a lawsuit was brought, state the name and location of the Court, the return date of the lawsuit, and the docket number;

(e) State the nature of the physical or mental injuries or conditions received in said incident;

(f) State the name and address of each physician or health care provider who treated you for said injuries or conditions;

(g) State the dates on which you were so treated;

(h) State the nature of the treatment received on each such date; and

(i) If you are presently or permanently disabled as a result of said injuries, state the nature of such disability, the name and address of each physician or health care provider who diagnosed said disability and the date of each such diagnosis.

(25) At the time of the negligence alleged in your Complaint or thereafter, have you filed a personal bankruptcy petition? If yes, identify the type of bankruptcy, the court and court address, caption and docket number, name and address of trustee and whether the petition is pending or has been discharged.

(26) List all secondary schools and colleges you attended, the years attended, and degrees conferred, if any.

(27) If you claim that as a result of the negligence alleged in your Complaint you were prevented from pursuing your usual occupation, or otherwise lost time from work, provide the following information:

(a) The name and address of your employer on the date of the negligence alleged in the Complaint;

(b) The nature of your occupation and a precise description of your job responsibilities with said employer on the date of the negligence alleged in the Complaint;

(c) Your average, weekly earnings, salary, or income received from said employment for the year preceding the date of the negligence alleged in the Complaint;

(d) The date following the date of the negligence alleged in the Complaint on which you resumed the duties of said employment;

(e) Any loss of income you claim resulted from the negligence alleged in your Complaint and how the loss is computed;

(f) The dates you were unable to perform the duties and lost time from work as a result of injuries or conditions claimed to have been sustained as a result of the negligence alleged in your Complaint; and

(g) The name and address of each employer for whom you worked for three years prior to the date of the negligence alleged in your Complaint.

(28) Do you claim an impairment of earning capacity?

(29) State whether you made an application(s) for life/disability insurance in the past ten years, and if so state the date of the application(s).

(30) Identify the administrative/funeral and burial expenses incurred on behalf of the Plaintiff, if applicable, as well as the date such expenses were incurred, the recipient of such monies and the identity of the individual who paid such expenses.

(31) If you are introducing the condition of your mental health as an element of a claim in this lawsuit, state whether you have sought treatment with a mental health provider, including but not limited to a psychiatrist, psychologist, therapist, or counselor, in the ten years prior to, or subsequent to the negligence alleged in the Complaint.

COMMENT:

Where appropriate, and where the Plaintiff does not consent to the production of the mental health records, the Defendant may seek a court order for the production of the records.

(32) Has any treating physician or other health care provider told you directly that the above-named Defendant(s) failed to adhere to the acceptable standard of care in any respect?

(33) If the answer to the preceding interrogatory is in the affirmative, state the name and address of each such physician or health care provider, the date each communication was made and the content of any such communication.

(34) If you have signed a covenant not to sue, a release or discharge of any claim you had, have or may have against any person, corporation or other entity as a result of the negligence alleged in your Complaint, state in whose favor it was given, the date thereof, and to the extent it is not subject to a confidentiality agreement, the consideration paid to you for giving it. If you are unable to respond to this interrogatory, in whole or in part, due to a confidentiality agreement, state so.

(35) If you or anyone on your behalf agreed to or contracted with any person, corporation or other entity to limit in any way the liability of such person, corporation or other entity as a result of any claim you have or may have as a result of the negligence alleged in your Complaint, state in whose favor it was given, the date thereof, and to the extent it is not subject to a confidentiality agreement, the consideration paid to you for giving it. If you are unable to respond to this interrogatory due to a confidentiality agreement, state so.

(36) State the names and addresses of all persons known to you who were present at the time of the negligence alleged in your Complaint or who observed or witnessed all or part of the care provided by the Defendant.

(37) As to each individual named in response to the preceding interrogatory, state whether to your knowledge, or the knowledge of your attorney, such individual has given any statement or statements as defined in Practice Book Section 13-1 concerning the subject matter of your Complaint or alleged injuries and conditions. If your answer to this interrogatory is affirmative, state also:

(a) The date on which such statement or statements were taken;

(b) The name(s) and address(es) of the person or persons who took such statement or statements;

(c) The name(s) and address(es) of any person or persons present when such statement or statements were taken;

(d) Whether such statement or statements were written, made by recording device or taken by a court reporter or stenographer; and

(e) The name(s) and address(es) of any person or persons having custody or a copy or copies of such statement or statements.

(38) Have you made any statements, as defined in Practice Book Section 13-1, to any person regarding any of the events alleged in your Complaint?

(39) State the name(s) and address(es) of any person(s) who you may call as a fact witness at trialof this matter regarding the claims of damage alleged by the Plaintiff(s) in the Complaint.

COMMENT:

These individuals or witnesses shall be disclosed, except for good cause shown, no later than sixty days prior to trial and may be thereafter deposed.

(40) Have you documented in any form any of the events, injuries, or conditions alleged in your Complaint? State whether any privilege is claimed.

(41) Are you aware of any photographs or any recordings by film, video, audio or any other digital or electronic means depicting the negligence alleged in the Complaint, the care provided by the Defendant or any injury or condition alleged to have been caused by the negligence alleged in the Complaint? If so, for each set of photographs or each recording taken, obtained or prepared of each such subject, state:

(a) The name and address of the person who took, obtained or prepared such photograph or recording, other than an expert who will not testify at trial;

(b) The dates on which such photographs were taken or such recordings were obtained or prepared;

(c) The subject;

(d) The number of photographs or recordings;

(e) The nature of the recording (e.g., film, video, audio, etc.).

(42) Identify surveillance material discoverable under Practice Book Section 13-3 (c), by stating the name and address of any person who obtained or prepared any and all recordings, by film, photograph, video, audio or any other digital or electronic means, of any party concerning this lawsuit or its subject matter, including any transcript thereof which are in your possession or control or in the possession or control of your attorney, and state the date on which each such recordings were obtained and the person or persons of whom each such recording was made.

(43) Have you ever filed a claim/application for Social Security Disability and/or any form of government disability including military?

(44) If the answer to the preceding interrogatory is in the affirmative, state:

(a) The dates of all such applications;

(b) The reasons for seeking disability, including all listed medical conditions;

(c) How the listed medical conditions caused you to be disabled;

(d) The dates you were deemed disabled;

(e) The names and addresses of any physicians or health care providers whom you saw for disability evaluations; and

(f) The address of any disability offices involved in obtaining such benefits.

Interrogatories #45 through #52 apply in wrongful death cases:

(45) If the decedent underwent a physical examination for any reason including, but not limited to, examinations related to employment, or employment applications within the five (5) years prior to the date of the negligence alleged in the Complaint, please state:

(a) The date(s) the exam was performed; and

(b) The name and address of the physician or health care provider who performed each exam.

(46) If a claim for loss of earning capacity is being made, please state the decedent's average monthly personal living expenses for the two (2) years preceding his/her death including, but not limited to, the decedent's food, rent and housing, clothing, transportation, and medical and dental care.

(47) Did the decedent suffer from any illness, injury, disease, condition, disability or defect from the time of the negligence alleged in the Complaint to the time of death? If so, please identify the illness, injury, disease, condition, disability or defect.

(48) If you are claiming that any preexisting physical or mental condition exacerbated, contributed to, or accelerated the decedent's death, identify the condition(s) and physician or health care provider(s) treating the decedent for those condition(s) in the ten years prior to his or her death.

(49) Other than what is contained in the medical records, are you aware of any treating physician, physician's assistant (P.A.), or advanced practice registered nurse (APRN) who discussed the primary cause of the decedent's death with a patient representative? If so, please identify that individual and the substance of that conversation.

(50) Was an autopsy and/or postmortem toxicology testing ever performed on the decedent? If the answer is yes, state:

(a) The name of the person who ordered or requested the autopsy;

(b) The date the autopsy was performed;

(c) The place where the autopsy was performed;

(d) The name of the individual who performed the autopsy; and

(e) The findings of the autopsy and/or postmortem toxicology testing.

(51) Have any entries, memoranda, and/or declarations, as defined in General Statutes § 52-172, been made by the Plaintiff concerning the issues alleged in the Complaint?

(52) If the answer to the foregoing interrogatory is affirmative, state:

(a) The date on which such entries, memoranda, and/or declarations were made;

(b) The form of the entries, memoranda, and/or declarations (i.e., whether oral, written, made by recording device or recorded by a stenographer, etc.);

(c) The substance or content of such entries, memoranda, and/or declarations;

(d) The name and address of each person having custody or a copy or copies of the entries, memoranda, and/or declarations; and

(e) The name and address of any witnesses to such entries, memoranda, and/or declarations.

Interrogatory #53 applies to cases involving a minor Plaintiff:

(53) If the minor Plaintiff attends or has attended a day care, preschool, school or camp on a regular basis from the time of the negligence alleged in the Complaint to the present time, state:

(a) The name and address of the institution or facility;

(b) The amount of time each day that the minor Plaintiff attended there; and

(c) The dates of attendance.

DEFENDANT,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Plaintiff)

Subscribed and sworn to before me this _____day of _____, 20____.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____
Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____
Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 11, 2021, to take effect Jan. 1, 2022; amended June 12, 2025, to take effect Jan. 1, 2026.)
HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”
COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 219

**Defendant's Requests for Production—
Medical Negligence**

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Defendant(s) hereby request(s) that the Plaintiff provide counsel for the Defendant(s) with copies of the documents described in the following requests for production, or afford counsel for said Defendant(s) the opportunity or, where requested, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorizations shall take place at the offices of _____ not later than sixty (60) days after the service of the Requests for Production.

In answering these production requests, the Plaintiff(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

(1) All hospital records relating to treatment received as a result of the negligence alleged in the Complaint, and to injuries, diseases or defects to which reference is made in the answers to Interrogatories #6 and #24 (exclusive of any records relating to mental health injuries or conditions), or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA), to inspect and make copies of the hospital records. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the above captioned action.

(2) All reports and records of all physicians and other health care providers relating to treatment allegedly received by the Plaintiff(s) as a result of the negligence alleged in the Complaint and to the injuries, diseases or defects to which reference is made in the answers to Interrogatories #7, #22, and #24 (exclusive of any records relating to mental health injuries or conditions) or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA) to inspect and make copies of said reports. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the above captioned action.

(3) If a claim of impaired earning capacity or lost wages is being alleged, copies of, or sufficient written authorization to obtain copies of, that part of all income tax returns relating to lost income filed by the Plaintiff(s) for a period of three (3) years prior to the date of the negligence alleged in the Complaint and for all years subsequent to the date of the negligence alleged in the Complaint through the time of trial.

(4) If a claim for lost wages or lost earning capacity is being made, copies of, or sufficient written authorization to inspect and make copies of, the wage and employment records of all employers of the Plaintiff(s) for three (3) years prior to the negligence alleged in the Complaint and for all years subsequent to the date of the negligence alleged in the Complaint.

(5) A copy of any nonprivileged statement, as defined in Practice Book Section 13-1, of any party to this lawsuit concerning this action or its subject matter.

(6) All medical bills that are claimed to have been incurred as a result of the negligence alleged in the Complaint or written authorization, sufficient to comply with the provisions of the Health Insurance

Portability and Accountability Act (HIPAA) to inspect and make copies of said medical bills. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the above captioned action.

(7) All bills for each item of expense that are claimed to have been incurred in the answer to Interrogatories #20 and #30, and not already provided in response to Production Request #6.

(8) Copies of all documents pertaining to claims of right to reimbursement provided to the Plaintiff by third-party payers, and copies of, or written authorization, sufficient to comply with the provisions of the Health Insurance Portability and Accountability Act (HIPAA) to obtain any and all documentation of payments made by a third party for medical services received or premiums paid to obtain such payment. Information obtained pursuant to the provisions of HIPAA shall not be used or disclosed by the parties for any purpose other than the above captioned action.

(9) All documents identified or referred to in the answers to Interrogatory #34 unless a claim of confidentiality has been stated.

(10) Nonprivileged copies, whether in hard copies or electronic media, of any and all documentation referenced in Interrogatory #40.

(11) A copy of each and every recording of surveillance material discoverable under Practice Book Section 13-3 (c), by film, photograph, video, audio or any other digital or electronic means, of any party to this lawsuit concerning this lawsuit or the subject matter thereof, including any transcript of such recording.

(12) Copies of any and all documents and communications concerning any and all of your disability claim(s) with the issuing governmental office as set forth in Interrogatory #43, excluding any material which is claimed to be protected by attorney-client privilege or other applicable privilege. In addition, written authorization, in the form attached, permitting the undersigned to obtain a full and complete copy of the Plaintiff's social security disability file.

(13) Any and all photographs or recordings identified in response to Interrogatory #41.

Requests for Production #14 through #19 apply in wrongful death cases:

(14) A copy of the probate appointment, identifying the Plaintiff as Administrator of the subject estate.

(15) A copy of the death certificate.

(16) A copy of any autopsy report and/or postmortem toxicology testing report.

(17) Copies of declarations of the Plaintiff that your attorney intends to use at time of trial pursuant to General Statutes § 52-172.

(18) Any documents, written or digital recordings, entries, memoranda, and/or transcripts of digital recordings offered pursuant to General Statutes § 52-174.

(19) Copies of or an authorization to obtain the records referenced in Interrogatory #45.

Request for Production #20 applies to cases involving a minor Plaintiff:

(20) Copies of all education records, attendance records, nurses' records, and materials from each day care, preschool, school, or other educational institution the minor Plaintiff has attended (exclusive of any records relating to mental health injuries or conditions) for the last five years to the present or

written authorization in the form attached permitting the undersigned to inspect and to make copies of said educational records.

DEFENDANT,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 11, 2021, to take effect Jan. 1, 2022; amended June 12, 2025, to take effect Jan. 1, 2026.)
HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”
COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

EDUCATION / SCHOOL RECORDS AUTHORIZATION

TO:

(Any educational institution, including any school, special education program, remedial education program, developmental program, including special treatment, teacher aides and assistance that has provided educational services to):

_____

(insert name above)

I hereby authorize you to release copies of the records of _____, including educational records to **(**defense firm name**)**, or its authorized representative. "Educational records" for purposes of this authorization shall include, but not be limited to, attendance records, medical records, occupational therapy records, nurses' notes, progress reports, teacher notes, report cards, achievement scores, evaluations, teacher progress notes, transcripts, social worker's records, and correspondence.

This authorization does not expire until expressly withdrawn by the undersigned.

A copy of this authorization is deemed as valid as the original.

_____

Signature of patient or patient's representative Date

If a patient's representative signs this authorization, please complete the following:

_____

Printed name of patient's representative: Relationship to patient

(Adopted June 11, 2021, to take effect Jan. 1, 2022.)

DAY CARE / CHILDCARE / HOME CARE RECORDS AUTHORIZATION

TO:

(Any day care, childcare, home care provider that has provided services to)

_____

(insert name above)

I hereby authorize you to release copies of the records of _____, including educational records to **(**defense firm name**)**, or its authorized representative. "Records" for purposes of this authorization shall include, but not be limited to, attendance records, medical records, occupational therapy records, nurses' notes, progress reports, teacher notes, report cards, achievement scores, evaluations, teacher progress notes, transcripts, social worker's records, and correspondence.

This authorization does not expire until expressly withdrawn by the undersigned.

A copy of this authorization is deemed as valid as the original.

_____

Signature of patient or patient's representative Date

If a patient's representative signs this authorization, please complete the following:

_____

Printed name of patient's representative: Relationship to patient

(Adopted June 11, 2021, to take effect Jan. 1, 2022.)

Form 220

Plaintiff's Interrogatories—
Medical Negligence—Health Care Provider

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Plaintiff(s), hereby propounds the following Interrogatories to be answered by the Defendant, _____(Defendant Health Care Provider's Name), under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

Definition: "You" or "your" shall mean the Defendant to whom these interrogatories are directed, except that if that Defendant has been sued as the representative of the estate of a decedent, ward, or incapable person, "you" or "your" shall also refer to the Defendant's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

In answering these interrogatories, the Defendant(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State the following:

(a) Your full name and any other name(s) by which you have been known;

(b) Your date of birth; and

(c) Your business address.

(2) If the Defendant is deceased, state the date and place of death, whether an estate has been created, and the name and address of the Administrator or Executor thereof.

Unless the information requested is provided in your curriculum vitae, respond to Interrogatories #3 through #11:

(3) State the name of each college and graduate school you attended, the date of graduation, and each degree obtained, or provide your curriculum vitae including such information.

(4) State the name and address of each medical institution where you underwent postgraduate training (e.g., internship, residency, fellowship, or similar training), and the dates of attendance, or provide your curriculum vitae including such information.

(5) If you have been trained in a medical or surgical specialty, identify the specialty, the dates you practiced the specialty, and the name and address of each institution where you were trained, or provide your curriculum vitae including such information.

(6) If you have ever specialized in or limited your practice to a particular field or branch of medicine or surgery, for each specialized or limited practice, state the field or branch of medicine or surgery,

the inclusive dates you so practiced, and each location where you so practiced in the past ten years, or provide your curriculum vitae including such information.

(7) If you have held any teaching positions, for each institution, state:

(a) The name and address of the institution;

(b) The inclusive dates of your association; and

(c) The title held in each position.

(8) State the name and location of any hospital or medical facility at which you have or have had appointments and/or clinical privileges in the past ten years, and the dates you had such appointments or privileges.

(9) Identify each medical book, paper, article, or other document that you have published, written, or contributed, and for each, state the title, whether you were an author, co-author, or contributor.

(10) State the name of every jurisdiction in which you are or have been licensed as a health care provider.

(11) State whether you are, or have ever been, a member of any medical or other health care provider association, society or organization, and if so, as to each such membership, state:

(a) The name and address of the medical or other health care provider association, society, or organization;

(b) The inclusive dates of your membership; and

(c) Whether you have ever held any office and, if so, the title of the office and the dates you held such office.

(12) With respect to any medical specialty board or other specialty board, for each board state, whether you were refused or granted certification, the reasons therefor, and, if granted certification, your title or rank (e.g., diplomate, fellow, member), and whether you still hold such certification, title, or rank.

(13) During the past ten years have you ever had your privileges or application for privileges denied, revoked, restricted, suspended, or limited in any way at any hospital or medical facility?

(14) Unless agency or another vicarious liability relationship is admitted to such codefendant, state whether at the time of the negligence alleged in the Complaint to the present you were an officer, shareholder, employee, member, partner, or otherwise affiliated with any entity or person involved in the care and treatment of the Plaintiff. If the answer is yes, describe the nature and time period of the affiliation.

(15) During the ten years prior to the negligence alleged in the Complaint, have you ever had your application for a license denied, revoked, restricted, suspended, or limited in any way in any jurisdiction?

(16) State the time period(s) of the physician-patient relationship, if any, you had with the Plaintiff.

(17) With respect to the negligence alleged in the Complaint, did you ever consult with any physician or other health care provider regarding your diagnosis, care, or treatment of the Plaintiff that is not

documented in the medical record? If so, identify the person consulted, his or her specialty, and the reason for the consultation.

(18) Are you aware of any nonprivileged documents concerning consultations, care or treatment of the Plaintiff regarding the negligence alleged in the Complaint that are not contained in the medical records or hospital chart? If so, identify each document.

(19) If you are covered by an insurance policy under which an insurer may be liable to satisfy part or all of a judgment or reimburse you for payments to satisfy part or all of a judgment relating to the negligence alleged in the Complaint, state the following:

(a) The name(s) and address(es) of the insured(s);

(b) The amount of coverage under each insurance policy; and

(c) The name(s) and address(es) of said insurer(s).

(20) If you are covered by an excess or umbrella insurance policy, or any other insurance policy relating to the negligence alleged in the Complaint, state:

(a) The name(s) and address(es) of the named insured(s);

(b) The amount of effective coverage; and

(c) The name(s) and address(es) of the insurer(s).

(21) As to each insurance policy identified in response to the preceding two interrogatories, state whether:

(a) Any disclaimer or reservation of rights letter has been issued; and

(b) It is an eroding policy.

(22) Pursuant to General Statutes § 19a-17b, were your staff privileges terminated or restricted by a medical review committee conducting a peer review with respect to the negligence alleged in the Complaint? If so, please disclose the specific restriction imposed, if any.

(23) Have you or any entity or person been sued for medical negligence arising out of your conduct as a health care provider? If so, state the caption, venue and docket number of the lawsuit(s).

(24) Have you made any statements, as defined in Practice Book Section 13-1, to any person regarding any of the allegations in the Complaint?

COMMENT:

Interrogatory #24 is intended to include party statements made to a representative of an insurance company prior to involvement of defense counsel.

(25) If the answer to the previous interrogatory is affirmative, state:

(a) The name(s) and address(es) of the person or persons to whom such statements were made;

(b) The date on which such statements were made;

(c) The form of the statement (i.e., whether written, made by recording device or recorded by a stenographer, etc.); and

(d) The name and address of each person having custody or a copy of each statement.

(26) Other than those individuals referenced in the medical record, state the names and addresses of all persons known to you who were present at the time of the negligence alleged in the Complaint or who observed or witnessed all or part of the negligence alleged in the Complaint.

(27) As to each individual named in response to the previous interrogatory, state whether, to your knowledge or the knowledge of your attorney, the individual(s) has given any statement or statements, as defined in Practice Book Section 13-1, concerning the subject matter of the Complaint. If your answer to this interrogatory is affirmative, state:

(a) The date on which the statement(s) were taken;

(b) The name(s) and address(es) of the person(s) who took the statement(s);

(c) The name(s) and address(es) of any person(s) present when the statement(s) were taken;

(d) Whether the statement(s) were written, made by recording device or taken by a court reporter or stenographer;

(e) The name(s) and address(es) of any person(s) that have custody or copies of the statement(s).

(28) State whether the Plaintiff was referred to you, and if so, identify the person or entity that made the referral and the date thereof.

(29) Did you create, use, or maintain any "electronic protected health information" (hereinafter "health information"), as defined in 45 C.F.R. § 160.103, during your treatment of the Plaintiff?

(30) If the answer to the previous interrogatory is in the affirmative, list the names of any and all electronic "information system(s)" (hereinafter "EMR system(s)"), as defined in 45 C.F.R. § 164.304, that contain or previously contained the health information of the Plaintiff.

(31) Identify surveillance material discoverable under Practice Book Section 13-3 (c), by stating the name and address of any person who obtained or prepared any and all recordings, by film, photograph, video, audio or any other digital or electronic means, of any party concerning this lawsuit or its subject matter, including any transcripts which are in your possession or control or in the possession or control of your attorney, and state the date on which each recording(s) was obtained and the person or persons of whom each such recording was made.

PLAINTIFF,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Defendant)

Subscribed and sworn to before me this _____ day of _____, 20____.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____
Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____
Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 11, 2021, to take effect Jan. 1, 2022; amended June 12, 2025, to take effect Jan. 1, 2026.)
HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”
COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 221

Plaintiff's Interrogatories—
Medical Negligence—Hospital and/or Medical Group

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The undersigned, on behalf of the Plaintiff(s), hereby propounds the following Interrogatories to be answered by the Defendant, _____ (Defendant Hospital's Name), under oath, within sixty (60) days of the filing hereof in compliance with Practice Book Section 13-2.

Definition: "You" or "your" shall mean the Defendant, and its agents, servants, or employees to whom these interrogatories are directed.

In answering these interrogatories, the Defendant(s) is (are) required to provide all information within their knowledge, possession or power. If an interrogatory has subparts, answer each subpart separately and in full and do not limit the answer to the interrogatory as a whole. If any interrogatories cannot be answered in full, answer to the extent possible.

(1) State the following:

(a) Your full name and any other name(s) by which you have been known; and

(b) Your business address.

(2) If you are a business entity that has changed its name or status as a business entity (whether by dissolution, merger, acquisition, name change, or in any other manner) since the negligence alleged in the Complaint, state the date of the change, and describe the change.

(3) Unless agency or another vicarious liability relationship is admitted as to such codefendant, state whether from the time of the negligence alleged in the Complaint to the present you were a shareholder, partner, or otherwise affiliated with any codefendant. If the answer is yes, describe the nature and time period of the affiliation.

(4) With respect to the negligence alleged in the Complaint, did you ever consult with any physician(s) or health care provider(s) regarding your diagnosis, care, or treatment that is not documented in the medical record? If so, identify the person(s) consulted and their specialty as well as the reason for the consult.

(5) Are you aware of any nonprivileged documents concerning consultations, care or treatment regarding the negligence alleged in the Complaint that are not contained in the medical record or hospital chart? If so, identify each document.

(6) If you are covered by an insurance policy under which an insurer may be liable to satisfy part or all of a judgment or reimburse you for payments to satisfy part or all of a judgment relating to the negligence alleged in the Complaint, state the following:

(a) The name(s) and address(es) of the insured(s);

(b) The amount of coverage under each insurance policy; and

(c) The name(s) and address(es) of said insurer(s).

(7) If you are covered by excess or umbrella insurance or any other insurance relating to the negligence alleged in the Complaint, state:

(a) The name(s) and address(es) of the named insured(s);

(b) The amount of coverage effective at this time; and

(c) The name(s) and address(es) of said insurer(s).

(8) As to each insurance policy identified in response to the preceding two interrogatories, state whether:

(a) Any disclaimer or reservation of rights letter has been issued; and

(b) It is an eroding policy.

(9) Have you made any statements, as defined in Practice Book Section 13-1, to any person regarding any of the allegations in the Complaint?

COMMENT:

Interrogatory #9 is intended to include party statements made to a representative of an insurance company prior to involvement of defense counsel. This interrogatory is not intended to include attorney–client communications.

(10) If the answer to the previous interrogatory is affirmative, state:

(a) The name(s) and address(es) of the person(s) to whom the statement(s) were made;

(b) The date the statement(s) were made;

(c) The form of the statement(s) (i.e., whether written, made by recording device or recorded by a stenographer, etc.); and

(d) The name(s) and address(es) of the person(s) having custody or copies of the statement(s).

(11) Other than those individuals referenced in the medical record, state the names and addresses of all persons known to you who were present at the time of the negligence alleged in the Complaint or who observed or witnessed all or part of the negligence alleged in the Complaint.

(12) As to each individual named in response to the previous interrogatory, state whether to your knowledge, or the knowledge of your attorney, the individual(s) has given any statement(s) as defined in Practice Book Section 13-1, concerning the subject matter of the Complaint in this lawsuit. If your answer to this interrogatory is affirmative, state also:

(a) The date on which the statement(s) were taken;

(b) The name(s) and address(es) of the person(s) who took the statement(s);

(c) The name(s) and address(es) of any person(s) present when the statement(s) were taken;

(d) Whether the statement(s) were written, made by recording device or taken by a court reporter or stenographer; and

(e) The name(s) and address(es) of any person(s) having custody or copies of the statement(s).

(13) Did you create, use, or maintain any "electronic protected health information" (hereinafter "health information"), as defined in 45 C.F.R. § 160.103, during the treatment of the Plaintiff?

(14) If the answer to the previous interrogatory is in the affirmative, list the names and versions of any and all electronic "information system(s)" (hereinafter "EMR system(s)"), as defined in 45 C.F.R. § 164.304, that contain or previously contained the health information of the Plaintiff.

(15) Indicate whether you were accredited by the Joint Commission (formerly Joint Commission on Accreditation of Healthcare Organizations (JCAHO)) during the time of the negligence alleged in the Complaint.

(16) With respect to the negligence alleged in the Complaint, state whether you had any manuals, directives, instructions, guidelines, and/or written or unwritten protocols related to specific allegations of negligence in the Complaint that were in effect at the office, hospital, or other medical facility where the defendant physician or health care provider practiced at the time of the negligence alleged in the Complaint concerning:

(a) Care, treatment, monitoring, evaluation, diagnosis, consultation or referral to others, at the time of the event(s) that is (are) the subject of this litigation;

(b) Training requirements and/or protocols for any physician or health care provider, including but not limited to medical staff, caring for, evaluating, diagnosing, consulting or referring patients either in the facility, department, or unit where the care, treatment, evaluation, diagnosis, consultation or referral to others at issue took place; and

(c) Reporting and/or investigation of adverse events at the facility, department, or unit where the care, treatment, evaluation, diagnosis, consultation or referral to others at issue took place.

COMMENT:

There is no corresponding request for production to Interrogatory #16, but documents may be pursued by way of supplemental discovery.

(17) Identify surveillance material discoverable under Practice Book Section 13-3 (c), by stating the name and address of any person who obtained or prepared any and all recordings, by film, photograph, video, audio or any other digital or electronic means, of any party concerning this lawsuit or its subject matter, including any transcript thereof which are in your possession or control or in the possession or control of your attorney, and state the date on which each such recordings were obtained and the person or persons of whom each such recording was made.

PLAINTIFF,

BY_____

I, _____, hereby certify that I have reviewed the above interrogatories and responses thereto and that they are true and accurate to the best of my knowledge and belief.

_____
(Defendant)

Subscribed and sworn to before me this _____ day of _____, 20____.

_____
Notary Public/
Commissioner of the Superior Court

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary, attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____
Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____
Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 11, 2021, to take effect Jan. 1, 2022; amended June 12, 2025, to take effect Jan. 1, 2026.)
HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”
COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 222

**Plaintiff's Requests for Production—
Medical Negligence—Health Care Provider**

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Plaintiff(s) hereby request(s) that the Defendant _____ (Defendant Health Care Provider's Name) provide counsel for the Plaintiff(s) with copies of the documents described in the following requests for production, or afford counsel for said Plaintiff(s) the opportunity or, if necessary, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorizations shall take place at the offices of _____ on _____ (day), _____ (date) at _____ (time).

In answering these production requests, the Defendant(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

Definition: "You" or "your" shall mean the Defendant to whom these interrogatories are directed, except that if the Defendant has been sued as the representative of the estate of a decedent, ward, or incapable person, "you" or "your" shall also refer to the Defendant's decedent, ward or incapable person unless the context of an interrogatory clearly indicates otherwise.

(1) All documents (excluding privileged documents, such as attorney-client, work product, and peer review documents) that you know of, possess, or have power to obtain, concerning the Plaintiff's care, scheduling, appointments, treatment, evaluation, diagnosis, consultation or referral to others including but not limited to:

(a) All documents normally maintained as part of a patient's designated health record;

(b) Office management records including jackets, file covers, face sheets, transmittal documents for any requests for studies or consultations, and/or transportation records;

(c) Nursing notes;

(d) Hospital records;

(e) Laboratory records;

(f) Testing records;

(g) Radiology requisitions, reports, images/studies (lossless images), and audio recordings of radiology reviews;

(h) Notes, sticky notes or written markings;

(i) Pharmacy medication records;

(j) Automated medication dispensing system records;

(k) Any images/photographs taken during treatment or pathological examination;

(*l*) Pathology reports;

(m) Drafts and/or audio recordings of pathology reports;

(n) Quality improvement documents related to root cause analysis;

(o) Documents provided in connection with a peer review;

(p) Intradepartment transportation records;

(q) Laboratory test results;

(r) Documents and communications concerning the Plaintiff and the allegations in the Complaint; and

(s) Investigations or reports concerning the incident that is the subject of this lawsuit.

COMMENT:

Where privilege is claimed, counsel shall follow the relevant Practice Book rule(s). This request contemplates production of all medical records and documents, not limited to the treatment related to the allegations in the Complaint, subject to the Plaintiff providing a Health Insurance Portability and Accountability Act compliant authorization if necessary.

(2) Your current curriculum vitae.

(3) Each document identified in response to Interrogatory #18.

(4) A copy of the declaration page(s) of each insurance policy identified in response to Interrogatories #19 and #20.

(5) If the answer to Interrogatory #21 is in the affirmative, a copy of the complete policy contents of each insurance policy identified in response to Interrogatories #19 and #20.

(6) Each nonprivileged statement identified in response to Interrogatories #25 and #27.

(7) A copy of each and every recording of surveillance material discoverable under Practice Book Section 13-3 (c), by film, photograph, video, audio or any other digital or electronic means, of any party to this lawsuit concerning this lawsuit or the subject matter thereof, including any transcript of such recording.

PLAINTIFF,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (*date*) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

_____

Signed (*Signature of filer*) Print or type name of person signing Date Signed

_____

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 11, 2021, to take effect Jan. 1, 2022; amended June 12, 2025, to take effect Jan. 1, 2026.)

HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”

COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

Form 223

**Plaintiff's Requests for Production—
Medical Negligence—Hospital/Medical Group**

No. CV-	: SUPERIOR COURT
(Plaintiff)	: JUDICIAL DISTRICT OF
VS.	: AT
(Defendant)	: (Date)

The Plaintiff(s) hereby request(s) that the Defendant _____ (Defendant Hospital's Name) provide counsel for the Plaintiff(s) with copies of the documents described in the following requests for production, or afford counsel for said Plaintiff(s) the opportunity or, if necessary, sufficient written authorization, to inspect, copy, photograph or otherwise reproduce said documents. The production of such documents, copies or written authorizations shall take place at the offices of _____ on _____ (day), _____ (date) at _____ (time).

In answering these production requests, the Defendant(s) are required to provide all information within their possession, custody or control. If any production request cannot be answered in full, answer to the extent possible.

Definition: "You" or "your" shall mean the Defendant, and its agents, servants, or employees to whom these requests for production are directed.

(1) All documents (excluding privileged documents such as attorney-client, work product, and peer review documents) that you know of, possess, or have power to obtain concerning the Plaintiff's care, scheduling, appointments, treatment, evaluation, diagnosis, consultation or referral to others, including but not limited to:

(a) All documents typically maintained as part of a patient's designated health record;

(b) Office management records including jackets, file covers, face sheets, transmittal documents for any requests for studies or consultations, and/or transportation records;

(c) Nursing notes;

(d) Hospital records;

(e) Laboratory records;

(f) Testing records;

(g) Radiology requisitions, reports, images/studies (lossless images), and audio recordings of radiology reviews;

(h) Notes, sticky notes or written markings;

(i) Pharmacy medication records;

(j) Automated medication dispensing system records;

(k) Any images/photographs taken during treatment or pathological examination;

(*l*) Pathology reports;

(m) Drafts and/or audio recordings of pathology reports;

(n) Quality improvement documents related to root cause analysis;

(o) Documents provided in connection with a peer review;

(p) Intradepartment transportation records;

(q) Laboratory test results;

(r) Documents and communications concerning the subject matter of the Complaint; and

(s) Investigations or reports concerning the Plaintiff and the allegations in the Complaint.

COMMENT:

Where privilege is claimed, counsel shall follow the relevant Practice Book rule(s). This request contemplates production of all medical records and documents, not limited to the treatment related to the allegations in the Complaint, subject to the Plaintiff providing a Health Insurance Portability and Accountability Act compliant authorization if necessary.

(2) Each document identified in response to Interrogatory #5.

(3) A copy of the declaration page(s) of each insurance policy identified in response to Interrogatories #6 and #7.

(4) If the answer to Interrogatory #8 is in the affirmative, a copy of the complete policy contents of each insurance policy identified in response to Interrogatories #6 and #7.

(5) Each nonprivileged statement identified in response to Interrogatories #10 and #12.

(6) A copy of each and every recording of surveillance material discoverable under Practice Book Section 13-3 (c), by film, photograph, video, audio or any other digital or electronic means, of any party to this lawsuit concerning this lawsuit or the subject matter thereof, including any transcript of such recording.

PLAINTIFF,

BY_____

CERTIFICATION

I certify that a copy of this document was or will immediately be mailed or delivered electronically or non-electronically on (date) _____ to all attorneys and self-represented parties of record and that written consent for electronic delivery was received from all attorneys exempt from e-filing and self-represented parties of record who received or will immediately be receiving electronic delivery.

Name and address of each party and attorney that copy was or will immediately be mailed or delivered to*

*If necessary attach additional sheet or sheets with the name and address which the copy was or will immediately be mailed or delivered to.

Signed (*Signature of filer*) Print or type name of person signing Date Signed

Mailing address (*Number, street, town, state and zip code*) or Email address, if applicable Telephone number

(Adopted June 11, 2021, to take effect Jan. 1, 2022; amended June 12, 2025, to take effect Jan. 1, 2026.)
HISTORY—2026: In the first sentence of the certification, “exempt from e-filing” was added after “from all attorneys.”
COMMENTARY—2026: The changes to this form are consistent with the changes to the proof of service language in Section 10-14 (a).

OFFICIAL JUDICIAL BRANCH FORMS

Public forms are available in hard copy from any Clerk's Office or Court Service Center, and may also be accessed electronically on the Judicial Branch Forms website at www.jud.ct.gov/webforms. The Forms website has forms organized by category, forms grouped by subject and by case type, and also allows the option to search for specific forms by form name, form number, or keyword. Select State agency forms are also included on the Forms website.

Please note: The Judicial Branch periodically updates official forms. Therefore, users should not save electronic forms to local computers. The saved file will not reflect any updates made to the official form, and outdated versions of forms may not satisfy current statutory or Practice Book requirements. Instead, users should access electronic forms through the appropriate website each time the form is used.

SUPERIOR COURT STANDING ORDERS

Standing Orders that have been issued for civil, family, juvenile and criminal matters in the Superior Court may be accessed on the Judicial Branch website at www.jud.ct.gov. From the link to **Courts** on the main page of the website, click on **Superior Court** and then click on **Standing Orders**.

Standing Orders are provided on the Judicial Branch website for the convenience of the bench and bar. They are not adopted by the Superior Court judges and are not Practice Book rules.